SUPPLEMENT NO. 61
VOLUMES I, II AND III
June 2026

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6937, passed January 21, 2026.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 60
VOLUMES I, II AND III
January 2026

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6921, passed August 6, 2025.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 59
VOLUMES I, II AND III
September 2025

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6901, passed May 7, 2025.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 58
VOLUMES I, II AND III
March 2025

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6891, passed November 6, 2024.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 57
VOLUMES I, II AND III
October 2024

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6875, passed July 17, 2024.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 56
VOLUMES I, II AND III
April 2024

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6857, passed January 17, 2024.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 55
VOLUMES I, II AND III
January 2024

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6852, passed November 1, 2023.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 54
VOLUMES I, II AND III
October 2023

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6842, passed July 19, 2023.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 53
VOLUMES I, II AND III
July 2023

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6836, passed April 19, 2023.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 52
VOLUMES I, II AND III
April 2023

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6829, passed February 1, 2023.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 51
VOLUMES I, II AND III
December 2022

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6822, passed October 19, 2022.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 50
VOLUMES I, II AND III
September 2022

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6814, passed May 18, 2022.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 49
VOLUMES I, II AND III
July 2022

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6809, passed May 4, 2022.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 48
VOLUMES I, II AND III
April 2022

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6804, passed February 2, 2022.

See the Code Comparative Table and Disposition List—Volume III for further information.

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SUPPLEMENT NO. 47
VOLUMES I, II AND III
September 2021

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6793, passed August 4, 2021.

See the Code Comparative Table and Disposition List—Volume III for further information.

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10:9, 10:10	10:9, 10:10
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IX:3—IX:6	IX:3—IX:6.1
IX:59, IX:60	IX:59, IX:60
IX:66.1—IX:68	IX:67—IX:68.1

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SUPPLEMENT NO. 46
VOLUMES I, II AND III
July 2021

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6778, passed May 5, 2021.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:27—6:30	6:27—6:30.1
6:104.5—6:110	6:105—6:110.1
6:207—6:212.1	6:207—6:212.2
6:327, 6:328	6:327, 6:328
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7:39—7:44	7:39—7:44.1
7:60.5—7:62	7:61—7:62.1
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SUPPLEMENT NO. 45
VOLUMES I, II AND III
April 2021

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6769, passed February 3, 2021.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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IX:61, IX:62	IX:61, IX:62
IX:65, IX:66	IX:65, IX:66
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SUPPLEMENT NO. 44
VOLUMES I, II AND III
December 2020

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6758, passed November 2, 2020.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:21—6:24	6:21—6:24
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6:327, 6:328	6:327, 6:328
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SUPPLEMENT NO. 43
VOLUMES I, II AND III
September 2020

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6744, passed August 5, 2020.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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SUPPLEMENT NO. 42
VOLUMES I, II AND III
June 2020

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6736, passed May 6, 2020.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 41
VOLUMES I, II AND III
April 2020

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6724, passed February 5, 2020.

See the Code Comparative Table and Disposition List—Volume III for further information.

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13:1, 13:2	13:1, 13:2
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SUPPLEMENT NO. 40
VOLUMES I, II AND III
December 2019

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6715, passed November 6, 2019.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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10:17, 10:18	10:17—10:18.3
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11:13, 11:14	11:13—11:14.1
11:19, 11:20	11:19, 11:20
11:29—11:36.2	11:29—11:36.4
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IX:79—IX:80.1	IX:79—IX:80.1
IX:83—IX:88	IX:83—IX:88.1
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IX:119—IX:120.1	IX:119—IX:120.1

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SUPPLEMENT NO. 39
VOLUMES I, II AND III
September 2019

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6699, passed August 7, 2019.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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	VOLUME II
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SUPPLEMENT NO. 38
VOLUMES I, II AND III
June 2019

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6684, passed May 1, 2019.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:11—6:13	6:11—6:13
6:23, 6:24	6:23—6:24.1
6:194.1, 6:194.2	6:194.1, 6:194.2
6:224.1—6:228.2	6:225—6:228.3
6:237—6:238.3	6:237—6:238.4
6:243—6:244.2	6:243—6:244.2
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CCT:39, CCT:40	CCT:39—CCT:41
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SUPPLEMENT NO. 37
VOLUMES I, II AND III
March 2019

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6674, passed February 6, 2019.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:13	6:13
6:194.1, 6:194.2	6:194.1—6:194.3
6:231—6:232.2	6:231—6:232.3
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SUPPLEMENT NO. 36
VOLUMES I, II AND III
December 2018

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6653, passed November 7, 2018.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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11:14.1—11:16	11:15—11:16.1
11:32.1	11:32.1
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16:7—16:10.1	16:7—16:10.1
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SUPPLEMENT NO. 35
VOLUMES I, II AND III
September 2018

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6627, passed August 1, 2018.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
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6:11, 6:12	6:11, 6:12
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6:183—6:186.2	6:183—6:186.3
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6:233—6:238.2	6:233—6:238.3
6:341—6:367	6:341—6:371
7:1—7:8.1	7:1—7:7
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7:66.1—7:69	7:67—7:69
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IX:35—IX:40	IX:35—IX:40.1
IX:53, IX:54	IX:53, IX:54
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SUPPLEMENT NO. 34
VOLUMES I, II AND III
June 2018

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6616, passed May 2, 2018.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xvii	xvii
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SUPPLEMENT NO. 33
VOLUMES I, II AND III
March 2018

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6608, passed December 6, 2017.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:235—6:238.2	6:235—6:238.2
7:5, 7:6	7:5, 7:6
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IX:3—IX:4.1	IX:3, IX:4
IX:37, IX:38	IX:37, IX:38
IX:73—IX:76	IX:73—IX:75
IX:83, IX:84	IX:83, IX:84

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SUPPLEMENT NO. 32
VOLUMES I, II AND III
December 2017

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6601, passed November 1, 2017.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
ix—xii	ix—xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1:1, 1:2	1:1, 1:2
1:13, 1:14	1:13, 1:14
6:3, 6:4	6:3, 6:4
6:13	6:13
6:19—6:24	6:19—6:24
6:33—6:38	6:33—6:38
6:46.3—6:46.7	6:46.3—6:46.7
6:68.1—6:72	6:69—6:72.1
6:153—6:174.1	6:153—6:157
6:244.9, 6:244.10	6:244.9, 6:244.10
6:299—6:300.5	6:299—6:300.7
6:319—6:320.3	6:319—6:320.4
7:45, 7:46	7:45, 7:46
	VOLUME II
ix—xii	ix—xii
10:65, 10:66	10:65, 10:66
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CCT:35, CCT:36	CCT:35—CCT:37
IX:1—IX:4	IX:1—IX:4
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IX:60.1—IX:62	IX:61, IX:62
IX:99, IX:100	IX:99—IX:100.1

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SUPPLEMENT NO. 31
VOLUMES I, II AND III
September 2017

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6592, passed July 19, 2017.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:299—6:300.4	6:299—6:300.5
6:343—6:368	6:343—6:367
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14:29—14:40	14:29—14:40
14:95—14:113	14:95—14:110
16:1, 16:2	16:1, 16:2
16:13—16:21	16:13—16:22
	VOLUME III
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IX:35—IX:36.1	IX:35—IX:36.1
IX:65, IX:66	IX:65—IX:66.1
IX:133—IX:134.1	IX:133—IX:134.1

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SUPPLEMENT NO. 30
VOLUMES I, II AND III
June 2017

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6578, passed May 3, 2017.

See the Code Comparative Table and Disposition List—Volume III for further information.

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	VOLUME I
iii	iii
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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IX:85, IX:86	IX:85, IX:86
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SUPPLEMENT NO. 29
VOLUMES I, II AND III
March 2017

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6568, passed February 1, 2017.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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	6:58.1
	VOLUME II
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SUPPLEMENT NO. 28
VOLUMES I, II AND III
December 2016

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6556, passed November 2, 2016.

See the Code Comparative Table and Disposition List—Volume III for further information.

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6:277—6:278.1	6:277—6:278.5
6:289—6:296	6:289—6:293
6:299, 6:300	6:299, 6:300
7:45, 7:46	7:45—7:46.1
	VOLUME II
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11:1—11:6	11:1—11:6.1
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11:31, 11:32	11:31—11:32.1
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SUPPLEMENT NO. 27
VOLUMES I, II AND III
June 2016

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6524, passed May 4, 2016.

See the Code Comparative Table and Disposition List—Volume III for further information.

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6:45, 6:46	6:45, 6:46
6:300.3, 6:300.4	6:300.3, 6:300.4
6:335—6:340	6:335—6:340
6:345—6:367	6:345—6:368
7:7, 7:8	7:7—7:8.1
7:18.1, 7:18.2	7:18.1, 7:18.2
7:23, 7:24	7:23, 7:24
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10:9, 10:10	10:9, 10:10
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11:31—11:34	11:31—11:34.1
11:53—11:54.1	11:53—11:54.1
11:95, 11:96	11:95, 11:96
12:3—12:6	12:3—12:6
13:7—13:10	13:7—13:10
13:45, 13:46	13:45, 13:46
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20:3—20:26	20:3—20:26
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IX:39—IX:50	IX:39—IX:46
IX:57—IX:60	IX:57—IX:60
IX:71—IX:73	IX:71—IX:73
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SUPPLEMENT NO. 26
VOLUMES I, II AND III
March 2016

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6505, enacted February 3, 2016,
also included is Bill No. 23 to the Charter.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:37—6:40	6:37—6:40.1
6:51, 6:52	6:51—6:52.1
6:219—6:232	6:219—6:232.2
7:1—7:6	7:1—7:6.1
7:9—7:16	7:9—7:16.1
7:29—7:36	7:29—7:36.6
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IX:7—IX:10	IX:7—IX:10
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SUPPLEMENT NO. 25
VOLUMES I, II AND III
December 2015

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6478, passed November 4, 2015.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:3, 6:4	6:3, 6:4
6:19, 6:20	6:19, 6:20
6:81—6:98	6:81—6:98.3
6:244.5—6:244.8	6:244.5—6:244.8
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IX:101, IX:102	IX:101, IX:102
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SUPPLEMENT NO. 24
VOLUMES I, II AND III
October 2015

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6440, passed August 5, 2015.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:233, 6:234	6:233—6:234.1
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10:47—10:54	10:47—10:49
11:1, 11:2	11:1, 11:2
11:19—11:34	11:19—11:36.2
11:87, 11:88	11:87—11:88.1
11:105—11:106.1	11:105—11:106.1
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14:21, 14:22	14:21—14:22.1
16:1—16:5	16:1, 16:2
16:13—16:47	16:13—16:21
17:1—17:7	17:1
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IX:11—IX:16	IX:11—IX:16

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IX:53—IX:74	IX:53—IX:73
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SUPPLEMENT NO. 23
VOLUMES I, II AND III
July 2015

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6413, passed May 6, 2015.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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3:1	3:1
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6:19, 6:20	6:19, 6:20
6:183—6:185	6:183—6:186.2
6:237—6:238.1	6:237—6:238.2
6:244.9, 6:244.10	6:244.9, 6:244.10
6:300.3—6:300.6	6:300.3—6:300.6
6:365, 6:366	6:365, 6:366
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IX:77—IX:84	IX:77—IX:84.1
IX:101—IX:102.1	IX:101—IX:102.1
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SUPPLEMENT NO. 22
VOLUMES I, II AND III
March 2015

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6397, passed February 4, 2015.

See the Code Comparative Table and Disposition List—Volume III for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:223, 6:224	6:223—6:224.1
6:319, 6:320	6:319—6:320.3
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SUPPLEMENT NO. 21
VOLUMES I, II AND III
December 2014

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6363, passed November 5, 2014.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
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xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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9:7—9:12.1	9:7—9:12.2
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SUPPLEMENT NO. 20
VOLUMES I, II AND III
October 2014

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6339, passed August 6, 2014.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
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6:231—6:238.1	6:231—6:238.1
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11:59—11:70	11:59—11:70.1
11:75—11:78	11:75—11:78.1
11:83—11:102.1	11:83—11:102.2
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xv, xvi	xv, xvi
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IX:3, IX:4	IX:3—IX:4.1
IX:17, IX:18	IX:17, IX:18
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IX:61—IX:66	IX:61—IX:66.1
IX:115—IX:128	IX:115—IX:123

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SUPPLEMENT NO. 19
VOLUMES I, II AND III
June 2014

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6316, passed May 7, 2014.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
6:3, 6:4	6:3, 6:4
6:5, 6:6	6:5, 6:6
6:16.1	6:16.1
6:21—6:23	6:21—6:23
6:51, 6:52	6:51, 6:52
6:75—6:78	6:75—6:78.1
6:107, 6:108	6:107, 6:108
6:173, 6:174	6:173—6:174.1
6:213, 6:214	6:213, 6:214
6:237, 6:238	6:237—6:238.1
6:244.3, 6:244.4	6:244.3—6:244.4.1
6:267, 6:268	6:267, 6:268
6:315, 6:316	6:315, 6:316
6:327—6:332	6:327—6:332.1
6:337, 6:338	6:337, 6:338
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9:9—9:12.1	9:9—9:12.1
11:51, 11:52	11:51—11:52.1
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IX:3, IX:4	IX:3, IX:4
IX:9, IX:10	IX:9, IX:10
IX:35—IX:37	IX:35—IX:37
IX:47—IX:50	IX:47—IX:50
IX:63—IX:66	IX:63—IX:66
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SUPPLEMENT NO. 18
VOLUMES I, II AND III
April 2014

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6297, passed February 5, 2014.

See the Code Comparative Table and Disposition List for further information.

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	VOLUME I
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xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:25—6:28	6:25—6:28
6:38.1—6:46	6:38.1—6:46
6:47, 6:48	6:47, 6:48
6:52.1	6:52.1
6:61, 6:62	6:61, 6:62
6:149—6:170	6:149—6:153
6:183—6:186	6:183—6:185
6:189, 6:190	6:189, 6:190
6:211—6:214	6:211—6:214.1
6:261—6:266	6:261—6:266
6:273—6:276	6:273—6:276
6:289—6:294	6:289—6:291
6:299—6:310	6:299—6:305
6:315, 6:316	6:315, 6:316
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SUPPLEMENT NO. 17
VOLUMES I, II AND III
January 2014

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6286, passed October 16, 2013.

See the Code Comparative Table and Disposition List for further information.

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	VOLUME I
iii	iii
xiii—xvi	xiii—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:1—6:2.1	6:1—6:2.1
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6:37, 6:38	6:37—6:38.1
6:46.9—6:50	6:47—6:50.2
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6:169, 6:170	6:169, 6:170
6:173—6:178	6:173—6:178.1
6:185—6:194.1	6:185—6:194.2
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14:63, 14:64	14:63, 14:64
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14:103—14:106	14:103—14:106.1
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IX:49—IX:56	IX:49—IX:56.1
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IX:95—IX:112	IX:95—IX:110

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SUPPLEMENT NO. 16
VOLUMES I, II AND III
September 2013

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6262, passed August 7, 2013.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:240.1—6:242	6:241—6:242.1
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14:19—14:22	14:19—14:22
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SUPPLEMENT NO. 15
VOLUMES I, II AND III
June 2013

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6250, passed May 1, 2013.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
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iii	iii
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
2:1, 2:2	2:1, 2:2
2:5, 2:6	2:5, 2:6
2:15, 2:16	2:15, 2:16
2:51—2:56	2:51—2:56
3:3—3:6	3:3—3:6
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4:21, 4:22	4:21, 4:22
6:1, 6:2	6:1—6:2.1
6:13, 6:14	6:13, 6:14
6:46.3—6:46.5	6:46.3—6:46.10
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6:222.1—6:224	6:223—6:224.1
6:235—6:240.1	6:235—6:240.1
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IX:29, IX:30	IX:29, IX:30
IX:39, IX:40	IX:39, IX:40
IX:61, IX:62	IX:61—IX:62.1
IX:73, IX:74	IX:73, IX:74
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IX:101—IX:104	IX:101—IX:104
IX:128.1—IX:130	IX:129, IX:130

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SUPPLEMENT NO. 14
VOLUMES I, II AND III
April 2013

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6236, passed February 6, 2013.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
1:9—1:12	1:9—1:12
6:1—6:4	6:1—6:4.1
6:19, 6:20	6:19, 6:20
6:27, 6:28	6:27, 6:28
6:59—6:66	6:59—6:66.3
6:193, 6:194	6:193, 6:194
6:219—6:222	6:219—6:222.1
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6:243, 6:244	6:243, 6:244
6:293—6:306	6:293—6:299
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11:9, 11:10	11:9, 11:10
11:29—11:32	11:29—11:32
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13:39—13:46	13:39—13:48
14:20.1—14:22	14:21—14:22.1
	VOLUME III
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IX:57, IX:58	IX:57, IX:58
IX:65, IX:66	IX:65, IX:66
IX:73—IX:84	IX:73—IX:84
IX:99, IX:100	IX:99, IX:100
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SUPPLEMENT NO. 13
VOLUMES I, II AND III
December 2012

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6224, passed October 17, 2012.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
ix—xii	ix—xii
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
2:1—2:4	2:1—2:4
2:16.1	2:16.1
2:23, 2:24	2:23, 2:24
2:39, 2:40	2:39, 2:40
2:55, 2:56	2:55, 2:56
6:5—6:8	6:5—6:8
6:15, 6:16	6:15—6:16.1
6:56.1—6:64	6:57—6:64.2
6:108.1—6:122	6:109—6:121
6:129, 6:130	6:129, 6:130
6:245—6:248.2	6:245—6:248.3
6:251—6:256	6:251—6:256.1
6:323, 6:324	6:323, 6:324
	VOLUME II
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10:61, 10:62	10:61, 10:62
13:1, 13:2	13:1, 13:2
13:11—13:16	13:11—13:16
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SUPPLEMENT NO. 12
VOLUMES I, II AND III
September 2012

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6203, passed August 1, 2012.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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13:10.1—13:16	13:11—13:16
	VOLUME III
xv, xvi	xv, xvi
SR:1—SR:6	SR:1—SR:5
CCT:15	CCT:15
IX:9—IX:12	IX:9—IX:12
IX:107—IX:110	IX:107—IX:110

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SUPPLEMENT NO. 11
VOLUMES I, II AND III
June 2012

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6192, passed May 2, 2012.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
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6:111—6:114	6:111—6:113
6:131—6:134	6:131—6:134
6:161—6:166	6:161—6:163
6:228.1—6:230	6:229—6:230.1
6:237, 6:238	6:237—6:238.1
6:293—6:300	6:293, 6:294
6:307—6:310	6:307—6:310
6:313, 6:314	6:313, 6:314
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9:7—9:12	9:7—9:12.1
9:27—9:36	9:27—9:36.1

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11:9, 11:10	11:9, 11:10
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11:105, 11:106	11:105, 11:106
11:109—11:112	11:109, 11:110
11:135, 11:136	11:135, 11:136
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	12:3—12:17
13:7—13:10	13:7—13:10
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IX:93—IX:96	IX:93—IX:95
IX:101—IX:124	IX:101—IX:119

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SUPPLEMENT NO. 10
VOLUMES I, II AND III
March 2012

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6175, passed February 1, 2012.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
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ix—xvii	ix—xvii
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6:244.1—6:248	6:245—6:248.2
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6:280.1—6:286	6:281—6:286.2
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IX:85, IX:86	IX:85, IX:86
IX:89—IX:94	IX:89—IX:93
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SUPPLEMENT NO. 9
VOLUMES I, II AND III
January 2012

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6166, passed November 2, 2011.

See the Code Comparative Table and Disposition List for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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xi, xii	xi, xii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6:1—6:2.1	6:1—6:2.1
6:15—6:18	6:15—6:18
6:25—6:46	6:25—6:46.5
6:51—6:52.1	6:51—6:52.1
6:251—6:256	6:251—6:256
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SUPPLEMENT NO. 8
VOLUMES I, II AND III
September 2011

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6156, passed August 3, 2011.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 7
VOLUMES I, II AND III
July 2011

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6149, passed May 4, 2011.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 6
VOLUMES I, II AND III
April 2011

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6132, passed February 2, 2011.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 5
VOLUMES I, II AND III
January 2011

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6119, passed November 3, 2010.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 4
VOLUMES I, II AND III
September 2010

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6100, passed July 21, 2010.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 3
VOLUMES I, II AND III
June 2010

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6089, passed April 21, 2010.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 2, REVISION
VOLUMES I, II AND III
April 2010

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Revision is printed to revise and replace pages appearing in Supplement No. 2 and will carry the Supplement No. 2 at the bottom of the page. Please remove and insert as directed below.

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SUPPLEMENT NO. 2
VOLUMES I, II AND III
April 2010

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6076, passed January 20, 2010.

See the Code Comparative Table and Disposition List for further information.

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SUPPLEMENT NO. 1
VOLUMES I, II AND III
January 2010

MUNICIPAL CODE

City of

LAS VEGAS, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6062, passed October 21, 2009.

See the Code Comparative Table and Disposition List for further information.

Included in the Charter is:

Ordinance No. 6049, passed July 15, 2009.

See the Code Comparative Table and Disposition List for further information.

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PREFACE

The Las Vegas, Nevada Municipal Code, originally published by Book Publishing Company in 1982, has been kept current by regular supplementation by Municipal Code Corporation, its successor in interest.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of Book Publishing Company under the direction of George Ogilvie, City Attorney.

The Code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the Title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the Code, listing by number all ordinances, their subjects, and where they appear in the codification; and beginning with the 2009 Republication, legislation can be tracked using the "Code Comparative Table and Disposition List."

A subject-matter index, with complete cross-referencing, locates specific Code provisions by individual section numbers.

This supplement brings the Code up to date through Ordinance No. 6937, passed January 21, 2026.

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310
800-262-2633

HOW TO USE YOUR CODE

This Code is organized to make the laws of the City as accessible as possible to City officials, City employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this Code.

Numbering System.

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the Code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This Code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this Code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the Code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the Code without renumbering.

Tables of Contents.

There are many tables of contents in this Code to assist in locating specific information. At the beginning of the Code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note.

At the end of each Code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272 § 1, 1992).)

Statutory References.

The statutory references direct the Code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table.

When a Code is based on an earlier codification, the cross-reference table will help users find older or "prior" Code references in the new Code. The cross-reference table is located near the end of the Code, under the tabbed divider "Tables." This table lists the prior Code section in the column labeled "Prior Code Section" and the new Code section in the column labeled "Herein."

As of the 2009 Republication, this table will no longer be updated.

Ordinance List and Disposition Table.

To find a specific ordinance in the Code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for inclusion in the Code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the Code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Beginning with the 2009 Republication, this table will be replaced with the "Code Comparative Table and Disposition List."

Code Comparative Table and Disposition List.

Beginning with the 2009 Republication, a Code Comparative Table and Disposition List has been added for use in tracking legislative history. Located in the back of this volume, this table is a chronological listing of each ordinance considered for codification. The Code Comparative Table and Disposition List

specifies the ordinance number, adoption date, description of the ordinance and the disposition within the code of each ordinance. By use of the Code Comparative Table and Disposition List, the reader can locate any section of the Code as supplemented, and any subsequent ordinance included herein.

Index.

If you are not certain where to look for a particular subject in this Code, start with the index. This is an alphabetical multi-tier subject index which uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the Code text is amended.

Instruction Sheet.

Each supplement to the new Code will be accompanied by an Instruction Sheet. The Instruction Sheet will tell the Code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the Code and the new pages that must be inserted. Following these instructions carefully will assure that the Code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers.

When originally published, the pages of this Code were consecutively numbered. As of the 2009 Republication, when new pages are inserted with amendments, the pages will follow a "Point Numbering System". (Example: 32, 32.1, 32.2, 32.2.1, 32.2.2., 33). Backs of pages that are blank will be left unnumbered but the number will be "reserved" for later use.

Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your Code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

Customer Service.

If you have any questions about this Code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

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Checklist of Up-to-Date Pages

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

Ord. No.	Included/Omitted	Supp. No.
6120	Included	6
6121	Omitted	6
6122	Omitted	6
6123	Included	6
6124	Included	6
6125	Included	6
6126	Included	6
6127	Included	6
6128	Included	6
6129	Included	6
6130	Omitted	6
6131	Included	6
6132	Omitted	6
6133	Omitted	7
6134	Included	7
6135	Included	7
6136	Omitted	7
6137	Included	7
6138	Included	7
6139	Included	7
6140	Omitted	7
6141	Included	7
6142	Included	7
6143	Included	7
6144	Omitted	7
6145	Included	7
6146	Included	7
6147	Included	7
6148	Omitted	7
6149	Included	7
6150	Omitted	8
6151	Omitted	8
6152	Omitted	8
6153	Included	8

Ord. No.	Included/Omitted	Supp. No.
6154	Included	8
6155	Included	8
6156	Included	8
6157	Included	9
6158	Included	9
6159	Included	9
6160	Omitted	9
6161	Included	9
6162	Included	9
6163	Omitted	9
6164	Included	9
6165	Included	9
6166	Omitted	9
6167	Omitted	10
6168	Included	10
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6193	Omitted	12
6194	Omitted	12
6195	Omitted	12
6196	Included	12
6197	Omitted	12
6198	Omitted	12
6199	Included	12
6200	Omitted	12

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6201	Omitted	12
6202	Omitted	12
6203	Omitted	12
6204	Omitted	13
6205	Omitted	13
6206	Omitted	13
6207	Omitted	13
6208	Omitted	13
6209	Omitted	13
6210	Omitted	13
6211	Omitted	13
6212	Omitted	13
6213	Included	13
6214	Included	13
6215	Omitted	13
6216	Omitted	13
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6218	Included	13
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6242	Included	15
6243	Omitted	15
6244	Omitted	15
6245	Included	15
6246	Omitted	15
6247	Omitted	15

Ord. No.	Included/Omitted	Supp. No.
6248	Included	15
6249	Omitted	15
6250	Omitted	15
6251	Omitted	16
6252	Omitted	16
6253	Omitted	16
6254	Omitted	16
6255	Included	16
6256	Omitted	16
6257	Omitted	16
6258	Omitted	16
6259	Included	16
6260	Omitted	16
6261	Included	16
6262	Included	16
6263	Included	17
6264	Included	17
6265	Included	17
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6268	Omitted	17
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6273	Included	17
6274	Included	17
6275	Omitted	17
6276	Omitted	17
6277	Included	17
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6282	Omitted	17
6283	Omitted	17
6284	Omitted	17
6285	Omitted	17
6286	Included	17
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6290	Omitted	18
6291	Omitted	18
6292	Omitted	18
6293	Omitted	18
6294	Omitted	18

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6295	Omitted	18
6296	Included	18
6297	Omitted	18
6298	Omitted	19
6299	Omitted	19
6300	Omitted	19
6301	Omitted	19
6302	Included	19
6303	Included	19
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6305	Included	19
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6313	Included	19
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6336	Included	20
6337	Omitted	20
6338	Omitted	20
6339	Omitted	20
6340	Omitted	21
6341	Omitted	21

Ord. No.	Included/Omitted	Supp. No.
6342	Omitted	21
6343	Omitted	21
6344	Included	21
6345	Included	21
6346	Omitted	21
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6385	Omitted	22
6386	Omitted	22
6387	Omitted	22
6388	Included	22

Ord. No.	Included/Omitted	Supp. No.
6389	Included	22
6390	Included	22
6391	Included	22
6392	Omitted	22
6393	Included	22
6394	Included	22
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6430	Omitted	24
6431	Omitted	24
6432	Included	25
6433	Included	24
6434	Omitted	24
6435	Omitted	24

Ord. No.	Included/Omitted	Supp. No.
6436	Included	24
6437	Included	24
6438	Omitted	24
6439	Omitted	24
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6476	Omitted	25
6477	Omitted	25
6478	Included	25
Bill No. 23	Included	26
6479	Omitted	26
6480	Omitted	26
6481	Omitted	26

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6482	Omitted	26
6483	Omitted	26
6484	Omitted	26
6485	Omitted	26
6486	Omitted	26
6487	Omitted	26
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6502	Omitted	26
6503	Omitted	26
6504	Omitted	26
6505	Included	26
6506	Omitted	26
6507	Included	27
6508	Omitted	27
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6514	Omitted	27
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6516	Omitted	27
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6523	Omitted	27
6524	Included	27
6525	Omitted	28
6526	Omitted	28
6527	Omitted	28
6528	Omitted	28

Ord. No.	Included/Omitted	Supp. No.
6529	Omitted	28
6530	Omitted	28
6531	Omitted	28
6532	Omitted	28
6533	Omitted	28
6534	Included	28
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6574	Included	30
6575	Omitted	30

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6576	Omitted	30
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6578	Omitted	30
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6617	Omitted	35
6618	Omitted	35
6619	Omitted	35
6620	Included	35
6621	Included	35
6622	Omitted	35

Ord. No.	Included/Omitted	Supp. No.
6623	Included	35
6624	Included	35
6625	Included	35
6626	Omitted	35
6627	Included	35
6628	Omitted	36
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6665	Omitted	37
6666	Omitted	37
6667	Omitted	37
6668	Included	37
6669	Omitted	37

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6670	Omitted	37
6671	Omitted	37
6672	Omitted	37
6673	Omitted	37
6674	Included	37
6675	Omitted	38
6676	Omitted	38
6677	Omitted	38
6678	Omitted	38
6679	Omitted	38
6680	Omitted	38
6681	Included	38
6682	Included	38
6683	Included	38
6684	Included	38
6685	Omitted	38
6686	Omitted	38
Bill No. 50	Included	39
6687	Omitted	39
6688	Omitted	39
6689	Omitted	39
6690	Included	39
6691	Included	39
6692	Included	39
6693	Omitted	39
6694	Included	39
6695	Included	39
6696	Included	39
6697	Omitted	39
6698	Omitted	39
6699	Omitted	39
Bill No. 345	Included	40
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6702	Omitted	40
6703	Included	40
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6709	Omitted	40
6710	Included	40
6711	Omitted	40
6712	Omitted	40
6713	Omitted	40
6714	Omitted	40

Ord. No.	Included/Omitted	Supp. No.
6715	Omitted	40
6716	Included	41
6717	Included	41
6718	Omitted	41
6719	Included	41
6720	Omitted	41
6721	Omitted	41
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6757	Omitted	44
6758	Omitted	44
6759	Omitted	45
6760	Included	45
6761	Included	45

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/Omitted	Supp. No.
6762	Included	45
6763	Included	45
6764	Omitted	45
6765	Omitted	45
6766	Omitted	45
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6797	Omitted	48
6798	Included	48
6799	Omitted	48
6800	Included	48
6801	Omitted	48
6802	Omitted	48
6803	Included	48
6804	Included	48
6805	Omitted	49
6806	Included	49
6807	Included	49
6808	Included	49

Ord. No.	Included/Omitted	Supp. No.
6809	Omitted	49
6810	Omitted	50
6811	Omitted	50
6812	Included	50
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6849	Omitted	55
6850	Included	55
6851	Omitted	55
6852	Included	55
6853	Included	56
6854	Included	56
6855	Included	56

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Ord. No.	Included/Omitted	Supp. No.
6856	Included	56
6857	Omitted	56
6858	Omitted	57
6859	Omitted	57
6860	Omitted	57
6861	Omitted	57
6862	Omitted	57
6863	Omitted	57
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6902	Omitted	60
6903	Omitted	60
6904	Omitted	60
6905	Omitted	60
6906	Included	60
6907	Omitted	60

Ord. No.	Included/Omitted	Supp. No.
6908	Omitted	60
6909	Omitted	60
6910	Included	60
6911	Included	60
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6919	Included	60
6920	Included	60
6921	Included	60
Bill No. 262	Included	60
Bill No. 491	Included	60
6922	Omitted	61
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6942	Omitted	61
6943	Omitted	61
6944	Omitted	61

LAS VEGAS CITY CHARTER

(Chapter 517, Statutes of Nevada 1983, p. 1391-approved May 26, 1983)

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ARTICLE I INTRODUCTORY AND ORGANIZATIONAL PROVISIONS

Sec. 1.010 Purpose; other laws; notice.

1. In order to provide for the orderly government of the City of Las Vegas and the public health, safety, prosperity, security, comfort, convenience and general welfare of its citizens, the Legislature hereby establishes this Charter for the government of the City of Las Vegas.

2. Each power which is expressly granted by this Charter is in addition to all of the purposes, powers, rights, privileges, immunities and duties which are granted to cities by the general law of the State. Each of the provisions of NRS which apply generally to cities (not including, unless otherwise expressly mentioned in this Charter, chapter 265, 266 or 267 of NRS) and are not in conflict with the provisions of this Charter applies to the City of Las Vegas.

3. Any notice which is provided for in this Charter for any purpose is reasonably calculated to inform each interested person of any proceeding under this Charter which may directly and adversely affect his legally protected rights, if any.

Sec. 1.020 Definitions.

Except as otherwise provided in this Charter, unless the context otherwise requires, the definitions which are provided in sections 1.030 to 1.090, inclusive, of this Charter govern the construction of this Charter.

Sec. 1.030 "City" defined.

City" means the City of Las Vegas in Clark County, Nevada.

Sec. 1.040 "City Council" defined.

"City Council," unless otherwise qualified, means the governing body of the City.

Sec. 1.050 "Councilman" defined.

"Councilman" means a member of the City Council, other than the Mayor.

Sec. 1.060 "County" defined.

"County" means Clark County , Nevada.

Sec. 1.070 "Newspaper" defined.

"Newspaper" means a newspaper which is qualified pursuant to chapter 238 of NRS, is printed and published in the City at least once each calendar week and is of general circulation in the City.

Sec. 1.080 "Publication," "publish" defined.

"Publication" and "publish" each means publication in at least one newspaper for the number of times which is required by the specific section of this Charter.

Sec. 1.090 "State" defined.

"State" means the State of Nevada.

Sec. 1.100 Construction of Charter.

1. This Charter, except where the context by clear implication otherwise requires, must be construed as follows:

(a) The titles or leadlines which are applied to the articles and sections of this Charter are inserted only as a matter of convenience and ease in reference and in no way define, limit or describe the scope or intent of any provision of this Charter.

(b) Words in the singular number include the plural, and words in the plural include the singular number.

(c) Words in the masculine gender include the feminine and the neuter, and words of the neuter gender refer to any gender.

2. This Charter being necessary to secure and preserve the public health, safety, prosperity, security, comfort, convenience, general welfare and property of the citizens of the City, the rule of strict construction has no application to this Charter, and it is expressly declared that it is the intent of the Legislature that each of the provisions of this Charter be liberally construed in order to effect the purposes and objects for which this Charter is intended, and the specific mention of particular powers must not be construed as limiting in any way the general powers which are necessary to carry out the purposes and objects of this Charter.

Sec. 1.110 Required notices: Words and figures.

Figures may be used instead of words, and words may be used instead of figures, in all notices, proceedings and other documents which are required by this Charter or otherwise pertain to this Charter.

Sec. 1.120 Incorporation of City; description of territory.

1. All persons who are inhabitants of that portion of the State which is embraced within the limits set forth in subsection 2 constitute a political and corporate body by the name of "City of Las Vegas," and by that name they and their successors must be known in law and have perpetual succession.

2. The territory which is embraced in the City is that certain land which is described in the official plat which is required by NRS 234.250 to be filed with the County Recorder and County Assessor, as the plat may be revised from time to time.
(Amended by the Nevada Legislature, 1999)

Sec. 1.130 Wards: Creation; boundaries.

1. The City must be divided into six wards upon the approval of the voters. Thereafter, the wards may be increased:

(a) By the City Council if it determines that an increase is necessary; or

(b) Upon approval of a question proposing an increase to a specific number of wards by a majority of the voters voting on the question. Such a question must be submitted to the voters on the ballot at a general election if the City Council votes for the submission of the question on its own motion or if a petition signed by a number of registered voters of the City equal to 15 percent or more of the number of voters who voted at the last preceding general election is submitted to the City Council requesting an increase to a specific number of wards.

The wards must be as nearly equal in population as can conveniently be provided, and the territory which comprises each ward must be contiguous.

2. The boundaries of the wards must be established and changed by ordinance. The boundaries of the wards must be changed whenever the population, as determined by the last preceding national census of the Bureau of the Census of the United States Department of Commerce, in any ward exceeds the population in any other ward by more than 5 percent. The boundaries of the wards may be changed to include territory which has been annexed and whenever the population in any ward exceeds the population in any other ward by more than 5 percent by any measure which is found reliable by the City Council.

3. The office of an additional Councilman created as a result of an increase in the number of wards pursuant to subsection 1 must be filled initially at the general City election immediately following:

(a) The date on which the City Council determined that an increase in the number of wards was necessary pursuant to paragraph (a) of subsection 1; or

(b) The general election at which the question proposing the increase in wards is approved by the voters pursuant to paragraph (b) of subsection 1.

Such an office must not be filled initially by appointment.
(Amended by the Nevada Legislature, 1997; 1999; 2001)

Sec. 1.140 Elective offices.

1. The elective officers of the City consist of:

(a) A Mayor.

(b) One Council Member from each ward.

(c) Municipal Judges.

2. Except as otherwise provided in sections 5.20 and 5.140, the terms of office of the Mayor and Council Members are 4 years.

3. Except as otherwise provided in subsection 3 of section 4.010 and sections 5.020 and 5.140, the term of office of a Municipal Judge is 6 years.
(Amended by the Nevada Legislature, 1997; 2001; 2011; 2019)

Sec. 1.150 Oath of office.

Each person who is elected or appointed to fill any elective office must subscribe to the official oath as provided by the City Council. Each of those persons must swear or affirm that he is not under any direct or indirect obligation to vote for, appoint or elect any person to any office, position or employment in the City government.

Sec. 1.160 Elective offices: Vacancies.

Except as otherwise provided in NRS 268.325:

1. A vacancy in the office of Mayor, Council Member or Municipal Judge must be filled by the majority vote of the entire City Council within 30 days after the occurrence of that vacancy. A person may be selected to fill a prospective vacancy before the vacancy occurs. In such a case, each member of the Council, except any member whose term of office expires before the occurrence of the vacancy, may participate in any action taken by the Council pursuant to this section. The appointee must have the same qualifications as are required of the elective official, including, without limitation, any applicable residency requirement.
2. Except as otherwise provided in section 5.010, no appointment extends beyond the first regular meeting of the City Council that follows the next general municipal election, at that election the office must be filled for the remainder of the unexpired term.

(Amended by the Nevada Legislature, 1989; 1997; 2007; 2011; 2015; 2019)

ARTICLE II LEGISLATIVE DEPARTMENT

Sec. 2.010 General provisions.

1. The municipal government and the legislative power of the City is vested in a City Council which consists of a Mayor and one Councilman from each ward.

2. Members of the City Council may vote on any lease, contract or other agreement which extends beyond their respective terms of office.
(Amended by the Nevada Legislature, 1999)

Sec. 2.020 Mayor and Council Members: Qualifications; terms of office; salary.

1. The Mayor must be:

(a) A qualified elector who has resided within the territory which is established by the boundaries of the City for a period of not less than 30 days immediately before the last day for filing a declaration of candidacy for that office;

(b) Registered to vote in the City; and

(c) Elected by the registered voters of the City at large.

2. Each Council Member must be:

(a) A qualified elector who has resided within the ward which he or she represents for a period of not less than 30 days immediately before the last day for filing a declaration of candidacy for his or her office;

(b) Registered to vote in the ward which he or she represents; and

(c) Elected by the registered voters of that ward.

3. The Mayor or any Council Member automatically forfeits the remainder of his or her term of office and that office becomes vacant if he or she ceases to be a resident of the City or of the ward which he or she represents, as the case may be.

4. The respective salaries of the Mayor and Council Members must be fixed by ordinance.
(Assembly Bill No. 491)

Sec. 2.030 Mayor: Duties; Mayor pro tempore; duties.

1. The Mayor shall preside over and conduct the meetings of the City Council.

2. The City Council shall elect one of its members to be Mayor pro tempore. That person:

(a) Shall hold that office and title without additional compensation during the term for which he was elected as Mayor pro tempore.

(b) Possesses the powers and shall perform the duties of Mayor during the absence or disability of the Mayor.

(c) Shall act as Mayor until the vacancy is filled pursuant to section 1.160.
(Amended by the Nevada Legislature, 2019)

Sec. 2.040 Mayor and Councilmen not to hold other office.

1. The Mayor and Councilmen may not:

(a) Hold any other elective office of the State or any political subdivision of the State or any other employment with the County or the City, except as is provided by law or as a member of a board or commission for which no compensation is received.

(b) Be appointed to any office which was created, or the compensation for which was increased or fixed, by the City Council until 1 year after the expiration of the term for which the Mayor or Councilman was elected or appointed.

2. Any person who violates the provisions of subsection 1 automatically forfeits his office as Mayor or Councilman.
(Amended by the Nevada Legislature, 2007)

Sec. 2.050 Meetings: Regular and special; time and place; notice.

1. The City Council shall prescribe by ordinance the day or days, time and place of its regular meetings. At least one regular meeting must be held during each month.

2. The regular meeting day or days must remain unchanged unless notice of the proposed change is published in the manner provided for the publication of notices which are required by article VIII of this Charter.

3. Special meetings may be held on the call of the Mayor or of two Councilmen, by giving a minimum of 6 hours' written notice of the special meeting to the Mayor and to each Councilman before the meeting, served personally or left at his usual place of abode, but the Mayor or any Councilman may waive service of that notice upon him before, at or after the meeting.

4. At a special meeting:

(a) Unless all of the members of the City Council are present, no business may be transacted except that which has been stated in the call of the meeting.

(b) No ordinance may be passed except an emergency ordinance or one whose enactment as if an emergency existed is permitted by chapter 350 of NRS or section 7.020 or 8.210 of this Charter.

(c) No vote of the City Council may be reconsidered unless there is present at least as large a number of the members of the City Council as were present when the matter was previously voted upon.

Sec. 2.060 Meetings: Quorum.

1. Except as otherwise provided in NRS 241.0355, a majority of all members of the City Council constitutes a quorum to do business, but a lesser number may meet and recess from time to time or compel the attendance of the absent members, or both, under such penalties as may be prescribed by ordinance.

2. Except as otherwise provided in NRS 241.0355, and unless otherwise provided by any other provision of law, including sections 1.160, 2.100 and 3.050 and subsection 3 of section 2.110 of this Charter, the concurrence of a majority of a quorum of the City Council is necessary to pass any proposition.
(Amended by the Nevada Legislature, 2001)

Sec. 2.070 Oaths and affirmations.

The Mayor, each Councilman and the City Clerk may administer oaths and affirmations which relate to any business which pertains to the City before the City Council or is to be considered by the City Council.

Sec. 2.080 City Council: Judging qualifications and discipline of members; power of subpoena; enforcement of subpoenas.

1. The City Council may:

(a) Judge the qualifications and election of its own members.

(b) Adopt rules for the government of its members and proceedings.

(c) Provide for the punishment of any member for disorderly conduct which is committed in its presence.

(d) Order the attendance of witnesses and the production of all documents which relate to any business before the City Council.

2. In order to assure the attendance of witnesses and the production of documents, if any person who is ordered to appear before the City Council fails to obey that order:

(a) The City Council or any member thereof may apply to the clerk of the district court for a subpoena which commands the attendance of that person before the City Council.

(b) The clerk of the district court may issue the subpoena, and any peace officer may serve it.

(c) If the person upon whom the subpoena is served fails to obey it, the court may issue an order to show cause why that person would not be held in contempt of court and, upon a hearing of the matter, may adjudge that person guilty of contempt and punish him accordingly.

Sec. 2.090 Powers of City Council: Ordinances; resolutions and orders.

1. The City Council may make and adopt all ordinances, resolutions and orders, not repugnant to the Constitution of the United States or the Constitution of the State of Nevada or the provisions of NRS or of this Charter, which are necessary for the municipal government, the management of the affairs of the City and the execution of all of the powers which are vested in the City.

2. The City Council may enforce those ordinances by providing penalties which do not exceed those which are established by the Legislature for misdemeanors.

3. The City Council may not adopt any ordinance which provides for an increase or a decrease in the salary of any of its members to take effect during the term for which that member is elected or appointed, but the City Council may by ordinance increase or decrease the salary for the office of Mayor or City Councilman at any time before the day preceding the last day for filing a declaration of candidacy for that office for the next succeeding term to take effect on the first day of the next succeeding term.
(Amended by the Nevada Legislature, 1989)

Sec. 2.100 Ordinances: Adoption by bill; amendments; subject matter; title.

1. No ordinance may be adopted except by bill and by the majority vote of the entire City Council. The style of all ordinances must be as follows: "The City Council of the City of Las Vegas does ordain:".

2. No ordinance may contain more than one general subject matter and matters which pertain to or are necessarily connected with the general subject matter, and the subject must be briefly indicated in the title. If the subjects of the ordinance are not expressed in the title, the ordinance is void as to those matters which are not expressed in the title.

3. Any ordinance which amends an existing ordinance or an existing section or sections of a codification of ordinances must set out in full the ordinance or sections of the ordinance or the section or sections of the codification of ordinances which are to be amended and indicate any matter to be omitted by enclosing it in brackets and any new matter by underscoring it or by italics.

Sec. 2.110 Ordinances: Procedure for enactment; emergency ordinances.

1. All proposed ordinances, when they are first proposed, must be read to the City Council by title and may be referred for consideration to a committee which is composed of any number of members of the City Council who are designated by the Mayor, after which an adequate number of copies of the proposed ordinance must be deposited with the City Clerk for public examination and distribution upon request. Except as otherwise provided in subsection 3 and for the adoption of specialized or uniform codes, notice of the deposit must be published once at least 10 days before the adoption of the ordinance. The City Council must adopt or reject the ordinance, or an amendment thereto, within 60 days after the date of that publication. A committee described in this subsection shall meet as often as is reasonably necessary but not less frequently than once each calendar quarter.

2. Following the first reading by title, an ordinance that has been referred pursuant to subsection 1 must be considered by the committee. Such committee must report its recommendations, if any, to the City Council. Regardless of whether a proposed ordinance is referred to a committee pursuant to subsection 1, it must be read by title as first introduced, or as amended, and finally voted upon or action thereon postponed, but the proposed ordinance must be adopted, with or without amendments, or rejected within 60 days after the date of the publication which is provided for in subsection 1.

3. In cases of emergency or where the ordinance is of a kind whose enactment as if an emergency existed is permitted by a provision of NRS or section 7.020 or 8.210, final action, upon the unanimous vote of the entire City Council, may be taken immediately or at a special meeting which has been called for that purpose, and no notice of the filing of copies of the proposed ordinance with the City Clerk need be published.

4. Each ordinance must be signed by the Mayor, attested by the City Clerk and published at least once by title, together with the names of the members of the City Council who voted for or against its adoption, and the ordinance becomes effective on the day after that publication. The City Council may, by majority vote, order the publication of the ordinance in full in lieu of publication by title only.

5. The City Clerk shall record all ordinances which have been adopted in a register which is kept for that purpose, together with the affidavits of publication by the publisher.
(Amended by the Nevada Legislature, 1991; 2007)

Sec. 2.120 Powers of City Council: Exercise by ordinance.

When a power is conferred upon the City Council to do and perform any act or thing, and the manner of exercising that power is not specifically provided, the City Council may provide by ordinance the manner and details which are necessary for the full exercise of that power.

Sec. 2.130 Powers of City Council: Denial, suspension or revocation of work permit; appeal to City Council; alternative procedure established by City Council.

Whenever under any city ordinance a person is required to obtain a work permit or an identification card from the Sheriff of the Las Vegas Metropolitan Police Department or any City officer as a condition of employment in any establishment which has been determined to be privileged by the City Council and licensed by the City, and his work permit or identification card is denied, suspended or revoked by the Sheriff or City officer, the person aggrieved may, by filing a written notice of appeal with the City Clerk within 10 days after the date of the denial, suspension or revocation of his work permit or identification card, appeal from that action to:

1. The City Council, unless the City Council has designated an administrative body pursuant to subsection 2; or

2. Any administrative body that the City Council has designated to hear such appeals. If such an administrative body denies a person's appeal, the person may appeal to the City Council.

(Amended by the Nevada Legislature, 2007)

Sec. 2.140 Powers of City Council: Public property, buildings.

The City Council may:

1. Erect and maintain all buildings which are necessary for the use of the City.

2. Purchase, receive, hold, sell, lease, convey and dispose of property, real, personal or mixed and wherever situate, for the benefit of the City, improve and protect that property and do all other things in relation to that property which a natural person might or could do.

3. Acquire property within or without the corporate boundaries of the City for any City purpose, in fee simple or any lesser interest or estate, by purchase, exchange, gift, demise, lease or condemnation.

4. Sell, exchange, lease, hold, manage and control the property of the City as the interest of the City may require or as will result in the maximum benefit to the City from that action.

5. Purchase or sell property for economic development. Any property which is purchased or sold for economic development may be purchased or sold above, at or below its fair market value upon a finding by the City Council that the purchase or sale of that property will have a favorable effect upon the economic development of the City.

(Amended by the Nevada Legislature, 1985 and 1989)

Sec. 2.145 Powers of City Council: Lease or lease-purchase agreement for construction or remodeling of building or facility; conveyance of property; applicability of certain provisions to agreement for construction or remodeling of building or facility.

1. The City Council may enter into an agreement with a person whereby the person agrees to construct or remodel a building or facility according to specifications adopted by the City Council and thereupon enter into a lease or a lease-purchase agreement with the City Council for that building or facility.

2. The City Council may convey property to a person where the purpose of the conveyance is the entering into of an agreement contemplated by subsection 1.

3. The person who enters into an agreement for the actual construction or remodeling of a building or facility pursuant to subsection 1 shall include in the agreement the contractual provisions and stipulations that are required to be included in a contract for a public work pursuant to the provisions of NRS 338.013 to 338.090, inclusive.

4. The City Council, the contractor who is awarded the contract or entered into the agreement to perform the construction or remodeling and any subcontractor on the project shall comply with the provisions of NRS 338.013 to 338.090, inclusive, in the same manner as if the City Council had undertaken the project or had awarded the contract.
(Amended by the Nevada Legislature, 2009; added by the Nevada Legislature, 2007)

Sec. 2.147 Powers of City Council: Affordable housing.

1. Except as otherwise provided in subsection 2 and in addition to any other powers authorized by specific statute, the City Council may exercise such powers and enact such ordinances, not in conflict with the laws of this State, as the City Council determines are necessary and proper for the development and provision of affordable housing.

2. The City Council shall not impose or increase a tax for the purposes set forth in subsection 1 unless the tax or increase is otherwise authorized by specific statute.
(Added by the Nevada Legislature, 2007)

Sec. 2.150 Powers of City Council: Licensing, regulation and prohibition of businesses, trades and professions.

1. The City Council may:

(a) Except as is otherwise provided in subsection 2 and NRS 598D.150 and 640C.100, license and regulate all lawful businesses, trades and professions.

(b) Fix, impose and collect a license tax for regulation or for revenue, or both, upon all businesses, trades and professions and provide an equitable standard for fixing those license taxes.

(c) Suspend or revoke the license of any business, trade or profession for failing to comply with any regulation of the City in such manner as may be prescribed by ordinance.

2. No person, firm or corporation which is licensed by an agency of the State to conduct or practice any business, trade or profession, except as is otherwise provided in subsection 3, may be denied a license to conduct or practice that business, trade or profession, nor may the license be suspended or revoked, if:

(a) That person, firm or corporation complies with all of the regulations which are established by that agency and pays to the City such license taxes and related fees and posts such bond or bonds as may be prescribed by ordinance; and

(b) The location of the business, trade or profession complies with all of the requirements of all of the zoning, building, plumbing, electrical, safety and fire prevention codes or regulations of the City.

3. The City Council may provide, by ordinance, regulations which restrict the number, location and method of operation of and the qualifications for ownership in:

(a) Liquor-dispensing or gaming establishments, or both;

(b) Businesses which are engaged in the manufacture or distribution, or both, of liquor or gaming devices; and

(c) Such other businesses, trades and professions as may be declared by ordinance to be privileged, and regulations which prescribe the circumstances under and the manner in which licenses with respect to those establishments, businesses, trades and professions may be denied, limited, suspended or revoked.

Sec. 2.160 Powers of City Council: Police ordinances.

1. The City Council may enact and enforce such local police ordinances as are not in conflict with the general laws of the State.

2. Any offense which is made a misdemeanor by the laws of the State shall also be deemed to be a misdemeanor against the City whenever that offense is committed within the City.

Sec. 2.170 Powers of City Council: Fire protection; regulation of explosives, inflammable materials; fire codes and regulations.

The City Council may:

1. Organize, regulate and maintain a Fire Department.

2. Regulate or prohibit the storage in or the transportation through the City of any explosive, combustible or inflammable material and prescribe the location within the City where those materials may be kept. Any ordinance adopted pursuant to this subsection that regulates places of employment where explosives are stored must be at least as stringent as the standards and procedures adopted by the Division of Industrial Relations of the Department of Business and Industry pursuant to NRS 618.890.

3. Establish by ordinance a fire code and other regulations which are necessary to provide for the prevention of and protection against fires and to carry out the purposes of this section.

4. Suspend or revoke the license of any business for its failure to comply with any regulation which is adopted pursuant to this section.
(Amended by Nevada Legislature, 1999)

Sec. 2.180 Powers of City Council: Public health; Board of Health; regulations.

The City Council may:

1. Provide for safeguarding the public health in the City.

2. Create a Board of Health and prescribe the powers and duties of that Board.

3. Provide for the enforcement of all regulations and quarantines which are established by the Board of Health by imposing adequate penalties for violations of those regulations and quarantines.

Sec. 2.190 Powers of City Council: Treatment of alcoholics and narcotics addicts.

The City Council may provide for the treatment and rehabilitation of alcoholics and narcotic addicts in City facilities or for the support and maintenance of those alcoholics and addicts and their treatment and rehabilitation in facilities which are furnished by individual persons or private or public institutions, corporations or associations.

Sec. 2.200 Powers of City Council: Buildings; construction and maintenance regulations; building and safety codes.

Subject to the limitations which are contained in NRS 278.580, 278.583 and 444.340 to 444.430, inclusive, the City Council may:

1. Regulate all matters which relate to the construction, maintenance and safety of buildings, structures and property within the City.
2. Adopt any building, electrical, plumbing, mechanical or safety code which is necessary to carry out the provisions of this section and establish such fees as may be necessary.

Sec. 2.210 Powers of City Council: Zoning and planning.

1. The City Council may:

(a) Divide the City into districts and regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land within those districts.

(b) Establish and adopt ordinances and regulations which relate to the subdivision of land.

2. The City Council must carry out the provisions of subsection 1 in the manner which is prescribed by chapter 278 of NRS.

Sec. 2.220 Powers of City Council: Rights-of-way, parks, public buildings and grounds and other public places.

The City Council may:

1. Lay out, maintain, alter, improve or vacate all public rights-of-way in the City.
2. Regulate the use of public parks, buildings, grounds and rights-of-way and prevent the unlawful use of those public places.
3. Require landowners to keep the adjacent streets, sidewalks, public parks, buildings and grounds free from encroachments or obstructions.
4. Regulate and prevent in all public places:
   (a) The distribution and exhibition of handbills or signs.
   (b) Any practice which tends to annoy persons passing in those public places.
   (c) Public demonstrations and processions.

5. Prevent riots or any act which tends to promote riots in any public place.

Sec. 2.230 Powers of City Council: Traffic control. The City Council may by ordinance regulate:

1. Except as otherwise provided in NRS 707.375, all vehicular, pedestrian and other traffic within the City and provide generally for the public safety on the public streets, publicly owned parking lots, parking areas to which the public is invited and public rights-of-way.

2. The length of time for which vehicles may be parked upon the public streets and publicly owned parking lots.

Sec. 2.240 Powers of City Council: Parking meters; off-street public parking facilities.

1. The City Council may acquire, install, maintain, operate and regulate parking meters at the curbs of the streets or upon publicly owned property which is made available for public parking. The parking fees which are to be charged for the use of the parking facilities which are regulated by parking meters must be fixed by the City Council.

2. Except as is otherwise provided in this Charter, the City Council may acquire property within the City by any lawful means, including eminent domain, for the purpose of establishing public parking facilities for vehicles off the streets. The City Council may, in any bonds which are issued to acquire property for this purpose, pledge the revenues from parking on the streets or the general credit of the City, or both, to secure the payment of the principal and interest on those bonds.

Sec. 2.250 Powers of City Council: Rail transportation.

The City Council may:

1. License, regulate, establish or prohibit any means of transportation which has fixed rails in, upon, over or under any public right-of-way.
2. Grant a franchise to any person, firm or corporation to operate any means of transportation in, upon, over or under the public rights-of-way and adjacent property.
3. Declare a nuisance and require the removal of the fixed rails of any means of transportation in, upon, over or under any public right-of-way.
4. Subject to NRS 704.300, condemn rights-of-way for any public purpose across a right-of-way which is owned or otherwise controlled by any company which owns or operates any means of transportation.
5. Prescribe the length of time any public right-of-way may be obstructed by trains or similar means of conveyance standing on that right-of-way.
6. Require any company which owns or operates any means of transportation to provide protection against injuries to persons or property.

7. Require railroad companies to fence their tracks and to construct cattle guards and crossings and keep them in repair.

8. Compel any company which owns or operates any means of transportation to provide a means by which the drainage from the property which is adjacent to its right-of-way is not to be impaired.

9. Subject to NRS 704.300, compel any company which owns or operates any means of transportation to raise or lower its fixed rails to conform to any grade which has been or will be established by the City, so that those rails may be crossed over or under at any place on the public right-of-way.
(Amended by the Nevada Legislature, 1997)

Sec. 2.260 Powers of City Council: Nuisances.

The City Council may:

1. Determine by ordinance what are nuisances.

2. Provide for the abatement, prevention and removal of those nuisances at the expense of the person who creates, causes or commits those nuisances.

3. Provide that the expense of removal of those nuisances is a lien upon the property upon which each nuisance is located. That lien:

   (a) Must be perfected by filing with the County Recorder a statement by the City Clerk in which he states the amount of the expenses which are due and unpaid and describes the property which is subject to the lien.

   (b) Is coequal with the latest lien upon that property to secure the payment of general taxes.

   (c) Is not subject to extinguishment by the sale of any property on account of the nonpayment of general taxes.

   (d) Is prior and superior to all liens, claims, encumbrances and titles, other than the liens of assessments and general taxes.

   (e) May be enforced or foreclosed in such manner as may be prescribed by ordinance.

4. Provide any other penalty for or punishment of any person who is responsible for any nuisance.

Sec. 2.270 Powers of City Council: Animals and poultry.

The City Council may:

1. Fix, impose and collect an annual license tax on all animals and provide for the capture and disposal of all of the animals with respect to which that tax is not paid.

2. Regulate or prohibit the running at large and disposal of all kinds of animals and fowl.

3. Establish, operate and maintain an animal shelter.

4. Prohibit cruelty to animals.

5. Provide regulations for the prevention of diseases of animals and fowl.

Sec. 2.280 Powers of City Council: Abatement of noxious insects, rats and disease-bearing organisms.

The City Council may take all steps which are necessary and proper for the extermination of noxious insects, rats and other disease-bearing organisms, either in the City or in the territory which is outside the City but so situate that insects, rats and disease-bearing organisms may migrate or be carried into the City.

Sec. 2.290 Powers of City Council: Sanitary sewer facilities.

The City Council may:

1. Provide for a sanitary sewer system, or any part of a sanitary sewer system, and obtain property for that system, either within or without the City.

2. Sell any product or by-product of that system and acquire the appropriate outlets, both within and without the City, and extend the sewerlines to those outlets.

3. Establish sewer service fees or sewer connection fees, or both, and provide for the enforcement and collection of those fees.

Sec. 2.300 Powers of City Council: Provision of utilities.

1. Except as otherwise provided in subsection 3 and section 2.315, the City Council may:

(a) Provide, by contract, franchise or public ownership or operation, for any utility to be furnished to the residents of the City.

(b) Provide for the construction and maintenance of any facility which is necessary for the provision of those utilities.

(c) Prescribe, revise and collect rates, fees, tolls and charges, including fees for connection, for the services, facilities or commodities which are furnished by any municipally owned or municipally operated utility or undertaking and no rate, fee, toll or charge for the services, facilities or commodities which are furnished by any municipally owned or municipally operated utility or undertaking may be prescribed, revised, amended, altered, increased or decreased without proceeding as follows:

(1) There must be filed with the City Clerk and available for public inspection schedules of all rates, fees, tolls and charges which the City has established and which are in force at that time for any service which is performed or product which is furnished in connection with any utility which is owned or operated by the City.

(2) No change may be made in any of those schedules except upon 30 days' notice to the inhabitants of the City and the holding of a public hearing with respect to the proposed change. Notice of the proposed change must be given by at least two publications during the 30-day period before the hearing.

(3) At the time which is set for the hearing on the proposed change, any person may appear and be heard and offer any evidence in support of or against the proposed change.

(4) Every utility which is owned or operated by the City shall furnish reasonably adequate service and facilities, and the charges which are made for any service which is or will be rendered, or for any service which is connected with or incidental to any service which is or will be rendered, by the City must be just and reasonable.

2. Any rate, fee, toll or charge, including any fee for connection which is due for services, facilities or commodities which are furnished by the City or by any utility which is owned or operated by the City pursuant to this section is a lien upon the property to which the service is rendered. The lien:

(a) Must be perfected by filing with the County Recorder of the County a statement by the City Clerk in which he states the amount which is due and unpaid and describes the property which is subject to the lien.

(b) Is coequal with the latest lien upon that property to secure the payment of general taxes.

(c) Is not subject to extinguishment by the sale of any property on account of the nonpayment of general taxes.

(d) Is prior and superior to all liens, claims, encumbrances and titles, other than the liens of assessments and general taxes.

(e) May be enforced and foreclosed in such manner as may be prescribed by ordinance.

3. The City Council:

(a) Shall not sell telecommunication service to the general public.

(b) May purchase or construct facilities for providing telecommunication that intersect with public rights-of-way if the governing body:

(1) Conducts a study to evaluate the costs and benefits associated with purchasing or constructing the facilities; and

(2) Determines from the results of the study that the purchase or construction is in the interest of the general public.

4. Any information relating to the study conducted pursuant to subsection 3 must be maintained by the City Clerk and made available for public inspection during the business hours of the Office of the City Clerk.

5. Notwithstanding the provisions of paragraph (a) of subsection 3, an airport may sell telecommunication service to the general public.

6. As used in this section:

(a) "Telecommunication" has the meaning ascribed to it in NRS 704.025.

(b) "Telecommunication service" has the meaning ascribed to it in NRS 704.028. (Amended by the Nevada Legislature, 1997; 2001; 2007)

Sec. 2.310 Powers of City Council: Acquisition or establishment of City utility.

1. Except as otherwise provided in subsection 3 of section 2.300 and section 2.315, the City Council, on behalf of the City and in its name, may acquire, establish, hold, manage and operate, alone or with any other government or any instrumentality or subdivision of any government, any public utility in the manner which is provided in this section.

2. The City Council must adopt a resolution which sets forth fully and in detail:

(a) The public utility which is proposed to be acquired or established.

(b) The estimated cost of that utility, as shown in a recent report, which has been approved by the City Council, of an engineer or consulting firm which had previously been appointed by the City Council for that purpose.

(c) The proposed bonded indebtedness which must be incurred to acquire or establish that utility, the terms, amount and rate of interest of that indebtedness and the time within which, and the fund from which, that indebtedness is redeemable.

(d) That a public hearing on the advisability of acquiring the public utility will be held at the first regular meeting of the City Council after the final publication of the resolution.

3. The resolution must be published in full at least once a week for 4 successive weeks.

4. At the first regular meeting of the City Council, or any adjournment of that meeting, after the completion of the publication, the City Council may, without an election, enact an ordinance for that purpose, which must conform in all respects to the terms and conditions of the resolution, unless, within 30 days after the final publication of the resolution, a petition is filed with the City Clerk which has been signed by a number of registered voters of the City which is not less than 15 percent of the registered voters of the City, as shown by the last preceding registration list, who own not less than 10 percent in assessed value of the taxable property within the City, as shown by the last preceding tax list or assessment roll, and which prays for the submission of the question of the enactment of the proposed ordinance at a special election or the next primary or general municipal election or primary or general state election. Upon the filing of that petition, the proposed ordinance may not be enacted or be effective for any purpose unless, at a special election or primary or general municipal election or primary or general state election, a majority of the votes which are cast in that election are cast in favor of the enactment of the ordinance.

5. A special election may be held only if the City Council determines, by a unanimous vote, that an emergency exists. The determination made by the City Council is conclusive unless it is shown that the City Council acted with fraud or a gross abuse of discretion. An action to challenge the determination made by the City Council must be commenced within 15 days after the City Council's determination is final. As used in this subsection, "emergency" means any unexpected occurrence or combination of occurrences which requires immediate action by the City Council to prevent or mitigate a substantial financial loss to the City or to enable the City Council to provide an essential service to the residents of the City.

6. If the proposed ordinance is adopted, without an election or as a result of an election, the City Council may issue bonds to obtain revenue for acquiring or constructing systems, plants, works, instrumentalities and properties which are needed in connection with that public utility.
(Amended by the Nevada Legislature, 1993; 1997; 2001)

Sec. 2.315 Franchises for the provision of telecommunication service.

1. The City Council shall not:

(a) Impose any terms or conditions on a franchise for the provision of telecommunication service or interactive computer service other than terms or conditions concerning the placement and location of the telephone or telegraph lines and fees imposed for a business license or the franchise, right or privilege to construct, install or operate such lines.

(b) Require a company that provides telecommunication service or interactive computer service to obtain a franchise if it provides telecommunication service over the telephone or telegraph lines owned by another company.

(c) Require a person who holds a franchise for the provision of telecommunication service or interactive computer service to place its facilities in ducts or conduits or on poles owned or leased by the City.

2. As used in this section:

(a) "Interactive computer service" has the meaning ascribed to it in 47 U.S.C. § 230(f)(2), as that section existed on January 1, 2007.

(b) "Telecommunication service" has the meaning ascribed to it in NRS 704.028.
(Amended by the Nevada Legislature, 1997; 2007)

Sec. 2.320 Powers of City Council: Cemeteries; acquisition and maintenance.

The City Council may, by any lawful means, acquire, control and maintain property for public use as cemeteries and may from time to time enlarge, abolish or sell any cemetery which has been established or is owned by the City.

Sec. 2.330 (Repealed by the Nevada Legislature, 2007)

Sec. 2.340 (Repealed by the Nevada Legislature, 1985)

Sec. 2.350 Powers of City Council: General.

The City Council has such other powers, which are not in conflict with the express or implied provisions of this Charter, as are conferred generally by statute upon the governing bodies of cities which are organized under special charters.

ARTICLE III EXECUTIVE DEPARTMENT

Sec. 3.010 Mayor: Executive powers.

The Mayor:

1. Is the Chief Executive Officer of the City government.

2. Shall take all proper measures for the preservation of the public peace and order and the suppression of riots, tumults and all forms of public disturbances, for which purposes he may request assistance from the Sheriff of the Las Vegas Metropolitan Police Department. If the local law enforcement forces are inadequate, he may call upon the Governor for military aid in the manner provided by law.

3. Shall perform such other emergency duties as may be necessary for the public health, safety, prosperity, security, general welfare and orderly government of the City and its inhabitants.

4. Must sign all contracts, resolutions and ordinances which have been approved by the City Council. If the Mayor refuses to sign any contract, resolution or ordinance which has been approved by the City Council within 5 days after he has received it, the Mayor pro tempore shall, at the direction of the City Council which is given at a duly convened meeting of the City Council, sign that contract, resolution or ordinance.

5. Perform such other duties as may be prescribed by ordinance or by the provisions of NRS which apply to a mayor of a city which is organized under the provisions of a special charter.

Sec. 3.020 Mayor and Councilmen: Executive assistants; employees.

The Mayor and Councilmen may recommend such executive assistants and employees as they may require, to be appointed by the City Manager subject to the ratification of the City Council.

Sec. 3.030 City Manager: Appointment; duties; salary.

The City Council shall appoint a City Manager as the Chief Administrative Officer of the City, and fix his salary. The City Manager is responsible to the City Council for the efficient and proper administration of all of the affairs of the City. In this connection, he shall:

1. Exercise careful supervision of the City's general affairs.
2. Exercise control over all of the departments and divisions of City government and over all of the officers and employees of the City.
3. From time to time, give to the City Council information in writing concerning the state of the City and recommend to the City Council the adoption of such measures, bills and programs as he deems are necessary, appropriate, expedient or beneficial to the City.
4. Cause to be prepared and submit to the City Council the annual budget of the City.
5. See that all general laws and ordinances of the City are observed and enforced.
6. See that all contracts of the City are faithfully kept and fully performed and, to that end and in any case in which it is necessary or appropriate in order to protect the interests of the City, must, with the approval of the City Council, cause legal proceedings to be instituted or defended at the expense of the City.
7. Execute those contracts and other documents the execution of which is delegated, either specifically or generally, to him by the City Council.
8. Perform such other administrative duties as are designated by the City Council or as may be prescribed by ordinance.
9. Have no other employment.

Sec. 3.040 City Manager: Additional powers.

In addition to the duties which are imposed upon him by section 3.030 of this Charter, the City Manager may:

1. Appoint such deputies, administrative assistants and clerical personnel as he deems necessary.
2. Require from each Municipal Judge and each appointive officer of the City at any time a report in detail with respect to all of the transactions of their respective offices or of any matters which are connected with their respective offices.

Sec. 3.050 City Manager: Removal.

1. The City Council may remove the City Manager from office in accordance with the procedure which is contained in this section.

2. The City Council must adopt, by the affirmative vote of a majority of its entire membership, a preliminary resolution which must state the reasons for the proposed removal and may suspend the City Manager from duty for a period not to exceed 15 days. A copy of the resolution must be delivered promptly to the City Manager.

3. Within 5 days after a copy of the resolution is delivered to the City Manager, he may file with the City Clerk a written request for a public hearing. The public hearing must be held at a meeting of the City Council not earlier than 15 days nor later than 30 days after the request is filed. The City Manager may file with each member of the City Council a written reply to the reasons which are stated in the resolution not later than 5 days before the hearing.

4. The City Council may adopt a final resolution of removal, which may be made effective immediately, by the affirmative vote of a majority of its entire membership at any time after 5 days after the date on which the copy of the preliminary resolution was delivered to the City Manager, if he has not requested a public hearing, or at any time after the public hearing, if he has requested one.

5. The City Manager is entitled to receive his salary until the effective date of the final resolution of removal. The discretionary decision of the City Council in suspending or removing the City Manager is not subject to review by any agency or court.

Sec. 3.060 Creation of departments, divisions.

The City Council may provide by ordinance for such departments and divisions of departments as the affairs of the City may require.

Sec. 3.070 Appointive officers: Appointment by City Manager.

The City Manager shall appoint the following officers, subject to ratification by the City Council:

1. Director of Financial Management.
2. Director of Public Services.
3. Fire Chief.
4. City Clerk.
5. City Treasurer.
6. A Director of each department which is established pursuant to section 3.060.
7. Such other officers as may be necessary.

(Amended by the Nevada Legislature, 1991; 2007)

Sec. 3.080 Appointive officers: Deputies, employees.

1. Appointive officers may recommend for appointment by the City Manager such deputies and employees as they may require.

2. Deputies of the appointive officers have the same powers as their principals.

Sec. 3.090 City Clerk: Duties.

The City Clerk shall:

1. Keep the corporate seal and all papers and records which belong to the City.

2. Keep a record of the proceedings of the City Council and attend all meetings of the City Council.

3. Attest to the signature of the Mayor or Mayor pro tempore on all contracts, resolutions, ordinances and other documents which have been approved by the City Council and signed by the Mayor or Mayor pro tempore.

Sec. 3.100 City Attorney: Appointment; salary; qualifications; duties; private practice prohibited.

1. The City Council shall appoint a City Attorney and shall fix his salary.

2. The City Attorney must be:

(a) A duly licensed member, in good standing, of the State Bar of Nevada.

(b) The Chief Legal Officer of the City and, as such, shall advise the City Council and all offices of the City in all matters with respect to the affairs for the City and perform such duties as may be designated by the City Council or prescribed by ordinance.

3. The City Attorney is under the general direction and supervision of the City Council.

4. Except as otherwise provided in NRS 7.065, the City Attorney and Deputy City Attorneys may not engage in the private practice of law.

Sec. 3.110 Appointment of Special Counsel; expenses.

The City Council may employ Special Counsel to aid the City Attorney whenever in its judgment the public interest requires that employment, and the expense of employing Special Counsel must be allowed and paid in the same manner as other claims against the City.

Sec. 3.120 County Assessor to be City Assessor; duties.

1. The County Assessor of the County is, ex officio, the City Assessor of the City.

2. At the request of the Assessor, the City Council may appoint and fix the salary of a Deputy City Assessor to perform such duties with respect to city assessments as the City Council deems are necessary.

Sec. 3.130 Department of Financial Management: Director; qualifications; duties.

1. The City Council shall establish a Department of Financial Management, the head of which is the Director of Financial Management. The Department of Financial Management may also include such other qualified personnel as the City Manager determines are necessary properly to handle the financial matters of the City.

2. The Director of Financial Management:

(a) Must have knowledge of municipal accounting and taxation.

(b) Must have experience in budgeting and financial control.

(c) Has charge of the administration of the financial affairs of the City.

(d) Must provide a surety bond in the amount which is fixed by the City Council.

(e) Shall perform or cause to be performed on behalf of the City all of the duties and responsibilities which are imposed upon the City by NRS 354.470 to 354.626, inclusive.

3. The City Council may establish by ordinance such regulations as it deems are necessary for the proper conduct of the Department of Financial Management and its officers and employees.
(Amended by the Nevada Legislature, 2011)

Sec. 3.140 Department of Financial Management: Audits.

1. The Department of Financial Management shall maintain complete records of all fiscal transactions of and claims against the City.

2. Before payment, all claims and accounts against the City must be approved by the Department of Financial Management. No money may be paid for any purpose except by following procedures which have been approved by the City Council. The City Treasurer shall prepare all warrants, to be drawn against the proper accounts, in payment of those claims. The warrants which are issued must bear the signatures of the Director of Financial Management and the City Treasurer. Facsimile signatures may be permitted under the procedures which are prescribed by ordinance.
(Amended by the Nevada Legislature, 2007)

Sec. 3.150 City Treasurer: Duties.

The City Treasurer:

1. Shall perform such duties as may be prescribed by ordinance or designated by the City Manager pursuant to section 3.180.

2. Must provide a surety bond in the amount which is fixed by the City Council.
(Amended by the Nevada Legislature, 2007)

Sec. 3.160 Director of Financial Management, City Treasurer: Official bonds.

The Director of Financial Management and City Treasurer are liable and accountable on their official bonds for the performance of their duties under the provisions of this Charter, and the City Council may require from them such additional security as may be necessary from time to time.

Sec. 3.170 City Auditor: Duties.

1. The City Council shall appoint a City Auditor and fix the salary of that office.

2. The City Auditor shall report directly to the City Council, or to a committee designated by the City Council, and shall perform such duties as may be designated by the City Council or prescribed by ordinance.
(Amended by Nevada Legislature, 1999)

Sec. 3.180 Appointive officers: Qualification; duties restricted and altered.

1. The City Council may prescribe by ordinance the qualifications, powers and duties of all appointive officers of the City, if those qualifications, powers and duties have not been established by this Charter, and may add to, alter or restrict those qualifications, powers and duties from time to time.

2. The City Manager may designate additional qualifications, powers and duties of all of the appointive City officers, except the City Attorney and City Auditor, which are not in conflict with the provisions of this Charter or any ordinance which prescribes those qualifications, powers and duties, as he deems necessary or appropriate, and may add to, alter or restrict those qualifications, powers and duties from time to time.
(Amended by the Nevada Legislature, 1991, 1999)

Sec. 3.190 Director of Public Services: Qualifications.

The Director of Public Services must have such qualifications as may be prescribed by ordinance.
(Amended by the Nevada Legislature, 2007)

Sec. 3.200 City Engineer: Qualifications; duties.

1. The Director of Public Services may recommend, for appointment by the City Manager, a City Engineer, who must be a licensed professional engineer in the State.

2. The City Engineer shall perform such duties as may be designated by the Director of Public Services or prescribed by ordinance.

Sec. 3.210 Appointive officers: Removal.

1. Except as otherwise provided in subsection 2, each appointive officer serves at the pleasure of the City Manager and may be removed by him at any time, subject to ratification by the City Council.

2. The City Attorney and City Auditor serve at the pleasure of the City Council and may be removed by an affirmative vote of a majority of the entire membership of the City Council at any time.
(Amended by the Nevada Legislature, 1991, 1999)

Sec. 3.220 Appointive officers: Performance of duties; salary.

1. All appointive officers of the City, except the City Manager, City Attorney, City Auditor and the Board of Civil Service Trustees, must have such qualifications and powers and shall perform such duties, under the direction of the City Manager, as may be designated by the City Manager or are prescribed, conferred or imposed by ordinance, this Charter or general law.

2. All appointive officers of the City and their deputies, except the City Attorney and City Auditor, must receive such salary as may be designated by the City Manager within the salary ranges which have been established for their respective positions by the City Council.
(Amended by the Nevada Legislature, 1991, 1999)

Sec. 3.230 Appointive officers; City Manager's direction; administration of departments.

All departments, offices and agencies, except the City Manager, City Attorney, City Auditor and the Board of Civil Service Trustees, are under the general direction and supervision of the City Manager and must be administered by an officer who is subject to the immediate direction and supervision of the City Manager. With the consent of the City Council, the City Manager may serve also as the Director of one or more departments, offices or agencies and may appoint one person to be the Director of two or more departments, offices or agencies.
(Amended by the Nevada Legislature, 1991, 1999)

Sec. 3.240 Appointive and elective offices: Oath of office; surety and performance bonds.

1. Each officer of the City, whether he is elected or appointed, must, before entering upon the duties of his office, take and subscribe to the constitutional oath of office.

2. The City Council may require from all of the officers, whether they are elected or appointed, and employees of the City who are responsible for handling City funds sufficient security for the faithful and honest performance of their respective duties and for the payment of all money received by those officers, according to law and the ordinances of the City.

Sec. 3.250 Appointive and elective offices: Filing of bonds; additional bonds.

1. All bonds which are given by the officers, whether they are elected or appointed, and employees of the City must be filed with the City Clerk.

2. The City Council may, at any time, require further and additional bonds of any officer, whether he is elected or appointed, or employee of the City.

Sec. 3.260 Appointive and elective offices: Surrender of effects of office.

Each officer, whether he is elected or appointed, of the City shall, within 5 days after notification and request by the City Manager, deliver to that officer's successor in office all properties, books and effects of every description in his possession which belong to the City or pertain to his office, and, upon his failure, refusal or neglect to do so, becomes liable for all damages which are caused by his failure, refusal or neglect, and to such penalty as may be prescribed by ordinance.

Sec. 3.270 Appointive and elective offices: Interest in City contracts prohibited.

No officer of the City, whether he is elected or appointed, may be directly or indirectly interested in:

1. Any contract, work or business of the City.

2. The sale of any article to the City.

3. The purchase of property, real or personal, which belongs to the City.

Sec. 3.280 Appointive and elective officers: Collection and disposition of money.

1. All taxes, fines, forfeitures or other money of the City which is collected or recovered by any officer, whether he is elected or appointed, or any employee of the City or other person pursuant to this Charter or any valid ordinance of the City must be paid by the officer or employee or person who collects or receives that money to the Director of Financial Management, who must dispose of it in accordance with the ordinances, regulations and procedures which have been established by the City Council.

2. The City Council may, by proper legal action, collect all of the money which is due and unpaid to the City or any office of the City, and the City Council may pay from the General Fund all of the fees and expenses which are necessarily incurred by the City in connection with the collection of that money.

Sec. 3.290 Appointive and elective offices: Additional cause for removal; filling of vacancy.

In addition to any other provision of this Charter or in the general law which relates to the removal of public offices, any officer of the City, whether he is elected or appointed, must be removed for any of the causes and in the manner which are specified in chapter 283 of NRS, and the vacancy which is caused by that removal must be filled as prescribed by law.

Sec. 3.300 Programs: Employment and Training.

1. Except as otherwise provided in subsection 2 and in addition to any other powers authorized by specific statute, the City Council may exercise such powers and enact such ordinances, not in conflict with the laws of this State, as the City Council determines are necessary and proper for the development and provision of programs relating to employment and training.

2. The City Council shall not impose or increase a tax for the purposes set forth in subsection 1 unless the tax or increase is otherwise authorized by specific statute.
(Added by the Nevada Legislature, 2007)

ARTICLE IV JUDICIAL DEPARTMENT

Sec. 4.010 Municipal Court.

1. There is a Municipal Court of the City which consists of at least two departments, each of which must be presided over by a Municipal Judge and has such power and jurisdiction as is prescribed in, and is, in all respects which are not inconsistent with this Charter, governed by chapters 5 and 266 of NRS which relate to municipal courts.

2. The City Council may from time to time establish additional departments of the Municipal Court and shall appoint an additional Municipal Judge for each.

3. At the first general election which follows the appointment of an additional Municipal Judge to a newly created department of the Municipal Court, the successor to that Municipal Judge must be elected for a term of not more than 6 years, as determined by the City Council, in order to effectuate the intent of this provision that, as nearly as practicable, at least one-third of the number of Municipal Judges be elected every 2 years.

4. The respective departments of the Municipal Court must be numbered 1 through the appropriate Arabic number, as additional departments are approved by the City Council. A Municipal Judge must be elected for each department by number.
(Amended by the Nevada Legislature, 1985; 2001)

Sec. 4.020 Municipal Court: Qualifications of Municipal Judges; salary; Master Judge; departments; Alternate Judges.

1. Each Municipal Judge shall devote his or her full time to the duties of his or her office and must be:

(a) A duly licensed member, in good standing, of the State Bar of Nevada, but this qualification does not apply to any Municipal Judge who is an incumbent when this Charter becomes effective as long as he or she continues to serve as such in uninterrupted terms.

(b) A qualified elector who has resided within the territory which is established by the boundaries of the City for a period of not less than 30 days immediately before the last day for filing a declaration of candidacy for the department for which he or she is a candidate.

(c) Registered to vote in the city.

(d) Voted upon by the registered voters of the City at large.

2. The salary of the Municipal Judges must be fixed by ordinance and be uniform for all departments of the Municipal Court. The salary may be increased during the terms for which the Judges are elected or appointed.

3. The Municipal Judges of the six departments shall elect a Master Judge from among their number. The Master Judge shall hold office for a term of 2 years commencing on:

(a) If the general municipal election is held in an odd-numbered year, July 1 of each year of a general municipal election.

(b) If the general municipal election is held in an even-numbered year, January 1 of the year following the general municipal election.

4. If a vacancy occurs in the position of Master Judge, the Municipal Judges shall elect a replacement for the remainder of the unexpired term. If two or more Municipal Judges receive an equal number of votes for the position of Master Judge, the candidates who have received the tie votes shall resolve the tie vote by the drawing of lots. The Master Judge:

(a) Shall establish and enforce administrative regulations for governing the affairs of the Municipal Court.

(b) Is responsible for setting trial dates and other matters which pertain to the Court calendar.

(c) Shall perform such other Court administrative duties as may be required by the City Council.

5. Alternate Judges in sufficient numbers may be appointed annually by the Mayor, each of whom:

(a) Must be a duly licensed member, in good standing, of the State Bar of Nevada and have such other qualifications as are prescribed by ordinance.

(b) Has all of the powers and jurisdiction of a Municipal Judge while acting as such.

(c) Is entitled to such compensation as may be fixed by the City Council.

6. Any Municipal Judge, other than an Alternate Judge, automatically forfeits his or her office if he or she ceases to be a resident of the City.
(Amended by the Nevada Legislature, 1989; 2007; 2011; 2019; Assembly Bill No. 491)

Sec. 4.030 Disposition of fines.

All of the fines and forfeitures which are imposed by the Municipal Court must be paid into the Treasury of the City in the manner and at the times prescribed by ordinance.

Sec. 4.040 Hearing Commissioners.

1. The City Council may appoint one or more Hearing Commissioners to hear and decide:

(a) Any action for a misdemeanor constituting a violation of chapter 484 of NRS, except NRS 484.379; and

(b) Any action for a misdemeanor constituting a violation of the Las Vegas Municipal Code, except chapter 11.14 of that Code.

2. Each Hearing Commissioner must:

(a) Be a duly licensed member, in good standing, of the State Bar of Nevada;

(b) Be a resident of the State;

(c) Be a qualified elector in the City;

(d) Have been a bona fide resident of the City for not less than 1 year next preceding his appointment; and

(e) Not have ever been removed or retired from any judicial office by the Commission on Judicial Discipline.

3. In connection with any action of a type described in subsection 1, a Hearing Commissioner has all the powers and duties of a Municipal Judge and a magistrate pursuant to the laws of this State. To the extent possible and practicable, the proceedings in such actions must be subject to and governed by the provisions of the laws of this State, this Charter and city ordinances pertaining to Municipal Judges.

4. Hearing Commissioners shall receive such compensation as may be allowed by the City Council.
(Added by the Nevada Legislature, 2007)

ARTICLE V ELECTIONS

Sec. 5.010 Primary municipal elections.

1. A primary municipal election must be held in the City:

(a) On the first Tuesday after the first Monday in April 2019; and

(b) Beginning in 2022, on the second Tuesday in June of each even-numbered year.

2. In the primary municipal elections:

(a) The candidates for Council Member who are to be nominated must be nominated and voted for separately according to the respective wards.

(b) If the City Council has established an additional department or departments of the Municipal Court pursuant to section 4.010 and, as a result, more than one office of Municipal Judge is to be filled at any election, the candidates for those offices must be nominated and voted upon separately according to the respective departments.

3. Each candidate for municipal office must file a declaration of candidacy with the City Clerk. All filing fees collected by the City Clerk must be paid into the City Treasury.

4. If, in the primary municipal election, regardless of the number of candidates for an office, one candidate receives a majority of votes which are cast in that election for the office for which he or she is a candidate, he or she must be declared elected for the term which commences on the day of the first regular meeting of the City Council next succeeding the meeting at which the canvass of the returns is made, and no general municipal election need

be held for that office. If, in the primary municipal election, no candidate receives a majority of votes which are cast in that election for the office for which he or she is a candidate, the names of the two candidates who receive the highest number of votes must be placed on the ballot for the general municipal election.
(Amended by the Nevada Legislature, 1991; 1997; 1999; 2011; 2019)

Sec. 5.020 General municipal election.

1. On the second Tuesday after the first Monday in June 2019, there must be elected, at a general municipal election held for that purpose, the Mayor and Council Members from odd-numbered wards who shall hold office until their successors have been elected and qualified pursuant to subsection 4.

2. On the first Tuesday after the first Monday in November 2022, and at each successive interval of 4 years, there must be elected, at a general municipal election held for that purpose, the Council Members from even-numbered wards who shall hold office for a period of 4 years and until their successors have been elected and qualified.

3. On the first Tuesday after the first Monday in November 2022, and at each successive interval of 6 years, there must be elected, at a general municipal election held for that purpose, Municipal Judges for Departments 1, 4 and 6 who shall hold office for a period of 6 years and until their successors have been elected and qualified.

4. On the first Tuesday after the first Monday in November 2024, and at each successive interval of 4 years, there must be elected, at a general municipal election held for that purpose, the Mayor and Council Members from odd-numbered wards who shall hold office for a period of 4 years and until their successors have been elected and qualified.

5. On the first Tuesday after the first Monday in November 2024, and at each successive interval of 6 years, there must be elected, at a general municipal election held for that purpose, Municipal Judges for Departments 2, 3 and 5 who shall hold office for a period of 6 years and until their successors have been elected and qualified.

6. All candidates for elective office, except the office of Council Member, must be voted upon by the registered voters of the City at large.
(Amended by the Nevada Legislature, 2011; 2015; 2019)

Sec. 5.030 Applicability of state election laws; elections under City Council's control.

1. All elections held under this Charter must be governed by:

(a) The provisions of NRS 293.5772 to 293.5887, inclusive, which supersede and preempt any conflicting provisions of this Charter; and

(b) All other provisions of the election laws of this State, so far as those laws can be made applicable and are not inconsistent with the provisions of this Charter.

2. The conduct of all municipal elections is under the control of the City Council. The City Council shall prescribe by ordinance all of the regulations which it considers are desirable and consistent with law and this Charter for the conduct of municipal elections, for the prevention of fraud in those elections and for the recount of ballots in cases of doubt or fraud. (Amended by the Nevada Legislature, 2019)

Sec. 5.040 Qualifications, registration of electors.

1. Each person who is a resident of the city at the time of holding any municipal election and whose name appears upon the official register of voters in and for the city is entitled to vote at that municipal election, whether special, primary or general, and for all of the officers who are to be voted for and on all of the questions that may be submitted to the people at that special, primary or general election, except as is otherwise provided in this article.

2. The city council may provide for supplemental registration.

Sec. 5.050 Names on ballots.

1. The full names of all of the candidates, except those who have withdrawn, died or become ineligible, must be printed on the official ballots without party designation or symbol.

2. If two or more candidates have the same name or names which are so similar as likely to cause confusion and:

(a) None of them is an incumbent, their middle names or middle initials, if any, must be included in their names as printed on the ballots; or

(b) One of them is an incumbent, the name of the incumbent must be listed first and must be printed in bold type.

(Ch. 517, Stats. 1983 p. 1415; A—Ch. 312, Stats. 2003 p. 1730)

Sec. 5.060 Ballots for ordinances and charter amendments.

An ordinance or charter amendment which is to be voted on in the city must be presented for voting by ballot title. The ballot title of a measure may differ from its legal title, but must be a clear and concise statement which describes the substance of the measure without argument or prejudice. Below the ballot title must appear the following question: "Shall the above described (ordinance) (charter amendment) be adopted?" The ballot, voting machine or voting device must be marked in such a way as to indicate clearly in what manner the voter may cast his vote, either for or against the ordinance or charter amendment.

Sec. 5.070 Availability of lists of registered voters.

If, for any purpose which relates to a municipal election or to the candidates or issues which are involved in that election, any organization, group or person requests a list of the registered voters of the city, the department, office or agency which has custody of the official register of voters, except as otherwise provided in NRS 293.5002 and 293.558 shall either

permit that organization, group or person to copy the voters' names and addresses from the official register of voters or furnish the list upon payment of the fee which is prescribed in chapter 293 of NRS.
(Ch. 517, Stats. 1983 p. 1416; A — Ch. 581, Stats. 2001 p. 2971; Ch. 470, Stats. 2005 p. 2304)

Sec. 5.080 Watchers and challengers.

A candidate may, upon written application to the election authorities at least 5 days before the election, appoint two persons to represent him as watchers and challengers at each polling place at which voters may cast their ballots for the office for which he is a candidate. Each person who has been appointed has all of the rights and privileges which are prescribed for watchers and challengers under the election laws of the state. The watchers and challengers may exercise their rights throughout the voting and until the ballots have been counted.

Sec. 5.090 Voting machines.

The city council may provide for the use of mechanical or other devices for voting or for counting the votes, or both, which are not inconsistent with the law or the regulations of the Secretary of State.

Sec. 5.100 Election returns; canvass; declaration of results; certificates of election; entry of officers upon duties; procedure for tied vote.

1. The returns of any special, primary or general municipal election must be filed with the City Clerk, who shall immediately place those returns in a safe or vault, and no person may be permitted to handle, inspect or in any manner interfere with those returns until they have been canvassed by the City Council.

2. The City Council shall meet within the time set forth in NRS 293C.387 after any election and canvass the returns and declare the result. The election returns must then be sealed and kept by the City Clerk for 6 months, and no person may have access to the returns except on order of a court of competent jurisdiction or by order of the City Council.

3. The City Clerk, under his hand and official seal, shall issue to each person who is declared to be elected a certificate of election. The officers who have been elected shall qualify and enter upon the discharge of their respective duties on the day of the first regular meeting of the City Council next succeeding the meeting at which the canvass of the returns is made.

4. If the election for any office results in a tie, the City Council shall summon the candidates who received the equal number of votes and determine the tie by lot. The Clerk shall then issue to the winner a certificate of election.
(Amended by the Nevada Legislature, 1991; 2019)

Sec. 5.110 Special elections: Registration of electors.

1. If a question is to be submitted to the registered voters of the city at a municipal or state primary or general election, no notice of registration of electors is required other than that which is required by the election laws of the state for that election. If the question is to be submitted at a special municipal election, the city clerk shall at the expense of the city, cause to be published at least once a week for 5 consecutive weeks by 5 weekly insertions 1 week apart, the first publication to be not more than 60 days, nor less than 45 days next preceding the election, a notice which has been signed by him to the effect that registration for the special election will be closed on the date which is designated in the notice, as provided in this section.

2. Except as provided in this subsection, the office of the city clerk must be open for the special election from 9 a.m. to 12 p.m. and from 1 p.m. to 5 p.m. on Mondays through Fridays, with legal holidays excepted, for the registration of any qualified elector.

Sec. 5.120 Special elections: Notice of election.

1. The city clerk shall cause a notice of a special municipal election to be published at least once a week for 2 consecutive weeks by 2 weekly insertions 1 week apart, the first publication to be not more than 14 days nor less than 8 days next preceding the special election.

2. The notice of the special election must contain:

(a) The date and places of holding the election.

(b) The hours during the day in which the polls will be open, which must be the same as are provided for general elections.

(c) A statement of the question in substantially the same form as it will appear on the official ballot.

Sec. 5.130 Special elections: Consolidation of voting precincts; qualification of voters; costs.

1. The city clerk may consolidate or otherwise modify voting precincts for any special municipal election and shall designate the polling places, appoint the officers of the election for each precinct in such number as he may determine, and fix the respective duties and compensation of those officers.

2. Any qualified elector who is properly registered is qualified to vote at the special election.

3. The costs of any special election must be paid by the city.

4. An officer of the election who is eligible to receive compensation fixed pursuant to subsection 1 may choose to work in such a position as a volunteer who receives no compensation.
(Assembly Bill No. 491)

Sec. 5.140 Continuation of certain officers.

1. The Municipal Judges for Departments 1, 4 and 6 elected at the general municipal election held in June 2015 shall continue in office until the general municipal election, and qualification thereafter, of their successors pursuant to subsection 3 of section 5.020.

2. The Municipal Judges for Departments 2, 3 and 5 elected at the general municipal election held in June 2017 shall continue in office until the general municipal election, and qualification thereafter, of their successors pursuant to subsection 5 of section 5.020.

3. The Council Members from even-numbered wards elected at the general municipal election held in June 2017 shall continue in office until the general municipal election, and qualification thereafter, of their successors pursuant to subsection 2 of section 5.020.
(Added by the Nevada Legislature, 2019)

ARTICLE VI LOCAL IMPROVEMENTS

Sec. 6.010 Local improvement law.

Except as otherwise provided in subsection 2 of section 2.300, section 2.135 and section 13 of this act, the city council, on behalf of the city and in its name, without any election, may from time to time acquire, improve, equip, operate and maintain, convert to or authorize, in addition to the projects authorized by chapter 271 of NRS:

1. Street lighting projects;

2. Underground electric and communication facilities; and

3. Any combination of those projects.
(Amended by the Nevada Legislature, 1997; 2001)

Sec. 6.020 Local improvement law: Collateral powers.

The city council, on behalf of the city, for the purpose of defraying all of the costs of acquiring, improving or converting to any project which is authorized by section 6.010, or any portion of those costs which are not to be defrayed with money which is otherwise available for that purpose, is vested with all of the powers which are granted to municipalities by chapters 271 and 704A of NRS.

ARTICLE VII FINANCES, BORROWINGS AND FRANCHISES

Sec. 7.010 Finances: Control, appropriation.

The city council:

1. Controls the finances of the city.

2. Shall appropriate money only for city purposes and such other purposes as may be provided by law or regulation, either federal or state, and provide for the payment of the debts and expenses of the city.

3. Shall pay the cost and expense of the buildings and land for the use of the city from the proper fund of the city, including without limitations the proceeds of bonds which are issued pursuant to sections 7.020 and 7.030 of this charter.

Sec. 7.020 Borrowing money.

1. Subject to the limitations which are imposed by this article and in the manner and to the extent provided in the constitution and laws of the state, the city may borrow money for any municipal purpose, including without limitation any purpose which is expressly authorized by this charter or by any provision of NRS which pertains to cities, and, for that purpose, may:

(a) Issue general obligation bonds, revenue bonds, revenue bonds for the payment of which the full faith and credit of the city is also pledged or other general or special obligation securities.

(b) Issue general obligation refunding bonds.

(c) Additionally secure the payment of its general obligation securities by a pledge of any revenue (other than tax proceeds) which is legally available for that purpose.

2. NRS 350.500 to 350.720, inclusive, apply to all of the securities which may be issued pursuant to this charter, except securities which are issued pursuant to section 6.020 of this charter. All of the securities which are issued pursuant to this charter may be in such amounts and forms and contain such conditions as the city council may from time to time determine.

3. Any property tax which is levied to pay the principal of or interest on any indebtedness which is incurred pursuant to subsection 1, must be levied upon all of the taxable property within the city, as provided in NRS 350.590 to 350.602, inclusive.

4. Any ordinance which pertains to the sale or issuance of bonds or other securities, including without limitation securities which are issued pursuant to section 6.020 of this charter, may be adopted in the manner as is provided in cases of emergency. A declaration by the city council in any ordinance that it is of this kind is conclusive, in the absence of fraud or gross abuse of discretion.

Sec. 7.030 Sewer revenue bonds.

The city council may issue bonds to obtain revenue for acquiring or constructing systems, plants, works, instrumentalities and properties which are needed in connection with the conservation, treatment and disposal of sewage waste and storm water.

Sec. 7.040 Debt limit.

1. The city may not issue or have outstanding at any time bonds which when taken together with all of the notes, warrants, scrip or other evidences of indebtedness which are then outstanding, will create a total indebtedness in an amount greater than 20 percent of the total assessed valuation of the taxable property within its boundaries, as shown by the last preceding tax list or assessment roll.

2. In determining any debt limitation under this section, the following may not be considered as indebtedness:

(a) Revenue bonds, unless the full faith and credit of the city is also pledged to their payment;

(b) Special assessment bonds, although a deficiency in the proceeds of the assessments is required to be paid from the general fund of the city;

(c) Short-term securities which are issued in anticipation of and payable from the property taxes which are levied for the current fiscal year;

(d) Interim warrants which are issued pursuant to chapter 271 of NRS; and

(e) Securities which are described in subsection 4 of section 8.240 of this charter.

Sec. 7.050 Granting of franchises.

1. The city may, either alone or jointly with any other government or any instrumentality or subdivision of any government and for any purpose which is provided in this charter or in any provision of NRS which pertains to cities, grant a franchise to any person, firm or corporation to:

(a) Lay, operate and maintain in, upon, over or under any public right-of-way of the city or other public place in the city fixed guides or rails for any means of transportation.

(b) Construct, operate and maintain gas, electric or other lighting and heating works in the city and give that person, firm or corporation the privilege of furnishing light or heat, or both, for the public buildings, streets and alleys of the city.

(c) Construct, operate and maintain communication facilities and systems in the city.

2. The city council may grant no franchise for a term which is longer than 50 years, and no franchise for any purpose may be granted within the city except as is provided in this charter. Nothing which is contained in this charter, however, impairs any franchise which was granted by the city before this charter became effective.

3. Before granting any franchise, the city council must adopt a resolution which sets forth fully and in detail the applicant for and the purpose, character, term, time and conditions of the proposed franchise and states that a public hearing on the advisability of granting the proposed franchise will be held at the first regular meeting of the city council after the final publication of the resolution.

4. The resolution must be published in full at least twice in the 2 weeks which follow its adoption.

5. At the first regular meeting of the city council after the completion of the publication, the city council may enact an ordinance for the granting of the franchise but the franchise may be granted only on substantially the same terms and conditions as are expressed in the resolution as published. Otherwise the ordinance is void.

ARTICLE VIII REVITALIZATION AND REDEVELOPMENT

Sec. 8.010 Legislative declaration.

The legislature by the inclusion of this article in this charter declares that:

1. All of the property which is to be acquired by the city pursuant to this article must be owned, operated, administered and maintained for and on behalf of all of the people of the city.

2. The exercise by the city of the purposes, powers, rights, privileges, immunities and duties which are established, granted, conferred and imposed in this article promotes the public health, safety, prosperity, security, comfort, convenience and general welfare of all of the people of the state and will be of special benefit to the inhabitants of the city and the property within the city.

3. The provisions in this article which involve the purposes, powers, rights, privileges, immunities, liabilities, duties and disabilities with respect to the city will serve a public purpose.

4. The necessity for this article results from:

   (a) The large population growth in the urban areas which are included within the city and its environs, which constitutes in the aggregate a significant portion of the state's population;

   (b) The numerous capital improvements and large amount of improved real property which is situate within the urban areas;

   (c) The need for capital improvements within certain areas within the city to provide needed services, facilities and other improvements for public use;

   (d) The existence of blighted or deteriorating areas within the city which constitutes a serious and growing menace which is condemned as injurious and inimical to the public health, safety and general welfare of the people of the state, and particularly of the city;

   (e) The lack of municipally owned capital improvements and the blighted or deteriorating areas which present difficulties and handicaps beyond remedy and control solely by the regulatory processes in the exercise of the police power;

   (f) Deficiencies which contribute substantially and increasingly to the problems of, and necessitate excessive and disproportionate expenditures for, crime prevention and the preservation of the public health, safety and general welfare;

   (g) Deficiencies which also constitute an economic and social liability which imposes onerous municipal burdens which decrease the tax base and reduce tax revenues, aggravate traffic hazards and the improvement of the traffic facilities; and

   (h) The fact that the areas in which these deficiencies exist consume an excessive proportion of the city's revenues because of the extra services which are required for police, fire, accident, hospitalization and other forms of public protection.

5. The menace which results from the foregoing factors is becoming increasingly direct and substantial in its significance and effect.

6. The benefits which the city will derive from the remedying of these deficiencies by making available additional revenues to defray indirectly the costs of undertakings within the city which are authorized by NRS 268.672 to 268.740, inclusive, the development of mixed-use and transit-oriented communities, and the redevelopment of blighted or deteriorating areas within the city will inure to the inhabitants and the

property owners of the city as a whole, will be of general benefit to those people and will be of special benefit to the taxable real property within a tax increment area and to the owners of that property.

7. The method of paying the bond requirements of the securities which are issued pursuant to this article is equitable and enables the city to issue securities to defray the cost of any project.

8. A general law cannot be made applicable to the city or to the properties, powers, rights, privileges, immunities, liabilities, duties and disabilities which pertain to the city, as provided in this article, because of the number of atypical factors and special conditions with respect to them.

9. For the accomplishment of the purposes which are provided in this section, each of the provisions of this article must be broadly construed.
(Ch. 517, Stats. 1983 p. 1420; A — Ch. 404, Stats. 2005 p. 1593)

Sec. 8.020 Definitions.

Except as is provided in this article or where the context otherwise requires, the terms which are used or referred to in this article are as defined in NRS 268.672 to 268.740, inclusive, and, except as is otherwise provided in those sections, as defined in NRS 350.500 to NRS 350.720, inclusive, but the definitions which are contained in sections 8.030 to 8.110, inclusive, of this charter, except where the context otherwise requires, govern the construction of this article.

Sec. 8.030 "Bond requirements" defined.

"Bond requirements" means the principal of, any prior redemption premiums due in connection with and the interest on the designated bonds or other securities.

Sec. 8.040 "Cost of undertaking" defined.

"Cost of the undertaking," or any phrase of similar import, means the "cost of any project" as the latter phrase is defined in NRS 350.516.

Sec. 8.050 "Engineer" defined.

"Engineer," without further qualification, means the city engineer or a firm of engineers which is employed by the city in connection with any undertaking or any project or the exercise of any power which is authorized in this article.

Sec. 8.060 "Facilities" defined.

1. "Facilities" means buildings, structures, utilities or other properties which pertain to any undertaking or project which is authorized in this article, including without limitation income-producing facilities and facilities which are acquired with the proceeds of bonds or other securities which are issued under that article.

2. The term includes all of the properties, real, personal, mixed or otherwise, which are acquired by the city or the public body, as the case may be, by any undertaking for any one or more projects through purchase, condemnation, construction or otherwise and are used in connection with any of those projects and related services or in any way which pertains to those projects or services, whether they are situate within or without, or both within and without, the corporate boundaries of the city or the territorial limits of the public body, as the case may be.

Sec. 8.070 "Mailed notice," "notice by mail" defined.

"Mailed notice" and "notice by mail" each means the giving by the engineer, city clerk or any of their deputies, as determined by the city council, of any designated written or printed notice which must be addressed to any designated person, or to the last known owner of each tract in any tax increment area, at his last known address by the deposit, at least 20 days before the designated hearing or other time or event, in the United States mails, postage prepaid as first-class mail.

Sec. 8.080 "Posting" defined.

"Posting" means posting any required notice in three public places at or near the site of any designated undertaking or project at least 20 days before the designated hearing or other time or event.

Sec. 8.090 "Tax increment account" defined.

"Tax increment account" means a special account which is created pursuant to subsection 3 of section 8.210 of this charter and the other provisions in this article which are supplemental to it.

Sec. 8.100 "Tax increment area" defined.

"Tax increment area" means the area which is specially benefited by an undertaking under this article, is designated by ordinance, as provided in subsection 3 of section 8.210 of this charter, and in which is located the taxable property the assessed valuation of which is the basis for the allocation of tax proceeds to any tax increment account under section 8.230 of this charter.

Sec. 8.110 "Undertaking" defined.

"Undertaking" means any enterprise to acquire, develop, improve or equip, or any combination thereof, any project which is authorized in NRS 268.672 to 268.740, inclusive, which is a mixed-use or transit-oriented community, or which could be undertaken by a redevelopment agency pursuant to NRS 279.382 to 279.680, inclusive, and to defray the cost of that enterprise, wholly or in part, by the issuance of the city's bonds or other securities which are payable, wholly or in part, from tax proceeds which are allocated to any tax

increment account that pertains to the enterprise pursuant to section 8.230 of this charter. (Ch. 517, Stats. 1983 p. 1422; A — Ch. 639, Stats. 1985 p. 2087; Ch. 404, Stats. 2005 p. 1594)

Sec. 8.120 Requirements for posting.

1. The posting of any notice which is required by this article must be verified by the affidavit or certificate of the engineer, city clerk, deputy or other person who posted the notice. The affidavit or certificate must be filed with the city clerk and retained in the records of the city at least until all of the bonds and other securities which pertain to any tax increment account have been paid in full or any claim which relates to those bonds or securities is barred by a statute of limitations.

2. The affidavit or certificate of posting is prima facie evidence of the posting of the notice in accordance with the requirements of this section.

Sec. 8.130 Requirements for notice by mail.

1. The name and address of any property owner to whom notice is required by this article may be obtained from the records of the county assessor or from any source which the clerk or the engineer deems to be reliable. Any list of the names and addresses which pertain to any tax increment area may be revised from time to time, but the list need not be revised more frequently than at 12-month intervals, if the list is needed for a period longer than 12 months.

2. The mailing of any notice which is required by this article must be verified by the affidavit or certificate of the engineer, city clerk, deputy, or other person who mailed the notice. The affidavit or certificate must be filed with the city clerk and, retained in the records of the city at least until all of the bonds and other securities which pertain to any tax increment account have been paid in full or any claim which relates to those bonds or securities is barred by a statute of limitations.

3. The affidavit or certificate of mailing is prima facie evidence of the mailing of the notice in accordance with the requirements of this section.

Sec. 8.140 Requirements for publication.

1. Any publication which is required by this article, except as otherwise expressly provided or necessarily implied in this article, must be made at least once a week for 3 consecutive weeks by three weekly insertions, the first publication being at least 15 days before the designated time or event. Unless it is otherwise stated, it is not necessary that publication be made on the same day of the week in each of the 3 calendar weeks, but not less than 14 days must intervene between the first publication and the last publication.

2. Publication is complete, if more than one insertion is required, on the date of the last publication.

3. Any publication which is required by this article must be verified by the affidavit of the publisher, which must be filed with the city clerk and retained in the records of the city at least until all of the bonds and other securities which pertain to any tax increment account have been paid in full or any claim which relates to those bonds or securities is barred by a statute of limitations.

4. The affidavit of publication is prima facie evidence of the publication of the notice in accordance with the requirements of this section.

Sec. 8.150 Authorization of tax increment area.

1. Except as is provided in subsections 2 and 3, the city council, on behalf of the city and in its name, may at any time designate a tax increment area within the city to create a special account for the payment of bonds or other securities which are issued to defray the cost of the acquisition, improvement or equipment (or any combination thereof) of any project which is authorized in NRS 268.672 to 268.740, inclusive, including without limitation the condemnation of property for the undertaking, as are supplemented by NRS 350.500 to 350.720, inclusive, except as is otherwise provided in this article.

2. A tax increment area may not be created by the city council if the total land area of the tax increment area exceeds 10 percent of the total land area, or if the total initial assessed valuation of the tax increment area exceeds 10 percent of the total assessed valuation of the taxable property which is situate within the city. As used in this subsection, "initial assessed valuation" means the assessed value as shown on the assessment roll which was last equalized before the designation of the area.

3. The right-of-way property of a railroad company which is under the jurisdiction of the Interstate Commerce Commission must not be included in a tax increment area unless the inclusion of that property is mutually agreed upon by the city council and the railroad company.
(Amended by the Nevada Legislature, 1985)

Sec. 8.160 Limitation upon acquisition of facilities.

1. The city may not acquire, as a part of its facilities, any property which, at the time of its acquisition, competes in any area with then-existing properties of a public body which provides the same or a similar function or service in the area, but the facilities of the city may complement the existing properties of a public body by providing in that area supplemental functions or services, if the existing properties provide inadequate functions or services.

2. The city may acquire properties of any public body which are situate in the city as one undertaking or a project of the city or an interest in that undertaking or project.

Sec. 8.170 Initiating procedure.

1. Whenever the city council is of the opinion that the interests of the city require any undertaking which is to be financed under this article, the governing body by resolution shall direct the engineer to prepare:

(a) Preliminary plans and a preliminary estimate of the cost of the undertaking, including without limitation all of the estimated financing costs which are to be capitalized with the proceeds of the city's securities and all other estimated incidental costs which relate to the undertaking.

(b) A statement of the proposed tax increment area which pertains to the undertaking, the last finalized amount of the assessed valuation of the taxable property in the area and the amount of taxes (including in the amount the sum of all unpaid taxes, whether or not they are delinquent) which resulted from the last taxation of the property, based upon the records of the county assessor and the county treasurer; and

(c) A statement of the estimated amount of the tax proceeds which are to be credited annually to the tax increment account during the term of the proposed securities which will be payable from those tax proceeds.

2. The resolution must describe the undertaking in general terms.

3. The resolution must state:

(a) What part or portion of the expense of the undertaking must be paid with the proceeds of the securities which are issued by the city in anticipation of tax proceeds and are to be credited to the tax increment account and payable wholly or in part from those tax proceeds;

(b) How the remaining part or portion of the expenses, if any, is to be financed; and

(c) The basic security and any additional security for the payment of the securities of the city which pertain to the undertaking.

4. The resolution need not describe minutely each particular tract of taxable real property which is proposed to be included within the tax increment area, but may simply designate the tax increment area or its location in such a manner that the various tracts of taxable real property and taxable personal property which are situate within the tax increment area may be ascertained and determined to be either within or without the proposed tax increment area.

5. The engineer shall forthwith file with the city clerk the preliminary plans, estimate of cost and statements.

6. Upon the filing of the preliminary plans, estimate of cost and statements, the city council shall examine them, and, if it finds them to be satisfactory, by resolution provisionally order the undertaking.

Sec. 8.180 Provisional order resolution; notice of hearing.

1. In the provisional order resolution, the city council must set the time, which must be at least 20 days after the adoption of the resolution, and the place when and where any representative of the Federal Government, the state or any public body or any person who resides in the city or owns taxable personal or real property in the city, or any representative of that person, may appear before the governing body and be heard concerning the propriety and advisability of the undertaking.

2. Notice of that hearing must be given:

(a) By mail;

(b) By posting; and

(c) By publication.

3. The notice must:

(a) Describe the undertaking and the project which relates to it (without mentioning minor details or incidentals);

(b) State the preliminary estimate of the cost of the undertaking including all incidental costs, as are stated in the engineer's report which was filed with the city council pursuant to subsection 5 of section 8.170 of this charter;

(c) Describe the proposed tax increment area which pertains to the undertaking, the last finalized amount of the assessed valuation of the taxable property in the area and the amount of taxes (including in the amount the sum of all unpaid taxes, whether or not they are delinquent) which resulted from the last taxation of the property, based upon the records of the county assessor and the county treasurer;

(d) State what part or portion of the expense of the undertaking must be paid with the proceeds of the securities which are issued by the city in anticipation of tax proceeds and are to be credited to the tax increment account and payable wholly or in part from those tax proceeds;

(e) State how the remaining part or portion of the expenses, if any, is to be financed;

(f) State the basic security and any additional security for the payment of the securities of the city which pertain to the undertaking;

(g) State the estimated amount of tax proceeds which are to be credited annually to the tax increment account which pertains to the undertaking during the term of the proposed securities which are payable from those tax proceeds and the estimated amount of any net revenue which will be derived annually from the operation of the project which pertains to the undertaking and is pledged for the payment of the securities;

(h) State the estimated aggregate principal amount which is to be borrowed through the issuance of the securities (excluding proceeds of those securities to fund or refund outstanding securities) and the estimated total bond requirements of the securities;

(i) State whether or not the governing body finds, determines and declares that the estimated tax proceeds which will be credited to the tax increment account and any net pledged revenue which will be derived annually from the operation of the project which pertains to the undertaking will be fully sufficient to pay the bond requirements of the securities as they become due; and

(j) The time and place when and where the city council will consider the ordering of the undertaking and hear all of the complaints, protests, objections and other relevant comments with respect to it which may be made in writing by any natural person or body corporate which is designated in subsection 1 and filed with the city clerk at least 3 days before the hearing or made orally at the hearing by any natural person who is designated in subsection 1.

4. All of the proceedings may be modified or rescinded, wholly or in part, by resolution which is adopted by the city council at any time before the passage of the ordinance which orders the undertaking and creates the tax increment area and the tax increment account which pertains to the undertaking pursuant to subsection 3 of section 8.210 of this charter.

5. No substantial change in the undertaking, the preliminary estimates, the proposed tax increment area or other statements which relate to the undertaking may be made after the first publication, posting or mailing of the notice to property owners, whichever occurs first, except for the deletion of a portion of the undertaking and property from the proposed tax increment area, unless the city council, after ordering that change, provides for another provisional order hearing on all of the matters in the premises and for a notice of the hearing in the same manner as is provided in this article for the initial hearing, but a subsequent finalization of the amount of the assessed valuation of the taxable property in the tax increment area or a subsequent levy of taxes may not adversely affect the proceedings which are taken under this article.

6. The engineer also has the right to make minor changes in, and to develop the undertaking with respect to, the time, plans and materials which enter into the undertaking at any time before its completion.

Sec. 8.190 Provisional order hearing.

1. At the time and place of the hearing or at any adjournment of the hearing, the city council must proceed to read and consider all of the written complaints, protests, objections and other relevant comments which have been properly made and filed with the city clerk and to hear all oral comments which relate to the undertaking.

2. After the hearing has been concluded, after all of the written complaints, protests, objections and other relevant comments have been read and considered, and after the city council has heard and considered all of the oral comments which were made by persons who have an interest in the undertaking and has also considered any other relevant material which was offered, if the city council determines that the undertaking, or any part of it, is not in the public interest, the city council by resolution must make an order to that effect and may modify

the proposed tax increment area to conform to that order. Thereupon, the undertaking or that part of the undertaking which was determined against by the order must stop and may not be begun again until the adoption of a new resolution.

3. Any complaint, protest or objection to the regularity, validity and correctness of the proceedings which were taken and the instruments which were made before the date of the hearing are deemed to have been waived unless they were presented in writing at the time and in the manner which is specified in this article.

Sec. 8.200 Appeal from adverse order.

If any person or public body, the state or the Federal Government filed a written complaint, protest or objection as provided in paragraph (j) of subsection 3 of section 8.050 of this charter, that person or public body, the state or the Federal Government, as the case may be, may commence, within 30 days after the city council has finally passed upon its complaint, protest or objection by resolution pursuant to subsection 2 of section 8.190 of this charter or by ordinance pursuant to subsection 3 of section 8.210 of this charter, an action or suit in any court of competent jurisdiction to correct or set aside the determination, but thereafter all actions or suits which attack the validity of the proceedings or the determination of the city council, or both, are perpetually barred.

Sec. 8.210 Final order of undertaking.

1. After the provisional order hearing and the consideration of all of the matters in the premises, or, in the event of a material change other than the deletion of a part of the undertaking and any modification of the tax increment area to conform to that deletion pursuant to subsection 2 of section 8.190 of this charter, after the supplemental provisional order hearing and the consideration of any supplemental matters in the premises, the city council shall determine whether or not to proceed under this article. If it has ordered any modification and desires to proceed, it shall direct the engineer appropriately to modify the plans, estimates and statements which were filed by him with the city clerk pursuant to subsection 5 of section 8.170 of this charter.

2. The engineer shall appropriately modify those plans, estimates and statements and forthwith file the modified plans, estimates and statements with the city clerk.

3. When the plans, estimates and statements are prepared, filed with the city clerk and are satisfactory to the city council, the city council shall by ordinance overrule all of the complaints, protests and objections which were not otherwise acted upon, unconditionally order the undertaking as modified, if modified, describe the tax increment area which pertains to the undertaking and create the tax increment account for the undertaking.

4. The ordinance may be introduced and adopted at one meeting by the unanimous vote of the entire city council as if an emergency exists and may be effective upon its adoption and publication by title, or it may be introduced and adopted as a regular measure, pursuant to section 2.110 of this charter.

Sec. 8.220 Amendment of ordinance.

1. The city council may amend an ordinance which was adopted pursuant to subsection 3 of section 8.210 of this charter by adopting a supplemental ordinance, which must be introduced and adopted as a regular measure, to:

(a) Modify the undertaking by specifying new projects or removing or modifying projects which were specified in the original ordinance;

(b) Add areas to or remove areas from a tax increment area; or

(c) Make such other changes, additions or deletions as the city council determines will further its objectives within the tax increment area.

2. If a proposed amendment would add any area to or remove any area from a tax increment area, notice by mail of the meeting of the city council at which the proposed amendment will be considered must be given to the last known owner or owners of each tract of land which is proposed to be added or removed.

3. The amount of taxes to be allocated to a tax increment account pursuant to subsection 2 of section 8.230 of this charter must be computed separately for the original tax increment area and each addition of land to the original tax increment area.

Sec. 8.230 Allocation, division and disposition of tax proceeds.

After the effective date of the ordinance which unconditionally orders the undertaking and provides for the tax increment financing, any tax which is levied upon the taxable property in the tax increment area each year by or for the benefit of the state, the city and any public body must be divided as follows:

1. That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the tax increment area, as is shown on the assessment roll which is used in connection with the taxation of the property by the taxing agency, as that roll was last equalized before the effective date of the ordinance, must be allocated to and, when the taxes are collected, paid into the funds of the respective taxing agencies as taxes by or for the taxing agencies as the taxes on all other property are paid.

2. That portion of the levied taxes each year which are in excess of that amount must be allocated to and, when the taxes are collected, paid into the tax increment account which pertains to the undertaking to pay the bond requirements of any loan or any money which was advanced to, or any indebtedness, whether it is funded, refunded, assumed or otherwise incurred by, the city to finance or refinance, in whole or in part, the undertaking. Until the total assessed valuation of the taxable property in the tax increment area exceeds the total assessed value of the taxable property in the area, as shown by the last equalized assessment roll which is referred to in subsection 1, all of the taxes which are levied and collected upon the taxable property in the area must be paid into the funds of the respective taxing agencies. When the loans, advances and

indebtedness, if any, and interest thereon, have been paid, all of the money which is thereafter received from taxes upon the taxable property in the area must be paid into the funds of the respective taxing agencies as the taxes on all other property are paid.

3. For the purposes of this section, the last equalized assessment roll which is referred to in subsection 1 is the assessment roll which was in existence on the fifteenth day of April which immediately precedes the effective date of the ordinance which unconditionally orders the undertaking and provides for the tax increment financing.

Sec. 8.240 Municipal securities.

1. The city may issue, to defray, wholly or in part, the cost of the undertaking, the following securities:

(a) Notes;

(b) Warrants;

(c) Interim debentures;

(d) Bonds; and

(e) Temporary bonds.

2. Any net revenue which is derived from the operation of the project which is acquired, improved or equipped (or any combination thereof) under the undertaking must be pledged for the payment of the securities, and those securities must be made payable from that net pledged revenue, as the bond requirements of the securities become due from time to time, in accordance with the bond ordinance, trust indenture, or other proceedings which authorize the issuance of the securities or otherwise pertains to their issuance.

3. Additionally, the securities:

(a) Must be made payable from tax proceeds which are accounted for in the tax increment account; and

(b) May, at the city's option, be made payable from the taxes which are levied by the city against all of the taxable property within the city, without limitation of rate or amount except for the limitation which is provided in section 2 of article 10 of the Nevada constitution. (The city may also issue general obligation securities which are authorized by any law other than this article and are made payable from taxes without also making those securities payable from the net pledged revenues or tax proceeds which are accounted for in a tax increment account, or from both these revenue sources.)

4. Securities which are payable only in the manner which is provided in either paragraph (a) of subsection 3 or both subsection 2 and paragraph (a) of subsection 3 are special obligations of the city, are neither in their issuance subject to debt limitation which is specified in subsection 1 of section 7.040 of this charter or is otherwise imposed by law, nor, while they are outstanding, do they exhaust the city's debt-incurring power under subsection 1 of section 7.040 of this charter or other law and may be issued under the provisions of the NRS 350.500

to 350.720, inclusive, except as is otherwise provided in this article, without any compliance with the provisions provided in NRS 350.501 to 350.006, inclusive or NRS 350.010 to 350.070, inclusive, and without any approval or other preliminaries, except as is provided in NRS 350.500 to 350.720, inclusive.

5. Securities which are payable from taxes in the manner which is provided in paragraph (b) of subsection 3, regardless of whether or not they are also payable in the manner which is provided only in paragraph (a) of that subsection or in both subsection 2 and paragraph (a) of subsection 3, must be general obligations of the city, are in their issuance subject to the debt limitation which is specified in subsection 1 of section 7.040 of this charter or is otherwise imposed by law and, while they are outstanding, exhaust the city's debt-incurring power under subsection 1 of section 7.040 of this charter or other law, and those securities may be issued under NRS 350.500 to 350.720, inclusive, only after the issuance of city bonds is approved under the provisions of:

(a) NRS 350.001 to 350.006, inclusive; and

(b) NRS 350.010 to 350.070, inclusive, except for the issuance of notes or warrants pursuant to NRS 350.500 to 350.720, inclusive, which are payable out of the current year's revenues and are not to be funded with the proceeds of interim debentures or bonds in the absence of approval under the provisions of the law which are designated in paragraphs (a) and (b).

6. In the proceedings for the making of loans or the acquisition of any advance of money or the incurring of any indebtedness, whether it is funded, refunded, assumed or otherwise, for the purpose of financing or refinancing, in whole or in part, the undertaking, wholly or in part, the city shall irrevocably pledge that portion of the taxes which is mentioned in subsection 2 of section 8.230 of this charter for the payment of the bond requirements of the loans, advances or indebtedness. The provisions in NRS 350.500 to 350.720, inclusive, which pertain to net pledged revenues apply to the pledge to secure the payment of the tax increment bonds.

Sec. 8.250 Cooperative powers.

The city also has the following powers:

1. To accept contributions or loans from the Federal Government, the state or any public body (or any combination of those entities) to finance the planning, acquisition, improvement, equipping, maintenance and operation of any enterprise which pertains to an undertaking in which the city is authorized to engage and to enter into contracts and cooperate with and accept cooperation from the Federal Government, the state or any public body (or any combination of those entities) in the planning, acquisition, improvement, equipping, maintenance and operation and in the financing of the planning, acquisition, improvement, equipping, maintenance and operation of that enterprise in accordance with any legislation which Congress, the state legislature or any governing body or legislative body of any public body (or any combination of those bodies) may have adopted or may, after the effective date of this charter, adopt, under which aid, assistance and cooperation may be furnished by the Federal Government,

the state or public body (or any combination of those entities) in the planning, acquisition, improvement, equipping, maintenance and operation or in the financing of the planning, acquisition, improvement, equipping, maintenance and operation of any enterprise, including without limitation the costs of engineering, architectural and economic investigations and studies, surveys, designs, plans, working drawings, specifications, procedures and other action which is preliminary to the acquisition, improvement or equipping of any project and to do anything which is necessary in order to avail itself of the aid, assistance and cooperation which may be available under any federal or state legislation which is now in existence or may, after the effective date of this charter, be enacted.

2. To enter into and perform, without any election, joint operating or service contracts and agreements, acquisition, improvement, equipment or disposal contracts or other arrangements, for any term which does not exceed 50 years, with the Federal Government, the state and any public body (or any combination of those entities) with respect to the undertaking, and any project or property which pertains thereto, whether it is acquired by the city, by the Federal Government, by the state or by any public body, and to accept grants and contributions from the Federal Government, the state, any public body, or any person (or any combination of those entities) in connection with those contracts, agreements and arrangements.

3. To enter into and perform, without any election, when it is determined by the city council to be in the public interest, contracts and agreements, for any term which does not exceed 50 years, with the Federal Government, the state, any public body or any person (or any combination of those entities) for the provision and operation by the city of any facilities, whether or not they pertain to the undertaking of the city or any project which relates to that undertaking and the payment periodically by the Federal Government, the state, the public body or the person (or any combination of those entities) to the city of amounts which are at least sufficient, if any, in the determination of the city council, to compensate the city for the cost of providing, operating and maintaining the facilities which serve the Federal Government, the state, the public body or the person, or otherwise.

4. To enter into and perform, without any election, contracts and agreements with the Federal Government, the state, any public body or any person (or combination of those entities) for or with respect to the planning, construction, lease or other acquisition, improvement, equipping, operation, maintenance, disposal and financing of any property which pertains to the facilities of the city or to any undertaking or any project of the city, or otherwise, including without limitation any contract or agreement for any term which does not exceed 50 years.

5. To cooperate with and act in conjunction with the Federal Government or any of its engineers, officers, boards, commissions or departments, or with the state or any of its engineers, officers, boards, commissions or departments, or with any public body or with any person in the acquisition, improvement or equipping of any facilities or any

project which is authorized for the city or for any other work, act or purpose which is provided for in this article and to adopt and carry out any definite plan or system of work for that purpose.

6. To cooperate with the Federal Government, the state or any public body (or any combination of those entities) by an agreement with any or all of those entities by which the city may:

   (a) Acquire and provide, without cost to the cooperating entity, the land, easements and rights-of-way which are necessary for the acquisition, improvement or equipping (or any combination thereof) of any properties which pertain to the undertaking or any other facility;

   (b) Hold and save harmless the cooperating entity free from any claim for damages which may arise from the acquisition, improvement, equipping, maintenance and operation (or any combination thereof) of any facility;

   (c) Maintain and operate any facility in accordance with the regulations which are prescribed by the cooperating entity; and

   (d) Adopt and enforce regulations, if any, with respect to the facilities and which are satisfactory to the cooperating entity.

7. To provide, by any contract, for any term which does not exceed 50 years, or otherwise, without an election:

   (a) For the joint use of the personnel, equipment and facilities of the city, the Federal Government, the state and any public body (or any combination of those entities) including without limitation public buildings which are constructed by or under the supervision of the city council or by the governing body or legislative body of the other party to the contract, upon such terms and agreements and within such areas within the city as may be determined, for the promotion and protection of the public health, safety, prosperity, security, comfort, convenience, general welfare and property of the inhabitants of the city, the Federal Government, the state, any public body and any person of interest, as the case may be; and

   (b) For the joint employment of clerks, stenographers and other employees which pertain to the facilities, any project or the undertaking which now exist or may, after the effective date of this charter, be established in the city upon such terms and conditions as may be determined for the equitable apportionment of the expenses which result from that employment.

8. In connection with any facility of the city, or any part of any facility which is acquired or proposed in connection with an undertaking, or with any project, to consult with any regulatory or other agency of the Federal Government, the state or any public body and to submit plans, specifications or other instruments or documents (or any combination thereof) to that governmental agency for its review, recommendations and other comments.

Sec. 8.260 Public purpose.

The exercise of any power which is authorized in this article by the City Council on behalf of the City has been determined and is hereby declared to effect a public purpose, and any undertaking which is authorized in this article also effects a public purpose.

Sec. 8.270 Sufficiency of article.

1. This article, without reference to other statutes of the State, except as is otherwise expressly provided in this article, constitutes full authority for the exercise of the powers which are granted in this article.

2. No other law with respect to the exercise of any power which is granted in this article that provides for an election, requires an approval or in any way impedes or restricts the carrying out of the acts which are authorized by this article to be done may be construed as applying to any proceeding which is taken under this article or act done pursuant to this article, except as is provided in this article.

3. The powers which are granted by this article are in addition and supplemental to, and not in substitution for any other law, and the limitations which are imposed by this article do not affect the powers which are granted by any other law.

4. No part of this article repeals or affects any other law or part thereof, it being intended that this article merely provides a separate method of accomplishing its objectives, rather than the exclusive one.

ARTICLE IX REVENUE

Sec. 9.010 City taxes.

1. The City Council shall annually, at the time which is prescribed by law for the levying of taxes for State and County purposes, levy a tax upon the assessed value of all of the real and personal property within the City which is made taxable by law. The taxes which are levied must be collected at the same time, in the same manner and by the same officers, exercising the same functions, as are prescribed and provided in the revenue laws of the State for the collection of State and County taxes. Except as is provided in this section, the revenue laws of the State, in every respect which is not inconsistent with the provisions of this Charter, apply to the levying, assessing and collecting of the City taxes. The City Treasurer may, however, upon approval of the Board of County Commissioners of the County, collect taxes which are levied for the redemption of bonds which were issued pursuant to section 6.020 of this Charter.

2. Except with respect to any tax which is levied to pay the principal of or interest on any indebtedness which is incurred by the City pursuant to section 7.020 of this Charter, the City Council may divide the City into districts for the purpose of local taxation, or may create districts for that purpose, as occasion may require.

3. In the matter of the equalization of assessments, the rights of the City and its inhabitants must be protected in the same manner and to the same extent by the action of the County Board of Equalization as are the rights of the State and County.

4. Whenever and wherever it is practicable and expedient, all of the forms and blanks which are used in levying, assessing and collecting the revenues of the State and County must, with such alterations or additions as may be necessary, be used in levying, assessing and collecting the revenues of the City.

Sec. 9.020 Revenue ordinances.

The City Council may enact all ordinances which it deems are necessary and are not inconsistent with this Charter and the laws of the State to carry into effect the revenue laws of the City, to determine, fix and enlarge the powers and duties of all of the officers of the City in relation to those laws and to assure the prompt, convenient and economical collecting of the City revenue.

ARTICLE X CIVIL SERVICE

Sec. 10.010 Civil Service.

1. There is hereby created a System of Civil Service which is applicable to and governs all of the employees of the City except the elected officials, persons who serve as members of boards, commissioners or committees for which no compensation is received, the City Manager, the City Attorney, persons who are appointed pursuant to sections 3.040 and 3.070, persons who hold such probationary, provisional or temporary appointments as are designated in the Civil Service rules, Alternate Judges and persons who hold such other positions as are designated by the City Council.

2. The City Council may determine that the System of Civil Service must be administered by a Board of Civil Service Trustees which is composed of five members who are appointed by the City Council for terms of 4 years.

3. The City Council shall adopt by ordinance a codification of the rules which govern the System of Civil Service and may from time to time amend those rules. If the System of Civil Service is administered by a Board of Civil Service Trustees, the rules which govern the System of Civil Service, and any amendments thereto, must be reviewed by the Board before the City Council adopts them.

4. The rules which govern the System of Civil Service must provide for:

(a) The examination of potential employees;

(b) Recruitment and placement procedures;

(c) The classification of positions;

(d) Procedures for the promotion of employees;

(e) Procedures for disciplinary actions against, and the discharge of, employees;

(f) Appeals with respect to actions which are taken pursuant to paragraphs (d) and (e);

(g) The acceptance and processing of citizens' complaints against employees; and

(h) Such other matters, if any, as the Board of Civil Service Trustees or the City Council deems are necessary or appropriate.

5. Copies of the rules of the System of Civil Service must be made available to all of the employees of the City.
(Amended by the Nevada Legislature, 1991; 2007)

ARTICLE XI MISCELLANEOUS PROVISIONS

Sec. 11.010 Severability of provisions.

If any portion of this Charter is held to be unconstitutional or invalid for any reason by the decision of any court of competent jurisdiction, that decision does not affect the validity of the remaining provisions of this Charter. The Legislature hereby declares that it would have passed this Charter, and each provision of this Charter, irrespective of the portion which may be held to be unconstitutional or otherwise invalid.

Sec. 11.020 Effect of enactment of Charter.

1. All of the rights and property of every kind and description which were vested in the City before the effective date of this Charter are vested in the same municipal corporation on the effective date of this Charter. All of the powers, rights, privileges, immunities, duties, obligations and liabilities of the City which exist on the effective date of this Charter must remain as if no change were made, and no action or prosecution may be affected by that change, and each of those powers, rights, privileges, immunities, duties, obligations, liabilities, actions and prosecutions must stand and progress as if no change were made.

2. Whenever a different remedy is provided by this Charter, which may properly be made applicable to any right which exists on the effective date of this Charter, that remedy is cumulative to any remedy which was before provided and may be used accordingly.

3. All of the ordinances and resolutions which are in effect in the City before the effective date of this Charter must, unless they are in conflict with the provisions of this Charter, continue in full force and effect until they are amended or repealed.

4. The enactment of this Charter does not effect any change in the legal identity of the City.

5. The enactment of this Charter does not repeal or in any way affect or modify:

(a) Any special, local or temporary law, except chapter 515, Statutes of Nevada 1971, as amended.

(b) Any law or ordinance which makes an appropriation.

(c) Any ordinance which affects any bond issue or by which any bond issue may have been authorized.

(d) The running of the statute of limitations which is in force at the time this Charter becomes effective.

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CHAPTER 1.01 CODE ADOPTION

1.01.010 Code adoption—Reference generally.

This compilation and codification of the general ordinances of the City of Las Vegas is hereby declared to be and shall hereafter constitute the official Municipal Code of the City of Las Vegas. Any reference to the number of any section contained herein shall be understood to refer to the position of the same under its appropriate Title heading, its chapter heading and its section heading and to the general penalty clause relating thereto, as well as to the section itself, when reference is made to this Code by title in any legal document.
(Ord. 2232 § 1, 1981)

1.01.020 Repeal of general ordinances.

All general ordinances of the City passed prior to the adoption of this Code are hereby repealed, except such as are referred to herein as being still in force or are by necessary implication herein reserved from repeal subject to the saving clauses contained in the following Sections of this Chapter. Excluded from such repeal are the following ordinances: tax levy ordinances, appropriation ordinances, ordinances relating to boundaries and annexations, franchise ordinances and other ordinances granting special rights to persons or corporations, contract ordinances and ordinances authorizing the execution of a contract or the issuance of warrants, salary ordinances, ordinances establishing, naming or vacating streets, alleys or other public places, special improvement district ordinances, bond ordinances, ordinances relating to elections, ordinances relating to the transfer or acceptance of real estate by or from the City, and all special ordinances.
(Ord. 2233 § 1(part), 1981: prior code § 1-2-1)

1.01.030 Utility, street and railroad ordinances.

No ordinance relating to railroads or railroad crossings with streets and other public ways, or relating to the conduct, duties, service or rates of public utilities, shall be repealed by virtue of Section 1.01.020, excepting as this Code may contain provisions for such matters, in which case the provisions of this Code shall be considered as amending such ordinance or ordinances in respect of such provisions only.
(Ord. 2233 § 1(part), 1981: prior code § 1-2-2)

1.01.040 Offenses or violations under former ordinances.

(A) No new ordinance shall be construed or held to repeal a former ordinance, whether such former ordinance is expressly repealed or not:

(1) As to any offense or violation committed against or under such former ordinance; or

(2) As to any act done, any penalty, forfeiture or punishment so incurred; or

(3) As to any right accrued or claim arising under the former ordinance; or

(4) In any way whatever to affect any such offense, violation, or act so committed or so done; or

(5) As to any penalty, forfeiture or punishment so incurred; or

(6) As to any right accrued or claim arising before the new ordinance takes effect, save only that the proceedings thereafter shall conform to the ordinance in force at the time of such proceeding, as far as practicable. If any penalty, forfeiture or punishment is mitigated by any provision of a new ordinance, such provision may be, by the consent of the party affected, applied to any judgment announced after the new ordinance takes effect.

(B) This Section shall extend to all repeals, either by express words or implication, whether the repeal is in the ordinance making any new provision upon the same subject or in any other ordinance.
(Ord. 2233 § 1(part), 1981: prior code § 1-2-3(part))

1.01.050 Present actions, rights, penalties, liabilities.

Nothing contained in this or the preceding sections of this Chapter shall be construed as abating any action now pending or any right presently accrued under or by virtue of any general ordinance of the City herein repealed; or as discontinuing, abating, modifying or altering any penalty accrued or to accrue; or as affecting the liability of any person, firm or corporation; or as waiving any right of the City under any ordinance or provision thereof in force at the time of adoption of this Code.
(Ord. 2233 § 1(part), 1981: prior code § 1-2-3(part))

CHAPTER 1.04 GENERAL PROVISIONS

1.04.010 Citation—Section outline form.

The Las Vegas Municipal Code, adopted and enacted into law by Chapter 1.01, and as hereafter amended and supplemented and printed and published pursuant to law, and all of the ordinances embraced therein, shall be known and designated as the "Las Vegas Municipal Code" and may be cited as such or simply as "LVMC," followed by the number of the title, chapter and section, as appropriate; for example, LVMC 1.01.010. The illustrative section may also be cited as Section 10 of Chapter 1 of Title 1 of the Las Vegas Municipal Code or as Title 1, Chapter 1, Section 10 of the Las Vegas Municipal Code. Lettered paragraphs (the first series of indentations) within a section are referred to as subsections, and numbered paragraphs (the second series of indentations) within a subsection are referred to as paragraphs, any may be cited as follows: "Paragraph (1) of Subsection (A) of LVMC 1.01.010" or "LVMC 1.01.010 (A)(1)." The following is an example of the outline system used in LVMC sections:

1.01.010 Sample of LVMC outline form. This is a sample LVMC section, which can be broken down as follows:

(A) This is a subsection.

(B) Subsections are designated by capital letters in parentheses.

(1) This is a paragraph.

(2) Paragraphs are designated by Arabic numerals in parentheses.

(a) This is a subparagraph.

(b) Subparagraphs are designated by lower case letters in parentheses.

(i) This is a subparagraph.

(ii) Subparagraphs are designated by lower case Roman numerals in parentheses.

(Ord. 2232 § 2, 1981: prior code § 1-1-2)

1.04.020 Definitions and rules of construction.

In the construction of this Code, and of all ordinances, the following definitions and rules shall be observed, unless such construction would be inconsistent with the manifest intent of the City Council:

(A) "The City" or "this City" shall be construed as if the words "of Las Vegas, Clark County, Nevada" followed.

(B) "The City Council," the "Council," "the Board of Commissioners" and "the Board" each means the governing body of the City of Las Vegas.

(C) Computation of time: The time within which an act is to be done shall be computed by excluding the first and including the last day, and if the last day be Sunday or a legal holiday, that shall be excluded.

(D) "The County" or "this County" shall mean the County of Clark.

(E) Gender: The masculine gender shall include the feminine and neuter genders. The use of a masculine noun or pronoun in conferring a benefit or imposing a duty does not exclude a female person form that benefit or duty. The use of a feminine noun or pronoun in conferring a benefit or imposing a duty does not exclude a male person from that benefit or duty.

(F) Joint authority: All words which give authority jointly to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

(G) "Keeper" and "proprietor" mean and include persons, firms, associations, corporations, clubs, and copartnerships, whether acting by themselves or through servants, agents, or employees.

(H) "Month" means a calendar month, unless otherwise specified.

(I) Number: The singular number includes the plural number and the plural number includes the singular number.

(J) "Oath" includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

(K) "Or" may be read "and," and "and" may be read "or," if the sense requires it.

(L) "Owner," applied to a building or land, includes any part owner, joint owner, tenant in common, tenant in partnership, joint tenant, or tenant by the entirety, of the whole or a part of such building or land.

(M) "Person" includes a corporation, firm, partnership, association, organization, and any other group acting as a unit, as well as an individual.

(N) "Personal property" includes every type or species of property, except real property as hereinafter defined.

(O) "Preceding" and "following" mean next before and the next after, respectively.

(P) "Property" includes real and personal property.

(Q) "Public place" means any public building, street, park, cemetery, schoolyard and open space adjacent thereto, any other publicly owned property and any lake or stream.

(R) "Real property" includes land, tenements and hereditaments.

(S) "Sidewalk" means any portion of a street between the curbline and the adjacent property line, intended for the use of pedestrians, excluding parkways.

(T) "Signature" or "subscription" includes a mark, if a person cannot write.

(U) "The State" or "this State" means the State of Nevada.

(V) "Street" means and includes any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge, and the approaches thereto, within the City.

(W) "Tenant" or "occupancy" as applied to a building or land, shall include any person who occupies the whole or a part of such building or land, whether alone or with others.

(X) Tense: The past tense or the present tense includes the future tense as well as the past tense and the present tense.

(Y) "Writing" and "written" include printed and any other mode of representing words and letters.

(Z) "Year" shall mean a calendar year, unless otherwise specified.

(Ord. 3063 § 1, 1983; Ord. 2232 § 3, 1981: prior code § 1-1-3)

1.04.030 Titles and catchlines.

The titles and catchlines of the titles, chapters and sections of this Code are intended as mere catchwords to indicate the contents of the respective titles, chapters and sections to which they refer and shall not be deemed or taken to be titles of such titles, chapters and sections, nor as any part of the particular title, chapter or section, nor, unless expressly as

provided, shall they be so deemed when any of such titles, chapters and sections, including catchlines, are amended or reenacted, nor shall they be considered in the interpretation of the respective titles, chapters and sections.
(Ord. 2232 § 5, 1981: prior code § 1-1-4)

1.04.040 Repeal not to revive—Pending actions, penalties.

(A) The repeal of an ordinance shall not revive any ordinance in force before or at the time the ordinance repealed took effect.

(B) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense or violation committed under the ordinance repealed.
(Ord. 2232 § 6, 1981: prior code § 1-1-5)

1.04.050 Severability.

It is hereby declared to be the intention of the City Council that the sections, subsections, paragraphs, sentences, clauses and phrases of this Code are severable, and, if any phrase, clause, sentence, paragraph, subsection or section of this Code shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs, subsections and sections of this Code, since the same would have been enacted by the Council without the incorporation in this Code of any such unconstitutional phrase, clause, sentence, paragraph, subsection or section.
(Ord. 2232 § 7, 1981: prior code § 1-1-6)

CHAPTER 1.06 OFFICIAL OATH

1.06.010 Adopted.

The oath of office which is set forth in this section is hereby adopted and designated as the official oath of office of the city.

OATH OF OFFICE

I, _____ do solemnly swear that I will support, protect and defend the Constitution and Government of the United States, and the Constitution and Government of the State of Nevada, against all enemies, whether domestic or foreign, and that I will bear true faith, allegiance and loyalty to the same, any ordinance, resolution or law of any state notwithstanding; and, further, I am not under any direct or indirect obligation to vote for, appoint or elect any person to any office, position or employment in the City government of the City of Las Vegas; and, further, that I will faithfully perform the duties of the office of _____ in the City of Las Vegas, Nevada, on which I am about to enter, so

help me God; and, further, that I am now a bona fide resident at the address shown herein and I will immediately notify the City of Las Vegas of any change of residence during my term of office.

(Ord. 3186 § 2, 1985)

1.06.020 Board, commission and committee members—Required.

Each person who is appointed as a member of any of the several boards, commissions and committees of the City shall, before entering upon the duties of his office, take and subscribe to the official oath of office.

(Ord. 3186 § 3, 1985)

1.06.030 Board, commission and committee members—Renewal.

Whenever a member of any of the several boards, commissions and committees of the City has taken and subscribed to the official Oath of Office, as in Section 1.06.020 required, he shall not thereafter be required again to take and subscribe to the oath as long as he remains in the same position, notwithstanding any intervening expiration of his term.

(Ord. 3186 § 4, 1985)

CHAPTER 1.08 OFFICIAL SEAL AND FLAG

1.08.010 Adoption.

The seal and flag illustrated in this chapter are hereby adopted as the official seal of the City and the official flag of the City, respectively.

(Ord. 2039 § 1 (part), 1979: Ord. 1263 § 1 (part), 1966: prior code § 1-16-2)

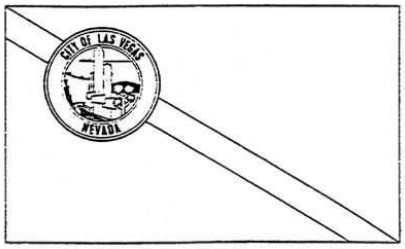
1.08.020 Seal design.

The official seal of the City shall be as herein illustrated:

(Ord. 2039 § 1 (part), 1979: Ord. 1263 § 1 (part), 1966: prior code § 1-16-1 (A))

1.08.030 Flag design.

The official flag of the City shall be as herein illustrated:



(Ord. 2039 § 1 (part), 1979: Ord. 1263 § 1 (part), 1966: prior code § 1-16-1(B))

1.08.040 Custodian.

The City Clerk shall be the custodian of the official seal and the official flag of the City.
(Ord. 2039 § 1 (part), 1979: Ord. 1263 § 1 (part), 1966: prior code § 1-16-3)

1.08.050 Unlawful use.

It is unlawful for any person to use the official seal or the official flag of the City, or any reproduction, facsimile or colorable imitation thereof, except:

(A) With the express permission of the City Council;

(B) In the performance of official acts by a department of the City;

(C) On items distributed by a department of the City which are not necessary to carry out the duties of that department, if the use is approved by the department director; or

(D) As otherwise permitted by a specific ordinance.
(Ord. 5209 § 1, 2000: Ord. 2039 § 1 (part), 1979: prior code § 1-16-4(A))

1.08.060 Unlawful commercial use.

(A) It is unlawful for any person to make commercial use in any manner whatsoever of the official seal or official flag of the City, or any reproduction, facsimile or colorable imitation thereof, unless such use has been authorized in writing by the City.

(B) The City may require the payment of a fee for the commercial use of either the official seal or the official flag of the City or any reproduction, facsimile or colorable imitation thereof.
(Ord. 2039 § 1 (part), 1979: prior code § 1-16-4(B))

CHAPTER 1.12 OFFICIAL NEWSPAPERS

1.12.010 Designated.

The Las Vegas Review Journal and the Las Vegas Sun are designated as the official newspapers for the City.
(Prior code § 1-15-1)

CHAPTER 1.16 WARDS*

1.16.010 Division into wards.

The City shall be divided into six wards, numbered 1, 2, 3, 4, 5 and 6 as set out in this Chapter. The wards are described by precinct number, with precinct numbers being assigned by the Clark County Election Department. Unrelated to ward boundary changes that the City Council undertakes from time to time pursuant to Section 1.130 of the City Charter, the Clark County Election Department periodically revises precinct numbers and descriptions based upon the annexation of property into the City and other logistical considerations. Because of these ongoing revisions by the Election Department, the listing of precinct numbers in this Chapter at any given time may not be entirely current, but the listing will be updated from time to time as is deemed warranted.
(Ord. 5690 § 1, 2004: Ord. 5177 § 1, 1999: edited during 1982 codification: Ord. 2154 § 1 (part), 1981: Ord. 1986 § 2 (part), 1979: prior code § 1-5-8(A)(part))

1.16.020 Ward No. 1.

Ward No. 1 shall consist of that area of the City which is encompassed within election precinct numbers 2013, 2025, 2028, 2030, 2032, 2033, 2036, 3000, 3003, 3007, 3009, 3011, 3013, 3039, 3043, 3045, 3062, 3068, 3361, 3750, 3753, 3754, 3764, 3765, 3773, 3863, 4009, 4027, 4612, 4615, 4623, 5533, 5554 and 6625.
(Ord. No. 6808, § 2, 5-4-22)

1.16.030 Ward No. 2.

Ward No. 2 shall consist of that area of the City which is encompassed within election precinct numbers 3014, 3016, 3017, 3018, 3021, 3022, 3027, 3363, 3364, 3366, 3370, 3373, 3374, 3382, 3385, 3391, 3392, 3544, 3557, 3565, 3576, 3740, 3755, 3762, 3763, 3791, 3793, 3800, 6007 and 6632.
(Ord. No. 6937, § 1, 1-21-26; Ord. No. 6808, § 2, 5-4-22)

***Editor's note—**Ord. No. 6808, § 1, adopted May 4, 2022, repealed the former §§ 1.16.020—1.16.070, and § 2 of Ord. No. 6808 enacted new §§ 1.16.020—1.16.070 as set out herein. The former §§ 1.16.020—1.16.070 pertained to similar subject matter and derived from Ord. No. 6225, adopted December 5, 2012; Ord. No. 6391, adopted December 17, 2014; Ord. No. 6564, adopted January 4, 2017; Ord. No. 6668, adopted January 16, 2019 and Ord. No. 6800, adopted December 1, 2021.

1.16.040 Ward No. 3.

Ward No. 3 shall consist of that area of the City which is encompassed within election precinct numbers 3038, 3069, 4020, 4026, 4387, 4540, 4541, 4543, 4547, 4548, 4605, 5001, 5002, 5003, 5005, 5007, 5012, 5014, 5018, 5022, 5028, 5030, 5031, 5044, 5350, 5384, 5542, 5545, 5562, 5563, 5565, 5590, 5903, 5905 and 6711.
(Ord. No. 6937, § 2, 1-21-26; Ord. No. 6855, § 1, 12-20-23; Ord. No. 6808, § 2, 5-4-22)

1.16.050 Ward No. 4.

Ward No. 4 shall consist of that area of the City which is encompassed within election precinct numbers 2000, 3036, 3037, 3040, 3046, 3055, 3056, 3058, 3059, 3061, 3066, 3072, 3074, 3217, 3383, 3414, 3417, 3418, 3435, 3464, 3547, 3583, 3586, 3587, 3588, 3604, 3606, 3607, 3709, 3714, 3716, 3717, 3719, 3724, 3727, 3729, 3732, 3745, 3747, 3748, 3766, 3769, 3771, 3780, 3786, 3787 and 3989.
(Ord. No. 6937, § 3, 1-21-26; Ord. No. 6855, § 1, 12-20-23; Ord. No. 6808, § 2, 5-4-22)

1.16.060 Ward No. 5.

Ward No. 5 shall consist of that area of the City which is encompassed within election precinct numbers 2003, 2004, 2005, 2009, 2011, 2014, 2015, 2020, 2021, 2023, 2029, 2037, 2046, 2063, 2709, 2710, 4000, 4001, 4007, 4008, 4014, 4015, 4019, 4028, 4030, 4032, 4034, 4038, 4040, 4041, 4461, 4463, 4509, 4510, 4526, 4528, 4529, 4613, 4633 and 4638.
(Ord. No. 6937, § 4, 1-21-26; Ord. No. 6855, § 1, 12-20-23; Ord. No. 6808, § 2, 5-4-22)

1.16.070 Ward No. 6.

Ward No. 6 shall consist of that area of the City which is encompassed within election precinct numbers 2051, 2053, 2054, 2055, 2056, 2065, 2067, 2068, 2069, 2070, 2072, 2073, 2079, 2081, 2082, 2352, 2600, 2605, 2608, 2611, 2614, 2622, 2633, 2641, 2643, 2651, 2654, 2662, 2663, 2682, 2695, 2696, 2700, 2706, 2711, 2927, 2948, 3065, 3542, 3545, 3546, 3574, 3602, 3613, 3700, 3705, 3706, 3730, 3781 and 3906.
(Ord. No. 6937, § 5, 1-21-26; Ord. No. 6855, § 1, 12-20-23; Ord. No. 6808, § 2, 5-4-22)

CHAPTER 1.20 CITATIONS

1.20.010 Issuance—Service.

(A) Except as may be otherwise directed or permitted by any section of this Code, upon any violation of any section of this Code, all officers, inspectors, deputies and all such other employees of the City who are charged with enforcement of this Code may, in lieu of arresting the person who commits the violation, prepare, sign and serve on the accused person a written citation that contains a notice to appear in Court, the name and address of the person who is accused, the offense charged, and the time and place where and when the person shall appear in Court and such other pertinent information as may be necessary. The citation shall be signed by the person issuing such citation. The person charged with the

violation may give his written promise to appear by signing at least one copy of the written citation, in which event a copy shall be delivered to the accused, and thereupon the person issuing such citation shall not take the person into physical custody for the violation. A copy of the citation signed by the accused shall suffice as proof of service.

(B) Whenever any motor vehicle is found in violation of any section of this Code which relates to the parking of motor vehicles, the violation of which is declared to be prohibited or unlawful or an offense or a misdemeanor, by any employee of the City who is charged with enforcing such section, such employees may, in lieu of the personal service of the citation therefor in accordance with subsection (A) of this Section 1.20.010, affix such citation to such vehicle in a conspicuous place, and the affixing of such citation in this manner shall, for the purpose of Section 1.20.010, be deemed to be personal service upon the person who caused such vehicle to be parked in violation of such section.
(Ord. 3330 § 1 (part), 1987: Ord. 1728 § 1 (part), 1974: prior code § 1-141)

1.20.020 Specified appearance date.

(A) Except as is otherwise provided in Subsection (B) of this Section 1.20.020, the time that is specified in such citation for the accused to appear shall be not less than five days after the issuance thereof.

(B) Any person who is charged with a violation of any section which involves the parking of motor vehicles, the violation of which is declared to be prohibited or unlawful or an offense or a misdemeanor, shall answer the citation therefor within twenty days after the issuance of such citation by appearing in the Las Vegas Municipal Court within such period, post bail in an amount that is provided by the bail schedule that is established by such Court for the offense with which such person is charged and enter a plea with respect to the offense.
(Ord. 3330 § 2, 1987: Ord. 1728 § 1 (part), 1974: prior code § 1-14-2)

1.20.030 Lawful complaint status.

If the form of the citation includes information whose truthfulness is attested as required under the general laws of this State and the ordinances of the City for a complaint charging commission of the offense alleged in the citation to have been committed, then the citation, when filed with a court of competent jurisdiction, shall be deemed to be a lawful complaint for the purpose of prosecution under this Code.
(Ord. 3100 § 1, 1984: Ord. 1728 § 1 (part), 1974: prior code § 1-14-6)

1.20.040 Ownership of parked vehicle.

In any prosecution for a violation of any section of this Code which relates to the parking of motor vehicles, the violation of which is declared to be prohibited or unlawful or an offense or a misdemeanor, proof that the vehicle that is described in the complaint was parked in violation of such section, together with proof that the defendant who is named in the complaint was, at the time of such violation, the registered owner of such vehicle, shall

constitute a rebuttable presumption that the defendant was the person who placed or parked such vehicle at the point or location at which, and during the period in which, such violation occurred.
(Ord. 3330 § 3, 1987)

1.20.050 Failure to appear—Unlawful.

It is unlawful for any person to violate his written promise to appear as herein provided, regardless of the disposition of the charge for which he is accused; provided, however, that a written promise to appear in Court may be complied with by an appearance by counsel.
(Ord. 1728 § 1 (part), 1974: prior code § 1-14-3)

1.20.060 Failure to appear—Arrest warrant.

When an accused signs a citation promising to appear at the time and place specified in the citation and fails to appear as promised, the Court shall issue and have delivered for execution a warrant for his arrest.
(Ord. 1728 § 1 (part), 1974: prior code § 1-14-4)

1.20.070 Filing with Court.

Every officer, inspector, deputy or employee charged with enforcement of this Code issuing a citation for an alleged violation thereof shall file the original citation with the Las Vegas Municipal Court.
(Ord. 1728 § 1 (part), 1974: prior code § 1-14-5 (part))

1.20.080 Disposition.

Upon the filing of the original citation with the Municipal Court, such citation may be disposed of only by trial in the Municipal Court or other official action by a Judge of the court, including forfeiture of the bail, or by the deposit of a sufficient bail with or payment of a fine by the person accused. It is unlawful and official misconduct for any employee charged with enforcement of this Code or any public employee to dispose of a citation or copies thereof or of the record of the issuance of a citation in a manner other than as required by this Chapter.
(Ord. 1728 § 1 (part), 1974: prior code § 1-14-5 (part))

1.20.090 Departmental administrative control.

The chief administrative officer of each department charged with enforcement of this Code shall require the return to him of a copy of every citation issued by an employee under his supervision to an alleged violator of this Code and all copies of every citation which has been spoiled or upon which any entry has been made and not issued to an alleged violator. Such

chief administrative officer shall also maintain or cause to be maintained in connection with every citation issued by an employee under his supervision a record of the disposition of the charge by the Court in which the original or a copy of the citation was deposited.
(Ord. 1728 § 1 (part), 1974: prior code § 1-14-5 (part))

CHAPTER 1.24 GENERAL PENALTY

1.24.010 Designated.

Whenever in this Code or in any ordinance of the City the doing of any act is made or declared to be unlawful or an offense or a misdemeanor, or whenever in such Code or ordinance the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, if no specific penalty is provided therefor, the violation of any such provision of this Code or any ordinance shall be punished by a fine not exceeding one thousand dollars or imprisonment for a term not exceeding six months, or any combination of such fine and imprisonment.
(Ord. 2212 § 1 (part), 1981: Ord. 2172 § 1 (part), 1981: prior code § 1-1-7 (part))

1.24.020 Separate offenses.

Each day any violation of any provision of this Code or of any ordinance shall continue shall constitute a separate offense.
(Ord. 2212 § 1 (part), 1981: Ord. 2172 § 1 (part), 1981: prior code § 1-1-7 (part))

CHAPTER 1.28 BOOKSTORE AND ADULT EMPORIUM APPLICATIONS

1.28.010 Approval or denial time limitation.

Notwithstanding any other provision of this Code, whenever a person submits to the City an application of any kind that is necessary in order to operate an adult emporium or a bookstore, as defined in Section 6.06A.010, the City shall approve or deny the application within thirty days after it has been filed and the applicable fees have been paid. If the City fails to do so, the application shall be deemed approved.
(Ord. No. 6593, § 3, 8-16-17; Ord. 5201 § 2, 2000)

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***Cross references—**For provisions on the Solicitations Review Board, see Ch. 6.22 of this Code; for provisions on the Child Care Licensing Board, see Ch. 6.24; for provisions on the Animal Advisory Committee, see Ch. 7.16.

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CHAPTER 2.02 CITY COUNCIL*

2.02.010 Election from Wards 1, 3 and 5.

At the general municipal election in 1999, and at each successive interval of four years, there shall be elected one councilman from Ward 1, one councilman from Ward 3, and, beginning with the general municipal election in 2003, one councilman from Ward 5, each for a term of four years.
(Ord. 5137 § 1, 1999: Edited during 1982 codification: Ord. 2154 § 1 (part), 1981: Ord. 1870 § 1 (part), 1977: Ord. 1761 § 2 (part), 1975: prior code § 1-5-8 (B)(1))

2.02.020 Election from Wards 2, 4 and 6.

At the general municipal election in 2001, and at each successive interval of four years, there shall be elected one councilman from Ward 2, one councilman from Ward 4, and one councilman from Ward 6, each for a term of four years.
(Ord. 5137 § 2, 1999: Edited during 1982 codification: Ord. 2154 § 1 (part), 1981: Ord. 1870 § 1 (part), 1977: Ord. 1761 § 2 (part), 1975: prior code § 1-5-8 (B)(2))

2.02.030 Attendance at meetings—Duty—Absences.

It is the duty of each and every member of the Council to attend each regular meeting of the Council and also to attend each special meeting thereof upon due notice thereof being given to him; provided, however, that the absence of such member may be excused on account of sickness of himself or of members of his immediate family residing in the City which renders his absence reasonably necessary, if such absence has been excused prior to such meeting by the Council, by the Mayor or by the Mayor Pro Tem, while acting as Mayor and if such absence does not extend beyond sixty days.
(Edited during 1982 codification: Ord. 96 § 1, 1922: prior code § 1-5-1)

2.02.040 Attendance at meetings—Compelled.

(A) In the event of the absence of any member of the Council at any regular or special meeting, except as provided for in Section 2.02.030, the Council or, in the event a quorum of the Council is not present, the Mayor or the Mayor Pro Tem, while acting as Mayor, may by order direct the Sheriff or his designee forthwith to apprehend such absent member and bring him before the Council and to compel his attendance during the entire session of the Council.

(B) It is the duty of the Sheriff or his designee, on receiving the order provided for in this section, forthwith to execute the same and, after bringing such member before the Council to compel his attendance during the entire session of the Council.
(Edited during 1982 codification: Ord. 96 § 2, 1922: prior code § 1-5-2)

***Cross reference—**For provisions on discipline proceedings and removal from office, see Ch. 2.50 of this Code.

2.02.050 Meeting dates and frequency.

The Council shall meet in regular session twice each month, on the first and third Wednesdays in each month, unless one or both of the meetings is cancelled as provided for in Section 2.02.060; provided, however, that at least one regular Council meeting is held during each month.
(Ord. 5153 § 1, 1999: Ord. 4058 § 1, 1997: Ord. 4038 § 1, 1996: edited during 1982 codification: Ord. 1903 § 1, 1977: Ord. 1896 § 1, 1977: Ord. 1833 § 1, 1976: Ord. 1791 § 1, 1975: Ord. 1729 § 2(part), 1974: prior code § 1-5-6)

2.02.060 Cancellation of meetings.

(A) A regular meeting of the City Council shall be cancelled if it falls on a Wednesday which is a legal holiday and shall be held on the first successive day which is not a holiday; provided, however, that the City Council may, at any regular meeting thereof which is held prior to the meeting which is cancelled by virtue of this Subsection, establish a different date for such regular meeting.

(B) A regular meeting of the City Council may be cancelled in advance thereof by the Mayor or by any two members of the City Council if it appears that a quorum of the City Council may not be present at such meeting, and all matters which were scheduled for consideration at that meeting may:

(1) Automatically be placed on the agenda for the next regular meeting of the City Council, and the City Clerk shall give notice of such cancellation and rescheduling by any means reasonably calculated to give notice thereof to all interested parties; or

(2) Be considered at a meeting that has been set by the City Council as a rescheduling of the cancelled meeting, provided that notice of the rescheduling is published in the manner provided for the publication of notices which are required by Article VIII of the City Charter.

(C) If a majority of the members of the City Council fails to appear at any regular or special meeting thereof, the member or members in attendance may recess such meeting to a time certain or cancel the same pursuant to Subsection (B) of this Section. If the meeting is recessed to a time certain, no notice of the new date and time need be given.
(Ord. 5153 § 2, 1999: Ord. 4058 § 2, 1997; Ord. 4038 § 2, 1996: Ord. 3117 § 1, 1984: edited during 1982 codification: Ord. 1729 § 2 (part), 1974: prior code § 1-5-7)

2.02.070 Salary.

The salaries of the members of the City Council shall be as set forth by ordinance.
(Ord. 5947 § 1, 2007: Ord. 3246 § 1, 1986: edited during 1982 codification: Ord. 1884 § 2 (part), 1977: prior code § 1-5-9(B))

2.02.080 Pecuniary interest—Licensing votes.

No member of the Council shall vote for the granting or transfer of any license, gaming or otherwise, required by the City, except renewals of licenses theretofore issued in the same form and subject to the same conditions as previously issued, in which such Council Member or his partners, agents, servants or employees, to the knowledge of the Council Member is, directly or indirectly, pecuniarily interested, nor shall such Council Member receive any remuneration therefrom, either by way of commission or fee for service performed or to be performed, unless the Council Member first makes a full disclosure of the nature and extent of the pecuniary interest to the other members voting thereon.
(Edited during 1982 codification: Ord. 577 § 1, 1953: prior code § 1-5-3 (part))

2.02.090 Pecuniary interest—Land-use votes.

No member of the Council shall vote for the approval of a tentative or final subdivision map, variance, use permit or zone change in which such Council Member, or his partners, agents, servants or employees, to the knowledge of the Council Member, is, directly or indirectly, pecuniarily interested, nor shall such Council Member receive any remuneration or benefit therefrom, either by way of commission or fee for services performed or to be performed, unless the Council Member first makes a full disclosure of the nature and extent of the pecuniary interest to the other members voting thereon.
(Edited during 1982 codification: Ord. 577 § 2, 1953: prior code § 1-5-3 (part))

CHAPTER 2.04 MAYOR*

2.04.010 Powers and duties generally.

The Mayor shall have and exercise all the powers and perform all the duties provided or prescribed by law or ordinance of the City, not in conflict with the provisions of this Code. The Mayor shall have general supervision and oversight over all departments and offices of the City. He shall have charge of and cause to be prepared and published all statements and reports required by law or ordinance or by resolution of the City Council, the City Attorney, Municipal Court and the Police Judge, and all other offices or functions not by law or ordinance distributed or assigned to some other department are distributed and assigned to the Mayor.
(1949 code Ch. 2 § 1: prior code § 1-4-1)

2.04.015 Zoning and licensing requirements—Suspension.

(A) Subject to constitutional and statutory limitations and the provisions of Subsection (B), the Mayor, or in his absence, the City Manager or his designee, is authorized to suspend the zoning and licensing requirements of the Municipal Code to allow a specified use at a specified location on a limited and temporary basis under the following circumstances:

(1) During a disaster emergency declared by Federal, State, or local officials; or

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***Cross references—**For provisions requiring disclosure of pecuniary interest in certain votes, see Ch. 2.02 of this Code; for provisions on discipline proceedings and removal from office, see Ch. 2.50.

(2) In any other emergency situation in order to protect life or property, or the public health, safety or welfare.

(B) The suspension of zoning or licensing requirements under Subsection (A) shall be:

(1) To the minimum extent deemed necessary;

(2) Subject to such time limits and other restrictions as the Mayor, City Manager or designee may impose; and

(3) Subject to ratification by the City Council at the next available meeting of the City Council.

(Ord. 5820 § 1, 2006)

2.04.020 Salary.

The salary of the Mayor shall be as set forth by ordinance.

(Ord. 5947 § 3, 2007; Ord. 3246 § 3, 1986: edited during 1982 codification: Ord. 1884 § 2 (part), 1977: prior code § 1-5-9 (part))

CHAPTER 2.06 CITY MANAGER

2.06.010 Powers and duties.

The City Manager shall:

(A) Have charge of and supervision over all accounts and records of the City, and all officers, boards or departments required to keep or make accounts, records or reports;

(B) Inspect or cause to be inspected all records or accounts required to be kept in any of the offices or departments of the City, and cause proper accounts and records to be kept and proper reports to be made;

(C) Audit or cause to be audited at frequent intervals the accounts of every officer or employee who does or may receive or disburse money;

(D) Have charge of the purchase, care and distribution of all supplies and other articles not otherwise provided by law;

(E) Have charge and supervision over all printing by or for the City, unless otherwise provided by law;

(F) Examine or cause to be examined, and report to the Council upon, all bills, accounts, payrolls and claims before they are acted upon or allowed, unless otherwise provided by law;

(G) Whenever the City has authority so to do, cause to be examined the accounts and records of any person or corporation operating a public service utility in the City, and report to the Council any refusal to permit such examination with such recommendations in relation thereto as he may deem proper.

(Ord. 32 § 17: prior code § 1-8-1)

CHAPTER 2.08 DEPUTY CITY MANAGERS

2.08.010 Office created—Appointments.

There is created the office of Deputy City Manager, which shall be filled by one or more persons appointed by the City Manager, subject to ratification by the City Council.
(Edited during 1982 codification: Ord. 1948 § 2 (part), 1978: prior code § 1-9-1)

2.08.020 Qualifications.

Any person who is appointed to the office of Deputy City Manager shall be chosen on the basis of his executive and administrative qualifications, with special emphasis on his actual experience in, or knowledge of, accepted practices in municipal affairs.
(Edited during 1982 codification: Ord. 1948 § 2 (part), 1978: prior code § 1-9-2)

2.08.030 Duties—Disability of City Manager.

(A) Each Deputy City Manager shall perform such duties as may be prescribed by the City Manager.

(B) If for any reason the City Manager is absent from the City, sick or is otherwise unable to perform the duties of his office, the Deputy City Manager who has been authorized by the City Manager to do so shall act for the City Manager and shall be vested with all of the powers and shall perform all of the duties of the City Manager during such absence, sickness or other disability.
(Edited during 1982 codification: Ord. 1948 § 2 (part), 1978: prior code § 1-9-3)

2.08.040 Bond.

No special bond shall be required of any person filling the position of Deputy City Manager.
(Edited during 1982 codification: Ord. 1948 § 2 (part), 1978: prior code § 1-9-4)

2.08.050 Appoinment of chief officers.

The City Manager may appoint one or more persons to serve as chief officer of particular functions or groups of functions. The provisions of Sections 2.08.010 to 2.08.040, inclusive, shall apply to each such officer to the same extent as if the officer were a Deputy City Manager.
(Ord. No. 6129, § 1, 2-2-11)

CHAPTER 2.09 DEPARTMENTS OF THE CITY

2.09.010 Designated.

Subject to the provisions of Section 2.09.020, the departments of the City shall consist of the following:

Community Development;

Economic and Urban Development;

Finance;

Fire and Rescue;

Human Resources;

Innovation and Technology;

Neighborhood Services;

Parks, Recreation and Cultural Affairs;

Public Safety;

Public Works; and

Youth Development and Social Initiatives.

(Ord. No. 6816, § 1, 8-17-22; Ord. No. 6518, § 1, 4-6-16; Ord. No. 6489, § 1, 12-16-15; Ord. No. 6129, § 2, 2-2-11; Ord. 5247 § 1, 2000: Ord. 5154 § 1, 1999: Ord. 5135 § 1, 1999: Ord. 5104 § 1, 1998: Ord. 5070 § 1, 1998: Ord. 4059 § 1, 1997: Ord. 4046 § 1, 1996: Ord. 3969 § 1, 1996: Ord. 3937 § 1, 1995: Ord. 3901 § 1, 1995: Ord. 3398 § 1, 1988: Ord. 3387 § 1, 1988: Ord. 3182 § 1, 1985: Ord. 3132 § 1 (part), 1984)

2.09.015 Reserved.

Editor's note—Ord. No. 6816, § 2, adopted August 17, 2022, repealed § 2.09.015, which pertained to references to certain departments and derived from Ord. No. 6129, adopted February 2, 2011.

2.09.020 Authority of City Manager.

From time to time the City Manager may:

(A) Establish and adjust divisions, offices or other units within the various departments of the City, as well as offices and other units that are independent of those departments.

(B) Establish new departments, combine existing departments, or make other adjustments to the departments listed in Section 2.09.010. Any such action by the City Manager shall be effective immediately or when directed by the City Manager. Section 2.09.010 shall be adjusted periodically as deemed necessary in order to reflect action taken pursuant to this Subsection (B).

(Ord. No. 6816, § 3, 8-17-22; Ord. No. 6129, § 4, 2-2-11; Ord. 5247 § 3, 2000)

2.09.030 City Charter functions and offices.

Functions or offices that are created by the City Charter and that do not appear in the list of departments set forth in Section 2.09.010 may be treated as departments of the City for administrative and budgetary purposes, or otherwise for the sake of convenience.

(Ord. No. 6129, § 5, 2-2-11)

CHAPTER 2.10 CITY ATTORNEY

2.10.010 Duties.

(A) The City Attorney shall be legal adviser of the City Council, and all offices of the City, in all matters respecting the affairs of the City.

(B) He shall act as Attorney for the City in any and all legal proceedings in any and all courts in which the City is a party or is interested.

(C) He shall prosecute in the proper court for all offenses against the provisions of the Charter and the provisions of this Code and shall perform such other and further duties as may be required of him by the City Council or prescribed by this Code.

(D) He shall be present at all meetings of the City Council and shall draw all ordinances, orders and resolutions required by the City Council.

(E) He shall verify and file for record all claims of the City for assessments imposed for street improvements which remain unpaid, and shall preserve, protect and enforce the rights of the City by prosecuting suits for the foreclosure of the same in the proper courts, shall receive all moneys paid in by delinquents or otherwise realized in such proceedings, and shall, without delay, pay over all such moneys to the City Treasurer.
(Edited during 1982 codification: Ord. 32 § 22: prior code § 1-10-1)

2.10.020 Scrutiny of accounts and claims—Representation of claimants.

The City Attorney shall oppose all accounts or claims which may be brought against the City as he may deem unjust, illegal or extortionate. The City Attorney, except for his own services, shall not be allowed to present any claim, account or demand for allowance, or in any way represent any claimant against the City.
(Edited during 1982 codification: Ord. 32 § 16: prior code § 1-10-2)

2.10.030 Salary.

The City Attorney shall receive such salary as shall from time to time be established by the City Council for the position.
(Edited during 1982 codification: Ord. 1782 § 1, 1975: prior code § 1-10-5)

2.10.040 Investigator law enforcement powers.

The investigators of the City Attorney shall have all of the authority vested in peace officers in the State and the authority to enforce the laws of the City and those laws of the State, the violations of which are misdemeanors when they are committed within the City, and shall have the power to arrest any person who commits a violation thereof.
(Edited during 1982 codification: Ord. 1662 § 1, 1973: prior code § 1-10-4)

CHAPTER 2.12 CITY CLERK

2.12.010 Office established—Compensation.

There shall be a City Clerk who shall be appointed by the Mayor and City Council, and shall receive such compensation as may be fixed by the Council.
(Ord. 552 § 1, 1953: prior code § 1-11-1)

2.12.020 Duties.

(A) The City Clerk shall keep his office at the place of meeting of the City Council, or some place convenient thereto, as the Council may direct.

(B) He shall keep the corporate seal and all papers and records of the City and keep a record of the proceedings of the Council, whose meetings it shall be his duty to attend.

(C) He shall countersign all contracts made in behalf of the City and every such contract or contracts to which the City is a party shall be void unless signed by him.

(D) He shall countersign all orders upon the treasurer in pursuance of any order or resolution of the City Council.

(E) He shall be allowed such deputies, assistants or clerks as the City Council may prescribe.

(F) In addition to the duties prescribed herein, he shall perform all other duties required by the provisions of the Charter of the City of Las Vegas or any ordinance promulgated thereunder, and such other duties not inconsistent therewith as may be prescribed by the Council.
(Ord. 552 § 2, 1953: prior code § 1-11-2)

2.12.030 Bond.

The City Clerk shall, before entering upon the discharge of his duties, execute to the City a good and sufficient bond for the faithful performance of his duties, which bond shall be in such sum and conditioned in such manner, as required by the City Council, and the sureties thereon shall be approved by the Council.
(Ord. 552 § 3, 1953: prior code § 1-11-3)

CHAPTER 2.14 DIRECTOR OF PUBLIC WORKS

2.14.010 Powers and duties.

The Director of Public Works shall exercise such powers and perform such duties as may from time to time be specified by the City Council or the City Manager. The Director of Public Works shall function as the Director of Public Services for purposes of the City Charter.
(Ord. No. 6129, § 6, 2-2-11; Ord. 3182 § 8, 1985)

2.14.020 Appointment—Compensation.

The Director of Public Works shall be appointed by the City Manager and shall take and hold office at the pleasure of the City Manager, subject to ratification and approval of the City Council.
(Ord. 3182 § 9, 1985)

2.14.030 Reserved.

Editor's note—Ord. No. 6129, § 7, adopted February 2, 2011, repealed § 2.14.030, which pertained to deputies, assistants and clerks and derived from Ord. No. 3182, 1985.

2.14.040 Reserved.

Editor's note—Ord. No. 6129, § 7, adopted February 2, 2011, repealed § 2.14.040, which pertained to the Public Services Director and derived from Ord. No. 3182, 1985.

CHAPTER 2.16 RESERVED*

*__Editor's note—__Ord. No. 6245, § 1, adopted April 3, 2013, repealed the former Chapter 2.16, §§ 2.16.010—2.16.060, which pertained to the senior citizens' center director and derived from prior code §§ 1-24-1—1-24-6; Ord. No. 1808, 1976 and Ord. No. 3132, 1984.

CHAPTER 2.18 DEPARTMENT OF FINANCE

2.18.010 Department of Finance established as City's Department of Financial Management for Charter purposes.

Article III of the Charter of the City of Las Vegas requires the City Council to establish a Department of Financial Management, to be headed by a Director of Financial Management. For purposes of the Charter, the City Council hereby:

(A) Establishes the Department of Finance as the City's Department of Financial Management; and

(B) Designates the Director of Finance as the Director of that Department.

(Ord. No. 6129, § 8, 2-2-11; Ord. No. 6072, § 1, 12-16-09; Ord. 3132 § 3, 1984: Ord. 663 § 1, 1955: prior code § 3-4-1)

2.18.020 Reserved.

Editor's note—Ord. No. 6072, § 2, adopted December 16, 2009, repealed § 2.18.020, which pertained to the Director of Financial Management duties generally and derived from prior code § 3-4-2; Ord. No. 663, 1955 and Ord. No. 3132, 1984.

2.18.030 Reserved.

Editor's note—Ord. No. 6072, § 2, adopted December 16, 2009, repealed § 2.18.030, which pertained to the departmental divisions and supervisors and derived from prior code § 3-4-3; Ord. No. 663, 1955 and Ord. No. 3132, 1984.

CHAPTER 2.20 DEPARTMENT OF FIRE AND RESCUE

2.20.010 Officers generally.

There shall be a Chief of the Department of Fire and Rescue, a Deputy Chief and such other officers as may be provided for from time to time.

(Ord. 5154 § 4 (part), 1999; Ord 2193 § 1 (part), 1981: Ord. 1540 § 1, 1971: Ord. 1503 § 1, 1971: prior code § 3-1-2)

2.20.020 Powers and duties of Chief.

(A) The Chief, or in his absence or inability to act, the Deputy Chief, shall have command at all fires, drills, parades, over all officers, members and employees of the Department of Fire and Rescue, and all apparatus and appurtenances of the same.

(B) It shall be his duty, and he is authorized and empowered, to take any steps, and to perform any act which, in his judgment, is necessary for the preservation of life and property.

(C) He is hereby vested with the power and authority to suspend any subordinate officer or any employee of the Department who, during the progress of any fire, refuses or neglects to perform the duties assigned to him.

(D) He shall, subject to the orders of the City Manager, have full control and general supervision of all fire apparatus at all times, inspect all hydrants and order all drills of the Firemen at such times as he may see proper.

(E) He must inquire into the cause of every fire occurring in the City and keep a record of the same and make a report thereof once in three months, or more often if required, to the City Manager.

(F) He shall enforce all fire ordinances, examine all buildings in the progress of erection, report violations of ordinances relating to the prevention and extinguishment of fires, institute prosecution for the enforcement of ordinances when necessary and perform such other duties as may, by proper authority, be imposed on him.
(Ord. 5154 § 4 (part), 1999; Ord. 2193 § 1 (part), 1981: prior code § 3-1-3)

2.20.030 Salaries and compensations.

The City Council shall fix and determine the salaries and compensations to be paid to the officers, assistants and all other employees and members of the Department of Fire and Rescue.
(Ord. 5154 § 4 (part), 1999; Ord. 2193 § 1 (part), 1981: Ord. 30 (part), prior code § 3-1-1)

2.20.040 Certain investigators designated as peace officers.

The Chief of the Department of Fire and Rescue may appoint qualified members of his Department to investigate suspected crimes of arson and other violations of law relating to fire and environmental safety. Investigators so designated shall be peace officers.
(Ord. 5304 § 2, 2001)

2.20.050 Ambulance transportation service.

(A) To the extent that the Department of Fire and Rescue is authorized by the City Council to provide ambulance transportation service, the Department:

(1) Shall provide service at the level of "ALS service," as defined in LVMC 6.08.020(A).

(2) Is authorized to bill patients at rates which have been established by resolution of the City Council and which are on file in the office of the City Clerk.

(B) Nothing in Paragraph (1) of Subsection (A) of this Section shall be construed to create any duty of care or obligation toward, or any cause of action or remedy in favor of, any particular patient or class of patients.
(Ord. 5154 § 3, 1999)

2.20.060 Specialized units—Agreements for services—Fees.

The Department of Fire and Rescue is authorized to enter into agreements with owners or operators of public or private sports, recreation, entertainment, convention or other assembly facilities by which the Department's public safety bomb squad or other specialized units will provide, on a standby or nonemergency basis, inspection, security and related

services for specified events or types of events. In connection with providing such services, the Department is authorized to charge such fees as may be set forth by resolution of the City Council.
(Ord. No. 6812, § 1, 5-18-22)

CHAPTER 2.22 HEARING EXAMINER

2.22.010 Function.

The City Council may appoint a Hearing Examiner to act on behalf of the Council in conducting any appeals to the Council as may be provided by ordinance and in conducting any disciplinary proceedings as provided in Title 6 of this Code.
(Ord. 3168 § 1, 1985: Ord. 2198 § 2 (part), 1981: prior code § 5-43-1)

2.22.020 Qualifications.

(A) The Examiner shall be appointed with regard to qualifications to conduct administrative or quasi-judicial hearings and shall be an attorney duly licensed to practice law in the State or any other state.

(B) The Examiner shall hold no other appointed or elected office or position with the City.
(Ord. 2198 § 2 (part), 1981: prior code § 5-43-2)

2.22.030 Conflicting financial interests.

(A) The Examiner shall not conduct or participate in any hearing or decision in which he or any of the following persons has a direct or substantial financial interest: the examiner's spouse, brother, sister, child, parent, in-laws, partner or business associate.

(B) The Examiner shall not participate in any hearing concerning any business with which such Examiner has served within the past two years, or concerning any business with which such Examiner is negotiating or has an arrangement or understanding concerning possible partnership or employment. Any actual or potential interest shall be disclosed prior to such hearing.
(Ord. 2198 § 2 (part), 1981: prior code § 543-3(A))

2.22.040 Interference.

No member of the Council, City official, or any other person shall interfere with or attempt to interfere with the Examiner in the performance of his duties.
(Ord. 3168 § 2, 1985: Ord. 2198 § 2 (part), 1981: prior code § 5-43-3(B))

2.22.050 Hearing procedure—Subpoena power.

(A) When conducting hearings the Examiner shall follow the procedure of Chapter 6.88 and technical rules of evidence shall not apply.

(B) The Examiner shall have the power to issue subpoenas ordering the attendance of witnesses and the production of documents relating to any matter to be considered at the hearing.
(Ord. 3168 § 3, 1985: Ord. 2198 § 2 (part), 1981: prior code § 5-434(A))

2.22.060 Decisions or recommendations.

(A) When the Examiner renders a decision, such decision shall serve as a recommendation to the Council, which is responsible for rendering a binding decision.

(B) The Examiner's recommendation shall be in writing and consist of findings of fact from the record and conclusions of law.

(C) Such recommendation, along with a transcript of the hearing, shall be transmitted to the Council within fifteen days of the conclusion of the hearing, unless the Examiner requests a fifteen-day extension from the Council in writing, which shall be granted as a matter of right.

(D) In addition, a copy of such recommendation shall be transmitted by personal service or by registered mail to all of the parties of record in the proceeding.
(Ord. 3168 § 4 (part), 1985: Ord. 2198 § 2 (part), 1981: prior code § 543-4(B))

2.22.070 Advocacy of positions to commissioners.

Within five days after a copy of the Examiner's recommended decision has been served on the parties of record in the proceeding, such parties may submit briefs or memoranda in support of their positions to the City Council but no hearing shall be held and no evidence or testimony shall be taken by the Council.
(Ord. 3168 § 4 (part), 1985: Ord. 2198 § 2 (part), 1981: prior code § 543-5 (A))

2.22.080 Council action on recommendation—Remand.

(A) The City Council shall accept, modify, or reject any findings of fact or conclusions of law, or remand the decision back to the Examiner requesting him either to take additional evidence on certain matters, or to give further consideration to his recommendation without hearing additional evidence.

(B) Upon completion of his responsibilities on remand, the Examiner shall transmit his recommendation, with revisions, if any, and the supplementary record, if any, back to the Council for its decision.

(C) Any decision of the Council shall be based on the record of the hearing conducted by the Examiner and of any supplementary hearing conducted on remand.

(D) The Council's decision shall be in writing and shall specify findings of fact and conclusions of law. Each material finding shall be supported by substantial evidence in the record.
(Ord. 3168 § 5, 1985: Ord. 2198 § 2 (part), 1981: prior code § 543-5(B))

2.22.090 Compensation.

(A) The Hearing Examiner shall be entitled to compensation from the City for services rendered on any given appeal at the rate of thirty-five dollars per hour with a maximum chargeable time of ten hours per appeal.

(B) In the event that the Hearing Examiner serves more than ten hours on any given appeal, he may submit to the Council a written statement requesting additional compensation and setting forth the reasons therefor. The Council may authorize such additional compensation at the rate of thirty-five dollars per hour if they are satisfied that the additional hours of service were justified and necessary.
(Ord. 3168 § 6, 1985: Ord. 2198 § 2 (part), 1981: prior code § 5-43-6)

2.22.100 Appeals under LVMC Chapter 3.28.

The City Manager or City Attorney may appoint one or more hearing officers to conduct hearings and render decisions concerning appeals under Chapter 3.28 of this Code. Any hearing officer so appointed shall receive such compensation as is considered appropriate by the appointing authority, and shall serve at the pleasure of the appointing authority.
(Ord. No. 6401, § 7, 2-18-15)

CHAPTER 2.24 METROPOLITAN POLICE DEPARTMENT

2.24.010 Findings and intent.

The City Council hereby declares as a matter of legislative determination and findings that:

(A) The Police Department of the City was, by operation of Chapter 568, Statutes of Nevada 1973, merged with the Clark County Sheriff's office on July 1, 1973, to form the Las Vegas Metropolitan Police Department;

(B) During the intervening years, certain deficiencies and inequities developed in the law pursuant to which the Las Vegas Metropolitan Police Department was organized which impaired the operation of that Department and necessitated a comprehensive revision of such law by the sixty-first session of the Nevada Legislature;

(C) Said revision, more particularly identified as Chapter 347, Statutes of Nevada 1981, went into effect on July 1, 1981, and provided, among other things, that the provisions thereof were to govern the operations of existing metropolitan police departments only until September 1, 1981;

(D) The effect of such provision will result in the automatic dissolution of the Las Vegas Metropolitan Police Department, effective September 1, 1981, unless prior to that date, the Board of Commissioners of the County and the City Council each formally adopts an ordinance providing for the merger of their respective law enforcement agencies into one metropolitan police department;

(E) The City Council finds that, upon the reestablishment of the Las Vegas Metropolitan Police Department in accordance with the provisions of Chapter 347, Statutes of Nevada 1981, the continuation of said Department will be in the best interests of the City and of its taxpayers, residents and visitors;

(F) Said Board therefore desires, by the enactment of this Chapter, to approve, ratify and confirm the formation by operation of law of the Las Vegas Metropolitan Police

Department under the provisions of Chapter 568, Statutes of Nevada 1973, formally to merge the Police Department of the City of Las Vegas with the Clark County Sheriff's Office to form the Las Vegas Metropolitan Police Department in accordance with the provisions of Chapter 347, Statutes of Nevada 1981, and to provide for the reestablishment and continued operation of the Las Vegas Metropolitan Police Department under the provisions of said Chapter 347.

(Ord. 2176 § 2 (part), 1981: prior code Ch. 3-4(A) (part))

2.24.020 Organization confirmed.

The formation by operation of law of the Las Vegas Metropolitan Police Department on July 1, 1973, through the merger of the Police Department of the City with the Clark County Sheriff's Office is hereby, in all respects, approved, ratified and confirmed.

(Ord. 2176 § 2 (part), 1981: prior code Ch. 3-4(A) (part))

2.24.030 Merger of City-County police forces.

The Police Department of the City is hereby formally merged with the Clark County Sheriff's Office into one metropolitan police department to be known as the Las Vegas Metropolitan Police Department, all as more specifically provided in Chapter 347, Statutes of Nevada 1981.

(Ord. 2176 § 2 (part), 1981: prior code Ch. 3-4(A) (part))

2.24.040 Department reestablished—Statutory operation.

The Las Vegas Metropolitan Police Department is reestablished and shall hereafter operate in accordance with Chapter 347, Statutes of Nevada 1981.

(Ord. 2176 § 2 (part), 1981: prior code Ch. 3-4(A) (part))

2.24.050 Fire and accident provision enforcement.

It is the duty, strictly enjoined upon each and every member of the Las Vegas Metropolitan Police Department to enforce, or cause to be enforced, every provision of this Code looking to the protection against and preventing of fire and accident, and to cause to be prosecuted in the proper courts each and every violation thereof.

(Ord. 2193 § 1 (part), 1981: Ord. 1503 § 2, 1971: prior code § 3-1-4)

CHAPTER 2.26 MUNICIPAL COURT

2.26.010 Departments designated—Location.

(A) There shall be a Municipal Court of the City consisting of six departments. The departments shall be numbered 1 through 6, and a duly elected and qualified Judge shall preside over each department.

(B) The Municipal Court shall be held in the facilities designated by the Court Administrator.

(C) The Municipal Court shall be a court of record effective December 1, 1995.
(Ord. 5956 § 1, 2007: Ord. 3900 § 1, 1995: Ord. 3559 § 1, 1991: Ord. 3416 § 1, 1989: Ord. 2129 § 2 (part), 1980: prior code § 1-25-1(A))

2.26.020 Terms of Judges.

The term of office of Municipal Court Judges shall be for six years, except as otherwise provided by the City Council pursuant to Section 4.010 of the City Charter.
(Ord. 5956 § 2, 2007: Ord. 3559 § 2, 1991: Ord. 3416 § 2, 1989: Ord. 2129 § 2 (part), 1980: prior code § 1-25-1(B))

2.26.030 Salaries of Judges.

(A) Except as is otherwise provided in Section 2.26.035, the salary of each Municipal Court Judge shall be one hundred twenty-eight thousand ninety-eight dollars per year, to take effect July 1, 2004.

(B) The Municipal Judge who holds seniority in years of service in office, either elected or appointed, is the Chief Judge.
(Ord. 5710 § 1, 2004: Ord. 5489 § 1, 2002: Ord. 5156 § 1, 1999: Ord. 3945 § 1, 1995: Ord. 3559 § 3, 1991: Ord. 3524 § 1, 1990: Ord. 3416 § 3, 1989: Ord. 3279 § 1, 1987: Ord. 3160 § 1, 1985: Ord. 2129 § 2 (part), 1980: prior code § 1-25-2)

2.26.035 Salary increases for Judges.

The salaries of the Municipal Court Judges that are provided for in Section 2.26.030 shall automatically be increased:

(A) On the first day of July, 2005, in the same proportion that the index figure of the National Consumer Price Index for All Urban Consumers for All Items, U.S. City Average (1967 = 100) that is published by the Bureau of Labor Statistics, United States Department of Labor, for March of 2005 has increased above the index figure for March of 2004; and

(B) On the first day of July in each year thereafter in the same proportion that the index figure for March of that year has increased above the index figure for March of the previous year.
(Ord. 5710 § 2, 2004: Ord. 5489 § 2, 2002: Ord. 5156 § 2, 1999: Ord. 3945 § 2, 1995: Ord. 3416 § 4, 1989: Ord. 3279 § 2, 1987)

2.26.040 Alternate Judges.

(A) Alternate Municipal Judges in sufficient numbers shall be appointed yearly by the Mayor.

(B) An Alternate Judge shall possess the same qualifications required of the elected Municipal Court Judges and shall receive as compensation the sum of one hundred dollars for each session of the Court at which he or she presides. For purposes of this Subsection (B), a session of the Court includes a morning session, an afternoon session, or any other session as established and defined by judicial order.
(Ord. No. 6445, § 1, 8-19-15; Ord. 5356 § 1, 2000: Ord. 3314 § 1, 1987: Ord. 2129 § 2 (part), 1980: prior code § 1-25-3)

2.26.045 Senior Municipal Court Judges.

(A) Senior Municipal Court Judges may serve as judges in the Municipal Court. In order to qualify for service as a Senior Municipal Court Judge, a judge must have demonstrated proficiency by qualifying as a Senior Municipal Judge under Nevada Supreme Court Rule 12, which requires service for at least four consecutive years as a municipal judge and approval to serve as a Senior Municipal Court Judge by the Nevada Administrative Office of the Courts. Each such judge shall have the same powers and responsibilities as a Municipal Court Judge and may serve or be utilized in any manner consistent with Supreme Court Rule 12. Without limiting the generality of the preceding sentence, one or more Senior Municipal Court Judges may:

(1) Serve in the same manner as an Alternate Judge described in LVMC 2.26.040 when a sitting judge is sick, on vacation, or absent for any other reason and the sitting judge has requested that a Senior Municipal Court Judge serve in the sitting judge's absence.

(2) Be appointed to fill a Municipal Court Judge position that has become vacant, with the appointment to be in accordance with Section 1.160 of the City Charter.

(3) Serve as a Hearing Commissioner pursuant to Section 4.040 of the City Charter.

(4) Be appointed to perform judicial functions and duties in a time of temporary necessity as an alternative to adding a new judicial department. Any such appointment may be full time or part time and may extend for a period of up to two years, or as further extended based on necessity.

(B) Senior Municipal Court Judges serving under this Section shall receive compensation in accordance with Supreme Court Rule 12(8).

(C) The Municipal Court may adopt such rules or enter such orders as deemed necessary or appropriate in order to implement this Section.
(Ord. No. 6789, § 1, 7-21-21)

2.26.050 Marshals.

(A) There shall be allotted for each of the six departments of the Las Vegas Municipal Court, a Court Marshal to assist in the operation of the Municipal Court.

(B) The Marshals shall be hired pursuant to the Rules and Regulations of the Civil Service Board and the Department of Personnel and Employee Relations of the City; provided, however, that the Marshals shall be under the direct supervision of the respective Municipal Court Judge of the Department to which they are assigned.
(Ord. 3559 § 4, 1991: Ord. 3416 § 5, 1989: Ord. 2129 § 2 (part), 1980: prior code § 1-25-4)

CHAPTER 2.28 CITY MARSHAL AND CITY RESERVE MARSHAL PROGRAM

2.28.010 Definitions.

As used in this Chapter:

(A) "City Reserve Marshal" means any person volunteering his time to the City who has successfully completed the City Reserve Marshal program.

(B) "City Reserve Marshal Program" means a training and testing program established by the City Marshal in order to select from persons volunteering their time to the City those persons who are qualified to perform as Deputy City Marshals during those times and places as directed by the City Marshal.
(Ord. 3640 § 3, 1992)

2.28.020 City marshal—Office created.

There is created in the Department of Public Safety the Office of City Marshal.
(Ord. No. 6518, § 2, 4-6-16; Ord. 3640 § 4, 1992)

2.28.030 City marshal—Director of Public Safety Department designated.

The Director of the Department of Public Safety shall serve, ex officio, as City Marshal unless relieved of such responsibility by action of the City Manager appointing another person to the Office of City Marshal, subject to the ratification of the City Council.
(Ord. No. 6518, § 3, 4-6-16; Ord. 3640 § 5, 1992)

2.28.040 City marshal—Deputies and assistants.

The City Marshal may be allowed such deputies, assistants and clerks as in the judgment of the City Manager may be necessary.
(Ord. 3640 § 6, 1992)

2.28.050 City marshal—Compensation.

Persons appointed to the Office of City Marshal shall receive such compensation as is fixed by the City Council.
(Ord. 3640 § 7, 1992)

2.28.060 Deputies—Power and authority.

The Deputy City Marshals shall have the same power and authority as the City Marshal. (Ord. 3640 § 8, 1992)

2.28.070 City reserve marshal program.

(A) The City Marshal may establish a City Reserve Marshal Program, for those persons volunteering their services to the City.

(B) The City Marshal may assign volunteers qualifying under the City Reserve Marshal Program to perform actual duties of a City Marshal.

(C) Persons qualifying under the City Reserve Marshal Program shall be referred to as City Reserve Marshals.
(Ord. 3640 § 9, 1992)

2.28.080 City marshal—Scope of jurisdiction.

The authority and jurisdiction of the City Marshal is limited to:

(A) The issuance of citations in accordance with the provisions of NRS 171.17751;

(B) The enforcement of State laws and City and County ordinances on real property owned, leased or otherwise under the control of the City of Las Vegas, including without limitation the Pedestrian Mall established pursuant to LVMC Chapter 11.68;

(C) The service of warrants of arrest issued pursuant to NRS 5.060;

(D) The removal of abandoned vehicles as authorized by NRS 487.230; and

(E) The duties set forth in NRS 171.1223.
(Ord. No. 6463, § 1, 9-16-15; Ord. 4075 § 1, 1997)

2.28.090 Deputy or reserve marshals—Qualifications.

The minimum qualifications of an applicant for the position of Deputy City Marshal or City Reserve Marshal shall be that:

(A) He is at least twenty-one years of age;

(B) He is a citizen of the United States;

(C) He has not been convicted in any jurisdiction of a felony, a crime involving moral turpitude, or a crime involving the unlawful use of or possession of a firearm;

(D) He does not suffer from alcoholism or addiction or narcotic drugs;

(E) He does not suffer from any other disability that would prevent him from performing services as a Marshal, or would bring discredit to the City; and

(F) He is of sound mind and good moral character.

(Ord. 3640 § 11, 1992)

2.28.100 Investigation of applicants.

(A) The Department of Public Safety shall investigate each applicant for Deputy City Marshal and City Reserve Marshal to determine whether or not the facts set forth in the application are true, and report its findings to the City Manager's Office and the City Marshal's Office.

(B) Applicants who make misrepresentations or omissions of relevant information on their applications shall be automatically disqualified for consideration as a Deputy City Marshal or a City Reserve Marshal.

(Ord. No. 6518, § 4, 4-6-16; Ord. 3640 § 12, 1992)

2.28.110 Training.

The City Marshal, Deputy City Marshals, and City Reserve Marshals shall successfully complete a training program approved by the Peace Officers' Standards and Training committee pursuant to the provisions of NRS 481.053 and 481.054.

(Ord. 3640 § 13, 1992)

2.28.120 Uniforms, equipment and identification.

(A) The Deputy City Marshals shall be assigned appropriate standardized uniforms, equipment and identification.

(B) Deputy City Marshals shall wear their assigned uniforms and equipment only during hours of assigned duty.

(C) The City Marshal and Deputy City Marshals shall have with them at all times during their assigned duty hours their identification as a Marshal and shall show said identification upon request.

(D) Reserve City Marshals, when actually performing the duties of a City Marshal, shall be issued the uniform, equipment, and identification referenced in Subsection (A) of this Section and shall comply with the provisions of Subsections (B) and (C) of this Section.

(Ord. 3640 § 14, 1992)

CHAPTER 2.30 OFFICE OF EMERGENCY OPERATIONS

2.30.010 Purpose.

The purpose of this Chapter is to:

(A) Provide for the safety and welfare of the people and the protection of their property within the City in a disaster situation through organized emergency operations; and

(B) Provide for the coordination of such operation with appropriate public authorities, private persons, business associations and organizations and City agencies having the resources for providing disaster assistance.

(Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meaning ascribed:

(A) "Disaster" means a flood, fire of extraordinary proportion, earthquake, storm, epidemic, water supply emergency, actual or threatened riot, serious domestic violence, insurrection, general war or other major calamity.

(B) "Emergency operations" means planning, preparation for, and carrying out of all emergency functions necessary to prevent, minimize and recover from the effects of a disaster.

(Ord. 3950 § 1, 1996: Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.030 Proclamation of disaster emergency.

(A) The Mayor, pursuant to the powers granted in Title III, Section 3.010 of the Charter for the City of Las Vegas, shall have the authority to declare a state of disaster emergency by proclamation. Upon the absence or the unavailability of the Mayor, the Mayor Pro Tem shall have the powers and authority granted to the Mayor in this Chapter, and upon the absence or unavailability of the Mayor and the Mayor Pro Tem, the powers are delegated to any two of the remaining members of the City Council. Upon the absence or unavailability of two Council members, the powers are delegated to the City Manager and upon the absence or unavailability of the City Manager, the powers are delegated to the Director of Fire and Rescue.

(B) The Mayor is authorized and empowered to include in the proclamation any restrictions related to emergency management or for the protection and preservation of life and property that are authorized by the City Charter or State law, and to limit any or all of those restrictions to any area specifically designated or described within the corporate limits of the City for specific hours of the day or night.

(C) The Mayor shall proclaim the end of such state of disaster emergency or all or any part of the restrictions imposed as soon as circumstances warrant or when directed to do so by the City Council.

(D) Upon the declaration of a state of disaster emergency, the City Manager shall post a written notice of such declaration upon the special outside City Hall bulletin board, and shall notify by fax, e-mail or telephone no fewer than two newspapers of general circulation within the City, at least three television stations and at least three radio stations broadcasting in Clark County. When practicable, the City Manager shall also cause the written notice to be published in its entirety, at least four days each week in a newspaper of general circulation in the City until the state of emergency is declared to be terminated.

(E) Any proclamation made pursuant to this Section must be ratified by the City Council at the next available regular or special meeting of the City Council. Notwithstanding any provision of this Section, no proclamation made hereunder shall be deemed invalid or be deemed to expire by the City Council's failure to convene or to take action concerning the proclamation.
(Ord. 5686 § 1, 2004: Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.040 Office of Emergency Management Operations—Created.

(A) The Office of Emergency Operations is hereby created.

(B) The City Manager shall have overall responsibility for the Office of Emergency Operations. The City Manager may designate a Deputy City Manager to act in the City Manger's stead during the absence or unavailability of the City Manager. The City Manager may also appoint an Emergency Management Officer to be responsible for the day-to-day operation of the Office of Emergency Operations.
(Ord. 5686 § 2, 2004: Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.050 Coordinator—Authority.

As may be authorized by the City Manager, the Emergency Management Officer is authorized and directed to:

(A) Prepare, maintain and implement an emergency operations plan for the City, in support of and in accordance with Federal, State and County emergency plans and guidance;

(B) Designate, prepare and implement standard operating procedures for an Emergency Operation Center from which centralized direction and control of the emergency operations may be exercised;

(C) Establish an Emergency Operations Organization, utilizing City, public and private resources for this purpose;

(D) Monitor and supervise the Emergency Operations Organization at drills, and train and prepare the organization to effect the purpose of this Chapter;

(E) Represent the Emergency Operations Organization of the City in all dealings with public or private agencies pertaining to emergency operations, except that the Sheriff of the Las Vegas Metropolitan Police Department will provide such representation in all matters dealing with riot, serious domestic violence, insurrection, or other civil disobedience as provided by provision of the Nevada Revised Statutes; and

(F) Recommend to the City Council mutual aid agreements with adjoining jurisdictions determined essential to any part of emergency operations.
(Ord. 5686 § 3, 2004: Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.060 Reserved.

Editor's note—Ord. No. 6172, § 10, adopted December 7, 2011, repealed § 2.30.060, which pertained to management committee created—membership and derived from Ord. No. 3193, 1985; Ord. No. 3709, 1993 and Ord. No. 5686, 2004.

2.30.070 NRS Sections 414.110 and 414.120 adopted.

NRS Sections 414.110, Immunity and Exemption, and 414.120, Limitation of Private Liability, of NRS Chapter 414, Emergency Management, are adopted and incorporated as they pertain to political subdivisions of the State.
(Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.080 Use and cooperation of City services, equipment, supplies and facilities.

For the purposes of this Chapter, the Mayor and the Emergency Management Officer shall utilize the services, equipment, supplies and facilities of existing departments, officers and agencies of the City to the maximum extent practicable, and the officers and personnel of all such departments are directed to cooperate and extend such services and facilities upon request.
(Ord. No. 6172, § 3, 12-7-11; Ord. 5686 § 5, 2004: Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.090 Prohibited acts during disaster emergencies.

It is unlawful for any person during a disaster emergency:

(A) To obstruct, hinder or delay any member of the Emergency Operations Organization in the enforcement of any lawful rule or regulation imposed upon him by virtue of this Chapter;

(B) To violate any provision of any restriction imposed by any proclamation authorized by this Chapter;

(C) To wear, carry or display, without authority, any means of identification, uniform or clothing of a member of the Emergency Operations Organization or to use any such devices to gain entry into the scene of a disaster emergency or an emergency operations center.

(Ord. 3709 § 1 (part), 1993: Ord. 3198 § 2 (part), 1985)

2.30.100 Violation—Penalty.

The violation of any provision of this Chapter, or of any restriction imposed by proclamation authorized by this Chapter, shall constitute a misdemeanor, punishable by a fine not to exceed one thousand dollars and/or jail not exceeding six months.

(Ord. 3709 § 1 (part), 1993)

CHAPTER 2.32 POLICE RESERVE CORPS

2.32.010 Established—Appointments and status generally.

(A) A Police Reserve Corps (hereinafter "the Corps") is created and established as an organization. The Corps shall be composed of persons who are appointed and sworn in by the Sheriff or his designee.

(B) Members shall be volunteer workers only and shall not be or be deemed to be employees of the City or of the Metropolitan Police Department for any purpose other than for the purposes of Section 2.32.090 and shall serve gratuitously as such.

(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 1, 1971: prior code § 3-6-1)

2.32.020 Qualifications—Training.

(A) The Sheriff shall establish the requirements to be met by persons to qualify to become members of the Corps. Such requirements shall include but need not be limited to physical, mental, aptitude and personality requirements. The Sheriff shall also establish inventory and character standards, and shall provide for the mandatory training of such persons in all fields of police work.

(B) It shall be the duty of the Sheriff to provide such training for such persons and also any further training for members which he may deem to be necessary.

(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 2 (part), 1971: prior code § 3-6-2 (part))

2.32.030 Appointment—Permitted when—Discretion of Sheriff.

Whenever a person has met all the requirements to qualify to become a member, he may be appointed and sworn in as a member by the Sheriff or his designee. All selections and appointments to the Corps shall be within the sole discretion of the Sheriff.

(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 2 (part), 1971: prior code § 3-6-2 (part))

2.32.040 Termination—Resignation.

(A) The Sheriff, with or without cause therefor, may terminate any member at any time and any member may resign as such at any time by written notification thereof to the Sheriff.

(B) Upon the termination or resignation of any member, he shall surrender all property of the City issued to him.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 2 (part), 1971: prior code § 3-6-2 (part))

2.32.050 Number of members.

The Sheriff shall establish the number of members of the Corps and may increase or decrease such number as he deems appropriate.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 2 (part), 1971: prior code § 3-6-2 (part))

2.32.060 Power of Sheriff—Rules and regulations—Assignments.

(A) The Sheriff, subject to the restrictions and limitations contained in this Chapter, shall have complete authority and control over the Corps and its members and may delegate the exercise thereof, in whole or in part, to any of his subordinates.

(B) The Sheriff or his designee may establish rules and regulations governing the Corps and its members, provide for the maintenance of discipline and assign each member to perform police duties with a member of the Metropolitan Police Department (hereinafter a "regular Police Officer") in traffic control, in crowd control or in specialized assignments.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 3, 1971: prior code § 3-6-3)

2.32.070 Minimum service—Compensation.

In order to retain his appointment, each member of the Corps shall serve as such for at least eight hours each calendar month.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 4 (part), 1971: prior code § 3-6-4 (part))

2.32.080 Peace officer status.

Each member, while serving as such, shall have the status of a peace officer and shall have the same power and authority, except to the extent that such authority is restricted or limited by the Sheriff, as does a regular Police Officer while he is serving as such. However, each member, at all times other than while serving as such:

(A) Shall not have the status of a peace officer;

(B) Shall not have any power, authority or duties of a Police Officer or a peace officer; and

(C) Shall not represent, identify or hold himself out to be a Police Officer or a peace officer.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 4 (part), 1971: prior code § 3-6-4 (part))

2.32.090 City employee status.

For purposes of liability insurance and state industrial insurance coverage, and for such purposes only, each member of the Corps shall be an employee of the City only while he is receiving training required to qualify him to become a member of the Corps, while he is serving any assigned shift as a member of the Corps or while he is receiving further police training. (Ord. 2229 § 1 (part), 1981: Ord. 1510 § 7, 1971: prior code § 3-6-7)

2.32.100 Clothing and identification—Issuance.

(A) Each member of the Corps shall, at the expense of the City, be supplied the same clothing items that are supplied to a regular Police Officer, all of which, except the badge and shoulder patch, shall be identical to those issued to a regular Police Officer. The badge and shoulder patch shall have inscribed thereon the words "RESERVE POLICE OFFICER." Each member shall be issued an identification card which shall show his membership in the Corps.

(B) All items issued to a member of the Corps shall remain the property of the City.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 5 (part), 1971: prior code § 3-6-5 (part))

2.32.110 Clothing and identification—Use—Firearm.

(A) Except as otherwise hereinafter provided, each member, while serving as such, shall wear, display or carry, as the case may be, every item issued to him as a member. However, a member shall not carry any firearm unless he has qualified for and received a gun permit signed by the Sheriff.

(B) It is unlawful for any member of the Corps, at any time other than while actually serving as such, to wear, display or carry, as the case may be, any item issued to him unless he does so in such a manner that the item, if it were to be seen by another person, could not be identified by such other person as being one issued to a regular Police Officer or to a member of the Corps.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 5 (part), 1971: prior code § 3-6-5 (part))

2.32.120 Impersonation of member.

It is a misdemeanor, punishable by imprisonment in the City Jail for not to exceed six months or by a fine not to exceed one thousand dollars, or any combination of such imprisonment and fine, for any person who is not a member of the Corps to:

(A) Wear, display or carry, as the case may be, without authorization therefor, any items issued to any member of the Corps; or

(B) Represent, identify or hold himself out, in any manner whatsoever, to be a member of the Corps or to have any connection with the Corps.
(Ord. 2229 § 1 (part), 1981: Ord. 1510 § 6, 1971: prior code § 3-6-6)

CHAPTER 2.34 ARTS COMMISSION

2.34.010 Established—Purpose.

(A) There is created an Arts Commission.

(B) The purpose of the Arts Commission shall be to serve as an advisory body to the City Council with respect to matters pertaining to the arts.
(Ord. 3288 § 3, 1987)

2.34.015 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms defined in this Section have the meanings ascribed to them herein as follows:

"Administrative Cost" means all costs associated with the operations of the Art Commission, including those costs incurred in connection with artistic programs and projects and the selection, acquisition, installation and exhibition of, and publicity about, City-owned works of art.

"Arts Fund" means the fund designated in Subsection (A) of Section 2.34.130.

"Capital Improvements" means any City capital project including, but not limited to, those paid for wholly or in part by the City to construct, remodel, renovate, or repair any building, park, street, sidewalk, parking facility or utility or any portion thereof within the limits of the City boundaries.

"Municipal Arts Fund" means the fund described in Section 2.34.180.

"Municipal Arts Plan" means an annual plan approved by the City Council for works of art and other artistic programs and projects in the City.

"Percent for the Arts" means a program whereby a percentage of the City's annual capital improvements budget is appropriated by the City Council to the Municipal Arts Fund.

Works of Art.

(1) "Works of Art" means:

(a) Two or three dimensional art that may be integrated into the structure of a public works project, building, landscape, other fixture or element, in any material or media or combination thereof;

(b) Two or three dimensional art of any material or media or combination thereof;

(c) Enhancements to public works projects, buildings, landscapes or any standardized fixtures and elements that are designed by an artist or by a design team which includes an artist member; and

(d) New genres including video, electronic and digital art, holography, video and additional technologically based forms as they evolve.

(2) For the purposes of this Section the term "works of art" does not mean:

(a) Commercially mass produced objects of standard designs, except where these elements are integral parts of an original artwork;

(b) Reproductions, by mechanical or other means, of original works of art, except in cases of film, video, photography, printmaking or other media arts;

(c) Directional elements such as supergraphics, signage or color coding, except where these elements are integral parts of an artwork;

(d) Decorative, ornamental or functional elements which are not designed by an artist; and

(e) Landscape architecture and landscape gardening, except where these elements are designed by an artist or are an integral part of an artwork, or are both designed by an artist and an integral part of an artwork.

(Ord. 5654 § 1, 2003)

2.34.020 Composition—Qualifications—Voting restrictions.

(A) The Arts Commission shall consist of twelve voting members to be appointed in the manner provided for in Section 2.34.030 of this Chapter.

(B) No member of the Arts Commission shall hold an elected public office.

(C) The members of the Arts Commission shall consider the total cultural well-being of the City and shall be persons who have diverse interests in, and knowledge about, the various artistic disciplines.

(D) As an individual, a member of the Arts Commission shall not serve as an advocate for a single arts discipline or for a particular arts organization. The Arts Commission as a whole shall serve as an advocacy body for all the arts disciplines.

(E) A member of the Arts Commission who serves as a board member or an officer of an arts organization shall abstain from the discussion with respect to and voting on that organization's applications to the Arts Commission for funding.

(F) The membership of the Arts Commission shall include at least one but not more than three arts professionals and at least one but not more than three practicing artists.

(G) For the purpose of this Section, the term "arts professional" means a person who is employed full-time in the profession of arts administration, and the term "practicing artist" means a person whose major profession is the practice of an artistic discipline.

(Ord. 5392 § 1, 2001: Ord. 3288 § 4, 1987)

2.34.030 Composition—Appointments.

The membership of the Arts Commission shall be as follows:

(A) Three members appointed by the Mayor;

(B) One member appointed by each of the City Councilmen;

(C) Two members appointed by the members who are appointed pursuant to Subsections (A) and (B) of this Section; and

(D) One member representative of City staff, appointed by the City Manager, or a designee, who shall serve ex officio.

(Ord. 6016 § 1, 2008: Ord. 5392 § 2, 2001: Ord. 3288 § 5, 1987)

2.34.050 Term.

Except with respect to the ex officio member:

(A) The term of each member of the Arts Commission shall be four years or until his or her successor is appointed and qualifies.

(B) No member shall be reappointed more than once.

(Ord. 5392 § 4, 2001: Ord. 3571 § 1, 1991: Ord. 3288 § 7, 1987)

2.34.060 Resignation—Tenure—Vacancies—Reappointment.

(A) Any member may discontinue his or her membership by resignation. Members appointed pursuant to Subsections (A) and (B) of Section 2.34.030 serve at the pleasure of the City Council.

(B) If any position becomes vacant, the Mayor, City Councilman or Arts Commission, as the case may be, who appointed the former holder of such position shall appoint a member to serve the balance of the unexpired term.

(Ord. No. 6832, § 3, 3-1-23; Ord. 3571 § 2, 1991: Ord. 3288 § 8, 1987)

2.34.070 Absence from meetings.

Any member who is absent from three consecutive meetings of the Arts Commission without a satisfactory excuse shall be removed from office by the City Council.

(Ord. 3288 § 9, 1987)

2.34.080 Operational rules and procedures.

(A) The Arts Commission shall adopt operational rules and procedures for the conduct of its duties which shall be ratified by the City Council. The rules and procedures shall provide for annual election of officers, the conduct of regular and special meetings, and the appointment of subcommittees.

(B) The affirmative vote of two-thirds of the entire membership of the Arts Commission shall be required to amend such operational rules and procedures, and any such amendment must be ratified by the City Council.

(Ord. 3288 § 10, 1987)

2.34.090 Operational budget.

The Arts Commission shall prepare annually an operational budget which shall be submitted to the City Council for approval. The budget shall provide for the costs necessary for the conduct of the administrative operation of the Arts Commission, including the staffing assistance that is provided in Section 2.34.110 of this Chapter.
(Ord. 3288 § 11, 1987)

2.34.100 Administrative cost sharing—Fiscal agent.

The City shall provide for the administrative costs for the Arts Commission and shall serve as its fiscal agent.
(Ord. 3288 § 12, 1987)

2.34.110 Staffing assistance.

The City shall provide professional arts administrative staff, clerical and staff resource assistance to the Arts Commission.
(Ord. 3288 § 13, 1987)

2.34.120 Powers and duties.

The purpose of the Arts Commission shall be to serve as an advisory body to the City Council as follows:

(A) Make recommendations with respect to the Municipal Arts Plan, with annual updating of such recommendations;

(B) Advise with respect to all matters concerning the arts, including suggested legislation and the allocation of funds in support of the arts;

(C) Propose methods to encourage private initiative in the fields of art;

(D) Develop plans and proposals for submission to the City for the purpose of encouraging the City Council to seek State, Federal and private funds for the support of the arts;

(E) Make recommendations to the City Council with respect to the establishment of and appropriations to the Arts Fund for artistic programs and projects and the granting of funds therefrom;

(F) Encourage the highest possible standards in the development and presentation of artistic programs;

(G) Encourage an awareness of the value of the arts to the quality of life in the City and its residents and visitors;

(H) Serve as liaison between the arts community, the general public and the City Council with respect to matters concerning the arts;

(I) Strengthen, support and collaborate with new and existing cultural organizations, projects and programs;

(J) Consult with, support and advise arts organizations, individuals, local colleges, universities, libraries and the Clark County School District with respect to the coordination and development of the arts in the City and the arts in education;

(K) Review and make recommendations with respect to the acquisition, commission or purchase by the City of works of art to be placed on public property or in public works, with the exception of works of art given to or purchased by museums, and to make recommendations with respect to the removal, relocation, upkeep, conservation and alteration of existing works of art in the possession of the City; and

(L) Engage in such other activities or projects relative to the arts as may be authorized by the City Council.

(Ord. 5654 § 2, 2003: Ord. 3288 § 14, 1987)

2.34.130 Establishment of Arts Fund—Appropriations.

(A) A special account shall be established for the purpose of receiving private, local, State and Federal funds obtained by the City for artistic purposes consistent with the function of the Arts Commission. The fund shall be known as the Arts Fund.

(B) All funds received by the City or the Arts Commission for artistic programs and projects and works of art, and all funds appropriated by the City Council to the Arts Commission shall be deposited in the Arts Fund, with the exception of:

(1) The Arts Commission's operational funds;

(2) The budgetary appropriations made by the City to its departments for artistic services; and

(3) Percent for the Arts Funds.

(C) All funds deposited in the Arts Fund shall be used exclusively for the purpose or function for which they are appropriated, specified or donated. In the event that funds deposited in the Arts Fund are unspecified, the Arts Commission shall make recommendations to the City Council with respect to the use of these funds for purposes consistent with the function of the Arts Commission.

(Ord. 5654 § 3, 2003: Ord. 3288 § 15, 1987)

2.34.140 Percent for the Arts Program—Created.

(A) There is hereby established a program for funding works of art in conjunction with City capital improvement projects, to be known as "Percent for the Arts."

(B) Under the Percent for the Arts program the City Council shall appropriate not less than one percent of the City's annual capital improvements budget to the Municipal Arts Fund.

(C) For the purposes of this Section, "capital improvements budget" means only those funds budgeted for transfer to capital project funds from the general fund and proceeds from the sale of bonds whose debt service is paid solely from general fund revenues.

(D) In addition to the annual Percent for the Arts appropriations, the City Council may make additional annual appropriations to the Municipal Arts Fund which shall be subject to the same terms and conditions applying to expenditure of Percent for the Arts funds.
(Ord. 5654 § 5, 2003)

2.34.150 Percent for the Arts Fund—Eligibility.

(A) Only those works of art approved by the City Council for capital improvement projects as part of the Municipal Arts Plan shall be eligible to receive expenditures from Percent for the Arts funds.

(B) For the purposes of this Chapter the following are permissible works of art expenditures:

(1) Artists' design services, development of design concepts and models and the selection, acquisition, installation, fabrication and exhibition of works of art;

(2) Identification plaques and labels;

(3) Water works, electrical and mechanical devices and equipment which are an integral part of the works of art;

(4) Frames, mat and single pedestals necessary for the proper presentation of the works of art;

(5) Walls, bases, pools or other architectural or landscaping elements on or in which the works of art are placed or affixed and which, in the opinion of the Arts Commission, are an integral part of and contribute to the aesthetic and structural support of the works of art;

(6) Architectural or landscaping elements which themselves constitute some works of art;

(7) Ongoing operating expenses or maintenance of works of art, architectural elements on or in which the works of art are placed, or sites where works of art are located; or

(8) Any other expenditures as approved by the City Council in the Municipal Arts Plan.
(Ord. 5654 § 6, 2003)

2.34.160 Works of art at capital improvements projects—Display.

Works of art at capital improvements projects may be placed on public display, integral or attached to a public building or structure, detached within or outside a public building or structure, or as a part of the landscape or a public park, square or other outdoor public site or lands.
(Ord. 5654 § 7, 2003)

2.34.170 Municipal Arts Plan—Submission requirements.

(A) A Municipal Arts Plan for the next fiscal year shall be submitted by the Arts Commission not later than February each year for City Council approval, which plan shall include any:

(1) Proposed works of art for capital improvements projects;

(2) Proposed works of art for sites and locations not in conjunction with capital improvements projects;

(3) Progress reports and completion plan regarding the design, selection, acquisition, fabrication and installation of uncompleted works or art previously approved by the City Council; and

(4) Requested funding from the Arts Fund and Municipal Arts Fund, respectively, for proposed and ongoing works of art projects.

(B) The Municipal Arts Plan shall be submitted to the City Council in conjunction with the City's capital project plan for the next fiscal year.
(Ord. 5654 § 8, 2003)

2.34.180 Municipal Arts Fund—Account provisions.

(A) A special account shall be established for the purpose of receiving funds appropriated by the City Council pursuant to the Percent for the Arts program. The fund shall be known as the Municipal Arts Fund.

(B) All funds deposited to the Municipal Arts Funds shall be used exclusively for the purpose or function for which they are appropriated.

(C) Except as otherwise provided in this Section, funds remaining in the Municipal Arts Fund at the end of each fiscal year shall carry over in such fund for the next fiscal year.

(D) Funds in excess of one million dollars remaining in the Municipal Arts Fund at the end of each fiscal year that are not committed to works of art approved in the Municipal Arts Plan for that year or previous years shall revert to the City general fund.
(Ord. 5654 § 9, 2003)

2.34.190 Arts Commission—Dissolution.

In the event of the repeal of this Chapter and the dissolution of the Arts Commission all funds remaining in the Arts Fund and Municipal Arts Fund shall revert to the City and be used for artistic purposes except as follows:

(A) All remaining Percent for the Arts funds shall revert to the City general fund to be used in the discretion of the City Council.

(B) Any restricted gift or donations shall be used for the purpose specified in the restriction or returned to the donor.
(Ord. 5654 § 10, 2003)

CHAPTER 2.42 PARKS AND RECREATION ADVISORY COMMISSION

2.42.010 Established—Composition.

There is created a Parks and Recreation Advisory Commission consisting of fifteen members.
(Ord. 3554 § 1, 1991: Ord. 2191 § 1 (part), 1981: Ord. 1667 § 1 (part), 1973: Ord. 1265 § 2 (part), 1966: prior code § 2-11-1 (part))

2.42.020 Appointment—Term—Vacancies.

The Parks and Recreation Advisory Commission shall be appointed as follows:

(A) All members shall be appointed by the City Council. The Mayor shall have the right to nominate three persons to serve on the Commission. Each of the remaining members of the City Council shall have the right to nominate two persons to serve on the Commission.

(B) Members of the Commission shall serve for a period of three years.

(C) Vacancies in the Commission, occurring for reasons other than the expiration of a term, shall be filled by appointment by the City Council for the remainder of the term. The Parks and Recreation Advisory Commission may submit to the Council its recommendations for appointments and reappointments to the Advisory Commission.

(D) Members serve at the pleasure of the City Council.
(Ord. No. 6832, § 4, 3-1-23; Ord. No. 6406, § 1, 3-18-15; Ord. 3132 § 12, 1984: Ord. 2191 § 1 (part), 1981: Ord. 1738 § 1, 1974; Ord. 1667 § 1 (part), 1973: Ord. 1265 § 2 (part), 1966: prior code § 2-11-1 (part))

2.42.030 Officers.

(A) The officers of the Parks and Recreation Advisory Commission shall be a Chairman, a Vice Chairman and a Secretary.

(B) Within fifteen days after the appointment of the Commission, the members shall meet in regular session and select from their members the Chairman and the Vice Chairman.

(C) The Secretary, who shall be the Director of Parks, Recreation and Cultural Affairs or a designee, shall have no vote on the Commission.

(D) The duties of the officers of the Commission shall respectively be as are usually carried by such officers.

(E) The officers shall hold office for one year, or until their successors are selected.
(Ord. No. 6816, § 4, 8-17-22; Ord. No. 6406, § 2, 3-18-15; Ord. 3554 § 2, 1991: Ord. 3132 § 13, 1984: Ord. 2191 § 1 (part), 1981: Ord. 1738 § 1 (part), 1974: Ord. 1265 § 2 (part), 1966: prior code § 2-11-2 (part))

2.42.040 Procedural rules and regulations—Meeting scheduling.

The Commission shall adopt bylaws to govern procedures and shall, by vote, set a time for regular meetings and shall determine the manner in which special meetings may be called, held, and the notice given.
(Ord. No. 6406, § 3, 3-18-15; Ord. 2191 § 1 (part), 1981: Ord. 1738 § 1 (part), 1974: Ord. 1265 § 2 (part), 1966: prior code § 2-11-2 (part))

2.42.050 Reserved.

Editor's note—Ord. No. 6406, § 5, adopted March 18, 2015, repealed § 2.42.050, which pertained to minutes and derived from prior code § 2-11-2; Ord. No. 1265, 1966; Ord. No. 1738, 1974; Ord. No. 2191, 1981 and Ord. No. 3554, 1991.

2.42.060 Quorum.

A majority of the regular members shall constitute a quorum for all purposes.
(Ord. 2191 § 1 (part), 1981: Ord. 1738 § 1 (part), 1974: Ord. 1265 § 2 (part), 1966: prior code § 2-11-2 (part))

2.42.070 Reserved.

Editor's note—Ord. No. 6406, § 5, adopted March 18, 2015, repealed § 2.42.070, which pertained to removal and derived from prior code § 2-11-2; Ord. No. 1265, 1966; Ord. No. 1738, 1974 and Ord. No. 2191, 1981.

2.42.080 Duties.

The duties of the Parks and Recreation Advisory Commission shall be:

(A) To make recommendations, in cooperation with the Director of Parks, Recreation and Cultural Affairs, to the City Council on matters pertaining to public parks and public recreation and to cooperate with other governmental agencies and civic groups to facilitate sound park and recreation planning;

(B) To aid in coordinating the parks and recreation services with other governmental agencies and other voluntary organizations;

(C) To advise the Department of Parks, Recreation and Cultural Affairs regarding departmental functions which involve or affect the public; and

(D) To make recommendations to the City Council on matters pertaining to golf courses that may be owned and operated by the City.

(Ord. No. 6832, § 5, 3-1-23; Ord. No. 6406, § 4, 3-18-15; Ord. 3624 § 2, 1992: Ord. 3554 § 4, 1991: Ord. 3132 § 14, 1984: Ord. 2191 § 1 (part), 1981: Ord. 1738 § 1 (part), 1974: Ord. 1265 § 2 (part), 1966: prior code § 2-11-3)

CHAPTER 2.44 PLANNING COMMISSION

2.44.010 Established—Composition—Compensation—Qualifications.

(A) There is created the City Planning Commission to consist of seven members appointed in accordance with LVMC 2.44.020 and NRS 278.040.

(B) Each member of the Planning Commission shall receive from the City, as and for compensation for his or her services thereon, the sum of eighty dollars for each meeting of the Commission that he or she actually attends.
(Ord. 5409 § 1, 2002: Ord. 5193 § 1, 2000: Ord. 3940 § 1, 1995: Ord. 3311 §§ 1, 2, 1987; Ord. 1632 § 1, 1973: Ord. 567 § 1, 1953: prior code § 2-2-1)

2.44.020 Term—Removal—Vacancies.

(A) Except as otherwise provided in Subsection (B) of this Section, the term of each appointed member shall be four years or until his successor takes office, and any vacancy occurring otherwise than through the expiration of term must be filled for the unexpired term.

(B) Each member of the City Council shall be entitled to recommend one person for appointment to the Planning Commission, subject to the approval of the Council. Recommendations shall be on a rotating basis, in the order agreed upon by the Council. If in a particular case the Council does not vote to appoint the recommended person, the member of the Council who made the recommendation shall be entitled to make successive recommendations until a recommended person is appointed by the Council. The term of each member of the Planning Commission is coterminous with the term of the member of the Council who recommended the appointment. If the recommending Council member resigns from office before the expiration of his or her term, the corresponding member of the Planning Commission may continue to serve until the office is next filled by election. If the office of the recommending Council member becomes vacant before the expiration of the term for any other reason, the corresponding member of the Planning Commission may continue to serve for the duration of the original term.

(C) Members serve at the pleasure of the City Council.
(Ord. No. 6890, § 1, 11-6-24; Ord. No. 6159, § 1, 8-17-11; Ord. 5193 § 2, 2000: Ord. 3321 § 2, 1987: Ord. 2092 § 1, 1980: Ord. 567 § 2, 1953: prior code § 2-2-2)

2.44.030 Chairman—Staff.

(A) The Planning Commission shall elect annually a Chairman from its appointed members.

(B) The Planning Commission is authorized to use the services of City staff in connection with the performance of its duties.
(Ord. No. 6816, § 5, 8-17-22; Ord. 567 § 4, 1953: prior code § 2-2-4)

2.44.040 Master Plan preparation.

(A) It shall be the function and duty of the City Planning Commission to prepare and adopt a comprehensive, long-term general plan for the physical development of the City. Such plan shall be known as the Master Plan, and shall be so prepared that all or portions thereof may be adopted by the legislative body as the basis for the development of the City, for such reasonable period of time next ensuing after the adoption thereof as may be practically covered thereby.

(B) The Master Plan, with the accompanying map, diagrams, charts, descriptive matter and reports, shall include the subject matter contained in 278.160 NRS, as is appropriate to the City; provided, however, that any existing comprehensive long-term general plan for the physical development of the City may be incorporated into the future plans of the City Planning Commission.
(Ord. 567 § 3, 1953: prior code § 2-2-3)

2.44.050 Reserved.

Editor's note—Ord. No. 6836, § 1, adopted April 19, 2023, repealed § 2.44.050, which pertained to meeting requirements and derived from Ord. No. 6640, adopted August 15, 2018.

CHAPTER 2.46 SENIOR CITIZENS' ADVISORY BOARD

2.46.010 Created.

There is created a Senior Citizens' Advisory Board whose purpose is to advise and make recommendations to the City Council concerning subjects of particular interest to senior citizens and others who share the same interests as senior citizens. Such subjects include without limitation transportation, housing, utility rates and service, employment and other matters related to the health, safety and welfare of senior citizens. As used in this Chapter, the term "Advisory Board" refers to the Senior Citizens' Advisory Board.
(Ord. 5206 § 2 (part), 2000)

2.46.020 Membership—Appointments.

(A) The Advisory Board shall consist of eight members who are appointed by the City Council.

(B) Each member of the Council other than the Mayor is entitled to nominate one person appointment to the Advisory Board. Each person so nominated must be a resident of the ward represented by the Council member making the nomination.

(C) The Mayor is entitled to nominate two persons for appointment. The persons so nominated must reside in two different wards, but otherwise may be residents of any of the wards of the City.

(D) The term of each member of the Advisory Board is coterminous with the term of the member of the City Council who nominated the Advisory Board member for appointment, except that a member may continue to serve until a successor is appointed.

(E) No member of the Advisory Board may:

(1) Serve for an uninterrupted period longer than eight years;

(2) Continue to serve after ceasing to reside in the ward from which he or she was appointed, unless that event occurs by reason of the realignment of ward boundaries; or

(3) Serve concurrently on any other board or commission which is established by resolution or ordinance, other than one which may be established on a temporary basis only.

(F) Members of the Advisory Board serve at the pleasure of the City Council.
(Ord. No. 6832, § 6, 3-1-23; Ord. 5206 § 2 (part), 2000)

2.46.030 Officers.

(A) The Advisory Board shall elect from among its members a Chairman and Vice-Chairman, and such officers as deemed necessary or appropriate. Officers shall serve a term of one year, or until a successor is elected.

(B) The Director of Neighborhood Services, or the Director's designee, shall serve ex-officio to represent the City's interests and to function as liaison between the Advisory Board and the City.
(Ord. No. 6816, § 6, 8-17-22; Ord. No. 6172, § 1, 12-7-11; Ord. 5549 § 1, 2002: Ord. 5206 § 2 (part), 2000)

2.46.040 Bylaws—Procedural rules adoption.

(A) The Advisory Board shall adopt such bylaws as it deems necessary for the conduct of its business. The bylaws may include procedural rules, the designation of regular meeting dates, and the procedures for calling special meetings.

(B) Bylaws, as well as any amendments thereto:

(1) Must be consistent with this Chapter; and

(2) May be adopted only by a majority vote of the entire membership, provided that, in each case, at least twenty days written notice of the proposed amendment has been provided to Board members.

(Ord. No. 6172, § 2, 12-7-11; Ord. 5206 § 2 (part), 2000)

2.46.050 Committees and subcommittees.

The Advisory Board may create such committees and subcommittees as it deems necessary for the conduct of its business.

(Ord. 5206 § 2 (part), 2000)

CHAPTER 2.48 TRAFFIC AND PARKING COMMISSION

2.48.010 Established—Composition.

There is created and established the Traffic and Parking Commission of the City. Members of the Commission shall serve without compensation. The Commission shall consist of:

(A) Nine voting members, who are:

(1) The Sheriff of the Las Vegas Metropolitan Police Department or a designee;

(2) The Director of Public Works or a designee;

(3) Six members of the general public, appointed by the Mayor and confirmed by the City Council, such that one member resides in and is representative of each of the six wards into which the City is divided;

(4) One member of the general public appointed by the Mayor representing the City as a whole.

(B) Ex officio, nonvoting members, who are:

(1) The Traffic Engineer or a designee;

(2) The City Attorney or a designee;

(3) The Chief of the Department of Fire and Rescue or a designee;

(4) The Director of Community Development or a designee;

(5) Other staff members that the City Manager may designate.

The Traffic Engineer shall serve as Secretary of the Commission, and shall be responsible for the administration of the affairs of the Commission.

(Ord. No. 6816, § 7, 8-17-22; Ord. 5258 § 1, 2000: Ord. 3474 § 3, 1990)

2.48.020 Term.

The term of each appointed member shall be four years, or until his successor is appointed. Terms shall be staggered on a two-year cycle.

(Ord. 3474 § 4, 1990)

2.48.030 Membership.

Members of the Commission serve at the pleasure of the City Council. (Ord. No. 6832, § 7, 3-1-23; Ord. 3474 § 5, 1990)

2.48.040 Chairman.

The Chairman of the Commission shall be elected for a term of one year from among the appointed members of the Commission by majority vote of the entire Commission.
(Ord. 3474 § 6, 1990)

2.48.050 Rules and regulations.

The Commission shall provide for the conduct of its business by appropriate rules and regulations within the intent and meaning of this chapter.
(Ord. 3474 § 7, 1990)

2.48.060 Duty and authority.

The Commission shall have the duty and authority to request the preparation and publication of traffic reports, to consider requests having to do with traffic and parking regulations, and to analyze and provide recommendations to the City Council with respect to proposed changes in traffic and parking regulations.
(Ord. 3474 § 8, 1990)

2.48.070 Quorum.

A majority of the voting members shall constitute a quorum of the Commission.
(Ord. 3474 § 9, 1990)

2.48.080 Meetings.

The Commission shall hold regular meetings in accordance with a meeting schedule adopted as part of its rules and regulations pursuant to Section 2.48.050.
(Ord. No. 6049, § 1, 7-15-09; Ord. 3474 § 10, 1990)

CHAPTER 2.49 ELIGIBILITY FOR CITY BOARDS AND COMMISSIONS

2.49.010 City residency.

A person is not eligible to serve in any of the following capacities unless he or she is a resident of the City:

(A) As a member of the Planning Commission, Traffic and Parking Commission, or Board of Civil Service Trustees.

(B) As a City appointee to the Southern Nevada Regional Housing Authority or the Las Vegas-Clark County Library District Board of Trustees.

(Ord. No. 6172, § 4, 12-7-11; Ord. 5204 § 3, 2000: Ord. 3527 § 2, 1990)

CHAPTER 2.50 DISCIPLINE AND REMOVAL OF ELECTED OFFICIALS

Article I. Felony Grand Jury Indictment

2.50.010 Suspension of commissioners permitted when.

Any member of the City Council who is indicted for any felony by any grand jury of competent jurisdiction may be suspended from office by the Board, pending the outcome of such indictment, after a hearing and a majority vote as set forth in this Article.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4 (A))

2.50.020 Suspension of elected officials permitted when.

Any elected official of the City who is indicted for any felony by any grand jury of competent jurisdiction may be suspended from office by the Board, pending the outcome of such indictment, after a hearing and a majority vote as set forth in this Article.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4 (B))

2.50.030 Hearing—Required upon indictment—Procedure generally.

(A) Upon an indictment being issued against any member of the Board or other elected official of the City, the Board shall hold an administrative hearing in regard to the official so indicted concerning the nature of the conduct of the official which resulted in the indictment.

(B) The hearing shall be closed upon the request of the officer who is prosecuting the indictment or in the discretion of the Board when to do otherwise would jeopardize the proceedings on the indictment in a court of law.

(C) Testimony shall be taken and other evidence may be examined, and the rules pertaining to administrative law shall be followed.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4 (C))

2.50.040 Hearing—Notice—Scheduling.

The official so indicted shall be duly notified that a hearing shall take place upon a certain date and time. He shall be further advised as to the purpose of the hearing in such notice. Upon service of such notice, a hearing shall be held not less than ten days nor more than sixty days thereafter.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4(D))

2.50.050 Hearing—Conduct—Compelling witnesses.

(A) The City Attorney shall conduct the proceedings of the hearing and may call any witness and produce any evidence necessary to benefit the Board in its deliberations. Each member of the Board may inquire of any witness about any of the evidence and of the official indicted.

(B) The City Attorney, the Board and the official so indicted are each entitled to such process as is necessary to enforce the attendance of witnesses.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4(E))

2.50.060 Hearing—Official's appearance—Admissions or noncooperation.

(A) The official so indicted shall appear at the time stated in the notice and shall answer all inquiries of him and may inquire of all witnesses, comment about any of the evidence and give any explanation he may wish in regard to any of the issues before the Board.

(B) If the official pleads the truth of the allegations of the indictment or refuses to answer questions relevant to the issues, the Board may take such pleading or lack of cooperation into consideration.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4(F))

2.50.070 Decision on suspension—Appeal—Filling office.

After all of the evidence has been taken, by testimony or otherwise, and after all of the statements and arguments of the City Attorney, the Board and the official so indicted have been considered, the Board shall make a determination, in the light of the evidence and in consideration of the interests of the public and the welfare of the government, whether or not such official should be suspended from office pending the outcome of the indictment. An appeal from a decision to suspend such official may be taken to an appropriate court, but, until such decision by the Board is reversed, the official shall remain suspended from his office. Upon such suspension and pending any appeal by the suspended official in connection therewith and the outcome of the indictment, if such suspension is sustained on appeal, the office may be filled temporarily as in a case of a vacancy.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4(G))

2.50.080 Conviction—Acquittal.

If the official so indicted is ultimately found guilty of the charges against him, the Board shall declare the office to which the official was elected vacant, in the manner prescribed in NRS 283.040. If such official is acquitted of the charges against him, his suspension shall be terminated and he may forthwith take office for the remainder of his term. If his position has been filled by a temporary appointment, as provided in Section 2.50.070, the person who holds the office by virtue of such temporary appointment shall relinquish the office upon the elected official's return to his original capacity.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4 (H))

2.50.090 Salary of official and replacement.

The salary paid to the said official shall be withheld from him during his suspension and shall be placed into a trust account pending the outcome of the indictment. If such official is acquitted, the money shall be paid immediately to him. If he is found guilty, however, the money shall revert to the City. In the event his office during such suspension has been filled

temporarily, as provided in Section 2.50.070, the person who fills such office shall receive the salary established for the office without regard to the salary which is concurrently being paid into the trust account.
(Edited during 1982 codification: Ord. 1655 § 1 (part), 1973: prior code § 1-5-4(I))

Article II. Felony Charges Generally

2.50.100 Suspension of commissioners permitted when.

Any member of the Board of Commissioners who is charged for any felony other than by indictment may be suspended from office by the Board, pending the outcome of such charges, after a hearing and a unanimous vote as set forth in this Article.
(Edited during 1982 codification: Ord. 1656 § 1 (part), 1973: prior code § l-5-5 (A))

2.50.110 Suspension of elected officials permitted when.

Any elected official of the City who is charged for any felony other than by indictment may be suspended from office by the Board, pending the outcome of such charges, after a hearing and a unanimous vote as set forth in this Article.
(Edited during 1982 codification: Ord. 1656 § 1 (part), 1973: prior code § 1-5-5 (B))

2.50.120 Hearing before board of commissioners.

(A) Upon the filing of any felony charge against any member of the Board or other elected official of the City, other than by an indictment, the Board may hold an administrative hearing in regard to the official so charged concerning the nature of the conduct of the official which resulted in the felony charge.

(B) The hearing shall not be held until after a preliminary hearing on the charge has been held. If a preliminary hearing is waived by the official so charged, the Board may hold the administrative hearing at any time after such waiver. Due consideration shall be given concerning whether or not the trial of the official so charged will be held within sixty days after the charge was originally filed.

(C) The hearing shall be conducted in the same manner as provided in Article I of this Chapter, except that the words "complaint," "information" or "charge" shall be used in the place of the word "indictment."
(Ord. 1656 § 1 (part), 1973: prior code § 1-5-5(C))

2.50.130 Determination by Board—Appeal—Temporary officeholder.

(A) After all of the evidence has been taken, by testimony or otherwise, and after all of the statements and arguments of the City Attorney, the Board and the official so charged have been considered, the Board shall make a determination, in the light of the evidence and in consideration of the interests of the public and the welfare of the government, whether or not such official should be suspended from office pending the outcome of the charge.

(B) An appeal from a decision to suspend such official may be taken to an appropriate court, but, until such decision by the Board is reversed, the official shall remain suspended from his office. Upon such suspension and pending any appeal by the suspended official in connection therewith and the outcome of the charge, if such suspension is sustained on appeal, the office may be filled temporarily as in a case of a vacancy.
(Edited during 1982 codification: Ord. 1656 § 1 (part), 1973: prior code § 1-5-5(D))

2.50.140 Conviction—Acquittal.

(A) If the official so charged is ultimately found guilty of the charges against him, the Board shall declare the office to which the official was elected vacant, in the manner prescribed by NRS 283.040.

(B) If such official is acquitted of the charges against him, his suspension shall be terminated and he may forthwith take office for the remainder of his term. If his position has been filled by a temporary appointment, as provided in Section 2.50.130, the person who holds the office by virtue of such temporary appointment shall relinquish the office upon the elected official's return to his original capacity.
(Edited during 1982 codification: Ord. 1656 § 1 (part), 1973: prior code § 1-5-5 (E))

2.50.150 Salary—Official charged—Temporary replacement.

The salary paid to the said official shall be withheld from him during his suspension and shall be placed into a trust account pending the outcome of the charge. If such official is acquitted, the money shall be paid immediately to him. If he is found guilty, however, the money shall revert to the City. In the event his office during such suspension has been filled temporarily, as provided in Section 2.50.130, the person who fills such office shall receive the salary established for the office without regard to the salary which is concurrently being paid into the trust account.
(Edited during 1982 codification: Ord. 1656 § 1 (part), 1973: prior code § 1-5-5 (F))

CHAPTER 2.51 PUBLIC OFFICIALS

2.51.010 Definitions.

"Lobbyist means any person who:

(A) Communicates directly with a member of the City Council on behalf of someone other than himself or herself to influence action by the City Council; and

(B) Is compensated for the communication.

The term does not apply to a representative of a bona fide news medium in connection with communications that are made solely in the course of that person's business of gathering news for or on behalf of that news medium.

"Public employee" means any person who is employed by the City in a paid position. The term does not include any member of the City Council or any person whose only service to the City is as a member of a City board or commission.

"Public officer" means the Mayor and any other member of the City Council.
(Ord. 5555 § 2 (part), 2002)

2.51.020 Public official activities.

(A) A public employee, on his or her own time, may engage in any of the following activities related to a municipal, county, state or national election:

(1) Register and vote in an election;

(2) As an individual, privately and publicly express an opinion on political subjects and candidates;

(3) Be a member of a political party and participate in its activities consistent with this Section;

(4) As an individual, sign a political nomination or recall petition;

(5) Make a financial contribution to a political party or candidate;

(6) Be politically active in connection with a question that is not specifically identified with a political party, such as a constitutional amendment, referendum or question of a similar character; and

(7) Display bumper stickers, posters or pamphlets on his or her private property for the endorsement of candidates or issues.

(B) In addition to the activities listed in Subsection (A) of this Section, a public employee whose employment does not involve any activity supported by Federal funds may:

(1) Take an active part in the management of political campaigns;

(2) Directly or indirectly solicit, receive or account for funds for a partisan political purpose except as prohibited by this Section;

(3) Solicit votes in support of, or in opposition to, a partisan party office;

(4) Initiate or circulate partisan nominating or recall petitions;

(5) Serve as a delegate, alternate, or proxy to a political party convention;

(6) Drive voters to the polls on behalf of a political party or partisan candidate; and

(7) As an individual, endorse or oppose a partisan candidate for public office or political party office in a political advertisement, broadcast, campaign literature, or similar material.

(C) A public employee is prohibited from:

(1) Using any official authority or influence for the purpose of interfering with or affecting the result of an election;

(2) Soliciting funds or receiving contributions from other public employees for political purposes, except as done on behalf of a collective bargaining organization;

(3) Displaying on a City vehicle a bumper sticker or poster that endorses a political candidate or political question; and

(4) Engaging in any activity described in Subsection (B) of this Section while on duty, while on City property, or while wearing a uniform normally identified with the City.

(D) A public employee who is not subject to the provisions of the Hatch Act may seek election to the Nevada Legislature. Subject to the provisions of Subsection (F), a public employee:

(1) Who is elected to the Nevada Legislature may serve in that capacity while retaining City employment, but only in accordance with any applicable policies that have been approved by the City Manager or City Council; and

(2) Who serves in the Nevada Legislature shall receive no City pay or benefits for the period of any regular or special legislative session, but may continue to receive insurance coverage if the employee directly pays applicable premiums.

(E) Subject to the provisions of Subsection (F), a public employee may be a candidate for a nonpartisan office, and if elected, may retain his or her City employment, but only in accordance with any applicable policies that have been approved by the City Manager or City Council.

(F) If service by a public employee in any political office is or appears clearly inconsistent, incompatible, or in conflict with that person's duties as an employee of the City, as judged by the City Manager, that employment must be terminated before the person assumes political office.
(Ord. No. 6604, § 1, 11-15-17; Ord. 5723 § 1, 2004: Ord. 5555 § 2 (part), 2002)

2.51.030 Registration statement.

(A) Every person who acts as a lobbyist shall complete a registration statement with the City Clerk for each personal communication with a public officer. If the communication occurs at the City Hall complex, the registration form must be filed with the City Clerk the same day the communication occurs. If the communication occurs at a place other than the City Hall complex, the registration form must be filed with the City Clerk within five working days after the communication or before the next scheduled City Council meeting, whichever occurs first. Registration may be accomplished by fax machine.

(B) The registration form shall contain the following information:

(1) The lobbyist's full name, permanent address, place of business and temporary address while lobbying;

(2) The full name and complete address of each person, if any, by whom the lobbyist is retained or employed or on whose behalf the registrant appears;

(3) A description of the principal areas of interest concerning which the lobbyist expects to lobby or has lobbied; and

(4) The name of the member of the City Council with whom the lobbyist expects to communicate or has communicated.

The registration form shall be a public document and shall be maintained by the City Clerk for a period of five years from the date of filing.

(C) The City Clerk shall furnish an appropriate identification badge to each lobbyist who files a registration statement under this Section. The identification badge must be worn by the lobbyist whenever he or she is engaged in lobbying activity with a public officer. Persons who engage in lobbying activity on a regular basis may obtain an annual badge from the City Clerk who shall register the lobbyist's full name, permanent address, place of business and temporary address while lobbying. Thereafter, the lobbyist need only file a registration form statement containing the lobbyist's name and the information required in Paragraphs (2) through (4) of Subsections (B) of this Section.

(D) No public officer or public employees shall appear on behalf of any person, other than himself or herself or persons related within the third degree or consanguinity or affinity, before any board, commission, committee or agency of the City, or any individual member of the City Council, in relation to any case, proceeding, application, or contract for a period of one year from the date of termination of employment with or service to the City. This Subsection does not apply to any appearance made on behalf of a charitable or nonprofit organization, or a local, state or federal agency or political subdivision thereof.

(E) It is unlawful for any person to knowingly refuse or fail to comply with this Section.
(Ord. 5555 § 2 (part), 2002)

CHAPTER 2.52 MEMBERSHIP OF COMMISSION OR BOARD MEMBERS

2.52.010 Membership.

(A) Except as otherwise provided in Subsection (B), each member of a board, commission or committee created by City Council action serves at the pleasure of the City Council.

(B) The provisions of Subsection (A) do not apply to a board, commission or committee if those provisions are inconsistent with Federal or State law, or any ordinance, resolution, or other City Council action creating or governing that board, commission or committee. Nothing in this Subsection (B) precludes action to amend any of the provisions referenced in this Subsection so as to be consistent with Subsection (A).
(Ord. No. 6832, § 1, 3-1-23; Ord. No. 6245, § 2, 4-3-13; Ord. 5204 § 5, 2000: Ord. 2189 § 2 (part), 1981: prior code § 1-19-1)

2.52.020—2.52.040 Reserved.

Editor's note—Ord. No. 6832, § 2, adopted March 1, 2023, repealed §§ 2.52.020 and 2.52.030, which pertained to absence from meetings and hearing before City Council, respectively, and derived from prior code §§ 1-19-2, 1-19-3; Ord. No. 2189, 1981 and Ord. No. 4014, 1996.

Ord. No. 6107, § 2, adopted August 18, 2010, repealed § 2.52.040, which pertained to minutes of boards and commissions and derived from prior code § 1-19-4 and Ord. No. 2189, 1981.

CHAPTER 2.54 ELECTIVE OFFICE FILING FEES

2.54.010 Designated.

Each candidate for an elective municipal office of the City shall pay a filing fee in the amount of one hundred dollars at the time of filing a declaration of candidacy.

(Ord. 3789 § 1, 1994: edited during 1982 codification: Ord. 1703 § 1, 1974: prior code § 1-22-1)

CHAPTER 2.56 RESERVED*

CHAPTER 2.60 RECORDS MANAGEMENT

2.60.010 Definitions.

Unless the context otherwise requires, the words that are used in this Chapter shall have the meanings that are ascribed to them in this Section:

(A) "Disposition" means the final action that has been recommended for a record by the records retention schedule that has been approved for the office that produces or generates the record.

(B) "Office" means any office, department, board, commission, committee, agency or any other division of the City.

(C) "Public record" means any paper, correspondence, form, book, photograph, film, sound recording, map, drawing or other document, regardless of its physical form or characteristics, that has been made by any office or official or received by it in connection with the transaction of public business.

The term does not include published books and pamphlets, books and pamphlets that have been printed by a government printer, worksheets that are used to collect or compile data after such data has been included in a record, answer pads for telephones or other informal notes, stenographers' notes after the information that is

*__Editor's note—__Ord. No. 6119, § 1, adopted November 3, 2010, repealed Chapter 2.56, §§ 2.56.010—2.56.080, which pertained to citizen complaints and derived from prior code §§ 1-21-1—1-21-8; Ord. No. 1448, 1970 and Ord. No. 2218, 1981.

contained therein has been transcribed, unused forms, except unused ballots, brochures, newsletters, magazines, newspapers, except those portions of newspapers that are retained as evidence of publication, scrapbooks and property that have been left or deposited with an office which would otherwise be defined as a record except that the ownership of such property does not reside with the City.

(D) "Records center" means an area for housing inactive or semi-active records which do not receive sufficient use to warrant their retention in the office in which they were initially kept.

(E) "Records retention schedule" means an itemized list of record series, with the corresponding time periods for which they must be kept, including the location and final disposition thereof.

(F) "Record series" means documents, volumes or folders that are arranged under a single filing system or are kept together as a unit because they relate to a particular subject, result from the same activity or have a particular form.

(G) "Vital records" means those records that would be essential for the reconstruction of the function and operation of a department in order for it to conduct business following a disaster.

(Ord. 3355 §§ 2 through 9, 1988)

2.60.020 City Clerk's responsibilities.

The City Clerk will be responsible for developing and implementing a records management program for the City. In that capacity, the City Clerk shall:

(A) Establish guidelines and procedures for making an inventory of and retaining the public records of the City in accordance with approved records retention schedules.

(B) Establish a records center for storing inactive public records of the City pending their disposition in accordance with approved records retention schedules.

(C) Establish a program for the protection of historical, archival and vital records that are essential to the continuation or reestablishment of governmental operations in the event of a natural or other disaster.

(D) Provide micrographics services to the various offices for public records that require permanent retention, records that have a minimum retention of seven years and vital records.

(Ord. 3355 § 10, 1988)

2.60.030 Reserved.

Editor's note—Ord. No. 6245, § 3, adopted April 3, 2013, repealed § 2.60.030, which pertained to the records management committee—established—composition and derived from Ord. No. 3355, 1988; Ord. No. 5973, 2008 and Ord. No. 6026, 2009.

2.60.040 Reserved.

Editor's note—Ord. No. 6172, § 11, adopted December 7, 2011, repealed § 2.60.040, which pertained to records management committee—responsibilities and derived from Ord. No. 3355, 1988 and Ord. No. 5973, 2008.

2.60.050 Duties of department directors.

The director of each department of the City shall:

(A) Conduct and maintain an inventory of all of the types of public records that exist within that department; and

(B) With regard to such records, establish such policies and procedures as are necessary and appropriate in order to comply with this Chapter and procedures established thereunder.

(Ord. 5973 § 3, 2008: Ord. 3355 § 13, 1988)

2.60.060 Public records custody and control.

(A) The right to the custody and control of public records that have been transferred to the records center shall remain with the transferring office.

(B) The right to the custody and control of public records that have been transferred to the City archives passes to the City Clerk at the time that such records are accepted for the City archives.

(Ord. 3355 § 14, 1988)

2.60.070 Disposal of records—Retention periods.

(A) A record may be disposed of only in accordance with the records retention schedule that has been approved for records of that type.

(B) The City hereby adopts the "Local Government Records Management Program Manual" and the "Local Government Records Retention Schedules" in the versions of those documents that have been adopted most recently by the Nevada State Library, Archives and Public Records Division of the Nevada Department of Administration. The respective

retention periods that are established in those documents shall be the minimum periods for which the records of the City, other than judicial records and other documents of the Municipal Court, must be retained.

(C) The City may establish periods of retention longer than those designated by the State for any particular class of record. Further, the City may establish retention schedules for any record not addressed by the State's schedules. Any schedule proposed to be established pursuant to this Subsection (C) shall be submitted to the City Clerk for approval. Thereafter, the City Clerk shall submit the same to the City Council for its approval. Such approval shall be accomplished by ordinance.

(D) The disposition of judicial records and other documents of the Municipal Court shall be governed by a records retention schedule that is approved by the Judges of the Municipal Court by a court rule that is adopted in accordance with the rules of the Nevada Supreme Court. Such schedule shall become effective upon its approval by a majority of the Judges of the Municipal Court and shall establish a system of records management for Municipal Court to be implemented by the Court Administrator.
(Ord. No. 6683, § 1, 4-17-19; Ord. No. 6214, § 1, 9-19-12; Ord. No. 6172, § 8, 12-7-11; Ord. No. 6107, § 1, 8-18-10; Ord. 6026 § 2, 2009: Ord. 5973 § 4, 2008: Ord. 3355 § 15, 1988)

CHAPTER 2.64 METROPOLITAN POLICE DEPARTMENT CITIZEN REVIEW BOARD

2.64.010 Created—Purpose.

Pursuant to the authority of Chapter 289 of the Nevada Revised Statutes there is created the Las Vegas Metropolitan Police Department Citizen Review Board. The Review Board may

advise the Las Vegas Metropolitan Police Department and its Committee on Fiscal Affairs on issues concerning peace officers employed by the Department, refer to the Department complaints against officers, and review internal investigations by the Department regarding discipline. The purpose of the Review Board is to act as an advisory body to the Department and its Committee on Fiscal Affairs, and to inform the public of the Review Board's recommendations to the extent permitted by law. The Review Board shall perform its functions without regard to race, color religion, sex, age, handicap, sexual orientation, national origin or political affiliation.
(Ord. 5149 § 2, 1999)

2.64.020 Definitions.

"Citizen" means a member of the public.

"City" means the City of Las Vegas.

"Council" means the City Council of the City.

"County" means Clark County, Nevada.

"Department" means the Las Vegas Metropolitan Police Department.

"Director" means the Director of the Citizen Review Board, or the Director's designee.

"District Attorney" means the District Attorney of Clark County, Nevada.

"Duties," as used in Section 2.64.070, are the Review Board's functions of the referral to the Department of complaints against officers, and the review of internal investigations by the Department.

"FAC" means the Department's Committee on Fiscal Affairs.

"Officer" means a peace officer employed by the Department.

"Panel" means a five-member panel of the Review Board.

"Review Board" means the Las Vegas Metropolitan Police Department Citizen Review Board.
(Ord. 5149 § 3, 1999)

2.64.030 Director.

(A) There shall be a Director of the Review Board, who shall be appointed by the County Manager, in consultation with the City Manager, with the advice and consent of the Board of County Commissioners and the Council. The term of the Director's service shall be at the pleasure of the County Manager and the City Manager.

(B) The County and the City may, upon mutual agreement, provide such funding, staffing, legal counsel and other resources as they determine, according to their sole discretion, to be necessary for the performance of the functions of the Director and the Review Board. Neither the Director, the Review Board, nor any panel of the Review Board shall incur an
(Ord. 6032 § 1, 2009: Ord. 5194 § 1, 2000: Ord. 5149 § 4, 1999)

2.64.040 Board composition—Appointment criteria—Compensation.

(A) The Review Board shall consist of twenty-five members, thirteen of whom shall be appointed by the members of the FAC who are representatives of the County, and twelve of whom shall be appointed by the members of the FAC who are representatives of the City.

(B) A person appointed to the Review Board must:

(1) Be a resident of Clark County, excluding any incorporated cities other than the City of Las Vegas;

(2) Not be currently employed as a peace officer. No more than five members of the Review Board may be former peace officers;

(3) Not be a current employee in any capacity of the Department; a former peace officer employed by the Department; or a spouse, child, sibling or parent of such a person;

(4) Not be a current elected official;

(5) Not be a person convicted of a felony; and

(6) Not be or have been a party in litigation against the Department, or against the County or the City with regard to any detention facility.

(C) The members shall be appointed from a list of names submitted by interested persons. Notice that applications for appointment to the Review Board are being accepted shall be published at least once in a newspaper having general circulation in the County at least thirty days before the list is initially established. Applications for appointment shall be submitted to the Director. Applicants must state whether they meet each of the eligibility criteria set forth in Subsection (B) of this Section. Applicants shall waive confidentiality and privacy as to records of criminal history, employment history, and such other information as is necessary to verify their eligibility and suitability for appointment, and shall authorize disclosure of such information for that purpose. Information about an applicant which is of a confidential nature shall not be disclosed, except:

(1) In the course of administration of this Chapter;

(2) To authorized representatives of the County or City; or

(3) Upon lawful order by a court of competent jurisdiction.

(D) The Director shall prescreen applications and disqualify any applicant who does not meet the minimum requirements set forth in Subsection (B) of this Section. Any applicant who is disqualified shall be so advised by the Director. The Director shall forward all applications, together with any grounds for disqualification, to the members of the FAC who are representatives of the City and the County.

(E) The County and City members of the FAC shall alternately appoint persons to the Review Board from the list of applicants submitted to them, with the County members making the first selection.

(F) The members of the FAC who are representatives of the City may by mutual agreement select and appoint persons to the Review Board from the list of applicants submitted to them. If the City members of the FAC are unable to agree, each will alternately make an appointment until the requisite number of persons has been selected. In such case, the first selection shall be made by the person with the greatest amount of time served as a member of the Council. If the City members of the FAC have equal amounts of service time, the person to make the first selection shall be determined by a toss of a coin.

(G) In order to fill vacancies on the Review Board, the Director shall maintain an updated list of applicants available for appointment. The Director may update the list by adding the names of additional applicants and deleting the names of persons who become disqualified or who notify the Director that they are no longer interested in serving on the Review Board. The Director may accept applications at any time, but may solicit applications only through advertisement as described in Subsection (C) of this Section. Except as otherwise provided herein, applications shall remain active for a period of three years from the date of submittal. All subsequent applicants shall be subject to the same prescreening and background investigation requirements as the initial applicants. Vacancies shall be filled by action of the current representatives of the entity which originally appointed the position. When openings

exist for both County and City members of the Review Board, the members of the FAC who represent the County and the City will appoint Review Board members and fill vacancies for unexpired terms from the most recent list of applicants according to the procedures set forth in Subsection (E) of this Section. The members of the FAC who represent the City will appoint Review Board members and fill vacancies for unexpired terms from the most recent list of applicants according to the procedures set forth in Subsection (F) of this Section.

(H) The Director shall forward to the District Attorney's Office, for background investigation, the application of each person tentatively selected for appointment. The District Attorney's Office will return the results of its investigation, including any areas of concern and any grounds for disqualification it has discovered, to the Director, who shall forward them to the applicable appointing authority. The appointing authority shall then make the appointment final, or select another applicant according to the procedures set forth in this Section. The appointing authority shall advise the Director of any applicant who is disqualified, and the Director shall notify the applicant.

(I) The Director shall maintain a current list of Review Board members, and shall notify the FAC of all appointments to the Review Board.

(J) The initial City appointments to the Review Board shall consist of four members whose terms expire the first Monday in January, 2001; four members whose terms expire the first Monday in January 2002; and four members whose terms expire the first Monday in January, 2003. Thereafter, members shall serve for terms of three years. When a member resigns or is removed from the Review Board, a new member will be selected to serve for the remainder of the former member's term. No member shall be appointed more than three times, and no member shall be appointed to more than two three-year terms.

(K) City appointees to the Review Board serve at the pleasure of the members of the FAC who represent the City. A member of the Review Board who is a City appointee:

(1) Shall be automatically removed from the Review Board if the member:

(a) Ceases to meet the qualifications set forth in this Section;

(b) Has three unexcused absences from Review Board meetings during a calendar year, including training programs and meetings of a panel;

(c) Declines three appointments to serve on a panel for reasons other than personal bias or conflict of interest, unless a member of the FAC who represents the City finds that the Review Board member had good cause for declining to serve on a panel;

(d) Fails to attend three successive meetings of a panel to which the member has been appointed, unless a member of the FAC who represents the City finds that the Board Review member had good cause for failing to attend; or

(e) Violates the confidentiality provisions of Section 2.64.100(L).

(2) May be removed from the Review Board, without cause or notice, upon mutual agreement of the members of the FAC who represent the City.

(L) Members of the Review Board shall serve without compensation, but may be entitled to reimbursement for expenses upon prior approval by both the Board of County Commissioners and the City Council, or as otherwise provided by agreement between the County and the City.

(M) For purposes of Subsection (K) of this Section, the absence of a member of the Review Board who is a City appointee will be considered "unexcused" if the member failed to provide notice in advance of the meeting that he or she will not be attending, except in the case of an emergency. Such notice must be provided in writing or by telephone to the chair of the Review Board or to an assigned staff member.
(Ord. 6032 § 2, 2009; Ord. 5281 § 1, 2001: Ord. 5149 § 5, 1999)

2.64.050 Training program—Requirements.

Before serving on any panel, members of the Review Board must attend program of training related to law enforcement, as determined by the Director, which training shall include, at a minimum, the policies and procedures of the Department; the Department's Civil Service Rules related to conduct; the provisions of NRS 289.010 to 289.120, inclusive; the collective bargaining agreements covering the Department and its officers; and the conduct of proceedings pursuant to this Chapter. The Director shall be responsible for providing additional training, on occasion, to Review Board members to update or supplement the information previously provided.
(Ord. 6032 § 3, 2009: Ord. 5149 § 6, 1999)

2.64.060 Jurisdiction.

(A) The Review Board shall have jurisdiction to:

(1) Advise on issues concerning officers, including:

(a) Conducting reviews and making recommendations to the Department concerning Department policies, procedures and programs; and

(b) Conducting reviews and making recommendations to the Department concerning the provision of police protection and services;

(2) Refer to the Department citizen complaints against officers; and

(3) Review internal investigations of officers which have been completed by the Department and make recommendations to the Department regarding any discipline against officers.

(B) The Review Board shall not have jurisdiction to consider:

(1) Discipline or actions taken against an officer based upon conduct which did not involve a citizen, including but not limited to tardiness, attendance, insubordination, and productivity;

(2) Conduct of an officer which is the subject of an ongoing criminal investigation or prosecution, including appeals and other forms of judicial review;

(3) Conduct which is the subject of an ongoing investigation by the Department, including grievances;

(4) Conduct which was previously submitted to a screening panel pursuant to this Chapter and which the panel did not refer to the Department or to a hearing panel;

(5) Conduct previously reviewed by a hearing panel;

(6) Conduct occurring on or prior to the date of the creation of the Review Board, which shall be deemed to be the latter of the effective dates of the County and City ordinances establishing the Review Board;

(7) Complaints received more than one year after the date of the incident giving rise to the complaint. An ongoing criminal investigation or the prosecution of an officer shall toll the period for submitting a complaint to the Review Board; or

(8) Any other conduct or matter for which jurisdiction is not provided under this Chapter.
(Ord. 6032 § 4, 2009: Ord. 5149 § 7, 1999)

2.64.070 Meetings, generally—Panel members—Selection generally.

(A) The Review Board shall meet in panels of five to carry out its duties with regard to the referral of complaints to the Department and the review of internal investigations conducted by the Department.

(B) The Review Board may convene en banc for administrative purposes, including but not limited to the receiving of training and the establishing of internal procedures. The Review Board may also convene en banc to consider issues of general concern regarding officers.

(C) Panel members will be randomly selected by the Director, who shall notify the members of their selection. No more than one former peace officer may be selected to serve on any particular panel.

(D) If a panel member is selected but is unavailable to serve, the Director shall randomly select another member until the panel is filled. Eligible Review Board members who decline appointments to serve on a panel or who fail to attend panel meetings are subject to removal from the Review Board pursuant to the provisions of Subsection (K) of Section 2.64.040.
(Ord. 6032 § 5, 2009: Ord. 5149 § 8, 1999)

2.64.080 Panel members—Terms—Meetings—Duties.

(A) Upon the appointment of the initial members of the Review Board, the Director shall randomly select the members of the first panel, hereinafter referred to as the screening panel.

(B) The initial term of the members of the screening panel shall expire the first Monday in January, 2001. Thereafter, the Director shall randomly select screening panel members, who shall serve terms of six months, expiring the first Monday of the following July or January. When a screening panel member resigns or otherwise has membership terminated, the Director shall randomly select a new member, who shall serve the remainder of the former

member's term. No screening panel member shall be eligible during that member's term on the screening panel to serve on any other panel. No member of the Review Board shall serve on two consecutive screening panels.

(C) Regular meetings of the screening panel shall be held at least once a month. Special meetings shall be held upon the call of the panel chair or of two members of the panel.

(D) Citizen complaints against officers and requests to review internal investigations regarding officers shall be submitted to the Director, who shall refer all complaints and requests for review to the screening panel. The Director shall have no authority to dismiss or reject a complaint or request for review, except in cases where the Review Board has no jurisdiction pursuant to Section 2.64.060.

(E) The screening panel shall review complaints and requests for review to determine whether:

(1) The Review Board has jurisdiction to consider the matter; and

(2) The matter has sufficient merit to warrant further consideration by a hearing panel or the Department.

(F) Upon review, the screening panel may:

(1) Determine not to refer a matter to a hearing panel or to the Department;

(2) Refer to the Department a complaint against an officer;

(3) Refer to a hearing panel a request for review of an internal investigation; or

(4) Recommend that a complaint be resolved by means of a voluntary non-binding mediation process. If the complainant or the officer reject the recommendation, the screening panel shall take action authorized under Paragraphs (1) to (3) of this Subsection (F).

(G) The screening panel must complete its review and make its determination as to any complaint or request for review referred to it within fifteen days after the date the matter is first considered by the screening panel. The fifteen day period shall be tolled during any ongoing investigation or proceeding which interferes with the panel's jurisdiction, as described in Section 2.64.060, or during any litigation concerning the screening panel's jurisdiction.

(H) Review by the screening panel shall be confined to the complaint or request for review, the records of the internal investigation for which review is requested, and such information as may be voluntarily provided by the complainant, the Department, or the officer whose conduct is the subject of a complaint or request for review. The screening panel shall have no authority to take testimony, issue subpoenas or require the production of books, papers and documents.
(Ord. 6032 § 6, 2009: Ord. 5281 § 2, 2001: Ord. 5149 § 9, 1999)

2.64.090 Hearing panel, generally.

(A) Upon a determination by the screening panel to refer to a hearing panel a request for review of an internal investigation of an officer, the Director shall randomly select the members of the hearing panel.

(B) The hearing panel may review the internal investigation and make recommendations to the Department regarding any disciplinary action against the officer, including, without limitation:

(1) Increasing or decreasing the recommended level of discipline; or

(2) Exonerating the officer who has been the subject of the internal investigation.

(C) At its first meeting, a hearing panel shall choose one of its members as chair. The panel may also choose a vice chair to act in the chair's absence. The chair of the hearing panel shall report the findings and recommendations of the panel to the Department, to the officer who is the subject of the investigation under review, and to the person who requested the review. The findings and recommendations of the panel shall be in writing and shall be approved by the panel. In the event that no findings and recommendations are approved by a majority of the panel, or a panel member dissents from the majority's decision, members of the panel may submit individual findings and recommendations to the chair to be reported to the Department, the officer, and the person who requested the review. All findings and recommendations shall be reported to the Department within the time for making determinations set forth in Subsection (N) of Section 2.64.100.

(D) In the case of an internal investigation into a citizen complaint for which an officer is potentially subject to discipline, the Department may submit its proposed determination and any supporting materials to the Director for review by the screening panel. The screening panel shall make its recommendations to the Department within thirty days after the date that the proposed determination is received by the Director. The screening panel shall report its findings and recommendations as set forth in Subsection (C) of this Section.
(Ord. 6032 § 7, 2009: Ord. 5149 § 10, 1999)

2.64.100 Hearing panel—Members—Quorum—Duties.

(A) The Director shall comply with all legal notice requirements for panel meetings. In addition, the Director shall provide notice of the proceedings to the Department and, if applicable, to the complaining party and the officer whose conduct is under review, which notice shall include:

(1) The date, time and location of the meeting;

(2) The names of the members of the panel; and

(3) A summary of the alleged misconduct or other item to be considered by the panel.

(B) Except as otherwise provided in Subsection (H) of Section 2.64.080, the chair shall preside over all meetings of the panel, and shall have the power to regulate all proceedings and take any action necessary for their efficient conduct, including the power to:

(1) Administer oaths and affirmations;

(2) Issue subpoenas (within the scope of the panel's jurisdiction) to compel the attendance of witnesses to testify before the panel, or to authorize the Director to issue subpoenas at the chair's request;

(3) Require the production of books, papers and documents;

(4) Determine the admissibility of evidence;

(5) Limit the scope of testimony; and

(6) Dispose of procedural motions and requests.

When the chair is not present, the vice chair or designated temporary chair shall be empowered to perform all acts prescribed for the chair.

(C) A majority of the panel members shall constitute a quorum at any meeting, and a majority of those present and eligible to vote may take official action. No member shall be eligible to vote on the findings and recommendations of a panel unless that member attended all meetings at which the panel received evidence on that item.

(D) Subpoenas issued pursuant to Subsection (B) shall give reasonable notice of the date, time and place for the taking of testimony. The chair may authorize the payment of reasonable expert witness fees when necessary, subject to the availability of funds. If a witness refuses to attend and testify or produce books, papers or other documents as required by subpoena the panel may petition the district court to order the witness to appear and testify or to produce this requested books, papers or documents.

(E) The Department shall make available to a hearing panel any personnel file or other material necessary for the panel to conduct a review. Upon completion of proceedings before a screening panel or hearing panel, the panel shall return to the Department all materials and copies of materials received from the Department, unless the matter is one which has been referred to a hearing panel by a screening panel.

(F) Panel members shall consider all matters in a fair and impartial manner. A panel member who has a personal bias or prejudice in the outcome of a proceeding shall not sit on a panel hearing that matter. Personal interest in the outcome of a proceeding does not include holding or manifesting a political or social belief where such belief does not preclude objective consideration of a case on its merits. Examples of personal bias include, but are not limited to:

(1) A familial relationship or close friendship with persons material to the proceedings;

(2) Having witnessed events material to the proceedings;

(3) Being a party to or witness associated with the proceedings;

(4) Having a financial interest in the outcome of the proceedings; or

(5) Holding a bias that is sufficient to impair the panel member's impartiality.

Prior to the commencement of any proceeding before the panel, the Department and, if applicable, the complaining party or officer whose conduct is under review, may submit a motion to disqualify a panel member for personal bias, stating with particularity the grounds for such disqualification. After consideration, the panel shall either deny the motion and direct the proceedings to go forward or cause the disqualified member to be removed. A panel member shall abstain from voting on any motion to disqualify that member. A panel member may withdraw from a proceeding where the member deems himself or herself unqualified to participate for any reason. When a member is disqualified, the proceedings shall be continued in order to allow the Director to randomly select another panel member. When the person disqualified is a member of the screening panel, the member shall abstain from voting. Such disqualification shall be effective only as to the matter in which the motion to disqualify was submitted.

(G) The chair of a hearing panel shall determine the order of taking testimony. Questions may be posed by the chair, other panel members, or counsel for the Review Board. The officer whose conduct is under review shall have the right to have counsel or another representative of the officer's choosing present during the questioning of the officer. The chair, at his or her discretion, may permit the Department, an officer whose conduct is under review, or their counsel or representatives to be present during the questioning of any witness. Following questioning by the chair, by other panel members and by counsel for the Review Board, the chair, at his or her discretion, may permit the Department, an officer whose conduct is under review, or their counsel or representatives to question the witness. The scope of questions, as well as any additional questioning, shall be determined by the chair.

(H) The chair of a hearing panel, in his or her discretion, may permit the Department, an officer whose conduct is under review, or their counsel or representatives an opportunity to present testimony and other evidence to the panel. When a hearing panel is reviewing an internal investigation of an officer or a complaint against an officer, the officer shall, at a minimum, have the opportunity to be heard by the panel.

(I) In any proceeding before a hearing panel, the officer who was the subject of the investigation under review may represent himself or herself, or be represented by counsel or by another person of the officer's choosing. The officer is solely responsible for obtaining such representation, as to which the Review Board, the panel, the FAC, the Department, the County and the City have no obligation.

(J) Evidence may be admitted if it is of a type commonly relied upon by reasonable and prudent persons in the conduct of their affairs. Patently unreliable, irrelevant, immaterial or unduly repetitious evidence may be excluded. Notice may be taken of judicially cognizable facts and of generally recognized technical or scientific facts.

(K) At the conclusion of evidentiary proceedings, if any, the panel members shall privately deliberate and vote upon the action to be taken.

(L) The proceedings of a screening panel or hearing panel shall be closed to the public. All records submitted to the panel which contain information declared confidential by law, including by judicial precedent, and all records of proceedings before the panel, except public notices and the panel's findings and recommendations, are deemed confidential. Custody of all records and copies of records which are designated as confidential pursuant to this Subsection shall be maintained by the Director, who shall make the records available to the panel members for review at the office of the Director and during proceedings of the panel. No panel member shall record, copy or remove from the office of the Director or the location of proceedings before the panel any confidential record or copy of any confidential record. It shall be unlawful for any person to disclose records or the contents of records designated as confidential by this Subsection which that person has obtained through proceedings under this Chapter, except:

(1) In the course of administration of this Chapter;

(2) To authorized representatives of the Department; or

(3) Upon lawful order by a court of competent jurisdiction.

Any person violating the confidentiality provisions of this Subsection (L) shall be guilty of a misdemeanor and upon conviction shall be punished by imprisonment for a term not to exceed six months, or a fine not to exceed one thousand dollars, or both such fine and imprisonment. Violation of the confidentiality provisions of this Subsection (L) shall also be grounds for removal of a member from the Review Board pursuant to the provisions of Subsection (K) of Section 2.64.040. The findings and recommendations of a panel or panel member shall not contain information declared confidential by law, including by judicial precedent, unless such information is designated as confidential and is disclosed in accordance with the provisions of this Section that pertain to confidential records.

(M) A panel shall not abridge the rights of an officer which are granted pursuant to any applicable collective bargaining agreement, contract, or law.

(N) A hearing panel must complete its review and make its determination as to any request for review referred to it by the screening panel within ninety days after the date the matter is first considered by the hearing panel. The ninety-day period shall be tolled during any ongoing investigation or proceeding which interferes with the panel's jurisdiction, as described in Section 2.64.060, or during any litigation concerning the panel's jurisdiction or a subpoena issued by the panel. Upon expiration of the ninety-day period, a panel shall have no authority to continue a review or make a recommendation.

(O) Consideration of a citizen complaint against an officer or a request for review of an internal investigation of an officer by a panel shall not stay the imposition of discipline or other action by the Department. The screening panel or the hearing panel to which the matter has been referred, however, may recommend to the Department that discipline be stayed pending investigation or review.
(Ord. 6032 § 8, 2009: Ord. 5149 § 11, 1999)

2.64.110 Appeal—Generally.

An officer who is the subject of an internal investigation which has been reviewed by a hearing panel may appeal the panel's recommendation through the procedures established in the applicable collective bargaining agreement. In the absence of such procedures, or in the case of an officer who is not covered by a collective bargaining agreement, appeal shall be through the procedures established in the Department's Civil Service Rules.
(Ord. 5149 § 12, 1999)

CHAPTER 2.70 YOUTH LEADERSHIP ADVISORY COUNCIL

2.70.010 Created.

There is created a Youth Leadership Advisory Council. As used in this Chapter, the term "Advisory Council" refers to the Youth Leadership Advisory Council. The purpose of the Advisory Council is to:

(1) Create and foster opportunities for civic engagement and leadership for youth and provide youth with opportunities to engage with City staff and elected officials; and

(2) Advise and make recommendations to the City Council concerning subjects of particular interest to youth, including, without limitation, education, youth development, social programs and initiatives.
(Ord. No. 6899, § 1, 4-2-25)

2.70.020 Composition; appointment and nomination.

(A) The Advisory Council shall consist of no less than nine voting members and no more than twenty-three voting members who are appointed by the City Council, and one non-voting staff member, ex officio, who will be assigned to the Advisory Council by the Director of Youth Development and Social Initiatives, or the Director's designee. Each voting member shall be a resident of the City or attend school within the City. Persons appointed to the Advisory Council shall receive no compensation.

(B) Each member of the City Council other than the Mayor is entitled to nominate up to three persons for appointment to the Advisory Council. Each person so nominated must be a resident of, or attend school within, the ward represented by the Council member making the nomination.

(C) The Mayor is entitled to nominate up to five persons for appointment to the Advisory Council. Each person so nominated must be a resident of, or attend school within, the City but may be a resident of any ward of the City.
(Ord. No. 6899, § 1, 4-2-25)

2.70.030 Member qualifications.

Members of the Advisory Council shall, when appointed, be students at the high school level, from schools, whether public, private or home school, that serve the City.
(Ord. No. 6899, § 1, 4-2-25)

2.70.040 Officers.

The Advisory Council shall annually elect from among its members a chairperson, a vice chairperson, a secretary, and such other officers as deemed necessary or appropriate. Officers shall serve a term of one year, or until a successor is elected. The duties of the officers shall respectively be as are usually carried by such officers.
(Ord. No. 6899, § 1, 4-2-25)

2.70.050 Terms.

The Advisory Council shall serve at the pleasure of the City Council. Members of the Advisory Council will serve staggered terms of two academic years. For the purposes of this Chapter, the term "academic year" is defined as August of a given calendar year through May of the subsequent calendar year. If the term of a member of the Advisory Council expires while such member is still attending high school, that member will be permitted to serve a second term on the Advisory Council. Upon its establishment, the Advisory Council may be composed of a certain number of members who will serve terms of four academic years. The preferred composition of the initial Advisory Council is:

(1) Fifty percent of the Advisory Council's membership will be starting ninth grade during the first academic year of such member's appointment, and

(2) Such ninth-grade members of the Advisory County will be appointed for initial terms of four academic years.

(3) The remaining fifty percent of the Advisory Council, consisting of members who will be starting tenth to twelfth grade during the first academic year of such member's appointment, will be appointed for terms of two academic years.

Following the first two academic years after the establishment of the Advisory Council, its membership will revert to staggered terms of two academic years.
(Ord. No. 6899, § 1, 4-2-25)

2.70.060 Rules; City liason; quorum.

(A) The Advisory Council may adopt a code of conduct, bylaws, and make rules and regulations governing its meetings.

(B) The Director of Youth Development and Social Initiatives, or the Director's designee, shall serve ex-officio to represent the City's interests and to function as liaison between the Advisory Council and the City.

(C) A majority of the appointed Advisory Council members shall constitute a quorum.

(D) No other person or substitute may participate in any Advisory Council meeting in the place of an appointed member.
(Ord. No. 6899, § 1, 4-2-25)

2.70.070 Powers and duties.

The functions, powers, and duties of the Advisory Council shall be as follows:

(1) The Advisory Council shall serve as an advisory body to the City Council and City staff, to review City involvement in civic engagement for youth, youth leadership, education, and youth development.

(2) Members of the Advisory Council are encouraged to prepare model resolutions and consider ideas for ordinances to be presented to the Advisory Council for possible consideration by the City Council and other bodies.

(3) The Advisory Council shall submit a report to the City Council at least once per academic year, setting forth the Advisory Council's efforts, results and future plans.

(4) The Advisory Council shall meet no fewer than five times per academic year.

(5) If any member of the Advisory Council has two unexcused absences during any academic year, such member will be subject to removal from the Advisory Council. For the purposes of this Chapter, "unexcused absence" is defined as an absence for which the chairperson, vice chairperson or secretary has not been notified in advance of the Advisory Council meeting.

(6) The Advisory Council shall not operate in a regulatory or authoritative capacity. The Advisory Council shall act in an advisory capacity only.

(7) The Advisory Council may advise the City Council and City staff regarding revisions to this Chapter. The Advisory Council shall make requests and recommendations in writing to City Council and City staff.

(8) The Advisory Council shall comply with all provisions of federal, state, and local laws, including Chapter 241 of the Nevada Revised Statutes (Nevada's open meeting law).
(Ord. No. 6899, § 1, 4-2-25)

Title 3

PERSONNEL

Chapter 3.04 Civil Service Rules

3.04.010 Adoption by reference.
3.04.020 Board—Eligibility after service.
3.04.030 Board—Compensation.

Chapter 3.08 Personnel Policies

3.08.010 Adoption by reference.

Chapter 3.12 Loyalty Oath

3.12.010 Required—Designated.
3.12.020 Filing of signed copy.
3.12.030 Identification card—Registration with Police required.
3.12.040 Violations.

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3.16.010 Designated.
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Chapter 3.20 Employee Suggestion Plan

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3.28.010 Definitions.
3.28.020 Disclosure—Appeal of certain actions.
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CHAPTER 3.04 CIVIL SERVICE RULES

3.04.010 Adoption by reference.

A certain document, three copies of which are on file in the Office of the Clerk and designated as the Civil Service Rules, as revised and approved by the Civil Service Board on June 22, 1992, is herby adopted by reference and made part of this Chapter as if the same were fully set forth herein.
(Ord. 3671 § 1, 1992: Ord. 2201 § 2, 1981: prior code § 1-18-1)

3.04.020 Board—Eligibility after service.

No incumbent or former member of the Board of Civil Service Trustees who has served at least two consecutive full terms shall be eligible for appointment to a further term until at least two years have elapsed since the expiration of his or her current term or most recent term, as the case may be. Members of the Board serve at the pleasure of the City Council.
(Ord. No. 6832, § 8, 3-1-23; Ord. 3311 §§ 3, 4, 1987)

3.04.030 Board—Compensation.

Each member of the Board of Civil Service Trustees shall receive from the City, as and for compensation for his or her services thereon, the sum of fifty dollars for each meeting of the Board that he or she actually attends.
(Ord. 3311 §§ 4, 5, 1987)

CHAPTER 3.08 PERSONNEL POLICIES

3.08.010 Adoption by reference.

That certain document, three copies of which are on file in the office of the City Clerk, and designated as "Personnel Policies Manual, 1997 Edition," is hereby adopted and by this reference is made a part of this Code, to the same effect as if set out in full herein. The City Manager is authorized to revise the Manual, in whole or in part and from time to time as the need arises. Any revision shall indicate the fact of City Manager approval and the approval date or effective date, and shall be filed in the office of the City Clerk.
(Ord. 5222 § 1, 2000: Ord. 5039 § 1, 1997: Ord. 3062 § 2, 1983)

CHAPTER 3.12 LOYALTY OATH

3.12.010 Required—Designated.

Every person now in the employ of the City, and every person who makes application for appointment or employment shall, as a condition of such appointment or employment, take the following oath:

I, _____, do solemnly swear (or affirm) that I will support, protect and defend the Constitution and Government of the United States and the constitution and

government of the State of Nevada against all enemies, whether domestic or foreign, that I will bear true faith, allegiance, and loyalty to the same, any ordinance, resolution, or law of any state convention or legislature to the contrary notwithstanding and that I will well and faithfully perform all of the duties of the position in which I am about to enter, (if an oath) so help me God or (if an affirmation) under the pains and penalties of perjury.
(Ord. 3392 § 1, 1988: Ord. 461 § 1, 1951: prior code § 1-6-1 (part))

3.12.020 Filing of signed copy.

A copy of the oath signed by every person in the employ of the City, and every person who makes application for appointment or employment as provided in Section 3.12.010, shall be placed in the employee's file in the Department of Personnel and Employee Relations.
(Ord. 461 § 2, 1951: prior code § 1-6-1 (part))

3.12.030 Identification card—Registration with Police required.

Every person now in the employ of the City or who shall, after the effective date of the 1951 ordinance codified in this Chapter, become employed, in addition to taking the oath set forth in Section 3.12.010, shall register his name and address with the Metropolitan Police Department and shall have his thumbprints, fingerprints and photograph taken and files with the Bureau of Identification of the City and have issued to him without expense an identification card showing compliance with this Chapter, such identification card to be returned to the City upon the completion of the employment of such person with the City.
(Ord. 461 § 3, 1951: prior code § 1-6-1 (part))

3.12.040 Violations.

If any employee refuses to take the oath or who takes the oath, knowing it to be false, or who, having taken it, subsequently violated any of its provisions or refuses to register with the Police Department as herein provided within thirty days from the effective date of the 1951 ordinance codified in this Chapter, or within thirty days of his or her employment with the City, record of the same shall be made in the employee's file in the Department of Personnel and Employee Relations of the City and such employee shall be discharged.
(Ord. 461 § 4, 1951: prior code § 1-6-1 (part))

CHAPTER 3.16 HOLIDAYS

3.16.010 Designated.

Every employee of the City, in addition to earned vacation, shall be entitled to vacation on the following holidays during the year:

(A) January 1st (New Year's Day);

(B) The third Monday in January (Martin Luther King, Jr.'s Birthday);

(C) The third Monday in February (Washington's Birthday);

(D) The last Monday in May (Memorial Day);

(E) July 4th (Independence Day);

(F) The first Monday in September (Labor Day);

(G) The last Friday in October (Nevada Day);

(H) November 11th (Veterans Day);

(I) The fourth Thursday in November (Thanksgiving Day);

(J) The Friday following the fourth Thursday in November (Family Day);

(K) December 25th (Christmas Day);

(L) Any day that may be declared a holiday by the President of the United States, Governor of the State, or the Mayor of the City, except for any Presidential appointment of the fourth Monday in October as Veterans Day.

(Ord. No. 6245, § 4, 4-3-13; Ord. 2062 § 2 (part), 1980: Ord. 1438 § 1 (part), 1970: Ord. 774 § 1, 1958: prior code § 1-6-2 (part))

3.16.020 Saturday or Sunday holidays.

If any of the holidays designated in Section 3.16.010 fall on Sunday, the following Monday shall be considered as the legal holiday. If any of the above holidays fall on Saturday, the preceding Friday shall be considered the legal holiday.

(Ord. 2062 § 2 (part), 1980: Ord. 1438 § 1 (part), 1970: Ord. 774 § 2 (part), 1958: prior code § 1-6-2 (part))

3.16.030 Entitlement to full-time employees.

All full-time employees in the service of the City shall be entitled to time off for legal holidays when such holidays fall on regularly scheduled workdays, as provided in the Civil Service Rules of the City.

(Ord. 2062 § 2 (part), 1980: Ord. 1438 § 1 (part), 1970: Ord. 774 § 2 (part), 1958: prior code § 1-6-2 (part))

CHAPTER 3.20 EMPLOYEE SUGGESTION PLAN

3.20.010 Establishment.

The City Manager is authorized to establish and implement a program to encourage employee suggestions that result in and improvement in the quality of City services or greater efficiency in the operation of City government. The program may include cash awards in amounts and within limits that may be established from time to time by the City Council.

(Ord. 3595 § 2, 1991)

CHAPTER 3.24 BACKGROUND INVESTIGATIONS

3.24.010 Fingerprinting.

(A) The City is authorized to require all applicants for employment with the City to submit to a background investigation that will include the receipt of information from the Federal Bureau of Investigation regarding the background and personal history of such applicants. In each such case:

(1) The applicant is required to submit to fingerprinting.

(2) A complete set of fingerprints will be taken and will be forwarded to the Central Repository for Nevada Records of Criminal History.

(3) The Central Repository for Nevada Records of Criminal History is authorized to submit the fingerprints to the Federal Bureau of Investigation (FBI) for its report and to exchange fingerprint data with the FBI.

(4) The purpose for the submission of fingerprints is to allow for a State and Federal criminal records investigation regarding the applicant to determine suitability for employment.

(B) This Section is adopted under the authority of, and consistent with, NRS 239B.010(1)(b) and Public Law 92-544, and should be read and interpreted in connection therewith.
(Ord. 6000 § 1, 2008: Ord. 5979 § 1, 2008)

CHAPTER 3.28 APPEALS—REPRISALS/RETALIATORY ACTION

3.28.010 Definitions.

"City employee" means any person who performs public duties under the direction and control of a City officer for compensation paid by or through the City.

"City officer" means a person elected or appointed to a position with the City that involves the exercise of a local governmental power, trust or duty, including:

(A) Actions taken in an official capacity which involve a substantial and material exercise of administrative discretion in the formulation of City policy;

(B) The expenditure of City money; and

(C) The enforcement of City ordinances and regulations.

"Improper governmental action" means any action taken by a City officer or City employee in the performance of his or her official duties, whether or not the action is within the scope of his or her employment, which is:

(A) In violation of any State law or regulation;

(B) In violation of a City ordinance;

(C) An abuse of authority;

(D) Of substantial and specific danger to the public health or safety; or

(E) A gross waste of public money.

"Reprisal or retaliatory action" includes:

(A) The denial of adequate personnel to perform duties;

(B) Frequent replacement of members of the staff;

(C) Frequent and undesirable changes in the location of an office;

(D) The refusal to assign meaningful work;

(E) The issuance of letters of reprimand or evaluations of poor performance;

(F) A demotion;

(G) A reduction in pay;

(H) The denial of a promotion;

(I) A suspension;

(J) A dismissal;

(K) A transfer;

(L) Frequent changes in working hours or workdays; or

(M) If the employee is licensed or certified by an occupational licensing board, the filing with that board, by or on behalf of the employer, of a complaint concerning the employee, if such action is taken, in whole or in part, because the City officer or employee disclosed information concerning improper governmental action.

(Ord. No. 6401, § 2, 2-18-15)

3.28.020 Disclosure—Appeal of certain actions.

A City officer or City employee who has disclosed information concerning improper governmental action and believes that, as a result of that disclosure, a reprisal or retaliatory action has been taken against the officer or employee, may file an appeal to determine whether reprisal or retaliatory action has been taken. The appeal must be filed not later than two years after the information is disclosed and not later than sixty days after the alleged reprisal or retaliatory action was taken against the officer or employee.

(Ord. No. 6401, § 3, 2-18-15)

3.28.030 Filed in writing required.

An appeal filed pursuant to Section 3.28.020 of this Chapter must be filed in writing with the City Manager. The appeal must include or contain a statement that sets forth with particularity:

(A) The facts and circumstances under which the disclosure of improper governmental action was made; and

(B) The reprisal or retaliatory action that is alleged to have been taken against the City officer or City employee.

Upon receipt of a timely appeal, the matter shall be assigned to a hearing officer appointed pursuant to Section 2.22.100 of this Code. The hearing officer shall set a hearing date that is not later than twenty working days after the appeal was filed, unless the time limitation is waived, in writing, by the City officer or City employee or the hearing officer is unable to schedule a hearing within that period, in which case the hearing must be scheduled for the earliest possible date thereafter. Written notice of the time and place of the hearing must be given at least ten calendar days in advance.
(Ord. No. 6401, § 4, 2-18-15)

3.28.040 Hearing.

At a hearing held pursuant to Section 3.28.030 of this Chapter:

(A) The person filing the appeal may represent himself at the hearing or be represented by an attorney or other representative;

(B) Technical rules of evidence do not apply;

(C) The hearing officer may determine the order and conduct of the hearing, administer oaths and affirmations, and examine witnesses;

(D) The hearing may be continued or recessed for good cause shown;

(E) Upon application by the person filing the appeal or the person alleged to have taken reprisal or retaliatory action, the hearing officer may:

(1) Issue subpoenas requiring the attendance and testimony of witnesses at the proceeding;

(2) Direct that the person filing the appeal or the person alleged to have taken reprisal or retaliatory action participate in a discovery conference at which both persons and their counsel may put questions, receive answers, or request and receive copies of relevant documents or examine relevant documents and records and any other physical evidence which is intended to be used at the hearing.

(Ord. No. 6401, § 5, 2-18-15)

3.28.050 Decision.

After the hearing and consideration of the evidence, the hearing officer shall render a decision in writing, setting forth the reasons therefor. If the hearing officer determines that the action taken was a reprisal or retaliatory action, he or she may issue an order directing the proper person to desist and refrain from engaging in such action.
(Ord. No. 6401, § 6, 2-18-15)

Title 4

REVENUE AND FINANCE

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CHAPTER 4.04 FINE AND FORFEITURE REVENUES

4.04.010 Accounting.

The revenue derived from fines and forfeitures for the violation of the ordinances of the City shall be paid into the treasury of the City in the manner and at the times prescribed in Section 4.04.020.
(Ord. 3653 § 1, 1992: Ord. 2031 § 1, 1979: prior code § 1-17-16)

4.04.020 Revenues receipted and deposited.

All revenues and other cash receipts collected by any City department, court or agency must be receipted at the time received and deposited with the City Treasurer by the close of the following business day.
(Ord. 3653 § 2, 1992)

CHAPTER 4.08 BUDGETING

4.08.010 Departmental budget estimates.

Prior to the first Wednesday of February the heads of departments shall send to the Director of Finance an estimate of costs in detail to conduct the operations of their respective departments for ensuing fiscal year commencing July 1st.
(Ord. No. 6816, § 8, 8-17-22; Ord. 3653 § 3, 1992: Ord. 882 § 1, 1961: Ord. 32 § 3: prior code § 1-17-1)

CHAPTER 4.12 CLAIMS AND DEMANDS

4.12.010 Claim defined.

"Claim," as used in this chapter, unless the context requires otherwise, a demand for payment for materials and supplies received and for services rendered.
(Ord. 3653 § 5, 1992: Ord.240 § 1, 1938: prior code § 1-17-2)

4.12.020 Advocacy by officers.

No City officer shall, except for his own service, or expenses incurred by him on behalf of the City, present any claim for allowance against the City, or in any way, except in the discharge of his official duty, advocate the relief asked in a demand made by any other person.
(Ord. 3653 § 5, 1992: Ord. 240 § 2 (part), 1938: prior code § 1-17-3)

4.12.030 Right to oppose.

Any person may appear before the City Council and oppose the payment of any claim made against the City.
(Ord. 3653 § 6, 1992: Ord. 240 § 2 (part), 1938: prior code § 1-174)

4.12.040 Deduction of debt to city.

No claim on the City shall be allowed by the City Council in favor of any person in any way in debted to the City, without first deducting such indebtedness.
(Ord. 3653 § 7, 1992: Ord. 240 § 3 (part), 1938: prior code § 1-17-5)

4.12.050 Allowance to officers restricted.

No claim on the City may be allowed by the City Council in favor of any officer whose account has not been rendered and approved, or who has neglected or refused to perform any of the duties of his office.
(Ord. 3653 § 8, 1992: Ord. 240 § 3 (part), 1938: prior code § 1-176)

4.12.060 Form of demands—Deadline for filing.

(A) The City Council must not hear, consider, credit, audit or allow any claim in favor of any person against the City, unless the same is itemized, giving names, dates and particular services rendered, character of work done, number of days engaged, supplies or materials furnished, to whom and quantity and price to be paid therefor, and unless the same is presented to and filed with the Director of Finance within six months after the last item of the order was received or services rendered.

(B) If the City Council does not hear or consider a claim for the reason that it is not itemized or certified, the City Council shall cause notice to be given to the claimant or his attorney of that fact, and shall give time to have the same itemized and certified, provided that in no case shall such time be enlarged or given beyond the original six-month limitation mentioned above.
(Ord. 3653 § 9, 1992: Ord. 240 § 4, 1938: prior code § 1-17-7)

4.12.070 Negligence-based claims.

Claims for damages against the City which are based on the alleged negligence of the City, its agents or employees, shall be presented to the City Clerk in writing and shall set forth the time and place of the accident, names and addresses of all witnesses, a statement of the facts surrounding the accident, a description of the injuries suffered and the amount of damages claimed.
(Ord. 1985 § 2, 1979: prior code § 1-17-8)

4.12.090 Presentation to Clerk—Initial processing.

All claims against the City for materials, supplies and services purchased by the City shall be presented to and filed with the Department of Finance. With respect to each claim, officers or employees of the Department shall:

(A) Note thereon the date the claim was received; and

(B) Attach to the claim a copy of the purchase order by which the expenditure was authorized, together with such evidence as is available of the receipt of goods or services referred to on the claim upon which shall be shown the written approval or disapproval of the head of the department or designee as to the materials and supplies received or services rendered. The process used (and evidence of the process used) may be in electronic form.

(Ord. No. 6241, § 1, 3-20-13; Ord. 3653 § 10, 1992: Ord. 240 § 7, 1938: prior code § 1-17-10)

4.12.100 Verification—Warrant—Preparation—Register.

The Department of Finance shall examine and verify all claims filed against the City as to their validity, accuracy and required previous approvals, and shall prepare for approval a check upon the treasury representing such demand, which check shall specify in whose favor it is drawn and the amount thereof, together with the name or reference number of the fund and of the bank out of which it is payable. Notation of each such claim and check shall be made in a register book of claims and checks, setting forth the number of the claim and check, in whose favor the check is drawn, and the amounts thereof, together with dates and the name or reference number of the fund and of the bank out of which the check is payable.
(Ord. No. 6241, § 2, 3-20-13; Ord. 3653 § 12, 1992: Ord. 882 § 2, 1961: Ord. 240 § 8, 1938: prior code § 1-17-11)

4.12.140 Warrants—Restriction—Signature and distribution.

(A) No check (whether in hard copy or electronic form) shall be drawn or evidence of indebtedness issued unless there is sufficient cash or cash equivalents in the treasury legally applicable to the payment of the same, except as provided by law.

(B) All checks in hard copy form that are so drawn shall be forwarded to the City Treasurer's Office, together with a signed copy of the register book of claims. If payment of the claim is deemed appropriate and correct, the check shall be signed by the City Manager, Chief Financial Officer, Director of Finance or City Treasurer and distributed to the claimants legally entitled thereto.
(Ord. No. 6241, § 3, 3-20-13; Ord. 3653 § 12, 1992: Ord. 240 § 12 (part), 1938: prior code § 1-17-14)

4.12.150 Warrants—Facsimile signatures.

Officers who are authorized by this Chapter to sign instruments may use a facsimile signature produced by means of an electronic process and signature stamp in place of their

handwritten signatures under the circumstances described in this Section. The use of the facsimile signature described in the preceding sentence may take place in cases of emergency and upon approval of the City Council, subject to the following conditions:

(A) The electronic process shall be of such nature that the facsimile signature is secured, with access thereto being controlled by the Department of Innovation and Technology in accordance with recognized and appropriate technology security controls.

(B) The use of the facsimile signature shall be made only under the direction and supervision of the officer whose signature it represents.

(C) All signature stamps shall at all times be kept in a safe or vault, securely locked, when not in use, to prevent any misuse of the same.

(Ord. No. 6816, § 9, 8-17-22; Ord. No. 6241, § 4, 3-20-13; Ord. 3653 § 13, 1992: Ord. 651 § 2, 1955: prior code § 1-12-1)

4.12.160 Bond payments unaffected.

Nothing in this chapter shall be construed as preventing the payment by the City Treasurer of the bonded indebtedness of the City and the interest coupons thereof, or payment on account of street improvement bonds and coupons in accordance with the laws authorizing the issuance of bonds.

(Ord. 240 § 15, 1938: prior code § 1-17-15)

4.12.170 Reserved.

Editor's note—Ord. No. 6241, § 6, adopted March 20, 2013, repealed § 4.12.170, which pertained to submission to department of finance and derived from Ord. No. 3653, 1992.

4.12.180 Accounts with public funds.

No City department, court or agency shall open or maintain any bank account where public funds are on deposit unless authorized by the Director of Finance or City Treasurer. Accounts with public funds on deposit must bear the signature of the City Manager, Chief Financial Officer, Director of Finance or City Treasurer.

(Ord. No. 6241, § 5, 3-20-13; Ord. 3653 § 15, 1992)

CHAPTER 4.16 LOST, ABANDONED OR CONFISCATED PROPERTY

4.16.010 Provisions to govern disposal.

Any personal property acquired by the City, whether by confiscation, abandonment or being lost, may be disposed of by the City in the manner set out in this Chapter.

(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1 (part))

4.16.020 Records.

The Procurement Officer of the City shall maintain a record of all such property in the City's possession.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(A))

4.16.030 Sale authorized when.

Upon the expiration of sixty days after the property has come into the possession of the City, the Procurement Officer is authorized to conduct a sale of all such property unclaimed.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(B)(part))

4.16.040 Notice of sale.

(A) Notice of such sale shall be given by publication in a newspaper of general circulation within the County, with the publication to appear twice within a period of ten days with at least five days intervening between such advertisement.

(B) The notice shall state:

(1) A general description of the property to be sold; and

(2) The time and place where the sale will be conducted.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(B)(1, 2))

4.16.050 Conduct of sale—Unsold property.

(A) Such sale shall be conducted by public auction or by sealed bids under the direction of the Procurement Officer.

(B) In the event no bids are received on the property or the property or the bids received are rejected by the City, the Procurement Officer shall report to the Board of Commissioners such fact, together with a description of the property. The Board may thereafter direct that the property be given to any recognized charitable organization, retained by the City or disposed of, as the Board shall direct.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(B)(3))

4.16.060 Terms of sale.

Sales shall be for cash, certified check or money order.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(B)(4))

4.16.070 Proceeds of sale.

Proceeds of said sales, after the payment of necessary costs, shall be deposited in the City General Fund.
(Ord. 1435 § 1 (part), 1970: prior code § 1-20-1(B)(5))

CHAPTER 4.20 CONVENTION AUTHORITY ROOM TAX AND GAMING TAX

4.20.010 Purpose.

(A) The taxes imposed by Sections 4.20.030 and 4.20.080 are for the purpose of constructing and supporting convention halls and related facilities by the Las Vegas Convention and Visitors Authority for the benefit of the City and its residents and for the fulfillment of statutory requirements of NRS 244A.645 and any agreements of the City with the Las Vegas Convention and Visitors Authority and other government entities in Clark County, Nevada, in pursuance thereof concerning the pledge or commitment of these taxes.

(B) The taxes imposed by Section 4.20.035 are for the purposes of supporting the State fund for the promotion of tourism; advertising the resources of the City which are related to tourism, including available accommodations, transportation, entertainment, natural resources and climate, and to promote special events which are related thereto; and supporting capital projects of the Clark County School District.
(Ord. No. 6815, § 10, 8-17-22; Ord. 5010 § 1, 1997: Ord. 3722 § 2, 1993: Ord. 3052 § 2, 1983: Ord. 2247 § 2 (part), 1981: prior code § 5-2-1)

4.20.020 Definitions.

"Director" means the Director of Finance or a designee.

"Operator" means any person who owns, leases, controls, manages, brokers, coordinates, makes available or otherwise arranges for, or operates an establishment that qualifies as transient lodging.

"Transient lodging" or "transient lodging establishment" means any establishment, facility, structure, or portion of any structure which is located within the City and is occupied or intended or designed for occupancy primarily by transient guests who pay rent for dwelling, lodging, or sleeping purposes.
(Ord. No. 6815, § 11, 8-17-22; Ord. 2247 § 2 (part), 1981: prior code § 5-2-2)

4.20.030 Room taxes—Imposed.

(A) There is fixed and imposed a tax on the room revenue derived by each hotel, motel, or other establishment which offers rooms to the public on a daily basis or for periods of less than a week which are located within the City, per the following schedule:

(1) Five percent of all moneys received from room rentals by establishments have seventy-five or more rooms;

(2) Four percent of all moneys received from room rentals by all establishments having less than seventy-five rooms.

(B) Beginning on January 15, 2017, as required by Section 58 of Senate Bill 1 of the 30th (2016) Special Session of the Nevada Legislature, and independent of and in addition to the tax imposed by Subsection (A), there is fixed and imposed a tax on the room revenue derived

by each hotel, motel, or other establishment which offers rooms to the public on a daily basis or for periods of less than a week which are located within the City, in the amount of one-half of one percent of the moneys received from room rentals.

(C) With respect to the additional tax described in Subsection (B) of this Section, and with respect to Senate Bill 1 referred to therein:

(1) The schedule for payment of the tax, the mechanism for collecting the tax, and other associated matters shall be as set forth in this Chapter, except with respect to the availability of a collection fee and except as otherwise required, provided or limited by Senate Bill 1;

(2) The proceeds of the tax must be distributed, pledged, accounted for separately, and used in accordance with the requirements and limitations set forth in Section 59 of Senate Bill 1; and

(3) The tax must be imposed for a period that ends on the earlier of:

(a) The date on which the notes, bonds or other securities issued pursuant to Section 61 of Senate Bill 1 are fully repaid; or

(b) October 17, 2049.

(Ord. No. 6566, § 1, 1-4-17; Ord. 2247 § 2 (part), 1981: prior code § 5-2-3 (part)(A, B))

4.20.035 Room tax—Supplemental tax imposed.

There is fixed and imposed a supplemental tax on all room revenues derived by each hotel, motel or other establishment located within the City which offers rooms to the public on a daily basis or for periods of less than one week in the amount of two percent of all moneys received from room rentals by that establishment.

(Ord. 5010 § 2, 1997: Ord. 3052 § 1, 1983)

4.20.037 Reserved.

Editor's note—Ord. No. 6815, § 12, adopted August 17, 2022, repealed § 4.20.037, which pertained to room tax—improvement district and derived from Ord. No. 3722, 1993.

4.20.040 Room tax—Resident guests.

Occupants renting rooms in such establishments as are contemplated in Sections 4.20.030 and 4.20.035 shall pay the tax for the first thirty days of continuous occupancy regardless of the period upon which the rental is based. After thirty days' continuous occupancy of a room in an establishment covered by Sections 4.20.030 and 4.20.035, the occupant shall be considered a resident guest and not subject to the payment of room tax.

(Ord. No. 6815, § 13, 8-17-22; Ord. 3722 § 4, 1993: Ord. 3052 § 3, 1983: Ord. 2247 § 2 (part), 1981: prior code § 5-2-3(C))

4.20.050 Room tax—Additional nature.

The taxes fixed by Sections 4.20.030 and 4.20.035 are in addition to those imposed by Chapter 6.46.
(Ord. No. 6815, § 14, 8-17-22; Ord. 3722 § 5, 1993: Ord. 3052 § 4, 1983: Ord. 2247 § 2 (part), 1981: prior code § 5-2-3(D))

4.20.060 Room tax—Collection fee.

A collection fee is allowed for operators of establishments referred to in Sections 4.20.030 and 4.20.035, in an amount equal to two percent of the amount of the tax due, provided that all the taxes due are paid to the City on or before the fifteenth day of the month following the month for which the tax is due. No collection fee is allowed for payments made after that date.
(Ord. No. 6815, § 15, 8-17-22; Ord. 3722 § 6, 1993: Ord. 3052 § 5, 1983: Ord. 2247 § 2 (part), 1981: prior code § 5-2-3(E))

4.20.070 Room tax—Payment.

(A) The room tax imposed by Sections 4.20.030 and 4.20.035 shall be shown as an add-on to the charge for occupancy of the rooms and collected by the operator (or an accommodations facilitator, if applicable, and if not covered by the definition of "operator"). The operator (and an accommodations facilitator, if applicable, and if not covered by the definition of "operator") are liable to the City for such taxes whether or not they are actually collected. Such taxes shall be remitted to the City by the operator or accommodations facilitator on or before the fifteenth day of the month following the month in which the taxes accrued and shall be deemed delinquent if not paid on or before such date.

(B) Except as otherwise provided in Subsection (C), remittance of taxes must be accompanied by supporting documentation, including reports that may have been required or are required by the City. Such documentation and reports must be submitted for each month regardless of whether or not the corresponding rooms or property have been rented during the month being reported. Monthly reports must include at a minimum, and particularized for each room or property:

(1) Gross revenue collected;

(2) City license number;

(3) Amount of room taxes collected, if any; and

(4) Amount of allowable deductions, if any.

(C) An accommodations facilitator may submit required reports separately from the remittance of taxes; provided, however, that:

(1) Such reports must be submitted no later than five calendar days after the remittance deadline described in Subsection (A); and

(2) For any month regarding which required reports are not submitted by the remittance deadline described in Subsection (A), the collection fee otherwise available under Section 4.20.060 is not available for that month even if the remittance of fees is timely under Subsection (A).

(Ord. No. 6815, § 16, 8-17-22; Ord. 3722 § 7, 1993: Ord. 3052 § 6, 1983: Ord. 2247 § 2 (part), 1981: prior code § 5-2-6)

4.20.080 Gaming tax—Imposed.

There are hereby fixed and imposed license taxes on gaming revenues to be paid by all gaming licensees within the City, in addition to any license taxes that may be fixed or imposed elsewhere in this Code, according to the following schedule:

(A) Licensees having six or more games: twelve dollars per game per quarter;

(B) Licensees having two to five and one-half games: seven dollars and fifty cents per game, per quarter;

(C) Licensees having less than two games: three dollars per game, per quarter;

(In determining the number of games, craps, roulette, twenty-one, bingo games, race and sports books and wire betting service, each shall be considered a full game. All other games shall be considered one-half game each at one-half of the game charge.)

(D) Slot machines, if more than twelve within one establishment: seventy-five cents for each slot machine, per quarter;

(E) Slot machines, if twelve or less in one establishment: twenty-five cents for each slot machine, per quarter.

(Ord. 2247 § 2 (part), 1981: prior code § 5-24)

4.20.090 Gaming tax—Payment.

The gaming taxes imposed in Section 4.20.080 shall be paid semiannually in advance for the succeeding semiannual period, such amount being due on the fifteenth day of April for the first semiannual period, and again on the fifteenth day of October for the second semiannual period. All taxes not paid by these dates shall be deemed delinquent. Such taxes shall be paid to the Department. In the event a business begins operations during a semiannual period and such operations begin within three months prior to the date of the next gaming tax payment, the licensee of the business shall pay a prorated gaming tax equivalent to a three-month period of time.

(Ord. No. 6288, § 1, 11-20-13; Ord. 2247 § 2 (part), 1981: prior code § 5-2-5)

4.20.100 Late-payment penalty, interest.

Any licensee or operator (or accommodations facilitator, if applicable, and if not covered by the definition of "operator") failing to pay the taxes imposed by Sections 4.20.030, 4.20.035 and 4.20.080 by the due dates provided by this Chapter shall pay in addition to such tax, a

penalty of ten percent of the amount thereof, plus interest on the amount of such delinquency at the rate of one and one-half percent per month, or fraction thereof, from the date when such tax became due and payable until the date of payment.
(Ord. No. 6815, § 17, 8-17-22; Ord. 5010 § 3, 1997: Ord. 3722 § 8, 1993: Ord. 3161 § 1, 1985: Ord. 2247 § 2 (part), 1981: prior code § 5-2-7)

4.20.110 Delinquency collection.

(A) Whenever any licensee or operator shall be delinquent in the payment of any obligation imposed by this Chapter, the Director may transmit notice of such delinquency to the City Attorney, who shall at once proceed to collect all sums due the City by appropriate legal action. In any suit brought to enforce the rights of the City hereunder a verified affidavit by the Director showing the delinquency and the amount due shall be prima facie evidence of the amount of such delinquency and of compliance by said City with all the provisions of this Chapter relating to such obligation. In such action a writ of attachment may be issued as provided by law.

(B) The foregoing remedies of the City shall be cumulative, and no action taken by said City nor any of its officers, shall be construed to be an election on the part of the City, or any of the officers thereof, to pursue any remedy to the exclusion of any other remedy which is provided by law for the collection of delinquent taxes or of a debt.
(Ord. 2247 § 2 (part), 1981: prior code § 5-2-8)

4.20.120 Enforcement personnel.

The Director is charged with the enforcement of the provisions of this Chapter and may employ such accountants, auditors, investigators, assistants and clerks as he may deem necessary for the efficient administration of this Chapter.
(Ord. 2247 § 2 (part), 1981: prior code § 5-2-9)

4.20.130 Records of City.

The Director shall cause to be kept proper records of all license taxes herein fixed and imposed which become due and which are collected, including, without limiting the generality of the foregoing, records of delinquent taxes, interest thereon and penalties therefrom, which records shall be deemed confidential and shall not be revealed in whole or in part to anyone except in the necessary administration of this Chapter or as otherwise provided by law.
(Ord. 2247 § 2 (part), 1981: prior code § 5-2-10)

4.20.140 Records of room operators.

It shall be unlawful for any licensee or operator (or an accommodations facilitator, if applicable, and if not covered by the definition of "operator") required to collect the room tax imposed by Section 4.20.030 or Section 4.20.035 to fail to maintain adequate room records or to fail to make adequate records available, within seventy-two hours of written notice, to the

Director or to any other person designated by him for the purpose of conducting an audit. These records must be made available to the City during normal business hours. Adequate room records shall mean the following: Journal, daily cash summary, registration cards, and folio for the three-year period preceding the date of audit, as well as any other records deemed necessary by the Director to determine room tax.
(Ord. No. 6815, § 18, 8-17-22; Ord. 3722 § 9, 1993: Ord. 2247 § 2 (part), 1981: prior code § 5-2-11)

4.20.150 Advertising tax that is absorbed—Failure to collect or remit.

No person shall advertise that the room tax imposed by Section 4.20.030 or Section 4.20.035 will be absorbed by the establishment. It is unlawful for an operator (or an accommodations facilitator, if applicable, and if not covered by the definition of "operator" or person acting for the operator) to fail to:

(A) Collect the room tax from paying occupants;

(B) Remit the tax to the City; or

(C) Provide to the City the documentation necessary to support the determination, collection and remittance of room tax, as well as any reports that may have been required or are required by the City pursuant to this Chapter.

(Ord. No. 6815, § 19, 8-17-22; Ord. 3722 § 10, 1993: Ord. 2247 § 2 (part), 1981: prior code § 5-2-12)

4.20.160 Transmittal of revenues.

The Director of the Department of Finance of the City shall, within twenty days from the close of the preceding calendar month, transmit:

(A) The total amount received pursuant to Sections 4.20.030 and 4.20.080 to the Las Vegas Convention and Visitors Authority to be used for the purposes set forth in Subsection (A) of Section 4.20.010;

(B) Three-eighths of the first one percent received pursuant to Section 4.20.035 to the Nevada Department of Taxation for deposit with the State Treasurer for credit to the fund for the promotion of tourism;

(C) Five-eighths of the first one percent received pursuant to Section 4.20.035 to the Las Vegas Convention and Visitors Authority to be used for the purposes set forth in Subsection (B) of Section 4.20.010; and

(D) The remaining proceeds received pursuant to Section 4.20.035 to the Clark County Treasurer for deposit in the Clark County School District's fund for capital projects.

(Ord. No. 6815, § 20, 8-17-22; Ord. 5010 § 4, 1997: Ord. 3722 § 11, 1993: Ord. 3052 § 7, 1983: Ord. 2447 § 2 (part), 1981: prior code § 5-1-13)

Editor's note—Ord. No. 6815, § 21, adopted August 17, 2022, repealed Appendix A and Appendix B, which pertained to district boundaries and derived from Ord. No. 3722 § 12, 1993.

CHAPTER 4.24 RESIDENTIAL CONSTRUCTION TAX

4.24.010 Findings—Purpose.

The City Council hereby declares as a matter of legislative determination that:

(A) A need exists to provide within the City additional neighborhood parks and park facilities which are required by the residents of single-family residences, apartment units and mobile home parks according to the provisions of the City's Master Plan and Recreation Plan which include as a part of such plans, future or present sites for neighborhood parks.

(B) This Chapter is reasonably calculated to satisfy such need, and, for that purpose, all of the provisions hereof shall be broadly and liberally construed to carry out the express purposes of this Chapter.

(C) Accordingly, the specific mention of particular powers shall not be construed as limiting in any way the general powers that may be necessary in order to accomplish the purposes of this Chapter.

(Ord. 3407 § 2, 1989)

4.24.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings that are ascribed to them as follows:

(A) "Developed open space" means a common open space within a residential subdivision or development that is developed with active recreational appurtenances, which may include swimming pools, tennis courts, handball courts, playground equipment and similar facilities or developments that are customarily associated with parks.

(B) "Neighborhood park" means a park the size of which does not exceed twenty-five acres and which is designed to serve natural persons, families and small groups in the park district that is created for the benefit of the neighborhood from which any residential construction tax is derived.

(C) "Park" or "park facilities" means a tract of land that is dedicated to, and set aside and maintained for, recreational purposes and includes without limitation areas of turf and trees, playgrounds and playground equipment, picnic facilities, playing fields and other recreational appurtenances such as lighted tennis courts, lighted baseball and softball fields, trails, vehicular parking lots and public restrooms.

(D) "Residential construction tax" means the tax that is provided for in this Chapter.

(Ord. 5163 § 1, 1999: Ord. 3407 § 3, 1989)

4.24.030 Imposed.

There is hereby imposed and shall accrue and be collected a residential construction tax, as the same is provided for in this Chapter, upon the privilege of constructing apartment

houses and residential dwelling units, including without limitation the remodeling of any nonresidential structure for use as a dwelling unit, and developing mobile home lots within the City.
(Ord. 5163 § 2, 1999: Ord. 3407 § 4, 1989)

4.24.040 Rate.

(A) With respect to the construction of apartment houses and residential dwelling units the rate of the residential construction tax shall be one thousand dollars per residential dwelling unit, or as otherwise provided by State law.

(B) With respect to the development of mobile home lots, for each mobile home lot authorized by a development permit, the rate of the residential construction tax shall not exceed eighty percent of the average residential construction tax paid per residential dwelling unit in the City during the calendar year next preceding the fiscal year which the development permit is issued.
(Ord. No. 6840, § 1, 7-19-23; Ord. 5163 § 3, 1999: Ord. 3407 § 5, 1989)

4.24.050 Valuation of property for computation of tax.

For purposes of this Chapter and the calculation of the amount of the residential construction tax, the building-permit value of apartments and residential dwelling units shall be based on the actual costs of residential construction in the area, as set forth by State law.
(Ord. No. 6840, § 2, 7-19-23; Ord. 5163 § 4, 1999: Ord. 3407 § 6, 1989)

4.24.060 Tax prerequisite to building or development permit issuance.

Prior to the issuance of any building or development permit for the construction of any apartment house or residential dwelling unit or the development of any mobile home lot, or prior to the issuance of any building permit for the remodeling of any nonresidential structure for the purpose of residential dwelling use, the applicant for the permit shall pay to the City the residential construction tax that is applicable thereto, as the same is determined in accordance with LVMC 4.24.040.
(Ord. 5163 § 5, 1999: Ord. 3407 § 7, 1989)

4.24.070 Deposit and expenditure.

(A) All of the residential construction taxes that are collected pursuant to this Chapter, and all of the interest that accrues thereon, shall forthwith be forwarded to the City Treasurer, who shall credit the same to the special revenue fund that is created to receive and account for the same.

(B) The money in such special revenue fund shall be accounted for separately according to the respective park districts from which it was derived, and may be used only for the acquisition, improvement or expansion, or any combination thereof, of neighborhood parks,

or the installation of park facilities in existing parks, as opposed to the routine maintenance of such parks, in the respective park districts that are created for the benefit of the neighborhoods from which such money was derived.
(Ord. 5163 § 6, 1999: Ord. 3407 § 8, 1989)

4.24.080 Park districts.

The City shall be divided into a number of park districts, as the same shall be depicted on the map that is entitled "Park District Boundaries," copies of which are to be maintained for public inspection in the Office of the City Clerk and the Department of Parks, Recreation and Cultural Affairs, and the same may from time to time be changed by number and configuration by the City Council by a resolution that is duly passed, adopted and approved.
(Ord. No. 6816, § 10, 8-17-22; Ord. 5163 § 7, 1999: Ord. 3706 § 1, 1993: Ord. 3407 § 9, 1989)

4.24.090 Undeveloped parks—Refund of tax.

If a neighborhood park is not developed, or park facilities are not installed in an existing park, in the park district that is created for the benefit of the neighborhood in which a residential subdivision or development with respect to which the residential construction tax has been paid is located within three years after the date on which seventy-five percent of the residential dwelling units that are authorized within such subdivision or development first became occupied, all of the money that was paid with respect to such subdivision or development, together with interest thereon at the average rate at which the City has invested the money in the special revenue fund that is provided for in LVMC 4.24.070, must be refunded on a pro rata basis to the persons who own the dwelling units in the subdivision or development at the time of such refund.
(Ord. 5163 § 8, 1999: Ord. 3407 § 10, 1989)

4.24.100 Refunds for amenities.

A developer shall be entitled to a refund of all of the money that is paid with respect to a residential subdivision or development, together with interest thereon at the average rate at which the City has invested the money in the special revenue fund that is provided for in

LVMC 4.24.070, if that developer, at any time prior to the date on which seventy-five percent of the residential dwelling units that are authorized within such subdivision or development first became occupied:

(A) Provides for and establishes, in the recorded declaration of conditions, covenants and restrictions with respect to such subdivision or development, an association for the common ownership and maintenance of a developed park site or area that is designed for, and dedicated exclusively to, recreation in such subdivision or development, such developed park site or area continues to be owned and maintained by such organization for park and recreational use by the existing and future residents of such subdivision or development and such developed park site or area contains a minimum of three hundred thirty square feet of developed open space per dwelling unit in such subdivision or development;

(B) Constructs a public park, which satisfies the square-footage requirement and contains the amenities that are set forth in Subsection (A) of this Section; or

(C) Constructs a combination of private park facilities that are established, owned and maintained in accordance with the recorded declaration of conditions, covenants and restrictions with respect to such subdivision or development, as the same is required by Subsection (A) of this Section, and public park facilities, which combination, in the aggregate, satisfies the square-footage requirement and contains the amenities that are set forth in Subsection (A) of this Section.
(Ord. 3407 § 11, 1989)

4.24.110 Neighborhood Parks Development Committee.

In order to assist the City Council in the administration of this Chapter, the City Council may elect to establish and appoint a Neighborhood Parks Development Committee, the specific powers and duties of which would be determined and designated at the time of establishment.
(Ord. 3407 § 12, 1989)

4.24.120 Other taxes unaffected.

(A) The residential construction tax that is provided for in this Chapter shall be in addition to any and all other real estate taxes that are imposed upon any real property that is the subject of the residential construction tax.

(B) Nothing that is contained in this Chapter shall be deemed to amend or repeal any other provision of this Code that relates to business licensing or to real estate taxation, and the residential construction tax that is provided for herein shall be applied only to the privilege of constructing apartment houses and residential dwelling units and developing mobile home lots.
(Ord. 5163 § 9, 1999: Ord. 3407 § 13, 1989)

4.24.130 Refund upon completion of facilities.

Any developer who proposes the construction and development of park facilities which, upon their completion would entitle the developer to a refund of the residential construction tax under LVMC 4.24.100, may apply for alternative treatment in accordance with Sections 4.24.140 and 4.24.150.
(Ord. 5163 § 10, 1999: Ord. 3503 § 2, 1990)

4.24.140 Application for alternative treatment.

(A) A developer who seeks alternative treatment shall submit to the City any proposed development plans, a project narrative and a construction timetable for the project.

(B) The City, with input from appropriate staff, shall review the developer's submissions and shall approve or deny such application, or request such additional information as is deemed necessary. The process of review and approval shall take into account and be based upon the City's park specifications and the intent of this Chapter.

(C) If an application is approved, the residential construction tax for the project will be waived, conditioned upon the developer's execution of an agreement with the City requiring the developer to construct the park facilities and submit security for their construction in an amount equal to the estimated cost of construction as determined by the City, plus ten percent for contingencies, except as otherwise provided in Section 4.24.150(D). The instruments of security or other agreements shall specify the duration of the security and its manner of release, and shall provide remedies in the event of default.
(Ord. 5163 § 11, 1999: Ord. 3503 § 3, 1990)

4.24.150 Types of construction security.

The security submitted for the construction of the park facilities pursuant to Section 4.24.140 may be as follows:

(A) A deposit of cash or approved government securities;

(B) A surety bond issued by a surety company authorized to do business in the State in a form approved by the City Attorney;

(C) An agreement with a local financial institution which provides generally that out of the funds loaned to the developer for the construction of the subdivision or development, the lending institution will require that sufficient funds to complete the park facilities and the removal of all rubbish, trash, debris, surplus material and equipment from the area that is to be improved and the adjacent properties will be set aside and used for that purpose, that the lending institution will maintain a ten percent retention of the funds until the installation of the park facilities and the release of funds have been approved by the City; or

(D) A first deed of trust which names the City as beneficiary on real property located in or near the City and which is accompanied by agreements by the trustor and the developer by which they contract with the City to provide the park facilities. The total

cost of the park facilities, as set forth in the agreements, shall not exceed seventy percent of the estimated market value of the property which is the subject of the deed of trust.

(Ord. 5163 § 12, 1999: Ord. 3503 § 4, 1990)

CHAPTER 4.28 ADMINISTRATIVE ASSESSMENT FEES

4.28.010 Administrative assessment fees.

(A) When a defendant pleads or is found guilty of a misdemeanor prosecuted in the Las Vegas Municipal Court, including the violation of any municipal ordinance, the judge shall include in the sentence the sum of ten dollars as an administrative assessment for the provision of court facilities and shall render a judgment against the defendant for the assessment. This administrative assessment is in addition to any assessment imposed pursuant to NRS 176.059 or other statutory authority.

(B) The provisions of Subsection (A) of this Section do not apply to:

(1) An ordinance regulating metered parking; or

(2) An ordinance which is specifically designated as imposing a civil penalty or liability pursuant to NRS 268.019.

(C) The money collected for the administrative assessment provided for in this Chapter must not be deducted from the fine imposed by the judge, but must be taxed against the defendant in addition to the fine. The money collected for this administrative assessment must be stated separately on the court's docket and must be included in the amount posted for bail. If the defendant is found not guilty or the charges are dismissed, the money deposited with the court must be returned to the defendant. If the judge cancels a fine because the fine has been determined to be uncollectible, any balance of the fine and the administrative assessment remaining unpaid shall be deemed to be uncollectible and the defendant is not required to pay it. If a fine is determined to be uncollectible, the defendant is not entitled to a refund of the fine or administrative assessment he has paid and the judge shall not recalculate the administrative assessment.

(D) If the judge permits the fine and any administrative assessments provided for by law to be paid in installments, the payments must be applied in the following order:

(1) To pay the unpaid balance of an administrative assessment imposed pursuant to NRS 176.059;

(2) To pay the unpaid balance of the administrative assessment provided for in this Chapter; and

(3) To pay the fine.

(E) The money collected for the administrative assessment provided for in this Chapter must be paid by the clerk of the court to the City Treasurer on or before the fifth day of each month for the preceding month. The City Treasurer shall deposit the money received to a special revenue fund. The City may use the money in the special revenue fund only to:

(1) Acquire land on which to construct additional facilities for the municipal courts or a regional justice center which includes the municipal courts;

(2) Construct or acquire additional facilities for the municipal courts or a regional justice center which includes the municipal courts;

(3) Renovate or remodel existing facilities for the municipal courts;

(4) Acquire furniture, fixtures and equipment necessitated by the construction or acquisition of additional facilities or the renovation of an existing facility for the municipal courts or a regional justice center which includes the municipal courts;

(5) Acquire advanced technology for use in the additional or renovated facilities;

(6) Pay debt service on any bonds issued pursuant to Subsection 3 of NRS 350.020 for the acquisition of land or facilities or the construction or renovation of facilities for the municipal courts or a regional justice center which includes the municipal courts.

(F) Any money remaining in the special revenue fund after five fiscal years from the effective date of the ordinance codified in this Chapter must be deposited in the City General Fund for the continued maintenance of court facilities if it has not been committed for expenditure pursuant to a plan for the construction or acquisition of court facilities or improvements to court facilities. The City Treasurer shall provide, upon request by the municipal court, monthly reports of the revenue credited to and expenditures made from the special revenue fund.
(Ord. 4032 § 2, 1996: Ord. 3923 § 1, 1995)

CHAPTER 4.32 TRAFFIC SIGNAL IMPACT FEE

4.32.010 Traffic signal impact fee—Created—Applicability.

(A) This Chapter may be known and cited as the "Traffic Signal Impact Fee Ordinance," and is referred to herein as "this Chapter." This Chapter is adopted under the authority of NRS Chapter 278B and shall be interpreted in accordance therewith. The provisions of this Chapter shall apply to all territory within the corporate limits of the City.
(Ord. 5644 § 2, 2003)

4.32.020 Purpose.

It is the intent of the City Council to:

(A) Provide for the imposition and collection of a traffic signal impact fee upon all new development within the City to better accommodate orderly development of the land, facilitate rapid traffic movement, and provide for anticipated future traffic needs; and

(B) Ensure that new development contributes its proportionate share of the cost of capital expenditures necessary to provide traffic signal system improvements that have a nexus to that development.

(Ord. No. 6127, § 1, 1-19-11; Ord. 5644 § 3, 2003)

4.32.030 Findings.

The City Council hereby finds as follows:

(A) That traffic signals throughout the City are installed when warranted in accordance with the Manual on Uniform Traffic Control Devices. In accordance with the requirements of NRS Chapter 278B, the City is divided into three service areas for the purposes of calculating, collecting, and spending the traffic signal impact fees as set forth in this Chapter.

(B) That if and when impact fees are established in the future for improvements other than traffic signals, it may be appropriate to divide the City into corresponding or differing service areas, each served by a separate fund or account.

(Ord. No. 6127, § 2, 1-19-11; Ord. 5644 § 4, 2003)

4.32.040 Definitions.

For purposes of interpreting this Chapter, certain words used herein are defined as follows:

"Applicant" means the person applying for a building permit from the City.

"Impact Fee Administrator" or "Administrator" means the Director of Public Works or the Director's designee.

"Impact Fee" means the traffic signal impact fee authorized and imposed by this Chapter.

"Impact Fee CIP" means the 2009-2019 Capital Improvements Plan for Traffic Signal Impact Fees, as adopted by the City and as amended or replaced from time to time.

"Manual on Uniform Traffic Control Devices" means the manual of that name, in the version that has been adopted by the Nevada Department of Transportation pursuant to NRS 484.781 and Section 408.411 of the Nevada Administrative Code.

"Traffic signal system improvements" means the installation of traffic signals at intersections identified in the Impact Fee CIP as intersections for potential signalization or intersections where signals are under design or construction. Traffic signal system improvements also include intersection improvements in excess of minimum standards for a non-signalized intersection that represent partial completion of improvements needed for later signalization. For purposes of this definition, the components of a traffic signal system may include, but are not limited to, the following: four Type "L" or "M" foundations (type dependent on mast arm length); four signal poles, either Type XX-A or Type XX-B, with four hundred watt luminaries; four mast arms ranging from twenty-five to sixty-five feet long; one controller foundation, one controller cabinet; one 2070 controller; one service pedestal; four street name signs (internally illuminated); twelve M-2 signal head assemblies; four M-5 signal head assemblies; four B-14T

signal head assemblies; four B1-T signal head assemblies; eight pedestrian signal head assemblies; eight audible/tactile pedestrian push buttons; one #7 traffic signal pull box; five #5 traffic signal pull boxes; seven P-30 fiber optic interconnect pull boxes; one thousand two hundred linear feet of three inches traffic signal conduit; two thousand seven hundred linear feet of three inches to four inches interconnect conduit and fiber optic cable; a minimum of one fiber optic splice enclosure; one self healing optical transceiver; one video detection processor with four cameras; one emergency vehicle opticom preemption system; seven hundred linear feet of twenty-five conductor signal cable; signage and polymer pavement markings; and one thousand two hundred square feet of tack-on median island. The term "traffic signal system improvements" includes improvements that are constructed in phases. For example, a six-lane road may be initially striped for four lanes, with the initial signal improvements corresponding to four lanes subsequently being upgraded to accommodate six lanes when the road is ultimately striped for six lanes.
(Ord. No. 6239, § 1, 3-6-13; Ord. No. 6127, § 3, 1-19-11; Ord. 5644 § 5, 2003)

4.32.050 Traffic Signal Impact Fee—Created.

An impact fee is hereby imposed upon new development within the City in accordance with the provisions of this Chapter. The impact fee for particular development shall be determined and paid at the time of issuance of a building permit for the development. The applicant for a building permit shall be responsible for paying the impact fee. The amount of the impact fee for any particular development is as set forth in the fee schedule adopted in Section 4.32.150.
(Ord. No. 6127, § 4, 1-19-11; Ord. 5644 § 6, 2003)

4.32.060 Exemptions.

(A) The following shall be exempt from payment of the impact fee imposed by this Chapter:

(1) The alteration of an existing dwelling unit where no additional dwelling units are created.

(2) The replacement of a destroyed, partially destroyed or moved residential structure with a new structure for the same use, with no increase in the number of dwelling units.

(3) The replacement of a destroyed, partially destroyed or moved nonresidential structure with a new structure for the same use, with no increase in gross floor area.

(4) Any development for which a completed application for a building permit was submitted prior to the effective date of this Chapter, provided that the construction proceeds according to the provisions of the permit and the permit does not expire prior to the completion of the construction.

(5) Any development that is subject to an approved master plan and a developer agreement that provides for developer funding of all signalization improvements within the master plan area.

(B) An exemption must be claimed at the time of application for a building permit. The Impact Fee Administrator shall determine the validity of any claim for exemption that is made pursuant to this Section.

(C) In order to promote the economic development of the City or the public health, safety, and general welfare of its residents, the City Council may agree to pay some or all of the impact fees imposed on a proposed development or redevelopment from other funds of the City that are available for that purpose. Any such decision to pay impact fees on behalf of an applicant shall be at the discretion of the City Council and shall be made pursuant to goals and objectives articulated by the City Council.
(Ord. 5644 § 7, 2003)

4.32.070 Traffic Signal Impact Fee—Payment.

(A) Except as otherwise provided in Section 4.32.060 of this Chapter, the applicant for a building permit for new development shall pay a traffic signal impact fee in accordance with the fee schedule adopted in Section 4.32.150, as the schedule may be amended from time to time. If any credit is due an applicant pursuant to Section 4.32.100 of this Chapter, the amount of the credit shall be deducted from the fee to be paid.

(B) If the type of development for which a building permit is requested is not specified on the fee schedule adopted in Section 4.32.150, the Impact Fee Administrator shall determine the fee on the basis of the fee applicable to the most nearly comparable type of land use that is listed on the fee schedule. The Administrator shall be guided in the selection of a comparable type of land use by trip generation rates contained in the most current edition of the report titled Trip Generation, prepared by the Institute of Transportation Engineers (ITE), or upon data or reports appearing in the ITE Journal.

(C) In general, the impact fee imposed pursuant to this Chapter is assessed based on the primary land use. In many instances, a lot or parcel of land may include auxiliary uses associated with the primary land use. For example, in addition to the actual production of goods, manufacturing facilities usually also have office, warehouse, research, and other associated functions. If the applicant can document that a secondary land use accounts for over twenty-five percent of the gross floor area of the structure, and that the secondary use is not assumed in the trip generation or other impact data for the primary use, the impact fee may be assessed based on the disaggregated square footage of the primary and secondary land use.

(D) If the type of development for which a building permit is requested is for a change of land use type or for the expansion, redevelopment, or modification of an existing development, the fee shall be based on the net increase in the fee for the new land use type or development as compared to the previous land use type or development.

(E) In the event that the proposed change of land use type, redevelopment, or modification results in a net decrease in the fee for the new use or development as compared to the previous use or development, there shall be no refund of impact fees previously paid.
(Ord. No. 6127, § 5, 1-19-11; Ord. 5644 § 8, 2003)

4.32.080 Traffic Signal Impact Fee fund—Created.

(A) There is created a Traffic Signal Impact Fee fund (the "fund") that is distinct from the general fund of the City. Impact fees received by the City must be deposited in the fund, which shall be an interest-bearing fund. The fund is further divided into three accounts, as follows:

(1) Traffic signal impact fees collected from development located south of Cheyenne Avenue and west of Rancho Drive, which shall be deposited in the Zone 1 account and which shall be expended only for traffic signal system improvements located in Zone 1.

(2) Traffic signal impact fees collected from development located north of Cheyenne Avenue, which shall be deposited in the Zone 2 account and which shall be expended only for traffic signal system improvements located in Zone 2.

(3) Traffic signal impact fees collected from development located south of Cheyenne Avenue and east of Rancho Drive, which shall be deposited in the Zone 3 account and which shall be expended only for traffic signal system improvements located in Zone 3.

(B) The fund shall contain only those impact fees that have been collected pursuant to this Chapter, plus any interest which may accrue from time to time.

(C) Monies in the fund shall be considered to be spent in the order collected, on a first-in/first-out basis.

(D) Monies in the fund shall be used only for the following:

(1) To pay for traffic signal system improvements;

(2) To pay debt service on any portion of any current or future general obligation bond or revenue bond issued after the effective date of this Chapter and used to finance traffic signal system improvements;

(3) To pay refunds, as described in Section 4.32.090 of this Chapter; or

(4) To be used as credits against impact fees, as described in Section 4.32.100 of this Chapter.

(E) Monies in the fund shall not be used for the following:

(1) The acquisition of land or rights-of-way;

(2) The repair, operation or maintenance of existing or new traffic signals;

(3) Administrative or operating costs of the City;

(4) Debt service for any past general obligation bond or revenue bond issued prior to the effective date of this Chapter, or any portion of any current of future bond issued after the effective date of this Chapter and not used to finance traffic signal system improvements;

(5) The replacement of existing traffic signals to provide better service to existing development or to meet more stringent safety, environmental or regulatory standards.

(F) Traffic signal system improvements eligible for the expenditure of impact fees under this Chapter shall be limited to projects identified in the Impact Fee CIP as:

(1) Intersections for potential signalization; or

(2) Intersections where signals are under design or construction.
(Ord. No. 6127, § 6, 1-19-11; Ord. 5644 § 9, 2003)

4.32.090 Traffic Signal Impact Fee—Refund.

(A) Any impact fee amount that has been collected from an applicant but has not been spent within five years after the date on which it was collected is subject to being refunded in accordance with the provisions of this Section. Any refund so paid shall also include interest accruing from the date the fee was collected. In determining whether or not impact fees have been spent for purposes of this Subsection (A), the provisions of Subsection (C) of Section 4.32.080 shall apply.

(B) Written notice of the right to a refund, including the amount of the refund and the procedure for applying for and receiving the refund, shall be sent or delivered to the present owners of the property concerning which a refund is due within thirty days after the date the refund becomes payable. Notice is sufficient if sent by regular mail to all present record owners of the property.

(C) If an applicant has paid an impact fee required by this Chapter and the building permit later expires without the possibility of further extension, and the development activity for which the impact fee was imposed did not occur and no impact has resulted, the applicant who paid the fee shall be entitled to a refund of the fee paid, without interest. In order to be eligible to receive such refund, the applicant who paid the fee shall be required to submit an application for refund within thirty days after the expiration of the permit or extension for which the fee was paid.

(D) At the time of payment of any impact fee under this Chapter, the Impact Fee Administrator shall provide written notice to the applicant paying the fee of the circumstances under which a refund of fees may be made. Failure to deliver the written notice shall not invalidate any collection of any impact fee under this Chapter.

(E) Refunds must be paid to the record owner of the property at the time the refund is paid. If the City paid the impact fee, the refund must be paid to the City.
(Ord. 5644 § 10, 2003)

4.32.100 Traffic Impact Fee—Credit issuance.

(A) As described in this Section, the City shall provide credit against the impact fees imposed by this Chapter for contributions toward the cost of traffic signal system improvements that have been made or will be made as a condition of development approval. No such credit shall be available for the dedication of right-of-way, given that no right-of-way costs are included in the calculation of the impact fee. In addition, no such credit shall be available for improvements to the traffic signal system that primarily serve traffic generated by the

applicant's project, such as traffic signals that are installed to control access into and out of the project. Approved credits for traffic signal system improvements shall generally become effective when the improvements have been completed and have been accepted by the City.

(B) In order for a particular development or property to qualify for an impact fee credit for traffic signal system improvements, the developer must:

(1) Submit complete engineering drawings, specifications, and construction cost estimates to the Impact Fee Administrator. In most case, the Administrator will base the amount of credit on the costs of typical traffic signal component costs: interconnect conduit; upgraded pole foundations; upgraded poles; intersection conduit; intersection upgrade (signal heads, cameras, markings, etc.), as those costs may be set forth by a resolution duly adopted by the City Council. In the event these component costs are not applicable, the Administrator shall determine the amount of credit due based upon the information submitted, or where such information is inaccurate or unreliable, upon alternative engineering or construction costs acceptable to the Administrator; and

(2) Enter into an agreement with the City that specifies:

(a) The amount of the credit;

(b) How the credit will be allocated within the development; and

(c) Whether and how the developer will be reimbursed for any excess credit beyond the impact fees that would otherwise be due from the development.

(C) The right to claim impact fee credits regarding particular property runs with the land and may be claimed only by owners of property within the development for which land was dedicated or improvements made. Credits issued for a particular development shall not be transferable to another development.

(D) In the event that development for which credits have been issued is sold to different owners, the credits usable by each new owner shall be calculated in terms of a percentage of the impact fees that would otherwise be due from the entire development. If the total amount of development is not known, the maximum potential development under existing development regulations shall be assumed. This percentage reduction will be applied to all impact fees assessed within the development until the total amount of the credits is exhausted or the development is completed, whichever occurs first. In the event that the impact fee schedule is amended to increase the fees prior to completion of the development, the percentage reduction shall be applied only to the impact fees that were in place at the time the credits were issued, and the adjusted impact fee to be charged shall be the sum of the reduced original impact fee plus the amount by which the fees were increased.

(E) Credits provided pursuant to this Chapter shall be valid from the effective date of the credits until five years after that date or until the last date of construction within the development or project for which the credits were issued, whichever occurs first.

(F) Applicants may also obtain credits for traffic signal system improvements completed prior to the effective date of this Chapter, and may use such credits to reduce the impact fees due after that date for traffic signal system improvements within the same development for which the credits were issued. Application for such credits must be made, on forms provided by the City, within two years after the effective date of this Chapter. In the event that the development for which the credits are claimed is partially completed, the amount of the credits shall be reduced by the amount of the impact fees for traffic signal system improvements that would have been charged for the completed portion of the development had this chapter been in effect. In the event that the development project has been fully completed, no credits shall be issued.
(Ord. 5644 § 11, 2003)

4.32.110 Land use assumptions—Review.

(A) The City Council shall review and may revise the land use assumptions and Impact Fee CIP at least once every three years. The three-year period begins upon the date the City Council adopts the Impact Fee CIP.

(B) Upon the completion of any revision of the land use assumptions and Impact Fee CIP, the City shall conduct a public hearing and give public notice in accordance with NRS 278B.290.

(C) The City Council shall approve or disapprove the adoption of any revised land use assumptions and Impact Fee CIP within thirty days after the public hearing.
(Ord. No. 6127, § 7, 1-19-11; Ord. 5644 § 12, 2003)

4.32.120 Impact Fee Administrator.

(A) Nothing in this Chapter restricts the City from requiring the construction of reasonable project improvements required to serve a development project, whether or not the improvements are of a type for which credits are available under Section 4.32.100 of this Chapter.

(B) The Impact Fee Administrator shall maintain accurate records of the impact fees paid, including the name of the person paying fees, the project for which the fees were paid, the date of payment of each fee, the amounts received in payment for each fee, and any other matters that the City deems appropriate or necessary to the accurate accounting of such fees. Records shall be available for review by the public during normal business hours and upon reasonable advance notice.

(C) Upon request by the City Council, the Impact Fee Administrator shall present to the City Council a proposed capital improvements program that assigns monies from the impact fee fund to specific projects and related expenses for eligible traffic signal system improvements. Any monies, including any accrued interest, not assigned to specific projects within the capital improvements program and not expended pursuant to Section 4.32.090 or Section 4.32.100 of this Chapter shall be retained in the impact fee fund until the next fiscal year.

(D) If an impact fee has been calculated and paid based on a mistake or misrepresentation, it shall be recalculated and an adjustment made as follows:

(1) Any amounts overpaid by an applicant shall be refunded to the applicant, together with interest accruing from the date of overpayment, within thirty days after the recalculated amount has been established.

(2) Any amounts underpaid by an applicant shall be paid to the Impact Fee Administrator, together with interest accruing from the date of underpayment, within thirty days after the recalculated amount has been established. In the case of an underpayment, the City may withhold additional permits or approvals for the project for which the impact fee was previously underpaid until the underpayment is corrected. If amounts owed to the City are not paid within the thirty-day period, the City may also rescind any permits issued in reliance on the previous payment of the impact fee.

(Ord. 5644 § 13, 2003)

4.32.130 Appeal.

Any determination made by the Impact Fee Administrator pursuant to this Chapter may be appealed to the City Council by filing a written appeal with the City Clerk within thirty days after the date of the determination.

(Ord. 5644 § 14, 2003)

4.32.140 Violation—Penalty.

It is unlawful to knowingly provide to the City false information on any matter relating to the administration of this Chapter, including without limitation false information regarding the expected size, use, or impacts of a proposed development.

(Ord. 5644 § 15, 2003)

4.32.150 Traffic Signal Impact Fee Schedule.

There is hereby adopted a Traffic Signal Impact Fee Schedule. The schedule, which was attached to and adopted by Ordinance No. 6127, is incorporated by this reference and shall be maintained on file in the office of the City Clerk. The schedule may be revised or amended from time to time by resolution of the City Council.

(Ord. No. 6127, § 8, 1-19-11)

Chapter 4.36 GAMING HOSPITALITY OPERATIONS—COLLECTIVE BARGAINING AGREEMENTS

4.36.010 Purpose.

The City is authorized by State law and by Charter authority to engage in redevelopment activities. The City Council has the corresponding authority to establish limitations and conditions on the use of redevelopment funds and other resources. It is the intent of this Chapter to establish conditions on the use of redevelopment resources when they are used to

assist in the development of projects for gaming hospitality operations in which the City or the City's Redevelopment Agency has a specified financial or proprietary interest in such operations in order to protect such interest from jeopardy resulting from labor disputes.
(Ord. No. 6091, § 1, 5-5-10)

4.36.020 Definitions.

As used in this Chapter and except as the context otherwise requires, the following terms shall have the meanings ascribed to them:

"Capital project" means a project which is financed by debt or by other funds of the City or the Redevelopment Agency and which meets all of the following:

(A) Is an undertaking to construct, repair, renovate, improve, equip, furnish or acquire any:

(1) Building, structure, facility or physical public betterment or improvement;

(2) Land or rights in land; or

(3) Furnishings, machinery, apparatus or equipment, for a building, structure, facility or physical public betterment or improvement;

(B) Has an estimated useful life in excess of five years; and

(C) Has an estimated financial cost in excess of one hundred thousand dollars.

"Contract under 29 U.S.C. Section 185" means a labor contract to which 29 U.S.C. Section 185 (a) applies, as that provision has been interpreted by the United States Supreme Court.

"Contractor" means any person party to a qualifying contract.

"Employer" means an employer of employees hired to staff or work at a gaming hospitality operation.

"Gaming hospitality operation" means a hotel or other establishment that:

(A) Provides lodging and other guest accommodations, or other hospitality services; and

(B) Is licensed for nonrestricted gaming.

"Hospitality workers" means all full-time or part-time employees in a gaming hospitality operation, except supervisors, managers and guards.

"No-strike pledge" means the prohibition described in Paragraph (1) of Subsection (A) of Section 4.36.030.

"Qualifying contract" means:

(A) Any contract, lease or license:

(1) From the City or the Redevelopment Agency to use any property of the City or Redevelopment Agency for the conduct of gaming hospitality operations; or

(2) Pursuant to which the City or the Redevelopment Agency is entitled to receive as rents, royalties or other income a percentage of the revenues of an enterprise, or any payments in connection with financing of a capital project provided by or through the City or the Redevelopment Agency; or

(B) Any subcontract, sublease, sublicense or other transfer or assignment of any right, title or interest received from the City or Redevelopment Agency pursuant to any qualifying contract.

"Redevelopment Agency" means the Redevelopment Agency of the City of Las Vegas.

"Valid collective bargaining agreement" means a collective bargaining agreement entered into between a contractor and a labor organization lawfully serving as the exclusive collective bargaining representative for the employees who provide or will provide services pursuant to a qualifying contract.
(Ord. No. 6091, § 1, 5-5-10)

4.36.030 Requirements.

(A) As a condition precedent to any qualifying contract, each and every contractor and employer of employees hired to staff a gaming hospitality operation shall be or become signatory to a valid collective bargaining agreement or other contract under 29 U.S.C. Section 185 with any labor organization seeking to represent hospitality workers employed in the gaming hospitality operation. Each collective bargaining agreement or contract under 29 U.S.C. Section 185:

(1) Must contain a provision prohibiting the labor organization and its members, and in the case of a collective bargaining agreement, all employees covered by the agreement, from engaging from any picketing, work stoppages, boycotts or any other economic interference with the hospitality operations of the contractor or any persons under contract to it for the duration of the time required for the repayment of public indebtedness incurred to finance the acquisition or development of such capital project, or for the duration of the qualifying contract or contracts for the operation of such capital project, whichever period of time is more extensive.

(2) Must provide that, during this time period referred to in Paragraph (1) above, all disputes relating to employment conditions or the negotiation thereof shall be submitted to final and binding arbitration.

(B) Each and every contractor and employer of employees hired to staff a gaming hospitality operation shall require that any work under its qualifying contract or contracts that is to be done by the contractor's or employer's contractors, subcontractors, tenants or subtenants shall be done under collective bargaining agreements or other contracts under 29 U.S.C. Section 185 containing the same provisions as specified in Paragraph (1) of Subsection (A) above.

(C) A contractor or employer shall be relieved of the obligations of this Section with respect to a labor organization if the labor organization places conditions upon its no-strike pledge that the City Council finds, after notice and hearing, to be arbitrary or capricious.
(Ord. No. 6091, § 1, 5-5-10)

Title 5

(RESERVED)

Title 6

BUSINESS TAXES, LICENSES AND REGULATIONS

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CHAPTER 6.02 BUSINESS LICENSING GENERALLY

6.02.010 Definitions.

Unless the context otherwise requires, the scope of all words in this Title shall be liberally construed in order to effectuate the purposes of this Title. In particular, the following words shall have the meaning ascribed to them as follows:

"Ancillary license" means a license issued that is incidental to a primary business.

"Applicant" means any person who has applied for a City business license, approval of suitability, work card or any permit.

"Business" means any business, commercial enterprise, trade, occupation, calling, profession, vocation or activity engaged in, conducted, carried on, advertised or marketed, by any person, his agent or employee for the purpose of gain, benefit or advantage, either direct or indirect.

"Department" means the Department of Community Development.

"Director" means the Director of the Department of Community Development and those persons authorized to act in the Director's behalf.

"Employee" means any person who performs services for another for hire, salary, wages or any other kind of compensation, whether or not the services are casual, temporary or permanent, and whether or not the contract of service is express or implied, oral or written.

"Establishment" means any business conducted in or upon any premises, and includes any buildings, improvements, equipment and facilities used or maintained in connection with such business.

"Governmental entity" means an entity of Federal, State or local government whose activities are exempt from Federal income taxation.

"Gross sales/gross revenues," as used in connection with the determination of license fees, means the total amount of the sale price of all goods sold, the total amount charged or received for the performance of any act, service or employment, of whatever nature it may be, whether or not such service, act or employment is performed as part of or in connection with the sale of goods, wares or merchandise for which a charge is made or credit allowed, including all receipts, cash, credits or property of any kind, any amount for which credit is allowed by the seller to the purchaser without any deduction therefrom on account of the cost of property of any kind, any amount for which credit is allowed by the seller to the purchaser without any deduction therefrom on account of the cost of property sold, cost of materials used, labor or service costs, interest paid or payable, losses or any other expense whatsoever.

For purposes of this definition, "goods" includes without limitation beverage items. The revenue of a business that includes the sale of alcoholic beverages includes revenue from alcoholic beverage sales.

(A) The term gross sales/gross revenue shall not include:

(1) Cash discounts which are allowed or taken on sales/revenue;

(2) Over-allowance on trade-ins of used merchandise, cars or goods which are received in trade for the purchase of new merchandise, cars or goods. For purposes of this definition, "over-allowance" means the amount which is allowed on any trade-in which is in excess of the actual sale price of the trade-in by the dealer, whether that sale is wholesale, retail or at auction. In order for a dealer of new merchandise, cars or goods to substantiate deductions for over-allowances, a separate general ledger account must be maintained which accumulates the total over-allowances. This account must be supported by a cash receipt journal or similar journal which summarizes the daily transactions. Each daily entry must be supported by the original contract which clearly substantiates the difference between the actual sales price and the allowance which is given to the customer on the trade-in;

(3) Inventory transfers between dealers of new merchandise, cars or goods and their wholly owned leasing companies, wherein no profit is involved. In order for a dealer of new merchandise, cars or goods to substantiate deductions for inventory transfers, a separate account must be maintained in the general ledger for all merchandise, cars or goods which are transferred to its wholly owned leasing company. These transactions must be traceable to a cash receipt journal or similar journal which summarizes daily transactions. Each daily entry must be supported by paperwork which legally transfers the new merchandise, car or goods to the leasing company;

(4) Any tax on fuel or retail sales that is collected by the seller; and

(5) Except as otherwise provided in LVMC 6.95.230, any charge between a purchaser and seller where, at the time a license fee is due, the purchaser and seller are related entities as defined in Section 267 of the Internal Revenue Code.

"Health District" means the Southern Nevada Health District.

"License" means permission granted by the licensing authority to engage in the business for which the license is issued, which permission typically is evidenced by a written document.

"Licensee" means any person to whom a valid license has been issued pursuant to this Title.

"License fee" means any money required by law to be paid to obtain, renew or maintain a license.

"Metro" means the Las Vegas Metropolitan Police Department.

"Person" includes any association, corporation, firm, partnership, trust or other form of business or social association or organization, as well as a natural person and the estate of a natural person.

"Personal representative" means any person authorized to act on behalf of the estate of a natural person.

"Premises" means land together with all buildings, appurtenances, improvements, parking areas and personal property located thereon.

"Primary license" means a license issued that represents the primary focus of a business.

"Principal" means:

(A) Any person who is an officer, director, trustee, personal representative or general partner or who has an ownership interest in or voting control of the business equal to or greater than ten percent of the entire ownership of voting control of such business. If the ownership interest or voting control is held by a person other than an individual, then each officer, director, trustee, personal representative or general partner of such person is a principal;

(B) Any person who is or will be directly engaged in the administration or supervision of the business; and

(C) Any other person if, in the Director's opinion, the person exercises, or is capable of exercising, significant influence over the business, including, but not limited to, a natural person or corporate entity that provides a source of funding for the initial capitalization and/or the ongoing payment of expenses for the business.

"Professional" means a person who:

(A) Holds a license, certificate, registration, permit or similar type of authorization issued by a State regulatory body as defined in NRS 622.060, or who is regulated pursuant to the Nevada Supreme Court Rules; and

(B) Practices his or her profession for any type of compensation as an employee of a professional business. The term "employee of a professional business," for the purposes of this definition, includes an owner, sole proprietor, member, partner or associate of a professional business, but does not include a person who, under a contractual arrangement with a professional business, provides services for or in association with that business as an independent contractor.

"Professional business" means a business which:

(A) Holds itself out as offering services regarding one or more of the professions regulated by a State regulatory body as defined in NRS 622.060 or by Nevada Supreme Court Rules; and

(B) Provides such services through the business's principals, professionals, or others qualified under State law or Nevada Supreme Court Rules to provide such services.

→For purposes of licensing and the payment of business license fees, the term includes the business activities of a person who provides or offers to provide such services in association with, and by means of an independent contractor relationship with, another professional business providing those services.

"Valid unexpired license" means a license that has not been suspended or revoked before its expiration date.
(Ord. No. 6816, § 11, 8-17-22; Ord. No. 6620, § 31, 5-16-18; Ord. No. 6327, § 4, 6-18-14; Ord. No. 6288, § 2, 11-20-13; Ord. No. 6233, § 1, 1-23-13; Ord. No. 6165, § 1, 11-2-11; Ord. No. 6164, § 1, 11-2-11; Ord. No. 6137, § 4, 3-16-11; Ord. 5998 § 1, 2008: Ord. 5821 § 1, 2006: Ord. 5081 § 1, 1998: Ord. 4016 § 1, 1996: Ord. 3039 § 1, 1983: Ord. 2186 § 2 (part), 1981: prior code § 5-1-1)

6.02.020 Department investigation and enforcement powers.

(A) The Department shall have the jurisdiction to investigate and enforce the provisions of this Title, Title 9, Chapter 16.22, and the provisions of Title 19 as they relate to the use of land by, and impact of, businesses, professions and occupations.

(B) The Department shall have all powers which may be necessary or appropriate for a complete and effective exercise of its jurisdiction, including, but not limited to:

(1) The power to enter and inspect the licensed premises at any time during the business hours of the licensee;

(2) The power to examine and audit all books and other business records of a principal, licensee, applicant, or their employees or other persons acting under their control for purposes of determining ownership, the proper payment of license fees, and other issues relating to compliance with this Title;

(3) The power to apply for and execute administrative search warrants based upon reasonable suspicion of a violation of this Title, Title 9, Chapter 16.22 or Title 19;

(4) The power to issue citations pursuant to the provisions of NRS Chapter 171 for violations of this Title, Title 9, Chapter 16.22 or Title 19;

(5) The power to issue, revoke, suspend or deny a business license, or temporary business license, as provided in this Chapter;

(6) The authority to make expenditures as reasonably necessary to investigate a violation of this Title, Title 9, Chapter 16.22 or Title 19; and

(7) The power to assess the following to a licensee for re-inspections after the initial inspection reveals violations of this Title, Title 9, Chapter 16.22 or Title 19:

(a) A service charge of ninety dollars for the initial re-inspection, if the licensee or its representative has not corrected or caused the correction of all violations to the Department's satisfaction by the established re-inspection date, such charge to reflect the partial cost of staff time and City resources;

(b) A service charge of one hundred twenty dollars for each subsequent re-inspection until all violations have been corrected to the Department's satisfaction, such charge to reflect the partial cost of staff time and City resources; and

(c) An administrative fee of ten percent of the amount of service charges assessed under Subparagraphs (a) and (b) above, to cover administrative costs of billing and receipting.

(C) The Department shall provide the licensee or its representative an appropriate billing to reflect service charges and administrative fees assessed under Paragraph (7) of Subsection (B) above. The billing shall include the date by which payment must be made, which must be at least sixty days after the billing is provided. If payment is not made by the date specified, the City may proceed to collect the amounts assessed in accordance with LVMC 6.02.250. Notwithstanding the provisions of this Subsection (C), the licensee or its representative may appeal the assessment of service charges and administrative fees, including the underlying determination that violations have occurred, by filing a written appeal with the Department within ten days after the billing is provided to the licensee or its representative. A hearing on the appeal will be conducted by the City Manager (or the City Manager's designee) within ten days after the appeal is filed, unless otherwise agreed to by the licensee and the person conducting the hearing. The period for payment is tolled during the pendency of an appeal.

(D) The Department is authorized to require identification or other information from a principal, licensee, applicant, or their employees or other persons acting under their control, at any time in furtherance of the exercise of its jurisdiction.

(E) During the course of investigating any crime or assisting in the enforcement of this Code, Metro has concurrent jurisdiction and authority to issue citations for the violations of this Title, Title 9, Chapter 16.22 or Title 19.
(Ord. No. 6776, § 2, 4-21-21; Ord. No. 6164, § 2, 11-2-11; Ord. No. 6047, § 1, 7-15-09; Ord. 5873 § 1, 2006: Ord. 5081 § 2, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-3(A))

6.02.030 Director to administer.

It shall be the duty of the Director to administer the provisions of this Title unless provided otherwise herein.
(Ord. 2186 § 2 (part), 1981: prior code § 5-1-3 (B))

6.02.035 Temporary licensing.

(A) Notwithstanding any other provision of this Title, the Director shall have the authority to extend temporary licensing approval beyond that otherwise available under this Title in cases where unforeseen circumstances, such as technical or agenda-related difficulties, prevent Council action on an appeal under LVMC 6.02.070 from being taken in a timely fashion. Unless the circumstances otherwise dictate, the extension of temporary licensing approval shall not extend beyond the next occasion at which Council consideration can properly take place.

(B) No temporary license issued under this Title may be sold, transferred or assigned while under temporary status.

(C) The holder of a license under temporary status may request that the license be withdrawn or put into inactive or non-operational status, but the request shall not be deemed granted until affirmative action to do so has been taken by the Director.
(Ord. No. 6806, § 39, 4-6-22; Ord. No. 6164, § 3, 11-2-11; Ord. No. 6054, § 1, 8-5-09)

6.02.040 Criminal justice information—Authority to obtain.

Whenever in the administration of this Title it is advisable for investigations to be made of persons engaged in or connected to a present or a proposed business activity, the investigators and supervisory personnel of the Department, on behalf of and for the City Council, City Manager and City Attorney, are authorized and empowered to obtain:

(A) Records of criminal history from various criminal justice agencies and repositories of criminal history records; and

(B) Other records and information from various criminal justice agencies which is outside the term "records of criminal history."
(Ord. 2186 § 2 (part), 1981: prior code § 5-1-3 (C))

6.02.050 Criminal justice information—Use.

The information obtained pursuant to Section 6.02.040 should not be disseminated beyond that which is permitted by Federal or State law and is to be used only for the purposes of:

(A) Determining the fitness of any applicant, or principal thereof, for a business license, approval for suitability, work card or other permit as required by this Code, or any holder of a license, approval for suitability, work card or permit; or

(B) Determining whether there has been any violation of this Code or other business regulations enforceable by the City.
(Ord. 2186 § 2 (part), 1981: prior code § 5-1-3 (D))

6.02.060 Business license required.

(A) It is unlawful for any person to:

(1) Commence, institute, advertise, aid, carry on, engage in or continue in the City any business without a valid unexpired license issued pursuant to this Code;

(2) Cause, encourage, allow or permit another, on that person's behalf, to commence, institute, advertise, aid, carry on, engage in or continue in the City any business without a valid unexpired license issued pursuant to this Code; or

(3) Commence, institute, advertise, aid, conduct, manage or carry on, either permanently or temporarily, any business of any other person if the person who commences,

institutes, advertises, aids, conducts, manages or carries on such business knows or should know that such other person is not licensed under this Title to commence, institute, advertise, aid, conduct, manage or carry on such business.

(B) Each day or portion thereof in which a violation of any provision of Subsection (A) of this Section is committed, continued or permitted constitutes a separate offense.

(C) All licenses issued under this Chapter:

(1) Shall be conditioned upon the obligation of the applicant, the licensee, the principal, their employees and those acting on their behalf to refrain from exercising deliberate ignorance toward any private nuisance, public nuisance or chronic nuisance activity occurring at, or arising from, the business location or activity, and to timely abate such nuisances. Deliberate ignorance is exhibited by intentional or criminally negligent disregard of the offending condition or activity. Deliberate ignorance is done in a criminally negligent manner if it jeopardizes another's health, safety or welfare; interferes with the objectively reasonable use and enjoyment of adjacent property or any public property; or has a detrimental effect upon adjacent property values; and

(2) May also be conditioned upon the licensee posting a bond in an amount determined by the Director to be reasonably appropriate to guarantee the performance or fulfillment of all conditions, or compliance with all restrictions, imposed upon the license, licensee, applicant or its principal(s).

(D) A multi-jurisdictional license may be issued within specifically-identified categories to those businesses intending to operate or capable of operating in more than one licensing jurisdiction within the Southern Nevada area. Issuance of this type of license shall be in accordance with local ordinances and an interlocal agreement between or among participating jurisdictions. One license fee which is the congregate of the license fees of all participating jurisdictions will be collected by the jurisdiction in which the primary fixed business of the applicant is located. The fee will be proportionately distributed based on the fee schedule for each jurisdiction. Notwithstanding any provision of this Title, the Director is authorized, but not required, to establish fixed license renewal cycles specifically applicable to each category and to prorate license fees in the following circumstances:

(1) In connection with applying new multi-jurisdictional license provisions to existing licenses;

(2) Upon the initial issuance of a new multi-jurisdictional license; or

(3) Upon the addition a participating jurisdiction to an existing multi-jurisdictional license.

(Ord. No. 6264, § 1, 8-21-13; Ord. No. 6164, § 4, 11-2-11; Ord. 5873 § 2, 2006: Ord. 3332 § 1, 1988: Ord. 2186 § 2 (part), 1981: prior code § 5-1-2 (A); Ord. No. 6871, § 1, 7-17-24)

6.02.065 Exemptions.

Except as otherwise specifically provided in this Title, nothing in this Title, including the imposition of any license fee, shall be deemed or construed to apply to any:

(A) Person engaged in any of the professions or occupations hereinafter enumerated solely as an employee of any other person who is properly licensed to conduct, manage or carry on any such business unless specifically provided otherwise in Chapter 6.04 or any other provision of this Title;

(B) Community theater as defined in NRS 364.130;

(C) Public bus transportation service for the carrying of passengers from place to place within the City, which is owned or operated by a governmental entity; provided, however, this exception does not apply to a private person who leases the service from the governmental entity for business purposes;

(D) Nonprofit professional services organization that provides all of its professional services to the public at no cost and has received its tax exempt status pursuant to Title 26 U.S.C. Section 501(c);

(E) Professional person licensed by the State who works solely either as a principal or employee for a nonprofit professional services organization that has tax exempt status pursuant to Title 26 U.S.C. Section 501(c), if such organization provides all of its professional services to the public at no cost; or

(F) Governmental entity or professional person licensed by the State who works solely as an employee of a governmental entity.

(Ord. No. 6164, § 5, 11-2-11; Ord. No. 6097, § 1, 6-16-10; Ord. 5998 § 2, 2008: Ord. 5352 § 1, 2001: Ord. 5081 § 3, 1998: Ord. 4004 § 1, 1996: Ord. 3332 § 2, 1988: Ord. 3033 § 1, 1983)

6.02.070 Temporary license.

(A) The Director is authorized to issue a temporary business license to a business license applicant if:

(1) The applicant has:

(a) Filed a complete and accurate business license application, and

(b) Paid all fees relating thereto; and

(2) The premises within or the location at which the applicant's business is to be conducted has been inspected as requested and the proper departments of the City have been consulted relative to:

(a) All applicable zoning requirements and public nuisance and chronic nuisance prohibitions;

(b) Compliance with all requirements of Title 16; and

(c) Compliance with the health and safety requirements of concurrent governmental regulatory agencies.

(B) A temporary business license may be issued to an applicant to engage in the specific business activity described in the application, at the location identified in the application, for a period not to exceed six months or until a finalized decision has been made by the Director granting or denying a business license, whichever comes first. During the temporary business license period, an applicant, principal, licensee, and their employees and other persons acting on their behalf, shall comply with all of the requirements or conditions imposed upon the license by this Code or by agencies of the State or County, as the case may be, or resulting from inspections by departments of the City. A temporary business license:

(1) Shall be conditioned upon the obligation of the applicant, the licensee, any principal, and their employees and those acting on their behalf, to refrain from exercising deliberate ignorance toward any private nuisance, public nuisance or chronic nuisance activity occurring at the business location and to timely abate such nuisances. Deliberate ignorance is exhibited by intentional or criminally negligent disregard of the offending condition or activity. Deliberate ignorance is done in a criminally negligent manner if it jeopardizes another's health, safety or welfare; interferes with the objectively reasonable use and enjoyment of adjacent property or any public property; or has a detrimental effect upon adjacent property values; and

(2) May also be conditioned upon the licensee posting a bond in an amount determined by the Director to be reasonably appropriate to guarantee the performance or fulfillment of all conditions, or compliance with all restrictions, imposed upon the license, licensee, applicant or its principal(s).

(C) The Director may in his or her discretion extend a temporary business license for a period not to exceed six months or until a finalized decision has been made by the Director granting or denying a business license, whichever comes first. During any period in which a temporary license is in effect or extended, the Director may suspend or revoke a temporary business license if it is discovered that there is reasonable cause to believe that one or more grounds identified in Section 6.02.090 exists, or that the applicant, the licensee, a principal, or their employees or those acting on their behalf, exercised deliberate ignorance toward or failed to timely abate any private nuisance, public nuisance or chronic nuisance activity occurring at the business location.

(D) Unless the provisions of Section 6.02.367 apply, in the event that the Director denies an applicant, licensee or proposed licensee a temporary license or an extension of a temporary license, or suspends or revokes a temporary license, the applicant, licensee or proposed licensee may appeal the Director's decision to the City Manager by filing a notice of appeal and a statement of the just cause therefor. Such notice and statement of just cause must be received by the City Manager by five p.m. on the tenth day following service of notice of the Director's decision upon the applicant, licensee, its principal or resident agent at the address(es) listed on the license application. Unless the City Manager finds good cause for a delay of up to ten additional days, the City Manager shall hear the appeal and render a decision within ten days of the date the appeal is received by the City Manager. It is the appellant's burden to present to the City Manager any and all facts and mitigating

circumstances in support of the appeal. Nothing in this Subsection shall be construed to limit any statutory right of the applicant, licensee or proposed licensee to file an ordinary or emergency petition for extraordinary writ under NRS Chapter 34, where appeal under this Section is an inadequate remedy at law. Where the Director is alleged to have engaged in intentional censorship of expressive conduct or material rather than attempting to address or avoid criminal conduct or other conduct harmful to the public health, safety, welfare, morals and peace, prompt judicial review is warranted under City of Littleton, Colorado v. Z.J. Gifts D-4, L.L.C., 541 U.S. 774, 124 S.Ct. 2219, 159 L.Ed.2d 84 (2004).

(E) The provisions of this Section authorizing the Director to issue a temporary business license do not apply to any business subject to the provisions of LVMC Chapter 6.06 of this Title or to any business which requires formal approval by the City Council unless:

(1) The provisions of this Section are specifically made applicable to such business by other provisions of this Code;

(2) All principals required to be approved for suitability have submitted a complete investigation packet for determination of suitability and paid all applicable investigative fees;

(3) The Director makes a preliminary finding that all of the principals of the business are suitable; and

(4) The City Council approves the issuance of a temporary business license.

(Ord. No. 6594, § 1, 8-16-17; Ord. 5873 § 3, 2006: Ord. 5517 § 1, 2002: Ord. 5081 § 4, 1998: Ord. 3703 § 2, 1993: Ord. 3075 § 1, 1983: Ord. 2186 § 2 (part), 1981: prior code § 5-1-2(C, D))

6.02.080 Application.

(A) Any person who desires to engage in business shall first apply for and obtain the appropriate license or licenses. The license application shall be filed with the Department on forms acceptable to the Department, including an electronic or digital application. The applicant shall furnish all the information required by the Department including, but not limited to:

(1) The applicant's business organization and structure, including the names and addresses of any and all on-site or off-site managers responsible for timely abatement of any and all nuisance activity at the business location;

(2) The proposed physical business location and specific activity or operation to which the business is limited;

(3) The name and specific physical and mailing addresses of each principal sufficient to allow them to be contacted as necessary to address or be held accountable for the timely fulfillment of restrictions and conditions on the license or the timely abatement of any nuisance activity at the business location(s);

(4) Copies of all other licenses or permits required by local, State or Federal law to engage in the proposed business, including any description of limitations, conditions or restrictions thereon; and

(5) Any other information that reasonably relates, or may lead to information that reasonably relates, to the applicant's or a principal's qualification, acceptability or fitness for a license.

(B) The applicant must sign the application for license acknowledging that all the information furnished by the applicant is true, accurate and current, that he or she is aware of the obligation to provide timely notice of any changes in required information, and that he or she has informed all principals of their joint and several responsibility for the timely fulfillment of restrictions and conditions to the license or timely abatement of any nuisance activity at the business location(s). In the case of an electronic or digital application, a digital signature is sufficient.

(Ord. No. 6806, § 40, 4-6-22; Ord. No. 6164, § 6, 11-2-11; Ord. 5873 § 4, 2006: Ord. 5456 § 1, 2002: Ord. 5081 § 5, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-5)

6.02.085 Processing fee.

(A) A fifty dollar nonrefundable processing fee will be charged for each application filed for a new business license, a change of business ownership, a change of corporate officers, a change of business location, a change of business name or a charitable solicitations permit. Processing of such applications shall not commence until the Department has received the processing fee.

(B) The processing fee set forth in Subsection (A) of this Section is to be in addition to any other license fee required by this Code for the type of business in question.

(Ord. No. 6047, § 2, 7-15-09; Ord. 5081 § 6, 1998: Ord. 3961 § 1, 1996)

6.02.090 Action on application—Refusal grounds.

(A) Other than an application for a license which requires prior approval by an agency of the State, an application for a license which requires formal approval of the Council to which the exemptions in LVMC 6.02.070(E)(1)—(4) do not apply, or a license that is subject to the provisions of LVMC Chapter 6.06, the Director, not more than thirty calendar days after receipt of an application for a license, shall approve with or without conditions, deny or take such other action with respect to such application as the Director considers appropriate. The Director may consult with other City departments and agencies with jurisdiction in order to determine what action is appropriate. In the event that any other department or agency that the Director consults regarding an application is unable to complete its review thereof in time for the Director to comply with such thirty-calendar-day requirement, the Director shall issue a temporary license as provided in LVMC 6.02.070. The Director may:

(1) Deny an applicant a license if:

(a) The application is incomplete or the application or supplemental application information furnished pursuant to the written request of the Director contains false, misleading or fraudulent statements with respect to any information that is required in the application;

(b) The applicant, prospective licensee or any of its principals fails to satisfy any qualification or requirement that is imposed by this Code, or other local, State or Federal law or regulation that pertains to the particular license or approval for suitability which is sought;

(c) The applicant, prospective licensee or any of its principals resides in the United States illegally;

(d) The applicant, prospective licensee or any of its principals is engaged in a business, trade or profession without having obtained a valid license, an approval for suitability, a permit or a work card when such applicant or any of its principals knew that one was required or under such circumstances that they reasonably should have known one was required;

(e) The applicant, prospective licensee or any of its principals has been subject, in any jurisdiction, to disciplinary action of any kind with respect to a license, an approval for suitability, a permit or a work card to the extent that such disciplinary action reflects upon the qualification, acceptability or fitness of the applicant, prospective licensee or any of its principals;

(f) The applicant, prospective licensee or any of its principals has committed an act that constitutes a crime which involves moral turpitude or involves any local, State or Federal law or regulation which relates to the same or a similar business, or has been convicted of having solicited, encouraged, caused or procured another to commit such a violation. For purposes of this Paragraph, a crime involving moral turpitude is one that necessarily involves any of the following: an intent to defraud; intentional dishonesty for personal gain; intentional causing of serious injury to another person; the sale of narcotics or possession of narcotics with intent to sell; or a sexual offense as described in NRS 179D.097;

(g) The applicant, prospective licensee or any of its principals has perpetrated, or solicited, encouraged, caused or procured another to perpetrate, a deceptive practice upon the public;

(h) The applicant, prospective licensee or any of its principals suffers from a legal disability under the laws of the State;

(i) The premises on which the business is proposed to be conducted, or the business activity proposed to be conducted, do not satisfy local, State or Federal laws or regulations which pertain to the premises or to the activity that is proposed to be engaged in;

(j) The proposed business activity constitutes, promotes, fosters, aids or otherwise enables a private nuisance, public nuisance or chronic nuisance;

(k) Substantial information exists which tends to show that the applicant, prospective licensee or any of its principals is dishonest or corrupt; or

(l) The required license fees have not been paid in advance.

(2) Decline to renew a license if:

(a) The licensee or any of its principals is engaged, or has commenced, instituted, advertised, aided, carried on, continued or engaged, in a business, trade or profession without having obtained a valid license, an approval for suitability, a permit or a work card when such a person knew that one was required or under such circumstances that they reasonably should have known one was required, or has solicited, encouraged, caused or procured another to do so;

(b) The licensee, any of its principals, or their employees or those acting on their behalf, have been subject, in any jurisdiction, to disciplinary action of any kind with respect to a license, an approval for suitability, a permit or a work card to the extent that such disciplinary action reflects upon the qualification, acceptability or fitness of such licensee or any principal;

(c) The licensee, any of its principals, or their employees or those acting on their behalf, have committed an act that constitutes a crime which involves moral turpitude or involves any local, State or Federal law or regulation which relates to the same or a similar business, or have been convicted of having solicited, encouraged, caused or procured another to commit such a violation;

(d) The licensee, any of its principals, or their employees or those acting on their behalf, have violated a condition which is imposed upon the license;

(e) The licensee, any of its principals, or their employees or those acting on their behalf, have perpetrated a deceptive practice upon the public;

(f) The licensee or any of its principals suffers from a legal disability under the laws of the State;

(g) The premises on which the business is conducted do not satisfy local, state or federal laws or regulations which pertain to the activity which is actually engaged in;

(h) The business activity constitutes, promotes, causes, allows, fosters, aids, or otherwise enables a private nuisance, public nuisance or chronic nuisance, or has been or is being conducted in an unlawful, illegal or impermissible manner, including but not limited to causing, allowing, promoting, fostering, aiding, enabling, exercising deliberate ignorance towards or failing to abate a private nuisance, public nuisance or chronic nuisance;

(i) Substantial information exists which tends to show that the licensee or any of its principals is dishonest or corrupt; or

(j) The required license fees for the next license period have not been paid in advance.

(B) In order to decline renewal of a license pursuant to Paragraph (2) of Subsection (A) of this Section, the Director must first:

(1) Obtain the written approval of the City Attorney's Office; and

(2) Mail or deliver to the licensee, at least twenty-one days before the licensing period expires, written notice of the nonrenewal, including a generalized statement of the reasons therefor. A failure by the City Attorney's Office to respond within three business days to a request for approval under this Subsection shall be deemed an approval thereunder.

(C) The Director shall base a decision to deny, revoke, suspend or fail to renew any license sought or obtained under this Chapter upon the objective criteria set forth in Subsection (A) and not upon a desire or need to suppress or censor expressive material, or to address conduct that does not constitute or aid and abet criminal conduct or activity or other conduct harmful to the public health, safety, welfare, morals and peace.
(Ord. No. 6594, § 2, 8-16-17; Ord. No. 6164, § 7, 11-2-11; Ord. 5998 § 3, 2008: Ord. 5964 § 1, 2008: Ord. 5873 § 5, 2006: Ord. 5081 § 7, 1998: Ord. 3485 § 1, 1990: Ord. 2186 § 2 (part), 1981: prior code § 5-1-16)

6.02.100 Issuance—Content.

Upon final approval of a new license application or license renewal and upon payment of all required fees, the Director shall issue a permanent license. The license shall specify the classification of the license, the premises where the business is allowed, the name of the licensee, and such other information as determined by the Director.
(Ord. No. 6164, § 8, 11-2-11; Ord. 5998 § 4, 2008: Ord. 2186 § 2 (part), 1981: prior code § 5-1-17)

6.02.110 Appeal of action by Director.

(A) Except as otherwise provided in this Section, or in Section 6.02.070 with respect to a temporary license, any person aggrieved by a decision of the Director denying or suspending a license, refusing to renew a license, or denying, revoking or suspending a permit may appeal that decision within ten days to the City Manager by filing written notice of appeal with the Department. Such notice must be received by the Department by five o'clock p.m. on the tenth day following service of notice of the Director's decision upon the applicant, licensee, its principal or resident agent at the address or addresses listed in the license application. Unless the City Manager finds good cause for a delay of up to ten additional days, the City Manager shall hear the appeal and render a decision within ten days after the date the appeal is received by the City Manager. It is the appellant's burden to present to the City Manager any and all facts and mitigating circumstances in support of the appeal.

(B) The City Manager may designate another person, including an independent hearing officer, to hear appeals under Subsection (A) of this Section, in which case the provisions of that Subsection pertaining to appeals shall apply to such designee.

(C) Any appeal of the Director's decision to deny a license issued under LVMC Chapter 6.50 or impose conditions on the granting of such a license shall be heard by the City Council rather than by the City Manager or a designee. The filing of an appeal and the burden of presentation shall be as set forth in Subsection (A). Such an appeal shall be heard as soon as

reasonably possible, taking into account scheduling concerns and open meeting law requirements. The City Council shall render its decision upon conclusion of the hearing or no later than the next regularly scheduled City Council meeting after the hearing.

(D) In the event the Director's action to deny or suspend a license; refuse to renew a license; or deny, revoke or suspend a permit is based upon the fact that the business activity to be engaged in would be in violation of Federal or State law, no appeal under this Section shall be available.
(Ord. No. 6806, § 41, 4-6-22; Ord. No. 6164, § 9, 11-2-11; Ord. 5873 § 6, 2006: Ord. 5081 § 8, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-18)

6.02.115 Multi-jurisdictional business licensing—Generally.

(A) The Department may collect license fees and issue business licenses for the City and any other jurisdiction participating in a multi-jurisdictional business license program authorized by LVMC 6.02.060(D) and an appropriate interlocal agreement between or among the parties participating in such a program.

(B) The following license categories are eligible for multi-jurisdictional business licensing:

(1) Contractor license, for contractors licensed pursuant to NRS Chapter 624, and subject to the multi-jurisdictional licensing provisions of NRS 268.0951; and

(2) Other categories determined by the Director pursuant to LVMC 6.02.060 to be appropriate for multi-jurisdictional licensing.

(C) Notwithstanding any provision in this Chapter to the contrary, the City shall not accept license fees nor renew a multi-jurisdictional business license in a participating jurisdiction upon receipt of a written notice by a participating jurisdiction directing the City not to renew such license in its jurisdiction. In this capacity, the City is merely acting as the conduit for non-renewal by the non-renewing participating jurisdiction, and any review or appeal of such decision to not renew the license by the City must occur at the jurisdiction directing the non-renewal of the license. The City shall not hear any review or appeal of such non-renewal.

(D) Notwithstanding any provision in this Chapter to the contrary, the City shall suspend or revoke a multi-jurisdictional business license in a participating jurisdiction upon receipt of a written notice by a participating jurisdiction directing the City to suspend or revoke such license in its jurisdiction. In this capacity, the City is merely acting as the conduit for suspension or revocation by the participating jurisdiction, and any review or appeal of such decision to suspend or revoke the license by the City must occur at the jurisdiction directing the suspension or revocation of the license. The City shall not hear any review or appeal of such suspension or revocation.

(E) Subsections (C) and (D) only permit the City to act to levy disciplinary action against a multi-jurisdictional business licensee in a jurisdiction other than the City at the direction of another participating jurisdiction. Such provisions do not permit the City to levy disciplinary action against any licensee doing business within the City's jurisdiction without following the provisions for disciplinary action provided by this Chapter.

(F) Notwithstanding any provisions to the contrary, if a business possessing a multi-jurisdictional business license issued by the City permanently closes its primary fixed business within the boundaries of the City, renewal fees shall not be accepted and such license shall not be renewed by the City.
(Ord. No. 6565, § 3, 1-4-17; Ord. No. 6494, § 1, 1-20-16; Ord. No. 6327, § 5, 6-18-14; Ord. No. 6264, § 2, 8-21-13; Ord. No. 6871, § 1, 7-17-24)

6.02.120 Fixed place of business required.

(A) Except as otherwise provided in Subsection (B) of this Section, a business license shall only be issued if the applicant has a fixed place of business from which the business will actually be conducted.

(B) A mobile business license may be issued to an applicant whose business operations are conducted exclusively from other than a fixed place of business within the City, including door-to-door operations and operations conducted from a motorized vehicle.

(C) Failure by a holder of a City multi-jurisdictional business license to permanently maintain a fixed place of business within the boundaries of the City shall preclude the annual renewal of such a license.
(Ord. No. 6264, § 3, 8-21-13; Ord. 5456 § 3, 2002: Ord. 2186 § 2 (part), 1981: prior code § 5-1-2 (B))

6.02.125 Unlawful sale of food products.

It is unlawful for any person to sell food products without first securing and maintaining in active status all health permits and health cards required by the Health District.
(Ord. No. 6071 § 39, 12-16-09; Ord. 5998 § 5, 2008)

6.02.130 State licenses required.

The Director may require a City license applicant to show proof that he or she has been issued a required unexpired State license, certificate or permit, as a condition of issuance of a City license.
(Ord. 5998 § 6, 2008: Ord. 5456 § 4, 2002: Ord. 5081 § 9, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-4)

6.02.140 Classification and premises restrictions.

A license issued pursuant to this Title authorizes the person to whom it is issued to exercise only those privileges expressly permitted for the specific classification of license issued and only on the premises identified in the license.
(Ord. 2186 § 2 (part), 1981: prior code § 5-1-6 (A))

6.02.145 Storage of alcoholic beverages on commercial premises.

(A) Except as otherwise provided in Subsection (B), it is unlawful for any person to store alcoholic beverages on the premises of any commercial establishment unless the licensee of the establishment has obtained and maintains valid alcoholic beverage-related licenses and permits under Chapter 6.50 that are necessary for, pertain to, and authorize such storage.

(B) The prohibition contained in Subsection (A) does not apply to the storage of alcoholic beverages in preparation for an occasional company party, but only if:

(1) The party is limited to employees and their guests; and

(2) The alcoholic beverages are removed from the premises before the next regularly scheduled business day.

(Ord. No. 6806, § 42, 4-6-22; Ord. No. 6071, § 40, 12-16-09)

6.02.150 Separate places and types of permits.

(A) Separate licenses or permits must be obtained for each assumed or fictitious name ("doing business as" or "DBA") on file with the County or that is otherwise associated with a business, branch establishment or separate place of business, whether the activity is intended to be permanent or temporary.

(B) Except as otherwise provided in this Section or with respect to a specific license category established under this Title:

(1) A license must be obtained for every class and type of business in this Code specified, even though several classes or types of business may be operated by the same person and at the same place of business; and

(2) The license fee applicable to each type or class must be paid, whether the fee is based on gross sales pursuant to LVMC 6.04.005 or is a semiannual or annual fixed license fee established elsewhere in this Code.

(C) A person conducting several classes or types of businesses, each of which is required by LVMC 6.04.005 to pay a license fee on the basis of gross sales, at the same location and under the same business name, shall, unless otherwise directed by the Director, apply for and obtain only one license.

(D) A person who falls within a license category described in Subsection (E) shall be subject to the gross sales license fee described in LVMC 6.04.005 unless, for one or more future licensing periods, the person elects to pay the fixed annual license fee established in

the applicable Code section described in Subsection (E). As deemed appropriate, the Director shall establish deadlines, procedures and other requirements for making the election described in this Subsection.

(E) The following license categories are subject to the election provisions of Subsection (D):

(1) Administrative or corporate office space, as described in LVMC 6.04.040.

(2) Fulfillment center, as described in LVMC 6.04.130.

(3) Affiliate company software developer or sales-related call center, as described in LVMC 6.04.140.

(4) Internet retailer, as described in LVMC 6.04.150.

(F) For any business license subject to a fixed license fee pursuant to Chapter 6.04, the Department may issue a related license and take other appropriate administrative action in order to facilitate the collection of gross sales-based fees that the business owes for related activity not covered by the business's fixed license fee.
(Ord. No. 6936, § 1, 1-21-26; Ord. No. 6327, § 6, 6-18-14; Ord. No. 6288, § 3, 11-20-13; Ord. No. 6137, § 5, 3-16-11; Ord. 5998 § 7, 2008: Ord. 5456 § 5, 2002: Ord. 2186 § 2 (part), 1981: prior code § 5-1-6 (B))

6.02.160 Fees—Period—Proration.

(A) Unless specifically provided otherwise, all license fees imposed by this Title shall be for a semiannual period and shall be billed by the Department accordingly.

(B) A licensee is responsible for the payment of all applicable license fees, administrative fees, service charges, civil fines, penalties and interest imposed pursuant to this Title.

(C) Unless specifically provided otherwise, a license fee may be pro-rated on a semiannual, quarterly or monthly basis to allow for consolidation of billing cycles at the discretion of the Director.

(D) Refunds of license fees will not be issued due to business closure, expiration, revocation or suspension of a license.

(E) At the discretion of the Director, any payments received from a licensee may first be applied to civil fines and penalties due and owing from the licensee to the City.
(Ord. No. 6288, § 4, 11-20-13; Ord. No. 6164, § 10, 11-2-11; Ord. 3830 § 1, 1994: Ord. 2186 § 2 (part), 1981: prior code § 5-1-7 (A))

6.02.170 Fees—Due dates—Advance payment.

(A) License fees based upon gross sales/gross revenues are due in advance and shall fall due on a semiannual basis, with the initial semiannual period commencing on the date the business license is issued.

(B) The new owner of an existing business paying license fees based upon gross sales/gross revenues shall report to the Director the gross sales/gross revenues of the previous owner for the six-month period immediately preceding the purchase of the business for the purpose of determining the initial license fee of the new owner.

(C) Fixed license fees are due in advance and shall fall due on an annual basis, with the initial period commencing on the date the business license is issued, unless otherwise provided in this Code. An applicant or licensee is not entitled to the issuance of a license until all fees due from that applicant or licensee have been paid.
(Ord. No. 6288, § 5, 11-20-13; Ord. 5998 § 8, 2008: Ord. 5081 § 10, 1998: Ord. 3830 § 2, 1994: Ord. 2186 § 2 (part), 1981: prior code § 5-1-7 (B))

6.02.180 Fees—Gross-sales basis—First time amount.

Subject to the provisions of LVMC 6.02.190, the first semiannual license fee for a business whose license fee is based on gross sales shall be the greater of:

(A) The amount determined by the Director to be the cumulative average semiannual license fee paid by other businesses in the same industry; or

(B) One hundred dollars.

An applicant may elect to pay a larger first period license fee than required by this Section.
(Ord. No. 6047, § 3, 7-15-09; Ord. 5081 § 11, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-8(A))

6.02.190 Fees—Gross-sales basis—Calculation.

(A) In the event there is an underpayment for the first licensing period because of a discrepancy between the actual and estimated gross sales, the balance of the fee shall be paid before the renewal of the license for any subsequent period. Until such deficiency is paid, the licensee shall not be issued a new license or renewal of an existing license for any other business.

(B) In the event of overpayment of the license fee for a semiannual license period, other than the first semiannual fee paid pursuant to Subsection (B) of LVMC 6.02.180, the amount overpaid shall be credited toward the license fee owed for the succeeding licensing period.

(C) If an audit during the first period of operation indicates that the gross sales of the business will substantially exceed the minimum fee determined under LVMC 6.02.180, the Director may require the immediate payment of an additional amount to reflect the estimated sales for such period.

(D) With respect to calculating the fee for the second semiannual period and all periods thereafter, the licensee shall certify the amount of gross sales made during the last preceding semiannual period, which shall be used as the basis for the license fee for the next licensing period.
(Ord. No. 6164, § 11, 11-2-11; Ord. 5081 § 12, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-8(B))

6.02.200 Fees—Gross-sales basis—Underpayment.

(A) In the event there is an underpayment for any licensing period because of a discrepancy between actual and declared gross sales, the balance of the fee shall be paid before the renewal of a license for any subsequent period. In addition, the licensee shall be assessed regarding the deficiency a penalty and interest, as provided in this Section. Except as otherwise provided in Subsection (E), the deficiency and accompanying penalty and interest must be paid before the renewal of a license for any subsequent period.

(B) In the event the underpayment is discovered by the first audit of the business after the first licensing period, the penalty shall be an amount equal to thirty-five percent of the delinquency.

(C) In the event the underpayment is discovered by the second or any subsequent audit of the business after the first licensing period, the penalty shall be an amount equal to seventy percent of the delinquency.

(D) Interest on the amount of such delinquency shall be one and one-half percent per month from the date when such fee became due and payable until the date when paid.

(E) If an audit of a licensee's records shows that the licensee, as a result of underpayment, owes more than one thousand dollars in license fees, the Director shall have the discretion to approve a payment plan based on a demonstration of hardship by the licensee. In connection with such a payment plan, the Director is authorized to renew a license that otherwise would not be renewed by reason of the nonpayment of license fees.
(Ord. No. 6164, § 12, 11-2-11; Ord. 5081 § 13, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-9(A, B))

6.02.210 Fees—Gross-sales basis—Records and city access.

(A) The Director and any other person designated by him shall have access to the books of such businesses as are contemplated in Section 6.02.180 et seq. for the purpose of auditing the amount of gross sales and inventory, as applicable.

(B) It is unlawful for a licensee to fail to keep adequate records of gross sales and of inventory (where applicable), and to fail to produce adequate records to the Director within seventy-two hours on demand by the Director or any other person designated by him.

(C) "Adequate records" for the purpose of this Section means:

(1) Original copies of all sales invoices and credit slips for a period of one year preceding the date of the audit and all cash receipts journals for a period of three years preceding the date of the audit;

(2) The additional records described in Subsection (D) of this Section, for the following types of licensees:

(a) Licensees engaged in the sale of liquor; and

(b) Licensees who:

(i) Are engaged in the sale, rental or trade of sexual novelties or books, films, videotapes, discs, magazines and other periodicals which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as those terms are defined in LVMC 6.06A.010, and who have been identified by the Director as having a significant inventory of such materials; and

(ii) Have been requested by the Director in writing to keep such records and to make them available.

(D) Licensees described in Subsection (C)(2) of this Section shall keep and make available the following records:

(1) A floor plan of the licensee's retail space, including any on-premise storage space;

(2) Inventory reports, including product description and price extension, for a period of one year preceding the date of the audit; and

(3) Purchase orders, for a period of one year preceding the date of the audit.

(E) The information received from the licensee under this Section shall be confidential and available to only those City employees concerned in such matters.
(Ord. 5456 § 6, 2002: Ord. 2186 § 2 (part), 1981: prior code § 5-1-9(C))

6.02.220 Fees—Gross-sales basis—Underdeclaration unlawful.

It is unlawful for any licensee required to pay a license fee on the basis of gross sales to make a material and intentional underdeclaration of gross sales for any licensing period to the Director. In determining materiality, the fact that the underdeclaration places the licensee in a lower fee bracket shall be considered one of the major determining factors.
(Ord. No. 6164, § 13, 11-2-11; Ord. 5081 § 14, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-10)

6.02.225 Underpayment of fixed incremental fees—Penalty.

(A) With respect to fixed incremental license fee categories described in Chapter 6.04, in the event there is an underpayment by a licensee because of a discrepancy between the actual and declared basis for the incremental fee, the balance of the fee shall be paid before the renewal of a license for any subsequent period. In addition, the licensee shall be assessed regarding the deficiency a penalty and interest, as provided in this Section. Except as otherwise provided in Subsection (E), the deficiency and accompanying penalty and interest amounts must be paid before the renewal of a license for any subsequent period.

(B) In the event the underpayment is discovered by the first audit of the business after the first licensing period, the penalty shall be an amount equal to thirty-five percent of the delinquency.

(C) In the event the underpayment is discovered by the second or any subsequent audit of the business after the first licensing period, the penalty shall be an amount equal to seventy percent of the delinquency.

(D) Interest on the amount of such delinquency shall be one and one-half percent per month from the date when such fee became due and payable until the date when paid.

(E) If an audit of a licensee's records shows that the licensee, as a result of underpayment, owes more than one thousand dollars in license fees, the Director shall have the discretion to approve a payment plan based on a demonstration of hardship by the licensee. In connection with such a payment plan, the Director is authorized to renew a license that otherwise would not be renewed by reason of the nonpayment of license fees.
(Ord. No. 6164, § 14, 11-2-11)

6.02.230 Renewal—Requirements.

(A) In order to renew a license the licensee must pay the appropriate license fee, and where the fee is based upon gross sales/gross revenues the licensee shall declare the gross sales/gross revenues in the last preceding semiannual license period or prorated time period. The payment of a license fee does not by itself entitle the licensee to renewal of a license.

(B) In connection with the renewal of a license, the Director may require the licensee to pay the license fee for a primary license before paying the license fee for any additional licenses ancillary to the primary license. In such a case, if the primary license fee is not paid in full, payment will not be accepted for any associated ancillary license.
(Ord. No. 6288, § 6, 11-20-13; Ord. 5998 § 9, 2008: Ord. 5964 § 2, 2008: Ord. 5456 § 7, 2002: Ord. 2186 § 2 (part), 1981: prior code § 5-1-11 (part))

6.02.240 Renewal—Notice—Due date.

(A) Prior to the due date of the next licensing period, the Director shall cause a notice to be mailed or sent via electronic mail, based on the preferred method to receive correspondence by the licensee, to each licensee setting forth the amount of the license fee owed

for the next license period; provided, however, that the failure of a licensee to receive actual notice does not affect the obligation to pay the license fee. If no preferred method of notice is selected then the notice shall be mailed.

(B) The due date shall be the first day of the first month of a licensing period.
(Ord. No. 6288, § 7, 11-20-13; Ord. No. 6164, § 15, 11-2-11; Ord. 5081 § 15, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-11 (part))

6.02.250 Delinquency—Expiration—Reinstatement.

(A) All license fees other than gaming and alcoholic beverage license fees shall become delinquent if not received within fifteen days after the due date. If full payment is not made within fifteen days after the due date, fifteen percent of the entire license fee shall be assessed as a penalty, payable in addition to the license fee; provided, however, if the fifteenth day following the due date is a day that the principal offices of the City are not open to the public, the penalty must not be assessed if the license fee is received before midnight of the next day on which the principal offices of the City are open to the public.

(B) Except as otherwise provided in Subsection (E) with respect to ice cream truck and cannabis establishment licenses, all licenses for which fees and assessed penalty charges have not been paid within sixty days after the license fee due date are deemed expired and shall not be reinstated until the license fees, assessed penalty charges and a reinstatement fee of fifty dollars have been paid. A license is eligible for reinstatement only within the four-month period following its expiration.

(C) The Director may refer any delinquent license fees and assessed penalty charges to a collection agency for collection if they have not been paid within sixty days after the license fee due date. The Director may do likewise regarding any service charges and administrative fees that have been assessed pursuant to LVMC 6.02.020(B)(7) and have not been paid in a timely manner.

(D) As a condition of reinstatement of a license deemed expired pursuant to Subsection (B) of this Section, the licensee shall, in addition to payment of any outstanding license fees, penalty charges, service charges, administrative fees, and reinstatement fees, reimburse the City for any expenses it has incurred as a result of referring the licensee's delinquent license fees and assessed penalty charges to a collection agency.

(E) The expiration of ice cream truck licenses shall be governed by LVMC 6.47.030(B)(4). The expiration of cannabis establishment licenses shall be governed by LVMC Chapters 6.06 and 6.95.
(Ord. No. 6750, § 32, 9-16-20; Ord. No. 6620, § 32, 5-16-18; Ord. No. 6520, § 10, 4-6-16; Ord. No. 6324, § 2, 6-4-14; Ord. No. 6288, § 8, 11-20-13; Ord. No. 6164, § 16, 11-2-11; Ord. No. 6047, § 4, 7-15-09; Ord. 5998 § 10, 2008: Amended during 3/97 supplement; Ord. 4016 § 2, 1996: Ord. 3898 § 1, 1995: Ord. 2186 § 2 (part), 1981: prior code § 5-1-12)

6.02.260 Fee collection by civil action.

Any license fee imposed by this Code shall be deemed a debt due the City payable by any person who commences, carries on, engages in, or conducts any business, for which a license is required. Such person shall be liable in a civil action to the City in any court of competent jurisdiction for the recovery of the amount of license fee, penalties and interest imposed by this Code, and for the costs of suit and reasonable attorney's fees.
(Ord. No. 6164, § 17, 11-2-11; Ord. 2186 § 2 (part), 1981: prior code § 5-1-15)

6.02.270 Display at fixed place of business.

It is unlawful for any person having a license under the provisions of this Code and carrying on a business at a fixed place of business to fail to prominently display this license in the place of business for which it is issued.
(Ord. 2186 § 2(part), 1981: prior code § 5-1-14(A))

6.02.280 Carrying when business not fixed.

It is unlawful for any person who is not required to have a fixed place of business and who was issued a license under the provisions of this Code to fail to carry such license or a copy either upon his person or in any vehicle or other conveyance which is used in such business.
(Ord. 5081 § 16, 1998: Ord. 2186 § 2 (part), 1981: prior code § 5-1-14(B))

6.02.290 Ownership change.

Within fifteen days before the transfer of ownership of a business licensed under this Code for which a license fee has already been paid, the transferee shall apply for the transfer of the license and shall be entitled to receive the same upon delivery of ownership documentation satisfactory to the Director and payment of the processing fee required by LVMC 6.02.085; provided, that the transferred business meets all other requirements of this Code. No transfer of license shall be approved until the required license fee has been paid to the next succeeding licensing period.
(Ord. 5081 § 17, 1998: Ord. 3961 § 2, 1996: Ord. 2186 § 2(part), 1981: prior code § 5-1-13(A))

6.02.300 Location change.

Before relocating a business, a licensee shall apply to the Director on forms provided by the Department for permission to relocate such business. Within thirty calendar days of receipt of the application the Director shall approve such relocation if the new location meets all the requirements of this Code and the licensee has paid the processing fee required by LVMC 6.02.085.
(Ord. 5998 § 11, 2008: Ord. 3961 § 3, 1996: Ord. 2186 § 2 (part), 1981: prior code § 5-1-13(B))

6.02.310 Name-of-business change.

A person licensed to do business under this Title shall report to the Director on forms provided by the Department any proposed change in business name from that designated in

the original business license application prior to such change, and shall pay the change of name processing fee required by LVMC 6.02.085 upon the filing of such report. The report must be filed at least fifteen days before the licensee takes any step to implement the change, including without limitation the filing of a fictitious name certificate regarding the new name, or the use of the name in advertising or in the conduct of business.
(Ord. No. 6164, § 18, 11-2-11; Ord. 5998 § 12, 2008: Ord. 5081 § 18, 1998: Ord. 3961 § 4, 1996: Ord. 2186 § 2 (part), 1981: prior code § 5-1-13(C))

6.02.320 Duty to report changes.

(A) Licensees have a continuing duty and obligation to notify the Department of additions, deletions, changes or modifications in the information furnished the Department and this duty continues as long as a valid license remains in effect. Except as otherwise provided in LVMC 6.02.290, 6.02.300 and 6.02.310, a licensee must provide such notification no later than fifteen days after an addition, deletion, change or modification takes place. Failure to report any change that alters the licensing status of the licensee or business is unlawful.

(B) A licensee may be required, in the discretion of the Director, to apply for a different license if changes in the licensee's business operations alters the original purpose for which the business was licensed.

(C) A licensee may be required, in the discretion of the Director, to apply for a new license if the changes in the licensee's business operations have not previously been reviewed for compliance with City zoning, building and fire code regulations.

(D) The burden is on the licensee to show that the changes in business operations have not altered the original business purpose.
(Ord. No. 6288, § 9, 11-20-13; Ord. 5998 § 13, 2008: Ord. 5081 § 19, 1998: Ord. 2186 § 2(part), 1981: prior code § 5-1-13(D))

6.02.330 Disciplinary action—Good cause designated.

A licensee may be subject to disciplinary action by the City Council for good cause, which may, without limitation, the following:

(A) The licensee or any of its principals is engaged, or has commenced, instituted, advertised, aided, carried on, continued or engaged, in a business, trade or profession without having obtained a valid license, an approval for suitability, a permit or a work card when such person knew that one was required or under such circumstances that such person reasonably should have known one was required, or has solicited, encouraged, caused or procured another to do so;

(B) The licensee or any of its principals has been subject, in any jurisdiction, to disciplinary action of any kind with respect to a license, an approval for suitability, a permit or a work card to the extent that such disciplinary action reflects upon the qualification, acceptability or fitness of such licensee or principal;

(C) The licensee or any of its principals has committed an act that constitutes a crime which involves moral turpitude or involves any local, State or Federal law or regulation which relates to the same or a similar business, or has been convicted of having solicited, encouraged, caused or procured another to commit such a violation. For purposes of this Subsection, a crime involving moral turpitude is one that necessarily involves any of the following: an intent to defraud; intentional dishonesty for personal gain; intentional causing of serious injury to another person; the sale of narcotics or possession of narcotics with intent to sell; or a sexual offense as described in NRS 179D.097;

(D) The licensee or any of its principals, or their employees or those acting on their behalf, violate a condition which is imposed upon the license;

(E) The licensee or any of its principals has perpetrated, or has solicited, encouraged, caused or procured another to perpetrate, a deceptive practice upon the public;

(F) The licensee or any of its principals suffers from a legal disability under the laws of the State;

(G) The premises on which the business is conducted do not satisfy local, State or Federal law or regulations which pertain to the activity which is actually engaged in;

(H) The business activity constitutes, promotes, causes, allows, fosters, aids, or otherwise enables a private nuisance, public nuisance or chronic nuisance, or has been or is being conducted in an unlawful, illegal or impermissible manner, including but not limited to causing, allowing, promoting, fostering, aiding, enabling, exercising deliberate ignorance towards or failing to abate a private nuisance, public nuisance or chronic nuisance;

(I) Substantial information exists which tends to show that the licensee or any of its principals is dishonest or corrupt; or

(J) The licensee, any of its principals, their employees or those acting on their behalf failed to cooperate with the Director's efforts to enforce the provisions of this Code.

(Ord. No. 6594, § 3, 8-16-17; Ord. No. 6164, § 19, 11-2-11; Ord. 5873 § 7, 2006: Ord. 3485 § 2, 1990: Ord. 2186 § 2 (part), 1981: prior code § 5-1-19(A))

6.02.340 Disciplinary action—Required or prohibited act violations.

Whenever this Title requires any act to be done or prohibits or makes unlawful the doing of any act, the failure to do any such required act or the doing of any such prohibited or unlawful act shall subject the person who commits such violation to disciplinary action.
(Ord. 2186 § 2 (part), 1981: prior code § 5-1-19(B))

6.02.350 Disciplinary action—Acts of principals and subordinates.

A licensee under this Title shall be subject to disciplinary action not only for acts or omissions done by such licensee but also for acts and omissions done by the principals, managers, agents, representatives, servants or employees of such licensee.
(Ord. 5998 § 14, 2008: Ord. 2186 § 2 (part), 1981: prior code § 5-1-19(C))

6.02.360 Disciplinary action—Forms.

Upon a showing of good cause and in the discretion of the City Council, disciplinary action against a holder may take the form of cancellation, revocation, refusal to renew, suspension, imposition of conditions or restrictions or civil fine in an amount not to exceed one thousand dollars for each day that the violation which forms the subject matter of the complaint that recommends such disciplinary action is demonstrated to have been in existence, or any combination of such actions, as the particular situation may require. The Council may also impose against the licensee the actual costs incurred, and a reasonable amount for attorney's fees, resulting from the imposition of disciplinary action. The disciplinary actions available in this Section shall be in addition to, and not exclusive of, any other civil or criminal remedy which otherwise might be available.
(Ord. 5078 § 1, 1998: Ord. 3453 § 1, 1989: Ord. 2186 § 2 (part), 1981: prior code § 5-1-19(D))

6.02.361 Three violations in a twelve-month period.

(A) If a licensee is convicted in criminal court for any three violations of LVMC 6.50 or LVMC 6.95, or a licensee is found liable to the City for three violations of LVMC 6.50 or LVMC 6.95 pursuant to the provisions at LVMC 6.02.390—LVMC 6.02.460 within any twelve-month period, the Director may take one or more of the following actions:

(1) Require the licensee to appear before the City Council for disciplinary action pursuant to the provisions at LVMC 6.02.330—LVMC 6.02.360;

(2) Immediately suspend the alcoholic beverage license of the licensee until such time as the licensee appeals the suspension pursuant to the provisions of LVMC 6.02.110. If the Director suspends the alcoholic beverage license of the licensee, the Director shall, prior to the suspension of such license, provide a written statement to the licensee informing the licensee of the grounds upon which the suspension is initiated, the time period for which the suspension is effective and a copy of LVMC 6.02.110 indicating the licensee's right to appeal.

(B) This provision shall not limit the Director or City Council's ability to bring any licensee forward for discipline at any time.
(Ord. No. 6831, § 16, 3-1-23; Ord. No. 6329, § 3, 6-18-14)

6.02.363 Emergency orders—Grounds.

(A) Except as provided in Subsection (B), and independent of any other action, the Director or Metro may issue an emergency order which suspends or conditions a license upon a determination that:

(1) There has been a violation of the provisions of this Title, Title 9 or Title 19; and

(2) Such order is necessary for the immediate preservation of the public peace, health, safety, morals, good order or general welfare within the City.

(B) This Section does not apply to any business license issued pursuant to Chapter 6.06A or Chapter 6.35.
(Ord. 5873 § 8, 2006: Ord. 5228 § 1, 2000: Ord. 5170 § 1, 1999)

6.02.365 Emergency orders—Content—Effective date.

Any emergency order issued pursuant to Section 6.02.363 shall:

(A) Set forth the grounds upon which it is issued, including a statement of facts constituting the emergency which necessitates such order;

(B) Be effective immediately upon the issuance and service thereof on the licensee or its representative or upon the licensed premises; and

(C) Indicate the period of time for which it is effective, which shall be based upon the severity of the violation and the nature of the emergency as determined by the Director or Metro.
(Ord. 5170 § 2, 1999)

6.02.367 Emergency orders—Appeal.

A licensee who is affected by an emergency order may appeal the order by filing an appropriate action in the State of Nevada District Court to challenge or seek review of the order. Such action to appeal must be filed within ten days after the effective date of the emergency order, or the right to appeal is deemed waived. Nothing in this Section shall be construed to limit any statutory right of the licensee to file an ordinary or emergency petition for extraordinary writ under NRS Chapter 34, where appeal under this Section is an inadequate remedy at law. Where the Director or Metro is alleged to have engaged in censorship of expressive conduct or material rather than addressing or avoiding criminal conduct or other conduct harmful to the public health, safety, welfare, morals and peace, prompt judicial review is warranted under *City of Littleton, Colorado* v. *Z.J. Gifts D-4,* L.L.C., 541 U.S. 774, 124 S.Ct. 2219, 159 L.Ed.2d 84 (2004).
(Ord. 5873 § 9, 2006: Ord. 5170 § 3, 1999)

6.02.370 Violations—Unlawful—Designated nuisance.

(A) It is unlawful to:

(1) Engage in any activity for which a license is required by this Title without having obtained and maintained in force the license that pertains to that activity;

(2) Violate any provision of this Title in connection with the operation of a business; or

(3) Violate any provision of State law governing the operation of a business.

(B) It is unlawful for a licensee to:

(1) Violate any condition of an business license; or

(2) Knowingly permit an employee of the licensee to violate any condition of a business license.

(C) In addition, any activity or violation described in Subsections (A) or (B), if harmful to the safety, welfare, health, or peace of City residents, property owners or visitors, constitutes a public nuisance.
(Ord. No. 6594, § 4, 8-16-17; Ord. No. 6388, § 3, 12-17-14; Ord. No. 6164, § 20, 11-2-11; Ord. 2186 § 2 (part), 1981: prior code § 5-1-20(A))

6.02.380 Violations—Action against nuisance.

The City Attorney, upon order of the Council or request from the City Manager, shall institute legal action, in any court of competent jurisdiction, to abate, remove or enjoin the nuisance. This remedy shall be in addition to any other remedy available under this Chapter or any other law.
(Ord. 5873 § 10, 2006: Ord. 2186 § 2 (part), 1981: prior code § 5-1-20(B))

6.02.390 Alternative to a criminal prosecution.

As an alternative to a criminal prosecution for the violation of any provision of Title 6, the City may treat the violation as a civil violation and proceed in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive.
(Ord. No. 6242, § 1, 3-20-13)

6.02.400 Notice of Violation—Generally.

(A) A proceeding under LVMC 6.02.390 shall be commenced by the issuance of a Notice of Violation. The Notice of Violation must contain, at a minimum, the following information:

(1) The name and address (if known) of the person or entity responsible for the violation;

(2) A brief description of the violation and a reference to the applicable ordinance or Code citation(s);

(3) The location, date and time of the violation;

(4) The name of the person issuing the Notice of Violation;

(5) The amount of the civil fine applicable to the violation;

(6) Information advising of the manner and time for responding to the Notice of Violation; and

(7) Such other pertinent information as may be necessary or appropriate.

(B) No error concerning or omission of any of the above-described information is grounds for the dismissal of an action relating to a Notice of Violation unless the person requesting such a disposition demonstrates substantial prejudice therefrom by a preponderance of the evidence.

(C) Where the Notice of Violation data is entered into and stored in a computer or similar device, any printout or other output readable by sight which accurately reflects such data is an "original" Notice of Violation for purposes of a proceeding under LVMC 6.02.390. Any

such recording which is moved or copied into another computer or similar device and is intended to have the same effect by the issuing officer is also an "original" Notice of Violation for purposes of a proceeding under LVMC 6.02.390.

(D) Any Notice of Violation issued pursuant to this Section shall constitute a declaration which is subject to the penalty of perjury.
(Ord. No. 6242, § 1, 3-20-13)

6.02.410 Notice of Violation—Issuance.

The Notice of Violation may be issued by any peace officer or by any officer or employee of the Department who is assigned to enforcement.
(Ord. No. 6242, § 1, 3-20-13)

6.02.420 Notice of violation—Filing.

An original Notice of Violation, or a facsimile thereof, must be filed with and retained by the Department and is deemed to be a public record of matters which are observed pursuant to a duty which is imposed by law and is prima facie evidence of the facts which are alleged therein. An original or duplicate of the Notice of Violation must be served on the person responsible for the violation or, in the case of an entity, an officer of that entity.
(Ord. No. 6242, § 1, 3-20-13)

6.02.430 Notice of violation—Response—Hearings.

(A) A person must respond to a Notice of Violation in one of the following ways:

(1) "Admit" responsibility for the commission of the violation and liability for the civil fine imposed, and pay the amount of the fine applicable to the violation;

(2) Contact the Business Licensing Division, "admit" such responsibility and liability, and arrange a schedule for payment of the fine; or

(3) Request a binding hearing, as provided for in Subsections (B) to (I), inclusive, of this Section in order to dispute the propriety of the issuance of the Notice of Violation or liability for the violation.

(B) A person may initiate a hearing pursuant to Paragraph (3) of Subsection (A) of this Section by:

(1) Contacting the Business Licensing Division;

(2) Providing his/her name, current address and the Notice(s) of Violation(s) which the person wishes to be the subject of the hearing; and

(3) Obtaining a date for the hearing.

(C) Any person initiating such a hearing in this manner (the "defendant") shall be bound by the decision of the Hearing Officer concerning liability for the violation(s) and responsibility for the fines related thereto. If a defendant scheduling a hearing before the Hearing Officer fails to appear at the hearing without having first sought and obtained a

continuance of the hearing, the Hearing Officer may enter a decision against the defendant for the full amount of fines scheduled to be reviewed. In connection with the request for a hearing, the defendant must acknowledge the binding nature of the hearing and the Hearing Officer's authority in the event the defendant fails to appear at a hearing. The acknowledgment shall be in substantially the following form:

I _____, hereby request a binding hearing before the Hearing Officer. My address is _____. I request that this hearing involve Notice(s) of Violation(s) Number _____. I understand that the Hearing Officer is an attorney and not an elected or appointed judge.

I understand that I am bound by the decision of the Hearing Officer. I understand that if I fail to appear for the scheduled hearing before the Hearing Officer without first obtaining a continuance of such hearing, the Hearing Officer may enter a decision against me for the full amount of the penalties scheduled to be reviewed. I understand and agree that if necessary due to my lack of timely payment, the City of Las Vegas can and will use this binding decision to have a formal civil judgment entered against me in the Las Vegas Municipal Court.

I understand that if a civil judgment is obtained, the City may seek and obtain a writ of execution against me. I understand that if a writ of execution is obtained, my wages and/or bank accounts may be garnished, and liens may be put on my property.

Knowing all of the above, I still wish to request a binding hearing before the Hearing Officer on the above-described Notice(s) of Violation(s). I hereby acknowledge the above and further acknowledge that at my request a hearing has been set for _____, 20____ at the hour of ____ m.

_____

Defendant

(D) Any hearing conducted pursuant to this Section shall be presided over by a Hearing Officer who shall be an attorney licensed to practice law in the State of Nevada. With respect to any such hearing, a properly filed Notice of Violation shall constitute a claim of liability and a claim for relief and no other such claim shall be required. Prima facie proof of the violation alleged shall be established by the City providing the Hearing Officer with either a certified copy of the Notice of Violation or the data stored in a computer or other device as described in LVMC 6.02.400. No formal appearance by the City Attorney's Office is required. The hearings and dispositions of all such actions shall be informal, with the Hearing Officer receiving witness statements or testimony and other evidence for the sole purpose of dispensing fair and speedy justice between the parties. A defendant may pay the amount of the civil fine in lieu of appearing before the Hearing Officer.

(E) The burden of proving any defense shall be upon the person raising such defense.

(F) If the Hearing Officer finds that a violation did not occur or that the defendant should not be held liable, the Hearing Officer shall enter a decision for the defendant.

(G) The defendant shall pay the total civil fines forthwith or at such times and on such conditions as the Hearing Officer shall prescribe if it is found that the person has either failed to appear or otherwise defend against the issuance of the Notice of Violation as agreed or that the violation was committed and no applicable defense exists.

(H) Upon reaching a decision, the Hearing Officer shall as soon as practicable thereafter, file a written decision substantially conforming to the following form:

City of Las Vegas, Clark County, Nevada

City of Las Vegas, Plaintiff v. _____, Defendant. Before, _____, Hearing Officer for the City of Las Vegas, Nevada, decision is entered in favor of _____, (plaintiff or defendant) for $_____ (enter $0.00 if judgment is for the defendant), on the ____ day of _____, 20____. I certify that the foregoing is a correct reflection of the decision entered in the action properly brought for my consideration pursuant to LVMC 6.02.390 et seq.

_____

Hearing Officer

(I) The City Attorney may petition the Las Vegas Municipal Court for the entry of a civil judgment against the defendant in an amount equal to that stated in the written decision of the Hearing Officer if the City Attorney determines this action to be necessary to enforce the decision. Service of such petition on the defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the defendant at the defendant's last known address, or in any other manner which is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service shall be filed upon such service of the petition. Once a petition for civil judgment pursuant to this Subsection (I) has been filed with the Municipal Court, the assigned judge has jurisdiction to grant or deny the relief prayed for therein.
(Ord. No. 6242, § 1, 3-20-13)

6.02.440 Notice of violation—Response period.

(A) A response to a Notice of Violation, as provided in LVMC 6.02.430, must be made within thirty calendar days after the date on which the Notice of Violation is served. If no response is received during such thirty-day period, an additional civil penalty which is equal to the amount of the original civil fine must be assessed.

(B) After the expiration of the thirty-day response period, the Director, or an authorized designee, must send a Notice of Delinquency by mail to the registered owner or operator of the business at the owner's last known address, as indicated by the records of the Business Licensing Division. The Notice of Delinquency must contain the date of the violation, the

amount of the civil fine and the amount of any penalty which is associated therewith. The owner has fifteen calendar days after the date of the Notice of Delinquency in which to respond to the Business Licensing Division. If no response is made to the Notice of Delinquency within such additional fifteen-day period, a civil penalty must be assessed equal to two times the original civil fine amount, in addition to the original civil fine.

(C) If a person fails to respond to a Notice of Violation or a Notice of Delinquency in accordance with this Chapter, the City is entitled to collect the amount of any fines and penalties by means of any remedy available under applicable law, including without limitation referring the matter to a collection agency.
(Ord. No. 6242, § 1, 3-20-13)

6.02.450 Fines established—Collection fees.

(A) The schedule of civil fines contained in LVMC 6.02.460 is hereby established for the violations described therein.

(B) In addition to the fines and penalties provided for in LVMC 6.02.390 to 6.02.460, inclusive, the person responsible for any violation shall be liable for an additional collection fee where the collection of the penalties provided for herein is referred for collection to a private collection agency. The amount of such fee shall be twenty-five percent of the outstanding indebtedness or two hundred fifty dollars, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this Chapter may include the amount of the collection fee authorized by this Subsection (B).
(Ord. No. 6242, § 1, 3-20-13)

6.02.460 Schedule of civil fines.

(A) Except as otherwise provided in this Section, the civil fines for violations that are processed under the provisions of LVMC 6.02.390 to 6.02.460, inclusive, are as follows:

(1) For a first offense, two hundred fifty dollars.

(2) For a subsequent offense, five hundred dollars.

(B) The civil fine for violations processed under the provisions of LVMC 6.02.390 to 6.02.460, inclusive, for violations of any provision of LVMC 6.50 or LVMC 6.95 is five hundred dollars for each offense.

(C) For violations of LVMC Chapter 6.75 by the holder of a license under that Chapter, whether a license to operate a short-term residential rental or to act as an accommodations facilitator, the civil fine is one thousand dollars for each single violation or the nightly rental value of the short-term residential rental, whichever is greater.

(D) For a violation of LVMC Chapter 6.75 by a person who makes available a short-term residential rental without holding a license under that Chapter, the civil fine shall be not less than one thousand dollars nor more than ten thousand dollars for each violation. The amount of the fine shall take into account and be based upon:

(1) The severity of the violation;

(2) Whether the person who committed the violation acted in good faith; and

(3) Any history of previous violations of the provisions of LVMC Chapter 6.75 or any other ordinance related to transient lodging, as defined in LVMC 4.20.020.

(E) In connection with any violation sustained or confirmed by judgment of a Hearing Officer, a separate fine may be assessed for each day the violation occurred or continued to the extent the violation on that day was alleged in the Notice of Violation.
(Ord. No. 6831, § 17, 3-1-23; Ord. No. 6815, § 9, 8-17-22; Ord. No. 6329, § 1, 6-18-14; Ord. No. 6242, § 1, 3-20-13)

CHAPTER 6.04 BUSINESS LICENSE FEES*

6.04.005 Sales-based fees.

(A) Unless specifically provided otherwise in this Code, each person doing business in the City shall pay to the City, in advance, a semiannual license fee based on the gross sales of the business according to the following schedule:

Semiannual Gross Income (Dollars)	Semiannual License Fee (Dollars)
0—30,000	55.00
30,001—180,000	100.00

*__Editor's note—__Ord. No. 6327, § 2, adopted June 18, 2014, repealed the former Chapter 6.04, §§ 6.005—6.04.180, and § 3 of Ord. No. 6327 enacted a new Chapter 6.04 as set out herein. The former Chapter 6.04 pertained to similar subject matter and derived from Ord. No. 5352, 2001; Ord. No. 5998, 2008; Ord. No. 6047, adopted July 15, 2009; Ord. No. 6098, adopted July 21, 2010; Ord. No. 6137, adopted March 16, 2011; Ord. No. 6165, adopted November 2, 2011; Ord. No. 6264, adopted August 21, 2013; Ord. No. 6288, adopted November 20, 2013; Ord. No. 6296, adopted February 5, 2014 and Ord. No. 6305, adopted March 19, 2014.

Semiannual Gross Income (Dollars)	Semiannual License Fee (Dollars)
180,001—300,000	200.00
300,001—540,000	300.00
540,001—720,000	400.00
720,001—900,000	500.00
900,001—1,080,000	600.00
1,080,001—1,250,000	700.00
1,250,001 and over	Gross income multiplied by 0.00056

(B) In order to administer the provisions of this Title and provide statistical and demographic information, the Department shall have the authority to administratively create business licensing categories or classifications, with license fees based upon gross sales or gross revenue, for businesses which do not fit into existing categories or classifications.
(Ord. No. 6327, § 3, 6-18-14)

6.04.010 Applicability.

(A) Persons doing business in the licensing categories described in the Sections of this Chapter that follow shall pay in advance a semiannual or annual license fee at the specified rates.

(B) For administrative purposes, the Director may bill any initial or subsequent annual license fee referenced in Subsection (A) of this Section on a semiannual basis.
(Ord. No. 6327, § 3, 6-18-14)

6.04.020 Annual business license fee—Fifty dollars.

Businesses within the following licensing categories shall pay an annual license fee of fifty dollars:

Barber or cosmetology, which is any person or establishment that is licensed or required to be licensed pursuant to the provisions of NRS Chapter 643 or 664 and that offers barber or cosmetology services to the general public. The fee amount shall be charged for each customer chair or station provided for a licensed professional.

Billiard or pool hall, with the fee amount to be charged for each billiard or pool table.

Bowling center, which is a business providing a place to engage in the sport of bowling. The fee amount shall be charged for each alley.

Express delivery service, which is any business providing a transport of goods from one location to another location for a fee. The license fee shall be charged for the first vehicle used in the business, and a thirty dollar annual fee to be charged for each additional vehicle used in the business. An applicant for this license may be required by the Director to furnish a State license or certificate, if applicable, or written verification that such license or certificate is not required.

Interactive entertainment center, which is any establishment whose primary purpose is to provide technology enabled interactive entertainment, including, but not limited to, motion simulation, networked multi-site multi-player games, multi-media, and virtual reality based games for use by patrons of the establishment. The fee amount shall be charged for each playing station or payment receptacle that pertains to a game, multi-media or computer-related activity, devices or other form of entertainment. Any other type of business to be conducted on the premises, including any separate-leased area of the premises, must be separately licensed and is subject to any background investigation applicable thereto.

Nonprofit commercial enterprise, which is any commercial enterprise regularly engaged in by an organization that has duly qualified as tax exempt under the Internal Revenue Code. The category does not include an organization whose commercial activities consist solely of one or more of the following:

(A) Occasional fundraising activities;

(B) Solicitation activities that are governed by the provisions of State law pertaining to solicitation by nonprofit organizations; or

(C) The sale of items that are intended to convey a religious, political or ideological message.

Transfer and storage company, which is any business providing transportation and storage of household goods, commercial goods or other commodities. The fee amount shall be charged for the first truck used in the business, and a thirty dollar annual fee to be charged for each additional truck used in the business.
(Ord. No. 6327, § 3, 6-18-14)

6.04.030 Annual business license fee—One hundred dollars.

Businesses or business locations within the following licensing categories shall pay an annual license fee of one hundred dollars:

Tobacco dealer, which is any person licensed pursuant to NRS Chapter 370 to sell tobacco. The fee amount shall be charged for each sales location, whether a machine, retail location, or warehouse facility.

Motor carrier and transportation services, which is any business operating as a common motor carrier as defined in NRS Chapter 706 that provides trucking, passenger transportation service including limousine and sightseeing for hire over fixed or non-fixed routes. An applicant for this license must furnish a certificate of public convenience and necessity from the Transportation Services Authority in accordance with NRS Chapter 706, or evidence of exemption from the certificate requirement. The fee amount of one hundred dollars shall be charged for each vehicle operated as part of the business, except that any vehicle which is devoted exclusively to public transportation as designated by a local government within Clark County is exempt from the license fee requirement.

Truck rental agency, which is any business that offers trucks for rent. The fee amount shall be charged for each truck available for rental.
(Ord. No. 6565, § 1, 1-4-17; Ord. No. 6494, § 2, 1-20-16; Ord. No. 6327, § 3, 6-18-14)

6.04.040 Annual business license fee—Two hundred dollars.

Businesses within the following licensing categories shall pay an annual license fee of two hundred dollars:

Adult day care facility, which is an establishment operated and maintained to provide care, for not more than twelve hours at a time, on a temporary or permanent basis for aged or infirm persons.

Administrative or corporate office space, which is an office location in which specific administrative functions or centralized functions of a business are conducted apart from the primary or affiliated business entities, whether the business operations of those entities are conducted at that location or elsewhere.

Carwash, which is a stationary business that offers services to clean cars by either coin operation or direct payment, whether or not it is operated in conjunction with another business. The services offered may include the washing, waxing, cleaning and detailing of motor vehicles by human effort.

Construction related services, which is any business that removes construction materials from construction sites for transportation to a disposal site, provides ancillary services to construction projects such as equipment used to pump or disperse concrete or construction related services which do not require a license per NRS Chapter 624. For purposes of this category, "construction materials" includes without limitation wood, plaster, metals, asphaltic substances, brick, block, concrete, excavation dirt, rock, stone and gravel.

Designer-draftsman, which is any person who specializes in the planning or execution of the layout, decorations or furnishing for any interior structure, including advice related to or sales of decorator items, window and wall coverings or furnishings, or who prepares drawings or sketches of structures, but who is not acting as an architect under NRS Chapter 623.

Permanent makeup, which is any business that enhances or alters facial characteristics by inserting indelible pigment under the skin or by the production of scars.

Personal services, which is any business that provides personal services, including without limitation a wake-up service, reminder service, errand service, vehicle registration service, personal chef or cook service, or shopping service. The category does not include any service that is designated or included in another category identified in this Title.

Photography business, which is any business that takes photographs for eventual sale to a client or customer of the business.

Property maintenance provider, which is any person who provides onsite property maintenance or clean up services, such as, but not limited to the following services:

handyman, janitorial, maid, lawn maintenance, pest control, pool and/or spa cleaning, power washing, sewer/septic pumping or cleaning, tree trimming or window cleaning primarily at, in or upon residential structures. This classification does not include activities requiring a contractor's license pursuant to NRS Chapter 624, nor does this classification include activities that primarily includes onsite property maintenance or clean up services at, in or upon commercial structures.

Recreation facility, which is a business that offers to the public for a fee the use of recreational courts including tennis, handball or similar courts, swimming pool, rock climbing, health or fitness facility a skating facility on any indoor or outdoor surface and includes skating or skateboarding or similar facility.

Rental referral service, which is any person who provides a listing or referral service for the rental of apartments, equipment, or other types of rentals. The category does not include any person or business that is required to be licensed under NRS Chapter 645.

Riding horse rental, which is any person who provides riding horses for rent or provides boarding, stabling or training for riding horses.

School, which is any institution or place of education or instruction, or any individual acting as a tutor, facilitator, trainer or otherwise providing instruction in a skill, except for an institution or individual offering post-secondary education.

Shooting range, which is any business that operates a weapons range for practice, competition, training or instruction other than a law enforcement agency.

Valet parking, which is any person engaged in providing for customers the service of parking private vehicles in a designated area. The category does not include any person who provides parking services for the customers of a business and is employed by that business.

Vocational rehabilitation counselor, which is any person who provides the service of counseling clients relative to labor market assessments, job development, job assessments or employer consultation in the area of vocational rehabilitation.
(Ord. No. 6327, § 3, 6-18-14)

6.04.050 Annual business license fee—Two hundred fifty dollars.

Businesses within the following licensing categories shall pay an annual license fee of two hundred fifty dollars:

Auto broker, which is any person who, for a fee or any other consideration, offers to provide to another person the service of arranging, negotiating or assisting in the purchase of a new or used vehicle which has not been registered by the broker.

Automated teller operator, which is any person (other than a financial institution) who operates an automated teller or electronic terminal, as defined in NRS 660.135, in connection with another business.

Automobile leasing, which is any business that leases automobiles or any other kind of motor vehicle, and is required to be licensed by the Nevada Department of Motor Vehicles.

Bail agent or bail enforcement agent, which is any person who is authorized, employed or contracted by a surety or bail agent to do any of the following:

(A) Solicit bail transactions;

(B) Execute or countersign undertakings of bail;

(C) Pledge currency, money orders or cashier's checks as security for a bail bond in connection with judicial proceedings and receive or be promised money or other things of value therefor;

(D) Enforce the terms and conditions of a defendant's release from custody on bail in a criminal proceeding; or

(E) Locate, apprehend, or surrender a defendant to custody. Each bail agent and bail enforcement agent is required to have an appropriate State license issued in accordance with NRS Chapter 697 before doing business in the City.

Business service, which is any person or business, other than a professional licensed pursuant to LVMC 6.04.060, who engages in providing one or more general business services that is generally performed internally to a business including without limitation, billing, mailing, printing, customer service evaluations, tax preparation, the processing of claims or other paperwork, resident agent, holding company or other support services such as, telephone answering, paging and message forwarding services, bookkeeping services or other miscellaneous support services.

Contractor, which is any person who is licensed or required to be licensed as a contractor under NRS Chapter 624, whether or not the contractor maintains a business location within the corporate limits of the City.

Environmental analysis, which is any business that tests or analyzes the quality or content of soil, water, atmosphere, or other elements related to the environment.

Membership service club or membership use club, which is any person or business that charges a membership fee for the right to use or purchase equipment or services or to obtain discount privileges.

Merchandise broker, which is any person who acts as an agent for others in negotiating contracts, purchases, the sale of goods, wares or services and who does not take physical possession of the merchandise.

Residential home care provider, which is any person who provides or contracts to provide supervision, care, or housekeeping or services to the sick, injured or dependent within a home setting, whether on a temporary or permanent basis.

Travel and tour services, which is any person in the business of conducting tours, selling or purchasing and reserving hotel accommodations, transportation, show tickets, entertainment or other vacation incidentals for tourists or other persons and is not regulated by the Nevada Transportation Services Authority.

Wire service, which is any person who engages in the business of transmitting or receiving funds by means of a communication system in which the transmission and reception stations are directly connected by one or more telephones or computers.
(Ord. No. 6327, § 3, 6-18-14)

6.04.060 Annual business license fee—Two hundred dollars (first professional), one hundred fifty dollars (each additional).

(A) Unless otherwise provided in this Chapter, each professional business located in the City shall pay an annual business license fee, based on the number of professionals it employs, at the rate of two hundred dollars for the first professional and one hundred fifty dollars for each additional professional. The annual rate for each additional professional who acts as a sales agent, broker, or adjuster on behalf of an insurance services provider regulated by State law, or who acts as a sales agent, broker or servicer with respect to other financial transactions, shall be two hundred dollars.

(B) Each professional business located outside of the City and which does business in the City shall pay an annual business license fee of two hundred dollars.

(C) Each professional business that consists of an individual who meets the following criteria shall pay an annual business license fee of one hundred fifty dollars no later than June 1, for the succeeding annual period:

(1) Acts as a real estate broker-salesperson, real estate salesperson or property manager under NRS Chapter 645, or any combination thereof;

(2) Works out of a location within the City or, in the case of a person acting as a property manager, either works out of a location within the City or manages property located within the City; and

(3) Is associated with a real estate broker licensed under NRS Chapter 645 by means of an independent contractor relationship.

(D) In accordance with Section 6.04.005, each professional business shall pay a semiannual business license fee based on its gross sales of products or services within the City not related to or required in the performance of professional services.

(E) Each professional business shall pay whichever is greater, an annual license fee based on its gross revenue or a license fee based on a flat amount per professional pursuant to Subsection (A) of this Section if there are more than one hundred professionals working for the professional business.
(Ord. No. 6327, § 3, 6-18-14)

6.04.070 Annual business license fee—Three hundred dollars.

Businesses within the following licensing categories shall pay an annual license fee of three hundred dollars:

Appraiser, which is any person, other than a real estate appraiser, who estimates the worth or features of an item of personal property.

Armored car service, which is a business that provides for hire the transportation of money, currency, bank notes, money orders, bonds, notes, gaming chips and other valuable property, instruments or documents.

Automobile towing service, which is a business engaged in towing motor vehicles. The category does not include any service station or garage which, as an incident to providing repairs, tows automobiles to its place of business to make such repairs.

Marketing or business consulting, which is any person or firm engaged in designing, producing and disseminating information to the general public, including public relations activities on behalf of persons or businesses, and which may also conduct analysis, budgeting and management counseling.

Mini-storage facility, which is a facility with enclosed storage space, divided into compartments no larger than five hundred square feet in size, which is provided for use by individuals to store personal items or by businesses to store materials for operation of a business establishment.

Radio station, which is any establishment located in the City that is licensed or required to be licensed by the Federal Communications Commission and is engaged in the commercial transmission of radio broadcasting by means of electromagnetic signals over public airways, public airwaves, public spectrum or by means of a site available over the Internet.

Recreational vehicle park, which is any person who offers an area or tract of land where lots are rented or held out for rent to accommodate a recreational vehicle or where outdoor accommodations for camping are provided.

Warehouse or storage, which is any person who engages in the business of, and holds himself out the public as, providing an enclosed structure for the storing of:

(A) Wholesale goods for distribution or transfer to another location; or

(B) Materials or other items, including the storing of the personal household goods and effects of another.

(Ord. No. 6327, § 3, 6-18-14)

6.04.080 Annual business license fee—Five hundred dollars.

Businesses within the following licensing categories shall pay an annual license fee of five hundred dollars:

Collection or credit reporting agency, which is any person that is licensed or required to be licensed as a collection agency under NRS Chapter 649, or is a person described in NRS 598C. 100. The fee amount shall be charged for each office location.

Employment agency or contract labor service, which is any person licensed or required to be licensed under NRS Chapter 611, or who by contract supplies employees to perform temporary labor services for another under circumstances in which the individuals performing the labor do not become employees of the recipient of the services.

Tattoo and body art, which is any business that places indelible marks and figures upon the body by inserting pigment under the skin or by the production of scars, or that pierces the skin for the purpose of inserting rings, loops, studs or other implements.

Television broadcast station, which is any establishment located within the City that is licensed or required to be licensed by the Federal Communications Commission and is engaged in the commercial transmission of television broadcasting by means of electromagnetic signals over the public airways, public airwaves, public spectrum or by means of a site available over the Internet.
(Ord. No. 6327, § 3, 6-18-14)

6.04.090 Annual business license fee—Six hundred fifty dollars.

Businesses within the following licensing categories shall pay an annual license fee of six hundred fifty dollars:

Advertising space leasing or selling, which is a person engaged in any form of leasing or selling outdoor advertising space, whether the space is at a fixed or mobile location.

Commodity or securities broker or dealer, which is any person engaged in the business of effecting transactions in commodity options or securities transactions.

Credit union, which is an organization that qualifies to operate as a credit union under NRS Chapter 678. The fee amount shall apply to each principal office and branch office thereof.

Health maintenance organization or managed health care organization, which is any person who:

(A) Has been granted a certificate of authority under NRS Chapter 695C to provide one or more health care services, is organized and operated by an insurance company, and is responsible for the availability and accessibility of such services to its enrollees; or

(B) Provides, arranges, pays for, or reimburses for the provision of any element of health care services and who controls the amounts to be paid to health care providers by a managed care program.

Title insurance company, which is any business that is licensed or required to be licensed under NRS Chapter 692A.

Trust company, which is any business that is licensed or required to be licensed under NRS Chapter 669.
(Ord. No. 6327, § 3, 6-18-14)

6.04.100 Annual business license fee—Eight hundred dollars.

Businesses within the following licensing category shall pay an annual license fee of eight hundred dollars:

Finance company, which is any person other than a bank, mortgage company, savings and loan, credit union, trust company or pawnbroker, who is licensed or required to be licensed under NRS Chapter 675 in order to lend money to others for profit or to hold himself out to the general public as such.
(Ord. No. 6327, § 3, 6-18-14)

6.04.110 Annual business license fee—One thousand dollars.

Businesses within the following licensing categories shall pay an annual license fee of one thousand dollars:

Bank, commercial bank or banking corporation, which is any establishment, whether chartered by the State or Federal government, conducting the business of receiving money as demand deposits or otherwise carrying on banking or banking trust business. The fee shall be charged to each principal facility and branch facility thereof.

Non-depository lender, which is any person who is licensed or required to be licensed under NRS Chapter 604A to operate a check-cashing service, deferred deposit loan service, high-interest loan service, or title loan service.

Thrift company, which is any company licensed as such under NRS Chapter 677. The fee amount shall be charged to each principal facility and branch facility thereof.

Time-share project broker, representative or sales agent, which is any person defined as such in NRS 119A.090, 119A.120 or 119A.130.
(Ord. No. 6327, § 3, 6-18-14)

6.04.120 Annual business license fee—One thousand two hundred dollars.

Businesses within the following licensing category shall pay an annual license fee of one thousand two hundred dollars:

Bankrupt, damaged or assigned merchandise dealer, which is any person who sells, whether by assignment, consignment or otherwise, any bankrupt or damaged stock of merchandise or other items of value.
(Ord. No. 6327, § 3, 6-18-14)

6.04.130 Annual business license fee—Three thousand dollars.

Subject to the provisions of Subsections (D) and (E) of LVMC 6.02.150, businesses within the following licensing category shall pay an annual license fee of three thousand dollars:

Fulfillment center, which is a business whose services include without limitation the fulfillment of orders placed directly by a customer or by an affiliate company, whether such orders are placed by means of mail, fax, email, telephone or an internet transaction. The license fee for this category includes all sales-related activities.
(Ord. No. 6327, § 3, 6-18-14)

6.04.140 Annual business license fee—Four thousand dollars.

Subject to the provisions of Subsections (D) and (E) of LVMC 6.02.150, businesses within the following licensing categories shall pay an annual license fee of four thousand dollars:

Affiliate company software developer, which is a business that provides information technology services and/or a technology platform for its corporate affiliates, including without limitation (1) the development of websites, applications, e-commerce, digital assets, and (2) domain name management.

Sales-related call center, which is a business that is designed, equipped and used to:

(A) Handle a large volume of telephone calls pertaining to orders for goods that are placed by telephone or through an Internet website; and

(B) Forward such orders directly to a merchant or fulfillment center to complete such transactions.

If a call center has more than one business location in the City, an additional fee shall be charged for each such location. If a call center operates on behalf of more than one trade name, an additional fee shall be charged for each additional trade name on whose behalf the call center operates. The license fee for this category includes all sales-related activities.
(Ord. No. 6327, § 3, 6-18-14)

6.04.150 Annual business license fee—Five thousand dollars.

Subject to the provisions of Subsections (D) and (E) of LVMC 6.02.150, businesses within the following licensing category shall pay an annual license fee of five thousand dollars:

Internet retailer, which is any business that sells tangible personal property, digital goods or services primarily over the Internet, and has no walk-in retail sales or services. The license fee for this category includes all sales- and service-related activities.
(Ord. No. 6327, § 3, 6-18-14)

6.04.155 Annual business license fee—Seventeen thousand five hundred dollars.

Businesses within the following licensing category shall pay an annual license fee of seventeen thousand five hundred dollars:

Transportation network company, which has the meaning ascribed to it in NRS Chapter 706A. The fee is intended to cover all company operations and no additional fee per-driver fee shall be imposed on the company or any individual driver.
(Ord. No. 6934, § 1, 1-7-26; Ord. No. 6565, § 2, 1-4-17)

6.04.160 Fixed incremental semiannual license fee—Applicability.

Businesses within the following licensing categories shall pay an annual fixed incremental license fee based upon the following schedules:

Mobile home park, which is any person who offers an area or tract of land where two or more mobile homes or mobile home lots are sold, rented, leased owned or held out for that purpose. The annual license fee shall be calculated in accordance with the following schedule:

Number of Spaces	Fee (Dollars)
1 to 50	150.00
51 to 100	300.00
Over 100	300.00 plus 5.00 per space over 100

Parking lot. For the operation of a public or semipublic parking lot, the annual license fee shall be calculated in accordance with the following schedule:

Number of Vehicle Parking Spaces	Fee (Dollars)
1 to 50	150.00
Over 50	200.00

(Ord. No. 6327, § 3, 6-18-14)

CHAPTER 6.06 PRIVILEGED BUSINESSES—SPECIAL REQUIREMENTS

6.06.010 Applicability.

(A) Except as otherwise specifically provided in this Chapter or another chapter of this Title regarding license issuance, denial, license condition, or appeals, the provisions of this Chapter apply to those businesses which are found by the City Council to require a high degree of supervision and to more seriously affect the economic, social and moral well-being of the City and its residents. These businesses have been commonly referred to as "privileged" and require specific consideration for approval of a license for the business by an approving authority, and specific consideration for approval of the suitability of the principals by an approving authority.

(B) For purposes of this Chapter, the term "approving authority" means:

(1) The Director, for licenses and suitability determinations for principals issued under the provisions of Chapters 6.06A, 6.06B, 6.12, 6.14, 6.18, 6.35, 6.47, 6.50, 6.51, 6.53, 6.55, 6.69, 6.74, 6.82 and 6.84; and

(2) The City Council, for all other categories.

(Ord. No. 6806, § 43, 4-6-22; Ord. No. 6388, § 1, 12-17-14; Ord. No. 6213, § 1, 9-5-12; Ord. 6036 § 1, 2009: Ord. 2187 § 1 (part), 1981: prior code § 5-4-1 (A))

6.06.020 Conformance with other business-license provisions.

Businesses governed by this chapter must also comply with the provisions of LVMC Chapter 6.02, except to the extent superseded by, or inconsistent with, the provisions of this Chapter or LVMC Chapter 6.50.
(Ord. No. 6806, § 44, 4-6-22; Ord. 2187 § 1 (part), 1981: prior code § 5-4-1 (B))

6.06.030 License application—Content.

(A) The application for a license must provide:

(1) The applicant's prior business activities and business associations covering at least the ten-year period immediately preceding the date of filing the application;

(2) Any persons that constitute the current or proposed ownership structure of the business, any and all sources of funding used for the initial capitalization of the business and any and all sources of funding used for its ongoing operations. As used in this subsection, the term "sources of funding" includes, but is not limited to, loans, lines of credit, gifts, proceeds from sale of tangible or intangible property (including equity in the business), personal funds or any other source, whether provided by the applicant, another natural person or any corporate entity.

(3) The name, address and job description of each person who is to be actively engaged in the administration or supervision of the business to be licensed.

(4) The name and address of each principal.

(B) If requested by the Department in accordance with a written policy established by the Director, the applicant's present and past financial position and history must be provided on the application covering at least the ten-year period immediately preceding the date of filing the application.

(C) The applicant shall agree in writing that, if a license is granted, the applicant will accept the license subject to all of the terms and provisions of this Title and that the license is a privilege conferred upon the person who is granted the license.

(D) The applicant shall authorize the City in writing to obtain information from criminal justice agencies, financial institutions, Federal, State and local governments and agencies, and other persons and entities and shall consent in writing to the release of such information to the City for use in connection with the application for the license and other City business regulations. The applicant shall also sign a release of claims and hold-harmless agreement to the City for its use of the information provided by the applicant or discovered during any investigation thereof.
(Ord. No. 6233, § 2, 1-23-13; Ord. 2187 § 1 (part), 1981: prior code § 5-4-2 (A, B))

6.06.040 License application—Confidentiality.

Information showing the applicant's finances, net worth, earnings or revenues which is submitted as a part of the application for a license shall be treated as confidential except as follows:

(A) In the ordinary course of the administration of this Chapter;

(B) Pursuant to a subpoena or other order of a court of competent jurisdiction;

(C) Release to a duly authorized agent of any governmental agency acting pursuant to the agency's authority and function.

(Ord. 2187 § 1 (part), 1981: prior code § 5-4-2 (C))

6.06.050 Reserved.

Editor's note—Ord. No. 6155, § 1, adopted August 3, 2011, repealed § 6.06.050, which pertained to license application—preliminary approval and derived from prior code § 5-4-10; Ord. No. 2187, 1981 and Ord. No. 5998, 2008.

6.06.051 Temporary license—Purpose.

(A) At the request of an applicant, the Director may grant a temporary license, effective for a period not to exceed ninety days, pending final action regarding a license application in order for the license approval authority to determine:

(1) The applicant's fitness for a license; and

(2) The appropriateness of the applicant's business location.

As an alternative to issuance of a temporary license administratively, the Director has the discretion to forward such application to the City Council for consideration of a temporary license at the next City Council meeting that is available pursuant to the open meeting law notice requirements of NRS Chapter 241.

(B) A temporary license shall not be granted under this Section unless:

(1) All principals required to be approved for suitability have submitted a complete investigation packet for determination of suitability and paid all applicable fees;

(2) The Director, or the City Council, if considering the temporary license application, makes a preliminary finding that all of the principals of the business are suitable; and

(3) The applicant has submitted a completed and accurate license application and has paid a non-refundable temporary license processing fee, in addition to all other required application fees. The amount of the temporary license processing fee shall be:

(a) Two hundred fifty dollars, for licenses issued under the provisions of Chapters 6.47 and 6.69; and

(b) Five hundred dollars, for all other categories.
(Ord. No. 6288, § 11, 11-20-13; Ord. No. 6262, § 1, 8-7-13; Ord. No. 6047, § 7, 7-15-09; Ord. 6036 § 2, 2009: Ord. 5998 § 27, 2008: Ord. 5517 § 3, 2002)

6.06.052 Temporary license—Extension.

(A) Prior to the expiration of a temporary license issued under LVMC 6.06.051, the temporary license may be extended by the license approval authority for an initial extension period of not to exceed six months.

(B) The license approval authority may grant one additional extension of a temporary license for a period not to exceed six months.

(C) When granting a temporary license or extension thereof, the license approval authority may impose any special conditions and restrictions deemed appropriate.
(Ord. 6036 § 3, 2009: Ord. 5517 § 4, 2002)

6.06.053 Temporary license—Compliance.

During a temporary licensing period the applicant shall comply with any requirement imposed by this Code, or other local, State or Federal law or regulation and any special conditions and restrictions imposed by the license approval authority.
(Ord. 6036 § 4, 2009: Ord. 5517 § 5, 2002)

6.06.054 Temporary license—Suspension.

(A) The Director shall summarily suspend an applicant's temporary license if any of the reasons stated at LVMC 6.02.330 through 6.02.350 as good cause for disciplining a licensee apply to an applicant or any of its principals.

(B) The Director may summarily suspend an applicant's temporary license if the applicant or any of its principals is in violation of any condition of approval pursuant to the temporary license, requirement of this Code, or other local, State or Federal laws or regulations not covered by the provisions of LVMC 6.02.330 through 6.02.350.
(Ord. No. 6262, § 2, 8-7-13; Ord. 5517 § 6, 2002)

6.06.055 Temporary license—City Council review.

(A) As soon as the open meeting notice requirements of NRS 241.034 will permit, the Director shall seek City Council review of his or her decision suspending a temporary license.

(B) The hearing shall be conducted in accordance with the provisions of LVMC 6.88.090.

(C) Following the hearing, the City Council shall revoke or reinstate such temporary license subject to any additional conditions and restrictions the City Council deems appropriate.
(Ord. 5517 § 7, 2002)

6.06.056 Temporary license—Denial.

The City Council's revocation of an applicant's temporary license for cause shall also be deemed a denial of the applicant's privileged license application.
(Ord. 5517 § 8, 2002)

6.06.060 Suitability approval—Required of each principal.

Each principal must be approved for suitability in order to be associated with a business subject to this Chapter. The Director shall consider the suitability of each principal for licenses issued under the provisions of Chapters 6.06A, 6.06B, 6.12, 6.14, 6.18, 6.35, 6.47, 6.51, 6.53, 6.69, 6.74 and 6.84, and the City Council shall consider the suitability of each principal for all other categories of privileged license.
(Ord. No. 6213, § 2, 9-5-12; Ord. 2187 § 1 (part), 1981: prior code § 5-4-3 (A))

6.06.070 Suitability approval—Application contents.

(A) The application for approval for suitability shall be filed with the Department on forms acceptable to the Department. The applicant shall furnish all the information required by the Department, covering at least the ten-year period immediately preceding the date of filing the application, including but not limited to, the following:

(1) The applicant's personal and family history;

(2) If requested by the Department in accordance with a written policy established by the Director, the applicant's present and past financial position and history;

(3) The applicant's criminal history and civil and administrative litigation history;

(4) The applicant's education, training, employment, business and professional history; and

(5) The applicant's past and proposed affiliation with the licensee.

(B) The Department is authorized to require disclosure of any information that reasonably relates to the applicant's qualification, acceptability or fitness for an approval for suitability.
(Ord. No. 6233, § 3, 1-23-13; Ord. No. 6155, § 2, 8-3-11; Ord. 2187 § (part), 1981: prior code § 5-4-3 (B))

6.06.075 Suitability approval—Requirements.

(A) In the case of suitability approvals related to license applications under LVMC Chapter 6.50, the Director has the discretion to apply this Section in lieu of requirements of this Chapter regarding suitability that otherwise would apply.

(B) Pursuant to this Section, an applicant for suitability approval must:

(1) Provide the applicant's prior business activities and business associations covering at least the ten-year period immediately preceding the date of filing the application.

(2) Provide the name and address of any persons that constitute the current or proposed majority ownership structure of the business.

(3) Provide the name, address and job description of each person who is to be actively engaged in the administration or supervision of the business to be licensed.

(4) Provide the applicant's criminal history.

(5) Agree in writing that, if a license is granted, the applicant will accept the license subject to all of the terms and provisions of this Title and that the license is a privilege conferred upon the person who is granted the license.

(6) Sign a release of claims and hold-harmless agreement to the City for its use of the information provided by the applicant or discovered during any investigation thereof.

(7) Sign and verify the application under oath.

(C) Pursuant to this Section, an applicant for suitability approval shall submit to fingerprinting and photographing and shall authorize the City in writing to obtain information from criminal justice agencies, and Federal, State and local governments and agencies, and shall consent in writing to the release of such information to the City for use in connection with the application for the license and other City business regulations.

(D) Pursuant to this Section, the Director may determine not to refer a license application to Metro for suitability investigation if the applicant has been investigated by and approved for a gaming license by the Nevada Gaming Commission for the same business at the same location as the alcoholic beverage license application.
(Ord. No. 6806, § 45, 4-6-22)

6.06.080 Suitability approval—Application completion—Identification and release requirements.

(A) The application must be signed and verified by the applicant under oath.

(B) The applicant shall submit to fingerprinting and photographing, shall authorize the City in writing to obtain information from the past and present employers, criminal justice agencies, financial institutions, Federal, State and local governments and agencies, and other persons and entities, and shall consent in writing to the release of such information to the City for use in connection with the application for approval for suitability and other City business regulations. The applicant shall also sign a release of claims and a hold harmless agreement to the City for its use of the information provided by the applicant or discovered during any investigation thereof.

(C) Each applicant for a license within the following categories shall be subject to the provisions of Subsection (D) of this Section:

(1) Adult nightclub establishment;

(2) Alcoholic beverage;

(3) Electronic security services;

(4) Erotic dance establishment;

(5) Gaming;

(6) Ice cream truck;

(7) Locksmith and safe mechanic;

(8) Massage establishment;

(9) Cannabis establishment;

(10) Pawnbroker;

(11) Psychic arts;

(12) Reflexology;

(13) Secondhand dealer;

(14) Smoke shop; and

(15) Teenage dancehall or teenage nightclub.

(D) In the case of the license categories listed in Subsection (C) of this Section, applicants are required to submit to fingerprinting for purposes of a fingerprint check through the Federal Bureau of Investigation (FBI). In each such case:

(1) A complete set of fingerprints will be taken and will be forwarded to the Central Repository for Nevada Records of Criminal History.

(2) The Central Repository for Nevada Records of Criminal History is authorized to submit the fingerprints to the FBI for its report and to exchange fingerprint data with the FBI.

(3) The purpose for the submission of fingerprints is to allow for a State and Federal criminal records investigation regarding the applicant to determine suitability for licensing relative to the specified type of business.

(E) The provisions of Subsections (C) and (D) of this Section are adopted under the authority of, and consistent with, NRS 239B.010(1)(a) and Public Law 92-544, and should be read and interpreted in connection therewith.
(Ord. No. 6750, § 33, 9-16-20; Ord. No. 6627, § 13, 8-1-18; Ord. No. 6419, § 1, 6-17-15; Ord. No. 6393, § 1, 1-7-15; Ord. No. 6220, § 10, 10-17-12; Ord. No. 6213, § 3, 9-5-12; Ord. No. 6155, § 3, 8-3-11; Ord. 6000 § 2, 2008: Ord. 2187 § 1 (part), 1981: prior code § 5-4-3 (C))

6.06.090 Suitability approval—Application confidentiality.

Information showing the applicant's finances, new worth, or revenues which is submitted as a part of the application for an approval for suitability shall be treated as confidential except as follows:

(A) In the ordinary course of the administration of this Chapter:

(B) Pursuant to subpoena or other order of a court of competent jurisdiction;

(C) Release to a duly authorized agent of any governmental agency acting pursuant to the agency's authority and function.

(Ord. 2187 § 1 (part), 1981: prior code § 5-4-3 (D))

6.06.100 Fee deposits.

Each applicant shall pay the following non-refundable fee deposits at the time of filing an application for a license or approval for suitability with the Department:

(A) Two hundred dollars payable to the Department for the investigation of a license application, which amount shall be forwarded to Metro, if the license application is forwarded to Metro for investigation.

(B) One hundred fifty dollars payable to the Department for the investigation of an approval for suitability application, which amount shall be forwarded to Metro, if the suitability application is forwarded to Metro for investigation.

(C) One hundred dollars payable to the Department for processing an application for a business license or approval for suitability.

(Ord. No. 6233, § 4, 1-23-13; Ord. No. 6047, § 8, 7-15-09; Ord. 5998 § 28, 2008: Ord. 3291 § 1, 1987: Ord. 3148 § 1, 1984: Ord. 2187 § 1 (part), 1981: prior code § 5-4-11)

6.06.105 Investigation—Applicant's responsibility for costs—Recordkeeping.

(A) Every applicant shall pay the entire cost incurred by the Metropolitan Police Department to complete the investigations required by this Chapter, whether the application is approved or denied. Such costs are a collectible debt due to the Metropolitan Police Department and must be paid in full before licensing.

(B) The Metropolitan Police Department or other investigative unit performing investigations under this Chapter shall maintain an accounting of all investigative activity for which the applicant will be billed, including the date, the actual hours expended, description of activity, and the name of the investigator(s) performing same. Such investigative records shall be compiled as the activities are performed and shall be promptly made available to the applicant or the City Council, upon written request.

(Ord. 3291 § 2, 1987: Ord. 3148 § 2, 1984)

6.06.110 Investigation—Submission to approving authority.

(A) Except as otherwise provided in Subsection (B) or Subsection (C), after receipt of a completed application for a license or approval for suitability, the Director shall refer the application to Metro for investigation.

(B) The Director shall have the discretion to not refer a suitability application to Metro if the applicant has been investigated by Metro in connection with licensing or suitability approval within twenty-four months before the application was submitted, or if the Director otherwise determines that such referral is not necessary or appropriate. The discretion afforded the Director in this Subsection shall be exercised in accordance with a written

policy established by the Director, and such policy must include the completion of an investigation of the suitability application by the Department prior to the Director exercising discretion to not refer such suitability application to Metro.

(C) The Director shall have the discretion to not refer a license application to Metro if the applicant has been investigated by Metro in connection with licensing approval within twenty-four months before the application was submitted, or if the Director otherwise determines that such referral is not necessary or appropriate. The discretion afforded the Director in this Subsection shall be exercised in accordance with a written policy established by the Director, and such policy must include the completion of an investigation of the license application by the Department prior to the Director exercising discretion to not refer such suitability application to Metro.

(D) Upon completion of any investigation or a determination made pursuant to Subsection (B) and (C), the Director shall submit the application to the approving authority for action.

(E) In the event the approving authority has issued a temporary license pursuant to this Chapter pending an investigation by Metro, the Director may, upon receipt of Metro's completed investigation, submit the application for a license to the approving authority for its action at any time prior to the expiration of the temporary license.
(Ord. No. 6233, § 5, 1-23-13; Ord. No. 6155, § 4, 8-3-11; Ord. 5998 § 29, 2008: Ord. 2187 § 1 (part), 1981: prior code § 5-4-5 (A))

6.06.120 Action on applications—Grounds for denial.

(A) The approving authority may approve, deny or take such other action with respect to such application as it considers appropriate. The burden of showing qualifications, acceptability or fitness for a license or approval for suitability is upon the applicant.

(B) Grounds for denial of a license include, but are not limited to, the grounds for disciplinary action against a licensee as set forth in Section 6.02.330 et seq. and as provided by the provisions of any specifically applicable chapter of Title 6.

(C) Grounds for denial of an approval of suitability include, but are not limited to, the grounds for disciplinary actions against a principal approved for suitability as set forth in Sections 6.06.250 and 6.06.260.
(Ord. No. 6213, § 4, 9-5-12; Ord. 2187 § 1 (part), 1981: prior code § 5-4-5 (B))

6.06.125 Application for approval of suitability.

(A) For those license categories that require City Council consideration of suitability, once initial approval for suitability regarding principals of a particular licensee has been granted by the City Council, any subsequent applications for approval for suitability regarding that licensee may be referred by the Director to Metro for investigation.

(B) Upon completion of Metro's investigation, if any, the Director may take such action as deemed appropriate, including approval, conditional approval or denial of the application for approval for suitability.

(C) An applicant may appeal the decision of the Director in accordance with the provisions of LVMC 6.02.110.
(Ord. No. 6213, § 5, 9-5-12; Ord. No. 6155, § 5, 8-3-11; Ord. 5517 § 15, 2002)

6.06.130 Waiver of suitability approval—Permitted when.

The Director shall have full discretion to waive for one or more principals the requirement of approval for suitability, provided that at least one principal other than a manager must be subject to the requirement of an approval for suitability. There shall be a presumption in favor of the Director's waiving suitability for principals other than an owner, co-owner or manager. Any principal for whom the requirement has been so waived may later be required at the discretion of the Director to apply and be found suitable in order to continue his or her association with the business.
(Ord. No. 6806, § 46, 4-6-22; Ord. No. 6155, § 6, 8-3-11; Ord. 5998 § 30, 2008: Ord. 5517 § 16, 2002: Ord. 2187 § 1 (part), 1981: prior code § 5-4-4(A))

6.06.140 Waiver of suitability approval—Effect.

The grant of a waiver confers no privilege on the person to whom it is granted to do any act permitted by this Chapter to be done only by a licensee or a person approved for suitability, but, rather, the waiver represents only an exemption by the City to the person to whom the waiver is granted from the requirement of applying for approval for suitability.
(Ord. 2187 § 1 (part), 1981: prior code § 5-4-4(B))

6.06.150 Waiver of suitability approval—Requirements.

The Director, in considering whether to waive a principal, may require:

(A) Personal identification information;

(B) A written request from a managing officer or partner of the business setting forth sufficient information as to the principal's responsibilities and authority with the licensee or proposed licensee; and

(C) A one hundred dollar non-refundable waiver fee, payable in advance, for each principal requesting a waiver.
(Ord. No. 6047, § 9, 7-15-09; Ord. 5517 § 17, 2002: Ord. 2187 § I (part), 1981: prior code § 5-4-4 (C))

6.06.160 Application after adverse action.

Any person whose license or approval for suitability has been denied, cancelled or revoked as part of the City's disciplinary process may not apply for a license or approval for suitability until one year following the effective date of such action.
(Ord. 5998 § 31, 2008: Ord. 2187 § 1 (part), 1981: prior code § 5-4-9(A))

6.06.170 Job approval requirement is personal requirement.

A person may not act in a capacity where an approval of suitability is required unless he has been approved for suitability.
(Ord. 2187 § 1 (part), 1981: prior code § 5-4-9(B))

6.06.180 Approval limited.

A person who has been approved for suitability under a license in connection with a particular job position may exercise only those functions reasonably associated with the particular job position for which he was approved.
(Ord. 2187 § 1 (part), 1981: prior code § 5-4-9 (C))

6.06.190 Licensee responsibility for required approvals.

A licensee may not employ, allow, permit or suffer to permit a person to exercise any office, authority, control or privilege or perform any act, for the exercise or performance of which a person is required to be approved for suitability, unless such person has been so approved for suitability.
(Ord. 2187 § 1 (part), 1981: prior code § 5-4-9(D))

6.06.195 Paying tips to taxicab drivers for delivering passengers to licensee's business location unlawful.

(A) It shall be unlawful for any licensee subject to this Chapter or any employee or agent of said licensee to pay any fee, tip, gift, or gratuity of any kind to any taxicab driver for the delivery of any passenger to the business location of the licensee. This Section does not apply to promotional packages or arrangements whereby a licensee pays a tip or gratuity directly to a taxicab company in advance as part of the promotional package or arrangement.

(B) Any person who is convicted of violating Subsection (A) of this Section shall be punished by a fine of not less than two hundred fifty dollars nor more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment.
(Ord. 5998 § 32, 2008: Ord. 3179 § 1, 1985)

6.06.200 Changes—Duty to report.

(A) The applicant has a continuing duty and obligation to notify the Department of additions, deletions, changes or modifications in the information furnished the Department, and this duty continues as long as a valid license or approval for suitability remains in effect. Such notification must be given at least fifteen days in advance of such additions, deletions, changes or modifications where it is possible to do so. Otherwise, notification must be given as soon as possible and in no event later than fifteen days following the addition, deletion, change or modification.

(B) The notification required by Subsection (A) shall be in the form of a new business license application filed with the Department. Upon receipt of an application, the Department shall determine whether the changes can be approved by administrative action or whether action by the City Council is required pursuant to LVMC 6.06.210. If Council action is required, the application will be placed on the next available Council agenda following the completion of all necessary reviews by City departments and outside agencies.

(C) In cases where a licensee has significantly altered its business operations, the Director may require a licensee to suspend its operations until the City Council has acted upon the licensee's new license application.

(D) A licensee shall not continue or resume its altered operations if the City Council finds that the licensee is in violation of the provisions of LVMC 6.02.090 and 6.02.330 through 6.02.350, or for other good cause finds that continued business operations should not be permitted.
(Ord. No. 6155, § 7, 8-3-11; Ord. 5998 § 33, 2008: Ord. 2187 § 1 (part), 1981: prior code § 5-4-3 (E))

6.06.205 Principal notifications.

A principal has a continuing duty and obligation to notify the Department of any:

(A) Criminal conviction against the principal; or

(B) Disciplinary action taken against the principal within the jurisdiction of the City, or in any other jurisdiction where the business holds a business license.

Such notification shall occur within fifteen days from the date of conviction or the date of disciplinary action. Failure to so notify may result in disciplinary action against the principal pursuant to LVMC 6.06.260.
(Ord. No. 6225, § 6, 12-5-12)

6.06.210 Changes—Approval required when.

Prior approval must be obtained for a licensee or person approved for suitability to do any of the following acts:

(A) Convey the license from one person to another or establish the license in a different entity;

(B) Transfer any ownership interest or voting control to a person who, because of the transfer, would be required to be approved for suitability;

(C) Alter the licensed business operations in a significant way from the operations previously approved;

(D) Change the location of a license from one premises to another premises within the City limits;

(E) Change the name of the business operating under a license.

Such prior approval may be granted by the Director in the case of the changes described in Subsections (D) and (E), but must be granted by the City Council otherwise.
(Ord. No. 6155, § 8, 8-3-11; Ord. 5998 § 34, 2008: Ord. 2187 § 1 (part), 1981: prior code § 5-4-7(A))

6.06.220 Changes—Denial of approval.

The City Council may deny approval of any act for which approval is required by this Chapter for good cause, which includes those causes set forth in Sections 6.02.330 through 6.02.350.
(Ord. 2187 § 1 (part), 1981: prior code § 5-4-7(B))

6.06.230 Reserved.

Editor's note—Ord. No. 6155, § 9, adopted August 3, 2011, repealed § 6.06.230, which pertained to encumbrance of ownership or control and derived from prior code § 5-4-8 (A); Ord. No. 2187, 1981 and Ord. No. 5998, 2008.

6.06.240 Transfer of ownership or control—Financial encumbrance.

Each licensee must notify the Department at least thirty days prior to transferring or recognizing the transfer of any ownership interest or voting control which results in a person acquiring an ownership interest or voting control equal to or greater than ten percent of the entire ownership in or voting control of the licensee or prior to subjecting any of its assets, income or revenue to any security interest or other encumbrance.
(Ord. No. 6155, § 10, 8-3-11; Ord. 2187 § 1 (part), 1981: prior code § 5-4-8 (B))

6.06.250 Disciplinary action—Grounds.

(A) A licensee may be subject to disciplinary action as set forth in Sections 6.02.330 through 6.02.360.

(B) A principal approved for suitability may be subject to disciplinary action by the City Council for good cause, which may include, but is not limited to:

(1) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required in the application;

(2) The principal fails to satisfy any qualification or requirement imposed by this Code, or other local, State or Federal law or regulation pertaining to the particular approval for suitability sought or held;

(3) The principal illegally resides in the United States;

(4) The principal is or has engaged in a business, trade or profession without a valid license, permit, approval for suitability or work card when he knew that one was required or under such circumstances that he reasonably should have known one was required;

(5) The principal has been subject, in any jurisdiction, to disciplinary action of any kind against a license, permit, approval for suitability or work card to the extent that such disciplinary action reflects on the qualification, acceptability or fitness to be approved for suitability;

(6) The principal has committed acts which would constitute a crime involving moral turpitude or involving any Federal, State or local law or regulation relating to the same or a similar business. For purposes of this Paragraph, a crime involving moral turpitude is one that necessarily involves any of the following: an intent to defraud; intentional dishonesty for personal gain; intentional causing of serious injury to another person; the sale of narcotics or possession of narcotics with intent to sell; or a sexual offense as described in NRS 179D.097;

(7) When substantial information exists which tends to show that the principal is dishonest or corrupt;

(8) The principal lacks sufficient financial, technical or educational ability or experience to conduct or perform the activity for which approval for suitability is sought;

(9) The principal, or his or her employees or those acting on their behalf, violates any condition upon which approval for suitability was granted;

(10) The principal has engaged in deceptive practices upon the public; or

(11) The principal suffers from a legal disability under the laws of the State.

(Ord. No. 6155, § 11, 8-3-11; Ord. 5998 § 36, 2008: Ord. 5517 § 23, 2002: Ord. 2187 § 1 (part), 1981: prior code § 5-4-6 (A))

6.06.260 Disciplinary action—Alternatives.

(A) Upon a showing of good cause and in the discretion of the City Council disciplinary action against a principal approved for suitability may take the form of cancellation, revocation, suspension, imposition of conditions or restrictions, or civil fines (or any combination thereof) as the particular situation may require.

(B) The Council may also impose against the principal the actual cost incurred, and a reasonable amount for attorneys' fees resulting, from the imposition of disciplinary action.

(C) The disciplinary actions available in this section shall be in addition to, and not exclusive of, any other civil or criminal remedy which otherwise might be available.

(Ord. 2187 § 1 (part), 1981: prior code § 5-4-6 (B))

6.06.270 Emergency orders—Grounds.

(A) The Director or Metro may issue an emergency order which suspends or conditions a license upon a determination that:

(1) There has been a violation of the provisions of this Title; and

(2) Such order is necessary for the immediate preservation of the public peace, health, safety, morals, good order or general welfare within the City.

(B) This Section does not apply to any business licensed pursuant to Chapter 6.06A or Chapter 6.35.
(Ord. 5228 § 2, 2000: Ord. 5170 § 4, 1999: Ord. 2187 § 1 (part), 1981: prior code § 5-4-12 (A))

6.06.280 Emergency orders—Contents—Effective date.

Any emergency order issued pursuant to Section 6.06.270 shall:

(A) Set forth the grounds upon which it is issued, including a statement of facts constituting the emergency which necessitates such order;

(B) Be effective immediately upon the issuance and service thereof on the licensee or its representative or upon the posting thereof upon the licensed premises; and

(C) Indicate the period of time for which it is effective, which shall be based upon the severity of the violation and the nature of the emergency as determined by the Director or Metro.
(Ord. 5170 § 5, 1999: Ord. 2187 § 1 (part), 1981: prior code § 5-4-12 (B))

6.06.290 Emergency orders—Appeal.

A licensee who is affected by an emergency order issued under Section 6.06.270 may appeal the order by filing an appropriate action in the State of Nevada District Court to challenge or seek review of the order. Such action to appeal must be filed within ten calendar days after the effective date of the emergency order or the right to appeal is deemed waived.
(Ord. 5998 § 37, 2008: Ord. 5170 § 6, 1999: Ord. 2187 § 1 (part), 1981: prior code § 5-4-12(C))

CHAPTER 6.06A BOOKSTORES AND ADULT EMPORIUMS

6.06A.010 Definitions.

"Adult emporium" means a business establishment which engages in the sale, rental or trade of books, magazines, other periodicals, sexual novelties, photographic images in any medium, or video images in any medium, and which:

(1) Will or does derive thirty-five percent or more of its gross revenue from the sale, rental or trade of books, magazines, other periodicals, sexual novelties, photographic images in any medium, or video images in any medium which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified sexual activities or specified anatomical areas;

(2) At any particular time devotes thirty-five percent or more of its gross retail floor area to the types of inventory described in Paragraph (1) above; or

(3) Holds itself out, by advertising or otherwise, primarily as an outlet for the types of inventory described in Paragraph (1) above.

"Bookstore" means an establishment that offers for sale, and has as a substantial or significant portion of its stock in trade, books, magazines, other periodicals, photographic images in any medium, or video images in any medium, or an establishment with a segment or section devoted exclusively to the sale or display of such material.

"Specified anatomical areas" means:

(1) Less than completely and opaquely covered:

(a) Human genitals,

(b) Pubic region,

(c) Buttock, or

(d) Female breast below a point immediately above the top of the areola;

(2) Human male genitals in a discernable turgid state, even if completely and opaquely covered.

"Specified sexual activities" means:

(1) Human genitals in a state of sexual stimulation or arousal;

(2) Acts of human masturbation, sexual intercourse or sodomy; or

(3) Fondling or other erotic touching of human genitals, pubic region, buttock or female breast.

(Ord. No. 6593, § 4, 8-16-17; Ord. 5355 § 1, 2001: Ord. 3918 § 2 (part), 1995)

6.06A.015 Bookstore/adult emporium license required.

No person shall engage in the business of operating an adult emporium or a bookstore without first obtaining a license from the Director. Licensed grocery stores, drugstores, convenience stores, and gift shops with a newsstand selling periodicals, magazines and newspapers, incidental to the sale of food and drug items, are exempted from the provisions of this Chapter.

(Ord. No. 6593, § 5, 8-16-17; Ord. 5998 § 39, 2008: Ord. 3918 § 2 (part), 1995)

6.06A.020 Issuance of license.

After receipt and review of the application, the Director shall issue a license if:

(A) The business for which a license is required in this Chapter will be carried on in a building, structure and a location which complies with the requirements and meets the standards of the health, zoning, fire and safety laws and ordinances of the State and City applicable thereto; and

(B) The applicant, its employee, agent, partner, director, officer, stockholder or manager has not knowingly made any false, misleading or fraudulent statement of material fact in the application for permit, or in any report or record required to be filed with the Department.

(Ord. 5998 § 40, 2008: Ord. 3918 § 2 (part), 1995)

6.06A.025 License issuance or denial.

(A) The Director shall issue or deny an adult emporium or a bookstore license to the applicant within thirty days from receipt of an application and the applicable fees.

(B) Failure of the Director to approve or deny the license application within the thirty days shall result in the license being granted.

(C) If the application is denied, the Director shall notify the applicant with the reason(s) stated for denial. Notification shall be sent certified, United States mail, return receipt requested, to the address provided on the license application which shall be considered the correct address. Each applicant has the burden to furnish any change of address to the Director, by United States certified mail, return receipt requested.

(D) In the event that an application is denied, the applicant may file or cause to be filed in the district court a petition for judicial examination of the validity of the denial of the license as provided by Chapter 34 of NRS. If the district court has not decided the validity of the denial within thirty days after the petition is filed, the Director shall issue a temporary license. The temporary license shall remain in effect only until the district court has rendered its opinion concerning the validity of the denial.
(Ord. No. 6593, § 6, 8-16-17; Ord. 5201 § 1, 2000: Ord. 5108 § 1, 1998: Ord. 3918 § 2 (part), 1995)

6.06A.030 Recordkeeping.

(A) For the purpose of ensuring the proper zoning of adult emporiums, and except as otherwise provided in Subsection (B), all adult emporiums and all bookstores shall keep a record of the sales of all books, magazines, other periodicals, photographic images in any medium, or video images in any medium. The records so required shall categorize such sales as either adult or nonadult. Sales are classified as adult for items that are distinguished or characterized by emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas, and the record shall include the sales price of each such adult or nonadult item. The sales records shall be maintained for a period of thirty-six months from the date of sale for purposes of auditing by the Department.

(B) The requirements of Subsection (A) do not apply to any adult emporium that:

(1) Is located in the C-M or M Zoning District and has received zoning approval; or

(2) Otherwise satisfies the requirements of Title 19.
(Ord. No. 6593, § 7, 8-16-17; Ord. 5998 § 41, 2008: Ord. 3918 § 2 (part), 1995)

6.06A.040 License suspension and revocation.

(A) The City Council, upon notice and hearing, may suspend the license of an adult emporium or a bookstore which fails to comply with or violates any provision of this Chapter or Title 19 until such time as the licensee may correct the items of noncompliance or violation. Unrecorded gross revenue from sales of an establishment which holds itself out to

the public through signs or advertising as an adult emporium shall be presumed to have been of matter distinguished or characterized by its emphasis on matter depicting or describing or relating to specified sexual activities or specified anatomical areas, and if the unrecorded revenue from gross sales equals or exceeds thirty-five percent of total recorded and recorded gross sales of books, magazines, other periodicals, photographic images in any medium, or video images in any medium, the establishment shall be deemed a sexually oriented business within the meaning of Title 19.

(B) A license issued to any licensee under the provisions of this Title shall be subject to revocation if such licensee maintains or conducts any business in any building or structure which is structurally unsafe, or not provided with adequate egress, or which constitutes a fire hazard, or which is otherwise dangerous to human life or safety, or which in its relation to existing use constitutes, a hazard to safety or health by reasons of inadequate maintenance, dilapidation, obsolescence or abandonment.

(C) In the event a license under this Chapter is suspended or revoked, the license suspension or revocation shall be stayed for fourteen days from the date of the written notice to the licensee for the licensee to seek judicial review. If the licensee seeks judicial review in a timely manner, the license suspension or revocation shall be stayed until the court orders otherwise or issues a dispositive ruling. The licensee may waive the stay provision in writing, or the City may seek sooner to enforce the suspension or revocation by filing in the district court a petition for judicial review as provided in NRS 43.100 or by seeking alternative relief pursuant to Chapter 34 of NRS.
(Ord. No. 6593, § 8, 8-16-17; Ord. 5355 § 2, 2001: Ord. 5228 § 3, 2000: Ord. 3918 § 2 (part), 1995)

CHAPTER 6.06B ADULT NIGHTCLUB ESTABLISHMENTS

6.06B.010 Findings.

The Las Vegas City Council finds:

(A) Adult nightclubs have solicited prostitution, offered sexual stimulation and sexual conduct to patrons for the purchase or alcoholic drinks for exorbitant prices. The patron, being defrauded and swindled as the drinks are actually nonalcoholic and the patron is threatened, coerced or forced from the premises without a refund of the admission or drink price, or fee charged for services promised but not performed;

(B) Adult nightclubs are sometimes fronts for or operated by persons associated with a pattern of criminal activities and the need for law enforcement agencies to scrutinize such adult nightclubs is thereby required to protect the public, especially the tourist;

(C) The law enforcement resources available for responding to problems associated with or created by adult nightclubs are limited and are best conserved by regulating and licensing adult nightclubs and those associated with them; and

(D) The public health, safety, welfare and convenience require that adult nightclubs and their employees be regulated and licensed in order to reduce fraud and abuse upon patrons and protect the reputation of the community.

(Ord. 3917 § 2 (part), 1995)

6.06B.020 Purpose.

The purpose of this Chapter is to regulate adult nightclubs to prevent possible criminal activities, including but not limited to fraud and solicitation of prostitution.

(Ord. 3917 § 2 (part), 1995)

6.06B.030 Definitions.

In this Chapter the following definitions and those in Title 6 shall apply unless the context clearly requires otherwise.

(A) "Adult nightclub" means a fixed place of business which may charge admission for entrance, which advertises, or holds out to the public that adult entertainment is provided, or advertises or implies that sensual or sexual entertainment is provided, and is not licensed to sell alcoholic beverages.

(B) "Attendant" means a natural person, who is employed by or who receives any monetary consideration from an adult nightclub for soliciting the sale or purchase of any product or service, including but not limited to beverages, and/or who collects entry fee, admission or cover charge.

(C) "Department" means the Department of Community Development.

(D) "Director" means the Director of the Department of Community Development.

(E) "Fondle or caress" means the conduct or affectionate touching that is intended to sexually arouse (may include "sexual conduct").

(F) An "offer to provide acts of sexual conduct" means to offer, propose or to solicit to provide sexual conduct to a patron. Such definition includes all conversations, publications, advertisements, handbills and acts which would lead a reasonable prudent person to conclude that such acts were to be provided even if such acts are illegal or are purported to be illegal or unlawful.

(G) "Security guard" means a natural person who acts as a doorman, bouncer, or who performs a function described in NRS 648.016.

(H) "Server" means a natural person who is employed by or who receives any monetary consideration from an adult nightclub for soliciting the sale or purchase of any product or service, including but not limited to beverages.

(I) "Sexual conduct" means the engaging in or the commission of an act of sexual intercourse, oral-genital contact, or the touching of the sexual organ, pubic region, buttock or female breast of a person for the purpose of arousing or gratifying the sexual desire of another person.

(J) "Sexual stimulation" means to excite or arouse the prurient interest or to offer or solicit acts of sexual conduct as defined under "offer to provide acts of sexual conduct" as defined in this Section.

(Ord. No. 6816, § 12, 8-17-22; Ord. 3917 § 2 (part), 1995)

6.06B.040 Exemptions.

(A) Establishments which are licensed to sell intoxicating liquor pursuant to LVMC 6.50 are exempt from the requirements of this Chapter due to their existing and conditioned regulations. Businesses licensed pursuant to provisions of Title 6 without specific licensing and activity regulations are not exempt from this Chapter.

(B) Establishments properly licensed and operating in compliance with LVMC 19.74, prior to July 19, 1995, may continue to provide adult entertainment activities (dancers, strippers) and are exempt from Section 6.06B.090(P) and 6.35.050(A). However, such establishments must procure all required licenses pursuant to Title 6 and comply with all other license regulations and zoning requirements.

(Ord. 3917 § 2 (part), 1995)

6.06B.050 Adult nightclub license—Application.

(A) Application for an adult nightclub license shall be made to the Director.

(B) An application for adult nightclub license shall be verified by the applicant and shall contain or set forth the following information:

(1) The name, address, telephone number, principal occupation and age of the applicant;

(2) The name, address and principal occupation of the managing agent or agents of the business;

(3) The business name, business address and business telephone number of the establishment or proposed establishment together with a description of the nature of the business and magnitude thereof;

(4) Whether the business or proposed business is the undertaking of a sole proprietorship, partnership or corporation. If a sole proprietorship, the application shall set forth the name, address, telephone number and principal occupation of the sole proprietor. If a partnership, the application shall set forth the names, addresses, telephone numbers, principal occupations and respective ownership shares of each partner, whether general, limited or silent. If a corporation, the application shall set forth the corporate name, a copy of the articles of incorporation, and the names, addresses, telephone numbers and principal occupations of every officer, director and shareholder, and the number of shares held by each;

(5) The names, addresses, telephone numbers and principal occupations of every person, partnership or corporation having any interest in the real or personal property

utilized or to be utilized by the business or proposed business or having any right or interest to any portion of the profits, or receiving or having the right to receive any payment from the business which is not directly related to utility costs;

(6) A description of all other business enterprises (sales or services) which shall occur on the premises; and

(7) Whether the applicant, anyone having a ten-percent interest in the business or proposed business, or anyone having an interest in the real property or personal property utilized or to be utilized by the business or proposed business or anyone having a right to ten percent of the proceeds of the business other than utilities has:

(a) Ever been convicted of or forfeited bail for any crime, excluding minor traffic offenses and, if so, the application shall state the person involved, the charge, date, court, and disposition of the charges,

(b) Ever had a business license denied, revoked or charges filed therefor, and if so, the application shall state the person involved, the name of the business, date, jurisdiction, and outcome of any hearing, or

(c) Ever owned, operated, been employed by a swingers club, an escort service, an outcall promoter establishment, a brothel or adult nightclub, and if so, the name of the business, dates involved and position or interest therein.

(C) The applicants shall present themselves to Metro for investigation and fingerprinting and shall pay such investigation and fingerprint fee as is required by LVMC 6.86, and shall reveal to Metro such information as is required to properly identify the applicant to enable the investigation of the applicant's arrests and convictions, licensing and litigation record and verify the accuracy and completeness of the application.

(1) In all cases where the applicant for a license is a corporation, it shall be necessary for all of the officers of such corporation to present themselves for investigation and fingerprinting. All stockholders with ten percent or more stock, or who exercise management or control of the corporation are required to present themselves for investigation and fingerprinting.

(D) An adult nightclub license shall be a semiannual license renewable by payment of semiannual license fees as found in LVMC 6.06B.100.
(Ord. 5998 § 42, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.060 License issuance or denial and appeal.

(A) The Director shall issue or deny the license to the applicant within thirty days from the receipt of a complete application and fees upon compliance with all the requirements and conditions of this Chapter. Failure of the Director to approve or deny the license application within the thirty days shall result in the license being granted.

(B) The Director shall consider the application by examination of:

(1) The circumstances of the applicant's criminal reputation, associations and business history;

(2) The reports of Metro;

(3) The proposed business operation of the applicant; and

(4) The reports of the building, fire, zoning and health departments.

(C) The Director shall not grant the license if:

(1) The applicant, whether an individual or any of the stockholders, officers or directors, if a corporation, or any of the partners, if a partnership, including limited partners, or the manager or other person principally in charge of the operation of the business, or any person receiving, or having a right to receive any sum from, or percentage of the profits due to an interest in or sale of the business, has been convicted within a five-year period immediately prior to the date of the application of crimes of embezzlement; or any crime involving fraud, consumer fraud or intent to defraud, or extortion; or has violated the law regarding fraudulent advertising;

(2) The operation as proposed by the applicant would not comply with all applicable laws, including, but not limited to, this Title and the City's building, zoning, fire and health regulations; or

(3) The applicant, whether an individual or any of the ten percent stockholders or officers, if a corporation, or any of the partners, if a partnership, including limited partners, or the manager or other person principally in charge of the operation of the business, or any person receiving, or having a right to receive any sum from, or percentage of the profits due to an interest in or sale of the business, has had a business license revoked pursuant to LVMC 6.35 (Erotic Dance Establishments), 6.36 (Escort Bureau), 6.57 (Outcall Entertainment), and 19.04 (Sexually Oriented Businesses), or this Chapter within a two-year period immediately prior to the date of the application.

(D) If the applicant is denied, the Director shall notify the applicant with the reason(s) stated for denial. Notification shall be sent certified, United States mail, return receipt requested, to the address provided on the license application which shall be considered the correct address. Each applicant has the burden to furnish any change of address to the Director, by United States certified mail, return receipt requested.

(E) In the event that an application is denied, the applicant may file or cause to be filed in the district court a petition for judicial examination of the validity of the denial or the adult nightclub establishment license as provided by Chapter 34 of NRS.
(Ord. 5998 § 43, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.070 Attendant and server work cards—Required.

No person shall work as an attendant or server at an adult nightclub without a valid work card issued by Metro.
(Ord. 5998 § 44, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.080 Attendant and server work cards—Issuance, suspension or revocation.

(A) Each attendant and server, whether a full- or part-time employee, who works or renders services in a licensed adult nightclub establishment, shall obtain prior to the commencement of work, and keep in force during the term of his/her license or employment, a work card for adult nightclub issued under LVMC 6.86 and 6.06B. The investigation of issuance of a work card will include a fingerprint check by the Federal Bureau of Investigation. Work cards applied for pursuant to this Chapter shall be granted or denied within ten working days of application subject to the provisions of LVMC 6.86.080.

(B) Metro may deny the issuance of or renewal of a work card required by this Chapter for the following reasons:

(1) The applicant has made false, misleading or fraudulent statements with respect to any material fact contained in the application for a work card;

(2) The applicant has been convicted of any crimes involving fraud, consumer fraud or intent to defraud, prostitution, solicitation of prostitution, or has violated the law regarding fraudulent advertising within two years of application for this specific work card;

(3) The applicant has violated code regulations, as set out within LVMC 6.06B.090, or has had a business license revoked pursuant to LVMC 6.35 (Erotic Dance Establishments), 6.36 (Escort Bureau), 6.57 (Outcall Entertainment), 19.04 (Sexually Oriented Businesses), or this Chapter within two years of the application for this specific work card;

(4) A work card of the applicant has previously been revoked within one year of the date of application pursuant to LVMC 6.35 (Erotic Dance Establishments), 6.36 (Escort Bureau), 6.57 (Outcall Entertainment), 19.04 (Sexually Oriented Businesses), or this Chapter, or the issuance or renewal thereof has been denied by the City or any other government entity within one year of the date of application for any reason set out in paragraphs (1), (2) or (3) above.

(C) Any work card issued for this Chapter may only be suspended or revoked for grounds set forth in Subsections above pursuant to the procedures set forth in LVMC 6.86.
(Ord. 5998 § 45, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.085 Work cards required.

The following persons are required to secure work cards in accordance with LVMC 6.86:

(A) Except as provided for in Subsection (C), all security guards working in or employed by an adult nightclub must obtain a work card pursuant to LVMC 6.86. In addition to the

grounds stated in LVMC 6.86, a work card may be denied for conviction of assault, battery, fraud or conspiracy to commit any such crime. Security guards in adult nightclubs shall not carry firearms, knives, nightsticks, clubs, or chemical or electronic weapons.

(B) All owners if applicants are individual; stockholders owning ten percent or more stock, officers and directors, if applicant is a corporation; and partners, including limited and general partners, if applicant is a partnership; and manager or other person principally in charge of the operation of the business, must obtain a work card from the Las Vegas Metropolitan Police Department, as required in LVMC 6.86. A work card may be denied for any grounds set out in LVMC 6.86. A work card may be denied for any grounds set out in LVMC 6.06B.060(C)(1) or (3) or LVMC 6.06B.080(B).

(C) Those security employees that are licensed or registered under NRS 648.060 are exempt from the work card requirement, but such persons must have their State-issued registration work card that includes a photo ID on their person during the act of performing security duties at the adult nightclub where employed. The employer is responsible for maintaining, and making available for inspection by the Department or Metro, or both, a list of such employees, including names, registry numbers and registration expiration dates.

(Ord. No. 6305, § 2, 3-19-14; Ord. 5998 § 46, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.090 Adult nightclub regulations.

(A) No person, firm, partnership, corporation or other entity shall advertise adult entertainment or cause to be advertised, as an adult nightclub without a valid adult nightclub license issued pursuant to this Chapter.

(B) No later than the fifteenth day of the month succeeding the semiannual license period the adult nightclub establishment shall file, in conjunction with license fees, a verified report with the Department showing the licensee's gross receipts and amounts paid to attendants and servers for the preceding semiannual period.

(C) Licensee shall maintain and retain for a period of three years the names, addresses and ages of all persons employed as attendants or servers by the license.

(D) No licensee shall employ as an attendant or server a person under the age of eighteen years, or a person who has not obtained a permit pursuant to this Chapter.

(E) No person under the age of eighteen years shall be admitted to an adult nightclub.

(F) Licensee shall not serve, sell, distribute or suffer the consumption or possession of any intoxicating liquor, or any beverage represented as containing any alcohol upon the premises of the licensee.

(G) Licensee shall conspicuously display all licenses required by this Chapter.

(H) All communication, verbal, visual or physical, between attendants and patrons shall take place within an area which is visible immediately upon entrance to the establishment premises. Patrons shall not be allowed in private rooms with attendants.

(I) No attendant or server shall fondle or caress any patron and no patron shall fondle or caress any attendant or server.

(J) No patron shall directly pay or give any gratuity to any attendant or server for "sexual conduct," "sexual stimulation," or as to "offers to provide sexual conduct."

(K) No attendant or server shall solicit any pay or gratuity from any patron.

(L) Any adult nightclub, licensed pursuant to this Chapter, which advertises or uses the words in its trade or place name that imply the availability of alcoholic liquor on the premises, such as "bar," "lounge" or "saloon," must state in all such advertisements that alcoholic beverages are not sold on the premises.

(M) Adult nightclubs shall post on each entrance door and not more than five inches above each entrance door, and in at least three places behind the bar a sign with letters not less than three inches high stating:

"ALCOHOLIC LIQUOR IS NOT SOLD HERE"
"PROSTITUTION IS UNLAWFUL"

The letters must be black on a yellow background and the sign on each entrance door and behind the bar must be between four and six feet above floor level. Each sign must be located and illuminated sufficient to be visible by a person with normal eyesight corrected to 20/20, thirty feet from the sign.

(N) No adult nightclub shall employ a security guard, or allow a security guard to work on the premises unless such security guard has obtained a work identification card pursuant to LVMC 6.86.

(O) Any patron evicted from an adult nightclub shall receive a reimbursement of the full admission fee and the cost of any beverage he/she purchased provided it was represented as a drink which contains alcohol when sold.

(P) No person, firm, partnership, corporation or other entity shall publicly display or expose or suffer the public display or exposure, with less than a full opaque covering, of any portion of the female breast below a point immediately above the top of the areola, or any portion of a person's genitals or pubic area or display of such anatomical parts in a lewd and obscene fashion even though opaquely covered.

(Q) No adult nightclub licensee, attendant, server or security guard shall allow, permit, encourage, or tolerate any act of masturbation to occur on the premises.
(Ord. 3917 § 2 (part), 1995)

6.06B.100 Licensee fee and reports.

(A) The license fee for an adult nightclub shall be two hundred dollars per semiannual period, to be paid on or before the fifteenth day succeeding the end of the semiannual license period.

(B) Every person licensed pursuant to this Chapter shall file with the Department on or before the fifteenth day succeeding the end of the semiannual period a report signed by the licensee under oath that the report is true to his/her own knowledge. The report shall provide any changes in information submitted pursuant to LVMC 6.06B.050.

(1) Each report must be accompanied by the license fee which is due for the semiannual license period.

(2) All licenses for which the fees have not been paid and/or complete reports received within thirty days after the due date automatically expire. Any such expired license shall not be reinstated until the total amount due shall be paid, and complete reports received. The applicant for reinstatement shall file complete applications as required in LVMC 6.06B.050 and be found suitable for licensure pursuant to LVMC 6.06B.060.

(3) All reports required by this Chapter to be filed with the Director shall be sworn under oath by the licensee of an adult nightclub, that the information contained therein is true to his/her personal knowledge.

(Ord. 3917 § 2 (part), 1995)

6.06B.110 Revocation of license.

(A) The City Council shall not act to revoke or suspend an adult nightclub license until after:

(1) The licensee is given at least ten days written notice of the specific charges;

(2) A hearing is held before the City Council at which time the licensee may present such evidence and defense as may bear upon the question.

(B) The adult nightclub license shall be revoked or suspended if the licensee maintains or conducts business in any building or structure which is structurally unsafe, or does not provide adequate egress, or which constitutes a fire hazard, or which is otherwise dangerous to human life or safety, or which in relation to existing use constitutes a hazard to safety or health, or public welfare, by reasons of inadequate maintenance, dilapidation or obsolescence.

(C) The adult nightclub license shall be revoked or suspended if the licensee has knowingly made any false, misleading or fraudulent statement of material fact in the application for a license or in any semiannual report required to be filed with the Department (LVMC 6.06B.100) or record required to be kept for three years (LVMC 6.06B.100) or knowingly caused or suffered another to furnish such false, misleading or fraudulent information or withhold such required information on his, her or its behalf.

(D) Any license issued pursuant to this Chapter may be revoked or suspended upon a finding that the licensee, its agent, employee, attendant, server, partner, director, officer, stockholder, manager or person exercising managerial authority of or on behalf of the licensee has:

(1) Committed an act for which the licensee is convicted or found guilty or liable in any court subsequent to the filing of an application for a license, of a felony or any crime involving moral turpitude, fraud, deception, false pretenses, misrepresentation, false advertising, prostitution, solicitation of prostitution, aiding and abetting an act of prostitution as defined in LVMC 10.36, violation of NRS 201.255 or 47 U.S.C. 233, pandering, crime related to racketeering, or racketeering activity or racketeering enterprise as defined in NRS 207.360, et seq., or dealing controlled substances;

(2) Provided sexual stimulation or offer to provide acts of sexual conduct to a patron of the adult nightclub establishment;

(3) Failed to file, or files a false, misleading or incomplete report required by this Chapter to be filed, or files such report thirty or more days after the due date;

(4) Violated any regulation set out in this Chapter;

(5) That the licensee has conducted or advertised an adult nightclub under a fictitious name which is unlicensed pursuant to this Chapter;

(6) Published, uttered, disseminated or conveyed either publicly or privately, to an individual any false, deceptive or misleading statements or advertisements in connection with the operation of the licensed business pursuant to this Chapter;

(7) Committed any act constituting dishonesty or fraud, or committed any unlawful, false, fraudulent, deceptive or dangerous act while conducting the licensed business; or

(8) Advertised through any publication, dissemination or display whether by hire, contract or otherwise directly or indirectly in any newspaper, magazine or other publication, by any radio, television, telephone or pictorial display, publication, handbill or other advertising media which depicted any person or object or which contained any statement which suggested to a reasonable, prudent person that prostitution or any other illegal act, service or product was offered or provided;

(9) Otherwise violated any provision of this Chapter. The fact that the licensee shall post notices disclaiming prostitution and/or alcoholic beverage sales does not excuse any charge of any of the above listed acts if an implication or expression that sexual stimulation is provided or an expression that alcoholic beverage is sold is more convincing than such notice or disclaimer.

(E) In the event the adult nightclub establishment license is suspended or revoked, except for building or fire code violation, the license suspension or revocation shall be stayed for five working days from the date of the written notice to the licensee for the licensee to seek judicial review. The licensee may waive the stay provision in writing, or the City may seek sooner to enforce the suspension or revocation by filing in the district court a petition for judicial review as provided by NRS 43.100 or by seeking alternative relief pursuant to Chapter 34 of NRS.
(Ord. 5998 § 47, 2008: Ord. 3917 § 2 (part), 1995)

6.06B.120 Responsibility of licensee.

The holder of an adult nightclub license is responsible for the acts of its employees and independent or subcontractors, including but not limited to attendants, servers, security guards, telephone receptionists. An adult nightclub license may be revoked for acts of such agent, employee, subcontractor or independent contractor which violates any provision of this Chapter. It is the duty of the licensee to prevent fraud, prostitution and the solicitation of prostitution upon the licensed premises.
(Ord. 3917 § 2 (part), 1995)

6.06B.130 License/permit required—Violation—Penalty.

It is unlawful for any person or business entity to engage in business as an adult nightclub or as attendant and/or server within the City without first obtaining a license or permit therefor as provided in this Chapter. Any person, firm or corporation violating this Section shall be guilty of a misdemeanor and each such person, firm or corporation shall be deemed guilty of a separate offense for each and every day during which the violation is committed, continued or permitted, and upon conviction of any such violation, such person, firm or corporation shall be punished by a fine of not less than two hundred fifty dollars for the first offense; not less than five hundred dollars for the second offense; not less than nine hundred fifty dollars for the third offense; and a fine of one thousand dollars plus not less than one week imprisonment for the fourth or additional offenses. In no case shall any sentence exceed more than a one thousand dollar fine and/or six months imprisonment; provided, no person shall be deemed guilty of any violation of this Chapter if acting in an investigative capacity pursuant to the request of Metro or the Director.
(Ord. 5998 § 48, 2008: Ord. 3917 § 2 (part), 1995)

CHAPTER 6.08 AMBULANCES

6.08.010 Purpose of provisions.

The provisions of this Chapter shall govern the franchising, licensing and regulation of ambulance services, air ambulance services, special event medical services, and nonmedically supervised patient transfer services in the City of Las Vegas.
(Ord. 5260 § 2, 2000)

6.08.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms defined in this Section have the meanings ascribed to them herein, as follows:

"Advanced emergency medical technician" or "Advanced EMT" means a person who is qualified, in accordance with the Health District regulations as an EMT-Basic and who is also qualified in accordance with the Health District regulations to perform essential advanced techniques and to administer a limited number of medications.

"Advanced life support" or "ALS," whether used alone or as a modifier of other nouns, has the same meaning as the definition of that term in the Code of Federal Regulations (42 CFR 414.605), as may be amended. Likewise, the terms "ALS1" and "ALS2" have the same meanings as the definitions of those terms in 42 CFR 414.605, as may be amended.

"Air ambulance" means an aircraft, both fixed wing and rotary wing aircraft, especially designed, constructed, modified or equipped to be used for the transportation of injured or sick persons. "Air ambulance" does not include any commercial aircraft carrying passengers on regularly scheduled flights.

"Ambulance" means a motor vehicle which is specially designed, constructed, equipped and staffed to provide basic, intermediate or advanced care for one or more:

(1) Sick or injured persons; or

(2) Persons whose medical condition may require special observation during transportation.

For the purposes of this Chapter, the term "ambulance" specifically excludes nonmedically supervised patient transports and special event medical service transports.

"Ambulance service" means the emergency medical care and transport, the non-emergency medical care and transport service, including inter-facility ambulance transport service, or both, which are provided to patients utilizing an ambulance with appropriately licensed personnel. The term "ambulance service" does not include the use of vehicles for nonmedically supervised patient transport service, air ambulance service or special event medical service transports.

"Annual percentage increase" or "API," for any particular annual period, means the increase to be applied to liquidated damages, penalties and service rates in accordance with Sections 6.08.180 and 6.08.190. Except as otherwise provided in this definition, the applicable API shall be calculated with reference to the increase in the CPI-MCS for the corresponding annual period, consistent with Sections 6.08.180 and 6.08.190. If there is no increase in the CPI-MCS or the increase is less than three percent, the API shall be three percent. If the increase in the CPI-MCS is greater than five percent, the API shall be five percent.

"Applicant" means a person who submits a completed application for a franchise as set forth in this Chapter.

"Application" means all written documentation, statements, representations and warranties provided to the City by an applicant, in accordance with this Chapter, to be relied upon by the City Council in making its determination of whether to grant or withhold a franchise.

"Automatic Vehicle Locator," "AVL/GPS" or "AVL" means the automated system used to track or determine the physical location of ambulance vehicles through a Global Positioning System (GPS), on a computerized mapping system that is integrated with the Fire Alarm Office.

"AVL/GPS data reports" means Global Positioning System (GPS) data that a franchisee may use to report that it was "on scene," thereby providing a means to calculate an official response time.

"Basic life support" or "BLS" has the same meaning as the definition of that term in the Code of Federal Regulations (42 CFR 414.605), as may be amended.

"City Manager" means the City Manager appointed by the City Council to perform such administrative functions of the City government as may be required of him or her by the City Council, or his or her designee.

"Computer-aided dispatch" or "CAD" means dispatching of emergency and non-emergency resources through the computer technology to calls for service.

"CPI-MCS" means the Consumer Price Index (CPI) for all Urban Consumers: U.S. City Average, Series CUUR0000SAM2, Medical Care Services, as published by the U.S. Department of Labor, Bureau of Labor Statistics, Washington, D.C.

"Critical care transport" (CCT) or "specialty care transport" (SCT) both have the same meaning as the term "specialty care transport" as defined in the Code of Federal Regulations (42 CFR 414.605), as may be amended.

"Dispatched ambulance service" means ambulance service that is dispatched by or required to be electronically transferred for dispatch by the Fire Alarm Office to a franchisee.

"Emergency" has the same meaning as that term is defined by the Health District, as may be amended.

"Emergency medical care" means medical care given to a patient in an emergency situation before the patient arrives at a hospital or other medical facility and until responsibility for the patient is assumed by the medical staff at such facility.

"Emergency medical service" or "EMS" means a system consisting of a chain of services linked together to provide emergency medical care for the patient at the scene, during transport, and upon entry at a hospital or other medical facility.

"Emergency medical technician basic" or "EMT basic" means a person who is qualified, in accordance with the Health District regulations to provide basic emergency medical care.

"EMS priority dispatch" means a dispatch system:

(1) Whereby "certified emergency medical dispatchers" give lifesaving pre-arrival instructions to person requesting the same;

(2) Which provides for the dispatch of the appropriate level of emergency vehicle response, A, B, C, D, E, or O as determined by use of a priority card or computer program, based on the severity of the medical emergency; and

(3) In which the different levels of dispatch priority are defined as follows:

(a) Priority Level 1: Specified critical-level Bravo (B), Charlie (C), Delta (D) and Echo (E) calls for 911-dispatched ambulance service;

(b) Priority Level 2: Specified high-level Bravo (B), Charlie (C), Delta (D) and Echo (E) calls for 911-dispatched ambulance service;

(c) Priority Level 3: Specified moderate-level Bravo (B), Charlie (C), Delta (D) and Echo (E) calls for 911-dispatched ambulance service;

(d) Priority Level 4: Specified low-level Alpha (A), Bravo (B) and Omega (O) calls for 911-dispatched ambulance service;

(e) Priority Level 5: Specified medical aid-level Alpha (A) and Omega (O) calls for 911-dispatched ambulance service;

(f) Priority Level 11 Urgent: Immediate transfer requests for critical patients needing a higher level of care at another facility;

(g) Priority Level 11 Scheduled: Non-emergency pre-scheduled transfer request with four hours prior notice from the facility requesting the transport; and

(h) Priority Level 11 Unscheduled: Non-emergency unscheduled transfer request.

For purposes of this Paragraph (3), "specified," with respect to a priority level, refers to call types that are selected by the LVFR Medical Director and designated in a separate document as pertaining to that priority level.

"Emergency medical technician-paramedic" or "EMT-Paramedic" means a person possessing the qualifications of the Advanced EMT and also, in accordance with the Health District regulations, as having enhanced skills that include being able to administer additional advanced life support interventions and medications.

"Emergency response" has the same meaning as the definition of that term in the Code of Federal Regulations (42 CFR 414.605), as may be amended.

"Financial statements" means audited financial statements of the local operation of the franchised business. Financial statements are to include: Balance sheet, income statement, statements of cash flows, and statement of retained earnings.

"Fire Alarm Office" or "FAO" means the office referred to as Firecom in the Health District regulations which is administered by the City of Las Vegas through an interlocal agreement among the City of Las Vegas, the City of North Las Vegas, and Clark County, or the successor to that office.

"Fire Department" means the City's Department of Fire and Rescue.

"Fire Chief" means the Director of the Fire Department or a designee.

"Franchise" means the authorization granted to a person by the City Council to provide ambulance service within the City's rights-of way, highways, streets, roads and alleys. The terms and conditions of such authorization will be described in a franchise agreement specific to such purpose.

"Franchise agreement" means the written agreement entered into between the City and a franchisee evidencing the City's authorization for a franchisee to provide ambulance service requiring the franchisee to comply with the terms of this Chapter and incorporating such other reasonable provisions as the City Council deems appropriate.

"Franchise Officer" means the person designated by the City Manager to be responsible for the administration and oversight of ambulance franchise agreements and the franchise-related aspects of this Chapter.

"Franchise service area" or "service area" means the geographic area of the City, including any sub-zones thereof, specified in a franchise agreement wherein a franchisee is authorized and required to provide ambulance service.

"Franchisee" means the person to whom an ambulance service franchise is granted by the City Council pursuant to this Chapter.

"Health District" means the Southern Nevada Health District, its officers and authorized agents.

"Health District regulations" means the applicable EMS regulations adopted by the District Board of Health, as they may be amended from time to time.

"Health Officer" means the Health Officer of the Health District.

"Inter-facility ambulance transport service" means an emergency or a nonemergency transport of a patient by ambulance that originates and terminates at previously designated medical facilities or locations.

"Intermediate life support" or "ILS," whether used alone or as a modifier of other nouns, means transportation by ground ambulance vehicle and medically necessary supplies and services that must be staffed by not less than two individuals, at least one of whom must be trained and qualified to the level of an Advanced EMT.

"LVFR Medical Director" means the medical director of the Fire Department.

"Loaded mileage" has the same meaning as the definition of that term in the Code of Federal Regulations (42 CFR 414.605), as may be amended.

"MDT" means a mobile data terminal, or a computerized device used in emergency vehicles to communicate with a central dispatch office.

"Maximum ambulance service rate" means the maximum amount that a franchisee may bill a patient or other payer for the level of ambulance service provided to the patient, as established in this Chapter, including all ancillary services and supplies used in providing ambulance service.

"Mobile integrated healthcare" means the delivery of patient-centered healthcare in the out-of-hospital environment utilizing technology and mobile pre-hospital resources to address the needs of the community. "Mobile integrated healthcare" may also be referred to as "community paramedicine."

"Mutual aid" means ambulance service provided within the franchise service area in response to a request by a franchisee for assistance from another franchisee to provide ambulance service in the requesting franchisee's authorized service area pursuant to an agreement between the franchisees that is on file with the City.

"Nonemergency ambulance service" means: 1) prearranged non-911 dispatched ambulance service provided to patients with non-life-threatening conditions that does not require the use of lights and sirens, including without limitation nonemergency ambulance service requested at special events and other non-911-dispatched ambulance service requests that would be categorized as nonemergency transfers or level 33-A calls (as that term is approved

and endorsed by the Health District) when processed through EMS priority dispatch protocol; or 2) inter-facility ambulance transport service as defined by a franchisee's agreement.

"Nonmedically supervised patient transfer service" means the transportation of a person that does not require any medical supervision, observation or care while en route, as permitted by the State of Nevada Transportation Services Authority.

"On-scene" means when an ambulance unit actually arrives at the specific address or location dispatched with a speed of zero miles per hour, or when the ambulance unit actually arrives at the point closest to the specified address or location to which it can reasonably be driven.

"Performance standards" means response time requirements that are required to be met by a franchisee as specified in Section 6.08.150 in the performance of providing ambulance service by the franchisee.

"Response time" means the time period measured from receipt by a franchisee of electronically transferred information from the FAO dispatch facility or the franchisee's dispatch center on the patient location, EMS priority dispatch code, and call-back number to the time when the ambulance dispatched to the incident or facility arrives and reports that it is "on scene" as that term is defined herein, or when the dispatched ambulance en route to an incident is canceled by the FAO dispatch.

"Rights-of-way" means property dedicated to, granted to, or held or prescriptively used by the City for public street, alley, road and highway purposes.

"Scheduled" means non-emergency pre-scheduled transports within four hours' prior notice from a facility.

"Service category" means the type or level of ambulance service that is specified in a franchise agreement pursuant to this Chapter.

"Special event" means activities such as, but not limited to, sporting events, off-road vehicle races, speedway races, concerts, fairs and parades occurring on a specific date and time at a specific location.

"Special event medical service" or "SEMS" means the providing of medical care to the participants and members of the public in attendance at a special event pursuant to a contractual arrangement between a special event medical service provider or a franchisee and the special event owner, operator, promoter, organizer or any other person authorized to enter into such contractual arrangements on behalf of the special event.

"Special event medical service provider" or "SEMS provider" means a person who has obtained a special event medical service provider business license pursuant to Title 6 of this Code and special purpose ambulance service permits required pursuant to Health District regulations.

"Special event vehicle" means the special purpose vehicle permitted by Health District regulations which for the purposes of this Chapter may be used for the sole purpose of providing standby medical coverage at predesignated special events. Except as otherwise provided in this Chapter, the term does not include a vehicle which provides ambulance service over City rights-of-way.

"Street" means the surface of the full width of the right-of-way, including alleys, sidewalks and thoroughfares, places or ways of any kind used by the public or open to the public as a matter of right for the purpose of vehicular traffic or vehicular and pedestrian traffic.

"Sub-zone" means a portion of a franchise service area as defined in a franchise agreement.

"Ten-digit request for emergency service" means any telephone request for emergency ambulance service that is received directly by a franchisee from any source, including representatives of law enforcement agencies, which is required to be electronically transferred immediately to the FAO system.

"Transfer of ownership or control" means any transaction in which:

(1) Any ownership or other right, title, or interest of more than five percent in a franchisee or its ambulance service is transferred, sold, assigned, leased, sublet, or mortgaged, directly or indirectly, voluntarily or involuntarily, in whole or in part;

(2) There is any change or transfer of control of a franchise or ambulance service;

(3) The rights, obligations, or both, which are held by a franchisee under its ambulance franchise are transferred, directly or indirectly, to another party;

(4) Any change or substitution occurs in the managing general partners of a franchisee, where applicable; or

(5) A franchisee, or its corporate parents at any level, enter into any transaction that materially increases the debt that is to be borne by the franchisee, directly or indirectly, in a manner that will adversely affect users of the ambulance service.

"Transponder" means an electronic device affixed to an ambulance that activates the private access gates located within the franchise service area.

"Unforeseen economic circumstance" means:

(1) That within a given twelve-month calculation period the percentage change in the CPI-MCS was greater than ten percent or less than zero (decrease); or

(2) Another circumstance or set of circumstances which the City Council determines to have had a significant effect on the cost of providing ambulance service.

"Unscheduled" means non-emergency unscheduled transfer request from a facility.

"Urgent" means non-emergency immediate transfer requests for critical patients needing higher level of care at another facility.

"Volunteer ambulance service" means volunteer ambulance service which is authorized and operated under the direct supervision of the Fire Department.
(Ord. No. 6901, § 1, 5-7-25; Ord. No. 6762, § 1, 12-16-20; Ord. No. 6432, § 1, 7-1-15; Ord. No. 6040, § 1, 5-20-09; Ord. 5998 § 49, 2008: Ord. 5800 § 1, 2005: Ord. 5583 § 1 (part), 2003: Ord. 5260 § 3, 2000)

Article I. Ambulance Services

6.08.030 Business license required.

(A) No person shall engage in the business of operating an ambulance service upon the rights-of-way of the City without first obtaining, and thereafter maintaining a valid unexpired business license, as required by this Title.

(B) The business license fee for an ambulance service shall be determined on the basis of gross revenues, calculated as if "gross sales" in accordance with LVMC 6.04.005, and shall be paid in advance semiannually.
(Ord. 5260 § 4, 2000)

6.08.040 Franchise and fees required.

(A) Except as provided in Subsection (C) of this Section and LVMC 6.08.330(A), it is unlawful for any person to provide ambulance service in the City without first obtaining and thereafter maintaining an ambulance service franchise and paying the franchise fee as required by this Chapter.

(B) Each franchise granted under this Chapter will be a nonexclusive franchise.

(C) A franchise is not required of any out-of-jurisdiction ambulance service providing emergency cross-jurisdictional transport services originating outside the City, provided such ambulance service has complied with all license, permit and franchise requirements of the jurisdiction where the transport originated.
(Ord. No. 6762, § 2, 12-16-20; Ord. 5260 § 5, 2000)

6.08.050 Franchise fee determination.

The franchise fee shall be the amount set forth in a franchise agreement which has been determined necessary to partially reimburse the City for costs incurred in dispatch processing, providing or arranging for services, administering the franchise agreement, regulatory oversight, and such other service as permitted by applicable law. Franchise fees shall be paid according to the provisions of the franchise agreement, and shall be accompanied by such supporting documentation as the Franchise Officer deems necessary. If a franchise fee is received by the City after its due date, the City is authorized to charge the franchisee a late fee of two percent per month (or fraction thereof) of the delinquent amount.
(Ord. No. 6901, § 2, 5-7-25; Ord. No. 6762, § 3, 12-16-20; Ord. 5800 § 2, 2005: Ord. 5260 § 6, 2000)

6.08.060 Limitation of number of franchises.

After having conducted a public hearing specific to such purpose, the City Council may, in its sole discretion, specify by resolution a fixed number of ambulance service franchises, including their service categories, to be granted within the City. If the City Council has not specified by resolution a fixed number of ambulance service franchises to be granted within the City, then prior to accepting a new application for an ambulance service franchise the City Council shall first conduct a public hearing and, in its sole discretion, make a determination of whether a new ambulance service franchise will serve the public convenience and necessity.
(Ord. 5260 § 7, 2000)

6.08.070 Application for franchise.

(A) Whenever the number of ambulance service franchisees within the City is less than the maximum number established by the City Council pursuant to this Chapter, or if the City Council has not established a maximum number of such franchises but has determined that a new ambulance service franchise will serve the public convenience and necessity, a person may apply for a new franchise by submitting an application to the Franchise Officer on such form or in such format as the City may require.

(B) The application shall be in writing and shall include the following:

(1) For a sole proprietor, the name and business and residence addresses of the applicant. For a corporation, the corporate name, date and place of incorporation, an address of its principal place of business, and identification of the ownership and control of the applicant, including: the names and address of the ten largest holders of an ownership interest in the applicant and affiliates of the applicant, and all persons with five percent or more ownership interest in the applicant and its affiliates, the persons who control the applicant and its affiliates, all officers and directors of the applicant and its affiliates, and any other business affiliation and ownership interest of each named person. For a corporation, a copy of the articles of incorporation and all effective amendments certified by the appropriate officer of the state of incorporation, and a certificate of good standing from the Nevada Secretary of State. For a limited liability company (LLC), the LLC name, date and place of formation, an address of its principal place of business, identification of the ownership and control of the applicant, including the names and addresses of the ten largest holders of an ownership interest in the applicant and affiliates of the applicant, and all persons with five percent or more ownership interest in the applicant and its affiliates, the persons who control the applicant and its affiliates, all members/managers of the applicant and its affiliates, and any other business affiliation and ownership of each named person. For an LLC, a copy of the articles of organization and all effective amendments certified by the appropriate officer of the state of formation, and a certificate of good standing from the Nevada Secretary of State. For a partnership or association, the names of the owners, partners or the

persons comprising the association of the company, the names and percentage of ownership of each owner, partner or person, and the business and residence addresses of each owner, partner or person. If the applicant is operating under a fictitious firm name, a copy of the certificate filed pursuant to NRS Chapter 602;

(2) A statement with such references as may be acceptable to the Franchise Officer and Fire Chief describing the qualifications and experience of the applicant and the personnel who will manage the ambulance service franchise; all geographic areas and all other jurisdictions currently or previously provided ambulance service by the applicant, performance standards achieved and levels of service provided. This Section shall not be deemed as precluding an application from a new business entity; provided that the principals in such entity are able to demonstrate that the new entity can satisfy the requirements for a franchise set forth in this Chapter;

(3) A letter of intent from an insurance carrier meeting the requirements of this Chapter stating that, if a franchise is granted, an insurance policy will be issued in the amount and under the conditions stated in this Chapter;

(4) A letter of commitment from a qualified institution acceptable to the Franchise Officer stating that, if a franchise is granted, performance security in the kind and amount stated in this Chapter will be issued securing the applicant's performance under the franchise agreement;

(5) A written description of the AVL system and the computer-aided dispatch system or other system the applicant intends to utilize, and must be compatible with the FAO's CAD;

(6) A written description of the communication system and dispatch procedures the applicant intends to utilize, including a copy of the applicant's application to the Federal Communication Commission (FCC) for an appropriate license;

(7) The color scheme, logo and uniform design proposed to be used to designate the ambulance(s) and personnel of the applicant, which shall not be the same as or confusingly similar to the color schemes or designs of the Fire Department or other ambulance service providers operating in the City as determined by the Fire Chief in his or her sole discretion;

(8) A description of the applicant's proposed operating procedures related to training, staffing, billing, collections, customer relations and maintenance of records; and

(9) Written information as required by the Franchise Officer or Fire Chief, or both, to allow evaluation of whether the applicant is financially able to provide ambulance services, including:

(a) A statement outlining the extent to which the applicant has been in the ambulance service business before filing the application, and

(b) Documented financial and other information as the Franchise Officer or Fire Chief, or both, may require for a full understanding of the application.

(10) Any other documents and information as the Franchise Officer or Fire Chief, or both, may require in order to evaluate the applicant.

(Ord. No. 6901, § 3, 5-7-25; Ord. No. 6432, § 2, 7-1-15; Ord. 5260 § 8, 2000)

6.08.080 Review of application.

(A) Upon the receipt by the Franchise Officer of any application referred to in Section 6.08.070, and payment of a one-thousand-dollar non-refundable deposit, the Franchise Officer or Fire Chief, or both, shall immediately cause verification, review, and investigation of the applicant, the actual costs of which shall be paid by the applicant. The Franchise Officer or Fire Chief, or both, shall report to the City Council the findings made pursuant to the investigation.

(B) The City Council, in its sole discretion, may approve or reject any application, grant or deny any franchise, or request further investigation or review or direct other actions.

(Ord. No. 6901, § 4, 5-7-25; Ord. No. 6432, § 3, 7-1-15; Ord. 5260 § 9, 2000)

6.08.090 Solicitation of bids.

The City Council, in its sole discretion, may direct the solicitation of bids for ambulance service franchises and, the requirements for application stated in Section 6.08.070 notwithstanding, may establish such requirements for bids as it deems appropriate. Bids received shall be reviewed and investigated by the Franchise Officer or Fire Chief, or both, who shall report the findings to the City Council. After receiving the report or reports, the City Council may grant a franchise, not grant a franchise or take any other action it may deem appropriate.

(Ord. No. 6901, § 5, 5-7-25; Ord. 5260 § 10, 2000)

6.08.100 Request for renewal of franchise.

A franchisee may request extension of its franchise at least twelve months prior to the franchise expiration date. In connection with the request for extension, the City Manager may require compliance with any or all of the requirements for an initial application under Section 6.08.070 and add such additional requirements as deemed appropriate. A franchisee shall cooperate with the City in any proceeding for extension and shall provide such information as the City shall reasonably request in connection therewith.

(Ord. No. 6762, § 4, 12-16-20; Ord. 5260 § 11, 2000)

6.08.110 Nonexclusivity of franchise.

An ambulance service franchise shall grant non-exclusive permission to the franchisee to provide ambulance services for the service level and category so authorized in the service areas specifically described in the franchise agreement, according to the terms and conditions contained in the franchise agreement. No provision, term of art, map or illustration, nor Section title of this Chapter, nor of any franchise agreement granted under

this Chapter, shall imply, suggest, connote or in any way infer that any franchisee holds any degree of exclusivity to solely provide ambulance service within the City, nor within any franchise service area within the City, nor any sub-zone thereof.
(Ord. 5800 § 3, 2005: Ord. 5260 § 12, 2000)

6.08.120 Franchise provisions.

The following provisions shall apply to franchises issued pursuant to this Chapter:

(A) The franchise agreement shall incorporate and be subject to the provisions of this Chapter, as it may be amended from time to time, all of which shall be binding upon the franchisee and its approved successors, transferees of ownership or control, and assignees. In no event shall this Chapter be considered a contract between the City and the franchisee such that the City would be prohibited from amending any provision hereof.

(B) All documents provided by the applicant as part of the completed application and all statements, representations, warranties and promises made therein by the applicant and relied upon by the City in granting the franchise shall be binding upon the franchisee.

(C) A franchise shall be revocable in accordance with the provisions of this Chapter if the franchisee fails, for reasons other than force majeure, to provide ambulance services within the period of time specified in the franchise agreement.

(D) A franchise agreement shall set forth its length of term.

(E) No privilege or exemption shall be inferred from the granting of any franchise unless it is specifically mentioned in this Chapter or in the franchise agreement.

(F) The granting of a franchise pursuant to this Chapter shall not impart to the franchisee any vested ownership right or ownership interest in any rights-of-way or City property, notwithstanding the right to use City rights-of way or City property to provide its ambulance service.

(G) As a condition of the franchise and prior to providing ambulance service a franchisee shall provide the City with a detailed statement of the equipment and facilities to be used in providing ambulance service, including:

(1) A copy of its Health District ambulance service permit;

(2) The vehicle identification number, make, type, age, condition and patient capacity of each ambulance available for use within the service area, a detailed description of the equipment thereon and the identification number of the red light and siren permit issued by the Nevada Highway Patrol;

(3) The location and description of the premises which are to be used as the base of operations and any terminals, officers and other facilities to be used in the operations;

(4) A description of the franchisee's procedures related to vehicle maintenance and repair;

(5) A copy of the franchisee's Federal Communications Commission license; and

(6) Proof that the franchisee's AVL and CAD have been tested for compatibility with the FAO CAD to monitor the location and status of deployed units at all times and have performed in a manner acceptable to the Fire Chief in his or her sole discretion.

(H) The Franchise Officer and the Fire Chief, in consultation with the LVFR Medical Director, may adopt administrative policies and procedures as necessary to carry out the provisions of this Chapter and franchise agreements executed pursuant to this Chapter, subject to the approval of the City Manager.

(Ord. No. 6901, § 6, 5-7-25; Ord. No. 6432, § 1, 7-1-15; Ord. 5800 § 4, 2005: Ord. 5260 § 13, 2000)

6.08.125 Mobile integrated healthcare and ET3 services.

A franchisee may provide mobile integrated healthcare, but only if permitted by and pursuant to the terms of its franchise agreement.

(Ord. No. 6901, § 7, 5-7-25; Ord. No. 6762, § 5, 12-16-20; Ord. No. 6432, § 5, 7-1-15)

6.08.130 Further franchise provisions.

(A) No franchisee shall deviate from the color scheme, logo or design approved by the Fire Chief without his or her prior consent.

(B) The franchisee shall maintain records within Clark County, Nevada and allow for audits as provided in applicable Sections of this Chapter and Title 6 of this Code.

(C) A franchisee shall adhere to response time standards and staffing requirements of this Chapter in its service area and individually in each subzone that the franchisee is authorized to serve. The franchisee shall ensure that each sub-zone in its service area receives the same level of service or level of performance as compares with other sub-zones it serves within the franchise service area.

(D) A franchisee shall not use, encourage, advocate or solicit the use of any telephone number or system of communication in lieu of the 911 emergency telephone system number for the dispatch of an ambulance to any call except for non-emergency service as defined by this Chapter.

(E) Unless otherwise specified in its franchise agreement or required by the LVFR Medical Director's regulations and procedures, when a franchisee receives, through any means, a request for service which if processed through EMS priority dispatch protocols would be determined to be a Priority Level 1, 2, 3, 4 or 5 call under a Category Alpha (A), Bravo (B), Charlie (C), Delta (D), Echo (E), or Omega (O) level category for EMS ambulance service, the franchisee shall electronically transfer information on the call to the FAO, including patient location, condition and call-back number.

(F) A franchisee shall not use any ambulance once the vehicle mileage on that ambulance reaches three hundred thousand miles; provided, however, that an ambulance in which a new engine and transmission have been installed before reaching that mileage may continue in use beyond that mileage, but must not be used by the franchisee after its mileage has reached five hundred thousand miles.

(G) Except with respect to nonemergency ambulance service, when a franchisee is providing special event medical service and a patient's condition requires transport, or a franchisee is directly called to transport a patient from a special event, the franchisee shall electronically transfer information on patient location, condition, availability of or need for the dispatch of an ambulance and call-back number to the FAO.

(H) A franchisee shall provide integration of the franchisee's emergency and non-emergency resources onto the FAO dispatching consoles.
(Ord. No. 6901, § 8, 5-7-25; Ord. No. 6762, § 6, 12-16-20; Ord. No. 6432, § 6, 7-1-15; Ord. No. 6040, § 2, 5-20-09; Ord. 5800 § 5, 2005: Ord. 5583 § 2, 2003: Ord. 5260 § 14, 2000)

6.08.140 Establishment of City Zone.

The incorporated areas of the City shall be considered the City Zone. The City Zone shall not receive disproportionate service as compared with other local jurisdictions served by the franchisee. In the event that the City establishes sub-zones within the City Zone, the franchisee shall assure that no single sub-zone receives disproportionate service as compared with other sub-zones within the City Zone.
(Ord. 5260 § 15, 2000)

6.08.150 Response time performance standards.

(A) Requests for ambulance service which are received through the FAO, including ten-digit requests for emergency service, through a 911-emergency telephone system, or franchisee's dispatch center, shall meet the following response time performance standards:

(1) For all dispatch level emergency calls of EMS Priority Levels 1, 2 and 3, the response time shall be no greater than eleven minutes and fifty-nine seconds (11:59).

(2) For all dispatch level emergency calls of EMS Priority Level 4, the response time shall be no greater than fifteen minutes and fifty-nine seconds (15:59).

(3) For all dispatch level emergency calls of EMS Priority Level 5 and non-emergency calls of Priority Level 11 Urgent, the response time shall be no greater than nineteen minutes and fifty-nine seconds (19:59).

(4) For all non-emergency calls of Priority 11 Scheduled, the response time shall be no greater than the scheduled time.

(5) For all non-emergency calls of Priority 11 Unscheduled, the response time shall be no greater than fifty-nine minutes and fifty-nine seconds (59:59).

(B) During each calendar month, and within a franchisee's service area and within each sub-zone within that area, as established or amended in accordance with the terms of the franchise agreement, a franchisee must have a minimum ninety percent compliance rate with the response time standards set forth in Subsection (A) of this Section, as measured in each of the following categories:

(1) The combined total of emergency calls of EMS Priority Levels 1 and 2, separately from the calls of any other Priority Level;

(2) The total of emergency calls of EMS Priority Level 3, separately from the calls of any other Priority Level;

(3) The total of emergency calls of EMS Priority Level 4, separately from the calls of any other Priority Level;

(4) The total of emergency calls of EMS Priority Level 5, separately from the calls of any other Priority Level; and

(5) The combined total of non-emergency calls (all types) of EMS Priority Level 11, separately from the calls of any other Priority Level.

(C) In addition to the provisions of Subsection (A) of this Section, a franchisee's failure to arrive on the scene within the times set forth in this Subsection (C) may be grounds for taking disciplinary action against a franchisee, including assessment of liquidated damages, penalties or other actions as provided in this Chapter or in the franchise agreement; readjustment of the franchisee's Franchise Service Area; or possible termination of the franchise as provided by this Chapter or the franchise agreement. The arrival times beyond which disciplinary and related actions under this Subsection (C) may be taken are as follows:

(1) For dispatch level emergency calls of EMS Priority Levels 1, 2 and 3, within fourteen minutes and fifty-nine seconds (14:59) after dispatch.

(2) For dispatch level emergency calls of EMS Priority Level 4, within nineteen minutes and fifty-nine seconds (19:59) after dispatch.

(3) For dispatch level emergency calls of EMS Priority Level 5, within twenty-four minutes and fifty-nine seconds (24:59) after dispatch.

(4) For dispatch level non-emergency calls of EMS Priority Level 11 Urgent, within ten minutes after the response time set forth in Subsection (A) of this Section.

(5) For dispatch level non-emergency calls of EMS Priority Level 11 Scheduled and Unscheduled, within thirty minutes after the response times set forth in Subsection (A) of this Section.

(D) Calls not canceled by the FAO before the response time requirement has expired but for which the ambulance crew failed to substantiate the on-scene time through usage of AVL/GPS data reports or, if the AVL/GPS was not functioning, failed to report through

alternative methods established by the Fire Chief and LVFR Medical Director, will be considered as failing to meet the applicable response time standards set forth in Subsection (A) of this Section.

(E) A call for which an ambulance did not respond within the applicable response time standards set forth in Subsection (A) of this Section, either by the franchisee or by an authorized ambulance service provider through a mutual aid agreement, will be considered as failing to meet the response time requirements of this Section if the call was not canceled by the FAO before the expiration of the response time requirements.

(F) When the FAO closes a call, the call is terminated and the applicable response time standard set forth in Subsection (A) of this Section will apply. If the FAO reopens the call, the franchisee shall consider it a new call and calculate the response time from the time the franchisee receives information that the call has been reopened to the time when the ambulance dispatched to the incident arrives and reports that it is on scene, or when the dispatched ambulance en route to an incident is canceled by the FAO dispatch.

(G) When multiple ambulances are dispatched by FAO to a single incident, the applicable response time standards set forth in Subsection (A) of this Section will apply only to the first ambulance dispatched by FAO, and additional ambulances responding to the incident will not have a response time requirement nor be counted as a separate call by a franchisee in calculating its monthly ninety percent response time compliance required by this Section.

(H) When a franchisee requests mutual aid from an authorized franchisee, the requesting franchisee will count that call in its total monthly calls in calculating its ninety percent on-time response requirements of this Section and will be responsible for any incidental late penalties for such response.

(I) The franchise agreement may specify an area of the City wherein the response time requirements of this Section shall not apply.

(J) In addition to any other liquidated damage assessment, remedy or penalty provided in this Chapter or the franchise agreement, failure of a franchisee to meet the monthly ninety percent response time requirements set forth in this Chapter within its service area or any sub-zone thereof, as defined by the franchise agreement, for any four months during any period consisting of twelve consecutive calendar months shall be grounds for readjustment of the service area or any other appropriate action as may be determined by the City Council, in its sole discretion, including but not limited to action authorized by Section 6.08.290.
(Ord. No. 6901, § 9, 5-7-25; Ord. No. 6762, § 7, 12-16-20; Ord. No. 6432, § 7, 7-1-15; Ord. No. 6040, § 3, 5-20-09; Ord. 5800 § 6, 2005: Ord. 5583 § 3, 2003: Ord. 5260 § 16, 2000)

6.08.160 Ambulance procedure.

(A) Except as otherwise provided by Subsection (B) of this Section, the following procedures shall apply:

(1) Upon arrival at the scene of an incident where patient care is being provided by Fire Department personnel, the ambulance franchisee's personnel shall:

(a) Seek out the officer or paramedic in charge (Incident Commander) for an information report on patient care already provided;

(b) Request possible assignments to assist in any additional care;

(c) Avoid duplicating any patient assessment or treatment already completed; and

(d) Work under the direction of the Incident Commander.

(2) Upon arrival at the scene of an incident where patient care is being provided by ambulance franchisee's personnel, the Fire Department may assume command of the scene. In the event that the Fire Department does assume command of the scene it shall:

(a) Seek out the ambulance franchisee's employee in charge for a report on the condition of the patient, and any treatment that may have been provided;

(b) Request transfer of information from the ambulance franchisee's personnel; and

(c) Remain in charge of the scene while at the scene.

(3) Upon the Fire Department's assumption of command of an incident scene, care of a patient or patients shall be the responsibility of the Fire Department personnel until such personnel have ceased to provide patient care and responsibility has been transferred to franchisee personnel; provided, however, that at no time shall ambulance franchisees' personnel delay initiation of appropriate treatment or transportation of a patient in anticipation of Fire Department response. It is the responsibility of all agencies providing patient care to cooperate and assist in treatment and transportation requirements.

(4) A franchisee responding to an FAO call shall not send additional ambulances to an incident unless so authorized by the Incident Commander or the FAO.

(B) If a call is closed by a Fire Department unit by changing status to available, the franchisee shall continue to the scene unless the franchisee receives notification from the FAO that the call is cancelled. The franchisee shall substantiate the on-scene time through usage of AVL/GPS data reports or, if the AVL/GPS was not functioning, through alternative methods established by the franchise agreement or the LVFR Medical Director.

(C) Nothing in Subsection (A) of this Section shall be deemed to require or authorize the interruption of patient care in progress.
(Ord. No. 6432, § 8, 7-1-15; Ord. No. 6040, § 4, 5-20-09; Ord. 5800 § 7, 2005: Ord. 5260 § 17, 2000)

6.08.170 Replacement of Fire Department items.

A franchisee shall replace at an incident site to which it has been dispatched all disposable items used by the Fire Department in providing care and treatment. If it is not in the best interest of patient care to complete the replacement of disposable items at the incident site, the Fire Department will furnish the franchisee with a list of items to be replaced accompanied by the name, if known, and incident number of the patient for whom the items were used. A franchisee shall, within twenty-four hours of receipt of the list of items, resupply to the Fire Department all items on such list by delivering them to one central

delivery point or by other arrangement agreed upon by the franchisee and the Fire Department. If a disposable item had a brand name approved by the Fire Department the replacement item shall have the same brand name. Within twenty-four hours, or such longer period as has been established by the franchise agreement a franchisee will retrieve and return to the Fire Department all durable equipment supplied by the Fire Department in providing EMS and any other Fire Department equipment which has come into the franchisee's possession.
(Ord. No. 6432, § 9, 7-1-15; Ord. 5800 § 8, 2005: Ord. 5260 § 18, 2000)

6.08.180 Penalties.

(A) An ambulance service franchise agreement shall provide for liquidated damages or penalties and remedies in the event the franchisee fails to comply with the ambulance response time, personnel, equipment and reporting requirements of this Chapter or the terms and provision of the franchise agreement.

(B) The liquidated damages or penalties paid to the City shall be used to pay for EMS related expenses, including public education programs, and administrative oversight of ambulance franchises.

(C) The liquidated damages and penalties indicated herein shall be increased annually on February 1 of each year by the API, as determined in accordance with Subsection (C) of Section 6.08.190.
(Ord. No. 6901, § 10, 5-7-25; Ord. No. 6432, § 10, 7-1-15; Ord. 5800 § 9, 2005: Ord. 5583 § 4, 2003: Ord. 5260 § 19, 2000)

6.08.190 Maximum service rates.

(A) A franchisee may charge no more than the maximum ambulance service rates plus loaded mileage rates established in this Section for the following regulated levels of service:

(1) Emergency response ALS1, including medical supplies and services: One thousand three hundred twelve dollars and thirty-four cents or the maximum allowed by applicable Federal law, whichever is higher;

(2) Emergency response ALS2, including medical supplies and services: One thousand four hundred thirty-six dollars and sixty-nine cents or the maximum allowed by applicable Federal law, whichever is higher;

(3) Emergency response BLS, including medical supplies and services: One thousand two hundred forty-seven dollars and twenty-two cents or the maximum allowed by applicable Federal law, whichever is higher;

(4) Nonemergency response ALS1, including medical supplies and services: One thousand one hundred seventy dollars and twenty-one cents or the maximum allowed by applicable Federal law, whichever is higher;

(5) Nonemergency response BLS, including medical supplies and services: One thousand one hundred seventeen dollars and zero cents or the maximum allowed by applicable Federal law, whichever is higher;

(6) Critical care transport, including medical supplies and services: One thousand five hundred fifty-nine dollars and three cents or the maximum allowed by applicable Federal law, whichever is higher; and

(7) Loaded mileage: Thirty-seven dollars and twelve cents or the maximum allowed by applicable Federal law, whichever is higher.

(B) Ambulance service rate charges specified in Subsection (A) of this Section are subject to the following:

(1) When there are transports involving two or more patients in the same ambulance, the mileage charge shall be equally divided between the patients;

(2) A franchisee shall not charge for wait time as a result of or in proximity to any transport;

(3) A franchisee may discount an ambulance service rate to the degree allowed by Federal, state and local laws from the maximum ambulance service rates, provided that:

(a) No cost shifting shall occur, and

(b) The same discounted rate shall be charged to all patients or third-party payers;

(4) A franchisee shall not capitate any rate nor charge a uniform average per capita rate for any group or category of persons to whom it provides service; and

(5) An ALS assessment does not necessarily result in a determination that the patient requires an ALS level of service.

(C) Ambulance service rates described in this Section shall be increased as follows:

(1) The rates shall be adjusted annually on February 1 by the API, determined with reference to the most recent twelve-month period ending on the preceding December 31 as compared with the prior twelve-month period ending on December 31. The API for a particular period is subject to the lower and upper limits described in the definition of "API." When the API reflects the CPI-MCS because the latter is between the lower and upper limits, the API shall be rounded to the nearest hundredth of a percent.

(2) When an unforeseen economic circumstance has occurred during a twelve-month period for which the API is being calculated pursuant to Subsection (C)(1) of this Section, the City Council may approve a method for adjusting rates which is not based on the CPI-MCS or the API. In any year following a period when the adjustment to rates was based on some other method, rate adjustments shall again be based on the API for that year.

(D) Annually on the first City business day of February, the Franchise Officer shall cause the creation of a written record of the rates as adjusted pursuant to Subsection (C) of this Section and file such record with the City Clerk for public inspection.
(Ord. No. 6901, § 11, 5-7-25; Ord. No. 6762, § 8, 12-16-20; Ord. No. 6432, § 11, 7-1-15; Ord. 5800 § 10, 2005: Ord. 5583 § 5, 2003: Ord. 5260 § 20, 2000)

6.08.200 Submittal of reports of requests for service.

(A) At the request of either the Franchise Officer or the Fire Chief, a franchisee shall submit reports, records and other information regarding emergency and nonemergency transports that are necessary to verify the franchisee's compliance with this Code and franchise agreements executed pursuant to this Chapter. These reports, records and information shall be submitted in the format and on the date requested by the Franchise Officer or the Fire Chief.

(B) A franchisee may keep records using account numbers or patient numbers rather than names and addresses; provided, however, that such records shall include the FAO incident number.

(C) The franchisee shall provide an annual report to the Franchise Officer and the Fire Chief listing all ambulance vehicles, by vehicle identification number, vehicle number and license plate, that are used for emergency 911 response and indicating the odometer mileage reading of each vehicle. The mileage reading shall be documented for each vehicle during the month of January of each year, and the date of the reading for each vehicle shall be included in the list. The mileage report shall be due no later than March 1 of each year.
(Ord. No. 6901, § 12, 5-7-25; Ord. No. 6432, § 12, 7-1-15; Ord. No. 6040, § 5, 5-20-09; Ord. 5800 § 11, 2005: Ord. 5260 § 21, 2000)

6.08.210 Release of information.

Upon receipt of a written release of information from any patient who has been transported by a franchisee, that franchisee shall provide to the patient, and City at its request if so authorized by the written release, all information related to the transport in question, including but not limited to all of its billing records relating to that patient, supported by the account number or patient number of that patient.
(Ord. 5260 § 22, 2000)

6.08.220 Release of records.

At the request of either the Franchise Officer or the Fire Chief, a franchisee shall furnish to the City any records or any additional information regarding emergency and nonemergency transports that are necessary to verify compliance with this Code or the franchise agreement.
(Ord. No. 6901, § 13, 5-7-25; Ord. No. 6432, § 13, 7-1-15; Ord. 5260 § 23, 2000)

6.08.230 Monthly reports.

A franchisee shall provide a monthly report to the Franchise Officer and the Fire Chief listing any litigation filed against the franchisee of which it is aware arising from or in any way related to its operations in the City.
(Ord. No. 6901, § 14, 5-7-25; Ord. 5260 § 24, 2000)

6.08.240 Financial statements.

A franchisee shall provide to the Franchise Officer:

(A) Within four months after the end of each fiscal year of a franchise, the financial statements for such fiscal year;

(B) In connection with financial records inspections as provided for in Sections 6.08.250 and 6.08.260 of this Ordinance or during any auditing activities, such details regarding the franchisee's financial operation in the City as the City may require to verify compliance by the franchisee with the provisions of this Chapter and the terms of the franchise agreement; and

(C) Access to financial statements of entities locally owned, operated or under the control of the franchisee or related business parties who exercise any control of the franchisee.
(Ord. No. 6901, § 15, 5-7-25; Ord. 5260 § 25, 2000)

6.08.250 Inspection of financial records.

Upon twenty-four hours' written notice, the City may inspect the financial records of a franchisee to determine whether the franchisee is complying with the terms of this Chapter.
(Ord. No. 6901, § 16, 5-7-25; Ord. 5800 § 12, 2005: Ord. 5260 § 26, 2000)

6.08.260 Review of financial statements.

In connection with the administration of the franchising provisions of this Chapter, the Franchise Officer shall review, or cause to be reviewed, the annual financial statements submitted by a franchisee pursuant to this Chapter for compliance with the standards and requirements set forth in this Chapter.
(Ord. No. 6901, § 17, 5-7-25; Ord. 5260 § 27, 2000)

6.08.270 Confidentiality of records.

(A) Except as otherwise provided in this Section, information provided by a franchisee to the City for purposes of determining compliance with the requirements of this Chapter and the franchise agreement shall be considered public records.

(B) The confidentiality of records shall be in accordance with federal and state law. The duty to disclose any particular record as a public record shall be in accordance with state law, and federal law, if applicable.

(C) Any information provided to the City which contains a natural person's name, address, medical condition or diagnosis, incident location, social security number, personal financial records, telephone number, home address, e-mail address, names of family members, or work history, or which otherwise constitutes "protected health information" as that term is applied in the Federal Health Insurance Portability and Accountability Act, Business Associate Agreement, and regulations thereunder ("HIPAA"), shall be considered confidential. Such confidential information shall not be released by the City to the public unless the person to whom the information applies has first agreed in writing, in a format which complies with HIPAA requirements, to release of the information. To the extent permitted by HIPAA and other applicable law, reports containing confidential information and information deemed to be public may be released if such confidential information is first redacted.

(D) Upon the City's request and within the time period required by the City, a franchisee shall provide any such redacted reports that may be required for release by the City.
(Ord. No. 6432, § 1, 7-1-15; Ord. 5800 § 13, 2005: Ord. 5260 § 28, 2000)

6.08.280 Transfer of ownership or control.

(A) A franchisee's obligations under its franchise involve personal services whose performance involves personal credit, trust and confidence in the franchisee.

(B) No transfer of ownership or control shall occur unless prior application is made by the franchisee to the City, and the City Council's prior written consent is obtained, pursuant to this Chapter and the franchise agreement, and only then upon such terms and conditions as the City Council deems necessary and proper. Any such transfer of ownership or control without the prior written consent of the City Council shall be considered to impair the City's assurance of due performance. The granting of approval for a transfer of ownership or control in one instance shall not be deemed as granting approval of any subsequent transfer of ownership or control.

(C) Approval by the City Council of a transfer of ownership or control does not constitute a waiver or release of any of the rights of the City under this Chapter or a franchise agreement, whether arising before or after the date of the transfer of ownership or control.

(D) A franchisee shall promptly notify the Franchise Officer of any proposed transfer of ownership or control.

(E) Prior to any transfer of ownership or control, the franchisee shall submit to the Franchise Officer a written request for approval of the transfer of ownership or control. Such request shall provide complete information on the proposed transaction, including details on the legal, financial, technical, and other qualifications of the transferee, and any other information as determined necessary by the Franchise Officer.

(F) For the purposes of determining whether it shall consent to a transfer of ownership or control, the City or its agents may inquire into all qualifications of the prospective transferee and such other matters as the City may deem necessary to determine whether the transfer

of ownership or control is in the public interest and should be approved, denied, or conditioned. The franchisee and any prospective transferee shall assist the City in any such inquiry, and if they fail to do so, the request for transfer of ownership or control may be denied.

(G) Any transfer of ownership or control without the City Council's prior approval shall be ineffective, and shall be grounds for revocation of the franchise, at the City Council's sole discretion, and to any other remedies available under the agreement or applicable law.

(H) A franchisee shall be fully liable under its franchise agreement for any transfer of ownership or control that is in violation of the terms of its franchise agreement or of this Chapter and caused in whole or in part by any other entity or entities, including but not limited to any parent or affiliated entities, as if such transfer of ownership or control had been caused by the franchisee itself.

(I) The City Council, in its sole discretion, may approve or deny a transfer of ownership or control of a franchise. As part of its determination the City Council may approve a transfer subject to such conditions as the City Council may deem necessary. In addition, the following conditions to any approval of transfer of ownership or control of a franchise shall apply:

(1) The City reserves the right to review, among other things, the purchase price of any transfer of ownership or control of a franchise or ambulance service operation, and to take any necessary steps, including denial of the transfer of ownership or control, to ensure that any negotiated sale value which the City deems unreasonable will not adversely affect rates charged by the ambulance service franchisee; and

(2) Any mortgage, pledge or lease shall be subject and subordinate to the rights of the City under the franchise agreement, this Chapter, and other applicable law.

(J) No application for a transfer of ownership or control shall be approved unless the transferee agrees in writing that it will abide by and accept all terms of the franchise agreement, any other agreements between the City and franchisee, and this Chapter, and that it will assume the obligations, liabilities, and responsibility for all acts and omissions, known and unknown, of the previous franchisee under its franchise agreement, other agreements between the City and franchisee and this Chapter for all purposes, including any extension of the franchise, unless the City Council, in its sole discretion, expressly waives this requirement in whole or in part.

(K) A rebuttable presumption that a transfer of control has occurred shall arise upon the acquisition or accumulation of five percent or more of the ownership of an entity by any person or group of persons acting in concert, none of whom already own or control fifty percent or more of such right or control, singularly or collectively.

(L) A franchisee is responsible for ensuring that the intent of this Chapter regarding transfers is carried out. If for any reason an event occurs that would require the City's approval of a transfer pursuant to this Chapter, whether or not such event is directly or indirectly within the franchisee's control, such event shall constitute a transfer for purposes of this Chapter and any applicable law.

(Ord. No. 6901, § 18, 5-7-25; Ord. No. 6762, § 9, 12-16-20; Ord. 5260 § 29, 2000)

6.08.290 Revocation of franchise.

(A) The City Council may revoke a franchise if it finds that:

(1) The franchisee has failed to meet any of the performance standards of this Chapter;

(2) The franchise was obtained by fraud or misrepresentation;

(3) The franchisee has failed to operate its ambulance service business in accordance with all applicable laws and regulations and the franchise agreement;

(4) The franchisee has failed to pay franchise fees, associated late fees, penalties, or other financial obligations under a franchise agreement or this Chapter;

(5) The franchisee otherwise has failed to meet any of the provisions of any state, local or Federal law or regulation; or

(6) The franchisee is found to have falsified or intentionally provided erroneous records related to its franchise operations.

(B) The City Council may revoke a franchise upon twelve hours' notice to a franchisee in the event that any failure of the franchisee which constitutes a significant and immediate threat to public health and safety is not cured to the satisfaction of the City Council within such time.

(C) Except with respect to findings described in Paragraphs (2) and (6) of Subsection (A) of this Section, and except as otherwise provided in Subsection (B) of this Section, prior to revoking a franchise the City Council shall first provide written notice to the franchisee stating its intent to revoke the franchise and the nature of the deficiency. The franchisee shall have twenty days from receipt of notice to cure such deficiency to the satisfaction of the City Council. If such deficiency is not so cured, the City Council may issue a notice of revocation stating any deficiencies and the effective date of the revocation.

(D) The City shall provide the franchise written notice, at the time the public receives written notice pursuant to NRS Chapter 241, of any City Council meeting at which a franchise is being considered for revocation.

(E) In an emergency, as defined in NRS 241.020, the City Council may revoke a franchise without prior notification.
(Ord. No. 6901, § 19, 5-7-25; Ord. No. 6762, § 10, 12-16-20; Ord. 5260 § 30, 2000)

6.08.300 Security deposit required.

(A) To ensure that ambulance service remains uninterrupted in the event of premature termination of a franchise for any reason, and to ensure that all fees, fines, penalties or other amounts owed to the City are paid, a franchisee shall provide and maintain, as a condition of the franchise, and prior to providing any ambulance services in the City, security in the form of cash, an irrevocable pledge of certificate of deposit, an irrevocable letter of credit or a performance bond as agreed in the franchise agreement. In the event that an ambulance service only holds a franchise in the City for non-911-dispatched and nonemergency CCT

service, such security shall be in the minimal amount of one hundred thousand dollars made payable to the City Treasurer and delivered to the Franchise Officer. In the event that an ambulance service holds a franchise for both emergency and nonemergency transports or just emergency transports such security shall be in the amount of one million dollars made payable to the City Treasurer and delivered to the Franchise Officer.

(B) If performance bonds are used to satisfy the security requirements of this Section, they shall comply with the following requirements:

(1) All bonds shall provide for payment of the City's reasonable attorneys' fees to enforce the bond.

(2) All bonds shall be issued by a surety company authorized to do business in the State of Nevada, and which is listed in the U.S. Department of the Treasury Fiscal Service (Department Circular 570, Current Revision).

(3) All bonds shall guarantee performance of the franchisee's obligations under the franchise agreement and under all applicable local, state and federal laws.

(4) A certified and current copy of the power of attorney of the attorney-in-fact who executes the bond on behalf of the surety shall be affixed to the bond.

(5) All bonds must comply with applicable provisions of NRS Chapter 680A.

(C) In the event an emergency ambulance service franchisee is found in default under the provisions in this Chapter or its franchise agreement, the franchisee will make available to the City or its designee the use of all ambulance vehicles and medical equipment, and any other equipment necessary to support continuation of emergency ambulance services, in service at the time of the breach in order to maintain the public health and safety in the City's jurisdiction, under the following provisions:

(1) As a condition of its franchise and prior to providing any ambulance services with the City, a franchisee will enter into an agreement with the City to provide for the interim rental of the ambulance vehicles and any necessary equipment, facilities, or both, in a manner to ensure uninterrupted service;

(2) The compensation to a franchisee for rental of the ambulance vehicles and any necessary equipment, facilities, or both, shall not exceed the franchisee's actual cost to provide the equipment;

(3) The rental of ambulance vehicles and any necessary equipment, facilities, or both, shall not exceed the time necessary for the City to provide for alternative emergency ambulance service and that service to begin;

(4) The City shall deduct any damages incurred as a result of a franchisee's noncompliance with the terms of this Code that result in the franchisee's default against the amount payable to the franchisee for the temporary rental of the franchisee's ambulance vehicles and any necessary equipment, facilities, or both;

(5) A franchisee who operates any leased ambulances or ambulances encumbered with liens shall have stipulated in any lease or lien agreements that, in the event of a franchisee default, such ambulances shall not be repossessed but shall be made available to the City for its use, provided the City continues to make lease or lien payments; and

(6) In the event of premature termination of a franchise for any reason, any existing agreement to provide for the interim rental of the ambulance vehicles and any necessary equipment, facilities, or both, and any other agreements between the franchisee and the City shall remain in full force and effect and shall survive termination of the franchise unless those agreements are specifically terminated by the City.

(Ord. No. 6901, § 20, 5-7-25; Ord. 5800 § 14, 2005: Ord. 5583 § 6, 2003: Ord. 5260 § 31, 2000)

6.08.310 Right of property not granted.

Any franchise granted pursuant to this Chapter shall be a privilege and shall not impart to the franchisee any right of property in any City rights-of-way or other City property. The franchise agreement shall be construed to have granted the nonexclusive permission and authority to operate within the City.

(Ord. 5260 § 32, 2000)

6.08.320 City to be held harmless.

(A) A franchisee, as a condition of the grant of a franchise agreement pursuant to this Chapter, and in consideration thereof, shall protect, indemnify, and hold the City harmless against all claims for breach of contract or for damages to persons or property by reason of the operation of its franchised business, or any way arising out of performance under its franchise, directly, or indirectly, when or to the extent injury is caused, or alleged to have been caused, wholly or in part, by any act, omission, negligence, or misconduct of the franchisee or any of its contractors, subcontractors, officers, agents, or employees, or by any person for whose act, omission, negligence, or misconduct, the franchisee is by law responsible.

(B) This Section is not intended to create liability for the benefit of third parties but is solely for the benefit of the franchisee and the City. In the event any claim is made against the City whether private or brought by or on behalf of the government that falls under this indemnity provision and a Court of competent jurisdiction should adjudge, by final decree, that the City is liable therefor, a franchisee shall indemnify and hold the City harmless of and from any such liability, including any court costs, expenses, and reasonable attorney fees incurred by the City in defense thereof and incurred at any stage. Upon commencement of any suit, proceeding at law or in equity against the City relating to or covering any matter covered by this indemnity, wherein a franchisee has agreed by accepting a franchise, to indemnify and hold the City harmless, or to pay said settlement, final judgment and costs, as the case may be, the City shall give a franchisee immediate notice of such suit or proceeding; whereupon a franchisee shall provide a defense to any such suit or suits, including any

appellate proceedings brought in connection therewith, and pay as aforesaid, any settlement, costs, civil monetary penalties or judgments that may be rendered against the City by reason of such damage suit.

(C) Upon failure of a franchisee to comply with the "defense of suit" provisions of its franchise agreement, after reasonable notice to it by the City, the City shall have the right to defend the same and in addition to being reimbursed for any settlement or judgment that may be rendered against the City, together with all costs incurred therein, the franchisee shall reimburse the City reasonable attorney fees, including those employed by the City in such case or cases, as well as all expenses incurred by the City by reason of undertaking the defense of such suit or suits, whether such suit or suits are successfully defended, settled, comprised, or frilly adjudicated against the City. In the event the City is compelled to undertake the defense of any such suit by reason of the franchisee's failure to perform as here and above provided, the City shall have the full right and authority to make or enter into any settlement or compromise of such adjudication as the City Council shall deem in the best interest of the City, this without the prior approval or consent of the franchisee with respect to the terms of such compromise or settlement.
(Ord. 5260 § 33, 2000)

6.08.330 Exclusivity of Fire Department.

Nothing contained in this Chapter:

(A) Prevents the Fire Department from furnishing ambulance service with City Council approval, or the City Council from contracting with one or more service providers to provide that service, selected by such competitive or other selection process as the City determines appropriate.

(B) Applies to any service provided by the Fire Department pursuant to Subsection (A) of this Section.

(C) Applies to any volunteer emergency ambulance service that is furnished with City Council approval and is under Fire Department supervision and control.
(Ord. No. 6762, § 11, 12-16-20; Ord. 5260 § 34, 2000)

6.08.335 City Council selection.

If the City Council selects one or more service providers to provide ambulance service pursuant to LVMC 6.08.330(A), the only provisions of this Chapter automatically applicable to any agreement for such services shall be LVMC 6.08.330(A) and any other provisions of this Chapter expressly delineated or incorporated in the agreement.
(Ord. No. 6762, § 12, 12-16-20)

6.08.340 Franchise bound by City, State and Federal regulations.

The franchisee shall be subject to all requirements of the City's ordinances, rules, regulations and specifications insofar as the regulations and specifications are not in violation of any applicable State or Federal regulations. The City reserves every right and

power to exercise any requirement of the Las Vegas Municipal Code, and the franchisee, by its acceptance of the franchise, agrees to be bound thereby and to comply with any action under (or requirement) of the Las Vegas Municipal Code, as it exists now or as amended in the future.
(Ord. 5260 § 35, 2000)

Article II. Special Event Medical Services

6.08.350 Franchise not required when.

An ambulance service franchise shall not be required in order to provide special event medical service as defined by this Chapter.
(Ord. 5260 § 36, 2000)

6.08.360 Transport from special events.

An ambulance service franchisee may provide special event medical service and may use its ambulances to transport patients from the location of a special event, whether or not the special event is located in the franchisee's authorized service area, in accordance with the service category authorized in its franchise agreement.
(Ord. 5800 § 15, 2005: Ord. 5260 § 37, 2000)

6.08.370 Requirements for special event transport.

(A) A SEMS provider whose special event vehicle is staffed and equipped pursuant to Health District regulations may transport a patient from a special event it has been contracted to serve only if the condition of a patient is so severe that the patient requires immediate ambulance transport (e.g., penetrating trauma, acute myocardial infarction, evolving cerebral vascular accident, difficult airway management, etc.).

(B) Within five calendar days of the transport, the SEMS provider shall submit a written report of the patient transport to the Health District, pursuant to its reporting regulations.
(Ord. 5800 § 16, 2005: Ord. 5260 § 38, 2000)

6.08.380 Cooperation during emergency.

If requested to do so by the City and subject to availability of staff and equipment, an SEMS provider shall make its staff and equipment available to aid and assist the City in the event of wide-scale emergency or disaster and, if requested, shall cooperate with and participate in an emergency planning program conducted or sponsored by the City's office of emergency management.
(Ord. 5260 § 39, 2000)

6.08.390 Failure to comply—Penalty.

Failure of an SEMS provider to comply with the provisions of this Chapter and applicable Sections of this Code may result in business license penalties including revocation of the SEMS provider's business license.
(Ord. 5260 § 40, 2000)

6.08.400 Business license required.

Any person desiring to operate a business that provides medical or first aid service at special events within the City must first obtain and thereafter maintain a valid unexpired business license. Persons holding a valid and current ambulance service franchise and ambulance service business licenses with the City are exempt from SEMS licensing.
(Ord. 5260 § 41, 2000)

6.08.410 Business license fee.

The business license fee for a special event medical service provider shall be two hundred dollars paid annually.
(Ord. 5260 § 42, 2000)

6.08.420 Color scheme, logo and uniform design.

The color scheme, logo and uniform design to be used to designate the special event medical service vehicle and personnel of the SEMS provider shall not be the same or confusingly similar to the color scheme of designs of the Fire Department or other ambulance service providers operating in the City as determined by the Fire Chief in his or her sole discretion.
(Ord. 5260 § 43, 2000)

Article III. Nonmedically Supervised Transfer Services

6.08.440 Business license required.

Any person desiring to operate a patient transfer service business within the City, must first obtain and thereafter maintain a valid unexpired business license.
(Ord. 5260 § 45, 2000)

6.08.450 Business license fee.

The business license fee for a non-medically supervised patient transfer service provider shall be one hundred dollars per vehicle annually.
(Ord. 5260 § 46, 2000)

6.08.460 Vehicle supplies.

A nonmedically supervised patient transfer service licensee must not equip its vehicles with any medical equipment or supplies other than a first aid kit.
(Ord. 5260 § 47, 2000)

Article IV. Air Ambulance Services

6.08.470 Business license required.

Any person desiring to operate an air ambulance service which picks up or delivers patients within the City must first obtain and thereafter maintain a valid unexpired air ambulance service business license and must comply with all emergency medical service regulations as adopted by the Health District as a condition of their license.
(Ord. 5260 § 48, 2000)

6.08.480 Business license fee.

The business license fee for an air ambulance service provider shall be two hundred dollars semiannually.
(Ord. 5260 § 49, 2000)

Article V. General Insurance Provision

6.08.490 Liability insurance required.

(A) As a condition of and prior to commencing business operations, any person required to have a business license or franchise or both a business license and franchise under this Chapter and intending to transport on the rights-of-ways or air space of the City as provided in this Chapter shall file with the Franchise Officer and thereafter maintain liability insurance, as long as required to be licensed or franchised or both licensed and franchised and intending to transport in the City, in such form as approved by the City's risk manager, insuring the licensee or franchisee against all risk arising from the operations of the licensee or franchisee for not less than two million dollars per occurrence for bodily injury or death, and two million dollars per occurrence for loss or damage to property.

(B) All policies of insurance required under this Section shall be issued by insurance companies licensed to do business in the State of Nevada in accordance with applicable sections of Nevada Revised Statutes Title 57, from carriers having a rating from A.M. Best Company of no less than A-VIII. Proof of coverage shall be evidenced by submitting an insurance certificate, or certificates, to the Franchise Officer. Each such certificate must name the City as an additional insured and indicate that the City will be notified no less than thirty days prior to alteration, cancellation, termination or non-renewal of coverage.
(Ord. No. 6901, § 21, 5-7-25; Ord. 5260 § 50, 2000)

CHAPTER 6.09 APARTMENT HOUSES AND APARTMENT HOUSE MANAGERS

6.09.010 Definitions.

For purposes of this Chapter:

(A) "Apartment house" means a structure which contains four or more apartment dwelling units and which does not qualify as a townhouse dwelling, residence hotel/motel, condominium, or multiple-unit structure that is owned cooperatively or in common.

(B) "Landlord training program" means a landlord training program offered by the Las Vegas Metropolitan Police Department.

(C) "Licensee" means a person who is licensed under the provisions of this Chapter.

(D) "Operator of an apartment house" means a person who operates or manages an apartment house. For purposes of ensuring that the provisions of this Chapter are met for each apartment house, the term also includes a person who owns the apartment house or the land on which the apartment house is located if that person also is engaged in the operation or management of the apartment house.

(Ord. No. 6920, § 1, 7-16-25; Ord. No. 6776, § 3, 4-21-21; Ord. No. 6196, § 1, 5-16-12; Ord. 5056 § 2, 1998)

6.09.015 Annual apartment business license fee.

Each operator of an apartment house shall pay an annual licensing fee based upon the schedule set forth in this Section. However, in the case of a group of apartment houses which are contiguous to each other, the contiguous group shall be treated as one apartment house for the purpose of this Section. No more than one fee is required to be paid under this Section for each apartment house.

Number of Apartment House Rooms	Fee
4 to 10	$75.00
Over 10	$75.00 plus $5.00 for each additional apartment in excess of 10

(Ord. No. 6776, § 4, 4-21-21; Ord. No. 6196, § 2, 5-16-12; Ord. 5352 § 4, 2001)

6.09.020 Business license—Completion of landlord training program required.

(A) The operator of an apartment house must obtain and maintain a business license to operate any apartment house. In addition, but subject to the remaining provisions of this Section, the operator must complete a landlord training program.

(B) The landlord training requirement of Subsection (A) of this Section does not apply to any operator of an apartment house that is or will be managed by a licensee who is in compliance with the requirements of Subsection (C) of this Section.

(C) Independent of the requirement set forth in Subsection (A), any person who is in the business of managing one or more apartment houses on behalf of others must:

(1) Obtain and maintain a business license to manage apartment houses; and

(2) Complete a landlord training program.

(D) Any employee or agent of a licensee under this Section who acts as the on-site manager of an apartment house must have completed a landlord training program.

(E) At any given time with respect to each apartment house:

(1) The licensed manager, if any, must have completed a landlord training program.

(2) Any on-site manager who is the employee of a licensee must have completed a landlord training program.

(3) In the case of an apartment house which does not have a manager, at least one person who qualifies as the operator of the apartment house must have completed a landlord training program.

(F) Although not otherwise obligated under this Chapter, a person who owns an apartment house or the land on which the apartment house is located but who is not engaged in the operation or management of the apartment house is responsible to ensure that at least one person qualifying as an operator of the apartment is available for purposes of complying with the licensing, fee payment, and training requirements of this Chapter.

(G) A business license under this Chapter may be withheld pending an applicant's completion of the landlord training program or may be conditioned upon such completion.
(Ord. No. 6305, § 3, 3-19-14; Ord. No. 6196, § 4, 5-16-12)

Editor's note—Ord. No. 6196, § 3, adopted May 16, 2012, repealed the former § 6.09.020, and § 4 of Ord. No. 6196 enacted a new § 6.09.020 as set out herein. The former § 6.09.020 pertained to completion of landlord training program and work card required and derived from Ord. No. 5056, 1998.

6.09.030 Training requirements for business entities.

For purposes of this Chapter, a partnership, corporation or other business entity satisfies the training and work card requirements of this Chapter if one or more of its principals has fulfilled those requirements.
(Ord. 5056 § 9, 1998)

6.09.040 Change in management of apartment house.

A person licensed as the operator of an apartment house shall notify the Department a change in the management of the apartment house within ten days after the change takes

place. A new manager who has not completed the landlord training program shall have sixty days to complete the program and thirty days following program completion to obtain a work card.
(Ord. No. 6196, § 5, 5-16-12; Ord. 5998 § 50, 2008: Ord. 5056 § 10, 1998)

6.09.050 Enforcement.

Neither the payment of a semiannual license fee, nor the renewal or pending renewal of a license under this Chapter, shall in any way limit the enforcement of this Chapter. The Department may delay, withhold or rescind renewal action pending verification of compliance with this Chapter.
(Ord. 5998 § 51, 2008: Ord. 5056 § 11, 1998)

6.09.060 Retaliatory action by a landlord.

As a matter of information only, State law prohibits retaliatory action by a landlord against a tenant under the circumstances described by that law.
(Ord. No. 6776, § 5, 4-21-21)

CHAPTER 6.10 ARCADES AND SMALL GAME ROOMS

6.10.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms defined in this Section have the meanings ascribed to them herein, as follows:

"Amusement park" means a business premises which has one or more buildings or structures, is operated on a permanent basis, and is designed to provide amusement, pleasure or relaxation and promotes some theme, motif or concept, including a location that provides lifts, tramways, monorails, elevators, or escalators or other conveyances or rides or roller coasters for entertainment or amusement of the public, together with any incidental sale of refreshments, food, gifts or novelties. The category does not include an arcade or small game room, or an interactive entertainment center as described in LVMC 6.04.020. Any other type of business to be conducted on the premises, including any separate-leased area of the premises must be separately licensed and is subject to any background investigation applicable thereto.

"Arcade" means any separate room or enclosed area used for the primary purpose of providing access to a minimum of twenty-five coin-operated amusement machine devices not intended or played for gambling purposes.

"Small game room" means any separate room or enclosed area used for the primary purpose of providing access to less than twenty-five coin-operated amusement machines or devices not intended or played for gambling purposes.
(Ord. No. 6327, § 7, 6-18-14; Ord. 5352 § 5, 2001: Ord. 5054 § 2, 1998)

6.10.020 License and permit required.

(A) Each person who operates an arcade is required to obtain an arcade business license pursuant to this Code and pay an annual license fee of one hundred dollars.

(B) Each person who operates a small game room is required to obtain a small game room business license pursuant to this Code and pay an annual license fee of fifty dollars.

(C) Each person who operates an amusement park is required to obtain an amusement park business license pursuant to this Code and pay a semiannual license fee based upon gross revenue as set forth in LVMC 6.04.005.

(D) Each arcade, small game room, or amusement park licensee must obtain a coin-operated amusement machine permit and pay the required permit fees pursuant to LVMC Chapter 6.26.
(Ord. 5352 § 5, 2001: Ord. 5054 § 3, 1998)

6.10.030 Staffing—Security.

(A) Each licensee of an arcade shall staff the arcade with attendants trained in security measures for the protection of children.

(B) Each licensee of a small game room shall during all hours of operation:

(1) Staff the small game room with an attendant trained in security measures for the protection of children;

(2) Periodically monitor the small game room by having an attendant trained in security measures for the protection of children inspect the small game room a minimum of four times randomly within each hour; or

(3) Operate security or surveillance cameras in the small game room, and monitor such cameras a minimum of four times randomly within each hour.

(C) Each licensee of an amusement park shall provide, at its own expense. Security protection as required by Metro.

(D) Each licensee of an arcade, small game room, or amusement park that operates a security or surveillance camera in the arcades, small game room or amusement park shall display a sign in a conspicuous place that provides notice that the arcade or small game room is monitored by security or surveillance cameras.
(Ord. 5352 § 7, 2001: Ord. 5054 § 4, 1998)

6.10.040 Children—Restricted hours.

Except as otherwise provided in this Chapter, it is unlawful for any child under the age of eighteen to be in an arcade or small game room between the hours of ten p.m. to five a.m.,

Sunday through Thursday, and between the hours of twelve midnight to five a.m. Friday, Saturday, school holidays, and the period of Memorial Day (the last Monday in May) through Labor Day (the first Monday in September).
(Ord. 5054 § 5, 1998)

6.10.050 Restrictions—Display of sign.

Every operator of an arcade or small game room shall display in a conspicuous place at or near the entrance to the establishment in letters of sufficient height to be clearly visible a sign which states:

LAS VEGAS MUNICIPAL CODE PROHIBITS THE PRESENCE OF CHILDREN UNDER THE AGE OF 18, WHO ARE UNACCOMPANIED BY A PARENT, LEGAL GUARDIAN, OR RESPONSIBLE ADULT OVER THE AGE OF 21 AT THIS LOCATION DURING THE FOLLOWING HOURS:

SUNDAY THROUGH THURSDAY	10:00 p.m.—5:00 a.m.
FRIDAY, SATURDAY, SCHOOL HOLIDAYS AND MEMORIAL DAY THROUGH LABOR DAY	12:00 midnight—5:00 a.m.

ANY PERSON WHO VIOLATES THESE CODE PROVISIONS IS GUILTY OF A MISDEMEANOR AND IS SUBJECT TO A FINE OF $300.00.

(Ord. 5054 § 6, 1998)

6.10.060 Children—Restricted hours—Exceptions.

The provisions of this Chapter restricting the hours during which persons under eighteen years of age may patronize arcades or small game rooms do not apply if such child is accompanied by a parent, legal guardian or other responsible person who is over the age of twenty-one and approved by the child's parent or legal guardian.

(Ord. 5054 § 7, 1998)

6.10.070 Parental responsibility.

(A) It is unlawful for any parent, guardian or other person having legal care, custody or control of any child under the age of eighteen to allow or permit such child to be in an arcade or small game room in violation of this Chapter.

(B) The licensee, principal, owner or operator of an arcade, small game room or establishment in which it is located shall not be deemed to have legal care, custody, or control of any child under the age of eighteen present in such arcade, small game room, or establishment.

(Ord. 5054 § 8, 1998)

6.10.080 Citation of child and/or parent—Detention of child.

(A) Any Department representative or officer of Metro finding or observing any child under the age of eighteen being on or upon any place in violation of this Chapter may cite the child or the child's parent, legal guardian or other responsible person who is over the age of twenty-one, or both the child and the child's parent, legal guardian or other responsible person.

(B) A representative of Metro may temporarily detain and release the child, release the child to the custody of his or her parent or legal guardian, or take the child to the Clark County Juvenile Court Services.

(Ord. 5998 § 52, 2008: Ord. 5054 § 9, 1998)

6.10.081 Certificate of insurance—Amusement parks.

Each operator of an amusement park shall file with the Department a certificate of insurance issued by an insurance company authorized to do business in the State which names the City as an additional insured and which shows that the licensee has insurance coverage of at least five hundred thousand dollars bodily injury coverage for injury suffered by patrons of the amusement park.

(Ord. 5253 § 8, 2001)

6.10.083 Certificate of insurance—Amusement park employees.

Any person in the employ of an amusement park, whether a full-time or part time employee or trainee, and whether or not paid, must possess a valid work card issued by Metro and, must comply with all applicable health card requirements of the Health District prior to the commencement of work.
(Ord. 5253 § 9, 2001)

6.10.090 Violation—Penalty.

Any person who violates Sections 6.10.040 and 6.10.070 of this Chapter shall be guilty of a misdemeanor and be subject to a fine of not more than three hundred dollars.
(Ord. 5054 § 10, 1998)

CHAPTER 6.11 RESERVED*

CHAPTER 6.12 THE PSYCHIC ARTS†

6.12.010 Privileged business finding.

The City Council hereby finds that the businesses set forth in this Chapter seriously affect the well-being of the City and its residents, and that it is necessary to regulate such activities carefully in order to ensure that persons of honesty and integrity are operating such businesses and that they are operated in a responsible manner to the public. Such businesses must therefore comply with Chapter 6.06.
(Ord. 2246 § 1 (part), 1981: prior code § 5-10-1)

6.12.020 Required.

No person shall carry on, practice, teach, or profess to practice the business of psychic arts and demand or receive a fee for the exercise or exhibition of his art therein, directly or indirectly or incidental to the conduct of any other business, either as a gift, donation or otherwise, or give an exhibition thereof at any place where an admission fee is charged, without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code.
(Ord. No. 6213, § 6, 9-5-12; Ord. 2246 § 1 (part), 1981: prior code § 5-10-2(A))

***Editor's note—**Ord. No. 6183, § 17, adopted March 7, 2012, repealed Chapter 6.11, §§ 6.11.010—6.11.070, which pertained to arts and crafts shows and derived from Ord. No. 3044, 1983 and Ord. No. 5452, 2002.

†**Editor's note—**Ord. No. 6213, § 10, adopted September 5, 2012, repealed the former §§ 6.12.060—6.12.140, and § 11 enacted new §§ 6.12.060—6.12.080 as set out herein. The former sections pertained to fee, hypnotist's license and psychic art and science licenses and derived from prior code §§ 5-10-3(A)—5-10-4(D); Ord. No. 2246, 1981 and Ord. No. 3843, 1994.

6.12.030 Psychic arts—Defined.

For purposes of this Chapter, the term psychic arts includes the following: Astrology, numerology, hypnosis, psychic science, palmistry, phrenology, life reading, fortune telling, cartomancy, clairvoyance, clairaudience, crystal gazing, mediumship, prophecy, augury, divination or necromancy.
(Ord. No. 6213, § 7, 9-5-12)

6.12.040 Age of applicant.

The applicant for a psychic arts license must be eighteen years of age or older.
(Ord. No. 6213, § 8, 9-5-12; Ord. 2246 § 1 (part), 1981: prior code § 5-10-2(C))

6.12.050 Publications exempted.

The publication or placement of astrology information in a book, newspaper, magazine or other periodical is exempt from this Chapter.
(Ord. No. 6213, § 9, 9-5-12; Ord. 2246 § 1 (part), 1981: prior code § 5-10-2(D))

6.12.060 Charges—Donations.

(A) Any fee, gift, donation or otherwise, charged to the patron for providing psychic arts must be posted in a conspicuous place within the place of business to be visible to patrons upon entry to the place of business on a sign of no less than eight inches by ten inches in size with lettering no smaller than three-quarters of an inch.

(B) If the licensee accepts donations, or any other method of indirect remuneration at the discretion of a patron, such signage shall indicate that information to such patron.

(C) The licensee shall not charge a patron a different fee than is posted upon such sign.
(Ord. No. 6213, § 11, 9-5-12)

6.12.070 Exceptions.

Except as otherwise provided in LVMC 6.12.090 as it relates to the payment of business license fees, this Chapter shall not apply to the following:

(A) Doctors, dentists and other medical practitioners licensed by the appropriate board under the Nevada Revised Statutes;

(B) Hypnotherapy practitioners who do not qualify under Subsection (A) but who have a current certification from a qualified professional hypnotherapy organization. For purposes of the preceding sentence, "qualified professional hypnotherapy organization" means a nationally recognized organization that is dedicated to providing training, continuing education, and performance testing in hypnotherapy and that:

(1) Has a current membership of at least one thousand members; or

(2) Requires for certification purposes a minimum of three hundred hours of training initially and thirty hours of continuing education training every two years.

(C) Persons employed by such practitioners and acting under their direction and control, who use hypnotism as an aid in treatment or as a supplementary form of treatment in the course of their profession.

(Ord. No. 6213, § 11, 9-5-12)

6.12.080 License fee.

The following shall pay in advance an annual license fee of two hundred dollars:

(A) Each person required to be licensed by this Chapter; and

(B) Each practitioner who is otherwise exempt from this Chapter pursuant to LVMC 6.12.070(B).

(Ord. No. 6213, § 11, 9-5-12)

CHAPTER 6.14 AUCTIONS

6.14.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meaning ascribed to them as follows:

(A) "Auction" means a sales transaction conducted by means of oral or written exchange between an auction caller and members of a participating audience, which exchange consists of a series of invitations for offers for purchase of property of any kind made by an auction caller, and offers to purchase made by members of an audience, culminating in the acceptance by an auction caller of the highest or most favorable offer made by a member of a participating audience.

(B) "Auction caller" means any individual who calls out for bids at an auction. This term only refers to a person that volunteers for or is employed by an auction firm for the purpose of calling out bids for auction. The calling of bids alone shall not be considered "conducting" an auction for the purpose of LVMC 6.14.010(C).

(C) "Auction firm" means any person, who as a part of that person's business, promotes, advertises or conducts an auction.

(D) "Day" means a calendar day or any portion thereof.

(E) "Inventory" means an itemized list of jewelry offered for sale at an auction.

(F) "Jewelry" means watches, rings, bracelets, necklaces, pins and other items of adornment which are made in whole or in part of gold, silver, platinum or other precious or semiprecious metals, whether solid, plated or overlaid, and precious and semiprecious stones and imitations thereof, whether with or without setting.

(G) "Permit" means written authorization from the Department to promote, advertise or conduct an auction on a specific day or days and at a specific location. An auction firm must secure a permit from the Department prior to the promotion, advertising or conducting of any auction.

(Ord. No. 6213, § 12, 9-5-12; Ord. 3563 §§ 2, 3, 1991)

6.14.020 Findings—Purpose—Chapter 6.06 compliance.

The City Council finds that the auction business seriously affects the well-being of the City and its residents; that it is necessary to regulate auctions carefully in order to ensure that persons of honesty and integrity are operating such businesses; that auctions should be conducted in a manner responsible to the public; and that auctions must therefor comply with Chapter 6.06.

(Ord. 3563 §§ 2, 4, 1991)

6.14.030 License and Code compliance required.

No auction firm shall promote, advertise or conduct an auction of the property of another without first obtaining and thereafter maintaining a valid unexpired license and without complying with the provisions in this Code.

(Ord. No. 6213, § 13, 9-5-12; Ord. 3563 §§ 2, 5, 1991)

6.14.040 Manager and supervisor—Required—Qualifications.

(A) Each applicant for a license must be or must identify and employ and each licensee shall be or employ an individual who will be the manager of the business and supervisor of all auctions.

(B) The individual designated as manager of the business and supervisor of the licensee's auctions must:

(1) Be a graduate of a recognized school of auctioneering;

(2) Have at least three years of experience as an auction caller;

(3) Be approved for suitability by the Director.

(Ord. No. 6213, § 14, 9-5-12; Ord. 3563 §§ 2, 6, 1991)

6.14.050 Bond.

Each applicant for an auction firm license must file and each licensee must maintain a surety bond with the Department in the sum of ten thousand dollars with surety acceptable to and approved by the City Attorney. Such bond must be conditioned to be paid to the City or to any person who purchases from the licensee and suffers injury by reason of any violation of the provisions of this Code by the licensee, his agents or employees and that the principal therein named will faithfully conform to each and all conditions or restrictions upon the principal's license or permit.

(Ord. No. 6213, § 15, 9-5-12; Ord. 3563 §§ 2, 7, 1991)

6.14.060 License fee.

Each person required to be licensed by this Chapter shall pay in advance an annual license fee of five hundred dollars.
(Ord. No. 6213, § 16, 9-5-12; Ord. 3563 §§ 2, 8, 1991)

6.14.070 Permit—Required—Application.

(A) It is unlawful for any person to promote, advertise or conduct an auction without a permit.

(B) An application for a permit may be made only by a person who holds a valid auction firm license.

(C) An application for a permit shall be made on forms suitable to the Director and filed with the Department not less than ten days prior to the proposed auction.

(D) The applicant shall set forth the following information on the application:

(1) His name and street address;

(2) Whether or not he is the holder of a current auction firm license;

(3) The street address of the place where the auction will be conducted;

(4) The number of days during which the applicant proposes to conduct the auction, specifying the dates thereof;

(5) The name and street address of the owner of the property which is proposed to be sold at auction;

(6) The name and street address of the auction caller who is to conduct the auction and the names and street addresses of any assistants he may use to help call the auction;

(7) The nature and quantity of goods and property to be sold;

(8) If any of the property to be sold at auction is jewelry, the applicant shall also file an inventory with the application:

(a) Each item of jewelry shall be listed separately on the inventory, except that those items which are to be sold as a set may be listed together as a single item. Any set so listed may not be sold otherwise than together as listed. Items, sets or groups of items listed shall be separately and consecutively numbered, beginning with the number one,

(b) Following the name of each item of jewelry, and upon the same line or immediately beneath it, shall be a description of the item, giving the name of the manufacturer, if known, the manufacturer's number, if any, the name, size or weight of any precious or semiprecious stones or imitations thereof, the kind of metal, and the grade of fineness thereof used in such item, together with such

other and further information as shall reasonably tend to inform persons examining the inventory of the nature and quality of the items listed and to identify the same; and

(9) Such other information as the Director requires which reasonably relates to the appropriateness of the permit.

(Ord. No. 6213, § 17, 9-5-12; Ord. 3563 §§ 2, 9, 1991)

6.14.080 Permit—Fee.

An applicant for a permit must, when he files his application for the permit, pay a fee of twenty-five dollars for each day he proposes to conduct the auction.

(Ord. 3563 §§ 2, 10, 1991)

6.14.090 Permit—Action on application—Denial, revocation, suspension.

(A) Upon receipt of an application for a permit and the required fee, the Director shall approve, deny or take such other action with respect to the application as he considers appropriate.

(B) The Director may deny, revoke or suspend a permit for good cause, if he finds that, without limitation:

(1) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required;

(2) The proposed auction would interfere with the health, safety or general welfare of the public or constitute a breach of peace;

(3) The proposed auction caller fails to satisfy any qualifications or requirement imposed by this Code, or other local, State or Federal law or regulation pertaining to such activities;

(4) Disciplinary action has been brought against the licensee or a person associated with the licensee who is required to be found suitable or to possess a work card;

(5) The applicant fails to comply with any conditions of the license or permit.

(Ord. No. 6213, § 18, 9-5-12; Ord. 3563 §§ 2, 11, 1991)

6.14.100 Permit—Place and time restrictions.

The permit shall specify the street address at which the auction is to be conducted and the period of time, specifying the dates thereof, for which the permit is granted. It is unlawful for any permittee to conduct an auction at any place other than that specified in the permit.

(Ord. 3563 §§ 2, 12, 1991)

6.14.110 Posting of Chapter provisions and permit.

(A) At least one copy of this Chapter shall be displayed in a position and location conveniently available to prospective bidders in the room where the auction is being conducted, and at least one copy thereof shall also be displayed in a position and location conveniently available to persons outside of the building in which the auction is being conducted.

(B) The permit issued for the auction shall at all times, while valid, be kept posted in the room where the auction is being conducted.
(Ord. 3563 §§ 2, 13, 1991)

6.14.120 Sales records.

(A) The licensee shall keep a record of all sales, the amount paid and the dates of each sale. The records shall be open at all reasonable times for inspection by employees of the Department and Metro.

(B) In addition thereto, if the auction is of jewelry:

(1) The licensee shall keep a copy of the inventory filed with the Department and before the commencement of the sale on any day shall indicate thereon in an appropriate manner the items sold, if any, on the previous day, and the date thereof;

(2) The licensee shall also keep a daily record of the inventory number of each item sold, the date of the sale, and the name of the purchaser thereof;

(3) If any items listed on the inventory are sold or disposed of otherwise than by sale at auction, such fact, with full particulars thereof, shall be entered on the record provided for in Paragraph (2) of this Subsection; and

(4) With ten days after the termination of the auction, the copy of the inventory and the separate record of disposition of goods, together with a list of the items set out on the inventory and not shown on the report to have been sold or otherwise disposed of, shall be delivered to the Department.
(Ord. 5998 § 53, 2008: Ord. 3563 §§ 2, 14, 1991)

6.14.130 Jewelry tag or label.

(A) Each item of jewelry listed on the inventory shall have securely attached thereto a tag or label upon which shall be plainly written or printed in English:

(1) A number corresponding with the number of the item on the inventory; and

(2) A true and correct statement of the kind and quality of the metal or other substance of which the item is made or composed and the weight and percentage or karat of purity thereof.

(B) In case the item is:

(1) Plated or overlaid, the tag or label shall contain a true and correct statement of the kind of plate or overlay and the percentage of purity thereof and the kind of metal or material covered;

(2) In whole or in part a precious or semiprecious stone, the statement shall contain the true name, weight, quality and fineness of such stone, and imitations shall be described as such; or

(3) A watch, the statement shall also contain the true name of the manufacturer thereof, and if any secondhand or old part or movement, or substitute part or movement, of any watch is offered in a new case, such fact shall be set forth in the statement.

(C) The tag or label shall remain securely attached to every item and, without any erasure, defacement or obliteration of the number and statement required to appear thereon, shall be delivered to the purchaser as a true and correct description and representation of the item sold, and shall be deemed prima facie evidence of intent to defraud in case such written or printed statement is not a true and correct description and representation of the item sold. (Ord. 3563 §§ 2, 15, 1991)

6.14.140 Conduct of auctions—General requirements.

(A) All auctions shall be conducted as follows:

(1) Each day before the commencement of the auction, the auction caller shall announce the terms of the sale and the auction caller shall announce each bid as it is given;

(2) No property shall, during the progress of an auction, be sold at private sale at the place for which a permit has been granted;

(3) No licensee, his auction caller, agents, servants, employees, or the owner of the property, or other person acting on his behalf, shall:

(a) Make any false or misleading statement concerning the ownership, kind, character, quality, condition, make, size, price, or other fact pertaining to any item sold or offered for sale;

(b) Act as a by-bidder or what is commonly known as a "capper" or "booster," or make or accept any false or misleading bid, or falsely pretend to buy or sell any item, or conspire with any person to make a false or fictitious bid; or

(c) Bid or purchase at the auction; provided, however, that the auction caller may make a bid which is for the benefit of the owner if notice of such is posted plainly for all attending the auction to see and the auction caller makes such an announcement in a manner that all can hear at the beginning of the auction;

(4) No free drawing shall be conducted, nor gifts given, nor any form of entertainment provided to encourage attendance at the auction, or for any other purpose; and

(5) Upon request of any person who has bid upon an item offered for sale, the action caller shall allow the bidder a reasonable opportunity to examine the item, and the bidder may thereafter withdraw his bid at any time before the auction caller declares the item sold.

(B) The licensee shall during regular business hours of the day allow any police officer or the Director to examine any item held for sale, offered for sale, or sold by auction at any time before the item is delivered to the purchaser.

(C) The provisions of Paragraph (4) of Subsection (A) do not apply to automobile auctions where members of the general public are not permitted to be in attendance.
(Ord. No. 6213, § 19, 9-5-12; Ord. 5386 § 3, 2001: Ord. 3692 § 1, 1993: Ord. 3563 §§ 2, 16, 1991)

6.14.150 Conduct of auctions—Jewelry sales.

In addition to the general requirements prescribed for the conduct of auctions, all auctions for the sale of jewelry, as herein defined, shall be conducted as follows:

(A) Before accepting any bids upon any item of jewelry, the auction caller shall read, in such manner as to be readily heard and understood at any place in the room where the auction is being conducted, the description of the item as it appears on the label or tag attached thereto;

(B) The auction caller shall give to each purchaser of jewelry sold at auction a written invoice containing a full description of the item as it appears on the inventory. Duplicate copies of all invoices shall be kept by the licensee, available for inspection by police officers and the Director, for six months after termination of each auction;

(C) No jewelry other than items listed on the inventory shall be sold at the auction authorized by the permit issued therefor; and

(D) No item shall be sold or offered for sale which does not have attached thereto or thereon the tag or label required herein.
(Ord. No. 6213, § 20, 9-5-12; Ord. 3563 §§ 2, 17, 1991)

6.14.160 Exemptions from Chapter provisions.

The provisions of this Chapter do not apply to auctions of property:

(A) Owned by, or in the lawful possession, custody or control of banks, trust companies, trustees in bankruptcy, executors and administrators, selling or disposing of such property under the laws of the United States or the State;

(B) Sold at judicial sales;

(C) Belonging to and disposed of by the United States, the State, or any of its political subdivisions;

(D) Held by common carriers or public warehousemen as unclaimed or undelivered and who are selling or disposing of the same for freight or storage charges;

(E) Being sold solely for charitable or benevolent purposes or for any church, fair, festival or bazaar; or

(F) Held by licensed pawnbrokers, selling or disposing of the same as unredeemed pledges in the manner provided by law; provided, that not less than ten days prior to the commencement of the auction, the pawnbroker shall notify the Director in writing of his intention to sell or dispose of such property at auction stating the time, place and estimated duration thereof and; provided further, that the pawn receipt number of each item sold or offered for sale shall be affixed to such item and shall be announced to the auctioneer at the time the item is offered for sale at auction.

(Ord. 3563 §§ 2, 18, 1991)

CHAPTER 6.16 BATHHOUSES

6.16.010 Purpose.

The Board finds that the business of conducting bathhouses seriously affects the economic, social and moral well-being of the City and its residents and that such businesses must be regulated strictly for the welfare of the public and that such businesses must therefore comply with Chapter 6.06.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-1)

6.16.020 Definitions.

Unless the context otherwise requires, the following words shall have the meaning ascribed to them:

(A) "Bath" means a washing or soaking of all or part of the human body and includes the techniques and practices commonly referred to as Russian, Turkish, Swedish, hot air,

vapor, electric cabinet, steam, mineral, sweat, salt, Japanese, sauna, fomentation or electrical baths of any kind or type whatever, as well as ordinary tub baths or showers.

(B) "Bathhouse attendant" means any person who in the course of any employment administers or assists in administering to another human being a bath as defined in Subsection (A) of this Section.

(C) "Public bathhouse" means any establishment having a source of income derived from the giving of a bath which has a fixed place of business where any person, firm, association or corporation engages in or carries on any of the activities as defined in subsection (A) of this Section. This definition does not purport to include motels, hotels, health clubs, gymnasiums or like establishments where bathing facilities are incidentally provided along with the facilities which serve the normal, central purpose of such establishment.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-2)

6.16.030 License—Required.

No person shall engage in the business of a public bathhouse without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-3)

6.16.040 Engaging in business without permit—Prohibited.

It is unlawful for any person to act as a bathhouse attendant without first obtaining and carrying in his or her possession a valid unexpired permit as provided in this chapter.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-4)

6.16.050 Exemptions.

This Chapter does not apply to the following individuals while engaged in the performance of their duties in their respective professions:

(A) Physicians, surgeons, chiropractors, osteopaths, or physical therapists, who are duly licensed to practice their respective professions in the State;

(B) Nurses who are registered under the laws of this State;

(C) Barbers and beauticians who are duly licensed under the laws of this State, except that this exemption shall apply solely to the bathing of the neck, face, scalp and hair of the customer or client for cosmetic or beautifying purposes;

(D) Persons caring for the sick or elderly in a licensed hospital or convalescent center.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-5)

6.16.060 Permit—Application—Contents.

Any person who is required to have a permit must apply for the permit from the Director and pay an investigation fee of one hundred seventy-five dollars. The application must be made upon forms provided by the Department and shall set forth the information required which includes:

(A) The applicant's personal description, history, education, experience and background;

(B) The applicant's criminal history and civil and administrative litigation history;

(C) The applicant's relationship to the licensee;

(D) Written evidence from a licensed physician that the physician has examined the applicant and that the applicant is free from any communicable disease;

(E) A recent three inch by five inch photograph showing the applicant's head and shoulders;

(F) Such other information as the Director may require that reasonably relates to the applicant's fitness for a permit or the nature of the service to be provided.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-7)

6.16.070 Permit—Application—Reasons for denial.

The Director shall refer the application for a permit to Metro for an investigation. Upon completion of the investigation the Director shall approve, deny or take such other action with respect to such application as he considers appropriate. The Director may deny, revoke or suspend a permit for good cause which includes but is not limited to:

(A) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required;

(B) The applicant or permittee fails to satisfy any qualification or requirement imposed by this Code, or other local, State or Federal law or regulation pertaining to such activities;

(C) Disciplinary action has been brought against the licensee or a principal of the licensee;

(D) The applicant or permittee fails to comply with any conditions of the license or permit;

(E) The applicant or permittee is or has engaged in a business, trade or profession without a valid license, permit, approval for suitability or work card when he knew that one was required or under such circumstances that he reasonably should have known one was required;

(F) The applicant or permittee has been subject, in any jurisdiction to disciplinary action of any kind against a license, permit, approval for suitability or work card to the extent that such disciplinary action reflects on the qualification, acceptability or fitness to hold a permit;

(G) The applicant or permittee has committed acts which would constitute a crime involving moral turpitude, prostitution or other sex crimes, or involving any Federal, State or local law or regulation relating to the same or a similar business;

(H) When substantial information exists which tends to show that the applicant or permittee is dishonest or corrupt;

(I) The applicant or permittee has engaged in deceptive practices upon the public;

(J) The applicant or permittee suffers from a legal disability under the laws of the State.
(Ord. 5998 § 54, 2008: Ord. 2285 § 2 (part), 1982: prior code § 5-42-7)

6.16.080 Permit—Identification of permittee and licensee—Date of issuance.

The permit shall identify the permittee and the licensee and set forth the date of issuance.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-8)

6.16.090 Permit—Exhibition—Health requirement.

(A) Each person required to have a permit must exhibit his permit upon the request of any person.

(B) Each permittee prior to renewal of his permit, by the payment of the semiannual permit fee, shall furnish written evidence from a licensed physician that the physician has recently examined the permittee and that the permittee is free from any communicable diseases.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-9)

6.16.100 Permit—Transfer—Loss and reissuance.

(A) Each permit issued shall be for one bathhouse only. It is unlawful for a bathhouse attendant to undertake employment with any bathhouse other than the one identified on his or her permit.

(B) Upon application and payment of a transfer fee in the amount of fifty dollars, a bathhouse attendant's permit may be transferred to a new bathhouse employer.

(C) Upon termination of employment as bathhouse attendant for a licensed bathhouse employer, such permittee shall surrender his permit to the Department within five days of such termination of employment. It is unlawful for any bathhouse attendant to fail to surrender his permit within the time prescribed.

(D) In the event a bathhouse attendant shall lose his permit it shall be the duty of the bathhouse attendant to report the loss to the Director within five days after knowledge of the loss occurs. A fee of twenty-five dollars shall be charged by the Department to issue a new permit.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-10)

6.16.110 Attendant permit—Required.

It is unlawful for any bath- house to employ a bathhouse attendant who does not have in his possession a valid unexpired permit as required by this Chapter.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-11)

6.16.120 Attendant permit—Application—Termination.

Every bathhouse shall refer all prospective bathhouse attendants to the Department for application of a permit. Upon termination of employment of any bathhouse attendant the bathhouse shall notify the Department in writing of such termination within five days thereof.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-12)

6.16.130 Employee records.

(A) Every bathhouse licensed hereunder shall maintain the following records of employment of their employee bathhouse attendants:

(1) Date employment commenced; and

(2) Date employment terminated.

(B) The foregoing records shall be available to the City upon written request therefor.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-13)

6.16.140 Minimum age of employees.

No bathhouse shall employ a person as bathhouse attendant who is under the age of eighteen.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-14)

6.16.150 Nameplate for attendants.

The licensee of a bathhouse shall provide such bathhouse attendants granted a permit with an identification nameplate which shall contain a photograph of the bathhouse attendant and the full name and permit number assigned to the bathhouse attendant which must be worn on the front of the outermost garment at all times during the hours of operation of any establishment granted a license pursuant to this Chapter.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-15)

6.16.160 Bathing or touching opposite sex.

(A) It is unlawful for any permittee or any employee of a bathhouse to touch or bathe the genitals of a male or female client or customer or to touch or bathe the female breast(s) or areolas.

(B) It is unlawful for any bathhouse attendant to administer or assist in administering to a person of the opposite sex a bath as defined herein.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-16)

6.16.170 Facilities requirements conformance.

No license to conduct a bathhouse shall be issued unless an inspection by the City reveals that the establishment complies with each of the following minimum requirements:

Construction of rooms used for toilets, tubs, steam baths, and showers shall be made waterproof with approved waterproofed materials and shall be installed in accordance with the City's Uniform Building Code. Plumbing fixtures shall be installed in accordance with the City's Plumbing Code.

(A) Steamrooms and shower compartments shall have waterproofed floors, walls and ceilings approved by the City;

(B) Floors of wet and dry heat rooms shall be adequately pitched to one or more floor drains properly connected to the sewer. (Exception: Dry heat rooms with wooden floors need not be provided with pitched floors and floor drains);

(C) A source of hot water must be available within the immediate vicinity of dry and wet heat rooms to facilitate cleaning.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-17 (A))

6.16.180 Toilet facilities.

Toilet facilities shall be provided in convenient locations; when five or more employees and patrons of different sexes are on the premises at the same time, separate toilet facilities shall be provided. A single toilet per sex shall be provided for each twenty or more employees or patrons of that sex on the premises at any one time. Urinals may be substituted for toilets after one toilet has been provided. All toilet rooms shall be equipped with self-closing doors opening in the direction of ingress to the toilet rooms. Toilets shall be designated as to the sex accommodated therein.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-17 (B))

6.16.190 Lavatories and washbasins.

Lavatories or washbasins provided with both hot and cold running water shall be installed in either the toilet room or vestibule. Lavatories or washbasins shall be provided with soap in a dispenser and with sanitary towels.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-17 (C))

6.16.200 Electrical equipment.

All electrical equipment shall be installed in accordance with the requirements of the City's Uniform Electrical Code.

(Ord. 2285 § 2 (part), 1982: prior code § 5-42-17 (D))

6.16.210 Housekeeping—Generally.

Every portion of a bathhouse, including appliances, apparatus and personnel, shall be kept clean and operated in a sanitary condition.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-18 (A))

6.16.220 Housekeeping—Sheets and towels.

All bathhouses shall be provided with clean, laundered sheets and towels in sufficient quantity and shall be laundered after each use thereof and stored in an approved, sanitary manner. No towels or sheets shall be laundered or dried in any bathhouse, unless such establishment is provided with approved laundry facilities for such laundry and drying. Approved receptacles shall be provided for the storage of soiled linens and paper towels.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-18 (C))

6.16.230 Housekeeping—Rooms and tubs.

Wet and dry heat rooms, shower compartments and toilet rooms shall be thoroughly cleaned each day the business is in operation. Bathtubs shall be thoroughly cleaned after each use.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-18 (D))

6.16.240 Garments and dressing rooms.

All employees shall wear clean outer garments whose use is restricted to the bathhouse. Such garments shall be opaque and shall cover the entire trunk or torso of the employee. Provision of a separate dressing room for each sex must be available on the premises with individual lockers for each employee. Doors to such dressing rooms shall open inward and shall be self-closing.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-18 (B))

6.16.250 False advertising.

No bathhouse granted a license under the provisions of this Chapter shall place, publish or distribute or cause to be placed, published or distributed any advertisement, picture, or statement which is known or through the exercise of reasonable care should be known to be false, deceptive or misleading in order to induce any person to purchase or utilize any professional bathhouse services.
(Ord. 2285 § 2 (part), 1982: prior code § 542-18 (E))

6.16.260 License fees.

(A) Each person required to be licensed as a bathhouse must pay to the Department in advance a semiannual license fee of five hundred dollars.

(B) Each bathhouse attendant must pay in advance a semiannual permit fee of one hundred fifty dollars. Failure to pay such fee within fifteen days of its due date shall cause the permit to automatically expire.
(Ord. 2285 § 2 (part), 1982: prior code § 5-42-19)

CHAPTER 6.18 ELECTRONIC SECURITY SERVICES

6.18.010 Findings.

The City Council hereby finds that the business of providing electronic security services involves the acquisition and use of information about the security of dwellings and other structures, and that such businesses must be strictly regulated for the safety and welfare of the public. Such businesses must therefore comply with Chapter 6.06.
(Ord. No. 6627, § 1, 8-1-18; Ord. 2297 § 2 (part), 1982: prior code § 5-31-1)

6.18.015 Definitions.

For purposes of this Chapter and except where the context otherwise requires, the following terms shall have the meanings indicated:

"Alarm" means the activation of an electronic security system that is designed to communicate by electronic or audible means (or a combination thereof) that some event related to the security of premises has occurred or is perceived to have occurred.

"Alarm monitoring services" means services that receive or respond to signals or other communications from devices that are part of an electronic security system.

"Automated secure alarm protocol" means a nationally-established computer-aided dispatch system and service for the processing of information from alarm monitoring stations needing emergency dispatch.

"Electronic security services" means services that supply, sell, install, maintain, service, repair or monitor electronic security systems for one or more end users. The term includes the provision of any combination of the services described in the preceding sentence, as well as the provision of any related service that allows a provider access to an end user's individual system information.

"Electronic security system" means a combination of equipment, devices, software, and communication systems that are designed or intended to control access to buildings or premises, or to signal the presence of unauthorized entry or other unexpected or emergency conditions regarding the security of premises that warrant urgent attention. The term includes without limitation video surveillance, security cameras, video recording equipment, video management equipment, biometric authentication systems, electronic access control, card access systems, or digital or electromechanical locks whose installation and use pertain to the intent and purpose set forth in the preceding sentence.

"End user," with regard to an electronic security system, means the person or persons for whose benefit the system has been installed and who occupies or otherwise uses the building or location that is protected by the system.

"Individual system information" with respect to a particular electronic security system, means information pertaining to the location, extent or design of system components, and includes related contact lists and password information for the system's end user or users.

"Public safety answering point" has the meaning ascribed to in NRS 707.500.

"Security guard" means a person who is properly licensed or registered pursuant to the provisions of NRS Chapter 648.
(Ord. No. 6627, § 2, 8-1-18)

6.18.020 License—Required.

No person shall engage in the business of providing electronic security services without first obtaining and thereafter maintaining a valid unexpired license therefor pursuant to this Code.
(Ord. No. 6627, § 3, 8-1-18; Ord. 2297 § 2 (part), 1982: prior code § 5-31-2)

6.18.030 License—Fee.

Each person required to be licensed under this Chapter must pay in advance an annual license fee of three hundred dollars.
(Ord. No. 6627, § 4, 8-1-18; Ord. No. 6213, § 21, 9-5-12; Ord. 3843 § 75, 1994: Ord. 2297 § 2 (part), 1982: prior code § 5-31-7)

6.18.040 Applicability.

Nothing in this Chapter shall be deemed to apply to any transaction by which a merchant sells one or more components of an electronic security system to a customer if the merchant does not perform installation, monitoring or on-site services pertaining to the use of the system.
(Ord. No. 6627, § 5, 8-1-18)

6.18.050 Work card required.

No person, except one approved for suitability as required by Chapter 6.06, shall be employed by a licensee to install, maintain or repair an electronic security system on the premises of a customer or client unless the person performing the service has a valid unexpired work card obtained pursuant to Chapter 6.86.
(Ord. No. 6627, § 6, 8-1-18; Ord. 5386 § 4, 2001: Ord. 2297 § 2 (part), 1982: prior code § 5-31-5)

6.18.060 Terminus of alarms—Notifying police of valid alarms.

All electronic security systems installed by a licensee shall terminate in an office of the installing licensee or of another person licensed under this Chapter to perform alarm monitoring services. Each licensee engaged in providing monitoring services that has reason to believe a valid alarm has been initiated shall immediately attempt to notify the end user associated with the alarm or the end user's designee in an attempt to verify the validity of the alarm signal. If the licensee is unable to verify the validity of the signal, the licensee shall dispatch an employee or a security guard to the location of the alarm. If the end user,

the end user's designee, an employee of a licensee, or a security guard verifies that the signal is valid or is unable to determine the validity of the signal, the licensee or a security guard shall be responsible for notifying Metro of the alarm.
(Ord. No. 6627, § 7, 8-1-18; Ord. 5998 § 55, 2008: Ord. 2297 § 2 (part), 1982: prior code § 5-31-3 (part))

6.18.070 Posting service information.

Every licensee maintaining an electronic security system shall post a notice containing the name, address and telephone number of the company or person to be notified to render repairs or service during any hour of the day or night that the electronic security system is activated with an audible signal. Such notice shall be posted so as to be visible and legible from just outside the main entrance to the building.
(Ord. No. 6627, § 8, 8-1-18; Ord. 2297 § 2 (part), 1982: prior code § 5-31-3 (A))

6.18.080 Alarm signal.

No electronic security system shall include as part of the installation:

(A) An audible signal that with a sound similar to that of any emergency vehicle; or

(B) A communication signal that sends a recorded message of a potential alarm to a public safety answering point, unless it is sent in connection with the use of an automated secure alarm protocol that has been approved by City ordinance.

(Ord. No. 6627, § 9, 8-1-18; Ord. 2297 § 2 (part), 1982: prior code § 5-31-3 (B))

6.18.090 Reserved.

Editor's note—Ord. No. 6627, § 12, adopted August 1, 2018, repealed § 6.18.090, which pertained to dispatch of employee for ringing alarm and derived from prior code § 5-31-3 (C); Ord. No. 2297, 1982 and Ord. No. 5998, 2008.

6.18.100 Alarm information required by police.

When notifying Metro of an alarm, the licensee shall provide:

(A) The licensee's business name;

(B) The exact address of the structure from which the alarm originated, the name and type of the establishment or occupancy at that location, and, if the structure has more than one floor or occupancy, the precise location within the building where the alarm was activated; and

(C) The type of alarm trigger (burglary, panic, etc.) and whether the alarm signal is silent or audible.

(Ord. No. 6627, § 10, 8-1-18; Ord. 5998 § 57, 2008: Ord. 2297 § 2 (part), 1982: prior code § 5-31-3 (D))

6.18.110 Maintenance and training responsibility—False alarms.

Each licensee that installs or maintains an electronic security system is responsible for:

(A) Installing or maintaining the system in a trouble-free condition; and

(B) Instructing end users in the use and operation of the system, including factors that can cause a false alarm.

(Ord. No. 6627, § 11, 8-1-18; Ord. 2297 § 2 (part), 1982: prior code § 5-31-3 (E))

6.18.120 Reserved.

Editor's note—Ord. No. 6627, § 12, adopted August 1, 2018, repealed § 6.18.120, which pertained to use of answering service and derived from prior code § 5-31-3 (F) and Ord. No. 2297, 1982.

6.18.130 Reserved.

Editor's note—Ord. No. 6627, § 12, adopted August 1, 2018, repealed § 6.18.130, which pertained to automatic dialing devices and derived from prior code § 5-31-4 and Ord. No. 2297, 1982.

CHAPTER 6.19 CARNIVALS AND CIRCUSES

6.19.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms which are defined in this Section have the meanings which are ascribed to them herein:

(A) "Carnival" means an amusement business consisting of sideshows, vaudeville, games, exhibitions, or riding devices such as merry-go-round, ferris wheel, auto speedway, loop plane, chairoplane or other rides.

(B) "Circus" means a show consisting of equestrian or animal acts and acrobatic or trapeze feats. "Circus" includes a menagerie or a tent show.

(C) "Concession" means any ride, show or exhibition open to the public and operated for profit, or any game in which the patron pays a fee for participating and may receive a prize upon a later happening.

(Ord. No. 6183, § 2, 3-7-12; Ord. 3343 § 9, 1988: Ord. 3093 § 2 (part), 1984)

6.19.020 License required.

No person shall conduct or operate any circus or carnival without first obtaining and thereafter maintaining a valid unexpired license as a producer or promoter pursuant to LVMC Chapter 6.78.

(Ord. No. 6183, § 3, 3-7-12; Ord. 3093 § 2 (part), 1984)

6.19.030 Work card required.

It is unlawful for any person to operate or perform in the operation of a concession at a carnival without having in his possession a valid work card obtained pursuant to Chapter 6.86.
(Ord. 5386 § 5. 2001: Ord. 3093 § 2 (part), 1984)

6.19.040 Recordkeeping requirements.

It is unlawful for an owner, operator or business to fail to keep records and to make them available for inspection by Metro or the Department at the site of the carnival or circus operation during all hours it is open for business which contain:

(A) The name and address of each concession owner and operator;

(B) The name and address of each person working at a concession;

(C) The wages, salary, or commission paid and hours worked by each such person;

(D) The gross receipts of each concession;

(E) The amount of stock or merchandise dispensed to the players of each game concession; and

(F) The name, address, age and extent of injuries of any person injured on the premises where the carnival or circus is conducted.

(Ord. 5998 § 58, 2008: Ord. 3093 § 2 (part), 1984)

6.19.050 Games—Posting of rules and prices required.

It is unlawful to operate any game at a circus or carnival unless all rules pertaining to the playing of the game and the price to participate are posted conspicuously at the location of each game.
(Ord. 3093 § 2 (part), 1984)

6.19.060 Reserved.

Editor's note—Ord. No. 6183, § 5, adopted March 7, 2012, repealed § 6.19.060, which pertained to games—razzle-dazzle unlawful and derived from Ord. No. 3093, 1984.

6.19.070 Reserved.

Editor's note—Ord. No. 6183, § 5, adopted March 7, 2012, repealed § 6.19.070, which pertained to games—foul lines unlawful and derived from Ord. No. 3093, 1984.

6.19.080 Display of prizes.

It is unlawful to display prizes at a carnival or circus game which cannot be won by a player or which are not clearly and conspicuously marked as to the requirements for winning such prizes.
(Ord. 3093 § 2 (part), 1984)

6.19.090 Games—Offering money as prize or incentive to play unlawful.

It is unlawful to offer money as a prize or as an incentive to play a game at a circus or carnival.
(Ord. 3093 § 2 (part), 1984)

6.19.100 Games—Unlawful when player has no chance of winning.

It is unlawful to operate or offer to the public at a circus or carnival a game in which it is impossible for the player to win.
(Ord. 3093 § 2 (part), 1984)

6.19.110 Games when outcome can be altered in favor of owner or operator.

It is unlawful to operate or offer to the public at a circus or carnival a game that is designed or constructed in a way that it might be easily altered or adjusted during the process of the game so as to change the outcome in a manner that is favorable to the owner or operator of the game.
(Ord. 3093 § 2 (part), 1984)

6.19.120 Games to be open to inspections.

All game concessions shall be open to inspections by the Department or Metro during the hours the carnival or circus is open to the public.
(Ord. No. 6183, § 4, 3-7-12; Ord. 3093 § 2 (part), 1984)

6.19.130 Reserved.

Editor's note—Ord. No. 6183, § 5, adopted March 7, 2012, repealed § 6.19.130, which pertained to insurance requirements and derived from Ord. 3093, 1984 and Ord. No. 5998, 2008.

6.19.140 Reserved.

Editor's note—Ord. No. 6183, § 5, adopted March 7, 2012, repealed § 6.19.130, which pertained to fee and derived from Ord. 3093, 1984 and Ord. No. 5998, 2008.

CHAPTER 6.20 CABLE TELEVISION SERVICES AND OTHER VIDEO SERVICE PROVIDERS

6.20.010 Definitions—General.

For the purposes of this Chapter, the following definitions shall apply, unless the context clearly requires otherwise:

"Cable operator" has the same meaning as that term is defined in NRS 711.024, as amended.

"Cable service" has the same meaning as that term is defined in NRS 711.025, as amended.

"Cable system" has the same meaning as that term is defined in NRS 711.026, as amended.

"Certificate of authority" and "certificate" have the same meanings as those terms are defined in NRS 711.027, as amended.

"City" means the City of Las Vegas, a municipal corporation of the State of Nevada.

"City Council" means the legislative body of the City.

"City Manager" means the City Manager appointed by the City Council, or his or her designee.

"Code" means the official code of all of the City's ordinances of a general and permanent character, as may be adopted and amended by the City Council.

"Community antenna television company" has the same meaning as that term is defined in NRS 711.030, as amended.

"Community antenna television system" has the same meaning as that term is defined in NRS 711.040, as amended.

"Facility" or "facilities" means all antennae, poles, wires, cables, conduits, amplifiers, instruments, appliances, fixtures and other personal property used by any authorized user of the rights-of-way for the provision of authorized services within the City.

"Franchise fee" means the business license fee imposed by the City on a video service provider for the privilege of providing video service.

"Gross revenue" has the same meaning as that term is defined in NRS 711.066, as amended.

"Public Works Director" means the Director of the City's Public Works Department, or his or her designee.

"Rights-of-way" means all present and future streets, avenues, highways, alleys, bridges and public ways (excluding railroad rights-of-way) of the City within City limits.

"Service area" has the same meaning as that term is defined in NRS 711.105, as amended.

"Subscriber" has the same meaning as that term is defined in NRS 711.115, as amended.

"Telecommunication" has the same meaning as that term is defined in NRS 711.125, as amended.

"Telecommunication provider" has the same meaning as that term is defined in NRS 711.131, as amended.

"Telecommunication service" has the same meaning as that term is defined in NRS 711.135, as amended.

"Video service" has the same meaning as that term is defined in NRS 711.141, as amended.

"Video service network" has the same meaning as that term is defined in NRS 711.145, as amended.

"Video service provider" and "VSP" have the same meaning as the term "video service provider" is defined in NRS 711.151, as amended.
(Ord. 5989 § 3, 2008)

6.20.020 Definitions—Terms not defined in this chapter.

Unless the context clearly requires otherwise, words that are not defined in this chapter shall be given the meanings set forth in NRS Chapter 711, as amended, or in Title 47 of the United States Code, as amended, and if not defined therein, their common and ordinary meanings.
(Ord. 5989 § 4, 2008)

6.20.030 Compliance.

A VSP shall at all times comply with all applicable Federal, State and local laws, rules and regulations concerning the provision of video service, including all applicable Federal Communications Commission, Nevada Public Utilities Commission and Nevada Secretary of State rules, regulations and orders.
(Ord. 5989 § 5, 2008)

6.20.040 Certificate of authority.

It is unlawful for any VSP to construct or operate a video service network within the City or to provide video service to subscribers within the City unless the VSP is a holder of a certificate of authority issued by the Nevada Secretary of State that includes service areas within the City.
(Ord. 5989 § 6, 2008)

6.20.050 Franchise agreement—Exemption.

A VSP that provides telecommunication service within the City, pursuant to the VSP's certificate of authority and over the VSP's video service network, shall not be required to obtain a separate franchise agreement from the City for such telecommunication service. (Ord. 5989 § 7, 2008)

6.20.060 Reports and records.

(A) If a VSP that was not an incumbent cable operator prior to July 1, 2007 intends to construct facilities within the City pursuant to a certificate of authority, the VSP shall, until it has constructed all the facilities intended for the City, submit to the City a semiannual report which describes the number of service locations within the City that are capable of receiving video service from the VSP. The VSP shall submit such report no later than the tenth business day in January and July of each year. The information contained in such report shall not be deemed to be a public record and shall not be disclosed to any person other than an officer or employee of the City unless the VSP consents to the disclosure or unless the disclosure is otherwise required by NRS 711.600, as amended.

(B) All other information and reports submitted to the City pursuant to this Chapter that are not mentioned in Subsection (A) of this Section shall, if required by Nevada's Public Records Law, NRS Chapter 239, as amended, be subject to public inspection and copying. (Ord. 5989 § 8, 2008)

6.20.070 Business license—Payment of fees.

(A) At all times during which a VSP is authorized to provide video service within the City pursuant to a certificate of authority, the VSP shall maintain a valid unexpired business license specific to its video service business.

(B) At all times during which a VSP provides telecommunication service within the City, the VSP shall maintain a valid unexpired business license specific to its telecommunication business as provided in Chapter 6.67 of this Code. The VSP shall pay all business license fees due from its telecommunication service business separately from the payment of the business license fees due from its video service business.

(C) In addition to the business licenses required by Subsections (A) and (B) of this Section, a VSP shall at all times maintain all other business licenses specific to any of the VSP's business activities other than those of providing video service and telecommunication service, as such other business activities are specified in this Code; provided that nothing in this Section shall be construed to require a separate business license for the provision of "information service," as that term is defined in 47 U.S.C. 153(20), as amended. The VSP shall pay all license fees due from such other businesses separately from the payment of fees due from its video service and telecommunication service businesses.

(D) In addition to payment of the fees specified in Subsections (A) through (C) of this Section, a VSP shall pay all lawful property taxes, ad valorem taxes and local improvement district assessments, and all exactions, fees and charges that are generally applicable during the VSP's real property development or use as required by this Code.

(E) Acceptance by the City of any payment due under this Section shall not be deemed to be a waiver by the City of any breach of the VSP's obligations under its certificate of authority or applicable law, and such acceptance shall not preclude the City from later establishing that a larger amount was actually due or from collecting such balance.
(Ord. 5989 § 9, 2008)

6.20.080 Franchise fees.

(A) A VSP shall pay, on a quarterly basis, a franchise fee of five percent of the VSP's gross revenue from its video service subscribers within the City. Each payment shall be for the preceding calendar quarter, shall be due no later than the fifteenth day of February, May, August and November, and shall be applied to the VSP's video service business license fee.

(B) A VSP shall submit a written report with each quarterly payment of franchise fees providing in reasonable detail a summary of its revenue categories for that quarter and how the franchise fees were calculated.

(C) If a VSP fails to pay a franchise fee as required by this Section, the VSP shall pay a penalty of two percent per month (or any portion thereof) of the delinquent amount until such time as payment in full is received by the City.

(D) A VSP may pass the franchise fee through to its subscribers within the City based on the gross revenue received from each such subscriber and may designate the amount of the franchise fee as a separate line item on the subscriber's bill.
(Ord. 5989 § 10, 2008)

6.20.090 Franchise fees—Review/Audit.

(A) Not more than once every three years, the City may, upon forty-five days' written notice to a VSP, review and audit the business records of a VSP to ensure payment of all franchise fees due pursuant to the VSP's certificate of authority and this Chapter. If the results of such a review and audit identify an underpayment of franchise fees in an amount that requires corrective action, the City may perform a subsequent compliance review and audit to determine whether the VSP has corrected the underpayment of fees. The compliance review and audit must be performed not later than twelve months after the date on which the results of the initial review and audit are finalized.

(B) A VSP shall keep complete and accurate business records concerning the franchise fees due pursuant to its certificate of authority for a period of at least four years or, if such period is greater, until such time as the City has completed any pending audit through the payment of all fees determined by the City to be due or through the resolution of any disputed amounts pursuant to NRS 711.680, as amended. The City may review and audit all records concerning

the VSP's revenue that may reasonably be considered by the City to be subject to a franchise fee. The VSP shall make the requested records available to the City for purposes of conducting its review and audit within forty-five days after receiving the City's written request for such books and records.

(C) If the City determines that any amounts are due as a result of a review and audit pursuant to this Section, it shall give the VSP written notice of the amounts determined to be due and the basis for determining such amounts were due. The VSP shall pay all such amounts in full within thirty days following receipt of the City's notification, subject to the VSP's rights to contest the City's determination pursuant to NRS 711.680, as amended.

(D) The City and the VSP shall each pay its own costs and fees relating to a review and audit of the VSP pursuant to this Section; provided that if the VSP elects to have the City review and audit the requested business records at a location outside the City, the VSP shall pay the per diem allowances and travel expenses incurred by the City to perform the review and audit at that location.
(Ord. 5989 § 11, 2008)

6.20.100 Rights-of-way—Nondiscrimination.

The requirements set forth in Sections 6.20.010 through 6.20. 220 of this Chapter shall be construed and applied by the City in a competitively neutral manner that does not discriminate among VSP's or as between VSP's and any other users of the rights-of-way for the construction and operation of facilities.
(Ord. 5989 § 12, 2008)

6.20.110 Rights-of-way—Disabilities.

A VSP shall install all of its facilities in the rights-of-way in a manner consistent with the Americans with Disabilities Act ("ADA"), including any reconstruction or modification of existing facilities. Following notice by the City of an ADA violation or construction problem caused directly or indirectly by a VSP, the VSP shall, within thirty days or such other time as the Public Works Director reasonably determines to be appropriate, remedy the ADA violation or problem.
(Ord. 5989 § 13, 2008)

6.20.120 Rights-of-way—Permits—Repairs.

(A) The City may require a VSP to obtain a construction, encroachment or occupancy permit for any work in the rights-of-way, may inspect any construction, installation, maintenance or repair work performed in the rights-of-way, and may charge a VSP a fee to issue such permit or to perform such inspection. The City shall act upon any request by a VSP for a permit no later than ten business days after the date on which the request is made.

(B) If there is an emergency requiring immediate response work or repair in, on, under or over any rights-of-way, a VSP may begin such work or repair without first obtaining a permit; provided that the VSP shall notify the Public Works Director as promptly as is reasonably

possible after learning of the need for the emergency work, shall subsequently obtain any permit that otherwise would have been required for non-emergency work, shall pay all applicable fees for such permit, and shall restrict any work performed in the rights-of-way prior to obtaining a permit to emergency work and repairs.

(C) The amount of any permit or inspection fee under this Section or Section 6.20.130 of this Chapter shall not exceed the actual costs incurred by the City in administering the process of issuing such permits and performing such inspections.
(Ord. 5989 § 14, 2008)

6.20.130 Rights-of-way—Motor vehicle traffic.

Before a VSP may conduct any underground work involving excavation, new construction or relocation work in the rights-of-way which will block one or more lanes of motor vehicle traffic, the VSP shall:

(A) Notify the City and comply with any special conditions relating to location, scheduling, coordination and public safety;

(B) Apply for and obtain a permit from the Public Works Director;

(C) Submit and obtain approval of a traffic barricade plan;

(D) File maps and drawings showing the location of any construction or extension of its facilities in the rights-of-way; for conduit, the maps and drawings shall show the size, location, burial depth and configuration of the conduit, the trench backfill material and width, and the method of pavement restoration;

(E) Participate in the "Call Before You Dig" program set forth in NRS Chapter 455, as amended, with regard to giving and receiving notice of the location of facilities and excavations;

(F) Pay all permit fees; and

(G) Provide security and proof of insurance as required by this Chapter.
(Ord. 5989 § 15, 2008)

6.20.140 Rights-of-way—Construction requirements—Precautions.

(A) In using the rights-of-way for its facilities, a VSP shall comply with the following requirements:

(1) All construction work in the rights-of-way performed by or on behalf of a VSP shall be performed in a safe manner subject to the approval of the Public Works Director and in accordance with all applicable laws, rules, regulations and permitting requirements related to public safety or the use of the rights-of-way. When the public improvement designs prepared by a VSP are not covered by, or are not at least minimally compliant with, the improvement standards adopted in Title 13 of this Code, plans and specifications for construction, reconstruction, installations and repairs of public improvements must bear the seal of a Nevada registered professional engineer.

(2) The VSP shall not place any facilities on, over or within the median portion of any boulevard or parkway without the prior written consent of the Public Works Director.

(3) The VSP shall not place any of its above-ground facilities in any sidewalk area in the rights-of-way without the prior written consent of the Public Works Director.

(4) A VSP shall not attach any of its facilities to any City-owned facilities unless the VSP has entered into a written agreement with the City for the rights of attachment and use.

(5) The City may require through any permitting process that any installations, excavations and restorations affecting street or lane closures shall, as often as practicable, be performed after 6:30 p.m. and before 6:00 a.m. No such work shall be performed from 7:00 a.m. to 9:00 a.m. or from 4:00 p.m. to 6:00 p.m., except for emergency work or repairs performed in accordance with Section 14 of this Ordinance.

(6) The City may assist in the coordination and scheduling of the VSP's projects when such projects may be reasonably coordinated with the placement of any other rights-of-way user's facilities; provided that, subject to the City's permitting processes, a VSP may otherwise control the scheduling of its projects consistent with this Chapter.

(7) Whenever it is commercially reasonable to do so, the VSP shall use trenchless technology in the placement of its facilities. Except in an emergency as specified in Section 14 of this Ordinance, the VSP shall, not less than seven working days prior to the commencement of any work by the VSP that involves excavation in the rights-of-way, notify the Public Works Director and any appropriate utility coordinating committee for purposes of utility location. Minimum notice to the City shall be by telephone communication or in person prior to any work, followed by written notice as soon as practical. The VSP shall provide advance notice so as not to disrupt services of the City or any other person using the rights-of-way and to allow the City to place any inspector it may deem necessary at the site of the project.

(B) A VSP shall at all times take all reasonable precautions to minimize interruption to traffic flow, damage to property, or creation of a hazardous condition.

(C) After an excavation is made and after any excavation work is completed, a VSP shall, as soon as practicable but not later than seventy-two hours, remove all surplus material; except that if the surplus material is blocking a public street or sidewalk, the VSP shall remove such material no later than twenty-four hours after the excavation is made or the excavation work completed.

(D) A VSP shall reconstruct, replace or restore any landscaping, street or alley, or any water, sewer, sanitary sewer, storm drainage, traffic signal or street light facilities, or any other facility of the City disturbed by the VSP, within thirty days of written notice by the City, to a condition acceptable to the Public Works Director, consistent with specifications, requirements and regulations of the City in effect at the time of such restoration. Any such improvements so disturbed by the VSP shall be reconstructed, replaced or restored only under

the supervision of City personnel. All costs incurred in surplus material removal and restoration, whether done with the City's work forces and equipment or otherwise, shall be paid by the VSP, including the cost of any inspectors the City may assign to the project. (Ord. 5989 § 16, 2008)

6.20.150 Facilities location and relocation—Reservation of City Rights.

(A) All of a VSP's facilities shall be placed so that they do not interfere with the use of the rights-of-way by the City and shall only be placed after approval of the location by the Public Works Director, in accordance with any generally applicable specifications adopted by the City governing the location of facilities.

(B) Whenever the City excavates or performs any non-emergency work in the rights-of-way and such excavation or work may disturb but not require the removal or relocation of a VSP's facilities, the City shall notify the VSP seventy-two hours in advance of the excavation or work to enable the VSP to take such measures as it may deem necessary to protect its facilities from damage and inconvenience, or from injury or damage to the public or the rights-of-way. If the VSP cannot take such measures, the VSP shall be required to relocate its facilities in accordance with this Section, in which case, the VSP shall, upon request, furnish field markings to the City showing the location of all of its facilities in the area involved in such proposed excavation or work.

(C) The City reserves all rights to:

(1) Construct, install, maintain and operate any public improvement, work or facility, to do any work that the City may deem desirable on, over or under the rights-of-way, and to construct, install, maintain and operate any public improvement, work or facility;

(2) Vacate, alter or close any rights-of-way; and

(3) Require the removal or relocation of a VSP's facilities in the rights-of-way as may reasonably be required after notice to the VSP, including but not limited to City projects for the installation of landscaping, or water, sanitary sewer, storm drainage, traffic signal or street light facilities, or any road construction or reconstruction.

(D) A VSP shall remove and relocate its facilities within sixty days following written notice from the City to do so. Prior to any such relocation, the City shall provide for a temporary suitable location for the relocated facilities sufficient for the VSP to maintain service.

(E) Subject to Subsection (F) of this Section and the provisions of NRS 271.800 and 271.850, all costs directly attributable to the removal or relocation of a VSP's facilities shall be paid by the VSP.

(F) The City may require a VSP to relocate its facilities to accommodate another rights-of-way user, if the VSP's and other user's facilities can both be located in the rights-of-way without interfering with the VSP's operations, subject to the following:

(1) The other user shall pay the VSP the costs of any relocation occasioned by such user.

(2) The VSP shall remove and relocate its facilities upon receipt of payment of the VSP's estimated costs from the other user.

(3) If the VSP's estimated costs do not cover all of the VSP's final costs of the removal or relocation, the VSP shall bill the other user for the balance of the costs following completion of the work benefiting the other user, and the other user shall pay the VSP any balance owed within thirty days of receipt of the billing statement; and

(4) If the VSP's estimated costs exceed the VSP's final costs of the removal or relocation, the VSP shall refund any overpayment to the other user within thirty days after completion of the work benefiting the other user.

(G) When the City proposes to improve the rights-of-way, including but not limited to work related to streets, sidewalks, landscaping, traffic signalization, street lights, water lines, storm drainage or sanitary sewers, and such improvements include excavation and the placement of underground utilities vaults and conduit sufficient for a VSP's facilities by and at the expense of someone other than the VSP, then upon notification by the City to the VSP and such reasonable scheduling as may be required by the City, the VSP shall replace its then-existing overhead facilities within the affected rights-of-way with underground facilities within such area. The VSP shall pay all costs of such underground placement. The conversion from overhead to underground shall be conditioned upon the City requiring the undergrounding in the area in which both the existing and new facilities are and will be located and on the City requiring all existing overhead communication and utility facilities in such area to be removed.

(H) Nothing in this Section shall be construed to require a VSP to place its facilities in ducts or conduits owned or leased by the City.
(Ord. 5989 § 17, 2008)

6.20.160 Facilities locations—Limitation on VSP rights.

A VSP shall not acquire any vested right or interest in any particular rights-of-way location for any of its facilities constructed, operated or maintained in any existing or proposed rights-of-way, even though such location was approved by the City; provided that whenever the City vacates any rights-of-way for the convenience or benefit of any person, the City shall preserve a VSP's rights for any legally established, existing facilities of the VSP in such vacated portion of the rights-of-way.
(Ord. 5989 § 18, 2008)

6.20.170 Facilities—Movement or removal.

(A) Whenever it becomes necessary to temporarily rearrange, remove, lower or raise any facilities of a VSP to permit the passage of any building, machinery or other object, the VSP shall perform such rearrangement, removal, lowering or raising upon the receipt of written notice from the person desiring to move such building, machinery or object. The written notice shall detail the route of movement of the building, machinery or object. All costs incurred by the VSP in making such rearrangement, removal, lowering or raising of its facilities shall be borne by the person seeking such rearrangement, removal, lowering or raising, unless the

facilities have been placed or maintained in violation of any Federal, State or local law, rule or regulation and thereby interferes with the movement of the building, machinery or object; provided that under no circumstances shall the City be responsible for the VSP's costs incurred in complying with this Section.

(B) Whenever, in case of an emergency, it becomes necessary to remove any of a VSP's facilities, the City shall not be liable to the VSP for any charge, loss, damage, restoration cost or repair resulting from the emergency removal.
(Ord. 5989 § 19, 2008)

6.20.180 Maintenance of records.

A VSP shall maintain on file maps and operational data pertaining to its operations in the rights-of-way, which the City may inspect at any time upon reasonable notice to the VSP during normal business hours. Upon request by the City, the VSP shall furnish to the Public Works Director, as soon as practical and without charge, current maps either in a hard-copy printed form or in the City's geographical information systems format or compatible data base, showing the location and dimension of any existing and proposed facilities, but not other proprietary information, used in operating the VSP's facilities in the rights-of-way.
(Ord. 5989 § 20, 2008)

6.20.190 Notification to residents.

Except in the case of emergency pursuant to Section 6.20.120 of this Chapter, a VSP that is the initiator of a project in the rights-of-way along which residential yards are located and maintained that will result in disruption of such yards or result in the installation of new exposed surface facilities shall give written notification to residents who are located adjacent to the proposed project at least two days prior to the date on which the VSP proposes to commence the proposed project. Such notice shall be by personal delivery, by posted notice on the street where the proposed project is scheduled to be built (which notice is to be large enough to be clearly read by passing motorists), by door hanger or by mail, with a description of the proposed project, the name of the VSP, and a telephone number at which the VSP can be reached twenty-four hours per day.
(Ord. 5989 § 21, 2008)

6.20.200 Security required.

(A) As security for performance of its rights-of-way obligations under this Chapter, a VSP shall, at all times during which it holds a certificate of authority permitting the VSP to provide video service within the City, provide security in the form of a letter of credit, performance bond or cash deposit, delivered to the Director of the Department of Finance, in the amount of one hundred thousand dollars.

(B) If a VSP has already posted a letter of credit, performance bond, or cash deposit for one hundred thousand dollars or more in connection with its use of the City's right-of-way for other purposes, the provisions of Subsection (A) of this Section shall not apply to the VSP

provided that such existing security is in full force and effect during all times of VSP's use of the right-of-way for video service purposes and the terms of such security are made applicable to the VSP's use of the right-of-way for video service purposes in accordance with the terms of Subsections (C), (D) and (E) of this Section.

(C) Any bond provided pursuant to this Section shall:

(1) In addition to all other costs, provide for payment of reasonable attorney's fees;

(2) Be issued by a surety company authorized to do business in the State of Nevada and listed in Department Circular 570 of the U.S. Department of the Treasury Fiscal Service (Companies Holding Certificates of Authority as Acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies, Current Revision);

(3) Require the attorney-in-fact who executes the bond on behalf of the surety to affix thereto a certified and current copy of his or her power of attorney; and

(4) Guarantee the performance of all of the VSP's rights-of-way obligations under its certificate of authority and all applicable laws.

(D) The following procedures shall apply to drawing on the security required in this Section:

(1) If a VSP fails to make timely payment of any amount due to the City, or fails to compensate the City within thirty days of written notification that such amount is due for any damages, costs or expenses the City suffers or incurs by reason of any act or omission of the VSP, or fails after thirty days' written notice to comply with any provision of its certificate or this Code that can be remedied by drawing on the security, the City may withdraw the amount thereof, with applicable interest and penalties, from the security.

(2) Within three days of a withdrawal from the security, the City shall personally deliver or send by certified mail written notification to the VSP of the amount, date and purpose of such withdrawal.

(3) If at the time of a withdrawal from the security by the City, the amounts available are insufficient to provide the total payment towards which the withdrawal is directed, the balance of such payment shall continue as the obligation of the VSP to the City until it is paid.

(4) No later than thirty days after the delivery or mailing of notification to the VSP of a withdrawal from the security, the VSP shall restore the security to the total amount specified in Subsection (A) of this Section.

(E) Recovery by the City of any amount from the security required by this Section does not limit a VSP's obligation to provide insurance or to indemnify the City as otherwise required by this Chapter.

(Ord. No. 6816, § 13, 8-17-22; Ord. 5989 § 22, 2008)

6.20.210 Insurance required.

(A) A VSP shall at all times during which it holds a certificate of authority permitting it to provide video service within the City maintain in full force and effect, at its own cost, a general comprehensive liability insurance policy for the protection of the City, which shall:

(1) Be issued by an insurance company approved by the City and in a form satisfactory to the City Attorney;

(2) Name the City and its elected and appointed officers, boards, commissions, agents and employees as additional insureds;

(3) Insure against liability for loss or damage for personal injury, death and property damage occasioned by the VSP's operations pursuant to its certificate of authority, with minimum limits of one million dollars for personal injury or death of any one person and three million dollars for personal injury or death of two or more persons in any one occurrence, and five hundred thousand dollars for damage to property for any one occurrence; and

(4) Contain a provision that a written notice of cancellation of or reduction in coverage shall be delivered to the City at least thirty days in advance of the effective date thereof.

(B) Recovery of any amount by the City from the insurance required by this Section does not limit a VSP's obligation to provide security or to indemnify the City as otherwise required by this Chapter.
(Ord. 5989 § 23, 2008)

6.20.220 Indemnification.

(A) A VSP shall defend, indemnify and hold the City harmless from and against all claims for damages to persons or property in any way related, directly or indirectly, to the construction, maintenance and operation of its facilities or its use of the rights-of-way, when or to the extent injury or damage is caused or alleged to be caused, wholly or in part, by any act, omission, negligence or misconduct of the VSP or any of the VSP's contractors, subcontractors, officers, agents or employees, or by any person for whose act, omission, negligence or misconduct the VSP is by law responsible. This Section is intended to require the VSP to indemnify the City to the maximum extent allowed by law for claims related to the VSP's use of the rights-of-way and is not intended to create liability for the benefit of any party other than the City.

(B) If any claim is made against the City that is covered by Subsection (A) of this Section, and if a court of competent jurisdiction shall adjudge by final decree that the City is liable therefor, the VSP shall indemnify and hold the City harmless from any such liability, including any court costs, expenses and reasonable attorney's fees incurred by the City in defense thereof and incurred at any stage of the proceedings.

(C) Upon commencement of any suit, proceeding at law or in equity against the City relating to any matter covered by Subsection (A) of this Section, the City shall give the VSP prompt notice of such suit or proceeding; whereupon the VSP shall provide a defense to such suit, including any appellate proceedings brought in connection therewith, and pay any settlement, costs and judgments that may be rendered against the City by reason of such suit.

(D) If the VSP fails to comply with its obligations under Subsection (C) of this Section, after reasonable notice to the VSP by the City, the City shall have the right to defend any claims against it and, in addition to being reimbursed for any settlement or judgment that may be rendered against the City, the VSP shall reimburse the City's reasonable attorney's fees and all expenses incurred by the City by reason of undertaking the defense of such suit, regardless of whether such suit is successfully defended or settled, or fully adjudicated. If the City is required to defend any such suit because of the VSP's failure to do so, the City shall have the right to enter into any settlement as the City may deem in its best interest, without the prior approval of the VSP.
(Ord. 5989 § 24, 2008)

6.20.230 Customer service requirements.

A VSP shall comply with all customer service requirements for VSP's specified in NRS 711.620, as amended.
(Ord. 5989 § 25, 2008)

CHAPTER 6.21 AMERICAN COMMUNICATION SERVICES OF LAS VEGAS, INC., FRANCHISE

6.21.010 Definitions.

For the purpose of this Chapter, the following terms and phrases, words, abbreviations and their derivations shall have the meaning given herein:

(A) "Company" means American Communication Services of Las Vegas, Inc., a Maryland corporation authorized to do business in the State of Nevada.

(B) "Telecommunications service" means any switched or other one-way or two-way transmission of voice or data, including but not necessarily limited to:

(1) Services interconnecting interexchange carriers for the purpose of any one-way or two-way transmission of voice or data;

(2) Services connecting interexchange carriers or competitive access carriers to local exchange providers for the purpose of any one-way or two-way transmission of voice or data;

(3) Services connecting interexchange carriers to any entity, other than another interexchange carrier or the local exchange provider for the purpose of any one-way or two-way transmission of voice or data;

(4) Services providing private line point-to-point service for end users for the purpose of any one-way or two-way transmission of voice or data;

(5) Nonentertainment video, video conferencing or point-to-point private line service;

(6) Services regulated by state regulatory agencies or the Federal Communications Commission ("FCC") which the state agency or FCC has authorized the company to provide, if company has provided advance notice of same to City; and

(7) Transport services for the bulk transport of transmission signals, whether digital or analog, and whether voice, video or data, that are in part or in whole a local exchange telephone service, a cable service, a video dial tone and a personal communication service, to any company authorized to provide such services by the city, state or Federal government authority having jurisdiction over such services.

"Telecommunications service" shall not include cable services as defined in Title 47, Chapter 5, Subchapter V-A of the United States Code, as amended (47 USCA Section 521, et seq.) or as recognized by the FCC. "Telecommunications service" shall not include video dial tone or personal communication service as they are defined by the FCC.
(Ord. 3952 § 1 (part), 1996)

6.21.020 Grant of franchise.

The City of Las Vegas, Nevada, hereby grants to American Communication Services of Las Vegas, Inc., the nonexclusive right, privilege, authority and permission to construct, use and maintain a telecommunications service in, upon, along, across, above, over and under all present and future streets, avenues, highways, alleys, bridges and public ways within the incorporated boundaries of the City of Las Vegas, subject to and in accordance with the terms and conditions of that certain document entitled Franchise Agreement, dated the seventh day of February, 1996, by and between the City of Las Vegas and American Communication Services of Las Vegas, Inc., as amended by the City Council following a public hearing thereon on February 7, 1996, a copy of which said Franchise Agreement, as amended, is on file with the Clerk of the City of Las Vegas and by this reference incorporated herein as part of this Chapter.
(Ord. 3952 § 1 (part), 1996)

CHAPTER 6.21A ELECTRIC LIGHTWAVE, INC., FRANCHISE

6.21A.010 Definitions.

For the purpose of this Chapter, the following terms and phrases, words, abbreviations and their derivations shall have the meaning given herein:

(A) "Company" means Electric Lightwave, Inc., a Delaware corporation authorized to do business in the State of Nevada.

(B) "Telecommunications service" means any switched or other one-way or two-way transmission of voice or data, including but not necessarily limited to:

(1) Services interconnecting interexchange carriers for the purpose of any one-way or two-way transmission of voice or data;

(2) Services connecting interexchange carriers or competitive access carriers to local exchange providers for the purpose of any one-way or two-way transmission of voice or data;

(3) Services connecting interexchange carriers to any entity, other than another interexchange carrier or the local exchange provider for the purpose of any one-way or two-way transmission of voice or data;

(4) Services providing private line point to point service for end users for the purpose of any one-way or two-way transmission of voice or data;

(5) Nonentertainment video, video conferencing or point to point private line service;

(6) Services regulated by state regulatory agencies or the Federal Communications Commission ("FCC") which the state agency or FCC has authorized the company to provide, if the company has provided advance notice of same to the City; and

(7) Transport services for the bulk transport of transmission signals, whether digital or analog, and whether voice, video or data, that are in part or in whole a local exchange telephone service, a video dial tone and a personal communication service to any company authorized to provide such services by the City, state or Federal Government authority having jurisdiction over such services.

"Telecommunications service" shall not include cable services as defined in Title 47, Chapter 5, Subchapter V-A of the United States Code, as amended (47 USCA § 521, et seq.) or as recognized by the FCC.
(Ord. 4093 § 1 (part), 1997)

6.21A.020 Grant of franchise.

The City of Las Vegas, Nevada, hereby grants to the Electric Lightwave, Inc., the nonexclusive right, privilege, authority and permission to construct, use and maintain a telecommunications service in, upon, along, across, above, over and under all present and future streets, avenues, highways, alleys, bridges and public ways within the incorporated boundaries of the City of Las Vegas, subject to and in accordance with the terms and conditions of that certain document entitled Franchise Agreement dated the 23rd day of June, 1997, by and between the City of Las Vegas and the Electric Lightwave, Inc., a copy of which Agreement is on file with the Clerk of the City of Las Vegas and by this reference incorporated herein as a part of this Chapter.
(Ord. 4093 § 1 (part), 1997)

CHAPTER 6.22 RESERVED*

CHAPTER 6.24 RESERVED†

CHAPTER 6.26 COIN-OPERATED AMUSEMENT MACHINES

6.26.010 Permit required.

It is unlawful for any person to operate or permit the operation of any coin-operated amusement machine (not including gaming machines) upon his business premises whether the machine is owned by him or someone else without first obtaining and thereafter maintaining a valid permit therefor pursuant to this Chapter.
(Ord. 2251 § 1 (part), 1981: prior code § 5-7-1(A))

6.26.020 Application.

The application must be made to the Director upon forms provided by the Department.
(Ord. 5998 § 70, 2008: Ord. 2251 § 1 (part), 1981: prior code § 5-7-1(B))

6.26.030 Fee.

Each permittee shall pay to the Department thirty-five dollars semiannually for each coin-operated amusement machine allowed under the permit.
(Ord. No. 6816, § 14, 8-17-22; Ord. 3843 § 76, 1994: Ord. 2251 § 1 (part), 1981: prior code § 5-7-1(D))

6.26.040 Number of machines.

The permit issued by the Director shall identify the premises and specify the number of machines permitted. It is unlawful for any permittee to operate or allow the operation of any coin-operated amusement machines upon his business premises in excess of the number allowed on his permit.
(Ord. 2251 § 1 (part), 1981: prior code § 5-7-1(C))

***Editor's note—**Ord. No. 6296, § 1, adopted February 5, 2014, repealed Chapter 6.22, §§ 6.22.010—6.22.230, which pertained to charitable solicitation and derived from prior code §§ 5-13-1—5-13-15; Ord. No. 2235, 1981; Ord. No. 3156, 1985; Ord. No. 3333, 1988; Ord. No. 3388, 1988; Ord. No. 3860, 1995 and Ord. No. 5998, 2008.

†**Editor's note—**Ord. No. 6022, §, adopted January 7, 2009, repealed Chapter 6.24, which pertained to child care facilities and derived from Ord. 3473 §§ 3, 4, 6—26, 28—37, 44, 46, 1990; 3631 §§ 2, 3, 1992; Ord. 3703 § 1, 1993 Ord. 5635 §§ 1—29, 2003; Ord. 5664 § 1, 2004; Ord. 5998 § 69, 2008; and Ord. 6022 §§ 1, 2, 2009.

CHAPTER 6.27 RESERVED*

CHAPTER 6.28 RESERVED†

CHAPTER 6.30 COUPON BOOK SALES LICENSES

6.30.010 Coupon book defined.

Unless the context otherwise requires, "coupon book" means a book of coupons which may be redeemed or exchanged in whole or in part for discounts, bonuses, gifts, services, tickets, admissions, goods, wares, merchandise, food, drinks or other items of value.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-1)

6.30.020 License required.

No person shall engage in the business of selling, marketing or distributing coupon books without first obtaining and thereafter maintaining a valid unexpired license therefor as provided herein. This section does not apply to a licensed business which distributes or sells coupons that are redeemable only at its place of business.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-2)

6.30.030 Fee.

Each licensee shall pay in advance a semiannual license fee of one hundred fifty dollars.
(Ord. 3843 § 78, 1994: Ord. 2293 § 2 (part), 1982: prior code § 5-20-7)

6.30.040 Application.

(A) In addition to the information required by Section 6.02.080, the applicant for a coupon book license must provide:

(1) An exact copy of each of the coupons; and

(2) A copy of the agreement of each establishment where the coupons may be redeemed or exchanged.

(B) Each licensee prior to making any additions or changes to the coupon book must first provide to the Director the information required by Subsection A of this Section.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-3)

***Editor's note—**Ord. No. 6296, § 2, adopted February 5, 2014, repealed Chapter 6.27, §§ 6.27.010—6.27.070, which pertained to commercial dance studios and derived from Ord. No. 3369, 1988 and Ord. No. 5998, 2008.

†**Editor's note—**Ord. No. 6183, § 17, adopted March 7, 2012, repealed Chapter 6.28, §§ 6.28.010—6.28.060, which pertained to convention and trade show businesses and derived from prior code §§ 5-12-1—5-12-6; Ord. No. 2213, 1981; Ord. No. 3122, 1984 and Ord. No. 5455, 2002.

6.30.050 Bond.

Each applicant for a license must file and each licensee must maintain a surety bond with the Department in the sum of five thousand dollars with surety acceptable and approved by the City Attorney. Such bond must be conditioned to be paid to the City or to any person who suffers any damage by reason of any misrepresentation or violation of the provisions of this Code by the licensee, his agents or employees.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-6)

6.30.060 Information contained on coupon.

Each coupon must provide on its face:

(A) The expiration date, if any, of the coupon;

(B) The name and address of the establishment where the coupon may be redeemed or exchanged;

(C) A complete and prominent disclosure of all conditions required to be satisfied in order to make use of the coupon;

(D) The name and address of the person selling, marketing or distributing the coupon.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-4)

6.30.070 Noncompliance unlawful.

It is unlawful for any person to sell, market, or distribute a coupon book which does not comply with Section 6.30.060.
(Ord. 2293 § 2 (part), 1982: prior code § 5-20-5)

Chapter 6.32 GENERAL ENTERTAINMENT ESTABLISHMENTS

6.32.010 Definition.

For purposes of this Chapter:

"General entertainment establishment" means an establishment that is generally open to the public, or a segment of the public, as a place to view live or other entertainment performances in an amphitheater, auditorium, ballroom, concert hall, theatre or showroom setting; for hosting or accommodating a concert, convention, competition, sporting event or trade show; or any combination thereof. The term applies whether or not events or activities hosted or accommodated by the facility generally, or in particular cases, are open or closed to the general public and whether or not reservations or ticket sales are available in advance. The term also includes an establishment that operates in a manner similar to a nightclub, but that has an occupancy load limit of ninety-nine persons or less. The term does not include an establishment that is licensed (or qualifies) for licensing under LVMC Chapter 6.35, 6.39 or 6.80. The term shall not be deemed to include an establishment that provides

entertainment if that entertainment is incidental to the primary activity of the establishment and consists merely of ambient or background music intended to create or enhance a mood or atmosphere, or karaoke singing and interaction, or a combination thereof.
(Ord. No. 6787, § 4, 7-7-21)

6.32.020 License required.

(A) No person shall operate a general entertainment establishment without obtaining and maintaining a license pursuant to this Chapter. Such an establishment may operate with or without the sale or service of alcoholic beverages, but an establishment is not eligible to sell or serve alcoholic beverages unless the applicant also holds a beer and wine on-premise license or a full-alcohol on-premise license at the location of the general entertainment establishment.

(B) Before an application for a license under this Chapter is eligible for approval, the applicant must first submit for approval a proposed security plan and receive approval of a security plan. The Director shall issue, and may revise on an as-needed basis, an official policy to describe the scope of the required security plan for the benefit of potential licensees. In addition to the elements otherwise required to be in a security plan, the plan must include provisions to:

(1) Limit or prohibit the types of items that can brought into the premises, including weapons, alcoholic beverages, and other items that may affect security; and

(2) Monitor the sales and service of alcoholic beverages, the age of patrons, and the presence of the parents or legal guardians of underage patrons so that the provisions of this Chapter regarding can be properly observed and enforced.

(Ord. No. 6806, § 47, 4-6-22; Ord. No. 6787, § 4, 7-7-21)

6.32.030 Operating requirements.

In connection with the operation of a general entertainment establishment pursuant to this Chapter:

(A) The establishment is subject to all applicable provisions of LVMC Chapter 6.50.

(B) The establishment shall not allow any patron to bring alcoholic beverages onto the premises for consumption on the premises, or allow alcoholic beverages served or sold on the premises to be removed from the premises.

(C) All bars must be kept segregated from general admission and seating areas by a barrier sufficient to prevent access by minors.

(D) The sale and service of alcohol are prohibited at any public event which is marketed primarily to minors or open to minors unaccompanied by a parent or legal guardian.

(E) Events at which patrons under the age of eighteen years are allowed to attend must end by 10:00 p.m. and no event and such identification plan being monitored by the licensee.

(F) All alcohol sales must cease at least one hour prior to the scheduled ending time of any performance.

(G) Except as otherwise provided in this Subsection (G), the hours of operation for the establishment shall be those determined by the Director in connection with temporary or permanent license approval, as the case may be. If there is a conflict between the hours of operation for a general entertainment establishment approved by the Director and the hours of operation approved by the City Council in connection with: 1) an alcoholic beverage license associated the establishment, or 2) an approved land use entitlement permitting the operation of a general entertainment establishment, the condition regarding hours of operation approved by the City Council shall control.

(H) The establishment shall operate in accordance with its approved security plan. The Director may require a licensee to submit for approval a revised security plan if the Director determines that provisions for security at the establishment are inadequate. The Director may establish a deadline for the submission of new or revised plans. Upon receipt of a new or revised security plan, the Director shall approve, deny or take other appropriate action regarding the plan, including the establishment of a deadline within which to update or implement a security plan or a date by which operations must cease in connection with the denial of a security plan. It is unlawful for a licensee to:

(1) Fail to submit a security plan by the deadline established for such submission;

(2) Continue to operate the licensed establishment beyond a deadline established for updating or implementing a security plan without having accomplished the update or implementation; or

(3) Continue to operate the licensed establishment beyond a date established for ceasing operations in connection with the denial of a security plan.

(I) If the licensed establishment is within five hundred feet of a residential property, the licensee must post signs at locations clearly visible within the establishment and at both on- and off-site parking areas, requesting patrons to respect residents of adjacent residential neighborhoods by being quiet when leaving.

(J) Unless otherwise permitted by land use entitlement approved for such establishment, any and all activities associated with a licensed establishment shall be conducted entirely within the interior of such establishment, except for the following:

(1) The checking of patrons' identification;

(2) Valet parking activities;

(3) The sale of admission tickets for current or future events;

(4) Eating, drinking, or dancing when specifically allowed outside by means of a special event permit issued under LVMC Chapter 12.02; or

(5) Within the Downtown Entertainment Overlay District, the use of outdoor speakers or other sound amplification devices, but only if and to the extent the speakers or devices:

(a) Are not located on sidewalks or within the public right-of-way; and

(b) Are directed toward the establishment's lounge or dining area and away from public rights-of-way.

(K) If patrons are waiting outside the licensed establishment for entry into such establishment, the licensee shall organize and maintain its patrons in line in accordance with this Subsection (K). Each outdoor patron line must be on private property or on a public sidewalk not located in a residential neighborhood. If on a public sidewalk, an outdoor patron line shall:

(1) Be parallel to and against the structure of the licensed establishment;

(2) Be maintained so that not more than two persons are abreast (next to one another);

(3) Not restrict reasonable pedestrian movement on the sidewalk; and

(4) Not obstruct the entrance to any other establishment that is open for business.

(L) No interior noise from the establishment shall be audible beyond the property line when exterior doors are closed. If a more restrictive requirement exists elsewhere in this Code, the more restrictive requirement applies.

(Ord. No. 6787, § 4, 7-7-21)

6.32.040 Alcoholic beverages.

(A) Every general entertainment establishment that is also licensed for the sale or service of alcoholic beverages must display at all times, in a prominent place at each entry and exit, one or more printed warning signs regarding events at which patrons under twenty-one years of age are allowed to be present. The warning signs are for the purpose of notifying underage patrons that certain activities, including re-entry, are prohibited. The content, size and locations of such required warning signs must have first been approved by the Director and shall read substantially as follows:

WARNING TO PERSONS UNDER 21

You are subject to arrest and prosecution, as well as a fine of up to $1,000, for purchasing or consuming alcoholic beverages, or for misrepresenting your age for the purpose of purchasing or obtaining alcoholic beverages.

NO RE-ENTRY

(B) Every general entertainment establishment that is also licensed for the sale or service of alcoholic beverages must display at all times, in a prominent place at each bar location, one or more printed warning signs regarding events at which patrons under twenty-one years of age are allowed to be present. The warning signs are for the purpose of notifying patrons that certain activities are prohibited. The content, size and locations of such required warning signs must have first been approved by the Director and shall read substantially as follows:

WARNING

It is illegal to provide alcoholic beverages to any person under the age of 21. Violators are subject to arrest and prosecution.

(Ord. No. 6787, § 4, 7-7-21)

6.32.050 Separate licensing/land use approvals unaffected.

Nothing in this Chapter by itself shall be deemed to authorize an establishment licensed under this Chapter to engage in any of the following business operations or activities that would require separate licensing, land use approval, or both:

(A) The operation of an erotic dance establishment subject to LVMC Chapter 6.35;

(B) The operation of an adult nightclub establishment subject to LVMC Chapter 6.06B;

(C) The operation of a nightclub subject to LVMC Chapter 6.39;

(D) The operation of a teenage dance establishment subject to LVMC 6.80;

(E) The operation of a sexually oriented business, as defined in LVMC 19.12.070; or

(F) Ongoing operations that allow the sale or service of alcoholic beverages to the general public.

(Ord. No. 6787, § 4, 7-7-21)

CHAPTER 6.34 RESERVED*

CHAPTER 6.35 EROTIC DANCE ESTABLISHMENTS

6.35.010 Findings.

The Las Vegas City Council finds that:

(A) Erotic dance establishments, if unregulated, will likely lead to an increase in prostitution, venereal disease, drug and alcohol offenses, fraud and other criminal activity;

(B) Erotic dance establishments sometimes are fronts for or operated by persons associated with organized criminal activities, and the need to scrutinize such dance studios is thereby enhanced;

(C) The law enforcement resources available for responding to problems associated with or created by erotic dance establishments are limited and are best conserved by regulating and licensing erotic dance establishments and those associated with them; and

(D) The public health, safety and welfare require that erotic dance establishments and their employees be regulated and licensed in order to reduce the potential for harm.

(Ord. 3916 § 2 (part), 1995)

6.35.020 Purpose.

The purpose of this Chapter is to regulate erotic dance establishments to the end that the many types of criminal activities frequently engendered by such establishments will be curtailed. However, it is recognized that such regulation cannot de facto approach prohibition. Otherwise a protected form of expression would vanish. This Chapter represents a balancing of competing interests: reduced criminal activity through the regulation of erotic dance establishments versus the protected rights of erotic dancers and patrons.

(Ord. 3916 § 2 (part), 1995)

6.35.030 Definitions.

In this Chapter the following definitions and those in Title 6 shall apply unless the context clearly requires otherwise:

"Dancer" means a person who dances, models, personally solicits drinks or otherwise performs for an erotic dance establishment and who seeks to arouse or excite the patrons' sexual desires.

***Editor's note—**Ord. No. 6296, § 3, adopted February 5, 2014, repealed Chapter 6.34, §§ 6.34.010—6.34.100, which pertained to distress merchandise sales and derived from prior code §§ 5-14-1—5-14-11 and Ord. No. 3019, 1982.

"Erotic dance establishment" means a fixed place of business which emphasizes and seeks, through one or more dancers entertainers, to arouse or excite the patrons' sexual desires. Erotic dance establishments are deemed to be places of public accommodation.

"Security guard" means a person who acts as a doorman or bouncer or who performs a function described in NRS 648.016.
(Ord. No. 6263, § 1, 8-21-13; Ord. 3916 § 2 (part), 1995)

6.35.040 Prima facie evidence of erotic dance establishment.

It shall be prima facie evidence that a business is an erotic dance establishment when one or more dancers displays or exposes, with less than a full opaque covering, that portion of the female breast lower than the upper edge of the areola, or entices or persuades a patron to purchase a beverage sold in the establishment.
(Ord. 3916 § 2 (part), 1995)

6.35.050 Certain activities prohibited.

(A) No person, firm, partnership, corporation or other entity shall publicly display or expose or suffer the public display or exposure, with less than a full opaque covering, of any portion of a person's genitals, pubic area or buttocks in a lewd and obscene fashion.

(B) It is unlawful for any person or agent or employee thereof to claim, represent or imply that any beverage which contains less than one-half of one percent of alcohol by volume is liquor, beer, wine, spirits, gin, whisky, champagne, cordials, ethyl alcohol, rum or any form thereof and sell same to the person to whom the claim, representation or implication was made. Any beverage sold in an erotic dance establishment which does not have a liquor license shall be delivered to the patron in the container with the alcoholic content, if any, clearly imprinted on the label in letters not less than three-sixteenths inch high.
(Ord. 3916 § 2 (part), 1995)

6.35.060 Erotic dance establishment license—Application.

(A) Application for an erotic dance establishment license shall be made to the Director.

(B) An application for an erotic dance establishment license shall be verified by the applicant and shall contain or set forth the following information:

(1) The name, address, telephone number, principal occupation and age of the applicant;

(2) The name, address and principal occupation of the managing agent or agents of the business;

(3) The business name, business address and business telephone number of the establishment or proposed establishment, together with a description of the nature of the business and magnitude thereof;

(4) Whether the business or proposed business is the undertaking of a sole proprietorship, partnership or corporation. If a sole proprietorship, the application shall set forth the name, address, telephone number and principal occupation of the sole proprietor. If a partnership, the application shall set forth the names, addresses, telephone numbers, principal occupations and respective ownership shares of each partner, whether general, limited or silent. If a corporation, the application shall set forth the corporate name, a copy of the articles of incorporation, and the names, addresses, telephone numbers and principal occupations of every officer, director and shareholder (having more than ten percent of the outstanding shares) and the number of shares held by each;

(5) The names, addresses, telephone numbers and principal occupations of every person, partnership or corporation having any interest in the real or personal property utilized or to be utilized by the business or proposed business;

(6) A description of all other business enterprises (sales or services) which shall occur on the premises;

(7) Whether the applicant, anyone having a ten-percent interest in the business or proposed business, or anyone having an interest in the real property or personal property utilized or to be utilized by the business or proposed business or anyone having a right to ten percent of the proceeds of the business other than utilities has:

(a) Ever been convicted of or forfeited bail for any crime, excluding minor traffic offenses and, if so, the application shall state the person involved, the charge, date, court, and disposition of the charges,

(b) Ever had a business license denied, revoked or charges filed therefor, and if so, the application shall state the person involved, the name of the business, date, jurisdiction, and outcome of any hearing,

(c) Ever owned, operated an escort service, an outcall promoter establishment, a brothel or adult nightclub theater, and if so, the name of the business, dates involved and position or interest therein.

(C) The applicants shall present themselves to Metro for investigation and fingerprinting and shall pay such investigation and fingerprint fee as is required by LVMC 6.86, and shall reveal to Metro such information as is required to properly identify the applicant to enable the investigation of the applicant's arrests and convictions, licensing and litigation record and verify the accuracy and completeness of the application.

(1) In all cases where the applicant for a license is a corporation, it shall be necessary for all of the principal officers of such corporation to present themselves for investigation and fingerprinting. All stockholders above ten percent or who exercise management of the corporation are required to present themselves for investigation and fingerprinting.

(D) Applications shall be accompanied by a nonrefundable fee of twenty-five dollars.

(E) An erotic dance establishment license shall be a semiannual license renewable by payment of semiannual license fees as found in LVMC 6.35.120(A).
(Ord. 5998 § 73, 2008: Ord. 3916 § 2 (part), 1995)

6.35.070 License issuance or denial.

(A) The Director shall issue or deny the license to the applicant within thirty days from receipt of a complete application and fees upon compliance with all the requirements of this Section and any applicable provisions of Title 6 of this Code. Failure of the Director to approve or deny the license application within the thirty days shall result in the license being granted.

Upon the expiration of the thirty days the applicant may demand a license and begin operating the erotic dance establishment for which a license is sought, unless and until the Director notifies the applicant of a denial of the license application and states the reason for the denial. (This provision shall not create a reliance or estoppel situation as to this license or any other provisions of this code.)

(B) The Director shall consider the application by examination of:

(1) The information provided within the submitted application;

(2) The circumstances of the applicant's criminal reputation, association and business history;

(3) The proposed business operation of the applicant;

(4) The reports of zoning, building, fire and health department as applicable.

(C) The Director shall not grant the license if:

(1) The applicant, whether an individual or any of the stockholders, officers or directors, if a corporation or any of the partners, if a partnership, including limited partners, or the manager or other person principally in charge of the operation of the business, or any person receiving, or having a right to receive any sum from, or percentage of the profits due to an interest in or sale of the business, has been convicted within a five-year period immediately prior to the date of the application of any crimes of embezzlement; or any crime involving fraud, consumer fraud or intent to defraud, prostitution, solicitation of prostitution; or has violated the law regarding fraudulent advertising;

(2) The operation as proposed by the applicant would not comply with all applicable laws, including, but not limited to, this Title and the City's building, zoning, fire and health regulations;

(3) The applicant or any ten-percent corporation shareholder or a corporate officer has had a revocation of a business license for violations of code regulations pursuant to LVMC 6.06A (Bookstores and Adult Emporiums), 6.06B (Adult Nightclub Establishments), 6.36 (Escort Bureau and Personnel), 6.57 (Outcall Entertainment), 19.12 (Sexually Oriented Businesses) and this Chapter, within the preceding two years.

(D) If an application is denied, the Director shall notify the applicant with the reason(s) stated for denial. Notification shall be sent certified, United States mail, return receipt requested, to the address provided on the license application which shall be considered the correct address. Each applicant has the burden to furnish any change of address to the Director, by United States certified mail, return receipt requested.

(E) In the event that an application is denied, the applicant may file or cause to be filed in the district court a petition for judicial examination of the validity of the denial of the erotic dance establishment license as provided by Chapter 34 of NRS.
(Ord. No. 6593, § 9, 8-16-17; Ord. 5998 § 74, 2008: Ord. 3916 § 2 (part), 1995)

6.35.080 Work card.

(A) Except as provided for in Subsection (B), no person shall work at an erotic dance establishment without a valid work card.

(B) Those security employees that are licensed or registered under NRS 648.060 are exempt from the work card requirement, but such persons must have their State-issued registration work card that includes a photo ID on their person during the act of performing security duties at the erotic dance establishment where employed. The employer is responsible for maintaining, and making available for inspection by the Department or Metro, or both, a list of such employees, including names, registry numbers and registration expiration dates.
(Ord. No. 6305, § 4, 3-19-14; Ord. 3916 § 2 (part), 1995)

6.35.090 Work card application and issuance.

(A) Each license and any dancer, bar personnel, waiters/waitresses or managers, whether a full- or part-time employee or independent contractor, who works or renders services in a licensed erotic dance establishment business or facility shall obtain prior to the issuance of the license or the commencement of work and keep in force during the term of his license or employment, a work card for erotic dance establishment issued under LVMC 6.86 and 6.35. The investigation for issuance of a work card will include a fingerprint check by the Federal Bureau of Investigation. Work cards applied for pursuant to this Chapter shall be issued on the eleventh working day following application therefor unless denied within ten working days from application.

(1) Within twenty-four hours of the receipt of a work card application by a dancer, Metro shall issue a temporary work card, subject to completion of the investigation described herein, unless it is determined that the applicant is under eighteen years of age, or is currently wanted for criminal activity, or cannot establish identification.

(B) Metro shall deny the issuance or renewal of a work card for this Chapter only if:

(1) The application is not complete or if the applicant has made false, misleading or fraudulent statements with respect to any material fact contained in the application for a work card;

(2) The applicant has committed any crimes involving fraud, consumer fraud or intent to defraud, prostitution, solicitation of prostitution, or has violated the law regarding fraudulent advertising within two years of application for this specific work card; or

(3) The applicant has violated code regulations, as set out within LVMC 6.35.100, or has had a business license revoked pursuant to this Title, or the issuance or renewal thereof has been denied by the City or any other government entity within one year of the date of the application for any reason set out in this subsection.

(C) Suspension-Revocation. Any work card issued for this Chapter shall only be suspended or revoked for grounds set forth in Subsection (B) of this Section pursuant to the procedures set forth in LVMC 6.86.

(D) In the event that an applicant's work card is denied, suspended or revoked, the applicant may cause an appeal to be filed to the City Council, by filing a written appeal with the Director within ten days of notice of denial, suspension or revocation in accordance with

LVMC 6.86.150; or the applicant may file or cause to be filed in the district court a petition for judicial review of the denial, suspension or revocation pursuant to NRS 34 et seq. (Ord. 5998 § 76, 2008: Ord. 3916 § 2 (part), 1995)

6.35.100 Erotic dance establishment regulations.

(A) No person, firm, partnership, corporation or other entity shall advertise, or cause to be advertised, as an erotic dance establishment without a valid erotic dance establishment license issued pursuant to this Chapter.

(B) No later than the fifteenth day of the month succeeding the annual license period, an erotic dance establishment licensee shall file a verified report with the Department showing the licensee's gross receipts and amounts paid to dancers for the preceding annual period.

(C) An erotic dance establishment licensee shall maintain and retain for a period of three years the names, addresses, a copy of each dancer's work card, new and renewal, and ages of all persons employed as dancers by the licensee.

(D) No erotic dance establishment licensee shall employ as a dancer a person who:

(1) Is under the age of eighteen years; or

(2) Does not possess either a valid license pursuant to this Chapter or a valid work card pursuant to LVMC Chapter 6.86.

(E) No person under the age of eighteen years shall be admitted to a nonalcoholic erotic dance establishment. No patron under the age of twenty-one shall be admitted to an alcoholic erotic dance establishment.

(F) No erotic dance establishment licensee shall serve, sell, distribute or permit the consumption or possession of any intoxicating liquor, or any beverage represented as containing any alcohol upon the premises of the licensee without a valid beer and wine on-premises or full alcohol on-premises alcoholic beverage license.

(G) An erotic dance establishment licensee shall conspicuously display all the licenses required by this Chapter.

(H) Dancing shall take place within an area which is visible immediately upon entrance to the establishment premises, is visible immediately from the entry room, is visible immediately from one fixed staffed security station, or is visible immediately from a service bar area of the establishment's premises; however, no erotic dancing shall be visible to the outside sidewalk or street areas. Dance areas must not be obscured by any curtain or door that restricts view from one of the above-described areas. Patrons will not be allowed to enter private rooms with dancers.

(I) No dancer shall fondle or caress any patron, and no patron shall fondle or caress any dancer.

(J) Any erotic dance establishment which does not have a liquor license issued by the Department and which uses words that imply the availability of alcoholic liquor on the premises, such as "bar," "lounge" or "saloon," in any advertisement or place name must state in all such advertisements that alcoholic beverages are not sold or allowed on the premises.

(K) All erotic dance establishments that are not licensed to sell alcoholic beverages pursuant to LVMC Chapter 6.50 but are licensed pursuant to this Chapter shall post on each entrance door and not more than five inches above each entrance door, and in at least three places behind the bar, a sign with letters not less than three inches high stating:

"ALCOHOLIC LIQUOR IS NOT SOLD HERE"
"PROSTITUTION IS UNLAWFUL"

All erotic dance establishments licensed pursuant to this Chapter that are also licensed to sell alcoholic beverages pursuant to LVMC Chapter 6.50 shall post on each entrance door and not more than five inches above each entrance door, and in at least three places behind the bar, a sign with letters not less than three inches high stating:

"PROSTITUTION IS UNLAWFUL"

For each sign described in this Subsection, the letters must be black on a yellow background, and the sign on each entrance door and behind the bar must be between four and six feet above floor level. Each sign must be located and illuminated sufficient to be visible by a person with normal eyesight corrected to 20/20, thirty feet from the sign.

(L) No erotic dance establishment shall employ a security guard, or allow a security guard to work on the premises, unless such security guard has obtained a work card pursuant to LVMC Chapter 6.86.
(Ord. No. 6806, § 48, 4-6-22; Ord. No. 6263, § 2, 8-21-13; Ord. 3916 § 2 (part), 1995)

6.35.110 Inspections.

All books and records required to be kept pursuant to this Chapter shall be open to inspection by Metro or the Department during the hours when the erotic dance establishment is open for business. The purpose of such inspection shall be to determine whether the books and records meet the requirements of this Title.
(Ord. 5998 § 76, 2008: Ord. 3916 § 2 (part), 1995)

6.35.120 License fee and reports.

(A) The license fee for an erotic dance establishment shall be four hundred dollars annually.

(B) Every person licensed pursuant to this Chapter shall file with the Department on or before the fifteenth day succeeding the end of a semiannual period a report signed by the licensee under oath that the report is true to his/her own knowledge. The report shall provide any changes in information submitted pursuant to LVMC 6.35.060.

(C) Each report must be accompanied by the amount of license fee which is due for the next annual period.

(D) Any licensee who fails to fully pay the license fee imposed by this Chapter with the complete report as required herein, is subject to a penalty of five percent of the amount due. All licenses for which the fees have not been paid and/or complete reports received within thirty days after the due date automatically expire. Any such expired license shall not be reinstated until the penalty and a ten-percent reinstatement fee of the total amount due shall be paid and complete reports received.

(E) All reports required by this Chapter to be filed with the Director shall be sworn under oath by the manager or licensee of an erotic dance establishment license, that the information contained therein is true to his personal knowledge. A bookkeeper or accountant may file the

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report for a licensee if the licensee appoints the bookkeeper or accountant as agent for such purpose through written notice filed with the report. The document submitted shall be signed and sworn before an officer empowered to administer oaths.
(Ord. No. 6263, § 3, 8-21-13)

6.35.130 Security guard identification cards.

All security guards working in or employed by an erotic dance establishment must obtain a work card. Security guards in exotic dance studios shall not carry firearms, nightsticks, clubs or chemical or electronic weapons.
(Ord. 5998 § 77, 2008: Ord. 3916 § 2 (part), 1995)

6.35.140 Revocation or suspension of license or permit.

(A) The City Council shall not act to revoke or suspend an erotic dance establishment license until after:

(1) The licensee is given at least ten days' written notice of the specific charges;

(2) A hearing is held before the City Council at which time the licensee may present such evidence and defense as may bear upon the question.

(B) The erotic dance establishment license shall be revoked or suspended if the licensee maintains or conducts business in any building or structure which is structurally unsafe, or does not provide adequate egress, or which constitutes a fire hazard, or which is otherwise dangerous to human life or safety, or which in relation to existing use constitutes a hazard to safety or health, or public welfare by reasons of inadequate maintenance, dilapidation or obsolescence.

(C) The erotic dance establishment license shall be revoked or suspended if the licensee or his, her or its employee, agent or manager has made any false, misleading or fraudulent statement of material fact in the application for the license at issue or in any semi-annual report required to be filed with the Department (LVMC 6.35.120) or record required to be kept for three years (LVMC 6.35.120) or knowingly caused or suffered another to furnish such false, misleading or fraudulent information or withhold such required information on his, her or its behalf, or violates any provisions of LVMC 6.35.100.

(D) In the event the erotic dance establishment license is suspended or revoked, the license suspension or revocation shall be stayed for fourteen days from the date of the written notice to the licensee for the licensee to seek judicial review. If the licensee seeks judicial review in a timely manner, the license suspension or revocation shall be stayed until the court orders otherwise or issues a dispositive ruling. The licensee may waive the stay provision in writing, or the City may seek sooner to enforce the suspension or revocation by filing in the district court a petition for judicial review as provided by NRS 43.100 or by seeking alternative relief pursuant to Chapter 34 of NRS.
(Ord. 5228 § 4, 2000: Ord. 3916 § 2 (part), 1995)

6.35.150 Exemptions.

(A) Shows which are held in the showrooms of a hotel/casino that contains over three hundred rooms and is subject to the casino entertainment tax defined in NRS 463.401 are exempt from the licensing requirements, regulations and fees of this Chapter.

(B) Establishments operating and approved for adult uses pursuant to LVMC Title 19 or that have been deemed a nonconforming use pursuant to LVMC Title 19 prior to the dates specified therein may continue to provide adult entertainment (dancers and strippers) and are exempt from LVMC 6.35.050(A), but must comply with all other applicable code provisions of LVMC 6.35.100(C), (D), (G), (H), (I), (J), and (M) and other applicable sections of the Las Vegas Municipal Code.

(C) Except as otherwise provided in Subsection (E), dance presentations which are conducted in establishments holding a tavern license under Chapter 6.50 are exempt from the requirements to apply for and obtain a license under this Chapter, and to pay license fees under this Chapter.

(D) Dance presentations described in Subsection (C) are subject to the requirements of LVMC 6.35.100. Such presentations which, before the effective date of the ordinance codified in part in this Subsection (D), were not required to conform to the requirements of LVMC 6.35.100 and which did not so conform on that effective date, shall have a period of one year to comply.

(E) Notwithstanding the exemption described in Subsection (C), the Director may do any or all of the following with respect to an establishment described therein:

(1) Require the establishment to apply for a license under this Chapter in the event of a change in ownership or a material change in the business operation;

(2) For recordkeeping and enforcement purposes, request the establishment to apply for a license under this Chapter; or

(3) For recordkeeping and enforcement purposes, issue the establishment a license under this Chapter as a replacement or additional license.

(Ord. No. 6263, § 4, 8-21-13; Ord. 3916 § 2 (part), 1995)

6.35.160 Responsibility of licensee.

The holder of an erotic dance establishment license is responsible for the acts of its employees and independent or subcontractors, including but not limited to attendants, servers, security guards, managers and dancers. An erotic dance establishment license may be revoked for acts of such agent, employee or subcontractor or independent contractor which violates any provision of this Chapter. It is the duty of the licensee to prevent fraud, prostitution and the solicitation of prostitution upon its licensed premises.

(Ord. 3916 § 2 (part), 1995)

6.35.170 Violation—Penalty.

It is unlawful for any person or business entity to engage in business as an erotic dance establishment, manager, dancer or as attendant and/or server within the City without first obtaining a license or permit therefor as provided in this Chapter. It is unlawful for a dancer to dance in a place or manner prohibited in this Chapter. Any person, firm or corporation violating this Section shall be guilty of a misdemeanor and each such person, firm or corporation shall be deemed guilty of a separate offense for each and every day during which the violation is committed, continued or permitted, and upon conviction of such violation, such person, firm or corporation shall be punished by a fine of not less than two hundred fifty dollars for the first offense; not less than five hundred dollars for the second offense; not less than nine hundred fifty dollars for the third offense; and a fine of one thousand dollars plus not less than one week imprisonment for the fourth or additional offenses. In no case shall any sentence exceed more than a one thousand dollar fine and/or six months imprisonment; provided, no person shall be deemed guilty of any violation of this Chapter is acting in an investigative capacity pursuant to the request of Metro or the Director.
(Ord. 5998 § 78, 2008: Ord. 3916 § 2 (part), 1995)

CHAPTER 6.36 ESCORT BUREAUS AND PERSONNEL

Article I. General Provisions

6.36.010 Privileged business finding—Chapter 6.06 compliance.

The City Council finds that the business of providing escorts seriously affects the economic, social and moral well being of the City and its residents, that such business must be regulated strictly for the welfare of the public, and that such businesses must therefore comply with Chapter 6.06.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-1)

6.36.020 Definitions.

Unless the context otherwise requires the following words shall have the meaning ascribed to them:

(A) "Escort" means any person who, for a salary, fee, commission, hire, or profit, makes himself or herself available to the public for the purpose of accompanying other persons for social engagements.

(B) "Escort bureau" means any business, agency or person who, for a fee, commission, hire, or profit, furnishes or arranges for escorts to accompany other persons for social engagements.

(C) "Escort patron" means any person who seeks the services of an escort bureau.

(D) "Escort runner" means any person who, for a salary, fee, hire, or profit, and who is not a licensed owner of an escort bureau or is not an escort acts for an escort or escort bureau by contacting or meeting with escort patrons to make social engagements for escorts.

(Ord. 2262 § 2 (part), 1982: prior code § 5-23-2)

Article II. Bureau Licenses

6.36.030 Required.

No person shall engage in the business of providing escorts or conduct an escort bureau without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter and this Code.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-3)

6.36.040 Fee.

Each escort bureau must pay in advance a semiannual license fee of one thousand dollars or one percent of the total amount of its gross sales, whichever is greater.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-16 (A))

6.36.050 Denial or discipline grounds.

In addition to the grounds provided in Section 6.02.330 et seq. an escort bureau license may be denied or the licensee disciplined if:

(A) The applicant, licensee or any principal thereof has committed a crime of prostitution or any other crime of sexual misconduct.

(B) An escort or escort runner employed by the escort bureau has committed a criminal act while providing services to an escort patron under circumstances where the bureau has knowledge or should have had knowledge by reasonable diligence that such criminal act might occur.

(Ord. 2262 § 2 (part), 1982: prior code § 5-23-4)

6.36.055 Business location.

No license for an escort bureau may be issued unless the business has a fixed location:

(A) From which the business will actually be conducted; and

(B) Which is properly zoned to allow the use.

(Ord. 5308 §§ 1, 2, 2001)

6.36.060 Contract with patrons.

(A) The escort bureau shall provide to each patron a written contract for services. The contract shall clearly state the type of services to be performed, the length of time such services shall be performed; the total amount of money such services shall cost the patron and any special terms or conditions relating to the services to be performed. The contract shall additionally include a statement in clear and concise language that prostitution is illegal in the City and is punishable by both fine and imprisonment and that no act of prostitution shall be performed in relation to the services contracted for. Further, the contracts provided for in this Subsection shall be numbered and utilized in numerical sequence by the escort bureau.

(B) The contract shall be signed by the patron and a copy furnished to him. The escort bureau shall also retain a copy of each contract and shall furnish said copies to the Department for their inspection upon the Department's furnishing written request therefor.

(Ord. 5998 § 79, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-13 (B, C))

6.36.070 Employee permits and cards.

It is unlawful for any escort bureau to employ an escort or an escort runner who does not have in his possession a valid unexpired identification card and permit as required by this Chapter.

(Ord. 2262 § 2 (part), 1982: prior code § 5-23-12)

6.36.080 Referral of employees—Notice of termination.

Every escort bureau shall refer all prospective escorts and escort runners to the Department for a permit application. Upon termination of employment of any escort or escort runner with such escort bureau, such escort bureau shall notify the Department, in writing, of such termination within five days thereof.
(Ord. 5998 § 80, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-13 (A))

6.36.090 Employment records.

Every escort bureau licensed hereunder shall maintain the following records of employment of their employee escorts and runners:

(A) Date employment commenced; and

(B) Date employment terminated.

The foregoing records shall be available to the City upon written request therefor.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-14)

6.36.100 Age of employees.

No escort bureau shall employ a person as an escort or escort runner who is under the age of eighteen.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-15)

Article III. Escort and Runner Permits and Identification

6.36.110 Required.

It is unlawful for any person to act as an escort or an escort runner without first obtaining and carrying in his or her possession a valid unexpired permit and a valid unexpired identification card as herein provided.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-5)

6.36.120 Permit—Application.

Any person who is required to have a permit must apply for the permit from the Director and pay an investigation fee of one hundred seventy-five dollars. The application must be made upon forms provided by the Department and shall set forth the information required which includes:

(A) The applicant's personal description, history, education, experience and background;

(B) The applicant's criminal history and civil and administrative litigation history;

(C) The applicant's relationship to the licensee;

(D) In the case of an escort, the applicant shall furnish written evidence from a licensed physician that the physician has examined the applicant and that the applicant is free from any communicable disease;

(E) A recent three-by-five-inch photograph showing the applicant's head and shoulders; or

(F) Such other information as the Director may require that reasonably relates to the applicant's fitness for a permit or the nature of the service to be provided.

(Ord. 5998 § 81, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-6)

6.36.130 Permit—Approval, denial, revocation, suspension.

The Director shall refer the application for a permit to Metro for an investigation. Upon completion of the investigation the Director shall approve, deny or take such other action with respect to such application as he considers appropriate. The Director may deny, revoke or suspend a permit for good cause which includes but is not limited to:

(A) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required;

(B) The applicant or permittee fails to satisfy any qualification or requirement imposed by this Code, or other local, State or Federal law or regulation pertaining to such activities;

(C) Disciplinary action has been brought against the licensee or a principal of the licensee;

(D) The applicant or permittee fails to comply with any conditions of the license or permit;

(E) The applicant or permittee is or has engaged in a business, trade or profession without a valid license, permit, approval for suitability or work card when he knew that one was required or under such circumstances that he reasonably should have known one was required;

(F) The applicant or permittee has been subject, in any jurisdiction, to disciplinary action of any kind against a license, permit, approval for suitability or work card to the extent that such disciplinary action reflects on the qualification, acceptability or fitness to hold a permit.

(G) The applicant or permittee has committed acts which would constitute a crime involving moral turpitude, prostitution or other sex crimes, or involving any Federal, State or local law or regulation relating to the same or a similar business;

(H) When substantial information exists which tends to show that the applicant or permittee is dishonest or corrupt;

(I) The applicant or permittee has engaged in deceptive practices upon the public; or

(J) The applicant or permittee suffers from a legal disability under the laws of the State.

(Ord. 5998 § 82, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-7)

6.36.140 Permit—Fee.

Each escort and each escort runner must pay in advance a semiannual permit fee of one hundred fifty dollars. Failure to pay such fee within fifteen days of its due date shall cause the permit to automatically expire.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-16 (B))

6.36.150 Permit—Content.

The permit shall identify the permittee and the licensee and set forth the date of issuance.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-8)

6.36.160 Permit—Renewal.

Each escort prior to renewal of his permit by the payment of the semiannual permit fee shall furnish written evidence from a licensed physician that the physician has recently examined the permittee and that the permittee is free from any communicable diseases.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-10 (B))

6.36.170 Permit—Limitation to named bureau.

Every escort and escort runner's permit shall be issued to the applicant for one escort bureau only; it is unlawful for an escort or escort runner to undertake employment with any escort bureau other than the escort bureau identified on his permit.
(Ord.2262 § 2 (part), 1982: prior code § 5-23-11 (A))

6.36.180 Permit—Transfer.

Upon application and payment of a transfer fee in the amount of fifty dollars, an escort's or escort runner's permit may be transferred to a new escort bureau employer.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-11 (B))

6.36.190 Permit—Surrender.

Upon termination of employment as an escort or escort runner for a licensed escort bureau employer, such permittee shall surrender his or her permit to the Department within five days of such termination of employment; it is unlawful for any escort or escort runner to fail to surrender his or her permit within the time prescribed.
(Ord. 5998 § 83, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-11 (C))

6.36.200 Permit—Loss reporting.

In the event an escort or escort runner shall lose his or her permit it shall be the duty of the escort or escort runner to report said loss to the Director within five days after knowledge of the loss occurs. A fee of twenty-five dollars shall be charged by the Department to issue a new permit.
(Ord. 5998 § 84, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-11 (D))

6.36.210 Identification card.

Any individual who is required to have a work card shall make application for the card with Metro and provide the information requested including fingerprints and photographs. Such card when issued shall be valid for five years, except that a temporary card may be issued for ninety days pending the final issuance of the work card.
(Ord. 5998 § 85, 2008: Ord. 2262 § 2 (part), 1982: prior code § 5-23-9)

6.36.220 Exhibition on request.

Each person required to have a permit or an identification card must exhibit his permit and identification card upon the request of any person.
(Ord. 2262 § 2 (part), 1982: prior code § 5-23-10 (A))

CHAPTER 6.39 NIGHTCLUBS

6.39.010 Alcoholic beverages—Live entertainment.

(A) The primary operations of a nightclub often include the sales of alcoholic beverages for immediate on-premises consumption and the provision of live entertainment at a fixed establishment during the late night and early morning hours, and such operations can negatively impact surrounding businesses and residential areas during the late evening and early morning hours due to noise and congestion from the additional vehicular and pedestrian traffic coming to and from such establishments. Therefore, the City Council declares that all businesses considered to be a nightclub pursuant to this Chapter must be specifically licensed for such operation.

(B) The City Council understands that there are certain liquor establishments authorized to provide live entertainment pursuant to LVMC 6.50.520, and if an establishment is not considered a nightclub for purposes of this Subsection (B), then such establishment shall comply with the provisions of LVMC 6.50.520 prior to providing live entertainment at such an establishment.
(Ord. No. 6806, § 49, 4-6-22; Ord. No 6701, § 1, 9-18-19; Ord. No. 6621, § 1, 5-16-18; Ord. No. 6413, § 1, 5-6-15)

6.39.020 License required.

(A) Except as otherwise provided in Subsection (C) of LVMC 6.39.010, it is unlawful for any person to commence, carry on or engage in or operate any nightclub as defined by LVMC 6.39.030 without first obtaining and thereafter maintaining a valid, unexpired nightclub license as provided herein. Due to the negative secondary impacts a nightclub can create, such a license is required whether it is a new business operation or an existing operation that is considered a nightclub.

(B) A nightclub license pursuant to this Chapter shall not issue for an establishment that will sell or serve alcoholic beverages unless the applicant holds a beer and wine on-premise license or a full alcohol on-premise license for the establishment at which the nightclub license is proposed for issuance, and, except as provided at Subsection (C)(2), below, such license shall not be issued if the establishment is located on property not properly entitled for a nightclub use pursuant to LVMC Title 19.

(C) A separate license is required for each location at which a licensee conducts business, and such licenses are not transferable. In order for an applicant for a nightclub license to obtain and maintain such license in good standing, the establishment must comply, and continue to comply with all applicable zoning, building, fire and health requirements.
(Ord. No. 6806, § 50, 4-6-22; Ord. No 6701, § 2, 9-18-19; Ord. No. 6621, § 2, 5-16-18; Ord. No. 6413, § 1, 5-6-15)

6.39.030 Nightclub defined.

"Nightclub" means an indoor or outdoor entertainment establishment with an occupancy load of one hundred or more persons that:

(A) Provides any combination of live music, recorded music, or other entertainment for the primary purpose of encouraging social interaction amongst the patrons of the establishment;

(B) Contains one or more delineated dance floor areas; and

(C) May or may not provide food service. If the establishment provides food service, the food service must be both limited and incidental to the operation of the establishment.

The term is also deemed to include a "dayclub," which possesses the same characteristics as a nightclub, but operates primarily during the daytime hours. The term does not include an establishment that is licensed (or qualifies) as an erotic dance establishment under LVMC Chapter 6.35, a general entertainment establishment licensed under LVMC Chapter 6.32, or a teenage-related establishment licensed under LVMC Chapter 6.80. The term shall not be deemed to include an establishment merely because it includes entertainment if the entertainment is primarily intended to be viewed by an audience. The term shall also not be deemed to include an establishment that provides entertainment if that entertainment is incidental to the primary activity of the establishment and consists merely of ambient or background music intended to create or enhance a mood or atmosphere, or karaoke singing and interaction, or a combination thereof.
(Ord. No. 6787, § 1, 7-7-21; Ord. No. 6621, § 3, 5-16-18; Ord. No. 6413, § 1, 5-6-15)

6.39.040 Minors prohibited—Exceptions.

(A) It is unlawful for a licensee to allow the entry of any minor onto the premises of a nightclub, except as specifically allowed pursuant to a LVMC Title 12 special event permit, or where a nightclub serves meals at a restaurant upon its premises, and the minor is eating

a meal within the designated restaurant area. These limited exceptions permitting minors into an establishment licensed as a nightclub are exclusive to this Chapter, LVMC 6.39, and no other provision of this code, such as LVMC 6.50.450(F), shall permit the entry of a minor into an establishment licensed as a nightclub.

(B) If a nightclub serves meals at a restaurant upon its premises, such nightclub must designate a restaurant area to be approved by the Director, and such nightclub may permit minors to patronize the designated restaurant area only for the express purpose of eating a meal, and only between the hours of 6:00 am and 10:00 pm.

(C) Signs indicating that minors are not permitted upon the premises of the nightclub must be posted at all entrances to the permitted establishment, and if there is a restaurant serving meals upon the premises of the licensed establishment, additional signs must designate the restaurant area of the establishment. The signs, as well as the locations for placement of the signs within the establishment shall be submitted and approved by the Director.

(D) Nothing in this section precludes a licensee from employing a minor between eighteen and twenty-one years of age as a person providing entertainment at the establishment, provided that such person departs upon completion of his or her act.
(Ord. No. 6413, § 1, 5-6-15)

6.39.050 Operating requirements.

(A) Hours of Operation. The hours of operation for a nightclub shall be determined by the Director at the time of permanent license approval pursuant to LVMC 6.02.090. If there is a conflict between the hours of operation for a nightclub approved by the Director for the nightclub license and hours of operation approved by the City Council pursuant to either: 1) an alcoholic beverage license for the establishment; or 2) an approved land use entitlement permitting the operation of a nightclub, the condition regarding hours of operation approved by the City Council shall control.

(B) Security Plan Required. Prior to the approval of any temporary or permanent license, the applicant shall present to the Director a security plan for approval, and a license shall not issue until such plan is approved by the Director. The Director shall issue, and may revise on an as-needed basis, an official policy to describe the scope of the required security plan for the benefit of potential licensees. In the case of a license that was issued before the provisions of this Subsection (B) were adopted, the Director may require the licensee to submit for the Director's approval a security plan. The Director may also require a licensee to submit for approval a revised security plan if the Director determines that provisions for security at the licensee's nightclub are inadequate. The Director may establish a deadline for

the submission of new or revised plans. Upon receipt of a new or revised security plan, the Director shall approve, deny or take other appropriate action regarding the plan, including the establishment of a deadline within which to update or implement a security plan or a date by which operations must cease in connection with the denial of a security plan. It is unlawful for a licensee to:

(1) Fail to submit a security plan by the deadline established for such submission;

(2) Continue to operate the licensed establishment beyond a deadline established for updating or implementing a security plan without having accomplished the update or implementation; or

(3) Continue to operate the licensed establishment beyond a date established for ceasing operations in connection with the denial of a security plan.

(C) If the licensed establishment is within five hundred feet of a residential property, the licensee must post signs at locations clearly visible within the club and at both on and off-site parking areas, requesting patrons to respect residents of adjacent residential neighborhoods by being quiet when leaving.

(D) Limitation on Outdoor Activities. Unless otherwise permitted by land use entitlement approved for such establishment, any and all activities associated with a licensed establishment shall be conducted entirely within the interior of such establishment, except for the following:

(1) The checking of patrons' identification;

(2) Valet parking activities;

(3) The sale of admission tickets for current or future events;

(4) Eating, drinking, or dancing when specifically allowed outside by Title 12 special event permit; or

(5) Within the Downtown Entertainment Overlay District, the use of outdoor speakers or other sound amplification devices, but only if and to the extent the speakers or devices:

(a) Are not located on sidewalks or within the public right-of-way; and

(b) Are directed toward the establishment's lounge or dining area and away from public rights-of-way.

(E) If patrons are waiting outside the licensed establishment for entry into such establishment, the licensee shall organize and maintain its patrons in line in accordance with this Subsection (E). Each outdoor patron line must be on private property or on a public sidewalk not located in a residential neighborhood. If on a public sidewalk, an outdoor patron line shall:

(1) Be parallel to and against the structure of the licensed establishment;

(2) Be maintained so that not more than two persons are abreast (next to one another);

(3) Not restrict reasonable pedestrian movement on the sidewalk; and

(4) Not obstruct the entrance to any other establishment that is open for business.

(F) Noise. No interior noise shall be audible beyond the property line when exterior doors are closed. If a more restrictive requirement exists elsewhere in this Code, the more restrictive requirement applies.
(Ord. No. 6648, § 1, 10-17-18; Ord. No. 6621, § 4, 5-16-18; Ord. No. 6413, § 1, 5-6-15)

CHAPTER 6.40 GAMING*

6.40.010 Privileged business finding—Chapter 6.06 compliance.

The Council hereby finds that gaming activities seriously affect the well-being of the City and its residents; that it is necessary to regulate such industry carefully in order to ensure that persons of honesty and integrity are operating such businesses and that they are operated in a manner responsible to the public and in the best interests of the gaming industry. Such business must therefor comply with Chapter 6.06.
(Ord. 2195 § 2 (part), 1981: prior code § 5-17-1)

6.40.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meaning ascribed:

"Game" or "gambling game" means any banking or percentage game played with cards, dice or any mechanical, electromechanical or electronic device or machine for money, property, checks, credit or any representative of value, including, without limiting the generality of the foregoing, faro, monte, roulette, keno, bingo, fan-tan, twenty-one, blackjack, seven-and-a-half, big injun, klondike, craps, poker chuck-a-luck, Chinese chuck-a-luck (dai shu), wheel of fortune, chemin de fer, baccarat, pai gow, beat the banker, panguingui, slot machine, or any other game or device approved by the Nevada Gaming Commission, but does not include social games played solely for drinks, or cigars or cigarettes served individually, or games played in private homes or residences for prizes or games operated by charitable or educational organizations which have been approved by the State Gaming Control Board. For purposes of this Chapter, a "game" or "gambling game" does not include interactive gaming systems or any of the above games offered to persons for play exclusively by, through or over an interactive gaming system.

"Gaming" or "gambling" means to deal, operate, carry on, conduct, maintain or expose for play any game, interactive gaming, sports book, parimutuel or any other form of wagering.

"Gross revenue" is defined at NRS 463.0161.

"Interactive gaming" is defined at NRS 463.016425.

***Cross reference—**For provisions on the convention authority room tax and gaming tax, see Ch. 4.20 of this Code.

"Interactive gaming system" means the collective hardware, software communications technology, and proprietary hardware and software specifically designed or modified for, and intended for use in, the conduct of interactive gaming.

"Interactive gaming service provider" means a person who acts on behalf of an operator of interactive gaming and:

(1) Manages, administers or controls wagers that are initiated, received or made on an interactive gaming system;

(2) Manages, administers or controls the games with which wagers that are initiated, received or made on an interactive gaming system are associated;

(3) Maintains or operates the software or hardware of an interactive gaming system;

(4) Provides the trademarks, trade names, service marks or similar intellectual property under which an operator of interactive gaming identifies its interactive gaming system to patrons;

(5) Provides information regarding persons to an operator of interactive gaming via a database or customer list; or

(6) Provides products, services, information or assets to an operator of interactive gaming and receives therefor a percentage of gaming revenue from the establishment's interactive gaming system.

For the purposes of this definition, a manufacturer of interactive gaming systems licensed by the Nevada Gaming Commission that receives a share of revenue from an interactive gaming system operated on behalf of a licensed operator of interactive gaming within the City is deemed to be an interactive service provider.

"Interstate interactive gaming" means interactive gaming activities that occur between persons within the state of Nevada and persons outside of the boundaries of the state of Nevada.

"Intrastate interactive gaming" means interactive gaming activities that occur between persons only within the boundaries of the state of Nevada.

"Nonrestricted license" and "nonrestricted gaming" means a gaming license for, or an operation consisting of, sixteen or more slot machines or a license for, or an operation consisting of, any number of slot machines together with any other game, gaming device, race book, or sports pool at one establishment.

"Operator of interactive gaming" means a person who is licensed for the operation of interactive gaming.

"Race book information service" means any person, who receives such broadcast, who furnishes an operator of a race book, sports pool or gambling game who is licensed in the State with information that relates to horseracing or other racing which is used to determine the winners of, or payoffs, on, wagers that are accepted by such operator.

"Racehorse book" or "race book" means a sports pool on horseraces.

"Resort hotel" means a building or a group of buildings which are designed and integrated to clearly demonstrate the appearance of one facility wherein:

(1) Sleeping accommodations are provided in guestrooms at daily rates to tourists and transient guests;

(2) No provision is made for cooking food in any guestroom, except as permitted by the provisions of this Chapter;

(3) There is a gaming area within the building or group of buildings;

(4) There are more than two hundred guestrooms available for sleeping accommodations;

(5) There is integrated in the facility near the area where licensed games are provided at least one restaurant with permanent seating capacity for more than sixty patrons that is open to the public twenty-four hours each day and seven days each week;

(6) There is a lobby near the restaurant and licensed games for the guests to check in and out and receive messages; and

(7) There is at least one bar with permanent seating capacity for more than thirty persons that serves alcoholic beverages sold by the drink for consumption on the premises.

"Restricted license" and "restricted gaming" means a gaming license for, or an operation consisting of, not more than fifteen slot machines, incidental to the primary business at the establishment, and no other game or gaming device at the establishment.

"Slot machine" means any mechanical, electrical or other device, contrivance or machine which, upon insertion of a coin, token or similar object therein, or upon payment of any consideration whatsoever, is available to play or operate, the play or operation of which, whether by reason of the skill of the operator or application of the element of chance, or both, may deliver or entitle the person playing or operating the machine to receive cash, premiums, merchandise, tokens or anything of value whatsoever, whether the payoff is made automatically from the machine or in any other manner whatsoever.

If a machine has multiple capacities the Director shall make a determination, consistent with the determination made by the State Gaming Control Board, whether the machine constitutes two or more slot machines for the purpose of this Chapter based on the number of payout devices, coin receptacles or slots, handles or other devices for multiple players, or means of determining winnings.

"Slot operator" means a licensee engaged in the business of placing slot machines upon the business premises of another under any agreement whereby consideration is paid or is payable for the placement of such slot machines, whether the consideration is measured by a percentage of revenue derived from such machines or by a fixed fee or otherwise.

"Sports pool" means the business of accepting wagers on sporting events by any system or method of wagering other than the system known as the parimutuel method of wagering.
(Ord. No. 6265, § 1, 9-4-13; Ord. 3638 § 1, 2, 4, 1992: Ord. 3615 § 1, 1991: Ord. 3411 § 1, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-2)

6.40.030 License—Required—Exceptions.

(A) Except as otherwise provided in Subsection (B), no person shall:

(1) Deal, operate, carry on, conduct, maintain or expose for play in the City any game or interactive gaming, or operate, carry on, conduct or maintain any interactive gaming system, sports pool, parimutuel wagering or any other form of wagering;

(2) Provide or maintain any information service the primary purpose of which is to aid the placing or making of wagers on events of any kind; or

(3) Receive any compensation or reward, or any percentage or share of the money or property played, for keeping, running or carrying on any game, interactive gaming, intrastate interactive gaming system, slot machine or sports pool,

without having first procured, and thereafter maintaining a valid, unexpired license pursuant to this Code.

(B) Subsection (A) does not require the following to obtain and thereafter maintain a license:

(1) An operator of interactive gaming who is licensed by the state of Nevada at a location outside of the City's corporate boundaries and reports its gross revenue and submits its State gaming taxes for such operation from a location outside of the City's corporate boundaries.

(2) An interactive gaming service provider who does not furnish an interactive gaming system, or portion thereof, or provide any service of any kind, to an operator of interactive gaming that is within the City's corporate boundaries.

(Ord. No. 6265, § 2, 9-4-13; Ord. 2195 § 2 (part), 1981: prior code § 5-17-3)

6.40.040 License—Responsibility of owner.

It is unlawful for any person knowingly to permit any gaming or interactive gaming to be conducted, operated, dealt or carried on in any house or building or other premises owned by him, in whole or in part, except by a person who is licensed hereunder, or his employee.
(Ord. No. 6265, § 3, 9-4-13; Ord. 2195 § 2 (part), 1981: prior code § 5-17-4)

6.40.050 License—Associates with financial interest.

(A) Any person who furnishes services or property to a gaming licensee under any arrangement pursuant to which the person receives payments based on earnings, profits or receipts from gaming may be required by the Director to apply for a gaming license or apply for an approval of suitability to be associated with the gaming licensee.

(B) If such person fails to apply within twenty days of the Director's request the City Council may require the licensee to terminate the arrangement.

(C) Failure to so terminate the arrangement is grounds for disciplinary action to be taken against the licensee.
(Ord. 5998 § 87, 2008: Ord. 3411 § 2, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-5)

6.40.060 License—Charitable or educational exemption.

The Director may in his discretion approve any charitable or educational organization to conduct and maintain any games or sports pool, provided such charitable or educational organization has first obtained the approval of the State Gaming Control Board as required by NRS 463.409.
(Ord. No. 6296, § 7, 2-5-14; Ord. 3411 § 3, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-8)

6.40.065 License—Holiday or special event permit.

(A) Any licensee who has acquired a "holiday or special event" permit from the State to add additional games to the licensed premises during an anticipated temporary period of increased tourist activity may apply to the Director for a holiday or special event permit from the City. The application must be made on a form acceptable to the Director and filed at least three days prior to the date the games are to be added.

(B) If the permit is approved by the Director he shall specify on the permit the number and type of games approved and the time period for which they are permitted. The number of games and the time permitted shall not exceed that which has been approved by the State. The licensee shall not exceed or deviate from the number and types of games allowed under the permit or allow the games to remain on the premises beyond the time permitted.

(C) The licensee must pay in advance a permit fee equal to one-sixth of the regular semiannual license fee for each game permitted for a holiday or special event. The licensee must also pay the regular quarterly convention authority tax imposed by Chapter 4.20.
(Ord. 3411 § 4, 1989: Ord. 2295 § 1, 1982: prior code § 5-17-8.5)

6.40.070 License—Number.

The City Council, in the exercise of its discretion, may limit the number of licenses provided for in this Chapter.
(Ord. 3411 § 5, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-9(A))

6.40.090 License—Investigation waived when.

Except as provided in Section 6.40.100, an applicant for a gaming license, other than an applicant for a restricted license, shall not be required to submit to a background investigation and the City Council shall determine that the applicant and its principals are suitable if the Nevada Gaming Commission has granted a license to the applicant or found the applicant and its principals suitable.
(Ord. 3411 § 6, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-12(A))

6.40.100 License—Investigation required when.

The City Council may, at any time before a City gaming license is finally approved, determine that the public health, safety, morals or welfare of the City require that a background investigation be conducted of the applicant or a principal thereof notwithstanding the fact that the applicant or principal is being, or has been, investigated by or approved by the Nevada Gaming Commission.
(Ord. 3411 § 7, 1989: Ord. 2195 § 2 (part), 1981: prior code § 5-17-12(B))

6.40.110 License—Fees—Designated.

Each licensee shall pay to the Department, in advance semiannually, the following license fees:

(A) Each bridge, whist and solo	$ 30.00
(B) Chemin de fer (baccarat)	500.00
(C) Crap table:	
(1) For one table	300.00
(2) For each table over one	500.00
(D) Sports pool (not including race books)	200.00
(E) Bingo	150.00; plus $3.00 for each chair provided for players
(F) Panguingue	60.00
(G) Race book	800.00
(H) Racehorse information service	600.00
(I) Keno	600.00
(J) Each roulette, "21," hazard, faro bank, wheel of fortune and big six wheel	300.00
(K) Slot machines:	
(1) Establishment with five or less, each machine	50.00
(2) Establishment with more than five, each machine	60.00
(L) Stud poker and draw poker	100.00
(M) Slot machine operator	300.00
(N) Any other game	100.00

(Ord. No. 6816, § 15, 8-17-22; Ord. 3109 § 1, 1984: Ord. 2195 § 2 (part), 1981: prior code § 5-17-10)

6.40.111 License—Interactive gaming-related fees.

Each licensee shall pay to the Department, in advance annually, the following flat license fees:

(A) Operator of intrastate interactive gaming. $1,000.00

(B) Interactive gaming service provider $1,000.00

(Ord. No. 6265, § 4, 9-4-13)

6.40.115 License—Interstate/intrastate interactive gaming.

A person that holds an interstate interactive gaming license may offer interactive gaming to persons within the boundaries of the State of Nevada without also holding an intrastate interactive gaming license.

(Ord. No. 6265, § 5, 9-4-13)

6.40.120 License—Fees—Due date—Proration—Nonrefundability.

(A) Each semiannual fee is due in advance on April 1st and October 1st in each year.

(B) Each annual fee is due in advance on April 1st in each year.

(C) Applicants who receive license approval on a date other than such due dates shall have their license fees prorated on a monthly basis.

(D) License fees paid pursuant to LVMC 6.40.110 and LVMC 6.40.111 are not refundable. (Ord. No. 6265, § 6, 9-4-13; Ord. 2195 § 2 (part), 1981: prior code § 5-17-11(A))

6.40.130 License—Fees—Delinquency.

(A) Any semiannual fee which is not received by the Department on or before the due date shall be assessed a late-payment penalty in an amount equal to ten percent of the amount of such semiannual fee.

(B) If the semiannual fee and penalty is not received by the Department within fifteen days after the due date, an additional penalty in an amount equal to twenty-five percent of such semiannual fee shall be assessed.

(C) If the semiannual fee and all penalties are not received by the Department within sixty days after the due date, the license shall be automatically revoked.
(Ord. 5998 § 89, 2008: Ord. 2195 § 2 (part), 1981: prior code § 5-17-11(B))

6.40.140 Location—Permissive districts designated.

(A) Restricted gaming shall be limited to the following locations within the City and limited in scope of operation as follows, and in each case subject to the corresponding land use approval under Title 19 that specifies the number of gaming machines authorized:

(1) Locations operating as a convenience store, drug store, grocery store or liquor store and licensed for the sale of alcoholic beverages, and having less than five thousand square feet of usable floor space, shall be permitted to operate not more than seven slot machines;

(2) Locations operating as a convenience store, drug store, grocery store or liquor store and licensed for the sale of alcoholic beverages, and having at least five thousand square feet of usable floor space, shall be permitted to operate not more than fifteen slot machines;

(3) Locations that hold a full alcohol on-premise license and that cannot or do not wish to qualify for more slot machines under Paragraph (4) may operate not more than five slot machines, but only if the slot machines are counter top or table top video gaming devices that are located within the bar area of the business operation. However, in order to qualify for slot machines under this Paragraph (3), the establishment must:

(a) Include an area comprised of at least two thousand five hundred square feet that is open and available for use by patrons;

(b) Include a permanent physical bar;

(c) Serve meals during all hours that the bar is open for business, with a cook and food server other than the bartender on duty at all such times;

(d) Include a dining area with seating for at least one hundred persons. This seating does not include stools located at the bar or seats located outside the dining area; and

(e) Ensure that food sales are not less than fifty-five percent of gross sales.

The requirements of Subparagraphs (d) and (e) do not apply to establishments within the boundaries of the Las Vegas Arts District, as shown in Figure 3 of the Development Standards adopted in LVMC 19.10.110(B).

(4) Locations that hold a full alcohol on-premise license and that cannot or do not wish to qualify for slot machines under Paragraph (3) may operate not more than fifteen slot machines. However, in order to qualify for slot machines under this Paragraph (4), the establishment must:

(a) Include an area comprised of at least two thousand five hundred square feet that is open and available for use by patrons;

(b) Include a permanent physical bar;

(c) Include an on-premise kitchen that is operated not less than twelve hours each day the establishment is open to the public for business, or, if the establishment is open to the public for business for twelve hours or fewer on a particular day, is operated the entire time the establishment is open to the public for business;

(d) Include a dining area with seating for at least twenty five-persons in a room separate from the on-premise kitchen. The seating required by this Subparagraph (d) does not include stools located at the bar or seats located outside the dining area; and

(e) Serve food that has been ordered by patrons from tables or booths.

(5) Locations operating as a convenience store, drug store or grocery store and not licensed for the sale of alcoholic beverages, and having less than five thousand square feet of usable floor space, shall be permitted to operate not more than four slot machines;

(6) Locations operating as a convenience store, drug store or grocery store and not licensed for the sale of alcoholic beverages, and having at least five thousand square feet of usable floor space, shall be permitted to operate not more than fifteen slot machines; and

(7) Locations licensed to operate not more than fifteen slot machines prior to February 6, 1991; provided, however, that a location with less than five thousand square feet of usable floor space which has in excess of the number of slot machines permitted by Paragraphs (1) and (5) of this Subsection (A) shall be limited to the operation of the number of slot machines licensed for such location as of February 6, 1991.

(B) Nothing in Subsection (A) of this Section shall be deemed to prohibit the imposition of a condition restricting the number of slot machines in connection with the approval of a special use permit for restricted gaming.
(Ord. No. 6806, § 51, 4-6-22; Ord. No. 6266, § 39, 9-4-13; Ord. 5987 § 1, 2008: Ord. 5806 § 7, 2005: Ord. 5610 § 1, 2003: Ord. 3552 § 2, 1991)

6.40.150 Location—Nonrestricted exceptions to districts.

(A) No nonrestricted gaming shall be conducted, maintained or operated in the City except:

(1) At a location which:

(a) On November 1, 1988, was licensed for nonrestricted gaming,

(b) Consists, or when the same is constructed will consist, of a restaurant which has full kitchen facilities and is located within a freestanding building that contains in excess of three thousand square feet of usable floor space under one roof and is separated along its entire exterior perimeter from any other commercial establishment either by a property line or by an unobstructed open area at least ten feet in width and with respect to which, on April 1, 1989, a tavern license had been issued pursuant to LVMC Chapter 6.50 or preliminary approval for a tavern license had been granted pursuant to LVMC Chapter 6.50, as the case may be, and an application for nonrestricted gaming had been filed with the State, or

(c) Consists of a licensed business premises that contains in excess of nine thousand square feet of usable floor space under one roof within which the gaming is, at all times, under the supervision of an attendant whose duties shall be limited solely to the making of change and supervising such gaming and with respect to which, on April 1, 1989, an application for nonrestricted gaming had been filed with the State; provided, however, that such gaming shall be limited to the operation of not more than thirty-five slot machines exclusive of any other form of gaming at any such location that, on April 1, 1989, was licensed for slot machines only;

(2) At a location which:

(a) Is situated within the area that is bounded by the east side of Main Street, the south side of Stewart Avenue, the west side of Third Street, and the north side of Carson Avenue, or

(b) Fronts on either side of Jackson Avenue between "D" Street and "G" Street or on either side of Owens Avenue between "H" Street and Martin Luther King Boulevard and with respect to which on April 1, 1989, an application for nonrestricted gaming had been filed with the State;

(3) At a resort hotel which has in excess of two hundred guestrooms that are available to the public. The provisions of this Paragraph do not apply to those hotel establish-

ments holding a nonrestricted gaming license issued before July 1, 1992, unless the establishment ceases gaming operations for more than two years after July 1, 1992;

(4) At a location with respect to which a tavern license was issued pursuant to LVMC Chapter 6.50 prior to July 1, 1992, or regarding which a tavern license had been applied for by that date and was issued by December 31, 1992; provided, however, that such gaming shall be limited to the operation of not more than thirty-five slot machines exclusive of any other form of gaming;

(5) At a retail outlet that contains at least five thousand square feet of usable floor space and with respect to which a nonrestricted gaming license had been applied for prior to July 1, 1992, and with respect to which a special use permit for a general business related gaming establishment, as that term is defined in LVMC Chapter 19.18, is obtained in accordance with LVMC Title 19; provided, however, that a retail outlet not issued a special use permit prior to July 1, 1992, must have applied for the same within ninety (90) days after it filed for a nonrestricted gaming license, and further provided that such gaming shall be limited to the operation of not more than twenty slot machines exclusive of any other form of gaming; or

(6) At a location which a race book or sports pool gaming license has been issued; provided, however, that a race book or sports pool gaming license shall only be issued to resort hotels or to locations that are within a gaming enterprise district and that have been previously issued for gaming other than slot machines. The provisions of this Paragraph shall apply to all applications for a race book or sports pool gaming license filed with the City on or after July 1, 1992.

(B) Notwithstanding anything to the contrary that is provided in, or may be implied from, Subsection (A) of this Section or Title 19 of this Code, effective January 1, 1990, no nonrestricted gaming shall be conducted, maintained or operated on any parcel of land within the City unless:

(1) As of that date a gaming establishment is operating on that parcel pursuant to a nonrestricted license;

(2) The parcel is zoned for resort and gaming purposes or the zoning of the parcel for such purposes has been approved by the adoption by the City Council of a resolution of intent pursuant to LVMC 19.92.120, as that section then existed;

(3) The parcel is zoned for resort and gaming purposes and an application for aesthetic review with respect to the establishment that is proposed to be operated thereon had been filed prior to October 5, 1988; provided, however, that the exception that is provided for in this Paragraph (3) applies to the parcel only if it is developed by the person on whose behalf such application was filed; or

(4) The parcel is located within an area that has been designated as a gaming enterprise district established pursuant to LVMC 6.40.160.

(C) Except as otherwise provided in LVMC 6.40.160(C), the inclusion of a parcel within a gaming enterprise district established pursuant to LVMC 6.40.160 does not diminish the applicability of the provisions of Title 19 of this Code to that parcel.
(Ord. No. 6691, § 1, 6-19-19; Ord. No. 6266, § 40, 9-4-13; Ord. 3998 § 2, 1996: Ord. 3705 § 1, 1993: Ord. 3694 § 1, 1993: Ord. 3638 § 5, 1992: Ord. 3472 § 2, 1989: Ord. 3411 § 9, 1989: Ord. 3252 § 1, 1986: Ord. 3238 § 1, 1986: Ord. 3006 § 1 (part), 1982: Ord. 2195 § 2 (part), 1981: prior code § 5-17-6 (B))

6.40.153 Location—Interactive gaming.

Interactive gaming shall only be conducted at a location as permitted under all relevant State statutes and regulations.
(Ord. No. 6265, § 7, 9-4-13)

6.40.154 Interstate interactive gaming—Adoption of regulations.

Nothing in this Chapter authorizes interstate interactive gaming to occur within the City until such time as the Nevada Gaming Commission has promulgated regulations permitting an licensee to offer interstate interactive gaming and the City has adopted regulations to license interstate interactive gaming.
(Ord. No. 6265, § 8, 9-4-13)

6.40.155 Location—Prohibited restricted gaming areas—Exception.

(A) The City Council may deny any application for a gaming license if it deems the place or location for which the license is sought to be unsuitable for the conduct of gaming.

(B) No restricted gaming shall be conducted, maintained or operated in the following places or locations:

(1) Laundromats;

(2) Bakeries, donut shops and any other retail location, except as otherwise provided in LVMC 6.40.140 and 6.40.150;

(3) Movie theaters and professional offices;

(4) Fast food establishments; and

(5) Locations within the Downtown Entertainment Overlay District, as described in LVMC 19.10.120.

(C) Locations listed in Subsection (B) that are licensed for gaming as of the date this section (or any amendment thereto) was adopted may be allowed to continue their licenses so long as the nature and character of the business at the location does not materially change.
(Ord. No. 6806, § 52, 4-6-22; Ord. No. 6682, § 6, 4-3-19; Ord. No. 6674, § 1, 2-6-19; Ord. No. 6262, § 6, 8-7-13; Ord. No. 6248, § 6, 5-1-13; Ord. No. 6232, § 4, 1-23-13; Ord. 5610 § 2, 2003: Ord. 5521 § 3, 2002: Ord. 5044 § 1, 1997: Ord. 3780 § 1, 1994; Ord. 3569 § 1, 1991)

6.40.160 Gaming enterprise district.

(A) Nonrestricted gaming within the City is subject to the gaming enterprise provisions of NRS 463.3072 to 463.3094, inclusive.

(B) One or more individual parcels of land may be designated a gaming enterprise district in accordance with the provisions of NRS 463.3082 to 463.3086, inclusive.

(C) In the case of a designation pursuant to Subsection (B) of this Section, the special use permit provisions that are contained in Title 19 of this Code shall not apply.
(Ord. 5385 § 1, 2001: Ord. 3472 § 1, 1989)

6.40.165 Location—Right to conduct terminated after gaming operations discontinued.

(A) Except as otherwise provided in Subsection (B), if gaming operations at any location at which restricted gaming may be conducted in nonconformance with the provisions of LVMC 6.40.140 and 6.40.155 by virtue of grandfather clauses contained therein or at any location at which nonrestricted gaming may be conducted by virtue of LVMC 6.40.150(A)(1), 6.40.150(A)(2), 6.40.150(B)(1) or 6.40.150(B)(2) are discontinued for twenty-four consecutive months, the right to conduct gaming at such location by virtue of LVMC 6.40.140, 6.40.150(A)(1), 6.40.150(A)(2), 6.40.150(B)(1), 6.40.150(B)(2) or 6.40.155, as the case may be, shall, upon the expiration of such twenty-four-month period, automatically terminate, and no gaming may be conducted at such location unless or until such location is licensed for restricted gaming or for nonrestricted gaming pursuant to applicable regulations then in effect.

(B) If the discontinuance of the gaming operations at such location is in connection with the proposed demolition of the gaming facility that is situate thereon and the construction of a new facility, the right to conduct gaming at such location shall not terminate if a building permit for the construction of the new facility is issued, and, with respect to a location which is licensed for nonrestricted gaming and at which the nonrestricted gaming is to be continued, an application for nonrestricted gaming is filed with the State, within such twenty-four-month period and the restricted or nonrestricted, as the case may be, gaming operations at such location are resumed within forty-eight months after the gaming operations were discontinued.
(Ord. 3569 § 2, 1991: Ord. 3528 § 1, 1990: Ord. 3472 § 3, 1989: Ord. 3411 § 10, 1989)

6.40.170 Location—Restrictions not to require issuance.

Nothing contained in LVMC 6.40.140 and 6.40.150 shall be construed to require the issuance of a gaming license to any applicant because of any zoning approval, location, structure involved or nature of any allied business.
(Ord. 3411 § 11, 1989: Ord. 3238 § 2, 1986: Ord. 3006 § 1 (part), 1982: Ord. 2195 § 2 (part), 1981: prior code § 5-17-6(D))

6.40.180 Location—Change to provisions.

No provision found in LVMC 6.40.140 through 6.40.170, other than LVMC 6.40.160, may be amended, modified or deleted by the City Council without a notice and public hearing as herein after provided:

(A) Public Hearing. The Council shall hold a public hearing upon each proposed amendment, modification or deletion. The public hearing shall be conducted not less than twenty-one days nor more than one hundred eighty days following the first reading of the ordinance.

(B) The City Clerk shall give notice of the date, time and place of the public hearing by mailing a notice, not less than fifteen days prior to the date of the hearing, to each nonrestricted licensee in the City as shown in the license records of the Department.
(Ord. 5998 § 89, 2008: Ord. 5385 § 2, 2001: Ord. 2195 § 2 (part), 1981: prior code § 5-17-7)

6.40.210 Resort hotels licensed for gaming—Guestroom facilities.

Resort hotels licensed for gaming may have guestrooms furnished with provisions for cooking food subject to the following conditions:

(A) The City Council has given its prior approval;

(B) The construction, installation and maintenance of the appliance for cooking food shall be done in accordance with applicable City building, safety and fire codes;

(C) The appliances provided for cooking food must be permanently installed and must be permanently connected to a dedicated appliance electrical circuit or gas supply.
(Ord., 3638 § 4, 1992)

CHAPTER 6.42 HANDBILLS AND ORAL SOLICITATION

6.42.010 Purpose.

To protect the people against the nuisance of, and incident to, the promiscuous distribution of handbills and circulars, particularly commercial handbills, as herein defined, with the

resulting detriment and danger to public health and safety, the public interest, convenience and necessity requires the regulation thereof, and to that end the purposes of this Chapter are specifically declared to be as follows:

(A) To protect the people against the unlawful activities or operations of dissolute persons of criminal habits or tendencies, representing themselves as solicitors, canvassers or handbill distributors, by requiring the registration of all such solicitors, canvassers or handbill distributors, together with the names of their employers, and by regulating the business of handbill and advertising distribution through the imposition of reasonable license fees;

(B) To protect local residents against trespassing by solicitors, canvassers or handbill distributors upon the private property of such residents if they have given reasonable notice that they do not wish to be solicited by such persons or do not desire to receive handbills or advertising matter;

(C) To protect the people against the health and safety menace and the expense incident to the littering of the streets and public places by the promiscuous and uncontrolled distribution of advertising matter and commercial handbills;

(D) To preserve to the people their constitutional right to receive and disseminate information not restricted under the ordinary rules of decency and good morals and public order, by distinguishing between the nuisance created by the promiscuous distribution of advertising and commercial circulars and the right to deliver noncommercial handbills to all who are willing to receive the same;

(E) To protect local residents, as well as tourists, from any practice tending to annoy persons passing in public places, by any commercial oral solicitation or representation.

(Ord. 1657 § 1, 1973; Ord. 1332 § 1 (part), 1968: prior code § 5-32-1)

6.42.020 Definitions.

The following words, terms and phrases, when used in this Chapter, have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning:

(A) "Billposter" means and includes any person engaging in the business for hire or posting, fastening, mailing, or otherwise affixing any written, painted or printed matter of any kind, or other form or reproduction thereof, hereinafter called "sign," containing a message or information of any kind whatsoever, to any outdoor billboard, or to or upon any bridge, fence, pole, post, sidewalk, tree, or to or upon the exterior of any other structure except that the terms of this definition shall not apply to nor include any such sign mounted on, fastened to, or suspended from the outside of any building or other structure, in accordance with and authorized by any provisions of an ordinance or statute, either for any public convenience or use, or regulating the construction or use of so-called outdoor display signs, whether such display signs are illuminated or not.

(B) "Commercial handbill" means and includes any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter or literature:

(1) Which advertises for sale any merchandise, product, commodity, or thing; or

(2) Which directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of either directly or indirectly promoting the interests thereof by sales; or

(3) Which directs attention to or advertises any meeting, theatrical performance, exhibition, or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incident to such meeting, theatrical performance, exhibition, or event of any kind, when either of the same is held, given or takes place in connection with the dissemination of information which is not restricted under the ordinary rules of decency, good morals, public peace, safety and good order; provided, that nothing contained in this clause shall be deemed to authorize the holding, giving or taking place of any meeting, theatrical performance, exhibition, or event of any kind, without a license, where such license is or may be required by any law of this State, or under any provision of this Code; or

(4) Which is not covered by the definition of "sign" in the definition of "billposter" in Subsection (A) of this Section.

(C) "Commercial oral solicitation or representation" means and includes any verbal, oral or spoken communication from one person to another person, the subject matter of the communication being the same as is defined under Subsection (B) of this Section for "commercial handbill."

(D) "Handbill distributor" means and includes any person engaging or engaged in the business for hire or gain of distributing commercial or noncommercial handbills, other than newspapers distributed to subscribers thereof, and any person receiving compensation directly or indirectly for the distribution of such handbills.

(E) "Newspaper" means and includes any newspaper of general circulation as defined by general law, any newspaper duly entered with the Postal Service of the United States, in accordance with Federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto, means and includes any periodical or current magazine regularly published with not less than four issues per year, and sold to the public.

(F) "Noncommercial handbill" means and includes any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper booklet, or any other printed or otherwise reproduced original or copies of any matter

or literature not included in the aforesaid definitions of a sign, or a commercial handbill, or a newspaper set out in Subsections (A), (B) and (E) of this Section, respectively.

(G) "Private premises" means and includes any dwelling, house, building or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling house, building or other structure.

(H) "Public place" means and includes any and all streets, boulevards, avenues, lanes, alleys, sidewalks, curbs, or other public ways, and any and all public parks, squares, spaces, plazas, grounds and buildings.

(Ord. 1657 § 2, 1973: Ord. 1332 § 1 (part), 1968: prior code § 5-32-2)

6.42.030 Mail and newspapers exempted.

The provisions of this Chapter shall not apply to:

(A) The distribution of mail by the United States; or

(B) Except as otherwise provided in Section 6.42.135, newspapers as defined in this Chapter.

(Ord. 5226 § 1, 2000: Ord. 1332 § 1 (part), 1968: prior code § 5-32-10)

6.42.040 License—Required.

It is unlawful for any person to engage in the business of a billposter for hire or as a handbill distributor for hire, or for any person to distribute commercial or noncommercial handbills, without first complying with the terms of this Chapter and all other relevant laws and regulations; provided, that nothing contained herein shall apply to any person advertising his business or activity upon his own premises, if such business or activity is regularly established at a definite location in such city, and also if a license has been obtained therefor, if such license is required under the terms of any applicable law or ordinance.

(Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (A))

6.42.050 License—Agents or employees.

Persons acting for licensees, as agents or employees, in the posting or distributing of any such signs or handbills, shall not be required to obtain a license or pay a fee, but each such person shall comply with each and all of the other provisions hereof, and be subject thereto.

(Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (D)(part))

6.42.060 License—Application.

(A) Any person desiring to engage, as principal, either in the business of a billposter for hire, or in the business of distributing commercial or noncommercial handbills for hire, shall make application to and receive from the Director, or other officer empowered to issue the

same, who shall act whenever the Director is herein referred to, a license in the manner and for the period prescribed by the terms of this Chapter and by all relevant provisions of this Code.

(B) Such applicant shall make written application to the Director upon a form or forms provided for such purpose by the Director. Such form shall contain, among other things that may be required, the name, the business address, and a brief description of the nature of the business to be conducted by the applicant, the probable number of agents and employees so to be engaged, together with a request for a license for the period for which the applicant seeks to engage in such business.
(Ord. 5998 § 90, 2008: Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (B))

6.42.070 License—Fee payment—Transferability—Refund.

(A) The application shall be accompanied by the fee hereinafter provided for in this Chapter.

(B) No license issued under this Chapter shall be transferable.

(C) If any billposter or handbill distributor license is surrendered by the licensee therein named, or is revoked for cause, neither the licensee named in such license, nor any other person, shall be entitled to any refund of any part of such fee.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (C)(part))

6.42.080 License—Fee designated.

License fees under the terms of this Chapter, and for any such purpose, shall be fifty dollars semiannually.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (D)(part))

6.42.090 License—Revocation.

Without excluding other just grounds for revocation, the City Council, or official so empowered by law, may revoke any license obtained under an application containing a false or fraudulent statement knowingly made by the applicant with intent to obtain a license by means of false or fraudulent representations, or for violations of this Chapter, or any other grounds specified by law.
(Ord. 5998 § 91, 2008: Ord. 1332 § 1 (part), 1968: prior code § 5-32-9 (C)(part))

6.42.100 Posting on public ways and structures.

No person shall post, stick, stamp, paint or otherwise fix, or cause the same to be done by any person, any notice, placard, bill, card, poster, advertisement or other paper or device calculated to attract the attention of the public, to or upon any sidewalk, crosswalk, curb or curbstone, flagstone, or any other portion or part of any public way or public place, or any lamp post, electric light, telegraph, telephone or trolley line pole, or railway structure, hydrant, shade tree or tree-box, or upon the piers, columns, trusses, girders, railings, gates or other

parts of any public bridge or viaduct, or other public structure or building, or upon any pole, box or fixture of the fire alarm or police telegraph system, except such as may be authorized or required by the laws of the United States, or State, and the ordinances of the City.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-3)

6.42.110 Vacant premises—Distribution in public places.

(A) It is unlawful for any person to deposit, throw, place, scatter, or cast:

(1) Any commercial or noncommercial handbill in or upon private premises which are temporarily or continuously uninhabited or vacant;

(2) Any commercial handbill in or upon any public place within the City; and

(B) It is also unlawful for any person to hand out or distribute or sell any commercial handbill in any public place; provided, however, that it is not unlawful for any person to hand out or distribute, without charge to the receiver thereof, any noncommercial handbill in any public place to any person willing to accept such noncommercial handbill.
(Ord. 1657 § 3, 1973: Ord. 1332 § 1 (part), 1968: prior code § 5-32-4)

6.42.120 Commercial oral solicitation or representation.

It is unlawful for any person to make a commercial oral solicitation or representation in or upon a public place.
(Ord. 1657 § 4, 1973: Ord. 1332 § 1 (part), 1968: prior code § 5-32-5)

6.42.130 Request or posting not to distribute.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any commercial or noncommercial handbill upon any premises, if requested by anyone there on not to do so, or if there is placed on the premises in a conspicuous position near the entrance thereof, a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Advertisement," or any similar notice, indicating in any manner that the occupants of the premises do not desire to be molested or to have their right of privacy disturbed, or to have any such handbills left upon such premises.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-6)

6.42.135 Unsolicited materials delivery prohibited.

It is unlawful for any person to deliver any unsolicited newspaper, circular, periodical, flier or other commercial or noncommercial material to or upon any residential premises if the owner or occupant has provided to the person responsible for the delivery a written notice to discontinue the delivery. In the case of a newspaper or other publication which includes its mailing address, the written notice to discontinue must be sent to that address by certified mail. In any other case, the written notice to discontinue may either be provided by hand delivery or by certified mail addressed to the person responsible for the delivery.
(Ord. 5226 § 2, 2000)

6.42.140 Distribution to private premises.

No person licensed under the provisions of this Chapter, or any other person, shall distribute, deposit, place, throw, scatter or cast any commercial or noncommercial handbill in or upon any private premises which are inhabited, except by handing or transmitting any such handbill directly to the owner, occupant, or any other person then present in or upon such private premises; provided, however, that in case of inhabited private premises which are not posted as provided in Section 6.42.130, the aforesaid licensed or other person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such inhabited private premises, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or elsewhere, except that mail boxes may not be so used when so prohibited by Federal postal laws or regulations.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-7)

6.42.145 Distribution on or in motor vehicles.

(A) No person shall deposit, fasten, throw, scatter, cast or place any commercial or noncommercial handbill:

(1) In or upon any vehicle that is parked on any public street or on any property that is owned by the City; or

(2) In or upon any vehicle parked in or upon any private property that provides multiple spaces for parking vehicles. Such property shall, without limitation, include such locations as parking garages, shopping centers, shopping malls, outdoor theaters, drive-in restaurants, gasoline service stations, apartment and housing developments and complexes, casino and other types of parking lots and any other place where provision is made for vehicles to stop or park in designated areas for any purpose.

(B) The provisions of Paragraphs (1) and (2) of Subsection (A) of this Section shall not be deemed to prohibit in any public or private place the distribution of any commercial or noncommercial handbill by hand delivery to the owner or other occupant of any vehicle who is willing to accept the handbill without payment therefor.
(Ord. 3397 § 2, 1988)

6.42.150 Permitting prohibited posting.

It is unlawful for the owner, lessee, occupant or agent of premises to permit any person, whether licensed or acting under the terms of this Chapter, or otherwise, to post, affix or otherwise attach to any building, structure or fixture located upon such premises, whether such fixture is natural or artificial, any poster or handbill containing any matter prohibited by the terms of this Chapter.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-11)

6.42.160 Existing ordinances unaffected.

The ordinance codified in this Chapter shall not be deemed to repeal, amend or modify any ordinance ever ordained, either prohibiting, regulating or licensing canvassers, hawkers, peddlers, transient merchants, or any person, using the public streets or places for any private business or enterprise, or for commercial sales, not covered herein.
(Ord. 1332 § 1 (part), 1968: prior code § 5-32-13)

CHAPTER 6.44 HORSE-DRAWN AND OTHER ANIMAL-DRAWN VEHICLES

6.44.010 License—Required.

No person shall operate an animal-drawn vehicle for hire within the City without a business license therefor issued pursuant to this Chapter.
(Ord. 3317 §§ 12 (part), 13, 1987)

6.44.020 License—Application.

Applications for a license to operate an animal-drawn vehicle business shall be made to the Department. In addition to the information required by Chapter 6.02, the applicant shall furnish with the application the following information:

(A) The number of animal-drawn vehicles to be operated pursuant to the license, and the seating capacity, manufacturer and a scale drawing or photograph of each vehicle;

(B) A schedule of the rates to be charged passengers during the existence of the license;

(C) A street map showing the routes of any streets to be used by the animal-drawn vehicles;

(D) A schedule of the hours of operation;

(E) The location of the site(s) to be used for off-street storage of vehicles and the stabling of animals; and

(F) The location of all curb-side areas to be used for the regular pick-up or discharge of passengers.

The applicant shall certify that the information contained in the application is true, correct, complete and current to the best of the applicant's information, knowledge and belief.
(Ord. 5972 § 1, 2008: Ord. 3317 §§ 12 (part), 14, 1987)

6.44.030 License—Requirements.

Prior to the issuance of any license by the Department, the applicant must:

(A) Obtain pursuant to Chapter 11.39 the following regarding operations that are proposed for City streets and alleys:

(1) The approval of the City Council, upon the recommendation of the Traffic and Parking Commission, for all proposed operational routes, and

(2) The approval of the Traffic and Parking Commission for all proposed time schedules, parking areas and passenger loading and unloading areas;

(B) Obtain an Animal Inspection Certificate for each animal to be used in the operation of the business pursuant to Section 6.44.110 of this Chapter;

(C) Obtain and maintain a professional animal handler permit pursuant to Chapter 7.40; and

(D) Obtain the approval of all other State agencies, if any, which may have jurisdiction over the operation of animal-drawn vehicles on public streets, including but not necessarily limited to, the Transportation Services Authority.

(Ord. 5972 § 2, 2008: Ord. 3317 §§ 12 (part), 15, 1987)

6.44.040 Display of documents and rates.

The following documents and information shall be displayed in all animal-drawn vehicles:

(A) A copy of the animal-drawn vehicle license shall be displayed in all vehicles used in such business;

(B) The driver of any animal-drawn vehicle shall carry at all times an identification card approved by the City, which card shall be visible to the passengers;

(C) Drivers shall carry rate cards and exhibit them on demand. Rate cards shall also be affixed to the animal-drawn vehicle in a prominent location so as to advise prospective passengers of the rates and fares.

(Ord. 3317 §§ 12 (part), 16, 1987)

6.44.050 Display of operator's name and address.

Each licensee must display on each animal-drawn vehicle the name and telephone number of the operating company.

(Ord. 3317 §§ 12 (part), 17, 1987)

6.44.060 Hours of operation.

(A) Except as otherwise provided in Subsection (B), and subject to the provisions of Subsection (C), animal-drawn vehicles shall not operate between the hours of six a.m. and nine-thirty a.m., or between the hours of three p.m. and six-thirty p.m.

(B) The limitations contained in Subsection (A) shall not apply on Saturdays, Sundays and holidays.

(C) In the case of an operator who is under contract with the City to operate in City parks or other locations described in the contract, any provisions of the contract that pertain to hours of operation shall govern in the event of any conflict or inconsistency with this Section.

(Ord. 5972 § 3, 2008: Ord. 3317 §§ 12 (part), 18, 1987)

6.44.070 Seating.

(A) During operation, occupancy of the animal-drawn vehicle shall be subject to the size and occupancy limitations contained in this Chapter, and in no event shall exceed the manufacturer's rated seating capacity for the vehicle.

(B) No person shall be allowed to ride on the animal itself or ride anywhere on an animal-drawn vehicle other than seats inside the vehicle.
(Ord. 5972 § 4, 2008: Ord. 3317 §§ 12 (part), 19, 1987)

6.44.080 Soliciting—Driver conduct.

(A) Drivers of animal-drawn vehicles shall not solicit patronage in a loud voice or annoy or obstruct the movement of a person in any manner, or follow any person for the purpose of soliciting patronage.

(B) Drivers shall not smoke while transporting passengers.
(Ord. 3317 §§ 12 (part), 20, 1987)

6.44.090 Animal nuisance control.

(A) All animals shall have shoeing approved by the City.

(B) Except with respect to animals and vehicles operating upon equestrian trails designated and approved by the City:

(1) Each animal used to pull any vehicle shall be equipped with a manure-catching device approved by the City to hold the manure until the operator is able to place it in a standard wire-tie plastic bag which he shall carry with him for permanent disposal upon returning to the base of operations.

(2) Each animal-drawn vehicle shall be equipped with a chemical approved by the City which is to be poured over horse urine by the driver so as to break down and eliminate accumulated agents and odor.

(3) Each animal used to pull any vehicle must be treated with insect repellant.
(Ord. 5972 § 5, 2008: Ord. 3317 §§ 12 (part), 21, 1987)

6.44.100 Vehicle requirements.

All animal-drawn vehicles utilized by the licensee in the conduct of his business must comply with the following requirements:

(A) While operating on paved public streets:

(1) Each vehicle will have wheels with spokes that have diameters of no less than one and one-four inches and a rubber covering thick enough to protect the streets from damage and to keep noise to a minimum.

(2) Each vehicle will be equipped with brakes, taillights, brake lights and turn signals on the rear of the vehicles.

(3) Each vehicle will be equipped with front lights on both sides that will emit light to the front and side that will be visible from a distance of five hundred feet.

(4) Each vehicle will be equipped with a slow-moving vehicle sign approved by the State of Nevada and attached to the rear of the vehicle.

(5) No vehicle shall be larger in capacity than to transport five passengers, including the driver, unless the Department approves a greater capacity.

(6) Each vehicle must comply with all applicable State statutes and regulations.

(7) Each vehicle must be operated by a vehicle driver who has been properly trained in the handling and control of animal-drawn vehicles for a minimum of two weeks.

(B) While operating on equestrian trails and other unpaved routes designated and approved by the City:

(1) Each vehicle shall be of a size and construction appropriate to the route and the surface, as determined by the City.

(2) Each vehicle shall be operated and maintained in a safe condition and manner, and in compliance with all applicable State statutes and regulations.

(Ord. 5972 § 6, 2008: Ord. 5942 § 1, 2007: Ord. 3317 §§ 12 (part), 22, 1987)

6.44.110 Animal certification.

(A) Prior to the issuance of a license, and every ninety days thereafter, the applicant shall ensure that a veterinarian licensed to practice in Nevada who is qualified to treat large animals has inspected each animal used in the operation of the licensee's business and has certified, through the issuance of an Animal Examination Certificate, that the animal meets the following minimum requirements:

(1) The animal pulling any vehicle with passengers must weigh at least nine hundred pounds and a minimum of fifteen hands high.

(2) The animal must have no open sores or wounds, not be lame nor have any other ailment or disease. No animal found to have an ailment or disease shall be used without the approval of a veterinarian licensed to practice in Nevada who is qualified to treat large animals.

(3) The hoofs of the animal must be properly shod and trimmed.

(4) The animal must be groomed daily, be in good condition without fungus, dandruff, dirty coat or any evidence of skin disease.

(5) The animal must have adequate flesh and muscle tone.

(B) For each animal inspected under this Section, a separate Animal Examination Certificate shall be issued for each animal inspected, identifying the animal examined and the date of the examination and certifying that the animal meets the general health requirements of this Section.

(C) For purposes of this Chapter, each animal shall be identified by age, color, sex and other obvious markings, and by means of a photograph depicting both sides of the animal in order to show markings.
(Ord. 5972 § 7, 2008: Ord. 5942 § 2, 2007: Ord. 3317 §§ 12 (part), 23, 1987)

6.44.120 Animal working conditions.

Except as otherwise specifically provided by and pursuant to a contract with the City to operate in City parks or other locations described in the contract, all persons licensed under this Chapter must provide the following working conditions for animals used pursuant to that license:

(A) No vehicle pulled by an animal may hold more than five passengers, including the driver, unless otherwise approved by the Department.

(B) No animal may be required to work more than eight hours in any twenty-four-hour period or more than six days in any seven-day period.

(C) Each animal must be provided with a ten-minute rest period each hour and a one-hour rest period every four hours.

(D) No animal may be required to pull a vehicle at a speed faster than a slow trot.

(E) No animal may be worked with equipment causing an impairment of vision, other than normal blinders.

(F) No animal may be subjected to any condition or treatment which will impair the good health and physical condition of the animal.

(G) Each animal must be provided with its own custom-fitted harness, properly oiled and cleaned so as to be soft at all times. The harness must be kept free of makeshift wires, sisal ropes and rusty chains.

(H) No animal may be whipped, unless the whipping is necessary for the safety of the animal or passengers.

(I) Adequate water must be provided to each animal at hourly intervals.

(J) No animal may be required to work when the temperature exceeds ninety degrees Fahrenheit as measured along the operational routes for the animal-drawn vehicles.

(K) No animal may be equipped with devices intended to alter or impair its natural or normal movement.

(L) Each animal must have reached its third birthday.
(Ord. 5972 § 8, 2008: Ord. 3317 §§ 12 (part), 24, 1987)

6.44.130 Animal care.

Each animal used in the operation of a animal-drawn vehicle business must be kept and maintained in accordance with the following conditions:

(A) Adequate shade and ventilation must be provided for stalls.

(B) Ceilings in the stalls or corrals must be at least ten feet high from the bedding and flooring.

(C) Bedding in the stalls or corrals must be at least six inches deep and dry enough so as not to show wetness under the pressure of the animal's hooves.

(D) Foot hazards and sharp surfaces are not permitted in any area where they may come in contact with the animal.

(E) Roofs must be kept free of leaks where the animal is kept.

(F) Each animal must have a stall large enough for the animal to turn around.

(G) Food and water must be kept free of contamination, and adequate water must be available at all times.

(H) Animal areas must be treated to destroy and repel insects.

(I) Stalls and corrals must be kept in a clean, dry and reasonably sanitary condition.
(Ord. 3317 §§ 12 (part), 25, 1987)

6.44.140 Animal harassment.

It is unlawful for any person to harm, harass, tease, frighten or annoy any animal drawing a vehicle upon a public street within the City or to interfere with the driver of the vehicle in his management or control of the animal.
(Ord. 3317 §§ 12 (part), 26, 1987)

6.44.150 Insurance.

(A) Before any license required in this Chapter is issued, the applicant shall obtain and maintain, at its own expense during the existence of its license or the operation of its business, a comprehensive general public liability insurance in the amount of one million dollars, combined single limit, with an excess umbrella policy of five million dollars. Coverage under this policy shall include as a minimum the following: premises/operation, independent contractors, bodily injury, property damage, products/completed operation, contractual liability and operation of animal-drawn vehicle.

(B) Insurance coverage shall be issued by a carrier authorized to issue such coverage in the State of Nevada and approved by the City Attorney.

(C) A certificate of insurance shall be provided to the Department prior to the issuance of a business license.

(D) Any coverage provided in this section shall also contain a provision that the cancellation, or material change in the coverage, of the insurance provided under this section shall not become effective until the City has been given sixty days' prior written notification.

(E) The City shall be named as an additional insured party under this insurance.
(Ord. 5972 § 9, 2008: Ord. 3317 §§ 12 (part), 27, 1987)

6.44.160 Applicability.

The provisions of this Chapter shall apply to businesses licensed before or subsequent to the adoption of this Chapter or any amendment thereto. Unless otherwise specified, nothing in this Chapter shall be deemed to limit the applicability of the provisions of Title 7 of this Code.
(Ord. 5972 § 10, 2008: Ord. 3317 §§ 12 (part), 28, 1987)

6.44.170 License fee.

Licensees shall pay a license fee upon their gross revenues for each six-month period as determined by Sections 6.02.180 to 6.02.220 and Section 6.04.005 of this Code.
(Ord. 3317 §§ 12 (part), 29, 1987)

CHAPTER 6.46 HOTELS, MOTELS AND ROOMINGHOUSES*

6.46.010 Definitions.

"Landlord training program" means the landlord training program defined in LVMC 6.09.010.

"Non-transient lodging" or "non-transient lodging property" means a building or unit occupied or intended to be occupied as lodging primarily by persons who do not have residence elsewhere, who pay rent or other compensation, and the units of which do not qualify as transient lodging for purposes of this Chapter. The term typically would include buildings or units that are not subject to the payment of taxes on transient lodging charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20, such as apartment houses, extended-stay motels or hotels, and residence hotels/motels. The burden of establishing that a building or unit does not qualify as non-transient lodging shall be on the owner or operator of the property. The City may deem a property to be non-transient lodging for purposes of this Chapter if the owner or operator is unable to document the collection and payment of the transient lodging taxes charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20.

"Operator" means any person who owns, leases, controls, manages or operates an establishment that rents or holds out for rent guestrooms on a daily or less-than-weekly basis.

"Property manager" means a person who is responsible for the daily operation of a non-transient lodging property, to include but not limited to, collecting rent, access and control of room keys, and serves as an on scene contact for enforcement officials.

"Residence hotel/motel" means a complex of multiple dwelling units used or designed for extended-stay lodging or long-term occupancy, in which:

(1) The dwelling units consist of efficiency units or suites with a complete kitchen;

***Cross reference—**For provisions on the Convention Authority room tax, see Ch. 4.20 of this Code.

(2) Customary hotel/motel services are provided, such as linen service, maid service, telephone service and furniture upkeep;

(3) Additional resident/guest amenities may be provided, including meeting rooms, club house facilities or recreational facilities; and

(4) A majority of the revenue derived from the rental of lodging accommodations is not subject to the transient lodging taxes charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20.

"Transient lodging" means a building or unit occupied or intended to be occupied as temporary lodging for transient guests who have residence elsewhere, who pay rent or other compensation, and whose rental of units is subject to the payment of taxes on transient lodging charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20. The burden of establishing that a building or unit qualifies as transient lodging shall be on the owner or operator of the property.
(Ord. No. 6776, § 6, 4-21-21; Ord. 2245 § 2 (part), 1981: prior code § 5-25-2)

6.46.020 License—Required.

(A) Except as otherwise provided in Subsection (B), no person shall engage in the business of operating a hotel, motel, residence hotel/motel, or other establishment that rents or holds out for rent rooms or other temporary accommodations on a daily basis or for a period of thirty days or less, with or without meals included in the rental rate, without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter.

(B) The provisions of Subsection (A) do not apply to a short-term residential rental subject to licensing under LVMC Chapter 6.75.
(Ord. No. 6776, § 7, 4-21-21; Ord. No. 6585, § 1, 6-21-17; Ord. 4002 § 1, 1996: Ord. 2245 § 2 (part), 1981: prior code § 5-25-1)

6.46.030 License—Fee.

Each operator shall pay semiannual license fees per the following schedule:

Number of Rooms	Fee
0 to 4	No fee
5 to 8	$25.00
9 to 300	$3.00 for each room
Over 300	900.00 plus $1.50 for each room over 300

(Ord. 3966 § 1, 1996: Ord. 2245 § 2(part), 1982: prior code § 5-25-6)

6.46.040 Room tax—Rate.

In addition to the license fees provided for in Section 6.46.030, there is fixed and imposed a tax on the room revenues derived by each establishment per the following schedule:

(A) One percent of all moneys received from room rentals by establishments having seventy-five or more rooms;

(B) Two percent of all moneys received from room rentals by all establishments having less than seventy-five rooms.

(Ord. 2245 § 2 (part), 1981: prior code § 5-25-7 (A))

6.46.050 Room tax—Applicability.

Occupants renting rooms in such establishments shall pay the tax for the first thirty days of continuous occupancy regardless of the period upon which the rental is based. After thirty days' continuous occupancy of a particular room in an establishment covered by Section 6.46.040, the occupant shall be considered a resident guest and not subject to the payment of room tax.

(Ord. 2245 § 2 (part), 1981: prior code § 5-25-7 (B))

6.46.060 Room tax—Collection fee.

A collection fee is allowed for licensees of establishments referred to in Section 6.46.040 in an amount equal to two percent of the amount of the tax collected; providing that all the taxes due the City are paid to the Department on or before the fifteenth day of the month following the month for which the tax is due. No collection fee is allowed for payments made after that date.

(Ord. 5998 § 92, 2008: Ord. 2245 § 2 (part), 1981: prior code § 5-25-7 (C))

6.46.070 Room tax—Due date—Delinquency.

Notwithstanding anything in Title 6 to the contrary, the tax on room revenues provided for by Section 6.46.040 shall be due and payable on the first day of each calendar month next succeeding the month during which said revenues accrued. All taxes not paid by the fifteenth day of the month in which they are due and payable shall be deemed to be delinquent. The operator shall be assessed a penalty of ten percent on all delinquent amounts as well as interest of one and one-half percent per month, or fraction thereof, from the first of the month in which such tax becomes due and payable until the date of payment.

(Ord. 5242 § 1, 2000: Ord. 2245 § 2 (part), 1981: prior code § 5-25-8)

6.46.080 Room tax—Payment by guests.

The room tax imposed by Section 6.46.040 shall be collected by the operator from the paying guests and shown as an add-on to the charge for occupancy of the rooms. The operator is liable to the City for such taxes whether or not they are actually collected from the paying guest. Such taxes shall be paid to the Department on or before the fifteenth day of the month following the month in which the taxes accrued and shall be deemed delinquent if not paid on or before such date.

(Ord. 5998 § 93, 2008: Ord. 2245 § 2 (part), 1981: prior code § 5-25-10)

6.46.090 Additional room taxes.

See Chapter 4.20 for the imposition and collection of room taxes on behalf of the Las Vegas Convention and Visitors Authority.
(Ord. 2245 § 2 (part), 1981: prior code § 5-25-11)

6.46.100 Room records.

It is unlawful for any operator of an establishment covered by this Chapter to fail to maintain adequate room records or to fail to make his or her room records available in the City during City business hours to the Director or any other person designated by him or her for the purpose of conducting an audit within seventy-two hours' written notice. Adequate records shall mean the following: journal, books of accounts, daily cash summary, registration cards, general ledger, receipts register, income tax return (Schedule C of 1040 Federal Tax Return for Sole Proprietorship; Form 1065 Federal Tax Return for Partnerships; Form 1041 Fiduciary Income Tax Return and 1120 Federal Tax Return for Corporations), State sales tax returns, monthly profit and loss statements, trial balances, folios, including any and all receipt forms, and payment forms for the three-year period preceding the date of the audit. The Director or his designee has the authority to look at all other books and records not specifically mentioned above which are maintained by an operator in the connection with the rental of rooms.
(Ord. 5998 § 94, 2008: Ord. 3964 § 1, 1996: Ord. 2245 § 2 (part), 1981: prior code § 5-25-9)

6.46.110 Reserved.

Editor's note—Ord. No. 6108, § 1, adopted September 1, 2010, repealed § 6.46.110, which pertained to outdoor sign; prohibited statements and derived from prior code § 5-25-3 and Ord. No. 2245, 1981.

6.46.120 Reserved.

Editor's note—Ord. No. 6108, § 1, adopted September 1, 2010, repealed § 6.46.120, which pertained to outdoor sign; permitted statements and derived from prior code § 5-25-4 and Ord. No. 2245, 1981.

6.46.130 Charges limited to days used or requested.

It is unlawful for any person acting for an establishment governed by this Chapter to require that the lodger pay for a greater number of days than actually occupied or requested by such lodger.
(Ord. 2245 § 2 (part), 1981: prior code § 5-25-5)

6.46.140 Register—Requirements.

(A) Except as otherwise provided in Subsection (B), persons operating a hotel, motel, or other establishment wherein rooms or other temporary accommodations are rented on a daily basis or for a period of thirty days or less, with or without meals included in the rental rate, shall provide, keep and maintain a public register and shall require every person who

rents or occupies a room or other temporary accommodation in such hotel, motel, roominghouse or establishment to write in such register his or her name and place of residence. Such registration shall be made on a page of the register properly dated with reference to the day of the year, month and week and the time of day the person rents or arranges to occupy a room or temporary accommodation shall also be therein entered. Such register shall be permanently and firmly bound and shall not be of a looseleaf nature.

(B) The provisions of Subsection (A) do not apply to a short-term residential rental subject to licensing under LVMC Chapter 6.75.
(Ord. No. 6585, § 2, 6-21-17; Ord. 4002 § 2, 1996: Ord. 3555 § 2, 1991)

6.46.150 Register—Available for inspection.

A public register kept and maintained in accordance with LVMC 6.46.140 shall be open to the public at any and all reasonable hours and the pages thereof shall, upon demand, be open for inspection or investigation by any law enforcement officer or City business license official immediately upon demand having been made by such law enforcement officer or City business license official.
(Ord. 4002 § 3, 1996: Ord. 3555 § 3, 1991)

6.46.155 Non-transient lodging properties.

(A) Each non-transient lodging property must designate one or more contact persons who are available at all times to provide access to every room on the property for first responders and enforcement personnel. The name and telephone number of each such contact person shall be posted on the property and provided to the Department.

(B) With regard to each non-transient lodging property, and except as otherwise provided in Subsection (C), at least one of the following shall be required to complete the landlord training program at least once every twenty-four months:

(1) An operator with no ownership interest in the property who performs the functions of a property manager regarding the property.

(2) An operator with an ownership interest in the property who performs the functions of a property manager regarding the property.

(C) The landlord training requirement described in Subsection (B) may be waived by the City for a property that is managed by a person licensed under NRS Chapter 645 who can document having received equivalent training within that period in connection with other licensing, permitting or certification requirements.

(D) Except as otherwise provided in this Subsection (D), each property manager of a non-transient lodging property having five units or more must obtain and maintain a valid work card, which shall be made available on the premises in connection with any scheduled inspection of the property, and otherwise upon request. The work card requirement does not apply to a person who holds a current license under NRS Chapter 645.
(Ord. No. 6776, § 8, 4-21-21)

6.46.160 Violation—Penalty.

Any violation of this chapter constitutes a misdemeanor and the offender shall be punished by a fine of not more than one thousand dollars or imprisonment for not more than six months or by both such fine and imprisonment.
(Ord. 3555 § 4, 1991)

CHAPTER 6.47 ICE CREAM TRUCKS

6.47.010 Definitions.

As used in this Chapter, the following terms shall be defined as set forth in this Section:

"Authorized vending period" means as follows:

(1) Within a City park, or upon or adjacent to public school grounds where organized athletic events take place:

(a) From nine a.m. to nine p.m., between June 1 and August 31; and

(b) From nine a.m. to eight p.m., otherwise;

(2) In any residential neighborhood where the provisions of Paragraph (1) above do not apply:

(a) From ten a.m. to eight p.m., between June 1 and August 31; and

(b) From ten a.m. to seven p.m., otherwise;

(3) At any other location, at any time of the day or night;

"Defined food product" means any of the following:

(1) Prepackaged candies or desserts;

(2) Prepackaged frozen dairy products or frozen water-based food products;

(3) Soft serve or hand-dipped frozen dairy products or frozen water-based food products; or

(4) Prepackaged beverages, including water, soft drinks, fruit drinks and hydration/sports drinks.

"Ice cream truck" means any motorized vehicle which is required to be registered by the Nevada Department of Motor Vehicles and which is used to vend any defined food product.

"Ice cream truck business" means a business that operates an ice cream truck that travels from place to place on the streets for the purpose of vending defined food products.

"Licensee" means the holder of an ice cream truck business license issued by the Department.

"Vend" means to sell or offer to sell products from an ice cream truck.
(Ord. No. 6115, § 1, 10-6-10; Ord. 5040 § 2, 1997)

6.47.020 License, compliance, work card required.

It is unlawful for a person to:

(A) Conduct, engage in, carry on, advertise, or market an ice cream truck business within the City without a license issued pursuant to this Chapter for each truck operated in the business;

(B) Conduct, engage in, carry on, advertise, or market an ice cream truck business that operates within the City unless the business is maintained and operated in compliance with this Title; or

(C) Vend from an ice cream truck or drive an ice cream truck for the purpose of vending therefrom without a valid work card issued pursuant to LVMC Chapter 6.86.

(Ord. No. 6115, § 2, 10-6-10; Ord. 5040 § 3, 1997)

6.47.030 License—Application—Conditions of issuance.

(A) On forms approved by the Department, an application for an ice cream truck business license shall be filed with the Director. Each principal of an ice cream truck business must apply for and obtain approval for suitability in accordance with LVMC Chapter 6.06, subject to the payment of applicable investigative fees. Upon completion of a required investigation, Metro will forward the report to the Department for appropriate action.

(B) Ice cream truck business licenses issued under this Chapter:

(1) Are issued on a per-vehicle basis;

(2) Are issued annually, whether on an initial or renewal basis, for the period for the period of April 1 through March 31 of the following year;

(3) Are non-transferable; and

(4) Are deemed expired and are marked "out of business" if not renewed by May 1st, and thereafter are not eligible for reinstatement.

(C) If a licensee requests an initial license between January 1 and March 30, the license fee shall be prorated to an amount equal to fifty percent of the annual license fee.
(Ord. No. 6288, § 12, 11-20-13; Ord. No. 6115, § 3, 10-6-10; Ord. 5040 § 4, 1997)

6.47.040 Truck—Inspection—Compliance.

(A) Independent of any certification requirement of the Health District, the Director may require an ice cream truck to be inspected on behalf of the Department and found to be in compliance with LVMC 6.47.100 before a business license may be issued or renewed for the operation of that truck. At the discretion of the Director, the inspection may be conducted by the Department personnel, an outside vendor or by another local jurisdiction. The applicant or licensee shall pay an inspection fee of fifty dollars for the first inspection. If an ice cream truck does not pass the first inspection, the applicant or licensee shall pay a reinspection fee of fifty dollars for each reinspection until the truck complies with LVMC 6.47.100.

(B) In connection with the initial licensing of an ice cream truck business, the applicant must demonstrate compliance with LVMC 6.47.050 and 6.47.110 before the issuance of the initial license. Following the issuance of an initial license, the licensee, on an ongoing basis and in connection with annual renewal, may certify compliance with those sections by means of an affidavit. However, such certification by affidavit does not preclude the Department, at any time, from requiring actual proof of compliance with those sections.

(C) Ice cream trucks do not have to be re-inspected again for the April renewal if they have recently passed inspection since January 1st of the current year.
(Ord. No. 6302, § 1, 3-5-14; Ord. No. 6288, § 13, 11-20-13; Ord. No. 6115, § 4, 10-6-10; Ord. 5661 § 1, 2003: Ord. 5040 § 5, 1997)

6.47.050 Truck—Registration—Certification.

No ice cream truck is eligible for a license, and no ice cream truck may be operated for the purpose of vending therefrom, unless the truck:

(A) Has been registered with the Nevada Department of Motor Vehicles and is properly displaying current registration plates; and

(B) Complies with any certification requirements of the Health District, and the applicant or operator, as the case may be, possesses evidence of current certification and compliance with Health District requirements.

(Ord. No. 6115, § 5, 10-6-10; Ord. 5040 § 6, 1997)

6.47.060 License—Subject to requirements—Decal.

(A) Each ice cream truck business license issued by the Department shall be subject to the requirements and limitations set forth in this Chapter and any other conditions specifically imposed upon the license. The annual license fee for an ice cream truck business license shall be one hundred twenty-five dollars.

(B) For each license issued under this Chapter, the Department will issue a license decal. The decal shall be attached and displayed as set forth in LVMC 6.47.090.

(C) The Department may charge a decal replacement fee in the amount of twenty-five dollars, or in such other amount as the City Council may approve by resolution.

(Ord. No. 6115, § 6, 10-6-10; Ord. 5661 § 2, 2003: Ord. 5040 § 7, 1997)

6.47.070 Prohibited actions.

No person shall:

(A) Vend on any street at a location where the speed limit is greater than twenty-five miles per hour.

(B) Vend from an ice cream truck which is parked or stopped on a street within seventy-five feet of an intersection.

(C) Vend on a street except from the side of the truck away from moving traffic and as near as possible to the right-hand curb or edge of the street.

(D) Vend to a person standing in the roadway.

(E) Vend on a street unless there is a clear view of the ice cream truck for a distance of two hundred feet in each direction.

(F) Vend on a street unless the safety equipment described in Subsection (C) of Section 6.47.100 is activated a minimum of fifty feet before the ice cream truck stops to vend and for a minimum of fifty feet after operation of the ice cream truck resumes.

(G) Drive an ice cream truck on a street in reverse in order to vend.

(H) Stop on a street to vend within two hundred feet of any ice cream truck that has already stopped to vend on that street or another.

(I) Vend any item other than a defined food product.

(J) Vend or park an ice cream truck within one thousand feet of the outside perimeter of an elementary or middle school property until one hour after the end of the regular

school day; provided, however, that the foregoing prohibition shall not apply on days when school is not in session nor on school property when vending has been approved in writing by the principal.

(K) Vend at any time other than during an authorized vending period.

(L) Vend at a particular location more than once a day, or for longer than thirty minutes continuously without moving the truck to another location at least one thousand feet away; provided, however, that the prohibitions contained in this Subsection (L) do not apply to vending locations and activities specifically authorized by a contractual arrangement with the City regarding a specific location.

(M) Consume alcoholic beverages or be intoxicated while vending.

(N) Vend within one thousand feet of a licensed concession stand located within a City park when the concession stand is open for business, unless otherwise permitted under a contractual arrangement with the City regarding a specific location.

(Ord. No. 6115, § 7, 10-6-10; Ord. 5661 § 3, 2003: Ord. 5421 § 16, 2002: Ord. 5040 § 8, 1997)

6.47.080 Noise restrictions.

(A) No person shall use, play or employ any sound, outcry, amplifier, loudspeaker or any other instrument or device for the production of sound from an ice cream truck:

(1) When the ice cream truck is stationary;

(2) At any time other than during an authorized vending period; or

(3) In such a manner as to create a noise disturbance as defined in LVMC Chapter 9.16.

(B) In connection with the issuance of a license, the Director may impose reasonable restrictions on the type and use of any sound, outcry, amplifier, loudspeaker or any other instrument or device for the production of sound employed on an ice cream truck in order to limit noise or prevent a noise disturbance as defined in LVMC Chapter 9.16.

(Ord. No. 6115, § 8, 10-6-10; Ord. 5040 § 9, 1997)

6.47.090 Decal—Display.

Each ice cream truck shall have prominently displayed, on the upper left corner of the back of the vehicle, the license decal provided by the Department pursuant to LVMC 6.47.060. Failure to attach the decal in the correct location or to maintain it in a readable condition shall be a violation of this Chapter.

(Ord. No. 6115, § 9, 10-6-10; Ord. 5661 § 4, 2003: Ord. 5040 § 10, 1997)

6.47.100 Trucks—Maintenance—Operating conditions.

(A) A licensee shall maintain each of the licensee's ice cream trucks in such a condition that:

(1) All doors, windows, hoods and trunks open and close securely;

(2) The exterior of the ice cream truck is clean and in good repair;

(3) Advertising decals and price lists are placed only on the vending side of the ice cream trucks and use a maximum area of twenty-four square feet;

(4) All windows are clear of signs and other obstructions; and

(5) The licensed business name and business telephone number are displayed on both sides of the truck in letters with a minimum of height of three inches, made discernible from other messages on the truck by means of a minimum six inches of blank space around the business name and business telephone number.

(B) A licensee shall ensure the installation of, and shall maintain in good operating condition, the following safety equipment on each of the licensee's ice cream trucks:

(1) Warning signs painted or mounted on the front and back of each truck, with the words "CHILDREN CROSSING" appearing on a display that is eight inches high by forty-eight inches wide. At least one additional sign shall be painted or mounted on the rear of each truck above the first sign and shall read "WARNING" in English and "PRECAUCIÓN" in Spanish. All lettering shall be black lettering, at least four inches high, on a yellow background with a black border a minimum of one-half inch around each sign; and

(2) A convex mirror mounted on the front and rear of the vehicle so that the driver, in his normal sitting position, can see the area in front of the truck obscured by the hood and an area in the rear extending across the truck and four feet to the rear of the bumper.

(C) A licensee shall ensure the installation of, and shall maintain in good operating condition, the following additional safety equipment on each of the licensee's ice cream trucks:

(1) A flashing amber warning light on the roof as required by NRS 484.582;

(2) A signal arm that can be extended horizontally from the left side of the truck. This arm shall be yellow in color and contain on the rearward surface two alternately flashing amber lights three to five inches in diameter. The bottom of the signal arm shall be forty-two inches above the street;

(3) Standard vehicle warning flashers; and

(4) Any other safety equipment required by the Nevada Revised Statutes.

(Ord. No. 6115, § 10, 10-6-10; Ord. 5661 § 5, 2003: Ord. 5040 § 11, 1997)

6.47.110 Insurance required.

Each licensee must obtain through a properly licensed insurance company, and thereafter maintain in full force at all times, public liability and property damage insurance which shall protect the public against any and all claims for damages for personal injuries, including death, and against claims for property damages which may arise out of or in connection with any operations or activities of an ice cream truck. Such insurance shall be in amounts of not less than one hundred thousand dollars for injuries, including death, to any one person; subject to the same limit for each person in an amount of not less than three hundred thousand dollars for injuries, including death, to more than one person on account of any one accident; and not less than twenty-five thousand dollars in property damage coverage for each accident. The policy or policies of insurance must name the City as an additional insured, and proof of the required coverage must be provided to the Department.

(Ord. No. 6115, § 11, 10-6-10; Ord. 5040 § 12, 1997)

6.47.120 Occupants of truck—Limitations.

During any time that an ice cream truck is in operation for business, no one other than the driver and one additional person may occupy or ride in the vehicle. The driver and additional occupant, if any, must be either the licensee or an employee of the licensee.
(Ord. No. 6115, § 12, 10-6-10; Ord. 5040 § 13, 1997)

6.47.130 Exemptions.

An ice cream truck business shall not be subject to the provisions of LVMC Chapter 6.62, but shall be subject to all applicable regulations and requirements of the Health District.
(Ord. No. 6115, § 13, 10-6-10; Ord. 5040 § 14, 1997)

CHAPTER 6.50 LIQUOR CONTROL

6.50.010 Liquor control—Regulatory powers declared.

The City Council declares that this Alcoholic Beverage Control Chapter is an exercise of the regulatory powers delegated to the City Council pursuant to the City Charter and NRS 268.090, inter alia. The regulations contained in this Chapter involve, to the highest degree, the economic, social, physical and moral well-being of the residents and taxpayers of the City. The sale or other disposition of alcoholic beverages is not a matter of right but of privilege, which would otherwise be unlawful if it were not exercised pursuant to a license. This privilege may be denied, revoked, conditioned, suspended or subjected to any other disciplinary action by the City in the exercise of its police powers for the protection of the safety, welfare, health, peace and morals of the residents and taxpayers thereof. Businesses engaged in the sale or other disposition of alcoholic beverages must therefore comply with LVMC Chapter 6.06. Every person licensed pursuant to this Chapter shall cooperate with Department and Metro personnel in the exercise of their duties under this Chapter. Nothing in this Chapter shall be construed to confer any legitimate claim of entitlement to any benefit which might otherwise devolve upon any licensee or any person approved for suitability.
(Ord. No. 6071, § 1, 12-16-09; Ord. 5607 § 2, 2003)

6.50.020 Definitions.

Unless the context otherwise requires, the scope of all words in this Chapter shall be liberally construed in order to effectuate the purpose of this Chapter, and, in particular, the following words shall have the meaning ascribed to them as follows:

"Adult" means, for the purposes of this Chapter, a natural person over the age of twenty-one years.

"Alcohol caterer" means a person who serves, pours or sells alcoholic beverages only for consumption on the premises where the same are dispensed, served or sold during the times, dates and places specified by permit.

"Alcoholic beverage" includes alcohol, spirits, liquor, wine and beer, and coolers, and every liquid or solid which contains alcohol, spirits, liquor, wine or beer or coolers; and which contains one-half of one percent or more of alcohol by volume; and which is fit for beverage purposes, either alone or when diluted, mixed or combined with other substances. Any liquid or solid containing beer or wine in combination with any other alcoholic beverage shall not be construed to be beer or wine.

"Ancillary," with reference to a business or use, means accessory and subordinate to a principal business or use. With reference to licenses or license types, the term refers to an endorsement or condition that can be added to another license authorized by this Chapter.

"Art gallery" means a business establishment whose primary business is the display, exhibit and sale of fine art for purchase by the general public. For the purpose of this definition, "fine art" means:

(1) A work of visual art such as a painting, sculpture, drawing, mosaic or photograph;

(2) A work of written art, such as calligraphy;

(3) A work of graphic art, such as an etching, a lithograph, an offset print, a silkscreen, or any other work of like nature;

(4) A work in craft materials, including, but not limited to, clay, textile, wood, metal, plastic or glass; or

(5) A work in mixed media, which is a work that is any combination of the art media set forth in this definition.

"Banquet establishment" means any establishment which is rented by individuals or groups to accommodate events such as banquets, weddings, anniversaries and other similar private events. Such establishment may or may not include:

(1) Kitchen facilities for the preparation or catering of food.

(2) Outdoor gardens or reception facilities.

"Bar" means a physical structure from which alcoholic beverages are poured or served by the drink to patrons or where alcoholic beverages are maintained for pouring or service to patrons. The structure may be permanent or temporary.

"Beer" means any alcoholic beverage obtained by the fermentation of any infusion or decoction of barley, malt, hops or similar product, or any combination thereof, in water.

"Beneficial owner" means a person who possesses a lease or other evidence of possessory property rights for the premises for which a license is sought for the full period for which the license is to be used.

"Bridal shop" means an establishment that primarily markets and sells clothing or products relating to brides or weddings.

"Cider" means an alcoholic beverage made from the fermentation of fruit juice that contains not less than one-half of one percent and not more than eight percent of alcohol by volume.

"Concert hall" means a building with a stage designed for the performance of concerts.

"Container," except as the context otherwise requires, means a receptacle provided by an establishment (or otherwise) for containing alcoholic beverages.

"Convenience store" means a retail establishment other than a drugstore, which:

(1) Offers for sale prepackaged food products, household items and other goods commonly associated with those products and items, and maintains more than fifty-one percent of its gross retail floor area dedicated to such products and items, provided that not more than ten percent of its gross retail floor area is devoted to the sale of beer, wine and coolers; and

(2) Except as otherwise provided in this Paragraph (2), contains not less than one thousand two hundred square feet, nor more than five thousand square feet of floor space devoted to retail sales display, exclusive of warehouse and office areas. The minimum size requirement in the preceding sentence does not apply to a development that qualifies as mixed-use under LVMC Title 19.

"Convention center or arena" means a structure or other space utilized for scheduling, hosting or accommodating a convention, trade show or temporary event, whether the activity is open or closed to the general public. For purposes of this Chapter, the term includes a stadium facility that may be operated in conjunction with a convention center, but does not include a permanent trade show facility.

"Cooler" means any prepackaged alcoholic beverage, other than beer or wine, that is a distillate obtained from the fermentation of the natural contents of fruits or other agricultural products containing natural or added sugar, which contains not more than ten percent of alcohol by volume. For informational purposes, the term includes prepackaged mixed cocktails that qualify under the preceding sentence.

"Cultural establishment" means a facility which charges a fee for admission and is dedicated to performing arts, history or education and where food is provided in a concession space.

"Downtown Entertainment Overlay District" has the meaning and boundaries as described in LVMC 19.10.120.

"Downtown Las Vegas Overlay District" has the meaning and boundaries as described in LVMC 19.10.110.

"Drugstore" means a business establishment which occupies the entire business premises of a building, or a portion of the business premises of a building which is segregated physically or spatially from the rest of the business premises, where a State licensed pharmacist is present at all times the pharmacy operation is open for the purpose of

compounding or dispensing, or both compounding and dispensing of drugs and medicines, and where a grill and fountain service is permitted as well as the retail sales of sundries, including stationery, magazines, cosmetics and health items. For an establishment to qualify as a drugstore, the annual gross revenue from the sale of prescription pharmaceuticals must be in excess of fifty percent of the establishment's total gross revenue on a calendar year basis.

"General retail store" means a business established for the retail sale of general merchandise in excess of five thousand square feet of floor space devoted for the sale of multiple line products provided that not more than ten percent of its gross retail floor area is devoted to beer, wine and coolers, unless there is a greater amount of floor area otherwise specified by a land use approval or permitted by condition on the alcoholic beverage license.

"Gift shop, resort hotel leased" means a discrete area within a resort hotel, owned and operated by a person other than the owner of the resort hotel, that sells clothing and miscellaneous sundries appropriate as gifts, as well as other items, including, but not limited to newspapers, magazines, and foodstuffs. A resort hotel leased gift shop may only sell alcoholic beverages upon the receipt of a valid, unexpired alcoholic beverage license by the operator of the gift shop and the floor area for the display of alcoholic beverages shall not exceed fifty square feet.

"Gift shop, resort hotel owned" means a discrete area within a resort hotel, owned and operated by the resort hotel, that sells clothing and miscellaneous sundries appropriate as gifts, as well as other items, including, but not limited to newspapers, magazines, and foodstuffs. A resort hotel owned gift shop may sell alcoholic beverages without having to obtain a separate package alcoholic beverage license if the resort hotel is authorized to sell alcoholic beverages pursuant to a full alcohol on premise alcoholic beverage license and the floor area for the display of alcoholic beverages does not exceed fifty square feet.

"Golf course" means any links consisting of at least eighteen holes which have been certified by the United States Golf Association for individual and group play and which provide a variety of golf facilities, including, but not limited to at least one or more of the following: A driving range, golf lessons, motorized golf carts; a professional golf shop or a clubhouse. Each golf cart that maintains alcoholic beverages for pouring or service to patrons of a golf course, or is used to serve or pour alcoholic beverages to patrons of a golf course is considered to be a separate bar for purposes of this Chapter. Miniature golf and/or putting course facilities and electronically simulated golf courses are not to be considered golf courses for purposes of this definition.

"Groceries" means staple food stuffs, dairy products, meats and produce meant for human consumption; articles used in the preparation of food; and household supplies.

"Grocery store" means a business establishment which occupies all of the business premises of a building or a portion of the business premises of a building which is segregated physically or spatially from the rest of the business premises, and which contains more than five thousand square feet of floor space, exclusive of warehouse and office space, for the

display and sale of foodstuffs, whether fresh, frozen, canned or packaged, and may include the sales of other products, including non-food items, alcoholic beverages (if licensed by the City for the sale of alcoholic beverages), and pharmaceuticals, provided the sale of such pharmaceuticals is incidental to the primary business of selling products other than pharmaceuticals. The term does not include an establishment in which more than ten percent of the gross retail floor area of the establishment premises consists of alcoholic beverages.

"Hotel" means, for purposes of this Chapter, a "resort hotel" as defined by LVMC 6.40.020(F), except when the term is used in conjunction with a specific term which lists the number of rooms required. A "hotel," if not a "resort hotel," contains not less than twenty guest rooms in a single or connected structure, access to which is controlled through a foyer and hallways; provides rooms which are let or hired out only to transient guests on a day-to-day basis; and does not provide for cooking in individual rooms or suites.

"Individual access" means the provision of a secured cabinet or refrigerator with alcoholic beverages, access to which is controlled by an adult.

"Key employee" means an employee designated by a business licensee to oversee the operations of the business in the absence of the licensee.

"Liquor store" means a specialty retail store with a minimum gross floor area of one thousand two hundred square feet that deals exclusively in alcoholic beverages and related items including tobacco, magazines, newspapers and packaged snack foods, whose license to sell alcoholic beverages authorizes their sale to consumers only and not for resale, in original sealed or corked containers, for consumption off the premises where the same are sold. Entry to minors is not allowed, except as provided for in LVMC 6.50.170.

"Lounge" means a room or designated area wherein alcohol is served or poured from a licensed liquor service area to patrons where food is not served or is incidental to its operation and may contain an informal setting of tables, booths or easy chairs, and into which room or designated area minors are not permitted entry. Such room or area must be separated and segregated with a barrier and signage sufficient to preclude minors from entry.

"Malt beverage" means beer, ale, porter, stout and other similar fermented beverages of any name or description, brewed or produced from malt, wholly or in part.

"Meal" means an assortment of food listed on a menu which must include entrees, appetizers, side items and desserts available for purchase at various hours of the day.

"Minor" means, for the purposes of this Chapter, a natural person under the age of twenty-one years.

"Museum" means a facility with no less than fifteen thousand square feet of exhibit space open to the general public where a fee is charged for admission and the primary purpose of such facility is the acquisition, preservation, study and exhibition of items of artistic, historic or scientific value.

"Off-premise" generally means or refers to the sale of alcoholic beverages in original sealed or corked containers for consumption off the premises where the same are sold. However, when the term appears within the name of a license category, its appearance shall not be deemed to diminish or narrow the category or the rights and privileges pertaining to that category. The provisions of this Chapter, licenses issued under this Chapter, and associated conditions and endorsements shall govern and control what is authorized by licenses under these categories.

"On-premise" generally means or refers to the sale of alcoholic beverages for consumption on the premises where the same are sold. However, when the term appears within the name of a license category, its appearance shall not be deemed to diminish or narrow the category or the rights and privileges pertaining to that category. The provisions of this Chapter, licenses issued under this Chapter, and associated conditions and endorsements shall govern and control what is authorized by licenses under these categories.

"Pedestrian mall" means an area designated in LVMC Chapter 11.68.

"Permanent trade show" means an event held at a permanent trade show facility where products, goods or wares are displayed for the purpose of exhibitors demonstrating and soliciting orders for the wholesale of or offering for wholesale of such products, goods or wares exclusively to members of a specific industry or industries.

"Permanent trade show facility" means a parcel or contiguous parcels of land with one or more buildings located thereon consisting of a minimum of two hundred fifty thousand square feet of floor space that is designed and intended primarily to conduct one or more permanent trade shows annually, at which members of the general public are not admitted. A "permanent trade show facility" may also be used for events to which the general public is invited.

"Private event" means an "invitation only" event, often connected to membership in, or acquaintance with, an organization or person hosting the event. The term includes weddings, anniversaries, holiday parties, proms, birthday parties and other similar celebrations.

"Public event" means an event open to the general public, where entry is available either for the price of a ticket or admission, or free of charge. The term includes expositions, fairs, dances, concerts, fundraising events and other similar events.

"Restaurant" means a place which is regularly and in a bona fide manner used and kept open for the service of meals to guests for compensation; and which has suitable kitchen facilities connected therewith, containing conveniences for cooking an assortment of foods which may be required for ordinary meals.

"Sale" means the act of selling and, in connection therewith, "sell" means, for compensation or any other private or public business purpose at a commercial location, to sell, serve,

give away, or distribute; or to cause or permit to be sold, served, given away or distributed or to possess with the intent to sell, serve, permit consumption, give away or distribute; or to solicit or receive orders to sell, serve, give away or distribute.

"Special event" means a unique event, such as a festival, concert, community event, grand opening party or similar unique event, including without limitation a "special event" as defined in LVMC Chapter 12.02, and not a recurring business activity required to be licensed under this Title.

"Suit shop" means an establishment that primarily markets and sells tailored suits.

"Wedding chapel" means a business establishment that performs marriages in accordance with State law.

"Wholesale dealer" or "wholesaler" means a person who sells alcoholic beverages for the purposes of resale.

"Wine" means any alcoholic beverage, other than beer, obtained by the fermentation of the natural contents of fruits or other agricultural products containing natural or added sugar, which contains not more than twenty-two percent of alcohol by volume.
(Ord. No. 6806, § 2, 4-6-22; Ord. No. 6787, § 2, 7-7-21; Ord. No. 6746, § 1, 8-19-20; Ord. No. 6625, § 1, 7-18-18; Ord. No. 6608, § 16, 12-6-17; Ord. No. 6607, § 3, 12-6-17; Ord. No. 6602, § 3, 11-15-17; Ord. No. 6505, § 9, 2-3-16; Ord. No. 6266, § 1, 9-4-13; Ord. No. 6262, § 3, 8-7-13; Ord. No. 6259, § 3, 7-10-13; Ord. No. 6232, § 1, 1-23-13; Ord. No. 6134, § 1, 3-2-11; Ord. No. 6118, § 1, 11-3-10; Ord. No. 6071, § 2, 12-16-09; Ord. 5913 § 1, 2007: Ord. 5720 § 1, 2004: Ord. 5656 § 1, 2003: Ord. 5607 § 3, 2003)

6.50.025 Alcoholic beverage license—Alcohol caterer.

(A) An alcohol caterer license authorizes the sale, pouring or serving of alcoholic beverages or the delivery of keg beer to the premises of a purchaser:

(1) By an alcohol caterer or the caterer's authorized employees pursuant to the provisions of LVMC 6.50.350;

(2) Only for consumption on the premises where the same are dispensed, served or sold; and

(3) Only during and at the times, dates and places specified in a permit to provide alcohol caterer services issued pursuant to LVMC 6.50.350.

(B) The general intent of this license category is to facilitate the serving of alcoholic beverages at specified unique events by a person licensed under this Chapter to provide alcohol catering services for such events, without the need for the person or business holding such events to obtain a license or permit under this Chapter for that event. Typical unique events are grand openings, weddings, wedding receptions, bar mitzvahs and birthday parties. Except as provided in the next succeeding sentence, this license category is not intended to and does not allow a person to hire an alcohol caterer on a recurring basis to facilitate the operation of a nightclub or other regular business operation serving alcohol for

on-premise consumption as a means of avoiding the requirement to obtain an appropriate alcoholic beverage license for that location. The preceding sentence does not apply to a banquet establishment in which the service of alcohol complies with LVMC 6.50.030.
(Ord. No. 6806, § 3, 4-6-22; Ord. No. 6266, § 2, 9-4-13; Ord. No. 6071, § 3, 12-16-09)

6.50.030 Alcoholic beverage license—Banquet establishment.

A banquet establishment, although not an alcoholic beverage license category, may include the sales and service of alcohol. However, such service may take place only:

(A) Pursuant to an on-premise alcoholic beverage license or by means of an appropriate alcohol caterer permit; and

(B) If an applicable Title 19 land use approval authorizing such sales and service has been obtained.

(Ord. No. 6806, § 3.5, 4-6-22; Ord. No. 6266, § 3, 9-4-13; Ord. No. 6071, § 4, 12-16-09; Ord. 5607 § 4, 2003)

6.50.040 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.040, which pertained to alcoholic beverage license—beer/wine/cooler on-sale and derived from Ord. No. 6390, adopted December 17, 2014 and Ord. No. 6266, adopted September 4, 2013.

6.50.045 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.045, which pertained to alcoholic beverage license—beer/wine/cooler cinema license and derived from Ord. No. 6071, adopted December 16, 2009.

6.50.050 Alcoholic beverage license—Beer and wine off-premise.

(A) Except as otherwise provided in this Section, a beer and wine off-premise license authorizes the sale, to consumers only and not for resale, only of beer, wine and coolers, in original sealed or corked containers, for consumption off the premises where business is conducted.

(B) Pursuant to its general authority to regulate the sale of alcoholic beverages, the City Council declares that the public health, safety and general welfare of the City are best promoted and protected by specifically limiting the type of establishments which are permitted to sell beer, wine and coolers in original sealed or corked containers for consumption away from the establishment where such beverages are purchased. A beer and wine off-premise license shall only be considered for or in conjunction with the following types of establishments:

(1) Grocery store;

(2) Convenience store;

(3) Drugstore;

(4) General retail store;

(5) Resort hotel leased gift shop; or

(6) An establishment with a beer and wine on-premise license pursuant to LVMC 6.50.080, but only in accordance with, and subject to the limitations of, Subsection (D) of this Section.

(C) No person is entitled to apply for consideration or issuance of a beer and wine off-premise license for any establishment located on or adjacent to a pedestrian mall unless the license is:

(1) For or in connection with a resort hotel leased gift shop establishment; or

(2) For a location with an unexpired special use permit approval under LVMC Title 19 that authorizes the activity allowed by that license.

(D) A beer and wine off-premise license under this Subsection (D) authorizes the sale for off-premise consumption of beer, malt or wine beverages only, and only those that have been manufactured by the licensee under the authority of NRS Chapter 369 and at a location within the State. In addition to any other requirement or limitation that may apply, the sale of beer, malt or wine beverages for off-premise consumption by an establishment licensed under this Subsection (D) is subject to the following requirements and limitations:

(1) Such beverages must be in their original sealed containers at the time of sale; and

(2) Except as otherwise provided in this Paragraph (2), such beverages must be sold in containers sold or provided by the establishment. Notwithstanding the preceding limitation, the establishment may sell and provide such a beverage to a customer in a sanitary container provided by the customer, but only if:

(a) The container is made of glass, ceramic or metal and has a maximum capacity of one gallon;

(b) The licensee or the licensee's employee fills the container at the time of sale;

(c) The container, before transfer to the customer, is capped with a cork or a screw top or flip top cap or lid, and then sealed with a plastic adhesive or tamper-evident seal; and

(d) The container is thereafter removed from the premises in that sealed condition and the beverage is not consumed on the licensee's premises.

(E) An establishment with a beer and wine off-premise license may provide for the tasting of beverages that are authorized by the license to be sold, subject to the following conditions:

(1) The tasting of beverages at that location must have been authorized by means of an ancillary activity endorsement or condition of the alcohol beverage license;

(2) No sample may exceed one-half ounce per drink; and

(3) Each sample must be served on the premises of the licensee for educational purposes or to promote the sale of packaged alcoholic beverages.

(F) An establishment with a beer and wine off-premise license may provide for instructional wine-making in accordance with LVMC 6.50.100(A)(2), but only if authorized to do so at that location by means of an ancillary activity endorsement or condition of the alcohol beverage license.

(Ord. No. 6806, § 4, 4-6-22; Ord. No. 6681, § 1, 4-3-19; Ord. No. 6505, § 10, 2-3-16; Ord. No. 6320, § 1, 5-21-14; Ord. No. 6266, § 6, 9-4-13)

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.050, and § 9 of Ord. No. 6266 enacted a new § 6.50.0540 as set out herein. The former § 6.50.050 pertained to alcoholic beverage license—beer/wine/cooler on-sale and derived from Ord. No. 5607, 2003; Ord. No. 6071, adopted December 16, 2009 and Ord. No. 6090, adopted May 5, 2010.

6.50.060 Alcoholic beverage license—Full alcohol on-premise.

(A) A full alcohol on-premise license authorizes the sale of alcoholic beverages for consumption on the premises where the same are sold.

(B) Before an establishment with a full alcohol on-premise license issued pursuant to this Section may serve any alcoholic beverage, the holder must submit to the Director for approval an alcohol control plan and receive the Director's approval of the plan. Any updates to the alcohol control plan must be submitted to and approved by the Director before implementation.

(Ord. No. 6806, § 5, 4-6-22; Ord. No. 6787, § 3, 7-7-21; Ord. No. 6681, § 1, 4-3-19; Ord. No. 6602, § 4, 11-15-17; Ord. No. 6266, § 7, 9-4-13)

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.060, and § 7 of Ord. No. 6266 enacted a new § 6.50.060 as set out herein. The former § 6.50.060 pertained to alcoholic beverage license—beer/wine/cooler off-sale and derived from Ord. No. 5607, 2003.

6.50.070 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.070, which pertained to alcoholic beverage license—beer/wine/cooler on-off-sale and derived from Ord. No. 5607, 2003; Ord. No. 6071, adopted December 16, 2009 and Ord. No. 6090, adopted May 5, 2010.

6.50.075 Alcoholic beverage license—Craft winery.

(A) A craft winery alcoholic beverage license authorizes the manufacture of wine beverages at the licensed establishment, as well as the on-premise and off-premise sale of wine beverages manufactured at the establishment. The licensee may hold additional alcoholic beverage licenses that enable the sale of alcoholic beverages not manufactured by the establishment if to do so does not conflict with State law.

(B) A craft winery alcoholic beverage license shall only be issued subject to the following conditions:

(1) The manufacture and sale of the wine beverages produced at the location shall comply with all relevant State and Federal laws regarding the manufacture and sale of wine beverages; and

(2) Prior to issuance of a craft winery alcoholic beverage license by the City, the applicant shall present proof of State licensure of the establishment as a winery.

(C) Notwithstanding any provision of this Chapter that might otherwise prohibit or limit the activity, an establishment with a craft winery alcoholic beverage license may, pursuant to NRS 597.240:

(1) Serve to consumers, for on-premise consumption, samples of its wine that has been produced, blended or aged at the licensed establishment; and

(2) Sell to consumers, for on-premise or off-premise consumption, wine that has been produced, blended or aged at the licensed establishment.

(D) Nothing in Subsection (C) shall be deemed to authorize any activity that is not authorized (or is prohibited) by State law.
(Ord. No. 6806, § 6, 4-6-22; Ord. No. 6735, § 1, 5-6-20)

6.50.080 Alcoholic beverage license—Beer and wine on-premise.

A beer and wine on-premise alcoholic beverage license authorizes the sale of beer, wine and coolers only, and only for consumption:

(A) On the premises where the same are sold; or

(B) Within the confines of a limousine operated by a limousine service licensed by the City and the Nevada Taxicab Authority, subject to the following requirements and limitations:

(1) For purposes of this Subsection (B), the term "limousine" includes only a "traditional limousine" as defined by NAC 706.124, and does not include a "livery limousine" as defined by NAC 706.080 or a "bus" as defined by NAC 706.022.

(2) One bottle of sparkling wine or champagne, no larger than seven hundred fifty milliliters in capacity, may be provided by the driver of a limousine to passengers on a complimentary basis.

(3) Such bottle of sparkling wine may only be consumed within the confines of the limousine during the specific trip for which it was provided, whether the trip is considered a charter service by limousine pursuant to NAC 706.036, a scenic tour pursuant to NAC 706.112 or an airport transfer service pursuant to NAC 706.015.

(4) The driver of the limousine shall not provide sparkling wine or champagne pursuant to this Subsection (B) if there are passengers under twenty-one years of age traveling in the limousine, unless those passengers are accompanied by a parent or legal guardian.

(5) Persons employed by the limousine service who are engaged in the provision of sparkling wine or champagne, or who supervise employees so engaged, shall comply with any requirements of the Director regarding health cards, work cards or alcohol awareness training.

(6) Neither the limousine service nor its drivers shall provide, sell or otherwise serve any alcoholic beverage by any means other than as provided by this Subsection (B).

(Ord. No. 6806, § 7, 4-6-22; Ord. No. 6682, § 1, 4-3-19; Ord. No. 6248, §§ 1, 2, 5-1-13)

Editor's note—Ord. No. 6248, § 1, adopted May 1, 2013, repealed the former § 6.50.080, and § 2 of Ord. No. 6248 enacted a new § 6.50.080 as set out herein. The former § 6.50.080 pertained to alcoholic beverage license—pub/tavern and derived from Ord. No. 5607, 2003.

6.50.085 Alcoholic beverage license—Brew pub alcoholic beverage.

(A) A brew pub alcoholic beverage license authorizes the manufacture of malt beverages at the licensed establishment, as well as the on-premise and off-premise sale of malt beverages manufactured at the establishment. The licensee may hold additional alcoholic beverage licenses that enable the sale of alcoholic beverages not manufactured by the establishment if to do so does not conflict with State law.

(B) A brew pub alcoholic beverage license shall only be issued subject to the following conditions:

(1) The manufacture and sale of the malt beverages produced at the location shall comply with all relevant State and Federal laws regarding the manufacture and sale of malt beverages;

(2) Malt beverages manufactured by the licensee and sold at retail pursuant to NRS 597.230 must be in their original sealed containers at the time of sale; and

(3) Prior to issuance of a brew pub license by the City, the applicant shall present proof of State licensure of the establishment as a brew pub.

(C) Notwithstanding any provision of this Chapter that might otherwise prohibit or limit the activity, the holder of a brew pub alcoholic beverage license may dispense beer or cider, for off-premise consumption, in a container sold or provided by the licensee, or a sanitary container provided by the customer, but only if:

(1) The container is made of glass, ceramic or metal and has a maximum capacity of one gallon;

(2) The licensee or the licensee's employee fills the container at the time of sale;

(3) The container, before transfer to the customer, is capped with a cork or a screw top or flip top cap or lid, and then sealed with a plastic adhesive or tamper-evident seal; and

(4) The container is thereafter removed from the premises in that sealed condition and the beer or cider is not consumed on the licensee's premises.

(Ord. No. 6806, § 8, 4-6-22; Ord. No. 6681, § 2, 4-3-19; Ord. No. 6611, § 1, 2-21-18; Ord. No. 6248, § 3, 5-1-13)

6.50.090 Alcoholic beverage license—Craft distillery.

(A) A craft distillery alcoholic beverage license authorizes the manufacture of craft distilled beverages at the licensed establishment, as well as the on-premise and off-premise sale of craft distilled beverages manufactured at the establishment. The licensee may hold additional alcoholic beverage licenses that enable the sale of alcoholic beverages not manufactured by the establishment if to do so does not conflict with State law. A license under this Section is subject to the following conditions and requirements, in addition to any and all others that apply:

(1) In order to qualify for a license under this Section, the applicant must first present proof of State licensure of the establishment under NRS Chapter 369.

(2) The manufacture and sale of craft distilled beverages produced at the location shall comply with all relevant State and Federal laws regarding the manufacture and sale of craft distilled beverages.

(B) The sale of beverages for on-premise or off-premise consumption by an establishment licensed under this Section is limited to craft distilled beverages that have been manufactured at the establishment.

(C) Notwithstanding any provision of this Chapter that might otherwise prohibit or limit the activity, an establishment with a craft distillery alcoholic beverage license may, pursuant to NRS 597.235:

(1) Serve to consumers samples of its manufactured craft distilled beverages; and

(2) Sell to consumers, for off-site consumption, its manufactured craft distilled beverages.

(Ord. No. 6806, § 9, 4-6-22; Ord. No. 6612, § 5, 2-21-18)

6.50.095 Alcohol delivery support service.

(A) An alcohol delivery support service alcoholic beverage license authorizes a person to deliver alcoholic beverages on behalf of an establishment that sells alcoholic beverages for off-premise consumption. Each alcoholic beverage delivered pursuant to this license:

(1) Must be in the original manufacturer-sealed container or a sealed container qualifying under LVMC 6.50.085(C);

(2) Must have been purchased from the establishment by a consumer for delivery to the premises requested by the purchaser;

(3) Must have been purchased by telephone, internet or other electronic means; and

(4) Is subject to the sales and delivery restrictions set forth in LVMC 6.50.100(B).

(B) Before a license described in this Section may be issued, the applicant must establish and provide to the Department for Director approval a delivery policy designed to ensure that the requirements of this Section and State law in relation to the delivery of alcoholic beverages are met.

The delivery policy must include at a minimum:

(1) Protocols to ensure that drivers are twenty-one years or older;

(2) Alcohol awareness training for drivers, which includes at a minimum:

(a) Reviewing relevant State laws, including those that prohibit buying for or selling to minors;

(b) Reviewing possible criminal and civil penalties that might be imposed for the violation of laws and ordinances governing the licensee's operation;

(c) Checking for valid identification documents, recognizing false identification documents, and refusing delivery in the case of suspicious or false identification documents;

(d) Verifying and tracking the personal information of recipients, as well as any recipient signatures that may be obtained; and

(e) Identifying and refusing delivery to intoxicated recipients.

(3) Procedures to ensure that each delivery address is in a jurisdiction in which the delivery of alcohol is permitted and that the delivery will be in accordance with the applicable delivery regulations of that jurisdiction;

(4) Procedures to ensure that deliveries are not made to the location of any nonrestricted gaming, as proscribed by LVMC 6.50.100(B)(4);

(5) Procedures to document how delivery data will help ensure compliance, with such documentation to be made available for audit when requested by the City;

(6) Procedures for conducting background checks regarding drivers; and

(7) Procedures documenting how certain delivery information is gathered and maintained that includes at a minimum the items described in LVMC 6.50.100(B)(2).

(C) Each holder of an alcohol delivery support service alcoholic beverage license shall maintain a list of the establishments with which the holder has entered into contracts for delivery service pursuant to this Section.

(D) The delivery policy referred to in Subsection (B) must be maintained in force and a copy produced to the Department or Metro upon request.

(E) Each licensee is responsible for the conduct and violations of any driver it employs, whether the driver is an employee or independent contractor and regardless of any contractual arrangement between the selling establishment and the driver.
(Ord. No. 6763, § 1, 1-20-21)

6.50.100 Alcoholic beverage license—Specialty sales.

(A) A person with a license that qualifies under Paragraphs (1) through (3) of this Subsection (A) may apply for and obtain, as part of a qualifying license, an endorsement or license condition that authorizes the ancillary specialty sales activity described in those Paragraphs. In each case, the licensee shall adhere to the conditions applicable to that activity, as follows:

(1) Internet and Related Sales. A person licensed pursuant to this Chapter to sell alcoholic beverages for off-premise consumption, or a restaurant licensed to sell alcoholic beverages in connection with a meal, may offer and sell such beverages by telephone, internet or other electronic means, and may provide for the delivery of such beverages to the premises requested by the purchaser, either through direct delivery by the licensee or by means of an alcohol delivery support service that is licensed pursuant to LVMC 6.50.095 and that meets the requirements of that Section and Subsection (B) of this Section. The "delivery" authorized by this Paragraph (1) also includes delivery of such beverages by the seller to a customer by means of onsite or curbside pickup. In each case of onsite or curbside pickup, each such beverage must be in the original manufacturer-sealed container, and the ages of the person placing the order and the person receiving it must be verified.

(2) Instructional Wine-Making. A person authorized to sell alcoholic beverages pursuant to a beer and wine off-premise license or package liquor license may instruct persons regarding the making of wine provided that such licensee first acquires, and maintains in good standing, any required State license or permit.

(a) Wines made during the instructional process may be served by the glass for consumption on the premises of the instructional establishment to those persons involved with the instructional process.

(b) Notwithstanding the provisions of LVMC 6.50.430, persons who have made wine during an instructional process pursuant to this Section may place such wine in bottles or containers and remove them from the instructional establishment, but only for their personal use.

(3) Individual Access. An owner or beneficial owner of a hotel, resort hotel, sports arena or convention center that is authorized to sell alcoholic beverages pursuant to a full alcohol on-premise license or beer and wine on-premise license may sell alcoholic beverages by individual access pursuant to the following conditions:

(a) For individual access in a hotel room:

(i) The hotel must provide a full-service restaurant that serves meals no less than twelve hours every day, room service of meals (which may include alcoholic beverages) to all rooms no less than twelve hours every day, and no less than one full-time security guard on duty at all times;

(ii) The hotel must provide a secure means by which an adult transient guest may control the access to the secured cabinet or refrigerator from minors that occupy the hotel room; and

(iii) The adult transient guest shall not permit any minors that are occupying the hotel room to access the secured cabinet or refrigerator.

(b) For individual access in a booth or viewing suite at a convention center or sports arena:

(i) The alcoholic beverages for the booths or viewing suites shall be provided to the tenant by the licensee. Notwithstanding any other provision of this Chapter, a tenant of the booth or viewing suite shall not bring any alcoholic beverages into the booth or viewing suite nor consume any alcohol within the booth or suite that was not provided by the licensee;

(ii) The booth or viewing suite must be under the operational control of the licensee;

(iii) The licensee shall possess ultimate control of the cabinet or refrigerator inside the booth or viewing suite, and the lock of the refrigerator or cabinet shall be designed such that the key may not be removed from the refrigerator or cabinet without locking the refrigerator or cabinet;

(iv) The licensee shall only deliver the key to the refrigerator or cabinet to an adult utilizing the booth or viewing area; and

(v) The adult in receipt of the key shall not permit any minors that have access to the booth or viewing area access to the key or access to the open refrigerator or cabinet containing the alcoholic beverages.

(B) Delivery Restrictions. Delivery of alcoholic beverages pursuant to LVMC 6.50.095 or 6.50.100(A)(1) above may only occur pursuant to the following conditions:

(1) The person placing an order and the person receiving the alcoholic beverages must be of legal age to purchase alcoholic beverages;

(2) Each sales transaction for delivery shall have written documentation of the sale and delivery, which shall include at a minimum:

(a) The business name and address of the selling establishment;

(b) A detailed list of alcoholic beverages and other items purchased in each sales transaction;

(c) The name and address of the purchaser and of the recipient;

(d) The type of identification used to prove the age of the purchaser and of the recipient; and

(e) The signature of the delivery person;

(3) If delivery of alcoholic beverages is to be accomplished by someone other than the selling establishment, the delivery service provider must hold an alcohol delivery support service alcoholic beverage license pursuant to LVMC 6.50.095 and be in compliance with that Section; and

(4) Delivery of alcoholic beverages must not be made to any parcel upon which nonrestricted gaming is conducted pursuant to or in accordance with LVMC 6.40.150.

(C) Alcoholic beverages sold pursuant to an ancillary activity endorsement under this Section shall be stored in such a manner that prevents public access.

(D) Notwithstanding any provision of this Title to the contrary, an ancillary activity endorsement under this Section is nontransferable.

(Ord. No. 6806, § 10, 4-6-22; Ord. No. 6784, § 1, 6-16-21; Ord. No. 6763, § 2, 1-20-21; Ord. No. 6505, § 11, 2-3-16; Ord. No. 6266, § 8, 9-4-13)

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.100, and § 8 of Ord. No. 6266 enacted a new § 6.50.100 as set out herein. The former § 6.50.100 pertained to alcoholic beverage license—gift basket limited and derived from Ord. No. 5607, 2003 and Ord. No. 6071, adopted December 16, 2009.

6.50.110 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.110, which pertained to alcoholic beverage license—gift shop limited and derived from Ord. No. 5607, 2003.

6.50.115 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.115, which pertained to grocery store or mega store internet sale license and derived from Ord. No. 5645, 2003 and Ord. No. 6071, adopted December 16, 2009.

6.50.120 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.120, which pertained to alcoholic beverage license—ancillary lounge bar and derived from Ord. No. 5607, 2003; Ord. No. 5720, 2004 and Ord. No. 6118, adopted November 3, 2010.

6.50.130 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.130, which pertained to alcoholic beverage license—keg beer and derived from Ord. No. 5607, 2003 and Ord. No. 6071, adopted December 16, 2009.

6.50.140 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.140, which pertained to alcoholic beverage license—instructional wine-making and derived from Ord. No. 6071, adopted December 16, 2009.

6.50.145 Alcoholic beverage license—Manufacturing—Compliance.

(A) A liquor manufacturer's license authorizes the manufacture, production and bottling of alcoholic beverages of all kinds, including the brewing, distilling and rectifying activities associated therewith. The holder of such a license is subject to all Federal and State statutes and regulations applicable to those activities.

(B) Notwithstanding any provision of this Chapter that might otherwise prohibit or limit the activity, an establishment with a liquor manufacturer's license may, on the premises and for educational purposes, serve samples of alcohol manufactured on the premises to guests or visitors, subject to the following limitations:

(1) The serving of samples at that location must have been authorized by means of an ancillary activity endorsement or condition of the alcohol beverage license;

(2) On any particular day, no one guest or visitor may be served more than one-half ounce of the same drink type and no more than four ounces total; and

(3) No container of alcoholic beverages opened for tasting purposes may be sold, given away or otherwise distributed.

(C) Nothing in Subsection (B) shall be deemed to authorize any activity that is not authorized (or is prohibited) by State law.
(Ord. No. 6806, § 11, 4-6-22; Ord. No. 6806, § 11, 4-6-22; Ord. No. 6126, § 1, 1-19-11)

6.50.150 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.150, which pertained to alcoholic beverage license—nonprofit club general on-sale and derived from Ord. No. 6674, adopted February 6, 2019 and Ord. No. 6266, adopted September 4, 2013.

6.50.160 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.160, which pertained to alcoholic beverage license—nonprofit club restaurant service bar and derived from Ord. No. 5607, 2003 and Ord. No. 6071, adopted December 16, 2009.

6.50.170 Alcoholic beverage license—Package alcohol.

(A) A package alcohol license authorizes the sale, to consumers only and not for resale, of alcoholic beverages, in original sealed or corked containers, for consumption off the premises where the same are sold. In addition, a liquor store that holds a package alcohol license may provide on-premises wine, beer, cordial and liqueur tasting, but only if the licensee also holds a corresponding activity endorsement or license condition for such location.

(B) Pursuant to its general authority to regulate the sale of alcoholic beverages, the City Council declares that the public health, safety and general welfare of the City are best promoted and protected by specifically limiting the type of establishments which are permitted to sell each and every type and quality of alcoholic beverage, without regard to the alcohol by volume in any given beverage, which are sold in original sealed or corked

containers for consumption away from the establishment where such beverages are purchased. A package alcohol license shall only be considered for the following types of establishments:

(1) A grocery store as defined herein by LVMC 6.50.020; or

(2) A liquor store as defined herein by LVMC 6.50.020.

(C) Nothing in this Chapter prohibits a minor from entering or remaining in a store that holds a package alcohol license as long as the minor is continuously accompanied by the minor's parent or legal guardian.

(D) Nothing in this Chapter prohibits the holder of a package alcohol license from dispensing beer or cider in a container sold or provided by a licensee, or a sanitary container provided by the customer, but only if:

(1) The container is made of glass, ceramic or metal and has a maximum capacity of one gallon;

(2) The licensee or the licensee's employee fills the container at the time of sale;

(3) The container, before transfer to the customer, is capped with a cork or a screw top or flip top cap or lid, and then sealed with a plastic adhesive or tamper-evident seal; and

(4) The container is thereafter removed from the premises in that sealed condition and the beer or cider is not consumed on the licensee's premises.

(E) No person is entitled to apply for consideration or issuance of a package liquor license for any establishment located on or adjacent to a pedestrian mall unless the license is for a location with an unexpired special use permit approval under LVMC Title 19 that authorizes the activity allowed by that license.

(F) An establishment with a package alcohol license may provide for the tasting of beverages that are authorized by the license to be sold, subject to the following conditions:

(1) No sample may exceed one-half ounce per drink; and

(2) Each sample must be served on the premises of the licensee for educational purposes or to promote the sale of packaged alcoholic beverages.

(G) An establishment with a package alcohol license may provide for instructional wine-making in accordance with LVMC 6.50.100(A)(2), but only if authorized to do so at that location by means of an ancillary activity endorsement or condition of the alcohol beverage license.

(Ord. No. 6806, § 12, 4-6-22; Ord. No. 6505, § 12, 2-3-16; Ord. No. 6320, § 2, 5-21-14; Ord. No. 6266, § 10, 9-4-13; Ord. No. 6134, § 2, 3-2-11; Ord. No. 6071, § 16, 12-16-09; Ord. 5607 § 18, 2003)

Editor's note—Ord. No. 6266, § 42, includes the following provision: As amended by this ordinance, LVMC 6.50.170 contains a provision indicating that nothing in the package license provisions contained in that Section prohibits the dispensing of beer or cider in certain containers. That provision is not intended to sanction a violation of State law or

regulations regarding the distribution of alcoholic beverages, including the provisions relating to the three-tier system established under State law. The ordinance language assumes that there are circumstances where beverages can be dispensed in those certain containers in a manner consistent with State law. It is the intent of those ordinance provisions merely to indicate that the City's package license regulations do not prohibit the type of dispensing indicated, without any intent to override, supersede, conflict with, impact or otherwise address any related State laws or regulations.

6.50.175 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.175, which pertained to alcoholic beverage license—permanent trade show facility and derived from Ord. No. 5913, 2007.

6.50.180 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.180, which pertained to alcoholic beverage license—restaurant service bar and derived from Ord. No. 5607, 2003.

6.50.190 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.190, which pertained to alcoholic beverage license—time-limited special event beer/wine and derived from Ord. No. 5607, 2003 and Ord. No. 6183, adopted March 7, 2012.

6.50.200 Special event alcohol permit.

A special event alcohol permit authorizes the sale of alcoholic beverages for consumption only on the premises of the location specified in the permit. The permit shall be limited to the period and times specified in the permit and in any applicable special event permit issued under Chapter 12.02.
(Ord. No. 6806, § 13, 4-6-22; Ord. No. 6183, § 7, 3-7-12; Ord. 5607 § 21, 2003)

6.50.205 Special event alcohol permit—Application.

(A) An application for a special event alcohol permit pursuant to LVMC 6.50.200 shall be filed no later than twenty calendar days before the proposed event and must disclose the following information on forms provided by the Department for consideration of approval:

(1) Name and address of the applicant:

(2) Date, hours, address and description of the event;

(3) Approximate number of persons and ages expected to attend the event;

(4) Type of alcoholic beverages to be sold or served at the event;

(5) Names of the sponsors and promoters of the event; and

(6) Names and number of security personnel to be present at the event.

(B) Consideration of approval may be delayed or withheld if an application is incomplete.

(C) At any event for which a special event alcohol permit is issued, security shall be provided in accordance with LVMC 12.02.150.

(D) Except as provided in this Subsection (D), a special event alcohol permit may be approved and issued by the Director following a finding of suitability. For a special event alcohol permit proposed in connection with a special event that requires City Council approval pursuant to LVMC Chapter 12.02, authority to approve the special event alcohol permit lies with the City Council.

(E) Except for those establishments authorized to sell alcoholic beverages for on-premise consumption, no special event alcohol permit may be issued by the Department for any specific private property location for more than twenty-four days in any calendar year. Successive requests for special event alcohol permits may be denied by the Director if the Director has reason to believe that the applicant is using such permits to circumvent the requirement to obtain a permanent alcoholic beverage license.

(F) Any permit issued pursuant to LVMC 6.50.200 shall be limited to the times and dates specified in the permit and listed in the related special event permit application, and shall be conditioned upon:

(1) The approval of a special event permit;

(2) The presence of the permittee or a designee approved by the Business Licensing Division at all times during the special event;

(3) Responsibility of the permittee or a designee approved by the Business Licensing Division for verifying the ages of all persons to whom alcohol beverages are dispensed;

(4) Payment in advance for any security that is to be provided by officers of Metro pursuant to an approved security plan;

(5) Written acknowledgment by the permittee of applicable regulations and restrictions governing the service, consumption and possession of alcohol;

(6) A plan, approved by the Business Licensing Division, to ensure that attendees of the special event do not drink nor possess any open containers of any alcoholic beverages outside of the designated area for the special event; and

(7) The designation and provision of personnel with all required work cards and alcohol awareness cards in sufficient numbers for bartending, serving and security, as approved by the Business Licensing Division.

(G) Special event alcohol permits may not be sold or transferred to another person.
(Ord. No. 6806, § 14, 4-6-22; Ord. No. 6418, § 3, 6-3-15; Ord. No. 6266, § 11, 9-4-13; Ord. No. 6183, § 8, 3-7-12; Ord. No. 6071, § 17, 12-16-09)

6.50.210 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.210, which pertained to alcoholic beverage license—restaurant with alcohol and derived from Ord. No. 5607, 2003; Ord. No. 6071, adopted December 16, 2009 and Ord. No. 6266, adopted September 4, 2013.

6.50.220 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.220, which pertained to restaurant with alcohol—requirements and limitations and derived from Ord. No. 5607, 2003; Ord. No. 6071, adopted December 16, 2009; Ord. No. 6266, adopted September 4, 2013 and Ord. No. 6621, adopted May 16, 2018.

6.50.230 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.230, which pertained to supper club food sale and derived from Ord. No. 5607, 2003.

6.50.240 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.240, which pertained to alcoholic beverage license—tavern and derived from Ord. No. 5607, 2003 and Ord. No. 6320, adopted May 21, 2014.

6.50.250 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.250, which pertained to alcoholic beverage license—tavern-limited and derived from Ord. No. 5607, 2003; Ord. No. 6232, adopted January 23, 2013; Ord. No. 6262, adopted August 7, 2013; Ord. No. 6608, adopted December 6, 2017; Ord. No. 6625, adopted July 18, 2018; Ord. No. 6701, adopted September 18, 2019 and Ord. No. 6729, adopted March 18, 2020.

6.50.253 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.253, which pertained to alcoholic beverage license—tavern-restricted and derived from Ord. No. 6682, adopted April 3, 2019.

6.50.255 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.255, which pertained to alcoholic beverage license—urban lounge and derived from Ord. No. Ord. 5806, 2005; Ord. No. 6320, adopted May 21, 2014 and Ord. No. 6608, adopted December 6, 2017.

6.50.260 Alcoholic beverage license—Wholesale general.

(A) Except as otherwise provided in Subsection (B), a wholesale general license authorizes only the sale of alcoholic beverages, which must be packaged in original sealed or corked containers, to any licensee for the purposes of resale. In order to maintain this license, the licensee must keep on hand a stock of alcoholic beverages whose cost of acquisition is fifty thousand dollars or more.

(B) An establishment with a wholesale general license may provide for the tasting of beverages that are authorized by the license to be sold, subject to the following conditions:

(1) The tasting of beverages at that location must have been authorized by means of an ancillary activity endorsement or condition of the alcohol beverage license;

(2) No sample may exceed one-half ounce per drink; and

(3) Each sample must be served on the premises of the licensee for educational purposes or to promote the sale of packaged alcoholic beverages.

(C) Nothing in Subsection (B) shall be deemed to authorize any activity that is not authorized (or is prohibited) by State law.
(Ord. No. 6806, § 16, 4-6-22; Ord. 5607 § 27, 2003)

6.50.265 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.265, which pertained to cinemas and derived from Ord. No. 6413, adopted May 6, 2015.

6.50.270 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.270, which pertained to alcoholic beverage license—wine/beer/cordial/liqueur tasting and derived from Ord. No. 5607, 2003 and Ord. No. 6071, adopted December 16, 2009.

6.50.280 Alcoholic beverage sales—When prohibited.

(A) Except as otherwise specifically provided by Subsection (B), no person shall engage in the business of selling alcoholic beverages, advertise the same or permit the consumption of alcoholic beverages on the premises of any business establishment without first obtaining and thereafter maintaining a valid unexpired alcoholic beverage license pursuant to this Code. The Department shall not issue a license for the sale, advertisement or consumption of alcoholic beverages except to the owner or beneficial owner of a premises where the alcoholic beverages will be sold, advertised or consumed.

(B) Nothing in Subsection (A) shall be deemed to require a particular business establishment within an outdoor complex or other grouping of business establishments to obtain an alcoholic beverage license if;

(1) That business establishment merely permits the consumption of alcoholic beverages within or near its premises, but either does not sell or serve such beverages, or does so under authority of the "master" or "umbrella" full alcohol on-premise license referred to in Paragraph (2) below;

(2) Such consumption is specifically authorized by and in accordance with the provisions of a "master" or "umbrella" full alcohol on-premise license issued under LVMC 6.50.060 with respect to the outdoor complex or other grouping of business establishments; and

(3) Such consumption is in accordance with the alcohol control plan that has been approved for the full alcohol on-premise license referred to in Paragraph (2) above.

(Ord. No. 6806, § 17, 4-6-22; Ord. No. 6625, § 3, 7-18-18; Ord. No. 6266, § 14, 9-4-13; Ord. 5607 § 29, 2003)

6.50.285 Alcoholic beverage sales—Authorization of additional facilities near or within pedestrian mall.

(A) Notwithstanding any provision in this Chapter to the contrary, but subject to the limitations of this Subsection (A), the owner of an establishment adjacent to or within the pedestrian mall that holds a full alcohol on-premise license is authorized to sell alcoholic beverages through a walk-up window that faces a street alignment within the boundaries of the pedestrian mall, except for the Casino Center Boulevard and 4th Street alignments. Prior to the placement or construction of such window, a licensee shall comply with all requirements of the Director, the Building Official and the Director of Public Works. Such window shall be considered another bar at the establishment for purposes of this Chapter. The authorization for a walk-up window under this Subsection (A) applies only to establishments at qualifying locations that were licensed as taverns prior to April 1, 2022, and had commenced operating such a window as of that date.

(B) Notwithstanding any provision in this Chapter to the contrary, the owner of an establishment licensed to operate nonrestricted gaming that is also authorized to sell alcoholic beverages upon the premises of that establishment pursuant to a full alcohol on-premise license may locate up to two qualifying bars upon an adjacent pedestrian mall, subject to the provisions set forth in Subsections (C) to (G), inclusive, of this Section.

(C) For purposes of this Section, a "qualifying bar" means a temporary or permanent bar that is or will be located directly adjacent to the premises of an establishment described in Subsection (B) and upon a pedestrian mall.

(D) Prior to the placement or construction of any qualifying bar, a licensee shall comply with all requirements of the Director, the Building Official and the Director of Public Works.

(E) For any particular establishment described in Subsection (B), the first qualifying bar is permitted as a matter of right. Except as otherwise provided in Subsection (F), a second qualifying bar may be permitted for an establishment only if it is specifically approved by the City Council as an incident to the establishment's full alcohol on-premise license.

(F) The specific City Council approval referred to in Subsection (E) shall not apply to a second qualifying bar that is either existing or under construction as of March 1, 2014.

(G) This Section, being codified as part of LVMC Chapter 6.50, is intended to address business licensing issues only and does not purport to address property rights or to amend LVMC Chapter 11.68 relating to pedestrian malls. Action taken under the authority granted by this Section is subject to all applicable provisions of LVMC Chapter 11.68.

(Ord. No. 6806, § 18, 4-6-22; Ord. No. 6313, § 1, 4-16-14; Ord. No. 6266, § 15, 9-4-13; Ord. No. 6259, § 2, 7-10-13)

6.50.290 License issuance—Privileges.

A license issued pursuant to this Chapter authorizes the person to whom it is issued to exercise only those privileges expressly permitted pursuant to this Chapter for the specific classification of license issued and only on the premises identified in the license.
(Ord. 5607 § 30, 2003)

6.50.300 License issuance—Thirty-day operation window.

The licensee must commence operation of the business within thirty days after the license has been issued. Thereafter, all semiannual license fees must be paid notwithstanding the fact that the licensee may temporarily discontinue its operation of the business.
(Ord. 5607 § 31, 2003)

6.50.310 Off-premise basis licensee—Sign posting.

Except for those establishments directly adjacent to or upon a pedestrian mall, a person that is authorized to sell alcoholic beverages on an off-premise basis shall post a sign no lower than three feet and no higher than seven feet at each sale counter and at each entrance to the premises advising to the effect that, pursuant to LVMC 10.76.010, it is unlawful for a person to drink an alcoholic beverage or to possess an open container of alcoholic beverage which was purchased in an original sealed or corked container:

(A) Upon any premises, including the parking lot, of an establishment which is licensed to sell alcoholic beverages on an off-premise basis; or

(B) Upon property, other than residential property, located within one thousand feet of an establishment which is licensed to sell alcoholic beverages on an off-premise basis.
(Ord. No. 6806, § 19, 4-6-22; Ord. No. 6266, § 16, 9-4-13; Ord. No. 6071, § 21, 12-16-09; Ord. 5607 § 32, 2003)

6.50.320 License issuance—Privilege permitted, duties required.

The privileges permitted and duties required under any license issued pursuant to this Chapter are not divisible and any transfer of a license or an interest therein must include the transfer of all of the privileges permitted and duties required under such license or interest therein, as the case may be.
(Ord. 5607 § 33, 2003)

6.50.330 Reserved.

Editor's note—Ord. No. 6266, § 4, adopted September 4, 2013, repealed the former § 6.50.330, which pertained to licenses issued prior to November 1, 1980 and derived from Ord. No. 5607, 2003.

6.50.340 Special use permittee—Alcoholic beverage license issuance prohibited.

No alcoholic beverage license shall be issued by the Department to a location which requires a special use permit pursuant to the provisions of LVMC Title 19 unless such location is first approved for a special use permit pursuant to the procedures provided for in LVMC Title 19.
(Ord. 5607 § 35, 2003)

6.50.350 Alcohol caterer services—Provisions.

Applicants for a permit to provide alcohol caterer services, as well as permit holders, shall comply with and are subject to the following provisions as applicable:

(A) An application for a permit may be made only by a person who holds a valid unexpired alcohol caterer or on-premise license issued pursuant to this Title.

(B) The application shall be made to the Department on forms provided or approved by the Department, not less than three days prior to the proposed event unless otherwise authorized by the Director or his or her designee upon the applicant showing the impracticability of his or her compliance with the advance filing requirement.

(C) The application shall set forth the following information:

(1) Name and address of the applicant;

(2) Date, hours, address and description of the event;

(3) Approximate number and ages of persons to be in attendance;

(4) Type of alcoholic beverages to be served;

(5) The names of the sponsors and promoters of the event;

(6) The names and number of security personnel to be present at the event;

(7) The names of the employees who will be working at the event including their work card numbers, health card numbers and their respective expiration dates; and

(8) If requested by the Department, a copy of any written contract by which the licensee will provide catering services for the event.

(D) Each event requires a separate permit.

(E) A nonrefundable fee of twenty-five dollars for each permit shall be paid at the time an application for permit is filed. If there is more than one bar in operation at an event a nonrefundable fee of twenty-five dollars per bar shall be paid for a permit. For an application that is filed later than the deadline specified in Subsection (B) and that is accepted by the Department, the licensee shall pay an additional fee of fifty dollars for each day past the deadline.

(F) A current employee list must be submitted at the beginning of each calendar year and such list is required to be updated in the event of changes in employment levels between the date of the yearly submission and the date an application for a new permit is filed. The updated list is to be filed with the application for permit.

(G) The employee list referenced in Subsection (F) of this Section must be maintained on the site of the event for which the permit was issued and must be made available on site of the event to Metro and the Department upon their request.

(H) Sales of alcoholic beverages at an event are only permitted to be made by the permittee or his or her employees whose names appear on the employee list referenced in Subsections (F) and (G) of this Section.

(I) At the conclusion of an event, all alcoholic beverages must be removed from the event premises unless they are the business premises of an establishment with a valid alcoholic beverage license.

(Ord. No. 6806, § 20, 4-6-22; Ord. No. 6266, § 17, 9-4-13; Ord. No. 6071, § 22, 12-16-09; Ord. 5607 § 36, 2003)

6.50.352 Complimentary alcohol permits.

(A) A complimentary alcohol permit authorizes the limited service and on-premises consumption of complimentary alcoholic beverages at the following locations where the sale of alcoholic beverages is not otherwise authorized pursuant to an alcoholic beverage license:

(1) Art gallery, in conjunction with the sale of art;

(2) Cosmetology establishment;

(3) Barbershop;

(4) Professional business;

(5) Bridal shop;

(6) Suit shop;

(7) Hospital, in conjunction with the birth of a child or similar event; or

(8) Licensed wedding chapel, in conjunction with a wedding.

(B) An application for a complimentary alcohol permit may be made only by the owner or beneficial owner of an establishment that qualifies under Subsection (A). An application shall be made on a form provided or authorized by the Director and the fee for filing such application is one hundred dollars. An applicant is subject to a finding of suitability by the Director pursuant to LVMC Chapter 6.06, as well the processing fee described in LVMC 6.06.100(C). The Director may issue a temporary permit pending suitability determination.

(C) Each applicant must file an alcohol control plan to be approved by the Director.

(D) A permit application may not be denied solely because of the location's proximity to any public or private school or the principal campus of a college, university, or seminary. Grounds for denial include a determination by the Director that the applicant will be unable to operate in accordance with the requirements and limitations of this Section, as well any reason that would constitute grounds for disciplinary action pursuant to LVMC 6.02.330.

(E) A permit may be suspended or revoked by the Director if the permittee:

(1) Violates any provision of this Chapter or any policy adopted by the Director regarding such permits;

(2) Failed to truthfully furnish any required information in connection with the permit application; or

(3) Is found unsuitable upon completion of the suitability review pursuant to LVMC Chapter 6.06.

(F) A permit issued pursuant to this Section is an annual permit and is not transferable.

(G) Under any permit issued pursuant to this Section, the permittee may not:

(1) Sell any alcoholic beverage, either directly or indirectly.

(2) Charge an entrance fee or cover charge, require any remuneration for entry into the establishment, or charge any other fee in connection with offering complimentary alcoholic beverages for consumption on the premises.

(3) Construct or allow to be constructed any permanent bar structure on the premises.

(4) Store or allow the storage of any alcoholic beverages in a location or manner accessible or visible to customers or patrons.

(5) Serve or allow any customer or patron to be served more than two alcoholic beverages on any particular day.

(6) Provide complimentary alcoholic beverages beyond the scope of any applicable limitation under Subsection (A) of this Section.

(Ord. No. 6806, § 21, 4-6-22; Ord. No. 6746, § 3, 8-19-20)

Editor's note—Ord. No. 6746, § 2, adopted August 19, 2020, repealed the former § 6.50.352, and § 3 of Ord. No. 6746 enacted a new § 6.50.352 as set out herein. The former § 6.50.352 pertained to art gallery alcoholic beverage permits and derived from Ord. No. 6266, adopted September 4, 2013.

6.50.355 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.355, which pertained to permanent trade show—permit and derived from Ord. No. 5913, 2007 and Ord. No. 6071, adopted December 16, 2009.

6.50.360 License or endorsement fees.

(A) Except as otherwise provided in Subsections (B) through (D), each licensee shall pay to the Department, in advance, the applicable semiannual license or endorsement fees set forth in the following schedule:

License/Endorsement Category	Semiannual License/Endorsement Fee (Dollars)
Alcohol delivery support service	$500.00
Alcohol caterer	500.00
Ancillary specialty sales	500.00 per category authorized
Beer and wine off-premise	500.00
Beer and wine on-premise	700.00
Plus: Fee for each additional bar	400.00
Brew pub	1,200.00
Craft distillery	1,200.00
Craft winery	1,200.00
Full alcohol on-premise	1,200.00
Plus: Fee for each additional bar	900.00
Plus: Fee for resort hotel owned gift shop	900.00
Liquor manufacturer	1,000.00
Package alcohol	750.00
Wholesale general	1,000.00

(B) Certain licenses issued pursuant to this Chapter in previous years were subject to the payment of an origination charge, which had the effect of creating market value in those licenses. The requirement for new licensees to pay an origination charge has been repealed, which affects the value of those existing licenses and affects the licensees themselves in relation to future license holders. To compensate existing licensees who paid such an origination charge to the City after May 20, 2009, or subsequent license holders who can document having paid the equivalent of the origination charge as part of a purchase price, in an amount of at least five thousand dollars, their future semi-annual license fees are subject to adjustment in accordance with the following formula:

(1) For 2023, ten percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2021 and March 31, 2022, with the percentage owed increasing to 15%, twenty percent, twenty-five percent, thirty percent, forty percent, fifty percent, sixty percent, seventy percent, and eighty percent for each of the succeeding years 2024 through 2032;

(2) For 2023, 15% of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2020 and March 31, 2021, with the percentage owed increasing to twenty percent, twenty-five percent, thirty percent, forty percent, fifty percent, sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2032;

(3) For 2023, twenty percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2019 and March 31, 2020, with the percentage owed increasing to twenty-five percent, thirty percent, forty percent, fifty percent, sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2031;

(4) For 2023, twenty-five percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2018 and March 31, 2019, with the percentage owed increasing to thirty percent, forty percent, fifty percent, sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2030;

(5) For 2023, thirty percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2017 and March 31, 2018, with the percentage owed increasing to forty percent, fifty percent, sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2029;

(6) For 2023, forty percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2016 and March 31, 2017, with the percentage owed increasing to fifty percent, sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2028;

(7) For 2023, fifty percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2015 and March 31, 2016, with the percentage owed increasing to sixty percent, seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2027;

(8) For 2023, sixty percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between April 1, 2014 and March 31, 2015, with the percentage owed increasing to seventy percent, eighty percent, and ninety percent for each of the succeeding years 2024 through 2026;

(9) For 2023, seventy percent of the amount calculated pursuant to Subsection (A) for a license whose origination charge was paid between May 20, 2009 and March 31, 2014, with the percentage owed increasing to eighty percent, and ninety percent for each of the succeeding years 2024 and 2025.

The table that follows just below is for purposes of convenience and illustration of the formula set forth above. In the event of any conflict or inconsistency between the formula and the table, the provisions of the formula shall prevail.

Origination Fees Paid Between	**Payment Percentage for Renewals**									
	2023	**2024**	**2025**	**2026**	**2027**	**2028**	**2029**	**2030**	**2031**	**2032**
04/01/2021—03/31/2022	10%	15%	20%	25%	30%	40%	50%	60%	70%	80%

Origination Fees Paid Between	Payment Percentage for Renewals									
	2023	2024	2025	2026	2027	2028	2029	2030	2031	2032
04/01/2020—03/31/2021	15%	20%	25%	30%	40%	50%	60%	70%	80%	90%
04/01/2019—03/31/2020	20%	25%	30%	40%	50%	60%	70%	80%	90%	100%
04/01/2018—03/31/2019	25%	30%	40%	50%	60%	70%	80%	90%	100%	100%
04/01/2017—03/31/2018	30%	40%	50%	60%	70%	80%	90%	100%	100%	100%
04/01/2016—3/31/2017	40%	50%	60%	70%	80%	90%	100%	100%	100%	100%
04/01/2015—03/31/2016	50%	60%	70%	80%	90%	100%	100%	100%	100%	100%
04/01/2014—03/31/2015	60%	70%	80%	90%	100%	100%	100%	100%	100%	100%
05/20/2009—03/31/2014	70%	80%	90%	100%	100%	100%	100%	100%	100%	100%

(C) At the expiration of the period of reduction of a licensee's semi-annual license fees pursuant to the Schedule above in Subsection (B), the amount of the licensee's semi-annual license fees owed shall revert back to one hundred percent of the amount calculated pursuant to Subsection (A). In no event shall the total of the reductions in the amounts owed pursuant to this Section for a particular licensee ever exceed an amount that is five thousand dollars less than the amount of the origination charge actually paid by that licensee. When the amount of the reductions in the semi-annual license fees owed by a licensee reaches an amount that is five thousand dollars less than the amount of the origination charge actually paid by that licensee, further reductions in the amount of semi-annual licensee fee owed pursuant to Subsection (A) shall cease and the licensee shall thereafter owe and pay the full amount of the semi-annual license fee calculated pursuant to Subsection (A).

(D) There shall be no license-fee reduction pursuant to this Section for any license that was issued prior to May 20, 2009.

(E) For purposes of the license-fee reduction provisions of this Section:

(1) No reduction of fees pursuant to this Section is available regarding any license for which the origination charge was waived in its entirety.

(2) With regard to any license for which the origination charge was partially waived, a license-fee reduction pursuant to this Section is available only regarding any origination charge amount actually paid to the City, with that amount being considered as the origination charge paid for all purposes under this Section.

(3) No reduction of fees pursuant to this Section is available regarding any license that was the subject of or involved in a trade-in program whereby a new license was obtained in place of another without the payment of any amounts in the form of an origination charge.

(Ord. No. 6806, § 22, 4-6-22)

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.360, and § 22 of Ord. No. 6806 enacted a new § 6.50.360 as set out herein. The former § 6.50.360 pertained to license fees and derived from Ord. No. 6047, adopted July 15, 2009; Ord. No. 6071, adopted December 16, 2009; Ord. No. 6118, adopted November 3, 2010; Ord. No. 6126, adopted January 19, 2011; Ord. No. 6147, adopted April 20, 2011; Ord. No. 6183, adopted March 7, 2012; Ord. No. 6248, adopted May 1, 2013; Ord. No. 6266, adopted September 4, 2013; Ord. No. 6612, adopted February 21, 2018; Ord. No. 6682, adopted April 3, 2019; Ord. No. 6735, adopted May 6, 2020 and Ord. No. 6763, adopted January 20, 2021.

6.50.363 Special event alcohol permit fee.

Each special event alcohol permit holder shall pay the following permit fee for each day (or for each event, in the case of a multi-day event): One hundred dollars, plus seventy-five dollars for each additional bar.

(Ord. No. 6806, § 23, 4-6-22)

6.50.365 Application fee.

Independent of any other application-related fee established by this Title, each applicant for an alcoholic beverage license under this Chapter shall pay a non-refundable application fee of five thousand dollars. This application fee is due and payable at the time of application filing.

(Ord. No. 6806, § 24, 4-6-22)

6.50.370 Semiannual fee—When due.

(A) Each semiannual fee is due in advance on April 1st and October 1st in each year except that the applicant for a new alcoholic beverage license who starts business between April 1st and October 1st or between October 1st and April 1st shall have its semiannual fees prorated on a monthly basis. Upon a change of ownership required by a reorganization pursuant to a plan of reorganization approved by a bankruptcy court, the new owner shall receive credit for semiannual license fees required by this section that were paid by the prior owner.

(B) Any semiannual fee which is not received by the Department on or before the due date shall be assessed a late-payment penalty in an amount equal to ten percent of the amount of such semiannual fee. If the semiannual fee and penalty is not received by the Department within fifteen days after the due date, an additional penalty in an amount equal to twenty-five percent of such semiannual fee shall be assessed. If the semiannual fee and all penalties are not received by the Department within sixty days after the due date, the license shall be automatically suspended.

(C) A license that has been suspended for nonpayment of license fees and penalties may be reinstated by the Director to full standing if the licensee pays the delinquent license fees and penalties, plus an additional reinstatement fee in an amount equal to one-half of the semiannual license fee for such business. The reinstatement fee is exclusive of the regular semiannual alcoholic beverage license fee for that license. The fees and penalties required to be paid pursuant to this Subsection (C) shall be paid not later than ten calendar days following the date of suspension of the license or, if the tenth day falls on a weekend or holiday, the next business day. The license shall be deemed automatically revoked if such fees and penalties are not paid in accordance with this Section.
(Ord. No. 6266, § 20, 9-4-13; Ord. No. 6054, § 2, 8-5-09; Ord. 5607 § 38, 2003)

6.50.380 Reserved.

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.380, which pertained to origination charge and derived from Ord. No. 6047, adopted May 20, 2009; Ord. No. 6071, adopted December 16, 2009; Ord. No. 6118, adopted November 3, 2010; Ord. No. 6126, adopted January 19, 2011; Ord. No. 6147, adopted April 20, 2011; Ord. No. 6248, adopted May 1, 2013; Ord. No. 6266, adopted September 4, 2013; Ord. No. 6682, adopted April 3, 2019 and Ord. No. 6763, adopted January 20, 2021.

6.50.390 Licensee—Discontinuance of operation—Sale of license—Notification.

(A) Alcoholic beverage licensees shall immediately notify the Department in writing when they discontinue their alcoholic beverage business operations. For a temporary discontinuance, the notification shall include the reasons for the discontinuance. A temporary discontinuance shall not diminish or modify the application and effect of the provisions of Title 19 pertaining to the discontinuance of cessation of a use.

(B) Licenses issued under this Chapter, whether temporary or permanent, are not subject to sale or transfer.
(Ord. No. 6806, § 25, 4-6-22; Ord. No. 6266, § 22, 9-4-13; Ord. No. 6071, § 26, 12-16-09; Ord. 5607 § 40, 2003)

6.50.400 Licensee sole operator.

(A) No person, other than the person who holds the license, may operate any business, trade or profession in the licensed premises; provided, however, that this prohibition does not apply to slot operators, retail tobacco vendors, general retail vendors, or entertainers, to the extent any of them are properly licensed, or to any business, trade or profession which leases a separate and defined area within the licensed premises and which obtains prior approval from the Department to do so.

(B) A licensee with an on-premise license who is authorized pursuant to Subsection (A) of this Section to lease the restaurant portion of its licensed premises to another person may continue, through its on-premise license, to sell alcoholic beverages in such leased premises without the necessity of the lessee obtaining an alcoholic beverage license for such leased

premises. The restaurant lessee, or its staff, however, may not sell alcoholic beverages in such leased premises unless the restaurant lessee also obtains, pursuant to this Chapter, an alcoholic beverage license for such leased premises.
(Ord. No. 6806, § 26, 4-6-22; Ord. 5607 § 41, 2003)

6.50.405 Key employees—Locations limited.

No person may function, or be recognized, as a key employee for a particular licensee for more than eight business locations of that licensee.
(Ord. No. 6806, § 27, 4-6-22)

6.50.410 Licensee duties.

(A) Except as otherwise specified in Subsection (C), it is the duty of each licensee and any principal thereof to:

(1) Ensure that a person who is at least twenty-one years of age, who is either an owner or employee of the licensee and who has a valid work card and health card in his possession, is present on the premises during all times that the premises are open for business.

(2) Maintain and make available during the licensee's business hours for inspection by Metro or the Department a list of all of licensee's current employees by name that are required to have one or more of the following cards and the corresponding card numbers:

(a) A work card.

(b) A health card.

(B) The list referenced in Paragraph (2) of Subsection (A) of this Section shall also include, in addition to the names of current employees, all the names of other persons employed during the previous three years.

(C) The work card requirement in Subsection (A) does not apply to a convenience store at any particular time if and to the extent that at least one qualified person is on the premises or is available for immediate contact. In order for this exception to apply, the contact information of the qualified person must be available on the premises and must be immediately accessible to the Department and Metro. For purposes of this Subsection (C), "qualified person" means a principal or key employee who has been approved for suitability pursuant to LVMC 6.06.060.
(Ord. No. 6717, § 1, 12-18-19; Ord. No. 6071, § 27, 12-16-09; Ord. 5607 § 42, 2003)

6.50.420 Jurisdiction to investigate.

The Department or Metro shall have jurisdiction to investigate and enforce the provisions of this Chapter. The Department or Metro shall have all powers which may be necessary or appropriate for a complete and effective exercise of its jurisdiction, including, but not limited to, the power to enter and inspect the licensed premises at any time during the business

hours of the licensee, and the Department or Metro shall have the power to examine all books and records of the licensee and any principal thereof. The Department or Metro is authorized to request information from a licensee, any principal thereof, or a license applicant at any time in furtherance of the exercise of its jurisdiction.
(Ord. No. 6071, § 28, 12-16-09; Ord. 5607 § 43, 2003)

6.50.430 On-premises consumption of alcohol provided by customer—With meals.

(A) Notwithstanding any other provision of this Chapter, but subject to Subsection (E) of this Section, an establishment that qualifies under Subsection (B) of this Section may permit a customer to bring a bottle of wine into the establishment for purposes of having the establishment pour and serve the wine in connection with a meal served to the customer.

(B) Establishments that are eligible to provide the service referred to in Subsection (A) are those that hold both a restaurant license and an on-premise license issued pursuant to this Chapter.

(C) An establishment that provides the service referred to in Subsection (A) may charge a fee for the service (a "corking fee").

(D) The licensee of an establishment that provides the service referred to in Subsection (A) is responsible for ensuring that:

(1) The contents of the bottle of wine brought into the establishment are fully consumed on the premises;

(2) The bottle of wine remains on the premises and is disposed of by the establishment; or

(3) If the contents of the bottle of wine are not fully consumed and the bottle is to be returned to the customer, the bottle is properly re-corked or capped with a screw top cap or lid, and sealed with a plastic adhesive or tamper-evident seal, and then placed in a tamper proof sealed single use bag manufactured expressly for the removal of partially consumed bottles of wine before it is returned to the customer to be taken off the premises.

(E) This Section is a reflection of the City's authority to regulate businesses serving alcoholic beverages and sets forth the parameters of regulation insofar as the City is concerned. Nothing in this Section is intended to diminish or otherwise affect the application of State laws or regulations governing the subject.
(Ord. No. 6806, § 28, 4-6-22; Ord. No. 6727, § 1, 3-18-20; Ord. No. 6266, § 23, 9-4-13; Ord. No. 6071, § 30, 12-16-09)

Editor's note—Ord. No. 6071, § 29, adopted December 16, 2009, repealed the former § 6.50.430, and enacted a new § 6.50.430 as set out herein. The former § 6.50.430 pertained to the off-sale alcoholic beverages, location of items, in-store sign required and derived from Ord. No. 5607, 2003.

6.50.435 Wine not fully consumed—Off premises.

(A) Notwithstanding any other provision of this Chapter, and in accordance with the provisions of this Section, an establishment that qualifies under Subsection (B) of this Section may permit a customer who has purchased a bottle of wine or spirits from the establishment for on-premise consumption to take the bottle off the premises if the contents of the bottle have not been fully consumed.

(B) Establishments that are eligible to provide the service referred to in Subsection (A) are those that hold an on-premise license issued pursuant to this Chapter.

(C) An establishment that provides the service referred to in this Section may charge a fee for the service.

(D) The licensee of an establishment that provides the service referred to in this Section is responsible for ensuring that, before an unfinished bottle is removed from the premises, it has been properly re-corked or capped with a screw top cap or lid, and sealed with a plastic adhesive or tamper-evident seal, and then placed in a tamper proof sealed single use bag manufactured expressly for the removal of partially consumed bottles of wine or spirits.
(Ord. No. 6806, § 29, 4-6-22; Ord. No. 6727, § 2, 3-18-20)

6.50.440 Retail sales of alcoholic beverages—Work card required.

(A) It is unlawful for any of the following persons to be employed in, engage in, participate in, or supervise the retail sales of alcoholic beverages for on or off premises consumption without having in his or her possession a valid work card for alcoholic beverages issued pursuant to LVMC Chapter 6.86:

(1) Any person employed in the management of a licensed business establishment who has not been investigated and approved as a principal or key employee, unless such employment has been approved by the Director under a temporary license during the pendency of such temporary license;

(2) Any person who exercises supervision and control of, and establishes policies for, an alcoholic beverage establishment;

(3) Any person who pours alcoholic beverages for on-premises consumption, or who serves as a bartender or its functional equivalent;

(4) Any employee of an alcohol caterer licensed under Section 6.50.025 who is authorized by the licensee to exercise supervision and control of, and to establish policies for, a catered event;

(5) Any person authorized to supervise the sale or distribution of alcoholic beverages in connection with a special event alcohol permit pursuant to Section 6.50.200; or

(6) Except as otherwise provided in Subsections (B) and (C), any person who performs the role of security, including the maintaining of order within the business, the verification of identification, and the enforcement of other policies established and maintained by the licensee.

(B) Those bartenders, alcohol servers and security employees that are registered with the Nevada State Gaming Board for nonrestricted gaming at the location employed are exempt from the work card requirement, either at the nonrestricted gaming location itself or at a special event for the nonrestricted gaming employer that has been approved by means of a special event permit pursuant to LVMC Chapter 12.02. The employer is responsible for maintaining and making available a Nevada State Gaming Board registry on the premises for inspection by the Department or Metro.

(C) Those security employees that are licensed or registered under NRS 648.060 are exempt from the work card requirement, but such persons must have their State-issued license or registration (work) card that includes a photo ID on their person during the act of performing security duties at the location where employed. The employer is responsible for maintaining, and making available for inspection by the Department or Metro, or both, a list of such employees, including names, registry numbers and registration expiration dates.
(Ord. No. 6806, § 30, 4-6-22; Ord. No. 6717, § 2, 12-18-19; Ord. No. 6305, § 5, 3-19-14; Ord. No. 6071, § 31, 12-16-09; Ord. 5607 § 45, 2003)

6.50.450 Sale of alcoholic beverage—Unlawful when.

It is unlawful for any person to sell any alcoholic beverage:

(A) Without a valid unexpired license issued pursuant to this Chapter; provided, however, that this prohibition does not apply to employees of persons licensed pursuant to this Chapter during the course of such employment;

(B) To a person who is intoxicated;

(C) For delivery to a personal residence pursuant to a request for such delivery; provided, however, that this prohibition does not apply to deliveries of beer in kegs having a capacity of not less than one-quarter barrel or to deliveries authorized by LVMC 6.50.095 or 6.50.100;

(D) Except as otherwise specifically provided in LVMC 6.50.285, through or by means of a drive-in or walk-up window, door or other opening;

(E) In any manner not authorized by the license under which authority the person making such sale is authorized to do business; and

(F) At any place where persons under twenty-one years of age are present, unless they are continuously accompanied by a parent or legal guardian, or as otherwise permitted by the Director or the City Council pursuant to a specific condition of an alcoholic beverage license. If such sales are permitted by the Director or the City Council, the licensee may be required to provide a barrier sufficient to prevent access by minors to the area(s) where the alcoholic beverages are served.

(Ord. No. 6806, § 31, 4-6-22; Ord. No. 6763, § 5, 1-20-21; Ord. No. 6266, § 24, 9-4-13; Ord. No. 6262, § 5, 8-7-13; Ord. No. 6259, § 1, 7-10-13; Ord. No. 6071, § 32, 12-16-09; Ord. 5607 § 46, 2003)

6.50.455 Storage of alcoholic beverages—Commercial establishments.

(A) Except as otherwise provided in Subsection (B), it is unlawful for any person to store alcoholic beverages on the premises of any commercial establishment subject to this Chapter unless the licensee of the establishment has obtained and maintains valid alcoholic beverage-related licenses or permits that pertain to and authorize such storage.

(B) The prohibition contained in Subsection (A) does not apply to the storage of alcoholic beverages in preparation for an occasional company party, but only if:

(1) The party is limited to employees and their guests; and

(2) The alcoholic beverages are removed from the premises before the next regularly scheduled business day.

(Ord. No. 6806, § 32, 4-6-22; Ord. No. 6071, § 33, 12-16-09; Ord. No. 6071, § 40, 12-16-09)

6.50.460 Alcoholic beverage sale to minor—Prohibited.

(A) It is unlawful for any person licensed under this Code, or any agent or employee of a licensee to sell alcoholic beverages to a minor.

(B) It is a defense to any criminal prosecution or proceeding for the suspension or revocation of any license that is based upon a violation of this Section that the licensee, agent or employee, immediately prior to furnishing any alcoholic beverage to person under the age of twenty-one years, demanded and was shown bona fide documentary evidence of age and identity of that person issued by a governmental agency, including without limitation a motor vehicle operator's license.

(Ord. 5607 § 47, 2003)

6.50.470 Alcoholic beverage in glass or metal container—Sale prohibited when.

It is unlawful for any person to sell any alcoholic beverage in any glass or metal container at any special event which is described in LVMC Chapter 12.02, as follows:

(A) Between the hours of 6:00 p.m. on December 31st and 6:00 a.m. on January 1st of each year.

(B) During the period of time beginning two hours before the start of the special event and ending two hours after the special event is over.

(Ord. No. 6806, § 33, 4-6-22; Ord. No. 6657, § 1, 11-21-18; Ord. 5607 § 48, 2003)

6.50.475 Off-sale or package alcoholic beverage sales—Pedestrian malls.

A person authorized to sell alcoholic beverages at an establishment pursuant to a package alcohol or other off-premise alcoholic beverage license directly adjacent to or upon a pedestrian mall:

(A) Shall not sell or otherwise distribute any single serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, jello shots or other products containing alcohol that are not considered alcoholic beverages;

(B) Shall not sell or otherwise distribute any alcoholic beverage in a configuration other than in the manufacturers' original configuration intended for re-sale;

(C) Shall not sell or otherwise distribute any malt or beer beverage in any container with a capacity of greater than thirty-two liquid ounces;

(D) Shall not sell or otherwise distribute any malt or beer beverage with an alcoholic content of greater than eleven percent alcohol by volume;

(E) Shall not sell or otherwise distribute alcoholic beverages, except beer or wine in containers less than one pint, measured in the English system of weights and measures, or in quantities less than three hundred seventy-five milliliters, measured in the metric system of weights and measures;

(F) Shall post one or more signs no lower than three feet and no higher than seven feet at each sale counter and at each entrance and exit of the establishment that state as follows:

"Alcohol purchased at this location CANNOT be consumed on the Fremont Street Experience" and "Any bag containing an alcoholic beverage purchased at this location CANNOT be opened on the Fremont Street Experience."

→Each sign that refers to the prohibition regarding the opening of a bag must indicate that a violation may result in confiscation of the alcoholic beverages contained in such a bag. Such signs must be:

(1) Yellow with black lettering.

(2) At least fourteen inches by twenty inches on each display of alcoholic beverages and at each sale counter in a prominent position. Font size must be a minimum of seventy-two points.

(3) At least twenty inches by twenty-four inches at each entrance and exit. Font size must be a minimum of seventy-two points;

(G) Shall not locate any display of alcoholic beverages inside the establishment within ten feet from any entrance or exit of the establishment;

(H) Shall not provide any means of display of alcoholic beverages, whether a barrel, a shelf, a cooler or any other means to display alcoholic beverages outside of any entrance or exit to the establishment;

(I) Shall only devote to the display of alcoholic beverages an area within the establishment which is the lesser of: 1) the area authorized by the land use entitlement for alcoholic beverage sales; or 2) ten percent of its gross retail floor area; and

(J) Shall place any alcoholic beverage(s) purchased at the establishment into a bag (the "separate bag") that separates such beverages from any other purchases made at the establishment. The separate bag shall be used to transport the unopened alcoholic beverage(s) within the Pedestrian Mall as described at LVMC Chapter 11.68. The separate bag shall be closed by the licensee or a person employed by the licensee by means of a fastener (such as a staple, sticker, seal or some other means) prior to the

customer leaving the establishment with the alcoholic beverage(s). The purchase receipt for such alcoholic beverages shall be affixed to the separate bag by the licensee or a person employed by the licensee in such a way that does not permit the opening of that bag by the customer without tearing or otherwise mutilating the receipt, and such receipt must include the date and time of the purchase together with a description of the alcoholic beverage(s) purchased by the customer.

(Ord. No. 6806, § 34, 4-6-22; Ord. No. 6657, § 2, 11-21-18; Ord. No. 6468, § 1, 10-7-15; Ord. No. 6336, § 1, 7-16-14; Ord. No. 6329, § 7, 6-18-14; Ord. No. 6320, § 5, 5-21-14)

6.50.477 Off-sale or package alcoholic beverage sales—Downtown Entertainment Overlay District.

(A) Except as otherwise provided by Subsection (B), a person authorized to sell alcoholic beverages at an establishment pursuant to a package alcohol or other off-premise alcoholic beverage license located within the Downtown Entertainment Overlay District:

(1) Shall not sell or otherwise distribute any single serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, jello shots or other products containing alcohol that are not considered alcoholic beverages;

(2) Shall not sell or otherwise distribute any alcoholic beverage in a configuration other than in the manufacturers' original configuration intended for re-sale;

(3) Shall not sell or otherwise distribute any malt or beer beverage with an alcoholic content of greater than eleven percent alcohol by volume;

(4) Shall not sell or otherwise distribute alcoholic beverages, except beer or wine in containers less than one pint, measured in the English system of weights and measures, or in quantities less than three hundred seventy-five milliliters, measured in the metric system of weights and measures;

(5) Shall post one or more signs no lower than three feet and no higher than seven feet at each sale counter and at each entrance and exit of the establishment that state as follows:

"Alcohol purchased at this location CANNOT be consumed within the Downtown Entertainment Overlay District" and "Any bag containing an alcoholic beverage purchased at this location CANNOT be opened within the Downtown Entertainment Overlay District."

→Each sign that refers to the prohibition regarding the opening of a bag must indicate that a violation may result in confiscation of the alcoholic beverages contained in such a bag. Such signs must be:

(a) Yellow with black lettering.

(b) At least fourteen inches by twenty inches on each display of alcoholic beverages and at each sale counter in a prominent position. Font size must be a minimum of seventy-two points.

(c) At least twenty inches by twenty-four inches at each entrance and exit. Font size must be a minimum of seventy-two points;

(6) Shall not locate any display of alcoholic beverages inside the establishment within ten feet from any entrance or exit of the establishment;

(7) Shall not provide any means of display of alcoholic beverages, whether a barrel, a shelf, a cooler or any other means to display alcoholic beverages outside of any entrance or exit to the establishment;

(8) Shall only devote to the display of alcoholic beverages an area within the establishment which is the lesser of: 1) the area authorized by the land use entitlement for alcoholic beverage sales; or 2) ten percent of its gross retail floor area; and

(9) Shall place any alcoholic beverage(s) purchased at the establishment into a bag (the "separate bag") that separates such beverages from any other purchases made at the establishment. The separate bag shall be used to transport the unopened alcoholic beverage(s) within the Downtown Entertainment Overlay District. The separate bag shall be closed by the licensee or a person employed by the licensee by means of a fastener (such as a staple, sticker, seal or some other means) prior to the customer leaving the establishment with the alcoholic beverage(s). The purchase receipt for such alcoholic beverages shall be affixed to the separate bag by the licensee or a person employed by the licensee in such a way that does not permit the opening of that bag by the customer without tearing or otherwise mutilating the receipt, and such receipt must include the date and time of the purchase together with a description of the alcoholic beverage(s) purchased by the customer.

(B) The requirements of Subsection (A) do not apply to any activity authorized in connection with:

(1) A special event permit issued pursuant to LVMC Chapter 12.02; or

(2) Activity specifically authorized by and conditioned under a full alcohol on-premises license issued under LVMC Chapter 6.50.

(Ord. No. 6806, § 35, 4-6-22; Ord. No. 6657, § 3, 11-21-18)

6.50.480 Selling alcohol while intoxicated.

It is unlawful for any person who is intoxicated and who is subject to the provisions of this Chapter to sell or serve any alcoholic beverage.

(Ord. No. 6071, § 34, 12-16-09; Ord. 5607 § 49, 2003)

6.50.490 Age of employees who handle alcohol.

It is unlawful for any person to employ a person under the age of twenty-one years to sell or handle alcoholic beverages, or to allow a person under the age of twenty-one years to sell or handle for the purpose of transacting a sale of alcoholic beverages at such person's place of business; provided, however, that a person who is at least sixteen years of age may:

(A) Stock beer, wine and coolers only, in original sealed or corked containers, while they are employed in an on-premise or off-premise licensed establishment and only when they are actually being supervised by another person who is at least twenty-one years of age and who himself is an owner or employee of the licensee; and

(B) Handle alcoholic drink containers previously consumed with meals at an establishment authorized to sell alcoholic beverages pursuant to an alcoholic beverage license in the course of clearing and/or cleaning tables.

(Ord. No. 6806, § 36, 4-6-22; Ord. No. 6266, § 25, 9-4-13; Ord. No. 6071, § 35, 12-16-09; Ord. 5607 § 50, 2003)

6.50.500 Encumbrance of license—Provisions.

It is unlawful for any person to encumber any license by means of a lease, pledge, mortgage, deed of trust, security interest or other manner of encumbrance without the prior approval of the Director.

(Ord. No. 6806, § 37, 4-6-22; Ord. 5607 § 51, 2003)

6.50.510 Employees and others associated with licensee—Acts prohibited.

(A) It is unlawful for any person, while acting as an employee, security guard (or other person performing a security function), waiter, waitress, or a performer or entertainer in any live act, play, demonstration or exhibition, or for any such person, while serving food or drink to any customer, to do any of the following acts on the premises where alcoholic beverages are licensed to be sold:

(1) Expose his or her genitals, pubic hair, perineum, anal region or pubic hair region; or

(2) Expose or use any device, costume or covering which gives the appearance of or simulates the genitals, pubic hair, perineum, anal region or pubic hair region.

(B) A person shall be deemed to be a security guard (or other person performing a security function), waiter, waitress, performer or entertainer if such person acts in that capacity without regard to whether or not such person is paid any compensation.

(C) It is unlawful for any licensee, or any owner, officer, director, representative, manager, agent, servant or employee of a licensee to allow, cause, permit, procure, counsel or assist any person to perform any of the acts set forth in Subsection (A) of this Section on the premises where alcoholic beverages are licensed to be sold.

(Ord. No. 6071, § 36, 12-16-09; Ord. 5607 § 52, 2003)

6.50.520 Live entertainment—Director approval.

(A) Except as otherwise provided in Subsection (C) of this Section, no live entertainment, as defined in Subsection (B), may be offered in any establishment licensed under this Chapter unless that form of entertainment has been approved in advance by the Director.

(B) For purposes of this Section, "live entertainment" means one or more of the following:

(1) Live music (with or without dancing);

(2) Live disc jockey (with dancing);

(3) Karaoke entertainment; or

(4) Stage shows, such as a magician, comedian other similar type of performance artist.

(C) This Section does not apply to any establishment licensed as a nightclub pursuant to LVMC Chapter 6.39.

(Ord. No. 6806, § 38, 4-6-22)

Editor's note—Ord. No. 6806, § 1, adopted April 6, 2022, repealed § 6.50.520, and § 38 of Ord. No. 6806 enacted a new § 6.50.520 as set out herein. The former § 6.50.520 pertained to entertainment—approval authority and derived from Ord. No. 6071, adopted December 16, 2009; Ord. No. 6232, adopted January 23, 2013; Ord. No. 6413, adopted May 6, 2015 and Ord. No. 6682, adopted April 3, 2019.

6.50.530 Reserved.

Editor's note—Ord. No. 6594, § 5, adopted August 16, 2017, repealed § 6.50.530, which pertained to violations and derived from Ord. No. 6329, adopted June 18, 2014.

CHAPTER 6.51 LOCKSMITHS AND SAFE MECHANICS

6.51.005 Privileged business finding.

The City Council hereby finds that the businesses of locksmiths and safe mechanics seriously affect the wellbeing of the City and its residents, and that it is necessary to regulate such activities carefully in order to insure that persons of honesty and integrity are operating such businesses and that they are operated in a responsible manner to the public. Such businesses must therefore comply with Chapter 6.06.

(Ord. 5998 § 95, 2008: Added at City's request, letter of 4-11-83)

6.51.007 Definitions.

As used in this Chapter:

"Key" means a mechanical, electromechanical, electronic, or electromagnetic device used for operating a lock and includes, but is not limited to:

(1) A change key or a key designed to operate a specific lock.

(2) A manipulation key or a key designed so that when variously positioned in the keyways of locks will operate the locks.

(3) A master key or a key designed to operate a series of locks in a larger series of locks.

(4) A tryout key or a key that will operate a series of locks in a larger series of locks.

(5) A card or other device that contains, stores or transmits an electromagnetic code or electronic data that enables the operation of a lock.

"Lock" means a mechanical, electromechanical, electronic, or electromagnetic device that is designed to control access from one area to another or control the use of a vehicle or device.

"Locksmith" means a person whose occupation consists in whole or in part, of:

(1) Making, repairing or adjusting locks; or

(2) Operating locks by means other than those intended by the manufacturers of the locks.

"Safe mechanic" means a person whose occupation consists in whole or in part of repairing, operating, adjusting or changing combinations on safes or vaults.
(Ord. No. 6213, § 23, 9-5-12)

6.51.010 License required.

No person shall engage in the business of a locksmith or a safe mechanic without first obtaining and thereafter maintaining a valid, unexpired license pursuant to this Code.
(Ord. 2265 § 1 (part), 1982: prior code § 5-10-5 (A))

6.51.020 License fee.

Each person who is required to be licensed by this Chapter must pay in advance an annual license fee of three hundred dollars.
(Ord. No. 6213, § 22, 9-5-12; Ord. 3843 § 79, 1994: Ord. 2265 § 1 (part), 1982: prior code § 5-10-5(C))

6.51.030 Employees required to have work card.

Each employee of a locksmith or a safe mechanic, other than one who is required to be found suitable, who performs the function of a locksmith or a safe mechanic, as defined in NRS, Chapter 655 must first obtain and thereafter maintain a valid, unexpired work card pursuant to Chapter 6.86 of this Code.
(Ord. 2265 § I (part), 1982: prior code § 5-10-5(B))

6.51.040 Identification.

(A) All business vehicles must clearly identify the name of the business and license number of the locksmith or safe mechanic. The lettering must be at least four inches in height and shall be displayed on at least two surfaces of the vehicle.

(B) All persons who perform the function of a locksmith or safe mechanic must wear identifiable uniforms during work hours. The uniform must include the name of the business in such a manner that allows a reasonable person to clearly view the business name from a distance of three feet.

(C) All physical locations except those in residential zones must clearly identify the name and license number of the business on signage on or within one foot of the door of the office using letters that must be at least four inches in height.
(Ord. No. 6213, § 25, 9-5-12)

6.51.050 Prohibited advertising.

No licensee shall indicate in any print matter or in any other directory or listing, internet advertising, online or any other advertising medium that the licensee conducts a locksmith business under any name other than the name for which they are licensed.
(Ord. No. 6213, § 26, 9-5-12)

CHAPTER 6.52 MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS

6.52.010 License types and applicability.

(A) The City Council hereby finds that massage establishments seriously affect the economic, social and moral well-being of the City and its residents, that such businesses must be regulated strictly for the welfare of the public, and that such businesses must

therefore comply with LVMC Chapter 6.06, as well as the provisions of this Chapter. Although the Nevada Legislature has removed the ability of the City to regulate massage therapists as to their qualifications and practices, the City retains its authority to:

(1) Require massage therapists and massage establishments to obtain a City business license; and

(2) Regulate the manner in which massage establishments themselves may operate.

(B) Except as otherwise provided in this Subsection (B) and LVMC 6.52.180, the issuance and governance of individual massage therapist licenses, including those for independent massage therapists, shall be in accordance with LVMC Chapter 6.02. The issuance and governance of licenses for massage establishment licensee practitioners shall be in accordance with LVMC Chapter 6.06 and this Chapter.
(Ord. No. 6761, § 1, 12-16-20; Ord. 5998 § 96, 2008: Ord. 5491 § 1, 2002: Ord. 4024 § 3, 1996)

6.52.020 Definitions.

Unless the context otherwise requires, the following words, as they appear in this Chapter, shall have the meanings ascribed to them in this Section:

"Ancillary medical massage therapy" means the provision of massage therapy by a massage therapist which is licensed by the City and State, limited to one room dedicated to massage therapy no larger than one hundred fifty square feet, which is incidental to the primary medical services provided by a licensed medical professional at such professional's licensed place of business.

"Chair massage therapy" means massage therapy administered by a massage therapist to the neck, shoulders, back, arms, hands and feet of a fully clothed client utilizing a massage chair.

"Employee" means any massage therapist who is a bona fide employee of a massage establishment.

"Independent massage therapist" means a massage therapist who is not an employee of a massage establishment, is a sole practitioner, and hires no employees.

"Licensed medical professional" means a person licensed pursuant to NRS Chapters 630, 630A, 631, 632, 633, 634, 634A, 635, 640, 640A or 640B.

"Massage establishment" means any premises occupied and used for the purpose of performing massage therapy, excluding a premises offering no massage therapy other than medical massage therapy or ancillary medical massage therapy.

"Massage establishment licensee practitioner" means the licensee of a massage establishment who performs massage therapy.

"Massage therapist" means any person who, for consideration, performs any massage therapy as defined in this Section and has been licensed by the State to perform such services.

"Massage therapy" has the same meaning as set forth at NRS 640C.060.

"Medical massage therapy" means the physical application of massage therapy by a licensed medical professional at such professional's licensed place of business.

"Outcall massage therapy" means any massage therapy given or provided off the premises of a licensed massage establishment by a massage therapist licensed by the City and State.

"Sexual activity" means any activity characterized as such by NRS 640C.700 or the regulations adopted by the Nevada Board of Massage Therapists under NRS Chapter 640C.

"Specified anatomical area" means:

(1) Genitals;

(2) Pubic region;

(3) Buttocks; or

(4) Female breast.

(Ord. No. 6761, § 2, 12-16-20; Ord. No. 6213, § 27, 9-5-12; Ord. No. 6170, § 27, 12-7-11; Ord. 5998 § 97, 2008: Ord. 5640 § 1, 2003: Ord. 5491 § 2, 2002: Ord. 5197 § 1, 2000: Ord. 5168 § 1, 1999: Ord. 4024 § 4, 1996)

6.52.040 License required.

No person shall engage in, conduct or carry on, or permit to be engaged in, conducted or carried on, in or upon any premises, the operation of a massage establishment, or the performance of massage therapy as a massage therapist or a massage establishment licensee practitioner, without first obtaining and thereafter maintaining a valid unexpired license for that activity pursuant to this Title. A licensed medical professional providing medical massage therapy or an area for ancillary medical massage therapy at the medical professional's licensed place of business is not required to obtain a license for operation of a massage establishment.

(Ord. No. 6213, § 28, 9-5-12; Ord. 5998 § 99, 2008: Ord. 5491 § 4, 2002: Ord. 5168 § 2, 1999: Ord. 4024 § 6, 1996)

6.52.050 License fee.

(A) Each massage establishment must pay in advance an annual license fee of four hundred dollars, together with the additional license fees for professional employees described in LVMC 6.04.060. As an alternative to paying the license fees for professional employees, an establishment may elect to require those employees to pay a license fee as if they were independent massage therapists under Subsection (B), in which case each such employee must do so. A massage establishment with separate facilities for men and women shall be considered a single massage establishment and shall be charged a single license fee every year.

(B) Each independent massage therapist and massage establishment licensee practitioner must pay in advance an annual license fee of two hundred dollars.
(Ord. No. 6761, § 3, 12-16-20; Ord. No. 6327, § 8, 6-18-14; Ord. No. 6213, § 29, 9-5-12; Ord. 5998 § 100, 2008: Ord. 5491 § 5, 2002: Ord. 4024 § 7, 1996)

6.52.060 Independent massage therapist license.

(A) An independent massage therapist license authorizes the licensee to:

(1) Administer massage therapy to a client in a licensed massage establishment;

(2) Administer massage therapy to a client at the client's temporary or permanent residence, transient lodging or at the client's place of business; and

(3) Advertise as an independent massage therapist.

(B) An independent massage therapist licensee must comply with all applicable provisions of the City zoning regulations.
(Ord. 5998 § 101, 2008: Ord. 4024 § 8, 1996)

6.52.070 Advertisements.

No massage establishment granted a license under the provisions of this Chapter, or principal, employee or agent thereof, shall place, publish or distribute or cause to be placed, published or distributed any advertisement, picture, or statement which is known or through the exercise of reasonable care should be known to be false, deceptive or misleading in order to induce any person to purchase or utilize any professional massage therapy services. The prohibition in the preceding sentence includes a prohibition of any false, deceptive or misleading advertising regarding the services available within a massage establishment, including, without limitation, false, deceptive or misleading advertising regarding the training that a massage establishment licensee, principal or employee has received. All advertisements placed, published, distributed, disseminated or broadcast by a licensee shall contain the business license number.
(Ord. No. 6170, § 2, 12-7-11; Ord. 5998 § 102, 2008: Ord. 5491 § 6, 2002: Ord. 4024 § 9, 1996)

6.52.080 Register of employees.

The licensee or principal of a massage establishment shall maintain a register of all persons who at any time are employed or contracted to perform any function or service within the establishment, whether or not related to the provision of massage therapy. The register must show each such person's full legal name, as well as each alias or nickname used by that person; the person's date of birth; the person's title or function; and each applicable State and City license and registration held by that person. The register must be updated to include any such person before the person is allowed on the premises. At all times the establishment is open for business, the register shall be made available upon request to representatives of the Department, Metro, and any other regulatory agency having

jurisdiction. In addition, each massage establishment is responsible for ensuring that any person entering the establishment in any capacity is in possession of valid identification issued by a government entity to and regarding that person.
(Ord. No. 6761, § 4, 12-16-20; Ord. 5998 § 103, 2008: Ord. 5491 § 7, 2002: Ord. 5168 § 3, 1999: Ord. 4024 § 10, 1996)

6.52.090 Requirements and limitations.

Each massage establishment shall comply with the following requirements:

(A) At least one qualified person shall be on the premises of a massage establishment at all times the establishment is in operation. For purposes of the preceding sentence, a "qualified person" means a principal who has been approved for suitability pursuant to LVMC 6.06.060 or a manager who has been approved for suitability pursuant to that Section as in the case of a principal.

(B) Rates for all services shall be prominently posted:

(1) In the reception area in a location and manner readily visible to prospective and actual clients, for establishments in which all massage therapists charge the same rates; or

(2) In each room in which massage is performed, for establishments in which not all massage therapists charge the same rates.

(C) The licensee shall display the establishment's license in an open and conspicuous place on the premises of the massage establishment.

(D) The City and State license of any person licensed under this Chapter to perform massage therapy, whenever performing massage therapy at the massage establishment, must be:

(1) Carried on the licensee's person; or

(2) Displayed in an open and conspicuous place on the premises of the massage establishment.

(E) Each massage establishment licensee and massage therapist employed therein shall ensure that the specified anatomical areas of a client are covered during the performance of a massage; provided, however, that the covering requirement shall not apply to a specified anatomical area:

(1) The massage of which is permitted under NRS Chapter 640C and the regulations adopted thereunder; and

(2) For the duration of the massage of that area.

(F) Except as otherwise specifically permitted in connection with a special use permit issued to a massage establishment or by other action of the City Council, no person shall operate a massage establishment outside of the hours of 6:00 a.m. to 10:00 p.m.

(Ord. No. 6170, § 3, 12-7-11; Ord. 5998 § 104, 2008: Ord. 5640 § 2, 2003: Ord. 5491 § 8, 2002: Ord. 5168 § 4, 1999: Ord. 4024 § 11, 1996)

6.52.100 Age of employees.

It is unlawful for any massage establishment licensee or principal to employ any person who is not at least eighteen years of age.
(Ord. 5998 § 105, 2008: Ord. 4024 § 12, 1996)

6.52.110 License required for performance of massage therapy.

It is unlawful for any massage establishment licensee to perform massage therapy without first obtaining and thereafter maintaining a valid unexpired massage establishment licensee practitioner license under this Chapter.
(Ord. 5998 § 106, 2008: Ord. 5491 § 9, 2002: Ord. 5168 § 5, 1999: Ord. 4024 § 13, 1996)

6.52.120 Prohibited activities.

It is unlawful for a massage establishment licensee, or a principal or employee thereof, to do any of the following within a massage establishment:

(A) Engage in or solicit sexual activity during the course of performing massage therapy on a person, with or without the consent of the person;

(B) Allow a massage therapist to engage in or solicit sexual activity in violation of Subsection (A) of this Section;

(C) Utilize any audio or video recording device for any purpose in a room where massage therapy is being performed;

(D) Equip with tinted glass or two-way mirrors any room that a client may occupy;

(E) Perform massage therapy within any cubicle, room, booth or other area of the establishment which is fitted with a door that is capable of being locked, unless:

(1) That door is an exterior door; or

(2) With respect to a room that is leased or otherwise made available to a massage therapist who is an independent contractor, the door is locked only from the outside thereof by means of an exterior lock employed solely for security purposes while the room is not being occupied.

(F) Utilize any electronic locking device on any interior door.
(Ord. No. 6170, § 4, 12-7-11; Ord. 5998 § 107, 2008: Ord. 5491 § 10, 2002: Ord. 5168 § 6, 1999: Ord. 4024 § 14, 1996)

6.52.130 Outcall massage.

Any licensed massage establishment may dispatch a licensed massage therapist to administer massage therapy to a client, but only if the therapy is to take place at the client's transient lodging, temporary or permanent residence or at the client's place of business.
(Ord. 5998 § 108, 2008: Ord. 5491 § 11, 2002: Ord. 4024 § 15, 1996)

6.52.160 License—Additional documentation required.

An applicant for a license under this Chapter shall provide to the Department proof of temporary or permanent licensure by the Nevada State Board of Massage Therapy.
(Ord. No. 6761, § 5, 12-16-20; Ord. No. 6170, § 5, 12-7-11; Ord. 5998 § 109, 2008: Ord. 5640 § 3, 2003: Ord. 5491 § 12, 2002: Ord. 5197 § 3, 2000: Ord. 5168 § 10 (part), 1999)

6.52.170 License—Investigation—Council action.

(A) The Director shall refer applications for a massage establishment license to Metro for investigation. Upon completion of the investigation, the Director shall refer an application for a massage establishment license to the City Council for approval, denial or such other action as the Council considers appropriate.

(B) The City Council may deny, revoke or suspend a massage establishment license for good cause, which includes but is not limited to the grounds set forth in LVMC 6.02.090 and 6.02.330 to 6.02.360, inclusive.
(Ord. No. 6170, § 6, 12-7-11; Ord. 5491 § 13, 2002: Ord. 5168 § 10 (part), 1999)

6.52.180 License—Issuance.

(A) Except as otherwise provided in this Section, the Director shall issue a license to perform massage therapy to an applicant upon the acceptance of a completed application, payment of appropriate license fees, proof of a valid unexpired massage therapist license issued by the Nevada Board of Massage Therapy.

(B) The Director may deny, refuse to renew, or revoke an application for a license to perform massage therapy for the following reasons:

(1) The applicant or licensee fails to possess or maintain a valid unexpired massage therapist license issued by the Nevada State Board of Massage Therapy.

(2) The applicant or licensee has been convicted of a charge of solicitation of prostitution during the three-year period immediately preceding the Director's action.

(Ord. No. 6761, § 6, 12-16-20; Ord. 5998 § 113, 2008)

6.52.200 Massage therapist license—Nontransferable.

Licenses issued under this Chapter are not transferable to any other person.
(Ord. 5998 § 114, 2008: Ord. 5491 § 16, 2002)

CHAPTER 6.53 MARTIAL ARTS INSTRUCTION BUSINESSES

6.53.010 Privileged business finding—Chapter 6.06 conformance.

The City Council finds that:

(A) Martial arts instruction businesses seriously affect the well-being of the City and its residents;

(B) It is necessary to regulate martial arts instruction businesses to insure that only persons of honesty and integrity operate such businesses;

(C) Martial arts instruction businesses must be operated in a manner that is responsible to the public; and

(D) Martial arts instruction businesses must comply with Chapter 6.06.
(Ord. 3521 § 2, 1990)

6.53.020 Definitions.

As used in this Chapter, unless the context otherwise indicates, the following terms shall have the meanings that are ascribed to them as follows:

(A) "Contract for martial arts instruction and other services" means an agreement between a customer and a martial arts instruction business for martial arts instruction.

(B) "Customer" means a person who, on behalf of himself or another and for consideration of any kind, engages the services of a martial arts instruction business for martial arts instruction and other services on a lesson-by-lesson basis or who on behalf of himself or another enters into a contract for martial arts instruction and other services. The term "customer" shall include both the person who tenders consideration to the martial arts instruction business for martial arts instruction and other services or who enters into a contract for such instruction and services and any person on behalf of whom such consideration is tendered or such contract is entered.

(C) "Martial arts" means a self-defense or combatant sport, activity or skill in which, unaided or only incidentally aided by weapons or instruments used as weapons, a person employs parts of his body including without limitation hands, arms, feet, legs, shoulders and hips to physically defend against or assail another person and includes such self-defense and combatant disciplines commonly known as aikido, hapkido, judo, jui jitsu, karate, kendo, kung fu and tae kwon-do as well as variations or combinations thereof regardless of the names by which such disciplines are identified, but excluding therefrom American boxing and wrestling.

(D) "Martial arts instruction" means a program of guidance, lessons, orientation, procedures, teaching or training of a person in martial arts but which may include other services whether given to such person individually or as a member of a group.

(E) "Martial arts instruction business" means a commercial martial arts company, corporation, entity, including any franchise entity, establishment, organization, partnership or sole proprietorship that offers to customers martial arts instruction for profit anywhere within the City.

(F) "Martial arts instructor" means an owner, principal, employee, agent, representative or independent contractor of a martial arts instruction business who trains customers in martial arts instruction.

(G) "Martial arts studio" means any physical location or facility, regardless of its size, of an independent, national or state-wide martial arts instruction business at which or in which martial arts instruction is conducted, offered, operated or taught to customers, and which includes without limitation the terms martial arts academy, association, center, club, conservatory, gymnasium, school or other term by which such location or facility is identified.

(H) "Nonprofit organization" means any recognized, registered nonprofit corporation or any private or community nonprofit entity including without limitation any church, club, eleemosynary institution or agency, local arts agency, park or recreation agency, private social organization, school or any other nonprofit entity not affiliated with or franchised by any independent, national or statewide martial arts instruction business which may offer as an incidental part of its services martial arts instruction.

(I) "Seller" means the owner, principal, occupant or lessee of a martial arts instruction business or martial arts studio or any of his employees, agents, representatives or independent contractors who solicits customers for contracts for martial arts instruction and other services.

(Ord. 3521 § 3, 1990)

6.53.030 Exemptions.

This Chapter does not apply to any nonprofit organization or nonprofit entity that offers martial arts instruction only as an incidental service in its overall program of activities.
(Ord. 3521 § 7, 1990)

6.53.040 License required.

(A) It is unlawful for any person to commence, engage in or carry on a martial arts instruction business without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter.

(B) Every martial arts instruction business that is in existence and licensed by the Director on the effective date of the ordinance codified in this Chapter shall have until November 30, 1990, within which to comply with the provisions of this Chapter.
(Ord. 3521 § 4, 1990)

Editor's note—The effective date of Ord. 3521 is August 1, 1990.

6.53.050 Fee.

Every martial arts instruction business that is required to be licensed by this Chapter must pay in advance an annual license fee of one hundred fifty dollars.
(Ord. No. 6213, § 30, 9-5-12; Ord. 3843 § 80, 1994: Ord. 3521 § 5, 1990)

6.53.060 Instructor required to have work card.

Every martial arts instructor, other than one who is required to be found suitable, must first obtain and thereafter maintain a valid, unexpired work card pursuant to Chapter 6.86 of this Code.
(Ord. 3521 § 6, 1990)

CHAPTER 6.54 MOBILE CAR WASH/AUTO DETAIL BUSINESSES

6.54.010 Definition.

For purposes of this Chapter, "mobile car wash/auto detail business" means a business that is:

(A) Conducted from other than a fixed place of business within the City, including operations conducted from a motorized vehicle;

(B) Engaged in the washing, waxing, cleaning or detailing of motor vehicles; and

(C) Carried out primarily by means of human effort rather than primarily by mechanical means.

(Ord. No. 6344, § 1, 9-3-14)

6.54.020 License required.

It is unlawful for a person to conduct, engage in, carry on, advertise, or market a mobile car wash/auto detailing business without a license issued pursuant to this Chapter. In the case of a business that operates from more than one vehicle, a separate license must be obtained for each additional vehicle used in the business. The annual license fee for a license issued under this Chapter is two hundred fifty dollars.

(Ord. No. 6344, § 1, 9-3-14)

6.54.030 Unlawful activities.

In the operation of a mobile car wash/auto detail business, it is unlawful for a principal, employee or agent of the business to:

(A) Create a nuisance under LVMC Chapter 9.04;

(B) Engage in washing the exterior of a vehicle upon any public street or public right-of-way, or upon any vacant unimproved lot;

(C) Engage in washing or cleaning a motor vehicle engine;

(D) Advertise that services are available at a specific location, or otherwise invite customers to come to a specific location to receive services provided by the business;

(E) Erect or place advertising of the business at any location the business may operate, except to the extent required in order to comply with LVMC 6.54.080;

(F) Operate at a fixed location, other than in compliance with LVMC 6.54.100;

(G) Violate any provision of State law or of the Municipal Code pertaining to water conservation;

(H) Violate any provision of Chapter 14.18 pertaining to the City's stormwater system; or

(I) Violate any provision of LVMC Chapter 9.16 pertaining to noise.

(Ord. No. 6344, § 1, 9-3-14)

6.54.040 Display of license.

The original or a certified copy of each business license required pursuant to LVMC 6.54.020 must be displayed prominently or made available for inspection at all times that the licensee is providing services.

(Ord. No. 6344, § 1, 9-3-14)

6.54.050 Decals.

For each vehicle to be used by a mobile car wash/auto detail business in performing services, the Department will issue a license decal, which must be prominently displayed on the upper left rear portion of the vehicle. It is unlawful for a person associated with a mobile car wash/auto detail business to:

(A) Use such a vehicle in the performance of services without a valid license decal displayed thereon; or

(B) Alter a license decal or display an altered or fictitious license decal on a vehicle while services are being performed. An altered or fictitious decal is subject to confiscation by the Department or Metro.

(Ord. No. 6344, § 1, 9-3-14)

6.54.060 Vehicles—Registration and insurance.

Each vehicle that is used by a mobile car wash/auto detail business in performing services must be:

(A) Properly registered with the Nevada Department of Motor Vehicles; and

(B) Insured as required by Nevada law, with proof thereof to be provided upon request by the Department or Metro.

(Ord. No. 6344, § 1, 9-3-14)

6.54.070 Documentation required at all times.

At any time a mobile car wash/auto detail business is providing services, an employee or officer of the Department or Metro may request any principal, employee or agent of the business who is engaged in providing services to produce documentation to verify that he or she is providing, and is authorized to provide, services pursuant to a license issued under this Chapter.

(Ord. No. 6344, § 1, 9-3-14)

6.54.080 Display of business information.

Each licensee that uses a vehicle in its business operation shall display the business name, telephone number and City business license number on at least two sides of the vehicle (or on any attached mobile unit or trailer). The required display must be in characters with a minimum height of three inches.

(Ord. No. 6344, § 1, 9-3-14)

6.54.090 Authorization of the owner or authorized tenant of the property—Required.

It is unlawful for a mobile car wash/auto detail business to provide services at any location without first having obtained the express written authorization of the owner or authorized tenant of the property. In the case of a property with multiple tenants, the authorization must

be provided by the property owner (or property management firm, in the case of property managed by such a firm). The authorization must be produced to the Department or Metro upon request and must include:

(A) The name (printed) and signature of the person providing the authorization;

(B) That person's contact phone number; and

(C) If applicable, that person's business name and business address.

(Ord. No. 6344, § 1, 9-3-14)

6.54.100 Time limits.

(A) Except as otherwise provided in Subsection (B), no mobile car wash/auto detail business may operate at a particular location for more than three hours within any twenty-four-hour period.

(B) The limitation set forth in Subsection (A) does not apply to a licensed mobile car wash/auto detail business during any period of time in which the business:

(1) Is washing vehicles consisting of the inventory of a motor vehicle dealer licensed under NRS Chapter 482 and this Title to sell or lease motor vehicles; or

(2) Pursuant to written agreement with another business, is washing the vehicles that are used by that other business or vehicles that belong to employees of that other business.

(Ord. No. 6344, § 1, 9-3-14)

6.54.110 Location restrictions.

No mobile car wash/auto detail business may operate within one hundred fifty feet of:

(A) Any fixed-location or stationary car wash or detailing business; or

(B) Any location at which any other mobile car wash/auto detail business is providing services during the period of those services.

(Ord. No. 6344, § 1, 9-3-14)

6.54.120 Impoundment.

In addition to any remedy that is otherwise available to the City under this Title regarding unlicensed business operations, a vehicle that is being used in connection with an unlicensed mobile car wash/auto detail business may be impounded by an appropriate law enforcement agency upon proper notice, an opportunity to comply, and an opportunity to be heard.

(Ord. No. 6344, § 1, 9-3-14)

6.54.130 Enforcement.

In addition to those agencies, officers and employees specifically authorized to enforce the provisions of this Title, this Chapter may be enforced by any department or function of the City specifically assigned to its enforcement by the City Manager.

(Ord. No. 6344, § 1, 9-3-14)

CHAPTER 6.55 MOBILE FOOD VENDORS

6.55.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings which are ascribed to them, as follows:

"Employee" means a person who works for or under the direction of, on behalf of, or as an agent of a licensee.

"Health District" means the Southern Nevada Health District.

"Mobile food vendor" means a person who offers for sale or sells food items by means of a vehicle.

"Licensee" means the holder of a mobile food vendor business license issued by the Department.

"Metro" means the Las Vegas Metropolitan Police Department.

"Vehicle" means a motorized vehicle, as well as a trailer or other portable unit that is drawn by a motorized vehicle and is intended for use in vending.

"Vend" means to sell or offer to sell food products from a vehicle.
(Ord. No. 6220, § 1, 10-17-12; Ord. No. 6158, § 1, 8-17-11; Ord. 5998 § 116, 2008: Ord. 5066 § 15, 1998)

6.55.020 License required.

Except as otherwise provided in this Chapter, it is unlawful for a person to:

(A) Operate as a mobile food vendor within the City without a license issued pursuant to this Chapter; or

(B) Operate as a mobile food vendor within the City in violation of this Chapter.
(Ord. No. 6220, § 2, 10-17-12; Ord. 5066 § 16, 1998)

6.55.030 Exemptions.

This Chapter shall not apply to a person, business or vehicle to the extent that the person, business or vehicle is subject to, and is in compliance with, the provisions of LVMC Chapter 6.47 relating to ice cream trucks.
(Ord. 5066 § 17, 1998)

6.55.040 License—Application.

An application for a mobile food vendor license must be made upon forms provided by the Department. In addition to the information required under LVMC Chapter 6.02, the applicant shall provide the following:

(A) A description of the selling methods to be used and the nature of the products or services to be offered;

(B) Proof of filing with the State of Nevada Department of Taxation;

(C) A health permit for each vehicle, documentation that the vehicle is eligible for such permit, and a health card for each operator (all issued by the Health District);

(D) A copy of a valid, unexpired Nevada vehicle registration, if applicable, for each vehicle; and

(E) Such other information or documentation as the Department may require in order to establish the applicant's suitability and fitness for approval.

(Ord. No. 6220, § 3, 10-17-12; Ord. No. 6158, § 2, 8-17-11; Ord. 5998 § 117, 2008: Ord. 5066 § 18, 1998)

6.55.050 Health District requirements.

Each mobile food vendor shall:

(A) Comply with all applicable Health District regulations.

(B) Prominently display all health permits issued to the vendor by the Health District.

(Ord. No. 6220, § 5, 10-17-12)

Editor's note—Ord. No. 6220, § 4, adopted October 17, 2012, repealed the former § 6.55.050, and § 5 of Ord. No. 6220 enacted a new § 6.55.050 as set out herein. The former § 6.55.050 pertained to work card—investigation by Metro and derived from Ord. No. 5066, 1998.

6.55.060 Reserved.

Editor's note—Ord. No. 6220, § 4, adopted October 17, 2012, repealed the former § 6.55.050, which pertained to work card—exhibition and derived from Ord. No. 5066, 1998.

6.55.070 Location restrictions.

(A) Except as otherwise provided in Subsection (B) of this Section, no mobile food vendor shall:

(1) Have any exclusive right to any location upon the streets, sidewalks, alleys, or public grounds of the City; or

(2) Vend in any congested area where the operation will impede pedestrian or vehicle traffic.

(B) The provisions of Subsection (A) of this Section do not apply to the operation of a mobile food vendor at a particular location if and to the extent the vendor is operating at that location pursuant to a contractual arrangement with the City.
(Ord. No. 6220, § 6, 10-17-12; Ord. No. 6158, § 3, 8-17-11; Ord. 5660 § 1, 2003: Ord. 5066 § 21, 1998)

6.55.080 Insurance.

Each licensee must file with the Department and thereafter maintain public liability and property damage insurance which shall protect the public against any and all claims for personal injury damages, including death, and property damages which may arise out of or in connection with any operations or activities of the mobile food vendor. The amount of such insurance shall not be less than one hundred thousand dollars for injuries, including death, to any one person, and subject to the same limit for each person in an amount of not less than three hundred thousand dollars for injuries, including death, to more than one person on account of any one accident, and property damage insurance in an amount not less than twenty-five thousand dollars for each accident. A certificate of insurance shall be provided to the Department prior to the issuance of a business license and the City shall be named as an additional insured party. Any insurance coverage provided under this Section shall also contain a provision that any cancellation or material change in the coverage shall not become effective until the City has been given sixty days prior written notification.
(Ord. 5066 § 22, 1998)

6.55.090 Unlawful operations.

It is unlawful for any mobile food vendor to:

(A) Vend or park a vehicle to be used for vending within one thousand feet of the outside perimeter of school property:

(1) During the hours the school is in session;

(2) During the one-hour period preceding the start of the first session of the day; or

(3) During the one-hour period after the final session has ended;

(B) Consume alcoholic beverages while vending;

(C) Vend within one thousand feet of a licensed concession stand located within a City park when the concession stand is open for business, unless otherwise permitted under a contractual arrangement with the City regarding a specific location;

(D) Vend in any residential neighborhood unless the vendor is operating:

(1) As a caterer for a specific event at a specific location; or

(2) At a location concerning which such vending has been specifically approved by means of a special event permit issued pursuant to LVMC Chapter 12.02;

(E) Vend within one hundred fifty feet of the primary public entrance of a licensed restaurant during the hours the restaurant is open for business, unless the vendor:

(1) Is located on the same premises as the licensed restaurant and is operating either on behalf of or with the consent of the restaurant licensee; or

(2) Is operating at a location concerning which such vending has been specifically approved by means of a special event permit issued pursuant to LVMC Chapter 12.02;

(F) Operate or park a vehicle to be used in vending in violation of applicable traffic and parking laws and ordinances;

(G) Vend within fire lanes or at other locations where to do so would be in violation of parking prohibitions or limitations;

(H) Vend at the same location within the public right-of-way for more than thirty consecutive minutes, except as otherwise permitted under Title 11 or pursuant to specific approval granted by means of a special event permit issued pursuant to LVMC Chapter 12.02. For purposes of this prohibition, the "same location" means a particular vending location and any location within a distance of one hundred fifty feet from that location;

(I) Vend within designated loading zones, except as permitted by means of a special event permit issued pursuant to LVMC Chapter 12.02;

(J) Place tables, chairs or similar items in the public right-of-way in connection with a vending operation;

(K) Vend on any one parcel, lot or commercial subdivision for more than four hours within any twenty-four hour period;

(L) Vend on undeveloped lots, or developed lots with unoccupied structures or unpaved surfaces, unless such vending complies with all applicable air quality standards adopted by the Clark County Department of Air Quality and Environmental Management;

(M) Vend on any unpaved lot where the disturbance area (including vehicles, parking and customer areas) exceeds five thousand square feet, regardless of overall lot size, unless a greater disturbance area is approved in connection with a dust mitigation permit from the Clark County Department of Air Quality and Environmental Management; or

(N) In the case of a mobile food vendor who sells from a trailer or other portable unit drawn by a motorized vehicle, disconnect the trailer or unit from the motorized vehicle (except in the case of an emergency).

(Ord. No. 6220, § 7, 10-17-12; Ord. 5660 § 2, 2003: Ord. 5066 § 23, 1998)

6.55.100 License fee.

Each mobile food vendor shall pay, in advance, a semiannual fee based on gross sales as specified in LVMC 6.04.005.

(Ord. No. 6220, § 8, 10-17-12; Ord. 5066 § 24, 1998)

6.55.110 License—Display—Nontransferable.

(A) Any person required to have a mobile food vendor license must display in a conspicuous manner, on the rear, upper left corner area of each vehicle to be used for vending, the number of the business license associated with that vehicle and an identification number particular to that vehicle that has been provided by the Director. The display shall be of such color, size and placement that the identification number can be easily read at a distance of ten feet.

(B) A mobile food vendor license is not transferable.
(Ord. No. 6220, § 9, 10-17-12; Ord. 5660 § 3, 2003: Ord. 5066 § 25, 1998)

6.55.120 Vehicle maintenance.

The licensee shall maintain a vehicle to be used for vending in such a condition that:

(A) All doors, windows, hoods and trunks open and close securely;

(B) The exterior of the vehicle is clean and in good repair; and

(C) Any windows on the vehicle are clear of signs and other obstructions.
(Ord. 5066 § 26, 1998)

6.55.130 Reserved.

Editor's note—Ord. No. 6158, § 4, adopted August 17, 2011, repealed § 6.55.130, which pertained to home occupation permits and derived from Ord. No. 5066, 1998.

CHAPTER 6.57 OUTCALL ENTERTAINMENT REFERRAL SERVICE BUSINESSES

6.57.010 Intent of chapter.

The City Council declares that this chapter is intended to:

(A) Regulate outcall entertainment referral service businesses by curtailing prostitution under the guise of entertainment without de facto prohibiting or curtailing protected expression; and

(B) Represent a balance between the legitimate ends of the community by:

(1) Imposing an incidental, content-neutral time, place and manner regulation on outcall entertainment referral businesses without limiting alternative avenues of communication; and

(2) Requiring outcall entertainment referral service businesses to carry their fair financial share of law enforcement activities related to outcall entertainment.
(Ord. 3632 §§ 1 (part), 2, 1992)

6.57.020 Findings—General compliance.

The City Council finds that outcall entertainment referral service businesses seriously affect the economic, social and moral well-being of the City and its residents; that such businesses must be strictly regulated for the welfare of the public; and that such businesses must therefore comply with Chapter 6.06 of this Code.
(Ord. 3632 §§ 1 (part), 3, 1992)

6.57.030 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meaning ascribed to them as follows:

(A) "Entertainment location" means a hotel or motel guest room, or the guest room of any other public lodging accommodation including recreational vehicle parking facilities.

(B) "Manager" means the person who administers, oversees or supervises the day-to-day operation of an outcall entertainment referral service and who acts as the licensee's agent.

(C) "Outcall entertainer" means a natural person who is employed by and who is sent or referred to an entertainment location by an outcall entertainment referral service to entertain a patron at the entertainment location.

(D) "Outcall entertainment" means a visit by an outcall entertainer at an entertainment location in response to a telephone or other request to entertain a patron at the entertainment location.

(E) "Outcall entertainment referral service" means a business which for a fee sends or refers an entertainer to an entertainment location in response to a telephone or other request to entertain a patron at the entertainment location.

(F) "Patron" means a person who requests an entertainer to entertain at an entertainment location and who either pays or agrees to pay the fee of the outcall entertainment referral service. "Patron" includes a person who is entertained by an outcall entertainer at an entertainment location.

(G) "Police department" means the Las Vegas Metropolitan Police Department.
(Ord. 3632 §§ 1 (part), 4, 1992)

6.57.040 License—Required.

No person shall engage in the business of outcall entertainment referral service without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter and this Code.
(Ord. 3632 §§ 1 (part), 6, 1992)

6.57.050 License—Application—Investigation.

(A) Application.

(1) Any person who is required by the provisions of this Chapter to obtain a license must apply for such license at the Department and pay an investigation fee pursuant to the provisions of LVMC 6.06.

(2) The application must be made upon forms provided by the Department and set forth the information required.

(3) A post office box address is unacceptable as a street address on an application where a street address is required; provided, however, an applicant may identify and designate on his application a post office box address as the address to which he prefers correspondence to be mailed.

(B) Investigation. The Department shall refer the application for a license to Metro for an investigation. Upon completion of the investigation, the City Council shall approve, deny or take such other action with respect to the application as it considers appropriate. The City Council may deny a license for good cause which shall include without limitation the grounds provided in LVMC 6.02.090(A).
(Ord. 5998 § 118, 2008: Ord. 3632 §§ 1 (part), 7, 8, 1992)

6.57.060 License—Fee.

Each outcall entertainment referral service must pay in advance a semiannual license fee of one thousand dollars or one percent of the total amount of its gross revenues, whichever is greater.
(Ord. 3632 §§ 1 (part), 11, 1992)

6.57.065 License—Business location.

No license for an outcall entertainment referral service may be issued unless the business has a fixed location:

(A) From which the business will actually be conducted; and

(B) Which is properly zoned to allow the use.
(Ord. 5309 §§ 1, 2, 2001)

6.57.070 Licensee—Discipline.

In addition to the grounds provided in LVMC 6.02.330, an outcall entertainment referral service licensee may be disciplined if an outcall entertainer who is employed by or referred to a patron by the referral service has committed a criminal act while providing entertainment to a patron under circumstances where the referral service has knowledge or should have had knowledge by reasonable diligence that such a criminal act might occur.
(Ord. 3632 §§ 1 (part), 9, 1992)

6.57.080 Licensee—Hiring restrictions.

It is unlawful for any outcall entertainment referral service to employ or refer to a patron an outcall entertainer who:

(A) Is less than eighteen years of age;

(B) Does not have in his possession a valid unexpired work card as required by this Chapter.
(Ord. 3632 §§ 1 (part), 10, 1992)

6.57.090 Licensee—Work cards—Application.

(A) No person may be employed as an outcall entertainer without first obtaining and thereafter maintaining a valid unexpired work card.

(B) Any person who is required by the provisions of this Chapter to obtain a work card must apply for such work card pursuant to the provisions of Chapter 6.86 of this Code.
(Ord. 3632 §§ 1 (part), 12, 13, 1992)

6.57.100 Licensee—Work cards—Employee discipline.

In addition to the grounds provided in LVMC 6.86.110, an outcall entertainment work card may be denied or an entertainer disciplined if the applicant or entertainer:

(A) Has been convicted of a crime of prostitution or any other crime of sexual misconduct;

(B) Has committed a criminal act while providing services to a patron; or

(C) Is less than eighteen years of age.

(Ord. 3632 §§ 1 (part), 14, 1992)

6.57.110 Employees—Hiring restrictions.

No entertainer shall:

(A) Provide to a patron entertainment which may contribute to the delinquency of a minor if the patron is less than eighteen years of age;

(B) Commit an act of prostitution; or

(C) Solicit any fee, gratuity or tip from any patron in addition to the basic entertainment fee.

(Ord. 3632 §§ 1 (part), 16, 1992)

6.57.120 Employees—Record keeping.

(A) Every outcall entertainment referral service and every outcall entertainer shall maintain in a ledger accurate and detailed records of all entertainment referrals and visits to entertainment locations.

(B) The records shall include:

(1) The date of the referral and visit;

(2) The name, if any, address and room number, if applicable, of the entertainment location where the visit was made;

(3) The type of entertainment performed;

(4) The name of the patron who was entertained; provided, however, that if there was more than one patron entertained, only the name of the patron who paid the fee to the outcall entertainer need be recorded in the ledger;

(5) The amount of money the entertainment cost the patron; and

(6) Any special terms or conditions relating to the services performed.

(C) Each outcall entertainment referral service shall upon request by the director make its ledger available to the Department for inspection.

(D) Each outcall entertainer shall upon request by the Director make his ledger available to the Department for inspection.

(Ord. 3632 §§ 1 (part), 17, 1992)

6.57.130 Managers—Hiring restrictions.

No person shall engage in the business of outcall entertainment referral service as a manager without first being approved for suitability pursuant to this Chapter and this Code.
(Ord. 3632 §§ 1 (part), 18, 1992)

6.57.140 Managers—Application—Investigation.

(A) Application.

(1) Any person who is required by the provisions of this Chapter to be investigated as a manager shall file an application with the Department and pay an investigation fee pursuant to Chapter 6.06 of this Code.

(2) The application must be made upon forms provided by the Department and shall include the information required.

(3) A post office box is unacceptable as a street address where a street address is required; provided, however, an applicant may identify and designate on his application a post office box address as the address to which he prefers correspondence to be mailed.

(B) Investigation. The Department shall refer the application to the Police Department for an investigation. Upon completion of the investigation, the City Council shall approve, deny or take such other action with respect to the application as it considers appropriate. The Council may deny approval for suitability for good cause which shall include without limitation the grounds provided in LVMC 6.02.090(A).
(Ord. 3632 §§ 1 (part), 19, 20, 1992)

6.57.150 Managers—Presence on premises required.

Other than the sole proprietor of an outcall entertainment referral service who acts as his own manager, no licensee shall maintain a referral service or refer entertainers to entertainment locations unless at least one manager remains on the premises and oversees the operation of the referral service at all times during which the operation is open.
(Ord. 3632 §§ 1 (part), 21, 1992)

6.57.160 Managers—Termination.

Upon termination of employment of a manager with an outcall entertainment referral service, the referral service shall notify the Department in writing of such termination within ten days thereof.
(Ord. 3632 §§ 1 (part), 22, 1992)

6.57.170 Managers—Record keeping.

Every outcall entertainment referral service shall maintain records of the dates on which a manager's employment commenced and on which his employment terminated.
(Ord. 3632 §§ 1 (part), 23, 1992)

6.57.180 Advertising.

(A) No person shall advertise or cause to be advertised an outcall entertainment referral service without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter and this Code

(B) No licensee, manager or employee of an outcall entertainment referral service and no entertainer shall, in any manner, either directly or indirectly:

(1) Advertise, display or disseminate:

(a) In any newspaper, magazine or other publication, or

(b) By radio or television broadcasting, or

(c) By telephone, or

(d) By handbill, pictorial representation or other advertising any information or illustrations or pictures of any person or object that contain any statement which implies or suggests to a reasonable, prudent person or would give the public a basis to infer or believe that prostitution or any other illegal act, product or service is offered or provided by the referral service or the entertainer;

(2) Advertise in any manner set forth in paragraph (1) of this subsection any statement which implies or suggests to a reasonable, prudent person or would give to the public a basis to infer or believe that outcall entertainers have been medically examined and are free from contagious diseases.

(Ord. 3632 §§ 1 (part), 24, 25, 1992)

6.57.190 Violation—Penalty.

Whenever in this Chapter any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Chapter the doing of any act is required or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the doing of such prohibited act or the failure to do any such required act shall constitute a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment. Any day of any violation of this Chapter shall constitute a separate offense.

(Ord. 3632 §§ 1 (part), 27, 1992)

CHAPTER 6.58 OUTDOOR PAY TELEPHONES

6.58.010 Definitions.

As used in this Chapter, the following terms shall have the meanings ascribed to them:

(A) "Metro" means the Las Vegas Metropolitan Police Department.

(B) "Outdoor pay telephone" means any outdoor telephone which is accessible to the public and is operated by coin or credit card.

(C) "Private outdoor pay telephone" means any outdoor pay telephone which is not a public outdoor pay telephone.

(D) "Public outdoor pay telephone" means an outdoor pay telephone, any portion of whose equipment or enclosure is situated on, projects over, or hangs over a portion of the public right-of-way or is situated so that it can be used by a person standing on or within a public right-of-way.

(E) "Public right-of-way" means the full width or any portion of any dedicated street, alley or highway, including any public sidewalk.

(Ord. 5041 § 2, 1997)

6.58.020 License required.

It is unlawful for any person to install or maintain an outdoor pay telephone without having obtained a license to do so.

(Ord. No. 6296, § 8, 2-5-14; Ord. 5286 § 1, 2001: Ord. 5041 § 3, 1997)

6.58.030 License fee.

The license fee for each person required to be licensed under this Chapter is two hundred dollars annually.

(Ord. No. 6296, § 9, 2-5-14; Ord. 5286 § 2, 2001: Ord. 5041 § 4, 1997)

6.58.040 Prohibited where.

It is unlawful for any person to install, construct or maintain an outdoor pay telephone:

(A) On any private property without written permission that has been obtained from the property owner;

(B) Within a public right-of-way or on any public property without obtaining from the owner thereof, for that specific location, an appropriate encroachment permit or other approval in the form of a permit, license, lease or similar arrangement;

(C) On any vacant property;

(D) On any property where there is an abandoned building;

(E) On residential property that is developed with fewer than eight dwelling units;

(F) At a location within one hundred feet of where the users of the telephone can be heard from any single-family residential dwelling unit, unless the owner of the dwelling unit consents in writing to the installation; or

(G) On any property or at any location which has been determined by Metro or the Department to create a nuisance under this Chapter based upon prior actual use.

(Ord. No. 6816, § 16, 8-17-22; Ord. 5582 § 1, 2003: Ord. 5286 § 3, 2001: Ord. 5041 § 5, 1997)

6.58.050 Display of license—Maintenance—Map and listing.

The licensee's name and telephone number shall be prominently displayed on each outdoor pay telephone. Each outdoor pay telephone shall be maintained by the licensee in good repair and in a clean and safe condition at all times. In addition, each public outdoor pay telephone shall be installed in accordance with any durability and design standards established by the Department of Public Works. Each licensee must maintain a map and address list of the location of each outdoor pay telephone and make it available to the Director upon request.

(Ord. No. 6296, § 10, 2-5-14; Ord. 5286 § 4, 2001: Ord. 5041 § 6, 1997)

6.58.060 Compliance—Costs.

In the event a licensee fails or refuses to comply with the provisions of Section 6.58.050 of this Chapter in a manner that is satisfactory to the City, and further fails or refuses to take corrective action within ten days after it has received written notice from the City, the City may, at its option, perform or cause to be performed any repair or maintenance on the outdoor pay telephone that it deems necessary in order to bring the telephone into compliance. The licensee shall the pay the repair or maintenance costs to the City upon written demand. If the licensee fails to pay the costs within thirty days after receipt of the written demand, the City may pursue any action authorized by this Title or any other legal or equitable remedy, or any combination thereof.

(Ord. 5286 § 5, 2001: Ord. 5041 § 7, 1997)

6.58.070 Removal of unauthorized outdoor pay telephones.

(A) The City is authorized to remove any private or public outdoor pay telephone which has been installed or maintained in violation of this Chapter. The City shall send a written notice to the owner, operator or licensee at least seven days prior to removal stating that the outdoor pay telephone is subject to removal unless the owner, operator or licensee provides evidence of compliance with this Chapter or requests a hearing before the Director or the Director's designee. Unless the Director determines that the installation jeopardizes the public health, safety or welfare, the action to remove the telephone shall be stayed pending resolution of any hearing that has been requested. The decision by the Director or the Director's designee following the hearing shall be final.

(B) Any outdoor pay telephone removed by the City may be reclaimed by the owner within thirty days after removal upon reimbursement to the City for removal and storage costs. Any outdoor pay telephone not so reclaimed may be disposed of as unclaimed property or destroyed.

(Ord. No. 6816, § 17, 8-17-22; Ord. No. 6296, § 11, 2-5-14; Ord. 5286 § 6, 2001: Ord. 5041 § 8, 1997)

6.58.080 Conditions for approval of installation.

(A) In order to combat drug trafficking, loitering, street gangs, illegal activities, unsightly graffiti or conduct detrimental to the tranquility of the neighborhood, the City may request the licensee of a particular outdoor pay telephone to:

(1) Install lighting adequate to provide security and discourage criminal activity;

(2) Equip the telephone so that it provides one-way service only (outgoing service);

(3) Limit the telephone's capacity to accept coin authorized calls during certain hours, so that during those hours only credit card, third number, collect, 911 or repair and information calls can be placed;

(4) Limit or disable the telephone's capacity to input data other than the phone number called so that it cannot transmit messages to pagers or other devices; or

(5) Take such other measures as are deemed necessary and appropriate by the City.

(B) If the licensee fails to take the action requested pursuant to Section (A) of this Section, the City may proceed in accordance with Section 6.58.090.
(Ord. 5286 § 7, 2001: Ord. 5041 § 9, 1997)

6.58.090 Removal of nuisance outdoor pay telephones.

If the City determines that the continued operation of a particular outdoor pay telephone contributes to ongoing drug trafficking, loitering, street gangs, illegal activities, unsightly graffiti or conduct detrimental to the tranquility of the neighborhood, or has a deleterious impact upon the surrounding neighborhood or upon the public health, safety and welfare, it may declare the telephone a nuisance and notify the licensee, who shall remove the outdoor pay telephone within fourteen days, or such other time as specified by the notice. Any outdoor pay telephone not so removed may be abated or removed by the City in accordance with the abatement procedure set forth in LVMC Chapter 9.04, to the extent not inconsistent with this Section. After the City removes the outdoor pay telephone, the City shall notify the owner, installer or other responsible person of the removal if such person or persons are known to or reasonably can be determined by the City. Such notice shall be given within five days after removal of the outdoor pay telephone or within such additional time as may be necessary to locate and identify such person or persons. The City must not dispose of the outdoor pay telephone for thirty days following its removal. The owner may reclaim the outdoor pay telephone within thirty days after removal upon reimbursement to the City for removal and storage costs. Any outdoor pay telephone not so reclaimed may be disposed of as unclaimed property or destroyed.
(Ord. No. 6296, § 12, 2-5-14; Ord. 5286 § 8, 2001: Ord. 5041 § 10, 1997)

6.58.100 Decision to take action.

The decision to take any action authorized by Sections 6.58.080 and 6.58.090 of this Chapter may be made by the City in conjunction with Metro based upon reported or documented

incidents of drug trafficking, loitering, street gangs, illegal activities, unsightly graffiti, conduct detrimental to the tranquility of the neighborhood, or activity which has a deleterious impact on the surrounding neighborhood or upon the public health, safety and welfare.
(Ord. 5041 § 11, 1997)

CHAPTER 6.60 PAWNBROKERS

6.60.010 Privileged business determination.

The City Council finds that the business of pawnbrokering seriously affects the well-being of the City and its residents; that it is necessary to regulate pawnbrokering carefully to ensure that persons of honesty and integrity are operating such businesses; that pawnbrokering is operated in a manner responsible to the public. Such businesses must therefore comply with Chapter 6.06 of this Code.
(Ord. 3481 § 1, 1990: Ord. 2199 § 2 (part), 1981: prior code § 5-9-1)

6.60.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meanings ascribed to them as follows:

(A) "Application" means an application for consideration of a pawnbroker license.

(B) "Auto-pawnbroker" means a pawnbroker who accepts a motor vehicle as pledged property or in any other matter allows the use of a motor vehicle as collateral or security for a loan.

(C) "Motor vehicle" means every vehicle which is self-propelled but not operated upon rails.

(D) "Pawn" or "pledge" means the deposit of personal property by a debtor (pawnor) to his creditor (pawnbroker) as security for a loan.

(E) "Pawnbroker" means a person who lends money on the security of personal property, other than motor vehicles deposited or left in pawn with him.

(F) "Pawnor" means a person who borrows money from another and deposits personal property with him as security for the loan.

(G) "Personal property" means all corporeal property that is not real property as well as documents and titles.

(H) "Police department" means the Las Vegas Metropolitan Police Department.

(I) "Population" means the estimated number of persons inhabiting the City as determined and reported by the State of Nevada, Department of Taxation, pursuant to the provisions of NRS 360.283, and as certified by the Governor, pursuant to the provisions of NRS 360.285.

(Ord. 3753 § 1, 1993: Ord. 3481 § 2, 1990: Ord. 3675 § 1, 1992: Ord. 2199 § 2 (part), 1981: prior code § 5-9-2)

6.60.030 License required.

No person shall conduct or transact a pawnbroking or auto-pawnbrokering business without a valid unexpired license as provided in this Code.

(Ord. 3753 § 2, 1993: Ord. 2199 § 2 (part), 1981: prior code § 5-9-3)

6.60.035 Auto-pawnbroker license.

(A) A pawnbroker must not accept a motor vehicle as pledged property or in any other manner allow the use of a motor vehicle as collateral or security for a loan unless he is licensed as an auto-pawnbroker.

(B) An auto-pawnbroker license may only be issued to a person licensed as a pawnbroker as provided in this Code.

(C) A pawnbroker shall be issued an auto-pawnbroker license upon payment of the prescribed license fee as provided in this Chapter.

(Ord. 3753 § 3, 1993)

6.60.040 Fee.

(A) Each person required to be licensed as a pawnbroker by this Chapter shall pay in advance a semiannual license fee of five hundred dollars.

(B) Each person required to be licensed as an auto-pawnbroker by this Chapter shall pay in advance a semiannual license fee of two hundred fifty dollars. This fee is in addition to that fee imposed by Subsection (A) for a pawnbroker license.

(C) In connection with the granting of each new pawnbroker license pursuant to this Chapter, there shall be a one-time origination charge payable:

(1) In an amount and in the manner set forth in LVMC 6.60.060; or

(2) As otherwise established by formal action of the City Council.

(D) The transfer of a license pursuant to this Chapter is exempt from the origination charge.

(Ord. No. 6723, § 1, 2-5-20; Ord. 3753 § 4, 1993: Ord. 3675 § 2, 1992: Ord. 2248 § 3, 1981: prior code § 5-9-24)

6.60.045 Applicability of Chapter to auto-pawnbroker business.

The general provisions of this Chapter pertaining to a pawnbroker business, and the administration and enforcement thereof, to the extent not otherwise specifically addressed, or in conflict, or inconsistent with the provisions of this Chapter pertaining to an auto-pawnbroker business, shall also apply to an auto-pawnbroker business.
(Ord. 3753 § 5, 1993)

6.60.050 Number of licenses available.

(A) As of September 1, 2019, and, additionally, as of the effective date of the ordinance codified in part in this Section, there are twenty-four pawnbroker licenses within the City, that number being based on the language and implementation of a predecessor to this Section in relation to intervening population increases within the City. For purposes of this Section, the City Council:

(1) Determines that, as of July 1, 2018, the population of the City is 652,918.

(2) Determines and declares that, as of the effective date of the ordinance codified in part in this Section, one new pawnbroker license is available, for a total number of twenty-five licenses.

(B) Following the issuance of the twenty-fifth pawnbroker license pursuant to Subsection (A), no additional new pawnbroker license may be granted under the provisions of this Chapter until the population of the City achieves or exceeds seven hundred thousand. Thereafter, only one new pawnbroker license may be granted for each population increase of fifty thousand persons, as certified by the Governor. The granting of additional licenses is discretionary with the City Council.

(C) The procedure for making available any new or additional license under this Section shall be as set forth in LVMC 6.60.060.
(Ord. No. 6723, § 3, 2-5-20)

Editor's note—Ord. No. 6723, § 2, adopted February 5, 2020, repealed the former § 6.60.050, and § 3 of Ord. No. 6723 enacted a new § 6.60.050 as set out herein. The former § 6.60.050 pertained to new licenses issuance restrictions and derived from Ord. No. 3675, 1992 and Ord. No. 3693, 1993.

6.60.060 License auctions.

(A) With respect to the issuance of a new pawnbroker license pursuant to this Chapter, the Director may initiate an auction procedure in accordance with terms and conditions established by the Director. The procedure may include a live auction or an auction pursuant to sealed bids, and the Director may select a licensed auction firm to conduct the auction.

(B) The terms and conditions to be established by the Director for the auction may include without limitation:

(1) The requirement to register with proof of identity;

(2) A nominal opening bid of sixty thousand dollars;

(3) Payment of a percentage-based deposit upon the close of auction;

(4) Proof of funding to be used to pay the required deposit, including appropriate limitations on the means of payment, such as requiring cash or a certified check or bank check;

(5) Payment of the full amount of the winning bid within seventy-two hours after the close of auction;

(6) Voiding of the winning bid if not paid within the seventy-two hour period, with the second-highest bid automatically becoming the new winning bid and the bidder responsible for the new winning bid receiving notice thereof;

(7) That, if the bidder responsible for the new winning bid fails to pay the full bid amount within seventy-two hours following notice of the need to do so, termination of the auction with no right to a license resulting therefrom, and the ability to start with a new auction process.

(C) In connection with an application for a business license pursuant to Section 6.60.065, the winning bidder, whether an individual or an entity, must have an ownership interest of at least ten percent when the license is applied for.

(D) Except as otherwise provided in this Subsection (D), no changes may be made in the ownership of the person or entity applying for the business license during the licensing process. During the licensing process, owners other than the winning bidder may be removed, but in no event may the winning bidder's ownership interest decrease below ten percent.

(Ord. No. 6723, § 3, 2-5-20)

Editor's note—Ord. No. 6723, § 2, adopted February 5, 2020, repealed the former § 6.60.060, and § 3 of Ord. No. 6723 enacted a new § 6.60.060 as set out herein. The former § 6.60.060 pertained to granting of licenses—procedure and derived from Ord. No. 3675, 1992; Ord. No. 3693, 1993 and Ord. 5210, 2000.

6.60.065 Winning bidder requirements.

(A) Within one year following the completion of an auction process described in LVMC 6.60.060, the winning bidder must complete the following:

(1) Apply for a business license and fulfill all requirements of this Title that are applicable to the business licensing process.

(2) Complete favorably all suitability determinations made applicable by and in accordance with LVMC Chapter 6.06.

(3) Comply with all land use and development requirements applicable to the location proposed for the license, including obtaining any and all necessary land use approvals.

(4) Obtain final licensing approval from the City Council.

(B) Notwithstanding the requirements of Subsection (A), the City Council may grant an extension of time for good cause shown.

(C) The payment in full of the winning bid amount pursuant to the terms and conditions of an auction conducted pursuant to LVMC 6.60.060 shall be deemed to function as the origination charge referred to in LVMC 6.60.040(C).

(D) If a winning bidder or the corresponding license applicant is denied a business license or does not complete the licensing process in accordance with Subsection (A):

(1) The amount of the bidder's deposit on the day of the auction is forfeited; and

(2) Except as otherwise provided in Subsection (E), that bidder and any corresponding license applicant will be deemed ineligible for any future auction held under this Chapter for a period of one year after the denial of a license or the failure to complete the licensing process within the required time period.

(E) Upon the request of a bidder or a license applicant, the City Council may waive the ineligibility provisions of Paragraph (2) of Subsection (D) upon a showing that the applicant has diligently pursued completion of the licensing process and the failure to complete the licensing process was beyond the applicant's control.
(Ord. No. 6723, § 3, 2-5-20)

6.60.070 Reserved.

Editor's note—Ord. No. 6305, § 6, adopted March 19, 2014, repealed § 6.60.070, which pertained to employee work cards and derived from prior code § 5-9-23; Ord. No. 2199, 1981; Ord. No. 3675, 1992 and Ord. No. 5386, 2001.

6.60.080 Receipt—Generally.

(A) Each pawnbroker shall furnish to the pawnor a printed receipt for each article pawned which clearly shows the amount lent, a description of the property pawned, the date of receipt thereof, the last date for redemption and the name and address of the pawnbroker. The reverse

side of the receipt shall be marked in such a manner that the amounts of principal and interest and any other charges paid by the pawnor can be clearly designated thereon. Each payment shall be entered upon the reverse side of the receipt and shall designate how much of the payment is being credited to principal, how much to interest, and how much to any other charge, with the date of payments shown thereon.

(B) Each receipt shall be numbered in sequence.

(C) Each receipt shall have a place to sign and each receipt must be signed by the pawnor.
(Ord. 3481 § 5, 1990: Ord. 2199 § 2 (part), 1981: prior code § 5-9-5)

6.60.090 Receipt—Interest.

Each receipt shall also have printed thereon, so as to be easily read, the maximum interest chargeable under State law.
(Ord. No. 6168, § 1, 11-16-11; Ord. 5210 § 2, 2000: Ord. 3753 § 6, 1993: Ord. 3481 § 6, 1990: Ord. 2199 § 2 (part), 1981: prior code § 5-9-6)

6.60.100 Tagging pawns.

The pawnbroker shall affix to each article pawned a tag upon which shall be inscribed a number, of legible characters, which shall correspond to the number on the pawn receipt.
(Ord. 2199 § 2 (part), 1981: prior code § 5-9-7)

6.60.110 Records.

(A) Every pawnbroker shall maintain in his or her place of business a book or other permanent record in which must be legibly written in the English language, at the time of each purchase:

(1) The date and time of each transaction;

(2) The name, age, house number and street, the serial number of one piece of positive identification or a work card issued pursuant to Chapter 6.86 of this Code and a general description of the complexion, color of hair and facial appearance of the person with whom the transaction is had. Instead of a record of the serial number of one piece of positive identification or a work card, the record may contain an entry that the pawnbroker knows the person with whom the transaction is had;

(3) A description of the property received in pledge, which must include the manufacturer's serial number or identification number, if any, and all other numbers, letters and marks inscribed as identification on such property. In the case of watches, the description must also include the name of the maker and the number of the works or the case;

(4) The amount lent;

(5) The number of any pawn ticket issued therefor;

(6) The name or other identification of the person or employee conducting the transaction, who shall legibly print or type his or her full name and write his or her signature on the record of the transaction.

(B) The person with whom a transaction is had shall, at the time of the transaction, certify in writing that he or she has the legal right to pledge or sell the property that is the subject of the transaction.

(C) The record of all goods received must at all times during the ordinary hours of business be open to the inspection of the police department.
(Ord. 5299 § 1, 2001: Ord. 3675 § 11, 1992)

6.60.120 Retention of pawns—Right of redemption.

(A) Each pawnbroker shall retain possession of any item of property pawned for at least ninety days from the date of the pawn.

(B) Each pawnor has a right to redeem his or her property within the period of possession required in Subsection (A) of this Section. Property not so redeemed may be sold by the pawnbroker.
(Ord. No. 6168, § 3, 11-16-11; Ord. 3481 § 8, 1990: Ord. 2199 § 2 (part), 1981: prior code § 5-9-9)

6.60.130 Redemption statement.

At the time property is redeemed the pawnbroker shall furnish to the pawnor at his request a signed statement indicating the exact amount paid on principal and interest and any other payments made. The statement shall be either printed or stamped with the name of the pawnbroker and his address, and shall be legibly written so that the figures thereon are clearly discernible.
(Ord. 2199 § 2 (part), 1981: prior code § 5-9-10)

6.60.140 Daily Police report—Requirements.

Each pawnbroker must, before the hour of twelve noon of every day, make and deliver to the police department, in duplicate, a detailed record or ticket of each article pawned during the preceding twenty-four hours. The record or tickets shall set forth all of the information required to be kept in the book referred to in Section 6.60.110 of this Chapter. If no article has been pawned or received, a report must be made to that effect.
(Ord. 3675 § 12, 1992: Ord. 2199 § 2 (part), 1981: prior code § 5-9-11)

6.60.150 Daily Police report—Confidentiality.

The records or tickets received by the police department from a pawnbroker shall be treated as confidential except in the ordinary administration of this Code or other federal, state or local laws or pursuant to a subpoena or other order of a court of competent jurisdiction.
(Ord. 3675 § 13, 1992: Ord. 2199 § 2 (part), 1981: prior code § 5-9-12)

6.60.160 Sign disclosing maximum interest rate.

Each pawnbroker shall post and maintain, in a prominent location within the confines of the pawnshop, a printed sign indicating the maximum interest chargeable under State law. The sign shall be not less than fifteen by twenty inches in size, with the maximum interest rate indicated in clearly discernible red lettering of not less than two inches in size, on a white background.
(Ord. No. 6168, § 2, 11-16-11; Ord. 5210 § 3, 2000: Ord. 3753 § 7, 1993: Ord. 3481 § 9, 1993: Ord. 2199 § 2 (part), 1981: prior code § 5-9-13)

6.60.170 Nonoperation.

Any licensee who desires permanently to discontinue the operation of his pawnbroker business and to sell his license may notify the Department of his desire to sell such license. The Department shall maintain a list of such pawnbroker licenses and make it available to any person who is interested in obtaining such license. All semiannual pawnbroker license fees must be paid notwithstanding that the licensee has discontinued operation of the business.
(Ord. 3481 § 10, 1990: Ord. 2199 § 2 (part), 1981: prior code § 5-9-14)

6.60.190 Age of employees.

It is unlawful for any pawnbroker to employ any clerk or person under the age of eighteen years to receive any pawn or make any loan.
(Ord. 2199 § 2 (part), 1981: prior code § 5-9-17)

6.60.200 Removal of property.

No property received in pawn by any pawnbroker may be removed from his place of business, except when redeemed by the pawnor, until the expiration of thirty days after the receipt thereof has been reported to the police department as required by Section 6.60.140 of this Chapter.
(Ord. 3753 § 8, 1993: Ord. 3675 § 14, 1992: Ord. 3069 § 2, 1983: Ord. 2199 § 2 (part), 1981: prior code § 5-9-18)

6.60.210 Secondhand property purchases.

No pawnbroker shall, in the conduct of such business, buy secondhand personal property for the purpose of resale or trade without first obtaining a secondhand dealer's license as provided by this Code.
(Ord. 2199 § 2 (part), 1981: prior code § 5-9-19)

6.60.220 Safe storage—Insurance.

Each pawnbroker licensed under the provisions hereof shall provide a safe place for the keeping of the property received by him and shall have sufficient insurance on the property held in pawn to cover the pawnors' loss in case of destruction by fire. This policy shall provide coverage directly to the pawnors, as their interest may appear.
(Ord. 2199 § 2 (part), 1981: prior code § 5-9-20)

6.60.230 Release without charge.

A pawnbroker shall release, with- out charge, pawned property to a person if:

(A) He has filed a stolen property report with a law enforcement agency;

(B) He has furnished proof of ownership to the police department; and

(C) The police department has issued a release order to the pawnbroker to release the described property to such person.

(Ord. 3675 § 15, 1992: Ord. 2199 § 2 (part), 1981: prior code § 5-9-21)

6.60.240 Reserved.

Editor's note—Ord. No. 6168, § 4, adopted November 16, 2011, repealed § 6.60.240, which pertained to unlawful interest and fees and derived from prior code § 5-9-22; Ord. No. 2199, 1981; Ord. No. 3481, 1990; Ord. No. 3753, 1993 and Ord. No. 5210, 2000.

6.60.245 Unlawful encumbrance of license.

It is unlawful for any person to encumber any license by means of a lease, pledge, mortgage, deed of trust, security interest or other manner of alienation; provided, however, that this prohibition shall not apply to a transfer or encumbrance of a person's interest in the license pursuant to the prior approval of the City Council, if such approval is otherwise required by this Code.
(Ord. 3481 § 13, 1990)

6.60.250 Unlawful acts.

It is unlawful for any pawnbroker or any clerk, agent or employee of a pawnbroker to:

(A) Omit making an entry of any material matter in his book or record kept as provided for in Section 6.60.110 of this Chapter;

(B) Make a false entry in his book or record;

(C) Obliterate, destroy or remove from his place of business the book or record;

(D) Refuse to allow inspection by the Police Department of the book or record or any goods in his possession, during the ordinary hours of business;

(E) Report a material matter falsely to the Police Department;

(F) Omit reporting forthwith to the Police Department possession of property which he may have good cause to believe has been lost or stolen, together with the name of the owner, if known, and the date when and the name of the person from whom he received the property;

(G) Remove or allow to be removed from his place of business, except upon redemption by the owner thereof, property received within thirty days after the receipt thereof is reported to the Police Department;

(H) Receive property from a person under the age of eighteen years, common drunkard, habitual user of controlled substances as defined in Chapter 453 of NRS, habitual criminal, person in an intoxicated condition, known thief or receiver of stolen property, or any known associate of a thief or receiver of stolen property, whether the person is acting in his own behalf or as the agent of another;

(I) Violate the provisions of Section 6.60.080 or Section 6.60.120 of this Chapter.

(Ord. 3753 § 10, 1993: Ord. 3675 § 16, 1992: Ord. 3481 § 12, 1990: Ord. 3069 § 3, 1983)

6.60.260 Storage fee for motor vehicles.

An auto-pawnbroker shall not charge more than three dollars per day for the storage of a motor vehicle which is security or collateral for a loan, and shall print such maximum rate on the receipt and sign required by LVMC 6.60.090 and 6.60.160 in accordance with the printing requirements of such sections.

(Ord. 3753 § 11, 1993)

CHAPTER 6.62 PEDDLERS AND SOLICITORS

6.62.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings which are ascribed to them, as follows:

(A) "Agent" means any person, whether as an employee or independent contractor, authorized to represent any business regulated under this Title.

(B) "Agent solicitation permit" means a permit issued to an agent to peddle or solicit on behalf of a business.

(C) "Peddle or solicit" means to sell, offer for sale, or solicit orders for goods or services upon the streets, sidewalks, or alleys of the City, or by going from dwelling to dwelling or place to place whether by foot or by other means of transportation.

(D) "Peddler/solicitor permit" means a permit issued to a business to authorize the business to peddle or solicit.

(E) "Pedestrian mall" means any area designated by the City as a pedestrian mall pursuant to NRS 268.810 to 268.823.

(Ord. 5066 § 2 (part), 1998)

6.62.020 Permit and work card required.

Except as otherwise provided in this Chapter:

(A) No person shall peddle or solicit in the City without first obtaining and thereafter maintaining:

(1) A valid, unexpired peddler/solicitor permit or agent solicitation permit issued pursuant to this Chapter; and

(2) A valid, unexpired work card issued pursuant to LVMC Chapter 6.86.

(B) No principal of a business shall authorize or permit an agent to peddle or solicit on behalf of the business unless the agent has obtained and maintains a valid, unexpired work card and an agent solicitation permit.

(Ord. 5066 § 2 (part), 1998)

6.62.030 Exemptions.

This Chapter does not apply to:

(A) Charitable solicitations conducted in compliance with Chapter 11.62, Chapter 6.78 or the provisions of NRS Chapters 82 and 598 that pertain to such solicitations.

(B) Temporary merchants, sidewalk vendors and mobile food vendors to the extent they are subject to and in compliance with, the provisions of this Title which govern those businesses.

(C) The selling, offering for sale or soliciting of orders for goods or services from licensed wholesale or retail businesses located within the City, except with regard to the provisions of LVMC 6.62.020(B).

(Ord. No. 6882, § 2, 10-16-24; Ord. No. 6296, § 13, 2-5-14; Ord. 5066 § 2 (part), 1998)

6.62.040 Permit—Not required by business license holders.

The holder of a valid, unexpired City business license is not required to obtain a peddler/solicitor permit under this Chapter or pay a permit fee on behalf of its agents with respect to peddling or solicitation activities in furtherance of that business.

(Ord. 5066 § 2 (part), 1998)

6.62.050 Permit—Application.

Any person who is required to have a permit under this Chapter must file an application with the Director and pay a nonrefundable processing fee of fifty dollars. The application must be made upon forms provided by the Department. The Department may require such information as is required of business license applicants under Chapter 6.02, as well as the following:

(A) The name and a description of the business or enterprise which the applicant proposes to engage in or represent;

(B) The dates on which the applicant desires to peddle or solicit;

(C) A description of the selling methods to be used and the nature of the products or services to be offered; and

(D) Such other information or documentation as the Department may require in order to establish the applicant's suitability and fitness for approval.

(Ord. No. 6296, § 14, 2-5-14; Ord. 5066 § 2 (part), 1998)

6.62.060 Permit—Action after investigation—Denial, suspension or revocation.

After the work card investigation for a permit under this Chapter has been completed, the Director shall approve, deny or take such other action with respect to the permit application as he considers appropriate. The Director may deny, revoke or suspend a permit for good cause, which includes but is not limited to:

(A) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required;

(B) The applicant or permittee fails to satisfy any qualification or requirement imposed by this Code, or other local, State or Federal law or regulation pertaining to such activities;

(C) Disciplinary action has been brought against the permittee or a principal of the permittee;

(D) The applicant or permittee fails to comply with any conditions of the permit;

(E) The applicant or permittee is or has engaged in a business, trade or profession without a valid license, permit, approval for suitability or work card when he knew that one was required or under such circumstances that he reasonably should have known one was required;

(F) The applicant or permittee has been subject, in any jurisdiction to disciplinary action of any kind against a license, permit, approval for suitability or work card to the extent that such disciplinary action reflects on the qualification, acceptability or fitness to hold a permit;

(G) The applicant or permittee has committed acts which would constitute a crime involving moral turpitude; or involving any Federal, State or local law or regulation relating to the same or a similar business;

(H) When substantial information exists which tends to show that the applicant or permittee is dishonest or corrupt;

(I) The applicant or permittee has engaged in deceptive practices upon the public;

(J) The applicant or permittee suffers from a legal disability under the laws of the State.

(Ord. 5066 § 2 (part), 1998)

6.62.070 Permit—Contents.

A permit issued under this Chapter shall include information to identify the permittee and state the specific dates on which the permittee is authorized to operate.
(Ord. 5066 § 2 (part), 1998)

6.62.080 Exhibition of permit or work card.

Each person required to have a permit and work card under this Chapter must exhibit those documents at the request of any person.
(Ord. 5066 § 2 (part), 1998)

6.62.090 Permit—Term.

Each peddler/solicitor permit or agent solicitation permit issued pursuant to this Chapter is limited to the time period approved by the Director and designated on the permit. The minimum time period is seven days. The maximum time period is thirty days, subject to renewal by the Director in thirty-day increments up to a maximum of six months.
(Ord. 5066 § 2 (part), 1998)

6.62.100 Bond.

As a condition of obtaining and maintaining a peddler/solicitor permit pursuant to this Chapter, the permittee must file with the Department and maintain a surety bond for each permit in the sum of five thousand dollars. issued by a surety acceptable to the City Attorney. The bond must be conditioned to be paid to the City or to any person suffering injury by reason of any violation of the provisions of this Code by the principal, his agents or employees. The bond shall also require the principal therein named to faithfully comply with each and every condition and restriction imposed in connection with the issuance of the permit.
(Ord. 5066 § 2 (part), 1998)

6.62.110 Fee.

Each holder of a peddler/solicitor permit shall pay in advance a permit fee of fifty dollars per week for each peddler or solicitor, or one hundred fifty dollars per month for permits issued on a monthly or thirty-day basis.
(Ord. 5066 § 2 (part), 1998)

6.62.120 Location restrictions.

No person engaged in peddling or soliciting shall:

(A) Have any exclusive right to any location upon the streets, sidewalks, alleys or public grounds of the City;

(B) Operate at a stationary location;

(C) Operate in any congested area where the operation might impede the public;

(D) Operate in any pedestrian mall without obtaining prior approval of the mall management; or

(E) Attempt to peddle or solicit at any dwelling where there is displayed near its entrance a sign bearing the words "No Peddlers or Solicitors" or other words of similar import, except pursuant to a prior invitation by any person residing in such dwelling.

(Ord. 5066 § 2 (part), 1998)

CHAPTER 6.63 PEDICABS AND PEDALBUSES

6.63.010 Definitions.

For purposes of this chapter, the following words shall have the meaning ascribed to them as follows:

"Fare card" means a laminated document no larger than eight and one-half by eleven inches, posted inside a pedicab or pedalbus that includes the following information: applicable fares, whether by distance, zone, or time of operation, a picture of the operator and his or her name, the licensee's name, address, telephone number, the City business license number and City-issued identification number for the pedicab or pedalbus.

"Operator" means any person operating or in actual physical control of a pedicab or pedalbus, or any person sitting in the driver's seat of such vehicle with the intention of causing it to be moved.

"Pedicab" means a three-wheeled bicycle that is:

(1) Moved solely by the muscle power of the operator or with the assistance of an electric motor; and

(2) Capable of transporting up to four passengers plus the operator.

"Pedalbus" means a four-wheeled bicycle that is:

(1) Capable of transporting five or more passengers;

(2) Steered by an operator who is not a passenger; and

(3) Powered by more than one person, whether operator or passenger, and with the optional assistance of an electric motor.

(Ord. No. 6803, § 1, 1-19-22; Ord. No. 6555, § 1, 11-2-16)

6.63.020 License required.

No person shall operate a pedicab or pedalbus, whether for fares, tips, donations or gratuities or under contract to another business or organization, within the City without a valid business license issued pursuant to this Chapter.

(Ord. No. 6555, § 1, 11-2-16)

6.63.030 Maximum limits on operation of pedicabs/pedalbuses.

(A) Except as otherwise provided by (C), below, the Director shall at no time allow the operation of more than twenty-four total pedicabs and six total pedalbuses to operate within the City during any given period of time.

(B) At no time shall the Director allow a singular pedicab licensee to operate more than eight pedicabs.

(C) At no time shall the Director allow a singular pedalbus licensee to operate more than six pedalbuses.

(D) If after consultation with the Director of Public Works and a showing that the public interest and safety of passengers and operators is compromised, the Director may limit the number of approved pedicabs and/or pedalbuses within the City to a number less than thirty total pedicabs and pedalbuses, but shall not use this power to effectively prohibit pedicabs or pedalbuses without proposing an official amendment to this LVMC Section 6.63.030. If the Director decides to limit the total number of pedicabs and pedalbuses at a number less than thirty total, any aggrieved party may appeal this decision and be heard at a public hearing of the City Council. The City Council's decision is final.
(Ord. No. 6555, § 1, 11-2-16)

6.63.040 Applications.

Applications for a license to operate a pedicab or pedalbus shall be made to the Department pursuant to the provisions of LVMC Chapter 6.02. In addition to the information required by Chapter 6.02, the applicant shall furnish with the application the following information:

(A) The number of pedicabs or pedalbuses to be operated pursuant to the license, and the seating capacity, manufacturer and a scale drawing or photograph of each pedicab or pedalbus;

(B) A schedule of the rates charged to passengers;

(C) A street map showing the areas to be used by the pedicabs or pedalbuses, which must be in conformance with LVMC Chapter 11.39, including the sites to be used for off-street storage of vehicles and the location of all areas used for pick-up and discharge of passengers and areas for operator rest; and

(D) A schedule of the hours of operation, which must be in conformance with LVMC Chapter 11.39.
(Ord. No. 6555, § 1, 11-2-16)

6.63.050 License requirements.

Prior to the issuance of any license by the Department, the applicant must:

(A) Receive any and all approvals required pursuant to LVMC Chapter 11.39; and

(B) Obtain the approval of all State agencies, if any, which may have jurisdiction over the operation of pedicabs or pedalbuses on public streets, including but not necessarily limited to, the Nevada Transportation Authority.

(Ord. No. 6803, § 2, 1-19-22; Ord. No. 6555, § 1, 11-2-16)

6.63.060 Display of fare cards/map/license.

(A) Operators shall, at all times, display fare cards in a prominent and conspicuous location within the vehicle in a font size easily readable to passengers. The look, size, and quality of such fare cards, and the display location within the vehicle shall be approved by the Director. In addition, operators shall produce fare cards to city code enforcement officers, parking enforcement officers, business license officers, or law enforcement agents upon demand.

(B) At all times, operators shall display to passengers in the pedicab or pedalbus, a map of the approved operating areas within the Central Traffic District. The look, size and quality of such map, and its location in the pedicab or pedalbus shall be approved by the Director.

(C) Licensee must display in a conspicuous manner, on the rear, upper left corner area of each pedicab or pedalbus, the number of the business license associated with it and an identification number particular to that vehicle that has been provided by the Director. The display shall be of such color, size and placement that the identification number can be easily read at a distance of ten feet.

(Ord. No. 6555, § 1, 11-2-16)

6.63.070 Soliciting patronage.

Operators of pedicabs or pedalbuses shall not obstruct the movement of a person in any manner or follow any person, for the purpose of soliciting patronage.

(Ord. No. 6555, § 1, 11-2-16)

6.63.080 Pedicab/pedalbus requirements.

All pedicabs or pedalbuses utilized by a licensee in the conduct of his business must comply with the following requirements:

(A) Each shall be equipped with operating brakes meeting the performance requirements of NRS 484D.255.

(B) Operating headlamps, tail lamps, brake lamps and turn signals shall be provided in conformance with NRS 484D.

(C) No person shall be allowed to ride anywhere other than on the vehicle's seats, unless otherwise approved as a condition of the license by the Director.

(D) Each shall comply with all applicable state and local laws and regulations.

(E) Each shall be maintained in a clean and sanitary condition at all times.
(Ord. No. 6555, § 1, 11-2-16)

6.63.090 Pedicab capacity limit.

No pedicab shall be larger in capacity than for transport of four passengers, not including the operator.
(Ord. No. 6803, § 3, 1-19-22; Ord. No. 6555, § 1, 11-2-16)

6.63.100 Insurance.

(A) Before any license required in this Chapter is issued, the applicant shall obtain and maintain, at its own expense during the existence of its license or the operation of its business, comprehensive general public liability insurance. For pedalbus and pedicab licensees, the insurance policies shall be in the amount of one million dollars, combined single limit, with an excess general aggregate policy of two million dollars. Coverage under this policy shall include as a minimum the following: Premises/operation, independent contractors, bodily injury, property damage, products/completed operation, contractual liability and operation of pedicab or operation of pedalbus, whichever is appropriate for each specific licensee.

(B) Insurance coverage shall be issued by a carrier authorized to issue such coverage in the State of Nevada and approved by the Director.

(C) A certificate of insurance shall be provided to the Department prior to the issuance of a business license.

(D) Any coverage provided in this Section shall also contain a provision that the cancellation, or material change in the coverage, of the insurance provided under this Section shall not become effective until the City has been given thirty days prior written notification.

(E) The City shall be named as an additional insured party under this insurance.
(Ord. No. 6803, § 4, 1-19-22; Ord. No. 6555, § 1, 11-2-16)

6.63.110 Applicability.

The provisions of this Chapter shall apply to any pedicab or pedalbus business licensed or otherwise permitted by any provision of this Code prior to the adoption of this Chapter. Any such existing pedicab or pedalbus business shall apply for and receive all necessary LVMC Title 6 licenses and LVMC Chapter 11.39 approvals, if necessary, prior to midnight on December 1, 2016. After such date, any existing business not otherwise licensed pursuant to this Chapter shall cease any and all operations.
(Ord. No. 6555, § 1, 11-2-16)

6.63.120 Pedicab license fee.

A licensee shall pay an annual license fee of one hundred dollars for each pedicab operated as a part of the business. For purposes of this Section, operation means a use of a pedicab on more than one occasion during any annual period.
(Ord. No. 6555, § 1, 11-2-16)

6.63.130 Pedalbus license fee.

A licensee shall pay an annual license fee of three hundred dollars for each pedalbus operated as a part of the business. For purposes of this Section, operation means a use of a pedalbus on more than one occasion during any annual period.
(Ord. No. 6555, § 1, 11-2-16)

6.63.140 Revocation/denial of renewal of license.

In addition to any other remedy available for a violation of this Chapter, the Director may suspend or revoke a license issued under this Chapter for the third or subsequent violation of this Chapter within any twenty-four-month period. Such action is appealable to the City Council or the Council's designee. In addition, the renewal of a license issued under this Chapter or an application for a new license under this Chapter may be denied if the licensee or applicant has been found guilty of any provision of this Chapter or has been determined to be in violation of any provision of this Chapter in connection with a civil proceeding.
(Ord. No. 6555, § 1, 11-2-16)

CHAPTER 6.64 REAL ESTATE BROKERAGE/SALES AND PROPERTY MANAGEMENT

6.64.010 Licensing required—Penalties.

Each professional business that offers or provides real estate brokerage, real estate sales, or property management services within the City through one or more independent contractors shall be responsible for ensuring that each such independent contractor is properly licensed with the City. Failure to ensure such licensing shall subject the license of the professional business to disciplinary action, in addition to any other remedy available to the City. The Director may also impose a fine on the professional business in the amount of three hundred dollars for each independent contractor that is not properly licensed by the City, which fine can be reimposed annually until compliance is achieved. The imposition of such a fine may be appealed to the City Manager or a designee, which may include an independent hearing examiner that may be appointed for the purpose of such appeals.
(Ord. No. 6165, § 3, 11-2-11)

CHAPTER 6.67 PUBLIC UTILITIES

6.67.010 Definitions.

As used in this chapter, unless the context otherwise requires, the following words have the meanings ascribed to them as follows:

(A) "Customer located within the City" means a customer, including a governmental entity, whose physical address is within the boundaries of the City.

(B) "Month" means a calendar month, or a portion thereof, when calculating the penalty to be assessed due to the late payment of a license fee.

(C) "Public utility" means any business that provides:

(1) A telecommunications service, is required to hold a certificate of public convenience and necessity issued by the Public Service Commission of Nevada, and derives intrastate revenue from the provision of that service to retail customers;

(2) A commercial mobile radio service as that term is defined in 47 C.F.R. Section 20.3 on the effective date of the ordinance codified in this chapter, or as later amended; or

(3) Electric energy or gas, whether or not the business is subject to regulation of the Public Service Commission of Nevada.

(D) "Revenue" does not include:

(1) Any proceeds from the interstate sale of natural gas to a provider of electric energy which holds a certificate of public convenience and necessity issued by the Public Service Commission of Nevada.

(2) Any revenue of a provider of a telecommunications service other than intrastate revenue.

(Ord. No. 6097, § 2, 6-16-10; Ord. 4034 § 3, 1996)

6.67.020 Telecommunications service.

(A) Every public utility providing telecommunications service within the City must have a valid unexpired business license issued pursuant to this Code and pay a quarterly license fee.

(B) The quarterly license fee required in Subsection (A) of this Section will be:

(1) Due the fifteenth day of the second month following the end of each calendar quarter, commencing with the January 1997 calendar quarter.

(2) Commencing January 1, 1997, four percent of the gross revenue earned during the calendar quarter.

(3) Commencing January 1, 1999, five percent of the gross revenue earned during the calendar quarter.

(C) "Gross revenue," for the purposes of this Section, means all revenue earned directly or indirectly from the sale or lease of intrastate telecommunications services provided within the City, except for revenue earned from sales of services to other telecommunications service providers holding a certificate of public convenience and necessity from the Public Service Commission of Nevada or to operators of a commercial mobile radio service.
(Ord. 4034 § 4, 1996)

6.67.030 Commercial mobile radio service.

(A) Every public utility providing commercial mobile radio service within the City must have a valid unexpired business license issued pursuant to this Code and pay a quarterly license fee.

(B) The quarterly license fee required in Subsection (A) of this Section will be:

(1) Due the fifteenth day of the second month following the end of each calendar quarter, commencing with the January 1997 calendar quarter.

(2) Commencing January 1, 1997, four percent of the public utility's gross revenue from the first fifteen dollars charged monthly for each line of access for each of the public utility's customers located within the City.

(3) Commencing January 1, 1999, five percent of the public utility's gross revenue from the first fifteen dollars charged monthly for each line of access for each of the public utility's customers located within the City.

(C) "Gross revenue," for the purposes of this Section, means all intrastate revenue earned from the first fifteen dollars charged monthly for each line of access for each of the public utility's customers located in the City.
(Ord. 4034 § 5, 1996)

6.67.040 Gas or electric service.

(A) Every public utility providing electric or gas service within the City must have a valid unexpired business license issued pursuant to this Code and pay a quarterly license fee.

(B) The quarterly license fee required in Subsection (A) of this Section will be:

(1) Due the fifteenth day of the second month following the end of each calendar quarter.

(2) Five percent of the gross revenue earned during the calendar quarter.
(Ord. 4034 § 6, 1996)

6.67.050 Penalty for late payment of license fee.

If a license fee required to be paid by the provisions of this Chapter is received by the Department after the due date, a penalty of two percent per month of the delinquent amount will be assessed to the public utility.
(Ord. 4034 § 7, 1996)

6.67.060 Information to be provided to the Department.

(A) Each public utility to which this Chapter applies or which intends to derive revenue from customers located within the City shall, not later than sixty calendar days after November 1, 1996, or thirty calendar days before the public utility begins to provide service to those customers, whichever occurs later, provide to the Department:

(1) An acknowledgment that the public utility is operating or intends to operate within the jurisdiction of the City; and

(2) The date when the public utility began or intends to begin to derive revenue from customers located within the City.

(B) Each public utility to which this Chapter applies shall, not later than thirty calendar days after the end of each calendar quarter, provide to the Department a statement of the amount of revenue the public utility derived during that calendar quarter from the sale of electric energy, gas or telecommunications services in the City.
(Ord. 4034 § 8, 1996)

6.67.070 Public utility facilities in the City's right-of-way.

(A) Installation, construction or maintenance of any public utility facilities in the City's public right-of-way shall be done in accordance with applicable City regulations.

(B) Each public utility subject to this Chapter shall, when filing its application for a business license, submit a map and description of its system architecture in an appropriate geographic information system format acceptable to the Department that describes the route and location of all facilities it uses in the City.

(1) If such facilities are partially owned or used by other businesses, identification of those businesses, a description of the facilities used or owned by those other businesses, and the location of such facilities must be disclosed at the same time the map and system architecture description is filed with the Department.

(2) Once a license has been issued, a public utility has a continuing responsibility to report changes to its system architecture description, changes in its use of other facilities owned or leased by other businesses, changes in use of its facilities by other businesses or changes in other information furnished to the Department.
(Ord. 4034 § 9, 1996)

6.67.080 Existing franchise agreements.

Nothing in this Chapter will be deemed to alter, modify or supersede the terms of any existing franchise agreement between the City and a public utility franchisee relating to license fees and late payment penalties.
(Ord. 4034 § 10, 1996)

6.67.090 License fees collected as surcharge to customer.

The license fees imposed upon a public utility pursuant to this Chapter must be collected by the public utility directly from its customers located within the City in proportion to the amount of revenue the public utility derives from each of such customers, unless the City has elected pursuant to NRS Chapter 354 to collect those fees directly from the public utility's customers located within the City. The public utility must show the customer's portion of the license fee as a separate charge on the customer's bill. The fees imposed upon a public utility by this Chapter shall be collected from a governmental entity if that entity is a customer of the public utility.
(Ord. No. 6097, § 3, 6-16-10; Ord. 4034 § 11, 1996)

6.67.100 Refund to customers—Generally.

The City will refund the license fee surcharge amount paid by each customer of a public utility pursuant to Section 6.67.090, if the customer:

(A) Qualifies under the eligibility guidelines set forth in Section 6.67.120; and

(B) Makes a successful application therefor as provided in Section 6.67.130.
(Ord. 4034 § 12, 1996)

6.67.110 Refund to customers—Surcharge payment duty.

The eligibility of a person for a refund pursuant to Section 6.67.100 shall not eliminate the duty of such person to pay the amount of any such surcharge lawfully imposed by any public utility company.
(Ord. 4034 § 13, 1996)

6.67.120 Refund to customers—Eligibility.

A refund pursuant to Section 6.67.100 will be granted for the amount of any such license fee surcharges paid on any public utility customer billing to any of the following:

(A) A husband and wife whose combined total income from all sources, for the year for which the refund is claimed, was no more than eighteen thousand nine hundred dollars, and either person was at least sixty years of age by the end of the year for which the refund is claimed;

(B) An unmarried individual whose income from all sources for the year from which the refund is claimed, was no more than sixteen thousand five hundred dollars, and such person was at least sixty years of age by the end of the year for which the refund is claimed.

(Ord. 4034 § 14, 1996)

6.67.130 Refund to customers—Filing period.

Applications for refunds pursuant to Section 6.67.100 may be made on a calendar-year basis only, and must be filed with the Manager of the Senior Citizen Programs Division of the City not later than the fifteenth day of March following the calendar year for which the refund is claimed. In the event that no refund is applied for within the time prescribed, all right to claim such refund shall be considered to be void and permanently extinguished.

(Ord. 4034 § 15, 1996)

6.67.140 Refund to customers—Application procedure.

The exclusive procedure for obtaining a refund of such surcharges by a person who qualifies therefor under the eligibility guidelines set forth in Section 6.67.120 is as follows:

(A) An application shall be submitted to the Manager of the Senior Citizen Programs Division of the City upon a form provided by the Manager. Such form shall set forth the details of the income received by the applicant and proof of the age of the applicant and shall be signed under penalty of perjury as to the truthfulness of the information contained in the application. The Manager may require the submission of income tax returns and other information for verification of the applicant's income.

(B) Such application shall further set forth the amount of surcharges paid by the applicant to each such public utility company during the period for which the refund is sought and shall have attached copies of all utility bills on which any such surcharge has been added during such period. Proof that such bills have been paid shall also be attached.

(C) After the Manager of the Senior Citizen Program Division has reviewed each application and determined that applicant has fulfilled the requirements of eligibility set forth in Section 6.67.120 and that an application in compliance with this Section has been presented, he or she shall approve such application and request the Department to issue a check upon the special fund to be created pursuant to Section 6.67.160.

(Ord. 5998 § 119, 2008: Ord. 4034 § 16, 1996)

6.67.150 Refund to customers—Denial.

If the Manager of the Senior Citizen Programs Division determines that the application is faulty or incomplete or that the applicant has failed to qualify under the eligibility guidelines set forth in Section 6.67.120 or truthfully to set forth such facts as called for in Section 6.67.140

he or she shall deny the application. In the event of such denial, he or she shall give written notice thereof and the grounds for denial to the applicant, who, within ten days of the mailing of the notice of denial by the Manager, may:

(A) Appeal such denial to the City Council; or

(B) File an amended application to cure the incompleteness or defects in the original application.

(Ord. 4034 § 17, 1996)

6.67.160 Refund to customers—Form—Fund.

The Manager of the Senior Citizen Programs Division will develop a form which will constitute the application to be filed pursuant to Section 6.67.140, and the Department will create a special fund to which will be appropriated sufficient funds with which to make the refunds contemplated in this Chapter.

(Ord. 5998 § 120, 2008: Ord. 4034 § 18, 1996)

CHAPTER 6.68 REAL ESTATE DEVELOPERS*

6.68.010 Definitions.

For the purposes of this Chapter, a "real estate developer" is defined as the owner, or the principal agent of an inactive owner, of subdivided land who offers it for sale in any offering or disposition.

(Ord. No. 6047, § 14, 7-15-09; Ord. 2251 § 1 (part), 1981: prior code § 5-7-2 (A, B))

6.68.020 License required.

No person shall engage in the business of a real estate developer as defined herein without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code.

(Ord. 2251 § 1 (part), 1981: prior code § 5-7-2 (part))

6.68.030 Fee.

Each real estate developer shall pay a semiannual license fee pursuant to the schedule set forth in LVMC 6.04.005.

(Ord. No. 6047, § 15, 7-15-09; Ord. 2251 § 1 (part), 1981: prior code § 5-7-2(C))

***Cross reference—**For provisions on time-share sales involving real estate, see Ch. 6.78 of this Code.

CHAPTER 6.69 REFLEXOLOGY

6.69.005 Purpose.

(A) The City Council hereby finds that reflexology establishments seriously affect the economic, social and moral well-being of the City and its residents, that such businesses must be regulated strictly for the welfare of the public, and that such businesses must therefore comply with LVMC Chapter 6.06, as well as the provisions of this Chapter. Although the Nevada Legislature has removed the ability of the City to regulate reflexologists as to their qualifications and practices, the City retains its authority to:

(1) Require reflexologists and reflexology establishments to obtain a City business license; and

(2) Regulate the manner in which reflexology establishments themselves may operate.

(B) Except as otherwise provided in this Subsection (B) and this Chapter, the issuance and governance of individual reflexologist licenses, including those for independent reflexologists, shall be in accordance with LVMC Chapter 6.02. The issuance and governance of licenses for reflexology establishment licensee practitioners shall be in accordance with LVMC Chapter 6.06 and this Chapter.
(Ord. No. 6760, § 1, 12-16-20)

6.69.010 Definitions.

Unless the context otherwise requires, the following words, as they appear in this Chapter, shall have the meanings ascribed to them in this Section:

"Employee" means any person who performs reflexology as a bona fide employee of a reflexology business.

"Independent reflexologist" means a reflexologist who is not an employee of a reflexology establishment, is a sole practitioner, and hires no employees.

"Outcall service" means reflexology given or provided off the premises of a licensed reflexology business.

"Reflexologist" means any person who, for consideration, engages in the practice of reflexology.

"Reflexology" has the meaning ascribed to it in NRS Chapter 640C.

"Reflexology establishment licensee practitioner" means the licensee of a reflexology establishment who performs reflexology.

"Sexual activity" means:

(1) Sexual intercourse;

(2) Rubbing against a client for sexual gratification;

(3) Making sexual advances toward a client;

(4) Demanding or requesting sexual favors from a client;

(5) Kissing, hugging, touching, fondling or caressing of a sexual nature;

(6) Encouraging masturbation or any other sex act in the presence of a licensee or other person performing reflexology;

(7) Masturbation or any other sex act by the licensee or other person performing reflexology;

(8) Suggesting or discussing the possibility of beginning a sexual relationship before the professional relationship ends;

(9) Terminating the professional relationship with the client for the purpose of pursuing a sexual relationship;

(10) Discussing the sexual history, preference or fantasies of the licensee or other person performing reflexology;

(11) Any behavior, gesture or expression that may reasonably be interpreted as seductive or sexual; or

(12) Showing a client sexually explicit photographs.

"Specified anatomical area" means:

(1) Genitals;

(2) Pubic region;

(3) Buttocks; or

(4) Female breast.

(Ord. No. 6934, § 2, 1-7-26; Ord. No. 6760, § 2, 12-16-20; Ord. No. 6171, § 1, 12-7-11; Ord. 5491 § 18, 2002: Ord. 5172 § 2, 1999)

6.69.020 Applicability.

This Chapter does not apply to:

(A) The following persons while engaged in their respective professions or occupations for which they are licensed to practice or perform in Nevada, if their performance of reflexology is only in connection with their profession or occupation:

(1) Physicians, doctors of oriental medicine, surgeons, chiropractors, osteopaths or physical therapists, and persons directly under their control and supervision.

(2) Registered nurses.

(3) Barbers, hairdressers and cosmeticians.

(4) Massage therapists licensed under the provisions of LVMC Chapter 6.52.

(B) Participants in a student clinic program certified by the State of Nevada, but only to the extent that an instructor is present at the location of the clinic program.

(Ord. No. 6171, § 2, 12-7-11; Ord. 5491 § 19, 2002: Ord. 5172 § 3, 1999)

6.69.030 License required.

No person shall engage in, conduct or carry on, or permit to be engaged in, conducted or carried on, in or upon any premises, the operation of a reflexology establishment, or the performance of reflexology as a reflexologist or a reflexology establishment licensee practitioner, without first obtaining and thereafter maintaining a valid unexpired license for that activity pursuant to this Chapter.

(Ord. No. 6760, § 3, 12-16-20; Ord. 5491 § 20, 2002: Ord. 5172 § 4, 1999)

6.69.040 License fee.

(A) Each reflexology establishment must pay in advance an annual license fee of one hundred dollars, together with the additional license fees for professional employees described in LVMC 6.04.060. As an alternative to paying the license fees for professional employees, an establishment may elect to require those employees to pay a license fee as if they were independent reflexologists under Subsection (B), in which case each such employee must do so.

(B) Each independent reflexologist and reflexology establishment licensee practitioner must pay in advance an annual license fee of seventy-five dollars.

(Ord. No. 6760, § 4, 12-16-20; Ord. 5491 § 21, 2002: Ord. 5172 § 5, 1999)

6.69.050 License—Reflexology services—Authorization/compliance.

(A) An independent reflexologist license authorizes the licensee to:

(1) Administer reflexology to a client in a licensed reflexology establishment;

(2) Administer reflexology to a client at the client's temporary or permanent residence, transient lodging or at the client's place of business; and

(3) Advertise as an independent reflexologist.

(B) An independent reflexologist licensee must comply with all applicable provisions of the City zoning regulations.

(Ord. No. 6760, § 5, 12-16-20; Ord. 5491 § 22, 2002: Ord. 5172 § 6, 1999)

6.69.060 License—Reflexology business—Application.

Each applicant for a license under this Chapter shall provide to the Department proof of temporary or permanent licensure by the Nevada State Board of Massage Therapy.

(Ord. No. 6760, § 6, 12-16-20; Ord. No. 6171, § 3, 12-7-11; Ord. 5491 § 23, 2002: Ord. 5172 § 7, 1999)

6.69.070 License application—Investigation—Fee.

In connection with a license application for a reflexology establishment, each principal of the reflexology establishment shall submit to investigation by Metro on standard forms established by the Department and pay the standard investigation fee.
(Ord. No. 6760, § 7, 12-16-20; Ord. 5172 § 8, 1999)

6.69.080 License application—Action taken by Director.

(A) Upon receipt of a complete application for a reflexology establishment license and a report concerning Metro's investigation for suitability, the Director shall approve, deny, or take such other action concerning the license application as the Director considers appropriate. The Director may deny, revoke or suspend a license for good cause, which includes but is not limited to the grounds set forth in LVMC 6.02.090 and LVMC 6.02.330 to 6.02.360, inclusive.

(B) With regard to an application for a license for a reflexologist, the Director shall issue a license to perform reflexology to an applicant upon the acceptance of a completed application, payment of appropriate license fees, and proof of a valid unexpired reflexologist license issued by the Nevada Board of Massage Therapy. However, the Director may deny, refuse to renew, or revoke an application for a license to perform reflexology for the following reasons:

(1) The applicant or licensee fails to possess or maintain a valid unexpired reflexologist license issued by the Nevada State Board of Massage Therapy.

(2) The applicant or licensee has been convicted of a charge of solicitation of prostitution during the three-year period immediately preceding the Director's action.

(Ord. No. 6760, § 8, 12-16-20; Ord. 5172 § 9, 1999)

6.69.090 Employment—Age restrictions.

It is unlawful for a reflexology business licensee or a person acting for the licensee to employ any person, whether as an employee or under contract, to perform reflexology unless that person is at least eighteen years of age.
(Ord. No. 6760, § 9, 12-16-20; Ord. 5491 § 24, 2002: Ord. 5172 § 10, 1999)

6.69.100 Reserved.

Editor's note—Ord. No. 6760, § 12, adopted December 16, 2020, repealed § 6.69.100, which pertained to health card required and derived from Ord. No. 5172, 1999; Ord. No. 5491, 2002; Ord. No. 5998, 2008 and Ord. No. 6171, adopted December 7, 2011.

6.69.110 Zone location restrictions—Prohibited practices.

It is unlawful for any licensee, principal or employee of a reflexology establishment to:

(A) Operate from a residentially zoned location except in compliance with LVMC Title 19;

(B) Dispatch any person to perform outcall service unless that person is an employee of, or has been contracted by, the licensee and is licensed to perform reflexology under this Chapter;

(C) Perform massage as defined in LVMC Chapter 6.52 unless the licensee possesses a valid unexpired license to do so at the location in question;

(D) Advertise as a massage establishment, outcall entertainment service, or other business in a manner which would be deceptive to members of the community;

(E) Employ to perform massage, as defined in LVMC Chapter 6.52, any massage therapist or independent massage therapist who is licensed as such under that Chapter, unless the holder of the reflexology business license also possesses a valid unexpired massage establishment license under that Chapter;

(F) Engage in sexual activity with, or solicit sexual activity from, a client in connection with the performance of reflexology;

(G) Allow a person to engage in or solicit sexual activity in violation of Subsection (F) above;

(H) Engage in false, deceptive or misleading advertising regarding the services available within a reflexology establishment, including, without limitation, false, deceptive or misleading advertising regarding the training that a reflexology establishment licensee, principal or employee has received;

(I) Utilize any audio or video recording device for any purpose in a room where reflexology is being performed;

(J) Fondle or touch with any part of the body, or allow any other person to fondle or so touch, any specified anatomical area of a client; or

(K) Require or allow a client to remove any article of clothing, other than coats, shoes, socks and gloves whose removal is necessary for the performance of reflexology.

(Ord. No. 6760, § 10, 12-16-20; Ord. No. 6171, § 5, 12-7-11; Ord. 5491 § 26, 2002: Ord. 5172 § 12, 1999)

6.69.120 Additional requirements.

The following requirements apply to all reflexology establishments:

(A) Every reflexology establishment and all licensed reflexologists shall post the licenses required by this Chapter in a prominent place in the reception area of the establishment.

(B) The licensee, or a person designated by the licensee of a reflexology establishment, shall maintain a current register of all persons employed or contracted by the establishment to perform any function or service within the establishment, whether or not related to the provision of reflexology. The register must show each such person's full legal name, as well as each alias or nickname used by that person; the person's date of birth; the person's title or function; and each applicable State and

City license and registration held by that person. The register must be updated to include any such person before the person is allowed on the premises. At all times the establishment is open for business, the register shall be made available upon request to representatives of the Department, Metro, and any other regulatory agency having jurisdiction. In addition, each reflexology establishment is responsible for ensuring that any person entering the establishment in any capacity is in possession of valid identification issued by a government entity to and regarding that person.

(C) At least one qualified person shall be on the premises of a reflexology establishment at all times the establishment is in operation. For purposes of the preceding sentence, a "qualified person" means a principal who has been approved for suitability pursuant to LVMC 6.69.070 and 6.69.080 or a manager who has been approved for suitability pursuant to those Sections as in the case of a principal.

(D) Rates for all services shall be prominently posted in the reception area in a location and manner readily visible to prospective and actual clients.

(E) Each reflexologist shall wear a uniform similar in nature and appearance to medical scrubs.

(F) Exterior windows shall not be tinted or covered in any manner that prevents a view of the inside of the establishment from the exterior.

(G) All front reception, hallway and front exterior doors (except back or rear exterior doors used only for employee entrance to and exit from the reflexology establishment) shall be kept unlocked during business hours. No electronic locking device may be utilized on any interior door.

(H) Reflexology establishments licensed after the effective date of the ordinance codified in part in this Section shall provide or permit reflexology only within an unenclosed room defined by walls not taller than three feet in height, as measured from the finished floor of the occupied space.

(I) Except as otherwise specifically permitted by action of the City Council, no person shall operate a reflexology establishment or perform reflexology for consideration (whether outcall service or otherwise) outside of the hours of 6:00 a.m. to 10:00 p.m.

(Ord. No. 6760, § 11, 12-16-20; Ord. No. 6171, § 6, 12-7-11)

6.69.130 Reserved.

Editor's note—Ord. No. 6760, § 12, adopted December 16, 2020, repealed § 6.69.130, which pertained to use of mechanical devices—practicing medicine and derived from Ord. No. 5172, 1999 and Ord. No. 6171, adopted December 7, 2011.

6.69.140 Reserved.

Editor's note—Ord. No. 6760, § 12, adopted December 16, 2020, repealed § 6.69.140, which pertained to outcall service and derived from Ord. No. 5172, 1999 and Ord. No. 5491, 2002.

6.69.150 Licenses nontransferable.

Licenses issued under this Chapter are nontransferable.
(Ord. No. 6171, § 8, 12-7-11)

CHAPTER 6.70 RENTAL CAR AGENCIES

6.70.010 License required.

No person shall engage in the business of renting automobiles on a daily basis without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code.
(Ord. 2251 § 1 (part), 1981: prior code § 5-7-4 (A))

6.70.020 Fee.

Each person required to be licensed by this Chapter shall pay in advance a semiannual license fee of one hundred dollars.
(Ord. 2251 § 1 (part), 1981: prior code § 5-7-4 (D))

6.70.030 Insurance.

Before a license shall be granted to any person engaged in renting automobiles, the applicant shall deposit with the Director an insurance policy securing payment in accordance with the provisions thereof to the patrons of the insured and to other persons as hereinafter provided:

(A) For damages because of bodily injury or death sustained by any such persons caused by accident and arising out of negligence in the use or operation of such vehicles;

(B) For damages because of injury to or destruction of property caused by accident and arising out of negligence in the use or operation of such rental vehicle, in the following amounts: As respects coverage, twenty-five thousand dollars for each person and subject to that limit for each person; one hundred thousand dollars for each accident; as respects property damage coverage, twenty-five thousand dollars for each accident;

(C) No such policy of insurance shall be cancelled prior to its expiration except upon five days' notice in writing to the Director. Upon the cancellation or expiration of such policy of insurance, it shall be unlawful to rent or let for hire any rental vehicle covered thereby until a new policy of insurance meeting the requirements of this Section has been deposited with the Director. Any such policy of insurance shall be issued by a company authorized to do business in this State and shall be approved by the City Attorney as to form and compliance with this Section; and

(D) Any person renting more than one vehicle at any one time shall furnish a combined policy or an additional automobile liability policy as set forth above for each vehicle so held or maintained for hire.

(Ord. No. 6816, § 18, 8-17-22; Ord. 2251 § 1 (part), 1981: prior code § 5-7-4 (C))

6.70.040 Display of price.

(A) No licensee shall display or cause to be displayed any outdoor sign or sign which may be seen from a public highway or street, or from a passerby, which sign includes any reference to the price for rental of a vehicle.

(B) No licensee shall display the price the vehicles may be rented for upon any vehicle owned or operated by the business.
(Ord. 2251 § 1 (part), 1981: prior code § 5-7-4 (B))

CHAPTER 6.71 RESCUE MISSIONS AND SHELTERS FOR THE HOMELESS

6.71.010 Purpose—Applicability.

(A) This Chapter is designed to establish the minimum standards for rescue missions and shelters for the homeless and to make safe and sanitary housing possible for those who would be without shelter if the type of shelter that is contemplated herein were not available.

(B) Nothing in this Chapter shall be deemed to amend or repeal any other provision of this Code that relates to housing, including without limitation any provision that is contained in LVMC Chapter 16.04 or 16.16 that establishes minimum fire and life safety requirements for new or existing buildings, and this Chapter shall be applied only to rescue missions or shelters for the homeless.
(Ord. 3401 § 2, 1988)

6.71.020 Definitions.

As the same are used in this Chapter, unless the context otherwise requires, the words and terms that are defined in this Section shall have the meanings that are ascribed to them in this Section.

"Operator" and "person" mean a natural person, any form of business or social organization and any other nongovernmental legal entity, including without limitation a corporation, limited liability company. partnership, association, trust or unincorporated organization, unless a different meaning is expressly provided in a particular section or is required by the context in which either of the terms appears. The terms do not include a government, governmental agency or political subdivision of a government.

"Rescue mission" and "shelter for the homeless" shall have the meanings that are ascribed to the respective terms in 19A.20.020.
(Ord. 5352 § 10, 2001: Ord. 3401 §§ 3—5, 1988)

6.71.030 Chapter compliance required.

No person shall operate a rescue mission or shelter for the homeless or shall occupy or allow another to occupy any rooming unit in any rescue mission or shelter for the homeless who does not comply with this Chapter.
(Ord. 3401 § 6, 1988)

6.71.040 Required sanitary facilities.

Except in a situation in which the Department authorizes a deviation from the occupancy load for the particular facility, at least one flush water closet, one lavatory basin and one bathtub or shower that are connected to a water system and a sewer system which are in good working condition shall be supplied for each eight occupants or fraction thereof who reside within a rescue mission or shelter for the homeless, including members of the operator's family whenever they share the use of such facilities with the occupants of the mission or shelter; provided, however, that in a rescue mission or shelter for the homeless in which rooms are let to, or occupied by, males only, flush urinals may be substituted for not more than one-half the required number of water closets.
(Ord. No. 6816, § 19, 8-17-22; Ord. 3401 § 7, 1988)

6.71.050 Sanitary facilities—Accessibility—Hot water supply.

(A) All flush water closets and flush urinals, lavatory basins and bathtubs or showers shall be located within the dwelling in such a manner as to be reasonably accessible from a common hall or passageway to all occupants of the mission or shelter who share such facilities.

(B) Each lavatory basin and bathtub or shower shall be supplied with hot water at all times.
(Ord. 3401 § 8, 1988)

6.71.060 Safe exits required.

Every rooming unit in a rescue mission or shelter for the homeless shall have a safe, unobstructed means of egress leading to a safe and open space at ground level.
(Ord. 3401 § 9, 1988)

6.71.070 Sanitary maintenance of premises.

The operator of each rescue mission or shelter for the homeless shall be responsible for the sanitary maintenance of the walls, floors and ceiling, for the maintenance of a sanitary condition in every other part of the rescue mission or shelter for the homeless and for the sanitary maintenance of the entire premises upon which the entire structure or building is situated.
(Ord. 3401 § 10, 1988)

6.71.080 Bedding and towels.

(A) The operator of each rescue mission or shelter for the homeless shall change the bed linens and towels that are supplied therein at least once each week and prior to the letting or occupancy of any room to any occupant.

(B) The operator of each rescue mission or shelter for the homeless shall be responsible for the maintenance in a clean and sanitary condition of all of the bedding and towels that are supplied by the mission or shelter.
(Ord. 3401 § 11, 1988)

6.71.090 Sleeping rooms—Area requirements.

Every room that is, or is intended to be, occupied for sleeping purposes by one occupant in a rescue mission or shelter for the homeless that is constructed after the effective date of the ordinance codified in this Chapter shall contain at least seventy square feet of floor space, and every room that is, or is intended to be, occupied for sleeping purposes by more than one occupant shall contain at least fifty square feet of floor space for each occupant thereof; provided, however, that dormitory rooms that are used only for sleeping accommodations for temporary occupants and are accessible for lodging only shall be permitted to have single bunk beds placed not more than two high and shall not be required to meet the previously stated square-footage requirement per occupant that would otherwise be required if they have a minimum of three feet of floor space between beds, and the beds are beside aisles that are at least three feet in width.
(Ord. 3401 § 12, 1988)

6.71.100 License fees.

Each operator, other than a patriotic, philanthropic, religious, social service, welfare, benevolent, educational, civic or fraternal organization, shall pay the license fees that are provided for in LVMC Chapter 6.46.
(Ord. No. 6296, § 15, 2-5-14; Ord. 3401 § 13, 1988)

CHAPTER 6.72 RESERVED*

CHAPTER 6.73 RESERVED†

CHAPTER 6.74 SECONDHAND DEALERS

6.74.010 Privileged business finding.

The City Council finds that the business of secondhand dealers seriously affects the well-being of the City and its residents; that it is necessary to regulate such activities carefully to ensure that persons of honesty and integrity are operating such businesses; and that they are operated in a manner which is responsible to the public. Therefore, secondhand dealers must comply with Chapter 6.06.
(Ord. No. 6227, § 1, 12-5-12; Ord. 5060 § 1, 1998: Ord. 3612 § 1, 1991: Ord. 2196 § 2 (part), 1981: prior code § 5-8-1)

6.74.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meanings ascribed to them as follows:

"Advertise" means the use of any newspaper, magazine or other publication, letter, sign, card or other printed matter, radio or television transmission or any other method (including by means of the internet) to bring to the attention of the public that a person is engaged in business as a secondhand dealer.

"Antique" means a unique object of personal property that is not less than sixty years old and has special value primarily because of its age.

"Collectible" means an object of personal property that has special value primarily because of its unique characteristics and the high level of demand for the object.

"General household furnishings," except as limited in this definition, means furnishings and personal effects that are typically found in a home, such as lamps, cloth items, and kitchen and bathroom items for personal use. The term does not include appliances, furniture, electronics, fine art, musical instruments, or any item of personal property that has a specific mark for identification or is otherwise individually identifiable.

***Editor's note—**Ord. No. 6296, § 5, adopted February 5, 2014, repealed Chapter 6.72, §§ 6.72.010—6.72.190, which pertained to retail demonstration merchandise sales stores and derived from prior code §§ 5-36-1—5-36-17; Ord. No. 2148, 1981; Ord. No. 2286, 1982 and Ord. No. 5998, 2008.

†**Editor's note—**Ord. No. 6183, § 17, adopted March 7, 2012, repealed Chapter 6.73, §§ 6.73.010—6.73.200, which pertained to rock concerts and derived from prior code §§ 5-35-1—5-35-12; Ord. No. 2284, 1982; Ord. No. 3209, 1985; Ord. No. 3654, 1992; Ord. No. 3843, 1994 and Ord. No. 5998, 2008.

"Infant/child items" means furnishings, furniture and personal effects that are typically found in a home and used by or for children under the age of ten. Such personal effects include products, bedding, toys, safety items, strollers, car seats and other sundry articles.

"Junk" means old iron, copper, brass, lead, zinc, tin, steel and other metals, metallic cables, wires, ropes, cordage, bottles, bagging, rags, rubber, paper, and all other secondhand, used or castoff articles or material of any kind, but does not include scrap metal.

"Major home appliance" means a washing machine, clothes dryer, dishwasher, refrigerator or freezer.

"Portable electronic device" means a laptop or tablet computing device, electronic reading device (e-reader), cellular phone, smartphone, MP3 player, or any other similar lightweight, electronically operated consumer device.

"Precious metals" means gold, platinum, silver and their alloys.

"Scrap metal" means nonferrous metals, scrap iron, stainless steel or other material or equipment which consists in whole or in part of metal and which is used in construction, agricultural operations, electrical power generation, transmission or distribution, cable, broadband or telecommunications transmission, railroad equipment, oil well rigs or any lights maintained by the State or a local government, including, without limitation, street lights, traffic-control devices, park lights or ballpark lights. The term also includes catalytic converters, but does not include waste generated by a household, aluminum beverage containers, used construction scrap iron or materials consisting of a metal product in its original manufactured form which contains not more than twenty percent by weight nonferrous metal.

"Secondhand dealer" means any person engaged in whole or in part in the business of buying, selling (including by consignment), or trading metal junk, melted metal or secondhand personal property, other than antiques, used books, coins and collectibles.

"Specified liquid waste" means non-hazardous organic liquid waste from agricultural or commercial restaurant operations, such as cooking oil. The term does not include sewage, wastewater or any waste from industrial or residential sources.

"Sporting equipment" means goods or equipment used for sport or exercise, but excluding firearms.

"Wearing apparel" means any garment, article of clothing, covering or related accessory, other than a fur product, that is designed and customarily used to cover or protect any part of the body.
(Ord. No. 6547, § 1, 8-17-16; Ord. No. 6227, § 2, 12-5-12; Ord. 5998 § 133, 2008: Ord. 5060 § 2, 1998: Ord. 3612 § 2, 1991: Ord. 3020 § 2, 1982: Ord. 2196 § 2 (part), 1981: prior code § 5-8-2)

6.74.030 License required.

No person shall:

(A) Engage in the business of a secondhand dealer without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code; or

(B) Advertise as a secondhand dealer unless the person holds a valid license to engage in such business. The number of the dealer's business license shall be included in all of his advertising material.

(Ord. 3612 § 3, 1991: Ord. 2196 § 2 (part), 1981: prior code § 5-8-3)

6.74.040 Exemptions.

This Chapter does not apply to:

(A) Dealers of used vehicles as to those activities for which a license issued by the State Department of Motor Vehicles is required pursuant to NRS 482.322;

(B) The buying, selling or trading by a licensed business of used portable electronic devices or major home appliances, but only to the extent acquired by the business as a trade-in or credit upon a buyer's purchase of a new portable electronic device or major home appliance on a one for one basis;

(C) The taking in pawn or the selling of unredeemed personal property by a licensed pawnbroker pursuant to Chapter 6.60;

(D) The buying, selling or trading of used newspapers and periodicals;

(E) A person who engages in the business of buying or selling secondhand firearms or any antique parts, accessories or other equipment relating to those firearms to the extent that the person:

(1) Engages in that business at a show that:

(a) Is held at:

(I) A convention facility which is owned or operated by and located on the premises of a resort hotel; or

(II) A recreational facility which is owned or operated by a county fair and recreation board; and

(b) Is conducted for not more than seven days during any six-month period; and

(2) The person has been issued a license as a manufacturer, importer, dealer or collector pursuant to the provisions of 18 U.S.C. § 923;

(F) The buying, selling or trading by a licensed retail business of used video games, videotapes, cassettes, digital video discs, compact discs or sound recordings which have been purchased (or received as trade-ins) from its retail customers, provided that credit only has been given as consideration for the purchases or trade-ins, which

credit then can only be used by its retail customers for the rental or purchase of new or used items referenced in this Subsection at any of its licensed business premises;

(G) A convention or trade show not exceeding fourteen days in length, provided that convention or trade show exhibitors do not purchase secondhand or used personal property at the convention or trade show; or

(H) The buying, selling or trading of wearing apparel, general household furnishings, infant/child items, sporting equipment, musical instruments, or specified liquid waste.

(Ord. No. 6547, § 2, 8-17-16; Ord. No. 6227, § 3, 12-5-12; Ord. 5823 § 1, 2006: Ord. 5060 § 3, 1998: Ord. 3020 § 3, 1982: Ord. 2196 § 2 (part), 1981: prior code § 5-8-4)

6.74.050 Prohibited location.

A secondhand dealer's license must not be issued to a location unless the location conforms to the requirements of LVMC Title 19.

(Ord. No. 6740, § 1, 6-3-20; Ord. No. 6227, § 4, 12-5-12; Ord. 3816 § 1, 1994: Ord. 2196 § 2 (part), 1981: prior code § 5-8-5)

[The next page is 6:297]

6.74.060 Class I licenses.

Class I is divided into the following subclasses:

(A) Class I-A permits secondhand dealers who dismantle, scrap, process, wreck or disassemble used vehicles and sell the dismantled, wrecked or disassembled parts and accessories, and all secondhand dealers who handle or deal in the salvaging of all other articles, including metals (except precious metals and scrap metal), lumber and junk;

(B) Class I-B permits secondhand dealers of the parts and accessories of used vehicles who do not dismantle, scrap, process, wreck or disassemble said vehicles; and

(C) Class I-C permits secondhand dealers who deal in scrap metal, either exclusively or in combination with other materials that would qualify under Class I-A or Class I-B.

(Ord. No. 6227, § 5, 12-5-12; Ord. 2196 § 2 (part), 1981: prior code § 5-8-6)

6.74.070 Class II licenses.

Class II licenses permit secondhand dealers of any of the following used articles: furniture, fixtures, appliances, tableware, office supplies, pictures, paintings, jewelry, cutlery, guns or other secondhand articles except those which fall within Class I.

(Ord. No. 6227, § 6, 12-5-12; Ord. 2196 § 2 (part), 1981: prior code § 5-8-7)

6.74.080 Class III licenses.

Class III licenses permit secondhand dealers who deal exclusively in any one or more of the following kinds of secondhand articles: precious metals, precious or semiprecious gem stones, or articles made wholly or in part of precious metals and/or precious or semiprecious gem stones, including but not limited to jewelry, cutlery, tablewares, housewares, ornaments and decorations.

(Ord. No. 6227, § 7, 12-5-12; Ord. 3020 § 4, 1982: Ord. 2196 § 2 (part), 1981: prior code § 5-8-8)

6.74.085 Reserved.

Editor's note—Ord. No. 6227, § 12, adopted December 5, 2012, repealed § 6.74.085, which pertained to Class IV licenses and derived from Ord. 5060, 1998.

6.74.090 Bond.

Each applicant for a secondhand dealer's license must file and each such licensee must maintain a surety bond with the Department in an amount determined by the Director, with surety acceptable to and approved by the City Attorney. Such bond must be conditioned to be paid to the City or to any person suffering injury by reason of any violation of the provisions of this Code by the principal, the principal's agents or employees, and that the principal therein named will faithfully conform to any conditions or restrictions that may be placed upon the principal's license.

(Ord. No. 6227, § 8, 12-5-12; Ord. 3612 § 4, 1991: Ord. 2196 § 2 (part), 1981: prior code § 5-18-16)

6.74.100 Fee for license.

Each secondhand dealer must pay to the Department in advance, semiannually, a license fee based on the dealer's gross sales pursuant to LVMC 6.04.005.
(Ord. 5060 § 5, 1998: Ord. 3612 § 5, 1991: Ord. 2196 § 2 (part), 1981: prior code § 5-8-17)

6.74.110 Transaction records—Books—Access.

Every secondhand dealer shall comply with all applicable requirements of NRS Chapter 647 in addition to the requirements of this Chapter.
(Ord. No. 6227, § 9, 12-5-12; Ord. 5998 § 134, 2008: Ord. 3612 § 6, 1991: Ord. 3070 § 1, 1983: Ord. 2196 § 2 (part), 1981: prior code § 5-8-9)

6.74.120 Reserved.

Editor's note—Ord. No. 6227, § 12, adopted December 5, 2012, repealed § 6.74.120, which pertained to transaction records—daily police report and derived from prior code § 5-8-10; Ord. No. 2196, 1981; Ord. No. 3070, 1983; Ord. No. 3612, 1991 and Ord. 5998, 2008.

6.74.130 Reserved.

Editor's note—Ord. No. 6227, § 12, adopted December 5, 2012, repealed § 6.74.130, which pertained to keeping and inspection of goods and derived from prior code § 5-8-11; Ord. No. 2196, 1981; Ord. No. 3070, 1983; Ord. No. 3612, 1991; Ord. No. 3769, 1994 and Ord. 5998, 2008.

6.74.140 Fence or wall required when.

Each premises or enclosure, except a completely enclosed building, used in the conduct of a Class I secondhand dealer's business, must be enclosed by a fence or wall at least eight feet high erected in such a manner as to obscure the premises from public view. Such fence or wall shall be maintained, at all times, in good condition by the licensee.
(Ord. 2196 § 2 (part), 1981: prior code § 5-8-12(A))

6.74.150 Storage of dismantled parts.

It is unlawful for any licensee to pile or store any dismantled motor vehicle or trailer parts in piles exceeding eight feet in height or nearer than two feet from any fence or wall.
(Ord. 2196 § 2 (part), 1981: prior code § 5-8-12(B))

6.74.160 Vehicle and trailer license plates.

Each holder of a Class I-A or Class I-B secondhand dealer's license shall promptly deliver to Metro or the Department of Motor Vehicles all motor vehicle and trailer State license plates attached to any motor vehicle or trailer received by him for resale, exchange, wrecking or dismantling.
(Ord. No. 6227, § 10, 12-5-12; Ord. 5998 § 137, 2008: Ord. 3612 § 9, 1991: Ord. 2196 § 2 (part), 1981: prior code § 5-8-13)

6.74.180 Reserved.

Editor's note—Ord. No. 6227, § 12, adopted December 5, 2012, repealed § 6.74.180, which pertained to clothing preparation and derived from prior code § 5-8-15 and Ord. No. 2196, 1981.

6.74.190 Unlawful acts.

It is unlawful for any secondhand dealer or any clerk, agent or employee of a secondhand dealer to violate any provision of this Chapter or of NRS Chapter 647.
(Ord. No. 6227, § 11, 12-5-12; Ord. 5998 § 138, 2008: Ord. 3612 § 10, 1991: Ord. 3070 § 4, 1983)

6.74.200 Electronic communication services—Compliance with Federal law.

Nothing in this Chapter is intended or shall be deemed to supersede or conflict with Federal law regarding electronic communication services.
(Ord. No. 6547, § 3, 8-17-16)

CHAPTER 6.75 SHORT-TERM RESIDENTIAL RENTALS

6.75.010 Definitions.

As used in this Chapter:

"Accommodations facilitator" means a person, other than the owner, lessee or other lawful occupant of a residential unit, or a manager of a residential unit, who, for a fee or other charge, brokers, coordinates, makes available or otherwise arranges for the rental of the residential unit or a room within a residential unit for the purpose of transient lodging. The term includes, without limitation, a hosting platform.

"Commercial vehicle" means a vehicle customarily used as part of a business for the transportation of goods or people.

"Hosting platform" means a person who, for a fee or other charge, provides on an internet website an online platform that facilitates the rental of a short-term residential rental residential unit on behalf of an operator, including, without limitation, through advertising, matchmaking or other means.

"Operator" means any person who owns, leases, controls, manages or operates a short-term residential rental unit or property. The term also includes any person who brokers, coordinates, makes available or otherwise arranges for the rental of such a unit or property to the extent that person does not qualify as an accommodations facilitator.

"Party" means a gathering of people that exceeds the maximum occupancy of a residential unit, as set forth in LVMC 6.75.090.

"Residential unit" means a single-family residence or an individual residential unit within a larger building, including, without limitation, a condominium, townhouse, duplex or other multifamily dwelling. The term does not include a timeshare or other property subject to the provisions of Chapter 119A of NRS.

"Short-term residential rental" means the commercial use, or the making available for commercial use, of a residential dwelling unit for dwelling, lodging or sleeping purposes, wherein any individual guest rents or occupies the unit for a period of less than thirty-one consecutive calendar days. The term also includes the renting or occupancy of a residential unit or a room within a residential unit for purposes of transient lodging, as described in NRS 268.0195. A short-term residential rental qualifies as transient lodging and is included in the definition thereof. The term does not include a "community residence," "facility for transitional living for released offenders," or any other facility with dwelling units that is specifically defined in LVMC Chapter 19.18. For purposes of this Chapter, the term does not include the rental or occupancy of a residential accessory structure, residential accessory dwelling unit, a tent, a trailer or a mobile unit. In the case of a single parcel containing more than one dwelling unit, each dwelling unit used for transient lodging constitutes a separate short-term residential rental.

"Transient lodging" is as defined in LVMC 4.20.020.
(Ord. No. 6929, § 1, 11-19-25; Ord. No. 6815, § 1, 8-17-22; Ord. No. 6600, § 1, 11-1-17; Ord. No. 6585, § 3, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.020 License required.

(A) No person shall engage in the business of offering or operating a short-term residential rental without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Chapter for each short-term residential rental unit. Where there are multiple dwelling units on the same property, each unit must be licensed individually.

(B) If a short-term residential unit is managed by a person other than the licensee or a principal of the licensee for that unit, that person must possess a valid license from the State of Nevada and the City to manage property.

(C) Except as otherwise permitted by City ordinance and State law for existing licensees, no person is eligible for a license for a short-term residential rental under this Chapter unless the person qualifies as an owner of the parcel on which the short-term residential unit is located and is a resident occupying that unit as his or her primary residence. In addition, the unit must qualify as owner-occupied during each period the unit is rented. For purposes of this Subsection (C), including the determination of who qualifies as an owner, whether a particular unit is being occupied by an owner, and whether a particular is being used as a short-term residential rental under this Chapter:

(1) "Owner" includes any person who is listed as an owner of record of the unit in the records of the Clark County Assessor or, in the case of a unit that is owned by a trust or other corporate or legal entity, a trustee or principal of that trust or entity.

(2) A dwelling unit qualifies as "owner-occupied during each period the unit is rented" only if the owner continues to reside at the unit throughout the rental period, the dwelling unit is the owner's primary residence, and the owner's occupancy includes occupancy and use of the bedroom, as identified in the floor plan submitted and approved by the Director. Any deviation from such previously approved floor plan must be approved by the Director. In determining occupancy by the owner during any rental period, the owner's absence, if any, from the unit during the rental period must be attributable only to employment or to the running of typical personal or household errands.

(3) A person who purports to hold a fractional ownership interest (or any other shared, joint, common, partial, cooperative or community ownership interest) in property that he or she occupies shall be deemed to be a guest and not an owner of that property unless the person's ownership interest in the property at the time of occupancy:

(a) Is at least twenty-five percent; and

(b) Has been established in that person's name by means of a document duly recorded in the property records of Clark County.

(4) A person who purports to hold an ownership interest of any kind in property that he or she occupies shall be deemed to be a guest and not an owner of that property if it appears that the documents or other indices of ownership demonstrate an intent to circumvent or otherwise avoid the application of LVMC Chapter 6.75 or applicable Conditional Use Regulations under LVMC 19.12.070, or any requirement or limitation thereof.

(D) No person is eligible for a license under this Section if:

(1) The person has five or more licenses under this Section that are associated with the same Nevada business license issued pursuant to NRS Chapter 76;

(2) The number of licenses under this Section within the same residential unit would exceed one;

(3) Issuance of the license would result in more than ten percent of the residential units or rooms within the residential units in a multifamily dwelling being rented for the purposes of transient lodging;

(4) Issuance of the license would violate a prohibition against such rentals or a stricter limitation established by the owner of a multifamily dwelling; or

(5) The short-term residential rental is located in a common-interest community, unless the governing documents of the community expressly authorize the rental of a residential unit or a room within a residential unit for the purposes of transient lodging.

(E) Except as otherwise permitted by City ordinance and State law for existing licensees, it is unlawful to rent for transient lodging purposes a residential unit or a room within a residential unit that is located in an apartment building. For purposes of this Subsection, "apartment building" means an "apartment house," as defined in LVMC 19.18.020.
(Ord. No. 6929, § 2, 11-19-25; Ord. No. 6815, § 2, 8-17-22; Ord. No. 6585, § 4, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.030 License fees.

The operator of a short-term residential rental unit shall pay, in advance, an annual fee of five hundred dollars for each short-term residential rental unit.
(Ord. No. 6357, § 1, 10-1-14)

6.75.040 Applications.

Each application for a short-term residential rental license shall contain or include the following information and documentation:

(A) The name, signature, address and telephone number of the owner of the residential dwelling to be associated with the license.

(B) The name, address and telephone number of any property manager or property management firm that will be operating the short-term residential rental.

(C) The name, address and telephone number (including a telephone number that provides for communication twenty-four hours a day) of the local contact person who will respond to complaints regarding the condition, operation, or conduct of the occupants of the short-term residential rental unit.

(D) The address of the residential dwelling proposed to be used as a short-term residential rental.

(E) The number of bedrooms, as determined by the City pursuant to the conditional use verification process described in LVMC 19.12.040(C).

(F) If the proposed short-term residential rental unit is located in a common-interest community, a letter or other documentation from the governing association acknowledging the proposed use, documenting that the rental of the unit is expressly authorized by the governing documents of the community and, if necessary, granting access to occupants of the proposed rental unit. The burden of demonstrating that the rental of a unit is expressly authorized by the community is on the applicant.

(G) A list of all accommodations facilitators that the applicant proposes to use to market, advertise, offer, solicit customers for, or make available for commercial use the short-term residential rental applied for.

(H) A certificate of insurance evidencing general liability insurance coverage in a minimum amount of five hundred thousand dollars. Such certificate must have been issued by an insurer licensed to do business in the State of Nevada.

(I) An affidavit attesting that there are no delinquent room tax liabilities or liens regarding the property to be used as a short-term residential rental.

(Ord. No. 6929, § 3, 11-19-25; Ord. No. 6815, § 3, 8-17-22; Ord. No. 6585, § 5, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.050 Additional conditions.

In connection with the issuance of a license, the Director may impose on the license (or upon the renewal thereof) reasonable conditions that are in addition to the requirements of this Chapter and that are designed to protect the public health, safety and welfare. In the

case of a short-term residential rental unit whose operator lives outside the State of Nevada, such conditions may include a requirement that the short-term residential rental be managed by a property manager or property management firm properly licensed for that activity by the State of Nevada and the City. In addition, at any time during a license period, the Director may impose such a requirement on a licensee whose short-term residential rental has been the subject of repeated complaints of violations of this Chapter.
(Ord. No. 6357, § 1, 10-1-14)

6.75.060 Compliance.

The operator of a short-term residential rental, as well as an accommodations facilitator as required by LVMC 6.75.128, shall comply with all provisions of LVMC Chapters 6.46 and 4.20 that pertain to the collection of room taxes by the operator of an establishment subject to those chapters, as well as the associated recordkeeping requirements. Without limiting the effect of the preceding sentence, the required compliance includes specific compliance with the following Sections:

6.46.040;

6.46.050;

6.46.060;

6.46.070;

6.46.080;

6.46.100;

6.46.130;

6.46.140;

6.46.150;

4.20.030;

4.20.035;

4.20.040;

4.20.060;

4.20.070;

4.20.110;

4.20.140;

4.20.150;

4.20.160.
(Ord. No. 6815, § 4, 8-17-22; Ord. No. 6357, § 1, 10-1-14)

6.75.070 Payment for unoccupied days—Unlawful.

It is unlawful for an operator of an establishment governed by this Chapter to require that any occupant of a short-term residential rental unit pay for a greater number of days than actually occupied or requested by such occupant.
(Ord. No. 6357, § 1, 10-1-14)

6.75.080 Safety precautions.

(A) An evacuation map and list of procedures shall be placed within each guest room used for sleeping. Maps and lists of procedures shall be mounted on a wall or door in a horizontal position, either made of a durable material or encased within a durable frame or enclosure. Each map and list shall have a minimum size of ten inches by eight inches, with the color of text contrasting to the background. Maps shall have a "you are here" star with a directional arrow to the nearest exit, and shall also indicate the location of all available fire extinguishers.

(B) At a minimum, there must be at least one fire extinguisher:

(1) In the kitchen area, located under the sink;

(2) In any garage, mounted on the wall no higher than forty-eight inches above the finished floor; and

(3) Located on each floor level of the short-term residential rental unit, to the extent not otherwise covered by Paragraphs (1) and (2) of this Subsection (B).

Each fire extinguisher shall have a current service tag from a State of Nevada Fire Marshal-certified contractor.

(C) All sleeping rooms shall be equipped with smoke alarms and shall be installed in accordance with applicable codes. A record of monthly testing and battery replacement shall be available for verification by the Fire Prevention Division.

(D) Carbon monoxide alarms shall be installed in accordance with applicable codes.

(E) Each short-term residential rental shall be maintained in accordance with all applicable provisions of City building-related and technical codes adopted pursuant to LVMC Title 16.
(Ord. No. 6585, § 6, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.090 Miscellaneous provisions.

(A) The operator shall post a copy of the license along with a copy of this Section 6.75.090 in a conspicuous place within the short-term residential rental unit.

(B) The maximum occupancy of a short-term residential rental unit shall not exceed any of the following limits:

(1) Two persons per bedroom (but excluding children under the age of twelve);

(2) The maximum occupancy limits for residential dwellings established by the Uniform Housing Code, as adopted in LVMC Chapter 16.20; or

(3) Sixteen persons within that unit at any given time.

(C) All occupant vehicles shall be parked on site, and shall not be parked in the adjacent public right-of-way. No commercial vehicles shall be permitted on the short-term residential rental unit property or parked in the adjacent public right-of-way, except where otherwise permitted in commercial zoning districts.

(D) Notwithstanding the provisions of LVMC Chapter 9.16, the use of any radio receiver, stereo, musical instrument, sound amplifier or similar device which produces, reproduces or amplifies sound shall take place only within an enclosed short-term residential rental unit. The property owner or operator of a short-term residential rental unit shall use reasonably prudent business practices to ensure that the occupants or guests of the rental unit do not create unreasonable noise or disturbances.

(E) The operator shall make available a local twenty-four-hour phone number that provides the capability of producing a response within two hours to complaints regarding the condition, operation, or conduct of the occupants of the short-term residential rental unit. Failure of the operator or an employee or agent to respond to the complainant within two hours shall constitute a violation of this Chapter. In the case of a short-term residential rental unit with more than five bedrooms, compliance with this Subsection (E) requires the operator to engage as its agent for the purpose of responding to complaints a company licensed to provide security pursuant to NRS Chapter 648. For purposes of the preceding sentence, a dwelling unit is presumed to have the number of bedrooms indicated in the records of the Clark County Assessor's Office that pertain to that unit, but that presumption may be rebutted by inspection or other competent evidence.

(F) A placard shall be displayed on the exterior of each short-term residential rental unit listing the information set forth below in this Subsection (F). The placard shall be in plain view of the general public at all times the short-term residential rental unit is occupied and shall be a minimum of eight and one-half inches by eleven inches in size. The placard must specify the maximum occupancy allowed pursuant to this Section, as well as the twenty-four-hour contact information required by Subsection (E) of this Section. The information required by the preceding sentence must be in a minimum legible font of seventy-two-point or a minimum of one and one-half inches in height. The required contact information shall include a full name and telephone number of the contact.

(G) Trash and refuse shall not be left or stored in public view, except in proper containers for the purpose of collection in accordance with the requirements of Chapter 9.08. The owner of the property or manager of the short-term residential rental unit shall be responsible for notifying occupants of trash disposal procedures and for maintaining compliance with the requirements of Chapter 9.08.

(H) Consistent with and as a reflection of the definition of the term "short-term residential rental" set forth in this Chapter, no short-term residential rental unit may be rented for the purpose of holding weddings, parties, receptions or similar events that typically are held at a banquet facility or other facility that is made available for the holding of events on a commercial basis. Any use of the short-term residential rental unit is limited to activities that are incidental to its use for dwelling, lodging or sleeping purposes.

(I) All written or visual advertising for the short-term residential rental must include the business license number assigned to the rental unit. If the short-term residential rental is owner-occupied, the advertising must include a notice or representation that the rental is owner-occupied and that less than the entire dwelling is available for rent.

(J) The operator of a short-term residential rental must obtain, and continuously thereafter maintain, valid liability insurance coverage in the minimum amount specified by Subsection (H) of LVMC 6.75.040. Before commencement of operation, the operator shall file with the Department a certificate of insurance documenting compliance with the insurance requirement, as well as upon future request by the Department.

(K) The rental of a residential unit or a room within a residential unit for less than the minimum period for the residential unit is prohibited. If the residential unit:

(1) Is owner-occupied, the minimum period for the rental is one night.

(2) Is not owner-occupied, the minimum period for the rental is two nights.

(Ord. No. 6815, § 5, 8-17-22; Ord. No. 6585, § 7, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.100 Notification of change in ownership.

The operator must notify the Director of any change in property ownership or management or any other material change in the information described in the license application and set forth in LVMC 6.75.040. The notification must be made within fifteen days after the change has occurred. The Director may require a new application if the changes warrant a new application.

(Ord. No. 6357, § 1, 10-1-14)

6.75.110 Suspension—Revocation.

In addition to any other remedy available for a violation of this Chapter, the Director may suspend or revoke a license issued under this Chapter in connection with a particular short-term residential unit for the second or subsequent violation of this Chapter regarding that unit within any twenty-four month period. Such action is appealable to the City Council or the Council's designee. In addition, the renewal of a license issued under this Chapter or an application for a new license under this Chapter may be denied if the licensee or applicant has been found guilty of any provision of this Chapter or has been determined to be in violation of any provision of this Chapter in connection with a civil proceeding.

(Ord. No. 6585, § 8, 6-21-17; Ord. No. 6357, § 1, 10-1-14)

6.75.120 Enforcement.

Officers of the Department of Public Safety are authorized to enforce or assist in the enforcement of this Chapter.
(Ord. No. 6518, § 5, 4-6-16; Ord. No. 6409, § 1, 4-1-15)

6.75.122 Accommodations facilitator—License required.

(A) No person shall engage in the business of offering a short-term residential rental as an accommodations facilitator without first obtaining and thereafter maintaining a valid unexpired license as an accommodations facilitator pursuant to this Chapter.

(B) An accommodations facilitator who brokers, coordinates, makes available or otherwise arranges for the rental of a short-term residential rental within the City is deemed to be engaged in the business of providing transient lodging within the City and to be the person providing the transient lodging. However, the "deemed to be" provisions of the preceding sentence:

(1) Are solely for the purposes of imposing, collecting and remitting all taxes on the gross receipts from the rental of transient lodging; and

(2) By themselves do not, create, expand or alter any other liability, duty, obligation or responsibility of the accommodations facilitator for, or relating to, the short-term residential rental.

(Ord. No. 6815, § 6, 8-17-22)

6.75.124 Accommodations facilitator—Annual fee.

The holder of a license under LVMC 6.75.122 shall pay, in advance, an annual fee of three thousand dollars.
(Ord. No. 6815, § 6, 8-17-22)

6.75.126 Accommodations facilitator—Application.

Each application for a license under LVMC 6.75.122 shall contain the information described in LVMC 6.02.080, as well such other information and documentation as the Director may require.
(Ord. No. 6815, § 6, 8-17-22)

6.75.128 Accommodations facilitator—Requirements.

With respect to transactions it brokers, coordinates, makes available or otherwise arranges for regarding the rental of short-term residential rentals within the City, each accommodations facilitator licensed under this Chapter shall:

(A) Collect and remit to the City, on a monthly basis, all transient lodging taxes imposed on the gross receipts from the rental of those short-term residential rentals. This requirement includes compliance with the requirements placed upon an operator pursuant to LVMC Chapter 4.20 and LVMC 6.75.060.

(B) Include within the listing of any short-term residential rental located within the City:

(1) The number of the City business license issued under LVMC 6.75.030 for that rental; and

(2) If the short-term residential rental is owner-occupied and the operator has notified the accommodations facilitator of that fact, a notice or representation that the rental is owner-occupied and that less than the entire dwelling is available for rent.

(C) Upon request by the Director and from time to time, comply with either Paragraph (1) or (2) below:

(1) Report to the Director all current listings of such short-term residential rentals that the accommodations facilitator is brokering, coordinating, making available or otherwise arranging for as transient lodging, and, if so requested by the Director, a report of such listings for a specified period in the past. Any such report shall include the following information:

(a) City business license number;

(b) Name of business; and

(c) Physical address for listing.

(2) Provide the Director with access to the accommodations facilitator's platform database to the extent necessary for the Director to access the information listed in Paragraph (1).

(D) Upon notification from the Department that any particular property listed by the accommodations facilitator is not properly licensed by the City, remove the listing of that property within five business days after such notification.

(Ord. No. 6815, § 6, 8-17-22)

6.75.130 Quarterly reports.

(A) Each accommodations facilitator that facilitates the rental of a short-term residential rental within the City must submit to the Department a quarterly report that includes the information described in this Section.

(B) Each operator must submit to the Department a quarterly report that includes the information described in this Section, but only to the extent that such information is not collected by an accommodations facilitator.

(C) Each report required by Subsections (A) and (B) of this Section must be in a accessible and readable format acceptable to the Department and must state, for the quarter being reported and with respect to short-term residential rentals within the City:

(1) The number of bookings, listings, and operators;

(2) The average number of bookings per listing;

(3) Current year-to-date booking value;

(4) Current year-to-date revenue collected from all short-term residential rentals through the accommodations facilitator, disaggregated by operator; and

(5) The average length of a short-term residential rental.

(D) From time to time the Director may add to the list of items required to be reported pursuant to Subsection (C) of this Section. After the Department provides appropriate notice to accommodations facilitators of each such addition, subsequent quarterly reports under this Section must include those additions.

(E) An accommodations facilitator shall be deemed to be in compliance with the reporting requirements of this Section by providing the Director with access to the accommodations facilitator's platform database to the extent necessary for the Director to access the information required by this Section.
(Ord. No. 6815, § 7, 8-17-22; Ord. No. 6600, § 2, 11-1-17)

6.75.140 Issuance of subpoenas.

(A) In accordance with State law, the Department is authorized to issue a subpoena for the production of documents, records, or materials relevant for determining whether a short-term residential rental in the City has been rented in violation of any law of this State or a City ordinance. Any such subpoena may only be issued if:

(1) There is sufficient evidence to support a reasonable belief that a short-term residential rental in the City has been rented or is being rented in violation of any law of this State or a City ordinance; and

(2) The subpoena identifies the short-term residential rental alleged to be in violation of any law of this State or City ordinance and the provision of law or ordinance allegedly violated.

(B) Any subpoena issued pursuant to Subsection (A) must be mailed by regular and certified mail to the accommodations facilitator or, if applicable, the operator who was required to file a quarterly report regarding the short-term residential rental pursuant to LVMC 6.75.130. In the case of a subpoena issued to a accommodations facilitator that is a business entity with a registered agent, the subpoena must be mailed to the registered agent, in addition to the accommodations facilitator at any address the Department may have on file for the accommodations facilitator.

(C) A accommodations facilitator to whom a subpoena has been issued pursuant to this Section must:

(1) Provide notice of the subpoena to the operator of the short-term residential rental identified in the subpoena who engaged the services of the accommodations facilitator and provided the short-term residential rental identified in the subpoena; and

(2) Produce any subpoenaed books, papers, or documents not later than twenty-one days after providing notice to the operator, unless otherwise ordered by a court.

(D) An operator to whom a subpoena has been issued pursuant to this Section must produce any subpoenaed books, papers, or documents not later than twenty-one days after issuance of the subpoena, unless otherwise ordered by a court.

(E) If a person to whom a subpoena has been issued pursuant to this Section refuses to produce any document, record, or material that the subpoena requires, the Department may apply to the district court for the enforcement of the subpoena.
(Ord. No. 6815, § 8, 8-17-22; Ord. No. 6600, § 2, 11-1-17)

6.75.150 Exceptions to Sections 6.75.130 and 6.75.140.

The provisions of LVMC 6.75.130 and 6.75.140 do not apply to the rental of a timeshare or other property subject to NRS Chapter 119A.
(Ord. No. 6600, § 2, 11-1-17)

CHAPTER 6.76 SOUND AMPLIFICATION DEVICE PERMITS

6.76.010 Required.

It is unlawful for any person for commercial or any business purpose to maintain or operate any loudspeaker or sound amplification device connected with any radio, phonograph, tape recorder, microphone or other device by which sounds are magnified or broadcast and intended to be heard over any public street, sidewalk, public place or beyond an established place of business without having first secured a permit therefor.
(Ord. 2100 § 2 (part), 1980: prior code § 5-39-1)

6.76.020 Separate locations—Vehicles.

A permit shall be required for each sound amplification device location. If the device is to be attached to a vehicle a license for each vehicle will be required.
(Ord. 2100 § 2 (part), 1980: prior code § 5-39-6)

6.76.030 Application.

Any person desiring a permit for the use or operation of such device shall file an application therefor with the Department upon a form provided therefor setting forth:

(A) The name and address of the applicant;

(B) The type of device intended to be used;

(C) The dates upon which it is intended to be used;

(D) A description of how and where the device is to be used; and

(E) Such other information necessary to determine the appropriateness of issuing a permit under this Chapter.

(Ord. 5998 § 139, 2008: Ord. 2100 § 2 (part), 1980: prior code § 5-39-2)

6.76.040 Grounds for denial or restrictions.

The Director may deny a permit or impose restrictions upon time, place, manner and degree of loudness of such amplification device in order to prevent:

(A) Undue annoyance to persons;

(B) A public nuisance;

(C) Interference with pedestrian and vehicular traffic;

(D) Interference with schools, churches or other assemblies;

(E) A disturbance of the peace; or

(F) Because of excessive noise or an accumulation of noises that is a hazard to a person's health.

(Ord. 5998 § 140, 2008: Ord. 2100 § 2 (part), 1980: prior code § 5-39-4)

6.76.050 Fee.

An applicant or permit holder shall pay in advance a permit fee of fifty dollars per week or one hundred dollars per month.

(Ord. 2100 § 2 (part), 1980: prior code § 5-39-5)

6.76.060 Issuance—Expiration.

Except as provided in Section 6.76.040, upon the filing of a complete and accurate application and payment of the permit fees, the Director shall issue a permit for use of the sound amplification device. Such a permit shall expire upon expiration of the license fee period which shall not exceed six months.

(Ord. 5998 § 141, 2008: Ord. 2100 § 2 (part), 1980: prior code § 5-39-3)

6.76.070 Contents.

The sound amplification device permit shall specify what location or vehicle license number it is issued for, how long the permit is effective and other such restrictions as may be imposed.

(Ord. 2100 § 2 (part), 1980, prior code § 5-39-7)

CHAPTER 6.78 SPECIAL EVENT PRODUCERS OR PROMOTERS

6.78.010 Definitions.

Unless the context requires otherwise, the following definitions apply to this Chapter:

"Charitable" means and includes the words patriotic, philanthropic, religious, social service, welfare, benevolent, educational, civic or fraternal, either actual or purported.

"Charitable organization" has the same meaning as provided at LVMC 11.62.020(A).

"Contributions" means and includes the words alms, food, clothing, money, subscription, property, the loan of money or property, financial assistance or items of personal property.

"Exhibitor" means any person who exhibits or advertise goods or services, but does not sell, offer to sell or take orders for such goods or services.

"Professional promoter" includes a professional promoter of charitable events and a professional promoter of non-charitable events. For purposes of accessing the multi-vendor permit provisions of LVMC 6.78.037, the term may also include the organizer of an event who receives no compensation for organizing the event and therefore does not otherwise qualify as a professional promoter.

"Professional promoter of charitable events" means a person who, for compensation, plans, promotes, conducts, manages or carries on or attempts to plan, promote, conduct, manage or carry on any drive or campaign for the purpose of soliciting contributions for or on behalf of any charitable person, or engages in the business of soliciting contributions for charitable purpose and who directly or indirectly receives:

(1) Admission or entrance fees paid by participants or spectators; or

(2) Compensation, consideration or revenue from sponsors or private donors.

"Professional promoter of non-charitable events" means a person who, for compensation, plans, promotes, conducts, manages, carries on or attempts to plan, promote, conduct, manage or carry on any drive or campaign for the purpose of organizing a special event or any other type of event where more than three hundred persons are expected to attend, and who directly or indirectly receives:

(1) Admission or entrance fees paid by participants or spectators; or

(2) Compensation, consideration or revenue from sponsors, owners or beneficial owners of an establishment.

"Qualifying multi-vendor event" means a temporary commercial event of less than thirty days, whether open to the public or not, that is proposed to take place within a government facility, convention center, event center or plaza, resort hotel, cultural establishment (as defined in LVMC 6.50.010), or permanent trade show facility (as defined in LVMC 6.50.010), and at which two or more vendors or exhibitors will be selling or offering to sell goods or

services, or will be displaying or exhibiting products or services for commercial purposes. The term does not include a parade or an event that has been approved pursuant to a special event permit under LVMC Chapter 12.02.

"Solicit" and "solicitations" means the request, either directly or indirectly, for contributions on the plea or representation that such contributions or any proceeds to be derived therefrom will be used for a charitable purpose. Without limiting the generality of the above, such words shall include the following methods of securing contributions on the plea or representation that it will be used for a charitable purpose:

(1) Any oral or written request;

(2) The distribution, circulation, mailing, posting or publishing of any handbills, written advertisement or publication;

(3) The making of any announcement through the press, radio, television, or by telephone or telegraph concerning an appeal, assembly, athletic or sporting event, bazaar, benefit, campaign, contest, dance, dinner, entertainment, exhibition, exposition, party, performance, picnic, sale, social gathering, or similar events, which the general public is requested to patronize or to which the general public is requested to contribute; or

(4) The sale of or the offer or attempt to sell any advertisement, advertising space, book, coupon, magazine, merchandise, subscription, ticket or other thing.

A "solicitation," as defined herein, shall be deemed completed when made, whether or not the person making the same receives any contribution or makes any sale.

"Special event" means any event:

(1) Described as a special event in LVMC 12.02.010; and

(2) At which at least three hundred persons are expected to attend.

"Vendor" means any person who sells, offers to sell, or takes orders for goods or services.
(Ord. No. 6478, § 1, 11-4-15; Ord. No. 6466, § 1, 10-7-15; Ord. No. 6296, § 16, 2-5-14; Ord. No. 6183, § 10, 3-7-12; Ord. 5169 § 1, 1999: Ord. 3138 § 1 (part), 1984)

6.78.020 License—Required.

No person shall act as a professional promoter of charitable events or a professional promoter of non-charitable events without first obtaining a valid unexpired license pursuant to this Code. This requirement does not apply to an officer or employee of a business or charitable organization who is conducting an event:

(A) For the regular business customers of that business or member of a charitable organization;

(B) Within the indoor premises of that business or charitable organization; and

(C) In the normal course of the business operations for which that business is properly licensed.

(Ord. No. 6296, § 17, 2-5-14; Ord. No. 6183, § 11, 3-7-12; Ord. 3138 § 1 (part), 1984)

6.78.030 License—Fee.

Each licensee shall pay in advance a license fee of two hundred dollars annually.
(Ord. No. 6296, § 18, 2-5-14; Ord. 3138 § 1 (part), 1984)

6.78.035 License—Conditions.

The Director may impose reasonable conditions on a license which may include, without limitation:

(A) Reporting all events and solicitations that have already been conducted by the licensee within a period specified by the Director, including dates, times and locations;

(B) Reporting in advance, up to thirty days in advance, all events and solicitations to be conducted by the licensee, including dates, times and locations, and the names of profiles of entertainers to be participating;

(C) Providing the Director with a copy of the federal and state registrations of charitable organizations contracted to the licensee;

(D) Providing a listing of the names and addresses of employees of the licensee who are to be involved in an event or solicitation.
(Ord. No. 6296, § 19, 2-5-14)

6.78.037 Multi-vendor permit.

(A) A professional promoter who proposes a qualifying multi-vendor event and desires to have all vendors and exhibitors covered by one permit must first obtain a multi-vendor permit in accordance with this Section.

(B) Application for a multi-vendor permit under this Section must be made on a form provided by the Department and shall include the following information and documentation:

(1) The date or dates on which the event is proposed to take place;

(2) The location at which the event is proposed to take place;

(3) Each contract or agreement by which the applicant has established the right to stage or operate the event at the proposed location(s);

(4) The individual locations at which vendors and exhibitors will be stationed;

(5) A description of the nature of the goods or services to be displayed, sold, or offered for sale by vendors and exhibitors, as well as a description of the methods such vendors and exhibitors will use in connection with vending or exhibition;

(6) A list of each vendor and the vendor's state sales tax identification number or temporary sales tax permit number; and

(7) Such addition information or documentation as the Director may require in order to determine the advisability of issuing a permit.

(C) Except as otherwise provided in this Subsection (C), an application for a multi-vendor permit must be submitted at least ten business days before the desired commencement date for the event. An application submitted later than the deadline described in the previous sentence will be accepted and processed, but the Department shall be under no obligation to either grant or deny the application in time for the desired commencement date. In its discretion, the Department may issue a temporary permit pending extended review of an application, in general accordance with the provisions for temporary business licenses set forth in LVMC 6.02.070.

(D) Except as otherwise provided in this Subsection (D) or in Subsection (E), an applicant for a multi-vendor permit shall pay, in advance, a non-refundable processing fee of fifty dollars for each location and a vendor fee of ten dollars per day for each vendor. Vendor fees shall not apply to:

(1) The sale, offer of sale, or taking orders for goods and services from a wholesale or retail business licensed under this Title;

(2) Any charitable event conducted by or on behalf of a nonprofit organization; or

(3) An exhibitor.

(E) The Director or designee may reduce the amount of vendor fees otherwise payable by a permittee under this Section for:

(1) A City-sponsored event; or

(2) An event that will take place at a facility operated by the Las Vegas Convention and Visitor's Authority.

(F) Each permittee shall be responsible for reimbursing the Department for all permit related inspections conducted after the Department's normal operating hours or on weekends or holidays. Inspection fees shall be assessed for a three-hour minimum at fifty dollars per hour per staff member required to conduct the permit inspection. The permittee may also be charged inspection fees by other City departments whose inspections are required in connection with the issuance of a permit pursuant to this Chapter, including without limitation the Department of Fire and Rescue and the land use function of the Department of Community Development. All fees shall be paid at the completion of each inspection.

(G) In connection with a multi-vendor permit issued pursuant to this Section concerning which the permittee is fully compliant, a vendor covered by the permit is exempt from the requirements of Chapter 6.80A.

(H) A professional promoter who obtains a multi-vendor permit pursuant to this Section is exempt from the special event fees and processes of LVMC Chapter 12.02 relative to activities covered by the multi-vendor permit.
(Ord. No. 6816, § 20, 8-17-22; Ord. No. 6478, § 2, 11-4-15; Ord. No. 6466, § 2, 10-7-15)

6.78.040 Audits.

Each licensee shall make available its books and records for one year after each event or charitable solicitation for audit by the Director or his authorized representative.
(Ord. No. 6296, § 20, 2-5-14)

6.78.045 Disciplinary actions.

Each licensee is responsible for, and may be subject to disciplinary action for, the acts and omissions of its principals, agents, employees, promoters and solicitors.
(Ord. No. 6296, § 21, 2-5-14)

6.78.050 Professional promoter—Representation of endorsement prohibited.

No professional promoter of charitable events shall represent in connection with any solicitation that the issuance of the license by the City constitutes an endorsement or approval of the purposes of such solicitation by the City or any officer or employee thereof.
(Ord. No. 6296, § 22, 2-5-14)

6.78.055 Professional promoter—Fraudulent/misleading representation.

No professional promoter of charitable events shall make any fraudulent or misleading representation to anyone being solicited respecting any charitable purpose for which such funds are being solicited.
(Ord. No. 6296, § 23, 2-5-14)

6.78.060 Professional promoter—Disclosure of funds.

No professional promoter of charitable events shall fail to disclose, upon request, to any person being solicited for a charitable organization exactly what percentage of the funds to be given, paid or contributed by the person being solicited will go or be donated to the charitable or welfare purpose.
(Ord. No. 6296, § 24, 2-5-14)

6.78.065 Professional promoter—Identity of solicitor.

Within the first thirty seconds of any solicitation by telephone, the professional promoter of charitable events or any person employed or soliciting on behalf of a professional promoter making the solicitation must identify himself by his full name, his business affiliation (if he is a professional promoter of charitable events) and the name of the charitable organization on whose behalf the solicitation is being made.
(Ord. No. 6296, § 25, 2-5-14)

6.78.070 Professional promoter—Responsibility of funds/records.

(A) No professional promoter of charitable events shall commingle his personal funds with contributions collected through a charitable solicitation.

(B) Every professional promoter of charitable events shall establish a special trustee bank account for each charitable solicitation with which he is connected, into which shall be placed all money coming into his hands in connection with such solicitation.

(C) Separate books or records shall be kept by a professional promoter of charitable events for each solicitation, showing the amount of each contribution coming into his hands and the name of the person making such contribution. Such books or records shall also show all disbursements made of the contributions.

(D) All such books, records and special trustee bank accounts shall be subject to audit by the Director or his representatives.
(Ord. No. 6296, § 26, 2-5-14)

CHAPTER 6.80 TEENAGE DANCES, TEENAGE DANCEHALLS AND TEENAGE NIGHTCLUBS

6.80.010 Findings of fact.

The City Council finds that the businesses of conducting teenage dances and operating teenage dancehalls and teenage nightclubs seriously affect the social and moral well being of the City and its residents, that the establishments at which such businesses are conducted or operated must be strictly regulated for the welfare of the public and of the patrons of such establishments and that such establishments and their employees must therefore comply with LVMC Chapter 6.06.
(Ord. 3306 § 2, 1987)

6.80.020 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms that are defined in Subsections A through G of this Section shall have the meanings that are ascribed to them in those sections and in LVMC Chapter 6.02.

(A) "Church" means a religious society that is incorporated, organized or established in the State of Nevada and has a common belief, the members of which meet together to worship under the direction of an ordained or licensed minister, priest, bishop or rabbi.

(B) "Responsible person" means any person who is required by Subsection (B) of LVMC Section 6.80.030 to be approved for suitability, whether or not such person is actually so approved.

(C) "Teenager" or "teenage person" means a minor person who is between the ages of thirteen years and nineteen years.

(D) "Teenage dance" means any public dance to which primarily teenagers are invited, whether admission thereto is by a set admission charge, by the donation of money or is at no charge.

(E) "Teenage dancehall" means any place in which dances that are attended primarily by teenage persons are regularly held or conducted, whether admission thereto is by a set admission charge, by the donation of money or is at no charge.

(F) "Teenage entertainment location" or "location" means any place at which a teenage dance is conducted or a teenage dancehall or a teenage nightclub is operated and for which a license is required by subsection (A) of LVMC Section 6.80.030, and includes without limitation any parking area that is required by LVMC Section 6.80.090.

(G) "Teenage nightclub" means any establishment in which primarily teenage persons regularly gather, either to participate in dancing or to observe live entertainment, whether admission is by a set admission charge, by the donation of money or is at no charge.

(Ord. 3306 §§ 3—10, 1987)

6.80.030 License—Required.

It is unlawful for any person to:

(A) Commence, carry on or engage in the business of holding or conducting teenage dances or the business of operating a teenage dancehall or a teenage nightclub without first having procured a license so to do in accordance with this Chapter; or

(B) Act as the responsible person for any teenage entertainment location without first having been approved for suitability so to do in accordance with LVMC Chapter 6.06.

(Ord. 3306 § 11, 1987)

6.80.040 License—Application.

The application for the license that is required by Subsection (A) of LVMC Section 6.80.030 shall be made on forms that are suitable to the Director and filed with the Department. The application shall set forth the following information:

(A) The name and address of the applicant;

(B) The date and time when the dance will be conducted, if the application is for an individual dance;

(C) A description of the location to be licensed, including without limitation the dimensions of the interior of the location, the dimensions of the dance floor, the seating arrangements, the location of the dance floor within the location and the dimensions of the parking area;

(D) The provisions that have been made by the applicant for security and the names and addresses of the persons who will supervise the license location;

(E) The manner in which admission will be permitted, and, if admission will be by a set admission charge or the donation of money, the amount of the charge or the donation that will be required; and

(F) Such other information as the Director may reasonably require with respect to the security and conduct of the dance, dancehall or nightclub.

(Ord. 3306 § 12, 1987)

6.80.050 License—Fee.

A license fee of fifty dollars semiannually shall be paid for each license that is issued pursuant to this Chapter.

(Ord. 3306 § 13, 1987)

6.80.060 License—Investigation and consideration.

After the investigation of an applicant has been completed by Metro, it shall be submitted to the Director, who shall complete the processing of the application and place it before the City Council for its action thereon. The applicant shall appear in person at the meeting of the City Council at which his application is scheduled to be considered and shall be required to answer any and all questions that pertain to such application or to the fitness of any person who is connected as an owner, officer, responsible person or manager of the proposed teenage entertainment location that any member of the City Council deems is necessary or appropriate.

(Ord. 5998 § 142, 2008: Ord. 3306 § 14, 1987)

6.80.070 Maximum occupancy and interior requirements.

The interior of each teenage entertainment location must have at least seven square feet of floor space for each person who is permitted therein by the occupancy load for the location, at least four square feet of which must be reserved exclusively for dancing, if dancing is permitted. The occupancy load for each location shall be posted above each door through which patrons may be admitted to the location, and a number of persons in excess of the posted occupancy load shall not be admitted. Seating shall be provided in an area that adjoins the required dance floor area, without encroaching upon the required dance floor space, that will accommodate a number of persons that is at least equal to one-fourth of the number that is permitted in the location by the posted occupancy load.

(Ord. 3306 § 15, 1987)

6.80.080 Interior lighting.

At all times during which a teenage entertainment location is open for business, the interior lighting therein shall be sufficient to make the appearance and conduct of all patrons and other persons who are in the portion of the location in which dancing is conducted or in which entertainment is offered easily discernible immediately upon entering the main entrance to the location. In no event, whenever patrons or other persons are sitting or standing within the location, shall the interior lighting be of less intensity than one foot-candle, when the same is measured at a height of thirty inches above the floor.

(Ord. 3306 § 16, 1987)

6.80.090 Parking.

Each teenage establishment location shall provide and maintain parking spaces in the number that is determined by the Department to be sufficient for that location in accordance with LVMC Chapter 19.12. The parking area shall be surfaced with a concrete or asphaltic paving and shall be electrically illuminated with a light that provides, at ground level, an intensity of not less than .25 foot-candle power. Additionally, all such parking spaces shall comply with the requirements of LVMC Title 19.
(Ord. No. 6816, § 21, 8-17-22; Ord. 5998 § 143, 2008: Ord. 3306 § 17, 1987)

6.80.100 Supervision and security.

(A) Each teenage entertainment location shall provide, for each function thereat, at least one uniformed security guard, who is licensed pursuant to LVMC Chapter 6.64 and who possesses a work identification card as required by said Chapter, for each one hundred, or portion thereof, persons who are anticipated to attend such function. Such security guards shall patrol and maintain order in and about the location and shall supervise the clean up of the trash and litter in the parking lot area that is required by LVMC Section 6.80.090.

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(B) In no event shall a teenage entertainment location be open for business without having at least one such guard inside the location and at least one such guard in the parking area that is required by LVMC Section 6.80.090. This requirement shall not prevent security guards from temporarily assisting security guards elsewhere in or about the location, if the circumstances require such assistance.
(Ord. 3306 § 18, 1987)

6.80.110 Entrance restrictions.

No entrance through which patrons may be admitted to a teenage entertainment location shall be permitted within a distance of five hundred feet from the closest customer entrance to any establishment that is described in LVMC Chapter 19.74 or from the closest customer entrance to any tavern or other establishment in which any beer, wine or other alcoholic beverage is served, sold or given away, and no teenage entertainment location shall be permitted within a structure or building that has a roof in common with any of such establishments. At the request of the applicant for a license pursuant to this Chapter, the City Council, in its discretion, may waive the separation between the proposed teenage entertainment location and an establishment which dispenses alcoholic beverages that is required by this Section, based upon a consideration of the nature and the character of the businesses within the surrounding neighborhood. Notice of the time and place of the City Council's consideration of the request for such a waiver shall be published at least once in at least one newspaper of general circulation within the City not less than five days nor more than ten days prior to the date of such consideration.
(Ord. 3454 § 1, 1989: Ord. 3306 § 19, 1987)

6.80.120 Age restrictions.

No teenage entertainment location shall admit any person who is under the age of thirteen years unless such person is accompanied by at least one of his or her parents or his or her legal guardian.
(Ord. 3306 § 20, 1987)

6.80.130 Live entertainment.

If a teenage entertainment location provides, at any function thereat, live music through musicians who personally appear and perform at that location, the responsible party shall provide the Special Investigations Section of Metro with at least one day's advance written notice thereof, which notice shall include the date of, and the hours during which, such function is to be held, the name and size of each group that will perform at such function and a description of the type of music and other entertainment that will be presented by each group.
(Ord. 5998 § 144, 2008: Ord. 3306 § 21, 1987)

6.80.140 Unlawful acts designated.

It is unlawful for the responsible person, or any manager, employee, servant or agent, of any teenage entertainment location to allow or permit any person:

(A) Who is under the age of eighteen years to remain at that location in violation of LVMC Section 10.54.010; or

(B) To be in possession of any alcoholic beverage at that location, including without limitation the parking area that is required by LVMC Section 6.80.090.

(Ord. 3306 § 22, 1987)

6.80.150 Exceptions to chapter provisions.

The provisions of this Chapter shall not apply to activities that are sponsored by a governmental entity or a school or to activities that are conducted upon the property of any church under the active supervision of officials or members of the congregation of that church.
(Ord. 3306 § 23, 1987)

CHAPTER 6.80A TEMPORARY MERCHANTS

6.80A.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings which are ascribed to them, as follows:

"Temporary merchant" means any person who engages in the temporary business of selling, offering for sale, or soliciting orders for goods or services from a permanent or fixed location. For purposes of this definition, a business is temporary if its operation at the fixed location is for a period of thirty-one days or less. The term does not include a parade vendor or any other exhibitor or vendor at a special event that has been approved by means of a special event permit pursuant to LVMC Chapter 12.02.

"Temporary commercial permit" has the meaning ascribed to it in LVMC 19.16.160.

"Agent" is an individual who has been designated by a temporary merchant as a person authorized to offer for sale or solicit orders for the sale of goods or services on behalf of that temporary merchant.

"Parade vendor" means any person who engages in the temporary business of selling or offering for sale any merchandise in conjunction with a parade that has been approved by means of a special event permit pursuant to LVMC Chapter 12.02.
(Ord. No. 6183, § 13, 3-7-12; Ord. 5352 § 11, 2001: Ord. 5066 § 4, 1998)

6.80A.020 Permit required.

No person shall engage in the business of a temporary merchant without first obtaining and thereafter maintaining a valid, unexpired temporary merchant permit pursuant to this Chapter for each business location within the City.
(Ord. 5066 § 5, 1998)

6.80A.030 Exemptions.

This Chapter does not apply to:

(A) Charitable solicitations conducted in compliance with State law governing that activity;

(B) The selling, offering for sale, or soliciting of orders for goods or services from a licensed wholesale or retail business at the licensed location of that business; or

(C) Vending activity covered by a multi-vendor permit issued pursuant to LVMC 6.78.037 concerning which the permittee is fully compliant.

(Ord. No. 6466, § 3, 10-7-15; Ord. No. 6296, § 27, 2-5-14; Ord. 5352 § 12, 2001: Ord. 5066 § 6, 1998)

6.80A.040 Application—Contents.

Any person who is required to have a permit under this Chapter must file an application with the Director. The application must be made upon a form provided by the Department and shall include the following information:

(A) The dates on which the applicant desires to conduct business;

(B) The location(s) from which the applicant desires to conduct business;

(C) Location agreement(s) or contract(s);

(D) Designated agent(s) for additional locations;

(E) A description of the selling methods to be used and the nature of the products or services to be offered; and

(F) Such other information or documentation as the Department may require in order to establish the applicant's suitability and fitness for approval.

(Ord. 5066 § 7, 1998)

6.80A.050 Application—Submitted when.

In order to ensure that the applicant can commence operations as soon as desired, the application for a temporary merchant permit must be submitted at least ten working days prior to the desired commencement date in order to allow reasonable time for review of the

application. If an application requires an extended review period, the applicant may be granted a temporary permit in accordance with the temporary license provisions set forth in LVMC 6.02.070.
(Ord. 5352 § 13, 2001: Ord. 5066 § 8, 1998)

6.80A.060 Temporary commercial permit—Work card.

(A) If the operation of a temporary merchant requires a temporary commercial permit pursuant to LVMC 19.16.160, the applicant shall file, along with the application for a temporary merchant permit, written evidence that a temporary commercial permit has been obtained.

(B) An applicant for a temporary merchant permit who does not possess a valid business license will be referred to Metro to obtain a work card pursuant to LVMC Chapter 6.86. Approval of the work card must be obtained before issuance of a temporary merchant permit.
(Ord. No. 6305, § 7, 3-19-14; Ord. 5386 § 10, 2001: Ord. 5352 § 14, 2001: Ord. 5066 § 9, 1998)

6.80A.070 Bond.

Each temporary merchant who accepts moneys or other value in advance as consideration for the future delivery of goods or services must file with the Department and maintain a surety bond in the sum of five thousand dollars, issued by a surety acceptable to the City Attorney. The bond must be conditioned to be paid to the City or to any person suffering injury by reason of any violation of the provisions of this Code by the principal, his agents or employees. The bond shall also require the principal therein named to faithfully comply with each and every condition and restriction imposed in connection with the issuance of the permit.
(Ord. 5066 § 10, 1998)

6.80A.080 Fee.

Each temporary merchant shall pay in advance a per location license fee based upon the following schedule:

Days of Operation	Fee
1—5	$10.00 per day
6—10	100.00
11—15	150.00
16—20	200.00
21—25	250.00
26—31	300.00

(Ord. 5352 § 15, 2001: Ord. 5066 § 11, 1998)

6.80A.090 Display of permit and work card.

A permit issued under this Chapter shall include information to identify the permittee and state the specific dates and location authorized by the permit. Each person required to have a permit or work card under this Chapter must exhibit those documents at the request of any person.
(Ord. 5066 § 12, 1998)

6.80A.100 Inspection fees.

The permittee shall be responsible for reimbursing the Department for all permit related inspections conducted outside of the City's normal operating hours. Inspection fees shall be assessed for a three-hour minimum at fifty dollars per hour per staff member required to conduct the permit inspection. The permittee may also be charged inspection fees by other City departments whose inspections are required in connection with the issuance of a permit pursuant to this Chapter, including without limitation the Department of Fire and Rescue and the Department of Community Development. All fees shall be paid at the completion of each inspection.
(Ord. No. 6816, § 22, 8-17-22; Ord. 5998 § 145, 2008: Ord. 5066 § 13, 1998)

6.80A.110 Permit required—Parade vendors.

No person shall engage in the business of a parade vendor without obtaining a permit therefor in accordance with this Section. A parade vendor permit shall be required for each vendor who intends to sell merchandise at a parade, and a permit shall be valid only for the date of the parade. Application for a parade vendor permit shall be made on a form provided by the Director. The application shall list all types of items that the vendor proposes to sell at the parade. If the Director determines that any item proposed to be sold is likely to be used in a manner to disrupt the parade or to endanger the health, safety and welfare of the public, he may deny a permit or impose conditions upon the issuance of the permit that are designed to prevent or limit such disruption or danger. Each parade vendor shall pay in advance a permit fee of ten dollars. A parade vendor shall comply with all requirements of the Health District and the Nevada Department of Taxation.
(Ord. 5998 § 146, 2008: Ord. 5352 § 16, 2001)

CHAPTER 6.81 THEME PARKS AND PERMANENT EXHIBITIONS

6.81.010 Findings and declarations.

It is found and declared that the public health, safety and welfare of the inhabitants of the City of Las Vegas require the licensing and regulation of theme parks and permanent exhibitions. It is further found and declared that the presence within the City of such properly licensed theme parks and permanent exhibitions will serve to promote public health, safety and welfare by encouraging economic growth, providing economic diversity, providing opportunity for additional employment, and infusing additional capital investment in the local economy.
(Ord. 3343 § 2, 1988)

6.81.020 Definitions.

As used in this Chapter:

(A) A "theme park" is comprised of one or more buildings or structures operated for profit on a permanent basis which is designed to provide amusement, pleasure or

relaxation and promote some theme, motif or concept and may provide lifts, tramways, monorails, elevators, escalators, roller coasters, or other rides for the entertainment or amusement of the public between places within the theme park from which no direct egress from the theme park is permitted.

(B) "Permanent exhibition" means a display or structural configuration which:

(1) Shows, displays, holds forth for inspection, manifests or demonstrates technology, concepts, designs, art, science or history;

(2) Is operated for a profit on a permanent basis and is not operated as incidental to the primary business of the licensee; and

(3) May include lifts, elevators or escalators and tramways, monorails, roller coasters or other conveyances, used primarily in connection with the permanent exhibition that operate on a closed circuit routing which permits passengers to board and unboard only at one single point along the entire route, so that passengers are not conveyed from any place, either within or without the corporate boundaries of the City, to any other place, either within or without the corporate boundaries of the City.

(Ord. 3343 § 3, 1988)

6.81.030 Permit—Required.

It is unlawful for any person to operate a theme park or a permanent exhibition without first obtaining and thereafter maintaining a valid unexpired license as provided in this Chapter.

(Ord. 3343 § 4, 1988)

6.81.040 Permit—Fee.

Every licensee shall pay to the Director in advance, on a semiannual basis, a fee of one hundred dollars for each day that the theme park or permanent exhibition is in operation.

(Ord. 5352 § 17, 2001: Ord. 3850 § 10, 1994: Ord. 3343 § 5, 1988)

6.81.050 Permit—Issuance conditions.

Every license issued pursuant to this Chapter is conditioned upon the compliance by the licensee with the requirements of this Chapter, including the following regulations:

(A) Every licensee shall provide, at its own expense, adequate security protection.

(B) Every licensee shall file with the Department a certificate of insurance issued by an insurance company authorized to do business in the State which names the City as an additional insured and which shows that the licensee is insured in an amount of not less than five hundred thousand dollars against liability for injury suffered by patrons of the theme park or permanent exhibition.

(C) Every licensee shall provide sufficient and uniform electrical illumination to insure that the passenger loading and unloading areas of any amusement ride or permanent

exhibition conveyance are well lighted at all times of operation after dark. Emergency lighting shall be provided in the event of electrical power failure to permit passenger unloading.

(D) Every licensee shall provide platforms or areas with sufficient space for passengers waiting to board and for passengers departing any amusement ride or permanent exhibition conveyance. Such platforms or areas shall be kept clean and free of dangerous depressions, obstructions and debris.

(E) Every licensee shall store trash or waste in receptacles so constructed that they do not leak and may be thoroughly cleaned. All sweepings, trash and waste shall be removed in such a manner as to avoid creating a nuisance and shall be removed as often as necessary to avoid creating a menace to health through the development of unsanitary conditions.

(F) Every licensee shall equip and maintain emergency stretchers and first aid kits with adequate supplies. The location of emergency first aid kits and stretchers must be clearly marked.

(G) Every licensee operation an enclosed amusement ride or permanent exhibition conveyance shall equip it with a transparent safety glass front windshield. Such ride or conveyance shall also be equipped with electric head and rear lights of sufficient candle power as to be visible at a distance of three hundred feet under ordinary atmospheric conditions. Such ride or conveyance shall also be equipped with suitable devices that will remove rain, snow and sleet from the front windshield while in motion.

(H) Every licensee shall equip all doors on any amusement ride or permanent exhibition conveyance with latches or secure the doors otherwise to prevent them from swinging under normal operating conditions.

(Ord. 5998 § 147, 2008: Ord. 3343 § 6, 1988)

6.81.060 Construction and operating standards.

The Director shall develop standards for the safe construction and operation of rides and other conveyances in connection with theme parks and permanent exhibitions that are licensed pursuant to this Chapter, and, in so doing, shall use, to the extent that is practicable, the uniform codes that have been adopted and made a part of this Code. In addition, the Director may rely upon any applicable regulation that has been adopted in any other jurisdiction and may retain, at the expense of any person who requests a license under this Chapter, such safety experts, structural engineers and other consultants as he may deem are necessary or appropriate for the safe design, construction and operation of the system for which such license is requested.

(Ord. No. 6816, § 23, 8-17-22; Ord. 3343 § 7, 1988)

6.81.070 Restoration bond required.

Any license that is issued pursuant to this Chapter shall be conditions upon the promise of the licensee to remove the guideway or similar structure when its use has been discontinued and to restore the property on which it was constructed to the former conditions thereof and the posting of a removal and restoration bond, in an amount that is determined by the Director to be sufficient for the purpose for which it is posted and in a form that is approved by the City Attorney, to ensure the performance of that promise.
(Ord. No. 6816, § 24, 8-17-22; Ord. 3343 § 8, 1988)

CHAPTER 6.82 SMOKING OR VAPING LOUNGES AND SMOKE OR VAPE SHOPS

6.82.010 Definitions.

As used in this Chapter, the following terms shall have the meanings indicated:

"Cannabis" has the meaning ascribed to the term "marijuana" in and as defined in NRS 453.096.

"Cannabis paraphernalia" means any accessories, devices and/or other equipment that is necessary or useful for a person to engage in the use of cannabis.

"Cannabis products" means products comprised of cannabis or concentrated cannabis and other ingredients that are intended for use or consumption, such as, but not limited to, edible products, ointments, and tinctures.

"Concentrated cannabis" means the separated resin, whether crude or purified, obtained from cannabis.

"Hemp" has the meaning ascribed to it per NRS 557.160 and means any plant of the Cannabis sativa L. and any part of such a plant, including without limitation, the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts and salts of isomers, whether growing or not, with a THC concentration that does not exceed the maximum THC concentration established by the State Department of Agriculture for hemp. It does not include any commodity or product made using hemp.

"Hemp-derived products" means a commodity or product containing hemp, which is intended for human or pet consumption (whether ingested or inhaled), or any other product that purports to contain any cannabinoid (CBD) with a THC concentration that does not exceed the maximum THC concentration established by the State Department of Agriculture.

"Hookah" means a type of water pipe, used to smoke shisha or other tobacco products, with a long flexible tube for drawing aerosol through water. Components of a hookah may include heads, stems, bowls, and hoses.

"Sell" (and related forms of the word) refer to the sale, offer to sell, exchange or offer to exchange for any form of consideration.

"Smoke or vape shop" means a business that does or will derive ten percent or more of its gross revenue from the sale of smoking or vaping paraphernalia, cannabis paraphernalia, hemp, hemp-derived products, and or at any particular time devotes ten percent or more of its gross retail floor space to tobacco paraphernalia, cannabis paraphernalia, hemp, or hemp-derived products, or a business that holds itself out through advertising to the public as a business engaging in that activity.

"Smoking and vaping paraphernalia" includes rolling papers or wrappers, pipes, holders of smoking materials of all types, rolling machines, and any other item designed for use in the smoking, preparation or consumption of tobacco products, THC or nicotine products. This term includes water pipes and electronic devices that enable the introduction of tobacco, nicotine, or other chemicals, flavorings, and other substances, not including cannabis, or cannabis related products into the body, such as an e-cigarette or hookah. This term does not allow cannabis or cannabis-related substances to be added. The term does not include tobacco products.

"Smoking or vaping lounge" means a business that offers an area or equipment specifically for on premise consumption of tobacco products, hookah products (whether or not tobacco related), or vape products sold by the business. This only applies to the smoking of tobacco, and hookah products and does not allow the smoking of hemp, cannabis, cannabis derived products, synthetic cannabinoids or other synthetic derivatives of cannabis within such premises.

"Synthetic cannabinoid" means a cannabinoid that is:

(A) Produced artificially, whether from chemicals or from recombinant biological agents, including without limitation, yeast and algae; and

(B) Is not derived from a plant of the genus Cannabis, including, without limitation, biosynthetic cannabinoids.

"THC" has the meaning ascribed to it in NRS 453.139 and means delta-9-tetrahydrocannabinol and any structural, optical or geometric isomer thereof, including, without limitation:

(A) Delta-9-tetrahydrocannabinol,

(B) Delta-7-tetrahydrocannabinol, and Delta-10-tetrahydrocannabinol.

"Tobacco product" means any substance containing tobacco leaf, including but not limited to cigarettes, cigars, pipe tobacco, hookah tobacco, snuff, chewing tobacco, dipping tobacco, bidis, or any other preparation of tobacco. The term does not include any cessation product specifically approved by the United States Food and Drug Administration for use in treating nicotine or tobacco dependence, or any electronic device that enables the introduction of nicotine into the human body but without the presence of tobacco.

"Vape or vaping products" include electronic devices or devices that by other means heat up items and products such as dry herbs, oils, or liquids (including nicotine or other related

liquids, but does not include cannabis, and or cannabis derived products, or synthetic cannabinoids or other synthetic derivatives of cannabis) to create a vapor for inhalation purposes, such as a vape pen, e-hookah, e-pipe, etc.

"Vaping" means the inhaling and exhaling of vapors through the mouth using an electronic device.
(Ord. No. 6839, § 1, 6-21-23; Ord. No. 6750, § 34, 9-16-20; Ord. No. 6599, § 1, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.020 Smoke or vape shops—License/work card required.

(A) No person shall engage in business as a smoke or vape shop within the City without first obtaining a business license pursuant to this Chapter. The license required by this Chapter shall be a privileged license subject to the provisions of LVMC Chapter 6.06.

(B) Each employee of a smoke or vape shop who sells or handles tobacco paraphernalia, cannabis paraphernalia, hemp, or hemp-derived products, or has daily control of the operations of the smoke or vape shop shall obtain a work card pursuant to LVMC Chapter 6.86, unless that person has been approved for suitability as a principal.
(Ord. No. 6839, § 2, 6-21-23; Ord. No. 6750, § 35, 9-16-20; Ord. No. 6599, § 2, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.025 Smoke or vape shops—Hemp or hemp-derived product sales.

(A) All hemp and hemp-derived products must clearly identify all THC concentrations on the label or by a valid certificate of analysis from a certified Nevada testing laboratory.

(B) All hemp and hemp-derived products must be tested by an independent testing laboratory certified by the Nevada Cannabis Compliance board pursuant to NRS 678B.290 in the same manner as an equivalent cannabis product is required to be tested.

(C) No products containing synthetic cannabinoids or other synthetic derivatives of Cannabis including other products or materials that are in a form that allows for human consumption by inhalation of smoke or vapors, ingestion, injection or application that contain chemical substances, compounds, or agents that cause or may cause an intoxicating, narcotic, stimulant, depressant, and/or hallucinogenic effect and an imminent threat to the safety of persons that consume such products or materials and/or persons they come in contact with, are allowed to be produced, sold, or offered as per state law NRS 557.

(D) All hemp and hemp-derived products must be kept in their original unopened container or packaging with a label indicating the product is hemp or hemp-derived and identifies the THC concentration limits. The THC concentration limits must be under the limit set by the State Department of Agriculture.

(E) Any smoke or vape shop selling hemp or hemp-derived products must:

(1) Post signs that indicate "ALL HEMP PRODUCTS CONTAIN LESS THAN THE LEGAL LIMIT OF THC." Signs shall be posted no higher than seven feet and no

lower than three feet at any and all sales stations. All signs must be prominently displayed and must be clearly discernable with non-italicized black lettering not less than three-eighths inch high for each letter.

(2) Post signs outside the establishment on each customer entrance with letters not less than one-inch-high stating "THIS LOCATION IS NOT LICENSED TO SELL CANNABIS." Each sign must be illuminated sufficiently to be visible by persons with eyesight corrected to 20/20, and from thirty feet from the sign.

(3) Request approval from the director for any deviation from any signage requirement prior to implementation.

(F) All hemp or hemp-derived products that contain CBD as an ingredient or identified on the packaging as containing CBD must not have medical claims, nor advertise for such, and cannot be introduced into any food product or dietary supplement.
(Ord. No. 6839, § 3, 6-21-23)

6.82.030 Smoke or vape shops—Unlawful acts.

It is unlawful for any business subject to licensing as a smoke or vape shop to:

(A) Employ a person under the age of twenty-one (or allow such an employee) to sell or handle tobacco paraphernalia or cannabis paraphernalia.

(B) Sell tobacco paraphernalia or cannabis paraphernalia to a person under the age of twenty-one.

(C) Employ a person under the age of twenty-one (or allow such an employee) to sell or handle cannabis paraphernalia.

(D) Produce, distribute, sell or offer to sell any synthetic cannabinoid products, or other products or materials that are in a form that allows for human consumption by inhalation of smoke or vapors, ingestion, injection or application that contain chemical substances, compounds, or agents that cause or may cause an intoxicating, narcotic, stimulant, depressant, and/or hallucinogenic effect and an imminent threat to the safety of persons that consume such products or materials and/or persons they come in contact with.
(Ord. No. 6839, § 4, 6-21-23; Ord. No. 6750, § 36, 9-16-20; Ord. No. 6599, § 3, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.040 Smoke or vape shops—Age restrictions.

No principal or employee of a smoke or vape shop shall permit a person under the age of twenty-one years to enter or remain within the smoke or vape shop, unless they are continuously accompanied by a parent or legal guardian, or as otherwise permitted by the Director.
(Ord. No. 6839, § 5, 6-21-23; Ord. No. 6750, § 37, 9-16-20; Ord. No. 6599, § 4, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.050 Smoking or vaping lounges—License/work card required.

(A) No person shall engage in business as a smoking or vaping lounge within the City without first obtaining a business license pursuant to this Chapter. The license required by this Chapter shall be a privileged license subject to the provisions of LVMC Chapter 6.06.

(B) Each employee of a smoking or vaping lounge who serves patrons of the establishment, handles tobacco products or tobacco paraphernalia, or vape products, or has daily control of the operations of the smoking or vaping lounge shall obtain a work card pursuant to LVMC Chapter 6.86, unless that person has been approved for suitability as a principal. (Ord. No. 6839, § 6, 6-21-23; Ord. No. 6388, § 2, 12-17-14)

6.82.060 Smoking or vaping lounges—Unlawful acts.

It is unlawful for any business subject to licensing as a smoking or vaping lounge to:

(A) Employ a person under the age of twenty-one years (or allow such an employee) to sell or handle tobacco products or tobacco paraphernalia, or vape products;

(B) Allow a person under the age of twenty-one years to consume tobacco products; or

(C) Allow patron consumption of hemp or hemp-derived products, cannabis, concentrated cannabis or cannabis products or synthetic cannabinoids, or other products or materials that are in a form that allows for human consumption by inhalation of smoke or vapors, ingestion, injection or application that contain chemical substances, compounds, or agents that cause or may cause an intoxicating, narcotic, stimulant, depressant, and/or hallucinogenic effect and an imminent threat to the safety of persons that consume such products or materials and/or persons they come in contact with. The use, sale or offering of hemp and hemp-derived products in smoking lounges and vaping lounges are strictly prohibited.

(Ord. No. 6839, § 7, 6-21-23; Ord. No. 6750, § 38, 9-16-20; Ord. No. 6742, § 1, 6-17-20; Ord. No. 6599, § 5, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.070 Smoking or vaping lounges—Open to view—Live entertainment.

Within a smoking or vaping lounge:

(A) All smoking or vaping areas must be open to view by employees and patrons.

(B) Except as otherwise provided in Subsection (D) of this Section, no live entertainment, as defined in Subsection (C), may be offered in any establishment licensed under this Chapter unless that form of entertainment has been approved in advance by the Director.

(C) For purposes of this Section, "live entertainment" means one or more of the following:

(1) Live music (with or without dancing);

(2) Live disc jockey (with dancing);

(3) Karaoke entertainment; or

(4) Stage shows, such as a magician, comedian other similar type of performance artist.

(D) This Section does not apply to any establishment licensed as a nightclub pursuant to LVMC Chapter 6.39.

(E) Only products that are sold by the business may be consumed. This does not restrict cigars, brought in by consumers, in its original manufacturer's packaging.

(Ord. No. 6839, § 8, 6-21-23; Ord. No. 6388, § 2, 12-17-14)

6.82.075 Fee for license.

Each smoke or vape shop and smoking or vaping lounge applicant shall pay, in advance, a semiannual fee based on gross sales as specified in LVMC 6.04.005.

(Ord. No. 6839, § 9, 6-21-23)

6.82.080 Combined licenses.

Except as otherwise provided in this Section, a business that desires to operate both as a smoke or vape shop and a smoking or vaping lounge may apply for and obtain a license for each operation under this Chapter, or the Department may at its option issue a combined license to authorize both types of activity. Under a combination license, the licensee must comply with the provisions of this Chapter that apply to both types of operations.

(Ord. No. 6839, § 10, 6-21-23; Ord. No. 6750, § 39, 9-16-20; Ord. No. 6599, § 6, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

6.82.090 Use of cannabis, concentrated cannabis or cannabis products—Applicability.

Nothing in this Chapter shall be deemed to diminish the applicability of any other provision of this Code pertaining to the sale or use of cannabis, concentrated cannabis or cannabis products.

(Ord. No. 6750, § 40, 9-16-20; Ord. No. 6599, § 7, 11-1-17)

Editor's note—Ord. No. 6599, § 7, adopted November 1, 2017, amended § 6.82.090 in its entirety to read as herein set out. Former § 6.82.090, pertained to compliance date, and derived from Ord. No. 6388, § 2, 12-17-14.

6.82.100 Application of State laws.

Nothing in this Chapter is intended to limit the application of State law and regulations governing tobacco products, drug paraphernalia, hemp, hemp-derived products, cannabis or other synthetic cannabinoid paraphernalia or substances that are classified or to be classified as controlled substances under State law and regulations, including without limitation NRS Chapters 453, 678A through 678D, and regulations adopted thereunder. Businesses subject to this Chapter are subject to compliance with State law and regulations

in accordance with the terms thereof, notwithstanding any provisions of this Chapter that pertain specifically to and are an exercise of the City's licensing and regulatory powers and jurisdiction.
(Ord. No. 6839, § 11, 6-21-23; Ord. No. 6750, § 41, 9-16-20; Ord. No. 6599, § 8, 11-1-17; Ord. No. 6388, § 2, 12-17-14)

CHAPTER 6.83 VIDEO CENTERS

6.83.010 Legislative determinations.

The City Council declares as a matter of legislative determination that:

(A) Enclosed or concealed booths and unlit or dimly lit areas within video centers greatly increase the potential for the misuse of the premises, including unlawful conduct of a type which facilitates the transmission of disease.

(B) The provisions of this Chapter are therefore necessary in order to reduce the opportunity for, and therefore the incidence of, illegal conduct within video centers and to facilitate the inspection of the interior of the premises thereof by law enforcement personnel.

(Ord. 3309 §§ 1 (part), 2, 1987)

6.83.020 Definitions.

Except where the context otherwise requires, the definitions that are provided in this section govern the construction of this Chapter.

(A) "Film or videotape viewing device" means any electrically, electronically or mechanically controlled still or motion picture machine or projector or videotape monitor that is designed, operated or maintained to temporarily project or display still or motion pictures or videotapes to one person per machine, projector or monitor at any one time, the temporary use of which is contingent upon the payment of some consideration and which use is to occur upon the premises in which the machine, projector or monitor is located.

(B) "Common area" means the area of a video center which during business hours is always accessible to any customer and is not separated from any viewing area by any curtain, door, wall or other obstruction.

(C) "Premises" means the location with respect to which a video center license has been issued pursuant to this Chapter.

(D) "Video center" means any establishment, or any room therein, in which any film or videotape viewing device is made available to the public.

(E) "Viewing area" or "viewing booth" means each area in which a patron or customer of the video center would ordinarily be positioned in order to watch a film or videotape viewing device.

(Ord. 3485 § 3, 1990: Ord. 3309 §§ 1 (part), 3—7, 1987)

6.83.030 License—Required.

No person shall own or operate a business in which any film or videotape viewing device is located without first obtaining and thereafter maintaining a valid unexpired video center license pursuant to this Chapter.

(Ord. 3309 §§ 1 (part), 8, 1987)

6.83.040 License—Application.

An applicant for a video center license pursuant to this Chapter shall provide the Director with the number of film or videotape viewing devices that will be located upon the premises, the name of the manufacturer, serial or identification number, if any, and type of each and a floor plan of the premises that shows the size of each room in which any device will be located and the size and type of each such device, and the number thereof, in each such room.

(Ord. 3309 §§ 1 (part), 9, 1987)

6.83.050 License—Contents.

Each video center license shall specify the specific number of film or videotape viewing devices for which it is issued, and the number of devices upon the premises may not exceed the number that is permitted under that license. An increase in the number of devices that is permitted upon the premises requires a new video center license.

(Ord. 3309 §§ 1 (part), 10, 1987)

6.83.060 Changes in number or arrangement of devices.

The licensee shall notify the Director, within ten days after any such change is made, of any change in the number of film or videotape viewing devices upon the premises and any change in the floor plan thereof, including without limitation any change in the size or type of any device that is identified in the application for the license, any change in the size of any room in which any device is located and any change in the number of devices that are located in any room of the premises.

(Ord. 3309 §§ 1 (part), 11, 1987)

6.83.070 Placing device without notice.

It is unlawful for any person to place in any video center any film or videotape viewing device with respect to which the information that is required by Section 6.83.040 has not been provided to the Director.

(Ord. 3309 §§ 1 (part), 12, 1987)

6.83.080 Visibility.

It is unlawful for any person to operate a video center unless:

(A) Each entire viewing area within the licensed premises is continuously open and fully visible either to any person who enters the premises or, if there is a common area within the premises, to any person who is in the common area and is not obscured from such person by any curtain, door, wall or other obstruction; provided, however, that a viewing area may be enclosed by a door that separates the viewing area from the entrance to the premises or from the common area, as the case may be, if the bottom surface of such door is not less than forty inches above the floor of the viewing area and the top surface of such door is not more than seventy-five inches above the floor of the viewing area;

(B) Each viewing area contains only one single-patron seating facility or fixture, the seating surface of which is not more than twenty inches above the floor of the viewing area; and

(C) The interior lighting of any viewing area provides a lighting intensity of at least one foot-candle, when the same is measured at a height of thirty inches above the floor of the viewing area at all times during which the premises are open to the public.

(Ord. 3485 § 4, 1990: Ord. 3309 §§ 1 (part), 13, 1987)

6.83.090 Sale of devices.

(A) If a film or videotape viewing device which has been registered with the Director pursuant to Section 6.83.040 is sold, the seller of the device shall notify the Director of such sale before the device is delivered to the purchaser, and the purchaser shall reregister the device with the Director pursuant to said Section 6.83.040 before he can place it into operation.

(B) Any film or videotape viewing device which is registered with the Director pursuant to Section 6.83.040 may be operated upon any premises of the licensee who registered the same that have been licensed pursuant to this Chapter as long as the licensee of the premises complies with Section 6.83.060.

(Ord. 3309 §§ 1 (part), 14, 1987)

6.83.100 License fee.

Each person who is required to be licensed by this Chapter shall pay a semiannual premises license fee in the amount of one hundred dollars and the coin-operated amusement machine license fee that is set forth in LVMC 6.26.030 for each film or videotape viewing device that is located on the premises.

(Ord. 3850 § 11, 1994: Ord. 3485 § 5, 1990: Ord. 3309 §§ 1 (part), 15, 1987)

6.83.110 Deadline for compliance.

Any video center that is lawfully in existence on September 16, 1987, but is made illegal by the provisions of this Chapter may nevertheless continue to operate through December 31, 1987, but must comply with all of such provisions by January 1, 1988.
(Ord. 3309 §§ 1 (part), 16, 1987)

CHAPTER 6.84 WEDDING CHAPELS

6.84.010 License required.

(A) No person shall engage in the business of operating a wedding chapel without first obtaining and thereafter maintaining a valid unexpired license pursuant to this Code. The City Council finds and determines that the operation of a wedding chapel should require a privileged license, and is therefore subject to the provisions of Chapter 6.06.

(B) In addition to any requirement of Chapter 6.06 otherwise applicable, each employee or agent of a wedding chapel business, including an independent contractor, who will engage in the solicitation of business or the distribution of advertising materials for the wedding chapel must comply with applicable provisions of Chapters 6.42 and 6.62.

(C) For purposes of this Chapter, "wedding chapel" means a business located within a permanently affixed structure whose principal operation is the performance of wedding ceremonies. A wedding chapel license authorizes the provision of incidental services related to weddings, such as photography or floral arrangements, that are part of wedding packages provided by such wedding chapels. Additional licensing, as required by the Las Vegas Municipal Code, will be required for any ancillary services not referenced above, including but not limited to those services which are performed by privileged businesses, pursuant to LVMC 6.06. The term "wedding chapel" does not include a business or location whose primary use is to provide a location for hosting of receptions, banquets and other similar events, and a wedding chapel license does not authorize the operation of a banquet hall, event center or multipurpose venue.
(Ord. No. 6933, § 1, 12-3-25; Ord. 5991 § 1, 2008: Ord. 2251 § 1 (part), 1981: prior code § 5-7-5(A))

6.84.020 Fee.

The operator of each wedding chapel shall pay in advance an annual license fee of four hundred dollars.
(Ord. No. 6213, § 31, 9-5-12; Ord. 3843 § 84, 1994: Ord. 2251 § 1 (part), 1981: prior code § 5-7-5(E))

6.84.030 Reserved.

Editor's note—Ord. No. 6108, § 2, adopted September 1, 2010, repealed § 6.84.030, which pertained to prohibited outdoor advertising and derived from prior code § 5-7-5(B) and Ord. No. 2251, 1981.

6.84.040 Reserved.

Editor's note—Ord. No. 6108, § 2, adopted September 1, 2010, repealed § 6.84.040, which pertained to permitted outdoor signs and derived from prior code § 5-7-5(C) and Ord. No. 2251, 1981.

6.84.050 Posting rates.

(A) The owner or operator of a wedding chapel shall ensure that all rates and charges associated with wedding-related services are made available to customers or patrons by one or more of the following means:

(1) Posting the current rates and charges in a prominent and conspicuous place in public view, which shall be presented in the form of a digital or printed sign in clearly discernible text with characters not less than three-eighths inches in height;

(2) Providing a list of the current rates and charges in printed form upon request; or

(3) Making a list of the current rates and charges readily accessible on the establishment's website (or other digital platforms used in place of a website).

(B) The owner or operator of a wedding chapel shall create an itemized invoice, in printed or digital form, listing any final fees and all charges agreed upon by all parties prior to any services being performed;

(C) It is unlawful for any wedding chapel to charge more than the posted or otherwise published rates, or to require a condition of securing services not posted or previously agreed upon by all parties.
(Ord. No. 6933, § 2, 12-3-25; Ord. 2251 § 1 (part), 1981: prior code § 5-7-5(D))

6.84.060 Prohibited locations.

(A) During the prohibited time period, no officer, employee or agent of a wedding chapel, including an independent contractor, may solicit business for the chapel at a prohibited location.

(B) For purposes of this Section:

(1) "Prohibited time period" means the period commencing one hour before the Clark County Marriage Bureau opens for business each day and ending one hour after the Marriage Bureau closes for that day.

(2) "Prohibited location" means:

(a) Any portion of the City-owned sidewalk area along the west side of Third Street for a distance of one hundred seventy feet north of the centerline of Clark Avenue, except for the area described in Paragraph (1) of Subsection (C) of this Section; and

(b) Any portion of the City-owned sidewalk area along the north side of Clark Avenue for a distance of two hundred feet west of the centerline of Third Street, except for the area described in Paragraph (2) of Subsection (C) of this Section.

(C) The following areas, being more particularly delineated on Exhibit "A" that is attached to Ordinance No. 5991, are excluded from the definition of "prohibited location" in Paragraph (2) above:

(1) That three foot wide strip of sidewalk, adjacent to and running parallel with the existing back of curb line of Third Street beginning at the Easterly curb return of Clark Avenue and said Third Street and extending Northeasterly along said Third Street, fifty feet; and

(2) That three foot wide strip of sidewalk, adjacent to and running parallel with the existing back of curb line of Clark Avenue beginning at the Westerly curb return of Third Street and said Clark Avenue and extending Northwesterly along said Clark Avenue, fifty feet.

(D) The City shall designate on City sidewalks, with appropriate markings:

(1) The westerly and northerly boundaries of the prohibited locations described in Paragraph (2) of Subsection (B) of this Section, and

(2) The locations of the areas excluded from the definition of "prohibited location" pursuant to Subsection (C) of this Section.

(E) The provisions of this Section:

(1) Apply only to property owned by the City; and

(2) Do not affect any other property, or the application of any laws or rules that govern such other property.

(F) Following the adoption of Ordinance No. 5991, the City shall prepare a final map or diagram that depicts the prohibited locations and the areas excepted therefrom. The map or diagram shall be filed with the City Clerk. A copy thereof shall be maintained in the office of the Department, and copies shall be made available to the public upon request.
(Ord. No. 6816, § 25, 8-17-22; Ord. 5991 § 2, 2008)

CHAPTER 6.86 WORK CARDS

6.86.010 Definitions.

Unless the context otherwise requires, the following words used in this Chapter shall have the meaning ascribed to them as follows:

"Metro" means the Las Vegas Metropolitan Police Department.

"Qualified agent" means a principal of the employer or a representative of a non-restricted gaming licensee's human resources department.

"Referral slip" means a written statement signed and dated by a designated authorized agent of an employer which contains the name and address of a person who needs a work card to engage in the employment offered to him by the employer and a description of the kind of employment offered.

"Work card" means a card issued by Metro which authorizes the holder to be employed in the capacity as specified on the card and contains a photograph and other identification of the holder.
(Ord. 5998 § 148, 2008: Ord. 4051 § 2, 1996: Ord. 2257 § 15, 1982: Ord. 2029 § 2 (part), 1979: prior code § 5-46-1)

6.86.020 Required when.

(A) Pursuant to authority under the City Charter and State law to regulate businesses, trades and professions, the City Council has identified by ordinance certain businesses, trades and professions that require a high degree of supervision and that seriously affect the public health, safety, prosperity, security, comfort, convenience, general welfare and property of the City and its residents. In connection with the regulation of a number of those businesses, trades and professions, the City Council has by ordinance imposed a work card requirement on employees that work in those businesses, trades and professions, and those requirements appear throughout this Code in the chapters that regulate those businesses, trades and professions. In each case, the work card requirement is based upon the Council's determination that the requirement is prudent and necessary in order to protect the public health, safety, prosperity, security, comfort, convenience, general welfare and the property of the City and its residents.

(B) It is unlawful for any person to be engaged in an employment that requires a work card pursuant to the provisions of this Code unless such person has in his possession a valid work card for such employment.
(Ord. 5386 § 13, 2001: Ord. 2257 § 16 (part), 1982: Ord. 2029 § 2 (part), 1979: prior code § 5-46-2 (A))

6.86.030 Employer responsibility.

It is unlawful for any employer to employ a person who is required to have a work card unless such person has a valid work card for such employment. Each employer shall designate

a qualified agent to immediately complete referral slips and refer prospective employees requiring work cards to Metro. Prior to the referral slips being sent to Metro the qualified agent shall verify that all requested information regarding the prospective employees is included. The qualified agent shall also be responsible for notifying Metro within five days from the date that a new employee already possessing a valid work card commences employment.

(Ord. 5998 § 149, 2008: Ord. 4051 § 3, 1996: Ord. 2257 § 16 (part), 1982: Ord. 2029 § 2 (part), 1979: prior code § 5-46-2 (B))

6.86.040 Application.

A person who desires a work card shall complete an application and provide the appropriate authorization and release for Metro to obtain all necessary background information. The applicant shall also allow Metro to obtain all required photographs and fingerprints for the initial application or renewal process. In addition, the applicant shall provide the following information:

(A) A referral slip from the prospective employer;

(B) The applicant's name and other names, nicknames, and aliases by which the applicant has been known and the applicant's current address;

(C) The applicant's date of birth, place of birth, marital status, height, weight, color of eyes and hair;

(D) When deemed appropriate by Metro in order to verify name, age, place of birth or legal residence in the United States, the applicant's birth certificate, alien registration card, citizenship papers or other recognized documents of identification;

(E) Any crimes excepting misdemeanor traffic offenses for which the applicant has been cited, arrested or convicted, plus the date, place and disposition of such charges;

(F) Any information from a regulatory authority including, but not limited to, any previous revocation, suspension, denial or disciplinary action taken against the applicant in connection with a business license, work card or other regulatory matter in Nevada or any other jurisdiction;

(G) The names and addresses of all places of employment of the applicant for five years prior to the date of the application;

(H) For any minor child, a standard letter of approval to work from Clark County Family and Youth Services;

(I) Such other information that may be required by Metro which reasonably relates to the applicant's fitness to hold a work card.

(Ord. 5998 § 150, 2008: Ord. 4051 § 4, 1996: Ord. 2043 § 1 (part), 1980: Ord. 2029 § 2 (part), 1979: prior code § 5-46-3(A))

6.86.050 Additional requirements.

Applicants for a work card for the following are subject to the provisions of Section 6.86.060:

(A) Employees of adult nightclub establishments licensed under Chapter 6.06B;

(B) Employees of erotic dance establishments licensed under Chapter 6.35;

(C) Employees of establishments licensed under Chapter 6.95;

(D) Employees of social use venues licensed under Chapter 6.96; and

(E) Property managers required to have a work card pursuant to Chapter 6.46.
(Ord. No. 6776, § 9, 4-21-21; Ord. No. 6750, § 42, 9-16-20; Ord. No. 6684, § 2, 5-1-19; Ord. No. 6393, § 2, 1-7-15; Ord. 6022, § 3, 2009: Ord. 5979 § 2, 2008)

6.86.060 Fingerprint check.

(A) In the case of work card applications listed in Section 6.86.050, applicants are required to submit to fingerprinting for purposes of a fingerprint check through the Federal Bureau of Investigation. In each such case:

(1) A complete set of fingerprints will be taken and will be forwarded to the Central Repository for Nevada Records of Criminal History.

(2) The Central Repository for Nevada Records of Criminal History is authorized to submit the fingerprints to the Federal Bureau of Investigation (FBI) for its report and to exchange fingerprint data with the FBI.

(3) The purpose for the submission of fingerprints is to allow for a State and Federal criminal records investigation regarding the applicant to determine suitability for a work card for employment within the specified type of business.

(B) This Section is adopted under the authority of, and consistent with, NRS 239B.010(1)(a) and Public Law 92-544, and should be read and interpreted in connection therewith.
(Ord. 6000 § 3, 2008: Ord. 5979 § 3, 2008)

6.86.070 Fees.

(A) Each applicant for an original work card, or for a renewal or replacement thereof, shall pay to Metro the non-refundable fees that pertain to that card. The fee amounts shall be in accordance with a fee schedule that has been approved by Metro's Committee on Fiscal Affairs.

(B) Each applicant shall pay the fee established by Metro for the investigation of an application for a work card, whether the application is approved or denied. Such fee is a collectible debt owed to Metro and must be paid in full before a work card will be issued.

(C) In the case of an appeal from the denial, suspension or revocation of a work card, the appellant shall pay to the Department pay an appeal fee of fifty dollars.
(Ord. No. 6305, § 8, 3-19-14; Ord. 5998 § 151, 2008: Ord. 4051 § 5, 1996)

6.86.080 Cancellation during first hundred days.

Whenever a person obtains the issuance or renewal of a work card, such card shall be deemed a temporary card for the first ninety days subject to the completion of the investigation of the applicant. Should the investigation show the applicant is unsuitable for the reasons set out in Section 6.86.110, the work card shall be immediately cancelled and repossessed by Metro.
(Ord. 5998 § 152, 2008: Ord. 4051 § 6, 1996: Ord. 2043 § 2, 1980: Ord. 2029 § 2 (part), 1979: prior code § 5-46-8)

6.86.090 Expiration.

A work card shall expire five years from the date it is issued unless otherwise designated by Metro, the City Council or this Code.
(Ord. 5998 § 153, 2008: Ord. 4051 § 7, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-9)

6.86.095 Notification of changes.

The work card holder shall notify Metro within five days of any changes in employment, name change, or change in residence. This requirement is in addition to the notification provision for the employer contained in Section 6.86.030.
(Ord. 4051 § 8, 1996)

6.86.100 Renewal.

A person may apply to Metro for renewal of a work card within thirty days prior to or anytime after its expiration date. The renewal applicant shall provide such information within the scope of Section 6.86.040 as Metro deems necessary and must present the previously issued work card to Metro.
(Ord. 4051 § 9, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-10)

6.86.110 Adverse actions—Grounds.

Metro may deny the issuance or renewal of a work card or suspend or revoke a work card for the following reasons:

(A) The application is incomplete or the applicant or holder has made false, misleading or fraudulent statements with respect to any material information contained in the application;

(B) The applicant has been adjudicated guilty in a court of competent jurisdiction of any offense defined by NRS 179D.097 as a sexual offense.

(C) The applicant has, within seven years of the date of the referral slip, been adjudicated guilty in a court of competent jurisdiction of a felony crime involving violence, theft, or fraud; the sale, possession, distribution or use of a controlled substance; or a law of any other jurisdiction which prohibits the same or similar conduct;

(D) The applicant has, within three years of the date of the referral slip, been adjudicated guilty in a court of competent jurisdiction of a gross misdemeanor crime involving violence, theft, or fraud; the sale, possession, distribution or use of a controlled substance; or law of any other jurisdiction which prohibits the same or similar conduct;

(E) The applicant has, within three years of the date of the referral slip, been adjudicated guilty in a court of competent jurisdiction of any crime not included within Subsection (B) or (C) involving deceptive trade practices, consumer fraud, intent to defraud, fraudulent advertising, or other illegal business practices related to the nature or conduct of the business for which the referral form is made;

(F) A work card for the applicant has been previously denied, suspended or revoked within one year of the date of referral form, or the renewal thereof has been denied by the City or any other jurisdiction with one year of the date of the referral slip;

(G) The applicant or holder fails to meet age or other requirements for the particular employment as may be set forth in this Code, or State and Federal laws or regulations;

(H) The applicant or holder illegally resides in the United States;

(I) The applicant or holder has been subject to a revocation, suspension, or other disciplinary action against a business license or work card or permit in Nevada or any other jurisdiction to the extent that such disciplinary action reflects upon the fitness of the applicant or holder to have a work card;

(J) The applicant or holder has worked for an employer without a work card when one was required;

(K) The applicant or holder has been convicted in a criminal court, or adjudicated guilty of a civil violation by a hearing officer, of selling alcohol to a minor on more than one occasion; or

(L) Where substantial information exists showing the applicant or holder to be dishonest or corrupt.

(Ord. No. 6305, § 9, 3-19-14; Ord. 5998 § 154, 2008: Ord. 5158 § 1, 1999: Ord. 4051 § 10, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-4(A))

6.86.120 Adverse actions—Notice.

The applicant or holder shall be notified of any denial, cancellation, refusal to renew, revocation, or suspension of a work card and the reasons therefor.

(Ord. 4051 § 11, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-4(B))

6.86.130 Criminal history review.

The period of time for review of an applicant's criminal history shall date back for a time period consistent with the provisions of LVMC 6.86.110.

(Ord. No. 6305, § 10, 3-19-14; Ord. 5998 § 155, 2008)

6.86.150 Appeal—Police action.

(A) Except as otherwise provided in Subsections (D) and (E), any applicant or holder of a work card aggrieved by a decision of Metro with respect to the issuance, renewal, denial, revocation or suspension of a work card may appeal such decision within ten days to the City Council by filing with the Department a written notice of appeal identifying with specificity the grounds for the appeal.

(B) The City Council shall hear the appeal within sixty days after the appeal is filed, subject to the requirements of the Nevada open meeting law. Upon the filing of an appeal, Metro may issue a temporary work card which will be revoked or become permanent upon the final decision of the City Council.

(C) In addition to any written briefs, exhibits or other documentation submitted on behalf of the appeal, the appellant or his or her legal counsel shall attend, make an opening statement and be prepared to make oral arguments to the City Council in support of the appeal. Any criminal history of the appellant relied on by Metro as a basis for its denial, suspension or revocation of the appellant's work card and referenced by the appellant during his or her appeal shall become part of the public record and may be openly discussed during the appeal hearing.

(D) In the case of a decision by Metro based upon grounds that make a person unemployable under provisions of State law, the decision is appealable only by means of a petition to a court of competent jurisdiction.

(E) In the case of a denial by Metro of the issuance of a work card based on the applicant's criminal history, the Director is authorized to overturn the denial if the applicant submits a statement/affidavit that qualifies under LVMC 6.86.160.
(Ord. No. 6807, § 1, 4-20-22; Ord. No. 6305, § 11, 3-19-14; Ord. 5998 § 157, 2008: Ord. 5158 § 2, 1999: Ord. 4051 § 13, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-6 (A))

6.86.160 Appeal—Requirements.

An appeal of a work card denial pursuant to Section 6.86.150 shall include a statement from a prospective employer in support of the applicant's employment. Such affidavit must include:

(A) An acknowledgment that the prospective employer has been informed of the applicant's adult criminal history.

(B) Which prior crimes of the applicant were disclosed to the prospective employer.

(C) The name of the prospective employer and the name and address of his or her business.

(D) The City business license number of the employer.
(Ord. 5998 § 159, 2008)

6.86.170 Surrender—Use of invalid—Use of another's.

(A) Whenever a work card has been revoked, cancelled or suspended, the holder thereof shall immediately surrender the card to Metro.

(B) It is unlawful for any person to have in his possession a work card that has been revoked, cancelled or that is subject to an order of suspension.

(C) It is unlawful for any person to use for the purpose of identification or obtaining employment a work card that has been issued to another or that has expired.
(Ord. 4051 § 14, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-11)

6.86.180 Employers—Duties.

Employers of persons who are required to have work cards shall:

(A) Maintain and make available for inspection, during normal business hours, by Metro or the Department a list of all employees who have been employed in capacities that require a work card. The list must include the employee's name, work card number and date of expiration. The list must also include all current employees and all those employed during the previous three years; and

(B) Upon the employment of a person in a capacity allowed by his current work card, other than one in gaming, notify Metro, on the form provided by Metro, of the employment of that person in any capacity requiring a current work card, other than one in gaming, within five days of such employment.
(Ord. 5998 § 160, 2008: Ord. 4051 § 15, 1996: Ord. 2043 § 3, 1980: prior code § 5-46-12)

6.86.190 Employers—Penalties for violations.

After an appeal hearing held in accordance with Section 6.86.150, the City Council may affirm, modify or overturn a decision by Metro regarding the issuance, renewal, denial, revocation or suspension of a work card. If the City Council finds that an employer or employee has violated any provision of this Chapter, it may take any combination of the following actions:

(A) Impose a fine against the employer or employee; or

(B) Revoke, suspend or place conditions on the employer's business license or employee's work card.
(Ord. 4051 § 16, 1996: Ord. 2029 § 2 (part), 1979: prior code § 5-46-13)

6.86.200 Temporary work card—Appeal—Restrictions.

(A) The City Council may direct the issuance of a temporary work card for an applicant/holder as deemed appropriate in the disposition of an appeal.

(B) The City Council may direct the issuance of a temporary work card limited by specific times, location, occupation or duties unless otherwise prohibited by this Title.

(C) The City Council may impose a mandatory review of the applicant's status by the Director, City Council or designee, or place other conditions reasonably related to the employment of the applicant in conjunction with a temporary work card as deemed appropriate.
(Ord. No. 6305, § 12, 3-19-14)

CHAPTER 6.88 ADMINISTRATIVE PROCEDURES

6.88.010 Investigation of violations.

The director of any department of the City having jurisdiction over a particular business shall cause an investigation of violations of this Code or any regulations adopted thereunder which come within the department's authority and, when action is to be taken against a licensee, person approved for suitability, a holder of a work card, or permittee, shall conduct such investigative hearings with respect thereto as may be necessary. The City Council may direct any director of the City to investigate any apparent violations of Code and regulations which come to its attention.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-1)

6.88.020 Administrative action—Council review initiation.

If, after such investigation, the director is satisfied that a violation of this Code or any regulations adopted thereunder which come within the department's authority has been committed, the director shall take the appropriate action that may be allowed by ordinances or when provided by ordinances for review by the City Council, file a complaint with the City Manager and transmit therewith a summary of evidence bearing on the matter and any transcript of testimony at any investigative hearing conducted by or on behalf of the department.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-2(A))

6.88.030 Complaint—Drafting—Withdrawal.

Upon the receipt of the complaint of a director, the City Manager shall submit the same to the City Attorney who shall review the same and all matters presented in support thereof, and, if satisfied that probable grounds exist for disciplinary action, shall draft a complaint for approval by the City Council. If the Council is not satisfied that probable grounds exist for disciplinary action, it may order the complaint withdrawn without prejudice to the filing of another complaint after further investigation and reconsideration by the department.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-2(B))

6.88.040 Complaint—Notice to respondent.

If the City Council approves the complaint, it shall cause a copy of the complaint and a notice of hearing to be served upon the respondent, either personally or by registered or certified mail, return receipt required, at his address on file with the Department. The complaint and notice of hearing shall be served on the respondent at least ten days prior to the hearing.
(Ord. 5998 § 161, 2008: Ord. 2200 § 2 (part), 1981: prior code § 5-27-2(C))

6.88.050 Hearing scheduling.

The City Council shall determine the time and place of the hearing as soon as is reasonably practical and in no event shall the hearing be later than sixty days from the date of the approval of the complaint by the Council.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-2(D))

6.88.060 Complaint contents.

The complaint shall be a written statement of charges which shall set forth in ordinary and concise language the acts or omissions with which the respondent is charged. It shall specify the Code sections and regulations which the respondent is alleged to have violated, but shall not merely recite the language of the Code section or regulation. It shall require the licensee to appear and show cause why the license shall not be suspended or revoked, or other disciplinary action taken.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-3)

6.88.070 Hearing notice form.

The notice of hearing shall be substantially in the following form, but may include other information:

> YOU ARE HEREBY NOTIFIED that a Hearing will be held before the City Council at (here insert place of hearing) on the _____ day of _____, 19____, at the hour of ____.M., upon the charges made in the Complaint served upon you. You may be present at the hearing and may be represented by counsel. You may present any relevant evidence, and you will be given full opportunity to cross-examine all witnesses testifying against you.

(Ord. 2700 § 2 (part), 1981: prior code § 5-27-4)

6.88.080 Answer to complaint.

The respondent, within twenty days after service of the complaint, except not later than five days prior to the scheduled hearing, must file with the City Clerk and serve a copy of the same upon the City Attorney its answer to the charges made in the complaint and set forth any defenses it intends to raise.
(Ord. 2700 § 2 (part), 1981: prior code § 5-27-5)

6.88.090 Conduct of hearing.

(A) The hearing need not be conducted according to technical rules relating to evidence and witnesses. Any relevant evidence may be admitted.

(B) The respondent shall have the right to call and examine witnesses on his own behalf, cross-examine opposing witnesses, introduce exhibits and evidence relevant to the issues of the case, and offer rebuttal evidence.

(C) The respondent may be called and examined by the City.

(D) The Clerk shall have the power to issue subpoenas for witnesses to appear to give testimony.
(Ord. 3168 § 7, 1985: Ord. 2200 § 2 (part), 1981: prior code § 5-27-6)

6.88.100 Failure to answer or appear.

Failure to timely file his answer or failure of a respondent or his counsel to appear at the hearing shall constitute an admission of all matters and facts contained in the complaint filed with respect to such respondent. In such cases the City Council may take action based upon such admission or upon any other evidence, including affidavits, and without any further notices whatever to respondent. In such cases the City Council shall indicate by appropriate findings of fact and conclusions of law in the record the evidence upon which its action was based.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-7)

6.88.110 Admissible facts—Refutation by parties.

The City Council may take official notice of any generally accepted information or technical or scientific matter, and of any other fact which may be judicially noticed by the courts of this State. The parties shall be informed of any information, matters or facts so noticed, and shall be given a reasonable opportunity, on request, to refute such information, matters or facts by evidence or by written or oral presentation or authorities.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-8)

6.88.120 Decision by City Council.

(A) After the hearing of a contested matter, the City Council shall render a decision on the merits, which shall include findings of fact and conclusions of law and the penalty to be imposed, if any. The penalty may include, without limitation, the following, or any combination thereof:

(1) The suspension or revocation of the respondent's license, approval for suitability or work card, as the case may be;

(2) The imposition of conditions upon the license, approval for suitability or work card in question; or

(3) The imposition of a civil fine in an amount not to exceed one thousand dollars for each day that the violation which forms the subject matter of the complaint is demonstrated to have been in existence.

(B) The City Council shall make and enter an order in its minutes in conformity to such decision. The decision of the City Council shall be served on the parties personally or shall be sent to them by registered or certified mail. The decision shall become and remain effective upon such service unless the City Council shall otherwise order.
(Ord. 5078 § 2, 1998: Ord. 3453 § 2, 1989: Ord. 270 § 2 (part), 1981: prior code § 5-27-9)

6.88.130 Rehearing for new evidence.

(A) The City Council may, upon motion made within ten days after service of a decision and order, order a rehearing before the City Council upon such terms and conditions as it may deem just and proper. Such motion shall not be granted except upon a showing that there is new evidence which is material and necessary and reasonably calculated to change the decision of the City Council and that sufficient reason existed for failure to present such evidence at the hearing of the City Council. The motion shall be supported by an affidavit of the moving party or his counsel showing with particularity the materiality and necessity of the new evidence and the reason why it was not introduced at the hearing.

(B) Upon rehearing, rebuttal evidence to the additional evidence shall be permitted. After rehearing, the City Council may modify its decision and order as the additional evidence may warrant.
(Ord. 2200 § 2 (part), 1981: prior code § 5-27-10)

CHAPTER 6.90 FARMERS' MARKETS

6.90.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words and terms shall have the meanings ascribed to them as follows:

"Certification" or "certificate" refers to a certificate issued by a state authorizing a producer to sell farm products in the state in which the farm products are grown.

"Farmers' market" means a temporary or permanent business establishment from which a producer or farm product vendor can sell farm products directly to customers. A farmers' market may also include non-farm product vendors in accordance with this Chapter.

"Farm products" means all agricultural, horticultural, viticultural and vegetable products of the soil. The term does not include timber products.

"Farm product vendor" means a producer, or an authorized agent of a producer, who sells, offers for sale, displays or takes orders for future delivery of farm products in conjunction with a farmers' market.

"Market promoter" means any person who:

(A) Promotes a farmers' market by marketing, advertising and soliciting vendors;

(B) Operates a farmers' market by negotiating vending space, managing and controlling market operations; or

(C) Both promotes and operates a farmers' market.

"Non-farm product vendor" means any person who sells, offers for sale, displays or takes orders for future delivery of products not defined as farm products.

"Producer" means a person or entity that produces farm products upon land which the person or entity controls.
(Ord. 5421 § 2, 2002)

6.90.020 Market promoter—Business license required.

It is unlawful for any person to act as a market promoter of one or more farmers' market locations without first obtaining and thereafter maintaining a valid business license for each location pursuant to this Title.
(Ord. 5421 § 3, 2002)

6.90.030 Market promoter—License application requirements.

On a license application approved by the Director, an applicant for a market promoter license shall provide the following information:

(A) The name, address, and telephone number of all the principals of the applicant.

(B) The business name, business address, and business telephone number of the applicant.

(C) The location of the proposed farmers' market operation.

(D) A description of the nature of the operation and the period of time proposed for operations.

(E) A list of the producers, farm product vendors and those persons who will be non-farm product vendors, to include the producers' and vendors' business names, telephone numbers, and a description of the products to be sold at the farmers' market.

(F) Proof of compliance with the Health District regulations pertaining to the proposed farmers' market operation.

(G) Proof of compliance or exemption from the State Department of Taxation regulations.
(Ord. 5998 § 162, 2008: Ord. 5421 § 4, 2002)

6.90.040 Market promoter—Processing and license fees.

Each person acting as a market promoter must pay a processing fee required by LVMC Chapter 6.02 and an annual business license fee of seventy-five dollars for each market location.
(Ord. No. 6522, § 1, 4-20-16; Ord. 5421 § 5, 2002)

6.90.050 Reserved.

Editor's note—Ord. No. 6522, § 2, adopted April 20, 2016, repealed § 6.90.050, which pertained to vendors—inclusions and exclusions and derived from Ord. No. 5421, 2002 and Ord. No. 5998, 2008.

6.90.060 Non-farm product vendors—Requirements.

A farmers' market may include non-farm product vendors. It is unlawful for any non-farm product vendor to sell items at a farmers' market without first obtaining and thereafter maintaining a valid license to do so from the Department pursuant to this Chapter. Before a license to sell non-farm product consumables is issued by the Department, the applicant must obtain a health permit from the Health District, if applicable, and comply with all other applicable Health District requirements. For purposes of the preceding sentence, an organization described in LVMC 6.90.090 shall not be considered a vendor.
(Ord. No. 6522, § 3, 4-20-16; Ord. 5421 § 7, 2002)

6.90.070 Non-farm product vendor—License application—Requirements.

On a form approved by the Director, an applicant for a non-farm product vendor license shall provide the following information:

(A) The name, address, and telephone number of all the principals of the applicant.

(B) The business name, address, and telephone number of the applicant.

(C) The location of the farmers' market.

(D) A description of the nature of the operation and the period of time proposed to be conducted in conjunction with the farmers' market.

(E) Proof of compliance with the Health District regulations, if applicable, pertaining to the proposed vending operation.

(F) Proof of compliance with the State Department of Taxation regulations.

(G) Written documentation signed by the market promoter authorizing participation in the farmers' market.

(Ord. 5998 § 164, 2008: Ord. 5421 § 8, 2002)

6.90.080 Non-farm product vendor—License fee.

Each non-farm product vendor shall pay a semi-annual license fee based upon its gross sales pursuant to LVMC 6.04.005, whether the vendor participates fully or partially during the year.
(Ord. No. 6522, § 4, 4-20-16; Ord. 5421 § 9, 2002)

6.90.090 Non-profit organizations—Exemptions.

Any organization that qualifies as a non-profit, charitable or religious organization is exempt from the provisions of Sections 6.90.060, 6.90.070 and 6.90.080 of this Chapter.
(Ord. No. 6296, § 28, 2-5-14; Ord. 5421 § 10, 2002)

6.90.100 Producer and farm product vendors—Sales requirements.

At the time of any and all sales made at a farmers' market, each producer and farm product vendor must post in a conspicuous manner at the sales location:

(A) A health permit from the Health District, if applicable, and evidence of compliance with all other applicable Health District requirements.

(B) A current valid certificate, if the state in which the farm product is grown requires certification in order to sell the farm product in that state.

(C) A sign stating "Non-Certified," if the state in which the farm product is grown does not require certification in order to sell the farm product in that state.

(Ord. 5998 § 165, 2008: Ord. 5421 § 11, 2002)

6.90.110 Market promoter—Operation within City limits—Permit requirements.

Each market promoter who proposes to operate a farmers' market within a City park must first obtain and maintain permission to do so from the Department of Parks, Recreation and Cultural Affairs. Each market promoter of an outdoor farmers' market on private property must first obtain and maintain a valid temporary commercial permit or other required approval pursuant to Title 19.
(Ord. No. 6816, § 26, 8-17-22; Ord. 5421 § 12, 2002)

6.90.120 Violations.

It is unlawful for any market promoter, producer, farm product vendor or non-farm product vendor participating in a farmers' market to:

(A) Operate an ice cream truck contrary to the provisions of LVMC Chapter 6.47.

(B) Operate independent of the farmers' market without securing the proper business license pursuant to LVMC Title 6.

(C) Operate outside the hours the market promoter has been authorized by the City to conduct a farmers' market.

(D) Operate as a non-farm product vendor in violation of the provisions of this Chapter.

(E) Engage in any business requiring a privileged license, without first obtaining a privileged license to operate consistent with Title 6.

(Ord. No. 6522, § 5, 4-20-16; Ord. 5421 § 13, 2002)

6.90.130 Business license—Denial.

In addition to the grounds for denial of a business license set forth in LVMC 6.02.090, the Director may deny a business license or permit for a market promoter or a permit for a non-farm product vendor for the following reasons:

(A) Nonpayment of business license or permit fees.

(B) Noncompliance with Section 6.90.050 of this Chapter.

(Ord. 5421 § 14, 2002)

6.90.140 Market promoter—Compliance and recordkeeping requirements.

For purposes of ensuring proper licensing and determining compliance with Section 6.90.040 of this Chapter, each market promoter shall ensure each vendor is properly licensed, that each vendor has the license on site at each market and the promoter shall keep accurate records of all vendors at each market location for three years and make all such records available to the Department upon request.

(Ord. No. 6522, § 6, 4-20-16; Ord. 5421 § 15, 2002)

CHAPTER 6.92 MONORAILS

6.92.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following words shall have the meanings ascribed to them as follows:

"Contractual payments" means the payments made or funds set aside by the licensee as required or contemplated by the licensee's contractual obligations to third parties.

"Fixed guideway" means a stationary rail facility used and occupied exclusively for mass public transportation.

"Gross revenue" means all revenue earned, directly or indirectly, using generally accepted accounting principles, from all sources of sales or services attributable to the operation of a monorail within the City, including but not limited to:

(A) Fees or fares for transportation or parking;

(B) Retail sales of merchandise, food, beverages or tobacco products;

(C) Rents from non-advertisers;

(D) Rents, fees, commissions or any other consideration, whether paid in cash or exchanged as "trade out," by advertisers or their agents or brokers;

(E) Fees paid for access to a monorail by owners of property or businesses adjacent to a monorail, unless such owners are the owners of the monorail and the amounts are provided in exchange for ownership interest;

(F) Royalties paid for use of copyrighted or trademarked property; and

(G) Any other revenue earned in the course of any business activity associated with a monorail or its structure, passenger stations or other facilities.

The term does not include any tax on fuel or on retail sales that is collected by the license.

"Master business license" means a license issued exclusively under this Chapter that allows the operation of multiple and diverse types of businesses by a monorail owner which ordinarily would require multiple, non-regulatory licenses. Businesses which are not eligible to operate under a master business license and instead must be licensed separately in accordance with applicable requirements of Title 6 are:

(A) Privileged businesses requiring licensure pursuant to LVMC Chapter 6.06.

(B) Businesses which are specifically excluded From licensure under a master business license by the provisions of Title 6.

(C) Businesses owned by persons other than the monorail owner.

"Monorail" means a system to transport passengers that is installed and operated in the City on an exclusive fixed guideway, including associated passengers stations, power propulsion systems, lots for parking motor vehicles, workshops and all other structures and facilities related to the fixed guideway. The term does not include a system used to transport passengers between two end points with no intermediate stops in the City.

"Monorail agreement" means a written agreement between the City and a monorail owner permitting the installation, operation and maintenance of a monorail in City rights-of-way within a designated monorail district and route as specified in the agreement.

"Monorail owner" means a person who owns a monorail within the City.

"Operating and maintenance (or O & M) costs" means all costs that are incurred by a monorail owner or operator in the normal operation and maintenance of a monorail, and that are attributable to the monorail's operations in the City.

"Operator" means a person who operates a monorail as an agent of the monorail owner.

"Rights-of-way" means the space in, upon, above, along, across and over the public streets, roads, highways, lanes, courts, ways, alley, boulevards, sidewalks, bridges, and bicycle lanes, including all public utility easements and public service easements as the same now or may hereafter exist, that are under the jurisdiction of the City.
(Ord. 5432 § 2, 2002)

6.92.020 Violations.

It is unlawful for:

(A) Anyone other than a monorail owner to engage in a monorail business in the City.

(B) Anyone other than a monorail owner or his or her designated operator to operate a monorail.

(C) A monorail owner to conduct a monorail business in the City without first having obtained and thereafter maintaining a valid unexpired monorail master business license issued by the Director, which license shall be non-transferable.

(D) A monorail owner's operator to operate a monorail in the City knowing that the monorail owner does not have a valid unexpired monorail master business license.

(Ord. 5432 § 4, 2002

6.92.030 License requirements.

A monorail master business license may be issued by the Director to a monorail owner once the City Council has approved a monorail agreement between the monorail owner and the City. Upon receipt of all applicable license fees, the license shall be renewed annually by the Director during the term of the monorail agreement, unless sooner terminated.
(Ord. 5432 § 4, 2002)

6.92.040 License fees.

(A) Every monorail owner shall pay a quarterly business license fee that shall be due no later than the fifteenth day of the second month following the end of each calendar quarter.

(B) The master business license fee for each calendar quarter shall be:

(1) The sum of twenty-five dollars; plus

(2) Two percent of the owner's gross revenue minus the monorail owner's current contractual payments and current O & M costs.

(C) Every monorail owner shall, no later than the date on which a payment of a quarterly fee is due, file with the Department a statement of the amount of revenue received during such calendar quarter, broken out by appropriate categories of revenue, and the amounts of current contractual payments and O & M costs, up to the amount of such gross revenue.
(Ord. 5432 § 5, 2002)

6.92.050 License fee payment—Delinquency.

If a license fee required to be paid under this Chapter is received by the Department after the due date, a penalty of two percent per month (or any portion thereof) of the delinquent amount shall be assessed to the monorail owner.
(Ord. 5432 § 6, 2002)

6.92.060 Reporting requirements.

Every monorail owner to which this Chapter applies is required to maintain adequate records, in accordance with generally accepted accounting principles, concerning its gross revenues, contractual payments and O & M costs for a period of at least six years prior to the current reporting period. The Department may audit the books and records of a monorail owner to determine any amounts due under this Chapter. The monorail owner shall make available to the City within the County such books and records no later than ten days after the City's request for the same.
(Ord. 5432 § 7, 2002)

6.92.070 License revocation, suspension or non-renewal.

(A) Any monorail master business license is subject to automatic revocation, suspension or non-renewal by the Director if the City Council revokes or suspends a monorail owner's monorail agreement pursuant to which a monorail is operated.

(B) Any monorail master business license is subject to automatic revocation or suspension by the Director if a licensee fails to comply with all insurance and security requirements specified in the licensee's monorail agreement. If the Director suspends or revokes the master business license pursuant to this Subsection and the monorail owner cures his or her defaults in complying with its insurance and security obligations, the Director shall reinstate the master business license after the defaults have been cured.
(Ord. 5432 § 8, 2002)

CHAPTER 6.94 NEW VEHICLE DEALERS

6.94.010 New vehicle dealer—Sunday business hours—Prohibited.

No motor vehicle dealer who is licensed pursuant to NRS Chapter 482 as a "new vehicle dealer" may be open for business on Sundays at any location where the dealer sells new cars or trucks, whether exclusively or in conjunction with the sale of used cars or trucks.
(Ord. 5704 § 2, 2004)

CHAPTER 6.95 MEDICAL/ADULT-USE CANNABIS OPERATIONS

6.95.010 Findings.

(A) The Las Vegas City Council finds as follows:

(1) By virtue of State legislation now codified in NRS Chapters 678A to 678D, inclusive, cannabis-related establishments and services are authorized to conduct business within the State, subject to State and local regulation;

(2) Federal law and related regulations classify cannabis as a Schedule I controlled substance and prohibit its cultivation, possession, dispensing and use, among other

things, for medical reasons or otherwise. This Chapter is intended to implement NRS Chapters 678A to 678D, inclusive, and to establish criteria for the issuance of licenses that are a prerequisite for the exemption from state prosecution provided for in those chapters. Nothing in this Chapter is intended to authorize or make legal any act that Federal or State law does not permit or sanction or assist any violation of any Federal or State law;

(3) Nevada law also allows the City to enact regulations to protect and promote the public health, safety and general welfare and regulate the use of buildings, structures, land use and business and other purposes;

(4) Law enforcement and residents of states that authorize the medical and other use of cannabis report, among other things, that cannabis sales and the use of cannabis are correlated to myriad negative secondary effects such as an increase in violent armed robberies, burglaries, traffic, noise, drug and gang activity, and organized crime; an increase in other issues related to the presence of large amounts of cash, such as money laundering and firearms violations; the underreporting of crimes committed at cannabis-related establishments; the creation of opportunities for the diversion of cannabis for authorized use into illegal use; increased poisonings, structural fires and mold growth; decreased quality of life; and a disregard of environmental standards;

(5) The strong odor of cannabis plants, which increases as the plants mature, is offensive to many individuals and creates an attractive nuisance, alerting people to the location of valuable cannabis plants and creating an increased risk of crime;

(6) Cannabis, edible cannabis products and cannabis-infused products pose risks to children, elderly and non-user populations; and

(7) The public health, safety and welfare require that cannabis-related establishments and services and their employees be regulated and licensed in order to protect the public.

(B) The City Council declares that this Chapter is an exercise of the regulatory powers delegated to the City Council pursuant to the City Charter, NRS Chapter 268, and NRS Chapters 678A to 678D, inclusive. The regulations contained in this Chapter involve, to the highest degree, the economic, social, physical and moral well-being of the residents and taxpayers of the City. The cultivation, distribution, production and sale of cannabis is not a matter of right but of privilege, which would otherwise be unlawful if it were not conducted pursuant to NRS Chapters 678A to 678D, inclusive, local land use regulations and a license under this Chapter. This privilege may be denied, revoked, conditioned, suspended or subjected to any other disciplinary action by the City in the exercise of its police powers for the protection of the safety, welfare, health, peace and morals of the residents and taxpayers thereof. Businesses engaged in the sale or other disposition of cannabis must therefore comply with LVMC Chapter 6.06 and all requirements of this Chapter, except as otherwise specifically provided. Every person licensed pursuant to this Chapter shall cooperate with the Department and Metro personnel in the exercise of their duties under this Chapter.

(C) Nothing in this Chapter shall be construed to confer any legitimate claim of entitlement to any benefit which might otherwise devolve upon any licensee or any person approved for suitability.

(D) Nothing in this Chapter is intended to authorize or make legal any act that Federal or State law does not permit or sanction or assist any violation of any Federal or State law. (Ord. No. 6750, § 1, 9-16-20; Ord. No. 6620, § 1, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.020 Definitions.

Unless the context otherwise requires, the scope of all words in this Chapter shall be liberally construed in order to effectuate the purpose of this Chapter, and, in particular, the following words shall have the meaning ascribed to them as follows:

"Adult-use cannabis cultivation facility" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, cultivates, delivers, transfers, supplies or sells cannabis and related supplies to adult-use cannabis retail stores, adult-use cannabis production facilities, or other adult-use cannabis cultivation facilities.

"Adult-use cannabis distributor" has the meaning ascribed to it in NRS Chapter 678A and means a business that transports cannabis or adult-use cannabis products from an adult-use cannabis establishment to another adult-use cannabis establishment.

"Adult-use cannabis distributor transportation contractor" means a person who contracts with an adult-use cannabis distributor to transport cannabis, on behalf of that distributor, from an adult-use cannabis establishment to another adult-use cannabis establishment.

"Adult-use cannabis establishment" has the meaning ascribed to it in NRS Chapter 678A and means an adult-use cannabis independent testing laboratory, an adult-use cannabis cultivation facility, an adult-use cannabis production facility, an adult-use cannabis retail store, a retail cannabis consumption lounge, an independent cannabis consumption lounge, or an adult-use cannabis distributor.

"Adult-use cannabis independent testing laboratory" has the meaning ascribed to it in NRS Chapter 678A and means a facility that tests cannabis intended for the adult use of cannabis and adult-use cannabis products.

"Adult-use cannabis production facility" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, manufactures, delivers, transfers, supplies or sells adult-use cannabis products to adult-use cannabis retail stores.

"Adult-use cannabis retail store" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, delivers, transfers, supplies, sells or dispenses cannabis or related supplies to a consumer or to another adult-use cannabis retail store, independent cannabis consumption lounge or retail cannabis consumption lounge.

"Adult-use cannabis support business" means a business that provides goods or services to an adult-use cannabis establishment and receives at least fifty percent of its annual revenue from licensed adult-use cannabis establishments. The term does not include a business that qualifies as an adult-use cannabis distributor transportation contractor.

"Adult-use of cannabis" has the meaning ascribed to it in NRS Chapter 678A and means the possession, delivery, production or use of cannabis; the possession, delivery or use of paraphernalia used to administer cannabis; or any combination thereof, in each case by a person twenty-one years of age or older.

"Building Official" means the Director of Community Development or the Director's designee.

"Cannabis" has the meaning ascribed to it in NRS Chapter 678A.

"Cannabis cultivation facility" or "cultivation facility" has the meaning ascribed to the former in NRS Chapter 678A and means an adult-use cannabis cultivation facility or a medical cannabis cultivation facility.

"Cannabis establishment" has the meaning ascribed to it in NRS Chapter 678A and means an adult-use cannabis establishment or a medical cannabis establishment.

"Cannabis establishment agent" has the meaning ascribed to it in NRS Chapter 678A and means an owner, officer, board member, employee or volunteer of a cannabis establishment; an independent contractor who provides labor relating to the cultivation or processing of cannabis or the production of usable cannabis or cannabis products for a cannabis establishment; or an employee of such an independent contractor.

"Cannabis independent testing laboratory" or "independent testing laboratory" has the meaning ascribed to the former in NRS Chapter 678A and means an adult-use cannabis independent testing laboratory or a medical cannabis independent testing laboratory.

"Cannabis-infused products" means adult-use edible cannabis products and medical edible cannabis products as defined in NRS Chapter 678A.

"Cannabis product" has the meaning ascribed to it in NRS Chapter 678A and means an adult-use cannabis product or a medical cannabis product.

"Cannabis production facility" has the meaning ascribed to it in NRS Chapter 678A and means an adult-use cannabis production facility or a medical cannabis production facility.

"Cannabis sales facility" has the meaning ascribed to it in NRS Chapter 678A means a medical cannabis dispensary or an adult-use cannabis retail store.

"Designated primary caregiver" has the meaning ascribed to it in NRS Chapter 678C.

"Edible cannabis products" means adult-use edible cannabis products and medical edible cannabis products as defined in NRS Chapter 678A.

"Independent cannabis consumption lounge" means a business that is not attached to an adult-use cannabis retail store but sells and allows the use of single-use cannabis products and/or ready-to-consume cannabis products for persons over the age of twenty-one to consume on the premises of the business.

"Key employee" means an employee designated by a business licensee to oversee the operations of the business in the absence of the licensee.

"Medical cannabis cultivation facility" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, cultivates, delivers, transfers, supplies or sells cannabis and related supplies to medical cannabis dispensaries, medical cannabis production facilities, or other medical cannabis cultivation facilities.

"Medical cannabis dispensary" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, delivers, transfers, transports, supplies, sells or dispenses cannabis or related supplies and educational materials to the holder of a valid registry identification card or to another medical cannabis dispensary.

"Medical cannabis establishment" has the meaning ascribed to it in NRS Chapter 678A and means a medical cannabis independent testing laboratory, a medical cannabis cultivation facility, a medical cannabis production facility, or a medical cannabis dispensary.

"Medical cannabis independent testing laboratory" has the meaning ascribed to it in NRS Chapter 678A and means a facility that tests cannabis intended for the medical use of cannabis and medical cannabis products.

"Medical cannabis product" means a medical edible cannabis product or a medical cannabis-infused product.

"Medical cannabis production facility" has the meaning ascribed to it in NRS Chapter 678A and means a business that acquires, possesses, manufactures, delivers, transfers, transports, supplies or sells medical cannabis products to medical cannabis dispensaries.

"Medical cannabis support business" means a business that provides goods or services to a medical cannabis establishment and receives at least fifty percent of its annual revenue from licensed medical cannabis establishments.

"Medical use of cannabis" has the meaning ascribed to it in NRS Chapter 678A and means the possession, delivery, production or use of cannabis; the possession, delivery or use of paraphernalia used to administer cannabis; or any combination thereof, in each case as necessary for the exclusive benefit of a person to mitigate the symptoms or effects of his or her chronic or debilitating medical condition, as defined in NRS 678C.030.

"Nevada Cannabis Compliance Regulations" means those regulations established by the Nevada Cannabis Compliance Board as cited or abbreviated N.C.C.R. or NCCR.

"Paraphernalia" has the meaning ascribed to it in NRS Chapter 678A and means accessories, devices and other equipment that is necessary or useful for a person to engage in the medical use of cannabis or the adult use of cannabis.

"Registry identification card" has the meaning ascribed to it in NRS Chapter 678A and means a document issued by a State authority that identifies a person who is exempt from State prosecution for engaging in the medical use of cannabis or the designated primary caregiver, if any, of such a person.

"Retail cannabis consumption lounge" means a business that is attached to an adult-use cannabis retail store that sells and allows the use of single use cannabis products and/or ready-to-consume cannabis products for persons over the age of twenty-one to consume on the premises of the business.

"Ready to consume cannabis product" has the meaning set forth in NCCR 1.197.

"Single-use cannabis product" has the meaning set forth in NCCR 1.222.

"Social equity applicant" means an applicant for the issuance or renewal of an adult-use cannabis establishment license for an independent cannabis consumption lounge who has been adversely affected by provisions of previous laws which criminalized activity relating to cannabis, as determined by the Cannabis Compliance Board of the State of Nevada in accordance with the regulations adopted pursuant to NRS 678B.323. Such adverse effects may include, without limitation, adverse effects on an owner or officer of the applicant.

"State regulating authority" means the Cannabis Compliance Board of the State of Nevada and/or any other agency assigned to administer NRS Chapters 678A to 678D, inclusive.

(Ord. No. 6831, § 1, 3-1-23; Ord. No. 6816, § 27, 8-17-22; Ord. No. 6750, § 3, 9-16-20)

Editor's note—Ord. No. 6750, § 2, adopted September 16, 2020, repealed the former § 6.95.020, and § 3 of Ord. No. 6750 enacted a new § 6.95.020 as set out herein. The former § 6.95.020 pertained to similar subject matter and derived from Ord. No. 6324, adopted June 4, 2014; Ord. No. 6579, adopted May 17, 2017 and Ord. No. 6620, adopted May 16, 2018.

6.95.030 Unlawful acts.

(A) It shall be unlawful for any person to operate any medical cannabis establishment in the City under any of the following circumstances:

(1) Without a valid license or registration, as applicable, duly issued by the State regulating authority;

(2) Without a license issued pursuant to this Chapter; or

(3) In violation of applicable state laws or this Code.

(B) Except as otherwise permitted by NRS 678C.410, it shall be unlawful for any person to provide cannabis, edible cannabis products or cannabis infused products to a medical cannabis establishment within the City without a license or registration duly issued by the State regulating authority and a license issued by the City.

(C) Except for sales pursuant to NRS 678C.410, it shall be unlawful for any licensed medical cannabis establishment located within the City to accept for sale any cannabis, edible cannabis products or any cannabis-infused products from any person who has not obtained a license or registration from the State regulating authority, or who is not duly licensed under this Chapter for the provision of such products.

(D) It shall be unlawful for a person to engage in any form of business or commerce involving the cultivation, processing, manufacturing, storage, sale, distribution, transportation or consumption of cannabis other than those forms of businesses and commerce that are expressly contemplated by this Chapter.

(E) It shall be unlawful for any medical cannabis dispensary to sell medical cannabis without complying with State requirements concerning use of an electronic verification system, including authenticating the validity of registry identification cards.

(F) It shall be unlawful for any person to operate any cannabis establishment in the City in any of the following circumstances:

(1) Without a license duly issued by the State regulating authority;

(2) Without a license issued pursuant to this Chapter; or

(3) In violation of applicable state laws or this Code.

(G) It shall be unlawful for any person to provide cannabis, edible cannabis products or cannabis-infused products to a cannabis establishment within the City without a license duly issued by the State regulating authority and a license issued by the City.

(H) It shall be unlawful for any licensed cannabis establishment located within the City to accept for sale any cannabis, edible cannabis products or any cannabis-infused products from any person who has not obtained a license for that activity from the State regulating authority, or who is not duly licensed under this Chapter for the provision of such products.

(I) For purposes of this Section and this Chapter, and as specified in LVMC 6.95.020, the terms "medical cannabis establishment" and "adult-use cannabis establishment" refer to establishments as they are separately so designated, authorized and regulated by State law. Therefore, neither term includes the other. However, even though the terms cover mutually exclusive categories, a particular person or establishment may qualify for certification or licensing under both categories and thus be governed by and subject to regulations governing each category as applicable.
(Ord. No. 6750, § 4, 9-16-20; Ord. No. 6620, § 3, 5-16-18; Ord. No. 6579, § 2, 5-17-17; Ord. No. 6520, § 1, 4-6-16; Ord. No. 6324, § 1, 6-4-14)

6.95.040, 6.95.050 Reserved.

Editor's note—Ord. No. 6750, § 5, adopted September 16, 2020, repealed §§ 6.95.040 and 6.95.050, which pertained to compliance permit required and permit application respectively and derived from Ord. No. 6324, adopted June 14, 2014; Ord. No. 6520, adopted April 6, 2016; Ord. No. 6579, adopted May 17, 2017 and Ord. No. 6620, adopted May 16, 2018.

6.95.060 License applications and contents.

A separate application must be submitted for each license for a medical cannabis establishment and adult-use cannabis establishment. Each application is subject to the requirements of LVMC Chapter 6.06 and, in addition, must include or be accompanied by:

(A) An application for approval of suitability per LVMC 6.06.070 for each principal of the proposed establishment.

(B) If a special use permit is required for the use, evidence that:

(1) The special use permit has been approved; or

(2) A complete application therefor, together with all required accompanying documentation, has been submitted and accepted, and all applicable fees chargeable under Title 19 have been paid.

(C) All documents detailing the proposed organizational structure of the business operation, and all financial documentation required by the Department, including without limitation tax returns and supporting documentation.

(D) All documentation required by the Department concerning the adequacy of the proposed building and construction plans with supporting details in the form specified by the Building Official, and the payment of all required review and inspection fees.

(E) An environmental plan that details how the establishment will meet the requirements of LVMC 6.95.190 and any other standards or requirements that have been established by the City for the type of establishment proposed.

(F) A security plan, including a depiction of the location and configuration of security cameras, indicating how the applicant intends to comply with the requirements related to monitoring and securing the licensed premises as required by this Chapter. The plan should indicate methods of preventing the entry of minors into the establishment, unless such entry is expressly permitted.

(1) An applicant for a medical cannabis dispensary or adult-use cannabis retail store that will offer a curbside pick-up or drive thru must submit proof of compliance with Title 19, and a detailed security plan including a site plan must be submitted for review and approval.

(G) An accounting plan that complies with the accounting and auditing procedures that have been established by the Department in order to track and record all sales for audit purposes, including how the establishment will store and safeguard those records.

(H) A copy of all existing and proposed contracts for consulting, management, or leasing of the premises for the proposed establishment, including written documentation stating that the property owner of the proposed location for the establishment is fully aware of the property's intended use or a copy of the deed to such property showing ownership vested in the applicant.

(I) If the application is for a retail cannabis consumption lounge or independent consumption lounge a fire safety plan is required. Such a plan must be designed to ensure the safety of employees, patrons, and the public as it relates to the consumption lounge and its operation if the allowance of combustible materials exists at the establishment.

(J) A written statement acknowledging that the applicant understands applicable Federal laws, any guidance or directives issued by the U.S. Department of Justice, the laws of the State of Nevada and the ordinances and regulations of the City applicable thereto concerning the operation of an establishment. The written statement shall also acknowledge that any violation of any laws or regulations of the State of Nevada or of the ordinances and regulations of the City, or any activity in violation of any guidance or directives issued by the U.S. Department of Justice in such place of business, or in connection therewith, or the commencement of any legal proceeding relating to such establishment by Federal authorities, may subject a license to immediate suspension or revocation.

(K) A written statement to the Director that the applicant will hold harmless, indemnify, and defend the City against all claims and litigation arising from the issuance of a license, including any claims and litigation arising from the establishment, operation, or ownership of the establishment.

(L) An acknowledgement that the applicant is seeking a privilege under LVMC Chapter 6.06 and understands that each principal must be found suitable to hold such license by the City Council prior to the issuance of any license; that the applicant understands and acknowledges that the burden of proving qualifications to receive such a license is at all times on the applicant; that the granting of a license is at the discretion of the City Council; and that the applicant agrees to abide by the decision.

(Ord. No. 6831, § 2, 3-1-23; Ord. No. 6750, § 6, 9-16-20)

Editor's note—Ord. No. 6750, § 5, adopted September 16, 2020, repealed the former § 6.95.060, and § 6 of Ord. No. 6750 enacted a new § 6.95.060 as set out herein. The former § 6.95.060 pertained to similar subject matter and derived from Ord. No. 6324, adopted June 4, 2014; Ord. No. 6579, adopted May 17, 2017 and Ord. No. 6620, adopted May 16, 2018.

6.95.070 Review of license applications.

(A) Each business license application shall be reviewed for completeness. An application shall be deemed complete if it contains or is accompanied by the following:

(1) Each document required in LVMC 6.95.060;

(2) Proof of compliance with all applicable submittal requirements of NRS Chapters 678A to 678D, inclusive, and any other regulation or requirement of the State regulating authority;

(3) Proof that the proposed location for the medical cannabis establishment or adult-use cannabis establishment is consistent with the requirements of LVMC Title 19;

(4) Proof that all fees have been paid;

(5) Proof that all waivers, acknowledgements, and statements are properly signed and acknowledged by or on behalf of the applicant; and

(6) Proof that each principal who is required to file an application pursuant to LVMC Chapter 6.06 and to comply with the suitability requirements of that chapter has done so.

(B) The Department is authorized to reject and return to the applicant any application that is incomplete or otherwise fails to meet the applicable requirements of this Title, NRS Chapters 678A to 678D, inclusive, or the regulations of the State regulating authority.

(C) The Director is authorized to conduct or authorize a pre-operational inspection of any facility for which licensing is sought under this Chapter, as to both appropriateness for licensing and compliance with applicable technical codes. The applicant for or licensee of such a facility is responsible for the payment of the costs of all inspections. The Director may also require a pre-operational inspection of a facility by the Department of Fire and Rescue, which is authorized to charge the applicant or licensee the cost of those inspections.
(Ord. No. 6831, § 3, 3-1-23; Ord. No. 6816, § 28, 8-17-22; Ord. No. 6750, § 7, 9-16-20)

Editor's note—Ord. No. 6750, § 5, adopted September 16, 2020, repealed the former § 6.95.070, and § 7 of Ord. No. 6750 enacted a new § 6.95.070 as set out herein. The former § 6.95.070 pertained to similar subject matter and derived from Ord. No. 6324, adopted June 4, 2014; Ord. No. 6579, adopted May 17, 2017 and Ord. No. 6620, adopted May 16, 2018.

6.95.080 Reserved.

Editor's note—Ord. No. 6750, § 5, adopted September 16, 2020, repealed § 6.95.080, which pertained to council action on permits and derived from Ord. No. 6324, adopted June 14, 2014 and Ord. No. 6620, adopted May 16, 2018.

6.95.090 Cannabis-related establishments—Licenses.

(A) Following action by the State regulating authority issuing a license for a cannabis establishment, the City Council shall evaluate whether to grant any proposed cannabis establishment a business license to operate a cannabis establishment.

(B) The City Council may issue licenses for the following types of cannabis establishments:

(1) Medical Cannabis Dispensary. A medical cannabis dispensary license allows the licensee to acquire, possess, supply and sell or dispense usable cannabis, edible cannabis products, cannabis-infused products, and paraphernalia exclusively to State regulating authority-designated medical cannabis registry identification card holders or to another medical cannabis dispensary.

(2) Medical Cannabis Cultivation Facility. A medical cannabis cultivation facility license allows the licensee to acquire, possess, cultivate, package, label, deliver, transfer, transport, supply and sell cannabis and related supplies to a medical cannabis dispensary, medical cannabis production facility, or to other medical cannabis cultivation facilities only.

(3) Medical Cannabis Independent Testing Laboratory. A medical cannabis independent testing laboratory license allows the licensee to independently test cannabis, edible cannabis products and cannabis-infused products that are to be sold at medical cannabis establishments operating in accordance with the requirements of NRS Chapters 678A to 678C, inclusive.

(4) Medical Cannabis Production Facility. A medical cannabis production facility license allows the licensee to acquire, process, manufacture, deliver, transfer, transport, package, and label usable cannabis and cannabis-infused products for sale at wholesale to medical cannabis dispensaries only.

(5) Adult-Use Cannabis Cultivation Facility. An adult-use cannabis production facility license allows the licensee to cultivate, process, and package cannabis, to have cannabis tested by an adult-use cannabis independent testing laboratory, and to sell cannabis to adult-use cannabis retail stores, to adult-use cannabis production facilities, and to other adult-use cannabis cultivation facilities, but not to consumers.

(6) Adult-Use Cannabis Distributor. An adult-use cannabis distributor license allows a licensee to transport cannabis or adult-use cannabis products from an adult-use cannabis establishment to another adult-use cannabis establishment.

(7) Adult-Use Cannabis Production Facility. An adult-use cannabis production facility license allows the licensee to acquire, possess, manufacture, deliver, transfer, supply or sell adult-use cannabis products to adult-use cannabis retail stores, but not to consumers.

(8) Adult-Use Cannabis Independent Testing Laboratory. An adult-use cannabis independent testing laboratory allows the licensee to test cannabis intended for the adult use of cannabis, as well as adult-use cannabis products.

(9) Adult-Use Cannabis Retail Store. An adult-use cannabis retail store authorizes the licensee to acquire, possess, deliver, transfer, supply, sell or dispense cannabis or related supplies to a consumer or to another adult-use cannabis retail store or cannabis consumption lounge.

(10) Retail Cannabis Consumption Lounge. A retail cannabis consumption lounge, sometimes also known as a retail dispensary lounge, attached or adjacent to an existing adult-use cannabis retail store, authorizes the licensee to sell to a consumer ready to consume cannabis products or single-use cannabis products by providing a consumption area for patrons who are twenty-one years of age or older.

(11) Independent Cannabis Consumption Lounge. An independent cannabis consumption lounge, authorizes the licensee to sell to a consumer ready to consume cannabis products or single-use cannabis products by providing a consumption area for patrons who are twenty-one years of age or older.

(C) An applicant for a license under this Section may not exercise any of the privileges of such a license until the final pre-operational inspections have been conducted and all applicable inspection and license fees are paid.

(D) A licensee shall provide and maintain at all times and at its own expense a certificate of insurance at amounts and terms approved by the Director prior to issuance or renewal of a license. Any failure to maintain insurance or provide proof of insurance is grounds for the Director to suspend the license.

(1) As determined appropriate by the Director, the minimum coverage amounts which may be required shall be as follows:

(a) Cannabis Cultivation Facility or Cannabis Production Facility: Liability coverage for products and completed operations (one million dollars per occurrence, two million dollars aggregate); commercial automobile coverage (one million dollars per occurrence); and excess liability coverage (one million dollars).

(b) Cannabis Sales Facility, Retail Cannabis Consumption Lounge, and Independent Cannabis Consumption Lounge: General liability (one million dollars per occurrence, with two million dollars aggregate, for bodily injury and property damage arising out of licensed activities); liability coverage for products and completed operations (one million dollars per occurrence, with two million dollars aggregate) and excess liability coverage (one million dollars).

(c) Cannabis Independent Testing Laboratory: Professional liability coverage (one million dollars per occurrence), and excess liability coverage (one million dollars).

(d) Adult-Use Cannabis Distributor: No minimum coverage required by ordinance, with required coverage, if any, to be determined by the Director.

(2) All required general liability and excess liability policies shall name the City and its elected officials, officers, agents, employees and volunteers as additional insureds. All policies shall be primary over any other valid and collectible insurance.

(Ord. No. 6831, § 4, 3-1-23; Ord. No. 6750, § 8, 9-16-20; Ord. No. 6620, § 9, 5-16-18; Ord. No. 6579, § 6, 5-17-17; Ord. No. 6520, § 4, 4-6-16; Ord. No. 6324, § 1, 6-4-14)

6.95.095 Cannabis-related support businesses.

(A) A business that qualifies as a medical cannabis support business, an adult-use cannabis support business or an adult-use cannabis distributor transportation contractor is subject to applicable registration, registration card, and licensing requirements of the State regulating authority. In addition, each such business is subject to the licensing requirements of this Section, as well as the regulatory and fee requirements of this Chapter, independent of any other applicable provisions of this Title. Except as otherwise provided in Subsection (B), the license is not subject to the provisions of LVMC Chapter 6.06 pertaining to licensing and suitability approvals.

(B) Except with respect to businesses regulated under NRS Titles 54, 55 and 57, the Director shall have the discretion to decide that a business described in Subsection (A) that is proposing to provide certain types of goods or services must follow particular provisions of

LVMC Chapter 6.06 pertaining to licensing and suitability approvals. In any such case, however, the Director is the approving authority for the issuance of licenses issued under this Section and related suitability determinations.

(C) In order to qualify for licensing as an adult-use cannabis distributor transportation contractor, an applicant or licensee must obtain and maintain, as and if applicable:

(1) A valid and current registration as a cannabis establishment agent, as evidenced by a cannabis establishment agent registration card issued by the State regulating authority; and

(2) Any and all other registration or licensing requirements for that activity as imposed by the State regulating authority.

(Ord. No. 6750, § 9, 9-16-20; Ord. No. 6620, § 10, 5-16-18; Ord. No. 6579, § 7, 5-17-17)

6.95.097 Adult-use cannabis distributors.

(A) Any person who qualifies and desires to provide services as an adult-use cannabis distributor within the City must first apply for and obtain a license to do so. Except as otherwise provided in this Section, an applicant for an adult-use cannabis distributor license and an adult-use cannabis distributor licensee are subject to the same procedures for licensing and the same requirements and limitations that apply to other cannabis establishments under this Chapter.

(B) With respect to an adult-use cannabis distributor license, the Director may:

(1) Waive any requirement of this Chapter that otherwise might pertain to an adult-use cannabis distributor by reason of its classification as a cannabis establishment; or

(2) Otherwise determine that particular requirements of this Chapter do not apply to an adult-use cannabis distributor, where the Director determines that such a requirement does not pertain to the operations of an adult-use cannabis distributor or that to apply such a requirement is not necessary or appropriate for the purposes of this Chapter.

(Ord. No. 6831, § 5, 3-1-23; Ord. No. 6750, § 10, 9-16-20; Ord. No. 6620, § 11, 5-16-18)

6.95.100 Facilities not located within the City of Las Vegas.

(A) A cannabis sales facility, cannabis cultivation facility, cannabis independent testing laboratory, or cannabis production facility which has obtained a business license in a jurisdiction within Nevada other than the City shall apply to the Director for a license in order to provide its corresponding products or services within the City. All applications for such licenses will be processed pursuant to LVMC Chapter 6.06. An application under this Subsection (A) may be denied if the applicant's business license in another Nevada jurisdiction is not currently valid or is subject to a disciplinary proceeding. License fees for such establishments shall be as set forth in LVMC 6.95.230(D).

(B) A medical cannabis support business, adult-use cannabis support business, or adult-use cannabis distributor which has obtained a business license in a jurisdiction within Nevada other than the City shall apply to the Director for a license in order to provide its corresponding products or services to cannabis establishments within the City. All applications for such licenses will be processed pursuant to LVMC 6.95.095 or LVMC 6.95.097, as applicable. The Director may combine a license to provide services as a medical cannabis support business with a license to provide services as an adult-use cannabis support business so that only one license is needed to authorize services to either medical cannabis establishments or adult-use cannabis establishments. The Director may deny an application under this Subsection (B) if the applicant's business license in another Nevada jurisdiction is not currently valid or is subject to a disciplinary proceeding. License fees for such establishments shall be as set forth in LVMC 6.95.230(D).
(Ord. No. 6831, § 6, 3-1-23; Ord. No. 6750, § 11, 9-16-20; Ord. No. 6620, § 12, 5-16-18; Ord. No. 6579, § 8, 5-17-17; Ord. No. 6520, § 5, 4-6-16; Ord. No. 6324, § 1, 6-4-14)

6.95.110 Establishments—General requirements and restrictions.

(A) Each cannabis establishment licensee shall operate only in compliance with all State regulations, all City regulations, all operational plans regarding the business that are on file with the City, and any restrictions imposed in connection with issuance of the license. Except as otherwise provided in LVMC 6.95.120(A) regarding security plans, the licensee shall be responsible for filing with the City, at least semiannually, any changes in operational plans that have been implemented or are proposed to be implemented.

(B) At least one qualified person shall be on the premises of a medical cannabis dispensary, adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge at all times during the hours of operation or available for immediate contact during hours of operation. Contact information of the qualified person shall be kept on the premises and immediately accessible to the Department and Metro. For purposes of this Subsection, a "qualified person" means a principal who has been approved for suitability pursuant to LVMC 6.06.060 or a key employee who has been approved for suitability pursuant to that Section.

(C) A medical cannabis establishment or adult-use cannabis establishment may not allow the use, smoking, ingestion or consumption of any cannabis, edible cannabis, or cannabis-infused product on the licensed premises, unless that location has been approved for a retail cannabis consumption lounge.

(D) Any person or premises licensed as a medical cannabis establishment, adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge shall comply with all City ordinances regulating signs and advertising. All signs and advertisements must comply with all requirements of the State regulating authority.

(E) Signs and other advertising shall comply with applicable provisions of LVMC Title 19. In addition to and independent of those provisions, no sign or other advertising may:

(1) Make cannabis or cannabis products appeal to children;

(2) Utilize any of the following media:

(a) A sign mounted on any vehicle other than a taxicab;

(b) Any hand-held, human signage or other portable sign; or

(c) Any handbill, leaflet or flier directly handed to any person, deposited, fastened, thrown, scattered, cast, or placed in a public place, left upon a motor vehicle, or any handbill, leaflet or flier posted upon any public or private property without the consent of the property owner;

(3) Include signage that is located on or in a publicly owned or operated property.

(F) The presence of minors on the premises of a medical cannabis establishment is prohibited unless the minor is a qualified patient on the premises of a dispensary and is accompanied by his or her parent or legal guardian. The presence of minors on the premises of an adult-use cannabis establishment is prohibited under all circumstances. No licensee shall cause, permit or allow, either by act or by failure to act, the violation of this Subsection.

(G) Transportation of cannabis by a cannabis establishment shall be subject to the requirements of the State regulating authority.

(H) A licensee must notify the Director in writing of any closure of an establishment licensed under this Chapter, whether the closure is temporary or permanent. Such notification must include the reasons for closing the establishment and indicate how cannabis and cannabis products will be disposed of or secured. The notification must be provided:

(1) Within twenty-four hours after the closure for any closure that is:

(a) Required in an emergency;

(b) The result of the expiration of a license issued by the State or another government agency; or

(c) The result of regulatory action taken by the State or another governmental agency, such as the suspension or revocation of a license, permit or other approval; or

(2) At least fifteen days prior to closure, otherwise.

(I) Each licensee must meet the accounting and auditing procedures established by the Department to track and record all sales for audit purposes. The Department must have access to such records as provided for under LVMC 6.02.020.

(J) Whenever an audit of a licensee's business operations is conducted by the State regulatory authority or by an independent auditor for purposes of demonstrating compliance with State or local laws or regulations, the licensee must submit the audit report to the City within ninety days of the completion of the audit. All reports or evaluations submitted hereunder shall be confidential and shall not be available for public inspection, except as may be required under State or Federal law.

(K) In compliance with all State and Federal privacy laws, a licensee shall allow the Director or a designee unrestricted access to all financial documents, books, records, facilities, and all audio and video surveillance pertaining to the facilities. Any information obtained pursuant to Subsections (I), (J) or (K) of this Section, or any statement filed by the licensee, shall be deemed confidential in character and shall not be subject to public inspection or as determined by State and Federal privacy laws.
(Ord. No. 6831, § 7, 3-1-23; Ord. No. 6750, § 12, 9-16-20; Ord. No. 6620, § 13, 5-16-18; Ord. No. 6579, § 9, 5-17-17; Ord. No. 6520, § 6, 4-6-16; Ord. No. 6324, § 1, 6-4-14)

6.95.120 Security requirements.

Each medical cannabis establishment and adult-use cannabis establishment must submit, maintain and follow a security plan approved by the Director. Any proposed modification to an approved security plan must be submitted to the Director for approval, where possible, at least fifteen days in advance of when it is proposed to be implemented. In any case, no such modification may be implemented prior to approval by the Director. Any security plan for any such establishment must meet all the criteria established by the State regulating authority and the following minimum requirements:

(A) Each licensed premises must have a security system which monitors all perimeter entry points, windows, and controlled areas by a centrally monitored alarm company properly licensed with the City, and whose agents are properly licensed and registered under applicable laws.

(B) A twenty-four-hour surveillance system is required to monitor the interior and exterior of a medical cannabis establishment or adult-use cannabis establishment, a live feed of which must be accessible to authorized law enforcement at all times, and in real-time.

(1) All recorded images must clearly and accurately display the time and date. Time is to be measured in accordance with U.S. National Institute of Standards and Technology standards.

(2) The surveillance system's data storage device must be secured on-site in a lock box, cabinet, closet, or secured in another manner to protect from employee or third-party tampering or criminal theft.

(3) A sign must be posted in any customer areas that the customer is under video surveillance.

(C) The establishment shall be responsible for ensuring compliance with all local and State regulations regarding the facility and must monitor parking areas and outdoor areas of the licensed premises for loitering, unlawful sales and unlawful consumption.

(D) Any theft of items containing cannabis or the observance of any unauthorized transactions involving cannabis on the licensed premises or within any area subject to the control of the licensee must be reported to Metro and the Department in written communication within twenty-four hours of occurrence.

(E) A sign shall be posted at the entrance to the location containing the name and functioning telephone number of a twenty-four-hour on-call member engaged in the management of an establishment who shall receive, log, and respond to complaints and other inquiries.

(F) An adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge shall have at least one sign clearly posted at the entrance indicating that persons under the age of twenty-one years are not permitted entry. Such signs are subject to prior approval by the Director as part of the license approval process.

(G) No principal or employee of an adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge shall permit a person under the age of twenty-one years to enter or remain within the store or premises.

(H) In addition to complying with all requirements set by the State regulating authority, any licensed cannabis cultivation facility shall secure the cultivation facility with full video surveillance capable of clearly identifying any activities occurring within twenty feet of the exterior of the building and any parking, fenced, or loading areas. A motion detection lighting system may be employed to illuminate any area in which there are low light conditions.

(I) In addition to complying with all requirements set by the State regulating authority, any licensed medical cannabis production facility or adult-use cannabis production facility shall ensure that all production, transport, delivery, shipping, labeling and packaging areas have fixed camera coverage capable of identifying activity occurring within a minimum of twenty feet.

(J) In addition to complying with all requirements set by the State regulating authority, any licensed medical cannabis dispensary or adult-use cannabis retail store shall contain the following areas consistent with the following specific criteria:

(1) A waiting area containing only one entrance for the public, which is visible immediately from one fixed staffed station. The entire waiting area must also be monitored by surveillance cameras.

(K) Within a licensed medical cannabis dispensary or adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge all cannabis, edible cannabis products, or cannabis-infused products, during non-business hours, must be stored in a separated and secured area.

(1) The area must meet the Building Official's standards for odor control.

(2) The area must be under surveillance by the camera system at all times.

(L) Within a licensed medical cannabis dispensary or adult-use cannabis retail store, retail cannabis consumption lounge, or independent cannabis consumption lounge

any customer allowed to enter any room where cannabis, edible cannabis products, or cannabis-infused products are viewed for purchase is required to be within view of and in an area monitored by an employee of the establishment.

(Ord. No. 6831, § 8, 3-1-23; Ord. No. 6750, § 13, 9-16-20; Ord. No. 6620, § 14, 5-16-18; Ord. No. 6579, § 11, 5-17-17; Ord. No. 6324, § 1, 6-4-14)

6.95.130 Cultivation-related facilities.

(A) A cannabis cultivation facility must meet all odor control regulations established by the Building Official and by the applicable provisions of LVMC Chapter 9.40. Within twenty-four hours of any complaints concerning odors, a cannabis cultivation facility shall respond to the complaints and file with the Director and the Building Official all action taken to address odor complaints. The Director or Building Official, upon determination of the existence of detectable odor from any such facility, may require additional measures by the facility to control such odor and a timeframe for the implementation of such measures at the facility. Failure to complete required improvements within the timeframe specified by the Director or Building Official is grounds for suspension of the license by the Director.

(B) Any medical cannabis that is transported to a medical cannabis production facility must meet all State regulating authority standards.

(C) Applicants must designate on their license application the size of the area proposed to be under cultivation on the premises. The cultivation area will be limited to the square footage granted on the license. Other floor space of the facility may be used for walkways, ventilation, storage or any other purposes required by the State regulating authority or the licensee for operations of the business. Allocated square footage of cultivation area may be requested to be increased upon petition to the Director prior to the renewal of the license.

(D) The Council may reduce the square footage of any proposed facility if the Council determines the size of the proposed facility is not in the interest of the surrounding community.

(E) Prior to accepting any plant materials into a cannabis cultivation facility for the first time, the facility shall notify the Department to conduct a pre-operational inspection and shall pay all related inspection fees.

(Ord. No. 6750, § 14, 9-16-20; Ord. No. 6620, § 15, 5-16-18; Ord. No. 6579, § 11, 5-17-17; Ord. No. 6324, § 1, 6-4-14)

6.95.140 Testing-related facilities.

In addition to any other requirement set forth in this Chapter, each cannabis independent testing laboratory must:

(A) Obtain and maintain a license from the State regulating authority; and

(B) Upon request, provide to the City a copy of such license.

(Ord. No. 6750, § 15, 9-16-20; Ord. No. 6620, § 16, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.150 Production/manufacturing facilities.

All cannabis production facilities must ensure that products to be sold at City-licensed cannabis sales facilities meet the following:

(A) No cannabis-infused products may contain alcoholic beverages as defined and regulated by LVMC Chapter 6.50.

(B) Products, as well as their packaging and labeling, must comply with the requirements of NRS Chapters 678A to 678D, inclusive, as well as regulations promulgated thereunder.

(Ord. No. 6750, § 16, 9-16-20; Ord. No. 6620, § 17, 5-16-18; Ord. No. 6579, § 12, 5-17-17; Ord. No. 6324, § 1, 6-4-14)

6.95.160 Cannabis sales facilities/lounges—Requirements and limitations.

Except as otherwise specified, each licensed cannabis sales facility, retail cannabis consumption lounge, or independent cannabis consumption lounge shall comply with the following requirements:

(A) Prices for all products shall be prominently posted in a location and manner readily visible or available to prospective and actual clients.

(B) All edible cannabis products, ready to consume, single use, and cannabis-infused products offered for sale at licensed cannabis sales facilities, retail cannabis consumption lounges, or independent cannabis consumption lounges shall comply with the applicable packaging and labeling requirements established by NRS Chapters 678A to 678D, inclusive, as well as regulations promulgated thereunder.

(C) Any cannabis sales facility, retail cannabis consumption lounge, or independent cannabis consumption lounge that sells edible cannabis products, ready to consume, single-use, or cannabis-infused products must display a placard that states the following:

(1) Edible Cannabis and Cannabis-Infused Products. There may be health risks associated with consumption of edible cannabis products or cannabis-infused products.

(2) Edible products and cannabis-infused products contain cannabis or active compounds of cannabis.

(3) Should not be used by women who are pregnant or breast feeding.

(4) When eaten or swallowed, the intoxicating effects of this product can be delayed two or more hours.

(5) Follow all recommended dosage and serving guidelines and recommendations.

(6) "KEEP OUT OF REACH OF CHILDREN."

→The placard shall be no smaller than eight inches tall by twelve inches wide, with font size letters no smaller than forty-eight points. The placard shall be clearly

visible and readable by customers and shall be written in English. Within an independent cannabis consumption lounge or a retail cannabis consumption lounge, the placard need not include the warning described in Paragraph (6) just above.

(D) A cannabis sales facility is allowed to participate in ancillary business activity within the dispensary or store if the ancillary business activity is:

(1) The sale of paraphernalia.

(2) The ancillary sale of related retail merchandise, which may be approved by the Department without the need for City Council approval.

(3) Other ancillary activities as approved by the City Council and subject to any conditions the Council may impose.

(E) The display of any product in any manner visible to the general public from the right-of-way or outside of the facility is prohibited.

(F) Off-site transportation, sale or delivery of cannabis, cannabis products or cannabis-infused products by a cannabis sales facility is permitted in accordance with applicable regulations of the State regulating authority.

(G) Within any cannabis dispensary, no advertising, materials or postings within the waiting areas may advertise locations, devices or activities promoting the consumption of cannabis or other facilities selling or purporting to provide locations for the private or public consumption of cannabis, except insofar as such advertising pertains to properly-licensed locations.

(H) Any criminal activity or calls for service to the location requires the business to report in writing to the Department within twenty-four hours of the event.

(I) The consumption of cannabis or cannabis products, including at consumption lounges, within the view of the general public from outside the establishment is prohibited.

(J) The smoking or vaping of any cannabis or cannabis product within any outdoor area is prohibited, as well as the consumption of edible cannabis products. However, this prohibition may be waived as follows for an independent cannabis consumption lounge or retail cannabis consumption lounge:

(1) By the City Council as to proposed smoking or vaping, if the licensee or applicant submits the following items to the Department:

(a) A site plan indicating where outdoor consumption will occur and demonstrating that such consumption will take place out of public view; and

(b) An odor mitigation plan related to the outdoor consumption, which must be acceptable to the Director. The Director may establish a policy to describe the scope of the odor mitigation plan, as described in LVMC 9.04.040(B);

(2) By the Director, as to proposed consumption of edible cannabis products only, if the licensee or applicant submits a site plan indicating where outdoor consumption will occur and demonstrating that such consumption will take place out of public view.

In any case listed above, a waiver may be granted if the submittal requirements are met and the City Council or Director, as applicable, determines a waiver is appropriate.

(Ord. No. 6831, § 9, 3-1-23; Ord. No. 6750, § 17, 9-16-20; Ord. No. 6654, § 1, 11-21-18; Ord. No. 6620, § 18, 5-16-18; Ord. No. 6579, § 13, 5-17-17; Ord. No. 6520, § 7, 4-6-16; Ord. No. 6324, § 1, 6-4-14)

6.95.165 Cannabis-related establishments—Prohibited behavior.

It is unlawful for an employee or principal of a licensee to be intoxicated or under the influence of alcohol, cannabis or cannabis products while working on the premises during business hours.

(Ord. No. 6831, § 10, 3-1-23)

6.95.170 Cannabis consumption lounges—Training requirements.

In connection with a license application, each applicant for an independent cannabis consumption lounge license or retail cannabis consumption lounge license must provide to the Department the proposed training plan for employees, which must comply with training requirements set forth in NCCR Regulations 6.072 and 15.045. The Department is authorized to submit the proposed training plan to Metro for a recommendation to the City regarding the training plan's compliance.

(Ord. No. 6831, § 10.5, 3-1-23)

6.95.180 Closure or bankruptcy of a cannabis-related establishment.

(A) Prior to the issuance of a license, each applicant must file with the Director a plan for the disposal, maintenance or transfer of all plant material, products and usable cannabis for implementation due to any of the following conditions:

(1) Closure of the cannabis establishment for any reason, including without limitation because of a suspension, revocation or nonrenewal of the registration or license issued by the State regulating authority, or of a license granted pursuant to this Chapter.

(2) The appointment of an administrator, receiver, trustee, or assignee in the event of the receivership, bankruptcy, or assignment for benefit of creditors of any licensee.

(B) The plan must include the following elements:

(1) The Director must be notified within ten days of such appointment to act pursuant to Paragraph (2) of Subsection (A) above.

(2) That the business must cease all sales of cannabis and cannabis products including wholesale, edible cannabis or cannabis-infused products until such time as a new certificate or license has been issued by the State regulating authority and a license has been granted by the City.

(3) An inspection prior to the transfer of any materials to be disposed of or transferred to another licensed cannabis establishment.

(4) The plan must be executable within ten days and approved by the Director.

(C) When all issues regarding a closure or appointment described in Subsection (A) have been resolved, the true party(ies) of interest may apply for a license once certified or licensed by the State regulating authority.
(Ord. No. 6620, § 20, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.190 Disposal of cannabis.

(A) Cannabis and any related waste, including wastewater, must be stored, secured and managed in accordance with applicable state statutes and regulations and LVMC Title 14. Within thirty calendar days of the expiration of use of cannabis, a cannabis establishment must dispose of the cannabis, return it to a cannabis cultivation facility or cannabis sales facility (if purchased from there) for disposal, or return it to a cannabis production facility for disposal. Cannabis waste must be made unusable in accordance with NCCR 10.080 prior to disposal. Unconsumed cannabis or cannabis products at a consumption lounge must be disposed of according to state regulation.

(B) Wastes that must be rendered unusable prior to disposal include, but are not limited to:

(1) Cannabis plant waste, including roots, stalks, leaves, and stems that have not been processed with solvent.

(2) Solid cannabis sample plant waste possessed by third-party laboratories certified by the State regulating authority for quality assurance that must be disposed of.

(C) The allowable method to render cannabis plant waste unusable is by grinding and incorporating the cannabis plant waste with non-consumable solid waste or other ground materials so the resulting mixture is at least fifty percent non-cannabis waste by volume. Other methods to render cannabis waste unusable must be approved by the State regulating authority and the Director before implementing.

(D) Cannabis waste rendered unusable following an approved method in the facility disposal plan may be delivered to a franchised or licensed solid waste facility for final disposition.

(E) Proper disposal of cannabis, including cannabis plant material, does not include allowing its entry into the City wastewater collection system, storm drain system or any unsecure rubbish disposal system.

(F) A cannabis establishment shall not transfer, share, give, sell or deliver any unused cannabis in the establishment's possession to any other person unless the person is licensed as a cannabis establishment, or an establishment approved in the state approved disposal plan.

(G) A cannabis establishment shall not dispose of cannabis in any manner other than as permitted under this Chapter.
(Ord. No. 6831, § 11, 3-1-23; Ord. No. 6750, § 19, 9-16-20; Ord. No. 6620, § 21, 5-16-18; Ord. No. 6579, § 15, 5-17-17; Ord. No. 6324, § 1, 6-4-14)

6.95.195 Sale of paraphernalia.

Nothing in this Chapter authorizes the sale of paraphernalia by anyone other than the holder of a medical cannabis dispensary license or an adult-use cannabis retail store license, retail cannabis consumption lounge, or independent cannabis consumption lounge. The sale of paraphernalia by holders of other business licenses, if such sales are allowed, shall be in accordance with the chapters of this Code that govern those other licenses.
(Ord. No. 6831, § 12, 3-1-23; Ord. No. 6750, § 20, 9-16-20; Ord. No. 6620, § 22, 5-16-18)

6.95.200 Work card and agent registration card requirements.

(A) Each employee, independent contractor, cannabis establishment agent or volunteer who works in a cannabis establishment shall obtain, prior to the commencement of work, keep in force during the term of employment, and have in his or her possession while working, a work card issued pursuant to LVMC Chapter 6.86. The same requirement applies to any person who transports cannabis or cannabis products on behalf of any of the persons listed in the preceding sentence. However, the work card requirements set forth in this Subsection (A) do not apply to anyone who qualifies as a principal of any entity described in this Subsection (A) and who has been approved for suitability pursuant to LVMC Chapter 6.06, or to security personnel who are licensed or registered under NRS 648.060. A complete and accurate list of all persons required to have a valid medical cannabis establishment agent registration card or a work card issued pursuant to LVMC Chapter 6.86, must be kept onsite and available for inspection at all times. The list must contain the current employment status, position, and title of each person listed.

(B) It shall be a condition of a license under this Chapter to inform the City of any change in the employment status of an employee or volunteer who serves as a key employee within ten days of the effective date of the change in employment status. A change of employment status includes termination, leave of absence, and promotion to a management position or key employee.
(Ord. No. 6750, § 21, 9-16-20; Ord. No. 6620, § 23, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.210 Confidential information.

The confidentiality of records regarding cannabis establishments shall be in accordance with Federal and State law. The duty to disclose any particular record as a public record shall be in accordance with State law.
(Ord. No. 6750, § 22, 9-16-20; Ord. No. 6620, § 24, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.220 Disciplinary actions, suspension and revocation of licenses.

(A) All licenses authorized and issued under the provisions of this Chapter may be subject to immediate suspension by the Director, if the Director finds that:

(1) A licensee has violated, or permitted, allowed or caused a violation of any provision of this Chapter, any regulation issued pursuant to this Chapter, any condition of approval imposed upon the issuance of the permit or license, or any State law or regulation relating to the operation;

(2) If a State license has been surrendered, suspended or revoked;

(3) Based on ascertainable facts, the operation substantially aggravates the crime problems in the City, makes law enforcement unduly difficult, or is detrimental to the public health, safety or welfare of the City;

(4) A licensee has made any fraudulent statements as to a material fact on an application form, as to any other information presented as part of the application process, or in connection with any other information required to be submitted to the Director pursuant to this Chapter;

(5) A licensee knowingly commits any act which would have constituted grounds for denial of an application for a license;

(6) A licensee has failed to file the required reports or to furnish such information as may be reasonably required by the Director under the authority vested in the Director by the terms of the provisions relating to the specific license;

(7) Any fact or condition exists which, if it had existed or been known to exist at the time of the application for such compliance permit or license, would have warranted the Director to recommend denial of the permit or license; or

(8) The licensee has failed to maintain the premises in compliance with the requirements of the Building Official or the fire chief or any environmental or health department.

(B) In addition to and independent of any other remedy available under this Title, the Director or Metro may suspend a license immediately for a period not to exceed ten days under any of the following circumstances:

(1) Alcoholic beverages have been sold or served or are found on the premises.

(2) Employees of the establishment are found in possession of illegal substances.

(3) Employees of the establishment have consumed cannabis or cannabis products while working.

(4) The establishment or employees on behalf of the establishment are engaged in criminal conduct warranting suspension.

(C) Any act or omission committed by any employee, agent, or independent contractor that occurs in the course of his or her employment, agency, or contract with the licensee shall be imputed to the licensee for the purposing of imposing any civil penalty, suspension, or revocation on the licensee.

(D) In lieu of any license suspension, the Director may proceed against the licensee by using the civil violation provisions of LVMC 6.02.400 to 6.02.460, inclusive.

(E) Whenever the suspension of a particular license would be justified under the provisions of this Chapter or another provision of this Title 6, the Director shall have the discretion to recommend to the City Council that the license be revoked or another penalty imposed.

(F) In the event of the suspension of any license, the Director shall provide written notice by certified mail addressed to the licensee and the building owner at the addresses of record. Notice shall also be sent to the State regulating authority.

(G) In the event of a license suspension, the failure of the licensee to immediately suspend all business operations that serve the public or other cannabis establishments shall be grounds for the Director to post the property as closed by order of the Director and shall be grounds for revocation of the license. Staff of a licensed cannabis cultivation facility is permitted to be onsite during the appeal process to maintain the needs of the plants.

(H) A licensee may appeal any action by the Director regarding suspension or nonrenewal to the City Council. Any suspension or nonrenewal shall be effective pending completion of any appeal. An appeal under this Subsection (G) must be filed with the Department within ten calendar days following receipt of a notice of suspension or notice of nonrenewal. The appeal will be heard by the City Council as soon as the open meeting law requirements of NRS Chapter 241 can be met.
(Ord. No. 6831, § 13, 3-1-23; Ord. No. 6750, § 23, 9-16-20; Ord. No. 6620, § 25, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.230 Fees/charges.

(A) Except as otherwise provided in this Section, each medical cannabis establishment and adult-use cannabis establishment shall pay a semi-annual license fee based on its gross revenue. The applicable license fee for the sale of cannabis and cannabis products, and the distribution thereof, is three percent of gross revenue. The applicable license fee for medical cannabis support businesses, adult-use cannabis support businesses, adult-use cannabis distributor transportation contractors, and for the sale of products other than cannabis and cannabis products shall be calculated pursuant to LVMC 6.04.005. The fee basis for adult-use cannabis distributors and adult-use cannabis distributor transportation contrac-

tors is the gross revenue derived from transportation rather than from product sales. The fee basis for adult-use cannabis independent testing laboratory, medical cannabis independent testing laboratory is the gross revenue derived from revenue associated to the testing of cannabis products and related services and shall be calculated pursuant to LVMC 6.04.005. Notwithstanding anything to the contrary in LVMC 6.02.010, the gross revenue of a cannabis cultivation facility shall be deemed to include the fair market value at wholesale of cannabis that the facility sells or transfers to another cannabis establishment that is a related entity as defined in Section 267 of the Internal Revenue Code. For purposes of this Subsection, "fair market value" shall be as established by the Nevada Department of Taxation pursuant to its adopted regulations.

(B) All gross revenue fees described in this Section shall be administered in accordance with applicable provisions of LVMC 6.02.160 to 6.02.260, inclusive.

(C) If semi-annual license fees described in the Section and any associated penalties are not received by the Department within sixty days after the due date, the license shall be automatically revoked.

(D) Each business listed below that is based outside the City shall pay to the Department a semi-annual license fee as set forth in the following schedule:

License Category	*Semi-Annual License Fee*
Cannabis Cultivation Facility	1% of gross revenue or $5,000.00, whichever is greater, but not to exceed 3% of gross revenue
Cannabis Production Facility	1% of gross revenue or $1,500.00, whichever is greater, but not to exceed 3% of gross revenue
Cannabis Independent Testing Laboratory	1% of gross revenue
Medical Cannabis Support Business, Adult-Use Cannabis Support Business, Adult-Use Cannabis Distributor or Adult-Use Cannabis Distributor Transportation Contractor	Pursuant to LVMC 6.04.005
Retail Sales Facility	1% of gross revenue or $5,000.00, whichever is greater, but not to exceed 3% of gross revenue

(E) In addition to the semi-annual license fees described in this Section, each of the following license categories of businesses located within the City shall pay a one-time origination charge as listed in the following schedule, which is due and payable at the time of filing an application for a license issued pursuant to this Chapter:

License Category	*Origination Charge*
Cannabis Cultivation Facility	$20,000.00 for the first 5,000 square feet of approved cultivation area and $10,000.00 for each additional 5,000 square feet, or portion thereof, of approved cultivation area

License Category	*Origination Charge*
Cannabis Production Facility	$5,000.00
Cannabis Independent Testing Laboratory	$10,000.00
Medical Cannabis Dispensary or Adult-Use Cannabis Retail Store	$75,000.00
Adult Use Cannabis Distributor	$10,000.00
Retail Cannabis Consumption Lounge or Independent Cannabis Consumption Lounge	$10,000.00
Independent Cannabis Consumption Lounge (social equity applicant)	$1,500.00

(Ord. No. 6831, § 14, 3-1-23; Ord. No. 6750, § 24, 9-16-20; Ord. No. 6620, § 27, 5-16-18)

Editor's note—Ord. No. 6620, § 26, adopted May 16, 2018, repealed the former § 6.95.230, and § 27 of Ord. No. 6620 enacted a new § 6.95.230 as set out herein. The former § 6.95.230 pertained to similar subject matter and derived from Ord. No. 6324, adopted June 14, 2014; Ord. No. 6520, adopted April 6, 2016 and Ord. No. 6579, adopted May 17, 2017.

6.95.240 Cultivation limit.

The City Council may enter into agreements with other local governments to restrict cultivation to a regional location or a regional limit based on square feet of building space that may be licensed for the cultivation of cannabis to supply licensed medical cannabis dispensaries or adult-use cannabis retail stores within the City.

(Ord. No. 6750, § 25, 9-16-20; Ord. No. 6620, § 28, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.250 Construction.

Except as otherwise specifically provided herein and as authorized by State law and regulations, nothing in this Chapter is intended to be inconsistent or in conflict with NRS Chapters 678A to 678D, inclusive, and State regulations promulgated thereunder. In the event of any conflict between the provisions of this Chapter and any mandatory provision of State or local law or regulations, the more restrictive provision shall control.

(Ord. No. 6750, § 26, 9-16-20; Ord. No. 6620, § 29, 5-16-18; Ord. No. 6324, § 1, 6-4-14)

6.95.260—6.95.300 Reserved.

Editor's note—Ord. No. 6831, § 15, adopted March 1, 2023, repealed §§ 6.95.260—6.95.300, which pertained to dual use cannabis business license—privileges; dual use cannabis business license—requirements; dual use cannabis business license—fees/charges; dual use cannabis business license—conformance to rules and dual use cannabis business license—requirements of suitability and derived from Ord. No. 6620, adopted May 16, 2018 and Ord. No. 6750, adopted September 16, 2020.

CHAPTER 6.96 SIDEWALK VENDORS*

6.96.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings which are ascribed to them, as follows:

"Conveyance" means, without limitation, a pushcart, stand, display, pedal driven cart, wagon, showcase or rack that is used by a sidewalk vendor for purposes of selling food or beverages.

"Food establishment" means a City-licensed establishment that operates in the capacity of a restaurant or has an alcoholic beverage license that includes the operation of a restaurant, in each case as the term "restaurant" is defined by LVMC 6.50.020.

"Health district" means the Southern Nevada Health District.

"Licensee" means the holder of a sidewalk vendor business license issued by the department.

"Public sidewalk or other pedestrian path" means that portion of a public right-of-way which has been improved for pedestrian traffic.

"Sidewalk vendor" means a person who, from a conveyance, sells food or beverages upon a public sidewalk or other pedestrian path. The term includes without limitation a nonstationary sidewalk vendor (one who moves from place to place with occasional stops for the purpose of vending) and a stationary sidewalk vendor (one who vends from a fixed location). The term does not include a person operating as a vendor, or a vending operation, located on property other than a public sidewalk or other pedestrian path.

"Vend" means to sell or offer to sell food or beverages from a conveyance.
(Ord. No. 6882, § 1, 10-16-2024)

6.96.020 License and compliance required.

Except as otherwise provided in this Chapter, it is unlawful for a person to:

(A) Operate as a sidewalk vendor within the City without a license issued pursuant to this Chapter; or

(B) Operate as a sidewalk vendor within the City in violation of this Chapter.
(Ord. No. 6882, § 1, 10-16-2024)

***Editor's note—**Ord. No. 6831, § 18, adopted March 1, 2023, repealed former Ch. 6.96 which pertained to marijuana social use venues and derived from Ord. No. 6684, adopted May 1, 2019.

6.96.030 Applicability; exceptions.

This Chapter does not apply to a person, business or vehicle to the extent that the person, business or vehicle is operating pursuant to and in compliance with the provisions of LVMC Chapter 6.47 relating to ice cream trucks or Chapter 6.55 relating to mobile food vendors. (Ord. No. 6882, § 1, 10-16-2024)

6.96.040 Application for license.

An application for a sidewalk vendor license must be made upon forms provided by the department. In addition to the information required under LVMC Chapter 6.02, the applicant shall provide the following:

(A) A health permit for each conveyance, documentation that the conveyance is eligible for such permit, and a health card for each operator or vendor, in each case as issued by the health district and to the extent required by the health district;

(B) A description of the selling methods to be used, a description of the type and size of the conveyance to be used, and a description of the items offered for sale;

(C) The name and current mailing address of the sidewalk vendor; and

(D) If the applicant is an agent of an individual, or is an officer, agent or employee of a business entity, the name and business address of the principal office of the individual or entity.

(Ord. No. 6882, § 1, 10-16-2024)

6.96.050 License fee.

(A) Each sidewalk vendor shall pay, in advance, an annual license fee of one hundred fifty dollars.

(B) A sidewalk vendor license is not transferable.

(Ord. No. 6882, § 1, 10-16-2024)

6.96.060 Health district regulations; display of permits and licenses; insurance requirements.

Each sidewalk vendor shall:

(A) Comply with all applicable health district regulations, including without limitation those regarding the disposal of waste and, as applicable, the collection and disposal of grease and waste cooking oil. To the extent not otherwise required by health district regulations that pertain to the operation of a sidewalk vendor, each sidewalk vendor must:

(1) Provide waste receptacles that are adequate for the collection of waste generated by the sidewalk vendor and the vendor's customers, and continuously remove such waste from locations within a ten-foot radius surrounding the location of the vendor's conveyance; and

(2) Clean and remove drips or spills before they enter any stormwater conveyance system, including curbs, gutters and storm drains.

(B) Prominently display on any conveyance used by the vendor for vending purposes:

(1) All health permits issued to the vendor by the health district; and

(2) The vendor's business license certificate issued by the department.

(C) Before commencing operations and, if required by the department as a prerequisite to licensing, file with the department a certificate of, and thereafter maintain, public liability and property damage insurance to protect the public against any and all claims for personal injury damages, including death, and property damages which may arise out of or in connection with any operations or activities of the sidewalk vendor. The amount of such insurance shall not be less than two hundred fifty thousand dollars for injuries, including death, to any one person, and subject to the same limit for each person in an amount of not less than five hundred thousand dollars for injuries, including death, to more than one person on account of any one occurrence, and property damage insurance in an amount not less than fifty thousand dollars for each occurrence. Such insurance must be issued by an insurer licensed to provide such coverage in Nevada, and the City shall be named as an additional insured party. Any insurance coverage provided under this Section shall also contain a provision that any cancellation or material change in the coverage shall not become effective until the City has been given thirty days prior written notification.

(Ord. No. 6882, § 1, 10-16-2024)

6.96.070 Location requirements.

(A) Except as otherwise provided in Subsection (B) of this Section, no sidewalk vendor shall:

(1) Have any exclusive right to any particular location upon a public sidewalk or pedestrian path;

(2) Vend at a location where the operation will impede pedestrian traffic or other normal use of the public sidewalk or pedestrian path, or hinder access or accessibility required by the Americans with Disabilities Act;

(3) Vend at a location that is adjacent to or within five hundred feet of a farmer's market during the market's operating hours;

(4) Vend at a location that is adjacent to or within five hundred feet of any area designated by the City Council for a temporary special event for the duration of the event.

(B) The provisions of Subsection (A) do not apply to the operation of a sidewalk vendor at a particular location if and to the extent the vendor is operating at that location pursuant to a contractual arrangement with the City or by means of an approved special event permit.

(C) While operating as a nonstationary sidewalk vendor, a sidewalk vendor may not remain in the same location for longer than thirty minutes at a time and may not vend within one hundred fifty feet of another sidewalk vendor (whether that other vendor is stationary or nonstationary). For purposes of the preceding sentence, the "same location" means a particular vending location and any location within a distance of one hundred fifty feet from that location. The prohibitions of this Subsection (C) do not apply to a sidewalk vendor to the extent the vendor is operating pursuant to a contractual arrangement with the City or pursuant to the provisions of a special event permit.
(Ord. No. 6882, § 1, 10-16-2024)

6.96.080 Proximity and operational requirements.

Except as otherwise provided in LVMC 6.96.090, it is unlawful for any sidewalk vendor to:

(A) Vend food or beverages within fifteen hundred feet of:

(1) A resort hotel;

(2) An event facility that has seating capacity for at least twenty thousand people and is constructed to accommodate a major or minor league sports team;

(3) A convention facility operated by a county fair and recreation board; or

(4) A median of a highway that is adjacent to a parking lot.

(B) Vend within one thousand feet of:

(1) An establishment that holds a nonrestricted gaming license described in subsections 1 or 2 of NRS 463.0177, to the extent not governed by a larger distance separation;

(2) The City's pedestrian mall, which qualifies as a pedestrian mall pursuant to NRS 268.811 and is particularly described in LVMC Chapter 11.68; or

(3) The Downtown Entertainment Overlay District, as described in LVMC 19.10.120.

(C) Vend or park a conveyance to be used for vending within five hundred feet of the outside perimeter of school property:

(1) During the hours the school is in session;

(2) During the one-hour period preceding the start of the first session of the day; or

(3) During the one-hour period after the final session has ended;

(D) Consume alcoholic beverages while vending;

(E) Vend at a location immediately adjacent to a City park, unless otherwise permitted under a contractual arrangement with the City regarding a specific location or by an approved special event permit;

(F) Except as otherwise permitted under a contractual arrangement with the City regarding a specific location or by an approved special event permit, vend or park a conveyance to be used for vending within five hundred feet of any of the following owned or operated by the City:

(1) Swimming pool;

(2) Community center (including a center for senior citizens or active adults); or

(3) Recreation center;

(G) Vend in any residential neighborhood as a stationary sidewalk vendor;

(H) Vend on any public sidewalk between the hours of nine p.m. and eight a.m., or at any time or place where the noise of the conveyance being used constitutes a disturbance of peace and violates any prohibition outlined in LVMC Chapter 9.16;

(I) Vend within five hundred feet of the primary public entrance of a food establishment during the hours the establishment is open for business, unless the vendor is operating:

(1) On a public sidewalk or pedestrian path that abuts the parcel on which the food establishment is located and is operating with the written consent of the operator of the food establishment; or

(2) At a location concerning which such vending has been specifically approved by means of a special event permit issued pursuant to LVMC Chapter 12.02;

(J) Vend within one hundred fifty feet of each vehicle entrance to or exit from a fire station, police station, hospital or other structure offering or providing emergency response services;

(K) Operate or park a conveyance to be used in vending in violation of applicable statutes or ordinances governing traffic parking or the use of public rights-of-way;

(L) Place one or more advertising signs or devices, tables, chairs or similar items on a public sidewalk or pedestrian path in connection with a vending operation. This prohibition does not prohibit signage that is placed upon, attached to, or an integral part of the conveyance from which the vending operation takes place;

(M) Vend from a conveyance that occupies an area greater than twenty-five square feet, inclusive of equipment, food, operation-related materials and signage; or

(N) Sell or offer to sell services or items of merchandise other than food or beverage items.

(Ord. No. 6882, § 1, 10-16-2024)

6.96.090 Same—Exceptions.

A sidewalk vendor may sell food or beverages within fifteen hundred feet of a location described in Subsection (A) of LVMC 6.96.080 if the conveyance from which the person is

selling food or beverages is located in an area which is zoned exclusively for residential use, unless the area is on a public sidewalk or pedestrian path that is immediately adjacent to a location described in Subsection (A) of LVMC 6.96.080.
(Ord. No. 6882, § 1, 10-16-2024)

6.96.100 Enforcement.

The City is authorized to:

(A) Enforce this Chapter by means of a criminal prosecution or a civil proceeding, except as otherwise specified or limited by Subsections (B), (C) and (D).

(B) In connection with a criminal prosecution, request the imposition of a criminal fine, which, if imposed by the court, shall not exceed five hundred dollars per violation.

(C) Impose a civil (but not criminal) penalty, in an amount not to exceed five hundred dollars, on a licensee that engages in sidewalk vending in a prohibited residential area or for any violation of the terms or conditions of the license in accordance with LVMC Chapter 6.02;

(D) Impose a civil (but not criminal) penalty, in an amount not to exceed five hundred dollars, on a person who engages in sidewalk vending without a license in accordance with LVMC Chapter 6.02;

(E) Suspend or revoke a sidewalk vendor license for any violation of this Chapter or this Title or of the terms or conditions of the license in the same manner as such suspensions or revocations are imposed for other types of businesses; and

(F) Undertake any other action to prevent the sale or consumption of any food or drink that violates any requirements established by the health district pursuant to NRS Chapter 446.
(Ord. No. 6882, § 1, 10-16-2024)

6.96.110 Conformity with State law.

(A) Independent of any license-related requirement of this Chapter, and in accordance with State law, it is unlawful for any person to sell food, beverages or merchandise within fifteen hundred feet of:

(1) A resort hotel;

(2) An event facility that has seating capacity for at least twenty thousand people and is constructed to accommodate a major or minor league sports team;

(3) A convention facility operated by a county fair and recreation board; or

(4) A median of a highway that is adjacent to a parking lot.

(B) Notwithstanding the provisions of Subsection (A), a person may sell food or beverages within fifteen hundred feet of a location described in Subsection (A) if the conveyance from which the person is selling food or beverages is located in an area which is zoned exclusively for residential use, unless the area is on a public sidewalk or pedestrian path that is immediately adjacent to a location described in Subsection (A).
(Ord. No. 6882, § 1, 10-16-2024)

6.96.120 Enumerated exceptions.

(A) Nothing in Subsection (A) of LVMC 6.96.080 or in LVMC 6.96.110 that prohibits vending within fifteen hundred feet of certain facilities or locations shall be deemed, by itself, to authorize vending beyond those distances. The ability to vend at any particular location depends on the operation and effect of other provisions of this Chapter and of State law.

(B) Nothing in this Chapter shall be deemed to authorize vending within a City park, which is subject to other Code provisions and limitations.

(C) Nothing in this Chapter shall be deemed to authorize the vending of products whose sale is governed by LVMC Chapters 6.50, 6.82 or 6.95.
(Ord. No. 6882, § 1, 10-16-2024)

CHAPTER 6.98 PET SALES

6.98.010 Definitions.

For purposes of this Chapter:

"Breeder" has the meaning ascribed to it in LVMC 7.04.120.

"Distributor" means a person who acts as the agent or contractor of a pet shop to obtain and transport dogs, cats or a combination thereof to a pet shop for purposes of sale.

"Pet shop" has the meaning ascribed to it in LVMC 7.04.350.
(Ord. No. 6623, § 1, 6-20-18)

6.98.020 License required.

It is unlawful to do any of the following within the City without first obtaining and maintaining the corresponding license in accordance with this Chapter:

(A) Engage in business as a breeder;

(B) Operate a pet shop; or

(C) Engage in business as a distributor.
(Ord. No. 6623, § 1, 6-20-18)

6.98.030 Compliance—Enforcement.

(A) Each breeder, distributor and pet shop shall comply with the provisions of NRS Chapter 574 and LVMC Title 7 that pertain to such operations.

(B) For purposes of enforcing this Chapter, the Director, Metro and officers and employees of the City who are authorized to enforce LVMC Title 7 shall have the authority to issue citations or notices of violation, and to conduct inspections, investigations and audits regarding the operation of each breeder, distributor and pet shop, including without limitation the transportation of dogs and cats to and from a pet shop and documentation regarding the acquisition and disposition of dogs and cats by a pet shop.

(C) Each pet shop shall post one or more signs no lower than three feet and no higher than seven feet at each entrance and exit of the establishment indicating that concerns about the welfare of animals within the establishment can be reported to the City's Animal Protection Services Division at the Division's telephone number as listed on the sign. Each such sign shall contain the text and be in the size and format approved by the Department. The Department will make such signs available to each pet shop, but the posting of compliant signs is required whether or not actual signs have been obtained from the Department.
(Ord. No. 6816, § 29, 8-17-22; Ord. No. 6623, § 1, 6-20-18)

6.98.040 Fee.

Each breeder and pet shop shall pay a semi-annual license fee in accordance with LVMC 6.04.005. Each distributor shall pay a license fee of ten dollars for each dog or cat that it transports to a pet shop for purposes of sale.
(Ord. No. 6623, § 1, 6-20-18)

Title 7

ANIMALS

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CHAPTER 7.04 DEFINITIONS

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"Adequate feed" means the provision at suitable intervals, depending upon the age of the animal; however, at least once every twenty-four hours, of a quantity of wholesome foodstuff suitable for the species' physical condition and age, sufficient to maintain an adequate level of nutrition in the animal, which is served in a clean receptacle, dish or container.
(Ord. 3618 § 4, 1991)

7.04.020 Adequate water.

"Adequate water" means the access to a constant source of clean, fresh, potable water suitable for the species' physical condition and age of the animal.
(Ord. 3618 § 5, 1991)

7.04.030 Animal.

"Animal" means any living vertebrate, domestic or wild, except human beings.
(Ord. 3618 § 6, 1991)

7.04.040 Reserved.

Editor's note—Ord. No. 6172, § 12, adopted December 7, 2011, repealed § 7.04.040, which pertained to the animal advisory committee and derived from Ord. No. 3618, 1991 and Ord. No. 5220, 2000.

7.04.050 Animal Protection Services Center.

"Animal Protection Services Center" means any establishment authorized by the City for the confinement, maintenance, safekeeping, protection and control of all animals that come into the custody of the Animal Regulation Officer in the performance of official duties.
(Ord. No. 6816, § 30, 8-17-22; Ord. 3618 § 8, 1991)

7.04.060 Animal Protection Services Officer.

"Animal Protection Services Officer" means an employee of the Department of Public Safety having the power and authority to enforce the provisions of this Title.
(Ord. No. 6816, § 31, 8-17-22; Ord. No. 6518, § 6, 4-6-16; Ord. 3618 § 9, 1991)

7.04.065 Animal fighting venture.

"Animal fighting venture" means any event or activity that involves a fight between at least two animals and is conducted for purposes of sport, wagering, exhibition or entertainment. The term does not include any activity the primary purpose of which involves the use of one or more animals in hunting another animal or animals.
(Ord. 5696 § 1, 2004)

7.04.070 Animal Regulation Officer.

"Animal Regulation Officer" is the Director of the Department of Public Safety of the City or a designee.
(Ord. No. 6518, § 7, 4-6-16; Ord. 3618 § 10, 1991)

7.04.080 Animal vaccination certificate.

"Animal vaccination certificate" is the certificate approved in form by the Health Officer which is issued and signed by the veterinarian who inoculates an animal for rabies stating thereon the name and description of the animal, the date of such vaccination and the type of vaccine used by the veterinarian.
(Ord. 3618 § 11, 1991)

7.04.090 At large.

"At large" refers to any animal not secured to and restrained by a leash or lead, or not confined within the real property limits of its owner or keeper by means of a fence, cage, coop, chain, leash or other restraining device.
(Ord. 5220 § 2, 2000: Ord. 3618 § 12, 1991)

7.04.100 Bite.

"Bite" means a puncture or tear of the skin inflicted by teeth of an animal.
(Ord. 3618 § 13, 1991)

7.04.110 Board.

"Board" means the District Board of Health of the County.
(Ord. 3618 § 14, 1991)

7.04.120 Breeder.

"Breeder" means any person who, for pay or other compensation, causes the breeding of a male or female dog or cat or makes a dog or cat available for breeding purposes, where any of the activities related to breeding, sale or offer to sell occurs within the City. The term also includes any other person who regularly sells or offers for sale any dog or cat, to the extent not otherwise covered under this Title.
(Ord. No. 6623, § 2, 6-20-18; Ord. 3618 § 15, 1991)

7.04.130 Cat.

"Cat" means any male or female cat (felis catus). An adult cat is any cat older than four months of age.
(Ord. 3618 § 16, 1991)

7.04.140 Cat fancier.

"Cat fancier" means any person owning, keeping or possessing on his or her property, provided such person has safe, adequate cages in a completely enclosed building on the property, at one location, up to eight adult cats for the purpose of showing, in recognized cat shows, or for improving the variety of breed in temperament or conformation with a view to exhibiting in shows or feline events and must be entered in at least one cat show each calendar year. Such cats shall be registered with at least one association recognized by the Animal Regulation Officer or, if spayed and neutered, need not be so registered or shown.
(Ord. No. 6824, § 1, 1-4-23; Ord. 3618 § 17, 1991)

7.04.150 Cattery.

"Cattery" means a completely enclosed area for the total confinement of one or more cats.
(Ord. 3618 § 18, 1991)

7.04.155 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.155, which pertained to central sponsor and derived from Ord. No. 6179, adopted March 7, 2012.

7.04.160 Commercial cattery.

"Commercial cattery" means any licensed establishment at which cats are bred, raised for sale, trained, rented, boarded, cared for, or quarantined, for profit, excluding dental, medical or surgical care. All commercial catteries shall be maintained within a completely enclosed building. This definition shall not apply to the premises of a private cat fancier and the animals raised thereon.
(Ord. 3618 § 19, 1991)

7.04.170 Commercial kennel.

"Commercial kennel" means any licensed establishment at which dogs are bred, raised for sale, trained, rented, boarded, cared for, or quarantined, for profit, excluding dental, medical or surgical care. This definition shall not apply to the premises of a private dog fancier and the animals raised thereon.
(Ord. 3618 § 20, 1991)

7.04.180 Commercial stables.

"Commercial stables" means any licensed establishment in the City at which horses are bred, raised for sale, boarded, cared for, quarantined, trained, sold, or rented, on a commercial basis, excluding dental, medical, or surgical care.
(Ord. 3618 § 21, 1991)

7.04.183 Community cat.

"Community cat" means a cat that has no apparent owner or identification; roams free, without restraint, within one or more areas; and is subject to being cared for by one or more persons within those immediate areas, whether those persons are known or unknown.
(Ord. No. 6490, § 2, 12-16-15)

7.04.185 Community cat caregiver.

"Community cat caregiver" means any person who, in accordance with a good faith effort to trap, sterilize, vaccinate, and return any community cat, provides voluntary care, including without limitation food, water, and medical care, to a community cat or community cat colony.
(Ord. No. 6490, § 2, 12-16-15)

7.04.187 Community cat colony.

"Community cat colony" or "colony" means a group of community cats that congregates, more or less, together as a unit and shares a common food source.
(Ord. No. 6490, § 2, 12-16-15)

7.04.190 Confined.

"Confined" means a condition whereby an animal is restricted to the property of the owner by an enclosure or enclosed lot, secure enough so that the animal cannot bite, harm, or injure anyone by the animal overreaching the top of the fence or other enclosure.
(Ord. 3618 § 22, 1991)

7.04.200 Cruelty or torture.

"Cruelty or torture" means every act of omission or commission whereby unjustifiable physical pain, suffering, or death is caused to any animal.
(Ord. 3618 § 23, 1991)

7.04.210 Court.

"Court" means a municipal court of the City of Las Vegas or the Eighth Judicial District Court, County of Clark, State of Nevada, in the event of an appeal, a writ or any other legal process from the Municipal Court of the City of Las Vegas to the Eighth Judicial District Court or any other Court.
(Ord. 3618 § 24, 1991)

7.04.215 Dangerous animal.

"Dangerous animal" means any animal that has been declared to be dangerous pursuant to Section 7.16.010.
(Ord. 5220 § 3, 2000)

7.04.220 Dog.

"Dog" means any male or female dog (canis familiaris). An adult dog is any dog older than four months of age.
(Ord. 3618 § 25, 1991)

7.04.230 Dog fancier.

"Dog fancier" means any person owning, keeping, or possessing on his or her property, provided such person has safe, adequate cages in a completely enclosed building on the property, at one location, up to eight adult dogs for the purpose of showing in recognized dog shows, field trials or obedience trials, for working and hunting, or for improving the variety of breed in temperament or confirmation with a view to exhibition in shows or trials or for use as working dogs in hunting. Such dogs shall be registered with at least one association recognized by the Animal Regulation Officer, and must be entered in at least one dog show per calendar year or, if spayed and neutered, need not be so registered or shown.
(Ord. No. 6824, § 2, 1-4-23; Ord. 3618 § 26, 1991)

7.04.235 Ear tipped and tipped ear.

"Ear tipped" and "tipped ear" refer to the process by which the tip of a cat's ear is cut to indicate that the cat has been sterilized and vaccinated against rabies.
(Ord. No. 6179, § 2, 3-7-12)

7.04.240 Enclosed lot.

"Enclosed lot" means a parcel of land or portion thereof around the perimeter of which is a fence or wall adequate to contain any animal kept therein.
(Ord. 3618 § 27, 1991)

7.04.250 Fees.

"Fees" means monies authorized by the City Council to be collected by the Animal Protection Services Officer or designee for the impounding, maintenance, sale or destruction of animals.
(Ord. No. 6816, § 32, 8-17-22; Ord. 3618 § 28, 1991)

7.04.253 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.253, which pertained to feral cat and derived from Ord. No. 5220, 2000.

7.04.255 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.255, which pertained to feral cat colony or colony and derived from Ord. No. 6179, adopted March 7, 2012.

7.04.256 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.256, which pertained to feral cat colony caretaker or colony caretaker and derived from Ord. No. 6179, adopted March 7, 2012.

7.04.257 Ferret.

"Ferret" means a domestic ferret (mustela furo).
(Ord. 5220 § 5, 2000)

7.04.260 Grooming parlor.

"Grooming parlor" means any establishment, or part thereof, or premises, maintained for the purpose of offering animal cosmetological services for profit.
(Ord. 3618 § 29, 1991)

7.04.270 Grooming school.

"Grooming school" means any profit-making establishment, or part thereof, or premises, maintained for the purpose of teaching students to perform cosmetological services on animals.
(Ord. 3618 § 30, 1991)

7.04.280 Reserved.

Editor's note—Ord. No. 6407, § 5, adopted March 18, 2015, repealed § 7.04.280, which pertained to guide dog and derived from Ord. No. 3618, 1991.

7.04.290 Health Officer.

"Health Officer" means the Clark County District Health Officer or his designated and duly authorized representative.
(Ord. 3618 § 32, 1991)

7.04.295 Hearing officer.

"Hearing officer" means a person appointed by the City Manager or a designee to hear appeals or make recommendations under this Title. The hearing officer may be a third party not otherwise affiliated with the City or a City officer who is independent of the animal control and protection functions.
(Ord. No. 6816, § 33, 8-17-22; Ord. No. 6172, § 5, 12-7-11)

7.04.300 Impound.

"Impound" means the act of taking or receiving into custody by the Animal Regulation Officer any animal for the purpose of confinement in an Animal Protection Services Center consistent with the provisions of this Title.
(Ord. No. 6816, § 34, 8-17-22; Ord. 3618 § 33, 1991)

7.04.310 License fee.

"License fee" means the fee as established by the City Council for each animal license.
(Ord. 3618 § 34, 1991)

7.04.315 Microchipping.

"Microchipping" and other forms of the word shall be deemed to refer to the subcutaneous implantation of an electronic identification microchip into an animal where:

(A) The manufacturer of the microchip has been approved by the Animal Regulation Officer;

(B) The implantation conforms to procedures recommended by the manufacturer;

(C) The microchip is associated with a registration that includes the animal's date of birth, the breeder's name and address, and the breeder's USDA license number; and

(D) The microchipping and registration information are provided to the Animal Regulation Officer.
(Ord. No. 6850, § 2, 10-18-23)

7.04.320 Motor vehicle.

"Motor vehicle" means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway.
(Ord. 3618 § 35, 1991)

7.04.325 Nuisance.

"Nuisance," with respect to a stray animal or community cat, refers to behavior that:

(A) Disturbs the peace through habitual or continual howling or fighting; or

(B) Consists of habitual and significant destruction, desecration or soiling of property against the wishes of the owner of the property.
(Ord. No. 6490, § 3, 12-16-15; Ord. No. 6179, § 5, 3-7-12)

7.04.330 Owner.

"Owner" means any person owning, keeping, possessing, harboring, or having the care, custody or control of any animal, and furnishing proof of ownership with a medical certificate, bill of sale, or other proof of ownership or possession. With respect to a community cat, the term does not include a community cat caregiver.
(Ord. No. 6490, § 4, 12-16-15; Ord. 3618 § 36, 1991)

7.04.340 Person.

"Person" means any individual, partnership, firm, joint stock company, corporation, association, trust, estate, or other legal entity.
(Ord. 3618 § 37, 1991)

7.04.345 Pet fancier.

"Pet fancier" means any person owning, keeping or possessing on his or her property, up to eight spayed or neutered dogs over one year of age or twelve spayed or neutered cats over eight months of age, or combination thereof.
(Ord. No. 6824, § 3, 1-4-23; Ord. 3642 § 1, 1992)

7.04.350 Pet shop.

"Pet shop" means any profit-making or commercial establishment, premises, or part thereof, that is operated or maintained for the purchase, sale, or exchange of animals whose principal purpose is for personal appreciation and companionship. The term does not include livestock auctions or other establishments that provide animals for use in commercial or research operations.
(Ord. No. 6623, § 3, 6-20-18; Ord. 3618 § 38, 1991)

7.04.360 Professional animal handler.

"Professional animal handler" means the owner or owners of a commercial grooming parlor, grooming school, kennel, pet shop, dog training facility, veterinary clinic/hospital, or any breeder of cats and dogs for pay or other compensation.
(Ord. 3618 § 39, 1991)

7.04.370 Professional animal handler permit.

"Professional animal handler permit" means a permit issued to the owner or owners of a commercial grooming parlor, grooming school, kennel, pet shop, dog training facility, or breeders, which issuance means that minimum animal confinement standards have been met or surpassed by the business; the permit is required in order to operate or carry on the above businesses for profit.
(Ord. 3618 § 40, 1991)

7.04.380 Rabies quarantine area.

"Rabies quarantine area" means any area in which a state of emergency has been declared to exist due to the occurrence of rabies in animals in or adjacent to this area. The Health Officer may, by public notice and proclamation, quarantine animals in any area of the City where he finds rabies or other disease to exist. During such quarantine period and until public notice of its termination has been given by the Health Officer, all designated animals in that area must be securely confined by their owners to that area. Any quarantined animals found at large in such areas during such period of quarantine may be destroyed, impounded, or quarantined.
(Ord. 3618 § 41, 1991)

7.04.390 Research facility.

"Research facility" means any place at which scientific tests, experiments, or investigations involving the use of any animal are conducted, attempted, or carried out.
(Ord. 3618 § 42, 1991)

7.04.400 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.400, which pertained to restraint and derived from Ord. No. 3618, 1991.

7.04.410 Shelter.

"Shelter" means protection from the elements as hereinafter provided.
(Ord. 3618 § 44, 1991)

7.04.420 Sheriff.

"Sheriff" means the sheriff of the Las Vegas Metropolitan Police Department or any person designated by him to act herein.
(Ord. 3618 § 45, 1991)

7.04.425 Reserved.

Editor's note—Ord. No. 6490, § 1, adopted December 16, 2015, repealed § 7.04.425, which pertained to sponsor and derived from Ord. No. 6179, adopted March 7, 2012.

7.04.430 Stray animal.

"Stray animal" means any animal at large.
(Ord. 3618 § 46, 1991)

7.04.435 TNR program.

"TNR program" means a "trap, neuter and return" program or activities in which community cats are humanely trapped, sterilized, vaccinated against rabies, ear tipped, and then returned to the location that is their "territory" in accordance with Chapter 7.22.
(Ord. No. 6490, § 5, 12-16-15; Ord. No. 6179, § 7, 3-7-12)

7.04.437 USDA.

"USDA" means the United States Department of Agriculture.
(Ord. No. 6850, § 4, 10-18-23)

7.04.440 Vaccination.

"Vaccination" means administration of an antirabies vaccine to any animal by a veterinarian.
(Ord. 3618 § 47, 1991)

7.04.450 Vaccine.

"Vaccine" means an antirabies medication in a usage as designated by the State Veterinarian.
(Ord. 3618 § 48, 1991)

7.04.460 Veterinarian.

"Veterinarian," unless otherwise indicated, means any person licensed to practice veterinary medicine in this State or any person employed in Nevada by a governmental agency to practice veterinary medicine.
(Ord. 3618 § 49, 1991)

7.04.470 Veterinary clinic.

"Veterinary clinic" means any establishment operated by a veterinarian to provide dental, medical, or surgical treatment, care and grooming for animals on an outpatient basis.
(Ord. 3618 § 50, 1991)

7.04.480 Veterinary hospital.

"Veterinary hospital" means any establishment operated by a veterinarian that provides clinical facilities and houses animals for dental, medical, or surgical treatment. A veterinary hospital may have adjacent to it or in connection with it, or as an integral part of it, pens, stalls, cages, or kennels for quarantine or observation, in a completely enclosed building.
(Ord. 3618 § 51, 1991)

7.04.490 Vicious animal.

"Vicious animal" means any animal that has been declared to be vicious pursuant to Section 7.16.010.
(Ord. 5220 § 6, 2000: Ord. 3618 § 52, 1991)

7.04.500 Wild animal.

"Wild animal" means:

(A) Except for the species of cat felis catus, any animal of a species found naturally in the wild state, regardless of whether such animal is indigenous to the State or whether such animal was raised in captivity; or

(B) Any hybrid of such an animal.

(Ord. No. 6490, § 6, 12-16-15; Ord. 5220 § 7, 2000: Ord. 3618 § 53, 1991)

7.04.510 Wild pigeon.

"Wild pigeon" means any common pigeon of the species columba livia, also known as a city pigeon, rock dove, rock pigeon or flying rat.
(Ord. No. 6646, § 1, 10-17-18)

CHAPTER 7.08 DOG AND CAT LICENSES AND PERMITS

7.08.010 Licenses—Required—Time limits.

(A) Every person, except a professional animal handler permit holder, owning, keeping, harboring or possessing within the City, any dog, cat or ferret over the age of four months shall, within thirty days after the animal attains the age of four months or is first brought into the City, obtain for the animal a current and valid license issued by the City.

(B) It is unlawful for a person to fail to obtain a license required by Subsection (A) of this Section.
(Ord. No. 6180, § 3, 3-7-12; Ord. 5220 § 8, 2000: Ord. 3618 § 56, 1991)

7.08.020 Licenses—Evidence of microchipping required.

Every person applying for a dog or cat license must provide evidence that the animal has been implanted with a microchip in accordance with this Title.
(Ord. No. 6850, § 3, 10-18-23)

7.08.030 Certificate of vaccination—Required.

Every person applying for a dog, cat or ferret license must exhibit a certificate of vaccination issued by a person licensed by this State, or by any other state or nation, to

practice veterinary medicine, which shows that the animal has been vaccinated in accordance with the provisions of Chapter 7.12 and whether the animal is sterilized; provided that, as an alternative, the person may exhibit a current exemption-from-vaccination permit.
(Ord. 5220 § 9, 2000: Ord. 3618 § 58, 1991)

7.08.040 Certificate of vaccination—Exemptions.

The owner of any dog, cat or ferret may obtain for the animal an exemption-from-vaccination permit from the Animal Regulation Officer, provided that:

(A) The animal is confined at all times;

(B) The facilities for confinement have been inspected and approved by an Animal Protection Services Officer;

(C) A fee of twenty-five dollars is paid for such inspection and permit per animal per year; and

(D) The owner provides a written statement, issued by a licensed veterinarian of this State, showing cause why the animal should not be vaccinated.

(Ord. No. 6816, § 35, 8-17-22; Ord. 5220 § 10, 2000: Ord. 3618 § 59, 1991)

7.08.050 Right of entry for permit inspection.

Any person required to obtain any permit under any of the provisions of this Title shall permit their premises to be inspected by the Animal Protection Services Officer at any time.
(Ord. No. 6816, § 36, 8-17-22; Ord. 3618 § 60, 1991)

7.08.060 License fees—Designated.

Except as otherwise provided in Section 7.08.065, the following annual fees shall be paid for each license at the time of issuance of the license for each dog, cat or ferret:

	Classification	Fee
(A)	Dog, male	$25.00
(B)	Dog, male, neutered	10.00
(C)	Cat, male	25.00
(D)	Cat, male, neutered	10.00
(E)	Dog, female	25.00
(F)	Dog, female, spayed	10.00
(G)	Cat, female	25.00
(H)	Cat, female, spayed	10.00
(I)	Ferret, male	25.00
(J)	Ferret, male, neutered	10.00
(K)	Ferret female	25.00
(L)	Ferret, female, spayed	10.00

(Ord. 5220 § 11, 2000: Ord. 5037 § 1, 1997: Ord. 5005 § 2, 1997: Ord. 3618 § 61, 1991)

7.08.065 License fees—Reduced.

The twenty-five dollar and ten dollar license fees described in Section 7.08.060 shall be reduced to fifteen dollars and five dollars, respectively, for any owner who:

(A) Is not required by this Chapter to obtain a dog fancier's permit, a cat fancier's permit or a pet fancier's permit; and

(B) Is either:

(1) Sixty-five years of age or older; or

(2) Qualified to receive disability benefits under Social Security or an equivalent disability retirement program.

(Ord. 5037 § 2, 1997)

7.08.070 License fee exemptions.

The fee provisions of Section 7.08.060 shall not apply to an animal:

(A) Which has been trained, and is actually being used, as a guide animal, hearing animal, assistance animal, or seizure alert animal; and

(B) Whose qualification under Subsection (A) has been documented to the satisfaction of the Animal Protection Services Officer.

(Ord. No. 6816, § 37, 8-17-22; Ord. No. 6407, § 2, 3-18-15; Ord. 5005 § 2, 1997: Ord. 3618 § 62, 1991)

7.08.075 License fees—Time period expired.

In addition to the license fees set forth in Section 7.08.060, the City is authorized to charge a late fee of five dollars in connection with the issuance of a license that was not obtained within the thirty-day period described in Section 7.08.010.

(Ord. 5497 § 1, 2002)

7.08.080 Receipt and tag issuance—Replacement.

Each person paying the license fee under Section 7.08.060 shall receive a receipt stating the amount, date of payment, a brief description of the animal and, except as provided in Section 7.08.090(C), a numbered license tag of a durable material. If the tag is lost, the owner shall, within ten days from the date of the discovery of loss, procure a new numbered tag and pay the fee of five dollars therefor.

(Ord. 5220 § 12, 2000: Ord. 3618 § 63, 1991)

7.08.090 Tagging required—Misuse.

(A) The owner of any dog, cat or ferret licensed under this Chapter shall securely fasten about the neck of the animal a collar which has attached thereto the license tag referred to in Section 7.08.080. It is unlawful for a person to fail to comply with the preceding sentence.

(B) It is unlawful for any person to:

(1) Remove any license tag issued pursuant to Section 7.08.080 from any animal not owned by that person, or not lawfully in his possession or under his control or care;

(2) Place on any animal, or to permit any animal in his control or possession to wear any license tag which has not been issued pursuant to this Chapter for that particular animal; or

(3) Place on any animal, or to own, keep, or possess any animal wearing, any counterfeit, imitation, or altered license tag of the kind required by this Chapter.

(C) As an alterative to obtaining a license tag for, and attaching it to, a ferret, the owner may have an electronic identification microchip implanted under the skin of the ferret if the manufacturer of the microchip has been approved by the Animal Regulation Officer and the implantation conforms to procedures recommended by the manufacturer.
(Ord. No. 6180, § 4, 3-7-12; Ord. 5220 § 13, 2000: Ord. 3618 § 64, 1991)

7.08.100 License—Term.

Each dog, cat or ferret license issued by the City shall be effective for one year following its issuance or until there is a change in ownership of the animal, in which case the new owner has thirty days from the date of the transfer of possession to obtain a new annual license, and to pay all applicable fees. In addition to the license fees set forth in Section 7.08.060, the City is authorized to charge a late fee of five dollars in connection with the issuance of a license that was not obtained within thirty days after a license has expired or ownership of an animal has been transferred.
(Ord. 5497 § 2, 2002: Ord. 5220 § 14, 2000: Ord. 5005 § 3, 1997: Ord. 3618 § 65, 1991)

7.08.110 Administration.

The licensing functions and duties shall be performed by the Director of the Department of Public Safety or an authorized representative.
(Ord. No. 6518, § 8, 4-6-16; Ord. 3618 § 66, 1991)

7.08.120 License register.

The City shall keep a register of all issued licenses showing for each license:

(A) The name, current address, and telephone number, if any, of the person to whom the license was issued;

(B) Date of issuance;

(C) Description of the dog, cat or ferret;

(D) The number of the license tag, or the manufacturer and identifying information for any electronic microchip which is used in lieu of a license tag; and

(E) The expiration date of the most recent vaccination for rabies.

(Ord. 5220 § 15, 2000: Ord. 3618 § 67, 1991)

7.08.130 License—Exemption.

The provisions of this Chapter relating to licensing shall not apply to dogs, cats or ferrets under four months of age, provided that they are not running at large.

(Ord. 5220 § 16, 2000: Ord. 3618 § 68, 1991)

7.08.140 Number of dogs permitted.

Except as otherwise provided in Section 7.08.150, no person shall keep more than six dogs over three months of age, at any place, on any premises, or in any one residence, located within the City.

(Ord. No. 6824, § 4, 1-4-23; Ord. No. 6804, § 1, 2-2-22; Ord. 3618 § 69, 1991)

7.08.150 Dog fancier's permit.

A dog fancier may keep and maintain on his or her property a maximum of eight adult dogs, provided that such person has first obtained from the Animal Regulation Officer a dog fancier's permit for said dogs and has paid the annual fee in the amount of fifty dollars, which cost shall include inspection. Any such permit, if granted, shall be subject to such conditions as may be prescribed by the Animal Regulation Officer or the County Health Officer, to prevent the keeping of the dogs from becoming a nuisance. Any person who meets the provisions of this Section and has in his or her possession, with respect to said dogs, a valid dog fancier's permit, as described herein, need not have the property where the dogs are maintained rezoned in order to be allowed to keep and maintain such dogs thereon.

(Ord. No. 6824, § 5, 1-4-23; Ord. 3618 § 70, 1991)

7.08.160 Number of cats permitted.

Except as otherwise provided in Section 7.08.170, no person shall keep more than six cats over four months of age, at any place, or on any premises, or in any one residence, located within the City.

(Ord. No. 6824, § 6, 1-4-23; Ord. No. 6804, § 2, 2-2-22; Ord. 3618 § 71, 1991)

7.08.170 Cat fancier's permit.

A cat fancier may keep and maintain on his or her property a maximum of eight adult cats, provided such person has first obtained from the Animal Regulation Officer a cat fancier's permit for said cats and has paid the annual fee in the amount of fifty dollars, which cost shall include inspection. If granted, such permit shall be on such conditions as may be deemed necessary or advisable and as prescribed by the Health Officer to prevent the

keeping of any and all such cats from becoming a nuisance. All cat fanciers meeting the provisions of this Section and having a cat fancier's permit as described herein need not have the property where the cats are so maintained.
(Ord. No. 6824, § 7, 1-4-23; Ord. 3618 § 70, 1991)

7.08.180 Pet fancier's permit.

A pet fancier may own, keep or possess on his or her property not more than eight spayed or neutered dogs over one year of age or twelve spayed or neutered cats over eight months of age, or any combination thereof if the number of dogs does not exceed eight and the combined number of animals does not exceed twelve, provided that the pet fancier has obtained from the Animal Regulation Officer a pet fancier's permit. The pet fancier shall obtain a pet fancier's permit from the Animal Regulation Officer each and every twelve-month period. The Animal Regulation Officer shall issue the pet fancier's permit only after inspecting the applicant's property and determining that the dogs or cats, or both, will be safely confined in a completely enclosed building, residence or enclosed lot and do not pose a nuisance to the public. As a part of the application process, the Animal Protection Services Officer shall notify all property owners contiguous to the applicant's property that the applicant has applied for a pet fancier's permit. The cost of the inspection and permit shall be fifty dollars. A pet fancier who has obtained a pet fancier's permit need not have his or her property rezoned for the purpose of owning, keeping or possessing such pets.
(Ord. No. 6824, § 7, 1-4-23; Ord. No. 6816, § 38, 8-17-22; Ord. 3642 § 4, 1992)

7.08.185 Ferrets—Number limited.

No person shall keep more than four ferrets over four months of age at any residence or premises within the City.
(Ord. No. 6804, § 3, 2-2-22; Ord. 5220 § 17, 2000)

CHAPTER 7.12 VACCINATION

7.12.005 Rabies control authority designated.

The Animal Regulation Officer shall serve as the City's Rabies Control Authority. The Rabies Control Authority is authorized to issue citations to the owner of any dog, cat or ferret that is not vaccinated against rabies as prescribed in Section 441A.435 of the Nevada Administrative Code (NAC). The only acceptable proof of vaccination is a certificate of vaccination of rabies issued pursuant to NAC 441A.440.
(Ord. 5220 § 18, 2000)

7.12.010 Rabies vaccination—Required—When.

(A) Any person owning, keeping, harboring or possessing a dog, cat or ferret within the City shall cause said animal to be vaccinated with a rabies vaccine within thirty days after the animal reaches the age of three months. Any person subsequently owning, keeping,

harboring or possessing an animal within the City which has already reached the age of three months shall cause said animal to be vaccinated with a rabies vaccine within thirty days after the dog, cat or ferret came into the possession or under the control of that person, if the animal has not been previously vaccinated for rabies.

(B) Any person owning, keeping, harboring or possessing a dog, cat or ferret which was initially vaccinated for rabies in a jurisdiction other than the City while the animal was between the ages of three months and twelve months shall cause that dog, cat or ferret to be vaccinated one year after that vaccination in accordance with the requirements of Section 7.12.030.

(C) Any person owning, keeping, harboring or possessing a dog, cat or ferret which was vaccinated for rabies in a jurisdiction other than the City after the animal reached the age of twelve months is temporarily exempt from the requirements of having the animal revaccinated, pursuant to Section 7.12.030, for the effective period of the vaccine which was used in that vaccination, as stated by the manufacturer of the vaccine, measured from the date of such vaccination; provided, however, that no such animal will be exempt from the requirements of revaccination contained in Section 7.12.030 for more than three years, in the case of dogs and

cats, and one year, in the case of ferrets after the date of such vaccination, regardless of the effective period of the vaccine. Any vaccination of a dog, cat or ferret for rabies which has occurred in a jurisdiction other than the City must:

(1) Have been by a person licensed to practice veterinary medicine within that jurisdiction; and

(2) Be evidenced by a Certificate of Vaccination which contains the information required in Section 7.12.050, in order for the person owning, keeping, harboring or possessing the dog, cat or ferret to be entitled to the temporary exemption provided for herein.

(Ord. 5220 § 19, 2000: Ord. 3618 § 75, 1991)

7.12.020 Other vaccinations.

Vaccinations, other than rabies vaccinations, may be required of any animal according to veterinarian recommendation, but only upon adequate notice to such person owning, harboring, keeping, or possessing such animal.

(Ord. 3618 § 76, 1991)

7.12.030 Revaccination requirements.

(A) Every person owning, keeping, harboring or possessing a dog or cat within the City which was initially vaccinated for rabies between the ages of three months and twelve months shall have his dog or cat revaccinated one year after the initial vaccination, and thereafter shall be revaccinated at least every three years with a vaccine effective for a minimum of three years.

(B) Every person owning, keeping, harboring or possessing a ferret within the City shall have his ferret revaccinated on an annual basis with a vaccine effective for a minimum of one year.

(Ord. 5220 § 20, 2000: Ord. 3618 § 77, 1991)

7.12.040 Tag and certificate.

Every veterinarian who vaccinates a dog, cat or ferret with rabies vaccine shall issue to the person owning, keeping, harboring, or possessing that animal within the City, a numbered tag of durable material with the name and phone number of his veterinarian clinic thereon, and shall issue a certificate of vaccination, substantially as reproduced in blank in Section 7.12.050. The certificate shall be prepared in triplicate with the original to the owner of the animal, a copy to the Animal Regulation Officer and a copy to be kept in the veterinarian's records for a period of not less than three years.

(Ord. 5220 § 21, 2000: Ord. 3618 § 78, 1991)

7.12.050 Certificate form.

The certificate of vaccination contemplated in Section 7.12.040 shall be substantially as follows:

CERTIFICATE OF VACCINATION

Rabies Tag No. _____

Owner _____ Date vaccinated _____

Street _____

City _____ State _____ Zip _____

Owner's Telephone Number _____

Dog/Cat/Ferret _____ Name _____ Breed _____

Color _____ Markings _____

Weight _____ Sex _____ Spayed _____ Neutered _____

Age: 3 mo. to 12 mo. [ ] (1 year vaccination)
12 mo. or older [ ] (multi-year vaccination)

Actual age of animal _____

Vaccine Serial Number _____ Producer _____

By _____

Licensed Veterinarian

Veterinarian's License No. _____

Address _____

Telephone Number _____

(Ord. 5220 § 22, 2000: Ord. 3618 § 79, 1991)

7.12.060 Other animals.

The same vaccination procedure and exemption shall apply to other animals if the Animal Regulation Officer or his designee shall deem this prudent to ensure the safety of the public. (Ord. 3618 § 80, 1991)

Chapter 7.14 SPAYING/NEUTERING OF ANIMALS

7.14.010 Prohibition.

Except as otherwise provided in Section 7.14.020, it is unlawful for any person to harbor within the City any dog, cat, ferret, rabbit or potbellied pig over the age of four months that has not been spayed or neutered. For purposes of this Section, the term "harbor" means to have legal ownership of, or to provide, on a regular basis, care, shelter, protection, refuge, nourishment, or medical treatment.
(Ord. No. 6624, § 1, 6-20-18; Ord. No. 6094, § 1, 5-19-10; Ord. No. 6067, § 1, 11-18-09)

7.14.020 Exemptions.

Section 7.14.010 does not apply to the harboring of an animal:

(A) That is incapable of breeding, as determined in accordance with Section 7.14.030;

(B) That is medically unsuited to undergo a spay or neuter procedure, as determined in accordance with Section 7.14.030;

(C) That has received appropriate training (and certification by a recognized agency, if such certification is available), and is being used:

(1) By a law enforcement agency for law enforcement activities; or

(2) By a search and rescue agency for search and rescue activities;

(D) By a pound, shelter, humane society or similar organization, whether public or private, the principal purpose of which is securing the adoption of animals, provided that such organization has a policy and rules requiring the spaying or neutering of all dogs, cats, ferrets, rabbits or potbellied pigs placed for adoption by such organization; or

(E) By a person holding a valid dog fancier's permit, cat fancier's permit, breeder's permit, or professional animal handler's permit issued pursuant to this Title. The exemption provided by this Subsection (E) does not apply to a potbellied pig subject to the requirements of LVMC 7.38.041.

(Ord. No. 6624, § 2, 6-20-18; Ord. No. 6067, § 1, 11-18-09)

7.14.030 Qualification for exemption.

For purposes of the exemptions set forth in Section 7.14.020, an animal qualifies as:

(A) Incapable of breeding if a licensed veterinarian has so certified, in writing and under oath;

(B) Medically unsuited to undergo a spay or neuter procedure if a licensed veterinarian has certified, in writing and under oath, that a spay or neuter procedure would likely cause the animal's death or substantially aggravate a physical condition of the animal. The certification shall indicate the medical basis therefor and whether the unsuitability is permanent or temporary. If temporary, the certificate shall indicate the period of time anticipated that the unsuitability will last. For an exemption to apply beyond that period, a new certificate must be obtained.

(Ord. No. 6624, § 3, 6-20-18; Ord. No. 6067, § 1, 11-18-09)

7.14.040 Offspring of unspayed/unneutered animals.

The offspring of animals that have not been spayed or neutered as required by this Chapter are subject to forfeiture, following which they may be given to the care of a local shelter for adoption.

(Ord. No. 6624, § 4, 6-20-18; Ord. No. 6067, § 1, 11-18-09)

7.14.050 Pet shop reporting.

(A) In order to assist the City in enforcing this Chapter, each pet shop within the City shall provide to the Department of Public Safety, on a quarterly basis, a list of dogs, cats, ferrets, rabbits or potbellied pigs sold by the pet shop during that quarter. The list shall include the following information for each such animal:

(1) The name and residence address of the buyer.

(2) The address of the location where the animal will reside, if not the same as the buyer's residence.

(3) The breed and approximate age.

(4) A description, including principal colors.

(B) In order to assist the City in enforcing this Chapter, each pet shop, breeder, pound, shelter, or rescue organization that sells animals listed in Subsection (A), or makes such animals available for adoption, shall:

(1) Provide written notice of the requirements of this Chapter to a person purchasing or adopting such an animal, in a form and with content that have been either provided or approved by the Department of Public Safety, and the Business Licensing Division;

(2) Obtain from such person an acknowledgement of receipt of that notice and the person's written consent to comply with this Chapter; and

(3) Include as part of the purchase or adoption transaction the spaying/neutering of the animal. The pet shop, breeder, pound, shelter, or rescue organization may provide the spay/neuter service itself or provide a voucher or other means by which the service will be provided to the person purchasing or adopting the animal. The cost of the purchase or adoption transaction shall be deemed to include the spay/neuter service, whether or not the cost is separately identified in the written record of the transaction. If the animal is later exempted from the spay/neuter requirement, the cost of the spay/neuter service shall be refunded upon request.

(C) Failure to comply with Subsection (A) or Subsection (B) of this Section shall be grounds for non-renewal of, or disciplinary action against, a business license.
(Ord. No. 6624, § 5, 6-20-18; Ord. No. 6518, § 9, 4-6-16; Ord. No. 6067, § 1, 11-18-09)

7.14.060 Compliance—When.

Persons who, on or after December 1, 2009, are harboring a dog or cat subject to the requirements of Section 7.14.010 shall have until April 1, 2010, to comply with those requirements.
(Ord. No. 6067, § 1, 11-18-09)

7.14.070 Penalty.

(A) Any person who violates Section 7.14.010 is guilty of a misdemeanor and shall be punished as follows:

(1) For the first offense, by a fine of two hundred twenty-five dollars.

(2) For a second offense, by a fine of five hundred dollars.

(3) For a third and subsequent offense, by a fine of one thousand dollars.

(B) The penalty set forth in Subsection (A) shall be reduced by eighty percent if proof of sterilization of the animal is produced within thirty days after issuance of the citation.
(Ord. No. 6624, § 6, 6-20-18; Ord. No. 6067, § 1, 11-18-09)

7.14.080 Dog or cat fancier's permit.

A person may avoid prosecution or a civil proceeding for a violation of LVMC 7.14.010 by applying for and obtaining a dog or cat fancier's permit, whether or not one would otherwise apply or be available.
(Ord. No. 6624, § 7, 6-20-18)

CHAPTER 7.15 MICROCHIPPING OF DOGS AND CATS

7.15.010 Requirements.

(A) Except as otherwise provided in this Section, it is unlawful for any person to own or harbor a dog or cat over the age of four months unless the animal has been implanted with microchip identification in accordance with this Section and this Title. For purposes of this Section, a dog or cat to be offered for sale by a pet shop or breeder is deemed to be owned or harbored by that pet shop or breeder. The age-based requirements of this Subsection (A) do not affect the applicability of the microchipping requirements of LVMC 7.42.050.

(B) The owner of a dog or cat that has been implanted with microchip identification shall register the microchip number and the owner's contact information with a microchip registration company, as well as with the Animal Regulation Officer.

(C) When the contact information of the owner of a microchipped dog or cat changes, the owner shall provide the new contact information to the applicable microchip registration company and to the Animal Regulation Officer no later than thirty days after the change in contact information occurs.

(D) When there is a transfer of ownership of a dog or cat that has been implanted with microchip identification:

(1) The transferring owner must inform the new owner of the microchip registration company with which the dog's or cat's microchip is registered; and

(2) The new owner must provide the microchip registration company and the Animal Regulation Officer with the new owner's contact information no later than thirty days after the transfer of ownership occurs.

(E) The microchipping requirements of this Section do not apply to:

(1) An animal whose owner has resided within the City fewer than thirty days; or

(2) An animal brought into the City temporarily and exclusively for the purpose of entering the animal in a show or exhibition, where the animal is not allowed to run at large.

(F) A misdemeanor complaint or citation for a violation of Subsection (A) of this Section shall be dismissed upon proof that the animal regarding which the violation occurred was implanted with microchip identification within thirty days after the complaint or citation was served.

(G) This Section shall become effective August 1, 2024.
(Ord. No. 6850, § 1, 10-18-23)

7.15.020 Programs available.

The City is authorized to establish one or more programs to encourage and facilitate the microchipping of animals, including compliance with the microchipping requirements of this Chapter and Title.
(Ord. No. 6850, § 1, 10-18-23)

CHAPTER 7.16 DANGEROUS ANIMALS

7.16.010 Vicious animals at large—Misdemeanor.

(A) Except as otherwise provided in Subsection (B) of this Section:

(1) An animal may be declared dangerous by the Animal Regulation Officer if it constitutes a physical threat to human beings or to other animals and, on two separate occasions within eighteen months:

(a) It behaves menacingly to a degree that would lead a reasonable person to defend himself against substantial bodily harm; or

(b) It bites a person, but without causing substantial bodily harm.

(2) An animal may be declared dangerous by the Animal Regulation Officer if it constitutes a physical threat to human beings or to other animals and, without regard to any previous behavior:

(a) It is used in the commission of a crime by its owner or keeper;

(b) While either at large or restrained, it causes serious injury or death to another animal that is not at large or is not otherwise in violation of this Title; or

(c) It exhibits a condition or behavior which causes the Animal Regulation Officer to believe the animal is a threat to public safety.

(3) An animal may be declared vicious by the Animal Regulation Officer if it constitutes a physical threat to human beings or to other animals and:

(a) It has killed or inflicted substantial harm upon a human being or other animal; or

(b) After having previously been declared dangerous, with notice of the declaration having been provided to the owner or keeper, it continues to exhibit the same type of behavior which resulted in the declaration, or is in violation of the provisions of Section 7.16.030.

(B) (1) An animal may not be declared dangerous pursuant to this Section for constituting a physical threat:

(a) To another animal which, or person who, provoked the animal as a result of and to the extent of the provocation;

(b) To another animal which, or person who, was unlawfully upon premises owned or occupied by the owner or keeper of the animal constituting the threat;

(c) To another animal which was running at large or otherwise in violation of this Title; or

(d) In connection with its use by law enforcement officers in the performance of their duties.

(2) An animal may not be declared vicious pursuant to this Section for constituting a physical threat:

(a) To another animal which, or person who, provoked the animal, as a result of and to the extent of the provocation;

(b) To another animal which, or person who, was unlawfully upon premises owned or occupied by the owner or keeper of the animal constituting the threat; or

(c) In connection with its use by law enforcement officers in the performance of their duties.

(Ord. 5220 § 23, 2000: Ord. 3618 § 83, 1991)

7.16.020 Vicious animals—Ownership unlawful.

It shall be unlawful for:

(A) Any person to knowingly possess, house, shelter, quarter, own or in any other way have under his control, or to transfer ownership of, a vicious or dangerous animal within the City, except as provided in this Chapter; or

(B) The owner, or any person having possession, custody or control, of a dangerous or vicious animal to permit the animal to be at large.

(Ord. 5220 § 24, 2000: Ord. 3618 § 84, 1991)

7.16.030 Vicious animals—Ownership permitted when.

Any animal which is declared to be dangerous by the Animal Regulation Officer may be kept within the City, provided that:

(A) Within fourteen days after the owner or keeper is notified of the declaration, the area in which the owner or keeper intends to keep the animal must pass an inspection by the Animal Regulation Officer, and the owner or keeper must obtain from the Animal Regulation Officer a permit to keep the animal, based upon such terms and conditions as the Animal Regulation Officer deems appropriate. A nonrefundable inspection fee of fifty dollars will be charged the owner or keeper. For purposes of this Subsection (A), notice of the declaration shall be deemed complete if it is served personally, or upon mailing by certified mail, return receipt requested, sent to the last known address of the owner or keeper.

(B) The animal shall be kept, confined or housed within an enclosure:

(1) That will ensure the animal's retention and comfort, is of a size to permit the animal to stand upright, and is of a dimension deemed adequate by the Animal Regulation Officer; and

(2) That is secure enough so that the animal cannot bite, harm or injure anyone by overreaching the top of the fence or other enclosure.

(C) At no time shall the animal be allowed to leave the private property confines of the owner or person in charge of the animal unless it is muzzled, leashed and under the effective control of an adult.

(D) The private property shall be adequately and properly posted with conspicuous warning signs, with a listing of the name and telephone number of the owner of the animal.

(E) The animal must be sterilized by a licensed veterinarian. The owner or keeper shall maintain all sterilization records, including the type of animal sterilized, the name of the veterinarian performing the procedure, and the date the sterilization was performed.

(F) The animal shall be implanted with an electronic microchip from a manufacturer approved by the Animal Regulation Officer. The implantation must be performed by a licensed veterinarian and must conform to procedures recommended by the manufacturer. The owner or keeper shall register the microchip number in a national database in accordance with instructions from the manufacturer, and shall provide the number to the Animal Protection Services Officer.

(G) The owner or keeper shall obtain and maintain in effect a policy of liability insurance in the amount of not less than fifty thousand dollars insuring against possible injuries inflicted by the dangerous animal. The liability insurance shall be maintained in effect as long as the owner or keeper maintains possession of the dangerous animal.

(H) The owner of a dangerous animal may not sell, relocate or give away the animal without first obtaining prior written approval from an Animal Protection Services Officer. If such a transaction is approved, the owner or transferee shall pay a nonrefundable inspection fee of fifty dollars for inspection of the new location for the animal. The owner or transferee shall also have the national microchip number updated in the national database to reflect the change in ownership, and shall provide evidence of the update to the Animal Protection Services Officer.

(Ord. No. 6816, § 39, 8-17-22; Ord. 5497 § 3, 2002: Ord. 5220 § 26, 2000: Ord. 3618 § 85, 1991)

7.16.040 Permit revocation conditions.

(A) Any permit issued under Section 7.16.030 shall be revoked if the animal, without provocation, bites or attempts to bite any person or animal lawfully upon the permit holder's property or upon any other property.

(B) Any person who keeps a dangerous animal after his permit has been revoked or any person who keeps, houses, quarters, or in any way has under his care or custody a dangerous animal without first obtaining a permit as set forth in Section 7.16.030 is guilty of a misdemeanor.

(Ord. 5220 § 27, 2000: Ord. 3618 § 86, 1991)

7.16.050 Criminal complaint—Hearing process.

(A) The owner or keeper of any animal declared vicious by the Animal Regulation Officer shall be notified by personal service or by certified mail, return receipt requested, sent to the last known address of the owner or keeper. Within ten days after notice has been served personally or deposited in the mail, the owner or keeper shall voluntarily transfer possession of the animal to the Animal Regulation Officer and do one of the following:

(1) Voluntarily relinquish ownership of the animal for euthanasia in accordance with the provisions of LVMC 7.20.040;

(2) Provide written proof to the Animal Regulation Officer that the animal has been euthanized by a properly licensed veterinary clinic; or

(3) File with the Animal Regulation Officer a written request for hearing before a hearing officer to determine if the declaration that the animal is vicious should be upheld. The owner or keeper may not maintain possession of the animal during the hearing process.

(B) If a hearing is requested within the specified time period, the Animal Regulation Officer shall present the matter to the hearing officer no later than forty-five days after receipt of the written request for hearing. The hearing officer shall act expeditiously to decide the matter and may:

(1) Uphold the vicious animal declaration;

(2) Recommend that the owner or keeper obtain a dangerous animal permit, if appropriate; or

(3) Take such other action as the hearing officer deems appropriate.

(C) If the hearing officer upholds the vicious animal declaration, the Animal Regulation Officer may proceed to destroy the animal, but not until at least ten days have elapsed from the date the owner or keeper receives notice of the decision. Within that ten-day period, the owner or keeper of the animal shall have the right to seek appropriate relief in the Municipal Court.

(D) As an alternative to the procedure set forth in Subsections (A) through (C) of this Section, the question of whether an animal should be declared vicious may be referred to a hearing officer by the Municipal Court in connection with the filing and processing of a criminal complaint. The hearing officer shall hold an informal hearing and report his or her findings and recommendations to the Court. If a defendant is found guilty of violating this Title and the hearing officer recommends that the animal be destroyed, the Court may order the destruction of the animal as part of the defendant's sentence. The Court is not bound by any recommendations of the hearing officer and may in its discretion order that an animal be destroyed notwithstanding a contrary recommendation by the hearing officer.
(Ord. No. 6172, § 6, 12-7-11; Ord. 5220 § 28, 2000: Ord. 3618 § 87, 1991)

CHAPTER 7.20 IMPOUNDMENT

7.20.010 Impoundment authorized when—Release conditions.

(A) Unless otherwise directed by the Animal Regulation Officer, and subject to the provisions of Subsection (B), any dog or cat running at large wearing a current City license tag as required by this Title may be returned to its owner by the Animal Protection Services Officer if the dog or cat:

(1) Is captured within a one mile radius of the owner's residence;

(2) Has not previously been returned to its owner pursuant to this Subsection within the past six months;

(3) Can be secured at the residence of the owner, and the owner is home and willing to take possession of the dog or cat; and

(4) Has been spayed or neutered in accordance with Chapter 7.14, if so required by that Chapter.

(B) Any dog or cat running at large may be impounded by the Animal Protection Services Officer at the Animal Protection Services Center if the dog or cat:

(1) Does not qualify to be returned to its owner pursuant to Subsection (A);

(2) Is afflicted or suspected of being afflicted with rabies;

(3) Has a history of biting;

(4) Is a vicious animal;

(5) Is sick or injured and the owner cannot be personally contacted or is unable to take immediate possession of the dog or cat; or

(6) Has not been spayed or neutered in accordance with Chapter 7.14 and is required by that Chapter to be spayed or neutered, all as determined by the Animal Protection Services Officer.

(C) Upon proof of ownership, the owner shall be able to remove the dog or cat from impoundment, subject to the provisions of this Section and LVMC 7.20.080, upon payment of an impound fee of twenty-five dollars plus payment of boarding fees of ten dollars per day or part thereof; provided, however, these impound and boarding fees may be waived or partially waived if the owner is indigent and qualifies, pursuant to regulations adopted by the Animal Regulation Officer, for such waivers. Fees paid pursuant to this Subsection shall go to the credit of the City.

(D) If any such animal is licensed and the license tag has been lost, the same shall, before the release of the animal from the Animal Protection Services Center, be replaced at the expense of the owner at a cost of five dollars, payable to the Animal Regulation Officer.

(E) If such dog or cat is unlicensed, its release shall be conditioned upon the delivery of a certificate of vaccination to the Animal Regulation Officer, and the payment to said Animal Regulation Officer of the license fee in accordance with the provisions of this Title, whereupon such owner so reclaiming such dog or cat shall be entitled to a license and numbered license tag.

(F) If the dog or cat is unvaccinated, the owner shall also be required to have the dog or cat vaccinated prior to release.

(G) If the dog or cat has not been spayed or neutered in accordance with Chapter 7.14 and is required by that Chapter to be spayed or neutered, the owner shall also be required to have the dog or cat spayed or neutered prior to release.
(Ord. No. 6816, § 40, 8-17-22; Ord. No. 6067, § 2, 11-18-09; Ord. 4091 § 1, 1997: Ord. 3618 § 90, 1991)

7.20.020 Copulating season—Confinement required—Impoundment.

It is unlawful for the owner of any unspayed female dog or cat to suffer, permit, or allow their dog or cat to run at large while the dog or cat is in its copulating season, and the owner of such female dog or cat shall keep the same secured upon the owner's premises in an adequately enclosed area or in a boarding kennel so that other dogs or cats shall not have access thereto. Every female dog or cat which is not kept in conformance with this Section shall be immediately seized and impounded in the Animal Protection Services Center and held subject to the provisions of this Chapter.
(Ord. No. 6816, § 41, 8-17-22; Ord. No. 6067, § 3, 11-18-09; Ord. 3618 § 91, 1991)

7.20.030 Copulating season—Charges—Release to owner.

(A) The fee for impounding such dog or cat as provided in Section 7.20.020 shall be fifty dollars, plus ten dollars per day or any part thereof, twenty-five dollars of which can, at the option of the owner, be applied toward the spaying of the dog or cat at a veterinarian of the owner's choice if the spaying is performed within ninety days. The Animal Regulation Officer shall forward the twenty-five dollars to the veterinarian upon the latter's proof of the spaying of the dog or cat.

(B) If a dog or cat running at large in copulating season is captured by the Animal Regulation Officer for the second time within a five-year period of the first capture in copulating season, then a fine of one hundred dollars plus ten dollars per day for any time over twenty-four hours shall be levied by the City.

(C) All subsequent captures in copulating season within a five-year period of the first capture shall cause a fine of one hundred fifty dollars plus ten dollars per day for any time over twenty-four hours to be levied by the City.
(Ord. No. 6067, § 4, 11-18-09; Ord. 3618 § 92, 1991)

7.20.035 Community cats.

(A) Notwithstanding any other provision of this Title, a duly recognized animal welfare society, humane organization or animal clinic, in order to encourage the stabilization of the community cat population in the City, may, at its own expense, do the following with respect to a community cat:

(1) Trap the animal in a humane manner;

(2) Have the cat properly sterilized and vaccinated for rabies; and

(3) Release the cat either:

(a) To an Animal Protection Services Officer for adoption or other disposition in accordance with law, or

(b) To a community cat colony within the vicinity of the cat's territory in accordance with Chapter 7.22.

(B) The licensing requirements of this Title shall not apply to any cat that has been released pursuant to Subsection (A) and to the extent that:

(1) The releasing organization has ear-tipped the cat or otherwise identified it as a community cat that has been properly sterilized and vaccinated; and

(2) The releasing organization has created and maintains a record of the release.

(C) The Animal Protection Services Officer may impound any community cat if:

(1) The cat poses a threat to public safety or health by reason of a disease or condition which may be transmitted to other animals or humans;

(2) The behavior of the cat would subject its owner to liability under Chapter 7.36; or

(3) With respect to that cat, the releasing organization or the person to whom the cat is released fails to comply with the requirements of this Section.

(Ord. No. 6816, § 42, 8-17-22; Ord. No. 6490, § 7, 12-16-15; Ord. No. 6179, § 8, 3-7-12; Ord. 5220 § 29, 2000: Ord. 3733 § 1 1993)

7.20.040 Voluntary impoundment.

(A) Any animal brought to the Animal Protection Services Center by any person purporting to be the owner thereof, to be impounded or destroyed, shall be kept by the designated Animal Protection Services Center for a period not less than twenty-four hours after impoundment and before disposition as required by law; the person purporting to be the owner of said animal shall pay a reasonable fee to be determined by the Animal Regulation Officer to personnel of the Animal Protection Services Center upon the delivery of said animal.

(B) Any sick or injured animal impounded may be euthanized at any time after impoundment, if, in the professional judgment and certification of a veterinarian, inhumane suffering may be prevented thereby.

(C) Litters of animals up to three months of age and the nursing mothers thereof impounded by the owner for purposes of adoption may be made available for adoption by the public immediately after impoundment.

(Ord. No. 6816, § 43, 8-17-22; Ord. 3618 § 93, 1991)

7.20.050 Animal Protection Services Officer duties.

The Animal Protection Services Officer shall capture any large or dangerous dog or cat found running at large within the City.

(Ord. No. 6816, § 44, 8-17-22; Ord. 3618 § 94, 1991)

7.20.060 Right of entry.

The Animal Protection Services Officer or any peace officer shall have the right for just cause to enter upon any private or public property in the City in order to examine or capture any animal thereon or therein; provided, however, that no such officer shall have the right to enter a house or structure which is in use as a residence without having first secured a search warrant therefor.

(Ord. No. 6816, § 45, 8-17-22; Ord. 3618 § 95, 1991)

7.20.070 Means of capture.

The Animal Regulation Officer and any Animal Protection Services Officer shall have the authority, when deemed reasonably necessary, to utilize any weapon, device or substance in order to apprehend, capture, control, or subdue any animal running at large, or considered to be a threat to persons or property in the immediate area.

(Ord. No. 6816, § 46, 8-17-22; Ord. 3618 § 96, 1991)

7.20.080 Holding period—Fees—Release or destruction of animals.

(A) Any animal impounded in the Animal Protection Services Center as provided in this Title shall be kept for a minimum of seventy-two hours; provided, however, that:

(1) Any such animal may, after the first seventy-two hours, be released to any person who shall pay all reasonable veterinary medical costs incurred by the City and any other fees and charges as required in this Title;

(2) If ownership is proven, the owner may pick up the animal at any time contingent on compliance with all provisions of this Title; and

(3) With respect to a community cat governed by Chapter 7.22, any contrary provision of that Chapter shall govern.

(B) If the ownership of an animal is not proven or if such animal is not released pursuant to Subsection (A) of this Section within seventy-two hours, or within the ten-day period of observation for rabies as provided in Chapter 7.24, the animal may be destroyed in a humane manner in compliance with and pursuant to the provisions of Sections 7.32.260 through 7.32.290, under the direction of the Animal Regulation Officer.

(C) If the animal is on a court or Animal Regulation Officer's hold to determine if the animal is vicious, the owner must pay the impound fee of twenty-five dollars plus payment of boarding fees of ten dollars per day or any part thereof until the animal has been released. Payment shall go to the credit of the City.

(D) Any sick or injured animal may be euthanized at any time after impoundment if inhumane suffering may be prevented in the professional judgment and certification of the shelter services or contracted veterinarian.
(Ord. No. 6816, § 47, 8-17-22; Ord. No. 6490, § 8, 12-16-15; Ord. No. 6067, § 5, 11-18-09; Ord. 5220 § 30, 2000: Ord. 3618 § 97, 1991)

7.20.090 Release—Conditions.

No dog or cat impounded under the provisions of this Chapter shall be released to any person except upon performance of the following conditions:

(A) There has been presented to the Animal Regulation Officer a current license for such dog or cat issued by the City, County or one of their political subdivisions, or a current license from any other state or nation, or a political subdivision of the same, by the person owning or possessing such dog or cat;

(B) Where the person owning, keeping, harboring, or possessing such dog or cat is a resident of the City and the dog or cat is unlicensed, there has been paid to the Animal Regulation Officer the license fee for a City dog or cat license as provided by law;

(C) There has been paid all appropriate licensing and certification fees as provided by law;

(D) The Animal Regulation Officer has determined that such dog or cat does not have or is not reasonably suspected of having rabies;

(E) The dog or cat has been spayed or neutered in accordance with Chapter 7.14, if so required by that Chapter; and

(F) The dog or cat has been microchipped pursuant to Section 7.20.105 and the cost thereof paid by the person to whom the dog or cat is released.

(Ord. No. 6067, § 6, 11-18-09; Ord. 3618 § 98, 1991)

7.20.100 Adoption—Sterilization—Microchipping.

(A) In order for a person to adopt a dog or cat older than four months from the Animal Protection Services Center, the dog or cat must first be sterilized.

(B) In order for a person to adopt any animal from the Animal Protection Services Center, the animal must first be microchipped pursuant to Section 7.20.105.

(C) The person adopting an animal pursuant to this Section must first pay an adoption fee, plus the costs of sterilization, rabies vaccination and microchipping.

(Ord. No. 6816, § 48, 8-17-22; Ord. No. 6067, § 7, 11-18-09; Ord. 3618 § 99, 1991)

7.20.105 Reserved.

Editor's note—Ord. No. 6850, § 5, adopted October 18, 2023, repealed § 7.20.105, which pertained to microchipping—defined and derived from Ord. No. 6067, adopted November 18, 2009.

7.20.110 Release—Vaccination required.

After the animal has been vaccinated, or the fee for vaccination has been paid, and if all the conditions of this Title have been satisfied, the Animal Protection Services Officer shall release such dog or cat to the owner, or to the person applying for the release of such animal as herein provided.

(Ord. No. 6816, § 49, 8-17-22; Ord. 3618 § 100, 1991)

7.20.120 Release—Rabies suspicion.

If the Animal Protection Services Officer suspects that any dog or cat so impounded has rabies, he shall hold such animal for inspection by a veterinarian. In the event that such animal is afflicted with rabies, it shall be disposed of or confined for such time as the Health Officer shall direct. Whenever the veterinarian determines that such dog or cat does not have rabies, it shall be released as provided herein.

(Ord. No. 6816, § 50, 8-17-22; Ord. 3618 § 101, 1991)

7.20.130 Determination of owner indigency.

For the purposes of this Title, a dog or cat owner is deemed to be indigent if his or her annual income is at or below the poverty threshold established by the Census Bureau of the United States Department of Commerce for the year in question.
(Ord. 4091 § 2, 1997)

CHAPTER 7.22 COMMUNITY CATS*

7.22.010 Purpose.

The purpose of this Chapter is to establish a mechanism by which community cat colonies may function within the City in conjunction with Section 7.20.035 and with other provisions of this Title that might otherwise govern or apply. The Animal Regulation Officer may elect to:

(A) Use this Chapter independently;

(B) Have this Chapter be the basis for entering into an interlocal contract or cooperative agreement with another jurisdiction regarding community cat colonies, following which:

(1) The application of this Chapter will be superseded by the contract or agreement; and

(2) The subject matter of this Chapter will be governed by that contract or agreement; or

(C) Use this Chapter in connection and concurrently with such a contract or agreement, with the means of doing so set forth in the contract or agreement.
(Ord. No. 6490, § 9, 12-16-15)

7.22.020 Registration—Conditions.

Community cat caregivers shall be entitled to maintain and care for community cats by providing food, water, shelter, medical care and other forms of sustenance. In connection with the implementation of this Chapter, community cat caregivers, rescue organizations, animal shelters, the Animal Protection Services Center, and others are authorized to carry out TNR programs.
(Ord. No. 6816, § 51, 8-17-22; Ord. No. 6490, § 10, 12-16-15)

***Editor's note—**Ord. No. 6490, §§ 9—12, adopted December 16, 2015, in effect repealed Chapter 7.22, §§ 7.22.010—7.22.070, and enacted a new Chapter 7.22 as set out herein. The former Chapter 7.22 pertained to feral cat colonies and derived from Ord. No. 6179, adopted March 7, 2012.

7.22.030 Responsibilities.

(A) It shall be the responsibility of a community cat caregiver to:

(1) Take all appropriate and available steps to trap each community cat in the colony in order to have the cat sterilized, vaccinated for rabies, and ear tipped, and to monitor for new community cats that join the colony; and

(2) Seek medical attention for any sick or injured community cat within the colony.

(B) A community cat caregiver who provides food, water and shelter to community cats as allowed by this Chapter shall not be considered to be violating the following provisions of this Title, unless the person's actions are determined to be more like the actions of an actual owner or person in custody and control of the cats than a community cat caregiver:

(1) Any limitations in Chapter 7.08 on the number of cats cared for; and

(2) The prohibitions of Chapter 7.36.

(Ord. No. 6490, §§ 11, 12, 12-16-15)

7.22.040 Disposition of community cats.

(A) If a community cat with a tipped ear is trapped and turned into the Animal Protection Services Center or any other animal shelter, employees or volunteers may immediately return the cat to the location where it was trapped if they determine that the cat is healthy and has been successfully living outdoors. With respect to any such cat, the Animal Protection Services Center or other animal shelter is exempt from the mandatory hold period in LVMC 7.20.080 and may hold any such cat for the time limit established in the current shelter policy.

(B) If a community cat that has a microchip or identification tag is trapped and turned into the Animal Protection Services Center or any other animal shelter, the cat must be held in accordance with LVMC 7.20.080. After the mandatory hold period, such cat may be:

(1) Returned to its owner, if known;

(2) Processed for adoption through the regular adoption process; or

(3) Returned to the location where it was trapped if it is healthy, is deemed to have been successfully living outdoors, and has been sterilized, vaccinated for rabies, and ear tipped.

(C) If a community cat that does not have a tipped ear or microchip or identification tag is trapped and turned into the Animal Protection Services Center or any other shelter, the Animal Protection Services Center or other animal shelter is exempt from the mandatory hold period in LVMC 7.20.080. If such cat is healthy, the cat may be:

(1) Processed for adoption through the regular adoption process; or

(2) Returned to the location where it was trapped if it is deemed to have been successfully living outdoors and has been sterilized, vaccinated for rabies, and ear tipped.

(D) Except in the case of extreme injury, illness or suffering, no community cat that is has been trapped and turned in to the Animal Protection Services Center or other animal shelter may be euthanized until the minimum impound period has expired.
(Ord. No. 6816, § 52, 8-17-22; Ord. No. 6490, §§ 11, 12, 12-16-15)

7.22.050 Compliance.

(A) The Animal Regulation Officer or an Animal Protection Services Officer shall have the right to trap in a humane manner any community cat that is deemed to be a threat to public health or safety. If a licensed veterinarian decides that the cat is too ill or injured or that it has an illness that presents an imminent danger to the public health or safety or to itself, or if the cat has bitten a human being, the cat may be humanely euthanized. After any applicable mandatory quarantine period, a community cat that has been found to be healthy and does not pose any other issue of public health or safety exist, the cat may be returned to the location where it was trapped if it has been sterilized and vaccinated, as deemed necessary.

(B) The Animal Regulation Officer shall have the authority to declare that a particular community cat colony or community cat is in a location that is hazardous to the health and safety of the public or that the colony or cat is a nuisance. A community cat that has been impounded from a colony that has been declared a hazard or nuisance pursuant to this Section shall not be released to the location of the colony unless the hazard or nuisance is remedied and the release has been approved by the Animal Regulation Officer. The disposition provisions of LVMC 7.22.040 shall apply to any cat impounded pursuant to this Section.
(Ord. No. 6816, § 53, 8-17-22; Ord. No. 6490, §§ 11, 12, 12-16-15)

7.22.060 Release of community cats.

The release of a community cat in accordance with this Chapter shall not be deemed a violation of LVMC 7.32.010.
(Ord. No. 6490, §§ 11, 12, 12-16-15)

CHAPTER 7.24 RABIES PREVENTION AND QUARANTINE

7.24.010 Quarantine authority generally.

The Health Officer may, by public notice and proclamation, quarantine any animal in any area of the City where he finds rabies or other disease to exist. During such quarantine period and until public notice of its termination has been given by the Health Officer, each animal in that area must be securely confined by its owner. All such designated animals found at large in that area during such period may be impounded, quarantined, or destroyed at the order of the Health Officer.
(Ord. 3618 § 104, 1991)

7.24.020 Biting animal—Reporting.

Any person, including the owner of an animal, who has knowledge that the animal has bitten a human being has a duty to promptly report the same to the Health Officer or the Animal Protection Services Officer, and to provide all pertinent information requested by them.
(Ord. No. 6816, § 54, 8-17-22; Ord. 5497 § 4, 2002: Ord. 3618 § 105, 1991)

7.24.030 Biting animal—Confinement if vaccinated.

(A) A home confinement may be approved by the Animal Protection Services Officer. If the biting animal has been properly vaccinated against rabies, it shall be the duty of the person owning, possessing or having the care, custody and control of said animal to confine such animal separately and securely in an enclosed building or lot for a period of ten days, and shall comply with the terms and conditions of the home confinement approval by the Animal Protection Services Officer. If the biting animal is considered vicious by the Animal Protection Services Officer, the owner shall immediately relinquish custody of the animal upon demand by the Animal Protection Services Officer, and the animal will be impounded at the Animal Protection Services Center. In the event such animal develops any illness during such period of time, the owner or person having the care, custody, and control must promptly notify a veterinarian, who shall make such examination as he deems necessary and report to the Animal Protection Services Officer in the event said animal is deemed to have rabies, and said animal shall be handled in accordance with the provisions hereof.

(B) The maximum period of confinement for observation of the vaccinated animal confined at the Animal Protection Services Center shall be ten days, even if said animal is obtained from any other governmental entity, including, but not limited to, the State, the County, the City of North Las Vegas, the City of Henderson, and the City of Boulder City. If the animal is not released after the maximum ten-day period, as provided by law, it may be destroyed thereafter, except when the animal has a hold on it.
(Ord. No. 6816, § 55, 8-17-22; Ord. 5497 § 5, 2002: Ord. 3618 § 106, 1991)

7.24.040 Biting animal—Confinement if unvaccinated.

(A) In the event the biting animal has not been vaccinated against rabies, said animal shall be confined, at the owner's expense, separately, in either the animal quarters at the business premises of a veterinarian, at a commercial kennel, or in the City Animal Protection Services Center for a period of ten days' observation, and if not released as provided by law, may be destroyed thereafter. Such animal shall not be released before suitable provisions for vaccination and licensing have been made as set forth in this Title. If the biting animal is considered vicious by the Animal Protection Services Officer, the animal will be impounded at the Animal Protection Services Center.

(B) The maximum period of confinement for observation of the unvaccinated animal confined at the Animal Protection Services Center shall be ten days, even if said animal is obtained from any other governmental entity, including, but not limited to, the State, the

County, the City of North Las Vegas, the City of Henderson, and the City of Boulder City. If the animal is not released after the maximum ten-day period, as provided by law, it may be destroyed thereafter, except when the animal has a hold on it.
(Ord. No. 6816, § 56, 8-17-22; Ord. 3618 § 107, 1991)

7.24.050 Rabies suspect—Confinement and release conditions.

(A) Upon the receipt by the Animal Protection Services Officer of any animal believed to be afflicted with rabies, which has been bitten by any animal afflicted or suspected of being afflicted with rabies, or which has been exposed to the infection of rabies, the Animal Protection Services Officer shall separately confine such animal and shall immediately notify a veterinarian and the Health Officer. The veterinarian or Health Officer shall thereupon make such examination of the animal as may be deemed necessary. If, upon such examination, it is determined that such animal is afflicted with rabies, the Animal Protection Services Officer shall be so advised.

(B) It shall be the duty of the Animal Protection Services Officer to keep such animal suspected of having rabies confined for such time as the veterinarian or Health Officer may direct, and such animal shall not be redeemed or released except upon written order signed by the Health Officer. Such animal shall not be released before suitable provisions for vaccination and licensing have been made as set forth in this Title.

(C) The cost of all examinations shall be borne by the owner of said animal.
(Ord. No. 6816, § 57, 8-17-22; Ord. 3618 § 108, 1991)

7.24.060 Rabies suspect—Impoundment—Destruction procedures.

It shall be the duty of the Animal Protection Services Officer to impound any animal found in or upon any public street, alley or other public place, or in or upon any lot or premises, whether public or private, if such animal is known to have or suspected of having rabies, or known to have been bitten by any animal having or suspected of having rabies, and such animal shall be brought immediately before the Health Officer and a veterinarian for determination of whether the animal shall be destroyed or impounded. If destruction of the animal is required, destruction shall be accomplished in such manner as to preserve intact the head. Such head shall promptly and without delay be properly removed and packaged for shipment for laboratory analysis as prescribed by the Health Officer.
(Ord. No. 6816, § 58, 8-17-22; Ord. 3618 § 109, 1991)

7.24.070 Rabies suspect—Period of confinement.

The maximum period of confinement for observation at the Animal Protection Services Center of an animal known to have or suspected of having rabies shall be ten days, even if said animal is obtained from any other governmental entity, including, but not limited to, the State, the County, and the cities of North Las Vegas, Henderson, and Boulder City. If the animal is not released after the maximum ten-day period, as provided by law, it may be

destroyed thereafter. Any other animal known to have or suspected of having rabies shall be confined for observation at the Animal Protection Services Center for such necessary period of time as shall be determined by the Health Officer, but in no event less than ten days.
(Ord. No. 6816, § 59, 8-17-22; Ord. 3618 § 110, 1991)

7.24.080 Owner to report suspicion.

Whenever any person owning, possessing or having the custody or control of an animal shall observe or learn that such animal shows symptoms of rabies, or acts in a manner which would lead to a reasonable suspicion that it may have rabies, he shall immediately notify a veterinarian or the Health Officer to make an inspection or examination of such animal until it shall be established to the satisfaction of said veterinarian or Health Officer that such animal has or does not have rabies. There shall be immediate notification to the Health Officer and the Animal Regulation Officer of any animal which dies during quarantine and any such animal shall be preserved for laboratory analysis.
(Ord. 3618 § 111, 1991)

7.24.090 Bitten animals.

Whenever any animal is bitten by another animal suspected of having rabies, the owner of the bitten animal and the owner of the biting animal shall immediately notify the Health Officer and the Animal Protection Services Officer who, in their discretion, may quarantine such animals for a period to be determined and in such manner as prescribed by the Health Officer.
(Ord. No. 6816, § 60, 8-17-22; Ord. 3618 § 112, 1991)

7.24.100 Right of entry.

The Health Officer is hereby empowered to enter upon any private or public property for the purpose of ascertaining whether any animal kept or harbored therein is afflicted with rabies.
(Ord. 3618 § 113, 1991)

7.24.110 Duty of Health and Animal Protection Services Officers.

If it shall appear to the Health Officer or Animal Protection Services Officer that an animal has rabies, he shall forthwith impound for observation such animal until released by the Health Officer.
(Ord. No. 6816, § 61, 8-17-22; Ord. 3618 § 114, 1991)

7.24.120 Animal bite record.

It shall be the duty of the Animal Regulation Officer to keep an accurate record of all reports of animal bites, including the place of occurrence, time of report, person making the

report, disposition of the case, and such other information as may be required by the Animal Regulation Officer or the Health Officer. Each such case shall be investigated and the animal properly dealt with in accordance with the provisions of this Chapter.
(Ord. 3618 § 115, 1991)

CHAPTER 7.28 ANIMAL CLINIC

7.28.010 Establishment—Purpose.

The City Council is hereby authorized and empowered to establish or designate a clinic to perform low-cost spays, neuters and health inoculations on, and administer birth-control drugs or devices to, animals belonging to the general public. The clinic is authorized to charge reasonable fees for those services in amounts established:

(A) By the Animal Regulation Officer, if the clinic is operated by the City; or

(B) Otherwise, in accordance with an agreement between the City and the operator of the clinic.

(Ord. 5497 § 6, 2002: Ord. 3618 § 116, 1991: Ord. 1777 § 2 (part), 1975: prior code § 6-2-8 (A))

7.28.020 Consent for services—Liability waiver.

(A) A person submitting an animal for such services shall sign a consent form stating thereon that he or she is the owner of said animal or is otherwise authorized to present the animal for the services contemplated in Section 7.28.010 and such person may be required to furnish proof of such ownership or authority.

(B) Such consent shall contain a waiver and indemnity from any and all liability of the City and any City employees, agents or servants for any injury or death to an animal arising out of the aforementioned operations or services provided thereto.
(Ord. 1777 § 2 (part), 1975: prior code § 6-2-8 (B))

7.28.030 Pickup date—Board and care charges.

The clinic shall establish a return date by which the person submitting the animal for the above operations or services shall pick up said animal or otherwise be responsible for a reasonable board and care fee to commence after such return date. Failure to pick up an animal within seventy-two hours of said return date shall be deemed abandonment of such animal and the Animal Protection Services Center may dispose of it according to law.
(Ord. No. 6816, § 62, 8-17-22; Ord. 3618 § 117, 1991: Ord. 1777 § 2 (part), 1975: prior code § 6-2-8 (C))

CHAPTER 7.32 CRUELTY

7.32.010 Abandonment.

It shall be unlawful for any person owning, possessing or having the care, custody and control of any animal, living or dead, to go away and leave without adequate care and control

the same in a public street, road, alley, or any other public place, or upon the private property of himself or another. The preceding prohibition does not apply to the release of a community cat in accordance with LVMC Chapter 7.22.
(Ord. No. 6490, § 13, 12-16-15; Ord. 5497 § 7, 2002: Ord. 3618 § 120, 1991)

7.32.020 Protective care by officer.

Whenever an Animal Protection Services Officer finds that any animal is, or will be, without proper care, the Animal Protection Services Officer may take such animal into protective care; and in the event of sickness, injury or abuse of the animal, the Animal Protection Services Officer may take any action to prevent undue pain and suffering, including impoundment or immediate destruction of the animal.
(Ord. No. 6816, § 63, 8-17-22; Ord. 3618 § 121, 1991)

7.32.030 Poisoning.

It shall be a misdemeanor for any person unjustifiably to administer any poisonous drug or substance with intent that the same shall be taken by an animal, whether such animal is the property of himself or another, or whether said drug or substance is exposed upon such person's property, the private property of another, or any public place; provided, that nothing herein shall be construed to prevent or restrict the Animal Regulation Officer or Health Officer in the exercise and performance of the powers and duties in this Title.
(Ord. 3618 § 122, 1991)

7.32.040 Placing injurious substances to harm animals.

It shall be a misdemeanor for any person to wilfully throw, drop or place, or cause to be thrown, dropped or placed upon any road, highway, street, alley or public place, or upon the private property of himself or another, any glass, nails, pieces of metal or other substance or device calculated to wound, disable or injure any animal.
(Ord. 3618 § 123, 1991)

7.32.050 Vehicle confinement—Open trucks.

It shall be a misdemeanor for any person to carry or enclose, or cause to be carried or enclosed, in or upon any vehicle any animal in a cruel or inhumane manner. It shall be a misdemeanor for any person to transport or convey any animal in the bed of an open pickup or similar open vehicle, without making provisions to prevent said animal from jumping or being thrown from said vehicle.
(Ord. 3618 § 124, 1991)

7.32.060 Vehicle confinement—Responsible owner.

No person having charge or custody of an animal, as owner or otherwise, shall place or confine such animal or allow such animal to be placed or confined or to remain in a motor

vehicle under such conditions or for such period of time as may endanger the health or well-being of such animal due to heat, cold, lack of food or drink, or such other circumstances as may reasonably be expected to cause suffering, disability or death.
(Ord. 3618 § 125, 1991)

7.32.070 Vehicle confinement—Vehicle owner.

No person having dominion or control over a motor vehicle, as owner or otherwise, shall place or confine an animal or allow an animal to be placed or confined or to remain in a motor vehicle under such conditions or for such period of time as may endanger the health or well-being of such animal due to heat, cold, lack of food or drink, or such other circumstances as may reasonably be expected to cause suffering, disability or death.
(Ord. 3618 § 126, 1991)

7.32.080 Vehicle confinement—Right of entry.

(A) Any peace officer or Animal Protection Services Officer who finds an animal in a motor vehicle in violation of this Chapter may break and enter the motor vehicle causing the minimum damage necessary to safely remove the animal if necessary to remove the animal.

(B) The officer removing the animal shall take the animal to the Animal Protection Services Center or to a veterinary clinic for safekeeping and shall, in the event the person having custody cannot be otherwise contacted, leave in a prominent place in the motor vehicle a written notice bearing the officer's name and office, and the address where the animal may be claimed by the owner thereof.

(C) The animal will be surrendered to the owner if the owner claims the animal within five working days from the time the animal was removed from the motor vehicle and pays all applicable charges that have accrued for the maintenance of the animal.

(D) Any animal impounded in the Animal Protection Services Center as provided in this Title shall be kept for a minimum of seventy-two hours. After that period, the animal may be released to any person, who shall pay all appropriate fees as provided in this Title.
(Ord. No. 6816, § 64, 8-17-22; Ord. 5220 § 31, 2000: Ord. 3618 § 127, 1991)

7.32.090 Found animal—Reporting.

Each person who takes custody of any animal that is lost, abandoned, or apparently running at large, shall report the same to the Las Vegas Animal Protection Services Center immediately after taking custody thereof. For purposes of this Section, an animal shall be considered to be abandoned if:

(A) The person having care, custody or control of the animal leaves the animal without adequate care or control on public or private property; or

(B) The animal has not been claimed by the agreed-upon time after having been boarded, groomed, trained, handled or cared for by a professional animal handler or veterinarian.

(Ord. No. 6816, § 65, 8-17-22; Ord. 5497 § 8, 2002: Ord. 3618 § 128, 1991)

7.32.100 Injury by vehicle—Motorist responsibility.

(A) Every operator of any vehicle upon the streets and ways of the City shall immediately upon injury, striking, maiming or running down any animal give such aid as he is reasonably able to render. In the absence of the animal's owner, he shall immediately notify the Animal Protection Services Officer furnishing sufficient facts relative to such injury.

(B) It is the duty of such operator to remain at or near the scene until the appropriate authorities arrive, and such operator shall immediately identify himself to the appropriate authority.

(C) Alternatively, in the absence of the animal's owner, a person may give aid by taking the animal to a veterinary hospital or the Animal Protection Services Center and thereafter notifying the Animal Regulation Officer. Such animal shall be deemed an uncared for animal within the meaning of Section 7.32.020.

(D) Emergency vehicles are not required to stop but shall notify the Animal Protection Services Officer, furnishing sufficient facts relative to such injury.

(Ord. No. 6816, § 66, 8-17-22; Ord. 3618 § 129, 1991)

7.32.110 Keeping animals for fights—Shooting animals or birds.

(A) It is unlawful for any person to:

(1) Own, keep, or use, or be in any manner connected with or financially interested in the management of, or to receive money or other thing of value for the admission of any person to, a house, apartment, pit or place procured or permitted to be used or occupied for an animal fighting venture;

(2) Instigate, promote, arrange, or carry on an animal fighting venture;

(3) Breed or train any animal for the purpose of using the animal in an animal fighting venture;

(4) Keep or possess any animal under circumstances evincing an intent to use the animal in an animal fighting venture; or

(5) Perform any act as assistant, umpire, principal, spectator or otherwise in a fight between animals, or in aid of or calculated to encourage or further any animal fighting venture.

(B) It is unlawful for any person who is not engaged in training a dog for field trial or hunting, or in staging a field trial or training class, to fire upon any animal, including a pigeon or other bird, unless hunting pursuant to authority granting from the U.S. Government, the State, or one of their respective political subdivisions.
(Ord. 5696 § 2, 2004: Ord. 3618 § 130, 1991)

7.32.120 Injury and overwork.

(A) It shall be a misdemeanor for any person to overdrive, overload, torture or cruelly beat, or unjustifiably injure, maim, mutilate or kill any animal whether belonging to himself or to another, and whether on or off the premises of the owner of said animal.

(B) It shall be a misdemeanor for any person to intentionally trip or fell any equine animal by the legs or any means whatsoever for the purpose of entertainment or sport whether belonging to himself or another, and whether on or off the premises of the owner of said animal.
(Ord. 4037 § 1, 1996: Ord. 3618 § 131, 1991)

7.32.130 Sustenance deprivation.

It shall be unlawful to:

(A) Deprive any animal of necessary sustenance, food, drink or shelter;

(B) Expose any animal to the elements of the weather and to the extremes of heat or cold. Without limiting the general applicability of the preceding language of this Subsection (B), when the temperature is expected to rise above one hundred five degrees Fahrenheit, additional mechanisms appropriate for the animal species, including without limitation misters, swamp coolers or air conditioning, must be provided to allow for the cooling of body temperature and the prevention of overheating;

(C) Fail or refuse to obtain for an animal veterinary care for illness, injury, disease or infirmity; or

(D) Wilfully instigate, engage in, or in any way further an act of cruelty to any animal, or any act to produce such cruelty.
(Ord. No. 6777, § 1, 5-5-21; Ord. 5220 § 32, 2000: Ord. 3618 § 132, 1991)

7.32.135 Greyhound racing prohibited.

(A) "Greyhound" means a purebred greyhound dog registered by the National Greyhound Association.

(B) It is unlawful to conduct greyhound racing within the City of Las Vegas, Clark County, Nevada.
(Ord. 4054 § 1, 1997)

7.32.140 Riding or driving animals while intoxicated.

It shall be a misdemeanor for any person to ride or drive an equine while such person is under the influence of intoxicating liquor or drug.
(Ord. 3618 § 133, 1991)

7.32.150 Reflectors for roadside travel.

It shall be a misdemeanor to drive, ride or lead any animal except dog or cats, upon or beside any public highway, road or way between the hours of sunset and sunrise without having safety reflectors or reflective tape visible from any direction on their tack or body.
(Ord. 3618 § 134, 1991)

7.32.160 Confinement/restraint.

It is unlawful to:

(A) Restrain a dog in violation of NRS 574.100;

(B) Confine an animal in any cage, coop, or fence barrier of a size deemed insufficient by the Animal Protection Services Officer, or to restrict any animal by leash, cord, or chain of a length deemed insufficient for that type of animal by the Animal Protection Services Officer; or

(C) Tether, tie, chain or use other restraint on a dog for longer than ten hours during a twenty-four-hour period or at any time when the National Weather Service issues a heat advisory. This Subsection (C) does not prohibit conduct permitted by NRS 574.100(4) and shall not be deemed to limit the general applicability of Subsection (B).

(Ord. No. 6816, § 67, 8-17-22; Ord. No. 6777, § 2, 5-5-21; Ord. 3618 § 135, 1991)

7.32.170 Trapping—Manner—Care while trapped.

It shall be a misdemeanor for any person to trap any animal with other than a humane "live" trap which will inflict no physical injury upon the animal; and it shall be unlawful for any person to lure or entice, by means of food or otherwise, any animal into other than a humane "live" trap; it shall be unlawful for any person having trapped an animal to leave it without food, water or shelter, for an unreasonable period of time.
(Ord. 3618 § 136, 1991)

7.32.180 Trapping—Disposal.

It shall be a misdemeanor for any person who has trapped an animal, or discovers any animal so trapped, to dispose of it in any fashion not otherwise provided by law, but said person shall call the Animal Protection Services Officer to have said animal picked up, deliver it to the Animal Protection Services Center, or otherwise dispose of it as directed by the Animal Protection Services Officer.
(Ord. No. 6816, § 68, 8-17-22; Ord. 3618 § 137, 1991)

7.32.190 Crating or boxing.

It shall be a misdemeanor for any person to overcrowd any animal in any crate, box or other receptacle, or fail to provide food, water, shelter, or sanitation for same.
(Ord. 3618 § 138, 1991)

7.32.200 Sale—Age requirements.

It shall be a misdemeanor for any person to sell or offer for sale, barter or give away baby chicks, ducklings, other fowl under four weeks of age or rabbits under two weeks of age, as pets or novelties. This Chapter shall not be construed to prohibit the display or sale of natural chicks, rabbits, ducklings or other fowl, in proper breeder facilities by hatcheries, or stores engaged in the business of selling the same to be raised for commercial purposes.
(Ord. 3618 § 139, 1991)

7.32.210 Sale—Business license required.

It shall be a misdemeanor for any person to display, sell or offer for sale, barter, give away, or otherwise dispose of any animal upon any street, sidewalk, public building, public park, or other public place, without the proper business license to do so.
(Ord. 3618 § 140, 1991)

7.32.220 Use of animal—Advertisement purposes.

It shall be a misdemeanor for any person in connection with any advertising campaign or promotion to use, give, sell, or barter, or offer to use, give, sell, or barter, as a gift or prize, any live animal in any manner where there will be a transfer of ownership or possession.
(Ord. 3618 § 141, 1991)

7.32.230 Amusement game—Target.

It shall be a misdemeanor for any owner, operator, or agent or any carnival, fair, or amusement park to use any live animal as or for a target.
(Ord. 3618 § 142, 1991)

7.32.240 Dyeing or coloring baby animals.

It shall be a misdemeanor for any person to dye or color by any means any baby chick, rabbit, duckling or fowl, or to dye or color any animal for purposes of concealing its identity.
(Ord. 3618 § 143, 1991)

7.32.250 Research or medical use.

(A) It shall be a misdemeanor, except as provided in Subsection (B), for any person to sell or offer for sale, buy or offer to buy, barter or offer to barter, give or offer to give, or furnish any animal for experimental, laboratory, vivisection, dissection or teaching purposes.

(B) Any person may sell or offer for sale, buy or offer to buy, barter or offer to barter, give or offer to give, or furnish any animal for properly conducted scientific experiments or investigations which are performed under the authority of the faculty of any regularly incorporated medical college or university of this State, or under the authority of the staff of a licensed hospital or laboratory facility in the course and scope of their work.

(C) Notwithstanding the provisions of Subsection (B), the City Animal Protection Services Center shall not knowingly release an animal to any person who intends to use the animal for experimental, laboratory or vivisection purposes.
(Ord. No. 6816, § 69, 8-17-22; Ord. 5073 § 1, 1998: Ord. 3618 § 144, 1991)

7.32.260 Euthanasia—Permitted methods.

No device or method may be used in the euthanasia of any dog or cat, except the injection of sodium pentobarbital. An exception is permitted if approved by the American Veterinarians Association.
(Ord. 3618 § 145, 1991)

7.32.270 Euthanasia—Permit required.

No employee of a public or private Animal Protection Services Center may use sodium pentobarbital in the euthanasia of animals unless he is certified to use those substances.
(Ord. No. 6816, § 70, 8-17-22; Ord. 3618 § 146, 1991)

7.32.280 Euthanasia—Inspection authority.

Any member of the local Board of Health or member of the Nevada State board of Veterinary Medical Examiners may inspect the operation of any public or private facility used in the euthanasia of animals in this City.
(Ord. 3618 § 147, 1991)

7.32.290 Animal Protection Services Officer—Right of entry.

The Animal Protection Services Officer and any peace officer shall have the right with probable cause to enter upon any private or public property in the City in order to examine or capture any animal thereon or therein; provided, however, that no such officer shall have the right to enter a house or structure which is in use as a residence without having first secured a search warrant therefor.
(Ord. No. 6816, § 71, 8-17-22; Ord. 3618 § 148, 1991)

CHAPTER 7.36 NUISANCES

7.36.010 Noise annoyance.

It shall be a misdemeanor for any person to wilfully permit or allow any animal kept, possessed, maintained or otherwise controlled by such person to engage in continuous

barking, yelping, braying or the creation of other loud noise. A noise is "continuous" for purposes of this provision if, because of its duration or repetition, a reasonable person would consider it an unreasonable invasion of the peace and quiet of a neighboring resident.
(Ord. 4029 § 1, 1996: Ord. 3618 § 151, 1991)

7.36.020 Interfering with pedestrians.

It is unlawful for the owner or any person having possession, custody or control of any animal to allow the animal to interfere with a pedestrian or vehicle traffic, trespass on school grounds, or damage the property of another person.
(Ord. No. 6180, § 5, 3-7-12; Ord. 5220 § 33, 2000: Ord. 3618 § 152, 1991)

7.36.030 At large.

(A) Except as otherwise provided in Subsection (B), it is unlawful for the owner of an animal, or any person having possession, custody or control thereof, to allow the animal to be at large, as defined in Section 7.04.090.

(B) Subsection (A) does not apply to any cat or the cat's owner unless the cat has an obvious injury or illness.
(Ord. No. 6490, § 14, 12-16-15; Ord. No. 6180, § 6, 3-7-12; Ord. 5220 § 34, 2000: Ord. 3618 § 153, 1991)

7.36.040 Solid waste nuisances.

It is unlawful for any person owning or having custody or care of any animal to allow the animal to excrete any solid waste upon any public property, upon any real property owned by or leased by another person or upon any common area of an apartment or similar complex; provided, however, that no violation of this Section shall occur if the owner or other person having custody or care of the animal promptly and voluntarily removes the waste.
(Ord. No. 6180, § 7, 3-7-12; Ord. 3618 § 154, 1991)

7.36.050 Restraint and sanitation.

Subject to the provisions of LVMC 7.32.160 and applicable State law, every owner or any person having possession, custody or control of any animal, and keeping the same upon premises under the person's control, shall keep the animal restrained by a fence, cage, coop, chain, leash or other adequate means so that the animal does not leave or escape from the premises upon which it is kept; provided, however, that no person shall keep any such animal unless its living area is kept clean and free from offensive odors, animal wastes, rodents, flies, or any other offensive or unwholesome condition.
(Ord. No. 6777, § 3, 5-5-21; Ord. 5220 § 35, 2000: Ord. 3618 § 155, 1991)

CHAPTER 7.38 WILD AND FARM ANIMALS

7.38.010 Wild animals—Permit required.

(A) No wild animal shall be exhibited in public or private or kept anywhere within the City unless and until the owner thereof has obtained a wild animal permit from the Animal Regulation Officer.

(B) Such wild animal permit shall not be issued for the keeping or exhibiting of a wild animal until an investigation has been made to ascertain what precautions shall be reasonable and necessary to protect the health, safety and general welfare of the public and of the animal.

(C) The Animal Regulation Officer may issue a permit for each wild animal or reptile that meets the below listed conditions. The application for permit shall have attached thereto a veterinarian's certificate, certifying that said animal is properly vaccinated and possesses no health hazard to itself, other animals, or the general public, for each animal to be covered by the permit. Each permit application shall contain the following information and documentation:

(1) Type of animal(s) to be covered by the permit;

(2) Purpose of keeping such animals, with particular emphasis on the knowledge of such person about the animals in question, and the experience of such person in handling the animals in question;

(3) Period and location for which the permit is requested;

(4) Description of the quarters in which the animal will be kept and/or exhibited, including plans and specifications, where appropriate;

(5) Documentation from the City's Department of Community Development that the location in question complies with zoning regulations and requirements applicable to the keeping of wild animals;

(6) Circumstances, if any, under which the animal will be removed from quarters;

(7) Name and address of applicant and any other person to be placed in charge of the animal; and

(8) Any other conditions or restrictions as set forth by the Animal Regulation Officer.

(D) After a review of all available information, including the permit application, the criteria or standards of recognized societies or groups dealing with the animal in question, and any citizen input, the Animal Regulation Officer may issue a permit for the keeping or exhibiting of such animal if, in the Animal Regulation Officer's considered judgment, such animal does not constitute a danger or nuisance to the general public.

(E) A permit to keep one or more wild animals, with no exhibition intended, may be issued for the period prescribed by the Animal Regulation Officer upon payment of a twenty-five-dollar fee and a favorable inspection by an Animal Protection Services Officer. The permit

authorizes the keeping of the animal(s) only, in accordance with the conditions and restrictions imposed thereon, and does not authorize exhibition. A new application and a new fee is required in order to extend the time period or to change or remove any condition or restriction. The quarters for the animals must be adequate to ensure public safety and the safety, health and welfare of the animals. The owner or keeper of a wild animal not intended for exhibition shall:

(1) Have the animal implanted with an electronic microchip from a manufacturer approved by the Animal Regulation Officer. The implantation must be performed by a licensed veterinarian and must conform to procedures recommended by the manufacturer. The owner or keeper shall register the microchip number in a national database in accordance with instructions from the manufacturer, and shall provide the number to the Animal Protection Services Officer.

(2) Obtain and maintain in effect a policy of liability insurance in the amount of not less than one hundred thousand dollars insuring against possible injuries inflicted by the wild animal. The liability insurance shall be maintained in effect as long as the owner or keeper maintains possession of the wild animal.

(F) A permit to exhibit one or more wild animals may be issued for the period prescribed by the Animal Regulation Officer upon payment of a twenty-five-dollar fee and a favorable inspection by an Animal Protection Services Officer. The permit authorizes the keeping and exhibiting of the animal in accordance with this Section and with the conditions and restrictions imposed upon the permit. The twenty-five-dollar fee includes an inspection of one location and the animals to be exhibited at that location. If the permittee proposes to change the location or to exhibit additional animals, the Animal Regulation Officer is authorized to require an additional inspection and an additional twenty-five-dollar fee. The exhibit site, the quarters for the animals and the exhibition facilities must be adequate to ensure public safety and the safety, health and welfare of the animals. Before and with respect to the period of any exhibition, the permittee must obtain and maintain in effect liability insurance coverage for the exhibition in an amount not less than one million dollars.
(Ord. No. 6816, § 72, 8-17-22; Ord. 5497 § 9, 2002: Ord. 5220 § 36, 2000: Ord. 5055 § 1, 1998: Ord. 3804 § 1, 1994: Ord. 3618 § 158, 1991)

7.38.020 Wild animals—Records maintained.

A record shall be kept of all the wild animal permits issued, the location of the wild animals, and the name, address, and telephone number of the owners thereof.
(Ord. 3618 § 159, 1991)

7.38.030 Wild animals—Determination of viciousness.

The issue as to whether a wild animal as defined by Section 7.04.490 is vicious may be determined by means of the procedures as set forth in Chapter 7.16 prior to the destruction of said animal.
(Ord. No. 6172, § 7, 12-7-11; Ord. 3618 § 160, 1991)

7.38.040 Hogs and pigs—Permit and area required.

(A) No person without a special permit first obtained from the Animal Regulation Officer shall own, keep, possess, or maintain hogs or pigs on any parcel of land.

(B) No person shall, in any event, keep any hogs or pigs on any parcel of land which is less than twenty-five acres in area and within two hundred fifty feet of any residence other than his own.

(C) The provisions of Subsections (A) and (B) do not apply to those person who own, keep, possess, or maintain a potbellied pig at a detached single-family residence in accordance with the provisions of this Chapter.
(Ord. 3730 § 1, 1993: Ord. 3618 § 161, 1991)

7.38.041 Potbellied pigs—Requirements.

Potbellied pigs kept or maintained at a detached single-family residence must be:

(A) For the use or enjoyment of the owner or resident;

(B) Incidental to the residential use;

(C) Appropriately vaccinated; and

(D) Neutered or spayed.
(Ord. No. 6553, § 1, 10-19-16; Ord. 5220 § 37, 2000: Ord. 3730 § 2, 1993)

7.38.042 Potbellied pigs—Licensing.

(A) Owners of a potbellied pig maintained, possessed or kept at a detached single-family residence must obtain an annual permit from the City, and at the time of application must:

(1) Pay a fifty dollar annual licensing permit fee;

(2) Submit proof that the animal meets the requirements of Section 7.38.041.

(B) The permit required in Subsection (A) shall be obtained within thirty days after the potbellied pig attains the age of four months or is first brought into the City.
(Ord. No. 6553, § 2, 10-19-16; Ord. 5220 § 38, 2000: Ord. 3730 § 3, 1993)

7.38.043 Potbellied pigs—Maximum.

The maximum number of potbellied pigs that may be kept or maintained at a detached single-family residence is as set forth in the table below:

LOT SIZE (IN SQUARE FEET)	MAXIMUM NUMBER OF POTBELLIED PIGS
Less than 13,200	2
13,200 or greater, but less than 20,000	3
20,000 or greater	4

(Ord. No. 6598, § 1, 10-18-17; Ord. No. 6553, § 3, 10-19-16; Ord. 3730 § 4, 1993)

7.38.044 Potbellied pigs—Vaccinations.

(A) Vaccinations may be required of potbellied pigs according to Nevada Department of Agriculture recommendation, but only upon adequate notice to such person owning, harboring, keeping, possessing, or maintaining the animal.

(B) Every veterinarian who vaccinates a potbellied pig is required to fulfill the same requirements pertaining to the issuance of a tag and certificate of vaccination as is required by LVMC 7.12.040 in situations involving the vaccination of a dog, cat or ferret.
(Ord. 5220 § 39, 2000: Ord. 3730 § 5, 1993)

7.38.045 Potbellied pigs—Applicability of Chapters 7.08 and 7.12.

The general provisions of LVMC Chapter 7.12 pertaining to the vaccination of a dog, cat or ferret and the administration and enforcement thereof, unless in conflict, inconsistent or superseded by the provisions of this Chapter, shall apply to potbellied pigs being maintained, possessed or kept at a detached single-family residence.
(Ord. 5220 § 40, 2000: Ord. 3730 § 6, 1993)

7.38.050 Poultry and birds—Permit and other requirements.

(A) Except as otherwise provided in Subsections (B) and (C), it is unlawful for any person to keep, or cause to be kept, on premises over which any such person may have control within the City:

(1) Any poultry within three hundred fifty feet of any dwelling of another person unless such other person has filed with the Animal Protection Services Officer a written, unrevoked consent authorizing the keeping of such poultry within three hundred fifty feet of the dwelling. In the case of pigeons, this distance shall be two hundred feet from any dwelling owned by another person unless such other person has filed with the Animal Protection Services Officer a written, unrevoked consent authorizing the keeping of the pigeons within two hundred feet of the dwelling, in which case the number of pigeons shall be limited to twelve pair over the age of twelve months;

(2) Any crowing rooster;

(3) Any poultry or birds that are not, at all times, confined within a suitable outbuilding, coop, or enclosed runway that is clean and free from offensive odors, animal wastes, rodents, flies, or any other offensive or unwholesome condition; or

(4) Any poultry within any dwelling house, basement, sub-basement, or cellar.

(B) A person may keep up to a maximum of three hundred carrier or racing pigeons if the use complies with the provisions of Title 19. The pigeons must be confined in accordance with Paragraph (3) of Subsection (A) of this Section except during limited periods necessary for exercise, training or competition.

(C) The limitations of Paragraph (1) of Subsection (A) do not apply to the keeping of chickens within the R-1 and R-MH Zoning Districts if:

(1) The activity complies with all applicable requirements for the keeping of chickens within those districts as set forth in the provisions of LVMC 19.12.070 that pertain to animal keeping and husbandry; and

(2) The owner of each parcel that is adjacent to the parcel on which the chickens are to be kept has filed with the Animal Protection Services Officer a written, unrevoked consent to the activity.

(Ord. No. 6816, § 73, 8-17-22; Ord. No. 6613, § 5, 3-21-18; Ord. No. 6229, § 14, 12-19-12; Ord. No. Ord. 5609 § 2, 2003: Ord. 5220 § 41, 2000: Ord. 3618 § 162, 1991)

7.38.055 Feeding of wild pigeons.

(A) Except as otherwise provided in Subsection (B), it is unlawful and a public nuisance for any person to encourage the lingering, roosting or congregating of wild pigeons by providing food intended for ingestion by wild pigeons, whether on public property or private residential property. For purposes of the preceding sentence, "food" includes without limitation grain, seeds, greens, bread crumbs, and miscellaneous food scraps.

(B) The prohibition contained in Subsection (A) does not apply to any feeding of pigeons that may take place pursuant to a permit granted under this Chapter.

(Ord. No. 6646, § 2, 10-17-18)

7.38.060 Rabbits—Number allowed.

Except as otherwise provided in this Title, no person shall keep more than four rabbits over four months of age at any place, on any premises, or in any one residence located within the City.

(Ord. No. 6804, § 4, 2-2-22; Ord. 3618 § 163, 1991)

7.38.065 Exemptions—Zoological parks.

The provisions of Sections 7.38.010, 7.38.040, 7.38.050 and 7.38.060 shall not apply to any zoological park that is regulated by the United States Department of Agriculture and the Nevada Department of Wildlife.

(Ord. 3729 § 1, 1993)

7.38.070 Owner responsibility.

Every person who is the owner of any animal, and keeps the same upon his premises under this control, shall keep the animal restrained by a fence, cage, coop, chain, leash or other adequate means so that said animal shall not leave or escape from the premises upon which it shall be kept; provided, that no person shall keep any such animal unless its living area is kept clean and free from offensive odors, animal wastes, and rodents, flies, or any other offensive or unwholesome condition.

(Ord. 3618 § 164, 1991)

7.38.080 Impoundment—Release fee.

Animals running at large shall be impounded at the Animal Protection Services Center for seventy-two hours, or for such other period as may be required by State or Federal law or regulations, within which time the owner may prove ownership and remove such animal upon the payment of a fee for its impoundment in the amount of one hundred dollars, which shall go to the credit of the City of Las Vegas.
(Ord. No. 6816, § 74, 8-17-22; Ord. 5220 § 42, 2000: Ord. 3618 § 165, 1991)

7.38.090 Impoundment—Disposal of animal when.

If the ownership of the animal is not proven within seventy-two hours, or within such other period as may be required by State or Federal law or regulations, the animal, whether domestic or wild, may be sold, given away or disposed of in a humane manner.
(Ord. 5220 § 43, 2000: Ord. 3618 § 166, 1991)

7.38.100 Wild animal possession—Unlawful when.

It is unlawful for any person to possess any wild animal without having in his possession a wild animal permit or receipt therefor issued by the Animal Regulation Officer.
(Ord. No. 6180, § 8, 3-7-12; Ord. 3618 § 167, 1991)

7.38.110 Applicability of provisions.

No provision of this Chapter, nor compliance therewith, shall be deemed to supersede or affect the applicability of any other provision of law pertaining to animals, including the City's zoning regulations and applicable health regulations.
(Ord. 5220 § 44, 2000)

7.38.125 Carrier or racing pigeon defined.

"Carrier or racing pigeon" means a pigeon that is bred and kept for the purpose of demonstration or racing, is registered with a national pigeon registry or organization, and is identified as to ownership and registration by a stamp or a band.
(Ord. 5609 § 1, 2003)

CHAPTER 7.40 PROFESSIONAL ANIMAL HANDLERS

Article I. Permits

7.40.010 Commercial business—License required.

Every person owning, operating or maintaining a commercial business within the City must first obtain a license from the City to operate said business. The issuance of any license therefor shall at all times be subject to planning and zoning regulations of the City; provided, however, that this Section as to the business license shall not apply to quarters maintained

by political entities for the purpose of using animals in law enforcement or for animal control or protection, or to quarters maintained by veterinarians for the purpose of surveillance or treatment of animals on a temporary basis.
(Ord. No. 6816, § 75, 8-17-22; Ord. 3618 § 170, 1991)

7.40.020 Certain businesses—Professional animal handlers permit required.

Any person who operates a commercial grooming school, grooming parlor, kennel, pet shop, dog training facility, commercial stables, a business subject to licensing under Chapter 6.44, or any other establishment which sells, grooms, trains, boards or breeds animals, must, in order to operate or carry on the above businesses for profit, obtain a professional animal handler permit.
(Ord. 5972 § 11, 2008: Ord. 5220 § 45, 2000: Ord. 3618 § 171, 1991)

7.40.030 Permit—Fee.

When a professional animal handler permit is applied for, a fee of fifty dollars shall be paid to the Animal Regulation Officer for an inspection of the commercial breeder's facility, grooming parlor, grooming school, kennel, pet shop, or dog training facility. The inspection shall be conducted by an Animal Protection Services Officer to determine compliance with this Title, and if compliance is met the permit shall issue. If inspection reveals that this Title or other applicable laws or regulations have not been complied with, the professional animal handler permit shall be withheld and the person so applying shall have ninety days within which to request a reinspection without charge. The Animal Protection Services Center itself shall be exempt from the operation of this Section.
(Ord. No. 6816, § 76, 8-17-22; Ord. 3618 § 172, 1991)

7.40.040 Permit—Form.

The form of professional animal handler permit shall be as follows:

City of Las Vegas
PROFESSIONAL ANIMAL HANDLER PERMIT

The person, firm or corporation herein named is hereby granted this permit as shown herein pursuant to City Ordinance.

Issued to: _____

Permit Number _____

Issued Date: _____

From: _____

Expires: _____

POST IN A CONSPICUOUS PLACE

Signed:_____

Signed: _____
(Ord. 3618 § 173, 1991)

7.40.050 Permit—Nontransferable.

Professional animal handler permits are not transferable. A current permit shall be posted in a conspicuous place in every commercial grooming parlor, grooming school, kennel, pet shop and dog training facility.
(Ord. 3618 § 174, 1991)

7.40.060 Permit—Expiration.

A professional animal handler permit shall expire on December 31st of each calendar year, and shall be renewed after the payment of the applicable fifty-dollar fee by February 1st of the following year, after an inspection by an Animal Protection Services Officer.
(Ord. No. 6816, § 77, 8-17-22; Ord. 3618 § 175, 1991)

7.40.070 Permit—Change notice to City.

A permit holder shall notify the Animal Regulation Officer of any change in his operation which may or does affect the status of his permit, including any change in name or location of his business.
(Ord. 3618 § 176, 1991)

7.40.080 Compliance responsibility.

A person or persons in immediate charge of a commercial grooming parlor, grooming school, kennel, pet shop, or dog training facility shall be responsible for complying with this Title and other applicable ordinances.
(Ord. 3618 § 177, 1991)

7.40.090 Animal Protection Services Officer—Right of entry.

The Animal Protection Services Officer, after proper identification, shall be permitted to enter any commercial grooming parlor, grooming school, kennel, pet shop, dog training facility or breeding establishment for the purpose of making inspections to determine compliance with this Title. The Animal Protection Services Officer shall make as many inspections as reasonably necessary for the enforcement of this Title except that the time period between inspections shall not exceed one year.
(Ord. No. 6816, § 78, 8-17-22; Ord. 3618 § 178, 1991)

7.40.100 Violation—Investigation.

Upon the receiving of a complaint from the public of a violation of this Title, the Animal Regulation Officer shall order an investigation. Upon completion of the investigation, the Animal Regulation Officer shall ensure that all violations are brought into compliance with this Title.
(Ord. 3618 § 179, 1991)

7.40.110 Breeders—Fees—Restrictions.

Any person who, for pay or other compensation, causes the breeding of a male or female dog or cat or makes a dog or cat available for breeding purposes, or any person who sells or offers for sale any dog or cat shall obtain a permit to do so and shall pay an annual permit/inspection fee of fifty dollars for the privilege of engaging in such activity. However, any person who possesses a valid City permit to operate a dog kennel, cat kennel or pet shop and has paid the annual permit fee therefor shall receive a credit in the amount of the fee paid but in no event shall the amount of credit exceed the amount of tax hereunder. A person who, for pay or other compensation, causes the breeding of a dog or cat, or makes a dog or cat available for breeding purposes without having obtained a permit under this Section or another City permit that pertains to the activity is guilty of a misdemeanor. The penalty for a first offense shall be a minimum fine of five hundred dollars, and imprisonment for not less than two days. The imprisonment portion of the penalty shall be waived if the defendant comes into compliance within thirty days, either by: 1) obtaining a permit, or 2) ceasing to engage in the activities for which a permit is required by this Section and submitting an affidavit acknowledging that engaging in breeding or sale activities without a permit is a violation of this Section. The penalty for a second offense shall be a fine of one thousand dollars, and imprisonment for a period of not less than two days. The penalty for a third or subsequent offense, or for violating this Section after having submitted an affidavit referred to in this Section, shall be a fine of one thousand dollars, and imprisonment for a period of not less than ten days.

(A) Each person subject to the provisions of this Section shall:

(1) Not allow the whelping of more than two litters per each female dog or cat in an eighteen-month period;

(2) Not cause the whelping of more than two litters in the permit holder's or any other person's domestic household in an eighteen-month period. Notwithstanding this provision, however, the Animal Protection Services Center is hereby authorized, upon application of a permit, to allow on a one-time basis the whelping of up to a total of three dog or cat litters in a domestic household in an eighteen-month period where the permit holder establishes within regulations promulgated by the Animal Regulation Officer that such breeding is required to protect the health of the animal. In the event a permit holder is forced to

destroy a litter of dogs or cats, the Animal Regulation Officer may authorize the whelping of one additional litter of dogs or cats within the same year by the permit holder;

(3) Not have more than six adult dogs or cats over the age of one year and no more than ten dogs or cats over the age of three months;

(4) Cause all dogs and cats prior to their sale to be immunized against common disease; in the case of dogs, against distemper, DHLD, and in the case of cats, against panleukopenia. The sale of a dog or cat shall include a signed statement from the seller attesting to the seller's knowledge of the animal's health. Such statement shall include the animal's immunization history;

(5) Not sell any dog or cat under the age of seven weeks;

(6) Furnish the Animal Protection Services Center with the animal breeder's permit number and the name, address, and telephone number of the buyer or new owner of any dog or cat sold or transferred within five days after the date of such sale or transfer; and

(7) Be subject to and comply with the requirements of Subsections (B) and (C) of LVMC 7.40.175.

(B) The Animal Protection Services Center shall furnish the permit holder with printed information regarding the pet care, protection and control services of the City which shall be provided by the seller to the purchaser of any dog or cat.

(C) Persons subject to this Section shall not publish or advertise the sale of any dog or cat unless said publication or advertisement is accompanied by the seller's breeder's permit number.

(D) Each permit issued hereunder shall expire one year from the date of issuance. However, it may be renewed at any time up to and including the last day of the calendar month in which it is due to expire.

(E) The payment of this permit fee shall not exempt the permit holder from compliance with any other applicable provision of the Municipal Code.

(Ord. No. 6834, § 1, 4-5-23; Ord. No. 6816, § 79, 8-17-22; Ord. 3618 § 180, 1991)

7.40.120 Violation—Correction notice—Citation.

(A) If the Animal Regulation Officer, in the course of a routine inspection or while investigating a complaint, observes a violation of this Title by the holder of a professional animal handler permit, the officer may do the following:

(1) In the case of a minor violation, issue a written correction notice to the permit holder or operator; or

(2) In the case of a violation which presents a public health hazard, a hazard to the health or welfare of an animal, or cruel or inhumane treatment of an animal, issue a citation to the permit holder or operator.

(B) In the case of a written correction notice, the permit holder or operator shall have twenty-four hours to correct the violation, or such other time as may be provided in writing by the Animal Regulation Officer. Upon reinspection, a citation may be issued and an additional twenty-four hour correction notice given.

(C) In the case of the issuance of a citation, the permit holder or operator shall have twenty-four hours to correct the violation, or such other time as may be provided in writing by the Animal Regulation Officer. Upon further reinspection, if compliance has not been obtained, the Animal Regulation Officer may commence proceedings to revoke the permit.
(Ord. 5105 § 2, 1998)

7.40.130 Violation—Revocation.

For a serious or repeated violation of any of the requirements of this Title, or for interference with the Animal Regulation Officer in the performance of his duties, the professional animal handler permit may be permanently revoked after an opportunity for a hearing has been provided to the permit holder by the Animal Regulation Officer. In the case of a pet shop, three adjudications of guilt or civil liability, as applicable, related to violations of the requirements of this Title shall be considered a serious or repeated violation for the purposes of this Section. Prior to any revocation, the Animal Regulation Officer shall notify the permit holder in writing stating the reasons for which the permit is subject to revocation and advising the permit holder that the permit shall be permanently revoked at the end of fifteen days following service of such notice, unless a request for a hearing is filed with the Animal Regulation Officer by the permit holder within such fifteen-day period. A permit may be suspended for cause pending its revocation or a hearing relative thereto.
(Ord. No. 6928, § 1, 11-5-25; Ord. 3618 § 182, 1991)

7.40.140 Violation—Hearing procedure.

The hearing provided for in this Chapter shall be conducted by the Animal Regulation Officer within a reasonable time at a place designated by him. Based upon the record of such hearing, the Animal Regulation Officer shall make a finding and shall sustain, modify, or rescind any official notice or order considered in the hearing. A written report of the hearing decision shall be furnished to the permit holder or operator by the Animal Regulation Officer within a reasonable time. This Section shall not be intended to preclude the institution of court action as provided elsewhere in this Title.
(Ord. 3618 § 183, 1991)

7.40.145 Violations of Sections 7.40.170—7.40.270.

Any person who violates the provisions of Section 7.40.170 to Section 7.40.270, inclusive, is guilty of a misdemeanor and shall be sentenced to a fine not less than two hundred fifty dollars nor more than five hundred dollars. Pursuant to Section 7.44.040, the City is authorized to treat a violation of Section 7.40.170 to Section 7.40.270, inclusive, as a civil infraction.
(Ord. No. 6928, § 2, 11-5-25)

7.40.150 Reinstatement.

Any person whose permit has been suspended may, at any time, make application for an inspection for the purpose of reinstatement of the permit. Within thirty days following such request for reinstatement the Animal Regulation Officer shall make an inspection. If the applicant has complied with the requirements of this Title or other applicable laws, regulations and ordinances the permit may be reinstated.
(Ord. 3618 § 184, 1991)

Article II. Regulations

7.40.160 Applicability of Article II provisions.

The provisions of Sections 7.40.160 through 7.40.380, inclusive, of the ordinance codified in this Article II, shall apply to all persons and business operations which are required by this Chapter to have a professional animal handler permit. For purposes of Sections 7.40.160 through 7.40.380, inclusive, of the ordinance codified in this Article II:

(A) The term "operator" means the holder of a permit and any person who operates a business described in this Section.

(B) The term "primary enclosure" means the cage, run or other enclosure immediately surrounding an animal.

(Ord. 5220 § 48, 2000)

7.40.170 Operator duties.

An operator shall ensure that:

(A) The buildings and grounds at all locations where animals are shall be kept clean and in good repair, shall not become accumulated with trash and the interior building surfaces shall be maintained so that they are substantially impervious to animal wastes and may be readily sanitized.

(B) All animal housing facilities shall be constructed and maintained in such a manner as to protect the animals inside from injury, prevent the animals inside from escaping and restrict the entrance of other animals. In addition, all animal housing facilities shall have adequate and reliable sources of electrical power and potable water available.

(Ord. 5220 § 49, 2000)

7.40.175 Handler's responsibilities.

Each holder of a professional animal handler permit issued under this Chapter shall be responsible for:

(A) Posting one or more signs no lower than three feet and no higher than seven feet at each entrance and exit of the establishment indicating that concerns about the welfare of animals within the establishment can be reported to the City's Animal

Protection Services Division at the Division's telephone number as listed on the sign. Each such sign shall contain the text and be in the size and format approved by the Department of Community Development or the Animal Protection Services Division. The Department or Division will endeavor to make such signs available to each permit holder affected by Subsection (A), but the posting of compliant signs is required whether or not actual signs have been obtained from the Department or Division.

(B) Reporting to the Animal Protection Services Division, within twenty-four hours, the death of any animal that occurs within the establishment or facility, as well as any injury to an animal that results in the animal's evaluation or treatment by a veterinarian.

(C) Turning over to the Animal Protection Services Division, upon request, any animal whose death or injury was reported or required to be reported under Subsection (B). It is a misdemeanor to fail or refuse to comply with this Subsection (C).

(Ord. No. 6834, § 2, 4-5-23)

7.40.180 Indoor enclosures.

(A) An operator shall provide all animals with enclosures located indoors, except animals that are acclimated to the outdoor environment, and ensure that the interior of a housing facility for indoor enclosures is constructed and maintained in such a manner as to be substantially impervious to moisture as required by species and to facilitate regular cleaning. In addition, an operator shall provide a suitable method to eliminate excessive water from the interior of a housing facility for indoor enclosures. All drains must be constructed and maintained in such a manner as to avoid foul odors. Any closed system for drainage must be equipped with traps that prevent the release of sewage into the housing facility.

(B) All indoor enclosures shall be constructed and maintained in such a manner as to protect the animals inside from excessive illumination while providing an ample amount of light, by natural or artificial means or both, of a sufficient distribution and intensity to allow for routine inspection and cleaning. The indoor enclosure shall also provide a sufficient amount of heat when necessary to protect the animals inside from cold and to maintain their health and comfort. The ambient temperature of an indoor enclosure in which one or more animals are kept must not be allowed to fall below fifty degrees Fahrenheit, unless each animal is acclimated to a lower temperature. In addition, all indoor enclosures shall be provided with adequate ventilation at all times to maintain the health and comfort of the animal(s) inside as required by species. The system of ventilation must provide fresh air by means of windows, doors, vents or air conditioning and be designed to maintain drafts, odors and the condensation of moisture at a minimum. If the ambient temperature reaches eighty-five degrees Fahrenheit or greater, air conditioning, exhaust fans and vents, or other auxiliary ventilation must be provided.

(Ord. 5220 § 50, 2000)

7.40.190 Keeping animals outdoors.

If animals are kept outdoors, an operator shall provide a suitable method for the rapid drainage of surface water from the area where each animal is kept. An operator shall also provide a sufficient amount of shelter to ensure the animal remains dry from rain and snow and protected from wind when a high wind warning has been issued by the National Weather Service or which creates a wind chill of less than fifty degrees Fahrenheit unless each animal is acclimated to a lower temperature. It addition, an animal shall have enough shade to protect itself from any direct sunlight that is likely to cause overheating or discomfort and remain warm when the atmospheric temperature falls below fifty degrees Fahrenheit. If the ambient temperature falls below the temperature to which an animal is acclimated, the operator shall provide such an additional amount of clean bedding material or other protection as necessary for the animal to remain warm. After considering the ambient temperature, the operator shall provide each animal with a sufficient amount of food and water necessary to sustain it in a healthy condition at that temperature.
(Ord. 5220 § 51, 2000)

7.40.200 Primary enclosure—Construction and maintenance requirements.

(A) An operator shall ensure that a primary enclosure is constructed and maintained in such a manner as to protect the animals inside from injury, prevent the animals inside from escaping, keep other animals out and allow the animals inside convenient access to food and water. In addition, an operator shall enable animals inside to remain clean and dry as required by species and provide sufficient space for each animal inside to turn about freely and to stand, sit and lie in a comfortable, normal position as appropriate for the species.

(B) With respect to primary enclosures for canines, a pet shop shall ensure that canines are:

(1) Not displayed in a manner that allows unrestricted access by the public; and

(2) Separated from humans and from incompatible canines by a barrier or partition which has no sharp edges, gaps, or other defects that could cause injury or trap a limb or other body part and which is designed to minimize stress and cross-contamination.

(Ord. No. 6928, § 3, 11-5-25; Ord. 5220 § 52, 2000)

7.40.210 Primary enclosure—Floor space.

An operator shall ensure that a primary enclosure in which each mammal that is at least six weeks old is kept has a minimum amount of floor space which is calculated by finding the mathematical square of the sum of six inches plus the length of the animal measured from the tip of its nose to the base of its tail, and dividing that amount by one hundred forty-four, to arrive at the minimum amount of square footage required for the floor space per animal. Floor space for mice and rats shall be provided as set forth in Section 7.40.200.
(Ord. 5220 § 53, 2000)

7.40.220 Compatibility of animals in enclosures.

If animals are kept in enclosures together, an operator shall ensure that animals placed with other animals are compatible. Any animal that displays a vicious disposition shall not be placed together with any other animal. A female animal shall not be placed together with any intact male animal during periods of estrus, except for supervised breeding. Furthermore, an immature animal shall not be placed together with an adult animal, except with its mother or when permanently maintained in a breeding colony.
(Ord. 5220 § 54, 2000)

7.40.230 Water and feeding requirements.

(A) An operator shall ensure that clean potable water is accessible to the animal at all times except as directed by a veterinarian to provide adequate care. Each animal shall be fed at least once each day, except as otherwise required to provide adequate care. The food provided to an animal must be wholesome, palatable, free from contamination, and of sufficient quality and nutritive value to meet the normal daily requirements for the animal, based upon its condition and size. Supplies of perishable food must be adequately refrigerated or properly stored to prevent spoilage.

(B) Containers of food shall be durable, except that disposable receptacles may be used if they are discarded after each feeding and located so as to be accessible to the animals. The containers shall also reduce to a minimum any contamination from excreta. Containers of food and water shall be kept clean and self-feeders must not be used for the feeding of dry food unless they are cleaned regularly to prevent molding, deterioration and the caking of food.
(Ord. 5220 § 55, 2000)

7.40.240 Pest control requirements.

(A) An operator shall ensure that insects, ectoparasites and avian, mammalian and reptilian pests are kept under control. An operator shall also ensure that supplies of food and bedding material are stored in facilities that afford adequate protection from infestation or contamination by vermin. All excreta must be removed regularly from enclosures during business hours to prevent contamination and to reduce to a minimum odors and the risk of disease.

(B) An enclosure must be disinfected at least once daily and before placing another animal in the enclosure. If a hosing or flushing method of cleaning is used, all animals must be removed from the enclosure and adequate measures must be taken to protect the animals in other enclosures from being contaminated with water and other wastes.

(1) Pens or runs with hard surfaces, and cages and rooms, shall be sanitized at least once every two weeks by:

(a) Washing them with water of a temperature not less than one hundred twenty degrees Fahrenheit and with soap or detergent;

(b) Washing all soiled surfaces with a safe and effective disinfectant; or

(c) Cleaning all soiled surfaces with live steam.

(2) Pens or runs with gravel, sand or dirt surfaces shall be cleaned as often as necessary by removing and replacing the soiled gravel, sand or dirt.

(C) Sewage, solid wastes, soiled bedding, dead animals and debris must be removed from housing facilities regularly during the business day and disposed of properly. Enclosures not in use must be cleaned, washed and disinfected at least once every two weeks to prevent any accumulation of debris or excreta and to reduce to a practical minimum substances and organisms injurious to the health of animals or humans. Facilities for disposal shall be maintained in such a manner as to reduce to a minimum odors and the risk of disease or infestation by vermin. Adequate facilities, such as washrooms, basins or sinks, shall be provided for the cleanliness of persons handling animals.
(Ord. 5220 § 56, 2000)

7.40.250 Disease control program.

An operator shall, with the approval of a veterinarian, establish and maintain a program to control disease and care for the health of animals. In the case of a pet shop, the program must be in writing. As part of any such program, an operator shall ensure that:

(A) Each animal is observed daily by the person directly responsible for its care, or by someone else under that person's direct supervision.

(B) Blind, lame, injured, ill or diseased animals are provided with the appropriate veterinary care that is consistent with the purposes for which an animal is being kept or humanely euthanized.

(C) Any animals under quarantine or being treated for a communicable disease are kept separate from other animals. Additionally, pet shops must ensure that animals under quarantine or being treated for a communicable disease are kept in a fully-enclosed room dedicated solely for that purpose. The room must:

(1) Have its own entry/exit door;

(2) Have its own ventilation system separate from that of the remaining operation; and

(3) Be equipped with a sink and all necessary supplies to treat recovering animals, so as to reduce cross-contamination.
(Ord. No. 6928, § 4, 11-5-25; Ord. 5220 § 57, 2000)

7.40.260 Separating animals from mothers—Restrictions.

An operator shall not separate an animal from its mother until it is accustomed to taking food or nourishment other than nursing.
(Ord. 5220 § 58, 2000)

7.40.270 Retailer or dealer—Examination of animals by veterinarian required.

(A) A retailer or dealer shall, after the acquisition of an animal for resale, cause the animal to be examined by a veterinarian. The retailer or dealer shall not sell the animal before it is initially examined by a veterinarian. In addition, a retailer or dealer shall cause an animal acquired for resale to be reexamined by a veterinarian as follows:

(1) Fourteen days after the date of its initial examination; and

(2) Every thirty days thereafter until sold.

(B) If a veterinarian conducting an examination pursuant to this Section finds that a dog or cat has no illness, disease or other condition that is terminal or requires immediate hospitalization or immediate surgical intervention, he shall provide a written statement setting forth his findings to the retailer or dealer. A retailer or dealer shall provide to the purchaser of an animal, at the time of sale, written notice of any veterinary treatment or medication received by the animal after it was acquired by the retailer or dealer, including a copy of any statement provided by a veterinarian. The notice must be signed by the retailer or dealer, dated and including the dates on which the animal was examined and on which the animal received medication or a vaccination.

(C) A retailer or dealer shall not knowingly sell an animal if it has an illness, disease or other condition that is terminal or requires immediate hospitalization or immediate surgical intervention. For the purposes of this Section, the presence of internal or external parasites does not constitute an illness, disease or other condition that is terminal or requires immediate hospitalization or immediate surgical intervention unless the animal is clinically ill as a result of the parasite.
(Ord. 5220 § 59, 2000)

7.40.280 Retailer or dealer—Animal immunization and other records.

A retailer or dealer shall provide upon request a written statement containing:

(A) The name and address of the owner and date the dog or cat was born.

(B) The name and address of the person from whom the retailer or dealer obtained the dog or cat, if the person holds a license issued by the United States Department of Agriculture, the person's federal identification number.

(C) A record of any immunizations administered to the dog or cat before the time of sale, including the type of vaccine, date of administration and name and address of the veterinarian who prescribed the vaccine.

(D) On a dog the registration numbers, if any, of the dog's sire and dam with the appropriate breed registry or any health certification organization such as the Orthopedic Foundation for Animals or its successor organization, if any.
(Ord. 5220 § 60, 2000)

7.40.290 Retailer or dealer—Information posting requirements.

(A) A retailer or dealer shall conspicuously post within close proximity to the primary enclosure of an animal offered for sale the following notice in at least one-hundred-point type:

INFORMATION ON ANY VETERINARIAN TREATMENTS RECEIVED BY ANY ANIMALS IS AVAILABLE FOR REVIEW

(B) Each pet shop shall post in a prominent location, in at least twelve-point font, on the enclosure of each dog or cat offered for sale, the following information about the dog or cat:

(1) The dog or cat breeder's full name, kennel name (if applicable), city and state, and United States Department of Agriculture license number.

(2) The price of the dog or cat including any fees or sales tax.

(Ord. No. 6928, § 5, 11-5-25; Ord. 5220 § 61, 2000)

7.40.300 Retailer or dealer—Refund of sale price required when.

In addition to and independent of the requirements of NRS 574.490, a pet shop must provide, in connection with the sale of each dog under the age of twelve months, the following:

(A) A warranty that, at a minimum:

(1) Covers any such dog for bacterial or viral infections for the period of fourteen days following purchase;

(2) Covers any such dog for one year regarding congenital defects; and

(3) Sets forth the available remedies, prerequisites and procedures pertaining to the warranty in each particular case; and

(B) An offer to the purchaser to provide at least thirty days of free pet health insurance regarding the dog.

(C) No pet shop shall sell a dog or cat unless the dog or cat has been declared healthy by a veterinarian within ten days prior to its sale and the pet shop provides to the purchaser of the dog or cat proof of the declaration of the animal's health, signed by a veterinarian.

(Ord. No. 6928, § 6, 11-5-25; Ord. 5220 § 62, 2000)

7.40.310 Retailer or dealer—Selling ill animal—Misdemeanor.

A retailer or dealer who sells an animal that he knows has any illness, disease or other condition that is terminal or requires immediate hospitalization or immediate surgical intervention at the time of sale is guilty of a misdemeanor. In addition to any other penalty that may be imposed, the court may prohibit a person convicted of a violation of this Section from selling any animals for not more than one year. For the purposes of this Section, the

presence of internal or external parasites does not constitute an illness, disease or other condition that is terminal or requires clinically immediate hospitalization or immediate surgical intervention unless the animal is clinically ill as a result of the parasite.
(Ord. 5220 § 63, 2000)

7.40.315 Reserved.

Editor's note—Ord. No. 6603, § 1, adopted November 15, 2017, repealed § 7.40.315, which pertained to disposing of dogs, cats or potbellied pigs and derived from Ord. No. 6491, adopted January 6, 2016.

7.40.320 Animal transport—Vehicle requirements.

(A) Vehicles used in transporting animals shall be equipped to provide fresh air to all animals being transported without injurious drafts.

(B) The animal cargo space shall be so constructed and maintained as to prevent the entrance of exhaust from the vehicle's engine.

(C) The interior of the animal cargo space shall be kept clean and dry.
(Ord. 5220 § 64, 2000)

7.40.330 Animal transport—Primary enclosure—Requirements generally.

(A) Primary enclosures, such as compartments, transport cages, cartons or crates used in the transport of animals shall be well constructed and well ventilated and designed to protect the health and ensure the safety of the animal.

(B) Such enclosures shall be constructed or positioned in the vehicle in such a manner that:

(1) Each animal in the vehicle has sufficient air for normal breathing;

(2) The openings of such enclosures are easily accessible at all times for emergency removal of the animal; and

(3) The animal is afforded adequate protection from the elements.

(C) The ambient temperature within such enclosures shall not be allowed to exceed a temperature that may endanger the health and well-being of such animal.
(Ord. 5220 § 65, 2000)

7.40.340 Animal transport—Primary enclosure—Interior space requirements.

Primary enclosures used to transport animals shall be large enough to ensure that each animal contained therein has sufficient space to turn about freely, to stand, sit or lie in a natural position.
(Ord. 5220 § 66, 2000)

7.40.350 Animal transport—Primary enclosure—Placement during transit.

Animals shall not be placed in primary enclosures over other animals in primary enclosures in transit unless each enclosure is fitted with a floor of a material which prevents animal excretion from entering the lower enclosures.
(Ord. 5220 § 67, 2000)

7.40.360 Animal transport—Primary enclosure—Cleaning and sanitizing requirements.

Primary enclosures used to transport animals shall be cleaned and sanitized between trips. All litter in the primary enclosure shall be clean at the beginning of each trip.
(Ord. 5220 § 68, 2000)

7.40.370 Animal transport—Primary enclosure—Same species or compatible group required.

(A) Animals transported in the same primary enclosure shall be of the same species or maintained in compatible groups.

(B) Animals less than three months of age shall not be transported in the same primary enclosure with an adult animal other than their dam.

(C) Any animal exhibiting a vicious disposition shall be transported individually in a primary enclosure.

(D) Any female animal in season (estrus) shall not be transported in the same primary enclosure with any male.
(Ord. 5220 § 69, 2000)

7.40.380 Animal transport—Attendant or driver duties.

It shall be the responsibility of the attendant or driver to inspect the animals frequently to determine whether they need emergency veterinary care and, if so, to obtain such care at the earliest opportunity.
(Ord. 5220 § 70, 2000)

CHAPTER 7.42 PET SHOPS AND RELATED BUSINESSES

7.42.010 Definitions.

For purposes of this Chapter:

"Animal care facility" means the Animal Protection Services Center or any other facility:

(A) That is operated by, or under contract with and on behalf of, any unit of state or local government, or is operated by a society for the prevention of cruelty to animals, as set forth in NRS 574.010—574.030, inclusive;

(B) That receives and holds animals; and

(C) Whose mission and practice consists, in whole or significant part, of the rescue and placement of animals in permanent homes.

"Animal Welfare Act and regulations" means the animal welfare provisions of 7 U.S.C. Section 2131 et seq. and the corresponding federal animal welfare regulations located in 9 C.F.R. Chapter I, Subchapter A.

"Broker" means any person in the business of selling dogs or cats to pet shops, whether or not the broker is also the breeder of the dogs or cats sold to pet shops.

"Distributor" means a person who acts as the agent or contractor of a pet shop to obtain and transport dogs, cats or a combination thereof to a pet shop for purposes of sale.

"Nonprofit animal rescue organization" means any nonprofit organization which has tax-exempt status under Section 501(c)(3) of the Internal Revenue Code and whose mission and practice consists, in whole or significant part, of the rescue and placement of animals in permanent homes, the prevention of cruelty to animals and the reduction of pet overpopulation, and that does not breed animals or obtain animals, in exchange for payment or compensation, from a person that breeds animals or resells animals from a person that breeds animals.

"Offer for sale" means to make available, display or advertise any animal for sale, purchase, exchange, barter or auction.

"Sell" means to, for any form of compensation or remuneration, barter, sell, rehome, gift, give away, trade, export, exchange, auction, make available, broker, or otherwise transfer or dispose of an animal.

"USDA license number" means the license number issued to a breeder or broker by the USDA pursuant to the Animal Welfare Act and regulations.
(Ord. No. 6928, § 6, 11-5-25; Ord. No. 6850, § 6, 10-18-23; Ord. No. 6816, § 80, 8-17-22; Ord. No. 6623, § 4, 6-20-18)

7.42.020 Permit required.

(A) No pet shop within the City shall sell any dog or cat unless it first obtains a permit to do so. The permit shall be in addition to the professional animal handler permit required of a pet shop pursuant to LVMC Chapter 7.40.

(B) The Animal Regulation Officer is authorized to charge an annual permit fee of five hundred dollars.
(Ord. No. 6623, § 4, 6-20-18)

7.42.030 Breeder/broker prohibitions.

No pet shop shall sell or offer for sale, or purchase for resale, whether or not actually offered for sale by the pet shop, any dog or cat purchased from any breeder or broker who:

(A) If located in Nevada, is not in compliance with applicable Nevada law and local ordinances pertaining to the maintenance and care of animals and the sanitary operation of animal-related facilities at the time of such transaction or offer;

(B) If located outside of Nevada, is not in possession of all other licenses required for a breeder or broker by the state in which the breeder or broker is located;

(C) Is not in possession of a current license issued by the USDA pursuant to the Animal Welfare Act and regulations;

(D) Within the two years immediately previous to the purchase, has been cited on a USDA inspection report for direct or critical noncompliance with the Animal Welfare Act and regulations, or for three or more other noncompliance items under the Animal Welfare Act and regulations that directly impact the health of an animal;

(E) On the two most recent USDA inspection reports immediately previous to the purchase, was cited for no-access violations pursuant to enforcement of the Animal Welfare Act and regulations; or

(F) Directly or indirectly obtained the animal from a breeder, broker, or other person, firm, corporation, or organization to whom Subsections (A), (B), (C), (D) or (E) of this Section applies.

(Ord. No. 6928, § 7, 11-5-25; Ord. No. 6623, § 4, 6-20-18)

7.42.035 Sale of dogs, cats, rabbits, guinea pigs, and potbellied pigs prohibited.

Except as otherwise provided in Section 7.42.040, it is unlawful for any pet shop to sell or offer for sale a dog, cat, rabbit, potbellied pig or guinea pig. A pet shop may cooperate with, or provide space to, an animal care facility or nonprofit animal rescue organization to offer to the public dogs, cats, rabbits, potbellied pigs or guinea pigs for adoption, provided that the pet shop shall not have any ownership interest in the animals offered, and shall not receive any fee for providing space to an animal care facility or nonprofit animal rescue organization or for the adoption of any of the animals.

(Ord. No. 6928, § 8, 11-5-25)

7.42.040 Same—Exemptions.

(A) The following are exempt from the provisions of Section 7.42.035:

(1) The operator of any existing pet shop location that is lawfully operating and who has all required business licenses and permits on or before the effective date of this ordinance.

(2) The relocation of any existing pet shop that is exempt from the provisions of Section 7.42.035 or a subsequent relocation of that pet shop; provided, however that in each case the relocated pet shop location must be a replacement for a previously existing location and not an additional location, and the operation of a previously existing and thereafter relocated pet shop must cease at any previous location. Any such relocated pet shop will continue to be exempt from the provisions of Section 7.42.035 provided that such pet shop operator maintains all required business licenses and permits.

(B) Exemption from the provisions of Section 7.42.035 will terminate upon any of the following:

(1) The operator of any existing pet shop sells, transfers, or changes primary ownership of its business.

(2) The pet shop operator abandons operation of the pet shop. For the purposes of this Subsection, a pet shop is abandoned if business activities are ceased at the location for a period exceeding one hundred eighty days.

(3) The pet shop operator's required businesses licenses or permits are revoked.

(C) Notwithstanding the provisions of Section 7.42.040(A) and 7.42.040(B), inclusive, all exemptions from the provisions of Section 7.42.035 will terminate on November 6, 2028.

(D) The operator of any existing pet shop that is exempted from the requirements of Section 7.42.035 must comply with the provisions of Section 7.42.020, Section 7.42.030, and Sections 7.42.050 to 7.42.070, inclusive.

(E) Nothing in Section 7.42.020, Section 7.42.030, and Sections 7.42.050 to 7.42.070, inclusive, shall be deemed to limit the applicability of Section 7.42.035 to the pet shops to which the provisions of Section 7.42.035 pertain.

(Ord. No. 6928, §§ 9, 10, 11-5-25)

Editor's note—Ord. No. 6928, § 9, adopted November 5, 2025, repealed § 7.42.040 and § 10 of the same enacted a new § 7.42.040, as set out above and as may later be amended. Former § 7.42.040 pertained to alternate methods of acquiring pets for sale and derived from Ord. No. 6623, adopted June 20, 2018.

7.42.050 Requirements.

(A) Each breeder, pet shop and distributor shall comply with applicable provisions of NRS Chapter 574 and the Animal Welfare Act and regulations.

(B) Each breeder and distributor shall ensure that all dogs and cats that are to be offered for sale at a pet shop have been microchipped before being transported to the pet shop.

(C) No pet shop shall accept delivery of any dog or cat that it proposes to sell unless the pet shop ensures that the animal has been microchipped.

(D) No breeder or pet shop shall sell or offer for sale any dog or cat unless it has been microchipped.

(Ord. No. 6850, § 7, 10-18-23; Ord. No. 6623, § 4, 6-20-18)

7.42.060 Compliance.

(A) Each pet shop subject to this Chapter has the burden of demonstrating compliance with the provisions of this Chapter with respect to each dog or cat that it sells or offers for sale. In order to facilitate the demonstration of such compliance and to facilitate the City's enforcement of this Chapter, each such pet shop shall submit to the City on a quarterly basis a report detailing:

(1) The name, full street address, email address, if available, and USDA license number of each breeder or broker from which the pet shop purchased a dog or cat, whether or

not the pet shop offered the animal for sale, with a detailed listing of each such purchase. The purchase information for each dog or cat must include the identification or registration number of the microchip implanted in the animal.

(2) To the extent not included in Paragraph (1), the name, full street address, email address, if available, and USDA license number of each breeder that bred a dog or cat purchased by the pet shop from a broker, whether or not the pet shop offered the animal for sale, with a detailed listing of each such purchase.

(3) The state license number(s) and/or state permit number(s) of each breeder and broker referred to in Paragraphs (1) and (2) if a state license or permit is required of the breeder or broker to operate as such within the state(s) in which it operates. In the case of a breeder or broker located outside the United States, the corresponding license and permit numbers from the foreign authorities having jurisdiction shall be provided.

(4) The total number of dogs and cats reported as being purchased from each breeder and broker pursuant to this Section.

(B) The Animal Regulation Officer is authorized to require each pet shop to document to the City its compliance with the provisions of NRS 574.450 to 574.510, inclusive, either by periodic reporting, periodic announced inspections, periodic unannounced inspections, audits, or a combination thereof.

(C) Upon request, each pet shop shall make available to a prospective buyer of a dog or cat all information regarding that animal that is required to be documented or reported under this Chapter, NRS Chapter 574 and the Animal Welfare Act and regulations.
(Ord. No. 6623, § 4, 6-20-18)

7.42.070 Report.

Each distributor subject to this Chapter has the burden of demonstrating compliance with the provisions of this Chapter with respect to each dog or cat that it arranges for delivery to a pet shop for purposes of sale. In order to facilitate the demonstration of such compliance and to facilitate the City's enforcement of this Chapter, each such distributor shall submit to the City on a quarterly basis a report detailing:

(A) The name, full street address, email address, if available, and USDA license number of each breeder or broker from which the distributor obtained a dog or cat for delivery to a pet shop, with a detailed listing of each such transaction. The transaction information for each dog or cat must include the identification or registration number of the microchip implanted in the animal.

(B) To the extent not included in Subsection (A), the name, full street address, email address, if available, and USDA license number of each breeder that bred a dog or cat obtained by a distributor for delivery to a pet shop, with a detailed listing of each such transaction.

(C) The state license number(s) and/or state permit number(s) of each breeder and broker referred to in Subsections (A) and (B) if a state license or permit is required of the breeder or broker to operate as such within the state(s) in which it operates. In the case of a breeder or broker located outside the United States, the corresponding license and permit numbers from the foreign authorities having jurisdiction shall be provided.

(D) The total number of dogs and cats reported as being obtained from each breeder and broker pursuant to this Section.

(Ord. No. 6623, § 4, 6-20-18)

7.42.075 Limitation on number of sales to a household.

(A) In any one calendar year, no pet shop or breeder may sell to the same person, or persons from the same household, more than the following number of animals in each category:

(1) Six dogs;

(2) Six cats;

(3) Four ferrets;

(4) Four rabbits; or

(5) Two guinea pigs.

(B) In order to document compliance with Subsection (A) and to assist in enforcement efforts, each pet shop and each breeder shall:

(1) In connection with the sale of any animal listed in Subsection (A), record the name and address of each purchaser of an animal listed in Subsection (A) as documented by the purchaser's driver's license or state-issued identification card, as well as the number and type of each animal purchased on that occasion; and

(2) Submit to the City, on a calendar quarter basis, a report detailing the information recorded pursuant to Paragraph (1) of this Subsection (B). Each such report must be submitted within thirty days following the end of each calendar quarter.

(C) Each pet shop shall post signage in a prominent location, or provide a handout to each purchaser of an animal listed in Subsection (A), a listing of the limits established by this Title regarding the number of such animals that can be kept at a residence or premises within the City, as well as the number limits applicable to dog fanciers, cat fanciers and pet fanciers.

(D) A violation of this Section is subject to the enforcement provisions of LVMC Chapter 7.44. In addition, a second violation of Subsection (A) shall be grounds for disciplinary action in accordance with LVMC Chapter 6.88 regarding the business license of a pet shop or breeder responsible for the violation.

(Ord. No. 6895, § 1, 1-15-25)

7.42.080 Enforcement.

(A) The Animal Protection Services Officer, officers of the Las Vegas Metropolitan Police Department, and officers and employees of the City within the Business Licensing Division shall have the authority to issue citations or notices of violation, and to conduct inspections, investigations and audits regarding the operation of each breeder and pet shop, including without limitation the transportation of dogs and cats to and from a pet shop and documentation regarding the acquisition and disposition of dogs and cats by a pet shop.

(B) The Animal Regulation Officer shall have the authority to develop and adopt forms, reports and other items of documentation to be used by breeders, pet shops and distributors in documenting compliance with this Chapter, and breeders, pet shops and distributors shall use such items of documentation as are required by the Animal Regulation Officer.

(C) Following notice to a breeder, pet shop or distributor to use particular forms, reports or documentation adopted pursuant to Subsection (B), each breeder, pet shop or distributor so notified shall thereafter use or follow the format of the forms, reports or documentation as applicable. The failure to do so authorizes the Animal Regulation Officer to issue a notice of noncompliance that requires correction within the time specified by the Animal Regulation Officer. The failure to comply with the notice shall constitute a violation of this Section and subject the violator to applicable criminal or civil proceedings and penalties, including potential disciplinary action against a business license.
(Ord. No. 6895, § 2, 1-15-25; Ord. No. 6816, § 81, 8-17-22; Ord. No. 6623, § 4, 6-20-18)

7.42.085 Violations of Section 7.42.035.

Any person who violates the provisions of Section 7.42.035 is guilty of a misdemeanor and shall be sentenced to a fine not less than two hundred fifty dollars nor more than five hundred dollars. Each sale or offer for sale made in violation of Section 7.42.035 shall constitute a separate offense.
(Ord. No. 6928, § 11, 11-5-25)

7.42.090 Relationship with Chapter 7.40.

The requirements of this Chapter are independent of and in addition to the requirements of Chapter 7.40. Businesses subject to both chapters shall comply with the provisions of both chapters wherever possible. In the event of conflict or inconsistency, the more stringent provision shall apply unless the Animal Regulation Officer determines that enforcing or applying a less stringent provision of this Chapter is consistent with the Council's intent in adopting this Chapter.
(Ord. No. 6623, § 4, 6-20-18)

CHAPTER 7.43 TRAINING COURSE REQUIRED FOR BUSINESSES THAT HANDLE PETS

7.43.010 Definitions.

The following definitions are applicable only to LVMC Chapter 7.43 and do not alter or supersede any other definitions of such terms provided elsewhere in LVMC Title 7.

"Animal rescue organization" has the meaning ascribed to it in NRS 574.205.

"Animal shelter" has the meaning ascribed to it in NRS 574.240.

"Breeder" has the meaning ascribed to it in NRS 574.245.

"Cattery" has the meaning ascribed to it in NRS 574.250.

"Dealer" has the meaning ascribed to it in NRS 574.260.

"Kennel" has the meaning ascribed to it in NRS 574.280.

"Nonprofit organization" has the meaning ascribed to it in NRS 82A.060.

"Pet" has the meaning ascribed to it in NRS 574.300.

"Pet groomer" means a person who professionally styles pets for compensation. The term includes, without limitation, a person who professionally bathes, brushes, or clips a pet.

"Retailer" has the meaning ascribed to it in NRS 574.320.

"Veterinarian" has the meaning ascribed to it in NRS 574.330.
(Ord. No. 6930, § 1, 11-19-25)

7.43.020 Training course required.

(A) The owner or operator of a kennel, an animal rescue organization that handles pets, or a commercial establishment engaged in the business of handling pets, including, without limitation, a breeder, a cattery, a retailer, a pet groomer, or a dealer, must complete a training course on handling pets.

(B) The Animal Regulation Officer is authorized to:

(1) Develop the training course, which shall include, without limitation, information related to animal welfare, standards of care, incident reporting, and compliance with the provisions of LVMC Title 7; and

(2) Prescribe the manner by which the training course must be completed prior to obtaining or renewing a business license.
(Ord. No. 6930, § 1, 11-19-25)

7.43.030 Renewal.

Each owner or operator required to complete the training course pursuant to LVMC Section 7.43.020 shall renew such training every two years. The Animal Regulation Officer is authorized to prescribe the manner by which each owner or operator must renew the training.
(Ord. No. 6930, § 1, 11-19-25)

7.43.040 Exceptions.

The provisions of LVMC Section 7.43.020 do not apply to:

(1) A veterinarian;

(2) The staff of a veterinarian who are operating in the office of and under the supervision of the veterinarian;

(3) An animal shelter; or

(4) A nonprofit organization whose primary purpose is to shelter the pets of victims of domestic violence.

(Ord. No. 6930, § 1, 11-19-25)

CHAPTER 7.44 ENFORCEMENT

7.44.010 Deposit of collected funds—Source for expenses.

All moneys collected under this Title, unless otherwise provided herein, shall be paid to the General Fund of the City and all expenses incurred in carrying out or enforcing the provisions hereof shall be paid therefrom.

(Ord. 3618 § 218, 1991)

7.44.020 Duty of Officers.

It shall be the duty of the Sheriff, the Animal Regulation Officer, and every Peace Officer while on duty to enforce the provisions of this Title.

(Ord. 3618 § 219, 1991)

7.44.030 Interfering or resisting.

No person shall interfere with or oppose or resist the Sheriff or any of his Officers, the Animal Regulation Officer, or any other City Law Enforcement Officer, or the Health Officer or any member or employee of the Health Department while engaged in the performance of the duties pertaining to the enforcement of this Title, all of which said Officers, members and employees are hereby empowered to enforce all the provisions of this Title.

(Ord. 3618 § 220, 1991)

7.44.040 Unlawful acts designated—Penalty.

(A) Any person owning, possessing or having the care, custody and control of any animal, who:

(1) Wilfully refuses, fails or neglects to furnish to the Animal Regulation Officer or an Animal Protection Services Officer the information required under this Title;

(2) Wilfully refuses, fails or neglects to cause said animals to be registered and pay said registration fee at the time and in the manner herein provided;

(3) Wilfully refuses, fails or neglects to perform any act or pay any other fee or charge required by this Title to be performed or paid;

(4) Resists, interferes with or prevents the Animal Regulation Officer or an Animal Protection Services Officer in the exercise of their duties; or

(5) Violates any of the provisions of Chapters 7.04 to 7.44, is guilty of a misdemeanor.

(B) Any person who violates any provision of Section 7.32.030, Section 7.32.120, Section 7.32.130, Section 7.32.160, or any provision of Subsections (1), (2), (3) or (5) of NRS 574.100 is guilty of a misdemeanor and:

(1) For the first offense within the immediately preceding seven years, shall be sentenced to imprisonment for a term of not less than two days nor more than six months; the performance of community service of not less than forty-eight hours nor more than one hundred twenty hours, and a fine of not less than two hundred dollars nor more than one thousand dollars. A term of imprisonment imposed pursuant to this paragraph may be served intermittently at the discretion of the judge, except that each period of confinement must be not less than four consecutive hours and must occur at a time when the person is not required to be at a place of employment or on a weekend;

(2) For the second offense or subsequent offense within the immediately preceding seven years, shall be sentenced to imprisonment for a term of not less than ten days nor more than six months; the performance of community service of not less than one hundred hours nor more than two hundred hours, and a fine of not less than five hundred dollars nor more than one thousand dollars.

(C) Any person who violates any provision of Section 7.32.010 is guilty of a misdemeanor and:

(1) For the first offense within the immediately preceding seven years, shall be sentenced to imprisonment for a term of not less than two days nor more than six months; the performance of community service of not less than forty-eight hours nor more than one hundred twenty hours, and a fine of one thousand dollars. A term of imprisonment imposed pursuant to this paragraph may be served intermittently at the discretion of the judge, except that each period of confinement must be not less than four consecutive hours and must occur at a time when the person is not required to be at a place of employment or on a weekend;

(2) For the second offense or subsequent offense within the immediately preceding seven years, shall be sentenced to imprisonment for a term of not less than ten days nor more than six months; the performance of community service of not less than one hundred hours nor more than two hundred hours, and a fine of one thousand dollars.

(D) In addition to any other fine or penalty provided in Subsection (B) or (C), a person who violates any provision described in Subsection (B) or (C) shall be ordered to pay restitution for all costs associated with the care and impoundment of any mistreated animal, including without limitation money expended for veterinary treatment, feed and housing.

(E) In connection with the imposition of any sentence pursuant to this Section, the court:

(1) May order the defendant to surrender ownership or possession of the mistreated animal;

(2) Except as otherwise provided in Paragraph (3) below, may enter an order prohibiting the defendant from harboring, owning, possessing, keeping or exercising control over any animal; from residing in any household where an animal is present; and from working at or volunteering for a business, animal shelter or other place where the person may access an animal, for a period not to exceed four years; and

(3) In a case where the mistreated animal died as a result of the mistreatment, must enter an order prohibiting the defendant from harboring, owning, possessing, keeping or exercising control over any animal; from residing in any household where an animal is present; and from working at or volunteering for a business, animal shelter or other place where the person may access an animal, for a period of at least two years and not to exceed five years, beginning either on the date of conviction or, in the case of a suspended sentence, at such other time as is determined by the court.

(F) If a person who owns, possesses or has custody, care and control of an animal resists, interferes with or prevents the Animal Regulation Officer or an Animal Protection Services Officer in the exercise of their duties, or violates any of the provisions of Chapters 7.04 to 7.44, inclusive, the animal may be impounded in accordance with the provisions of this Title.

(G) The City is authorized to treat a violation of the following provisions of this Title as a civil infraction, which shall then subject the violator to a civil penalty in accordance with the provisions of Sections 7.44.060 to 7.44.120, inclusive:

(1) Section 7.08.010 (relating to animal licensing);

(2) Section 7.08.090 (relating to license tags);

(3) Section 7.08.140 (relating to dog limitations);

(4) Section 7.08.160 (relating to cat limitations);

(5) Section 7.08.185 (relating to ferret limitations);

(6) Section 7.12.010 (relating to rabies vaccinations);

(7) Section 7.14.010 (relating to unspayed/unneutered animals);

(8) Section 7.20.020 (relating to unspayed female animals during copulating season);

(9) Section 7.36.010 (relating to noise annoyance);

(10) Section 7.36.020 (relating to animal interference, damage, etc.);

(11) Section 7.36.030 (relating to animals at large), if the violation is witnessed by the Animal Regulation Officer or an Animal Protection Services Officer;

(12) Section 7.36.040 (relating to animal waste);

(13) Section 7.36.050 (relating to animal restraint and sanitation);

(14) Section 7.38.040 (relating to hogs and pigs);

(15) Section 7.38.041 (relating to potbellied pigs);

(16) Section 7.38.042 (relating to potbellied pigs);

(17) Section 7.38.043 (relating to potbellied pigs);

(18) Section 7.38.050 (relating to poultry and birds);

(19) Section 7.38.060 (relating to rabbits);

(20) Section 7.38.070 (relating to owner responsibilities);

(21) Section 7.38.100 (relating to wild animal permits);

(22) Section 7.40.170 to Section 7.40.270, inclusive (relating to duties of operators);

(23) Section 7.42.030 (relating to pet shop sales);

(24) Section 7.42.050 (relating to breeder, pet shop and distributor obligations);

(25) Section 7.42.060 (relating to pet shop sales);

(26) Section 7.42.070 (relating to distributor obligations);

(27) Section 7.42.075 (relating to pet shop and breeder limitations and obligations); and

(28) Section 7.42.080 (relating to reporting and documentation).

(Ord. No. 6928, § 12, 11-5-25; Ord. No. 6896, § 1, 1-15-25; Ord. No. 6895, § 3, 1-15-25; Ord. No. 6816, § 82, 8-17-22; Ord. No. 6777, § 4, 5-5-21; Ord. No. 6180, § 1, 3-7-12; Ord. 5497 § 10, 2002: Ord. 3618 § 221, 1991)

7.44.050 Officers—Right of entry.

Any Animal Protection Services Officer or peace officer shall have the right with probable cause to enter upon any private or public property in order to examine or capture any animal thereon or therein or to enforce any provision of this Title; provided, however, that no such Officer or employee, agent or servant thereof shall have the right to enter a house or structure which is in use as a residence without having first secured a search warrant therefor.

(Ord. No. 6816, § 83, 8-17-22; Ord. 5220 § 71, 2000: Ord. 3618 § 222, 1991)

7.44.060 Notice of Infraction—Issuance.

(A) Whenever a violation of any of the provisions described in Section 7.44.040(G) occurs, a Notice of Infraction may be issued in accordance with this Chapter. Such a Notice of Infraction may be issued by any officer authorized to enforce of this Title and must contain the following information:

(1) The name and address of the person responsible for the violation;

(2) A brief description of the violation and a reference to the applicable ordinance citation(s);

(3) The location, date and time of the violation;

(4) The name of the person issuing the Notice of Infraction;

(5) The amount of the civil penalty applicable to the violation;

(6) Information advising of the manner and time for responding to the Notice of Infraction; and

(7) Such other pertinent information as may be necessary or appropriate.

(B) No error or omission concerning any of the information described in Subsection (A) is grounds for the dismissal of an action relating to a Notice of Infraction unless the person requesting such a disposition demonstrates substantial prejudice therefrom by a preponderance of the evidence.

(C) Where data concerning a Notice of Infraction is entered into and stored in a computer or similar device, the following shall be deemed to be an "original" of such Notice of Infraction for purposes of this Chapter:

(1) Any printout or other output readable by sight which accurately reflects such data; and

(2) Any such entry which has been moved or copied into another computer or similar device and is intended to have the same effect by the issuing officer.

(D) Any Notice of Infraction issued pursuant to this Chapter shall constitute a declaration which is subject to the penalty of perjury.
(Ord. No. 6896, § 2, 1-15-25; Ord. No. 6180, § 2, 3-7-12)

7.44.070 Notice of Infraction—Filing.

An original Notice of Infraction, or a facsimile thereof, must be filed with the Department of Public Safety and retained by that Department, and is deemed to be a public record of matters which are observed pursuant to a duty which is imposed by law and is prima facie evidence of the facts which are alleged therein. An original or duplicate of the Notice of Infraction must be served on the person responsible for the violation.
(Ord. No. 6518, § 10, 4-6-16; Ord. No. 6180, § 2, 3-7-12)

7.44.080 Notice of Infraction—Acknowledgement—Hearings.

(A) A person must respond to a Notice of Infraction in one of the following ways:

(1) "Admit" responsibility for the commission of the violation and liability for the civil penalty imposed, and pay the applicable civil penalty;

(2) Contact the Director of Public Safety or an authorized designee, "admit" such responsibility and liability, and arrange a schedule for the payment of such penalty; or

(3) Request a binding hearing, as provided for in Subsections (B) to (I), inclusive, of this Section in order to dispute the propriety of the issuance of the Notice of Infraction or liability for the violation.

(B) A person may initiate a hearing pursuant to Paragraph (3) of Subsection (A) of this Section by:

(1) Contacting the Director of Public Safety or a designee;

(2) Providing his/her name, current address and the Notice(s) of Infraction(s) and penalties thereon which such person wishes to subject to such hearing; and

(3) Obtaining a date for the hearing.

(C) Any person initiating such a hearing in this manner (the "defendant") shall be bound by the decision of the Hearing Officer concerning liability for the infraction(s) and responsibility for the penalties related thereto. If a defendant scheduling a hearing before the Hearing Officer fails to appear at the hearing without having first sought and obtained a continuance of the hearing, the Hearing Officer may enter a decision against the defendant for the full amount of penalties scheduled to be reviewed. In connection with the request for a hearing, the defendant must acknowledge the binding nature of the hearing and the Hearing Officer's authority in the event the defendant fails to appear at a hearing. The acknowledgment shall be in substantially the following form:

I _____, hereby request a binding hearing before the Hearing Officer. My address is _____. I request that this hearing involve Notice(s) of Infraction(s) Number _____. I understand that the Hearing Officer is an attorney and not an elected or appointed judge.

I understand that I am bound by the decision of the Hearing Officer. I understand that if I fail to appear for the scheduled hearing before the Hearing Officer without first obtaining a continuance of such hearing, the Hearing Officer may enter a decision against me for the full amount of the penalties scheduled to be reviewed. I understand and agree that if necessary due to my lack of timely payment, the City of Las Vegas can and will use this binding decision to have a formal civil judgment entered against me in the Las Vegas Municipal Court.

I understand that if a civil judgment is obtained, the City may seek and obtain a writ of execution against me. I understand that if a writ of execution is obtained, my wages and/or bank accounts may be garnished, and liens may be put on my property.

Knowing all of the above, I still wish to request a binding hearing before the Hearing Officer on the above-described Notice(s) of Infraction(s). I hereby acknowledge the above and further acknowledge that at my request a hearing has been set for _____, 20_____ at the hour of _____ m.

_____
Defendant

(D) Any hearing conducted pursuant to this Section shall be presided over by a Hearing Officer who shall be an attorney licensed to practice law in the State of Nevada. With respect to any such hearing, a properly filed Notice of Infraction shall constitute a claim of liability and a claim for relief and no other such claim shall be required. Prima facie proof of the violation alleged shall be established by the City providing the Hearing Officer with either a certified copy of the Notice of Infraction or the data stored in a computer or other device, as described in Subsection (C) of Section 7.44.060. No formal appearance by the City Attorney's office is required. The hearings and dispositions of all such actions shall be informal, with the Hearing Officer receiving witness statements or testimony and other evidence for the sole purpose of dispensing fair and speedy justice between the parties.

(E) The burden of proving any defense shall be upon the person raising such defense.

(F) If the Hearing Officer finds that a violation did not occur or that the defendant should not be held liable, the Hearing Officer shall enter a decision for the defendant.

(G) The defendant shall pay the total civil penalties forthwith or at such times and on such conditions as the Hearing Officer shall prescribe if it is found that the person has either failed to appear or otherwise defend against the issuance of the Notice of Infraction as agreed or that the violation was committed and no applicable defense exists.

(H) Upon reaching a decision, the Hearing Officer shall as soon as practicable thereafter, file a written decision substantially conforming to the following form:

City of Las Vegas, Clark County, Nevada, City of Las Vegas, Plaintiff v. _____, Defendant. Before, _____, Hearing Officer for the City of Las Vegas, Clark County, Nevada, decision is entered in favor of _____, (plaintiff or defendant) for $_____ (enter $0.00 if judgment is for the defendant), on the _____day of _____, 20_____. I certify that the foregoing is a correct reflection of the decision entered in the action properly brought for my consideration pursuant to LVMC Chapter 7.44.

_____
Hearing Officer

(I) The City Attorney may petition the Las Vegas Municipal Court for the entry of a civil judgment against the defendant in an amount equal to that stated in the written decision of the Hearing Officer if the City Attorney determines this action to be necessary to enforce the decision. Service of such petition on the defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the defendant at the defendant's last known address, or in any other manner which is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service shall be filed

upon such service of the petition. Once a petition for civil judgment pursuant to this Subsection (I) has been filed with the Municipal Court, the assigned judge has jurisdiction to grant or deny the relief prayed for therein.
(Ord. No. 6518, § 11, 4-6-16; Ord. No. 6180, § 2, 3-7-12)

7.44.090 Thirty-day response period.

(A) A response to a Notice of Infraction, as provided in Section 7.44.080, must be made within thirty calendar days after the date on which the Notice of Infraction is served. If no response is received during such thirty-day period, an additional civil penalty which is equal to the amount of the original civil penalty must be assessed.

(B) After the expiration of the thirty-day response period, the Director of Public Safety or an authorized designee may send a Notice of Delinquency by mail to the person to whom the Notice of Infraction was issued, at that person's last known address. The Notice of Delinquency must contain the date of the infraction, the amount of the initial civil penalty and the amount of any additional penalty which is associated therewith. The person to whom the Notice of Delinquency was sent shall have fifteen calendar days after the date of the Notice of Delinquency in which to respond thereto in the manner which is provided in Section 7.44.080. If no response is made to the Notice of Delinquency within such additional fifteen-day period, an additional penalty must be assessed equal to two times the original civil penalty amount, in addition to the original amount.

(C) If a person fails to respond to a Notice of Infraction or a Notice of Delinquency in accordance with this Chapter, the City is entitled to collect the amount of any fines and penalties by means of any remedy available under applicable law, including without limitation referring the matter to a collection agency.
(Ord. No. 6518, § 12, 4-6-16; Ord. No. 6180, § 2, 3-7-12)

7.44.100 Additional collection fees.

(A) The schedule of civil penalties contained in Section 7.44.110 is hereby established for the violations described therein.

(B) In addition to the penalties provided for in Section 7.44.110 and the late fees described in Section 7.44.120, the person responsible for any violation shall be liable for an additional collection fee where the collection of the penalties provided for herein is referred for collection to a private collection agency. The amount of such fee shall be twenty-five percent of the outstanding indebtedness or two hundred fifty dollars, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this Chapter may include the amount of the collection fee authorized by this Subsection (B).
(Ord. No. 6180, § 2, 3-7-12)

7.44.110 Schedule of civil penalties.

The following civil penalties are established for violations of the provisions indicated below:

SECTION VIOLATED	*PENALTY*
7.08.010	One hundred fifty dollars
7.08.090	One hundred fifty dollars
7.08.140	One hundred fifty dollars
7.08.160	One hundred fifty dollars
7.08.185	One hundred fifty dollars
7.12.010	Five hundred dollars
7.14.010	One hundred fifty dollars
7.20.020	Two hundred fifty dollars
7.36.010	Two hundred fifty dollars (1st offense Five hundred dollars (2nd or subsequent offense within a twenty-four-month period)
7.36.020	One hundred fifty dollars
7.36.030	Two hundred fifty dollars (1st offense) Five hundred dollars (2nd or subsequent offense within a twenty-four-month period)
7.36.040	One hundred fifty dollars
7.36.050	One hundred fifty dollars
7.38.040	One hundred fifty dollars
7.38.041	One hundred fifty dollars
7.38.042	One hundred fifty dollars
7.38.043	One hundred fifty dollars
7.38.050	One hundred fifty dollars
7.38.060	One hundred fifty dollars
7.38.070	One hundred fifty dollars
7.38.100	Two hundred fifty dollars
7.40.170 to 7.40.270, inclusive	Not less than two hundred fifty dollars nor more than five hundred dollars
7.42.030	Two hundred fifty dollars (1st offense) Five hundred dollars (2nd or subsequent offense within a twenty-four-month period)
7.42.050	Two hundred fifty dollars (1st offense) Five hundred dollars (2nd or subsequent offense within a twenty-four-month period)
7.42.060	Two hundred fifty dollars (1st offense) Five hundred dollars (2nd or subsequent offense within a twenty-four-month period)

SECTION VIOLATED	*PENALTY*
7.42.070	Two hundred fifty dollars (1st offense) Five hundred dollars (2nd or subsequent offense within a twenty-four month period)
7.42.075	Five hundred dollars
7.42.080	Five hundred dollars

(Ord. No. 6928, § 14, 11-5-25; Ord. No. 6895, § 4, 1-15-25; Ord. No. 6623, § 5, 6-20-18; Ord. No. 6180, § 2, 3-7-12)

7.44.120 Penalty adjustments.

The penalty amounts set forth in Section 7.44.110 are subject to adjustment as follows:

(A) A Hearing Officer's decision in accordance with Section 7.44.080 regarding a qualifying violation may include a provision that, if payment is made within thirty days after the decision is issued and the violator can document that the violation has been corrected, the applicable penalty is reduced by sixty-five percent (or seventy-five percent, in the case of a violation of Section 7.14.010). For purposes of this Subsection, a "qualifying violation" is a violation of a requirement regarding an animal that can be corrected and, upon correction, the violation cannot reoccur. Examples of such violations are those regarding license or permit requirements, vaccination requirements, and spay/neuter requirements.

(B) If the payment of penalty amounts when they become finally due pursuant to the provisions of Sections 7.44.060 to 7.44.120, inclusive, are not timely made, the following late fees shall be imposed and are immediately due and payable:

(1) If payment is late more than thirty days, a late fee of one hundred percent of the applicable penalty amount.

(2) If payment is late more than forty-five days, the late fee is increased to one hundred fifty percent of the applicable penalty amount.

(Ord. No. 6180, § 2, 3-7-12)

CHAPTER 7.46 POLICE SERVICE ANIMALS

7.46.010 Definitions.

As used in this Chapter, the following terms shall have the meanings ascribed to them:

(A) "Area of control" means a vehicle, kennel, pen, enclosure or other surroundings in which a police service animal is temporarily or regularly kept or maintained.

(B) "Handler" means an officer of a law enforcement agency who has been trained in law enforcement activities, performs law enforcement-related duties and uses a police service animal in the performance of those duties.

(C) "Police service animal" means a dog or horse which has been trained in law enforcement activities and which is used by or contracted to a law enforcement agency in the performance of law enforcement duties.

(Ord. 5111 § 2, 1998)

7.46.020 Unlawful acts.

It is unlawful for a person to intentionally or knowingly:

(A) Cause bodily injury or death to a police service animal;

(B) Engage in any conduct likely to cause bodily injury or death to a police service animal;

(C) Lay out, place or administer any poison, trap, substance or object which is likely to cause bodily injury or death to a police service animal;

(D) Taunt, torment, strike or otherwise assault a police service animal;

(E) Throw any object or substance at or in the path of a police service animal;

(F) Interfere with or obstruct a police service animal, or attempt such interference or obstruction;

(G) Interfere with a handler in such a manner as to inhibit, restrict or deprive the handler of his or her control of a police service animal;

(H) Release a police service animal from its area of control, or to trespass within such area;

(I) Place any food, object or substance into a police service animal's area of control; or

(J) Offer or agree with one or more persons to engage in or cause the performance of any act which violates this Section.

(Ord. 5111 § 3, 1998)

Title 8

(RESERVED)

LAS VEGAS, NEVADA

MUNICIPAL CODE

A Codification of the General Ordinances of Las Vegas, Nevada

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VOLUME II

Republished November 2009
by Municipal Code Corporation

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CHAPTER 9.04 NUISANCES*

9.04.010 Definitions.

As used in this Chapter, unless the context requires otherwise, the following terms shall be defined as set forth in this Section.

"Abate" and "abatement" refer to action to eliminate a nuisance or chronic nuisance condition, whether by removal, repair, replacement, demolition, or a combination thereof. With reference to action permitted or required to be taken by an owner or other responsible party in response to a request to abate from the City, a notice of violation, or a notice and declaration, the terms refer to the type or types of action specified by the City to be taken by the owner or responsible party within the request by the City or the notice of violation or notice and declaration issued by the City. With reference to action taken by or on behalf of the City, the terms refer to any action to remove, repair, replace or demolish, as deemed appropriate by the City.

"Authorized official" means an officer of the Las Vegas Metropolitan Police Department and any person designated and empowered by ordinance, by the City Manager or by the District Health Officer to enforce the provisions of Title 9.

"Chronic nuisance" means the existence of any of the following conditions:

(1) When three or more nuisance activities exist or have occurred during any thirty-day period on a property;

(2) When a person associated with the property has engaged in three or more nuisance activities during any thirty-day period on the property or within one hundred feet of the property;

(3) When the property has been the subject of a search warrant based on probable cause of continuous or repeated violations of NRS Chapter 459;

(4) When a building or place is used for the purpose of unlawfully selling, serving, storing, keeping, manufacturing, using or giving away a controlled substance, immediate precursor or controlled substance analog, as those terms are defined in NRS Chapter 453 and other chapters; or

(5) When a building or place was used for the purpose of unlawfully manufacturing a controlled substance, immediate precursor or controlled substance analog and:

(a) The building or place has not been deemed safe for habitation by a governmental entity; or

(b) All materials or substances involving the controlled substance, immediate precursor or controlled substance analog have not been removed from or remediated on the building or place by an entity certified or licensed to do so

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***Editor's note—**For provisions on the abatement of obscene nuisances, see Art. II of Ch. 10.42 of this Code.

within one hundred eighty days after the building or place is no longer used for the purpose of unlawfully manufacturing a controlled substance, immediate precursor or controlled substance analog.

"Chronically-blighted property" means any property, whether improved or unimproved, whether vacant or occupied, and whether or not structures are located thereon, which by reason of dilapidation, deterioration, age, obsolescence, neglect, or failure to protect or secure, creates or has created conditions that are unsafe, hazardous, conducive to criminal activity or ill health, or that substantially interfere with the reasonable use and enjoyment of adjacent properties or have a detrimental effect upon adjacent property values. The term includes any property that is unable, by means of upkeep, repair, or productive use, to be kept secure from unauthorized entry or use over the course of time.

"Criminal activity" means any activity defined as a misdemeanor in the Las Vegas Municipal Code or as a misdemeanor, gross misdemeanor or felony in NRS Title 15.

"Imminent hazard" means any condition associated with real property that places a person's life, health or property in high risk of peril when such condition is immediate, impending, or on the point of happening or menacing.

"Owner" means any person having a legal or equitable interest in real property within the City. For purposes of providing notice under this Chapter to an owner of real property, the term also includes any agent or representative of the owner, or any person who acts as a manager or collects rents regarding that property.

"Person associated with the property" means a person who, on the occasion of a nuisance activity, has:

(1) Entered, patronized or visited;

(2) Attempted to enter, patronize or visit; or

(3) Waited to enter, patronize or visit, a property or a person present on the property.

"Public nuisance," "nuisance," or "nuisance activity" means any of the following conditions:

(1) Any area, structure or object which by its nature, location, or character would tend to attract and endanger the safety of any minor person.

(2) Any violation of Title 16, including violations of the codes pertaining to building, construction, housing, and fire safety adopted thereunder.

(3) Any body of water which by its nature or location constitutes an unhealthy or unsafe condition, including any accumulation of stagnant water that has become or is likely to become a breeding area for insects.

(4) Any refuse, waste, litter or other material, regardless of its market value, which, by reason of its location or character, is unsightly or interferes with the reasonable use and enjoyment of adjacent properties, has a detrimental effect upon adjacent property values, or would hamper or interfere with the containment of fire upon the

premises. Examples include, without limitation, decaying or non-decaying solid and semi-solid wastes, whether or not combustible, such as old lumber, tin, wire, cans, barrels, cartons, boxes, rags, tires, inner tubes, brush, grass and hedge clippings, rocks, bricks, cinders, scrap iron, buckets, tubs, windows, screens, glass, bottles, wastepaper, bedsprings, mattresses, discarded furniture and appliances, bedding and material cleaned from animal or fowl pens, automobile parts, scrap paving material, and piles of earth mixed with other waste material which may harbor insect or rodent infestations or may become a fire hazard.

(5) Any violation of Title 19 or Title 20 of this Code.

(6) Operating a business without a current license as required by Title 6.

(7) An odor nuisance as described in LVMC Chapter 9.40.

(8) A chronically-blighted property.

(9) Any other act or condition, other than those permitted by NRS 40.140 and 202.450, which, by reason of its nature, character or location, interferes with the reasonable use and enjoyment of adjacent properties, or which has a detrimental effect upon adjacent property values. Such nuisances include without limitation the following:

(a) Weeds, turf grass, or uncultivated plant growth exceeding eight inches in height, either on a vacant parcel or on a developed parcel at a location visible from public property;

(b) Dead trees, plants and other vegetation that present a fire hazard or are otherwise a threat to property or to the health and safety of the public or a segment thereof;

(c) Graffiti, as defined in LVMC 10.48.060, that is allowed to remain for more than twenty-four hours;

(d) Unpainted or painted buildings, walls, fences or other structures whose condition has become so deteriorated as to create a hazardous condition; threaten collapse, displacement, or other breakdown of structural integrity; permit decay, excessive cracking, peeling, chalking, dry rot, warping or termite infestation; or create a condition of blight visible from public right-of-way;

(e) Any vehicle that has been abandoned, or any vehicle in an obviously mechanically inoperable condition, that:

(i) Is parked within a multifamily residential parking lot, in a location that is visible from public property, including a street or alley;

(ii) Has been parked in the same location for more than seven consecutive days;

(f) Criminal activity on any lot or premises within the City.

"Responsible party" means any tenant, occupant, lessor, lessee, manager, licensee or other person having control over a structure or parcel of land in the City.
(Ord. No. 6798, § 1, 11-17-21; Ord. No. 6570, § 1, 3-15-2017; Ord. 6024 § 1, 2009: Ord. 5873 § 12 (part), 2006)

9.04.015 Unruly gatherings on residential property.

(A) It is unlawful and a public nuisance for a person to create (or permit to exist) upon residential property an unruly gathering. For purposes of this Section, an "unruly gathering" is a gathering of eight or more persons for a party or other social occasion that is characterized by conduct which presents a threat to the public health, safety, general welfare, or which disturbs the quiet enjoyment of residential property within the vicinity. Such conduct includes without limitation any of the following, or a combination thereof:

(1) Traffic to or from the property, or the parking of vehicles in the neighborhood, to an extent or of a character that represents an undue burden on the neighborhood;

(2) The obstruction of public rights-of-way by vehicles or persons;

(3) The intoxication of persons within public rights-of-way;

(4) The service of alcoholic beverages to minors, or the possession or consumption thereof by minors;

(5) The illegal possession or consumption of controlled substances;

(6) Violence or other disturbances of the peace;

(7) Noise disturbances in violation of LVMC Chapter 9.16;

(8) Vandalism;

(9) Litter upon public rights-of-way; or

(10) Urinating or defecating in areas visible to the public.

(B) In addition to any nuisance remedy available under this Chapter that can be made applicable, the City or an authorized official may take appropriate action to disband an unruly gathering described in Subsection (A). As an alternative to a criminal prosecution, the City or an authorized official may issue a Notice of Violation and proceed in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive.
(Ord. No. 6358, § 1, 10-1-14)

9.04.020 Service charges.

(A) The City, through its agents and employees, is authorized to inspect property, buildings and premises to determine compliance with this Chapter. The City may assess and collect from the owner or responsible party the following inspection fees as service charges:

(1) No fee for the initial inspection.

(2) One hundred twenty dollars for the initial reinspection, if the owner or responsible party has failed to make all the repairs or corrections by the established reinspection date.

(3) An additional reinspection fee in the sum of one hundred eighty dollars per hour, with a one-hour minimum, for each additional inspection required to certify compliance with the notice of violation until each repair or correction has been completed to the satisfaction of the authorized official.

(B) Based upon a summary of service charges submitted by the authorized official, the Department of Community Development shall send an appropriate billing to the owner or responsible party. The Department may charge an additional ten percent administrative fee to cover administrative costs. The billing must include the date by which payment must be made in order to avoid the assessment procedures described in this Chapter.

(C) If payment is not received in a timely manner, the City may proceed to collect the service charges and administrative fees through the assessment procedures described in Section 9.04.100, or by means of any other legal or equitable remedy.
(Ord. No. 6816, § 84, 8-17-22; Ord. 5873 § 12 (part), 2006)

9.04.030 Penalty for maintaining or permitting a public nuisance to exist.

Every person who causes, maintains, allows, permits, procures, aids, fosters, promotes or solicits a public nuisance or chronic nuisance, or who wilfully omits or refuses to abate such a nuisance, is guilty of a misdemeanor. Every person who deliberately ignores the establishment or continuation of a public nuisance or chronic nuisance involving or upon property under the person's control is guilty of a misdemeanor if done either intentionally or in a criminally negligent manner. For purposes of this Section, deliberate ignorance is done in a criminally negligent manner if it jeopardizes another's health, safety or welfare; interferes with the objectively reasonable use and enjoyment of adjacent property or any public property; or has a detrimental effect upon adjacent property values. Each day that a violation continues constitutes a separate violation for purposes of criminal prosecution.
(Ord. 5873 § 12 (part), 2006)

9.04.040 Liability.

(A) Pursuant to NRS 268.019, the City may proceed to impose civil liability, instead of a criminal sanction, against a person for causing or maintaining a public nuisance. The amount of liability that may be imposed may not exceed five hundred dollars, or one thousand dollars in the case of liability imposed against an owner of commercial property. Each day that a violation continues constitutes a separate violation for purposes of imposing civil liability.

(B) Proceedings instituted under this Section shall be as set forth in Sections 9.04.050 to 9.04.100, inclusive.
(Ord. 5873 § 12 (part), 2006)

9.04.050 Notice of violation.

(A) If it is determined by an authorized official that a public nuisance exists on property within the City, the official may cause a notice of violation to be issued to the owner or responsible party to abate the nuisance. Such notice shall:

(1) Identify the owner of the property and any responsible party, if known;

(2) Identify with particularity the property upon which the nuisance has been committed;

(3) Include a statement of violations in sufficient detail to allow an owner or responsible party to identify and correct the nuisance;

(4) Require abatement to be performed within a specific time period, not less than ten days, except as otherwise provided in Subsection (C) of this Section;

(5) Set any reinspection date deemed appropriate;

(6) Provide an address and telephone number of an authorized official with whom contact regarding the violation can be made; and

(7) Inform the owner or responsible party of the right to appeal as provided in this Chapter.

(B) A notice of violation may be served in any of the following ways:

(1) By personal service thereof upon the owner or responsible party;

(2) By mailing the notice by certified mail, return receipt requested to the owner or responsible party at the last known address; or

(3) By posting the notice in a conspicuous place on the property; provided, however, that service by posting shall only be used when the authorized official cannot determine the last known address of the owner or responsible party.

(C) The time period for abatement of a nuisance described in Paragraph (4) of Subsection (A) of this Section:

(1) May be less than ten days if the public health or safety requires a shorter period; and

(2) May not be less than thirty days if the condition is not an immediate danger to the public health, safety or welfare and was caused by the criminal activity of a person other than the owner.
(Ord. No. 6177, § 1, 2-15-12; Ord. 5873 § 12 (part), 2006)

9.04.060 Time limit for abatement.

(A) Unless an appeal is perfected in compliance with Section 9.04.070, the owner or responsible party must abate a public nuisance within the time period set forth in the notice of violation.

(B) If an appeal is perfected in accordance with Section 9.04.070, the date specified for abatement in the notice of violation is tolled for the period during which the owner or responsible party pursues the appeal and receives a decision.

(C) In the event the decision on an appeal requires abatement of the public nuisance, the owner or responsible party must abate the public nuisance within ten days after the decision or within such other time period as the decision may direct.
(Ord. 5873 § 12 (part), 2006)

9.04.070 Appeal procedures.

(A) Within ten days after service of the notice of violation, the owner or responsible party may file an appeal. Such appeal shall be in writing and shall be filed with the City Clerk. Within ten days after the appeal has been filed, the appellant shall be given written notice of the procedure and time frame for the hearing of the appeal. The appeal shall be heard by the City Council or by the Council's designee. If the appeal is heard by a designee, there shall be a further right of appeal to a court of competent jurisdiction. The decision of the City Council or the Council's designee, in cases where a designee hears an appeal and no further appeal is taken, shall be final and conclusive. Any owner or responsible party failing to appeal as provided in this Section shall be deemed to have waived any and all objections to the existence of a public nuisance and the abatement of such nuisance.

(B) Civil liability under Section 9.04.040 may be imposed by the City Council, or the Council's designee, in connection with:

(1) An appeal hearing held pursuant to this Section; or

(2) Another hearing to establish liability concerning which the owner or responsible party has been provided notice and an opportunity to be heard. Service of such notice is sufficient if in accordance with Subsection (B) of Section 9.04.050.

(Ord. No. 6304, § 1, 3-5-14; Ord. 5873 § 12 (part), 2006)

9.04.080 Necessary actions.

(A) In addition to and independent of any other proceeding or remedy authorized by this Chapter or by State law, if an owner or responsible party in violation of this Chapter fails or neglects to remove the public nuisance within the applicable time limit specified in Section 9.04.060 and has not filed a timely appeal pursuant to Section 9.04.070, the City may take any and all action necessary to abate the public nuisance. In addition, after the City has taken abatement action more than once concerning a particular parcel, the City may undertake

preventative measures as part of its abatement action, which may include, without limitation, creating a dirt berm or installing a fence around the appropriate portions of the parcel, and installing appropriate signage, to prevent and discourage future nuisance activity.

(B) Except as otherwise provided in this Section, at least ten days' notice of the City's intent to take or cause abatement action under this Section must be provided to an owner or responsible party. Subject to compliance with the provisions of Paragraph (2) of Subsection (C) of Section 9.04.050, this notice requirement shall be deemed to have been met if a notice of violation indicates that such abatement action may be taken upon failure to remove a public nuisance within the time limit specified.

(C) A fifteen percent administrative fee shall be added to the cost of the contract price, if any, for each abatement action conducted to remove or correct a public nuisance.

(D) If, in the opinion of the City Manager, or a duly authorized representative, the condition of a property constitutes an imminent hazard, the City Manager or representative may order immediate abatement of the hazard without notice. The abatement work shall be limited to the minimum work necessary to remove the hazard. Before ordering abatement under this Section, the City Manager or representative shall first obtain the concurrence of at least one other City or public agency official. City and public agency officials that may concur with or request a designation of imminent hazard pursuant to this Section include, without limitation, the City Manager; the Las Vegas Metropolitan Police Department; the Southern Nevada Health District; and the Departments of Fire and Rescue, Public Works, Community Development, Public Safety, and Parks, Recreation and Cultural Affairs. The City shall pay the initial cost and expense of any emergency abatement from any appropriation made available for that purpose. Any costs and expenses incurred, and any fees imposed, in connection with the removal of an imminent hazard may be assessed against the property or the owner in accordance with the procedure described in Section 9.04.100.

(E) A report of abatement proceedings taken pursuant to this Section, and a separate account of the abatement costs on each parcel, shall be filed with the City Clerk.
(Ord. No. 6816, § 85, 8-17-22; Ord. No. 6518, § 13, 4-6-16; Ord. No. 6177, § 2, 2-15-12; Ord. 5873 § 12 (part), 2006)

9.04.090 City's removal—Abatement.

Notwithstanding any provision of Section 9.04.080, the existence of a public nuisance on any vacant lot which poses a threat to health or safety, results in deterioration and blighting of the surrounding area and has an adverse effect on the use and enjoyment of nearby properties may be summarily removed or abated by the City without prior notice and at the City's expense.
(Ord. 5873 § 12 (part), 2006)

9.04.100 Hearing procedures.

(A) Upon the filing of the abatement report for abatement action taken by the City pursuant to Section 9.04.080, a hearing shall be held for the purpose of reviewing the report and any accompanying documentation. At the City's option, such a hearing may be held before the City Council or before the City Council's designee. At the abatement report hearing, the City Council or designee shall either approve or disapprove of the report as submitted, or as modified or corrected by the City Council or designee. In the event the City Council or designee approves the report as submitted, or as modified or corrected, either or both of the following actions may be taken:

(1) The City Council or designee may order that the cost of abating the public nuisance be made a personal obligation of the property owner or other responsible party and may direct the City Attorney to collect the costs of abating the nuisance (including reinspection fees) and interest thereon by use of all appropriate remedies.

(2) The City Council or designee may order that the cost of abating the public nuisance, including reinspection fees and interest, shall be assessed against the property. In such a case, the City Council or designee shall confirm the assessment and have it filed with the County Recorder and mailed in accordance with Subsection (B) of this Section. Thereafter, the assessment shall constitute a lien upon the property.

(B) An assessment lien processed under Subsection (A):

(1) Is perfected when the City has:

(a) Filed with the County Recorder a statement of the amount of expenses due and unpaid and describing the property subject to the lien; and

(b) Sent by certified mail, return receipt requested, a notice of the lien, separately prepared for each lot affected, and addressed to the last known owner of the property at his last known address, as determined by the real property assessment roll in the Clark County Assessor's Office.

(2) Shall be:

(a) Coequal with the latest lien on the subject property to secure the payment of general taxes;

(b) Not subject to extinguishment by the sale of the property on account of the nonpayment of general taxes;

(c) Prior and superior to all liens, claims, encumbrances and titles other than the liens of assessments and general taxes.

(3) Shall bear interest, from the date of recordation, at the rate set by law for judgments, and shall continue until the assessment and all interest due and payable thereon is paid.

(C) Pursuant to NRS 268.4122, the City Council or designee may order that civil penalties assessed under this Chapter be made part of an assessment lien authorized by this Section, but any action to do shall be subject to the limitations contained in NRS 268.4122. In the case of action taken by a designee, an appeal of that decision may be taken to a court of competent jurisdiction.

(D) For appropriate cause, a designee of the City Council, in connection with a hearing, may waive or reduce costs and penalties previously assessed under this Chapter. The City Council shall establish by resolution a policy that describes the process by which such waivers may be requested and hearings held, as well as standards and guidelines related to waiver requests. Except as otherwise provided in Subsection (E), the decision of a designee is final City action for purposes of judicial review, and any subsequent review or appeal must be taken to a court of competent jurisdiction.

(E) A person who has requested a waiver or reduction pursuant to Subsection (D) and who is aggrieved by a decision of the designee may appeal that decision to the City Council, but such an appeal is available only if the appeal is filed in writing with the City Clerk within ten calendar days following the designee's decision. The decision of the City Council is final City action for purposes of judicial review. Any subsequent review or appeal must be taken to a court of competent jurisdiction.

(F) The policy established pursuant to Subsection (D) may include, or the City Manager may establish, an alternative administrative process by which a person who seeks a waiver of costs and penalties may elect to forgo the hearing process described in Subsection (D) and instead enter into a compliance agreement with the City, pursuant to which waivers may be granted by the City administratively. The provisions of Subsections (D) and (E) shall govern if the person requesting a waiver is unable to meet the requirements of the compliance agreement or if such an agreement cannot be reached.
(Ord. No. 6785, § 1, 7-7-21; Ord. No. 6304, § 2, 3-5-14; Ord. No. 6177, § 3, 2-15-12; Ord. 5873 § 12 (part), 2006)

9.04.110 Notice and declaration of chronic nuisance.

(A) Upon the discovery of a chronic nuisance existing on a property, an authorized official, in addition to or lieu of treating the chronic nuisance as a public nuisance under this Chapter, may send to the owner a written notice declaring the existence of a chronic nuisance for purposes of proceeding under this Section and Section 9.04.120. The notice shall be entitled "Notice and Declaration of Chronic Nuisance" and shall:

(1) Identify with particularity the property upon which the chronic nuisance is located;

(2) Include a description of the conditions or activities which constitute the chronic nuisance;

(3) Specify the date by which the condition must be abated in order to prevent the matter from being submitted to the City Attorney for legal action, which date may not be less than thirty days if the condition is not an immediate danger to the public health, safety or welfare and was caused by the criminal activity of a person other than the owner; and

(4) Indicate that the owner may seek a hearing on the matter before a court of competent jurisdiction.

(B) The Notice and Declaration of Chronic Nuisance shall be sent by certified mail, return receipt requested to the owner of the property.

(C) The date specified in the Notice and Declaration of Chronic Nuisance for abatement is tolled for the period during which the owner requests a hearing and receives a decision.
(Ord. No. 6177, § 4, 2-15-12; Ord. 5873 § 12 (part), 2006)

9.04.120 Abatement action—Additional actions.

(A) When a property owner has been served with a Notice and Declaration of Chronic Nuisance and has failed to abate the chronic nuisance by the date specified in the Notice and Declaration, the authorized official may request the City Attorney to file an abatement action in a court of competent jurisdiction. If the court finds that a chronic nuisance exists and emergency action is necessary to avoid immediate threat to the public welfare or safety, the court shall order the City to secure and close the property for a period not to exceed one year or until the nuisance is abated, whichever occurs first. In addition, the court may:

(1) Impose a civil penalty in accordance with NRS 268.4124(3) for each day that the condition was not abated after the date specified in the Notice and Declaration of Chronic Nuisance by which the owner was required to abate the condition;

(2) Order the owner to pay the City for all costs incurred and fees imposed by the City in abating the condition;

(3) If applicable, order the owner to pay reasonable expenses for the relocation of any tenants who are affected by the chronic nuisance; and

(4) Order any other appropriate relief.

(B) In any proceeding in which the City has expended funds to abate a chronic nuisance that has not been abated by the owner, the City may avail itself of the remedies described in Section 9.04.100 for the abatement of public nuisances generally.
(Ord. No. 6177, § 5, 2-15-12; Ord. 5873 § 12 (part), 2006)

CHAPTER 9.08 COLLECTION AND MANAGEMENT OF SOLID WASTE AND RECYCLABLE MATERIALS*

9.08.010 Findings—Purpose.

It is declared to be the policy of the City to regulate the collection, transportation, deposit, transfer, recycling and disposal of solid waste and recyclables in a manner that is consistent with State law and that will:

(A) Protect public health and welfare.

***Editor's note—**Ord. No. 6572, § 1, adopted April 5, 2017, repealed the former Chapter 9.08, §§ 9.08.010—9.08.340, and enacted a new Chapter 9.08 as set out herein. The former Chapter 9.08 pertained to solid waste management and derived from Ord. No. 5733, 2004; Ord. No. 5894, 2007; Ord. No. 6025, 2009 and Ord. No. 6182, adopted March 7, 2012.

(B) Prevent water or air pollution.

(C) Prevent the spread of disease and the creation of nuisances.

(D) Conserve natural resources.

(E) Enhance the beauty and quality of the environment.

(Ord. No. 6572, § 2, 4-5-17)

9.08.020 Definitions.

In the construction of this Chapter, the following definitions shall apply, unless the context clearly requires otherwise:

"Bulky item" means any large item normally associated with a residential household that does not fit into a residential solid waste container or wheeled cart, including without limitation appliances, carpeting and mattresses, and that can be handled by a two-person crew.

"Cash receipts" means all receipts derived from the collection of solid waste and residential recyclables collection services and includes, by way of illustration and not limitation, all cash, credits, property or other consideration of any kind derived directly or indirectly by a franchisee (or any of its authorized agents or affiliates) for the collection, transportation and disposal of solid waste, including all revenue received from residential service (including any charges attributable to residential recyclables collection services); commercial and industrial service; medical-waste service; sewage-waste service; special collection-related services provided pursuant to a franchise agreement and this Chapter; container rentals, including delivery, removal and exchange fees; packaging; shipping; late fees; and lien fees, but excluding revenues from:

(A) The sale of recyclables.

(B) Any taxes on services furnished by a franchisee that are imposed by any governmental entities, that are passed through to and collected from the franchisee's customers, and that are separately itemized on customers' bills.

"Collection costs" means administrative costs and legal fees the licensed franchisee incurs when attempting to collect any charges and/or penalties from the legal owner of the premises where solid waste is collected, where such charges have become past due and payable.

"Commercial recycler" means any licensed entity, including a licensed franchisee, that is in the business of purchasing, accepting donations of, collecting, storing, transporting or processing commercial source-separated recyclables.

"Commercial source-separated recyclables" means recyclables generated by a commercial business that have been separated from the solid waste stream at the source for recycling purposes and that are not mixed with solid waste other than residual solid waste. In order for commercial source-separated recyclables to be recognized under Section 9.08.060(E), they may not contain more than ten percent residual solid waste.

"Commingled recyclables" means recyclables that have been abandoned or discarded and that are mixed with solid waste other than residual solid waste.

"Compacted solid waste" means solid waste reduced by mechanical equipment, in volume but not weight, by a minimum ratio of three to one.

"Construction or demolition waste" means non-hazardous solid waste resulting from the construction, remodeling, repair, and demolition of utilities and structures, as well as uncontaminated solid waste resulting from land clearing. Such waste includes, but is not limited to, wood (including painted, treated, and coated wood and wood products), land clearing debris, wall coverings, plaster, drywall, plumbing fixtures, non-asbestos insulation, roofing shingles and other roofing coverings, glass, plastics that are not sealed in a manner that conceals other wastes, empty buckets ten gallons or less in size and having no more than one inch of residue remaining on the bottom, electrical wiring and components containing no hazardous liquids, pipe and metals, corrugated container board, carpeting, furniture, and tires, and materials that are incidental to any of the above. Solid waste that is not "construction or demolition waste" (even if resulting from the construction, remodeling, repair, and demolition of utilities, structures, and roads and land clearing) includes, but is not limited to, asbestos waste, garbage, electrical fixtures containing hazardous liquids such as fluorescent light ballasts or transformers, fluorescent light bulbs or tubes, appliances, drums, containers greater than ten gallons in size, any containers having more than one inch of residue remaining on the bottom, or fuel tanks.

"CPI" means the Historic Consumer Price Index for water and sewer and trash collection services, U.S. city average, all urban consumers, not seasonally adjusted (Current Series ID: CUUR0000SEHG), as published by the U.S. Department of Labor, Bureau of Labor Statistics.

"Dead animals" means all dead animals or parts thereof (including condemned meats) that are not intended to be used as food for man or animal.

"Dirt" means loose earth, ashes and manure, but exclusive of sand and gravel that is to be used in construction work.

"Drop-off center" means a collection site where source-separated recyclables may be taken by persons and deposited into designated containers.

"Duplex" means a building or dwelling containing residential dwelling units for two separate families or occupants, each receiving individual solid waste curbside collection.

"Franchise agreement" means an agreement between the City and a third party by which such third party is authorized to collect, transport and dispose of solid waste and perform residential recyclables collection services in the City.

"Franchise fee" means the fee required by a franchise agreement based upon a percentage of a franchisee's cash receipts derived from the collection, transportation and disposal of solid waste and residential recyclables collection services in the City.

"Franchisee" means any person who has contracted with the City for collection, transportation and disposal of solid waste and the performance of residential recyclables collection.

"Garbage" means putrescible animal and vegetable wastes, other than source-separated recyclables, that result from the handling, storage, sale, preparation, cooking and serving of food, and that have been discarded or abandoned.

"Hazardous waste" means any waste or combination of wastes, including solids, semisolids, liquids or contained gases which:

(A) Because of its quantity or concentration or its physical, chemical or infectious characteristics may:

(1) Cause or significantly contribute to an increase in mortality or serious irreversible or incapacitating illness; or

(2) Pose a substantial hazard or potential hazard to human health, public safety or the environment when it is given improper treatment, storage, transportation, disposal or other management;

(B) Is identified as hazardous waste by the Nevada Department of Conservation and Natural Resources as a result of studies undertaken for the purpose of identifying hazardous wastes; and

(C) Includes, among other wastes, toxins, corrosives, flammable materials, irritants, strong sensitizers and materials which generate pressure by decomposition, heat or otherwise.

"Incidental non-recyclable waste" means the non-recyclable components of white goods, whole computers, or whole automobiles for which dismantling and separation of recyclable from non-recyclable components by the generator are impractical, such as insulation or electronic components in white goods.

"Materials recovery facility" means a facility that provides for the extraction from construction or demolition waste of those recyclable materials that may be found in construction or demolition waste. The term does not include:

(A) A facility that receives only source-separated recyclables;

(B) A facility for the recovery of used motor vehicle parts;

(C) A facility that receives, processes or stores only concrete, masonry waste, asphalt pavement, brick, uncontaminated soil, or stone for the recovery of recyclables; and

(D) A facility that recovers less than twenty-five percent by weight of recyclables from the solid waste received.

"Medical waste" means items, other than a culture or stock of an infectious substance, that contain an infectious substance and are generated in:

(A) The diagnosis, treatment or immunization of human beings or animals;

(B) Research pertaining to the diagnosis, treatment or immunization of human beings or animals; or

(C) The production or testing of biological products.

The term "medical waste" does not include the following if the items as packaged do not contain any material otherwise subject to the requirements of 49 CFR Part 173, App. G, as amended:

(1) Biological products;

(2) Diagnostic specimens;

(3) Laundry or medical equipment that conforms to 29 CFR 1910.1030 of the regulations of the Occupational Safety and Health Administration of the United States Department of Labor;

(4) A material, including waste, that previously contained an infectious substance and has been treated by steam sterilization, chemical disinfection or other appropriate method, so that it no longer poses the hazard of an infectious substance;

(5) Any waste material, including garbage, trash and sanitary waste in septic tanks, derived from households, including but not limited to single and multiple residences, hotels and motels;

(6) Corpses, remains and anatomical parts that are intended for ceremonial interment or cremations; or

(7) Animal waste generated in animal husbandry or food production.

"Motel" means a building or group of buildings whose main function is to provide temporary lodging and which does not offer conference rooms, restaurants or similar amenities to its customers in addition to sleeping quarters.

"Multiple dwellings" means any premises on which there are three or more separate residential dwelling units which are grouped together under the management of one person and which do not require separate individual curbside collection of solid waste.

"Non-residential customer" means any solid waste disposal service customer of a franchisee except for customers at single-family residences, duplexes or mobile home parks who receive individual curbside collection of solid waste and who do not share containers with other residents.

"Overflow" or "overflowing solid waste" means solid waste of non-residential customers that is deposited on the ground outside of a solid waste container, or excess solid waste that has been piled onto a solid waste container that is already full to such an extent that the excess solid waste will spill onto the ground in the emptying process, requiring more than minimal manual cleanup of solid waste from the ground.

"Place of business" means any place of business in the City, other than multiple dwellings, to conduct or carry on principally or exclusively any pursuit or occupation for the purpose of gaining a livelihood.

"Premises" means a nonresidential or residential lot, including any buildings, improvements, and personal property located thereon.

"Public building" means office buildings, clubs, churches, schools, hospitals or other places of similar character.

"Putrescible" means capable of being decomposed by microorganisms with sufficient rapidity as to cause nuisances from odors or gases.

"Recyclable materials" or "recyclables" means solid waste that can be processed and returned to the economic mainstream in the form of raw materials or products, including, but not limited to:

(A) Newspaper;

(B) Corrugated cardboard;

(C) Aluminum;

(D) Yard debris (material generated from plants, including trees, bushes, sod, and grass clippings on residential or business property);

(E) Office paper;

(F) Glass;

(G) Tin and steel cans;

(H) Metal;

(I) Motor oil;

(J) Plastic;

(K) Antifreeze;

(L) Wood; and

(M) Food waste.

"Recycling center" has the same meaning as "recycling center," as that term is defined in the Southern Nevada Health District's Regulations Governing Recycling Centers, as amended.

"Refuse" means those discarded materials that have no useful physical, chemical or biological properties after serving their original purpose and that cannot be reused or recycled for the same or other purposes, including medical waste, but excluding mining waste, agricultural waste, source-separated recyclable materials and incidental non-recyclable waste.

"Residential recyclables collection" means a curbside collection program operated by a solid waste franchisee in which source-separated recyclables are collected from residential customers on a regularly scheduled basis as a part of the franchisee's solid waste business, whether the collection is of source-separated recyclables or is part of a single-stream recycling program.

"Residential solid waste container" means a receptacle capable of storing solid waste, that is constructed of a rigid material such as plastic or metal, that is used for the temporary storage of solid waste, and that is equipped with handles and covers appropriate for the container design. The term does not include trash bags.

"Residual solid waste" means an amount of material that:

(A) Has been collected at the site of generation (not including permitted recyclable material);

(B) Remains or is left after the separation and removal of permitted, source-separated recyclable materials;

(C) Does not exceed ten percent by weight, if scales are available at the facility, or by volume, if scales are not installed at the facility, of the total amount of materials prior to separation;

(D) Cannot be recycled and returned to the economic mainstream; and

(E) Must be disposed of as solid waste pursuant to this Chapter and the applicable regulations of the solid waste management authority.

For purposes of this definition, "facility" includes any location that holds a permit issued by the solid waste management authority.

"Rubbish" means nonputrescible wastes, other than source-separated recyclables, that have been discarded or abandoned such as paper, cardboard, automobiles, cans, wood, glass, bedding, crockery and similar materials.

"Sewage waste" means any solid or semi-solid waste, including biosolids, sludge, screenings and grit, generated from the operation of the City's water pollution control facility.

"Single-family residence" means a building or dwelling designed or used for single-family residential occupancy and where no business is conducted (other than a licensed home occupation business), and includes a mobile home, apartment and other unit in a multiple dwelling which receives individual residential collection of solid waste, bulky items and recyclables.

"Single-stream recycling" means a system in which multiple types of recyclable materials are combined in a single container for collection by a franchisee instead of first being sorted by a residential customer into separate containers before such collection.

"Solid waste" means all putrescible and nonputrescible materials in solid or semisolid form that have been discarded or abandoned by their owner, including garbage, rubbish,

junk vehicles and parts, ashes or incinerator residue, street refuse, dead animals, construction or demolition waste, commercial or industrial waste, medical waste, sewage waste, commingled recyclables and other refuse. The term "solid waste" does not include any of the following:

(A) Hazardous waste managed pursuant to NRS 459.400 through 459.600, inclusive.

(B) Commercial source-separated recyclables.

"Solid waste management authority," with regard to areas within the City of Las Vegas or within Clark County, means the Southern Nevada Health District or its successor with regard to the regulation of solid waste management. With regard to any other location in the State of Nevada, the term refers to the state or county entity charged with the regulation of solid waste management at that location.

"Source-separated recyclables" means recyclables that have been separated from the solid waste stream at the source for recycling purposes and that are not mixed with solid waste other than residual solid waste.

"Unforeseen economic circumstance" means:

(A) A percentage change in the CPI for a given twelve-month period that is greater than ten percent or below zero (a decrease);

(B) An adverse economic occurrence beyond a franchisee's reasonable control; or

(C) A finding by the City Council that there have been economic occurrences during that period that have caused specific additional economic costs for a franchisee which are not reflected in changes to the CPI during that same period.

"Wheeled cart" means a receptacle provided to a residential customer by a franchisee (whether at no charge or by means of rental) for use in the collection of solid waste and in single-stream recycling.

"White goods" means large household appliances (whether finished with white enamel or with other colors), including without limitation refrigerators, washing machines, clothes dryers, stoves and dishwashers.
(Ord. No. 6854, § 1, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

9.08.030 Collection of waste subject to rules and regulations.

Any person collecting, transporting, processing or disposing of solid waste, hazardous waste or recyclables shall do so subject to the ordinances, rules and regulations of the City, the Southern Nevada Health District, the State of Nevada and the Federal Government.
(Ord. No. 6572, § 2, 4-5-17)

9.08.040 Depositing on private or public premises or ways unlawful.

(A) It is unlawful for any person to:

(1) Throw or deposit, or cause to be thrown or deposited, in any street, alley, gutter or highway within the City, any solid waste, hazardous waste or recyclables.

(2) Throw or deposit, or cause to be thrown or deposited, any solid waste, hazardous waste or recyclables upon the private or public property or premises or into the container of another person within the City, except as may be provided for in this Chapter.

(3) Place, deposit or accumulate, or cause to be placed, deposited or accumulated, any solid waste, hazardous waste or recyclables in such a manner, or permit the same to remain on his or her premises in such condition so that the same may be blown or carried over to public or other private property by any means whatsoever.

(4) Throw or deposit or cause to be thrown or deposited any solid waste, hazardous waste or recyclables in any areas of the City not designated, authorized or licensed by the City for deposit of these materials.

(B) There is hereby created a rebuttable presumption that the disposal of solid waste, hazardous waste or recyclables in violation of this Section was done by the owner of such items.
(Ord. No. 6572, § 2, 4-5-17)

9.08.050 Burning waste unlawful—Exceptions.

It is unlawful for any person, for the purpose of disposal of solid waste, hazardous waste or recyclables by burning, to kindle or maintain any bonfire, or knowingly to furnish the materials for any such fire, or to authorize any such fire to be kindled or maintained in any solid waste, hazardous waste or recyclables container, or on any street, alley, road, land or other public grounds or upon any private property, within the City, unless a written permit to do so shall first have been secured from the Department of Fire and Rescue; provided, however, that solid waste and infectious waste may be burned in an incinerator duly approved by the Department of Fire and Rescue and the Department of Community Development.
(Ord. No. 6816, § 86, 8-17-22; Ord. No. 6572, § 2, 4-5-17)

9.08.060 Collection by other than City or authorized contractor unlawful—Exceptions.

Except in case of an emergency declared by the City Manager under Section 9.08.070, it is unlawful for any person, other than the City, a franchisee or their duly appointed agents, to collect, haul, convey or transport any solid waste, or provide residential recyclables collection; provided, however, that:

(A) Subject to Subsection (J) of this Section, construction or demolition waste that results directly from the activities of construction, remodeling, repair, and demolition

of utilities and structures, as well as uncontaminated solid waste that results directly from the activity of land clearing may be removed by any duly licensed construction, construction cleanup or demolition contractor and transported to a transfer station or disposal site operated by the City or its franchisee, to a materials recovery facility (construction or demolition waste), or other transfer station or disposal facility legally authorized by the solid waste management authority having jurisdiction over the facility;

(B) Subject to Subsection (J) of this Section, a duly licensed construction company, construction cleanup company, demolition contractor or materials recovery facility (construction or demolition) may transport the solid waste residue from an authorized materials recovery facility (construction or demolition waste), after separating out recyclable materials, to a transfer station or disposal facility legally authorized by the solid waste management authority having jurisdiction over the facility;

(C) Any person may transport his or her own solid waste to a transfer station or disposal site operated by the City or its franchisee. No person shall utilize an agent to transport his or her own solid waste unless that agent is a member of that person's immediate family or that person's caregiver;

(D) Any person may transport his or her own source-separated recyclable materials to recycling centers, drop-off centers, or buy-back centers provided that the source-separated recyclable materials contain no more than ten percent residual solid waste by weight or volume;

(E) Subject to Subsection (J) of this Section, any duly licensed commercial recycler, in the legitimate course of such recycler's business, may buy or accept free of charge from any person remove for a person for a fee and/or transport for any person commercial source-separated recyclables, provided that the commercial source-separated recyclables contain no more than ten percent residual solid waste by weight or volume, other than residential recyclables collection;

(F) Subject to Subsection (J) of this Section, any duly licensed and permitted septic tank or grease trap pumpers, licensed yard maintenance services and licensed tree trimmers may transport those materials accumulated in or generated by the performance of licensed services to a transfer station or disposal site operated in accordance with all applicable laws, rules and regulations;

(G) Any licensed person may haul, convey or transport recyclables from his drop-off center to recycling centers or buy-back centers;

(H) A charitable organization qualified under the Federal Internal Revenue Code may collect source-separated recyclable materials from a residential or commercial premises at the express request of the owner, tenant, or occupant and may transport those recyclables to drop-off centers, recycling centers, or buy-back centers;

(I) Sewage waste may be removed, transported and disposed of by the City or by its contractor in accordance with and as specified in a franchise agreement; and

(J) In accordance with other provisions of this Title that may be adopted from time to time, construction or demolition waste, as well as recyclables, may be collected, transported and disposed of as permitted by and in accordance with those provisions.

(Ord. No. 6572, § 2, 4-5-17)

9.08.070 Emergency collection—Provisions.

(A) In the event of an interruption in the collection, transportation or disposal of solid waste and recyclables by the City or its franchisees, problems affecting the public health, safety and welfare may arise. These problems may include increases in pathogens, vectors, fire hazards, unsightly litter, odor and traffic hazards from the accumulation of solid waste and recyclables. This Section is intended to provide for the emergency collection, transportation and disposal of solid waste and recyclables by private citizens in order to minimize the adverse impact on the public health, safety and general welfare arising from an interruption in the collection, transportation and disposal of solid waste and recyclables.

(B) In the event of an interruption in the collection, transporting or disposal of solid waste and recyclables by the City or its franchisees, the City Manager may declare an emergency.

(C) If the City Manager declares an emergency under Subsection (B) of this Section, the provisions of Section 9.08.060 which relate to transporting solid waste and recyclables shall be suspended and the following provisions shall apply until the date specified in the declaration of emergency or in a subsequent declaration:

(1) The City Manager may designate, establish, operate and maintain temporary emergency collection areas for solid waste and recyclables;

(2) Any person may transport the solid waste and recyclables generated or found on real property in his or her possession to a designated temporary emergency collection area;

(3) Until hauled to a designated temporary emergency collection area, all putrescible solid waste shall be stored indoors in plastic bags or outdoors in containers or receptacles which will not permit access by flies or animals or constitute a fire hazard; and

(4) All putrescible solid waste hauled to a temporary emergency collection area must be securely contained in plastic bags.

(Ord. No. 6572, § 2, 4-5-17)

9.08.080 Interference with containers unlawful.

(A) It is unlawful for any person other than the owner, the City or a franchisee, or their duly appointed agents, to interfere in any manner with any solid waste container or recyclables container or to remove any such container from the location where placed for collection by the owner, the City or a franchisee.

(B) It is unlawful for any person, other than the operator of a drop-off center or his or her duly appointed agent, to interfere with or remove any recyclables at or from a drop-off center.
(Ord. No. 6572, § 2, 4-5-17)

9.08.090 Transportation of waste—Regulations.

It is unlawful to use any cart or vehicle for the transportation or removal of solid waste or recyclables unless such cart or vehicle is appropriately constructed and covered, within industry standards and in accordance with NRS Chapter 484, to prevent or minimize odors from or leakage, sifting, spilling, drifting or blowing of such solid waste or recyclables in or upon the streets through which such cart or vehicle may be driven.
(Ord. No. 6572, § 2, 4-5-17)

9.08.100 Containers—Responsibility to provide—Placement.

(A) Except as otherwise provided in this Section and in Section 9.08.105, every person owning or managing any premises shall provide one or more containers sufficient for the depositing of all solid waste from the premises. A solid waste franchisee may rent solid waste containers to its customers pursuant to the rates specified in this Chapter, but the responsibility for placement of such rented containers remains with the person owning or managing the premises.

(B) Until full implementation of single-stream recycling using wheeled carts, a franchisee shall provide to its residential recyclables collection customers, upon request and at no additional cost to such customers, three twelve-gallon crates for the storage and collection of recyclables.

(C) On any single-family or duplex residential premises, it is unlawful to place, keep, store or locate any solid waste or recyclables container (including wheeled carts) within the right-of-way of a street, sidewalk or alley, or within any front yard as defined in the zoning regulations of the City; provided, however, that such containers (including wheeled carts) may be placed within such area, except for traffic lanes, for the purpose of the collection of solid waste and recyclables no earlier than two p.m. on the day prior to the designated collection day, and that such containers (including wheeled carts) must be removed from the right-of-way no later than midnight of the collection day.

(D) On any multiple-dwelling, commercial or industrial premises, it is unlawful to place, keep, store or locate any solid waste or recyclables container within the right-of-way of a street, sidewalk or alley. Containers shall be stored within an enclosure if an enclosure was required in connection with development approval or is otherwise provided on the premises. The construction of container enclosures is encouraged, if such construction was not required in accordance with a development approval. To the extent reasonably possible, development plans and approvals concerning the construction of container enclosures shall be coordinated with the solid waste franchisee.

(E) A franchisee shall not be required to pick up solid waste or recyclables from any location that the franchisee, subject to the City's approval, determines is not safe to access with its disposal vehicles due to space limitations restricting vehicle access or maneuverability, including maneuvers requiring the unsafe backing up of vehicles.

(F) The provisions of this Section may be enforced by the function of the City assigned to code enforcement, as well as the Las Vegas Metropolitan Police Department.
(Ord. No. 6572, § 2, 4-5-17)

9.08.105 Qualified containers—Wheeled carts—Provided.

(A) With respect to residential customers receiving twice a week curbside solid waste collection service and once every other week residential recycling collection service, the containers required to be provided pursuant to Subsection (A) of Section 9.08.100 must qualify as residential solid waste containers, as that term is defined in this Chapter.

(B) With respect to residential customers receiving once a week curbside solid waste collection service and once a week single-stream recycling collection service, a franchisee shall provide each such customer, at no additional cost:

(1) One wheeled cart for solid waste and one wheeled cart for single-stream recycling, with capacities of approximately thirty-five, sixty-five, and ninety-five gallons, based on then-current industry standards for such containers. The initial determination of cart capacity to be provided shall be at the sole discretion of the franchisee. A customer may thereafter request a cart of a different capacity, and the franchisee shall comply with the request within a reasonable period of time.

(2) One additional wheeled cart for solid waste or one additional wheeled cart for single-stream recycling, if requested by the customer and at no charge.

(C) A customer receiving the type of service described in Subsection (B) may rent from the franchisee additional wheeled carts beyond those to be provided at no charge pursuant to Subsection (B).
(Ord. No. 6572, § 2, 4-5-17)

9.08.107 Wheeled carts—Maintenance.

(A) Wheeled carts supplied by a franchisee pursuant to Section 9.08.105 shall remain the property of the supplying franchisee.

(B) Subject to the provisions of Subsections (C) and (D) of this Section, the supplying franchisee shall be responsible for general maintenance of wheeled carts at no cost to the customer.

(C) General maintenance of a wheeled cart under Subsection (B) includes repairs and replacements necessitated by normal wear and tear, but does not extend to:

(1) Maintaining the cleanliness of the wheeled cart; or

(2) Repairing or replacing a wheeled cart where the repair or replacement is necessitated by negligence of the customer.

(D) Customers are responsible for using reasonable care with respect to wheeled carts and their use.
(Ord. No. 6572, § 2, 4-5-17)

9.08.110 Containers—Construction, capacity, overflow.

(A) Except as otherwise provided in this Section and Section 9.08.117, at any residence that receives individual residential collection service, each solid waste container other than a wheeled cart as defined in this Chapter shall have a capacity of not less than three nor more than thirty-six gallons and shall weigh no more than fifty pounds, including the contents thereof. Each residence with individual residential collection service shall also be permitted to use the types and sizes of containers listed in Section 9.08.160, Table A.

(B) Except for manual type drop-box containers listed in Section 9.08.160, Table C, all solid waste containers shall be constructed watertight and shall be provided with handles and tight-fitting covers. Each such container and cover shall be made of a material approved for such use by the City. Covers shall not be removed except when necessary to place solid waste therein. Each container and its cover shall be kept clean from accumulating grease and decomposing material.

(C) It is unlawful for a non-residential customer to place out for collection a container which has overflowing solid waste.

(D) Any non-residential customer who places a container out for collection with solid waste overflowing from the container shall be subject to an overflow charge pursuant to Section 9.08.185.
(Ord. No. 6572, § 2, 4-5-17)

9.08.113 Single-stream recycling—Implementation.

A franchisee shall use its best efforts to complete implementation of single-stream recycling for residential recyclables collection customers by no later than December 31, 2018. Single-stream recycling customers will use wheeled carts for the storage and collection of solid waste and recyclables. In connection with the implementation of single-stream recycling, the franchisee will provide for:

(A) The collection of solid waste and recyclables once per week on the same collection day; and

(B) The collection of bulky items every other week.

(Ord. No. 6572, § 2, 4-5-17)

9.08.117 Single-stream recycling—Collection.

Notwithstanding any other provision of this Chapter:

(A) Each residential customer who receives weekly single-stream recycling collection service shall use wheeled carts for solid waste and for recycling.

(B) For any resident that receives single-stream recycling collection service, a franchisee shall provide, every other week, a separate collection service for bulky items. On the days such service is provided, a residential customer may put such items in a container other than a wheeled cart if the container has capacity of less than thirty-six gallons and weighs no more than fifty pounds (contents included).

(C) Bulky items such as appliances that weigh more than fifty pounds shall be placed next to the wheeled carts or at curbside to be picked up by a two-person crew on the bulky item collection day.

(Ord. No. 6572, § 2, 4-5-17)

9.08.120 Removal by authorized persons only.

(A) No person other than the owner, the City or a franchisee, or their agents may:

(1) Remove any solid waste or recyclables from the solid waste containers or recyclables containers that are intended for collection by a franchisee as part of its solid waste collection and residential recyclables collection programs; or

(2) Tamper with, engage in, interfere with or participate in residential recyclables collection.

(B) No person other than an owner or operator of a drop-off center, or their authorized agents, may remove recyclables from the drop-off center or recyclables that have been bundled, boxed, tied or otherwise collected and placed adjacent to the drop-off center.

(Ord. No. 6572, § 2, 4-5-17)

9.08.130 Waste to be placed in container—Exceptions.

(A) All solid waste shall be placed in a container; provided, however, that tree trimmings, palm fronds, scrap lumber and other solid waste capable of being bundled in accordance with Subsection (B) of this Section may be bundled, securely tied and placed at curbside for collection on days that the collection of bulky items is scheduled for that location pursuant to Subsection (B) of Section 9.08.117.

(B) Items bundled pursuant to this Section shall not exceed six feet in length nor weigh more than fifty pounds.
(Ord. No. 6572, § 2, 4-5-17)

9.08.135 Minimum container requirements for certain customers.

(A) Every non-residential customer shall provide cubic-yard or ninety-six-gallon mobile containers for the solid waste generated from the customer's premises in accordance with the minimum containers requirements set forth in this Section.

(B) For multiple dwellings with three dwelling units, the premises must have cubic-yard container service of at least a one cubic-yard container serviced twice per week, irrespective of occupancy or vacancy of any dwelling units.

(C) For multiple dwellings with four, five or six dwelling units, the premises must have cubic-yard container service equivalent to at least a two cubic-yard container serviced twice per week, irrespective of occupancy or vacancy of any dwelling units.

(D) For multiple dwellings with seven or more dwelling units, the premises must have cubic-yard container service equivalent to at least the greater of the following:

(1) A three cubic-yard container serviced twice per week, irrespective of occupancy or vacancy of any dwelling units; or

(2) One-fourth of a one cubic-yard container per dwelling unit per week, irrespective of occupancy or vacancy of any dwelling units.

(E) For mobile home parks that do not have individual service at each mobile home space, the premises must have cubic-yard container service equivalent to at least one-fourth of a one cubic-yard container per mobile home space per week, irrespective of occupancy or vacancy of any mobile home spaces.

(F) For motels with at least fifty percent of the total units having cooking facilities, the premises must have cubic-yard container service equivalent to at least one-fifth of a one cubic-yard container per unit per week, irrespective of occupancy or vacancy of any units.

(G) For motels with less than fifty percent of the total units having cooking facilities, the premises must have cubic-yard container service equivalent to at least one-tenth of a one cubic-yard container per unit per week, irrespective of occupancy or vacancy of any units.

(H) For each place of business or public building that does not require more than two 96-gallon mobile containers to contain the solid waste generated from the premises, the premises must have at least one but not more than two 96-gallon mobile containers.

(I) For each place of business or public building that requires more than two ninety-six-gallon containers to contain the solid waste generated from the premises, the premises must have cubic-yard container service sufficient to contain such solid waste.

(J) The container requirements in this Section are intended to be only minimum requirements for non-residential customers. Compliance with such requirements does not constitute compliance with a customer's obligation to provide sufficient container capacity pursuant to Section 9.08.100 if the solid waste generated from the premises requires solid waste service that exceeds the requirements in this Section.
(Ord. No. 6572, § 2, 4-5-17)

9.08.140 Collection charges—Single-family, duplexes and multiple dwellings.

(A) The charges for collecting, transporting and disposing of solid waste and for collecting and transporting recyclables from single-family residences, duplexes and multiple dwellings shall be determined in accordance with the following table:

Category	*Collection Level*	*Monthly Charge**
Single-family residences, duplexes per unit, mobile home park units and multiple dwelling units with individual service	Weekly automated solid waste and recycling, every other week bulky item pickup	$17.25
Single-family residences, duplexes per unit, mobile home park units and multiple dwelling units with individual service	Optional second automated solid waste collection per week	$15.61 per residence/ unit
Multiple dwellings without individual service (irrespective of occupancy or vacancy of any units)	Solid waste — 2 times/ week	$12.83 — 1st unit $9.00 — each additional unit
	Solid waste — 3 times/ week	$19.32 — 1st unit $13.48 — each additional unit
	Solid waste — 4 times/ week	$23.53 — 1st unit $16.46 — each additional unit

Category	*Collection Level*	*Monthly Charge**
	Solid waste — 5 times/ week	$27.83 — 1st unit $19.47 — each additional unit
	Solid waste — 6 times/ week	$32.12 — 1st unit $22.45 — each additional unit
	Solid waste — 7 times/ week	$36.38 — 1st unit $25.46 — each additional unit

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(B) All charges for single-family residences, duplexes and multiple dwellings pursuant to this Section shall be billed quarterly in advance.

(Ord. No. 6854, § 3, 11-15-23)

Editor's note—Ord. No. 6854, § 2, adopted November 15, 2023, repealed the former § 9.08.140, and § 3 of Ord. No. 6854 enacted a new § 9.08.140 as set out herein. The former § 9.08.140 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.150 Collection charges—Motels and mobile home parks.

(A) For mobile home parks that do not receive individual service at each mobile home and for motels, the charges for collecting, transporting and disposing of solid waste shall be determined in accordance with the following table:

Category	*Collection Level (solid waste only)*	*Monthly Charge**
Mobile home parks and motels (irrespective of occupancy or vacancy of any units)	2 times/week	$12.83 — each office $7.73 — each cooking unit $6.19 — each unit without cooking facilities
	3 times/week	$19.32 — each office $11.56 — each cooking unit $9.27 — each unit without cooking facilities
	4 times/week	$23.53 — each office $14.12 — each cooking unit $11.35 — each unit without cooking facilities
	5 times/week	$27.83 — each office $16.72 — each cooking unit $13.41 — each unit without cooking facilities

Category	*Collection Level (solid waste only)*	*Monthly Charge**
	6 times/week	$32.12 — each office $19.32 — each cooking unit $15.45 — each unit without cooking facilities
	7 times/week	$36.38 — each office $21.84 — each cooking unit $17.52 — each unit without cooking facilities

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(B) For mobile home parks that receive individual service at each mobile home, which shall include the same heavy and bulky item pickup as that provided to single-family residences, the charges for collecting, transporting and disposing of solid waste and residential recyclables collection services shall be the same as for single-family residences as set forth in Section 9.08.140.

(C) All charges for mobile home parks and motels shall be billed quarterly in advance. (Ord. No. 6854, § 3, 11-15-23)

Editor's note—Ord. No. 6854, § 2, adopted November 15, 2023, repealed the former § 9.08.150, and § 3 of Ord. No. 6854 enacted a new § 9.08.150 as set out herein. The former § 9.08.150 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.160 Collection charges—Places of business and public buildings.

(A) For places of business and public buildings, the charge for collecting, transporting and disposing of solid waste shall be determined by the number and type of containers required by each such place of business or public building and by the number of collections from each per week in accordance with Tables A, B and C that are included within this Section. The charge for collecting, transporting and disposing of compacted solid waste from containers other than compaction-type drop boxes shall be three times the otherwise applicable charge.

(B) All monthly charges set forth in Tables A, B and C that are included within this Section shall be billed as follows:

(1) Table A shall be billed quarterly in advance.

(2) Table B shall be billed monthly in advance.

(3) Table C shall be billed at least monthly in arrears.

Section 9.08.160 Table A
Monthly Collection Charges*
Places of Business and Public Buildings

Number & Type of Containers	1 Collection Per Week	2 Collections Per Week	3 Collections Per Week	4 Collections Per Week	5 Collections Per Week	6 Collections Per Week	7 Collections Per Week
96-Gallon Mobile Container First container Each additional container	 $11.56 $11.56	 $23.13 $23.13	 $34.68 $34.68	 $53.35 $53.35	 $73.18 $73.18	 $96.18 $38.40	 $115.29 $46.18
One Cubic-Yard Container First container Each additional container	 $57.65 $57.65	 $115.29 $115.29	 $172.98 $172.98	 $192.04 $192.04	 $216.82 $216.82	 $249.75 $192.01	 $300.07 $231.01
Two Cubic-Yard Container First container Each additional container	 $115.55 $115.55	 $231.01 $231.01	 $346.55 $346.55	 $365.89 $365.89	 $396.61 $396.61	 $441.80 $384.01	 $531.10 $462.00
Three Cubic-Yard Container First container Each additional container	 $173.24 $173.24	 $346.53 $346.53	 $519.78 $519.78	 $539.47 $539.47	 $576.24 $576.24	 $633.78 $576.02	 $762.12 $693.02
Four Cubic-Yard Container First container Each additional container	 $231.01 $231.01	 $462.00 $462.00	 $693.03 $693.03	 $713.11 $713.11	 $755.90 $755.90	 $825.79 $767.99	 $993.08 $924.08
Six Cubic-Yard Container First container Each additional container	 $346.53 $346.53	 $693.02 $693.02	 $1,039.53 $1,039.53	 $1,060.33 $1,060.33	 $1,115.26 $1,115.26	 $1,209.79 $1,149.29	 $1,455.12 $1,382.38
Eight Cubic-Yard Container First container Each additional container	 $462.00 $462.00	 $924.07 $924.07	 $1,386.04 $1,386.04	 $1,407.56 $1,407.56	 $1,474.56 $1,474.56	 $1,593.82 $1,546.00	 $1,917.11 $1,859.60

*Subject to applicable CPI adjustments made pursuant to this Chapter.

Section 9.08.160 Table B
Solid Waste Compactor Charges*
Monthly Charges

Compactor Size	*1 collection per week*	*2 collections per week*	*3 collections per week*	*4 collections per week*	*5 collections per week*	*6 collections per week*	*7 collections per week*
10 cubic-yard container	$2,563.00	$3,426.33	$4,694.31	$5,098.71	$5,503.11	$5,907.52	$8,634.40
17 cubic-yard container	$3,171.01	$4,186.01	$5,900.04	$6,482.49	$7,064.89	$7,647.36	$10,181.83
26 cubic-yard container	$3,553.86	$4,951.66	$7,048.49	$7,630.93	$8,213.35	$8,795.79	$11,521.83
36 cubic-yard container	$4,193.56	$5,591.46	$7,688.07	$8,352.29	$9,016.49	$9,680.84	$12,406.93

Compactor Size	*8 collections per week*	*9 collections per week*	*10 collections per week*	*11 collections per week*	*12 collections per week*	*13 collections per week*	*14 collections per week*
10 cubic-yard container	$11,197.40	$12,060.73	$13,328.73	$13,733.13	$14,137.50	$14,541.92	$17,268.81
17 cubic-yard container	$13,352.79	$14,368.70	$16,081.86	$16,664.30	$17,246.73	$17,829.20	$20,363.66
26 cubic-yard container	$15,075.65	$16,473.54	$18,570.35	$19,152.79	$19,735.25	$20,317.65	$23,043.73
36 cubic-yard container	$16,600.49	$17,998.41	$20,095.02	$20,759.22	$21,423.46	$22,087.79	$24,813.85

On-Call Rates Per Pick-up (with regular service)	*Regular*	*Sunday/Holiday*
Special pick-up (0—49 cubic yards)	$629.08	$943.60
Special pick-up (50—74 cubic yards)	$1,209.69	$1,814.56
Special pick-up (75 cubic yards and above)	$1,973.18	$2,959.74
On-Call Rates Per Pick-up (without regular service)		
Special pick-up (0—49 cubic yards)	$981.97	$1,472.95

*Subject to applicable CPI adjustments made pursuant to this Chapter.

Section 9.08.160 Table C

Solid Waste Manual-Type Drop Box Collection Charges*

On-Call Charges (with or without regular service)	*Regular*	*Sunday/Holiday*
10 cubic-yard container	$121.00	$181.70
20 cubic-yard container	$242.00	$363.40
28 cubic-yard container	$338.80	$508.76
35 cubic-yard container	$423.50	$635.95
50 cubic-yard container	$605.00	$908.50

All on-call charges are subject to additional charges of $27.06 daily rent per 24 hours or any part thereof after the first 72 hours, excluding Sundays.

Monthly Charges

All other charges shall be calculated as follows:

(Base Charge × number of yards of capacity × number of collections per week × 52 weeks per year, divided by 12 months per year) + Daily Rent Charges = total monthly charge, where:

"Base Charge" for Monday — Saturday collections = $12.10 per cubic yard.

"Base Charge" for Sunday collections = $18.17 per cubic yard.

"Daily Rent Charges" = $27.06 per 24 hours or any part thereof after the first 72 hours, excluding Sundays.

*Subject to applicable CPI adjustments made pursuant to this Chapter.

Section 9.08.160 Table D
Commercial Container-Related Charges*

Service	*Charge*
Commercial Container Delivery	$78.28 per container
Commercial Container Removal	$78.28 per container
Commercial Container Exchange	$120.44 per exchange

*Subject to applicable CPI adjustments made pursuant to this Chapter.

Section 9.08.160 Table E
Miscellaneous Fees/Charges

Fee/Charge Description	*Fee/Charge*
Return Check Fee	$25.00
Duplicate Lien Release Fee (title companies only)	$39.00
Service Interrupt Fee	$35.00
Cart Recovery Fee (replacing customer-damaged cart)	$110.77*

Fee / Charge Description	*Fee / Charge*
Industrial Service Attempt Charge	$129.18*
Industrial Container Relocation Charge	$129.18*

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(Ord. No. 6854, § 3, 11-15-23)

Editor's note—Ord. No. 6854, § 2, adopted November 15, 2023, repealed the former § 9.08.160, and § 3 of Ord. No. 6854 enacted a new § 9.08.160 as set out herein. The former § 9.08.160 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.170 Containers—Rental charges.

The charges for container rentals for any premises, which shall be billed quarterly in advance, shall be as follows:

Container size	*Monthly Charge**
1 Cubic-Yard Container	$22.20
2 Cubic-Yard Container	$26.67
3 Cubic-Yard Container	$31.12
4 Cubic-Yard Container	$34.68
6 Cubic-Yard Container	$44.41
8 Cubic-Yard Container	$48.86
Up to 96-gallon Mobile Container	$5.36

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(Ord. No. 6854, § 3, 11-15-23)

Editor's note—Ord. No. 6854, § 2, adopted November 15, 2023, repealed the former § 9.08.170, and § 3 of Ord. No. 6854 enacted a new § 9.08.170 as set out herein. The former § 9.08.170 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.180 Collection charges—One-time collections.

The charges for special one-time collections for any premises, which may be billed at the time of service as on-call services, shall be as follows:

Container Size / Collection Activity	*One-Time Charge**
1 Cubic-Yard Container	$43.41
2 Cubic-Yard Container	$57.89
3 Cubic-Yard Container	$72.34
4 Cubic-Yard Container	$86.78
6 Cubic-Yard Container	$101.27
8 Cubic-Yard Container	$115.74
Up to 96 gallon Mobile Container	$43.41
Assorted Trash Pickup	$196.87

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(Ord. No. 6854, § 3, 11-15-23)

Editor's note—Ord. No. 6854, § 2, adopted November 15, 2023, repealed the former § 9.08.180, and § 3 of Ord. No. 6854 enacted a new § 9.08.180 as set out herein. The former § 9.08.180 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.185 Collection charges—Overflow.

(A) Any non-residential customer whose solid waste container or containers have overflowing solid waste prior to being emptied on a collection day shall be subject to an overflow charge as provided in this Section.

(B) No overflow charges may be assessed unless:

(1) Written notice of an overflow, delivered by regular U.S. mail, e-mail or facsimile (fax) or personal delivery, has been provided to the owner or manager of the premises, and a subsequent overflow occurs at the premises within ninety days after:

(a) Such notice has been given; or

(b) The last overflow charge has been assessed at the premises; and

(2) There is significant overflow from a container, as defined in this Chapter and as evidenced by a photograph; and

(3) The overflow has actually been collected by the City or its franchisee.

(C) No overflow charge may be assessed for an overflow that is caused by a prior collection being missed or being performed improperly, or by containers being repositioned by a franchisee after collection such that a container is inaccessible to tenants of the premises, resulting in overuse of and overflow occurring in another container.

(D) No overflow charge may be assessed for an overflow that is caused because the time of day of collection was more than four hours later than the time of day when the last regularly scheduled collection occurred.

(E) Overflow charges assessed pursuant to this Section may be waived by the City Manager, or his or her designee, or by a franchisee if it is determined that the owner or manager of the premises has taken reasonable steps to avoid future overflows, including but not limited to increasing the container capacity or collection frequency, installing locks on the lids of containers or on access gates to curtail illegal dumping by third parties, or other property-management measures designed to avoid overflows.

(F) The charge for any overflow for any non-residential customer, which may be billed at the time of service as an on-call service, shall be forty-three dollars and seventy-eight cents, subject to applicable CPI adjustments made pursuant to this Chapter.

(Ord. No. 6854, § 4, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

9.08.190 Collection charges—Medical waste.

The charges for preparation, collection, transportation and disposal of medical waste shall be determined in accordance with Table A that is included within this Section. All charges for medical waste service, except for on-call service which may be billed at the time of service, shall be billed monthly in advance.

Section 9.08.190 Table A
Medical Waste Collection Charges*
Basic Service Charges

		Price Per Item		*Bio-Hazard Minimum Charge Per Service Call*	
Item	*Size and Volume*	*Delivered*	*Picked Up*	*Prescheduled Once a Month or Greater Frequency*	*On-Call Pickup*
Bio-Hazardous Accumulation Containers	Medium 10—14 Gal	$6.98	$6.98	$39.78	$89.95
	Large 27—32 Gal	$9.95	$9.95	If the amount pertaining to the total number of bio-hazard containers delivered and picked up is less than the above amount, the above amount will be invoiced. If the per-item amount is greater than the above amount, the per-item amount will be invoiced	If the amount pertaining to the total number of bio-hazard containers delivered and picked up is less than the above amount, the above amount will be invoiced. If the per-item amount is greater than the above amount, the per-item amount will be invoiced
	X-Large 48—50 Gal	$14.93	$14.93		
	200 Gallon Cart with Wheels	$59.73 per month	$59.73 per month		

Basic service provided Monday thru Friday. The franchisee must be advised before 2:00 pm the day before pickup of any CANCELLATION, OFFICE CLOSURE, or that NO BIOWASTE PICKUP IS NEEDED, or the minimum service charge will be invoiced.

Additional Waste Disposal Services

The following additional waste disposal charges apply to prescheduled once/month or greater frequency medical waste customers where pickups occur on their scheduled pickup day. Otherwise, the special pickups/services charge will be applied in addition to the disposal charge.

Type	*Size Code*	*Container*	*Chemotherapy Waste Disposal Charge*
Chemo Waste Disposal	Large	33 Gallon	$49.12
	Extra Large	55 Gallon	$87.13

Type	*Size Code*	*Container*	*Chemotherapy Waste Disposal Charge*
Pharmaceutical (non-controlled substance) Disposal	Extra Small	5 Gallon	$63.38
	Small	10 Gallon	$114.88
	Medium	20 Gallon	$229.72
	Large	30 Gallon	$344.63
	Extra Large	55 Gallon	$574.34
Item		**Special Collection and Service Charge**	
Special pickups/services (see below)		$95.08 per hour	
Preparation of waste to make suitable for transportation		$39.61 per container	
Collection delay of $1.61 per minute after 10 minutes		$15.85 minimum	
Overweight charge (over 50 lbs,)		$63.38 per container	

Special pickups/services — After 5:00 pm, same day requests, holidays, weekends, outside Las Vegas or greater than 20 polys per pickup, or account balancing/reconciliation/usage reports/certificates.

Note: Special pickups/services charge of $95.08 per hour does not apply to customers with trailer service, unless after hours, weekend or holiday pickups are requested.

Purchase or Rental Items

Item	*Size*	*Volume*	*Dimension*	*Price*
Sharp Containers	Small	1 Quart	4" × 4" × 6"	$7.93 plus tax
	Medium	5 Quart	4" × 10" × 9"	$12.70 plus tax
	Large	8 Quart	6" × 9" × 10"	$15.85 plus tax
	Extra Large	32 Quart	9" × 13" × 17"	$31.69 plus tax
Red Bio-Hazard Bags	Small (500 bags per case)	8—10 Gallons	24" × 32"	$110.91 plus tax
	Large/Extra Large (25 bags per roll)	50 Gallons	43" × 48"	$19.00 plus tax
Locker or Rubbermaid Rental	Small	5 Cubic yards	7½' × 5½' × 3½'	$95.08 per month
	Large	30 Cubic yards	20' × 8' × 8'	$221.82 per month
Roll-Off Box Rental		40 Cubic yards		$522.87 per month
Trailer Rental		30 feet long or less		$758.27 per month
		31—48 feet long		$1,011.05 per month
		49—53 feet long		$1,137.39 per month

*Subject to applicable CPI adjustments made pursuant to this Chapter.

(Ord. No. 6854, § 6, 11-15-23)

Editor's note—Ord. No. 6854, § 5, adopted November 15, 2023, repealed the former § 9.08.190, and § 6 of Ord. No. 6854 enacted a new § 9.08.190 as set out herein. The former § 9.08.190 pertained to similar subject matter and derived from Ord. No. 6572, adopted April 5, 2017.

9.08.200 Collection charges—Sewage waste.

Except as otherwise provided for in Subsection (A) of Section 9.08.205, the charge for sewage-waste service shall be twenty-five dollars and eighty cents per wet ton of sewage waste, or twenty-four dollars and forty-two cents per wet ton when City equipment is used to store waste prior to franchisee transporting, in each case subject to applicable CPI adjustments made pursuant to this Chapter. Additional terms and conditions for collection, transportation and disposal of sewage waste shall be specified in a franchise agreement between the City and its franchisee. If any jurisdiction other than the City imposes any franchise fee on a franchisee based upon its cash receipts or gross revenues from sewage-waste services provided by the franchisee, the franchisee shall be solely responsible for such franchise fees and shall not pass such franchise fees through to the City.
(Ord. No. 6854, § 7, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

9.08.205 Collection charges—Deregulated for specified categories.

(A) The charges specified in this Chapter for collecting, transporting and disposing of solid waste shall not apply to construction or demolition waste, septic-tank waste, sewage waste that is excluded from collection by a franchisee pursuant to a franchise agreement, grease-trap waste, or landscaping or tree-trimming waste handled in accordance with Section 9.08.060. A franchisee or other licensed service provider may set its own charges for the collection, transportation and disposal of such solid waste.

(B) A franchisee, in its sole discretion, may establish fees with respect to goods, services or other functions provided by the franchisee that are not governed by this Chapter, including fees or charges for the purchase or rental of items that are offered as an option to customers but which could be obtained from some other source. The franchisee shall submit to the City Manager for review, on an annual basis, a list of such optional goods or services that are not governed by this Chapter, along with the rates to be charged for those goods or services.
(Ord. No. 6572, § 2, 4-5-17)

9.08.210 Mandatory service—Billings—Penalties.

(A) To ensure the uniform, safe and sanitary treatment of solid waste in the City and to discourage the illegal handling and disposal of solid waste, it shall be mandatory for any person owning, occupying or managing any premises in the City which are connected to an electric utility service to subscribe to solid waste collection service provided by the City or its authorized franchisee and to pay the charges specified in this Chapter. No person may discontinue paying for solid waste collection service for his or her premises, unless such premises are not connected to an electric utility service for the entire billing period.

(B) In order to discontinue paying for solid waste collection service pursuant to Subsection (A) of this Section, a person must request discontinuation of service and provide proof that no electric utility service to the premises is provided. No fee may be charged to discontinue service or to reestablish service to the premises after service has been discontinued pursuant to this Subsection.

(C) All charges for regular or periodic services provided by the City, its franchisees, or their duly appointed agents pursuant to this Chapter shall be billed on the first business day of the quarterly or monthly billing period, as applicable, and shall be due and payable on the last day of the billing month; provided, however, that charges for on-call service may be billed at the time of service. All charges for services under this Chapter, including the penalties for delinquent payment and any reasonable collection costs and legal fees incurred by a franchisee in seeking to recover unpaid charges for services and penalties, shall constitute a debt and obligation of the legal owner of the premises to the City or its franchisee, and such person shall be liable therefor in a civil action commenced by the City or its franchisee in any court of competent jurisdiction for the recovery of such charges and penalties.

(D) If any person fails to pay the charges authorized by this Chapter by the date they become due and payable, a penalty shall be added thereto. For residential accounts, the penalty amount shall be four dollars and thirty-eight cents per quarter (or fraction thereof), which amount will be increased annually by the CPI. For commercial accounts, the penalty amount shall be two percent per month (or fraction thereof) of the delinquent amount. If a franchisee incurs collection costs in attempting to recover unpaid charges and any penalties, the franchisee may recover from the legal owner of the premises the reasonable collection costs and legal fees incurred and may report the legal owner to a collection agency, as defined in NRS Chapter 649, to assist the franchisee in the collection of unpaid charges, penalties and collection costs.

(E) A customer shall be entitled to a refund of any advance payment for service he or she has made upon presenting proof that a connection to an electric utility service did not exist at the customer's premises during the entire billing period for which the advance payment was made. All refunds from a franchisee to a customer shall be paid within thirty days from the date of the customer's request for reimbursement or date of franchisee's knowledge that a refund is owed.

(F) No person shall accept and no franchisee shall offer or give any solid waste collection, transportation and disposal services or residential recyclables collection services without charge, or shall offer or give a discount, refund or rebate of any charge authorized by this Chapter, except that this provision does not apply to any credits or refunds issued pursuant to Section 9.08.340, charitable organizations which are exempt from federal income tax pursuant to Section 501(c) of the Internal Revenue Code or as further provided by franchise agreement.
(Ord. No. 6854, § 8, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

9.08.220 Additional charges—Pass through of certain taxes and other items.

(A) In addition to all other charges established by this Chapter, a franchisee may pass through to its customers such charges as are necessary for the franchisee to recoup any or all of the following that have been imposed upon and paid by the franchisee:

(1) State business license taxes;

(2) Other taxes on a franchisee's provision of the services authorized by the franchise agreement that may be imposed by the Nevada Legislature, by a local government with taxing authority, or by ballot initiative, excluding income taxes;

(3) Augmented City franchise fees described in Subsection (C) of Section 9.08.250; or

(4) Any environmental surcharges imposed by the City.

(B) Such pass-through charges shall not be subject to baseline or augmented quarterly franchise fees and will be passed through to each customer as a separate line item on the franchisee's billing to each customer.

(C) A franchisee shall provide to the City, on or before March 1 each year and in a form satisfactory to the City, a detailed report for the preceding calendar year containing the following information concerning the items listed in Subsection (A):

(1) The various amounts paid during the prior calendar year;

(2) How such amounts were calculated;

(3) The number of customers in the City served by the franchisee during the prior calendar year;

(4) The total pass-through charges collected from customers during the prior calendar year; and

(5) The method that the franchisee will use to pass through such amounts to its customers for the current year, including any adjustments to the pass-through charges necessary to correct for any excess or under charges during the prior calendar year.

(Ord. No. 6572, § 2, 4-5-17)

9.08.230 Delinquent charges and penalties—Lien.

(A) All solid waste collection charges authorized and established by this Chapter, including any penalties assessed under Section 9.08.210 and any fees assessed pursuant to Section 9.08.235, shall constitute a lien upon the real property of the premises served until such charges have been paid. Such lien shall be enforced in the manner specified in NRS 444.520.

(B) Where solid waste collection service under this Chapter is provided by a franchisee, the City may:

(1) Execute, record and administer such liens in the name of the City;

(2) Authorize the franchisee to execute, record and administer such liens in the name of the City; or

(3) Authorize the franchisee to execute, record and administer such liens in its own name.

(C) In each case described in Subsection (B), the charges, penalties and fees secured by such liens shall run in favor of the franchisee consistent with the terms of the franchise agreement.
(Ord. No. 6572, § 2, 4-5-17)

9.08.235 Franchisee alternatives—Lien fees and costs.

(A) With respect to a property concerning which a lien has been filed pursuant to Section 9.08.230, a franchisee may:

(1) Pass through to the owner of that property any fees that have been charged by the county recorder's office for the recording of that lien and for its release;

(2) Charge the owner of that property a fee to recover administrative costs incurred by the franchisee in recording and maintaining such lien;

(3) Charge the owner of that property a fee to recover administrative costs incurred by the franchisee in securing the release of such lien; and

(4) Charge the owner of that property reasonable collection costs incurred by the franchisee in attempting to collect delinquent amounts prior to the recording of the lien.

(B) Subject to the provisions of Subsection (D), each of the fees set forth in Paragraphs (2) and (3) of Subsection (A) shall not exceed seventy-eight dollars and forty-four cents, which shall be increased in accordance with Section 9.08.240.

(C) If a franchisee charges collection costs pursuant to Paragraph (4) of Subsection (A):

(1) The franchisee may not recover those costs again pursuant to Section 9.08.210(D); and

(2) The amount chargeable under Paragraph (4) shall not exceed twenty-five dollars.

(D) Each of the fees set forth in Paragraphs (2) and (3) of Subsection (A) shall be adjusted in accordance with Section 9.08.240.
(Ord. No. 6854, § 9, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

9.08.240 Charges—Periodic adjustments.

(A) The charges established pursuant to this Chapter shall be increased annually based on the CPI, calculated with reference to the percentage change in the CPI for the twelve-month period ending December 31 immediately preceding the effective date of the rate adjustment. The increase in charges shall be made effective on July 1 of each year.

(B) If an unforeseen economic circumstance has occurred during the preceding calendar year, a franchisee may request a special rate increase based upon the facts of the unforeseen economic circumstance. The franchisee will be required to submit facts and details to substantiate the unforeseen economic circumstance. The City Council will have discretion for the approval of any rate increase due to unforeseen economic circumstance.
(Ord. No. 6854, § 10, 11-15-23; Ord. No. 6572, § 2, 4-5-17)

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9.08.245 Environmental surcharge.

(A) To provide for the remedial action or removal or related activities at a solid waste disposal site, for environmentally sound solid waste collection and disposal, and such other environmental programs and activities as may benefit the public health, safety and welfare, the City Council may impose a surcharge to be added to all billings for solid waste collection services rendered within the City. A surcharge imposed under this Section shall be subject to the requirements of this Section.

(B) The surcharge shall be:

(1) Determined as a percentage of the gross receipts derived by a franchisee from the collection of all solid waste and residential recyclables collection services within the City, for the first twelve-month period the surcharge is in effect;

(2) Increased by no more than one percent of the gross receipts derived by a franchisee from the collection of all solid waste and residential recyclables collection services within the City, during any subsequent twelve-month period;

(3) Increased up to a total cumulative amount of no more than five percent of the gross receipts derived by a franchisee from the collection of all solid waste and residential recyclables collection services within the City.

(C) The surcharge shall be collected by a franchisee, and the franchisee shall remit such proceeds to the City as provided in this Section. The City may enter into an interlocal agreement with any other local government unit to provide for the imposition and collection of the surcharge consistent with the requirements of this Section.

(D) A franchisee shall remit the proceeds of the surcharge to the City according to procedures adopted by the City Manager. However, the franchisee shall not be responsible for covering any shortage caused by failure of a customer to pay surcharges for solid waste collection. Surcharges collected by the franchisee on City's behalf shall pass through directly to City and shall not be considered cash receipts as set forth in this Chapter and no franchise fees will be paid to the City from the proceeds of the surcharge.

(E) The City may require a franchisee to submit reports or other documentation necessary to establish compliance with the requirements of this Section or the procedures adopted by the City Manager hereunder. The franchisee shall provide such records available to the City for such auditing purposes within twenty business days of a request by the City for production of the same, unless the City agrees to additional time.

(F) The proceeds of the surcharge may be placed into a dedicated environmental fund established by the City and may be used to pay for remedial action costs, and the costs of programs which promote environmental programs and activities.

(G) The amount of the surcharge may be adjusted by the City Council from time to time as necessary to maintain the fund at the level necessary to accommodate the City's remedial action and environmental responsibilities, but shall not exceed the maximum amount set forth in Subsection (B)(3) of this Section.
(Ord. No. 6572, § 2, 4-5-17)

9.08.250 Franchise fees.

(A) Every franchisee shall pay a baseline quarterly franchise fee, in the amount specified in the franchise agreement or as adjusted pursuant to the franchise agreement, based on its cash receipts derived from the collection of solid waste and residential recyclables collection for the preceding calendar quarter. A franchisee shall also pay any franchise fee that has been augmented pursuant to Subsection (C) of this Section on the same basis. All baseline and augmented franchise fees shall be due no later than forty-five days after the end of each calendar quarter. If a franchise fee is received by the City after the due date, a late fee of two percent per month (or fraction thereof) of the delinquent amount will be assessed to the franchisee.

(B) Except with respect to augmented quarterly franchise fees described in Subsection (C) of this Section:

(1) All charges to customers for the collection of solid waste and residential recyclables pursuant to this Chapter and a franchise agreement shall be deemed to include the franchise fee which the franchisee pays to the City.

(2) The franchisee may pass such baseline franchise fees through to its customers only as part of the general service charges charged to its customers and not as a separate charge that is additional to the general service charges.

(C) As provided for in a franchise agreement, an augmented quarterly franchise fee may be charged by the City over and above the baseline quarterly franchise fee. The augmented quarterly franchise fee, if any, is subject to the provisions of Subsections (A) and (B) of Section 9.08.220 regarding the pass through and separate listing of charges.

(D) A franchisee shall remit the baseline and, if applicable, augmented franchise fees to the City. The franchisee shall not be responsible for covering any shortage caused by failure of a customer to pay franchise fees for solid waste collection. Franchise fees collected by the franchisee shall pass through directly to City and shall not be considered cash receipts as set forth in this Chapter and no franchise fees will be paid to the City on top of the franchise fees paid by customers.
(Ord. No. 6572, § 2, 4-5-17)

9.08.260 Deposit of waste—Locations.

All solid waste and hazardous waste collected from the public and private places and premises in the City shall not be deposited at any place other than at a transfer station, disposal site or materials recovery facility operated in accordance with all applicable laws, rules and regulations.
(Ord. No. 6572, § 2, 4-5-17)

9.08.270 Use of disposal sites.

Any person may dispose of solid waste at any authorized solid waste disposal site subject to the rules, rates and fees established for such site; provided, however, that:

(A) Any City resident of a single-family, duplex or mobile home premises (that has individual collection service) and who is a current customer of a franchisee may

dispose of the solid waste generated at his or her own single-family, duplex or mobile home premises dwelling at any authorized disposal site within the "urban solid waste service area" in Clark County that is owned or operated by the franchisee or the City without charge, upon presentation of a current quarterly bill for residential solid waste service from the franchisee and either 1) valid government-issued photo identification, such as a current Nevada driver's license with a matching address on the bill, or 2) valid government-issued photo identification, along with a recent utility bill with a service address that matches the solid waste service bill address, and in accordance with such other rules and regulations as the City Council may from time to time adopt. The solid waste presented for disposal without charge must have been generated by the residential customer on his or her own primary residential property, and not generated as a result of any commercial provider permitted to convey his own solid waste under Section 9.08.060. Commercial providers permitted to convey their own solid waste under Section 9.08.060 may not dispose of waste without charge under any circumstance, including, but not limited to:

(1) Having a residential customer accompany the commercial provider to the site.

(2) Having a residential customer act as an agent for a commercial provider for purposes of disposal without charge.

(3) Having a person or commercial entity act on behalf of a residential customer.

(B) Disposal of solid waste at disposal sites operated by a franchisee in rural solid waste service areas is subject to such conditions, charges and fees as may be established by the franchisee.

(Ord. No. 6572, § 2, 4-5-17)

9.08.280 Violation—Penalty.

The City, in addition to the remedies and penalties above named, may seek injunctive relief against any violator of this Chapter, with or without prior notice, to prevent or correct any solid waste, hazardous waste or recyclable materials problem.

(Ord. No. 6572, § 2, 4-5-17)

9.08.290 Recyclable materials—Sale or donation by owner.

Nothing in this Chapter shall limit the right of any person to donate or sell his or her source-separated recyclable materials.

(Ord. No. 6572, § 2, 4-5-17)

9.08.295 Alternative collection schedules—Recycling programs.

Notwithstanding any provision in this Chapter to the contrary, the City Manager, a franchisee and specific property owners in designated control areas may agree upon alternative collection processes and schedules for specified test periods for the purpose of testing solid waste collection and recycling options.

(Ord. No. 6572, § 2, 4-5-17)

9.08.300 City's right to collect and dispose of waste.

Nothing in this Chapter shall limit the right of the City to collect, transport, process or dispose of any solid waste, hazardous waste or recyclable material including the operation of transfer stations and recycling centers.
(Ord. No. 6572, § 2, 4-5-17)

9.08.310 Declaration of nuisance.

Solid waste and hazardous waste, as defined in Section 9.08.020 and for the purpose of this Chapter, are a nuisance per se.
(Ord. No. 6572, § 2, 4-5-17)

9.08.320 Withholding of solid waste collection services.

(A) Except as otherwise provided in this Section, a solid waste franchisee is not authorized to withhold solid waste collection services for nonpayment of collection charges.

(B) Before April 1, 2017, a franchisee may withhold solid waste collection services from a commercial or industrial customer for nonpayment of collection charges, but only if the customer is more than sixty days' delinquent in the payment of collection charges.

(C) Commencing on April 1, 2017, a franchisee may withhold solid waste collection services from a commercial or industrial customer for nonpayment of collection charges, but only if:

(1) The customer is more than sixty days' delinquent in the payment of collection charges;

(2) The franchisee first notifies the customer (and the property owner, if different from the customer) in writing of its intent to withhold solid waste collection services and provides a minimum of fifteen days within which to pay the delinquent charges or arrange payment therefor satisfactory to the franchisee; and

(3) The response period provided under Paragraph (2) has passed and the delinquent charges have not been paid or payment arrangements made satisfactory to the franchisee.

(D) In any particular case in which withholding service from a commercial or industrial customer creates a public nuisance, as determined by the City Manager or a designee, the City may require a franchisee to reinstate solid waste collection service for that customer within twenty-four hours even if the customer's account remains in delinquent status. Action taken under this Subsection (D) does not preclude the franchisee from recording a lien pursuant to Section 9.08.230 or pursuing any other collection remedy available under this Chapter.
(Ord. No. 6572, § 2, 4-5-17)

CHAPTER 9.12 LITTER

9.12.010 Findings—Purpose.

Whereas the daily volume of litter carelessly deposited in the City has reached alarming proportions; the heedless avalanche of paper, wrappings, bottles, cans and waste of every conceivable kind is a cause of civic disgrace; litter is unsightly, dirty and offensive; it is a fire, health and safety hazard; litter has a deleterious effect on property values; it destroys community pride and makes the City a less desirable place in which to live; combating litter is a costly waste of men, money and material, it is the purpose of this Chapter to bring about a public awareness of the problem and to effect a litter control program.
(Ord. 1876 § 1 (part), 1977: prior code § 8-3A-1)

9.12.020 Definitions.

In the construction of this Chapter, the following definitions shall be observed unless the context clearly requires otherwise:

(A) "Garbage" means refuse, animal and vegetable matter from a kitchen, market, store, or any source, including every refuse accumulation of animal, fruit or vegetable matter, liquid or otherwise, that attends preparation, use, cooking, dealing in or storing of meat, fish, fowl, fruits or vegetables, and all foul, noisome and filthy substances.

(B) "Litter" means garbage, refuse or rubbish as defined in this Section and all other waste material which, if thrown or deposited as herein prohibited, is unsightly, dirty or offensive or tends to create a fire hazard or danger to public health, safety or welfare.

(C) "Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

(D) "Public place" means any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds, and buildings.

(E) "Refuse" means all solid and liquid wastes including, but not limited to, garbage, rubbish, ashes, street cleanings, dead animals, abandoned vehicles, dismantled vehicles, parts of dismantled and abandoned vehicles, and commercial and industrial wastes.

(F) "Rubbish" means all old metal, wood, paper, glass or synthetic containers, old metal, wire, rope, cordage, rubber and nonserviceable tires, paper, wood shavings, and all unusable or nonserviceable materials, including, but not limited to, old plaster, brick, cement, glass, old building materials, leaves, yard trimmings, weeds and similar matter.

(Ord. 2113 § 1 (part), 1980: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-2(A—F))

9.12.030 Compost piles, firewood and stored materials.

(A) Nothing in this Chapter shall be so construed as to prevent persons from creating and maintaining a compost pile as permitted by Health Department regulations, to accumulate and store firewood if there is a fireplace on the premises, to store serviceable vehicular parts for owned vehicles and to store useable materials for use on the property, provided such parts and materials are not stored in quantities or locations prohibited by any other provision of this Code. All such compost, firewood and stored materials shall not:

(1) Be visible from the street;

(2) Constitute a public nuisance or nuisance to neighbors;

(3) Create a health or fire hazard; or

(4) Be stored in the front or side yards.

(B) Storage in the back yard shall be permitted if the yard is enclosed by a six-foot high opaque fence; however, if the abutting property is undeveloped, the opaque fencing shall not be required until the adjacent property is developed.
(Ord. 2113 § 1 (part), 1980: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-2(G))

9.12.040 Declaration of nuisance.

Litter, as defined in Section 9.12.020, and for the purpose of this Chapter, is a nuisance.
(Ord. 1876 § 1 (part), 1977: prior code § 8-3A-3)

9.12.050 Litter on private property.

No person shall throw or deposit litter on any private property within the City, whether owned by such person or not, except in receptacles for collection in such manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.
(Ord. 1876 § 1 (part), 1977: prior code § 8-3A-4)

9.12.060 Owner to maintain premises free of litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter; provided, however, that this Section shall not prohibit the storage of litter in suitable receptacles or in appropriate enclosures for collection. Debris that may be subject to being carried or deposited by the elements upon any street, sidewalk, or other public place or upon any private property shall regularly be securely deposited in appropriate receptacles or other enclosures for collection and disposal.
(Ord. 3153 § 1, 1985: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-5)

9.12.070 Litter in public places.

No person shall throw or deposit, or cause to be thrown or deposited, in or upon any street, sidewalk or other public place within the City any litter.
(Ord. 1876 § 1 (part), 1977: prior code § 8-3A-6)

9.12.080 Noncompliance with regulations—Order to comply.

Upon determination by the Director of Community Development or a designee that private property is maintained or allowed to remain in violation of this Chapter, the Director or designee may issue an order to correct the offending condition. Such order shall be served upon the owner of the property, as shown by the Clark County Assessor's records, by mailing a copy of the order by certified mail, return receipt requested, to the address of the owner as shown by the records of the Clark County Assessor. In the alternative, the notice may be delivered by hand to the owner of the property or the person in control of the property. The order shall describe the offending condition and request correction or compliance within ten days from the date of the mailing of the notice or seven days from delivery of the notice by hand.
(Ord. No. 6816, § 87, 8-17-22; Ord. 3153 § 2, 1985: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-7(A))

9.12.090 Noncompliance with regulations—Right of appeal by owner.

Any owner who may claim that his property is not in the condition described in Section 9.12.080 and that he is not subject to such order may, within seven days after the order has been mailed or three working days after the order has been delivered by hand, apply in writing to the City Council for an order rescinding such order. Upon application being made, the order to comply shall be stayed pending a decision by the Council. The Council shall forthwith order a hearing on the appeal, of which at least five days' notice shall be given to the owner and, after the hearing, shall either rescind, modify or affirm the order of compliance.
(Ord. 3153 § 3, 1985: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-7(B))

9.12.100 Noncompliance with regulations—Failure to comply with notice.

In the event the owner fails to comply with the order and correct the conditions specified herein, the Director of Community Development or designee is authorized and empowered to cause or employ City personnel and equipment or other persons and equipment to enter upon the premises and correct the offending condition.
(Ord. No. 6816, § 88, 8-17-22; Ord. 3195 § 1, 1985: Ord. 3133 § 1, 1984: Ord. 3065 § 2, 1983: Ord. 1876 § 1 (part), 1977: prior code § 8-3A-7(C))

9.12.110 Expenses incurred by City pursuant to Section 9.12.100—Recordkeeping and reporting requirements.

The Director of Building and Safety shall keep an itemized account of the expense incurred by the City pursuant to Section 9.12.100. The Director shall file with the City Clerk

a report specifying the work done pursuant to Section 9.12.100, the itemized and total cost of the work, including an administrative processing fee in the amount of seventy-five dollars, a description of the real property upon which the work was done, and the date on which the work was done.
(Ord. 3281 § 1, 1987: Ord. 3195 § 3 (part), 1985)

9.12.120 Expenses incurred by City pursuant to Section 9.12.100—Hearing—Notice.

The City Clerk shall present the report described in Section 9.12.110 to the City Council for consideration. The City Council shall fix a time, date and place for hearing that report and any protests or objections to it. The City Clerk shall cause notice of the hearing to be posted upon the property involved, published once in a newspaper of general circulation in the City, and served by certified mail, postage prepaid, addressed to the owner of the property as shown by the records of the Clark County Assessor. Such notice shall be given at least ten days before the date set for hearing and shall specify the day, hour and place where the City Council will hear and pass the Director's report, together with any objections or protests which may be filed as provided by this Chapter by any person interested in or affected by the proposed charge.
(Ord. 3195 § 3 (part), 1985)

9.12.130 Expenses incurred by City pursuant to Section 9.12.100—Filing objections and protests.

Any person interested in or affected by the proposed charge may file written protests or objections with the City Clerk at any time before the time set for the hearing on the report. Each such protest or objection must contain a description of the property in which the signer is interested and the grounds of the protest or objection. The City Clerk shall endorse on every such protest or objection the date it was received, and shall present such protests or objections to the City Council at the time set for the hearing.
(Ord. 3195 § 3 (part), 1985)

9.12.140 Expenses incurred by City pursuant to Section 9.12.100—Hearing—Determination.

At the hearing, the City Council shall hear and pass upon the report of the Director, together with any objections or protests. The City Council may make such revision, correction or modification in the report or the charge as it may deem just. When it is satisfied with the correctness of the charge, the City Council shall confirm or reject the report (as submitted or as revised, corrected or modified) together with the charge. The decision of the City Council on the report and the charge, and on all protests or objections, shall be final and conclusive.
(Ord. 3195 § 3 (part), 1985)

9.12.150 Expenses incurred by City pursuant to Section 9.12.100—Lien against property involved.

(A) Except as otherwise provided pursuant to subsection (B) of this Section, the charge as confirmed by the City Council pursuant to Section 9.12.140 shall be a special assessment and a lien on the property involved. The lien shall be perfected by filing with the County Recorder a statement by the City Clerk regarding the amount of the expenses that are due and unpaid and describing the property subject to the lien. The lien, which shall be prior to and superior to all liens, claims, encumbrances and titles, other than liens of assessments and general taxes, shall continue until the assessment is paid. The collection of the assessment shall be subject to and in accordance with the provisions of Sections 9.12.160 and 9.12.170.

(B) As an alternative to the provisions of subsection (A) of this Section, the City Council may order that a charge confirmed pursuant to Section 9.12.140 be paid on such other terms and collected by such other means as the Council deems appropriate.
(Ord. 3423 § 2, 1989: Ord. 3195 § 3 (part), 1985)

9.12.160 Expenses incurred by City pursuant to Section 9.12.100—Addition of assessment to tax bill of property involved.

Unless some other method of payment or collection is specifically permitted by the City Council pursuant to subsection (B) of Section 9.12.150, after confirmation of the charge, certified copies of the assessment shall be given to the County Treasurer, who shall add the amount of the assessment to the next regular tax bill levied against the parcel for municipal purposes.
(Ord. 3423 § 3, 1989: Ord. 3195 § 3 (part), 1985)

9.12.170 Expenses incurred by City pursuant to Section 9.12.100—Collection of assessment.

Unless some other method of payment or collection is specifically permitted by the City Council pursuant to subsection (B) of Section 9.12.150, the amount of the assessment shall be collected at the same time and in the same manner as ordinary taxes are collected, and shall be subject to the same penalties and procedure and sale in case of delinquency as provided for ordinary property taxes. All laws applicable to levy, collection and enforcement of property taxes shall be applicable to such assessment.
(Ord. 3423 § 4, 1989: Ord. 3195 § 3 (part), 1985)

9.12.180 Violation of Sections 9.12.030, 9.12.050, 9.12.060 or 9.12.070—Penalty.

Any person who violates or fails to comply with any of the provisions of Sections 9.12.030, 9.12.050, 9.12.060 or 9.12.070 of this Chapter is guilty of a misdemeanor and, upon

conviction, shall be punished by a fine of not less than fifty dollars nor more than five hundred dollars, imprisonment in the City Jail for not less than thirty days or more than six months, or both. Every day of such violation constitutes a separate offense.
(Ord. 3450 § 1, 1989: Ord. 3195 § 3, 1985)

CHAPTER 9.16 NOISE

9.16.005 Definitions.

As used in this Chapter, unless the context otherwise indicates, the following terms shall have the meanings that are ascribed to them as follows:

(A) "Demolition" means any dismantling, intentional destruction or removal of structures, utilities, public or private right-of-way surfaces or similar property.

(B) "Emergency" means an occurrence or set of circumstances that involves actual or imminent physical trauma or property damage which demands immediate action.

(C) "Emergency work" means any work that is performed for the purpose of preventing or alleviating the physical trauma or property damage that is threatened or caused by an emergency.

(D) "Muffler or sound dissipation device" means a device for abating the sound of escaping gases of an internal combustion engine.

(E) "Noise" means any useless sound which annoys or disturbs humans or which causes or tends to cause an adverse psychological or physiological effect on humans.

(F) "Noise disturbance" means any sound which is unreasonably loud, disturbing or unnecessary or which endangers or injures the health of humans or annoys or disturbs a reasonable person of normal sensitivities.

(G) "Public right-of-way" means any street, avenue, boulevard, highway, sidewalk, alley or similar place which is owned or controlled by a governmental entity.

(H) "Public space" means any real property or structures thereon which is owned or controlled by a governmental entity.
(Ord. 3359 §§ 1, 2, 1988)

9.16.010 Prohibited noises—Exceptions.

Subject to the provisions of this Chapter, no person shall make, cause, create or continue any noise disturbance within the corporate boundaries of the City. Noncommercial public speaking and public assembly activities that are conducted on any public right-of-way or in any public space shall be exempt from the operation of this Chapter.
(Ord. 3359 § 3, 1988: Ord. 2100 § 3 (part), 1980: Ord. 412 § 1 (part), 1950: prior code § 6-1-24 (part))

9.16.020 Detrimental noises prohibited.

Noise of such character, intensity or duration as to be detrimental to the life or health of any individual, or in disturbance of the public peace and welfare is prohibited.
(Ord. 2100 § 3 (part), 1980: Ord. 412 § 1 (part), 1950: prior code § 6-1-24 (part))

9.16.030 Enumeration of prohibited noises.

The following acts, among others, are declared to be noise disturbances and noises in violation of, and unlawful under, this Chapter, but this enumeration shall not be deemed to be exclusive:

(A) The sounding of any horn or signal device on any automobile, motorcycle or bus while it is in motion except as a danger signal if another vehicle is approaching apparently out of control or, if in motion, only as a danger signal after the brakes have been or are being applied and the deceleration of the vehicle is intended, the creation by means of any such horn or signal device of any unreasonably loud or harsh sound or the sounding of such horn or device for an unnecessary and unreasonable period of time.

(B) Operating or playing, or permitting the operation or playing of, any radio, television, phonograph, stereo, drum, musical instrument, sound amplifier or similar device which produces, reproduces or amplifies sound in such a manner as to create a noise disturbance:

(1) To any person who resides or works in the vicinity. The operation or playing of such radio, television, phonograph, stereo, drum, musical instrument, sound amplifier or similar device in such a manner or at such a volume as to be plainly audible to the human ear at a distance of fifty feet from the source of the noise shall be prima facie evidence of a violation of this Chapter; or

(2) At a distance of fifty feet from such radio, television, phonograph, stereo, drum, musical instrument, sound amplifier or similar device when it is played or operated in or on a motor vehicle that is on any public right-of-way or in any public space.

This Subsection shall not apply to any noncommercial spoken language that is subject to Subsection (K) of this Section.

(C) Yelling, shouting, hooting, whistling or singing on the public streets, particularly between the hours of eleven p.m. and seven a.m., or at any time or place in such a manner or at such a volume as to annoy or disturb the quiet, comfort or repose of any person in any hospital, dwelling, hotel or any other type of residence or of any person in the vicinity.

(D) The keeping of any animal, bird or fowl which, by causing frequent or long-continued noise, disturbs the comfort or repose of any person in the vicinity.

(E) The use of any automobile or motorcycle so out of repair, so loaded or in such manner as to cause loud and unnecessary grating, grinding, rattling or other noises.

(F) The blowing of any steam whistle that is attached to any stationary boiler except to give notice of the time to begin or stop work, as a warning of fire or other danger or upon the request of the proper authorities of the City.

(G) The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine, motor vehicle or motor boat engine except through a muffler or other sound dissipation device which will effectively prevent loud or explosive noises therefrom.

(H) The erection, including the excavation, demolition, alteration or repair of any building in any new or existing residential district, or the excavation, construction or repair of any right-of-way improvements in any new or existing residential district other than during the specified time period, except in the case of urgent necessity in the interest of public health and safety and then only with a permit from the designated official. Such a permit may be granted for a period not to exceed thirty days while the condition of urgent necessity continues. Such a permit may be granted only upon a determination by the designated official that the public health and safety will not be impaired by the performance of the work outside the specified time period and that loss or inconvenience would otherwise result to any party in interest regarding the work. Such a permit may be granted only if application therefor is made at the time that the permit for such work is issued or at any time during the progress of such work. In connection with the permit process described in this Subsection, the designated official may establish such forms, policies and procedures as deemed necessary. For purposes of this Subsection:

(1) "Specified time period" means the following:

(a) Within a declarant-controlled common-interest community, or at any location more than three hundred feet from a residential unit, the period from five a.m. to six p.m., from April 1 through September 30, and the period from seven a.m. to six p.m., from October 1 through March 31; and

(b) In any residential district other than the locations described in subparagraph (a) just above and regardless of the time of year, the period from seven a.m. to six p.m.

(2) "Designated official" means:

(a) For work involving buildings, the Director of Community Development or a designee.

(b) For work involving right-of-way improvements, the City Traffic Engineer or a designee.

(3) "Declarant-controlled common-interest community" has the meaning ascribed to that term in NRS 268.4137.

(4) "Residential unit" means a single-family residence or an individual residential unit within a larger building, including without limitation a condominium,

townhouse, duplex or other multifamily dwelling. The term does not include a time share or other unit that is subject to the provisions of NRS Chapter 119A.

(I) The creation of any excessive noise on any street that is adjacent to any school, institution of learning, church or court while the same is in session, or is adjacent to any hospital, which unreasonably interferes with the working or sessions thereof or the persons therein.

(J) The loading, unloading, opening, closing or other handling of boxes, crates, containers, building materials, garbage cans or similar objects between the hours of eleven p.m. and seven a.m. in such a manner as to project a noise disturbance across the boundary of any residential real property.

(K) The use or operation for any purpose of a loudspeaker, public address system, or sound amplification device in connection with any radio, phonograph, tape recorder, microphone or similar device:

(1) In such a manner or at such a volume that it is plainly audible to the human ear at a distance of fifty feet or more from the source of the sound;

(2) Between the hours of eleven p.m. and seven a.m. on any public right-of-way or in any public space; or

(3) On a truck or other vehicle, either moving or standing, for advertising or any other purpose.

(L) The offering for sale or selling of anything by shouting or outcry within any residential or commercial area of the City.

(M) The repairing, rebuilding, modifying or testing of any motor vehicle, motorcycle or motorboat in such a manner as to project a noise disturbance across the boundary of any residential real property.

(N) The intentional sounding or permitting the sounding outdoors of any fire, burglar or civil defense alarm, siren, whistle or similar stationary emergency signaling device except for emergency purposes or for the testing, between the hours of eight a.m. and six p.m., of:

(1) A stationary emergency signaling device; provided, however, that each such test shall be performed at the same time of day, and any such testing shall use only the minimum cycle test time, which, in no event, shall exceed sixty seconds.

(2) The complete emergency signaling system, including the functioning of the signaling device and the personnel response to the signaling device; provided, however, that such testing shall not be performed more than once in each calendar month.

(O) The sounding or permitting the sounding of any exterior burglar alarm or any motor vehicle burglar alarm unless such alarm is automatically terminated within fifteen minutes after its activation.

(Ord. No. 6927, § 1, 9-17-25; Ord. No. 6816, § 89, 8-17-22; Ord. No. 6161, § 1, 9-21-11; Ord. 5038 § 1, 1997: Ord. 3359 § 4, 1988: Ord. 2100 § 3 (part), 1980: Ord. 1890 § 1 (part), 1977; Ord. 1745 § 1 (part), 1975; Ord. 412 § 1 (1), 1950: prior code § 6-1-24(A—K); Ord. No. 6873, § 1, 7-17-24)

9.16.040 Exemptions from chapter provisions.

None of the terms or prohibitions that are contained in this Chapter shall apply to or be enforced against:

(A) Any vehicle that belongs to, or is used by, the City or its authorized garbage collection contractor while it is engaged in any necessary public business;

(B) The excavation or repair, or both, of streets, highways or bridges that are made during the night by or on behalf of the City, Clark County or the State, if the public welfare and convenience renders it impracticable to perform such work during the day;

(C) The emission of sound to alert persons to the existence of an emergency;

(D) Sounds that are emitted in the performance of emergency work;

(E) Any event that:

(1) Is authorized by a special event permit issued by the City; or

(2) Takes place on the premises of a business that is licensed pursuant to Chapter 6.39 or Chapter 6.50 and is located within the Downtown Entertainment Overlay District, as described in LVMC 19.10.120, but only if and to the extent that all outdoor speakers or other amplification devices comply with the requirements and limitations of LVMC 6.39.050(D)(5).

(F) The exempt portion of any event that takes place on the premises of a business that is located within 18B the Las Vegas Arts District, as described in the Las Vegas Downtown Centennial Plan. The "exempt portion" of an event includes the following:

(1) For events beginning on Sunday through Wednesday, event activities that do not extend beyond ten p.m.;

(2) For events beginning on Thursday, event activities that do not extend beyond midnight; and

(3) For events beginning on Friday and Saturday, event activities that do not extend beyond two a.m. the following morning; or

(G) Civic functions, including without limitation parades, concerts, athletic events, group use of public facilities and other public gatherings for which a license or permit has been issued pursuant to any chapter of this Code.

(Ord. No. 6648, § 2, 10-17-18; Ord. No. 6157, § 1, 8-17-11; Ord. 6004 § 1, 2008: Ord. 3359 § 5, 1988: Ord. 2100 § 3 (part), 1980: Ord. 1890 § 1 (part), 1977: Ord. 1745 § 1 (part), 1975: Ord. 412 § 1 (2), 1950: prior code § 6-1-24(L))

9.16.050 Violation—Penalty.

Any person violating any provision of this Chapter is guilty of a misdemeanor. A person who is convicted of a violation of Subsection (B) or Subsection (K) of Section 9.16.030 shall be punished by a fine not less than fifty dollars for the first offense, one hundred dollars for the second offense and two hundred fifty dollars for the third and all subsequent offenses. (Ord. 5038 § 2, 1997)

CHAPTER 9.20 SMOKING REGULATIONS

9.20.010 Prohibited where—Exceptions.

(A) It is unlawful for any person, firm, corporation or association, managing, controlling or presenting shows of any kind in any theater building, motion picture theater, including projection rooms, to allow or permit any person to smoke within the confines of the building except in restrooms or in a lounge provided by the theater, completely enclosed and separated from the main seating room.

(B) This Section shall not be deemed to make it unlawful for a performer to smoke upon the stage during and as a part of any theatrical production.
(Ord. 1690 § 1 (part), 1974: Ord. 481 §§ 1, 2, 1952: prior code § 7-5-1)

9.20.020 Display of notice required.

There shall be displayed in a conspicuous place in every theater and motion picture theater in which smoking is forbidden or prohibited by the terms of this Chapter, a notice to the effect that smoking is prohibited therein.
(Ord. 1690 § 1 (part), 1974: Ord. 481 § 3, 1952: prior code § 7-5-2)

CHAPTER 9.24 FIRE HAZARD PREVENTION

9.24.010 Building fire in streets.

It is unlawful for any person to kindle or use any fire or to make a bonfire upon any public street, alley or public ground within the City.
(Ord. 2211 § 6 (part), 1981: prior code § 7-9-1)

9.24.020 Shutting water off.

It shall be the duty of any person who supplies water to the City and its inhabitants through hydrants located upon the streets, alleys and public places in the City, whenever, by reason of repairs or work or from any cause, it becomes necessary to turn the water off from any such hydrant, to notify the Chief or other head of the Department of Fire and Rescue of the need to do so, before the water is turned off, and the length of time such hydrant will remain without water.
(Ord. No. 6816, § 90, 8-17-22; Ord. 2211 § 6 (part), 1981: prior code § 7-9-3)

9.24.030 Burning of garbage and rubbish.

It is unlawful for any person, for the purpose of burning garbage, rubbish, dead animals or dirt, to kindle or maintain any bonfire or knowingly to furnish the materials for any such fire, or to authorize any such fire to be kindled or maintained in any garbage or rubbish receptacle, or on any street, alley, road, lane or public grounds or upon any private lot; provided, however, that rubbish may be burned in an incinerator duly approved by both the Chief of the Department of Fire and Rescue and the Department of Community Development.
(Ord. No. 6816, § 91, 8-17-22; Ord. 2211 § 6 (part), 1981: prior code § 7-9-4)

CHAPTER 9.28 FIREWORKS

9.28.010 Fireworks defined.

"Fireworks" means and includes any combustible or explosive composition, or any substance or combination of substances, or article prepared for the purpose of producing a

visible or an audible effect by combustion, explosion, deflagration or detonation, and shall include blank cartridges, toy pistols, toy cannons, toy canes, or toy guns in which explosives are used, the type of balloons which require fire underneath to propel the same, firecrackers, torpedoes, skyrockets, Roman candles, sparklers or other fireworks of like construction and any fireworks containing any explosive or flammable compound, or any tablets, or other device containing any explosive substance. Nothing in this Chapter shall be construed as applying to toy paper caps containing not more than twenty-five hundredths of a grain of explosive composition per cap, and to the manufacture, storage, sale or use of signals necessary for the safe operation of railroads or other classes of public or private transportation nor applying to the military or navy forces of the United States or of this State, or to peace officers, nor as prohibiting the sale or use of blank cartridges for ceremonial or theatrical or athletic events.
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16 (1))

9.28.020 Storage—Fireworks sold at wholesale.

Fireworks to be sold at wholesale shall be stored in a room set aside for the storage of fireworks only. Over the entrance to this room shall be posted a sign reading, "Fireworks—No Smoking—Keep Open Flames Away."
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(2) (part))

9.28.030 Storage—Prohibited locations for selling.

Fireworks shall not be sold or kept for sale in a place of business where paint, oils, varnishes, turpentine or gasoline or other flammable substances are kept in unbroken containers, unless in a separate and distinct section or department of the store.
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16 (2)(part))

9.28.040 Storage—Fire extinguisher requirement.

Two approved fire extinguishers must be provided and kept in close proximity to the stock of fireworks in all buildings where fireworks are sold. Small stands or canopies, temporarily erected to be used as a place for storing and selling fireworks at retail, shall have fire extinguishers as required for buildings, or in lieu of the fire extinguishers may have a barrel of water and two buckets available in close proximity to the stand for use as fire extinguishing equipment. "No Smoking" signs shall be prominently displayed by the operator(s).
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16 (2)(part))

9.28.050 Time of sale.

(A) No person, firm, corporation or business shall offer fireworks for sale to individuals at retail before June 28th and after July 4th.

(B) All retailers are forbidden to expose or sell any fireworks except in original packages, and with no fuses exposed.
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16 (3))

9.28.060 Approved fireworks.

Subject to the limitations imposed by Section 9.28.090, the sale, use, manufacture, and possession of the following articles of fireworks is approved within the City except that prohibited items may be used for public display purposes as provided by a special permit, and except possession of prohibited items by jobbers, wholesalers, and manufacturers for shipment to other states. All other items not herein approved are prohibited. The following items are approved:

(A) Cylindrical fountains without report (includes handle, spike and base fountain), total pyrotechnic composition not to exceed seventy-five grams each in weight; the inside tube diameter shall not exceed three-fourths inch;

(B) Cone fountains and whistling fountains without report, total pyrotechnic composition not to exceed fifty grams each in weight;

(C) Wheels, total pyrotechnic composition not to exceed sixty grams in weight, for each driver unit, but there may be any number of drivers on any one wheel; the inside bore of driver tubes shall not be over one-half inch;

(D) Railway fuses without spikes, truck flares, hand ship distress signals and illuminating torches, but excluding those containing magnesium; total pyrotechnic composition of illuminating torches not to exceed one hundred grams each in weight;

(E) Sparklers and dipped sticks, total pyrotechnic composition not to exceed one hundred grams each in weight; pyrotechnic composition containing any chlorate or perchlorate shall not exceed five grams;

(F) Colored box, cone fire and smoke pots, total pyrotechnic composition not to exceed one hundred grams each in weight (does not include magnesium flares or smoke grenades);

(G) Fireworks pieces that are a combination of the above approved items, and which are mounted on one base; total number of items on one base shall not exceed nine;

(H) Nonpoisonous snake and items of similar composition.
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(4))

9.28.070 Materials not to be stored near fireworks.

Fireworks shall not be stored, kept, sold or discharged within one hundred feet of any gasoline pump, gasoline filling station, gasoline bulk station or any building in which gasoline or volatile liquids are sold in quantities in excess of one gallon, except in stores where cleaners, paints, and oils are handled in sealed containers only.
(Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(5))

9.28.080 Fireworks for exhibition purposes.

Upon written permission of the Chief of the Department of Fire and Rescue, fireworks to be used for exhibition purposes at fairs and celebrations may be sold and fired which otherwise are prohibited from sale to individuals, provided the individuals in charge of same are experienced in the handling of fireworks and the public attending such exhibition is kept at a safe distance. Fireworks held in storage for such exhibition must be kept in a closed box until they are removed for firing.
(Ord. No. 6816, § 92, 8-17-22; Ord. 3199 § 1, 1985: Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(6))

9.28.090 Fireworks on streets.

It is unlawful for any person upon any day of celebration, carnival, holiday or upon any other day or time, to throw, discharge or cause to be thrown or discharged upon any street or on, in or under any vehicle upon any street, or upon any sidewalk within the limits of the City, any bomb, firecracker, or other character of fireworks.
(Ord. 2211 § 6 (part), 1981: prior code § 7-9-2)

9.28.100 Approval for sale.

All fireworks offered for sale in the City shall be of a type that has been tested and has been approved for sale and use within the City by the City Council or the Director of the Department of Fire and Rescue.
(Ord. No. 6816, § 93, 8-17-22; Ord. 4098 § 1, 1997: Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(7))

9.28.110 Permit—Required—Exception—Application.

No person shall sell fireworks at retail in the City except recognized local charitable and fraternal organizations who have applied for and obtained a permit from the Department of Fire and Rescue. The permit requirement is in addition to any applicable requirement of State law governing solicitations. Each applicant for a permit must pay, at the time of application, a permit fee of fifty dollars for each location.
(Ord. No. 6816, § 94, 8-17-22; Ord. No. 6296, § 29, 2-5-14; Ord. 4098 § 2, 1997: Ord. 3199 § 2, 1985: Ord. 1816 § 1 (part), 1976: Ord. 1814 § 1 (part), 1976: prior code § 6-1-16(8))

9.28.112 Permit—Application—Determination.

(A) Upon receipt of a permit application and the required fees, the Director of the Department of Fire and Rescue, or the Director's designee, shall approve, deny or take other appropriate action with respect to the application.

(B) The Director or the Director's designee may deny, revoke or suspend a permit for good cause, which includes, but is not limited to, the following grounds:

(1) The application is incomplete or contains false, misleading or fraudulent statements with respect to any information required;

(2) The proposed sale would pose a threat to the health, safety or general welfare of the public;

(3) The applicant in the past has failed to satisfy any qualification or requirement imposed by this Code or by other local, state or Federal law or regulation pertaining to such sales, or to comply with the conditions of a previous permit;

(4) The sale as proposed will be conducted in a manner contrary to a qualification or requirement imposed by this Code or by other local, state or Federal law or regulation pertaining to such sales;

(5) The structure or location of the proposed sale is determined, upon inspection, not to conform with applicable standards set forth in this Chapter or other local, state or Federal law or regulations;

(6) The applicant or permit holder fails to comply with any conditions of a current permit.

(Ord. No. 6816, § 95, 8-17-22; Ord. 4098 § 3, 1997: Ord. 3199 § 4 (part), 1985)

9.28.120 Violation—Civil proceeding alternative—Penalty.

(A) A violation of this Chapter is a misdemeanor. The minimum fine for a first violation shall be five hundred dollars and, for a second or subsequent violation, one thousand dollars.

(B) As an alternative to a criminal prosecution under any provision of this Chapter, the Department of Fire and Rescue may proceed by means of a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding regarding such a violation:

(1) Any reference in LVMC 6.02.400 to 6.02.460, inclusive, to the "Department" or "Business Licensing Division" or "Director" shall pertain to the Department of Fire and Rescue, its Fire Prevention Division, or the City Fire Marshal, as the case may be.

(2) In lieu of the schedule of fines set forth in LVMC 6.02.460, the applicable civil fine shall be five hundred dollars.

(3) In addition to the fine described in Paragraph (2) above, the City is entitled to recover an amount of restitution for the City's costs, if any, of disposing of any fireworks that were the subject of the violation.

(Ord. No. 6852, § 1, 11-1-23; Ord. No. 6690, § 2, 6-19-19)

CHAPTER 9.32 RESERVED*

CHAPTER 9.36 TRANSPORTATION OF HAZARDOUS MATERIALS

9.36.010 Purpose and intent.

The purpose and intent of this Chapter is to protect the public health, safety and welfare from the potential hazards of fire, explosion and exposure to toxic substances that accompany hazardous materials incidents by regulating the transportation, and storage incidental to transportation, of hazardous materials into, through, within and out of the City. (Ord. 3190 § 1 (part), 1985)

9.36.020 Applicability.

This Chapter shall apply to all hazardous materials, as defined herein, which are transported into, through, within and out of the City and shall be in addition to all other sections of this Code regarding hazardous substances or materials or the rules or regulations of any City department, board or commission pertaining thereto. For the purpose of this Chapter a point of origin or destination, including loading docks or terminals where hazardous cargos are handled, within the area bounded by the corporate limits of the City shall be considered to be a point of origin or destination within the City.
(Ord. 3190 § 1 (part), 1985)

9.36.030 Adoption of provisions by reference.

Those certain documents, three copies of which are on file in the office of the City Clerk and marked and designated as follows are hereby adopted by reference and made a part of this Chapter as if they were fully set forth herein:

(A) Title 49 of the Code of Federal Regulations, Parts 171 to 179, inclusive, of the Hazardous Materials Regulations, as from time to time amended, designated as Part 1 of this Chapter;

(B) Title 10 of the Code of Federal Regulations, Part 71, of the Nuclear Regulatory Commission, as from time to time amended, designated as Part 2 of this Chapter; and

(C) Title 49 of the Code of Federal Regulations, Parts 390 to 397, inclusive, of the Federal Motor Carrier Safety Regulations, as from time to time amended, designated as Part 3 of this Chapter.

When any provision of this Chapter is found to be inconsistent with the regulations adopted in subsections (A) to (C), inclusive, of this Section, the provision which establishes the greater level of protection for the health, safety and welfare of the public shall prevail. (Ord. 3190 § 1 (part), 1985)

***Editor's note—**Ord. No. 6286, § 1, adopted October 16, 2013, repealed Chapter 9.32, §§ 9.32.010—9.32.070, which pertained to swimming pools and derived from prior code §§ 4-8A-1—4-8A-6 and Ord. No. 1231, 1966.

9.36.040 Substances subject to regulations.

Transportation in commerce within the City of the hazardous materials identified in subsections (A) to (C), inclusive, of this Section, in the quantities set forth in or opposite their respective descriptions, shall be subject to the regulations set forth in Sections 9.36.050 to 9.36.160, inclusive, in addition to those regulations adopted in Section 9.36.030:

(A) Material

Material	**Quantity**
(Numbers in parentheses refer to sections of Title 49 of the Code of Federal Regulations)	
Class A Explosives (173.53)	any quantity
Class B Explosives (173.88)	any quantity
Poisonous Gases Poison A (173.326)	any quantity
Flammable solids (173.150) which require the DANGEROUS WHEN WET label (172.423) as specified in (172.101)	2500 pounds or more
Liquefied Petroleum Gas (172.101)	2500 pounds or more
Methane (Liquefied) (171.101)	2500 pounds or more
Liquefied hydrogen (173.316)	400 pounds or more

(B) Flammable liquids transported in quantities of one thousand gallons or more with flash points of seventy-three degrees or less as determined by tests listed in Title 49 of the Code of Federal Regulations, Section 173.115(d), with the exception of distilled spirits of one hundred forty proof or less (173.115(a)(2));

(C) Radioactive materials:

(1) Plutonium isotopes in any quantity and form exceeding two grams or twenty curies, whichever is less,

(2) Uranium enriched in the isotope U-235 exceeding twenty-five atomic percent of the total uranium content in quantities where the U-235 content exceeds one kilogram,

(3) Any of the actinides (i.e., elements with atomic number eighty-nine or greater) the activity of which exceeds twenty curies,

(4) Spent reactor fuel elements or mixed fission products associated with such spent fuel elements the activity of which exceeds twenty curies, and

(5) Any quantity of radioactive material specified as a "Highway route controlled quantity" in Title 49 of the Code of Federal Regulations, Section 173.403(L),

(6) Any quantity of radioactive materials required to be placarded by Title 49 of the Code of Federal Regulations, Part 172, Subpart F—Placarding.

(Ord. 3190 § 1 (part), 1985)

9.36.050 Department of Fire Services—Collection and reporting of information.

The Department of Fire and Rescue is authorized and directed to do the following:

(A) To collect all available information with respect to the volumes, routes, locations of storage incident to transportation, risks and conditions of transport and storage of hazardous materials presenting the highest risk, by any mode of transportation, and to report biannually to the Office of Emergency Operations on the transportation of hazardous materials and the adequacy of the City's emergency response capabilities in cases of accidents; and

(B) To collect information, as available, from the State on the routes and volumes of hazardous waste shipments through the City and to request that the State conduct surveys to determine the volumes, routes, compliance with Federal and State regulations, accident rates and other information on truck cargos of hazardous materials.

(Ord. No. 6172, § 9, 12-7-11; Ord. 5897 § 1, 2007: Ord. 3190 § 1 (part), 1985)

9.36.060 Permit—Required—Exceptions.

(A) Except as is otherwise provided in subsection (B) of this Section, a nontransferable permit for hazardous transport shall be required annually for each person who transports hazardous materials in the quantities listed in subsections (A) to (C), inclusive, of Section 9.36.040.

(B) Producers or transporters, or both, of small quantities of specified radioactive materials intended for therapeutic and biomedical research or educational purposes shall not be required to obtain a permit for hazardous transport.

(C) Permits for hazardous transport shall be granted for:

(1) Hectocurie and kilocurie cobalt—sixty and cosium—one hundred thirty-seven tele-therapy sources employed in therapeutic radiology and biomedical research or educational purposes and for medical devices designed for individual application, by way of illustration and not in limitation, cardiac pacemakers, containing plutonium—two hundred thirty-eight, promethium—(forty-seven) or other radioactive material or wastes generated in these activities;

(2) Sealed industrial radiography sources up to one hundred curies.

(D) Any person required by this Section to obtain a permit for hazardous transport shall apply to the Department of Fire and Rescue at least sixty days prior to the intended date of movement of hazardous materials into, through, within and out of the City. In addition to such information as the Department requires, the application for a permit for hazardous transport shall include:

(1) A description of the hazardous materials to be transported, including the volumes, quantities and forms;

(2) A written statement from the shipper of hazardous materials certifying that the material described in the application is properly classified, described, packaged and labeled and is in proper condition for transportation according to the applicable Federal and State regulations;

(3) Origin, route and destination of the shipment and, if a series of shipments is planned, the number of proposed shipments and the period of time over which such shipments are planned;

(4) A copy of the route plan when the preparation of one is required by Title 49 of the Code of Federal Regulations, Part 397;

(5) The name, address and telephone number of the carrier, the description, identification and registration of the motor vehicle or railcars and twenty-four-hour emergency response telephone numbers.

(Ord. No. 6816, § 96, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.070 Permit—Grounds for denial, suspension or revocation.

The Department of Fire and Rescue shall deny, refuse to renew, suspend or revoke a permit for hazardous transport if:

(A) Adequate training, equipment and planning does not exist in the Department for an emergency response in the case of an accident with the specified materials.

(B) The containers to be used in the proposed shipments have been tested, in their current model, in order to determine the containers' ability to withstand the effects of puncture, impact and fire that could be encountered in severe accidents in the City and have been determined not to have such ability.

(Ord. No. 6816, § 97, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.080 Permit—Approval—Fee.

(A) Upon the final approval by the Department of Fire and Rescue of an application for a permit for hazardous transport, the applicant shall pay a reasonable fee according to a schedule to be adopted by the City Council.

(B) The fee schedule shall reflect the costs of emergency response preparation and the costs of issuing the permits and may also reflect the relative hazard and potential risk to the public of the hazardous cargos to be transported within the City, based upon their volume, toxicity, combustion potential and other risk factors which the Department of Fire and Rescue may consider appropriate.

(C) The fees collected under this Section shall be used to reimburse the costs of administration of the permit program, emergency response preparation and enforcement of the rules and regulations promulgated pursuant to this Chapter.

(Ord. No. 6816, § 98, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.090 Permit—Action on application—Separate permits for each carrier for each class of hazardous material required.

Applications for a permit for hazardous transport shall be made to the Department of Fire and Rescue and shall be acted upon with thirty days after the submission to the Department. The Department shall approve, deny or take such other action with respect to such application as the Department considers appropriate. A single permit shall be required for each carrier for each class of hazardous materials identified in Section 9.36.040.
(Ord. No. 6816, § 99, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.100 Appeals.

Any person aggrieved by a decision of the Department of Fire and Rescue in denying, refusing to renew, suspending or revoking a permit may appeal that decision within thirty days to the City Council by filing written notice of appeal with the Department. The City Council shall hear the applicant at its first regular meeting following the expiration of ten days after the City Clerk receives the notice of appeal.
(Ord. No. 6816, § 100, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.110 Incidents involving hazardous materials—Reporting required.

Incidents involving hazardous materials occurring within the City are required to be reported immediately to the Department of Fire and Rescue, and the Department shall file a standing request with the Materials Transportation Bureau of the United States Department of Transportation for routine mailing to the Department of a copy of the written report required by Title 49 of the Code of Federal Regulations, Section 171.16.
(Ord. No. 6816, § 101, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.120 Permit—Temporary suspension due to hazardous circumstances.

The Department of Fire and Rescue may temporarily suspend the operation of some or any vehicle employed in carrying hazardous materials, as defined in Section 9.36.040, without notice whenever road, weather, traffic or other hazardous circumstances warrant that action.
(Ord. No. 6816, § 102, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.130 Designation of routes—Implementation of other restrictions.

(A) The Department of Fire and Rescue is hereby authorized to designate routes and to implement other restrictions for the transportation of hazardous materials into, through, within, and out of, the City.

(B) For the purpose of applying Title 49 of the code of Federal Regulations, Part 397, the following restrictions to the transportation of hazardous materials by truck in the City are adopted:

(1) The use of City streets for the transportation of the hazardous materials specified in Section 9.36.040, in a situation in which there is neither a point of origin nor a point of destination within the City, is prohibited.

(2) The Department of Fire and Rescue may require advance notification, a police escort or an inspection, or a combination thereof, of any cargo deemed to present a special risk, if an emergency response, in its judgment, may be enhanced by any such measure; provided, however, that, in all cases of radioactive shipments concerning which the U.S. Nuclear Regulatory Commission is currently required to pre-notify the Governor, the Department of Fire and Rescue shall request that advance notification also be immediately forwarded to the City.

(Ord. No. 6816, § 103, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.140 Motor vehicle transportation.

The following regulations apply to the motor vehicle transportation within the City of the materials specified in Section 9.36.040:

(A) Traffic violations of transporters of hazardous materials shall be treated as violations of these regulations and shall be subject to, in addition to criminal penalties, the penalty provided in Section 9.36.160.

(B) Except when overtaking or passing in opposite directions of travel, all vehicles transporting hazardous materials shall maintain a minimum distance of at least three hundred feet from other vehicles carrying hazardous materials. This requirement shall apply whether or not such vehicles are moving or parked except when at a destination or point of origin.

(C) Except as to any route which has been designated by the Department of Fire and Rescue as being more appropriate with respect to a particular shipment, pursuant to subsection (A) of Section 9.36.130, a transporter of hazardous materials by truck shall use only State-designated routes, listed in subsection (D) of this Section, to reach its destination or to reach a point as close as possible to the destination.

(D) For the purposes of this Chapter, the following are considered State-designated routes:

(1) Interstate 15;

(2) U.S. Highway 95;

(3) U.S. Highway 93.

(Ord. No. 6816, § 104, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.150 Rail shipments.

(A) With respect to rail shipments of hazardous materials, the Department of Fire and Rescue, in order to ascertain if a local hazard exists, shall collect information from all railroads operating in or near the City or whose lines may present useful alternative routes to lines through the City. Such information shall include:

(1) The annual volumes of specific cargos;

(2) Containers used;

(3) Routes and switchyard data on hazardous cargos handled;

(4) Accident rates and track maintenance data;

(5) Whether each railroad has utilized an acceptable methodology for determining routes and yards of lowest risk for such cargos:

(6) The adequacy of each railroad's emergency response preparation in the event of a rail accident on its main tracks or sidings or in its yards, including, but not limited to, the established response times, staffing and emergency phone numbers of the nearest emergency response units, listed by mileposts of rail track, and the availability of fire hydrants and other emergency resources.

(B) The Department of Fire and Rescue, in order to remedy a local hazard related to rail shipments of hazardous cargos, may petition the Public Utilities Commission for remedial legislation or rulemaking.
(Ord. No. 6816, § 105, 8-17-22; Ord. 3190 § 1 (part), 1985)

9.36.160 Violation—Penalty.

In addition to criminal penalties, in the event of a hazardous materials incident, as described in Title 49 of the Code of Federal Regulations, Sections 171.15 and 171.16, requiring the response of the Department of Fire and Rescue and others to control the incident, the transporter shall be liable to the City for the payment of all costs and expenses which the Department incurs in and about the use of its employees, apparatus and materials in the control and neutralization of the incident.
(Ord. No. 6816, § 106, 8-17-22; Ord. 3190 § 1 (part), 1985

CHAPTER 9.37 PROHIBITION OF TRANSPORTATION OF HIGH-LEVEL NUCLEAR WASTE

9.37.010 Definitions.

For purposes of this Chapter, the following terms have the meanings ascribed to them:

"High-level nuclear waste" means highly radioactive material:

(A) That results from the reprocessing of spent nuclear fuel, including liquid waste produced directly in reprocessing, and any solid material derived from such liquid waste that contains fission products in sufficient concentrations; or

(B) That the Nuclear Regulatory Commission, consistent with existing law, determines by rule requires permanent isolation.

"Spent nuclear fuel" means fuel that has been withdrawn from a nuclear reactor following irradiation, the constituent elements of which have not been separated by reprocessing.
(Ord. 5196 § 1 (part), 2000)

9.37.020 Unlawful acts designated.

It is unlawful for any person to transport, within or through the corporate boundaries of the City, any high-level nuclear waste for delivery to a repository for nuclear waste.
(Ord. 5196 § 1 (part), 2000)

CHAPTER 9.38 ABANDONED SHOPPING CARTS

9.38.010 Definitions.

As used in this Chapter, the following terms shall have the meanings ascribed to them:

"Authorized official" means any person designated and empowered by ordinance to abate nuisance activities, and any person authorized by the City Manager to enforce the provisions of this Chapter.

"Laundry cart" means a basket or similar device which is mounted on wheels and is generally used in a laundry or establishment for dry cleaning to transport fabrics and the supplies necessary to clean or launder them.

"Parking area" means a parking lot or other property provided by a retailer for use by a customer to park an automobile or other vehicle. The parking area shall also include the entire parking area used by a multi-store complex or shopping center wherein a retailer is located.

"Public property" includes, but is not limited to, all the area dedicated to or in public use or an easement granted for public street purposes, parks, alleys, sidewalks, flood control channels and other property owned or occupied by a governmental entity.

"Shopping cart" means a basket or similar device which is mounted on wheels and which is generally used in retail or wholesale establishments for the purpose of transporting goods of any kind. The term includes any constituent part of a shopping cart, as well as a shopping cart which is dismantled or not in working order.
(Ord. No. 6694, § 1, 7-17-19; Ord. 5422 § 2, 2002)

9.38.020 Examination.

The authorized official may enter upon public or private property to examine a shopping cart, obtain information as to the ownership of a shopping cart, or to remove or cause to be removed a shopping cart pursuant to this Chapter.
(Ord. 5422 § 3, 2002)

9.38.030 Owner/operator posting requirements.

The owner or operator of any retail establishment which allow customers to use shopping carts to carry goods into a parking area shall:

(A) Prominently and conspicuously post a notice at all entrances to the parking area and at all entrances to the retail establishment, in substantially the following form: "Removal of shopping carts from these premises is prohibited by law"; and

(B) Permanently affix to each such shopping cart a sign that:

(1) Identifies the owner of the shopping cart, including the name, address and telephone number of the local store in which the shopping cart is to be used;

(2) Notifies the public of the procedure to be utilized for authorized removal of the cart from the premises;

(3) Notifies the public that the unauthorized removal of the shopping from the premises or parking area of the establishment or unauthorized possession of the cart violation of City ordinances; and

(4) Lists a valid telephone number or address which can be used in returning the cart to the owner.
(Ord. 5422 § 4, 2002)

9.38.040 Provisions.

(A) Except as otherwise provided in Subsection (B) of this Section, a shopping cart which is left standing on any public or private property shall be deemed to be abandoned. For purposes of this Chapter, an abandoned shopping cart is a public nuisance and is subject to removal in accordance with this Chapter.

(B) The provisions of this Section shall not apply to any shopping cart which:

(1) Is left standing on the property of the owner of the shopping cart within any common area of the shopping center in which the owner's store is located; or

(2) Has been removed for purposes of repair or maintenance.

(C) As provided in this Chapter, the owner of an abandoned shopping cart is responsible for removal of the cart from the location of abandonment, and is liable for the cost of any removal and disposition performed by or on behalf of the City.
(Ord. 5422 § 5, 2002)

9.38.050 Removal by authorized official.

(A) Upon discovering the existence of an abandoned shopping cart on public or private property, the authorized official may cause the removal thereof in accordance with this Section.

(B) In accordance with the provisions of Section 9.38.060 of this Chapter, the authorized official may notify the owner of an abandoned shopping cart and provide a period of time for the owner, or the owner's agent, to remove the cart.

(C) Alternatively, the authorized official may remove the cart or cause it to be removed in accordance with the provisions of Section 9.38.070 of this Chapter.
(Ord. 5422 § 6, 2002)

9.38.060 Notification by authorized official.

The authorized official, at his discretion, may notify the owner of an abandoned shopping cart that the cart must be removed within a specified period of time, and that failure to effect the removal will subject the cart to removal by or at the instance of the City. The notice may be delivered personally to the owner or a representative, by mail addressed to the address listed on the cart or to the last known address of the owner, or by delivery or mailing to an agent designated by the owner for such notice to be given. If removal is not accomplished by or on behalf of the owner within the time period specified in the notice, the City may remove or cause the removal of the cart and may store it until retrieved or disposed of in accordance with this Chapter.
(Ord. 5422 § 7, 2002)

9.38.070 Removal by authorized official—Requirements.

The authorized official, at his discretion, may remove or cause to be removed any abandoned shopping cart without notice to the owner thereof, and may store it until retrieved or disposed of in accordance with this Chapter. Thereafter, the authorized official shall notify the owner of the shopping cart of the removal, including the date the shopping cart was removed from the location of abandonment, the location and procedure for retrieval of the shopping cart, and a statement that the owner or its agent must submit a request for a hearing either in person or in writing within ten days after notice has been delivered or sent. The notice may be delivered personally to the owner or a representative, or by mail addressed to the address listed on the cart or to the last known address of the owner.
(Ord. 5422 § 8, 2002)

9.38.080 Ownership.

For purposes of Sections 9.38.050 to 9.38.070, inclusive, of this Chapter, the "owner" of a shopping cart or abandoned shopping cart means the apparent owner when actual ownership is unknown.
(Ord. 5422 § 9, 2002)

9.38.090 Hearing.

(A) A request for hearing concerning the removal of one or more shopping carts must set forth the grounds upon which the hearing is requested. If a request for hearing is timely and properly made, a hearing shall be conducted within fifteen business days after receipt of the request. The hearing shall be conducted by the City Manager or a designee. The failure to request a hearing in within the required time shall constitute a waiver of the hearing.

(B) If a hearing is conducted concerning the removal of a shopping cart, the person requesting the hearing shall have the burden of demonstrating that the removal was unwarranted. The person conducting the hearing shall determine whether or not removal of the shopping cart was warranted, and that determination shall be deemed to be the final administrative determination.

(C) If removal of the shopping cart is determined to have been warranted, the owner or agent shall have fifteen days from the date of the ruling to retrieve the shopping cart, after payment of the fees and costs associated with removal and storage. If removal of the shopping cart is determined to have been unwarranted, the fees and costs shall be waived and the owner or its agent shall have fifteen days to retrieve its shopping cart from the storage area.
(Ord. 5422 § 10, 2002)

9.38.100 Payment of storage and removal fees.

(A) Any shopping cart which has been removed and stored by or at the instance of the City pursuant to the provisions of this Chapter shall be released to the owner, or the owner's agent, after payment of the associated removal and storage fees, if release is sought in a timely manner. The City's obligation to release a shopping cart continues only for the following periods:

(1) Thirty days after notice of removal has been given, if no hearing is timely and properly requested; or

(2) Fifteen days after a determination is made in connection with a hearing.

(B) Any shopping carts that have not been retrieved by the owner within the time periods contained in this Section shall be deemed to be permanently abandoned. The City may continue to release such carts to the owner in accordance with Subsection (A), but may also be sold at public auction, destroyed or otherwise disposed of by the City.
(Ord. 5422 § 11, 2002)

9.38.110 Fee for removal.

(A) The City is authorized to charge a fee for the removal and storage of shopping carts, based upon the actual cost thereof, plus a fifteen percent administrative fee to cover administrative costs. The fee for the removal and storage of shopping carts shall be established, and may be amended from time to time, by resolution of the City Council.

(B) In addition to any other fee which the City may charge pursuant to this Section, the City Council may assess a civil penalty in accordance with this Subsection (B). Any owner of shopping carts whose carts have been the subject of more than three occurrences within any six month period shall be subject to a civil penalty of fifty dollars per shopping cart for each occurrence in excess of three during that six month period. For purposes of this Subsection, an "occurrence" with regard to a shopping cart owner consists of any notice to remove sent by the City to that owner, or the removal by or at the instance of the City of any abandoned shopping cart belonging to that owner.

(C) If an owner of shopping carts has not paid all fees and penalties imposed on the owner pursuant to this Section prior to the payment of the owner's semi-annual business license fee, the City may decline to renew, or may suspend, the business license until all fees and penalties have been paid.
(Ord. 5422 § 12, 2002)

9.38.120 Exemptions.

The authorized official may exempt an owner of shopping carts from the removal provisions of this Chapter if the owner implements and documents, to the satisfaction of the authorized official:

(A) A plan whereby employees provide continuous and effective shopping cart retrieval;

(B) A contract with a cart retrieval service that effectively provides retrieval services on a daily basis; or

(C) A shopping cart management system to physically prevent shopping carts from leaving an owner's premises.
(Ord. 5422 § 13, 2002)

9.38.130 Retrieval of shopping/laundry carts.

(A) As an alternative to any applicable removal-related procedures and requirements of LVMC 9.38.040 to 9.38.110, inclusive, the City may opt to follow the provisions of Subsections (B) and (C) of this Section.

(B) A shopping cart or laundry cart that is in the possession of a person in violation of NRS 205.860, or that has been left or abandoned in violation of NRS 205.860, may be collected by officers or employees of the City and returned to the owner of the cart, or may be held for a period of at least thirty days before being disposed of by the City in its discretion. If the owner of the cart is apparent or reasonably able to be determined, the City may not dispose of the cart until the City has notified the owner and at least twenty days have elapsed following the notification. If the owner claims the cart within the notice period or before disposition, the City shall return the cart to the owner or its representative, and shall do so upon payment of the fee described in LVMC 9.38.110.

(C) The City may establish a program by which the owners of shopping carts and laundry carts collected by the City pursuant to Subsection (B) may retrieve their carts on a monthly or other periodic basis. The program may provide for appropriate procedures and requirements, which may include without limitation:

(1) A requirement for the owner to register or enter into an agreement to participate in the program; and

(2) A requirement to pay the City a retrieval fee that reflects the City's reasonable cost of collecting the owner's carts.

(Ord. No. 6694, § 2, 7-17-19)

CHAPTER 9.40 ODOR NUISANCES

9.40.010 Definitions.

As used in this Chapter, unless the context otherwise indicates, the following terms shall have the meanings ascribed to them:

"Authorized official" has the same meaning ascribed to that term in LVMC 9.04.010.

"DT" is an abbreviation for dilution to threshold, which is an odor quantification unit.

"Hedonic tone" means the offensiveness of a particular odor.

"Nasal Ranger®" refers to a manufactured product used to quantify odor by diluting the air stream with odor categorizing the odor by dilutions to threshold.

"Odor" means the perceived experience when one or more chemicals come into contact with and stimulate the olfactory nerve.

"Odor episode" means the occurrence and perception of odor that may constitute an odor nuisance under this Chapter.

"Odor intensity" means the overall strength of an odor.

"Odor nuisance" means an odor which is injurious to health, offensive to the senses of a reasonable person, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.

"Odorant" refers to any chemical in the air that is part of the perception of odor.

"Olfactometer" means a device used in the field to measure or quantify odor or odor intensity, including a scentometer or Nasal Ranger®.

"Ppbv" means parts per billion by volume, a common gas phase compound quantitative unit.

"Ppmv" means parts per million by volume, a common gas phase compound quantitative unit.

"Scentometer" means a measurement device used to quantify odor intensity using a calibration standard.
(Ord. No. 6570, § 2, 3-15-17)

9.40.020 Odor nuisances prohibited.

(A) Except as otherwise provided in this Chapter, no person shall cause or knowingly allow to be caused an odor nuisance.

(B) When a complaint regarding an odor episode is received, an authorized official may contact the complainant, gather specific information regarding the odor episode, and conduct an investigation accordingly. An authorized official may also conduct an investigation in a case where he or she independently perceives the existence of odor that might constitute an odor nuisance. As part of the investigation, the official may attempt to identify and quantify the odor intensity using an olfactometer and may also define or describe the hedonic tone of the odor associated with the odor episode.

(C) As an alternative to, or in advance of, formal enforcement proceedings, an authorized official may work with an owner, operator or other person responsible for an odor episode to mitigate the odor.

(D) An authorized official may process an odor episode as a public nuisance under Chapter 9.04 if, on a parcel adjacent to or nearby the parcel that is the source of the odor, an objective measurement is made as follows:

(1) The ambient odor has a persistent odor intensity measured at 7 DT or greater and measured as such at least three times in a forty-eight hour time period; or

(2) The existence of hydrogen sulfide or ammonia is measured as follows:

(a) Hydrogen sulfide: One hundred ppbv (instantaneous), thirty ppbv (thirty-minute average), ten ppbv (one hour average); or

(b) Ammonia: Ten ppmv (instantaneous), three ppmv (thirty-minute average), one ppbv (one hour average).

(E) An objective measurement that qualifies under Subsection (D) shall be based on appropriate technology, including without limitation the use of olfactometers, instruments that measure the presence of specific chemicals or odorants (such as color-changing tubes and Jerome analyzers), and air monitoring equipment for compounds emitted into the air. An objective measurement that qualifies under Subsection (D) presumptively establishes the existence of an odor nuisance under this Chapter and Chapter 9.04. The presumption may be rebutted in connection with an appeal hearing or judicial proceeding regarding the odor nuisance.

(F) If multiple complaints are made regarding the same odor episode, but a presumptive odor nuisance cannot be established under the objective criteria described in Subsection (D) above, an authorized official may contact an owner, operator or other person responsible for the odor to discuss odor mitigation measures to eliminate or reduce the ambient odor.
(Ord. No. 6570, § 2, 3-15-17)

9.40.030 Applicability—Exceptions.

(A) Except as otherwise provided in Subsection (B), this Chapter applies to all locations and operations within the City, including residential and nonresidential operations.

(B) This Chapter does not apply to:

(1) Residential animal husbandry locations or other rural residential sites that include the presence of animals or agricultural operations, but only to the extent they are operating in compliance with all applicable City ordinances.

(2) The food preparation operations of restaurants (but only those operations).

(3) Regulated natural gas utility operations, including odorized natural gas and the chemicals or products used to achieve the required odorization of natural gas.

(Ord. No. 6570, § 2, 3-15-17)

9.40.040 Cannabis odor nuisances.

(A) In the case of an odor episode that qualifies under Subsection (D) of Section 9.40.020, where the source of the odor is a cannabis establishment licensed pursuant to LVMC Chapter 6.95 and the operator or owner disagrees with the objective measurement, an authorized official may require the operator or property owner to conduct air monitoring, at the operator's or owner's cost, in accordance with the Department of Community Development's odor-related standards regarding cannabis establishments.

(B) The Director of Community Development may establish a policy to describe the scope of the odor mitigation plan required for outdoor consumption waivers pursuant to LVMC 6.95.160(J)(1). The policy may include provisions regarding the submission of revised odor mitigation plans, as well as procedures and remedies relating to compliance with plans.

(Ord. No. 6831, § 18.5, 3-1-23; Ord. No. 6816, § 107, 8-17-22; Ord. No. 6570, § 2, 3-15-17)

Title 10

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DIVISION I. STATE MISDEMEANORS

CHAPTER 10.02 STATE MISDEMEANORS

10.02.010 Designated misdemeanors.

The commission of any act within the corporate limits of the City or the failure to perform any act within such corporate limits, which is made a misdemeanor by the laws of the State is hereby declared to be and shall constitute a misdemeanor.
(Ord. No. 6906, § 1, 7-2-25; Ord. No. 6842, § 1, 7-19-23; Ord. No. 6786, § 1, 7-7-21; Ord. No. 6692, § 1, 6-19-19; Ord. No. 6592, § 1, 7-19-17; Ord. No. 6436, § 1, 7-15-15; Ord. No. 6261, § 1, 8-7-13; Ord. No. 6156, § 1, 8-3-11; Ord. No. 6050, 7-15-09; Ord. 5924 § 1, 2007; Ord. 5783 § 1, 2005: Ord. 5643 § 1, 2003: Ord. No. 5341 § 1, 2001; Ord. 5160 § 1, 1999; Ord. 5023 § 1, 1997; Ord. 3921 § 1, 1995; Ord. 3614 § 1, 1991: Ord. 3460 § 1, 1989; Ord. 3303 § 1, 1987; Ord. 3181 § 1, 1985; Ord. 3060 § 1, 1983; Ord. 2171 § 1, 1981: Ord. 2079 § 1, 1980: Ord. 1663 § 1, 1973: Ord. 1593 § 1, 1972: Ord. 1414 § 1, 1969: prior code § 6-1-34)

10.02.020 Civil infractions.

Any act or omission that would be a violation of Title 11, relating to vehicles, traffic and the use of rights-of-way, but that under State law is made punishable as a civil infraction, is deemed to be a civil infraction under this Code rather than a misdemeanor. Likewise, any act or omission that constitutes a violation of NRS Chapters 484A to 484E, inclusive, and that is made punishable as a civil infraction under State law is deemed to be a civil infraction under this Code. In accordance with State law, the municipal court has jurisdiction over the hearing of civil infractions and may impose civil penalties that are:

(A) Consistent with State law governing such violations; and

(B) In accordance with rules or schedules that may be adopted by the court, or otherwise consistent with misdemeanor fines previously imposed regarding such violations.

(Ord. No. 6823, § 1, 11-16-22)

DIVISION II. OFFENSES BY OR AGAINST PUBLIC OFFICERS OR GOVERNMENT

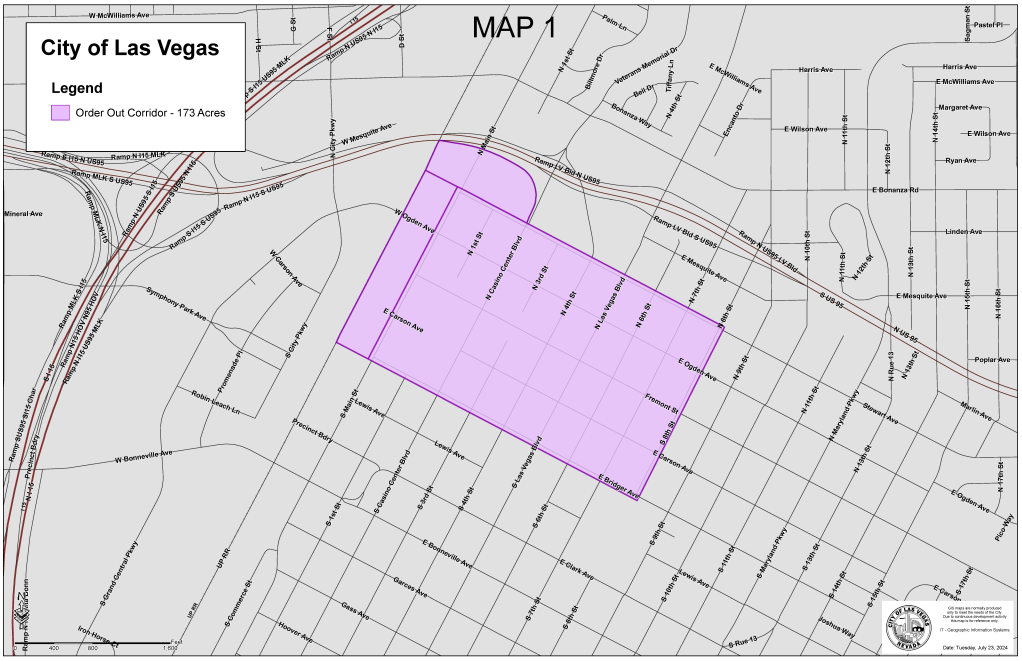
CHAPTER 10.04 ORDER OUT CORRIDOR

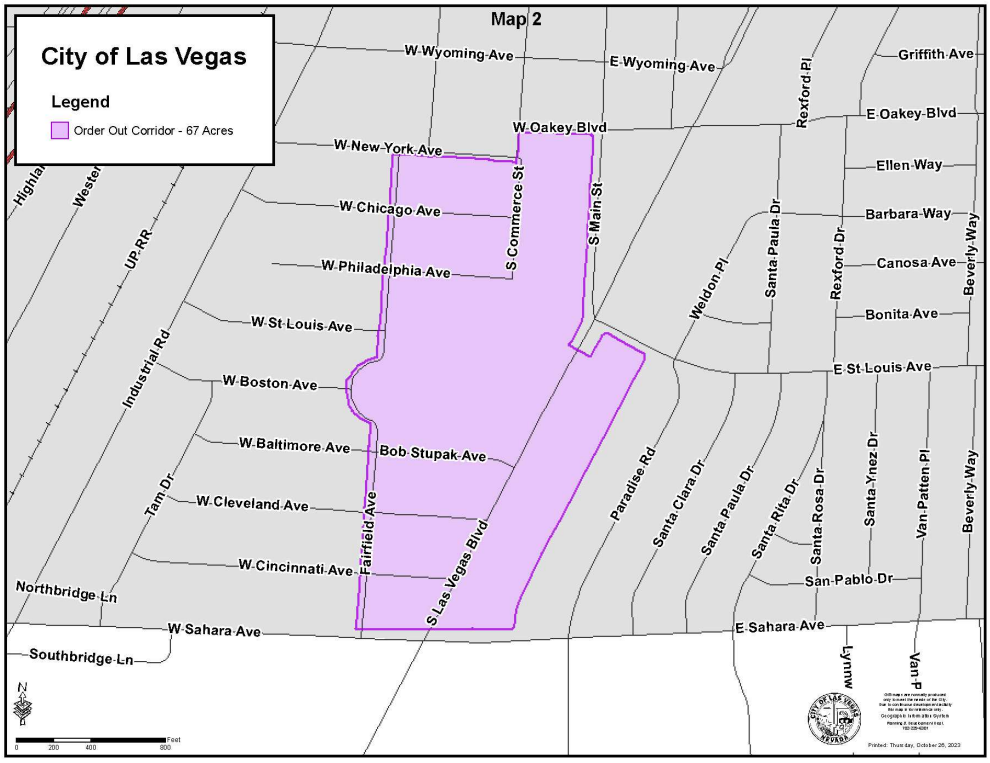
10.04.010 Boundaries—Maps.

For purposes of this Chapter, the "Order Out Corridor" includes:

(A) The area depicted on the map labeled "Map 1," which is included at the end of this Section.

(B) The area depicted on the map labeled "Map 2," which is included at the end of this Section.


MAP 1
City of Las Vegas
Legend
Order Out Corridor - 173 Acres


Map 2
City of Las Vegas
Legend
Order Out Corridor - 67 Acres
W Wyoming Ave
E Wyoming Ave
W Oakey Blvd
W New York Ave
W Chicago Ave
W Philadelphia Ave
W St Louis Ave
W Boston Ave
W Baltimore Ave
W Cleveland Ave
W Cincinnati Ave
W Sahara Ave
Southbridge Ln
Northbridge Ln
Tam Dr
Industrial Rd
UP RR
S Commerce St
S Main St
S Las Vegas Blvd
Fairfield Ave
Bob Stupak Ave
Rexford Pl
Griffith Ave
E Oakey Blvd
Ellen Way
Barbara Way
Canosa Ave
Bonita Ave
E St Louis Ave
E Sahara Ave
San Pablo Dr
Weldon Pl
Santa Paula Dr
Rexford Dr
Beverly Way
Paradise Rd
Santa Clara Dr
Santa Paula Dr
Santa Rita Dr
Santa Rosa Dr
Santa Ynez Dr
Van Patten Pl

(Ord. No. 6881, § 1, 10-2-24; Ord. No. 6853, § 1, 11-15-23)

10.04.020 Order Out Corridor—Condition of suspended sentence.

(A) With regard to a criminal offense that occurred or is alleged to have occurred within the Order Out Corridor, if a court:

(1) Suspends all or part of a sentence for a conviction of that offense;

(2) Defers the adjudication of guilt upon a plea of guilty or no contest to that offense; or

(3) Otherwise withholds the imposition of a sentence or defers adjudication of guilt for that offense and if the circumstances warrant,

→the court may order as a condition of the suspended sentence or deferred adjudication that the defendant stay out of the Order Out Corridor or a particular portion thereof for a period not to exceed one year.

(B) Before ordering a defendant to stay out of the Order Out Corridor (or portion thereof), the court shall inquire of the defendant as to the defendant's special reasons for requiring access to any specified areas within the Order Out Corridor, including:

(1) Working or residing within the Order Out Corridor;

(2) The need for medical services within the Order Out Corridor;

(3) The need for access to federal, state and local social services within the Order Out Corridor;

(4) The need for religious services within the Order Out Corridor;

(5) The need for public transportation within the Order Out Corridor; and

(6) The need for legal services or appearances within the Order Out Corridor.

→After such inquiry, the court may grant such exemptions from an order to stay out of the Order Out Corridor as the court deems reasonable. Any person granted an exemption pursuant to this subsection shall carry a copy of the order at all times the person is located within the Order Out Corridor (or portion thereof included in the order).

(C) Any order issued pursuant to this Section shall:

(1) Describe the boundaries of the Order Out Corridor, or the portion included in the order, and any exempted areas therein, and shall be accompanied by a copy of one or more maps depicting the perimeters of the Order Out Corridor or portion thereof; and

(2) Prescribe the effective dates of the order.

(Ord. No. 6853, § 1, 11-15-23)

10.04.030 Violation of Order Out Corridor order.

(A) Any person who willfully violates an order to stay out of the Order Out Corridor (or portion thereof) is guilty of a misdemeanor.

(B) Nothing in this Section shall limit the authority of the court to impose a sentence or employ any sanction authorized by law for the enforcement of a court order.
(Ord. No. 6853, § 1, 11-15-23)

CHAPTER 10.06 RESISTING ARREST

10.06.010 Resisting arrest.

It shall be unlawful for any person to knowingly and wilfully resist, oppose or offer violence to any officer of the City or to any Peace Officer after such person has been placed under legal arrest by such City Officer or Peace Officer. Any person violating any of the provisions of this Section shall be guilty of a misdemeanor.
(Ord. 1874 § 1, 1977: prior code § 6-1-31)

CHAPTER 10.08 ESCAPE FROM JAIL

10.08.010 Escape or attempt.

Any person or persons escaping or attempting to escape from the City Jail shall be guilty of a misdemeanor.
(Ord. 178 § 3, 1931: prior code § 6-1-12)

10.08.020 Assisting escape or rescue from custody.

Any person assisting or attempting to assist any prisoner confined in the City Jail by sentence or order of the Municipal Court or other legally constituted tribunal to escape therefrom, or rescuing or attempting to rescue any person lawfully in the custody of any Police Officer or Peace Officer is guilty of a misdemeanor.
(Ord. 178 § 4, 1931: prior code § 6-1-5)

CHAPTER 10.10 FALSE ALARMS AND REPORTS

10.10.010 False reports—Interference with operations.

It shall be unlawful for any person to willfully make to the Las Vegas Metropolitan Police Department or the Department of Fire and Rescue any false, misleading or unfounded report, for the purpose of interfering with the operation of the Metropolitan Police Department or the Department of Fire and Rescue, or with the intention of misleading any Peace Officer, or any member of the Department of Fire and Rescue, or to in any other manner interfere with the operations of the Metropolitan Police Department, or of the Department of Fire and Rescue. Any person violating any of the provisions of this Section shall be guilty of a misdemeanor.
(Ord. No. 6816, § 108, 8-17-22; Ord. 1879 § 1, 1977: Ord. 374 § 1, 1948: prior code § 6-1-14)

CHAPTER 10.12 TAMPERING WITH POLICE AND FIRE ALARMS OR TELEPHONES

10.12.010 Police and Fire communications equipment.

It shall be unlawful for any person to interfere with the alarm boxes of the Metropolitan Police Department or Department of Fire and Rescue, or with the telephones, telephone or telegraph wires, or signal system or apparatus of either of such departments. Any person violating the provisions of this Section shall be guilty of a misdemeanor.
(Ord. No. 6816, § 109, 8-17-22; 1949 code Ch. 21 § 51: prior code § 6-1-36)

CHAPTER 10.14 IMPERSONATING POLICE OFFICER

10.14.010 Impersonation.

It shall be unlawful for any person falsely to assume to be a Police Officer or, without authority or right, to assume to exercise Police powers.
(1949 code Ch. 21 § 26: prior code § 6-1-19)

CHAPTER 10.16 RADIO TRANSMISSIONS FOR LAW ENFORCEMENT*

10.16.010 Communication or use.

No person, not being authorized by the sender, who intercepts, overhears or receives any messages or communications transmitted by any radio transmitting station operating upon a wavelength or radio frequency assigned by the Federal Communications Commission for use by any police or law enforcement agency, shall for the benefit of himself or any other person, communicate such messages or communications to any other person, or directly or indirectly use the information so obtained.
(Prior code § 10-22-1)

CHAPTER 10.18 AUTOMATIC TELEPHONE DIALING MACHINES

10.18.010 Use without consent unlawful.

It shall be unlawful for any person to maintain, operate, connect or allow to be maintained, operated or connected any telephone device, telephone attachment, or other device which automatically dials a telephone number and then reproduces any prerecorded message to report a burglary, or robbery, or any message which by its nature would dictate the immediate or timely response of a public agency without the prior written consent of the person or public agency which has been assigned such number by the telephone company.
(Ord. 1936 § 1 (part), 1978: prior code § 6-10-3(A))

***Cross reference—**For provisions on making false reports by radio or otherwise interfering with Police radio sets or transmissions, see Ch. 10.24 of this Code.

10.18.020 Consent considerations.

In determining whether to grant consent to use such devices to call a telephone number assigned to a department of the City, the City shall consider whether the person is handicapped or for some other reason unable to normally use a telephone to report a burglary, robbery or other emergency condition.
(Ord. 1936 § 1 (part), 1978: prior code § 6-10-3(B))

10.18.030 Message receiver duty.

Any person, other than a public agency, who consents to the use of their telephone for receiving a prerecorded message shall present themselves or a representative, employee, or agent to the place where the message originated within fifteen minutes after they have reported the message to a public agency.
(Ord. 1936 § 1 (part), 1978: prior code § 6-10-3(c))

CHAPTER 10.20 LIBRARY PROPERTY

10.20.010 Destruction or damage.

It shall be unlawful for any person to mark, tear or in any manner injure, deface, mutilate or destroy any book, pamphlet or other property of the free public library of the City.
(Ord. 370 § 1, 1948: prior code § 6-1-30 (part))

10.20.020 Failure to return materials.

It shall be unlawful for any person to fail to return any book, pamphlet or other property of the free public library of the City within five days after the receipt of notice from the Librarian thereof, demanding the return to the library of such property.
(Ord. 370 § 2, 1948: prior code § 6-1-30 (part))

CHAPTER 10.22 RESERVED*

CHAPTER 10.24 RESERVED†

CHAPTER 10.25 PRIVATE SECURITY SERVICE BUSINESSES

10.25.010 General identification requirements.

It is unlawful for any consultant, dog handler, private investigator, private patrolman, process server, repossessor, security consultant or security guard as defined in NRS 648 or any employee of such persons to:

(A) Use or carry a badge until the badge has been approved by the Las Vegas Metropolitan Police Department and until such time as a photograph of the badge has been filed with the Police Department;

***Editor's note—**Ord. No. 6155, § 1, adopted June 1, 2011, repealed Chapter 10.22, §§ 10.22.010—10.22.040, which pertained to radio reception interference and derived from prior code §§ 4-7-1—4-7-4; Ord. No. 162, 1930 and Ord. No. 231, 1938.

†**Editor's note—**Ord. No. 6155, § 1, adopted June 1, 2011, repealed Chapter 10.24, §§ 10.24.010—10.24.080, which pertained to shortwave receivers in vehicles and derived from prior code §§ 4-7-5—4-7-13 and Ord. No. 206, 1934, 1979.

(B) Use or wear a uniform until the uniform has been approved by the Las Vegas Metropolitan Police Department and until such time as a colored photograph of the uniform has been filed with the Police Department;

(C) Use a vehicle in his business or employment, other than a vehicle with standard factory colors and markings, having a unique or customized color scheme or markings until the color scheme and markings of the vehicle have been approved by the Las Vegas Metropolitan Police Department.
(Ord. 3599 § 2, 1991)

10.25.020 Design approval.

The Las Vegas Metropolitan Police Department shall not withhold approval of any badge, uniform or vehicle design, color scheme or logo if the badge, uniform or vehicle would not give the impression that a consultant, dog handler, private investigator, private patrolman, process server, repossessor, security consultant or security guard as defined in NRS 648 or any employee of any such persons was a peace officer or confuse a member of the public regarding the authority of such persons.
(Ord. 3599 § 3, 1991)

10.25.030 Possession of identification materials—Restrictions.

It is unlawful for any person to wilfully exhibit, use or wear or wilfully give, lend, make, sell or transfer to another any badge, device, emblem, insignia or any card, certificate, label or writing, or to design, sell or use any vehicle which falsely purports to be authorized for the use of one who by law is given the authority of a peace officer or which so resembles the authorized badge, card, certificate, device, emblem, insignia, label, uniform or vehicle of a peace officer as would deceive an ordinarily reasonable person into believing that it is authorized for the use of one who by law is given authority of a peace officer.
(Ord. 3599 § 4, 1991)

10.25.060 Exemptions from Chapter requirements.

This Chapter does not apply to:

(A) Polygraph examiners and interns as defined in NRS 648;

(B) Those persons exempted from the provisions of NRS 648 by NRS 648.018.
(Ord. 3599 § 7, 1991)

DIVISION III. OFFENSES AGAINST THE PERSON

CHAPTER 10.26 FOOD OR LODGING FRAUD

10.26.010 Defrauding provider of accommodation.

Any person who obtains food, lodging or other accommodation at any hotel, casino, inn, lodginghouse, boardinghouse, roominghouse, eating house, furnished apartment house, fur-

nished bungalow court, or furnished auto camp, without paying therefor, with intent to defraud the owner or keeper thereof, is deemed guilty of a misdemeanor. Proof that lodging, food or other accommodation was obtained by false pretense, or by false or fictitious show or pretense of any baggage or other property, or that the person refused or neglected to pay for such food, lodging or other accommodation, or that he gave in payment for such food, lodging or other accommodation negotiable paper on which payment was refused, or that he absconded without paying or offering to pay for such food, lodging or other accommodation, or that he surreptitiously removed or attempted to remove his baggage, shall be prima facie evidence of the fraudulent intent mentioned herein.
(Ord. 2225 § 1, 1981: Ord. 375 § 1, 1948: prior code § 6-1-13)

10.26.020 Defrauding taxicabs.

It shall be unlawful for any person to refuse to pay the legal fare of any taxicab after hiring the same, and it shall be unlawful for any person to hire any taxicab with the intent to defraud the person from whom the same is hired of the value of such services.
(Ord. 3344 § 2, 1988)

CHAPTER 10.28 HARASSMENT BY TELEPHONE

10.28.010 Unlawful language over telephone.

It shall be unlawful for any person to use any threatening, vulgar, indecent or obscene language over any telephone.
(Ord. 2228 § 2, 1981: Ord. 897 § 2, 1960: prior code § 6-10-2)

CHAPTER 10.30 UNLAWFUL IDENTIFICATION

10.30.010 Definition.

For the purpose of this Section, "identification material" is hereby defined to mean any card, paper, tag, badge, or any printed, stamped or engraved material whatsoever which purports to confer upon an individual a particular status, occupation, membership, license or identity.
(Ord. 2298 § 2 (part), 1982)

10.30.020 Creation of false identification material unlawful.

It is unlawful for any person engaged in the business of printing, designing, manufacturing, producing or selling identification material to knowingly print, design, manufacture, produce or sell any identification material which is false, fraudulent or fictitious or which would tend to deceive or mislead any person, or which would purport to confer upon an individual a particular status, occupation, license or identity which he does not in fact possess.
(Ord. 2298 § 2 (part), 1982)

10.30.030 Providing of false information regarding identification unlawful.

It is unlawful for any person to provide to another person in the business of printing, designing, manufacturing, producing or selling identification material any false, fraudulent, misleading or fictitious information for the purpose of acquiring any identification material which would be false, fraudulent, misleading or fictitious.
(Ord. 2298 § 2 (part), 1982)

10.30.040 Use of false identification unlawful.

It is unlawful for a person to possess any document or personal identifying information for the purpose of establishing a false status, occupation, membership, license or identity for himself or any other person or for any other benefit or gain.
(Ord. No. 6042, § 1, 6-3-09; Ord. 2298 § 2 (part), 1982)

CHAPTER 10.32 BATTERY WHICH CONSTITUTES DOMESTIC VIOLENCE

10.32.010 Battery which constitutes domestic violence—Generally.

(A) It is unlawful for a person to commit battery which constitutes domestic violence as described in this Section. A person commits battery which constitutes domestic violence when the person commits a battery against or upon the person's spouse or former spouse, any other person to whom the person is related by blood or marriage, any other person with whom the person has had or is having a dating relationship, any other person with whom the person has a child in common, the minor child of any of those persons, the person's minor child or any other person who has been appointed the custodian or legal guardian for the person's minor child.

(B) The provisions of this Section do not apply to:

(1) Siblings, except those siblings who are in a custodial or guardianship relationship with each other; or

(2) Cousins, except those cousins who are in a custodial or guardianship relationship with each other.

(C) As used in this Section, "dating relationship" means frequent, intimate associations primarily characterized by the expectation of affectional or sexual involvement. The term does not include a casual relationship or an ordinary association between persons in a business or social context.
(Ord. No. 6706, § 1, 10-16-19)

10.32.020 Penalty.

(A) A person convicted of a battery which constitutes domestic violence pursuant to LVMC 10.32.010:

(1) For the first offense within seven years, is guilty of a misdemeanor and shall be sentenced to:

(a) Imprisonment in the City jail or detention facility for not less than two days, but not more than six months; and

(b) Perform not less than forty-eight hours, but not more than one hundred twenty hours, of community service.

→The person shall be further punished by a fine of not less than two hundred dollars, but not more than one thousand dollars. A term of imprisonment imposed pursuant to this Paragraph (1) may be served intermittently at the discretion of the judge, except that each period of confinement must be not less than twelve consecutive hours and must occur at a time when the person is not required to be at his or her place of employment or on a weekend.

(2) For the second offense within seven years, is guilty of a misdemeanor and shall be sentenced to:

(a) Imprisonment in the City jail or detention facility for not less than twenty days, but not more than six months; and

(b) Perform not less than one hundred hours, but not more than two hundred hours, of community service.

→The person shall be further punished by a fine of not less than five hundred dollars, but not more than one thousand dollars. A term of imprisonment imposed pursuant to this Paragraph (2) may be served intermittently at the discretion of the judge, except that each period of confinement must not be less than twelve consecutive hours and must occur at a time when the person is not required to be at his or her place of employment or on a weekend.

(B) In addition to any other penalty, if a person is convicted of a battery which constitutes domestic violence pursuant to LVMC 10.32.010, the court shall:

(1) For the first offense within seven years, require the person to participate in weekly counseling sessions of not less than one and one-half hours per week for not less than six months, at his or her expense, in a program for the treatment persons who commit domestic violence that has been certified pursuant to NRS 439.258.

(2) For the second offense within seven years, require the person to participate in weekly counseling sessions of not less than one and one-half hours per week for not less than twelve months, at his or her expense, in a program for the treatment of persons who commit domestic violence that has been certified pursuant to NRS 439.258.

→If the person resides in this State but the nearest location at which counseling services are available is in another state, the court may allow the person to participate in counseling in the other state in a program for the treatment of persons who commit domestic violence that has been certified pursuant to NRS 439.258.

(C) Except as otherwise provided in this Subsection, an offense that occurred within seven years immediately preceding the date of the principal offense or after the principal offense constitutes a prior offense for the purposes of this section:

(1) When evidenced by a conviction; or

(2) If the offense is conditionally dismissed pursuant to NRS 176A.290 or dismissed in connection with successful completion of a diversionary program or specialty court program;

→without regard to the sequence of the offenses and convictions. The facts concerning a prior offense must be alleged in the complaint, must not be read to the trier of fact or proved at trial but must be proved at the time of sentencing.

(D) In addition to any other fine or penalty, the court shall order such a person to pay an administrative assessment of thirty-five dollars. Any money so collected must be paid by the clerk of the court to the State Controller on or before the fifth day of each month for the preceding month for credit to the Account for Programs Related to Domestic Violence established pursuant to NRS 228.460.

(E) In addition to any other penalty, the court may require such a person to participate, at his or her expense, in a program of treatment for the use of alcohol or drugs that has been certified by the Division of Public and Behavioral Health of the Department of Health and Human Services.

(F) If it appears from information presented to the court that a child under the age of eighteen years may need counseling as a result of the commission of a battery which constitutes domestic violence pursuant to LVMC 10.32.010, the court may refer the child to an agency which provides child welfare services. If the court refers a child to an agency which provides child welfare services, the court shall require the person convicted of a battery which constitutes domestic violence pursuant to LVMC 10.32.010 to reimburse the agency for the costs of any services provided, to the extent of the convicted person's ability to pay.

(G) If a person is charged with committing a battery which constitutes domestic violence pursuant to LVMC 10.32.010, a prosecuting attorney shall not dismiss such a charge in exchange for a plea of guilty, guilty but mentally ill or nolo contendere to a lesser charge or for any other reason unless the prosecuting attorney knows, or it is obvious, that the charge is not supported by probable cause or cannot be proved at the time of trial. Except as otherwise provided in this Subsection, a court shall not grant probation to or suspend the sentence of such a person. A court may grant probation to or suspend the sentence of such a person:

(1) As set forth in NRS 5.055; or

(2) To assign the person to a program for the treatment of veterans and members of the military pursuant to NRS 176A.290 if the charge is for a first offense punishable as a misdemeanor.

(H) As used in this Section:

(1) "Agency which provides child welfare services" has the meaning ascribed to it in NRS 432B.030.

(2) "Battery" has the meaning ascribed to it in paragraph (a) of subsection 1 of NRS 200.481.

(3) "Offense" includes a battery which constitutes domestic violence pursuant to LVMC 10.32.010 or a violation of the law of any other jurisdiction that prohibits the same or similar conduct.
(Ord. No 6741, § 1, 7-8-20; Ord. No. 6706, § 1, 10-16-19)

DIVISION IV. OFFENSES AGAINST PUBLIC DECENCY

CHAPTER 10.34 NUDE AND OPPOSITE-SEX WRESTLING—SADOMASOCHISM—MIXED-SEX NUDITY

10.34.010 Definitions.

As used in this Chapter, the following words shall have the meaning ascribed to them:

"House of sadomasochism" means an establishment wherein the practice of flagellation, torture or fettering is used or administered to an individual, either by an employee of the establishment or a patron of the establishment.

"Nude" means the showing of the human male or female genitals, pubic area or buttocks with less than a full opaque covering, or the showing of the female breast with less than a full opaque covering of any portion thereof below the top of the nipple, or the depiction of covered male genitals in a discernibly turgid state.

"Nude wrestling establishment" means any place of business wherein any of the participants are engaged in wrestling as herein defined while in the nude as herein defined and which place reasonably expects to collect any fee, wage, payment, donation, commission or tip as a result of the nude wrestling.

"Sadomasochistic abuse" means the practice of using, applying or administering flagellation, torture or fettering to another human being.

"Wrestling" means to grapple or engage by physical contact whereby one person seeks to overpower another or throw him or her to the floor or ground.
(Ord. 3135 § 1, 1984: Ord. 2259 § 2 (part), 1982: prior code § 6-1-45(D))

10.34.020 Opposite-sex wrestling business.

It is unlawful for any person to conduct, manage, operate, maintain, or advertise a business wherein for payment, direct or indirect, wrestling partners of the opposite sex may be obtained.
(Ord. 2259 § 2 (part), 1982: prior code § 6-1-45(A))

10.34.030 Nude wrestling or sadomasochistic abuse business.

It is unlawful for any person to conduct, manage, operate, maintain or advertise a business for nude wrestling, or sadomasochistic abuse as herein defined.
(Ord. 2259 § 2 (part), 1982: prior code § 6-1-45(B))

10.34.040 Mixed-sex nudity.

It is unlawful for any person to engage in the business of providing saunas, bathing, soaking or hot tubs, showers, whirlpools or exercise equipment where persons of both sexes may use the same facility, or separate facilities in view of each other, at the same time while in the nude.
(Ord. 2259 § 2 (part), 1982: prior code § 6-1-45(C))

10.34.050 Hotel or motel rooms.

This Chapter does not apply to licensed hotels or motels which provide tubs or showers in private hotel or motel rooms for incidental use by persons who rent such rooms.
(Ord. 2259 § 2 (part), 1982: prior code § 6-1-45(E))

CHAPTER 10.36 PROSTITUTION

10.36.010 Definitions.

For the purpose of this Chapter, the words set out in this Section mean as follows:

"Fee," whether or not quantified, means anything of monetary value, service, consideration, trade, barter, exchange, accommodation, or other compensation, whether agreed to, received, offered, solicited, promised, suggested, or expected by any party to a transaction.

"Prostitution" means an act, by any person, for a fee, of engaging in an act of lewdness, sexual intercourse, oral-genital contact or any touching of the sexual organs or other intimate parts of another person, clothed or unclothed, for the purpose of arousing or gratifying the sexual desire of either person or a third person.

"Public place" means:

(1) Any place to which the public is invited, including any private property into or upon which the public is admitted by easement or license;

(2) Any street, sidewalk, bridge, overpass, alley or alleyway, plaza, park, driveway, parking lot or transportation facility;

(3) The alcoves, doorways and entrance ways to any such places; or

(4) A motor vehicle in or on any such place.

(Ord. No. 6853, § 2, 11-15-23; Ord. 5846 § 1, 2006; Ord. 5271 § 1, 2000: Ord. 5098 § 1, 1998: Ord. 3948 § 1 (part), 1996: Ord. 2025 § 1 (part), 1979: Ord. 1784 § 1 (part), 1975: prior code § 6-1-17 (part))

10.36.020 Acts of prostitution or pandering.

(A) It is unlawful for anyone, other than a Peace Officer acting within the scope of his or her employment, to:

(1) Commit, engage in, institute, solicit, offer or agree to commit an act of prostitution;

(2) Attempt to commit, engage in, or institute an act of prostitution; or

(3) Intentionally facilitate, allow, permit, encourage, procure, negotiate or provide a fee for an act of prostitution.

(B) It is unlawful for anyone, other than a Peace Officer acting within the scope of his or her employment, to:

(1) Secure or offer to secure another person for the purpose of committing a violation of Subsection (A) of this Section;

(2) Knowingly transport, offer to transport, or seek transport for a person into or within the City for the purpose of committing a violation of Subsection (A) of this Section, or to procure or pay for transportation for that purpose;

(3) Knowingly receive, offer or agree to receive another into any motor vehicle, place or building for the purpose of committing a violation of Subsection (A) of this Section;

(4) Direct another to any motor vehicle or place for the purpose of committing a violation of Subsection (A) of this Section;

(5) Attempt to detect the presence or identity of a Police Officer, Peace Officer, or other law enforcement officer for the purpose of attempting to avoid or escape criminal liability for violating, or attempting to violate this Chapter, by:

(a) Exposing or touching or seeking to expose or touch an intimate body part of another or one's self, or asking, soliciting, encouraging or attempting to procure another to do the same; or

(b) Inquiring, in any manner, as to whether another person is a Peace Officer, Police Officer, or other law enforcement officer;

(6) Possess or acquire a prescription or non-prescription controlled substance for the purposes of facilitating a violation of this Chapter or a benefit therefrom, including acquiring or possessing such substance to:

(a) Complete a barter, trade or exchange;

(b) Enhance sexual performance or sexual gratification; or

(c) Incapacitate another so as to steal a thing of value from such other person; or

(7) Knowingly, in any other way, aid, abet or participate in an act of prostitution or pandering.

(C) It is not a defense to a charge of offering or agreeing to an act of prostitution that there was an absence of an intent to institute, commit, engage in, procure, facilitate or carry through with an act of prostitution.
(Ord. 5846 § 3 (part), 2006)

10.36.030 Loitering for prostitution.

It is unlawful for anyone, other than a Peace Officer acting within the scope of his or her employment, to:

(A) Remain or wander about in a public place and repeatedly beckon to, or repeatedly stop, or repeatedly attempt to stop, or repeatedly attempt to engage passers-by in conversation, or repeatedly stop or attempt to stop motor vehicles, or repeatedly interfere with the free passage of other persons, for the purpose of committing a violation of Section 10.36.020; or

(B) Remain or wander about in or upon private property after having been warned against trespassing on such property and repeatedly beckon to, or repeatedly stop, or repeatedly attempt to stop, or repeatedly attempt to engage passers-by in conversation, or repeatedly stop or attempt to stop motor vehicles, or repeatedly interfere with the free passage of other persons, for the purpose of committing a violation of Section 10.36.020.
(Ord. 5846 § 3 (part), 2006)

10.36.040 Room register of lodging places.

(A) Every person within the limits of the City, who keeps, maintains or controls any hotel, roominghouse or lodginghouse, shall provide, keep and maintain a public register, and shall require every person who rents or occupies a room in such hotel, roominghouse or lodginghouse to write in such register his name and place of residence. Such registration shall be made on a page of the register properly dated with reference to the day of the year, month and week, and the time of day the person rents or arranges to occupy a room shall also be entered.

(B) Such hotel, roominghouse, or lodginghouse register so kept shall be open to the public at any and all reasonable hours, and the pages thereof shall, upon demand, be open for inspection or investigation by any member of the Police Force or other Peace Officer of the City, immediately upon demand having been made by any such member of the Police Force or other Peace Officer.
(Ord. 3948 § 1 (part), 1996: Ord. 2025 § 1 (part), 1979: Ord. 1784 § 1 (part), 1975: Ord. 855 § 1 (part), 1960: Ord. 194 §§ 4, 5, 1932 prior code § 6-1-17 (part))

10.36.050 Violation—Penalty.

Any person violating any of the provisions of this Chapter shall be guilty of a misdemeanor and for more than one violation in any three-year period shall be punished as follows:

(A) For a second violation within a three-year period, by imprisonment for not less than thirty days and by a fine of not less than two hundred fifty dollars;

(B) For any violation subsequent to the second violation within a three-year period, by imprisonment for not less than six months and by a fine of not less than two hundred fifty dollars.

(Ord. No. 6853, § 3, 11-15-23; Ord. 5098 § 2, 1998: Ord. 3948 § 1 (part), 1996: Ord. 2025 § 1 (part), 1979: Ord. 1784 § 1 (part), 1975: Ord. 855 § 1 (part), 1960: Ord. 194 § 6, 1932: prior code § 6-1-17 (part))

CHAPTER 10.38 SPITTING

10.38.010 Spitting prohibited.

Spitting upon the floor, platform, sides or steps of any railroad or railway station, or railroad car, or upon the floor of any public conveyance, or upon the floor, platform, steps or walls of any public building, hall, church, theater, market, post office, assembly room, elevator in public or private building, or upon any public sidewalk, or upon any walk in any park or public place, is prohibited.

(Ord. 99 § 1, 1923: prior code § 6-1-33 (part))

10.38.020 Violation—Penalty.

Any person who shall violate any of the provisions of this Chapter shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than five dollars nor more than twenty-five dollars, or imprisoned in the City Jail until such fine is paid at the rate of not exceeding one day for each two dollars of such fine in case such fine is not paid, or by imprisonment in the City Jail not exceeding thirty days, or by both such fine and imprisonment.

(Ord. 99 § 2, 1923: prior code § 6-1-33 (part))

CHAPTER 10.40 INDECENT AND IMMORAL BEHAVIOR*

10.40.010 Movie theater advertising—Saloons or houses of ill fame.

It shall be unlawful for any owner, manager, lessee or anyone having charge of or conducting a moving picture show in the City to show, display, project or exhibit, within a showhouse or place of business frequented by the public, upon a curtain, canvas or other

*__Cross reference—__For provisions on live sex acts and obscene materials, see Ch. 10.42 of this Code.

object, by means of a moving picture machine or similar contrivance, or to allow to be shown, displayed, projected or exhibited within a showhouse or place of business frequented by the public upon a curtain, canvas or other object by means of a moving picture machine or similar contrivance, and by means of slides, films or similar device, any picture, sign, announcement or advertisement relating to or advertising any saloon, saloon business, or house of ill fame, situated or conducted within the City.
(Ord. 28 § 1, 1912: prior code § 6-1-1 (part))

10.40.020 Movie theater advertising—Penalty for violation.

Any person who violates or wilfully fails to comply with any of the provisions of Section 10.40.010 shall be punished by a fine of not less than ten dollars nor more than fifty dollars for each offense, or by imprisonment in the City Jail until such fine is paid, not exceeding one day for each two dollars of such fine. In case such fine is not paid, and upon complaint and proof that any owner, manager, lessee or anyone having charge of or conducting any such place described in Section 10.40.010 repeatedly violates Section 10.40.010 or any of the provisions thereof, the license for such place of business may be revoked by the Board of Commissioners.
(Ord. 28 § 2, 1912: prior code § 6-1-1 (part))

10.40.030 Profane, vile or obscene language.

The use of profane, vile or obscene language or words upon the public streets, alleys, or highway of the City is prohibited.
(Ord. 6 § 1, 1911: prior code § 6-1-28)

10.40.040 Urination or defecation in certain places.

(A) For purposes of this Section:

(1) "Appropriate sanitary facility" means a urinal, toilet, commode or other facility that accommodates or is designed for the sanitary disposal of human bodily fluids or waste and that is enclosed from public view.

(2) "Public place" means any walkway, street, highway, sidewalk, bridge, overpass, alley or alleyway, plaza, park, driveway, transportation facility, park, recreational area, parking lot, vacant or undeveloped lot or the stairwells, alcoves, doorways and entrance ways to such places.

(3) "Verified medical condition" does not include alcoholism or the excessive consumption of alcohol.

(B) Any person who urinates or defecates in, on or about any of the following places, other than in an appropriate sanitary facility, is guilty of a misdemeanor:

(1) Any public place;

(2) Any private property into or upon which the public is admitted by easement or license; or

(3) Any private property without the consent of the owner.

(C) It is an affirmative defense to an offense described in Subsection (B) of this Section that such person then suffered from a verified medical condition which necessitated or caused such action.

(D) It is unlawful for any person who has urinated or defecated in, on or about any public place, other than in an appropriate sanitary facility, to fail to clean or remove the material deposited, or to fail to dispose of the material used in the cleaning or removal process in

container designed for such disposal as required under Title 9. Such action must be taken immediately or as is otherwise immediately practicable under the attendant circumstances.
(Ord. 5858 § 2, 2006: Ord. 5847 § 2, 2006)

10.40.050 Lewd exposure.

Every person who wilfully and lewdly either exposes his person or the private parts thereof in any public place, or in any place where there are present other persons to be offended or annoyed thereby; or procures, counsels or assists any person to expose himself, or to take part in or make any exhibition of himself to public view, or to the view of any number of persons, such as is offensive to decency, or is adapted to excite vicious or lewd thoughts or acts, is guilty of a misdemeanor.
(Ord. 178 § 5, 1931: prior code § 6-1-20)

10.40.060 Stud horses and jackasses.

If any person shall exhibit a stud horse or jackass in any of the streets of the City, or put any mare or jenny to a stud or jack within the limits of the City, except as such places as shall be approved by the City Manager, he shall be guilty of a misdemeanor.
(1949 code Ch. 21 § 50: prior code § 6-1-35)

CHAPTER 10.42 OBSCENE MATERIALS*

Article I. Prohibitions

10.42.010 Definitions.

As used in this Article, the words set out in this Section mean as follows:

(A) "Knowingly" means having general knowledge of, or reason to know, or a belief or ground for belief which warrants further inspection or inquiry of the character and content of any material described in this Article.

(B) "Material" means any book, magazine, leaflet, pamphlet, newspaper, or other printed or written material or any picture, drawing, photograph, film, negative, motion picture or other pictorial representation or any statue or other figure, or any recording, transcription or mechanical, chemical or electrical reproduction or any other articles, equipment, machines or materials.

(C) "Obscene" means any material which:

(1) The average person, applying contemporary community standards would find that the work, taken as a whole, appeals to the prurient interest in sex; and

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***Cross reference—**For provisions on materials harmful to minors, see Ch. 10.64 of this Code.

(2) The work depicts or describes patently offensive representations or descriptions of ultimate sex acts, normal or perverted, actual or simulated, or patently offensive representations or descriptions of masturbation, excretory functions or lewd exhibition of the genitals or genital area; and

(3) The work taken as a whole lacks serious literary, artistic, political, or scientific value.

(D) "Promote" means to produce, direct, perform in, manufacture, issue, sell, give, provide, lend, mail, deliver, transfer, publish, distribute, circulate, disseminate, present, exhibit, or advertise or offer to agree to do any of these things.
(Ord. 1652 § 2, 1973: Ord. 1641 § 1, 1973: Ord. 1381 § 2, 1969: Ord. 1162 § 2 (part), 1964: prior code § 6-11-1)

10.42.020 Promotion.

(A) It shall be unlawful for any person within the City to promote any obscene material.

(B) Any person who violates any of the provisions of this Section or fails or refuses to comply with the provisions hereof, shall be punished by a fine of not less than one hundred dollars nor more than the maximum fine allowed by law for the commission of a misdemeanor or by imprisonment in the City Jail for not more than six months, or any combination of such fine and imprisonment. Every day of such violation shall constitute a separate offense.

(C) Upon notification that any person has violated this Section or any Federal law or statute of the State which relates to the exhibition, sale, distribution or transportation of obscene materials, the Board of Commissioners may suspend the license of such person to operate the business in connection with which such conviction was obtained for a period of not less than five days nor more than sixty days or may institute other appropriate disciplinary action against such person in accordance with Section 6.02.330 et seq.
(Ord. 2228 § 3, 1981: Ord. 1639 § 1 (part), 1973: Ord. 1162 § 2 (part), 1964: prior code § 6-11-2)

10.42.030 Exhibition of motion pictures, slides or exhibits.

(A) It shall be unlawful for any person who operates a business in the City, and for any employee, including but not limited to a ticket seller, ticket taker, usher, motion picture machine operator, or any other person, or any independent contractor or agent, connected with or employed by such person, to exhibit or show, or to aid or assist in the exhibition of, any obscene motion picture, slide or exhibit in the City.

(B) Any person who violates any of the provisions of this Section or fails to comply with the provisions hereof shall be punished by a fine of not less than one hundred dollars nor more than the maximum fine allowed by law for the commission of a misdemeanor or by imprisonment in the City Jail for not more than six months, or any combination of such fine and imprisonment. Every day of such violation shall constitute a separate offense.

(C) Upon notification that any person has violated this Section or any Federal law or statute of the State which relates to the exhibition, sale, distribution or transportation of obscene materials, the Board of Commissioners may suspend the license of such person to operate a movie theater within the City for a period of not less than five days nor more than sixty days or may institute other appropriate disciplinary action against such person in accordance with Section 6.02.330 et seq.
(Ord. 2228 § 4, 1981: Ord. 1639 § 1 (part), 1973: Ord. 1162 § 2 (part), 1964: prior code § 6-11-3)

10.42.040 Requiring acceptance by businesses.

Every person who, knowingly, as a condition to a sale, allocation, consignment, or delivery for resale of any paper, magazine, book, periodical, publication or other merchandise, requires that the purchaser or consignee receive any obscene matter or who denies or threatens to deny a franchise, revokes or threatens to revoke, or imposes any penalty, financial or otherwise, by reason of the failure of any person to accept obscene matter, or by reason of the return of such obscene matter, is guilty of a misdemeanor.
(Ord. 1162 § 2 (part), 1964: prior code § 6-11-4)

10.42.050 Placing in public view.

Every person who shall place, mark, post, draw or cause to be placed, posted, marked or drawn upon any fence, billboard, building, door, wall, pavement, or other surface exposed to public view, any obscene, indecent, offensive or profane word, writing, picture, representation or drawing, is guilty of a misdemeanor.
(Ord. 1162 § 2 (part), 1964: prior code § 6-11-6)

10.42.060 Live sex acts.

It shall be unlawful to engage in any live sex act, including but not limited to sexual intercourse, oral copulation, or sodomy, or any said sex act by implication or simulation before an audience, whether it be between a male and female, male and male, female and female, human being and an animal, or through the means of using an artificial device to simulate any sexual act of any kind whatsoever.
(Ord. 1625 § 1, 1973: prior code § 6-11-12)

10.42.070 Destruction by court order.

Upon the conviction of the accused, the court may, when the conviction becomes final, order any matter or advertisement, in respect whereof the accused stands convicted, and which remains in the possession or under the control of the City Attorney, or any law enforcement agency, to be destroyed, and the court may cause to be destroyed any such material in its possession or under its control.
(Ord. 1162 § 2 (part), 1964: prior code § 6-11-5)

Article II. Nuisance Abatement

10.42.080 Definitions.

As used in this Article, the following terms shall have the meanings set forth in this Section:

(A) "Item" includes any book, magazine, leaflet, pamphlet, booklet, newspaper, or other printed or written material; or any picture, drawing, photograph, film, negative, slide, motion picture or other pictorial representation; or any statue or other figure, object, article or novelty device; or any recording, transcription or mechanical, chemical or electrical reproduction; or any other articles, equipment, machines or materials.

(B) "Knowingly" means having general knowledge of, or reason to know, or a belief or ground for belief which warrants further inspection or inquiry of the character and content of any material described in this Article.

(C) "Obscene" means any material which the average person, applying contemporary community standards would find that the work, taken as a whole, appeals to the prurient interest in sex, and the work depicts or describes patently offensive representations or descriptions of ultimate sex acts, normal or perverted, actual or simulated, or patently offensive representations or descriptions of masturbation, excretory functions or lewd exhibition of the genitals or genital area, and the work taken as a whole lacks serious literary, artistic, political, or scientific value.
(Ord. 1640 § 1 (part), 1973: prior code § 6-12-1)

10.42.090 Nuisance designated.

Any person, firm, association or corporation who or which knowingly prints, copies, manufactures, prepares, produces, reproduces, publishes, sells, rents, leases, loans or in any other manner distributes, for a monetary consideration, or exhibits or has in his possession with intent to sell, rent, lease, loan or in any other manner distribute, for a monetary consideration, or acquires with intent to sell, rent, lease, loan or in any other manner distribute, for a monetary consideration, any book, magazine, pamphlet, comic book, story paper, writing, paper, picture, drawing, photograph, figure image, or any written or printed matter of an obscene character, or which is or contains an article or instrument of obscene use or purpose, or purports to be for an obscene use or purpose, or in any other respect defined in Section 10.42.080 shall be guilty of maintaining a nuisance.
(Ord. 1640 § 1 (part), 1973: prior code § 6-12-2)

10.42.100 Action upon nuisance finding.

Upon a specific finding by the Board of Commissioners that any person, firm, association or corporation is conducting his or its business in violation of Section 10.42.090, the Board shall refer the matter to the City Attorney who shall, without further directions from the Board, take whatever action against such person, firm or corporation as he shall see fit, including but

not limited to the filing of appropriate proceedings for the abatement of such nuisances in any court of competent jurisdiction.
(Ord. 1640 § 1 (part), 1973: prior code § 6-12-3)

10.42.110 Violation—Penalty.

Any person, firm or corporation who violates any of the provisions of this Article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than one hundred dollars nor more than the maximum fine allowed by law for the commission of a misdemeanor or by imprisonment in the City Jail for not to exceed six months, or any combination of such fine and imprisonment. Every day of such violation shall constitute a separate offense.
(Ord. 2228 § 5, 1981: Ord. 1640 § 1 (part), 1973: prior code § 6-12-4)

DIVISION V. OFFENSES AGAINST PUBLIC PEACE

CHAPTER 10.44 SOLICITATION

10.44.010 Definitions.

For purposes of this Chapter:

(A) "Solicitation" means the act of solicitation, including asking, begging, soliciting or pleading, for the purpose of obtaining money, charity, business or patronage, or gifts of items of value for oneself or another person or organization.

(B) "Coercion" means to wilfully and knowingly:

(1) Act in a manner that would give a reasonable person the belief that the person is being threatened with:

(a) Imminent bodily injury, or

(b) The commission of a crime;

(2) Persist in a solicitation after the person solicited has refused a solicitation and indicated a desire to be left alone; or

(3) Engage a solicited person in a manner that would reasonably be construed as intended to compel or force the person to accede to demands.
(Ord. No. 6131, § 1, 2-2-11; Ord. 5896 § 2 (part), 2007; Ord. 5865 § 1 (part), 2006)

10.44.020 Solicitation, by coercion—Misdemeanor.

Any individual who personally commits solicitation by coercion shall be guilty of a misdemeanor.
(Ord. 5896 § 2 (part), 2007; Ord. 5865 § 1 (part), 2006)

10.44.030 Solicitation at certain locations—Misdemeanor.

Any individual who personally engages in solicitation at any of the following places shall be guilty of a misdemeanor:

(A) At any bus, taxi, limousine, trolley or train stop;

(B) In any public transportation vehicle or facility;

(C) At any enclosed parking structure;

(D) Within twenty feet of an Automatic Teller Machine (ATM); or

(E) Within ten feet of a point of entry to or exit from any building open to the public, including commercial establishments.

(Ord. 5896 § 2 (part), 2007; Ord. 5865 § 1 (part), 2006)

10.44.040 On private property.

If property is owned or controlled by a private owner or operator, nothing in this Chapter shall be construed as applying to the conduct or activity of a person on said property with the permission of the owner or operator of the property.

(Ord. 5896 § 2 (part), 2007; Ord. 5865 § 1 (part), 2006)

CHAPTER 10.45 CONDUCT AT ATHLETIC EVENTS

10.45.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the words and terms which are defined in this Section have the meanings which are ascribed to them herein, as follows:

(A) "Athletic event" means any sporting event between competing teams or individuals which is held in a public place and to which the public is invited.

(B) "Attendee" means any person who is presented at an athletic event as a spectator and whose presence is occasioned by either purchasing a ticket for admission to the athletic event or who has been admitted without charge.

(Ord. 3043 § 2, 1983)

10.45.020 Prohibited conduct.

It is unlawful for an attendee of an athletic event which is held within the City to engage in any of the following acts:

(A) Interfere with, disrupt or interrupt the athletic event;

(B) Throw any article, including, without limitation, missiles, rocks, bottles, cups, drinking glasses, drinking receptacles and ice, at any of the participants in or officials of the athletic event, or into the area in which the participants and officials are conducting the athletic event;

(C) Discharge any firework or firecracker on the premises of the athletic event;

(D) Enter upon the area in which the participants and officials are conducting the athletic event, when the event is in progress;

(E) Engage in any physical altercation with any of the participants, officials or other attendees during the progress of the athletic event or immediately after the conclusion of the event;

(F) Injure or destroy any property which belongs to the facility in which the athletic event is held;

(G) Bring any alcoholic or other beverage, or glass bottles or metal can containers, into the premises, excluding the parking areas, in which the athletic event is held.

(Ord. 3043 § 3, 1983)

10.46.010 Unlawful assembly—Conspiracy.

Any three or more persons who shall assemble within the City with the intent to do any unlawful act, or, being assembled, shall mutually agree to do any unlawful act, with force or violence, against the property of the City, or the personal property of another, or against the peace or to the terror of others shall make any movement or preparation therefor shall be deemed guilty of a misdemeanor.

(1949 code Ch. 21 § 52: prior code § 6-1-38)

CHAPTER 10.47 PEDESTRIAN OR VEHICULAR INTERFERENCE

10.47.010 Definitions.

The following definitions apply in this Chapter:

(A) "Area open and available for pedestrian or vehicular travel" means an area generally visible to public view and includes alleys, bridges, buildings, driveways, parking lots, parks, pedestrian mall, plazas, sidewalks and streets open to the general public, including those that serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

(B) "Obstruct pedestrian or vehicular traffic" means to walk, stand, lie or place an object in such a manner as to block, obstruct, hinder, delay, hamper or interfere with passage by another person or a vehicle, or to require another person or a driver of a vehicle to take evasive action to avoid physical contact.

(1) Any conduct "arguably protected" by the National Labor Relations Act is not included in this definition until or unless such conduct is determined to be unprotected pursuant to a decision of the National Labor Relations Board. "Arguably protected" as used in this Section has the same meaning as in *San Diego Building and Trades Council v. Garmon,* 359 U.S. 236, 79 S.Ct. 773 (1959).

(Ord. 3863 § 2 (part), 1995)

10.47.020 Intentional obstruction.

It is unlawful to intentionally obstruct pedestrian or vehicular traffic in an area open and available for pedestrian or vehicular traffic.
(Ord. 3863 § 2 (part), 1995)

DIVISION VI. OFFENSES AGAINST PROPERTY

CHAPTER 10.48 DEFACEMENT OR DESTRUCTION

10.48.010 Structures.

It shall be unlawful for any person to cut, break or otherwise destroy, deface or injure any house, building, fence, barn, stable, garage or other structure without permission of the owner thereof. Any person violating the provisions of this Section shall be guilty of a misdemeanor.
(1949 Code Ch. 21 § 11: prior code § 6-1-8)

10.48.020 Public property.

It shall be unlawful for any person to injure, deface or destroy any public property within the City. Any person violating the provisions of this Section shall be guilty of a misdemeanor.
(1949 Code Ch. 21 § 12: prior code § 6-1-9)

10.48.023 Attaching items to objects on public sidewalks/rights-of-way.

(A) Except as otherwise provided in Subsection (B), it is unlawful to attach, affix or connect to any tree located on a public sidewalk or within public right-of-way, or to any structural component associated with such a tree, any rope, cord or similar item or device for the purpose of providing:

(1) Support for a shelter or other similar structure or facility; or

(2) A means of hanging clothing or other personal items.

(B) The provisions of Subsection (A) do not apply to any action that is:

(1) Authorized by a permit or other written approval issued by the Department of Public Works; or

(2) Taken by or on behalf of a government agency.

(C) A law enforcement officer or an officer or employee of the City assigned to the enforcement or implementation of City ordinances may remove any item affixed in violation of Subsection (A). Subject to the provisions of Subsection (D), the officer or employee may dispose of the item as he or she sees fit.

(D) The officer or employee shall return any item removed pursuant to this Section, along with any personal property being supported or used in connection therewith, to its owner if the owner is known and can reasonably be located.
(Ord. No. 6695, § 1, 7-17-19)

10.48.025 Attaching items to objects on public sidewalks/rights-of-way—Utilities/traffic programs.

(A) Except as otherwise provided in Subsection (B), it is unlawful to attach, affix or connect to any pole or other structure that is located on a sidewalk or within public right-of-way and that is part of a utility system or a traffic control or management system any rope, cord or similar item or device for the purpose of providing:

(1) Support for a shelter or other similar structure or facility; or

(2) A means of hanging clothing or other personal items.

(B) The provisions of Subsection (A) do not apply to any action that is:

(1) Authorized by a permit or other written approval issued by the Department of Public Works; or

(2) Taken by or on behalf of a government agency.

(C) A law enforcement officer or an officer or employee of the City assigned to the enforcement or implementation of City ordinances may remove any item affixed in violation of Subsection (A). Subject to the provisions of Subsection (D), the officer or employee may dispose of the item as he or she sees fit.

(D) The officer or employee shall return any item removed pursuant to this Section, along with any personal property being supported or used in connection therewith, to its owner if the owner is known and can reasonably be located.
(Ord. No. 6695, § 1, 7-17-19)

10.48.027 Attaching items to objects on public sidewalks/rights-of-way—Maintenance programs.

(A) Except as otherwise provided in Subsection (B), it is unlawful to attach, affix or connect to any structure or amenity that is located on a sidewalk or within public right-of-way and that is part of a sidewalk or right-of-way maintenance program (such as a trash receptacle) any rope, cord or similar item or device for the purpose of providing:

(1) Support for a shelter or other similar structure or facility; or

(2) A means of hanging clothing or other personal items.

(B) The provisions of Subsection (A) do not apply to any action that is:

(1) Authorized by a permit or other written approval issued by the Department of Public Works; or

(2) Taken by or on behalf of a government agency.

(C) A law enforcement officer or an officer or employee of the City assigned to the enforcement or implementation of City ordinances may remove any item affixed in violation of Subsection (A). Subject to the provisions of Subsection (D), the officer or employee may dispose of the item as he or she sees fit.

(D) The officer or employee shall return any item removed pursuant to this Section, along with any personal property being supported or used in connection therewith, to its owner if the owner is known and can reasonably be located.
(Ord. No. 6695, § 1, 7-17-19)

10.48.029 Attaching items to objects on public sidewalks/rights-of-way—Support.

(A) It is unlawful to attach or affix to any fence or wall that abuts or is adjacent to a public sidewalk or other public right-of-way any rope, cord or similar item or device for the purpose of providing:

(1) Support for a shelter or other similar structure or facility that will encroach upon or hang over the public sidewalk or public right-of-way; or

(2) A means of hanging clothing or other personal items that will encroach upon or hang over the public sidewalk or public right-of-way.

(B) A law enforcement officer or an officer or employee of the City assigned to the enforcement or implementation of City ordinances may remove any item affixed in violation of Subsection (A). Subject to the provisions of Subsection (C), the officer or employee may dispose of the item as he or she sees fit.

(C) The officer or employee shall return any item removed pursuant to this Section, along with any personal property being supported or used in connection therewith, to its owner if the owner is known and can reasonably be located.
(Ord. No. 6695, § 1, 7-17-19)

10.48.030 Trees, shrubs and plants.

It shall be unlawful for any person to cut, root up or otherwise injure or destroy any tree, shrub, plant or other growing thing without permission of the owner thereof. Any person violating the provisions of this Section shall be guilty of a misdemeanor.
(1949 Code Ch. 21 § 13: prior code § 6-1-10)

10.48.040 Throwing missiles.

Any person who is detected throwing stones or other missiles likely to cause breakage of windows or glass or other destruction of property in the City shall be deemed guilty of a misdemeanor.
(1949 Code Ch. 21 § 52: prior code § 6-1-37)

10.48.050 Graffiti—Legislative determination.

The City Council hereby declares as a matter of legislative determination that:

(A) The increasing incidents of the defacement of public and private property through the application of graffiti upon walls, rocks, bridges, buildings, fences, gates, other structures, trees and other real and personal property within the corporate boundaries of the City constitutes a blight on this community, and, in the interests of the health, safety and general welfare of the residents and taxpayers of the City, immediate steps must be taken to remove this blight.

(B) Based upon reports which the City Council has received, such defacement of property is most often committed by persons under the age of eighteen years using aerosol containers of spray paint and broad tipped indelible markers.

(C) When any such person has a legitimate need for such aerosol containers and markers, the same may be furnished by a parent or guardian.

(D) Such aerosol containers and markers are frequently stolen from retail stores by such persons.

(E) The sale of such aerosol containers and markers to such persons should therefore be prohibited, and persons who are engaged in the retail sale of such aerosol containers and markers should be required to take reasonable steps to prevent the theft of such aerosol containers and markers.

(F) When appropriate, the court should require those who commit acts of defacement of public or private property through the application of graffiti to restore the property so defaced, damaged or destroyed.

(G) Obtaining convictions for the application of graffiti is difficult due to the fact that the offense can be committed so very quickly and secretively that witnesses to the act are frequently nonexistent.

(H) The public should be encouraged, through the promise of a reward, to cooperate in the elimination of graffiti by reporting to the proper authorities the incidents of the application of graffiti which the members thereof observe.
(Ord. 3177 § 2, 1985)

10.48.060 Graffiti—Definitions.

Except as is otherwise required by the context, as used in Sections 10.48.050 through 10.48.110 the following words and terms shall have the meanings ascribed to them as follows:

(A) "Broad tipped indelible marker" means any felt tipped marker or similar implement which contains a fluid which is not soluble in water and has a flat or angled writing surface of a width of one-half inch or greater.

(B) "Graffiti" means any unauthorized inscription, insignia, symbol, word, figure, character or design that is marked, etched, scratched, drawn, sprayed or painted on a building, fence, wall, rock, bridge, gate, tree or landscaping, or other structure.

(C) "Graffiti implement" means any broad tipped indelible marker or aerosol paint container or other item that may be used to propel or apply fluid that is not soluble in water.

(D) "Minor" means a person under eighteen years of age.

(E) "Responsible adult" means a parent or legal guardian of a minor.
(Ord. 6005 § 1, 2008: Ord. 3861 § 1, 1995: Ord. 3177 § 3, 1985)

10.48.070 Graffiti—Prohibited.

It is unlawful for any persons to apply graffiti to any building, fence, wall, rock, bridge, gate, tree or landscaping, or other structure, either publicly or privately owned, without the permission of the owner or operator of such property.
(Ord. 3861 § 2, 1995: Ord. 3177 § 4, 1985)

10.48.080 Graffiti implements—Restriction on sale.

No person who owns, conducts, operates or manages a retail commercial establishment which offers for sale or sells graffiti implements, shall cause such graffiti implements to be stored, except in an area which may be viewable by, but which is not accessible to, members of the public without employee assistance.
(Ord. 3861 § 4, 1995)

10.48.090 Graffiti implements—Prohibition against furnishing to minors.

No person, other than a responsible adult, shall sell, exchange, give, loan, or in any way furnish a graffiti implement to any minor without the consent of the minor's responsible adult.
(Ord. 3861 § 5, 1995)

10.48.095 Graffiti implements—Prohibition against possession by minors.

No minor shall have in his possession a graffiti implement without the permission or consent of the minor's responsible adult.
(Ord. 3861 § 6, 1995)

10.48.097 Graffiti implements—Intent.

Any person who carries on his person, while on public property, a graffiti implement with the intent to:

(A) Place graffiti on public or private property, real or personal, of another;

(B) Aid in the placement of such graffiti; or

(C) Otherwise vandalize or deface such property, is guilty of a misdemeanor unless he has first received valid authorization from the governmental entity which has jurisdiction over the public area or other person who is designated to provide such authorization.
(Ord. 6005 § 2, 2008)

10.48.100 Graffiti—Violation—Penalty.

(A) Except as otherwise provided in this Section, any person who is convicted of violating the provisions of this Chapter shall be punished by a fine of not less than five hundred dollars nor more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment.

(B) A person who violates Section 10.48.070 shall, in addition to any other fine or penalty imposed:

(1) For the first offense, pay a fine of not less than four hundred dollars but not more than one thousand dollars, and perform one hundred hours of community service.

(2) For the second offense, pay a fine of not less than seven hundred fifty dollars but not more than one thousand dollars, and perform two hundred hours of community service.

(3) For the third and each subsequent offense, pay a fine of one thousand dollars and perform two hundred hours of community service.

The community service assigned pursuant to this Subsection must, if possible, be related to the abatement of graffiti.

(C) In addition to such punishment, the court may, in imposing sentence, order the defendant to restore the property so defaced, damaged or destroyed.

(D) The parent or legal guardian of a person under the age of eighteen years who violates Section 10.48.070 is liable for all fines and penalties imposed against the person. If the parent or legal guardian is unable to pay the fine and penalties resulting from a violation because of financial hardship, the court may require the parent or legal guardian to perform community service.

(E) If a person who is eighteen years of age or older is found guilty of violating Section 10.48.070, the court shall, in addition to any other penalty imposed, issue an order suspending the driver's license of the person for not less than six months but not more than two years. The court shall require the person to surrender all driver's licenses then held by the person. If the person does not possess a driver's license, the court shall issue an order prohibiting the person from applying for a driver's license for not less than six months but not more than two years. The court shall, within five days after issuing the order, forward to the Department of Motor Vehicles any licenses together with a copy of the order.

(F) A criminal penalty imposed pursuant to this section is in addition to any civil penalty or other remedy available pursuant to another ordinance or statute for the same conduct. (Ord. 6005 § 3, 2008: Ord. 3861 § 7, 1995: Ord. 3177 § 7, 1985)

10.48.105 Minimum community service requirements for contributory delinquency/neglect—Graffiti or property damage.

(A) In the case of a violation of NRS 201.110 where the act or omission:

(1) Is the proximate cause of unlawful graffiti or property damage;

(2) Fails to abate, prohibit or avoid unlawful graffiti or property damage; or

(3) Fails to protect any property from such unlawful graffiti or property damage, the offender's punishment shall include restitution for any property damage, community service of one hundred hours, or both. This punishment shall be in addition to any

other punishment for a misdemeanor that is deemed appropriate and is within the municipal court's authority, but the aggregate punishment may not exceed that permissible for a misdemeanor.

(B) The requirement for community service in Subsection (A) is satisfied where:

(1) A parent or legal guardian is the person convicted of a violation of Subsection (A);

(2) The minor for whom the parent or legal guardian is responsible has been ordered by a court of competent jurisdiction to perform community service; and

(3) The parent or legal guardian has been present during every hour of the minor's performance of community service.
(Ord. 6005 § 4, 2008: Ord. 5867 § 1, 2006)

10.48.110 Graffiti—Reward for information leading to arrest of perpetrator.

(A) The City will pay to any person who provides information which leads to the arrest and conviction of any person who applies graffiti to any building, fence, wall, rock, bridge, gate, tree or landscaping, or other structure, a reward in the amount of two hundred fifty dollars.

(B) The reward shall be paid to the person who provides such information immediately upon the conviction of the person so arrested.
(Ord. 3861 § 8, 1995: Ord. 3177 § 8, 1985)

10.48.115 Graffiti—Responsible adult civil liability.

(A) Any person who is responsible for the unlawful application of graffiti under Section 10.48.070 is liable civilly to a property owner or other person who is damaged thereby.

(B) Any act of a minor which results in the unlawful placement of graffiti on a building, fence, wall, rock, bridge, gate, tree or landscaping, or other structure, shall be imputed to that minor's responsible adult for civil liability purposes including, but not limited to, civil damages and attorneys' fees incurred in connection with the civil prosecution of any such claim for damages. The responsible adult shall be jointly and severally liable with the minor for all civil damages and attorneys' fees. Such obligations shall be enforceable as a civil debt.

(C) This section in no way limits or narrows the liability of a responsible adult for acts of a minor pursuant to any other provision of law.
(Ord. 5029 § 1, 1997: Ord. 3861 § 9, 1995)

10.48.120 Graffiti—City victim.

In the event that graffiti is applied to any City property, or property facing and bordering any City street, road or alleyway, and such graffiti is removed, covered or cleaned up at City expense, the City then becomes the victim of graffiti and suffers damage for the purpose of prosecution or civil claim brought under this Chapter.
(Ord. 5029 § 2, 1998: Ord. 4068 § 1, 1997)

CHAPTER 10.50 SHOPPING CARTS

10.50.005 Definitions.

As used in this Chapter, the following terms shall have the meanings ascribed to them:

"Parking area" means a parking lot or other property provided by a retailer for use by a customer to park an automobile or other vehicle. The parking area shall also include the entire parking area used by a multi-store complex or shopping center wherein a retailer is located.

"Public property" includes, but is not limited to, all the area dedicated to or in public use or an easement granted for public street purposes, parks, alleys, sidewalks, flood control channels and other property owned or occupied by a governing entity.

"Shopping cart" means a basket or similar device which is mounted on wheels and which is generally used in retail or wholesale establishments for the purpose of a transporting goods of any kind. The term includes any constituent part of a shopping cart, as well as a shopping cart which is dismantled or not in working order.
(Ord. 5422 § 14, 2002)

10.50.010 Removal from premises.

No person shall remove from the immediate store building or parking area of any food store, market or other mercantile establishment in the City any shopping cart bearing a notification affixed thereto in a conspicuous place thereon to the effect that such cart is not to be removed from the owner's premises, unless such person is the owner or the owner's employee or agent, or unless such person is in possession of written authorization from the owner or authorized agent to remove the cart.
(Ord. 5422 § 15, 2002: Ord. 1279 § 1 (part), 1967: prior code § 6-1-25(A))

10.50.020 Abandonment.

No person shall abandon or leave any shopping cart which has been removed from the owner's premises upon any public or private property, except that of the owner of the shopping cart.
(Ord. 5422 § 16, 2002: Ord. 1279 § 1 (part), 1967: prior code § 6-1-25(B))

10.50.030 Retrieval—Violation—Regulations.

(A) It is unlawful for any person, whether for compensation or otherwise, to retrieve shopping carts from any area which is not on the premises of the owner of the shopping carts without first obtaining written authorization from the owner permitting him to retrieve the shopping carts. A copy of such authorization must be carried personally or in the vehicle of any person whenever that person is engaged in the retrieval of shopping carts.

(B) It is unlawful for the owner of a vehicle which is used to retrieve shopping carts to fail or refuse to surrender, upon demand to a peace officer, the copy of the authorization referred to in Subsection (A).
(Ord. 5422 § 17, 2002)

10.50.040 Responsibility of owner or manager of establishment.

It is unlawful for the owner or manager of a retail or wholesale establishment to knowingly allow patrons of the establishment to use on the premises of that establishment a shopping cart that is labeled with the mark of another establishment. The owner or manager of an establishment shall be presumed to have the requisite knowledge if five or more shopping carts labeled with the mark of another establishment are located on the premises of the owner's or manager's establishment and are made available for use by the patrons of that establishment. The provisions of this Section do not apply to any use of a shopping cart that has been authorized in writing by the owner of that shopping cart.
(Ord. 5422 § 18, 2002)

DIVISION VII. CONSUMER PROTECTION

CHAPTER 10.52 TICKETS

10.52.010 Definitions.

As used in this Chapter, the words set out in this Section shall mean as follows:

(A) "Owner" means any person, partnership, association or corporation, lessee, manager, trustee, or any of their employees, servants or agents, who own, rent, lease, control, manage or operate any place of entertainment where tickets are sold for admission thereto.

(B) "Place of entertainment" means any theater, stadium, auditorium, park or other place where games, contests, exhibitions, amusements or performances are conducted.

(C) "Ticket" means any evidence of the right of entry to a place of entertainment.
(Ord. 1796 § 1 (part), 1975: prior code § 6-14-1)

10.52.020 Printing price of admission.

Every person, partnership, association or corporation who owns, operates, rents, leases or controls a place of entertainment shall, if a price be charged for admission thereto, conspicuously print on the face of each ticket the price charged therefor by such person, partnership, association or corporation.
(Ord. 1796 § 1 (part), 1975: prior code § 6-14-2)

10.52.030 Sale for more than printed price.

It is unlawful for any person, partnership, association or corporation to sell tickets for admission to a place of entertainment, for a price greater than the price printed upon the face of the ticket and the price of said ticket shall correspond with and be equal to the same price displayed at the office of original distribution thereof and at the box office of or on the premises of such place of entertainment.
(Ord. 1796 § 1 (part), 1975: prior code § 6-14-3)

10.52.040 Sale away from ticket office.

It is unlawful for any owner to sell or knowingly permit the sale, barter or exchange of any such tickets at any place other than at the ticket office or on the premises of such place of entertainment; but nothing herein shall prevent such owner from distributing such tickets for sale elsewhere at a price no greater than that for which such tickets are sold by such owner at the box office or on the premises of such place of entertainment.
(Ord. 1796 § 1 (part), 1975: prior code § 6-14-4)

DIVISION VIII. OFFENSES BY OR AGAINST MINORS

CHAPTER 10.54 CURFEW

10.54.010 Hours designated.

(A) It shall be unlawful for any child under the age of eighteen years, without being on any lawful business or engaged in any lawful occupation, not accompanied by one of his parents or his guardian, or other adult person having legal care, custody and control of said child, to loiter, idle, wander or stroll or be upon, in or about any of the public streets, avenues, alleys or other public places in the City at any time between the hours of ten p.m., Sunday through Thursday and five a.m. of the succeeding day, and between the hours of twelve midnight on Friday and Saturday and five a.m. of the succeeding day; provided, however, the Sheriff of the Metropolitan Police Department or his designee shall be empowered to extend the curfew on special occasions to such hour as shall be designated by him.

(B) On all school holidays and during the days of summer vacation, said curfew shall be between the hours of twelve midnight and five a.m. for all citizens under the age of eighteen years.
(Ord. 1878 § 2, 1977: Ord. 1535 § 1, 1971: Ord. 1456 § 1, 1970: Ord. 1348 § 1, 1968: Ord. 1190 § 10, 1965: Ord. 553 § 1, 1953: Ord. 359 § 1, 1948: prior code § 6-8-6)

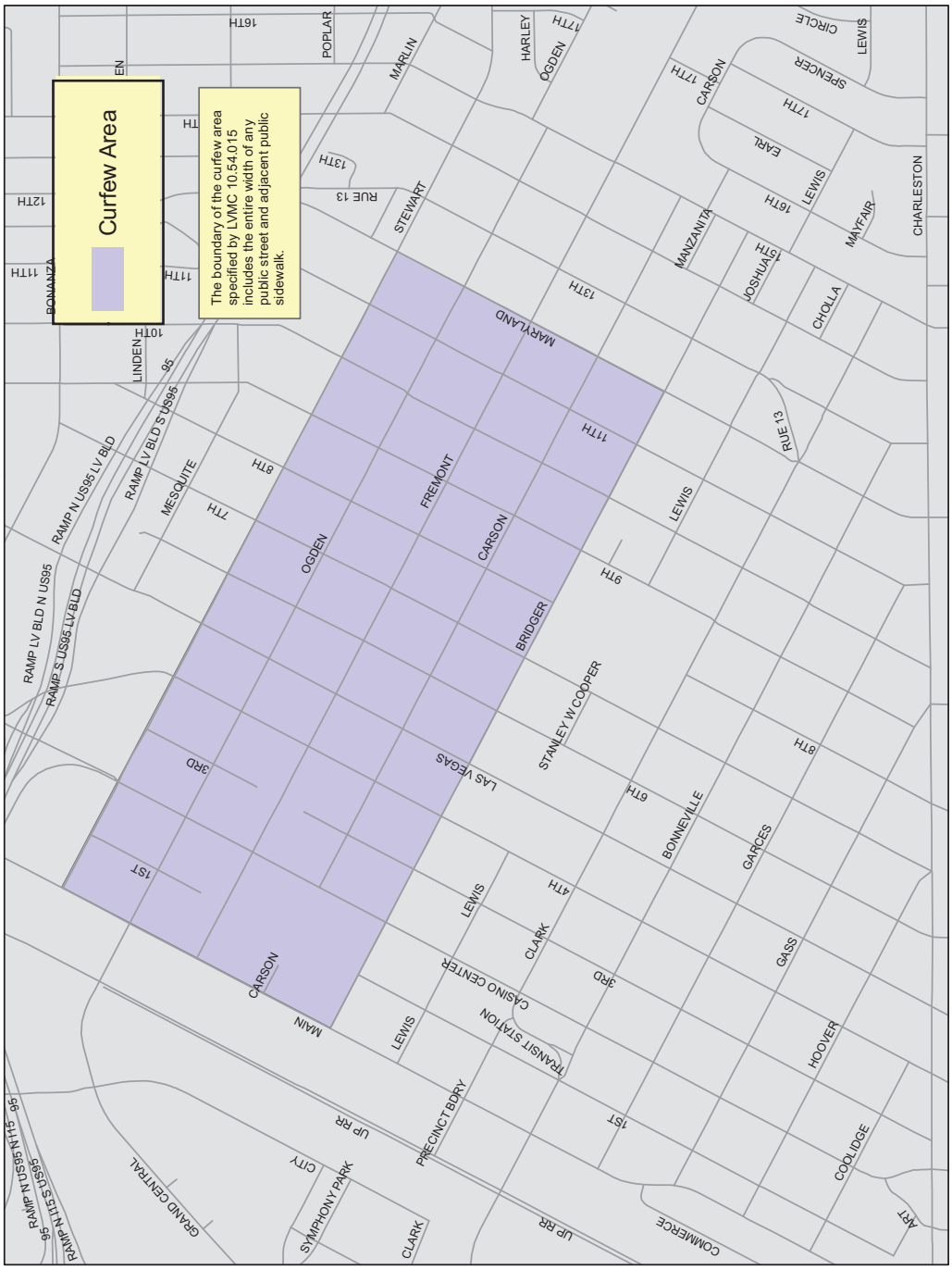
10.54.015 Specific curfew area—Special events.

(A) Notwithstanding the provisions of LVMC 10.54.010, it is unlawful for any child under the age of eighteen years to be in or upon the public streets or sidewalks, and all parking lots, driveways and walkways which are open to the public on properties located within the area as

depicted by the map attached to the ordinance codified in this Section,* between the hours of nine p.m. and five a.m. of the succeeding day, on Fridays, Saturdays, legal holidays and between the hours of nine p.m. on December 31 and five a.m. on January 1.

*__Editor's note—__The map referred appears just below.

(B) The specific curfew provided by this subsection does not apply to special events permitted pursuant to the provisions of LVMC Title 12, provided that the special event permit issued specifically indicates that LVMC 10.54.015 does not apply to such special event. Under such circumstance, the curfew provided by LVMC 10.54.010 will apply to such special event.



(Ord. No. 6277, § 1, 10-2-13)

10.54.020 Allowing or permitting violation.

It is unlawful for any parent, guardian or other person having legal care, custody or control of any child under the age of eighteen to allow or permit such child to be in or upon any place in violation of Sections 10.54.010 or 10.54.015 of this Chapter.
(Ord. No. 6277, § 2, 10-2-13; Ord. 1878 § 3, 1977: Ord. 1190 § 11, 1965: Ord. 553 § 2, 1953: Ord. 359 § 2, 1948: prior code § 6-8-7)

10.54.030 Enforcement.

Any peace officer finding or observing any child under the age of eighteen being on or upon any place in violation of Sections 10.54.010 or 10.54.015 of this Chapter may cite the child for such violation and release the child to the custody of his or her parent or legal guardian, release the child or take the child to Clark County Juvenile Justice Services.
(Ord. No. 6277, § 3, 10-2-13; Ord. 553 § 3, 1953: Ord. 359 § 3, 1948: prior code § 6-8-8)

10.54.035 Exceptions.

The following are valid exceptions to the operation of either curfew:

(A) If the child is accompanied by his or her parent, or other responsible person who is over the age of twenty-one and approved by the child's parent or legal guardian;

(B) If the child is legally employed, for the period from one-half hour before to one-half hour after work, while going directly between his or her home and place of employment. This exception shall also apply if the child is in a public place during curfew hours in the course of his or her employment. To come under this exception, the child must be carrying a written statement from the employer attesting to the place and hours of employment;

(C) If the child is coming directly home from a meeting or a place of public entertaining, such as a movie, play or sporting event, or from a school, social or religious activity. This exception will apply for one-half hour after the completion of such event, but in no case beyond one a.m.;

(D) If the child is, with the consent of his or her parent or legal guardian, engaged in interstate travel;

(E) If the child is on an emergency errand.
(Ord. No. 6277, § 4, 10-2-13)

10.54.040 Penalty.

Any person who violates Sections 10.54.010, 10.54.015 or 10.54.020 of this Chapter shall be subject to a fine of not more than three hundred dollars for the first offense, a fine of not more than six hundred dollars for the second offense, and a fine of not more than one thousand dollars for three or more offenses.
(Ord. No. 6277, § 5, 10-2-13)

CHAPTER 10.56 ENTRY INTO CERTAIN ESTABLISHMENTS

10.56.010 Saloons and similar places—Presence—Performer permits.

It shall be unlawful for any person under the age of twenty-one years to visit, frequent, be present in or loiter around any saloon, gambling house, barroom, cigar store or house of iii fame; provided, however, that a minor or minors under proper adult supervision may entertain or perform in lounges upon the securing of a permit from the Sheriff of the Metropolitan Police Department or his designee. Said permit shall allow a minor or minors in such lounge only while in the act of entertaining or performing in the presence of said adult supervisor. The permit shall be signed by said minor or minors as well as his or her supervisory adult on forms to be supplied by the Sheriff or his designee. The application form shall be prepared with

adequate information, which forms shall be approved by the City Council.
(Ord. 1878 § 1, 1977: Ord. 1284 § 1 (part), 1967: Ord. 1190 § 8 (part), 1965: Ord. 1107 § 2 (part), 1964: Ord. 1040 § 1 (part), 1963: Ord. 107 § 1 (part), 1924: prior code § 6-8-2(A))

10.56.020 Saloons and similar places—Permitting presence.

It shall be unlawful for any licensee, proprietor, keeper, person in charge or employee of any saloon, gambling house, barroom, cigar store or house of ill fame knowingly to allow or permit any person under the age of twenty-one years to visit, frequent, be present in or loiter around any such establishment, whether or not such licensee, proprietor, keeper, person in charge or employee has knowledge that such person is under the age of twenty-one years, except as provided in Section 10.56.010.
(Ord. 1284 § 1 (part), 1967: Ord. 1190 § 8 (part), 1965: Ord. 1107 § 2 (part), 1964: Ord. 1040 § 1 (part), 1963: Ord. 107 § 1 (part), 1924: prior code § 6-8-2(B))

10.56.030 Pool halls and billiard rooms—Presence restricted.

It shall be unlawful for any person under the age of eighteen years to visit, frequent, be present in or loiter around any pool hall or billiard room unless accompanied by one of his parents or his legal guardian on such occasion; provided, however, that a person between the ages of fifteen years and eighteen years may be present in a pool hall or billiard room in which no alcoholic beverages are sold, served or consumed and in which no gaming devices, including pinball machines, are present or gambling in any form, including betting between players, is permitted.
(Ord. 1254 § 1 (part), 1966: Ord. 1252 § 1 (part), 1966: Ord. 1190 § 9 (part), 1965: Ord. 29 § 3 (part), 1912: prior code § 6-8-3(A))

10.56.035 Pool hall and billiard room—Exclusions from definition.

For purposes of this Chapter, the terms "pool hall" and "billiard room" shall be deemed not to include those establishments where:

(A) Coin-operated amusement machines or table games such as table tennis are offered in addition to pool or billiard tables, including coin-operated tables and those for which the user pays in another manner;

(B) The number of pool or billiard tables is one-third or less of the total number of games in the establishment;

(C) No alcohol is sold, served or consumed; and

(D) No gambling devices, including pinball machines, are present and no gambling in any form, including betting between players, is permitted.
(Ord. 3172 § 1, 1985)

10.56.040 Pool halls and billiard rooms—Allowing presence.

It shall be unlawful for any licensee, proprietor, keeper, person in charge, or employee of any pool ball or billiard room knowingly to allow or permit any person to visit, frequent, be present in or loiter around such establishment in violation of Section 10.56.030.
(Ord. 1254 § 1 (part), 1966: Ord. 1252 § 1 (part), 1966: Ord. 1190 § 9 (part),1965: Ord. 29 § 3 (part), 1912: prior code § 6-8-3(B))

10.56.050 Pool halls and billiard rooms-Segregation of tables.

Should a pool table and/or billiard table be placed in any business within the City where persons under the age of eighteen years are generally allowed to frequent by law, the pool table and/or billiard table shall be partitioned off and placed in a separate room for the purpose of preventing a violation of Section 10.56.030.
(Ord. 1254 § 1 (part),1966: Ord. 1252 § 1 (part), 1966: prior code § 6-8-3(C))

10.56.060 Violation-License revocation.

If any person having a license to do business in the City is found guilty of a violation of any of the provisions of this Chapter by any court of competent jurisdiction, upon presentation to the City Council of a certified copy of such record of judgment or conviction, the Council may revoke such license, and no license shall be issued by the City to such person, or for his benefit, directly or indirectly, for a period of one year after the revocation of such license.
(Ord. 110 § 2, 1925: Ord. 107 § 3, 1924: prior code § 6-8-4)

10.56.070 Violation-Imputing to firm.

If the licensee shall be a corporation, partnership or association, the conviction of any officer, agent, member or employee of such corporation, partnership, or association of the violation of this Chapter, while acting for, or in behalf of, said corporation, partnership, or association, shall be deemed a conviction of the corporation, partnership or association, and the license of such corporation, partnership or association may be revoked as hereinbefore provided, and in case of revocation shall not be renewed for the period of time hereinbefore provided for.
(Ord. 110 § 3, 1925: Ord. 107 § 4, 1924: prior code § 6-8-5)

CHAPTER 10.58 MODEL AIRPLANE GLUE

10.58.010 Sale or delivery.

No person, firm or corporation shall sell or otherwise deliver or cause to be sold or delivered to any person under the age of twenty-one years any model airplane glue. No person having possession of any model airplane glue shall deliver possession thereof to any person under the age of twenty-one years knowing or having reasonable cause to believe that the same will be used as an inhalant.
(Ord. 1030 § 1, 1963: prior code § 6-1-40)

CHAPTER 10.60 FALSE IDENTIFICATION

10.60.010 Production—Items designated.

(A) It shall be unlawful for any person to counterfeit, forge, alter, erase or obliterate, or to attempt to counterfeit, forge, alter, erase or obliterate any card, writing, paper or document, or any photocopy print, photostat or other replica of any card, writing, paper or document which is designed for the purpose of personal identification and which bears the age of the holder or purported holder thereof, or which, although not designed for the purpose of personal identification, is commonly used, or is capable of being used, for the purpose of personal identification and bears the age of the holder or purported holder thereof, with the intention that such card, writing, paper or document, or photocopy print, photostat or other replica thereof should be used by a person under the age of twenty-one years to establish falsely or misrepresent his actual age for the purpose of purchasing alcoholic liquor, or being served alcoholic liquor in a place where it is served for consumption on the premises, or for the purpose of entering any of the establishments mentioned in this Division.

(B) Included among, but not limited to, the cards, writing, papers or documents and the photocopy prints, photostats or other replica thereof which, although not designed for the purpose of personal identification, are commonly used or are capable of being used for the purpose of personal identification, are the following: operator's license, chauffeur's license, fishing or hunting license, selective service cards, organizational membership card, certificate of discharge from the Armed Forces, or certificate or other record of birth.
(Ord. 1190 § 12 (part), 1965: prior code § 6-8-9(A))

10.60.020 Sale, loan or gift.

It shall be unlawful for any person to sell, lend, give away or offer, or to attempt to sell, lend, give away or offer, any counterfeited, forged, altered, erased or obliterated card, writing, paper or document, or photocopy print, photostat or other replica thereof, of the kind mentioned in Section 10.60.010 to a person under the age of twenty-one years.
(Ord. 1190 § 12 (part), 1965: prior code § 6-8-9(B))

10.60.030 Use.

It shall be unlawful for any person under the age of twenty-one years to use or to attempt to use or to proffer any counterfeited, forged, erased or obliterated card, writing, paper or document, or any photocopy print, photostat or other replica thereof, of the kind mentioned in Section 10.60.010 for the purpose and with the intention of purchasing alcoholic liquor, or being served alcoholic liquor in a place where it is served for consumption on the premises, or for the purpose of entering any of the establishments mentioned in this Division, or to actually purchase alcoholic liquor, or to actually be served alcoholic liquor in a place where it is served for consumption on the premises, or to actually enter any of the establishments mentioned in this Division when such purchase, service or entering is induced or permitted by the

presentation of any such card, writing, paper or document, or any photocopy print, photostat or other replica thereof.
(Ord. 1190 § 12 (part), 1965: prior code § 6-8-9(C))

10.60.040 Violation-Penalty.

Any person violating any of the provisions of this Chapter shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than one hundred dollars nor more than five hundred dollars and/or imprisonment in the City Jail for not more than six months, or any combination of such fine or imprisonment, no part of which fine or imprisonment may be suspended.
(Ord. 1190 § 12 (part), 1965: prior code § 6-8-9(D))

CHAPTER 10.62 ALCOHOLIC BEVERAGES*

10.62.010 Purchase, receipt, possession, consumption.

It shall be unlawful for any person under the age of twenty-one years to buy, receive, have in his possession or consume any alcoholic liquors.
(Ord. 1190 § 7, 1965: Ord. 1107 § 1, 1964: prior code § 6-8-1)

10.62.020 Purchase for minor.

(A) It shall be unlawful for any person to purchase any alcoholic liquors for and on behalf of any person under the age of twenty-one years.

(B) Any person violating Subsection (A) of this Section shall be deemed guilty of a misdemeanor, and, upon conviction thereof, shall be punished by a fine of not less than two hundred fifty dollars or more than five hundred dollars and/or imprisonment in the City Jail for not more than six months, or any combination of such fine and imprisonment, no part of which fine or imprisonment may be suspended.
(Ord. 1190 § 12 (part), 1965: prior code § 6-8-10)

CHAPTER 10.64 HARMFUL SEXUAL MATERIAL

10.64.010 Supplemental nature of provisions.

It is the policy of the City Council that the restrictions upon the exhibition, sale, and distribution of materials harmful to minors set forth in this Chapter shall be in addition and supplemental to the restrictions on the exhibition, sale, and distribution of obscene materials generally, set forth in Chapter 10.42.
(Ord. 4070 § 1, 1997: Ord. 1381 § 3 (part), 1969: prior code § 6-11-7)

***Cross reference—**For provisions on permits allowing minors to perform in lounges, and other provisions regarding minors and establishments which may serve alcoholic beverages, see Ch. 10.56 of this Code. For provisions on use of false identification at such establishments, see Ch. 10.60.

10.64.020 Definitions.

As used in this Chapter, the following terms shall have the meanings set forth in this Section:

(A) "Harmful to minors" means that quality of any description or representation, in whatever form, of nudity, sexual conduct, sexual excitement or sadomasochistic abuse which predominantly appeals to the prurient, shameful or morbid interests of minors, is patently offensive to prevailing standards in the adult community as a whole with respect to what is suitable material for minors, and is utterly without redeeming social importance for minors.

(B) "Knowingly" means having general knowledge of, or reason to know, or a belief or ground for belief which warrants further inspection or inquiry of (1) the character and content of any material described in this Chapter which is reasonably susceptible of examination by the defendant and (2) the age of the minor. If a person has made a reasonable, bona fide attempt to ascertain the true age of a minor, an honest mistake will excuse such person from liability.

(C) "Minor" means any person under the age of eighteen years.

(D) "Nudity" means the showing of the human male or female genitals or pubic area or buttocks with less than a full opaque covering, or the showing of the female breast with less than a fully opaque covering of any portion thereof below the top of the nipple, or the depiction of covered male genitals in a discernibly turgid state.

(E) "Sadomasochistic abuse" means flagellation or torture by or upon a person clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed.

(F) "Sexual conduct" means the act of masturbation, homosexuality, sexual intercourse or physical contact with a person's unclothed genitals or pubic area.

(G) "Sexual excitement" means the condition of human male or female genitals in a state of sexual stimulation or arousal.

(H) "Blinder rack" means a rack or holder which has a solid shield or cover that prevents the viewing of the lower two-thirds of the cover of the material being displayed.

(I) "Blinder sleeve" means a covering which is wrapped around a publication or other material so that the lower two-thirds of the cover of the material is concealed from view.

(J) "Motion picture film" means all films, whether rated or unrated, including cartoon or animated films.

(Ord. 4070 § 2, 1997: Ord. 1381 § 3 (part), 1969: prior code § 6-11-8)

10.64.030 Sale or exhibition for sale.

It shall be unlawful for any person knowingly to exhibit for sale, sell, loan or distribute, for monetary, consideration, to a minor:

(A) Any picture, photograph, drawing, sculpture, motion picture film, or similar visual representation or image of a person or portion of the human body which depicts nudity, sexual conduct or sadomasochistic abuse and is harmful to minors: or

(B) Any book, pamphlet, magazine, printed matter, however produced, or sound recording which contains any matter enumerated in subsection (A) of this Section, or explicit and detailed verbal descriptions or narrative accounts of sexual excitement, sexual conduct or sadomasochistic abuse, which taken as a whole is harmful to minors.
(Ord. 1381 § 3 (part), 1969: prior code § 6-11-9)

10.64.040 Admission to show or presentation.

It shall be unlawful for any person knowingly to exhibit for monetary consideration to a minor or knowingly to sell to a minor an admission ticket or pass or knowingly to admit a minor for monetary consideration, to premises whereon there is exhibited a motion picture, show or other presentation which, in whole or in part, depicts nudity, sexual conduct or sadomasochistic abuse and is harmful to minors, unless such minor is accompanied by his parent, guardian or spouse.
(Ord. 1381 § 3 (part), 1969: prior code § 6-11-10)

10.64.050 Misrepresentation to gain admission.

It shall be unlawful for any person to misrepresent that:

(A) He is the parent, guardian or spouse of a minor for the purpose of obtaining admission of such minor to any motion picture, show or any other presentation which is harmful to minors.

(B) His age is eighteen years or over for the purpose of obtaining admission to any motion picture, show or other presentation which is harmful to minors.
(Ord. 1381 § 3 (part), 1969: prior code § 6-11-11)

10.64.060 Display.

It is unlawful for any person knowingly to display for sale or distribution, with or without consideration, including by newsrack, material which is harmful to minors in such a way that minors, as part of the general public, will be exposed to view of such material. A person shall be deemed not to have displayed such material harmful to minors if:

(A) The portions of the material containing nudity, sexual conduct, sexual excitement or sadomasochistic abuse are contained in "blinder racks," "blinder sleeves" or otherwise, so that said portions are not exposed to view; or

(B) If the material is displayed in a place where minors are not allowed.
(Ord. 4070 § 3, 1997)

CHAPTER 10.65 DOOR-TO-DOOR SELLING

10.65.010 Defined.

For purposes of this Chapter, the term "door-to-door selling" and its derivations shall include selling or soliciting of sales by minors, either alone or in pairs or teams, in business and residential districts, parking lots and malls.
(Ord. 3187 § 1 (part), 1985)

10.65.020 Minors under age ten—Unlawful to employ.

It shall be unlawful for any person to employ, permit or suffer any minor under the age of ten to engage in door-to-door selling of newspaper or magazine subscriptions, or of candy, cookies, flowers or other merchandise or commodities.
(Ord. 3187 § 1 (part), 1985)

10.65.030 Minors between ages ten and sixteen—Unlawful to employ—Exception.

It shall be unlawful for any person to employ, permit or suffer any minor between the ages of ten and sixteen to engage in door-to-door selling of newspaper or magazine subscriptions, or of candy, cookies, flowers or other merchandise or commodities, unless the conditions set forth in Section 10.65.040 are met.
(Ord. 3187 § 1 (part), 1985)

10.65.040 Minors between ages ten and sixteen—Requirements.

Minors between the ages of ten and sixteen who engage in door-to-door selling of newspaper or magazine subscriptions, or of candy, cookies, flowers or other merchandise or commodities must:

(A) Obtain and carry on their persons a standard letter of approval to work from Clark County Juvenile Court Services;

(B) Work in pairs as a team, on the same, or on opposite sides of the same, street within the same block;

(C) Be supervised by an adult supervisor for each crew of ten or fewer minors; and

(D) Be within the sight or sound of the adult supervisor at least once every fifteen minutes.
(Ord. 3187 § 1 (part), 1985)

10.65.050 Minors under age of sixteen—Hours.

Minors under the age of sixteen who engage in door-to-door selling of newspaper or magazine subscriptions, or of candy, cookies, flowers or other merchandise or commodities may work only during the following hours:

(A) Between the hours of nine a.m. and eight-thirty p.m. when standard time is observed; and

(B) Between the hours of nine a.m. and nine p.m. when daylight saving time is observed.

(Ord. 3187 § 1 (part), 1985)

10.65.060 Exemptions.

The provisions of this Chapter, with the exception of Section 10.65.050, shall not apply to:

(A) Persons who comply with the provisions of State law regarding charitable solicitations;

(B) Persons who engage or employ minors to solicit or sell subscriptions to newspapers or magazines from door-to-door when such newspapers or magazines are delivered by carriers who take title to and deliver them on established routes, whether such solicitations or sales occur within a carrier's designated route or not; and

(C) Minors who make solicitations or sales on behalf of the persons described in subsections (A) and (B) of this Section.

(Ord. No. 6296, § 30, 2-5-14; Ord. 3187 § 1 (part), 1985)

DIVISION IX. WEAPONS

CHAPTER 10.66 RESERVED*

CHAPTER 10.68 RESERVED†

CHAPTER 10.70 RESERVED‡

***Editor's note—**Ord. No. 6440, § 1, adopted August 5, 2015, repealed Chapter 10.66, §§ 10.66.010—10.66.150, which pertained to pistols and derived from prior code §§ 6-4-1, 6-4-3—6-4-17; Ord. No. 1897; Ord. No. 1881 § 2, 1977; Ord. No. 1216, 1965; Ord. No. 2270, 1982; Ord. No. 33771, 1988; Ord. No. 5060, 1998 and Ord. No. 5976, 2008.

†**Editor's note—**Ord. No. 6440, § 1, adopted August 5, 2015, repealed Chapter 10.68, §§ 10.68.010—10.68.030, which pertained to concealed carrying permits and derived from prior code §§ 6-3-1—6-3-3; Ord. No. 1880, 1977; Ord. No. 3889, 1995 and Ord. No. 5976, 2008.

‡**Editor's note—**Ord. No. 6440, § 1, adopted August 5, 2015, repealed Chapter 10.70, §§ 10.70.010—10.70.030, which pertained to dangerous or deadly weapons and derived from prior code §§ 6-3-4—6-3-6; 1949 code Ch. 38 §§ 4—6 and Ord. No. 5976, 2008.

CHAPTER 10.71 ELECTRONIC STUN DEVICES

10.71.010 Electronic stun devices—Civilian use—When prohibited.

(A) It is unlawful for any person, other than a Law Enforcement Officer, to use an electronic stun device for any purpose other than self defense.

(B) It is unlawful for any of the following to possess an electronic stun device:

(1) Any person who has been convicted of a felony;

(2) Any person who is a fugitive from justice;

(3) Any person who is an unlawful user or seller of narcotics; or

(4) Any minor.

(C) For purposes of this Section, an "electronic stun device" is any weapon or other device that emits an electrical charge or current that is intended to temporarily or permanently disable or incapacitate a person.
(Ord. 5709 § 1, 2004)

CHAPTER 10.72 DISCHARGING IN CITY

10.72.010 Limited to galleries.

It shall be unlawful within the City limits, except in a regular licensed shooting gallery to wilfully discharge any pistol, firearm, air gun, musket, or instrument of any kind, character or description which throws a bullet or missiles for any distance by means of the elastic force of air or any explosive substance.
(Ord. 39 § 1, 1913: prior code § 6-3-8)

CHAPTER 10.73 CERTAIN WEAPONS AND TOY/REPLICA FIREARMS PROHIBITED IN SPECIFIED AREAS

10.73.010 Definitions.

For purposes of this Chapter:

(A) "Designated area" includes:

(1) The Pedestrian Mall described in LVMC Chapter 11.68; and

(2) Any public sidewalk within the area bounded by the west right-of-way line of Main Street on the west, the north right-of-way line of Ogden Avenue on the north, the east right-of-way line of 7th Street on the east, and the south right-of-way line of Carson Avenue on the south.

(B) "Public right-of-way" means the full width (or any portion) of any dedicated street, alley or highway, whether or not improved.

(C) "Public sidewalk" means that portion of any public right-of-way that has been designed and improved for pedestrian traffic.

(Ord. No. 6716, § 1, 11-20-19)

10.73.020 Prohibited items.

Except as otherwise expressly allowed by State law, a provision of this Code, or a written permit or other written authorization issued pursuant to this Code, it is unlawful for any person to use or display within any designated area any of the following:

(A) A sword;

(B) A knife or other bladed edge with a blade longer than three inches;

(C) A bow and arrow or arrows, including a crossbow;

(D) A device emitting flames of three inches or higher; or

(E) Any toy firearm, imitation firearm, or replica firearm which substantially duplicates and can reasonably be perceived to be an actual operable firearm, as "firearm" is defined in NRS 202.253.

(Ord. No. 6716, § 1, 11-20-19)

DIVISION X. MISCELLANEOUS CRIMES

CHAPTER 10.74 LOITERING AND PROWLING

10.74.010 Loitering or prowling upon private property—Unlawful.

It is unlawful for any person to loiter or prowl upon the private property of another without lawful business with the owner or occupant thereof.

(Ord. 3112 §§ 4 (part), 5, 1984)

10.74.020 Loitering or prowling upon private property—Circumstances which may be considered in determining guilt.

Among the circumstances which may be considered in determining whether or not a person who loiters or prowls upon the private property of another has lawful business with the owner or occupant thereof is the fact that such person takes flight upon the appearance of a Police Officer or endeavors to conceal himself or any object.

(Ord. 3112 §§ 4 (part), 6, 1984)

10.74.030 Sleeping in doorway of unoccupied building.

Any person who sleeps in the doorway of any otherwise unoccupied building, without the permission of the owner or other person who is entitled to the possession or control thereof, is guilty of a misdemeanor.

(Ord. 3112 §§ 4 (part), 7, 1984)

CHAPTER 10.76 ALCOHOLIC BEVERAGE CONSUMPTION AND POSSESSION

10.76.010 Prohibited—Where.

(A) At any of the following locations, it is unlawful for any person to drink an alcoholic beverage or to possess an open container of alcoholic beverage which was purchased in an original sealed or corked container:

(1) Upon any premises, including the parking lot, of an establishment which is licensed to sell alcoholic beverages on an off-premise basis;

(2) Upon property, other than residential property, located within one thousand feet of an establishment which is licensed to sell alcoholic beverages on an off-premise basis;

(3) Upon property, other than residential property or property designated in a special event alcohol permit issued pursuant to LVMC Chapter 6.50, located within one thousand feet of a church, synagogue, public or private school, hospital, special care facility, withdrawal management facility or homeless shelter; or

(4) Within the boundaries of the Downtown Entertainment Overlay District described in LVMC 19.10.120, except as otherwise permitted in connection with:

(a) A special event permit issued pursuant to LVMC Chapter 12.02; or

(b) Activity specifically authorized by and conditioned under a full alcohol on-premises license issued under LVMC Chapter 6.50.

(B) The distances referred to in Subsection (A) shall be determined with reference to the shortest distance between the point of consumption or possession of an open container of alcoholic beverage and the nearest portion of any of the designated structures without regard to intervening obstacles.

(C) For purposes of this Section, "off-premise basis" means the sale of alcoholic beverages in original sealed or corked containers for consumption off the premises where the same are sold.

(Ord. No. 6806, § 53, 4-6-22; Ord. No. 6657, § 4, 11-21-18; Ord. No. 6266, § 41, 9-4-13; Ord. 5563 § 1, 2003: Ord. 5106 § 1, 1998: Ord. 3167 § 1, 1985)

10.76.020 Special events.

For any special event that will take place on New Year's Eve or at any other time at which more than one thousand spectators or participants are expected to attend, it is unlawful for any person to possess or consume an alcoholic beverage in any glass or metal container during any of the following times if the producer or promoter has provided notice thereof:

(A) Between the hours of six p.m. on December 31st and six a.m. on January 1st of each year.

(B) During the period of time beginning two hours before the start of the special event and ending two hours after the special event is over.

(Ord. No. 6806, § 54, 4-6-22; Ord. No. 6329, § 5, 6-18-14; Ord. 5189 § 3, 1999)

10.76.030 Alcoholic beverages on or along the Pedestrian Mall—Prohibited—Penalty.

It is unlawful for a person to open and/or possess an open bag containing alcoholic beverages closed in accordance with LVMC 6.50.475(J) or LVMC 6.50.477(A)(9) on or along the Pedestrian Mall defined by LVMC Chapter 11.68 or within the boundaries of the Downtown Entertainment Overlay District described in LVMC 19.10.120. The sole penalty for a violation of this Section is that a peace officer or other officer authorized to enforce this Section may confiscate any alcoholic beverage associated with the violation.

(Ord. No. 6657, § 5, 11-21-18; Ord. No. 6468, § 2, 10-7-15; Ord. No. 6336, § 2, 7-16-14)

CHAPTER 10.77 POSSESSION OF CONTAINERS FIT OR INTENDED FOR BEVERAGE PURPOSES

10.77.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings ascribed to them:

"Right-of-way" means any publicly-owned property which is dedicated for use as a street, alley, or other means of vehicular access, and includes any publicly-owned area which is used as a sidewalk or walkway for the use of pedestrians.

"Special event" includes sporting events, competitive races, athletic activities, block parties, grand openings, fireworks displays, building implosions, and other similar types of entertainment which are not offered on a continuous basis, whether or not a fee is charged for admission, entrance or other participation. The term includes but is not limited to events which require the closure of one or more rights-of-way or portions thereof.

(Ord. 5189 § 4 (part), 1999)

10.77.020 Prohibited—When.

Except as otherwise provided in Section 10.77.030, it is unlawful for any person to be in possession of any glass or metal container which is fit for beverage purposes or intended for beverage purposes while that person is:

(A) Attending or participating in a special event; and

(B) On any right-of-way which is temporarily closed to vehicular traffic during the following times:

(1) Between the hours of 6:00 P.M. on December 31st and 6:00 A.M. on January 1st of each year.

(2) During the period of time beginning two hours before the start of the special event and ending two hours after the special event is over.

(Ord. No. 6806, § 55, 4-6-22; Ord. 5189 § 4 (part), 1999)

10.77.030 Alcoholic beverages prohibited within the Pedestrian Mall.

(A) Except as otherwise provided in Subsection (B), it is unlawful for a person to do any of the following within the Pedestrian Mall described in LVMC Chapter 11.68 or the Downtown Entertainment Overlay District described in LVMC 19.12.120:

(1) Possess an alcoholic beverage in an open glass container, an open metal container or in its original packaging in an open condition; or

(2) Consume any alcoholic beverage in any glass container, metal container or from its original packaging.

(B) The prohibitions contained in Subsection (A) do not apply to any activity authorized under or in connection with:

(1) A special event permit issued pursuant to LVMC Chapter 12.02; or

(2) Activity specifically authorized by and conditioned under a full alcohol on-premises license issued under LVMC Chapter 6.50.

(Ord. No. 6806, § 56, 4-6-22; Ord. No. 6657, § 6, 11-21-18; Ord. No. 6329, § 4, 6-18-14; Ord. 5189 § 4 (part), 1999)

CHAPTER 10.78 DISPLAY AND SALE OF MOTOR VEHICLES OR MERCHANDISE ON VACANT LOTS

10.78.010 Definitions.

Unless the context otherwise requires, the following terms, when used in this Chapter, shall have the meanings ascribed to them, as follows:

"Merchandise" means goods or wares, including, but not limited to, produce, nursery stock, ceramics and other similar items.

"Parking lot" means an area which is provided for the parking of motor vehicles in connection with a commercial or noncommercial establishment or a multi-family residential development.

"Unoccupied lot" means an improved lot or parcel of real property containing one or more structures that are not presently being occupied in connection with a lawful residential or nonresidential use.

"Vacant lot" means a lot or parcel of real property which is unimproved.

(Ord. 5803 § 1, 2005: Ord. 3934 § 1 (part), 1995: Ord. 3176 § 1 (part), 1985)

10.78.020 Unlawful.

Except as otherwise provided in Section 10.78.030, it is unlawful for any person to sell or to display for the purpose of sale any vehicle or merchandise in or upon any parking lot, vacant lot or unoccupied lot. A violation of this Section may be enforced either by means of a criminal proceeding or as a civil violation under LVMC Chapter 11.10.
(Ord. 5803 § 2, 2005: Ord. 5095 § 35, 1998: Ord. 3934 § 1 (part), 1995: Ord. 3176 § 1 (part), 1985)

10.78.030 Applicability of Section 10.78.020.

(A) The prohibitions contained in Section 10.78.020 do not apply to any sale or display on a vacant lot or unoccupied lot by the owner of such lot, or in a parking lot by the owner or operator of such lot, if the activity is authorized by and in accordance with the zoning regulations which are applicable to such lot.

(B) The prohibitions contained in Section 10.78.020 do not apply to any sale or display on a vacant lot or unoccupied lot by a person other than the owner of such lot, or in a parking lot by a person other than the owner or operator of such lot, if:

(1) The activity is authorized by and in accordance with the zoning regulations which are applicable to such lot;

(2) The owner, or, if applicable, the operator of such lot has consented in writing to the activity; and

(3) The written consent is posted in a conspicuous, readily-visible place at the location of the sale or display or, in the case of a motor vehicle which is equipped with a windshield, on the inside surface of the windshield, facing outward. The written consent must be signed by the owner or, if applicable, the operator of the lot, the name and address of such owner or operator, the name and address of the person or organization for whose benefit the consent is given, the type of display or sale to be permitted and the period for which the consent is given.

(C) The prohibitions contained in Section 10.78.020 do not apply to any temporary sale or display by a nonprofit organization which has:

(1) Complied with the provisions of State law regarding charitable solicitations; and

(2) Obtained and posted a written consent to the activity in accordance with the requirements set forth in paragraphs (2) and (3) of Subsection (B) of this Section.

(D) The provisions of Section 10.78.020 do not prohibit the operator of a motor vehicle which is being advertised for sale from parking the vehicle in a parking lot if the circumstances indicate that the vehicle is being parked in connection with the use of the establishment or development to which the parking lot pertains, and not for the purpose of displaying the vehicle for sale.
(Ord. No. 6296, § 31, 2-5-14; Ord. 5803 § 3, 2005: Ord. 3934 § 1 (part), 1995: Ord. 3176 § 1 (part), 1985)

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10.78.040 Authority to remove—Costs to be borne by owner.

(A) The following are authorized to remove or cause to be removed, to a designated garage or storage area, any motor vehicle which is being displayed in violation of this Chapter if the vehicle has not been removed, or compliance with this Chapter achieved, within twenty-four hours after a written notice to remove is attached to the vehicle:

(1) Officers of the Las Vegas Metropolitan Police Department;

(2) Officers of the Department of Public Safety;

(3) Parking enforcement officers assigned to the Department of Economic and Urban Development; and

(4) Employees of the Department of Community Development who are assigned responsibility for code enforcement.

(B) The costs of vehicle removal and storage pursuant to Subsection (A) shall be borne by the owner or operator of the vehicle.
(Ord. No. 6816, § 110, 8-17-22; Ord. No. 6518, § 14, 4-6-16; Ord. No. 6184, § 16, 3-21-12; Ord. 5803 § 4, 2005: Ord. 3176 § 1 (part), 1985)

10.78.050 Violation—Penalty.

(A) In the case of a criminal prosecution for a violation of Section 10.78.020, any person who is convicted of a violation thereof shall be punished by a fine of not less than two hundred fifty dollars nor more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine or punishment.

(B) In the case of a civil proceeding for a violation of Section 10.78.020, any person in violation thereof shall be deemed to have committed a civil infraction, for which the registered owner and the operator of the vehicle shall be liable. Such civil infraction shall be in the amount of one hundred dollars and shall be subject to the rules and procedures contained in LVMC Chapter 11.10. Members of the Las Vegas Metropolitan Police Department and the Department of Public Safety are authorized to immobilize a motor vehicle displayed in violation of this Chapter through the use of an immobilization device, as defined in LVMC 11.02.085, if such motor vehicle does not have valid current license plates and a valid current registration sticker (if required), and its vehicle identification number is not plainly visible from outside such motor vehicle. A fee of fifty dollars shall be recovered from the owner or operator of a motor vehicle prior to the removal of the immobilization device.
(Ord. No. 6703, § 16, 10-2-19; Ord. No. 6518, § 15, 4-6-16; Ord. 5803 § 5, 2005: Ord. 3991 § 1, 1996: Ord. 3949 § 1, 1996: Ord. 3176 § 1 (part), 1985)

CHAPTER 10.80 TOUR BUSES—PARKING ON PRIVATE PROPERTY

10.80.010 Tour bus defined.

"Tour bus" means a bus which is used to transport tourists to or from hotels, motels, casinos, cultural or athletic events or other tourist attractions or points of interest.
(Ord. 3189 § 1 (part), 1985)

10.80.020 Prohibited—Exception.

Except as otherwise provided in Section 10.80.030, the operator of a tour bus shall not stand or park such vehicle, except while actually and expeditiously engaged in the loading or unloading of passengers, upon any private property within the City.
(Ord. 3189 § 1 (part), 1985)

10.80.030 Applicability of Section 10.80.020.

The prohibitions contained in Section 10.80.020 do not apply:

(A) To any tour bus when it is being used to transport passengers on a "celebrity home" tour or to any function of a duly established and recognized nonprofit organization; provided, however, that no such vehicle shall be allowed to stand or park in any one location for a period in excess of thirty minutes;

(B) To any tour bus when it is located on property which is used as the base of operation for such vehicle;

(C) In the case of an emergency which requires the standing or parking of such vehicle contrary to the provisions of Section 10.80.020.

(Ord. No. 6296, § 32, 2-5-14; Ord. 3189 § 1 (part), 1985)

10.80.040 Variances—Application.

(A) The City Council may grant a variance from the prohibitions contained in Section 10.80.020 if it finds that the granting of such variance will not be materially detrimental to the public safety and welfare or injurious to other property or improvements in the vicinity. The Council may impose such conditions upon the granting of a variance as it deems appropriate.

(B) To the extent possible, the variance procedures set forth in Title 19A shall apply to variance applications heard by the City Council pursuant to this Section, with the following exceptions:

(1) The fee chargeable in connection with a variance application shall be fifty dollars.

(2) The area for notification of property owners shall be within one hundred fifty feet of the exterior boundary lines of the lot or parcel described in the application.

(Ord. 5204 § 6, 2000: Ord. 3189 § 1 (part), 1985)

CHAPTER 10.82 LODGING IN VEHICLES

10.82.010 Definitions.

Except as is otherwise required by the context, as used in this Chapter, the following words and terms shall have the meanings which are ascribed to them as follows:

(A) "Passenger car" means every motor vehicle, except a motorcycle, power cycle or motor-driven cycle, which is designed for carrying 10 passengers or less and is used for the transportation of persons.

(B) "To lodge" means to take up temporary or permanent residence or to occupy for habitation for a time, as opposed to mere sleeping unaccompanied by other indicia of residence or habitation.

(C) "Truck" means every motor vehicle, other than a motor vehicle which is specifically designed with a sleeping compartment, which is used for the transportation or delivery of goods and has a body which is built and designed for that purpose.

(Ord. 3225 § 2, 1986)

10.82.020 Prohibited.

It is unlawful for any person to lodge in a passenger car or truck on any public street or other public property or upon any private property without the consent of the owner or occupant thereof.

(Ord. 3225 § 3, 1986)

CHAPTER 10.83 WAGERING BY NCAA ATHLETES

10.83.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meaning that are ascribed to them as follows:

(A) "Book" means a sports pool licensed and approved pursuant to NRS 463 and regulation 22 of the Regulations of the Nevada Gaming Commission and State Gaming Control Board, as adopted July 1, 1959, and as amended from time to time.

(B) "Establishment" means any premises where business is conducted and includes all buildings, improvements, equipment and facilities used or maintained in connection with such business.

(C) "Institution" means a public or private entity that offers educational training beyond the secondary level. The term also includes:

(1) A postsecondary education institution as defined in NRS 394.099; and

(2) A university as defined in NRS 396.838.

(D) "Intercollegiate athletic event" means competition, a contest, a game, a match, a meeting or an occurrence between individual or teams of individuals who attend as students institutions that are members of the National Collegiate Athletic Association and who are developed, talented or trained in physical exercises, games, skills or sports requiring human strength, agility or stamina, and the winner of which competition, contest, game, match, meeting or occurrence is determined by a score of points either earned during the event or awarded by judges of the event or by favorably completing the competition according to a formula of time or a formula of points and time for certain acts performed during the event.

(E) "National Collegiate Athletic Association" means a group of institutions of forty or more states which is governed by the rules of the association relating to athletic competition.

(F) "Parlay card wager" means a wager on the outcome of a series of three athletic events, at least one of which is an intercollegiate athletic event, or a series of three or more contingencies at least one of which is incident to an intercollegiate athletic event.

(G) "Sports Pool" means a business that accepts wagers on inter-collegiate athletic events, or other events, other than horse or other races. The term includes, but is not limited to, a business that accepts parlay card wagers.

(H) "Student athlete" means a person who is eligible to and does compete individually or as a member of a team in intercollegiate athletic events at an institution that is a member of and subject to the rules of the National Collegiate Athletic Association.

(Ord. 3488 § 2, 1990)

10.83.020 Prohibited—Wagering.

It is unlawful for any student athlete to knowingly wager on an intercollegiate athletic event at any establishment that owns, operates or maintains a book or sports pool.
(Ord. 3488 § 4, 1990)

10.83.030 Prohibited—Accepting wagers.

It is unlawful for any establishment that owns, operates or maintains any book or sports pool to knowingly accept from any student athlete an individual wager or parlay card wager on an intercollegiate athletic event.
(Ord. 3488 § 3, 1990)

CHAPTER 10.84 PUBLIC TRANSPORTATION FACILITIES—PROHIBITED ACTIVITIES

10.84.010 Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings that are ascribed to them as follows:

"Bus stop bench" means any of those benches that have been placed along streets, roadways, or within a bus stop shelter within the City for people who are awaiting arriving passengers or who are awaiting departure on RTC Transit buses, city trolleys, or paratransit buses.

"Bus stop shelter" means any of those structures that have been built and placed along streets and roadways to provide shelter within the City for people who are awaiting arriving passengers or who are awaiting departure on RTC Transit buses, city trolleys, or paratransit buses.

"Downtown Transportation Center" means the Bonneville Transit Center and the grounds located at 101 East Bonneville Avenue, Las Vegas, Nevada, and includes all buildings and structures located thereon. The word "at" in reference to the Downtown Transportation Center also means "on" with reference to the grounds and structures and "in" with reference to any structure.

"Misuse" of bus stop benches, bus stop shelters or the Downtown Transportation Center means the use of those facilities for purposes other than the uses for which they were intended. Intended uses include awaiting arrivals or making departures on RTC Transit buses, city trolleys, or paratransit buses; inspection, repair, maintenance, supply and employment activities associated therewith; and patronage of any commercial operations conducted at the Downtown Transportation Center.

"RTC Transit" means the public bus system operated by or on behalf of the Regional Transportation Commission of Southern Nevada.
(Ord. No. 6218, § 1, 10-3-12; Ord. 3788 § 2, 1994)

10.84.020 Consumption and possession of alcoholic beverages.

It is unlawful for any person to consume an alcoholic beverage or to possess an open container of alcoholic beverage at any bus stop bench, bus stop shelter or at the Downtown Transportation Center.
(Ord. 3788 § 3, 1994)

10.84.030 Sleeping.

It is unlawful for any person to obstruct or interfere with any intended use of a bus stop bench, bus stop shelter or the Downtown Transportation Center by occupying any such facility or portion thereof in a manner that demonstrates an intent to use such facility or portion thereof as temporary or permanent quarters for sleeping or lodging.
(Ord. 3788 § 4, 1994)

10.84.040 Bathing—Washing laundry.

It is unlawful for any person to shave, bathe, wash body parts other than hands and face, or to wash laundry at the Downtown Transportation Center.
(Ord. 3788 § 5, 1994)

10.84.050 Smoking.

It is unlawful for any person to smoke in a designated no smoking area at any bus stop bench, bus stop shelter or at the Downtown Transportation Center.
(Ord. 3788 § 6, 1994)

10.84.060 Misuse of bench or shelter.

It is unlawful for any person to misuse a bus stop bench, a bus stop shelter or the Downtown Transportation Center.
(Ord. 3788 § 7, 1994)

CHAPTER 10.86 CAMPING, LODGING, AND SIMILAR ACTIVITIES WITHIN PUBLIC RIGHT-OF-WAY AT SPECIFIED LOCATIONS

10.86.010 Prohibited.

(A) It is unlawful for a person to do any of the following within any public right-of-way:

(1) Sit or lie down;

(2) Sit or lie down on a blanket, stool, or any other object; or

(3) Camp or lodge.

(B) For purposes of Subsection (A):

(1) "Camp or lodge" means:

(a) Sleeping or otherwise being in a temporary shelter outdoors;

(b) Sleeping outdoors;

(c) Cooking over an open flame or fire outdoors; or

(d) Laying down bedding or setting up a tent, shelter, or similar structure for purposes of sleeping or temporary living.

(2) "Public right-of-way" means the full width of any street, highway, alley, trail or easement that has been dedicated for public use. The term includes without limitation a public sidewalk and any public drainage or other easement that is controlled or maintained by a public agency.

(C) It is an affirmative defense to any prosecution under Subsection (A) that the person is:

(1) Sitting or lying down because of a medical emergency as evidenced by the testimony or affidavit of a paramedic, emergency medical technician or other medical professional licensed or certified or authorized to practice by the State of Nevada;

(2) Utilizing a wheelchair, walker, or similar device to move about the right-of-way because of a disability, as documented by medical records or as evidenced by the testimony or affidavit of a medical professional licensed or certified or authorized to practice by the State of Nevada;

(3) Operating or patronizing a commercial establishment or service or governmental function conducted at the location pursuant to a permit or authorization issued under this Code;

(4) Participating in or attending a parade, festival, performance, rally, demonstration, meeting, or similar event lawfully conducted in the public right-of-way;

(5) Sitting on a chair or bench that has been supplied by the abutting private property owner; or

(6) Sitting or has placed materials on a sidewalk while waiting for public or private transportation or waiting for access to enter any building.

(Ord. No. 6889, § 1, 10-16-24; Ord. No. 6710, § 1, 11-6-19)

10.86.020 Enforcement.

(A) Before issuing a written warning or citation, or making an arrest to enforce Section 10.86.010, an officer charged with its enforcement who observes a violation of Section 10.86.010 must notify the person engaged in the prohibited conduct that:

(1) The conduct is in violation of Section 10.86.010;

(2) Resources are available at the Courtyard Homeless Resource Center and other locations; and

(3) Future violations will be subject to the enforcement provisions and consequences described in Subsection (C) of this Section.

(B) It is an affirmative defense to a prosecution under Section 10.86.010 that any person so notified as described in Paragraph (1) of Subsection (A) of this Section promptly ceased, within a time reasonable under the circumstances, to engage in the prohibited conduct following such notification.

(C) A person who is convicted of a violation of Section 10.86.010 more than two times within any twelve-month period shall be subject to a minimum jail term of ten days. As an alternative to the jail term specified by this Subsection, a court may order a defendant to complete a rehabilitation program, specialty court program or other program of treatment designed to assist homeless persons.
(Ord. No. 6889, § 2, 10-16-24; Ord. No. 6710, § 1, 11-6-19)

10.86.030 Reserved.

Editor's note—Ord. No. 6889, § 3, adopted October 16, 2024, repealed § 10.86.030 which pertained to the applicability of this Chapter and derived from Ord. No. 6710, adopted November 6, 2019.

10.86.040 Reserved.

Editor's note—Ord. No. 6889, § 3, adopted October 16, 2024, repealed § 10.86.040 which pertained to notification and derived from Ord. No. 6816, adopted August 17, 2022 and Ord. No. 6710, adopted November 6, 2019.

CHAPTER 10.87 RAILROAD TRACKS

10.87.010 Unauthorized entry or activity.

It is unlawful for a person, without the permission of the owner of the land, the owner's agent, or the person in lawful possession, to enter or remain upon any location within one hundred feet of a railroad track if that person's entry, presence, or conduct at that location interferes with, interrupts, hinders, or, if allowed to continue, would interfere with, interrupt, or hinder the safe and efficient operation of any locomotive, railway car or train. For purposes of the preceding prohibition, the measurement of one hundred feet shall be from the outermost points of the railroad track extending out in each direction. This Section does not prohibit picketing in an area immediately adjacent to any railroad property or any other lawful activity by which the public is informed of the existence of an alleged labor dispute.
(Ord. No. 6883, § 1, 10-16-24)

CHAPTER 10.88 POSSESSION OF CERTAIN ITEMS AT PUBLIC PROTESTS, DEMONSTRATIONS, RALLIES, PICKET LINES AND PUBLIC ASSEMBLIES

10.88.010 Regulations.

(A) No person shall carry or possess the following items or articles while attending or participating in any demonstration, rally, protest, picket line or public assembly on public property, a public street, a public sidewalk, or within twenty-five feet of such property:

(1) Any length of lumber, wood, or wood lath unless that object is one-half-inch or less in thickness and two inches or less in width, or if not generally rectangular in shape, such object shall not exceed one inch in its thickest dimension. Both ends of the lumber, wood, or wood lath shall be blunt;

(2) Any length of metal or plastic pipe, whether hollow or solid, provided, however, that hollow plastic piping not exceeding three-quarter-inch in its thickest dimension and not exceeding one-eighth-inch in wall thickness, and not filled with any material, liquid, gas or solid may be used solely to support a sign, banner, placard or other similar expressive display. Both ends of any plastic pipe permissible under this Paragraph shall be blunt;

(3) Baseball or softball bats, regardless of composition or size; provided, however, that such items are permissible when configured solely of cloth, cardboard, soft plastic, foam or paper;

(4) Any aerosol spray, tear gas, mace, pepper spray larger than one-half-ounce, or animal repellant;

(5) Any projective launcher or other device, such as a catapult or wrist rocket, which is commonly used for the purpose of launching, hurling or throwing any object, liquid, material or other substance, whether through force of air pressure, spring action or any other mechanism, excluding T-shirt or confetti launchers;

(6) Weapons such as toy or replica firearms unless such toy is fluorescent colored or transparent; knives (except for a folding knife with a blade of three inches or less); swords, sabers, or other bladed devices; axes, hatchets, ice picks, razor blades, nunchucks or martial arts weapons of any kind; box cutters, pellet or BB guns; conducted electrical weapons including but not limited to Tasers or stun guns; metal/composite/wooden knuckles; or any chain greater than twenty inches in length or one-quarter-inch in diameter.

(7) Balloons, bottles, or any other container filled with any flammable, biohazard or other noxious matter which is injurious or nauseous, sickening or irritating to any of the senses, with intent to throw, drop, pour, disperse, deposit, release, discharge or expose the same in, upon or about any demonstration, rally, protest, picket line or public assembly;

(8) Glass bottles, whether empty or filled;

(9) Flame torches, lanterns or other devices that utilize combustible materials such as gasoline, kerosene, propane or other fuel sources, but not including candles;

(11) Shields made of metal, wood, hard plastic or any combination thereof; or

(12) Bricks, rocks, pieces of asphalt, concrete, pellets ball bearings, or lengths of chain greater than one-half-inch in width and six inches in length.

(B) When feasible, excluding exigent circumstances, a warning shall be issued before enforcement of the provisions of this Section. Such warning shall be sufficient if provided orally, by posted signs, or by amplified announcement.

(C) Law enforcement officers shall be exempt from the provisions of this Section when engaged in the conduct of official duties.

(D) Nothing in this Section shall prohibit an individual from carrying a cane or using a walker or other device necessary for providing mobility so that the person may attend or participate in a public protest, demonstration, rally, picket line or public assembly.
(Ord. No. 6644, § 1, 10-3-18)

CHAPTER 10.90 RESERVED*

CHAPTER 10.92 DRUG PARAPHERNALIA

10.92.010 Sale, possession or manufacture.

(A) Except as otherwise provided in this Section, any person who delivers or sells, possesses with the intent to deliver or sell, or manufactures with the intent to deliver or sell any drug paraphernalia, knowing, or under circumstances where one reasonably should know, that it will be used to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled substance in violation of NRS Chapters 453, 678C and 678D is guilty of a misdemeanor.

(B) Nothing in Subsection (A) shall be deemed to prohibit the sale or use of paraphernalia that is in accordance with NRS Chapters 678C and 678D and other provisions of this Code.
(Ord. No. 6599, § 9, 11-1-17; Ord. 5340 § 2, 2001)

Editor's note—The statutory references for Section 10.92.010 were changed during the codificaton of Supp. No. 44 at the City's request.

***Editor's note—**Ord. No. 6853, § 4, adopted November 15, 2023, repealed Chapter 10.90, §§ 10.90.010 and 10.90.020, which pertained to misdemeanor drug activity and derived from Ord. No. 5099, 1998; Ord. No. 5271, 2000 and Ord. No. 6230, adopted December 19, 2012.

CHAPTER 10.93 SCRAP METAL

10.93.010 Regulations on purchasing and transportation.

In addition to and independent of the provisions of State law on this subject:

(A) It is unlawful for any person to purchase scrap metal unless the scrap metal has been transported to the purchaser by means of a motor vehicle, and not by means of a shopping cart or on a walk-up basis.

(B) It is unlawful for any person to purchase scrap metal in the form of seven-strand copper wire that has been burned in whole or in part to remove insulation unless the purchaser:

(1) Obtains from the seller written evidence identifying the seller and documenting that the wire was lawfully acquired and burned. Such documentation may include without limitation an affidavit from the seller or the person delivering the wire, or a declaration under penalty of perjury, regarding the lawfulness of the acquisition and burning of the wire; and

(2) Complies with the documentation and retention requirements of NRS 647.030 and 647.035 that pertain to the purchase of burned metallic wire.

(C) It is unlawful for any person to purchase scrap metal in the form of seven-strand copper wire unless:

(1) Payment is made either by check or electronic transfer of money; and

(2) Such payment is not mailed, delivered or electronically transmitted sooner than ten days after the purchase transaction.

(D) For any payment made by check under Subsection (C) to a seller who represents a business, the check must be made payable to the business using the name of the business.

(E) For purposes of this Section and this Chapter:

(1) "Scrap metal" has the meaning ascribed to that term in NRS 647.017; and

(2) "Seven-strand copper wire" means copper or copper-clad wire consisting of seven strands and typically used in municipal or utility operations.

(Ord. No. 6877, § 1, 9-4-24)

10.93.020 Applicability.

This Chapter does not apply to any transaction in scrap metal, including seven-strand copper wire, between a seller and a buyer if:

(A) The seller is the holder of, or a principal of the holder of, a State of Nevada business license, any other State-level licenses necessary to engage in such a transaction, and any City business license necessary to engage in such a transaction; and

(B) The buyer qualifies to engage in such a transaction under NRS Chapter 647, including without limitation:

(1) Holding a State of Nevada business license, and any other State-level licenses necessary to engage in such a transaction;

(2) Holding an authorization from or registration with the Southern Nevada Health District as the local solid waste management authority; and

(3) Holding any City business license necessary to engage in such a transaction.

(Ord. No. 6877, § 1, 9-4-24)

10.93.030 Enforcement.

The provisions of this Chapter may be enforced by the Las Vegas Metropolitan Police Department, officers and employees of the Department of Community Development, and any other officer or employee designated by the City Manager.

(Ord. No. 6877, § 1, 9-4-24)

10.93.040 Violation.

(A) A violation of this Chapter is a misdemeanor. The minimum fine for a first violation is five hundred dollars. For a subsequent violation, the fine is one thousand dollars.

(B) As an alternative to a criminal prosecution under this Chapter, the Department of Community Development may proceed by means of a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding regarding such a violation, in lieu of the schedule of fines set forth in LVMC 6.02.460, the applicable civil is five hundred dollars for a first violation, and one thousand dollars for a subsequent violation.

(Ord. No. 6877, § 1, 9-4-24)

CHAPTER 10.94 OUTDOOR RELEASE OF BALLOONS

10.94.010 Prohibited; exceptions.

It is unlawful for a person to intentionally release, organize the release of, or otherwise cause or allow the release of a balloon inflated with a gas that is lighter than air, except for:

(A) A balloon released for scientific or meteorological purposes, on behalf of a governmental agency or pursuant to a governmental contract;

(B) A hot air balloon that is recovered after launching;

(C) A balloon to which is affixed an object of sufficient weight to counter the lift capability of the balloon; or

(D) A balloon that is released and remains indoors.

(Ord. No. 6868, § 1, 6-5-24)

10.94.020 Violation; penalty.

A violation of LVMC 10.94.010 is a civil infraction. For the first violation, the code enforcement function of the City shall issue a warning without a penalty. For subsequent violations, the code enforcement function may proceed by means of a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of such a civil proceeding:

(A) Any reference in LVMC 6.02.400 to 6.02.460, inclusive, to the "Department" or "Business Licensing Division" or "Director" shall pertain to the code enforcement function or its manager, as the case may be.

(B) In lieu of the schedule of fines set forth in LVMC 6.02.460, the applicable civil fines are as follows:

(1) For a second offense or a subsequent offense not addressed in Paragraph (2) below, two hundred fifty dollars.

(2) For a subsequent offense within a twelve-month period, five hundred dollars.

(Ord. No. 6868, § 1, 6-5-24)

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CHAPTER 11.02 DEFINITIONS*

11.02.010 Generally.

Whenever the words and phrases which are defined in this Chapter are used in this Title, they shall have the meanings respectively ascribed to them in this Chapter, unless the context otherwise requires or a specific definition elsewhere is made to apply.
(Ord. No. 6326, § 2, 6-18-14)

11.02.020 Undefined words or phrases—State definitions.

Whenever any word or phrase used in this Title is not defined by this Chapter or by another provision of this Title applicable thereto, but is defined in NRS Chapters 484A to 484E, inclusive, regulating the operation of vehicles, the definition contained in those chapters shall apply to that word or phrase.
(Ord. No. 6326, § 2, 6-18-14)

11.02.030 Access aisle.

"Access aisle" means an area that is:

(1) Adjacent to a parking space designated for the handicapped;

(2) Designed to allow for unobstructed ingress, egress and access between a vehicle and an accessible route of travel; and

(3) Marked by spaced, crosshatched or diagonal stripes of a color that contrasts with the paving material or by a distinctive change in paving material.

(Ord. No. 6326, § 2, 6-18-14)

11.02.032 Central Traffic District—Defined.

"Central Traffic District" means the entirety of the discrete area depicted by a Central Traffic District map to be produced by the Department of Public Works, the boundaries of which shall conform initially with the map provided as an attachment to Ordinance No. 6555. Such map may be amended by resolution of the City Council, after receiving a recommendation from the Traffic and Parking Commission to amend the boundaries of such district in conformance with Subsection B of Section 11.39.055.
(Ord. No. 6555, § 2, 11-2-16)

***Editor's note—**Ord. No. 6326, § 1, adopted June 18, 2014, repealed the former Chapter 11.02, §§ 11.02.010—11.02.170, § 2 of Ord. No. 6326 and enacted a new Chapter 11.02 as set out herein. The former Chapter 11.02 pertained to similar subject matter and derived from prior code §§ 10-4-1, 10-4-2; Ord. No. 170; Ord. No. 2203, 1981; Ord. No. 5095, 1998; Ord. No. 5870, 2006; Ord. No. 3157, 1985; Ord. No. 5319, 2001; Ord. No. 6149, adopted May 4, 2011 and Ord. No. 6184, adopted March 21, 2012.

11.02.040 Circulatory roadway.

"Circulatory roadway" means that portion of a highway within a roundabout, not including any crosswalk, that is used by vehicles to travel counterclockwise around a central island.
(Ord. No. 6326, § 2, 6-18-14)

11.02.050 City parking facility.

"City parking facility" includes a parking lot, parking garage, or other parking structure or facility which the City owns, operates or maintains, or in which the City enforces the provisions of this Title.
(Ord. No. 6703, § 1, 10-2-19; Ord. No. 6326, § 2, 6-18-14)

11.02.060 Code enforcement authority.

"Code enforcement authority" means any department or function of the City assigned to the enforcement of the nuisance ordinances or zoning ordinances of the City.
(Ord. No. 6326, § 2, 6-18-14)

11.02.070 Commercial vehicle.

"Commercial vehicle" means a motor vehicle or combination of motor vehicle and trailer maintained or used primarily for the furtherance of a commercial enterprise.
(Ord. No. 6326, § 2, 6-18-14)

11.02.080 Construction zone.

"Construction zone" means that portion of a public street which, because of the construction activities occurring thereon or in proximity thereto, has been designated by the City Traffic Engineer for a temporary reduction in the normal speed limit for a redirection of the normal flow of traffic, or both, in order to protect the public health, safety and welfare.
(Ord. No. 6326, § 2, 6-18-14)

11.02.082 Electric bicycle.

"Electric bicycle" means a device upon which a person may ride, having two or three wheels, or every such device generally recognized as a bicycle that has fully operable pedals, a seat or saddle for the rider, an electric motor which produces not more than seven hundred fifty watts and meets the requirements of one of the following three classes:

(1) Class 1 electric bicycle;

(2) Class 2 electric bicycle; or

(3) Class 3 electric bicycle.

The term does not include a moped, a motorcycle, an all-terrain motorcycle, or an electric scooter.

"Class 1 electric bicycle" means an electric bicycle equipped with a motor that provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle reaches the speed of twenty miles per hour.

"Class 2 electric bicycle" means an electric bicycle equipped with a motor that may be used exclusively to propel the bicycle and is not capable of providing assistance when the bicycle reaches the speed of twenty miles per hour.

"Class 3 electric bicycle" means an electric bicycle equipped with a motor that provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle reaches the speed of twenty-eight miles per hour.
(Ord. No. 6921, § 1, 8-6-25)

11.02.083 Electric scooter.

"Electric scooter" means a device with handlebars and an electric motor that is designed to be ridden on in an upright or seated position and propelled by its electric motor or by propulsion provided by the rider. Such a device must not weigh more than one hundred pounds without a rider and must have a maximum speed of not more than twenty miles per hour when powered solely by its electric motor. The term does not include a scooter that is designed or intended by its manufacturer to be used primarily as an assistive device to increase, maintain, or improve the mobility of an individual with a disability or other physical condition that limits or impairs the individual's ability to walk.
(Ord. No. 6921, § 2, 8-6-25)

11.02.085 Immobilization device.

"Immobilization device," "immobilizing device" or "immobilizer" means a device that immobilizes a parked motor vehicle or otherwise renders it incapable of being driven away from a particular location. The term includes without limitation any device or mechanism that attaches to:

(1) The tire, wheel or any other exterior part of a vehicle so as to make the vehicle inoperable; or

(2) The front windshield of a vehicle so as to obstruct the driver's view through the windshield.

(Ord. No. 6703, § 2, 10-2-19)

11.02.090 Limousine or limo.

"Limousine" or "limo" means a lengthened motor vehicle which is designed, maintained and used on a commercial basis to accommodate and transport up to ten persons, including the driver, and which is properly licensed to provide limousine service.
(Ord. No. 6326, § 2, 6-18-14)

11.02.100 Muffler.

"Muffler" means a device consisting of a series of chambers or baffle plates, or other mechanical design for the purpose of receiving exhaust gas from an internal combustion engine, and effective in reducing noise.
(Ord. No. 6326, § 2, 6-18-14)

11.02.110 Recreational vehicle.

"Recreational vehicle" means any vehicle or trailer designed, maintained and used as a travel trailer, camper, motor home, tent trailer, boat, boat trailer, snowmobile, snowmobile trailer, personal watercraft, personal watercraft trailer, camping trailer or other vehicle of a similar nature.
(Ord. No. 6326, § 2, 6-18-14)

11.02.120 RTC bus.

"RTC bus" means a vehicle which is owned or operated by the Regional Transportation Commission of Southern Nevada or another governmental entity, provides transportation for at least eleven persons, including the driver, and is marked so as to identify it as an RTC bus.
(Ord. No. 6326, § 2, 6-18-14)

11.02.130 Roundabout.

"Roundabout" means an intersection characterized by a circulatory roadway, channelized approaches and yield control of entering traffic. A roundabout encompasses the area bounded by the outermost curb line or, if there is no curb, the edge of the pavement, and includes the crosswalks on any entering or exiting roadway.
(Ord. No. 6326, § 2, 6-18-14)

11.02.140 Taxicab.

"Taxicab" means a motor vehicle which is properly licensed under State and local law to provide taxicab service for a charge or fee.
(Ord. No. 6326, § 2, 6-18-14)

11.02.150 Tour bus.

"Tour bus" or "shuttle bus" means a motor vehicle, other than a limousine, which is designed, maintained and used to transport more than six persons, including the driver, to or from hotels, motels, casinos, cultural or athletic events or other tourist attractions or points of interest.
(Ord. No. 6629, § 4, 8-15-18; Ord. No. 6326, § 2, 6-18-14)

11.02.160 Traffic Bureau.

"Traffic Bureau" means the Traffic Bureau of the Las Vegas Metropolitan Police Department.
(Ord. No. 6326, § 2, 6-18-14)

11.02.170 Trailer.

"Trailer" means a vehicle, other than a commercial vehicle or recreational vehicle, that is without motor power, is designed and constructed to be drawn by a motor vehicle, and is

designed and constructed and used for carrying persons, property, equipment or other items on its own structure, including, but not limited to semitrailers, utility trailers, flatbed trailers, and hauling trailers.
(Ord. No. 6326, § 2, 6-18-14)

CHAPTER 11.04 ADMINISTRATION

11.04.010 Traffic engineer—Established—Qualifications.

The position of City Traffic Engineer is established. The City Traffic Engineer shall be a qualified engineer and shall be appointed under civil service and he shall exercise the powers and duties as provided in this Title and in the traffic regulations of this City.
(Prior code § 10-6-1(A))

11.04.020 Traffic engineer—General duty.

It shall be the general duty of the City Traffic Engineer to:

(A) Determine the installation and proper timing and maintenance of traffic-control devices;

(B) Conduct engineering analysis of traffic accidents and to devise remedial measures;

(C) Conduct engineering investigations of traffic conditions;

(D) Plan the operation of traffic on the streets and the highways of this City; and

(E) Cooperate with other City officials in the development of ways and means to improve traffic conditions; and

(F) Carry out the additional powers and duties imposed by ordinances of this City.
(Prior code § 10-6-1(B))

11.04.025 Traffic engineer—Right to delegate.

The City Traffic Engineer may delegate or assign to another department, division, function or officer or employee of the City any power or duty that:

(A) Is assigned to the City Traffic Engineer under this Title; and

(B) Relates to the stopping, standing, parking or loading of vehicles.
(Ord. No. 6184, § 2, 3-21-12)

11.04.030 Traffic Bureau duties.

It shall be the duty of the Traffic Bureau, with such aid as may be rendered by other members of the Metropolitan Police Department, to:

(A) Enforce the street traffic regulations of the City and all of the State vehicle laws applicable to the street traffic in the City;

(B) Make arrests for traffic violations;

(C) Investigate accidents;

(D) Cooperate with the City Engineer and other officers of the City in the administration of the traffic laws and in developing means to improve traffic conditions; and

(E) Carry out those duties specially imposed upon said Bureau by this Title.

(Ord. 2203 § 16, 1981: prior code § 10-6-4)

11.04.040 Police—Enforcement duty generally.

It is the duty of the officers of the Las Vegas Metropolitan Police Department and such other officers as are assigned by the Sheriff to enforce, and, to the extent consistent with State law, officers of the City's Deputy Marshal Unit are authorized to enforce, all street traffic laws of the City and all of the State vehicle laws applicable to street traffic in the City. (Ord. No. 6326, § 3, 6-18-14; Ord. 5870 § 2, 2006: Ord. 3484 § 1, 1990: Ord. 2203 § 15 (part), 1981: prior code § 10-6-3(A))

11.04.050 Police—Traffic direction.

Officers of the Las Vegas Metropolitan Police Department and such officers as are assigned by the Sheriff, and officers of the City's Deputy Marshal Unit, are authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, such officers may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws.
(Ord. 5870 § 3, 2006: Ord. 3484 § 2, 1990: Ord. 2203 § 15 (part), 1981: prior code § 10-6-3(B))

11.04.060 Department of Fire and Rescue.

Officers of the Department of Fire and Rescue, when at the scene of a fire, may direct or assist police officers in directing traffic thereat or in the immediate vicinity.
(Ord. No. 6326, § 4, 6-18-14; Ord. 2203 § 15 (part), 1981: prior code § 10-6-3(C))

11.04.070 Temporary or experimental regulations.

The Sheriff of the Metropolitan Police Department and the Director of the Department of Public Safety, by and with the approval of the City Traffic Engineer, are empowered to make regulations necessary to make effective the provisions of the City relating to traffic control, and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulation shall remain in effect for more than one hundred eighty days.
(Ord. No. 6518, § 16, 4-6-16; Ord. No. 6326, § 5, 6-18-14; Ord. 3484 § 3, 1990: Ord. 2203 § 14 (part), 1981: Ord. 1278 § 7, 1967: prior code § 10-6-2(A))

11.04.080 Testing traffic-control devices.

The City Traffic Engineer may test traffic-control devices under actual conditions of traffic.
(Ord. 2203 § 14 (part), 1981: prior code § 10-6-2(B))

11.04.090 Schedules—Request to amend.

Unless otherwise provided, upon receipt of a written request to amend a Schedule in this Title, the City Traffic Engineer in the exercise of his or her authority must:

(A) If such request will not affect anyone other than the requestor, grant or deny the request within thirty days of the receipt of the request.

(B) If such request will affect persons other than the requestor, send written notice within thirty days of the receipt of the request to the property owners, residents and businesses within the area potentially affected by the requested amendment; which notice shall state:

(1) The nature of the requested amendment; and

(2) That the person notified has fifteen days from the date of the notice to file with the City Traffic Engineer's office written opposition to the request.

(C) Absent the receipt of a protest pursuant to Subsection (B) of this Section, grant or deny the request within forty-five (45) days of the receipt of the request.

(D) Upon receipt of a protest to the request pursuant to Subsection (B) of this Section, schedule a public hearing regarding the request at the next available regularly scheduled meeting of the City Traffic and Parking Commission.

(E) Send requestor and persons filing written opposition to the request written notice of the public hearing scheduled before the City Traffic and Parking Commission pursuant to Subsection (D) of this Section not later than five working days prior to the hearing.

(F) If the City Traffic and Parking Commission and the City Traffic Engineer both agree that the request should be granted, grant the request by written finding.

(G) If the City Traffic Engineer and the City Traffic and Parking Commission cannot both agree that the request should be granted, deny the request.

(Ord. 3990 § 1, 1996)

11.04.100 Schedules—Request to amend—Denial.

(A) If a request to amend a schedule in this Title is denied pursuant to Section 11.04.090, the City Traffic Engineer must send a written notice of this fact to the requestor within fifteen days of the decision, and such notice must further state that the requestor has the right to appeal the decision of the City Traffic Engineer to the City Council by filing a written notice of appeal with the City Clerk's office within forty-five days of the date of the written notice of decision.

(B) At the conclusion of an appeal hearing held pursuant to this Section, the City Council may either affirm, reverse or modify the decision of the City Traffic Engineer, or take such other action as it deems warranted.

(Ord. 3990 § 2, 1996)

11.04.110 Schedules—Request to amend—Written findings—Council agenda.

Any member of the City Council may request that a written finding of the City Traffic Engineer regarding a Schedule in this Title be placed on the City Council agenda for discussion and action. The City Council may either affirm, reverse or modify the written finding, or take such other action as it deems warranted.

(Ord. 3990 § 3, 1996)

CHAPTER 11.06 APPLICABILITY AND CONFORMANCE

11.06.010 Conformance required.

Unless otherwise provided, it is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this Title.
(Ord. 3989 § 1, 1996: prior code § 10-7-1)

11.06.020 Responsibility of owners, employers, supervisors.

It is unlawful for the owner, or any other person, employing, supervising or otherwise directing the driver of any vehicle to cause or knowingly permit the operation of the vehicle upon a highway in any manner contrary to law.
(Ord. 2203 § 17, 1981: prior code § 10-7-2)

11.06.030 Orders or directions of officials.

No person shall wilfully fail or refuse to comply with any lawful order or direction of any Officer or official who is authorized to enforce the provisions of this Chapter.
(Ord. 5870 § 4, 2006: Ord. 3090 § 1, 1983: prior code § 10-7-3)

11.06.040 Pushcarts—Riding animals—Animal-drawn vehicles.

Every person propelling any pushcart or riding an animal upon a roadway, and every person driving any animal-drawn vehicle, shall be subject to the provisions of this Code applicable to the driver of any vehicle, except those provisions of this Code which by their very nature can have no application.
(Prior code § 10-7-4)

CHAPTER 11.08 RESERVED*

CHAPTER 11.10 PARKING OR NONMOVING VIOLATIONS†

11.10.010 Violation—Infraction—Handicapped parking—Definitions.

(A) It is a civil infraction, for which both the registered owner and the operator of a vehicle are liable, for such vehicle to be parked or found in violation of any of the parking laws which are set forth in this Title.

(B) Nothing in this Title shall prohibit the parking of a vehicle, consistent with public safety, by a physically handicapped person, a disabled veteran or a person transporting a physically handicapped person or disabled veteran in compliance with NRS 484B.463.

***Editor's note—**Ord. No. 6326, § 1, adopted June 18, 2014, repealed Chapter 11.08 §§ 11.08.010—11.08.110, which pertained to moving violations and derived from prior code §§ 10-21-1—10-21-5; Ord. No. 981, 1962; Ord. No. 988, 1962; Ord. No. 1836, 1976; Ord. No. 1349, 1968; Ord. No. 1362, 1968; Ord. No. 1553, 1972; Ord. No. 2203, 1981; Ord. No. 3090, 1983; Ord. No. 3100, 1984 and Ord. No. 3484, 1990.

†**Editor's note—**Prior ordinance history: Ords. 3089, 3188, 3330, 3352, 3484, 3498 and 3734.

(C) For purposes of the provisions of this Title that pertain to the parking, stopping, standing or loading of vehicles, unless otherwise indicated:

(1) "Operator" means and includes every individual who operates a vehicle as the owner thereof, or as the agent, employee or permittee of the owner, or is in actual physical control of a vehicle.

(2) "Park" or "parking" means the standing, stopping or halting of a vehicle, whether occupied or not, upon a street, including temporarily for the purpose of, and while engaged in, receiving or discharging passengers or loading or unloading freight, cargo, merchandise or other goods, but not including in obedience to traffic regulations, signs or signals or an involuntary stopping of the vehicle by reason of causes beyond the control of the operator of the vehicle.

(3) "Parking meter" means and includes any mechanical device or meter not inconsistent with this Title placed or erected for the regulation of parking by authority of this Title.

(4) "Parking meter space" means any space within a parking meter zone that is assigned to or governed by a parking meter, duly designated for the parking of a single vehicle, and marked as such by painted lines or other durable markings on the curb, street surface, or other location for the space.

(5) "Parking meter zone" includes any street or City parking facility upon or in which parking meters are installed and in operation.

(6) "Registered owner" means a person whose name appears in the records of the Nevada Department of Motor Vehicles as the person to whom a vehicle is registered.

(7) "Street" means any public street, avenue, road, alley, highway, lane, path or other public place located in the City and established for the conveyance of vehicular traffic.

(8) "Vehicle" means any device in, upon or by which any person or property is or may be transported upon a highway, except a device which is operated upon rails or tracks.

(D) For purposes of this Chapter:

(1) "Level 1 appeal" means the initial process for appealing a Notice of Infraction under this Chapter, as described in LVMC 11.10.080.

(2) "Level 2 appeal" means the process for further appealing the decision made in a Level 1 appeal, as described in LVMC 11.10.100.

(3) "Parking Services Division" means the Parking Services Division of the Department of Economic and Urban Development.

(4) "Schedule of fines and penalties" means the schedule adopted pursuant to LVMC 11.10.140.

(Ord. No. 6703, § 3, 10-2-19; Ord. No. 6437, § 1, 8-5-15; Ord. No. 6326, § 6, 6-18-14; Ord. No. 6184, § 3, 3-21-12; Ord. 3829 § 1 (part), 1994)

11.10.020 Violation—Notice of Infraction.

Whenever any vehicle is found in violation of the parking laws which are set forth in this Title, a Notice of Infraction may be issued in accordance with this Chapter.
(Ord. 5870 § 5, 2006: Ord. 3829 § 1 (part), 1994)

11.10.030 Notice of Infraction—Contents.

(A) A Notice of Infraction issued under this Chapter must contain the following information:

(1) The state and license number and the make of the vehicle which is parked in violation of the provisions of this Code;

(2) The location at which the violation occurred;

(3) The date and time of the violation;

(4) The location and number of the parking space, if the vehicle is violating a parking regulation respecting the use of parking meters, as provided for in Chapter 11.54;

(5) The name of the person who issues the Notice of Infraction;

(6) The section of this Code which allegedly is being violated;

(7) Information which advises of the manner in which, and the time within which, the Notice of Infraction must be answered;

(8) Such other information as the Parking Services Division may prescribe.

(B) No error concerning or omission of any of the above-described information is grounds for the dismissal of an action relating to a Notice of Infraction unless the person requesting such a disposition demonstrates substantial prejudice therefrom by a preponderance of the evidence.

(C) Where the Notice of Infraction data is entered into and stored in a computer or similar device, any printout or other output readable by sight which accurately reflects such data is an "original" Notice of Infraction for purposes of this Chapter. Any such recording which is moved or copied into another computer or similar device and is intended to have the same effect by the issuing officer is also an "original" Notice of Infraction for purposes of this Chapter.

(D) Any Notice of Infraction issued pursuant to this Chapter, shall constitute a declaration which is subject to the penalty of perjury.
(Ord. No. 6437, § 2, 8-5-15; Ord. No. 6326, § 7, 6-18-14; Ord. No. 6184, § 4, 3-21-12; Ord. 5870 § 6, 2006: Ord. 3829 § 1 (part), 1994)

11.10.040 Notice of Infraction—Issuance.

The Notice of Infraction may be issued by any peace officer or by any officer of the unit of the Department of Economic and Urban Development assigned to parking enforcement.
(Ord. No. 6184, § 5, 3-21-12; Ord. 3829 § 1 (part), 1994)

11.10.050 Notice of Infraction—Filing.

An original Notice of Infraction, or a facsimile thereof, must be filed with and retained by the Parking Services Division of the Department of Economic and Urban Development and is deemed to be a public record of matters which are observed pursuant to a duty which is imposed by law and is prima facie evidence of the facts which are alleged therein. An original or duplicate of the Notice of Infraction must be served on the person to whom it is issued as provided in Section 11.10.060.
(Ord. No. 6184, § 6, 3-21-12; Ord. 5870 § 7, 2006: Ord. 3829 § 1 (part), 1994)

11.10.060 Notice of Infraction—Service.

(A) The Notice of Infraction must be served upon the owner and/or operator of the vehicle by affixing the Notice to the vehicle in a conspicuous place. Service of the Notice of Infraction by affixation has the same force and effect and is subject to the same penalties for the disregard thereof as if the Notice of Infraction were personally served on the owner and/or operator of the vehicle. In lieu of service by affixation the Notice of Infraction may be personally served upon the owner and/or operator of the vehicle. In lieu of personal service or service by affixation, the Notice of Infraction may be mailed by regular mail to the owner and/or operator of the vehicle where the operator of the vehicle successfully resists affixation and immediate personal service of the Notice of Infraction, and such service has the same force and effect and is subject to the same penalties for the disregard thereof as if the Notice of Infraction were personally served upon the owner and/or operator of the vehicle.

(B) For the purposes of this Chapter, an operator of a vehicle who is not the owner thereof but who uses or operates the vehicle with the permission of the owner, express or implied, is deemed to be the agent of the owner to receive a Notice of Infraction, whether it is personally served on the operator or served by affixation, and service made in either manner is also deemed to be lawful service upon the owner.
(Ord. 3829 § 1 (part), 1994)

11.10.070 Liability—Leased or rented vehicles.

(A) The operator of a vehicle is liable for the civil fines and civil penalties which are imposed pursuant to this Chapter. The registered owner of the vehicle, even if not the operator thereof, is also liable for such civil fines and civil penalties unless the owner is able to demonstrate that the vehicle was used without permission, express or implied. A registered owner who pays any civil fine and/or civil penalty pursuant to this Chapter has the right to recover from the operator of the vehicle the civil fine and/or civil penalty so paid and has a cause of action in any court which has appropriate jurisdiction against the operator of the vehicle for the amount so paid.

(B) In order to hold the operator of a leased or rented vehicle primarily responsible for the issuance of the Notice of Infraction, the name, address and phone number of the person renting or leasing a vehicle found parked in violation of this Title must be provided by the rental or

leasing agent or agency to the Parking Services Division within thirty calendar days of receiving notice of such infraction. Nothing in this provision shall absolve the owner of responsibility for the issuance of the Notice of Infraction as provided in this Chapter.
(Ord. No. 6437, § 1, 8-5-15; Ord. 6007 § 1, 2008: Ord. 5870 § 8, 2006: Ord. 3829 § 1 (part), 1994)

11.10.080 Notice of Infraction—Duties of respondent—Appeal.

(A) The owner or operator of a vehicle concerning which a Notice of Infraction has been issued and served in accordance with this Chapter must do one of the following:

(1) "Admit" responsibility for the commission of the infraction and liability for the penalty imposed and pay the appropriate civil fine and penalty;

(2) Contact the Parking Services Division, "admit" responsibility and liability for the commission of the infraction and any penalties thereon and arrange a schedule for the payment of such fines and penalties; or

(3) Appeal the Notice of Infraction, as provided for in Subsections (B) to (E), inclusive, of this Section in order to disclaim responsibility as the owner or operator, or to dispute the propriety of the issuance of the Notice of Infraction and any penalties related thereto.

→The time periods within which such actions must be taken are set forth in LVMC 11.10.090.

(B) A person may initiate an appeal pursuant to Paragraph (3) of Subsection (A) of this Section (a Level 1 appeal) by submitting an appeal to the Parking Services Division. The appeal shall be submitted on a form provided by the Parking Services Division, which form shall require the person initiating the appeal (the "Level 1 appellant") to indicate, among other things, his or her name, current address, a reference to the Notice of Infraction appealed from and the associated penalties, and the grounds for appeal.

(C) The Level 1 appeal shall be decided administratively by the Parking Services Division based on a review of the Notice of Infraction, the circumstances surrounding its issuance, and any grounds or evidence provided by the appellant. The Parking Services Division may decide in favor of the Level 1 appellant by finding no liability, may find liability but impose a fine in an amount less than that set forth in this Title, or may waive late fees and penalties for any one or more of the following reasons:

(1) The owner of the vehicle is able to demonstrate that the vehicle had been stolen or was displaying stolen license plates at the time it was parked;

(2) In connection with an alleged violation of an ordinance pertaining to a meter, the meter was mechanically malfunctioning to the extent that its reliability was questionable;

(3) Compliance with the ordinance provision alleged to have been violated would have presented an imminent danger to persons or property;

(4) The area of the alleged violation was so inadequately marked or lit as to fail to give sufficient notice that access to the area was restricted or prohibited;

(5) A mechanical malfunction of the vehicle caused it to be parked in the area alleged and it was removed as soon as could be reasonably expected thereafter;

(6) At the time of the issuance of the Notice of Infraction, the vehicle was parked consistent with and in compliance with NRS 484B.463 pertaining to persons with a disability or handicap;

(7) The Level 1 appellant establishes by a preponderance of the evidence that, through no fault of himself or his agent, he or she failed to receive notice of the issuance of the Notice of Infraction as provided in this Chapter;

(8) The operator of the vehicle experienced a medical or other emergency;

(9) The Notice of Infraction was issued in error;

(10) The violation relates to the parking of a law enforcement vehicle while on official business;

(11) The existence of unclear transfer of ownership of a vehicle;

(12) Bankruptcy or death of an owner;

(13) Payment was made for the wrong parking space;

(14) The vehicle in question was registered even though the current registration was not displayed;

(15) The vehicle in question was eligible to park in a handicapped space even though placard not displayed;

(16) The vehicle in question was ineligible to park in a handicap access aisle but was eligible to park in a handicap space; or

(17) Financial hardship—living below federally designated poverty level.

(D) Notwithstanding any other provision of this Chapter, the Parking Services Division has the discretion, but is under no obligation, to decide in favor of a particular appellant by finding no liability, finding liability but imposing a fine less than that set forth in this Title, waiving late fees and penalties otherwise accruing, or converting a Notice of Infraction to a warning upon a determination that, considering all the circumstances, unfairness would otherwise result. Examples include the issuance of a Notice of Infraction:

(1) Under circumstances or in a manner contrary to one or more policies duly adopted by the Parking Services Division; or

(2) At a location concerning which motorists have been mistakenly led to believe that parking at that location and time is not subject to the parking restrictions otherwise in force.

→Any disposition under the authority of this Subsection (D) must be properly documented.

(E) Notice of the decision made by the Parking Services Division in connection with a Level 1 appeal shall be provided to the Level 1 appellant by:

(1) Mailing such notice to the appellant at the address provided by the Level 1 appellant;

(2) Mailing such notice to the address of the Level 1 appellant on file with the Nevada Department of Motor Vehicles; or

(3) Sending such notice to the Level 1 appellant by electronic mail, if such appellant has requested communication by means of electronic mail.

(F) Within thirty days after notice of a decision has been provided pursuant to Subsection (E) of this Section, the Level 1 appellant must:

(1) Pay or cause to be paid in full all fines and penalties remaining to be paid regarding the Notice of Violation;

(2) Make arrangements with the City regarding a schedule for the payment of such fines and penalties; or

(3) Request an appeal hearing (a Level 2 appeal) in accordance with LVMC 11.10.100.
(Ord. No. 6437, § 5, 8-5-15)

Editor's note—Ord. No. 6437, § 4, adopted August 5, 2015, repealed the former § 11.10.080, and § 5 of Ord. No. 6437 enacted a new § 11.10.080 as set out herein. The former § 11.10.080 pertained to notice of infraction—duties of respondent—hearing and derived from Ord. 3829, 1994; Ord. No. 5334, 2001; Ord. No. 6096, adopted June 2, 2010; Ord. No. 6184, adopted March 21, 2012 and Ord. No. 6326, adopted June 18, 2014.

11.10.090 Notice of Infraction—Response—Supplementary notice.

(A) Subject to the provisions of Subsection (C), a response to a Notice of Infraction that is intended to admit liability, in accordance with LVMC 11.10.080(A)(1) or 11.10.080(A)(2), must be made within thirty calendar days after the date on which the Notice of Infraction is served. If no response is received during such thirty-day period, the Notice of Infraction is subject to an additional civil penalty as set forth in the schedule of fines and penalties, identified under the heading "Late 1."

(B) After the expiration of the thirty-day response period described in Subsection (A), the Parking Services Division must send a Notice of Delinquency by regular mail to the registered owner of the vehicle at the registered owner's last known address, as indicated by the vehicle registration which is maintained by the Nevada Department of Motor Vehicles. The Notice of Delinquency must contain the date of the infraction, the amount of the civil fine and the amount of any penalty which is associated therewith. The registered owner will have fifteen calendar days after the date of the Notice of Delinquency in which to respond thereto in the manner which is provided in LVMC 11.10.080. If no response is made to the Notice of Delinquency within such additional fifteen-day period, an additional civil penalty will be assessed in an amount set forth in the schedule of fines and penalties, identified under the heading "Late 2".

(C) A person who wishes to appeal a Notice of Infraction in accordance with LVMC 11.10.080(A)(3) must do so within ninety calendar days after the date on which the Notice is served. To the extent the appeal is filed after any of the response periods set forth in Subsections (A) and (B) of this Section, the additional civil penalties shall attach to the Notice of Infraction and the appeal will include those penalties in addition to the amount of the initial civil fine.

(D) In addition to and independent of any notice required by this Chapter, the Parking Services Division is authorized to provide supplementary notice of the existence of and duties regarding a Notice of Infraction, including without limitation an additional notice fourteen days after the issuance and service of a Notice of Infraction. Such supplementary notice is provided as a courtesy only, and any failure or irregularity regarding such supplementary notice provides no defense or recourse under this Chapter.

(E) If a person fails to respond to a Notice of Infraction or a Notice of Delinquency in accordance with this Chapter, the City is entitled to collect the amount of any fines and penalties by means of any remedy available under applicable law, including without limitation filing a notice of nonpayment with the Nevada Department of Motor Vehicles and referring the matter to a collection agency.

(Ord. No. 6437, § 6, 8-5-15)

Editor's note—Ord. No. 6437, § 4, adopted August 5, 2015, repealed the former § 11.10.090, and § 5 of Ord. No. 6437 enacted a new § 11.10.090 as set out herein. The former § 11.10.090 pertained to notice of infraction—response and derived from Ord. 3829, 1994; Ord. No. 5595, 2003 and Ord. No. 6096, adopted June 2, 2010.

11.10.100 Level 2 appeals.

(A) A Level 2 appeal referred to in Paragraph (3) of Subsection (F) of LVMC 11.10.080 is initiated by:

(1) Contacting the offices of the Parking Services Division within the thirty-day period referred to;

(2) Requesting a Level 2 appeal hearing; and

(3) Receiving a date for hearing the appeal.

(B) A Level 2 appeal may be filed by or on behalf of the registered owner of the vehicle that is subject of the Notice of Infraction.

(C) A person requesting a Level 2 hearing (a "Level 2 appellant") shall provide such information as the Parking Services Division may require. A Level 2 hearing shall be conducted by a Hearing Officer provided for by the City. A Level 2 appellant shall be bound by the decision of the Hearing Officer concerning liability for the infraction(s) and responsibility for the penalties thereon. It is expected that a Level 2 appellant will appear in person or by representative at a Level 2 hearing. However, at the Hearing Officer's discretion, a hearing may be held and the appeal decided without an appearance by the Level 2 appellant. If any Level 2 appellant scheduling a hearing before the Hearing Officer fails to appear at such

hearing without having first sought and obtained a continuance of such hearing, the Hearing Officer may (but is not required to) enter a decision against the appellant for the full amount of fines and penalties scheduled to be reviewed. In connection with the request for a hearing, the Level 2 appellant must acknowledge the binding nature of the hearing and the Hearing Officer's authority in the event the appellant fails to appear at a hearing. The acknowledgment shall be in substantially the following form:

I _____, hereby request a binding hearing before the Hearing Officer. My address is _____. I request that this hearing involve Notice(s) of Infraction(s) Number _____. I understand that the Hearing Officer is an attorney and not an elected or appointed judge.

I understand that I am bound by the decision of the Hearing Officer. I understand that I am expected to appear in person or by representative at the requested hearing, but that the hearing may be held and the appeal decided without such appearance. I understand that if I fail to appear for the scheduled hearing before the Hearing Officer without first obtaining a continuance of such hearing, the Hearing Officer may (but is not required to) enter a decision against me for the full amount and penalties scheduled to be reviewed. I understand and agree that if necessary due to my lack of timely payment, the City of Las Vegas can and will use this binding decision to have a formal civil judgment entered against me in the Las Vegas Municipal Court.

I understand that if a civil judgment is obtained, the City may seek and obtain a writ of execution against me. I understand that if a writ of execution is obtained, my wages and/or bank accounts may be garnished, liens may be put on my property and my vehicle(s) may be towed or immobilized. I also understand that my vehicle(s) may be immobilized without a writ of execution if:

1. I accumulate more than $200.00 in unpaid civil fines, judgments and penalties for parking violations; and

2. At least two Notices of Infraction have been issued and served with respect to vehicles registered to me and have not been responded to within the time set forth in LVMC 11.10.090.

Knowing all of the above, I still wish to request a binding hearing before the Hearing Officer on the above-described Notice(s) of Infraction(s). I hereby acknowledge the above and further acknowledge that at my request a hearing has been set for _____, 20____ at the hour of ____m.

_____
Appellant

(D) Any Level 2 appeal hearing conducted pursuant to this Section shall be presided over by a Hearing Officer who shall be an attorney licensed to practice law in the State of Nevada.

(E) The Hearing Officer may decide in favor of the Level 2 appellant by finding no liability, may find liability but impose a fine in an amount less than that set forth in this Title, or may waive late fees and penalties for any one or more of the reasons set forth in Subsection (C) or Subsection (D) of LVMC 11.10.080.

(F) The appellant shall pay the total civil fines and penalties forthwith or at such times and on such conditions as the Hearing Officer shall prescribe if it is found that the person has either failed to appear or otherwise defend against the issuance of the infraction, or that the infraction has been committed and no applicable defense exists. If the appellant fails to pay in accordance with the times and conditions of the Hearing Officer's decision and any amount due remains unpaid thirty days after the date due, all amounts outstanding shall be deemed delinquent, including unpaid portions of the original fine amount and associated penalties. The City shall have the right to collect such amounts by any means set forth in this Chapter or otherwise available under law.

(G) Upon reaching a decision, the Hearing Officer shall, as soon as practicable thereafter, file a written decision substantially conforming to the following form:

> _____, Appellant vs. City of Las Vegas, Nevada, Parking Services Division, Respondent. Before, _____, Hearing Officer for the City of Las Vegas, decision is entered in favor of _____, (appellant or City Parking Services Division) for $_____ (enter $0.00 if judgment is for the appellant), on the ____ day of _____, 20_____. I certify that the foregoing is a correct reflection of the decision entered in the action properly brought for my consideration pursuant to LVMC Chapter 11.10.
>
> _____
> Hearing Officer

(H) The City Attorney may petition the Las Vegas Municipal Court for the entry of a civil judgment against the appellant in an amount equal to that stated in the written decision of the Hearing Officer if the City Attorney determines this action to be necessary to enforce such decision. Service of such petition on the defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the registered owner of the vehicle at his last known address, as indicated by the vehicle registration which is maintained by the Nevada Department of Motor Vehicles or in any other manner which is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service shall be filed upon such service of the petition. Once a petition for civil judgment pursuant to this Subsection (H) has been filed with the Municipal Court, the assigned judge has jurisdiction to grant or deny the relief prayed for therein.
(Ord. No. 6437, § 5, 8-5-15)

11.10.110 Filing and processing of a Level 1 appeal or Level 2 appeal.

In connection with the filing and processing of a Level 1 appeal or Level 2 appeal:

(A) A person who is an individual may be represented by a member of the person's immediate family, with the written consent of the individual to be represented, or by

an attorney who is licensed to practice law in Nevada. A business or other entity may be represented by an officer of the entity or by an attorney who is licensed to practice law in Nevada.

(B) A properly filed Notice of Infraction shall constitute a claim of liability and a claim for relief and no other such claim shall be required. Prima facie proof of the violation alleged shall be established by means of a certified copy of the Notice of Infraction or by reference to the data stored in a computer or other device as described in Subsection (C) of LVMC 11.10.030. No formal appearance by the City Attorney's office is required. The hearing and disposition of all appeals shall be informal, with the purpose of dispensing timely and appropriate justice.

(C) The burden of proving any defense shall be upon the person raising such defense.
(Ord. No. 6437, § 5, 8-5-15)

11.10.120 Payment schedules.

(A) In connection with a request to arrange a payment schedule pursuant to LVMC 11.10.080(A)(2), or as otherwise made available by the Parking Services Division under this Chapter, the Parking Services Division is authorized to charge an administrative fee in the amount of twenty-five dollars for the establishment of such a schedule. The fee is non-refundable.

(B) If a person who has arranged a payment schedule pursuant to this Chapter fails to pay in accordance with the terms and conditions of the schedule and any amount due remains unpaid fifteen days after the date due, all amounts outstanding shall be deemed delinquent, including unpaid portions of the original fine amount and associated penalties. The City shall have the right to collect such amounts by any means set forth in this Chapter or otherwise available under law.
(Ord. No. 6437, § 5, 8-5-15)

11.10.130 Monetary sanctions for prohibited or unlawful acts.

(A) Subject to the provisions of Subsection (B), whenever in this Title an act relating to the stopping, standing or parking of a vehicle is prohibited or limited, or the violation of such a prohibition or limitation is made or declared to be unlawful or an offense or a misdemeanor, the sanction therefor is civil in nature in the monetary amount which is set forth in the schedule of fines and penalties.

(B) With respect to any particular violation of the following types, the City may proceed either by means of a criminal prosecution or by means of the civil infraction process set forth in this Chapter 11.10:

(1) A violation of LVMC 11.54.205 or 11.65.110;

(2) A violation of any other provision of Title 11 pertaining to the stopping, standing or parking of a vehicle where the violation relates to the misuse of equipment, or

involves fraud, deceit or misrepresentation, or where the language of the provision demonstrates a specific intent for a criminal rather than civil sanction to be applied. (Ord. No. 6437, § 6, 8-5-15; Ord. No. 6173, § 2, 12-21-11; Ord. 5274 § 1, 2000: Ord. 3829 § 1 (part), 1994)

11.10.140 Schedule of civil fines established.

(A) There is hereby adopted a schedule of fines and penalties for infractions of the parking laws and regulations which are set forth in this Title, as well as infractions processed under this Chapter as civil violations pursuant to LVMC 10.78.020 or 13.04.070(A). The schedule is set forth as Subsection (D) of this Section. In the case of any violation that is not specifically identified in the schedule, the fine shall be twenty-five dollars, with the penalties to be determined as in the case of a violation specifically listed with a fine amount of twenty-five dollars.

(B) The owner and/or operator shall be liable for an additional collection fee where the collection of the fines, parking permit fees, parking facility usage fees, and penalties provided for in this Title is referred for collection to a private collection agency. The amount of such fee may not exceed twenty-five percent of the outstanding indebtedness or two hundred fifty dollars, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency or the Parking Services Division to the amount sought to be collected. Any judgment or amended judgment entered under this Chapter may include the amount of the collection fee authorized by this Subsection (B).

(C) When a notice of nonpayment of a civil fine imposed under this Chapter has been filed with the Nevada Department of Motor Vehicles pursuant to NRS 484B.527, the City is authorized to charge the party liable an administrative fee of fifteen dollars to cover the costs of the filing, handling and release of the notice of nonpayment. The administrative fee shall be paid at the time the fine is collected and the release authorized.

(D) Schedule of Fines and Penalties.

Schedule of Fines and Penalties (Dollars)				
Violation	**Description**	**Fine**	**Late 1**	**Late 2**
10.78.020	Display for Sale of a Motor Vehicle—Private Property	$100.00	$35.00	$35.00
11.44.020(A)	3 Minute Passenger Loading Zone	25.00	10.00	10.00
11.44.020(B)	Immediate Loading and Unloading Zone	75.00	25.00	25.00
11.44.060	Commercial Loading Zone	75.00	25.00	25.00
11.44.080	Tour Bus, etc. Zone	75.00	25.00	25.00
11.54.240(C-1)	Overtime Meter Food Vendor	80.00	30.00	30.00
11.54.240(C-2)	Unauthorized Food Vendor	100.00	35.00	35.00
11.54.240(C-3)	Ineligible Food Vendor	100.00	35.00	35.00
11.24.010	Unlawful Activities on public thoroughfares or in City parking facilities	75.00	25.00	25.00

Schedule of Fines and Penalties (Dollars)				
Violation	**Description**	**Fine**	**Late 1**	**Late 2**
11.52.030(A)	Red Curb	50.00	20.00	20.00
11.52.040(A)	Parking Facing Traffic/Parallel to Curb	50.00	20.00	20.00
11.52.040(B)	Over 18" from Curb	35.00	15.00	15.00
11.52.050	Blocking Alley Lane	25.00	10.00	10.00
11.52.060	Projecting over 15' into street	50.00	20.00	20.00
11.52.110	Locking, setting brake, turning wheels	25.00	10.00	10.00
11.52.130(A-1)	Restricted Parking	25.00	10.00	10.00
11.52.130(A-10)	Double Parking	25.00	10.00	10.00
11.52.130(A-11)	Within 15' of an Intersection	50.00	20.00	20.00
11.52.130(A-12)	Within 20' of a Marked Crosswalk	50.00	20.00	20.00
11.52.130(A-13)	Within 30' of a Stop/Yield Sign or Signal	50.00	20.00	20.00
11.52.130(A-14)	No Parking in Bike Lane	50.00	20.00	20.00
11.52.130(A-15)	Blocking Traffic, Pedestrian or Vision	75.00	25.00	25.00
11.52.130(A-16)	Bridge, structure, tunnel or underpass	25.00	10.00	10.00
11.52.130(A-2)	Fire Lane	100.00	35.00	35.00
11.52.130(A-3)	Traffic Hazard—No Stopping/Standing/Parking	100.00	35.00	35.00
11.52.130(A-4)	Too close to Fire Hydrant	100.00	35.00	35.00
11.52.130(A-5)	Within 5' of an Elevator/Chute	25.00	10.00	10.00
11.52.130(A-6)	Blocking Sidewalk Area	50.00	20.00	20.00
11.52.130(A-7)	Blocking or Too Close to Driveway	25.00	10.00	10.00
11.52.130(A-8)	Within 50' of a railroad track	25.00	10.00	10.00
11.52.130(A-9)	Too close to Fire Station Entrance	35.00	15.00	15.00
11.52.135	Handicap Parking	250.00	50.00	50.00
11.52.136	Handicap Access Aisle	100.00	35.00	35.00
11.52.180(B)	No Parking in Alley	50.00	20.00	20.00
11.52.180(C)	30 Minute Parking in Alley	25.00	10.00	10.00
11.52.300	Nighttime and nonmotor vehicles	25.00	10.00	10.00
11.52.305	Commercial Vehicles, RVs and Trailers	75.00	25.00	25.00
11.52.320(A)	City Parking Facilities—Conformance to Signs	25.00	10.00	10.00
11.52.320(B)	City Parking Facilities—Failure to Pay Required Parking Fee	35.00	15.00	15.00
11.52.335	Parking Violations in Parks	25.00	10.00	10.00
11.54.040	Parking in Designated Space	25.00	10.00	10.00
11.54.190	Exempt Permit Over 2 Hours	25.00	10.00	10.00
11.54.200 (A—D)	Parking Meter Violations	25.00	10.00	10.00
11.54.200(E)	Hooded Meter	50.00	20.00	20.00

Schedule of Fines and Penalties (Dollars)				
Violation	**Description**	**Fine**	**Late 1**	**Late 2**
11.60.020	Bus Zone	75.00	25.00	25.00
11.60.080	Taxi Zone	75.00	25.00	25.00
11.65.110	Residential Permit—Abuse of Permit	50.00	20.00	20.00
13.04.070(A)	Display for Sale of a Motor Vehicle—Public ROW	100.00	35.00	35.00

(Ord. No. 6703, § 4, 10-2-19; Ord. No. 6437, § 7, 8-5-15; Ord. No. 6326, § 9, 6-18-14; Ord. 6007 § 2, 2008: Ord. 5274 § 2, 2000: Ord. 5133 § 1, 1999: Ord. 3829 § 1 (part), 1994)

11.10.150 Alternative payment of fines—Donation program.

(A) Notwithstanding the provisions of LVMC 11.10.140 or any other provision of this Chapter, the Parking Services Division, from time to time and upon authorization pursuant to Subsection (B), may operate a program by which fines for parking infractions may be paid by means of the donation of qualifying items in lieu of the payment of money. In order to satisfy the amount of the fine for any particular infraction, the qualifying items donated must be of equal or greater value than the amount of the corresponding fine.

(B) A program described in Subsection (A) may be authorized no more than twice per calendar year and must be approved in advance, as to both time period and duration, by the City Manager. The Parking Services Division may establish such procedures and requirements regarding program events as may be desirable or appropriate, including without limitation what types of qualifying items will apply to a particular program event; a range of dates within which parking infractions must have been issued in order to be eligible; and a time period within which donations in lieu of payment must be made. The determination of the value of donations is completely within the discretion of the Parking Services Division.

(C) For purposes of Subsections (A) and (B), "qualifying items" means food items, children's toys, or personal items for the benefit of specifically-identified groups in need, including without limitation school supplies.
(Ord. No. 6829, § 1, 2-1-23; Ord. No. 6534, § 1, 6-15-16)

11.10.160 Failure to pay a required parking fee—Collection.

In the case of a failure to pay a required parking fee as referenced in LVMC 11.52.310 and 11.52.320, the City is entitled to collect the required parking fee in addition to and independent of any civil fine that may be imposed, and the fee amount shall be added to and be collectible with the amount of fines and penalties associated with the violation.
(Ord. No. 6629, § 3, 8-15-18)

11.10.170 Interference with parking-related services.

It is unlawful to physically obstruct, or commit assault or battery upon, a parking enforcement officer of the City, or an employee or agent of a person or entity providing parking-related services to the City by contract. Unless a greater penalty is prescribed by State law, violation of this Section is a misdemeanor.
(Ord. No. 6829, § 2, 2-1-23)

11.10.180 Reserved.

Editor's note—Ord. No. 6437, § 8, adopted August 5, 2015, repealed the former § 11.10.180, which pertained to other parking infractions and derived from Ord. No. 3829, 1994; Ord. No. 5095; Ord. No. 6149, adopted May 4, 2011; Ord. No. 6173, adopted December 21, 2011 and Ord. No. 6326, adopted June 18, 2014.

11.10.200 Removal of vehicle—Circumstances.

(A) The Las Vegas Metropolitan Police Department, the Department of Public Safety, and the Parking Services Division of the Department of Economic and Urban Development are authorized to remove a vehicle to the nearest garage or other place that has been designated for vehicle storage by the City, under the circumstances which are hereinafter enumerated:

(1) When any vehicle is left unattended upon any highway, bridge, viaduct or causeway, or in any tube or tunnel, if such vehicle constitutes an obstruction to traffic;

(2) When a vehicle upon a street or highway is so disabled as to constitute an obstruction to traffic and the person who is in charge of such vehicle is, by reason of physical injury or other reason, incapacitated to the extent that he is unable to provide for its custody or removal, or is not in the immediate vicinity of the disabled vehicle;

(3) When any vehicle is illegally parked in a parking space or location for twenty-four hours or more or is parked so illegally as to constitute a definite hazard or obstruction to the normal movement of traffic;

(4) When the person who is in charge of a vehicle is unable to provide for its custody or removal within:

(a) Twenty-four hours after abandoning such vehicle on any freeway, United States highway or other primary arterial street, or

(b) Seventy-two hours after abandoning such vehicle on any other street;

(5) When the person who is driving or in actual physical control of a vehicle is arrested for any alleged offense for which the arresting officer is required by law to take such person before a proper magistrate without unnecessary delay; or

(6) In accordance with Section 11.10.240.

(B) As used in this Section 11.10.200 to Section 11.10.280, the term "vehicle" shall include any automobile, motorcycle, truck, boat trailer, utility trailer, or any other vehicle capable of being driven or towed on any street, highway, or right-of-way.

(C) Prior to the release of any vehicle impounded pursuant to this Section, the operator, registered owner or his designee must pay the costs of such impoundment.
(Ord. No. 6518, § 17, 4-6-16; Ord. No. 6389, § 1 12-17-14; Ord. 5334 § 2, 2001: Ord. 3829 § 1 (part), 1994)

11.10.210 Removal of vehicle—Notice—Known owner.

Whenever a person removes a vehicle, as authorized in LVMC 11.10.200, and such person knows or is able to ascertain from the registration records in the vehicle or by other reasonable means the name and address of the owner thereof, such person must immediately give, or cause to be given, notice in writing and by telephone, if possible, to the owner of the fact of such removal, the reasons therefor and the place to which the vehicle has been removed. In the event that the vehicle is stored in a public garage, a copy of the notice shall be given to the proprietor of the garage.
(Ord. 3829 § 1 (part), 1994)

11.10.220 Removal of vehicle—Notice—Unknown owner.

Whenever a person removes a vehicle pursuant to LVMC 11.10.200 and does not know and is not able to ascertain the name of the owner, or for any other reason is unable to give the notice to the owner, as provided in LVMC 11.10.210, and the vehicle is not picked up by the owner or his designee within a period of three days, such person must immediately send or cause to be sent a written notice of such removal by mail to the Nevada Department of Motor Vehicles and file a copy of such notice with the proprietor of the garage or place in which the

vehicle is stored. Such notice must include a complete description of the vehicle, the date, time and place from which it was removed, the reasons for such removal and the name of the garage or place in which the vehicle is stored.
(Ord. 3829 § 1 (part), 1994)

11.10.230 Writs of execution—Authorized.

(A) The use of writs of execution issued by the Las Vegas Municipal Court is authorized within the City as an aid in the enforcement of the parking ordinances of the City.

(B) The City of Las Vegas in whose favor a judgment is given may upon the entry of such judgment, or at any time before the judgment expires, obtain the issuance of a writ of execution for its enforcement as prescribed in Chapter 21 of the Nevada Revised Statutes and Justice Court Rules of Civil Procedure, Rule 69. Such issuance may be conditioned upon the failure of the judgment debtor to pay the judgment and expenses of enforcement thereof within a specified period of time or any other reasonable and just condition.

(C) Upon the City's request, a writ of execution issued pursuant to Subsection B of this Section shall allow the City to obtain possession of the defendant's vehicle(s) through towing the vehicle(s), at the expense of the defendant, from any public street, highway, viaduct, causeway, parking space, tube, tunnel, bridge or alley in compliance with the procedures prescribed in Sections 11.10.210 and 11.10.220. Upon the City's request, a writ of execution issued pursuant to Subsection B of this Section shall allow the City to obtain possession of the defendant's vehicle(s) through the use of an immobilizing device. A fee of fifty dollars per vehicle shall be recovered from the owner or operator of the vehicle(s) prior to the removal of the immobilizing device.

(D) Notwithstanding the provisions of Subsection (C), the City may, without obtaining a writ of execution, obtain possession of a vehicle by means of an immobilizing device in accordance with Section 11.10.240.
(Ord. 5334 § 3, 2001: Ord. 3829 § 1 (part), 1994)

11.10.240 Automobile immobilizer—Conditions for use.

(A) The City is authorized to attach an immobilizing device to a vehicle that is parked on any public right-of-way or City-owned or operated lot if the vehicle is included on an immobilization eligibility list. A vehicle may be included on an immobilization eligibility list only if:

(1) The registered owner of the vehicle has accumulated more than two hundred dollars in unpaid civil fines, judgments and penalties, and at least two Notices of Infraction have been issued and served with respect to that vehicle and have not been responded to within the time set forth in Section 11.10.090; and

(2) At least twenty-one days before including the vehicle on the list, the City provided notice of impending vehicle immobilization in accordance with Subsection (B) of this Section.

(B) Notice of impending vehicle immobilization shall be provided by mailing such notice to the registered owner of the vehicle at the address last known to the City or on file with the Nevada Department of Motor Vehicles. The notice shall include the dates and nature of the infractions which formed the basis for the civil fines, judgments and penalties; the numbers of the Notices of Infraction; and the amounts owing. The notice shall advise that the registered owner may challenge the validity of the notice by requesting a hearing. The hearing shall be held before the Hearing Officer for the sole purpose of allowing the registered owner to show that:

(1) The amounts in question have been paid; or

(2) The vehicle was not properly included on the immobilization eligibility list in accordance with the provisions of Subsection (A) of this Section.

(C) A vehicle shall be removed from the immobilization eligibility list if:

(1) The registered owner pays all fines, judgments, penalties and applicable immobilization fees;

(2) The registered owner executes an agreement to pay within a specified period of time all fines, judgments, penalties and applicable immobilization fees, with a condition that, for default on the payment obligation, the vehicle shall be subject to reinstatement on the immobilization list; or

(3) The Hearing Officer finds that the vehicle was not properly included on the immobilization eligibility list.

(D) In connection with the immobilization of a vehicle, a notice shall be attached to the vehicle in a conspicuous place advising:

(1) That the vehicle is immobilized and that any attempt to move the vehicle may result in its damage;

(2) That the unauthorized removal of or damage to the immobilizing device is a violation of law;

(3) How release of the immobilizing device may be obtained; and

(4) How a hearing may be obtained pursuant to Subsection (H).

(E) The City may (but is not obligated to) cause to be towed and stored any vehicle which has been immobilized if, within twenty-four hours after immobilization, no arrangements have been made for the vehicle's release. An unregistered vehicle that is immobilized may be towed and stored immediately. Within ten days after an immobilized vehicle is towed, the City shall send a notice advising that the vehicle has been immobilized and towed. The notice shall be provided by means of certified mail, return receipt requested, mailed to the registered owner at the address last known to the City or on file with the Department of Motor Vehicles. The notice shall state that the registered owner is entitled to request a hearing pursuant to Subsection (H) of this Section to determine the validity of the immobilization. If a vehicle is towed pursuant to this Subsection (E), the City (or a tow

operator acting at the City's direction) is authorized to remove the immobilization device for purposes of transportation and reapply the device after the vehicle is stored at the location designated for storage by the City.

(F) An immobilization fee of seventy-five dollars shall be paid by or on behalf of the registered owner of the vehicle prior to the removal of an immobilizing device.

(G) Release of an immobilized vehicle, either by the City or by an authorized tow operator who has been directed by the City to do so, may be obtained by:

(1) The payment of all fines, judgments, penalties and applicable immobilization, towing and storage fees; or

(2) In connection with the request of a hearing to determine the validity of the immobilization of the vehicle, the posting of a bond or other sufficient undertaking in an amount which will satisfy all fines, judgments, penalties and applicable immobilization, towing and storage fees.

(H) The registered owner of a vehicle may request a hearing regarding the immobilization of the owner's vehicle. The request for hearing must be made within ten days after the date of the notice described in Subsection (D) or Subsection (E) of this Section. The hearing shall be held before the Hearing Officer and shall be limited to a determination of whether there was a factual and legal basis for the immobilization. Failure to request or attend a hearing shall be deemed a waiver of the right to a hearing. If the Hearing Officer determines that there was a factual and legal basis for the immobilization, the bond or undertaking shall be forfeited. If the hearing officer determines that there was an insufficient factual and legal basis for the immobilization, the bond or undertaking shall be exonerated.
(Ord. No. 6437, § 9, 8-5-15; Ord. No. 6389, § 1 12-17-14; Ord. 5870 § 11, 2006: Ord. 5334 § 5, 2001)

11.10.245 Unlocking/releasing of immobilization device.

In connection with the use of an immobilization device pursuant to this Chapter, the City is authorized to employ, either by itself or by means of contract, equipment and technologies that allow the operator or owner of a vehicle to unlock or otherwise release the immobilization device by the electronic payment of delinquent fines and immobilization fees. In connection with the use of such equipment and technologies, and in addition to and independent of applicable immobilizer fees under this Title, the City may require the operator or owner of a vehicle to:

(A) Acknowledge responsibility to return an immobilization device to a designated location within a specified time period; and

(B) Authorize a hold to be placed on a debit or credit card account in the amount of seventy-five dollars, to be either: 1) released when the device is properly returned, or 2) kept by the City or its vendor if the device is not properly returned within the specified time period.
(Ord. No. 6703, § 5, 10-2-19)

11.10.250 Writ of execution—Procedure upon issuance.

Upon the issuance of a writ of execution pursuant to Section 11.10.230, the provisions of Chapter 21 of the Nevada Revised Statutes shall apply, including the following:

(1) The writ must be issued in the name of the City of Las Vegas, sealed with the seal of the Las Vegas Municipal Court, subscribed by a clerk of such court, directed to the Sheriff of Clark County or the sheriff of the county where the real or personal property subject to execution is located and otherwise in substantially the same form as directed by Nevada Revised Statutes 21.025.

(2) A notice of execution as prescribed in Nevada Revised Statute 21.075 and 21.076 must be prepared with the City of Las Vegas named as the judgment creditor.

(3) The notice and a copy of the writ must be provided to the Sheriff who must serve the notice on the defendant—judgment debtor by regular mail at his last known address, or, if represented by an attorney, at the attorney's office. The notice must be served by regular mail the next business day after the writ of execution was served.

(4) In order to claim exemption of any property, the defendant must, within eight calendar days after the notice is mailed, serve the Sheriff and the City of Las Vegas, through the City Attorney and file with a Clerk of the Las Vegas Municipal Court an affidavit setting out the claim of exemption. The Municipal Court Administrator shall provide the form for the affidavit.

(5) When the affidavit is served, the Sheriff shall release the property unless within five calendar days after written demand by the Sheriff, the City of Las Vegas files a motion for a hearing to determine whether the money or property is exempt.

(6) The hearing to determine whether the property or money is exempt must be held within ten calendar days after the filing of the motion for a hearing, unless the court continues the hearing for good cause shown. The defendant shall receive at least five calendar days' notice of the hearing.

(7) If at any time the defendant satisfies the judgment, including costs for the enforcement thereof, any property taken pursuant to a writ of execution shall be released to the defendant as soon as possible thereafter.

(Ord. 3829 § 1 (part), 1994)

11.10.260 Failure to timely file claim of exemption.

If the defendant—judgment debtor fails to timely file a claim of exemption or fails to appear at the scheduled hearing to resolve the validity of the claimed exemption, title and/or lawful possession of the property taken pursuant to the writ of execution may be transferred in satisfaction of the judgment and expenses of enforcing such judgment as provided by Chapter 21 of the Nevada Revised Statutes. If such property is sold, any amount received in excess of the judgment and expenses shall be returned to the judgment debtor as provided by Chapter 21 of the Nevada Revised Statutes.

(Ord. 3829 § 1 (part), 1994)

11.10.270 Towing and automobile immobilizers—Authorized.

Vehicles may be towed and immobilizing devices may be placed pursuant to the issuance of a writ of execution by the Sheriff of Clark County, or his authorized designee, or as otherwise provided in this Chapter.
(Ord. 5334 § 6, 2001: Ord. 3829 § 1 (part), 1994)

11.10.280 Automobile immobilizers—Unlawful acts—Exceptions.

(A) Except as otherwise provided in Subsection (B), it is unlawful for any person to deface, damage, tamper with, open, break, destroy or remove any immobilizing device; impair the usefulness thereof; leave such a device attached to the immobilized vehicle and transport it to another location for purposes of depriving the City of its use; or attempt to do any of those acts.

(B) The prohibitions described in Subsection (A) do not apply to the acts of any of the following when acting within the scope of their duties or employment:

(1) A City officer, employee, or contractor engaged in the parking enforcement function;

(2) A peace officer; or

(3) A person engaged in the provision of emergency services.
(Ord. No. 6829, § 4, 2-1-23; Ord. 5334 § 7, 2001: Ord. 3829 § 1 (part), 1994)

11.10.290 Parking enforcement services.

(A) The Parking Services Division is authorized to enter into agreements with the owners or lessees of parking lots or parking structures by which the Division will provide parking enforcement services related thereto. The Division shall enforce the parking prohibitions, rules, regulations and limitations that have been agreed upon and established by means of any such agreements. The prohibitions, rules, regulations and limitations to be enforced pursuant to any such agreement may include:

(1) The parking-related provisions of this Title as if the parking lot or structure were a City parking facility under this Title;

(2) The parking prohibitions, rules and regulations that the property owner or lessee has established for the lot or structure; or

(3) Any combination thereof.

(B) Unless otherwise specified in an agreement referred to in Subsection (A), the parking prohibitions, rules, regulations and limitations established by the agreement shall be deemed to be the City's parking prohibitions, rules, regulations and limitations for purposes of the enforcement provisions, fines and other remedies of this Title. In the case of a parking prohibition, rule, regulation or limitation established by an agreement referred to in Subsection (A) that does not correspond directly to a prohibition, rule, regulation or

limitation described in this Title, the Division, for enforcement purposes, is authorized to treat the agreed-upon prohibition, rule, regulation or limitation as if it were the prohibition, rule, regulation or limitation of this Title that most closely corresponds.

(C) In order to enforce any parking prohibition, rule, regulation or limitation referred to in Subsection (A), notice of the applicable prohibition, rule, regulation or limitation must be provided to those who will be parking vehicles in the lot or structure, whether by means of signage or otherwise.
(Ord. No. 6703, § 6, 10-2-19; Ord. No. 6645, § 1, 10-3-18)

CHAPTER 11.12 RULES OF THE ROAD

11.12.010 Course of intersection turns—Regulation authority.

The City Traffic Engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.
(Ord. 283 § 1 (part), 1943: Ord. 170 § 24(6) (part), 1931: prior code § 10-13-1(A)

11.12.020 Course of intersection turns—Conformance to indicators.

When authorized markers, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the direction of such indications.
(Ord. 283 § 1 (part), 1943: Ord. 170 § 24(6) (part), 1931: prior code § 10-13-1(B))

11.12.030 Turning restriction authority—Signs.

The City Traffic Engineer is authorized to determine those intersections at which drivers of vehicles shall not make a right turn, left turn or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted.
(Prior code § 10-13-2)

11.12.040 Reserved.

Editor's note—Ord. No. 6326, § 13, adopted June 18, 2014, repealed § 11.12.040, which pertained to daytime left turns and derived from prior code § 10-13-3(D); Ord. No. 170, 1931; Ord. No. 283, 1943; Ord. No. 1278, 1967 and Ord. 1459 § 2, 1979.

11.12.050 Turning around—Generally.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.
(Ord. 559 § 3, 1953: prior code § 10-13-5)

11.12.060 Turning around—Fire stations.

No vehicle in front of the driveway, entrance or approaches to a fire station shall be turned so as to proceed in the opposite direction. No vehicle shall use the driveway entrance or approaches to a fire station for the purpose of turning so as to proceed in the opposite direction.
(Prior code § 10-13-6)

11.12.070 Entering a through highway.

(A) The driver of any vehicle shall stop as required by this Code at the entrance to a through highway and shall yield the right-of-way to other vehicles which have entered the intersection from the through highway or which are approaching so closely on the through highway as to constitute an immediate hazard.

(B) Said driver having so yielded may proceed and the drivers of all other vehicles approaching the intersection on the through highway shall yield right-of-way to the vehicle about to enter or cross the through highway.
(Prior code § 10-13-11)

11.12.080 Following.

(A) The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the street.

(B) The driver of any motor truck or vehicle drawing another vehicle when traveling upon a roadway whenever conditions permit shall leave sufficient space so that an overtaking vehicle may enter and occupy such space without danger.

(C) The provisions of this Section shall not apply to funeral processions.
(Prior code § 10-13-19)

11.12.090 Passing animals.

Every person having control or charge of any motor vehicle upon any public street and approaching any vehicle drawn by a horse, or any horse upon which any person is riding, shall operate, manage, and control such motor vehicle in such manner as to exercise every reasonable precaution to prevent the frightening of any such horse, and to ensure the safety and protection of any person riding or driving the same, and if such horse appears frightened, the person in control of such motor vehicle shall reduce its speed and if requested by a signal or otherwise by the driver or rider of such horse, shall not proceed further toward such animal unless such movement is necessary to avoid accident or injury, or until such animal appears to be under the control of the driver or rider.
(Ord. 170 § 37, 1931: prior code § 10-13-20)

11.12.100 Two-way left-turn lanes.

(A) The City Traffic Engineer may designate a two-way left-turn lane on a street or highway having two or more lanes for through traffic in each direction. A two-way left-turn lane is a lane near the center of the street or highway set aside for use by vehicles making left turns in both directions from or into a street or highway.

(B) Two-way left-turn lanes shall be designated by distinctive roadway markings consisting of a solid outside yellow line and an inner parallel dashed yellow line on each side of the lane. The City Traffic Engineer may determine and prescribe standards and specifications covering length, width and positioning of the distinctive pavement markings.

(C) A vehicle shall not be driven in a designated two-way left-turn lane except when preparing for or making a left turn. A left turn shall not be made from any other lane where a two-way left-turn lane has been designated.
(Ord. 1459 § 2, 1972; Ord. 1351 § 3, 1968: Ord. 1278 § 13, 1967: prior code § 10-13-21)

CHAPTER 11.14 DRIVING UNDER THE INFLUENCE

11.14.010 Purpose.

It is the purpose of this Chapter to:

(A) Serve the City's strong public policy against driving while under the influence of alcohol, controlled substances, chemicals, organic solvents, compounds or any combination of these;

(B) Better detect, discourage, prosecute and punish those who would unreasonably risk driving while under the influence of alcohol, controlled substances, chemicals, organic solvents, compounds or any combination of these;

(C) Minimize the number of victims of those who would jeopardize the safety of themselves, others and their property by undertaking an unreasonable risk of driving while under the influence of alcohol, controlled substances, chemicals, organic solvents, compounds or any combination of these;

(D) Avoid conflict with the Nevada Revised Statutes and the Constitutions of the United States of America and the State of Nevada. To this end, nothing herein is to be interpreted to either authorize, license or require what is forbidden in the Nevada Revised Statutes, the Constitution of the United States of America or the Constitution of the State of Nevada, or to forbid what has been expressly licensed, authorized or required therein; and

(E) Make violations of this Chapter a misdemeanor, unless greater punishment is otherwise provided by law.
(Ord. 5864 § 2 (part), 2006)

11.14.020 Definitions.

Except as defined in this Section or in NRS Chapters 453 and 484, all words, terms or phrases used in this Chapter are to have their common meaning:

"Actual physical control" with respect to a vehicle means having existing or present bodily restraint, directing influence, domination, or regulation of the vehicle as evidenced by available inferences and presumptions and the totality of the circumstances, including but not limited to:

(1) Where and in what position the person is found in the vehicle;

(2) Whether the vehicle's engine is running or not;

(3) Whether the person is awake or asleep;

(4) If the person is apprehended at night, whether the vehicle's lights are on;

(5) The location of the vehicle's keys;

(6) Whether the person was trying to move the vehicle or has moved the vehicle;

(7) Whether the property on which the vehicle is located is public or private;

(8) Whether the person must, of necessity, have driven to the location where apprehended;

(9) Whether the person is the registered owner of the vehicle; and

(10) Whether there is any injury to the person which corresponds to physical evidence within or damage to the vehicle.

"Under the influence or the combined influence" means under a degree of influence that:

(1) Diminishes a person's mental or physiological functions so that the risk of an accident is unreasonably increased; or

(2) In any other manner makes the person incapable of safely driving, as determined from the totality of the relevant and admissible presumptions, opinions, facts and circumstances.

(Ord. 5864 § 2 (part), 2006)

11.14.030 Penalty—Driving under the influence.

(A) Unless a greater penalty is otherwise provided by law, it is a misdemeanor for any person to:

(1) Drive or be in actual physical control of a vehicle upon a highway or premises to which the public has access while under the influence or the combined influence of an intoxicating liquor, controlled substance, chemical, poison, organic solvent or compound; or

(2) In any other manner violate NRS 484.379.

(B) Unless a greater penalty is otherwise provided by law, a person who is convicted of a violation of Subsection (A) of this Section shall be sentenced in accordance with the applicable provisions of NRS 484.3792(1)(a) and 484.3792(1)(b) (misdemeanor criminal penalty for first and second offenses). In addition, such person:

(1) Shall be subject to the applicable penalties provided for in NRS 484.3791 (civil penalty), 484.3797 (first-time offender evaluation and treatment for alcohol or drug abuse), 484.37975 (second offender mandatory suspension of motor vehicle registration) and 484.3798 (fee for chemical analysis);

(2) Shall be subject to the applicable penalties set forth in NRS 484.3667 (double penalty if committed in a work zone) and 484.3943 (installation and inspection of device to prevent starting of vehicle by one who has consumed alcohol); and

(3) May be ordered by the court to complete an available coroner's program designed to discourage drivers from driving while under the influence or the combined influence of intoxicating liquor, controlled substance, chemical, poison, organic solvent or compound. Such a program and participation therein is especially encouraged where the offense involves one or more of the following:

(a) An accident;

(b) A blood alcohol content of .18 or more;

(c) The use of controlled or prohibited substances; or

(d) An offender who is under the age of twenty-six years old; and

(4) May be ordered to do or refrain from doing any other act the court deems reasonable, given the nature of the offense and the criminal history of the defendant.

(C) The provisions of NRS 484.3793 to 484.3947 (miscellaneous provisions regarding the evaluation and treatment for alcohol or drug abuse), apply to a violation of Subsection (A) of this Section.

(D) The provisions of NRS Chapter 484 relating to implied consent, testing for intoxication and the definitions of "offense," "prior offense" or "second offense" are further adopted herein and apply to a suspected violation of Subsection (A) of this Section.
(Ord. 5864 § 2 (part), 2006)

11.14.040 Penalty—Drinking while driving.

(A) Unless a greater penalty is otherwise involved (and pursued) for conduct described in Subsection (A) of LVMC 11.14.030 or NRS 484.379, it is a misdemeanor for any person to knowingly drink a beverage having a detectible amount of alcohol while driving or in actual physical control of a motor vehicle upon a highway or on premises to which the public has access.

(B) A person convicted of a violation of Subsection (A) of this Section:

(1) Unless the court identifies reasonable grounds for ordering a lesser sentence, shall be punished for a misdemeanor with:

(a) A fine of at least three hundred dollars; and

(b) An order to complete a drinking driver awareness course; and

(2) May be ordered to do or refrain from doing any other act the court deems reasonable, given the nature of the offense and the character of the defendant.
(Ord. 5864 § 2 (part), 2006)

11.14.050 Open containers—General.

Except as otherwise provided in LVMC 11.14.070, it is unlawful for any person, while in a motor vehicle on a highway or upon a premises to which the public has access, to knowingly possess any bottle, can or other receptacle containing any detectable amount of alcoholic beverage which has been opened or the seal broken, or the contents partially removed.
(Ord. 5864 § 2 (part), 2006)

11.14.060 Open containers—Storage.

(A) Except as otherwise provided in Subsection (B) of this Section or in LVMC 11.14.070, it is unlawful for the registered owner of any motor vehicle, or the driver if the registered owner is not then present in the vehicle, to keep in that vehicle, when it is upon any highway, any bottle, can or other receptacle containing any detectable amount of alcoholic beverage which has been opened or the seal broken, or the contents partially removed.

(B) The prohibition contained in Subsection (A) of this Section does not apply if the receptacle is kept in the trunk of the vehicle or, if the vehicle is not equipped with a trunk, in some other area of the vehicle not normally occupied by the driver or passengers. For purposes of the preceding sentence, a utility compartment or glove compartment shall be deemed to be within the area normally occupied by the driver and passengers.
(Ord. 5864 § 2 (part), 2006)

11.14.070 Open containers—Exceptions.

The provisions of LVMC 11.14.050 and 11.14.060 do not apply to:

(A) A motor vehicle operated by a common carrier or used to carry passengers for furtherance of a commercial enterprise;

(B) A motor vehicle that is operated as part of a duly licensed limousine service and that has a partition between the driver's seat and the passenger seats; or

(C) The living quarters of a motor home, camper or recreational vehicle, as those terms are defined in NRS Chapter 482.
(Ord. 5864 § 2 (part), 2006)

11.14.080 Education—Counseling.

By committee, the judges of the Las Vegas Municipal Court shall continue to supervise and monitor the operation of a program of education and counseling on the use and abuse of alcohol and controlled substances for the benefit of persons who:

(A) Are convicted in the Municipal Court of violating this Chapter or any ordinance corresponding to NRS 484.379; or

(B) Have agreed or acquiesced to such education or counseling pending an anticipated disposition of a charge of violating this Chapter or any ordinance corresponding to NRS 484.379.
(Ord. 5864 § 2 (part), 2006)

CHAPTER 11.16 SPEED LIMITS

11.16.010 Prima facie limits designated—Applicability.

The speed of any vehicle upon a street or highway not in excess of the limits specified in this Chapter or established as authorized in this Title is lawful. The speed of any vehicle upon a street or highway in excess of any of the limits specified in this Section or established as authorized in this Title is prima facie unlawful. The prima facie limits referred to above are as set out in this Chapter and the same shall be applicable unless changed as authorized in this Title, and if so changed, then only when the signs have been erected giving notice thereof, in which event the speed designated on the sign shall be prima facie limit.
(Ord. 1100 § 1 (part), 1947: Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1

(part), 1957: Ord. 706 § 1, 1956: Ord. 559 § 1, 1953: Ord. 508 § 1, 1952: Ord. 467 § 2, 1951: Ord. 351 § 3, 1948: Ord. 332 § 3, 1947: Ord. 274 § 4, 1942: Ord. 170 § 36, 1931: prior code § 10-25-2 (part))

11.16.020 School grounds and vicinity.

The prima facie speed limit shall be fifteen miles per hour when in a school zone during school hours on days on which such school is in session and upon the grounds or parking lots thereof at all times. Such prima facie limit also shall apply when in any school zone which is adjacent to the grounds of any school that are not separated from the street or highway by a fence, gate or any other physical barrier, while such grounds are in use by children.
(Ord. 3212 § 3, 1986: Ord. 1670 § 1 (part), 1973: Ord. 1100 § 1 (part), 1964: Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(A)(1))

11.16.030 Rail crossings at grade.

The prima facie speed limit shall be fifteen miles per hour when traversing a grade crossing of a steam, electric or any other motor railway, if during the last one hundred feet of the approach to such crossing the driver does not have a clear and unobstructed view of such crossing and of any traffic on such railway for a distance of four hundred feet in both directions along such railway. This Section shall not apply in the case of any railway grade crossing where a human flagman is on duty or clearly visible electrical or mechanical railway crossing signal device is installed but does not then indicate the immediate approach of a railway train or car.
(Ord. 1670 § 1 (part), 1973: Ord. 1100 § 1 (part), 1964: Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(A)(2))

11.16.040 Intersections.

The prima facie speed limit shall be fifteen miles per hour when traversing any intersection or street or highway if during the last one hundred feet of his approach to such intersection the driver does not have a clear and unobstructed view of such intersection and of any traffic upon all of the streets or highways entering such intersection for a distance of one hundred feet along all such streets or highways, except on a through street or highway or at a traffic-controlled intersection.
(Ord. 1670 § 1 (part), 1973: Ord. 1100 § 1 (part), 1964: Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(A)(3))

11.16.050 City parks and facilities.

The prima facie speed limit shall be fifteen miles per hour when driving within the grounds of a municipally owned or operated park or facility, provided after a traffic study the City Traffic Engineer determines that such a prima facie speed is necessary.
(Ord. 1670 § 1 (part), 1973: prior code § 10-25-2(A)(4))

11.16.060 Unposted streets and highways.

The prima facie speed limit is twenty-five miles per hour on all streets and highways unless a different speed limit is posted as set forth in this Title.
(Ord. 1100 § 1 (part), 1964: Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(B))

11.16.070 Posted streets and highways—School crossings.

When signs are erected giving notice thereof, the prima facie speed limit upon those streets or highways or portions thereof described in Schedule 25-I shall be thirty miles per hour, Schedule 25-II shall be thirty-five miles per hour, Schedule 25-III shall be forty miles per hour, Schedule 25-IV shall be forty-five miles per hour, Schedule 25-V shall be fifty miles per hour, Schedule 25-VI shall be fifty-five miles per hour, Schedule 25-VIII shall be sixty miles per hour and Schedule 25-IX shall be sixty-five miles per hour. Copies of said Schedules shall be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer and may be amended from time to time by resolution of the City Council; provided, however, that when traffic engineering studies indicate that through intersections of any street or highway, or any other point along such street or highway, a speed in excess of twenty-five miles per hour would be unsafe due to the number of children crossing such street or highway at such intersection or other point on their way to or from school, the City Traffic Engineer shall designate such intersection as a "school crossing," and when signs are erected giving notice thereof, the prima facie speed limit through such "school crossing" and for a distance of two hundred feet on either side thereof shall be twenty-five miles per hour while children are going to or leaving school during school hours on days on which schools are in session.
(Ord. 3990 § 4, 1996: Ord. 3202 § 1, 1985: Ord. 1589 § 14, 1972: Ord. 1534 § 8, 1971; Ord. 1423 § 5, 1969; Ord. 1384 §§ 4, 5, 1969: Ord. 1339 § 5, 1968; Ord. 1293 § 7, 1967; Ord. 1180 § 1, 1965; Ord. 1100 § 1 (part), 1964; Ord. 1038 § 1 (part), 1963; Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(C) 1967; Ord. 1180 § 1, 1965; Ord. 1100 § 1 (part), 1964; Ord. 1038 § 1 (part), 1963; Ord. 805 § 1 (part), 1959: Ord. 756 § 1 (part), 1958: Ord. 750 § 1 (part), 1957: prior code § 10-25-2(C))

11.16.080 Variance by traffic signal regulation.

The City Traffic Engineer is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall erect appropriate signs giving notice thereof.
(Prior code § 10-25-3)

11.16.090 Speed contests.

(A) No person shall engage in any motor vehicle speed contest or exhibition of power or speed on a highway and no person shall aid or abet in any such motor vehicle speed contest or exhibition upon any highway.

(B) No person shall, for the purpose of facilitating or aiding or as an incident to any motor vehicle speed contest upon a highway, in any manner obstruct or place any barricade or obstruction or assist or participate in placing any such barricade or obstruction upon any highway.
(Ord. 1278 § 27, 1967; prior code § 10-25-5)

11.16.100 Construction zones.

When so required in order to protect the public health, safety and welfare, the City Traffic Engineer shall have the authority to designate a temporary speed limit or to redirect the normal flow of traffic, or both, in that portion of a public street designated by the City Traffic Engineer as a construction zone.
(Ord. 3157 § 2, 1985)

11.16.110 Trucks traveling on streets and highways.

When signs are erected giving notice thereof, the prima facie speed limit for vehicles weighing more than eight thousand pounds unladen weight upon those streets or highways or portions thereof described in Schedule 25-VII shall be twenty-five miles per hour. Copies of said schedule shall be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer and may be amended from time to time by resolution of the City Council; provided, however that no street or highway or portion proposed for inclusion in Schedule 25-VII shall have been designated as a truck route and described in Schedule 29-II.
(Ord. 3691 § 1, 1992)

CHAPTER 11.18 CROSSWALKS, SAFETY ZONES AND TRAFFIC LANES

11.18.010 Crosswalk and safety zone establishment.

The City Traffic Engineer is authorized:

(A) To designate and maintain, by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary;

(B) To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians.
(Ord. 170 § 11, 1931: prior code § 10-12-1)

11.18.020 School crossings.

The City Traffic Engineer is authorized to mark and maintain with yellow paint or road buttons crosswalks approximately twelve feet in width at intersections in the vicinity of schools where in the opinion of the City Traffic Engineer crossing the roadway by schoolchildren is unsafe. The City Traffic Engineer, if necessary, is further authorized to mark and maintain with a distinguishing color or road buttons upon the pavement or by signs erected

along the curb in a conspicuous manner, the words "School-Xing," not less than one hundred feet in advance of each crosswalk established, and it shall be unlawful for the operator of any vehicle to drive into a crosswalk where there is displayed a sign with the words "School-Xing," when there is in the crosswalk upon the side of the roadway on which said vehicle is coming any person attempting to cross the street.
(Ord. 2203 § 21, 1981: Ord. 1278 § 10, 1967: Ord. 170 § 9, 1931: prior code § 10-12-2)

Cross reference—For other provisions on speed at school crossings, see Ch. 11.16 of this Code.

11.18.030 Traffic lanes.

(A) The City Traffic Engineer is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

(B) Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.
(Prior code § 10-12-3)

CHAPTER 11.20 REQUIRED STOPS

11.20.010 Through streets.

Those streets or parts of streets described as planned streets and highways within the map and schedule adopted pursuant to LVMC 13.12.020, as that map and schedule may be amended from time to time, are declared to be through streets for the purpose of this Chapter.
(Ord. No. 6326, § 14, 6-18-14; Ord. 3990 § 5, 1996: Ord. 1589 § 3, 1972: Ord. 1534 § 1, 1971; Ord. 1278 § 16, 1967; Ord. 1169 § 2, 1965; Ord. 274 § 3, 1942: Ord. 170 § 17, 1931: prior code § 10-14-1)

11.20.020 Stop signs—Erection required where.

Whenever any ordinance of this City designates and describes a through street, it shall be the duty of the City Traffic Engineer to place and maintain a stop sign on each and every street intersecting such through street or intersecting that portion thereof described and designated as such by any ordinance of this City unless traffic at any such intersection is controlled at all times by traffic-control signals; provided, however, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of said streets as may be determined by the City Traffic Engineer upon the basis of an engineering and traffic study.
(Prior code § 10-14-2)

11.20.030 Reserved.

Editor's note—Ord. No. 6326, § 15, adopted June 18, 2014, repealed § 11.20.030, which pertained to stop signs—content—luminosity and derived from prior code § 10-14-4.

11.20.040 Stop signs—Compliance.

When stop signs are erected as herein authorized at or near the entrance to any intersection, every driver of a vehicle approaching such a stop sign shall stop such vehicle before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at a point at the entrance to the intersecting street or highway.
(Ord. 1459 § 6, 1970: Ord. 1278 § 14, 1967: prior code § 10-14-5)

11.20.050 Stop intersections.

(A) The City Traffic Engineer is authorized to determine and designate intersections where particular hazards exist upon other than through streets and to determine whether vehicles shall stop at one or more entrances to any such stop intersection, and shall erect a stop sign at every such place where a stop is required.

(B) Schedule 14-II, a copy of which is to be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, shall list those stop intersections designated pursuant to Subsection (A) of this Section and such other stop intersections as may be added to said Schedule by written finding of the City Traffic Engineer.
(Ord. 3990 § 5, 1996: Ord. 1589 § 4, 1972: Ord. 1534 § 2, 1971; Ord. 1459 § 5, 1970: Ord. 1423 § 1, 1969; Ord. 1384 § 1, 1969; Ord. 1339 § 1, 1968; Ord. 1293 § 2, 1967; Ord. 1278 § 17, 1967: prior code § 10-14-3)

11.20.060 Crossing sidewalks—Entering roadways.

The driver of a vehicle within a business or residence district emerging or entering an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, yielding the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on said roadway.
(Ord. 1278 § 15, 1967: Ord. 170 § 15, 1931: prior code § 10-14-7)

11.20.070 Obstructing intersection or crosswalk.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.
(Prior code § 10-14-8)

CHAPTER 11.22 MISCELLANEOUS DRIVING RULES

11.22.010 Full time and attention.

A person shall, when operating a vehicle, give his full time and attention to the operation of the vehicle.
(Ord. 1308 § 1, 1968: prior code § 10-15-22)

11.22.020 Carelessness or imprudence.

It is unlawful for any person to drive or operate a vehicle of any kind or character in a careless or imprudent manner on any highway in the City.
(Ord. 2034 § 1, 1979: prior code § 10-15-24)

11.22.030 Shutdown before leaving.

It shall be unlawful for any person to leave unattended upon any street or other public place any automobile or other motor vehicle while any part of its machinery is running or in motion.
(Ord. 170 § 48, 1931: prior code § 10-19-4)

11.22.040 Sidewalk area violation.

The driver of a vehicle shall not drive within any sidewalk area except at a permanent or temporary driveway or permit such vehicle to stand thereon.
(Ord. 170 § 22, 1931: prior code § 10-15-7)

11.22.050 Controlled-access roadways.

No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority.
(Prior code § 10-15-11)

11.22.055 Engine compression brakes.

It is unlawful for any person to use engine compression brakes or any similar braking system while operating a vehicle, other than an emergency vehicle, within the City, unless the vehicle is equipped with an operational muffler and exhaust system which complies with Federal and state noise emission standards.
(Ord. 5017 § 1, 1997: Ord. 5002 § 1, 1997)

11.22.060 Quiet zones.

The City Council may, by resolution, declare and designate any street or alley within two hundred feet of a hospital, church, courthouse, or sick chamber a zone of quiet, and upon and in this zone, when so declared and designated, there shall be no ringing of bells, sounding of gongs or whistles, unnecessary noises or itinerant music.
(Ord. 170 § 32, 1931: prior code § 10-15-15)

11.22.070 Safety zone violation.

No vehicle shall at any time be driven through or within a safety zone.
(Ord. 170 § 7, 1931: prior code § 10-15-19)

11.22.080 Front-seat passenger limit.

It shall be unlawful for any person owning, driving or permitting the driving of any automobile or other motor-propelled vehicle with more than three persons occupying the front seat of a vehicle.
(Prior code § 10-15-14)

11.22.090 Door opening.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, nor shall any person leave a door open upon the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.
(Prior code § 10-15-17)

11.22.100 New pavement or closed street.

No person shall ride or drive any horse or vehicle over or across any pavement newly laid or repaired across or around which there has been placed a barrier, or at or near which there is a person or a sign warning persons against riding or driving over such pavement, or a sign stating that the highway is closed. The provisions of this Section shall not apply to the employees actually engaged in the paving or repair of such pavement.
(Ord. 170 § 73, 1931: prior code § 10-15-16)

11.22.110 Railroad obstruction of streets.

It shall be unlawful for the directing officer or the operator of any railroad train to direct the operation of or to operate the same in such a manner as to prevent the use of any street for the purposes of travel for a period of time longer than five minutes, except that this provision shall not apply to trains or cars in motion other than those engaged in switching.
(Ord. 170 § 93, 1931: prior code § 10-15-20)

11.22.120 Nonmotorized-traffic street closures.

(A) The City Traffic Engineer is authorized to determine and designate those heavily traveled streets upon which shall be prohibited the use of the roadway by motor-driven cycles, bicycles, horse-drawn vehicles or other nonmotorized traffic and shall erect appropriate signs giving notice thereof.

(B) When signs are erected giving notice thereof, no person shall disobey the restriction stated on such signs.
(Prior code § 10-19-3)

11.22.130 Wheeled toys on streets and sidewalks.

It shall be unlawful for any person to ride or use a coaster, roller skates, scooter, skateboard, toy vehicle or similar device:

(A) On any roadway except while crossing a street at a crosswalk, and, when any such device is so crossing, it shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians;

(B) On the sidewalks of Fremont Street between Main Street and Seventh Street which, because of the high volume of pedestrian traffic normally present, shall be posted with signs indicating that the use of these devices on the sidewalk is prohibited;

(C) On any other public property when signs have been erected at the entrances to, or displayed prominently on, the property prohibiting the use of coasters, roller skates, scooters, skateboards, toy vehicles or similar devices on such property; or

(D) In any other place in the City in such a manner as to be dangerous to persons or property.

(Ord. 3412 § 4, 1989: Ord. 2038 § 2, 1979: Ord. 170 § 75, 1931: prior code § 10-7-5)

11.22.135 Wheeled toys on posted private property.

Any person who rides or uses a coaster, roller skates, scooter, skateboard, toy vehicle or similar device on any private property to which the public is invited after signs have been erected at the entrances to, or displayed prominently on, the property prohibiting the use of coasters, roller skates, scooters, skateboards, toy vehicles or similar devices shall be deemed to have committed a trespass.

(Ord. 3412 § 3, 1989)

11.22.137 Wheeled toys—Definitions.

As used in this Chapter, unless the context otherwise requires, the following terms shall have the meanings that are ascribed to them as follows:

(A) "Coaster" means a nonmotorized wheeled vehicle which, after being propelled by either human or mechanical force of any kind, becomes by momentum or gravity a free-moving vehicle without the need of further application of propulsive power; and includes a child's wagon.

(B) "Roller skate" means tandem sets of wheels mounted on a metal frame that can be fitted to the sole of a shoe, or a shoe mounted on tandem sets of wheels; and used for skating over flat surfaces.

(C) "Scooter" means a foot-propelled vehicle consisting of a platform of metal, plastic, wood or other type of composition or combinations thereof, mounted on or between one set or tandem sets of wheels, with an upright steering handle attached to the front of the platform or the front wheel or wheels.

(D) "Skateboard" means a foot-propelled vehicle consisting of a platform of metal, plastic, wood or other type of composition or combinations thereof, mounted on tandem sets of wheels.

(Ord. 3412 § 2, 1989)

11.22.140 Aggregates and other loose loads.

(A) It is unlawful for any person to operate, on any public road, street or highway within the City, any vehicle:

(1) Unless such vehicle is constructed, covered or loaded in such a manner as to prevent its contents or load, other than clear water or other substance that may be sprinkled on the roadway for the purpose of cleaning the same, from dropping, sifting, leaking, blowing, spilling or otherwise escaping therefrom;

(2) That is used to transport any aggregate material, whether the vehicle is loaded or empty at the time, unless:

(a) Such material is carried in the cargo area of the vehicle, with the tailgate thereof in the closed position, and does not extend above the topmost edge of the cargo area,

(b) The cargo area is equipped with a tailgate, is completely and securely covered and does not contain any holes, cracks or openings through which such material may escape, regardless of the degree to which the vehicle is loaded, and

(c) The vehicle is equipped with shed boards;

(3) That is loaded with garbage, rubbish or dirt or anything that is being transported to either an approved or unapproved dumping area unless the load is completely covered in a manner that will prevent the load, or any part thereof, from spilling or falling from the vehicle; provided, however, that this paragraph does not prohibit a garbage vehicle from being without a cover while it is in the process of acquiring its load.

(B) For the purpose of this Section, the terms:

(1) "Aggregate material" means rock fragments, pebbles, sand, gravel, cobbles, crushed base, asphalt and other similar materials;

(2) "Garbage," "rubbish" and "dirt" shall have the meanings that are ascribed to them in LVMC 9.08.010;

(3) "Shed boards" means a device that is designed to prevent aggregate material from being deposited on the body of the vehicle during the loading process.

(Ord. 3310 §§ 2, 3, 1987)

11.22.150 Operation of vehicle within one hundred feet of an ice cream truck.

Within one hundred feet of an ice cream truck that has engaged the safety equipment described in Subsection (C) of Section 6.47.100, it is unlawful to operate a vehicle as follows:

(A) At a speed greater than is prudent when children are present in the area; or

(B) In excess of fifteen miles per hour, in any event.

(Ord. 5040 § 15, 1997)

11.22.160 Test driving on residential streets—Prohibited.

(A) Except as otherwise provided in this Section, it is unlawful for:

(1) A customer or potential customer of a motor vehicle dealership to test-drive a vehicle on a residential street;

(2) An employee of a motor vehicle dealership to allow a customer or potential customer of the dealership to test-drive a vehicle on a residential street; or

(3) A principal or employee of an auto repair facility to test-drive a customer's vehicle on a residential street.

(B) The prohibitions contained in Subsection (A) of this Section do not apply to the test-driving of a vehicle on a residential street if the test-driving of vehicles on that particular street by customers or potential customers of a motor vehicle dealership, or by principals or employees of an auto repair facility, has been approved by the Department of Community Development in connection with the Department's approval of a test-driving plan submitted by that dealership or auto repair facility.

(C) For purposes of this Section:

(1) "Residential street" means a street within a residential area that has a right-of-way width of less than eighty feet.

(2) "Test-drive a vehicle," with respect to a customer, potential customer, or employee of a motor vehicle dealership, means to test-drive a vehicle that is being offered for sale or lease by that dealership.

(3) "Test-drive a vehicle," with respect to a principal or employee of an auto repair facility, means to test-drive a customer vehicle.

(4) "Test-drive a vehicle on a residential street" does not include the necessary use of a residential street to gain access to, or return to, a street that is not a residential street, provided that travel on the residential street for that limited purpose does not exceed a speed of fifteen miles per hour.

(D) A dealership whose employees allow customers or potential customers of the dealership to test-drive vehicles on a residential street in violation of this Section, or in violation of an approved test-driving plan, is subject to disciplinary action against the dealership's business license, as well as action to revoke any associated Special Use Permit or Site Development Plan.

(E) An auto repair facility whose principals or employees test-drive vehicles on a residential street in violation of this Section, or in violation of an approved test-driving plan, is subject to disciplinary action against the facility's business license, as well as action to revoke any associated Special Use Permit or Site Development Plan.
(Ord. No. 6816, § 111, 8-17-22; Ord. No. 6316, § 1, 5-7-14; Ord. 5665 § 1, 2004)

CHAPTER 11.24 ABANDONED VEHICLES*

11.24.010 Unlawful activities on public thoroughfares, City-owned parking lots or parking garages.

(A) It is unlawful to do any of the following upon any highway, street or other public thoroughfare within the City:

(1) Abandon a vehicle;

(2) Park a vehicle:

(a) Concerning which there is no valid current registration from the Nevada Department of Motor Vehicles or another state or nation; or

(b) Which does not display thereon a valid current license plate bearing a current and valid registration sticker (if required), temporary placard, or moving permit issued for that vehicle by the Nevada Department of Motor Vehicles or by another state or nation;

(3) Allow a vehicle to remain positioned:

(a) On the same highway, street or other public right-of-way adjacent to the same parcel or property line for more than seventy-two consecutive hours;

(b) On the same highway, street or other public right-of-way adjacent to the same parcel or property line for more than seventy-two hours of any consecutive ninety-six-hour period;

(c) On adjoining highways, streets or other public rights-of-way adjacent to the same parcel or property line for more than seventy-two hours of any consecutive ninety-six-hour period;

(4) Park a vehicle and cause it to be suspended on jacks or any other lifting device, except as and to the extent reasonably necessary to change a tire or effect an immediate repair; or

(5) Park a vehicle and engage in mechanical repairs thereon, except as and to the extent reasonably necessary to effect an immediate emergency repair.

(B) It is unlawful to do any of the following upon or within any City parking facility within the City:

(1) Abandon a vehicle;

(2) Park a vehicle:

(a) Concerning which there is no valid current registration from the Nevada Department of Motor Vehicles or another state or nation; or

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***Editor's note—**Prior ordinance history: Ords. 170 § 57, 470.

(b) Which does not display thereon a valid current license plate bearing a current and valid registration sticker (if required), temporary placard, or moving permit issued for that vehicle by the Nevada Department of Motor Vehicles or by another state or nation;

(3) Park a vehicle and cause it to be suspended on jacks or any other lifting device, except as and to the extent reasonably necessary to change a tire or effect an immediate repair; or

(4) Park a vehicle and engage in mechanical repairs thereon, except as and to the extent reasonably necessary to effect an immediate emergency repair.

(Ord. No. 6703, § 7, 10-2-19; Ord. No. 6326, § 16, 6-18-14; Ord. No. 6149, § 3, 5-4-11; Ord. 5095 § 15, 1998: Ord. 3484 § 10, 1990: Ord. 854 § 1(a), 1960: prior code § 10-15-21(A))

11.24.020 Public or private property.

It shall be unlawful for any person to:

(A) Abandon a vehicle upon public or private property within the City without the consent of the owner or person in control or management of the public or private property; or

(B) Leave a vehicle in a parking space in the parking lot of a multifamily residential development for more than seven consecutive days if the vehicle:

(1) Is in an obviously mechanically inoperable condition; and

(2) Is visible from public property, including a street or alley.

(Ord. 5802 § 1, 2005: Ord. 5634 § 2, 2003: Ord. 2203 § 23 (part), 1981: Ord. 854 § 1(b), 1960: prior code § 10-15-21(B)(part))

11.24.030 Notice—Removal deadline.

Any officer of the Metropolitan Police Department, the Department of Public Safety, or the unit of the Department of Economic and Urban Development assigned to parking enforcement who has reasonable grounds to believe that a vehicle has been abandoned or has been parked in violation of LVMC 11.24.010 may affix a Notice of Infraction to the vehicle. An authorized employee of the code enforcement authority who has reasonable grounds to believe that a vehicle has been abandoned or parked on private property in violation of LVMC 11.24.020 may affix a Notice of Infraction to the vehicle. The officer or employee may also affix a warning notice advising that the vehicle is subject to tow because it is in violation, and may mark one or more tires of the vehicle to indicate the current date. Subject to the provisions of NRS Chapters 484B and 487, any such officer or employee is authorized to immediately remove or have such vehicle removed from any street, highway, public thoroughfare, public or private property, for the purpose of storage or disposition, to any garage within the City as designated by the officer or employee if the vehicle:

(A) Has not been removed within seventy-two hours after the warning notice is affixed.

(B) Has been parked for more than twenty-four hours while in violation of a parking prohibition, restriction or time limitation.

(C) Is parked at a location or in a manner so as to constitute a traffic hazard or an obstruction to the normal movement of traffic or pedestrians.

(D) Is parked within a fire lane, whether on public or private property, which has been designated and posted as such pursuant to the City's Fire Code.

(E) Is parked within fifteen feet of a fire hydrant located on either public or private property, whether or not:

(1) A sign has been posted to indicate "No Parking"; or

(2) The adjacent curb or road surface has been painted red.

(F) Has obviously been abandoned upon a street, highway, public thoroughfare or on public property.

(G) Has been abandoned or parked in violation of LVMC 11.24.020, and has not been removed within seventy-two hours after a warning notice has been affixed.

(H) Is parked upon a street, highway, public thoroughfare or public property and is so disabled or in such a state of disrepair that its normal operation is impossible or impractical.

(I) Is parked upon a street, highway, public thoroughfare or public property and:

(1) Concerning which there is no valid current registration from the Nevada Department of Motor Vehicles or another state or nation; or

(2) Does not display thereon a valid current license plate, temporary placard, or moving permit issued for that vehicle by the Nevada Department of Motor Vehicles or by another state or nation;

(J) Is parked on private property to which the public has access and has been damaged or is in such a state of disrepair as to constitute an imminent hazard to the public.

(Ord. No. 6518, § 18, 4-6-16; Ord. No. 6326, § 17, 6-18-14; Ord. No. 6184, § 8, 3-21-12; Ord. No. 6149, § 4, 5-4-11; Ord. 5802 § 2, 2005: Ord. 5634 § 3, 2003: Ord. 5095 § 16, 1998: Ord. 3484 § 11, 1990: Ord. 2203 § 23 (part), 1981: Ord. 854 § 2, 1960: prior code § 10-15-21(B)(part))

11.24.040 Intent to avoid time limitations.

For purposes of the twenty-four-hour and seventy-two-hour limitations contained in LVMC 11.24.010 and 11.24.030, vehicles which are moved short distances with the intent of avoiding the time limitations will be considered in violation and are subject to citation and tow.

(Ord. 5095 § 18, 1998)

11.24.050 Towing at owner's expense.

The towing of any vehicle in accordance with the provisions of LVMC 11.24.030 shall be at the expense of the owner of the vehicle.
(Ord. 5095 § 19, 1998)

CHAPTER 11.26 OFF-ROAD DRIVING

11.26.010 Permission to use land.

No person shall drive a motor vehicle on lands belonging to or occupied by another without having in his immediate possession and, upon request of a peace officer displaying, written permission from the owner of such lands, his agent, or the person in lawful possession thereof, but this Section shall not apply to a person having lawful business with the owner.
(Ord. 1587 § 1 (part), 1972: prior code § 10-15-23(A))

11.26.020 Exempt locations.

This Chapter shall not apply on public or private lands expressly set apart for the use of motor vehicles by or with permission of the owner of such lands pursuant to any zoning permit or other permit or licensing procedure authorized by law. This Chapter shall not apply upon any public highway, street, road or alley.
(Ord. 1587 § 1 (part), 1972: prior code § 10-15-23(B))

11.26.030 Exempt vehicles.

This Chapter shall not apply to the use of farm vehicles for agricultural purposes, vehicles being used for grading or construction purposes, vehicles being used for governmental purposes, or golf carts being used on golf courses.
(Ord. 1587 § 1 (part), 1972: prior code § 10-15-23(C))

11.26.040 Government property.

Nothing in this Chapter shall be deemed to interfere with the right of any government agency to regulate, prohibit or permit the use of motor vehicles on property owned by it or under its control and under its jurisdiction, nor to permit or authorize any trespass or nuisance.
(Ord. 1587 § 1 (part), 1972: prior code § 10-15-23(D))

CHAPTER 11.27 MULTI-USE TRAILS

11.27.010 Motorized vehicles prohibited—Exceptions.

(A) Except as otherwise provided in Subsection (B), it is unlawful to operate a motorized vehicle upon or within a right-of-way that:

(1) Has been designated on an official trails plan as an equestrian trail, multi-use trail, or other trail not intended for use by motorized vehicles;

(2) Has been dedicated to the City for use as such a trail; and

(3) Has been posted with appropriate signs to indicate that motorized vehicles are prohibited.

(B) The provisions of Subsection (A) do not apply to:

(1) An emergency vehicle;

(2) Any vehicle that is being used in connection with maintenance of the right-of-way; or

(3) Any motorized wheelchair or other device that is designed for and used by a mobility-impaired person.
(Ord. 5745 § 2, 2004)

CHAPTER 11.28 VEHICLE EQUIPMENT

11.28.010 Unsafe-vehicle operation—Unsafe loads.

It is unlawful to operate any vehicle or combination of vehicles which is in an unsafe condition, which is not equipped as required by this Title, or which is not safely loaded.
(Prior code § 10-20-41)

11.28.020 High beam intensity.

There shall be an uppermost distribution of light, or composite beam, so aimed and of such intensity as to reveal persons and vehicles at a distance of at least three hundred feet ahead for all conditions of loading. The maximum intensity of this uppermost distribution of light or composite beam one degree of arc or more above the horizontal level of the lamps when the vehicle is not loaded shall not exceed eight thousand apparent candlepower, and at no other point of the distribution of light or composite beam shall there be an intensity of more than seventy-five thousand apparent candlepower.
(1949 code Ch. 36 § 103: prior code § 10-20-18)

11.28.030 Drip or leakage prevention.

Every motor vehicle or any machinery or apparatus using electricity, gasoline or any product of petroleum for its motor power shall have attached thereto a suitable device or devices for the purpose of preventing deposits from leaking or dripping being made upon the pavements or public streets.
(Ord. 170 § 49, 1931: prior code § 10-20-21)

11.28.040 Draining oils on streets.

It shall be unlawful for any person operating any automobile or any machinery or apparatus using electricity, or gasoline or other product of petroleum for its motor power, to drain such

petroleum products from the crank or gear case, or from any other part of the machinery, upon any street.
(Ord. 170 § 50, 1931: prior code § 10-20-22)

11.28.050 Horn requirements.

Any person driving a motor vehicle within the City shall, when reasonably necessary to ensure safe operation, give audible warning with his horn, but shall not otherwise use such horn within the City limits. Every automobile when operated upon a roadway within the City shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than two hundred feet, but no horn or other warning device shall emit an unnecessary loud or harsh sound or a whistle.
(1949 code Ch. 36 § 115 (part): prior code § 10-20-23 (part))

Note—Prior history: Ord. 170 § 38.

11.28.060 Sirens—Theft alarms.

No vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle, or bell, except as otherwise permitted in this Section. It is permissible, but not required, that any commercial vehicle be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal. Any authorized emergency vehicle may be equipped with a siren, whistle or bell capable of emitting sound audible under normal conditions from a distance of not less than five hundred feet, but such siren shall not be used except when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which said latter events the driver of such vehicle shall sound such sirens when necessary to warn pedestrians and other drivers of the approach thereof.
(1949 code Ch. 36 § 115 (part): prior code § 10-20-23 (part))

Note—Prior history: Ord. 170 § 39.

11.28.070 Windshield required when.

Every passenger vehicle other than a motorcycle, and every motor truck or truck tractor, and every fire truck, fire engine or other fire apparatus, whether publicly or privately owned, shall be equipped with an adequate windshield.
(Prior code § 10-20-31(A))

11.28.080 Safety glass required.

(A) No person shall sell or operate any motor vehicle, except a motorcycle, manufactured after January 1, 1936, unless it is equipped with safety glass of a type approved by the Metropolitan Police Department, wherever glass or glazing materials are used in partitions, doors, windows, windshields, rear windows or wind deflectors.

(B) "Safety glass" is any type of glass or glazing material so manufactured, fabricated, treated, or combined with other materials as to reduce, in comparison with ordinary sheet glass or plate glass, the likelihood of injury to persons by objects from external sources or by glass or glazing material when the same is cracked or broken.

(C) The Metropolitan Police Department shall establish specifications or requirements for approved safety glass which shall not be lower in standard than those specifications or requirements for safety glass established by the American Standards Association for glazing in motor vehicles as of September 22, 1951, and shall maintain a list of approved types of safety glass.
(Prior code § 10-20-32(A—C))

11.28.090 Defective windshield or rear window.

It is unlawful to operate any motor vehicle upon a highway when the windshield or rear window is in such a defective condition as to impair the driver's vision either to the front or rear. In the event any windshield or rear window fails to comply with this Chapter, the officer making the inspection shall direct the driver to make the windshield and rear window conform to the requirements of this Chapter within forty-eight hours. The officer may also arrest the driver and give him notice to appear and further require the driver or the owner of the vehicle to produce in court satisfactory evidence that the windshield or rear window has been made to conform to the requirements of this Chapter.
(Prior code § 10-20-31(B))

11.28.100 Broken glass—Replacement glass.

All broken glass in windows or elsewhere on a vehicle subject to the provisions of this Title shall be removed. Replacement glass shall be of the safety type as defined in Section 11.28.080.
(Prior code § 10-20-32(D))

11.28.110 Nontransparent window materials.

No person shall drive any motor vehicle with any sign, poster, card, sticker, or other nontransparent material upon the front windshield, side wings, side or rear windows of the vehicle, except that signs, posters, cards, stickers, or other materials may be placed on the windshield within a six-inch square in the lower corner farthest removed from the driver's position or upon the side windows of the vehicle to the rear of the driver and so placed that the materials will not obstruct the driver's clear view of traffic conditions.
(Ord. 2203 § 29, 1981: prior code § 10-20-25(A))

11.28.120 Windshield obstruction.

No person shall drive any motor vehicle upon a highway with any object so placed in or upon the vehicle as to obstruct the driver's clear view through the windshield, except required or permitted equipment of the vehicle.
(Prior code § 10-20-25(B))

11.28.130 Clear view and unimpaired operation.

No person shall drive any motor vehicle upon a highway with any object or person so placed in the vehicle, or so placed on or about the driver of the vehicle as to obstruct the driver's clear view of the traffic conditions or to interfere with the driver's operation of the vehicle.
(Prior code § 10-20-25(C))

11.28.140 Obstruction exemption for common carriers.

Sections 11.28.110, 11.28.120 and 11.28.130 do not apply to direction, destination, or termini signs upon a passenger common carrier motor vehicle.
(Prior code § 10-20-25(D))

11.28.150 Tints, reflective or other window obstructions.

(A) No person shall drive any motor vehicle with any object or material placed upon the windshield, side or rear windows or with any object placed in or upon the vehicle so as to obstruct or reduce the driver's clear vision through the windshield or side windows, or to obstruct or restrict the view of any person into or through such motor vehicle. No person shall color or tint windows or windshields beyond the manufacturer's specifications.

(B) This Section shall not apply to:

(1) Rear view mirrors or adjustable nontransparent sun visors which are mounted forward of the side windows and are not attached to the glass;

(2) Side windows which are to the rear of the driver.
(Ord. 1365 § 1, 1969: prior code § 10-20-43)

11.28.160 Spray or splash control.

No person shall operate any motor vehicle, trailer, or semitrailer unless equipped with fenders, covers, or devices, including flaps or splash aprons, or unless the body of the vehicle or attachments thereto afford adequate protection to effectively minimize the spray or splash of water or mud to the rear of the vehicle. This Section does not apply to those vehicles exempt from registration, nor to any other vehicles having an unladen weight of under one thousand five hundred pounds.
(Prior code § 10-20-26)

11.28.170 Radiator or hood ornaments.

On and after January 1, 1939, no person shall sell any new motor vehicle, nor shall any person operate any motor vehicle sold as a new motor vehicle in this State after January 1, 1939, which is equipped with a radiator cap or radiator ornament upon the top thereof which extends or protrudes to the front of the face of the radiator grill of the motor vehicle, nor shall any person operate a motor vehicle equipped with a radiator or hood ornament which interferes with the clear view of the driver of the motor vehicle.
(Prior code § 10-20-27)

11.28.180 Fuel tank closure.

No motor vehicle shall be driven or moved upon any highway if the filling spout for the fuel tank is closed or partly closed with a plug of wood, rags, or other combustible material, and/or open completely so that the gas fumes are escaping from the filling spout of the fuel tank.
(Prior code § 10-20-28)

11.28.190 Safety chain for towing.

Every towed vehicle shall be coupled to the towing vehicle by means of a safety chain, chains, cables, or equivalent devices in addition to the regular trailer hitch or coupling. This requirement does not apply to a semitrailer having a connecting device composed of a fifth wheel and kingpin assembly, nor to a pole or pipe dolly. No more slack shall be left in safety chains, cables, or equivalent devices than is necessary to permit proper turning and the safety chains, cables or equivalent device shall be so connected to the towed and towing vehicle and/or to a drawbar to prevent the dropping of the towed vehicle or the loss of the towed vehicle and shall be of sufficient strength to control the towed vehicle in the event of failure of the regular trailer hitch or coupling.
(Prior code § 10-20-29)

11.28.200 Trailer signal requirements.

Whenever any motor vehicle is towing a trailer coach, either the motor vehicle or trailer coach shall be equipped with a mechanical or electrical signal lamp or device.
(Prior code § 10-20-30)

11.28.210 Reserved.

Editor's note—Ord. No. 6326, § 18, adopted June 18, 2014, repealed § 11.28.210, which pertained to noisy vehicles and derived from prior code § 10-20-42 and Ord. No. 170, 1931.

11.28.220 Muffling required.

It shall be unlawful for any person to ride, drive or propel or cause or permit to be ridden, driven or propelled any motor vehicle in, upon, or along any street or to operate or cause or permit to be operated the motor in any such vehicle in any street or other public place if such motor vehicle or the motor in such vehicle is not provided with a good and sufficient muffler properly attached thereto or if the exhaust from the motor of such vehicle is ejected otherwise than through such muffler, or if such exhaust is ejected toward the surface of the street or ground.
(Ord. 170 § 46, 1931: prior code § 10-20-42(part))

11.28.230 Reserved.

Editor's note—Ord. No. 6326, § 18, adopted June 18, 2014, repealed § 11.28.230, which pertained to exhaust system—configuration—tubing type and derived from prior code § 10-20-36.

11.28.240 Exhaust system—Height of side discharge.

The exhaust gases from a motor vehicle shall not be directed to the side of the vehicle between two feet and eleven feet above the ground.
(Prior code § 10-20-37)

11.28.250 Exhaust system—Gastightness—Cab tightness.

The cab of any motor vehicle shall be reasonably tight against the penetration of gases and fumes from the engine and exhaust system. The exhaust system, including the manifold, muffler, and exhaust pipes shall be so constructed as to be capable of being maintained and shall be maintained in a reasonably gastight condition.
(Prior code § 10-20-39)

11.28.260 Exhaust system—Modification.

No person shall modify the exhaust system of a motor vehicle in a manner which will amplify or increase the noise emitted by the motor of such vehicle above that emitted by the muffler originally installed on the vehicle, and the original muffler shall comply with all of the requirements of this Code.
(Prior code § 10-20-38)

11.28.270 Roadway clearance modification.

It is unlawful to operate any passenger motor vehicle which has been modified from the original design so that any portion of such vehicle other than the wheels has less clearance from the surface of a level roadway than the clearance between the roadway and the lowermost portion of any rim of any wheel in contact with such roadway.
(Prior code § 10-20-40)

CHAPTER 11.30 PEDESTRIANS

11.30.010 Rights and restrictions.

Pedestrians shall be granted those rights and be subject to the restrictions stated in this Chapter.
(Prior code § 10-16-1)

11.30.020 Right-of-way—Darting before vehicles.

When traffic-control signals are not in place or not in operation the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite one-half of the roadway as to be in danger, but no pedestrian shall

suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield. A pedestrians' right-of-way in a crosswalk is modified under the condition and as stated in Section 11.30.060.
(1949 code Ch. 36 § 91(a): prior code § 10-16-2(A))

11.30.030 Passing vehicle stopped at crosswalk.

Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.
(1949 code Ch. 36 § 91(b): prior code § 10-16-2(B))

11.30.040 Right half of crosswalks.

Pedestrians shall move, whenever practicable, upon the right one-half of crosswalks.
(1949 code Ch. 36 § 92: prior code § 10-16-3)

11.30.050 Route of crossing roadway.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk.
(Ord. 170 § 10, 1931: prior code § 10-16-4)

11.30.060 Crossing outside crosswalk.

(A) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

(B) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(C) The foregoing rules in this Section shall have no application under the conditions stated in Section 11.30.070 when pedestrians are prohibited from crossing at certain designated places.
(1949 code Ch. 36 § 94: prior code § 10-16-5)

11.30.070 Crosswalk use required when.

(A) Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a crosswalk.

(B) No pedestrian shall cross a roadway other than in a marked crosswalk or within an unmarked crosswalk in any business district.
(Ord. No. 6326, § 19, 6-18-14; 1949 code Ch. 36 § 95: prior code § 10-16-6)

11.30.080 Railroad crossing-control conformance.

No pedestrian shall pass through, around, over, or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed.
(Prior code § 10-16-7)

11.30.090 Sidewalk use required.

Where sidewalks are provided it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.
(1949 code Ch. 36 § 96(a): prior code § 10-16-8(A))

11.30.100 Walking along roadway.

Where sidewalks are not provided any pedestrian walking along and upon a street shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.
(1949 code Ch. 36 § 96(b): prior code § 10-16-8(B))

11.30.110 Solicitation from roadway.

No person shall stand in a roadway for the purpose of soliciting a ride, employment, or business from the occupant of any vehicle.
(1949 code Ch. 36 § 96(c): prior code § 10-16-9(A))

11.30.120 Soliciting protection of parked vehicle.

No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.
(1949 code Ch. 36 § 96(b): prior code § 10-16-9(B))

11.30.130 Due care of drivers.

Notwithstanding the foregoing provisions of this Chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.
(1949 code Ch. 36 § 97: prior code § 10-16-10)

11.30.140 Blind persons.

(A) No person, except those wholly or partially blind, shall carry or use on any street, highway or in any other public place a cane or walking stick which is white in color or white tipped with red.

(B) Any pedestrian who is not wholly or partially blind, or any driver of any vehicle who approaches or comes in contact with a person wholly or partially blind, carrying a cane or walking stick white in color, or white tipped in red, or being assisted by a person with wisdom, shall immediately come to a full stop and take such precautions before proceeding as may be necessary to avoid an accident or injury to the person wholly or partially blind.
(1949 code Ch. 36 § 98: prior code § 10-16-11)

CHAPTER 11.32 TRAFFIC-CONTROL DEVICES

11.32.010 Duty to place and maintain.

The City Traffic Engineer shall place and maintain traffic-control signs, signals, and devices when and as required under the traffic ordinances of the City to make effective the provisions of said ordinances, and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under the traffic ordinances of this City or under State law or to guide and warn traffic.
(Ord. 1278 § 8, 1967: prior code § 10-10-1)

11.32.020 Standards—Uniformity—Official status.

All traffic-control signs, signals and devices shall conform to the manual and specifications approved by the State Department of Transportation or resolution adopted by the City Council. All signs and signals required hereunder for a particular purpose shall, so far as practicable, be uniform as to type and location throughout the City. All traffic-control devices so erected and not inconsistent with the provisions of State law or this Code shall be official traffic-control devices.
(1949 code Ch. 36 § 27 (part): prior code § 10-10-2)

11.32.030 Signs required for enforcement.

No provision of this Title for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(1949 code Ch. 36 § 30: prior code § 10-10-4)

11.32.040 Lane direction control.

When lane-directional-control signals are placed on the individual lanes of a street or highway, vehicular traffic may travel in any lane over which a green signal is shown, but shall not enter or travel in any lane over which a red signal is shown.
(Ord. 1278 § 9, 1967: prior code § 10-10-10)

11.32.050 Interference unlawful.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device, parking meter or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof.
(Ord. 3989 § 3, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-1)

11.32.060 Removal by contractors.

It shall be unlawful for a contractor working in the street right-of-way of the City to remove an official traffic-control device unless he has, at least two hours prior to the removal of said device, notified the Director of Public Works or his designee of his intention to remove said device and, in addition thereto, unless he has, immediately prior to his removal of said device, installed a temporary device approved by the Director of Public Works or his designee in a place approved by the Director of Public Works or his designee to ensure traffic control.
(Ord. 3989 § 4, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-2(A))

11.32.070 Replacement by contractors—Required at completion.

It shall be unlawful for a contractor who has moved an official traffic-control device to fail to install a traffic-control device approved by the Director of Public Works or his designee in a location approved by the Director of Public Works or his designee simultaneously with the completion of that portion of work in the street right-of-way which made necessary the removal of the official traffic-control device.
(Ord. 3989 § 5, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-2(B))

11.32.080 Replacement by contractors—Deadline—Flagmen.

It shall be unlawful for a contractor working in the public right-of-way who has been notified by the Director of Public Works or his designee to remove an official traffic-control device from the construction area and install said device where directed by the Director of Public Works or his designee to fail to do so within twenty-four hours after said notification. The contractor shall furnish a traffic-control device approved by the Director of Public Works or his designee, or shall comply with another traffic control plan approved by the Director or his designee, to control traffic while the device is being moved and until it is operative.
(Ord. No. 6326, § 20, 6-18-14; Ord. 3989 § 6, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-2(C))

11.32.090 Damage by contractors.

(A) The contractor shall notify the Director of Public Works or his designee immediately after damage to an official traffic-control device.

(B) The contractor shall provide for the directing of traffic by a method approved by the City Traffic Engineer until the damaged device is replaced by a device approved by the Director of Public Works or his designee.

(C) The contractor shall, within twenty-four hours after damage to an official traffic-control device, install a traffic-control device approved by the Director of Public Works or his designee in a place approved by the Director of Public Works or his designee to ensure traffic control.

(D) It shall be unlawful for a contractor who has been notified by the Director of Public Works or his designee that an official traffic-control device has been damaged during the construction and who has further been notified by the Director of Public Works or his designee to install a traffic-control device approved by the Director of Public Works or his designee in a place approved by the Director of Public Works or his designee to fail to do so within twenty-four hours after notification. The contractor shall provide for the directing of traffic by a method approved by the City Traffic Engineer or provide a traffic-control device approved by the Director of Public Works or his designee to control traffic until the new traffic-control device is operative.
(Ord. No. 6326, § 21, 6-18-14; Ord. 3989 § 7, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-3)

11.32.100 Impairment of view.

It shall be unlawful for the contractor to permit the construction, his workmen or equipment to impair the view of any official traffic-control device unless he has, at least two hours prior to the impairment of the view of said device, notified the Director of Public Works or his designee that the construction, workmen or equipment will impair the view of said device, and, in addition thereto, unless he has immediately prior to the impairment of the view of said device, installed a temporary device approved by the Director of Public Works or his designee in a place approved by the Director of Public Works or his designee to ensure traffic control.
(Ord. 3989 § 8, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-4(A))

11.32.110 Failure to correct impairment.

It shall be unlawful for a contractor who has been notified that the construction, workmen, or equipment impairs the view of any official traffic-control device and who has further been notified by the Director of Public Works or his designee to install a traffic-control device approved by the Director of Public Works or his designee to fail to do so within twenty-four hours after notification. The contractor shall provide for the directing of traffic by a method approved by the City Traffic Engineer or provide a traffic-control device approved by the Director of Public Works or his designee to control traffic until the new traffic-control device is operative.
(Ord. No. 6326, § 22, 6-18-14; Ord. 3989 § 9, 1996: Ord. 1157 § 1 (part), 1964: prior code § 10-31-4(B))

CHAPTER 11.33 SPEED HUMPS

11.33.010 Approval and installation.

(A) The approval and installation of speed humps on residential streets within the City shall be in accordance with:

(1) This Section;

(2) Any criteria for the approval and installation of such devices that have been adopted by the City Council; and

(3) Applicable provisions of the City's Fire Code.

(B) The City Council shall have the discretion to waive any of the criteria described in Paragraph (2) of Subsection (A) for good cause.

(C) For purposes of this Section and the Manual on Uniform Traffic Control Devices adopted pursuant to NAC 408.411, speed humps are deemed to be roadway design features rather than traffic-control devices.
(Ord. 5741 § 2, 2004)

CHAPTER 11.34 ACCIDENTS

11.34.010 Soliciting tow service at scene.

No person shall, at the location of any vehicular accident, collision or other catastrophe or calamity, solicit or offer the sale of any tow service. The prohibition contained in this Section shall apply from time of the happening of any of the aforesaid occurrences until a reasonable time thereafter, and at all times while law enforcement officers, public health personnel, emergency personnel and other persons discharging duties imposed by law are actively engaged in the performance of duty at the location of said occurrences.
(Prior code § 10-9-11)

11.34.020 Impoundment of hit-and-run suspects.

When any regularly employed and salaried Officer of the Metropolitan Police Department has reasonable cause to believe that a motor vehicle has been involved in a hit-and-run accident, and the vehicle is found on the public streets, under circumstances where the operator or owner cannot be located after reasonable effort is made, the Officer may impound the vehicle for the purpose of inspection completion of any necessary accident report. Unless sooner released, the vehicle shall be released upon the expiration of twenty-four hours after impound has occurred, upon demand of the owner.
(Ord. 1350 § 4, 1968: prior code § 10-9-12)

CHAPTER 11.36 EMERGENCY VEHICLES

11.36.010 Gaseous-discharge lamps for traffic control.

Emergency vehicles of the Las Vegas Metropolitan Police Department and the Department of Fire and Rescue, when they are operated under the conditions provided in NRS 484B.700, and Traffic Engineering test vehicles may display a flashing white light from gaseous-discharge lamps which are designed and used for the purpose of controlling official traffic-control signals.
(Ord. No. 6326, § 23, 6-18-14; Ord. 4028 § 1, 1996: Ord. 2203 § 19, 1981: prior code § 10-8-1)

CHAPTER 11.38 MOTORCYCLES

11.38.010 Seat use mandatory.

A person operating a motorcycle shall not ride other than upon the permanent and regular seat attached thereto or carry any other person, nor shall any other person ride upon such motorcycle, other than upon a firmly attached seat to the rear or side of the operator.
(1949 code Ch. 36 § 13: prior code § 10-15-9(A))

11.38.020 Passengers.

No driver of a two-wheeled or three-wheeled motor vehicle shall carry any other person on, upon or within such vehicle on any street or highway in the City, except as hereinafter provided; provided, however, that if any two-wheeled or three-wheeled motor vehicle shall have either a double seating device with double footrests or a sidecar attachment providing a separate seat space within such sidecar attachment for each person riding therein so that such person is seated entirely within the body of said sidecar, then it shall be permissible for an operator who has attained the age of sixteen or older to carry a passenger. A demonstration ride by a licensed dealer or his employee is excepted from the provisions hereof.
(Ord. 1291 § 1 (part), 1967: prior code § 10-1A-1 (part))

11.38.030 Sidewalk riding.

No motorcycle or motor scooter shall be ridden upon any sidewalk of the City.
(Ord. 1291 § 1 (part), 1967: prior code § 10-1A-1 (part))

11.38.040 Holding to moving vehicles.

No rider of a motorcycle or motor scooter shall hold to any moving vehicle for the purpose of being propelled.
(Ord. 1291 § 1 (part), 1967: prior code § 10-1A-1 (part))

11.38.050 Passing between lanes.

No driver of a motorcycle or motor scooter shall pass other vehicles in between lanes of traffic traveling in the same direction, authorized emergency vehicles excepted.
(Ord. 1291 § 1 (part), 1967: prior code § 10-1A-1 (part))

11.38.060 Windshield.

On motorcycles the glazing material shall be of either approved safety glass or clear plastic which need not be of an approved type.
(Prior code § 10-15-9(B))

11.38.070 Reserved.

Editor's note—Ord. No. 6326, § 24, adopted June 18, 2014, repealed § 11.38.070, which pertained to handlebar height and derived from prior code § 10-1A-1; Ord. No. 1291, 1967.

11.38.080 Applicability of equipment requirements.

The equipment provided for in Sections 11.38.090 through 11.38.130 shall be required on all motorcycles and all motor scooters except on actual trail rides conducted outside of public roads and highways.

This section shall not apply to operators or passengers of three-wheeled vehicles which have an enclosed passenger compartment.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3 (part)(F))

11.38.090 Brakes—Stop lamps.

All motorcycles and motor scooters covered under this Section, as provided in Section 11.38.080, shall be equipped with brakes adequate to control the movement of same, to stop and hold such vehicles, including two separate means of applying the brakes; one means shall be effective to apply the brakes to the front wheel and one means shall be effective to apply the brakes to the rear wheels. All such vehicles shall be equipped with a stop lamp on the rear of the vehicle, which shall display a red or amber light, or any shade of color between red and amber, visible from a distance of not less than three hundred feet to the rear in normal sunlight, and which shall be actuated upon application of the rear service brakes.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3(A))

11.38.100 Speedometer.

All vehicles covered under this Section, as provided in Section 11.38.080, shall be equipped with a properly operating speedometer capable of registering at least the maximum legal speed limit for that vehicle.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3(B))

11.38.110 Fenders.

All vehicles covered under this Section, as provided in Section 11.38.080, shall be equipped with a fender over each wheel. All fenders shall be of the type provided by the manufacturer, but can be made of other material.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3(C))

11.38.120 Lights.

(A) All vehicles covered under this Section, as provided in Section 11.38.080, shall carry at least one lighted headlamp capable of showing a white light visible at least three hundred feet in the direction in which the same are proceeding, and one tail lamp mounted on the rear which, when lighted, shall emit a red light plainly visible from at least five hundred feet to the rear.

(B) The lights required by this Section shall be burning whenever such vehicles are in motion during the period from one-half hour after sunset to one-half hour before sunrise and at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the streets are not clearly discernible at a distance of at least five hundred feet ahead.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3(D))

11.38.130 Shoes.

No person shall operate or ride upon any vehicle covered under this Section, as provided in Section 11.38.080, unless such person is wearing protective foot covering. Sandals, thongs and open-toed shoes are not considered protective foot covering.
(Ord. 2203 § 3 (part), 1981: Ord. 1291 § 1 (part), 1967: prior code § 10-1A-3(E))

CHAPTER 11.39 HUMAN-POWERED AND ANIMAL-DRAWN VEHICLES

11.39.010 Legislative determination.

The City Council declares as a matter of legislative determination that:

(A) The growth of Las Vegas and the continuing expansion of hotels, casinos and other businesses in downtown Las Vegas are drawing increasing numbers of pedestrians and vehicles to the downtown area.

(B) Because of the influx of pedestrians and motor vehicles, the streets are becoming more congested. In this context, the introduction of slower-moving vehicles such as animal-drawn vehicles, pedicabs, and pedalbuses into downtown traffic poses unacceptable hazards to those persons using the streets downtown.

(C) In hearings conducted regarding the use of such vehicles, the predecessor to the Public Utilities Commission of Nevada acknowledged the authority of the City to regulate the use of its streets for the public safety and welfare.

(D) The regulations contained in this Chapter are necessary for the public safety and welfare.
(Ord. No. 6555, § 3, 11-2-16; Ord. No. 6326, § 25, 6-18-14; Ord. 3317 §§ 1 (part), 2, 1987)

11.39.020 Definitions.

Unless the context otherwise requires, the terms and words used in this chapter shall have the meaning ascribed to them in Chapter 11.02 of this Title and in this Section:

(A) "Bicycle" means a device propelled by human power upon which a person may ride, having two tandem wheels, either of which is over fourteen inches in diameter, or every such device generally recognized as a bicycle, though equipped with two front or two rear wheels, except a moped.

(B) "Pedicab" means a three-wheeled bicycle that is:

(1) Moved solely by the muscle power of the operator or with the assistance of an electric motor; and

(2) Capable of transporting up to four passengers plus the operator.

(C) "Pedalbus" means a four-wheeled bicycle that is:

(1) Capable of transporting five or more passengers;

(2) Steered by an operator who is not a passenger; and

(3) Powered by more than one person, whether operator or passenger, and with the optional assistance of an electric motor.
(Ord. No. 6803, § 5, 1-19-22; Ord. No. 6555, § 4, 11-2-16; Ord. 3317 §§ 1 (part), 3—6, 1987)

11.39.030 Restricted area—Designated.

It is unlawful for any person, unless exempted by Section 11.39.040 or by specific action of the City Council, to operate, drive or propel an animal-drawn vehicle, pedicab or pedalbus on public streets beyond the boundaries of the area designated as the Central Traffic District.
(Ord. No. 6555, § 5, 11-2-16; Ord. 5972 § 12, 2008: Ord. 3317 §§ 1 (part), 7, 1987)

11.39.040 Restricted area—Exemptions.

The following persons are exempt from the restriction of Section 11.39.030:

(A) Persons riding bicycles and not carrying passengers for hire; and

(B) Persons operating, driving or propelling animal-drawn vehicles in any parade for which a permit has been issued pursuant to this Title.
(Ord. No. 6555, § 3, 11-2-16; Ord. 3317 §§ 1 (part), 8, 1987)

11.39.050 Routes.

Routes for the operation of animal-drawn vehicles may be established on public streets subject to the provisions of Section 11.39.030 of this Chapter and the following restrictions:

(A) A vehicle subject to this Chapter shall be operated only upon the routes approved by the City Council upon the recommendation of the Traffic and Parking Commission and pursuant to time schedules approved by the Traffic and Parking Commission.

(B) The City Traffic Engineer may reject any proposed route or time schedule that would present a hazard to the public health, safety or welfare, or interfere with the safe and efficient operation of vehicular traffic on any public street.

(C) The Traffic and Parking Commission shall review annually all routes approved pursuant to this Section in light of changed conditions on those routes that affect the public health, safety or welfare, or the safe and efficient operation of vehicular traffic on the affected public streets.

(1) If the operating conditions on a given route have not changed so as to adversely affect the public health, safety or welfare, or the safe and efficient operation of vehicular traffic on the affected public streets, the Commission shall recommend that the City Council approve the licensee's use of those routes for the following year.

(2) If the operating conditions on a given route have changed to as to adversely affect the public health, safety or welfare, or the safe and efficient operation of vehicular traffic on the affected public streets on a continuing basis, the Commission shall recommend that the City Council prohibit the licensee's use of that portion of the route so affected.

(D) Any route or time schedule approved pursuant to this Chapter shall be subject to the right of the City to prohibit or suspend the use of the City streets by the licensee when such operation would pose an immediate hazard to the safety requirements of the public or interfere with special events approved by the City.

(E) Modifications to the approved route and time schedule may be issued by the Traffic Engineer to the licensee for special purposes for a period not to exceed ten days. Permanent modifications to the approved route and time schedule must be approved by the Traffic and Parking Commission. Said modifications shall be subject to approval by any other regulatory agency having jurisdiction over the licensee, such as the Public Service Commission.

(Ord. No. 6555, § 7, 11-2-16; Ord. 3317 §§ 1 (part), 9, 1987)

11.39.055 Pedicabs and pedalbuses.

A person may operate a pedicab or pedalbus on any public street within the Central Traffic District, except as otherwise follows:

(A) Pedicabs and pedalbuses shall only operate upon those streets, and during the days and times as indicated by the appropriate restrictions map produced by the

Department of Public Works. The restrictions indicated by such maps shall conform initially with the Pedicab Restrictions Map and Pedalbus Restrictions Map provided as attachments to Ordinance No. 6555. Such maps, and the restrictions indicated may be amended by resolution of the City Council, after receiving a recommendation from the Traffic and Parking Commission to take such actions, in conformance with Subsection B of this Section.

(B) Upon the request of the Traffic Engineer, the Traffic and Parking Commission shall review the boundaries of the Central Traffic District, the prohibited streets, the restricted streets, or hours of restriction in light of changed conditions on those routes that affect the public health, safety or welfare, or the safe and efficient operation of vehicular traffic on the affected public streets. If the operating conditions within the Central Traffic District have changed as to adversely affect the public health, safety or welfare, or the safe and efficient operation of vehicular traffic on a continuing basis, the Commission shall recommend to the City Council modifications to the Central Traffic District boundaries, the prohibited streets, the restricted streets or hours of restriction.

(C) The City may prohibit or suspend the use of the public streets by an operator of a pedicab or pedalbus when such operation would pose a hazard to the public or interfere with special events approved by the City. Except for emergency declarations, the Traffic Engineer shall endeavor to provide seventy-two hours' notice of a prohibition or suspension to such operators, and such prohibition or modification shall not exceed sixty days without another notice of prohibition or suspension from the Traffic Engineer.

(Ord. No. 6555, § 8, 11-2-16)

11.39.060 Operation restrictions.

Pedicabs, pedalbuses and animal-drawn vehicles may be operated within the Central Traffic District, subject to the following restrictions:

(A) Animal-Drawn Vehicles.

(1) The vehicles shall pick up, and discharge passengers only at designated stands approved by the Traffic and Parking Commission.

(2) The vehicles shall park only in designated stands approved by the Traffic and Parking Commission.

(3) Except when making left turns, the vehicles shall be operated only in the traffic lane nearest the curb on any public street and the driver shall obey all applicable State and local traffic laws, ordinances and regulations.

(B) Pedicabs.

(1) Loading and Unloading Passengers. A pedicab shall only remain standing upon a public street provided that such pedicab is located within a legal, metered parking space and only for the time required to load or unload passengers not to

exceed three minutes, or if parked in conformance with this Section as provided herein. Notwithstanding any provision of the Code to the contrary, if the operator of a pedicab is actively loading or unloading passengers as provided above within a legal, metered parking space, activation of the parking meter for such space pursuant to LVMC Chapter 11.54 not required. Pedicabs shall not stand in any designated loading zone at any time for any reason.

(2) Parking.

(a) If a pedicab is standing in a legal, metered parking space, but not actively loading or unloading passengers, the operator of that pedicab shall immediately activate the meter for such space as required by LVMC Chapter 11.54, unless that specific pedicab is the subject of a space rental agreement with the Parking Services Division for that specified parking space.

(b) A pedicab shall not park in a designated loading zone at any time for any reason.

(c) Notwithstanding Subparagraph (a), above, a pedicab is prohibited from parking or standing for any amount of time in specially-designated spaces by the City, such as designated spaces for animal-drawn carriages, taxicabs, busses, and handicapped individuals, except and unless the pedicab operator has executed a space rental agreement designating a specific parking space or spaces for specified pedicabs with the Parking Services Division.

(C) Pedalbuses. Pedalbuses shall not park or remain standing upon any public street for any reason, unless the pedalbus is wholly-contained within an activated, metered parking space or spaces, or is parking or standing in a parking space that is the subject of a space rental agreement with the Parking Services Division for that specified pedalbus.

(D) Pedicabs and Pedalbuses. Pedicabs and pedalbuses that are moved with the assistance of an electric motor on any public street within the Central Traffic District shall not operate at a speed exceeding the speed limit posted on that street for motor vehicle traffic.

(Ord. No. 6803, § 6, 1-19-22; Ord. No. 6555, § 9, 11-2-16; Ord. 3317 §§ 1 (part), 10, 1987)

11.39.070 Council authority over Commission actions.

There is reserved to the City Council the power to reverse, modify or confirm any action of the Traffic and Parking Commission under this Chapter if any member of the City Council makes a request to review the decision to the Secretary of the Traffic and Parking Commission within fourteen days of the date of the decision of the Traffic and Parking

Commission. If any member of the City Council makes such a request, the matter shall be placed on the agenda for the next meeting of the City Council and the decision of the Traffic and Parking Commission shall be stayed until the City Council has acted on the matter.
(Ord. 3317 §§ 1 (part), 11, 1987)

11.39.080 Requirements.

Before operating any pedicab or pedalbus, whether or not equipped with motorized assistance, the operator must:

(A) Comply with applicable licensing requirements under LVMC Chapter 6.63; and

(B) Obtain the approval of all State agencies, if any, which may have jurisdiction over the operation of pedicabs or pedalbuses on public streets, including but not necessarily limited to, the Nevada Transportation Authority.

(Ord. No. 6803, § 7, 1-19-22)

CHAPTER 11.40 BICYCLES

11.40.010 Defined.

"Bicycle" includes every device propelled by human power upon which any person or persons may ride, having two tandem wheels, either of which is over fourteen inches in diameter, and also any device generally recognized as a bicycle although equipped with two front and/or two rear wheels.
(Ord. No. 6555, § 10, 11-2-16; Ord. 2203 § 1, 1981: Ord. 1293 § 1, 1967: prior code § 10-1-1)

11.40.020 Conformance required.

It shall be unlawful for any person to do any act forbidden, or fail to perform any act required, in this Chapter.
(1949 code Ch. 6 § 2(a): prior code § 10-1-2(part))

11.40.030 Parent or guardian responsibility.

The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this Chapter.
(1949 code Ch. 6 § 2(b): prior code § 10-1-2 (part))

11.40.040 Applicability to streets and public paths.

These regulations applicable to bicycles, electric bicycles, and electric scooters shall apply whenever a bicycle, electric bicycle, or electric scooter is operated upon any street, or upon any public path set aside for the exclusive use of bicycles, electric bicycles, or electric scooters, subject to those exceptions stated herein.
(Ord. No. 6921, § 3, 8-6-25; 1949 code Ch. 6 § 2(c): prior code § 10-1-2 (part))

11.40.050 Report of sale or purchase.

Every person engaged in the business of buying or selling new or secondhand bicycles shall make a report to the Sheriff of every bicycle purchased or sold by such dealer, giving the name and address of the person from whom purchased or to whom sold, a description of such bicycle by name or make, the frame number thereof and the number of license plate, if any, found thereon.
(1949 code Ch. 6 § 11: prior code § 10-1-10)

11.40.060 Traffic-law applicability.

Every person riding a bicycle, electric bicycle, or electric scooter upon a roadway shall be granted all of the rights and shall be subject to all the duties applicable to the driver of a vehicle by the laws of this State declaring rules of the road applicable to vehicles or by the traffic laws of the City applicable to the driver of a vehicle, except as to special regulations in this Chapter and except to those provisions of laws which by their nature can have no application.
(Ord. No. 6921, § 4, 8-6-25; 1949 code Ch. 6 § 12: prior code § 10-1-11)

11.40.070 Traffic-control devices.

Any person operating a bicycle, electric bicycle, or electric scooter shall obey the instructions of official traffic-control signals, signs and other control devices applicable to vehicles, unless otherwise directed by a Police Officer.
(Ord. No. 6921, § 5, 8-6-25; 1949 code Ch. 6 § 13(a): prior code § 10-1-12(part))

11.40.080 Restricted turns.

Whenever authorized signs are erected indicating that no right turn, left turn or U-turn is permitted, it shall be unlawful for any person operating a bicycle, electric bicycle, or electric scooter to disobey the direction of any such sign, except where such person dismounts from the bicycle, electric bicycle, or electric scooter to make any such turn, in which event such person shall then obey the regulations applicable to pedestrians.
(Ord. No. 6921, § 6, 8-6-25; 1949 code Ch. 6 § 13(b): prior code § 10-1-12(part))

11.40.090 Seat use—Number riding.

A person propelling a bicycle, electric bicycle, or electric scooter shall not ride other than astride a permanent and regular seat attached thereto. No bicycle, electric bicycle, or electric scooter shall be used to carry more persons at one time than the number for which it is designed and equipped.
(Ord. No. 6921, § 7, 8-6-25; 1949 code Ch. 6 § 14: prior code § 10-1-13)

11.40.100 Keeping to right—Passing vehicles.

Every person operating a bicycle, electric bicycle, or electric scooter upon a roadway shall ride as near to the right-hand side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.
(Ord. No. 6921, § 8, 8-6-25; 1949 code Ch. 6 § 15(a): prior code § 10-1-14(part))

11.40.110 Riding abreast.

Persons riding bicycles, electric bicycles, or electric scooters upon a roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles, electric bicycles, and electric scooters.
(Ord. No. 6921, § 9, 8-6-25; 1949 code Ch. 6 § 15(b): prior code § 10-1-14(part))

11.40.120 Use of available path.

Whenever a usable path for bicycles, electric bicycles, or electric scooters has been provided adjacent to a roadway, riders of bicycles, electric bicycles, and electric scooters shall use such path and shall not use the roadway.
(Ord. No. 6921, § 10, 8-6-25; 1949 code Ch. 6 § 15(c): prior code § 10-1-14(part))

11.40.130 Speed.

It shall be unlawful for any person to operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.
(1949 code Ch. 6 § 16: prior code § 10-1-15)

11.40.140 Crossing sidewalk or sidewalk area.

The operator of a bicycle, electric bicycle, or electric scooter within a business or residence district entering into or emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway, driveway or building, yielding the right-of-way to any pedestrian as may be necessary to avoid collision.
(Ord. No. 6921, § 11, 8-6-25; 1949 code Ch. 6 § 17: prior code § 10-1-16)

11.40.150 Attaching to vehicles.

It shall be unlawful for any person riding upon any bicycle, electric bicycle, or electric scooter to attach the same or himself to any vehicle upon a roadway.
(Ord. No. 6921, § 12, 8-6-25; 1949 code Ch. 6 § 18: prior code § 10-1-17)

11.40.160 Carrying articles in hands.

It shall be unlawful for any person operating a bicycle, electric bicycle, or electric scooter to carry any package, bundle or article which prevents the rider from keeping at least one hand upon the handlebars.
(Ord. No. 6921, § 13, 8-6-25; 1949 code Ch. 6 § 19: prior code § 10-1-18)

11.40.170 Parking.

It shall be unlawful for any person to park a bicycle, electric bicycle, or electric scooter upon a street other than upon the roadway against the curb or upon the sidewalk in a rack to support the bicycle, electric bicycle, or electric scooter or against a building or at the curb, in such a manner as to afford the least obstruction to pedestrian traffic.
(Ord. No. 6921, § 14, 8-6-25; 1949 code Ch. 6 § 20: prior code § 10-1-19)

11.40.180 Sidewalk riding.

(A) It shall be unlawful for any person to ride a bicycle, electric bicycle, or electric scooter upon the sidewalks on Fremont Street between Main Street and Seventh Street. This area shall be posted with signs indicating that the riding of bicycles, electric bicycles, or electric scooters on the sidewalk is prohibited.

(B) The Director of Public Works is authorized to erect signs on any other sidewalk or any roadway in the City prohibiting the riding of bicycles, electric bicycles, or electric scooters thereon by any person when the Director after consultation with the City Traffic Engineer and the Las Vegas Metropolitan Police Department determines that the use of bicycles, electric bicycles, or electric scooters on the sidewalk or roadway in question will impede or interfere with the flow of pedestrian or vehicular traffic, and when such signs are in place it shall be unlawful for any person to disobey the same.

(C) Whenever any person is riding a bicycle, electric bicycle, or electric scooter upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian.
(Ord. No. 6921, § 15, 8-6-25; Ord. No. 6326, § 26, 6-18-14; Ord. 2038 § 1, 1979: prior code § 10-1-20)

11.40.185 Electric bicycles and electric scooters.

(A) Unless otherwise designated or posted, an electric bicycle or an electric scooter may be operated on a public roadway or sidewalk, or a lane, path, or route designated for bicycle, electric bicycle, or electric scooter use.

(B) It shall be unlawful for any person to perform stunts or wheelies, ride on handlebars, operate at unsafe speeds, or engage in any other reckless behavior while operating an electric bicycle or electric scooter on a public roadway or sidewalk, or a lane, path or route designated for bicycle, electric bicycle, or electric scooter use.

(C) Helmets are recommended for any person operating an electric bicycle or electric scooter. Minors must wear a helmet at all times when operating an electric bicycle or electric scooter on a public roadway or sidewalk, or a lane, path or route designated for bicycle, electric bicycle, or electric scooter use.

(D) A violation of LVMC 11.40.185 is a civil infraction. A first violation shall result in a fine of one hundred and fifty dollars. A second violation shall result in a fine of three hundred dollars. Subsequent violations shall result in a fine of five hundred dollars. Parents or guardians shall be held financially responsible for violations of LVMC 11.40.185 committed by a minor under their supervision.

(E) Law enforcement officers are authorized to enforce the provisions of this Section.
(Ord. No. 6921, § 16, 8-6-25)

11.40.190 Lamps and reflectors.

Every bicycle, electric bicycle, or electric scooter, when in use at night-time, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet to the front and with a red reflector on the rear of a type which shall be visible from all distances from fifty feet to three hundred feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle. In addition to the red reflector, a lamp emitting a red light visible from a distance of five hundred feet to the rear shall be used.
(Ord. No. 6921, § 17, 8-6-25; Ord. 1515 § 1, 1971: prior code § 10-1-21 (part))

11.40.200 Audible signaling device.

It shall be unlawful for any person to use a bicycle, electric bicycle, or electric scooter unless it is equipped with a bell or other device capable of giving a signal audible for a distance of at least one hundred feet except that a bicycle, electric bicycle, or electric scooter shall not be equipped with, nor shall any persons use upon a bicycle, electric bicycle, or electric scooter, any siren or whistle.
(Ord. No. 6921, § 18, 8-6-25; Ord. 1515 § 1 (part), 1971: prior code § 10-1-21 (part))

11.40.210 Brake.

Every bicycle, electric bicycle, and electric scooter shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.
(Ord. No. 6921, § 19, 8-6-25; Ord. 1515 § 1 (part), 1971: prior code § 10-1-21 (part))

11.40.220 Violation—Juvenile warming citation.

In addition to any other penalties provided in this Code, a juvenile warning citation may be issued to any juvenile for any violation of the provisions of this Chapter.
(Ord. 1497 § 2 (part), 1971: prior code § 10-1-22(part))

11.40.230 Violation—Bicycle safety school.

(A) If a juvenile receives three juvenile warning citations within a six month period, the Sheriff shall cause a notice to be given to said juvenile requiring him to attend bicycle safety school at a time and place to be set forth in said notice.

(B) The fee to attend said bicycle safety school shall be five dollars, which said fee must be paid by the juvenile or his parent at the time the juvenile attends the school.
(Ord. 1497 § 2 (part), 1971: prior code § 10-1-22(part))

CHAPTER 11.41 GOLF CARTS

11.41.010 Operation of golf carts—Where permitted.

Those streets, parts of streets, or areas described in Schedule 28-I, a copy of which is to be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer,

and such other streets, parts of streets, or areas as may be added to said Schedule by resolution of the City Council, are declared to be public street segments where the operation of golf carts is permitted in accordance with the provisions of the Nevada Revised Statutes.
(Ord. 3607 § 2, 1991)

11.41.020 Operation of golf carts—Unlawful—Exceptions.

Except in locations designated by Schedule 28-I, and except where crossing a public street at a marked and signed crossing authorized by the City Traffic Engineer, it shall be unlawful to operate a golf cart on any City street or right-of-way.
(Ord. 3607 § 3, 1991)

CHAPTER 11.42 ONE-WAY STREETS AND ALLEYS*

11.42.010 Sign posting.

Whenever any regulation of this City designates any one-way street or alley the City Traffic Engineer shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.
(1949 code Ch. 36 § 21: prior code § 10-26-1)

11.42.020 Designation in schedules on file.

Upon these streets and parts of streets and in those alleys described in Schedules 26-I and 26-II, respectively, copies of which shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer and may be amended from time to time by resolution of the City Council, vehicular traffic shall move only in the indicated direction at every intersection where movement in the opposite direction is prohibited.
(Ord. 1589 § 14, 1972: Ord. 1534 § 9, 1971; Ord. 1384 §§ 6, 7, 1969; Ord. 1339 § 6, 1968; Ord. 1278 § 29, 1967; Ord. 800 § 2 (part), 1959: Ord. 750 § 4(A), 1957: prior code § 10-26-2)

11.42.030 Reversible lanes—Temporary designation.

The City Traffic Engineer is authorized to determine and designate streets, or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day, and may also erect signs temporarily designating lanes to be used by traffic moving in any particular direction, regardless of the centerline of the roadway. It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers, or other devices so placed in accordance with this Section.
(Ord. 800 § 2 (part), 1959: Ord. 750 § 4(B), 1957: prior code § 10-26-3)

***Editor's note—**Prior history: Ords. 170 § 26a, 274 §§ 5, 6, 7.

CHAPTER 11.43 ROUNDABOUTS

11.43.010 Operation of vehicles within a roundabout.

The following regulations pertain to the operation of vehicles within a roundabout:

(A) All vehicular travel shall be in a counterclockwise direction.

(B) The operator of a vehicle entering a roundabout shall yield the right-of-way to vehicles already in the roundabout and wait for a gap in traffic before entering.

(C) The operator of a vehicle who intends to exit a roundabout:

(1) Shall use the left lane to turn left or complete a U-turn;

(2) Shall use the right lane to turn right; and

(3) May use either lane to go straight through the roundabout.

(Ord. No. 6326, § 27, 6-4-14)

CHAPTER 11.44 LOADING ZONES*

11.44.010 Designation authority—Signposting.

The City Traffic Engineer is authorized to determine the location of passenger and freight curb-loading zones and shall place and maintain appropriate signs indicating the same and stating the hours during which the provisions of this Section are applicable.
(Ord. 1589 § 11 (part), 1972: prior code § 10-18-1)

11.44.020 Passenger.

Upon those streets or highways or parts of streets or highways described in Schedule 18-I, a copy of which is to be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, which may be amended from time to time by written finding of the City Traffic Engineer, no person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb-loading zone during hours when the regulations applicable to such curb loading zone are effective. The time period limitations under this Section are as follows:

(A) Not to exceed three minutes, at locations designated as limited to three minutes and posted with signage accordingly.

***Cross reference—**For provisions within this Code on bus stops and taxi stands, see Ch. 11.60. For provisions on permits for loading or unloading, see Ch. 11.52. For provisions on loading zones in metered-parking areas, see Ch. 11.54.

(B) No specific time period but limited to expeditious loading and unloading, at locations designated as an "immediate loading and unloading" zone and posted with signage accordingly.

(Ord. No. 6703, § 8, 10-2-19; Ord. 3990 § 7, 1996: Ord. 1589 § 11 (part), 1972: Ord. 1534 § 7, 1971; Ord. 1278 § 26, 1967; Ord. 1169 § 6, 1965: Ord. 750 § 7, 1957: prior code § 10-18-2)

11.44.030 Hotel.

Upon those streets or highways or parts of streets or highways described in Schedule 18-II, a copy of which is to be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, which may be amended from time to time by written finding of the City Traffic Engineer, no person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers or goods in any place marked as a hotel loading zone, during hours when the regulations applicable to such hotel loading zone are effective, and then only for a period not to exceed ten minutes.
(Ord. 3990 § 8, 1996: Ord. 1589 § 11 (part), 1972: Ord. 1278 § 25, 1967: prior code § 10-18-3)

11.44.040 Time-limited—Fifteen minutes.

Upon those streets or highways or parts of streets or highways described in Schedule 18-III, a copy of which shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, which may be amended from time to time by written finding of the City Traffic Engineer, no person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers or goods in any place marked as a time-limited loading zone, during hours when the regulations applicable to such loading zone are effective, and then only for a period not to exceed fifteen minutes.
(Ord. 3990 § 9, 1996: Ord. 1589 § 11 (part), 1972: prior code § 10-18-4)

11.44.060 Commercial—Designated.

Upon those streets or highways or parts of streets or highways described in Schedule 18-V, a copy of which shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, which may be amended from time to time by written finding of the City Traffic Engineer, no person shall stop, stand or park a vehicle for any purpose or length of time other than for the expeditious and continuous loading and delivery or pickup and loading of heavy or voluminous freight, cargo or other goods in any place marked as a commercial loading zone during hours when the provisions applicable to such zones are in effect. In no case shall the stop for loading and unloading of materials exceed thirty minutes, day or night. The use of a commercial loading zone under this Section is limited to:

(A) Commercial vehicles whose commercial nature is evident from the type of vehicle; or

(B) Vehicles which have commercially-printed markings on the exterior of the vehicle clearly identifying the commercial use of the vehicle.
(Ord. 5870 § 12, 2006: Ord. 3990 § 10, 1996: Ord. 3829 § 2, 1994: Ord. 1589 § 11 (part), 1972: prior code § 10-18-6)

11.44.070 Commercial—Length.

Commercial loading zones shall be limited in distance so that the stopping, standing or parking of vehicles within the zone shall not create an especially hazardous condition or cause an unusual delay to traffic.
(Ord. 1589 § 11 (part), 1972: prior code § 10-18-10)

11.44.080 Tour bus.

Upon those streets, highways, thoroughfares, or parts thereof, described in Schedule 18-VI, a copy of which is to be maintained for public inspection in the office of the City Clerk and the office of the City Traffic Engineer, and which may be amended from time to time by written finding of the City Traffic Engineer, it shall be unlawful to stop, stand or park a vehicle for any purpose or length of time other than for the expeditious loading and unloading of passengers from a licensed tour bus, shuttle bus or limo in any place marked as a Tour Bus, Shuttle Bus or Limo Loading Zone during hours where the provisions applicable to such zones are in effect. In no case shall the stop for the loading or unloading of passengers exceed thirty minutes.
(Ord. 5095 § 20, 1998: Ord. 3990 § 11, 1996: Ord. 3011 § 1, 1982: prior code § 10-8-11)

CHAPTER 11.46 SCHOOL ZONES AND SAFETY PATROL

11.46.010 School zones designated.

Those portions of streets that are described in Schedule 27-I, copies of which shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer

and may be amended from time to time by written finding of the City Traffic Engineer that are contiguous to school sites, are hereby designated as "school zones."
(Ord. 3990 § 12, 1996: Ord. 3212 § 4, 1986)

11.46.020 Crossing guards or safety patrol.

The Metropolitan Police Department is authorized to appoint crossing guards or a school safety patrol to direct traffic at school crossings by means of lawful orders, signs, or semaphores, and such persons shall wear a distinctive garb or insignia indicating such appointment. No minor other than a member of the school safety patrol shall direct or attempt to direct traffic unless authorized to do so by a Police Officer.
(Ord. 2203 § 37, 1981: Ord. 927 § 1 (part), 1961: prior code § 10-28-1)

11.46.030 Stopping at signal or flag.

It shall be unlawful for any person driving or operating, propelling or causing to be propelled, any vehicle, to fail to stop not less than fifty feet from the nearest side of a school pedestrian lane where any signal device, flagman or other person is stationed, giving warning that children are about to cross or are crossing the street; and it is further declared unlawful to proceed until such signal has stopped, raised, or been removed, or the flagman or person stationed at such pedestrian lane has given a signal to go, or has left the locality.
(Ord. 927 § 1 (part), 1961: prior code § 10-28-2)

Cross reference—For other provisions within this Code on school zones, see Chapter 11.16 and Section 11.52.130.

CHAPTER 11.48 TRUCK ROUTES*

11.48.010 Unladen weight defined.

As used in this Chapter, "unladen weight" means the weight of any vehicle without load, but fully equipped with such accessories and appliances belonging to and used by such vehicle in the transportation of persons or property.
(Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(1), 1963: prior code § 10-29-16(A))

11.48.020 Governments and utilities.

The provisions of this Chapter shall not apply to any specially designed equipment operated by any duly franchised public utility or governmental agency when such equipment is required in providing an essential public service.
(Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(4), 1963: prior code § 10-29-16(D))

***Cross reference—**For provisions on permits for overweight or outsized loads, including buildings, see Ch. 11.58 of this Code.

11.48.030 Weight limit—Route use required.

Notwithstanding any of the other provisions of this Chapter, no vehicle in excess of eight thousand pounds unladen weight shall be operated or moved upon any public street, highway or alley within the City, except upon truck routes, as set forth in Schedule 29-II. The City Council may impose specific restrictions upon the use of any of the enumerated truck routes, where such restrictions are deemed warranted in order to promote the health, safety and welfare of the public. Any such restrictions shall be included in Schedule 29-II. Copies of Schedule 29-II shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer and may be amended from time to time by resolution of the City Council. Such vehicles may also travel upon temporary truck routes hereafter designated by the Department of Public Works pursuant to Section 11.48.070. Travel by any vehicle in excess of eight thousand pounds unladen weight on a non-truck route may occur only if merchandise, freight or other supplies are to be picked up by or delivered from such vehicle, or such vehicle is required in the performance or service, repair, construction or similar essential use; provided, however, that in any such event the vehicle shall use the shortest possible route from a designated truck route to the point of pickup, delivery or essential use and shall return therefrom to the nearest designated truck route; provided further, that the additional restrictions set out in Sections 11.48.040, 11.48.050 and 11.48.060 shall apply.

(Ord. 3888 § 1, 1995: Ord. 1589 § 17 (part), 1972: Ord. 1384 § 8, 1969; Ord. 1339 § 7, 1968; Ord. 1278 §§ 31 (part), 32, 33, 1967: Ord. 1021 § 16(2) (part): prior code § 10-29-16(B) (part))

11.48.040 Pickups and deliveries off routes.

No vehicle in excess of eight thousand pounds unladen weight shall be operated or moved upon any street unless the use of such route is required in the pick-up or delivery of merchandise, freight or other supplies or in some essential use at some point not served by a truck route but served by such direct route street.

(Ord. 1589 § 17 (part), 1972: Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16 (2)(a), 1963: prior code § 10-29-16(B)(1))

11.48.050 Nighttime trucking permits.

No vehicle in excess of eight thousand pounds unladen weight shall be operated or moved upon any street (other than a truck route), in any residence district between the hours of seven p.m. and six a.m.; provided, however, that the Department of Public Works may, at its discretion, upon application in writing, issue a special permit in writing authorizing the applicant to operate or move such vehicle between the hours of seven p.m. and six a.m. In issuing such permit, the Department may impose such conditions thereon, such as routes to be followed, time of operation or movement, or other matters, as it deems necessary or desirable.

(Ord. 5017 § 2, 1997: Ord. 5011 § 1, 1997: Ord. 1589 § 17 (part), 1972: Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(2)(b), 1963: prior code § 10-29-16(B)(2))

11.48.060 Streets between.

Streets, other than truck routes, shall not be used as through routes from one truck route to another unless pick-up, delivery or essential use is required enroute.
(Ord. 1589 § 17 (part), 1972: Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(2)(c), 1963: prior code § 10-29-16(B)(3))

11.48.070 Temporary designation.

The Department of Public Works shall have authority to designate additional, temporary truck routes for the purpose of directing and controlling traffic along necessary detours or between designated truck routes and construction projects or other areas where commercial vehicles are required to be employed over extended periods of time. Such temporary routes, when so designated, shall be posted with appropriate signs as temporary truck routes, and the use of such routes shall be subject to the same conditions as set forth in this Chapter for permanent truck routes.
(Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(3), 1963: prior code § 10-29- 16(C))

11.48.080 Posting—Street classifications.

The truck routes provided for in this Chapter shall be posted with adequate signs indicating that such routes are truck routes and shall, in general, be the streets classified major, primary or secondary thoroughfares as designated on the official Master Plan of Streets and Highways of the City.
(Ord. 1278 § 31 (part), 1967: Ord. 1021 § 16(5), 1963: prior code § 10-29-16(E))

11.48.090 Reserved.

Editor's note—Ord. No. 6240, § 2, adopted March 20, 2013, repealed § 11.48.090, which pertained to heavy trucks in residence districts and derived from prior code § 10-29-17; Ord. No. 1021, 1963 and Ord. No. 5319, 2001.

11.48.100 Over-length vehicle operation—Permit required when.

No person shall operate any vehicle, or any combination of vehicles coupled together, which exceed seventy feet in length upon any street, highway or alley within the City except as follows:

(A) Such over-length vehicles are allowed on those routes described in Schedule 29-1, and as may be amended from time to time by resolution of the Board. Said Schedule 29-1 shall be kept in the office of the City Clerk for public inspection, and copies thereof may be obtained from the City Clerk or from the Traffic Engineer for the City.

(B) Such over-length vehicles are allowed on those routes or streets, other than those described in Schedule 29-1, for which the Department of Public Works has issued a permit. Upon receipt of a written application and the payment of a fifty dollar application fee, the Department of Public Works may issue a temporary permit authorizing the operation of such over-length vehicle on the routes or streets stated

therein; provided, that the Department of Public Works determines that such operation will not unduly threaten the safety and convenience of persons or property. Such permit may contain limitations as to the origin, destination, time or specific routes of travel, and such other limitations as the Director of Public Works considers necessary to protect the interest of the public. If an application is denied, the applicant may appeal the denial to the Board by filing a written notice of appeal with the City Clerk within fifteen days following notice of denial. The notice of denial becomes effective upon its deposit in the U.S. mails addressed to the applicant at the address as shown on the application.

(Ord. No. 6816, § 112, 8-17-22; Ord. 3054 § 1, 1983)

CHAPTER 11.50 TEMPORARY TRAFFIC CONTROL

11.50.010 State manual—Adopted—Conformance.

The "Manual on Uniform Traffic Control Devices," in the version adopted by the Nevada Department of Transportation pursuant to NRS 484B.430 and NAC 408.411 (hereinafter referred to as the "MUTCD"), shall govern the operations of all contractors, subcontractors and other persons who are engaged in work subject to the MUTCD within the corporate limits of the City.

(Ord. No. 6326, § 28, 6-18-14; Ord. 5570 § 1, 2003: Ord. 2107 § 2, 1980: prior code § 10-30-1)

11.50.030 Violation—Notice.

Violation of any regulation contained in the MUTCD or elsewhere shall be corrected within two hours by the violator, after receipt of written notice from the City Traffic Engineer or his duly authorized representative that a violation exists.

(Ord. 5570 § 3, 2003: Ord. 1563 § 1 (part), 1972: Ord. 1253 § 1 (part), 1966: Ord. 1037 § 5, 1963: prior code § 10-30-4)

11.50.040 Violation—City correction—Stop-work order.

(A) The City is authorized to charge fees related to the placement of traffic barricades in accordance with the fee schedule established pursuant to LVMC 13.40.050. The fees may include, without limitation, fees relating to the approval and renewal of traffic barricade plans, and the fees described in this Section.

(B) In the case of a violation referred to in LVMC 11.50.030, failure on the part of the violator to correct any such deficiencies within the two-hour period described in that Section shall be sufficient authorization for the City to correct the existing deficiencies. The City Traffic Engineer or designee is authorized to charge the violator a noncompliance correction fee in accordance with the fee schedule established pursuant to LVMC 13.40.050. The City Traffic Engineer, in his discretion, may order a cessation of work on the operation with respect to which such deficiencies exist until the same shall have been corrected.

(C) Where barricades or other traffic-control devices are left within the travel lanes or sidewalk areas of a right-of-way for longer than the period authorized by a permit, the City is authorized to charge a noncompliance correction fee and lane/sidewalk rental fees, including fees charged on a per-unit of equipment basis, in accordance with the fee schedule established pursuant to LVMC 13.40.050.
(Ord. No. 6879, § 11, 9-4-24; Ord. 5570 § 4, 2003: Ord. 1563 § 1 (part), 1972: Ord. 1253 § 1 (part), 1966: Ord. 1037 § 6, 1963: prior code § 10-30-5)

11.50.050 Nonconforming devices.

(A) No person shall place, maintain, or display upon or in view of any construction site, any temporary traffic-control device which, in the opinion of the City Traffic Engineer or his designee is deemed as substandard, damaged, worn out, faded, or otherwise nonconforming.

(B) Any temporary traffic-control device which is in violation of this Section shall be red-tagged, and shall be corrected within four hours by the violator after receipt of notice of said red tag.

(C) Failure on the part of the violator to correct any such deficiencies within said four-hour period shall constitute a misdemeanor.
(Ord. 5570 § 5, 2003: Ord. 1563 § 1 (part), 1972: Ord. 1278 § 34, 1967: prior code § 10-30-7)

11.50.060 Interference with barricades, signs or lights.

(A) No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down, damage or remove any barricades or signs or warning lights that have been placed upon or in the area of temporary traffic control or detour or construction zone.

(B) Any person who violates this Section is guilty of a misdemeanor.
(Ord. 1563 § 1 (part), 1972: prior code § 10-30-8)

11.50.070 Violation—Penalty.

Every person, company, contractor or subcontractor violating any of the provisions of this Chapter, either personally or by his or its agent or employee shall, upon conviction thereof, be punished by the penalty provided for misdemeanors.
(Ord. 1563 § 1 (part), 1972: Ord. 1253 § 1 (part), 1966: prior code § 10-30-6)

CHAPTER 11.52 STOPPING, STANDING OR PARKING

11.52.010 Necessary or directed stops excepted.

The provisions of this Chapter prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the direction of a Police Officer or official traffic-control device.
(1949 code Ch. 36 § 83: prior code § 10-17-22)

Cross reference—For provisions on loading zones, see Ch. 11.44 of this Code. For provisions on taxi stands and bus stops, see Ch. 11.60. For provisions on metered parking, see Ch. 11.54.

11.52.020 Other regulations apply.

The provisions of this Chapter imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.
(1949 code Ch. 36 § 84: prior code § 10-17-23)

11.52.030 Curb marking color code.

The parking of vehicles is prohibited or restricted in certain zones as set forth in this Section. The location of such zones shall be established by posting appropriate signage or other durable markings, by painting curbs or the edges of road surfaces in accordance with the colors listed below, or by a combination thereof:

(A) Red indicates no stopping, standing or parking, whether or not the vehicle is attended and whether or not the engine or motor is running, subject to the following:

(1) Except as provided in this Subsection, a curb or road surface edge which is painted red indicates no parking, whether or not accompanied by signage to that effect.

(2) When the location is accompanied by signage which indicates that parking is limited to tour buses, shuttle buses and limos, those vehicles may park for a period up to thirty minutes for the loading or unloading of passengers.

(3) When the location is accompanied by signage which indicates that parking is limited to RTC buses, those vehicles may park for a period up to thirty minutes for the loading or unloading of passengers.

(4) Armored cars and emergency vehicles may park at such locations for the period necessary to conduct their business, whether or not there is accompanying signage so indicating.

(5) At locations where a drop box for U.S. mail is adjacent to a curb or road surface painted red, a person may stop for the period of time necessary to expeditiously deposit mail in such a drop box.

(B) Yellow indicates a zone for:

(1) Commercial vehicles to stop, stand or park for the purpose of loading or unloading freight in accordance with the conditions and times posted on an accompanying sign; and

(2) Taxicabs to stop, stand, park for the purpose of loading, unloading or waiting for passengers in accordance with the conditions and times posted on an accompanying sign.

(C) White indicates time-limited and other limited parking, as described in LVMC 11.44.020, 11.44.030, 11.44.040 and 11.52.270, and in accordance with the conditions and times posted on an accompanying sign.

(D) Gray indicates that previous parking restrictions have been removed and that stopping, standing or parking is permitted.

(E) Blue indicates parking for handicapped persons (driver or passenger) for a period not to exceed four hours, whether or not the time limit is posted, but only regarding:

(1) A handicap space which is properly posted pursuant to LVMC 11.52.135; and

(2) A vehicle which displays a valid handicapped permit or license plate.

(Ord. No. 6326, § 29, 6-18-14; Ord. 5095 § 22, 1998: Ord. 3829 § 3, 1994: Ord. 1865 § 2, 1977; Ord. 1293 § 4, 1967: Ord. 750 § 6, 1957: prior code § 10-17-21)

11.52.040 Parallel norm—Distance from curb.

Except as otherwise provided in this Chapter:

(A) No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement.

(B) No person shall stand or park a vehicle in a roadway with the wheels of the vehicle farther than eighteen inches from the curb or edge of the roadway.

(Ord. No. 6326, § 30, 6-18-14; Ord. 3000 § 2, 1982: Ord. 1278 § 18, 1967: Ord. 170 § 24(3), 1931: prior code § 10-17-1)

11.52.050 Obstruction of traffic.

No person shall park any vehicle upon a street or alley, in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway or alley for free movement of vehicular traffic.

(Ord. 3089 § 3, 1983: prior code § 10-17-10)

11.52.060 Projection into street.

In no case shall any part of any vehicle, part of the load of such vehicle or trailer attached to such vehicle, project into the street more than fifteen feet measured on a line at right angles to the curb.

(Ord. 170 § 26 (part), 1931: prior code § 10-17-19)

11.52.070 Angle parking—Determination authority.

The City Traffic Engineer shall determine upon what streets angle parking shall be permitted, and shall provide signage or other markings to indicate where such parking is permitted. Where angle parking is permitted, no person shall stand or park a vehicle unless the front of the vehicle is pointed toward the direction of lawful traffic movement.
(Ord. No. 6829, § 4, 2-1-23; Ord. No. 6326, § 31, 6-18-14; Ord. 170 § 28, 1931: prior code § 10-17-2)

11.52.090 Loading permits.

The City Traffic Engineer is authorized to issue special permits to permit the backing of a vehicle to the curb or building in alleys for the purposes of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein. The City Traffic Engineer shall immediately provide notice to the Parking Services Division of the Department of Economic and Urban Development of the issuance of a permit under this Section.
(Ord. No. 6326, § 32, 6-18-14; Ord. No. 6184, § 9, 3-21-12; Ord. 3989 § 10, 1996: Ord. 3829 § 4, 1994: Ord. 1278 § 19, 1967: Ord. 981 § 3, 1962: prior code § 10-17-4)

11.52.110 Locking, setting brake, turning wheels.

No person driving or in charge of a motor vehicle shall permit it to stand unattended within the City without first stopping the engine, locking the ignition, removing the key and effectively setting the brake thereon and, when standing upon any grade, turning the front wheels to the curb or side of the highway.
(Ord. 2203 § 25, 1981: prior code § 10-17-6)

11.52.120 Locking in persons.

No person shall leave standing a locked vehicle in which there is any person who cannot escape readily therefrom.
(Prior code § 10-17-20)

11.52.130 Posted places.

(A) No person shall stop, stand or park a vehicle except when necessary to avoid conflict with other traffic in compliance with law or the directions of a police officer or a traffic control device, in any of the following places:

(1) Except as otherwise described in Paragraph (3) below, at any place where official signs or the painting of curbs or road surfaces, or any combination thereof prohibit or restrict stopping, standing or parking for a period longer or purpose other than is permitted by such signs or painting;

(2) At any place or in any space adjacent to a curb which has been designated and posted as a fire lane pursuant to the City's Fire Code, whether the vehicle is attended or unattended and whether the location is on public or private property;

(3) At any location on a highway, street or public thoroughfare where official signs have been posted to prohibit or restrict stopping, standing or parking based upon a determination that such activity is dangerous or would unduly interfere with the free movement of traffic, including adjacent to any curb or road surface which is painted red and is posted with signage indicating "NO STOPPING, STANDING OR PARKING"; "EMERGENCY VEHICLES ONLY"; or "ARMORED CARS ONLY";

(4) Within the following distances of any fire hydrant, whether or not the location is posted with a sign, whether or not the adjacent curb or roadway surface is painted red, and whether the location is on public or private property:

(a) At a location where parallel parking is permitted, fifteen feet;

(b) At a location where angle parking is permitted or no parking is permitted, twenty feet;

(5) In front of any sidewalk elevator or chute or within a space of five feet on each side of such sidewalk elevator or chute;

(6) On or blocking a sidewalk;

(7) In front of or within five feet of a public or private driveway; provided, however, that this provision does not apply to the parking of a vehicle in or near a private driveway by a person who owns or is in control of that driveway, or who is a family member or invitee of the person so owning or controlling the driveway;

(8) Within fifty feet of the nearest rail of a railroad track;

(9) Within twenty feet of a driveway entrance to any fire station and, on the side of a public street or thoroughfare opposite the entrance to any fire station, within seventy-five feet of such station;

(10) On the street side of any vehicle which is stopped, standing or parked at the edge or curb of a highway (i.e., to "double park");

(11) Within fifteen feet of an intersection;

(12) Within twenty feet of any marked crosswalk;

(13) Within thirty feet of any official traffic control signal or device located at the side of any roadway, highway, street or other public thoroughfare:

(14) On any traffic lane designated and posted as a bike lane;

(15) In such a manner as to create an undue obstruction to or interference with traffic, a hazardous condition for pedestrians, or a visual obstruction for motorists; or

(16) Upon any bridge or other elevated structure or within any tunnel or underpass.

(B) The provisions of Paragraphs (1) and (7) of Subsection (A) of this Section do not apply to a United States Postal Service vehicle while it is being operated on official business. (Ord. No. 6437, § 10, 8-5-15; Ord. No. 6326, § 33, 6-18-14; Ord. 5095 § 23, 1998: Ord. 3829 § 5, 1994: Ord. 3498 § 2, 1990: Ord. 3346 § 1, 1988: Ord. 3089 § 4, 1983: Ord. 2203 § 25, 1981; Ord. 1925 § 1, 1978; Ord. 1293 § 3, 1967: Ord. 170 § 24, 1931: prior code § 10-17-7)

11.52.135 Handicapped parking.

(A) Any parking space designated for the handicapped must be indicated by a sign:

(1) Bearing the international symbol of access with or without the words "Parking," "Handicapped Parking," "Handicapped Parking Only," "or "Reserved for the Handicapped," or any other word or combination of words indicating that the space is designated for the handicapped;

(2) Stating "Minimum fine of two hundred fifty dollars for use by others" or equivalent words; and

(3) The bottom of which must not be less than four feet above the ground.

(B) In addition to the requirements of Subsection (A), a parking space designated for the handicapped which:

(1) Is designed for the exclusive use of a vehicle with a side-loading wheelchair lift; and

(2) Is located in a parking lot with sixty or more parking spaces,

→ must be indicated by a sign using a combination of words to state that the space is for the exclusive use of a vehicle with a side-loading wheelchair lift.

(C) If a parking space is designed for the use of a vehicle with a side-loading wheelchair lift, the space which is immediately adjacent and intended for use in the loading and unloading of a wheelchair into or out of such a vehicle must be indicated by a sign:

(1) Stating "No Parking" or similar words which indicate that parking in such a space is prohibited;

(2) Stating "Minimum fine of two hundred fifty dollars for violation" or similar words indicating that the minimum fine for parking in such a space is two hundred fifty dollars; and

(3) The bottom of which must not be less than four feet above the ground.

(D) A person shall not park a vehicle in a space designated for the handicapped by a sign that meets the requirements of Subsection (A), whether on public or privately owned property, unless he is eligible to do so and the vehicle displays:

(1) A special license plate or plates issued pursuant to NRS 482.384;

(2) A special or temporary parking placard issued pursuant to NRS 482.384;

(3) A special or temporary parking sticker issued pursuant to NRS 482.384;

(4) A special license plate or plates, a special or temporary parking sticker, or a special or temporary parking placard displaying the international symbol of access issued by another state or foreign country; or

(5) A special license plate or plates for a disabled veteran issued pursuant to NRS 482.377.

(E) Except as otherwise provided in this Subsection (E), a person shall not park a vehicle in a space that is reserved for the exclusive use of a vehicle with a side-loading wheelchair lift and is designated for the handicapped by a sign that meets the requirements of Subsection (B), whether on public or privately owned property, unless:

(1) He is eligible to do so;

(2) The vehicle displays the special license plates or placard set forth in Subsection (D); and

(3) The vehicle is equipped with a side-loading wheelchair lift.

→ A person who meets the requirements of Paragraphs (1) and (2) of this Subsection (E) may park a vehicle that is not equipped with a side-loading wheelchair lift in such a parking space if the space is in a parking lot with fewer than sixty parking spaces.

(F) A person shall not park in a space which:

(1) Is immediately adjacent to a space designed for use by a vehicle with a side-loading wheelchair lift; and

(2) Is designated as a space in which parking is prohibited by a sign that meets the requirements of Subsection (C),

→ whether on public or privately owned property.

(G) A person shall not use a plate, sticker or placard described in Subsection (D) to park in a space designated for the handicapped unless he is a person with a permanent disability, disability of moderate duration or temporary disability, a disabled veteran, or the driver of a vehicle in which any such person is a passenger.

(H) A person with a permanent disability, disability of moderate duration or temporary disability to whom a:

(1) Special license plate, or a special or temporary parking sticker, has been issued pursuant to NRS 482.384 shall not allow any other person to park the vehicle or motorcycle displaying the special license plate or special or temporary parking sticker in a space designated for the handicapped unless the person with the permanent disability, disability of moderate duration or temporary disability is a passenger in the vehicle or on the motorcycle, or is being picked up or dropped off by the driver of the vehicle or motorcycle, at the time that the vehicle or motorcycle is parked in the space designated for the handicapped.

(2) Special or temporary parking placard has been issued pursuant to NRS 482.384 shall not allow any other person to park the vehicle which displays the special or

temporary parking placard in a space designated for the handicapped unless the person with the permanent disability, disability of moderate duration or temporary disability is a passenger in the vehicle, or is being picked up or dropped off by the driver of the vehicle, at the time that it is parked in the space designated for the handicapped.

(Ord. 5785 § 4, 2005)

11.52.136 Parking in an access aisle—Prohibited.

No person shall park a vehicle in an access aisle.

(Ord. No. 6326, § 34, 6-4-14)

11.52.140 Prohibited places.

The City Traffic Engineer is authorized to determine and to designate by "No Parking" or other appropriate signs or markings:

(A) Places not exceeding one hundred feet in length in which the stopping, standing or parking of vehicles would create an especially hazardous condition or would cause unusual delay in traffic;

(B) Places on streets with an actual pavement width of less than thirty-two feet in which on-street parking would leave insufficient clear travel area for two-directional traffic.

(Ord. 5095 § 24, 1998: Ord. 3583 § 1, 1991: Ord. 3000 § 4, 1982; 1949 Code Ch. 36 § 75: prior code § 10-17-18)

11.52.150 Occupancy permit.

The Parking Division of the Department of Economic and Urban Development may issue to a person, company, contractor or agency, upon application therefor, a parking space occupancy permit authorizing the occupancy of one or more non-metered parking spaces on City streets for extended periods of time in order to provide supplies, materials, or services, on a temporary basis, in the immediate area of the parking spaces. Issuance of such an occupancy permit shall be in the discretion of the Parking Division. In connection with the issuance of an occupancy permit, the City is authorized to charge an occupancy permit fee, which shall be paid by the applicant before any permit is issued or space reserved for the applicant. The amount of the occupancy permit fee shall be determined by the Parking Division and shall be in an amount that represents the costs of processing the application and occupancy permit.

(Ord. No. 6829, § 5, 2-1-23)

11.52.180 Alleys—Parking prohibited when.

(A) When signs are posted giving notice thereof, no person shall stop, stand or park a vehicle in an alley described in Schedule 17-I, a copy of which is to be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer, and such other alleys

as may be added to the schedule by written finding of the City Traffic Engineer, except for the following vehicles, while actually engaged in loading or unloading heavy or voluminous freight, cargo or other goods:

(1) Commercial vehicles whose commercial nature is evident from the type of vehicle; or

(2) Vehicles which have commercially-printed markings on the exterior of the vehicle clearly identifying the commercial use of the vehicle.

(B) When signs are posted giving notice thereof, no person shall park a vehicle at any time in alleys or portions thereof described in Schedule 17-II, a copy of which is to be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer, and such other alleys as may be added to the schedule by written finding of the City Traffic Engineer.

(C) A vehicle otherwise lawfully parked in an alley shall not park for a greater period than thirty minutes within any one-hour period.
(Ord. 5870 § 13, 2006: Ord. 3990 § 13, 1996: Ord. 3829 § 6, 1994: Ord. 3000 § 3, 1982: Ord. 1589 § 6, 1972: Ord. 1534 § 4, 1971; Ord. 1459 § 8, 1970; Ord. 1169 § 3, 1965: Ord. 999 § 2, 1962: Ord. 747 § 1, 1957: Ord. 274 §§ 5, 6, 1942: Ord. 170 § 26a, 1931: prior code § 10-17-12)

11.52.240 Streets of prohibited parking—Schedule 17-III.

Except as provided in LVMC 11.52.030, when signs are erected or the adjacent curbing or edge of road is painted red giving notice thereof, no person shall stop, stand or park a vehicle at any time upon any streets or parts of streets described in Schedule 17-III, a copy of which is to be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer, and such other additions, deletions, corrections or amendments that may be made to said Schedule by written finding of the City Traffic Engineer.
(Ord. 5095 § 25, 1998: Ord. 3990 § 14, 1996: Ord. 3829 § 7, 1994: Ord. 1604 § 1, 1973: Ord. 1589 § 7 1973: Ord. 1534 § 5 1971; Ord. 1459 § 9, 1970: Ord. 1423 § 2, 1969; Ord. 1384 § 2, 1969; Ord. 1339 § 2, 1968; Ord. 1293 § 5, 1967; Ord. 1278 § 22, 1967: Ord. 1169 § 4, 1965: prior code § 10-17-24)

11.52.245 Streets of prohibited parking—Schedule 17-IIIa.

Except as provided in LVMC 11.52.030, when signs are erected or the adjacent curbing or edge of road is painted giving notice thereof, no person shall stop, stand or park a vehicle at any time upon any of the streets or parts of streets described in Schedule 17-IIIa, except for those vehicles which are specifically permitted to park at those locations in accordance with the posted signage and the terms of Schedule 17-IIIa. Said Schedule is to be maintained for public inspection in the office of the City Clerk and the City Traffic Engineer, including such other additions, deletions, corrections or amendments that may be made to said Schedule by written finding of the City Traffic Engineer.
(Ord. 5095 § 26, 1998: Ord. 3990 § 15, 1996: Ord. 3829 § 8, 1994)

11.52.250 Hours of prohibited parking.

Except as provided in LVMC 11.52.030, when signs are erected or the adjacent curbing or edge of road is painted giving notice thereof, no person shall stop, stand or park a vehicle upon any of the streets or parts of streets or within the district described in Schedule 17-IV during the hours specified on the posted signage and in Schedule 17-IV on any day except Sundays and public holidays. A copy of Schedule 17-IV is to be maintained for public inspection in the offices of the City Clerk and City Traffic Engineer. Said Schedule may be amended, corrected, added to, or deleted from by written finding of the City Traffic Engineer.
(Ord. 5095 § 27, 1998: Ord. 3990 § 16, 1996: Ord. 1589 § 8, 1973: prior code § 10-17-25)

11.52.260 Hours of general prohibition.

Except as provided in LVMC 11.52.030, when signs are erected or the adjacent curbing or edge of road is painted red giving notice thereof, no person shall stop, stand or park a vehicle upon any of the streets or parts of streets or within the district described in Schedule 17-V during the hours specified on the posted signage and in Schedule 17-V, a copy of which is to be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer. Said Schedule may be amended, corrected, added to, or deleted from by written finding of the City Traffic Engineer.
(Ord. 5095 § 28, 1998: Ord. 3990 § 17, 1996: Ord. 1589 § 9, 1973: Ord. 1459 § 10, 1970: Ord. 1423 § 3, 1969; Ord. 1339 § 3, 1968; Ord. 1169 § 5,* 1965: prior code § 10-17-26)

Editor's note—Editor's Note: Ord. 1169 has two sections numbered 5.

11.52.270 Time-limited parking.

When signs are erected on each block or the adjacent curbing or edge of road is painted giving notice thereof, no person shall stop, stand or park a vehicle upon any of the streets described in Schedule 17-VI, or within any district or time limited parking zone described therein, for a period longer than the parking limit as posted and as specified in Schedule 17-VI. The prohibition contained in this Section applies during the hours the time-limited parking is in effect as posted and as specified in Schedule 17-VI, except that a person may park a vehicle at such location for a period not to exceed four hours if the person lawfully displays on the vehicle a special or temporary handicap parking permit or plate. The prohibition contained in this Section does not apply on any day which is excepted and posted, as specified in Schedule 17-VI. A copy of Schedule 17-VI shall be maintained for public inspection in the offices of the City Clerk and the City Traffic Engineer. Said Schedule may be amended, corrected, added to, or deleted from by written finding of the City Traffic Engineer.
(Ord. 5095 § 29, 1998: Ord. 3990 § 18, 1996: Ord. 1589 § 10, 1973: Ord. 1534 § 6, 1971; Ord. 1459 § 11, 1970: Ord. 1423 § 4, 1969; Ord. 1384 § 3, 1969; Ord. 1339 § 4, 1968; Ord. 1293 § 6, 1967; Ord. 1278 § 23, 1967; Ord. 1169 § 5,* 1965: Ord. 170 § 26 (part), 1931: prior code § 10-17-27)

Editor's note—Ord. 1169 has two sections numbered 5.

11.52.280 Signposting required.

Whenever by any provision of LVMC 11.52.030 to 11.52.270, inclusive, any parking time limit is imposed or parking is prohibited on designated streets, the City Traffic Engineer shall cause to be placed the appropriate signs, meters, markings or curb or surface painting giving notice thereof, and no such provision shall be effective unless said signs, meters, markings or curb or surface painting are in place at the time of any alleged offense.
(Ord. 5095 § 30, 1998: Ord. 3829 § 9, 1994: 1949 code Ch. 36 § 79: prior code § 10-17-28)

11.52.290 Authority to designate handicapped parking.

The City Council or the City Traffic Engineer may from time to time designate zones or spaces on any public street or other public place or in any publicly owned parking lot to be limited to parking for the handicapped for a period not to exceed four hours.
(Ord. 3498 § 3, 1990: Ord. 3346 § 3, 1988)

11.52.300 Nighttime and nonmotor vehicles.

Except for a motor vehicle, no person shall park any vehicle on any street for a period of time longer than thirty minutes between the hours of one a.m. and six a.m. of any day.
(Ord. 1278 § 20, 1967: prior code § 10-17-32)

11.52.305 Commercial vehicles, recreational vehicles and trailers.

(A) Except as otherwise provided in this Section or as permitted by posted sign, it is unlawful for a person to stand, park or store, upon any street adjacent to a residence district, public school or public park, a commercial vehicle, recreational vehicle, trailer, or any combination of vehicle and trailer having an overall length of twenty-four feet or more or an unladen weight in excess of eight thousand pounds. For purposes of the preceding sentence, a "residence district" means the territory contiguous to a street, not comprising a business district, in which the parcels abutting such street for a distance of three hundred feet or more are mainly occupied by dwellings or by dwellings and buildings in use for residence.

(B) The provisions of Subsection (A) do not apply to a commercial vehicle that is:

(1) Parked in front of property from which or to which goods or passengers are being picked up or delivered, but only for that period of time during which goods or passengers are being expeditiously loaded or unloaded; or

(2) Being used in conjunction with the performance of service, repair, construction or similar essential use within the immediate neighborhood.

(C) A person may park a recreational vehicle upon a residential street in front of property from which or to which passengers and travel items will be loaded or unloaded, but only:

(1) For a period not to exceed forty-eight consecutive hours; and

(2) In accordance with a permit issued by the Parking Services Division of the Department of Economic and Urban Development in accordance with Subsection (D).

For purposes of this Subsection (C) and Subsection (D), "recreational vehicle" means any vehicle or trailer, or vehicle-trailer combination, that is designed, maintained and used as a travel trailer, camper, motor home, tent trailer, or camping trailer.

(D) A permit issued for recreational vehicle parking described in Subsection (C):

(1) Shall specify the location and vehicle to which it pertains, the date and time permitted parking may begin, and the date and time the permit expires;

(2) Must be displayed in or on the vehicle in a conspicuous location that is clearly visible from the street;

(3) Is valid only for the vehicle, location and times specified;

(4) Is not valid with reference to the same recreational vehicle more than six times within any three-month period;

(5) Is not valid for any period that commences less than seventy-two hours after a previous permit for the same recreational vehicle has expired; and

(6) May be revoked for abuse, misuse, ineligibility or other good cause.

(E) It is unlawful for a person to stand, park or store a mobile billboard upon any street at a location within five hundred feet of a dwelling, including any apartment unit or residential condominium. For purposes of this Subsection (E), "mobile billboard" means one or more sign structures that are mounted on a vehicle or trailer and are used for general advertising or advertising for hire. The term does not include signs that are displayed or installed on:

(1) A bus, taxicab or similar vehicle that is used primarily for the purpose of transporting multiple passengers; or

(2) A vehicle operated in the normal course of the vehicle owner's business, if the signs contain advertising or identifying information directly related to the business and are not used to display advertising unrelated to that business.

(Ord. No. 6574, § 1, 4-19-17; Ord. No. 6240, § 1, 3-20-13; Ord. No. 6062, § 1, 10-21-09; Ord. 5870 § 14, 2006: Ord. 5434 § 8, 2002: Ord. 5319 § 3, 2001: Ord. 5095 § 32, 1998)

11.52.310 City lots—Regulation authority.

The City Manager is authorized to limit parking within City parking facilities to certain specified persons, for designated purposes, and for certain specific lengths of time, and to erect signs giving notice of such limitations. In any such facility, those limitations may include, among other things, the requirement to pay a fee for parking that is collected upon entrance or exit.

(Ord. No. 6703, § 9, 10-2-19; Ord. No. 6629, § 1, 8-15-18; Ord. 1839 § 1 (part), 1976: Ord. 1692 § 1, 1974: Ord. 1664 § 1 (part), 1973: Ord. 1331 § 2 (part), 1968: prior code § 10-17-33(A))

11.52.315 City lots—Markings.

The City Manager or designee is authorized to cause individual parking spaces within City parking facilities to be marked, either by means of painted lines or other durable markings. Where such parking spaces have been so marked, it is unlawful to park any vehicle:

(A) In such a way that the vehicle is not entirely within the limits of a single space so designated; or

(B) In an area not marked as a parking space.

(Ord. No. 6703, § 10, 10-2-19; Ord. No. 6149, § 5, 5-4-11)

11.52.320 City lots—Conformance to signs.

When signs are erected giving notice thereof, it shall be unlawful for any person to park a vehicle within a City parking facility in violation of such limitations. Violations of this Section include:

(A) Parking a vehicle at a location within the City parking facility or in a manner that is contrary to or prohibited by the posted limitations; and

(B) The failure to pay a required parking fee in accordance with LVMC 11.52.310.

(Ord. No. 6703, § 11, 10-2-19; Ord. No. 6629, § 2, 8-15-18; Ord. 1839 § 1 (part), 1976: Ord. 1664 § 1 (part), 1973: Ord. 1331 § 2 (part), 1968: prior code § 10-17-33(B))

11.52.325 City lots—Misdemeanors or civil violations.

Whether or not signs are erected within or adjacent to a City parking facility giving notice thereof, it is unlawful, and punishable as a misdemeanor or by means of civil fine, for any person:

(A) To deface, damage, tamper with, willfully break, destroy, impair the usefulness of, evade without tendering due payment, or open without lawful authority an entry or exit gate or other access-control mechanism pertaining to the parking facility. A fee equal to the amount of the cost of the repair or replacement of the damaged equipment will be assessed to the individual or entity responsible for such damage, in addition to applicable parking fees, parking-related fines, and criminal penalties.

(B) Where authorized entry to a City parking facility is by means of a gate or other access- control mechanism, or by receiving a stub or ticket for such entry (or both), to park a vehicle within the parking facility without having entered the facility in an authorized manner. Parking in violation of this Subsection (B) is deemed and declared to be a theft of City services.

(C) For purposes of avoiding payment of the applicable parking or permit fee; to drive a vehicle through the entry or exit of a controlled-access parking facility by trailing immediately behind another vehicle before the gate or other access-control mechanism has an opportunity to drop or close.

(D) For purposes of avoiding payment of the applicable parking or permit fee, to drive a vehicle into or out of the parking facility by any other unauthorized means, such as by breaking though a gate or other access-control mechanism, or bv entering or exiting without stopping to receive a stub or ticket for entry or without paying for exit. In the case of damage caused by breaking through a gate or other access-control mechanism, a fee equal to the amount of the cost of the repair or replacement of the damaged equipment will be assessed to the individual or entity responsible for such damage, in addition to applicable parking fees, parking-related fines, and criminal penalties.

(Ord. No. 6829, § 6, 2-1-23)

11.52.330 City lots—Penalties for violations.

(A) The City Council finds that the parking of a vehicle in violation of LVMC 11.52.320 or 11.52.325 is a public nuisance per se and a disruption of the effective use of City parking facilities by those persons authorized to use them. The City Manager or his duly authorized representative shall have the authority to immobilize any vehicle or have any vehicle removed by towing and impounding from a City parking facility if such vehicle is found to be in violation of LVMC 11.52.320 or 11.52.325. All expenses incurred in the immobilization or towing and impounding of such vehicle found to be in violation shall be the responsibility of and charged to the registered owner of said vehicle and shall be paid prior to removal of the immobilizer or prior to release of the vehicle from impoundment. The fee for releasing any car immobilized or impounded under this Section is fifty dollars.

(B) Citations issued for the violation of LVMC 11.52.320 and 11.52.325 shall be disposed of under normal procedures and need not be paid as a condition for the release of the vehicle from custody.

(Ord. No. 6829, § 7, 2-1-23; Ord. No. 6703, § 12, 10-2-19; Ord. 5870 § 15, 2006: Ord. 1839 § 1 (part), 1976: Ord. 1826 § 1, 1976: Ord. 1664 § 1 (part), 1973: prior code § 10-17-33(C))

11.52.335 Parks.

(A) When hours of closure have been established for a park and signs have been posted therein specifying the hours of closure, no person shall park a motor vehicle in the park, on a parking lot therein, or in any publicly maintained parking lot immediately adjacent thereto during the hours of closure.

(B) No person shall park a motor vehicle on any surface area of a park except those portions which are either paved or, if unpaved, are specifically designated for the parking of vehicles.

(C) The prohibitions contained in Subsections (A) and (B) of this Section do not apply to the parking of a vehicle in connection with a duly authorized park improvement or maintenance activity, or to parking which is specifically authorized by the City's Department of Parks, Recreation and Cultural Affairs, or the Department of Public Safety.

(Ord. No. 6816, § 113, 8-17-22; Ord. No. 6518, § 19, 4-6-16; Ord. No. 6326, § 35, 6-18-14; Ord. 5095 § 33, 1998)

11.52.340 Municipal vehicles.

The City Council may designate parking spaces upon City streets or in City parking facilities for the parking of City vehicles. It is unlawful to park a vehicle other than a City vehicle in any such space that has been duly posted or marked.
(Ord. No. 6703, § 13, 10-2-19; Ord. No. 6326, § 36, 6-18-14; Ord. 170 § 26 (part), 1931: prior code § 10-17-9)

11.52.350 Solicitation prohibitions.

No person shall stop, stand or park a vehicle in a street for the purpose of engaging or soliciting the employment of a pedestrian.
(Ord. 4092 § 1, 1997)

CHAPTER 11.53 VALET PARKING

11.53.010 Purpose.

The purpose of this Chapter is to set forth the criteria to be used by the City for the installation, removal, and regulation of selected areas for valet parking in public rights-of-way. This Chapter is enacted in response to the need to provide additional parking space, and facilitate additional parking options, for patrons, guests and residents of commercial and noncommercial locations in parking-impacted areas within the boundaries of the Downtown Las Vegas Overlay District, as described in LVMC 19.10.110.
(Ord. No. 6608, § 19, 12-6-17; Ord. 5805 § 2, 2005)

11.53.020 Definitions.

For purposes of this Chapter, the following terms have the meanings ascribed to them:

"Valet parking" means a service by which patrons, guests or residents of commercial or noncommercial establishments or locations leave their vehicles at the street curbline and attendants park and retrieve the vehicles, whether or not for consideration.

"Valet parking zone" means an area within the public right-of-way that has been set aside by the City for valet parking in accordance with this Chapter.

"Valet parking permit" means a permit issued in accordance with this Chapter for the approved use of valet parking in a valet parking zone.
(Ord. 5805 § 3, 2005)

11.53.030 Valet parking designation.

The City Traffic Engineer is responsible for the designation of valet parking zones. In deciding whether or not to designate an area as a valet parking zone, the City Traffic Engineer shall consider:

(A) The safety and convenience of the public;

(B) The actual number of passengers to be served by the valet parking zone;

(C) The proximity of any existing valet parking zones;

(D) Existing demands for curb use such as the number and location of existing transit and taxi loading zones, and existing commercial loading zones in the general area of the requested zone;

(E) The availability of on- and off-street parking for the area; and

(F) Any potential impact on the environment.
(Ord. 5805 § 4, 2005)

11.53.040 Permit authorization.

(A) The City Traffic Engineer is authorized to issue valet parking permits pursuant to this Chapter. Application for a valet parking permit shall be made in writing on a form approved by the City Traffic Engineer and shall be accompanied by a filing fee. The filing fee shall be as set forth in the fee schedule adopted pursuant to LVMC 13.40.050. The City may also assess usage fees and parking meter-related fees in amounts set forth in the fee schedule.

(B) The application for a valet parking permit shall include:

(1) The business name and address of the person, corporation, partnership or other business entity seeking the permit;

(2) The identifying number of the applicant's business license, if one is required;

(3) A description and map of the location proposed to be used as a valet parking zone and the location of the use or uses the valet parking zone is intended to serve;

(4) A description and map sufficient to show how the valet parking zone(s) will be operated;

(5) A description and map of the parking lot or lots where vehicles will be stored, and how vehicles will be moved between the valet parking zone and the vehicle storage sites; and

(6) Any other information that the City Traffic Engineer deems necessary in order to approve a valet parking permit.

(Ord. 5805 § 5, 2005)

11.53.050 Permit renewal.

Each valet parking permit issued by the City Traffic Engineer shall be valid for not more than one year from date of issuance. An application for renewal of the permit shall be processed in general accordance with LVMC 11.53.040. Renewal of a permit is subject to an inspection of the valet parking zone and its operation. The City may charge a permit renewal fee and related fees as set forth in the fee schedule adopted pursuant to LVMC 13.40.050.
(Ord. 5805 § 6, 2005)

11.53.060 Permit approval.

A valet parking permit authorizes the permittee to provide valet parking in a valet parking zone that is designated for use in connection with that permit. The approval of a permit shall be limited by the locations and operational details that were submitted as part of the application process. Approval of a permit may be made subject to conditions designed to minimize the impact of the valet parking on the surrounding areas. A permit is also subject to the following:

(A) The permittee shall be responsible for ensuring that a valet parking zone is operated in such a manner as to provide ample opportunity for passenger drop-off or pick-up by motorists who do not wish to utilize valet parking services.

(B) The permittee may operate the valet parking service or contract with an operator to do so. The permittee must be:

(1) The owner or a principal of the business or other concern that is to be served by the valet parking service; or

(2) An employee or contractor of that business or other concern.

(C) The permittee or operator shall provide and maintain portable pedestal signs as may be required by the City Traffic Engineer. Except as otherwise permitted by the City Traffic Engineer, pedestal signs shall be twenty-four inches wide and not more than four feet high. The signs shall have three-inch black letters on a white background and shall indicate that the marked area is designated for valet parking and passenger loading and unloading only. The signs may indicate that vehicles parked in violation of the restrictions are subject to citation or other enforcement activity. Sign pedestals must be located within twenty-four inches of the face of the curb and be placed in such a manner as not to create an impediment to pedestrians.

(D) The permittee or operator shall not allow the valet parking zone or any other public right-of-way to be used for the storage of valet-parked cars.

(E) The permittee or operator must obtain the written approval of the City Traffic Engineer before changing the location or operation of a valet parking zone, including the location of parking lots upon which vehicles are stored.

(F) The applicant must provide the City Traffic Engineer with copies of all agreements relating to the operation of the valet parking zone, including without limitation agreements between a permittee and an operator, agreements between a permittee and the businesses and concerns to be served by the valet parking service, and agreements between the permittee or operator and the owner or operator of the parking lots to be used for the storage of vehicles.

(G) The use of parking lots for the storage of vehicles must be in compliance with Title 19 and all zoning requirements established thereunder.

(H) The operator must demonstrate compliance with any business licensing requirements applicable to the valet parking operation.

(I) The permittee must indemnify the City by means of an indemnification agreement satisfactory to the City Attorney.

(J) The permittee or operator must maintain a policy of liability insurance in an amount satisfactory to the City in order to protect the City from any claims which may arise from the valet parking operation.

(K) During the operation of a valet parking service, the permittee or operator must display the applicable valet parking permit in a conspicuous place at the valet parking zone, and must make it available for inspection on the demand of any peace officer or enforcement official of the City.

(Ord. 5805 § 7, 2005)

11.53.070 Valet parking zone—Public uses.

(A) Except as otherwise provided in Subsection (B), an area designated as a valet parking zone pursuant to this Chapter may also be used for public parking or for the loading and unloading of persons or property, as may be indicated on appropriate signage.

(B) During periods of time in which a valet parking zone is being used for valet parking, a vehicle may not be parked within the zone for longer than is necessary for passenger loading or unloading, or for a parking attendant to enter the vehicle to drive it to its parking destination or to return it to the valet parking zone for pickup by the valet customer. When such limitations are in effect, the zone must be posted with approved signage indicating the limitations on the use of the valet parking zone.

(Ord. 5805 § 8, 2005)

11.53.080 Parking regulations.

Nothing in this Chapter authorizes the parking of vehicles by the permittee or operator in a manner contrary to applicable State law or City traffic and parking regulations.

(Ord. 5805 § 9, 2005)

11.53.090 Permittee—Responsibility.

(A) The permittee (and the operator, if someone other than the permittee operates the valet parking service) are jointly and severally responsible for the proper operation of the valet parking service and valet parking zone.

(B) The failure to comply with any requirement of this Chapter or any condition imposed upon a valet parking permit shall be sufficient cause for revocation of the permit by the City Traffic Engineer. A permit may be revoked if the City Traffic Engineer, after a hearing on the matter, finds the existence of grounds which would have constituted just cause for refusal to issue the permit, or finds that the permittee or operator has failed to comply with any requirement of this Chapter or condition imposed upon the permit. Written notice of the revocation hearing, setting forth the time and place of hearing and a brief statement of the reason(s) for the proposed revocation, shall be served on or mailed to the permittee at the business address listed in the permit application not less than ten days before the hearing.

(C) A valet parking permit may be temporarily suspended without a hearing if the City Traffic Engineer determines that the continued operation of the valet parking service is a hazard to public safety or is in violation of this Chapter. The suspension shall remain in effect until a hearing is held and a decision made, but in no event for more than sixty days.
(Ord. 5805 § 10, 2005)

11.53.100 Responsibility delegation.

The City Traffic Engineer may delegate any responsibility assigned to him under this Chapter to one or more employees of the City.
(Ord. 5805 § 11, 2005)

11.53.110 Parking violation—Public uses.

No person shall park a vehicle in violation of Subsection (B) of LVMC 11.53.070.
(Ord. 5805 § 12, 2005)

11.53.120 Violations.

It is unlawful, and a criminal violation, for any person to:

(A) Operate, engage in, conduct, manage, or cause to be operated on any public right-of-way a valet parking service without a valid valet parking permit issued by the City;

(B) Provide false information in an application for a valet parking permit; or

(C) Permit the use or display of a valet parking permit for any purpose other than that for which the permit is issued.
(Ord. 5805 § 13, 2005)

CHAPTER 11.54 METERED PARKING

11.54.010 Definitions.

For the purposes of this Chapter the terms "operator," "park," "parking," "parking meter," "parking meter space," "parking meter zone," "street" and "vehicle" have the meaning subscribed in Subsection C of Section 11.10.010 of this Title.
(Ord. 3829 § 10, 1994: Ord. 354 § 1, 1948: prior code § 10-3-1)

11.54.020 Zone designated.

Those streets or portions of streets or areas described in Schedule 3-I, a copy of which is to be maintained for public inspection in the offices of the City Clerk and City Traffic Engineer, and such other streets, portions of streets or other areas as may be added to said Schedule by written finding of the City Traffic Engineer shall constitute a parking meter zone.
(Ord. No. 6184, § 10, 3-21-12; Ord. 3990 § 19, 1996: Ord. 1589 § 1 (part), 1972: Ord. 1278 § 1 (part), 1967: Ord. 1169 § 1 (part), 1965: Ord. 710 § 1, 1956: Ord. 354 § 2, 1948: prior code § 10-3-2)

11.54.030 Meter placement approval.

The placement or removal of parking meters on those streets, portions of streets and other areas identified in LVMC 11.54.020 shall be done by written finding of the City Traffic Engineer approving such placement or removal.
(Ord. No. 6184, § 11, 3-21-12; Ord. 3989 § 11, 1996: Ord. 1589 § 1 (part), 1972: Ord. 1278 § 1 (part), 1967: Ord. 1169 § 1 (part), 1965: Ord. 710 § 2, 1956: prior code § 10-3-2 (part))

11.54.040 Space designation.

The City Traffic Engineer is directed and authorized to mark off individual parking spaces in the parking zones which may be established. Except for metered parking spaces on the street, parking spaces are to be designated by lines painted or durably marked on the curbing or surfaces within such parking zone. In any parking zone so marked off, it shall be a violation of this Chapter to park any vehicle in such a way that the vehicle shall not be entirely within the limits of a single space so designated or in an area not marked off for parking.
(Ord. 3989 § 12, 1996: Ord. 3829 § 11, 1994: Ord. 2203 § 5, 1981: Ord. 981 § 2 (part), 1962: Ord. 354 § 3, 1948: prior code § 10-3-3)

11.54.050 Meter installation and specifications.

In parking meter zones, the City Traffic Engineer shall cause parking meters to be installed at the appropriate locations so as to control the metered parking spaces established under this Chapter. The Parking Services Division of the Department of Economic and Urban Development shall be responsible for the enforcement, installation, operation, maintenance and use of

parking meters. Each device shall enable legal parking for the period of time established under this Chapter, upon activation of the meter in accordance with Section 11.54.060. Upon the expiration of the period for which parking in a particular space:

(A) Is permitted pursuant to this Chapter; and

(B) Has been duly enabled under this Chapter by means of payment,

→ the right of the vehicle to occupy such space shall cease and the operator, owner, possessor or manager thereof shall be subject to the penalties provided in this Title.
(Ord. No. 6326, § 37, 6-18-14; Ord. No. 6184, § 12, 3-21-12; Ord. 5870 § 16, 2006: Ord. 3829 § 12, 1994: Ord. 2203 § 6, 1981: Ord. 981 § 2 (part), 1962: prior code § 10-3-4)

11.54.060 Activation of meter—Lawful occupancy.

(A) Except in a period of emergency determined by an officer of the Department of Fire and Rescue or the Las Vegas Metropolitan Police Department, or in compliance with the directions of a police officer or traffic-control sign or signal, when any vehicle shall be parked in any parking space controlled by a parking meter, the operator of such vehicle shall, upon entering the parking meter space, immediately activate the meter in accordance with this Section. Failure to activate a meter in accordance with this Section is a violation of this Chapter.

(B) For purposes of this Section, activation of the meter consists of paying the amount required to set in operation the timing function of the meter or activating the meter by the alternate means described in Subsection (C) of this Section. Activation by payment may be accomplished by one of the following means:

(1) Deposit of the required amount in United States coin;

(2) An approved debit or credit payment; or

(3) Activation of the meter by electronic means established and approved by the City.

(C) As an alternative to meter activation by means of payment described in Subsection (B), a meter in a particular meter zone may be activated by the display of a valid permit that has been authorized, designated and issued by the City for use in that meter zone. The City may charge a fee for such a permit under the authority described in LVMC 11.54.100(A).

(D) In connection with authorizing payment by electronic means as described in Paragraph (3) of Subsection (B), the City is authorized to charge a convenience fee.

(E) Upon activation of the parking meter in accordance with this Section, the parking space may be lawfully occupied by such vehicle during the period of time which has been prescribed for the part of the street in which said parking space is located and for the period during which the parking meter is activated.
(Ord. No. 6402, § 1, 2-18-15; Ord. No. 6326, § 38, 6-18-14; Ord. 5870 § 17, 2006: Ord. 5233 § 1, 2000: Ord. 2203 § 7 (part), 1981: Ord. 1278 § 2 (part), 1967: Ord. 354 § 5 (part), 1948: prior code § 10-3-5 (part))

11.54.070 Overtime parking.

If a vehicle shall remain parked in any parking space contemplated in LVMC 11.54.060 beyond the time period that has been paid for regarding that space, the vehicle shall be deemed in violation of this Chapter. This provision regarding overtime parking shall not apply to any vehicle lawfully displaying a special or temporary parking sticker, placard, permit or plate, and parked in a space for a period of four hours or less as provided in NRS 484B.463.
(Ord. No. 6326, § 39, 6-18-14; Ord. 5870, § 18, 2006: Ord. 3829 § 13, 1994: Ord. 2203 § 7 (part), 1981: Ord. 1278 § 2 (part), 1967: Ord. 354 § 5 (part), 1948: prior code § 10-3-5 (part))

11.54.080 Unattached trailers.

It shall be a violation of this Chapter to park any trailer, trailer coach or other unattached vehicle which is capable of being towed by a motor vehicle in any parking meter space except:

(A) An unattached vehicle used as a temporary traffic control device to display messages directing traffic during emergencies or construction; or

(B) By means of a special permit issued by the City Traffic Engineer.
(Ord. No. 6326, § 41, 6-18-14; Ord. 5095 § 34, 1998: Ord. 3989 § 13, 1996: Ord. 2203 § 7 (part), 1981: Ord. 1278 § 2(part), 1967: prior code § 10-3-5 (part))

11.54.090 Hours of operation.

(A) Subject to the provisions of Subsection (B), the hours of operation for any parking meter shall be those which are established by the City Traffic Engineer.

(B) Any metered parking space may be occupied without activating the meter on the following days: January 1; the third Monday in January; the third Monday in February; the last Monday in May; June 19; July 4th; the first Monday in September; the last Friday in October; November 11; the fourth Thursday in November; the Friday following the fourth Thursday in November; December 25; and any general holiday declared by the President of the United States, the Governor of the State or the Mayor.
(Ord. No. 6829, § 8, 2-1-23; Ord. No. 6326, § 42, 6-18-14; Ord. 5870 § 20, 2006)

11.54.100 Rates—Spaces on street.

Parking or standing a vehicle in a parking meter space on the streets and parts of streets that are designated in Schedule 3-I, as the same is established pursuant to LVMC 11.54.020, or in any City parking facility is permissible in accordance with the rates and time limits which have been:

(A) Established by the Parking Services Division of the Department of Economic and Urban Development, and approved by the City Manager; and

(B) Indicated upon the parking meter or by means of a duly-posted sign.
(Ord. No. 6703, § 14, 10-2-19; Ord. No. 6402, § 2, 2-18-15; Ord. 5181 § 2, 1999: Ord. 3989 § 15, 1996: Ord. 3353 § 2, 1988: Ord. 1304 § 1 (part), 1967: Ord. 1007 § 1, 1962: Ord. 988 § 1 (part), 1962: Ord. 981 § 2 (part), 1962: Ord. 622 § 1 (part), 1954: Ord. 592 § 1 (part), 1954: Ord. 354 § 6(b), 1948: prior code § 10-3-6(B))

11.54.110 City-owned lots—Use of parking spaces/areas without meter activation.

Notwithstanding any other provision of this Title pertaining to metered parking, the City Manager or a designee may establish and implement a policy under which specific parking spaces or parking space areas within a City parking facility may be used without the need to activate the corresponding parking meter in the manner otherwise required.
(Ord. No. 6703, § 15, 10-2-19; Ord. No. 6162, § 1, 9-2-11)

11.54.170 Collections.

It shall be the duty of the Parking Services Division of the Department of Economic and Urban Development to designate some employee or employees, who shall be bonded, to make regular collections of the money deposited in said meters and it shall be the duty of such employees so designated to remove the coins so deposited in the meters and deliver the same to the Director of Finance who shall count the funds contained therein and deposit such funds with the Treasurer.
(Ord. No. 6184, § 13, 3-21-12; Ord. 3484 § 14, 1990: Ord. 2203 § 8, 1981: Ord. 981 § 2 (part), 1962: Ord. 354 § 9, 1948: prior code § 10-3-8)

11.54.180 Use of funds.

The revenue generated by parking meters shall be used to defray the expense of proper regulation of traffic and parking upon the public streets of the City, to provide for the cost of supervision, regulation and control of the parking of vehicles in parking meter zones and other areas in which parking is restricted and to cover the cost of purchase, supervision, protection, inspection, installation, operation, maintenance, control and use of parking meters as well as the public areas in the vicinity of the parking meters and the zones in which parking is restricted.
(Ord. 5233 § 2, 2000: Ord. 3353 § 4, 1988: Ord. 354 § 10, 1948: prior code § 10-3-9)

11.54.190 Exemption permits.

(A) Parking exemption permits shall authorize the persons to whom they are issued to park, without violation and without the payment of a meter fee, the vehicles to which the permits are affixed in any on-street parking space adjacent to any parking meter with a time limit of one hour or more, or in any space in a one-hour time-limited parking zone, while actually engaged in field work, subject to the limitations in Subsection (C) of this Section.

(B) The following groups of persons shall be eligible for parking exemption permits upon application to the City Manager or his authorized designee:

(1) Members of news media whether involved in television, radio or newspaper news preparation or reporting, who are actually in the field preparing or reporting news stories for their employers;

(2) Public officers and employees of Federal, State or local governments who are required by their employers to use private automobiles while actually engaged in field work or business outside of their normal offices.

(C) No parking exemption permit shall be approved by the City Manager under this Section unless he receives a letter accompanying the application from the applicant's top administrative officer describing such applicant's job responsibilities and his need for an exempt parking permit and which shows to the City Manager's satisfaction that the employee qualifies for the permit.

(D) A fee shall be charged for each parking exemption permit issued, except as indicated in Subsection (G) of this Section. The fee for a media employee exemption permit shall be in the amount of twenty-five dollars. The fee for a governmental employee exemption permit shall be in the amount of five hundred dollars.

(E) Each parking exemption permit shall be valid for a period of one year. Once a parking exemption permit is issued to a qualified applicant, it shall be unlawful for such person to use the permit for other than official business, and in no case shall the permit authorize any vehicle to park in any space adjacent to any parking meter or in any space posted one-hour time-limited parking zone for more than two hours continuously.

(F) Operators of City-owned vehicles with exempt plates issued pursuant to NRS 482.368 shall not be required to apply for, purchase or display parking exemption permits. Vehicles displaying such license plates shall be authorized to park, without violation and without the payment of a meter fee, in any space adjacent to any parking meter with a time limit of one hour or more, or in any space posted as a one-hour or two-hour time-limited parking zone, for not more than two hours continuously.

(G) The City Manager or his designee, upon request, may issue parking exemption permits, without charge, to the County Manager of Clark County, or the city manager of any incorporated city within Clark County, for the use of elected officials, citizen board members, or other government officials to whom those permits have been assigned by the respective manager. The maximum number of permits that may be issued without charge shall be as follows:

(1) For use by Clark County, a maximum of fifteen permits.

(2) For use by other cities, a maximum of seven permits per city.
(Ord. 5870 § 21, 2006: Ord. 3561 § 1, 1991: Ord. 3535 § 1, 1990: Ord. 3345 § 1, 1988: Ord. 3088 § 1, 1983: Ord. 1860 § 1, 1977: Ord. 1836 § 1 (part), 1976: Ord. 1579 § 1, 1972: Ord. 1334 § 1, 1968: Ord. 1323 § 2 (part), 1968: Ord. 1306 § 1, 1967: Ord. 1007 § 2, 1962; Ord. 981 § 2 (part), 1962: Ord. 354 § 8, 1948: prior code § 10-3-11)

11.54.200 Violations.

It shall be a violation of the provisions of this Chapter for any person:

(A) To cause, allow, permit or suffer any vehicle registered in the name of or operated by such person, contractor or agency to be parked overtime, or beyond the period of legal parking time established for any parking meter zone established under this Chapter.

(B) To permit any vehicle to remain in any parking space adjacent to any parking meter while said meter is displaying a signal indicating that the vehicle has already been parked beyond the period prescribed for such parking space or beyond the period for which the meter was activated.

(C) To park any vehicle across any line or marking of a parking meter space or in such position that the vehicle is not entirely within the area designated by such lines or markings.

(D) To park any vehicle for more than thirty minutes in a parking meter space that has been posted as out of service because of malfunction.

(E) To park any vehicle in a parking meter space that has been posted as reserved for use by another person, company, contractor or agency pursuant to Section 11.54.230.
(Ord. 5870 § 22, 2006: Ord. 5233 § 3, 2000: Ord. 3989 § 17, 1996: Ord. 354 § 7, 1948: prior code § 10-3-10)

11.54.202 Violation—Civil infraction.

Unless otherwise provided, a violation of this Chapter shall be a civil infraction in accordance with the provisions of LVMC Ch. 11.10, for which both the registered owner and the operator of a vehicle are liable.
(Ord. 3989 § 19, 1996)

11.54.205 Misdemeanors.

It is a misdemeanor for any person:

(A) To deface, injure, tamper with, open or wilfully break, destroy, remove, or impair the usefulness of any parking meter installed under the provisions of this Chapter, except as otherwise provided in this Chapter.

(B) To deposit or cause to be deposited in any parking meter any slugs, device or metal substances, or other substitute for lawful coins.

(C) To attempt to activate any parking meter by means of a key or card which is not authorized for use in that meter.

(Ord. 5233 § 4, 2000: Ord. 3989 § 20, 1996)

11.54.210 Erroneous citations—Malfunctioning meters.

Notices of Infractions whose issuance is based upon a malfunctioning parking meter or is otherwise in error may be referred to the Parking Division of the Department of Economic and Urban Development for formal withdrawal of the Notice of Infraction and any enforcement-related documents previously processed.
(Ord. No. 6184, § 14, 3-21-12; Ord. 5870 § 23, 2006: Ord. 3829 § 14, 1994: Ord. 2203 § 9, 1981: Ord. 1836 § 1 (part), 1976: Ord. 1323 § 2 (part), 1968: prior code § 10-3-12)

11.54.220 Transit and loading zones unaffected.

Nothing in this Chapter shall be construed as prohibiting the City from providing for bus stops, for taxicab stands and other matters of similar nature, including the loading or unloading of trucks, vans or other commercial vehicles.
(Prior code § 10-3-7)

11.54.230 Occupancy permit.

The Parking Division of the Department of Economic and Urban Development may issue to a person, company, contractor or agency, upon application therefor, a parking space occupancy permit authorizing the occupancy of one or more metered parking spaces for extended periods of time in order to provide supplies, materials, or services, on a temporary basis, in the immediate area of the parking spaces. Issuance of such an occupancy permit shall be in the discretion of the Parking Division of the Department of Economic and Urban Development. In connection with the issuance of an occupancy permit, the City is authorized to charge an occupancy permit fee, which shall be paid by the applicant before any permit is issued or space

reserved for the applicant. The amount of the occupancy permit fee shall be determined by the Parking Division of the Department of Economic and Urban Development and shall be in an amount that represents the sum of:

(A) The maximum parking meter revenue otherwise collectible for parking a vehicle or vehicles, for the period of time requested, in the metered parking spaces to be occupied under the occupancy permit; and

(B) An amount representing the costs of processing the application and occupancy permit.
(Ord. No. 6184, § 15, 3-21-12; Ord. 5870 § 25, 2006)

11.54.240 Pilot program.

(A) The Traffic Engineer or the Parking Division of the Department of Economic and Urban Development may establish on a temporary basis one or more pilot programs pursuant to which persons licensed as mobile food vendors may occupy parking spaces located on selected public rights-of-way for the purpose of vending. Such programs may include one or more of the following elements:

(1) A lottery or other system under which interested vendors, by means of an application or similar process and the payment of a fee, may become eligible to participate in the pilot vending program.

(2) Payment by a mobile food vendor, by means of a parking meter, for the right to occupy and vend within designated parking spaces.

(3) A system of rotation or other method by which interested vendors may participate on an equitable basis with other vendors and by which the public can have access to a variety of dining categories and food products.

(B) The use of a parking space in accordance with a pilot program established under this Section is exempt from any prohibition on such use that otherwise would apply.

(C) It is unlawful to do any of the following:

(1) Park a vehicle that is eligible for the pilot program at the meter reserved for or assigned to that vehicle in excess of the time for which the meter was activated or without activating the meter.

(2) Park a vehicle that is eligible for the pilot program at a meter other than one reserved for or assigned to that vehicle under that program.

(3) Park a vehicle that is ineligible for the pilot program at a meter assigned to be used in connection with the pilot program.

(D) The fines associated with a violation of Subsection (C) shall be as set forth in the schedule of fines and penalties adopted under LVMC 11.10.140.
(Ord. No. 6437, § 11, 8-5-15; Ord. No. 6236, § 1, 2-6-13)

CHAPTER 11.55 PARKING LOTS

11.55.010 Definitions.

The following words, terms and phrases shall have the meaning indicated:

(A) "Park" means to stand a vehicle for a period of time greater than is reasonably necessary for the actual loading thereon or unloading therefrom of persons or property.

(B) "Patron parking lot" means any building, structure, outdoor space, uncovered plot, place, lot, parcel, yard, or enclosure or any portion thereof, on the same or adjacent property and provided exclusively for the use and convenience of persons doing business at or with a business establishment and for which no charge to park is made and whether or not a ticket must be validated.

(C) "Public parking lot" means any building, structure, outdoor space, uncovered plot, place, lot, parcel, yard or enclosure, or any portion thereof, where motor vehicles are parked, stored, housed or kept, for which any charge is made, and which is open to the general public.

(D) "Semipublic parking lot" means any building, structure, outdoor space, uncovered plot, place, lot, parcel, yard or enclosure, or any portion thereof, where motor vehicles are parked, stored, housed or kept, pursuant to agreement with the owner, operator, or manager and for which a charge is made on a daily, weekly or monthly rate.

(Ord. 2210 § 2 (part), 1981: prior code § 10-32-1)

11.55.020 Space designation and restrictions.

When any person shall establish any parking lot as defined in Section 11.55.010 such person shall designate the space for parking and the manner of parking thereon, the space thereon to be used for parking by different types of vehicles and may also limit the time such vehicles may remain parked on the premises.

(Ord. 2210 § 2 (part), 1981: prior code § 10-32-2)

11.55.030 Sign and required information.

Such person in addition shall maintain at each entrance to such parking lot permanent sign or signs suitable to apprise persons using the same of the following information:

(A) The hours of the day or night during which the parking lot is open for business, unless the parking lot is open for business twenty-four hours a day;

(B) Rates charged for parking, if any charge is made, and when more than one rate is charged or a sliding rate scale is charged, the figures and letters stipulating each rate shall be of uniform size and dimensions, and shall be not less than six inches in height and three inches in width;

(C) If the parking lot is exclusively a patron parking lot, such information as to properly advise the users of the terms and conditions of such use;

(D) The name, address, and telephone number of the holder of the business license;

(E) If the parking lot is a self-service public parking lot, such information as to properly advise the users of the manner and place of fee payment;

(F) That a patron parking a vehicle without paying the posted fee in the manner made available is deemed a trespasser, for which a citation will be issued. Any vehicle receiving two such citations will be subject to impound, and information concerning any impounded vehicle may be obtained by calling the Metropolitan Police Department. Provide phone number.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-3)

11.55.040 Emergency contact.

Every person establishing or maintaining a parking lot as defined in this Chapter shall furnish to the Metropolitan Police Department the name and telephone number of a responsible person who may be contacted in the event an emergency arises.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-4)

11.55.050 Violations—Log book.

There shall be maintained by each licensee a log book showing date and time and license number of any vehicle issued a violation envelope.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-5 (part))

11.55.060 Violations—Envelope.

Vehicles in violation will be issued a violation envelope by the licensee on their first offense, containing the date, time and place of violation, and giving the reason for the violation and explaining the consequences.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-5(A))

11.55.070 Violations—Impoundment restriction.

No vehicle will be impounded on its first violation. Each twenty-four-hour period after a violation has been issued may be considered a separate violation.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-5 (B))

11.55.080 Impoundment—Release at site—Report to Police.

Impound procedures:

(A) If a tow truck has answered a call to impound a vehicle and the owner/driver of the vehicle returns for the vehicle before it has been "raised" (attached), the vehicle will be released upon payment of the parking fee due. If the vehicle has been raised, the vehicle will be released to the owner/ driver upon payment of parking fees due and one-half of the towing charge (seven dollars).

(B) After the vehicle is raised, but before the truck removes the vehicle from the parking lot, the tow truck operator will call the Metropolitan Police Department by radio to advise:

(1) The make of the car;

(2) Registration number;

(3) The name of the registered owner, if available;

(4) The parking lot from which towed; and

(5) The place of impound from which the vehicle may be recovered.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-5 (C))

11.55.090 Impoundment—Notice to owner.

It will be the duty of the Metropolitan Police Department to check the place of impound after twenty-four hours have elapsed from the time the Department was notified that a vehicle had been towed, to determine if the vehicle has been recovered, and the fees due to release the vehicle. If the vehicle has not been recovered, the Metropolitan Police Department will notify the parking lot licensee of that fact, and will further notify the licensee of the name and address of the registered owner of the impounded vehicle. It will then become the duty of the parking lot licensee to mail a certified letter, return-receipt requested, to the address of the registered owner of the vehicle advising him of the circumstances, place of impound, and fees due to release the vehicle.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-5 (D))

11.55.100 Trash and refuse.

Each parking lot will be free of trash and refuse. A suitable trash can will be made available by the holder of the license, at or near the fee-collection device, which will be emptied as often as required. Signs will be posted requesting that parking patrons cooperate and put all trash in the proper trash receivers. Any patron observed to ignore such notice will be reprimanded

and cited if he should not replace the refuse from the lot surface to the appropriate receptacle. Police may be called to assist, if necessary.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-6)

11.55.110 Illumination.

Any parking lot open for business from dusk to dawn, or any portion thereof, will be illuminated between the time with lamps and fixtures emitting a minimum of one foot-candle. Parking lots open for business between dawn to dusk, or any portion thereof, will not require illumination.
(Ord. 2210 § 2 (part), 1981: prior code § 10-32-7)

CHAPTER 11.56 RESERVED*

CHAPTER 11.57 USE OF PUBLIC STREETS FOR MOTORIZED RACING EVENTS

11.57.010 Definitions.

For purposes of this Chapter:

"Metro" means the Las Vegas Metropolitan Police Department.

"Motorized racing event" mean a race involving motorized vehicles that is held:

(1) Pursuant to a written agreement between the sponsor or promoter and the City; and

(2) Under the auspices or with the approval of a statewide, national or international organization that regularly engages in the governance, supervision or sanctioning of such events.

(Ord. 5877 § 1 (part), 2006)

11.57.020 Application—Provisions.

(A) In order to stage a motorized racing event on any public street within the City, the applicant must first obtain a permit approved by Metro and the City Manager. The application for a permit must be filed at least sixty days prior to the date scheduled for the racing event.

(B) At the time an application for a permit is submitted pursuant to Subsection (A), the applicant must submit a traffic control plan to Metro and to the City Traffic Engineer. The traffic control plan shall describe the proposed placement of any temporary barricades, temporary traffic signs or similar traffic control devices. The approval of a permit shall be contingent on:

(1) The approval of the traffic control plan by Metro and the City Traffic Engineer;

***Editor's note—**Ord. No. 6411, § 1, adopted April 15, 2015, repealed Chapter 11.56, §§ 11.56.010 and 11.56.020, which pertained to movies—promotions—advertising and derived from Ord. No. 6183, adopted March 7, 2012. See Chapter 12.04 for similar provisions.

(2) The provision of liability insurance in accordance with LVMC 11.56.030, subject to the minimum policy limits listed therein or such higher limits as Metro and the City may require; and

(3) Compliance with any special requirements imposed by Metro, the City Manager or the City Traffic Engineer.

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(C) The City may close public streets in connection with the staging of a motorized racing event for which a permit has been approved under this Section. Such action may take the form of a resolution adopted by the City Council, or the Council may delegate to the City Traffic Engineer the authority to close such streets by means of a street closure order.

(D) In connection with a motorized racing event for which a permit has been approved and streets have been closed pursuant to this Section, certain provisions of City ordinances and the Municipal Code which otherwise would prohibit, or be violated by, the motorized racing event shall be deemed suspended for the period of time specified in the street closure resolution or order. The suspension shall include the following regulations, as well as any others specified in the resolution or order:

(1) Any traffic regulations set forth in LVMC Title 11 that would prohibit or unduly interfere with conducting the event.

(2) Any noise regulations set forth in LVMC Chapter 9.16 that would prohibit or limit the noise emanating from the vehicles participating in the event.

(3) Any fueling regulations set forth in the Fire Code adopted pursuant to LVMC Chapter 16.16 that would prohibit the outdoor fueling activities, including the storage and dispensing of methanol and other fuels at the racing track, paddock area, pit row or any other fueling site required for the racing event, provided that event participants and sponsors have complied with the conditions and requirements imposed by the Fire Chief for the safety of spectators, event participants and owners of neighboring properties.

(Ord. 5877 § 1 (part), 2006)

CHAPTER 11.58 SIZE OR WEIGHT PERMITS—MOVING BUILDINGS

11.58.010 Oversize or overweight permits—Types.

The Department of Public Works may, at its discretion, upon application in writing, issue a special permit in writing authorizing the applicant to operate or move a vehicle, combination of vehicles, special self-propelled equipment, special mobile equipment, or load thereon of a size or weight in excess of the legal maximums, in the following instances:

(A) Continuous special permits may be issued for the operation or movement of a vehicle or combination of vehicles of a size or weight in excess of the legal maximum when such vehicle or combination of vehicles does not exceed one hundred forty-four inches in overall width, or when the total gross weight imposed on any single axle or group of two or more consecutive axles does not exceed the legal maximum weight for such vehicle or combination of vehicles by more than twenty-five percent.

(B) Single-trip special permits may be issued for the operation or movement of vehicles or combinations of vehicles of an overall width in excess of one hundred forty-four inches, or when the total gross weight of such vehicle or combination of vehicles exceeds by more than twenty-five percent the legal maximum weight for such vehicle

or combination of vehicles; provided, however, that in the event several movements to and from the same points in the City with the same vehicles or combinations of vehicles may be required, continuous special permits for that specific operation may be issued.

(C) Continuous or single-trip special permits may be issued for the operation or movement of special self-propelled equipment, such as truck cranes, truck shovels, loaders and similar equipment, of a size or weight in excess of the legal maximums.

(Ord. No. 6816, § 114, 8-17-22; Ord. 1021 § 8(1), 1963: prior code § 10-29-8(A))

11.58.020 Oversize or overweight permits—Conditions.

In issuing any of the special permits provided for in Section 11.58.010, the Department of Public Works may impose such conditions thereon, such as routes to be followed, place of operation or movement, time of operation or movement or other matters, as it shall deem necessary or proper to protect the streets, highways and alleys from damage or to minimize the inconvenience or delays to the general public.

(Ord. No. 6816, § 115, 8-17-22; Ord. 1021 § 8(2), 1963: prior code § 10-29-8(B))

11.58.030 Oversize or overweight permits—Application.

The application for any of the special permits provided for in Section 11.58.010 shall:

(A) Specifically describe the vehicles, combinations of vehicles, special self-propelled equipment or special mobile equipment, and load thereon, and the particular streets, highways or alleys over which the special permit to operate or move the same is requested.

(B) State whether such special permit is requested for a single trip or for continuous operation.

(Ord. 1021 § 8(3), 1963: prior code § 10-29-8(C))

11.58.040 Oversize or overweight permits—Structures.

Nothing contained in Sections 11.58.010 through this Section shall be deemed to authorize the issuance of special permits for the movement of buildings or other structures of a size or weight in excess of legal maximums, within, into or through the City. In the event such a permit is sought, application therefor shall be made to the Sheriff and to the Chief of the Department of Fire and Rescue in accordance with Section 11.58.060 et seq.

(Ord. No. 6816, § 116, 8-17-22; Ord. 1021 § 8(4), 1963: prior code § 10-29-8(D))

11.58.050 Oversize or overweight permits—Revocation of continuous.

If, after the issuance of a continuous special permit by the Department of Public Works, pursuant to the provisions of Section 11.58.010 et seq., such Department determines that the

traffic authorized by such continuous special permit has caused substantial highway distress, then such permit may be revoked summarily, but such revocation shall not operate to prevent a subsequent filing of a new application for another continuous special permit.
(Ord. No. 6816, § 117, 8-17-22; Ord. 1021 § 10, 1963: prior code § 10-29-10)

11.58.060 Structure permits—Authorized for single trips.

The Sheriff and Chief of the Department of Fire and Rescue may, in their discretion, upon application in writing filed with their respective departments at least forty-eight hours in advance of the requested movement, issue a special permit in writing authorizing the applicant to operate or move a vehicle, combination of vehicles or special mobile equipment for the purpose of transporting a building or other structure of a size or weight in excess of the legal maximums set forth in this Chapter, within, into or through the City. Such permits shall be issued on a single trip basis only.
(Ord. No. 6816, § 118, 8-17-22; Ord. 1021 § 9(1, 2), 1963: prior code § 10-29-9(A, B))

11.58.070 Structure permits—Conditions.

In issuing such special permits as are contemplated in Section 11.58.060, the Sheriff and Chief of the Department of Fire and Rescue may impose such conditions thereon, such as routes to be followed, place of operation or movement, time of operation or movement or other matters, as they shall deem necessary or proper to protect the streets, highways and alleys from excessive damage or to minimize the dangers, inconveniences or delays to the general public.
(Ord. No. 6816, § 119, 8-17-22; Ord. 1021 § 9(3), 1963: prior code § 10-29-9(C))

11.58.080 Structure permits—Application.

The application for a special permit provided for in Section 11.58.060 shall:

(A) Specifically describe the vehicle, combination of vehicles or special mobile equipment, and load thereon, including the width, length, total gross weight with load imposed and number of axles of the vehicle or equipment and the width, length and height of the building or other structure to be moved thereby;

(B) Indicate the particular streets, highways or alleys over which the special permit to operate or move is requested;

(C) State the date and time for which such special permit is requested.
(Ord. 1021 § 9(4), 1963: prior code § 10-29-9(D))

11.58.090 Structure permits—Prerequisites.

Before a special permit may be issued under Section 11.58.060, the applicant shall first have obtained from the Department of Community Development the permit required in Chapter 16.04 of this Code and shall have paid to and deposited with the Director of the Department of Community Development the license fee and bond required by Chapter 6.02.
(Ord. No. 6816, § 120, 8-17-22; Ord. 1021 § 9(5), 1963: prior code § 10-29-9(E))

11.58.100 Permit display for inspection.

Every special permit or a photocopy thereof, issued pursuant to this Chapter, shall:

(A) Be carried in each vehicle, combination of vehicles, special self-propelled equipment or special mobile equipment to which it refers.

(B) Be open to inspection at all times by any officer of the Metropolitan Police Department or agent of the Department of Public Works.

(Ord. No. 6816, § 121, 8-17-22; Ord. 1021 § 11, 1963: prior code § 10-29-11)

11.58.110 Violation—Misdemeanor.

It shall be unlawful for any person to operate or move any vehicle or equipment contemplated in this Chapter over any public street, highway or alley within the City without first obtaining a special permit pursuant to the provisions of this Chapter, or to violate or evade any of the terms or conditions of such permit when issued, and any person violating any of the provisions of this Chapter shall be guilty of a misdemeanor.

(Ord. 1021 § 12, 1963: prior code § 10-29-12)

CHAPTER 11.60 BUS STOPS AND TAXISTANDS

11.60.010 Designation authority generally.

The City Traffic Engineer is authorized and required to establish:

(A) Bus stops, bus stands, taxicab stands and stands for other passenger common carrier motor vehicles; and

(B) Points for the origin and destination of the routes of transit buses on such public streets or public property, in such places and in such number, and he may designate the length of time that a bus may stand or park at each, as he shall determine to be of the greatest benefit and convenience to the public, and every such bus stop, bus stand, taxicab stand, other stand or origin or destination point shall be designated by appropriate signs.

(Ord. 3285 § 1, 1987: Ord. 1589 § 11 (part), 1972: prior code § 10-18-7)

11.60.020 Use by other vehicles.

No person shall stop, stand or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed.

(Ord. No. 6829, § 9, 2-1-23; Ord. 5870 § 26, 2006: Ord. 1589 § 11 (part), 1972: prior code § 10-18-9)

11.60.030 Bus parking, loading and unloading.

(A) The operator of a bus, other than a tour bus, shall:

(1) Not stand or park such vehicle upon any street at any place other than a bus stop, bus stand or the origin or destination point for the route to which such vehicle is assigned which has been designated in accordance with Section 11.60.010 of this Chapter;

(2) Not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand, passenger loading zone or the origin or destination point for the route to which such vehicle is assigned which has been designated in accordance with Section 11.60.010, except in case of an emergency;

(3) Not use any location as the point of origin or destination of the route of such vehicle other than the origin or destination point for the route to which such vehicle is assigned which has been designated in accordance with Section 11.60.010;

(4) Enter a bus stop, bus stand, passenger loading zone or origin or destination point on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right-hand front wheel of such vehicle not farther than eighteen inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic;

(5) Not stand or park a bus at a bus stop or an origin or destination point for a period of time longer than has been designated for such bus stop or origin or destination point in accordance with Section 11.60.010.

(B) (1) Except as otherwise provided in paragraph (2) of this Subsection, the operator of a tour bus shall not stand or park such vehicle, except while actually and expeditiously engaged in the loading or unloading of passengers, upon any street except at a location which has been duly designated and marked as a tour bus loading zone in accordance with Section 11.44.080.

(2) The prohibition contained in paragraph (1) of this Subsection does not apply:

(a) To any tour bus when it is being used to transport passengers on a "celebrity home" tour or to any function of a duly established and recognized nonprofit organization for which function the organization has complied with any applicable requirements of State law regarding charitable solicitations; provided, however, that no such vehicle shall be allowed to stand or park in any one location for a period in excess of thirty minutes,

(b) In the case of an emergency which requires the standing or parking of such vehicle contrary to the provisions of paragraph (1) of this subsection.

(Ord. No. 6296, § 33, 2-5-14; Ord. 3285 § 2, 1987: Ord. 3173 § 1 1985: Ord. 1589 § 11 (part), 1972: prior code § 10-18-8(A—C))

11.60.040 Taxi stopping, standing or parking.

The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than in a taxicab stand so designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.
(Ord. 1589 § 11 (part), 1972: prior code § 10-18-8(D))

11.60.050 Taxistands—Use required.

It is unlawful for any person to park a vehicle, as herein defined, for the purpose of seeking or awaiting employment in any place upon the streets in the City, other than at stands designated therefor, as herein provided, and marked by appropriate signs and curb painting by the Traffic Engineer.
(Ord. 2203 § 27 (part), 1981: prior code § 10-17-34 (part))

11.60.060 Taxistands—Establishment—Use rules.

The Traffic Engineer shall, upon the order of the City Manager, establish taxistands in such places on the streets and in such number as the City Manager shall determine to be of the greatest benefit and convenience to the public. All taxistands established under this Section shall be "open stands," meaning that no given cab company shall have any superior right to occupy any particular stand over any other cab company.
(Ord. No. 6326, § 42, 6-18-14; Ord. 2203 § 27 (part), 1981: prior code § 10-17-34 (part))

11.60.070 Reserved.

Editor's note—Ord. No. 6326, § 43, adopted June 18, 2014, repealed § 11.60.070, which pertained to taxistands—permits to use and derived from prior code § 10-17-34; Ord. No. 2203, 1981 and Ord. No. 5241, 2000.

11.60.080 Taxistands—Use by others.

Except for authorized emergency vehicles it is unlawful to stop, stand or park a vehicle of any description for any purpose or period of time at any area designated as a taxistand in accordance with the provisions of Section 11.60.050 et seq.; provided, however, that any such other vehicle may temporarily stop thereat, subject to the provisions of this Code, only for the

purpose of and while actually and expeditiously engaged in unloading passengers, when such stopping does not interfere with any cab lawfully entitled to occupy such stand, waiting to enter or about to enter upon such stand.
(Ord. 2203 § 27 (part), 1981: prior code § 10-17-34 (part))

11.60.090 Taxistands—Right turn after exiting.

Any cab, upon leaving any stand designated in accordance with the provisions of this Section, shall execute a right-hand turn, when a sign is posted giving notice of this requirement, at the first street intersection after it leaves such stand.
(Ord. 2203 § 27 (part), 1981: prior code § 10-17-34 (part))

CHAPTER 11.62 HIGHWAY SOLICITATIONS

11.62.010 Purpose.

This Chapter is adopted pursuant to Chapter 76, Statutes of Nevada 1991, to provide for the issuance of permits to charitable organizations to solicit charitable contributions on the median strips of highways or on sidewalks adjacent to highways.
(Ord. 3600 § 2, 1991)

11.62.020 Definitions.

As used in this Chapter, unless the context otherwise indicates, the following terms shall have the meanings that are ascribed to them as follows:

(A) "Charitable organization" means an organization which:

(1) The Secretary of the Treasury has determined is an exempt organization pursuant to the provisions of Section 501(c) of the Internal Revenue Code; and

(2) Holds a current certificate of organization or is currently qualified by the Secretary of State to do business in this State.

(B) "Highway" means the entire width between the boundary lines of every way maintained by a public authority when any part thereof is open to the use of the public for purposes of vehicular traffic. The term does not include a "freeway" as that term is defined in NRS 408.060.

(C) "Highway solicitation permit" means a certificate of authority issued by the Department of Public Works to a charitable organization which allows the holder of the permit to solicit charitable contributions for its organization while standing on the median strip of any highway or the sidewalk adjacent to the highway within the jurisdiction of the City.
(Ord. No. 6296, § 34, 2-5-14; Ord. 3600 § 3, 1991)

11.62.030 Permit required.

No charitable organization shall solicit contributions from the median strip of any highway or the sidewalk adjacent to the highway within the jurisdiction of the City without first obtaining and thereafter maintaining a valid unexpired highway solicitation permit and proof of compliance with any State law requirements regarding charitable organizations.
(Ord. No. 6296, § 35, 2-5-14; Ord. 3600 § 4, 1991)

11.62.040 Liability.

Every charitable organization that applies for and receives a highway solicitation permit shall:

(A) Indemnify the City against any injury to any person or damage to any property during the solicitation which arises from or is incident to the act of solicitation; and

(B) Be liable for any injury to any person or damage to any property during the solicitation which arises from negligence of the soliciting agent.
(Ord. 3600 § 5, 1991)

11.62.050 Application contents.

(A) An application for a highway solicitation permit shall be made to the Department of Public Works upon forms provided by the Department.

(B) An application shall be filed with the Department at least five business days prior to the date on which the solicitation is to begin and shall contain the following information:

(1) The name, street address, and telephone number of the applicant and the charitable organization of behalf of which the application is made;

(2) The name, street address, and telephone number of the person who will be responsible for the conduct of the solicitation;

(3) The date on which the solicitation is to begin and the time of day when the solicitation is to begin and end for each day requested;

(4) The location(s) of the solicitation;

(5) The purpose of the solicitation;

(6) Proof of being a charitable organization as defined herein; and

(7) A declaration that no one less than eighteen years of age will be permitted to participate in the solicitation.

(C) A post office box address shall be unacceptable as a street address on an application where a street address is required; provided, however, an applicant may identify and designate on his application a post office box address as the address to which he prefers correspondence to be mailed.
(Ord. No. 6296, § 36, 2-5-14; Ord. 3600 § 6, 1991)

11.62.060 Application approval requirements.

Upon receipt of:

(A) A completed application for a highway solicitation permit;

(B) Payment of a permit fee in the sum of fifty dollars; and

(C) Satisfactory proof that the applicant has procured a comprehensive general liability insurance policy in the sum of twenty-five thousand dollars that names the City as an additional assured;

The Director of the Department shall review the application for approval.
(Ord. 3600 § 7, 1991)

11.62.070 Permit—Time limit.

Upon approval of an application, the Director shall issue a highway solicitation permit for the period requested which may not exceed three days in a calendar year.
(Ord. 3600 § 8, 1991)

11.62.080 Permit—Hours of use.

Highway solicitation permits shall be issued for solicitation between the hours of sunrise and sunset.
(Ord. 3600 § 9, 1991)

11.62.090 Permit—Age requirement.

No person whose age is less than eighteen years may be permitted to participate in any highway solicitation.
(Ord. 3600 § 10, 1991)

11.62.100 Solicitation—Unlawful when.

It is unlawful for any person engaged in highway solicitation to:

(A) Solicit unless he wears an orange vest as safety clothing pursuant to Nevada Revised Statutes;

(B) Solicit on a median strip that is less than four feet wide; provided, however, that if a median strip of adequate width is not available, solicitors may start and end their solicitation on a sidewalk;

(C) Solicit while:

(1) Standing within that portion of a highway specifically designated for travel and use by vehicles.

(2) Walking from vehicle to vehicle within that portion of a highway specifically designated for travel and use by vehicles;

(D) Solicit at any location that is under construction or repair if such person must, because of the construction or repair, solicit from a position other than on the median strip of the highway or sidewalk adjacent to the highway.

(Ord. 3600 § 11, 1991)

11.62.110 Violation—Penalty.

Whenever in this Chapter any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Chapter the doing of any act is required or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the doing of such prohibited act or the failure to do any such required act shall constitute a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment. Any day of any violation of this Chapter shall constitute a separate offense.

(Ord. 3600 § 13, 1991)

CHAPTER 11.65 RESIDENTIAL PERMIT PARKING ZONES

11.65.010 Definitions.

To provide clarification of terminology used herein the following definitions are provided:

(A) "Residential area" means a contiguous or nearly contiguous area containing public streets and highways or parts thereof where residents dwell.

(B) "Residential parking permit" means a sticker, decal or placard with a unique color that:

(1) Defines an area or unique address to which it pertains;

(2) Is identified by a number;

(3) Includes an expiration date;

(4) Lists the license plate number of the vehicle to which it pertains; and

(5) Is to be placed on a resident's vehicle to identify that vehicle as exempt from the parking restrictions contained in this Chapter.

(C) "Residential permit parking zone" means a residential area designated as herein provided where resident motor vehicles displaying a valid permit as described herein shall be exempt from parking time restrictions established pursuant to this Chapter.

(D) "Visitor parking permit" means a placard issued to a residence to be used in the vehicles of visitors to a residence to exempt that vehicle from the parking restrictions contained in this Chapter.

(Ord. No. 6326, § 44, 6-18-14; Ord. 5870 § 27, 2006: Ord. 3647 § 1 (part), 1992)

11.65.020 Parking zones and parking permits authorized when.

With respect to any residential parking permit zone established pursuant to this Chapter:

(A) The City Traffic Engineer is authorized to establish within the residential parking permit zone one or more time limited parking zones, in each case for time periods up to three hours;

(B) For purposes of Subsection (A) of LVMC 11.65.050, the City Traffic Engineer is authorized to establish other parking restrictions within the residential parking permit zone, including the times, locations and conditions under which parking shall be by permit only.

(C) The Parking Services Division of the Department of Economic and Urban Development is authorized to issue residential parking permits and visitor permits to residents who qualify for such permits in accordance with this Chapter.

(Ord. No. 6326, § 45, 6-18-14; Ord. No. 6089, § 1, 4-21-10; Ord. 5672 § 1, 2004: Ord. 3647 § 1 (part), 1992)

11.65.030 Parking zones—Qualifications.

Any residential area within the City shall be deemed eligible to apply for a residential permit parking zone providing the area in question meets the requirements of Subsections (A), (B) and (C) and, in addition, the requirements of either Subsection (D) or Subsection (E):

(A) The residential area requesting a residential permit parking zone is in close proximity to a commercial or other development with a high parking demand;

(B) The streets for which a residential permit parking zone is requested are primarily residential streets;

(C) A signed petition requesting the zone which contains signatures representing fifty-one percent of the residences affected is submitted to the City Traffic Engineer;

(D) A parking study has been submitted which shows that seventy percent or more of the available on-street spaces are occupied, for a period in excess of two hours between the hours of eight a.m. and six p.m. and that twenty-five percent of the parked vehicles are nonresident vehicles;

(E) The residential area is in close proximity to an area or development that, on an annual basis, hosts at least five special events with a high parking demand.

(Ord. No. 6394, § 1, 1-21-15; Ord. 3647 § 1 (part), 1992)

11.65.040 Parking zones—Approval criteria.

The approval of a residential area for a residential permit parking zone will be carried out in the following manner:

(A) A request for a residential permit parking zone shall be submitted in writing to the City Traffic Engineer by a resident or residents of the affected residential area.

(B) A survey, as described in this Chapter, will be conducted by the Transportation Engineering Division to determine if the area qualifies for a residential permit parking zone.

(C) The residents of the area shall be notified by the Transportation Engineering Division of the results of the survey and of future action to be taken.

(D) A petition prepared by the Transportation Engineering Division shall be delivered to the requestor(s) for them to contact all of the affected residences and obtain signatures and addresses supporting the establishment of a residential permit parking zone.

(E) Upon completion and verification as to the accuracy of the petition by the City Traffic Engineer, the proposal shall be taken to the next regular meeting of the Traffic and Parking Commission for its recommendation to the City Traffic Engineer.

(1) If the recommendation of the City Traffic and Parking Commission is favorable, the City Traffic Engineer must grant the request, and amend Schedule 17-VI by written finding subject to LVMC 11.65.020.

(2) If the recommendation of the City Traffic and Parking Commission is not favorable, the City Traffic Engineer must deny the request and give the requestor written notice of such decision within fifteen days of the recommendation.

(3) The written notice required in Subsection (E)(2) of this Section must state that the requestor may appeal such decision by filing a notice of appeal with the City Clerk's office within forty-five days of the date of said notice.

(4) The City Council shall hear the appeal at the next regularly scheduled meeting following the expiration of ten days after the filing of the notice of appeal, and either affirm, reverse or modify the decision of the City Traffic Engineer, or take such other action it deems warranted.

(Ord. No. 6394, § 2, 1-21-15; Ord. 3990 § 20, 1996: Ord. 3647 § 1 (part), 1992)

11.65.050 Parking zones—Signposting—Parking permit eligibility and resource.

(A) The approval of a residential permit parking zone is within the discretion of the City Council. Once a residential permit parking zone has been approved by the City Council:

(1) The Transportation Engineering Division shall install parking signs on the streets designated as a residential permit parking zone. The signs, as they may be updated or supplemented from time to time by the Parking Services Division of the Department of Economic and Urban Development, shall indicate the times, locations and conditions under which parking shall be by permit only;

(2) The Parking Services Division shall issue a maximum of three permanent residential parking permits and a maximum of two visitor placards per residence for a designated residential permit parking zone upon application and payment of the application fee by a person eligible for such permit; and

(3) In the case of permits designed to be used during special events in the area, the Parking Services Division shall provide to permit holders such advance notice of those events as is deemed feasible and appropriate.

(B) A person is eligible to apply for a residential parking permit if he/she owns or operates a motor vehicle and resides on property immediately adjacent to a street, avenue or other location within the residential permit parking zone. Proof of residency in the residential permit parking zone on a block designated for implementation must be presented at the time application is made.

(C) The application for a permit shall contain the name of the owner or operator of the motor vehicle; residential address; the make, model, registration and license plate number of the motor vehicle; and the number of the driver's license of the applicant. The motor vehicle registration and the driver's license of the applicant must be presented at the time of making said application in order to verify the contents thereof. The owner or operator of any motor vehicle applying for a residential parking permit shall have a valid Nevada motor vehicle license. The motor vehicle registration must show the applicant's present address.
(Ord. No. 6394, § 1, 1-21-15; Ord. 5870 § 28, 2006: Ord. 4074 § 1, 1997: Ord. 3647 § 1 (part), 1992)

11.65.060 Parking permit—Fee—Renewal—Exemption.

(A) Each as otherwise provided in this Section, each person who applies for a residential parking permit pursuant to LVMC 11.65.050 shall be charged a fee of twenty dollars to cover the administrative costs of permits, studies and signing of the zone. The fee shall entitle the applicant to a maximum of three residential parking permits for vehicles housed at the residence of the applicant and two visitor parking placards.

(B) Upon presentation of adequate proof, persons sixty-five years of age or older who otherwise qualify for the permit shall be exempt from paying the application fee.

(C) The City Council may waive the application fee in other particular cases for good cause shown and in the public interest.
(Ord. 5212 § 1, 2000: Ord. 4074 § 2, 1997: Ord. 3647 § 1 (part), 1992)

11.65.070 Parking permit—Use procedure and restrictions.

(A) Notwithstanding any provisions of this Chapter to the contrary, the holder of a residential parking permit shall be permitted to stand or park a motor vehicle for which a permit has been issued in the residential permit parking zone designated by the permit without being subjected to the limitations imposed on vehicles lacking the permit; provided, however, that parking at that location is otherwise permitted. While a vehicle for which a residential parking permit has been issued is so parked, such permit shall be displayed so as to be clearly visible either on the lower left hand corner of the rear window or hanging from the rear view mirror of the vehicle.

(B) A residential parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places, or during such times, as the stopping, standing, or parking of motor vehicles is prohibited or set aside for specific types of vehicles, and does not exempt the holder from the observance of any traffic regulation other than the parking time limit.

(C) A residential parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated residential permit parking area.
(Ord. 5870 § 29, 2006: Ord. 3647 § 1 (part), 1992)

11.65.080 Service vehicle parking procedures.

Service companies making service calls to residential dwellings within the residential permit parking zone shall notify the Parking Services Division of the Department of Economic and Urban Development of company vehicles which will be parked in residential parking zones in order to be exempt from holding a residential parking zone permit and exempt from the posted time limits. Such service vehicles shall display the name of the company on the vehicle or identify the vehicle by an approved placard placed on the left side of the dash.
(Ord. No. 6326, § 46, 6-18-14; Ord. 3647 § 1 (part), 1992)

11.65.090 Temporary permits.

Temporary residents of a residential permit parking zone whose vehicles are registered in another state may apply for a visitor permit for the duration of the thirty-day reciprocity period allowed under Nevada law. Applicants must have a valid driver's license and motor vehicle registration from the home state and a rent or utility bill receipt or some other adequate proof of residence in a residential permit parking zone. The fee shall be five dollars and may be applied toward a resident sticker for the balance of the year when the registration of the vehicle is matched to the local address.
(Ord. 3647 § 1 (part), 1992)

11.65.100 Visitor's permit requirements.

In a residential permit parking zone the holder of a residential parking permit may apply for a visitor's permit which shall be valid for the current calendar year and shall be renewable but not transferable. The application shall be signed by the permit holder host. No permit holder shall be issued more than two visitors' permits at any given time.
(Ord. 3647 § 1 (part), 1992)

11.65.110 Unlawful activities designated.

(A) It shall constitute a violation of this regulation for any person to falsely represent himself as eligible for a residential parking permit or to furnish any false information in an application to the Parking Services Division of the Department of Economic and Urban Development in order to obtain a residential parking permit.

(B) No person other than the permittee named shall use a residential parking permit or display it on a vehicle operated or parked, and any such use or display by a person other than the permittee shall constitute a violation of this Section by the permittee and by the person who so used or displayed such parking permit.
(Ord. No. 6394, § 4, 1-21-15; Ord. 3647 § 1 (part), 1992)

11.65.120 Parking permit—Revocation conditions.

(A) The Parking Services Division of the Department of Economic and Urban Development is authorized to revoke the residential parking permit of any permittee found to be in violation of Section 11.65.110, and upon written notification thereof the permittee shall surrender such permit to the Parking Services Division.

(B) Any person who shall violate any provision of Section 11.65.110 shall, upon conviction, be subject to punishment by a fine of not more than one hundred dollars or imprisonment of not more than ninety days, or both.

(C) Any person parking a motor vehicle not displaying a valid permit in a residential permit parking zone for a period exceeding the time limitation established shall be subjected to the fine established for overtime parking in Section 11.10.150 of the Las Vegas Municipal Code.

(D) Any vehicle parked in a residential permit parking zone in violation of these provisions causing a severe hazard to traffic conditions shall be subject to immediate impoundment.
(Ord. No. 6326, § 47, 6-18-14; Ord. 3647 § 1 (part), 1992)

CHAPTER 11.66 RESERVED*

CHAPTER 11.68 PEDESTRIAN MALL

11.68.010 Findings.

(A) In connection with the adoption of LVMC Chapter 11.68 in 1995, the City Council made the following findings: That there has been a progressive decline in the economic growth and vitality of businesses located in the central business district of the City which is attributable to the decrease in tourists and other visitors to the central business district, that a special effort is needed on the part of the City to create new jobs, maintain existing employment opportunities, attract new businesses, tourists and visitors to the central business district and thereby restore the economic growth and vitality thereof and that the closure of certain streets or parts thereof to vehicular traffic and the creation of a Pedestrian

*__Editor's note—__Ord. No. 6173, § 5, adopted December 21, 2011 provides: "Unless extended by ordinance, this Ordinance shall expire by limitation on January 1, 2018." The former Chapter 11.66, §§ 11.66.010—11.66.080 pertained to Parking Program for Qualified Alternative Fuel Vehicles and was amended by Ord. No. 6326, adopted June 18, 2014.

Mall for the movement, safety, convenience, enjoyment, entertainment, recreation and relaxation of pedestrians is in the best interest of the City and beneficial to the owners of adjacent property and the businesses located in the central business district.

(B) The Council incorporates and makes the same findings in connection with the readoption of this Chapter in 2006 and subsequent amendments thereto.

(C) In 1995, the City Council further found, and continues to find, that it is in the best interest of the public to select and contract with a private operating entity for the acquisition, construction, improvement, operation, management or maintenance of the Pedestrian Mall.

(D) Since the creation of the Pedestrian Mall, the City has enacted various ordinances attempting to maintain the Pedestrian Mall's principal purpose, which is to serve as an economic and entertainment venue that will enhance the historical central business district. Prior to the Mall's creation, the former Fremont Street area had become known as unseemly and crime ridden, with tourists and businesses leaving the area for a safer and more hospitable environment. The Pedestrian Mall was created to reverse that declining environment, and provide a safe and enjoyable entertainment experience to attract tourism and thereby support surrounding economic growth.

(E) Over the years, the City has amended its ordinances endeavoring to facilitate and enhance the Mall's purpose. Most recently, in 2011, the City and the American Civil Liberties Union of Nevada settled a long-standing lawsuit concerning expressive activities within the Mall. Specifically, the City, Fremont Street Experience, LLC and the ACLU endeavored to jointly reach a compromise as to various ordinance amendments to address what types of restrictions upon expressive activity would be appropriate. Although those amendments were created by a cooperative effort and ultimately adopted, it was understood and expressly discussed before the City Council that those amendments and restrictions may not be adequate to address public safety and preservation of the Mall's purpose, considering its unique environment. The City would test the effectiveness of those ordinance amendments to determine whether additional or lesser restrictions were warranted.

(F) Since those 2011 amendments, the Mall's environment and function has deteriorated. The 2011 amendments principally imposed various distance restrictions from specific uses where expressive activity could occur. However, considering the Pedestrian Mall's congested nature, it appears that the distance restrictions have created uncertainty among the general public and thus have led to confusion as well as in-fighting as to where expressive activity may or may not occur. Indeed, the environment of the Pedestrian Mall has become such that certain persons or groups have attempted to monopolize certain locations, have been the recipients of threats and other forms of intimidation in an attempt to control certain areas where expressive activity is presently allowed. Unfortunately, the 2011 amendments have facilitated an inhospitable environment that is incompatible with the Mall's entertainment and commercial purposes, and has further resulted in a deterioration of public safety and well-being.

(G) Considering the confusion as to where expressive activity is appropriate, particularly activity engaged in by street performers, and to combat infighting and competition for the most desirable locations, to enhance access for all desired users of the Mall, including those seeking to engage in expressive activity, the City determines that it is necessary and appropriate to create designated areas for the activities of street performers during peak hours of the Mall's usage and to further ensure that no one is permitted to monopolize or use those locations to the exclusion of others.

(H) Accordingly, the City Council hereby adopts the amendments contained in the 2015 ordinance codified in part in this Subsection (Ordinance No. 6462) to impose reasonable time, place and manner restrictions within the Pedestrian Mall.
(Ord. No. 6462, § 1, 9-16-15; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.020 Definitions.

As used in this Chapter:

"Celestial vault lightshow" is the display of computer-generated electronic images on the ceiling of the celestial vault constructed above Fremont Street and the various light and sound effects accompanying such images.

"Commercial photography, filming or videotaping" means photography, filming or videotaping for commercial purposes and does not include photography, filming or videotaping engaged in for personal use or for news reporting purposes.

"Designated location" means an area that has been set aside or designated in accordance with Section 11.68.108 for use by street performers during the specified time frame.

"Display vehicles" are those vehicles brought into the Pedestrian Mall for purposes of display to the public, and not for the primary purpose of transporting persons or property.

"Emergency vehicles" are those motorized devices in, upon or by which any person or property is or may be transported or drawn upon a street or sidewalk, including, without limitation, automobiles, motorcycles and mopeds.

"Expressive activity" means any demonstration, speech, proselytizing, leafleting, distribution of message-bearing merchandise or other activity that is deemed to be expressive and thereby entitled to protection under the United States Constitution or the Nevada Constitution. A performance by a street performer that might be characterized as consisting of or containing expressive activity shall be subject to and governed by the provisions of this Chapter that pertain to street performers, notwithstanding any overlap regarding expressive activity.

"Exterior building improvements" means the building facades, marquees, overhangs, recessed entries, adjoining mall area paving materials, signage and graphics, adjoining landscaping, building illumination and audible effects or devices.

"Leafleting" means the act of distributing to any passersby in a continuous or repetitive manner any printed, written or graphic materials, whether commercial or noncommercial in content.

"Maintenance vehicles" are those vehicles owned or operated by the City of Las Vegas, as well as vehicles owned and operated by utilities and other vehicles requiring access onto the Pedestrian Mall for the purpose of the repair and maintenance of the Pedestrian Mall or facilities and structures contained therein.

"Mall vending" is the distribution, display or sale, or any combination thereof, of consumer goods or services (including food, drink or merchandise) from a pushcart, concession stand, kiosk or other similar structure designed for such purpose.

"Management agreement" means that agreement executed between The Fremont Street Experience Limited Liability Company and the City of Las Vegas for the purpose of acquisition, construction, operation, management or maintenance of the Pedestrian Mall.

"Message-bearing merchandise" means products bearing a message that is:

(1) A permanent part of the product to which it is affixed and is readable or recognizable from a reasonable distance;

(2) Inextricably intertwined with the purpose and activities of the distributor of the product or the person or entity whom the distributor represents; and

(3) A conspicuous political, religious, philosophical or ideological message having intellectual content that is informative of the purpose of the distributor or the person or entity whom the distributor represents.

"Motorized vehicles" are those motorized devices in, upon or by which any person or property is or may be transported or drawn upon a street or sidewalk, including, without limitation, automobiles, motorcycles and mopeds.

"Parade" is a group of persons with or without animals or vehicles in a public procession or march and does not include a procession or march in connection with a special event or mall entertainment.

"Pedestrian Mall Act" refers to NRS 268.810 through 268.823.

"Solicitation" has the meaning ascribed to it by LVMC 10.44.010(A).

"Solicitation by coercion" has the meaning ascribed to it by LVMC 10.44.010.

"Special events" include festivals, sporting events, exhibitions, entertainment and similar activities which are not offered on a continuous basis, whether or not members of the public pay an admission or entrance fee to be spectators or participants.

"Special permit vehicles" are those vehicles authorized by The Fremont Street Limited Experience Liability Company in accordance with Section 11.68.080 to enter upon the Pedestrian Mall.

"Specified time frame" means the period between three p.m. on any particular day and one a.m. the following morning.

"Sponsored concert" means a concert or performance that is provided by or on behalf of The Fremont Street Limited Liability Company and takes place on one of the permanent stage structures within the Pedestrian Mall.

"Street performer" means a person who, upon any surface designated as part of the Pedestrian Mall, engages in any form of performing art, including but not limited to posing, acting, dancing or miming, whether in costume or not; the playing of any musical instrument,

singing or vocalizing, with or without accompaniment, where the performing art is not provided by or on behalf of The Fremont Street Limited Liability Company. The term "street performer" includes persons commonly referred to as "buskers" or those who engage in "busking" activities.
(Ord. No. 6462, § 2, 9-16-15; Ord. No. 6131, § 2, 2-2-11; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.030 Established—Motorized vehicles prohibited.

There is established in the downtown area of the City of Las Vegas a Pedestrian Mall, the boundaries of which are described in Section 11.68.040. The surface of all areas designated therein as a part of the Pedestrian Mall shall be, after the completion of the construction thereon as evidenced by the issuance of a certificate of completion therefor by the City, limited to the use of pedestrians. Except for wheelchairs used to transport the physically disabled, emergency vehicles, maintenance vehicles, special access vehicles, display vehicles, or vehicles granted access to the Pedestrian Mall by the private operating entity, no motorized vehicle shall be permitted in the area designated under Section 11.68.040 as the Pedestrian Mall.
(Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.040 Legal description.

(A) The following area constituting and comprising the Pedestrian Mall is legally described in Exhibit A attached to Ordinance No. 5876, which is codified in this Chapter and adopted herein as a part of this Chapter.

(B) The area legally described in Subsection (A) of this Section is indicated on the map attached as Exhibit B to Ordinance No. 5876, which is codified in this Chapter and adopted herein as a part of this Chapter.
(Ord. 5896 § 2 (part), 2007; Ord. 5876 § 2, 2007: Ord. 5866 § 1 (part), 2006)

11.68.050 Crossing vehicular traffic.

Notwithstanding the prohibition contained in Section 11.68.030, vehicular traffic traveling along Casino Center Boulevard and Fourth Street shall be permitted to cross the Pedestrian Mall as those streets intersect with Fremont Street except during the celestial vault lightshow, in which case such street may be closed to through traffic and as otherwise approved in accordance with Section 11.68.120.
(Ord. No. 6131, § 3, 2-2-11; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.060 The Fremont Street Experience Limited Liability Company—Private operating entity.

In accordance with the provisions of the Pedestrian Mall Act, the City Council designates The Fremont Street Experience Limited Liability Company as the private operating entity for purposes of acquiring, constructing, improving, operating, managing and maintaining the Pedestrian Mall.

Subject to the other provisions of this Chapter and the management agreement, The Fremont Street Experience Limited Liability Company may determine the uses of the Pedestrian Mall for any purpose that will enhance the movement, safety, convenience, enjoyment, entertainment, recreation or relaxation of pedestrians, and other purposes necessary or appropriate to carry out the provisions of the Pedestrian Mall Act, including, without limitation, seating, merchandising, exhibiting, advertising and any other use, activity or special event which in the judgment of The Fremont Street Experience Limited Liability Company will accomplish any of those purposes. The authority delegated herein to The Fremont Street Experience Limited Liability Company to determine the uses of the Pedestrian Mall shall not be construed so as to permit any use which is not permitted in a C-2 Zone. (Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.070 The Fremont Street Experience Limited Liability Company—Authorized to control and regulate.

Notwithstanding any other provisions of the Las Vegas Municipal Code, and in accordance with the provisions of the Pedestrian Mall Act, the City Council delegates to The Fremont Street Experience Limited Liability Company authority to control and regulate within the Pedestrian Mall the following:

(A) The distribution and location of movable furniture, sculpture, devices to control pedestrian traffic, landscaping and other facilities that are incidental to the Pedestrian Mall;

(B) The uses to be permitted or restricted on the Pedestrian Mall by occupants of abutting property, utilities (provided such is not in conflict with the rights granted under any franchise agreement), concessionaires, vendors, newspaper vending machines and others to serve the convenience and enjoyment of pedestrians, and the location of such uses;

(C) The raising of revenue through the imposition of a fee for the use of all or a portion of the Pedestrian Mall for special events, commerce or activities to offset the cost of operating and maintaining the Pedestrian Mall;

(D) The use of the Pedestrian Mall for advertising purposes and the charging of a fee in connection therewith;

(E) The operation of any lighting, heating or other facilities in the Pedestrian Mall;

(F) The replacement of any landscaping and maintenance of the furniture and facilities in the Pedestrian Mall;

(G) The access to the Pedestrian Mall by the public and closure of the Pedestrian Mall to the public for purposes of special events or activities for limited periods of time;

(H) Other activities, actions or conduct to promote the best interests of the public and carry out the provision of the Pedestrian Mall Act.

The authority delegated herein shall be subject to the City's police power, the provisions of the management agreement and the other provisions of this Chapter and shall not be construed in derogation of the constitutional or statutory rights of any person.
(Ord. No. 6462, § 3, 9-16-15; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.080 Special permit vehicles.

Upon proper application therefor, The Fremont Street Experience Limited Liability Company shall issue permits authorizing the special permit vehicles to enter upon the Pedestrian Mall. These permits shall be issued to the owners and occupants of property adjoining the Pedestrian Mall, or their designees, whose property as a result of the adoption of the ordinance codified in this Chapter does not have sufficient access thereto and therefrom for the delivery or pickup of merchandise and materials, or for the improvement, maintenance or repair of such property. The permit will identify the hours of each day that the special access vehicles will be granted access in accordance with the plan submitted under Section 11.68.120, and may be made effective for such period of time, not to exceed one year, as may be requested by the applicant.
(Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.090 Access to pedestrians.

(A) The Fremont Street Experience Limited Liability Company shall allow access to pedestrians at all times along the entire length of Fremont Street in the Pedestrian Mall and along the entire length of the other streets therein except as otherwise provided under the authority of City ordinance or State law. This provision does not require that access along the entire length of the Pedestrian Mall always be at the same location but does require that access along the entire length of the Pedestrian Mall be allowed to pedestrians. For purposes of this Section, "pedestrian access" includes reasonable access for disabled persons in wheelchairs and similar devices. As a prerequisite to closure of the Pedestrian Mall, The Fremont Street Experience Limited Liability Company must obtain the review and approval of the City's emergency service (police and fire) providers.

(B) Notwithstanding any other provision contained in Section 11.68.070 and Subsection (A) of this Section, The Fremont Street Experience Limited Liability Company shall preserve and retain access for pedestrians to the businesses adjoining the Pedestrian Mall unless consent to the denial thereof has been obtained from the affected businesses.
(Ord. No. 6462, § 4, 9-16-15; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.100 Prohibited—Special conditions.

(A) The following are prohibited within the Pedestrian Mall:

(1) Parades;

(2) Sleeping or camping;

(3) Littering;

(4) Sexually oriented businesses as described in Section 19.12.070; and

(5) Feeding birds.

(B) The following are prohibited within the Pedestrian Mall, except under the conditions stated:

(1) Animals, unless used in connection with a mall activity authorized by The Fremont Street Experience Limited Liability Company or used for the purpose of assisting the visually or aurally impaired;

(2) Mall vending, special events or other commercial activities, unless such activities are conducted by or on behalf of The Fremont Street Experience Limited Liability Company;

(3) The use of unicycles, bicycles and other types of cycles, skateboards, roller skates, in-line skates, hula hoops larger than four feet in diameter, and shopping carts, except as authorized by The Fremont Street Experience Limited Liability Company in connection with special events and mall entertainment;

(4) The placement of any cart, wagon, table, rack, chair, box, cloth, stand, booth, container, structure or other object within the Pedestrian Mall, except:

(a) As conducted by or on behalf of The Fremont Street Experience Limited Liability Company; or

(b) As specifically allowed under Sections 11.68.105 and 11.68.107;

(5) Amplified sound which originates from within the Pedestrian Mall or from properties or businesses abutting the boundaries of the Pedestrian Mall, except where conducted by or on behalf of The Fremont Street Experience Limited Liability Company or as permitted under Section 11.68.107;

(6) The launching or throwing of projectiles or other objects into or through the air, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company;

(7) Entertainment and related services for which a fee is charged, either before or after the entertainment and related services are performed, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company;

(8) The distribution of food, beverage or tobacco items, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company;

(9) Commercial photography, filming or videotaping, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company;

(10) Lying or sitting on the ground, except:

(a) In cases of emergency;

(b) As approved in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company; or

(c) By a street performer as part of a performance authorized under Section 11.68.107;

(11) Open flames, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company; or

(12) Any generator of any sort or any lead acid battery, except in connection with events that are conducted by or on behalf of The Fremont Street Experience Limited Liability Company. The prohibitions contained in this Paragraph (12) do not apply to any battery or power source that is contained within and integral to a commercially manufactured appliance or speaker system unless the battery or power source has been found to be in violation of applicable Fire Code regulations.

(Ord. No. 6462, § 5, 9-16-15; Ord. No. 6329, § 6, 6-18-14; Ord. No. 6131, § 4, 2-2-11; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.103 Solicitation.

(A) Solicitation by coercion is prohibited within the Pedestrian Mall.

(B) Any other solicitation is prohibited at all times within the Pedestrian Mall at the following locations:

(1) Within twenty feet of any building entrance or ATM;

(2) Within ten feet of any retail kiosk or cart, but subject to the provisions of Subsection (C) of this Section;

(3) Within ten feet of the outer perimeter of any outdoor dining area while the area is being used for dining;

(4) Within twenty feet of any fire lane or crosswalk; and

(5) At any location that will obstruct or impede pedestrian traffic.

(C) The distance limitation set forth in Paragraph (2) of Subsection (A) shall not apply if and to the extent that The Fremont Street Limited Liability Company, at any given time, has established or permitted more than fifty retail kiosks or carts within the Pedestrian Mall.
(Ord. No. 6462, § 6, 9-16-15; Ord. No. 6131, § 5, 2-2-11)

11.68.105 Expressive activity.

(A) Expressive activity is allowed within the Pedestrian Mall without the requirement of a permit or registration, but is subject to the conditions and limitations set forth in this Section as well as applicable provisions of other Titles of the Las Vegas Municipal Code.

(B) No blanket, carpet, cover, chair, crate, box, cooler, container, structure or display of any type may be erected or placed upon the Pedestrian Mall or its surface in connection with expressive activity, except that a person or organization engaging in such activity may place and use, in furtherance of that activity, one table, not to exceed three feet by three feet in size, at a location that complies with the provisions of Subsection (C) of this Section.

(C) At no time may tables allowed under Subsection (B) be located:

(1) Within twenty feet of any building entrance or ATM;

(2) Within ten feet of any retail kiosk or cart, but subject to the provisions of Subsection (F) of this Section;

(3) Within ten feet of the outer perimeter of any outdoor dining area while the area is being used for dining;

(4) Within twenty feet of any fire lane or crosswalk;

(5) At any location that will obstruct or impede pedestrian traffic; or

(6) Within forty feet of another table that has been erected or placed for purposes of expressive activity.

(D) Coolers, storage boxes and similar items may not be placed on the ground in connection with expressive activity; provided, however, that this prohibition does not apply to incidental personal items such as purses or coats, or to backpacks whose capacity does not exceed two cubic feet.

(E) In the case of a demonstration, The Fremont Street Limited Liability Company may direct that the demonstration be moved to one or more locations within the Pedestrian Mall so as not to obstruct or impede pedestrian traffic, or interfere with fire lanes, crosswalk traffic, retail kiosks, special events, concerts or other previously scheduled mall activities, but only upon a determination that the demonstration cannot possibly be conducted in a manner that does not so obstruct, impede or interfere. Any such redirection shall be to a location that is closest to, most approximates, and reaches the same audience as, the original location.

(F) The distance limitation set forth in Paragraph (2) of Subsection (C) shall not apply if and to the extent that The Fremont Street Limited Liability Company, at any given time, has established or permitted more than fifty retail kiosks or carts within the Pedestrian Mall.

(G) Except as otherwise provided in this Subsection (G), nothing in this Section authorizes conduct prohibited by other provisions of this Chapter or other ordinances and laws of general applicability, including without limitation prohibitions relating to the obstruction of rights-of-way. Notwithstanding any other provision of this Code, a person engaging in expressive activity under this Section may use amplified sound in connection with that activity if it complies with the noise level limitations of LVMC 11.68.107(C)(5)(b).

(H) The provisions of this Section do not apply to the activities of street performers regulated by Section 11.68.107.
(Ord. No. 6704, § 1, 10-2-19; Ord. No. 6462, § 7, 9-16-15; Ord. No. 6131, § 5, 2-2-11)

11.68.107 Street performers.

(A) Street performers may perform within the Pedestrian Mall only in accordance with the provisions of this Section.

(B) It is unlawful for a street performer to charge a fee for a performance within the Pedestrian Mall. For purposes of this Chapter, the charging of a fee for entertainment or for a performance includes the act of requiring a person to pay for the entertainment or performance, whether in advance or after the fact, but does not include the act of soliciting or requesting tips or donations, the act of making available a receptacle for tips or donations, or the act of receiving tips or donations.

(C) A street performer who does not charge a fee for a performance as described in Subsection (B) may perform within the Pedestrian Mall in accordance with the following conditions and limitations:

(1) Street performers shall not have the right to "reserve" any space or location, except as otherwise provided in Subsection (D) of Section 11.68.108, and may not interfere in any way with performances provided by or on behalf of The Fremont Street Limited Liability Company;

(2) At no time may a street performer perform:

(a) Within twenty feet of any building entrance or ATM;

(b) Within ten feet of any retail kiosk or cart, but subject to the provisions of Paragraph (6) of this Subsection (C);

(c) Within ten feet of the outer perimeter of any outdoor dining area while the area is being used for dining;

(d) Within twenty feet of any fire lane or crosswalk;

(e) Within any area of the Pedestrian Mall that is closed to the public (such as on a closed stage provided by The Fremont Street Limited Liability Company);

(f) During any sponsored concert, within one hundred feet of the stage on which the concert is taking place;

(g) Within forty feet of any other street performer then performing; or

(h) At any location that will obstruct or impede pedestrian traffic.

(3) Within the specified time frame, street performers may perform only in a designated location;

(4) Street performers may not place objects on the ground unless the objects are within a two foot radius of the performer; do not obstruct or impede pedestrian traffic or cause a potential risk to passersby; and are integral to the performance (e.g., a hat or container to accept donations).

(5) Street performers may emit sound in connection with their performance, but subject to the following conditions:

(a) The sound must be an integral part of the performance;

(b) The sound may not exceed the maximum noise levels set forth in the following table:

Maximum Noise Levels (in A-weighted decibels), measured by a sound level meter qualifying as Class 1 under IEC 61672-1	85 dBA*/107 dBA**
* When measured at a minimum distance of 25 feet from the source of the noise	
** When measured at a minimum distance of 1 foot from the source of the noise	

(c) The sound is not permitted during any actual performance or operation of the celestial vault lightshow, or during any special event when the Pedestrian Mall is closed to the general public except upon payment of an admission charge; and

(d) The sound is not permitted during any concert that is provided by or on behalf of The Fremont Street Limited Liability Company unless each source of the amplified sound is at least one hundred feet from the stage on which the concert takes place.

(6) The distance limitation set forth in Subparagraph (b) of Paragraph (2) of this Subsection (C) shall not apply if and to the extent that The Fremont Street Limited Liability Company, at any given time, has established or permitted more than fifty retail kiosks or carts within the Pedestrian Mall.

(D) Nothing in this Section authorizes conduct prohibited by other provisions of this Chapter or other ordinances and laws of general applicability, including without limitation prohibitions relating to solicitation by coercion and the obstruction of rights-of-way.
(Ord. No. 6462, § 8, 9-16-15; Ord. No. 6131, § 5, 2-2-11)

11.68.108 Street performers—Designated locations.

(A) The City Council hereby designates certain locations (the "designated locations") within the Pedestrian Mall that are expressly set aside for use by street performers during the specified time frame. Such locations shall consist of:

(1) That area of the Pedestrian Mall formerly consisting of Third Street, as depicted on the map referred to in LVMC 11.68.040(B); and

(2) Other areas, each of which is no greater than six feet in diameter and is denoted on the surface of the Pedestrian Mall.

(B) A map depicting the approximate locations of the designated locations described in Paragraph (2) of Subsection (A) of this Section shall be on file with the City Clerk, is hereby incorporated by this reference, and shall be made available for inspection during normal business hours. In the exercise of its authority under this Chapter, or in order to facilitate the

flow of pedestrian traffic, or to serve the convenience of the Pedestrian Mall's patrons (or any combination thereof), The Fremont Street Limited Liability Company may adjust the exact location of any designated location described in this Subsection (B) up to twenty-five feet in any direction from the location appearing on the map referred to in this Subsection (B). Notwithstanding the previous sentence, The Fremont Street Limited Liability Company shall:

(1) Provide no fewer than thirty-eight designated locations of the type described in Paragraph (2) of Subsection (A) are available at any given time; and

(2) Otherwise ensure that no fewer than twenty-five such locations are available at any given time.

(C) Except as allotted under the lottery system described in Subsection (D), the use of any designated location for performances by street performers within the specified time frame shall be on a first-come-first-serve basis and may not be reserved in any fashion. Any designated location shall be deemed unoccupied and available unless it is physically occupied by a person or allotted in accordance with Subsection (D).

(D) No street performer may use a particular designated location for a performance within the specified time frame for more than two hours at a time. At the top of each odd-numbered hour within the specified time frame, any street performer who has been using a particular designated location for a performance for more than one hour must move to a different designated location in order to continue that activity or performance, regardless of the amount of time he or she spent in a designated location just before the top of that hour. The City or The Fremont Street Limited Liability Company shall establish a lottery system by which performers are allotted designated locations within the specified time frame and in accordance with which enforcement of this Section may take place. Upon implementation of the lottery system, no street performer may perform within a designated location within the specified time frame unless:

(1) He or she has been allotted that location for that time; or

(2) No one has been allotted that location for that time.

(E) In connection with a person's first use of a designated location as a street performer within the specified time frame, that person must register with the City's Business Licensing Division (or its designee) no later than seventy-two hours after that first use. The registration shall expire after one hundred eighty days. Upon expiration of a person's registration, the registrant, in connection with another use of a designated location within the specified time frame, must register again no later than seventy-two hours after that use. The registration requirements of this Subsection (E) that are triggered by the use of a designated location are not triggered separately with reference to each designated location, but rather merely with reference to any designated location. Therefore, the same person will need to register only one time within a one hundred eighty day period, no matter how many different designated locations that person uses for a performance. Registration may be anonymous and requires a description of intended use, which shall include a complete listing

of characters to be performed. The Business Licensing Division (or its designee) may deny registration only in the case of failure to provide the description of intended use. A performer is not entitled to more than one registration regardless of the number of characters or acts performed.

(F) Any person who uses a designated location as a street performer within the specified time frame must display the registration form provided by the Business Licensing Division (or its designee) at the perimeter of the designated location being used by the performer or otherwise in a conspicuous manner within or bounding the designated location.
(Ord. No. 6462, § 9, 9-16-15)

11.68.110 License fee—Exemption from code requirements.

Notwithstanding the requirements set forth in other provisions of the Las Vegas Municipal Code, The Fremont Street Experience Limited Liability Company shall be licensed with a miscellaneous service license and pay a license fee according to its gross sales as provided in Section 6.04.005 of the Las Vegas Municipal Code. So long as such fee is paid, The Fremont Street Experience Limited Liability Company is exempt from the following provisions:

(A) The permit fees, licensing requirements and prohibitions contained in Chapters 6.19, 6.26, 6.30, 6.32, 6.39, 6.42, 6.62, 6.76, 6.78, 6.81 and 6.84;

(B) LVMC 6.50.200, with respect to events to which that section pertains;

(C) The special use permit and site plan development review requirements of Title 19 that would otherwise apply;

(D) The special sign standards set forth in LVMC 19.10.100(C); and

(E) The on-site parking and loading requirements of Title 19 that would otherwise apply.

The exemptions granted in this section apply to The Fremont Street Experience Limited Liability Company and its employees in connection with the acquisition, construction, improvement, operation, management and maintenance of the Pedestrian Mall.
(Ord. No. 6806, § 57, 4-6-22; Ord. No. 6462, § 10, 9-16-15; Ord. No. 6327, § 9, 6-18-14; Ord. No. 6183, § 16, 3-7-12; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.115 Compensation received.

Persons who receive compensation from The Fremont Street Limited Liability Company to engage in any activity within the Pedestrian Mall that, except for the payment of such compensation, would qualify them as street performers under this Chapter are subject to the following restrictions as if they were street performers as defined by this Chapter:

(A) Section 11.68.107(C)(2), except for Subparagraph (e) thereof;

(B) Section 11.68.107(C)(4); and

(C) Section 11.68.107(C)(5).
(Ord. No. 6462, § 13, 9-16-15)

11.68.120 Plans.

(A) Prior to completion of construction of the Pedestrian Mall, The Fremont Street Experience Limited Liability Company shall submit to the City Council for review and approval a plan or plans which shall include the following:

(1) The architectural theme and design standards which are proposed to be in effect for new exterior building improvements adjoining and facing the Pedestrian Mall and for the mall floorscape lying therein;

(2) The time and days of operation of the celestial vault lightshow;

(3) The location of any traffic control devices (pedestrian or vehicular) within the Pedestrian Mall;

(4) The manner in which access shall be preserved to businesses during the occurrence of any special events requiring the closure of a portion of the Pedestrian Mall to the public to the extent that such information can be provided as a part of the plan;

(5) The manner in which access will be assured into and onto the Pedestrian Mall by emergency vehicles;

(6) The days and hours on which special permit vehicles will be allowed access into and onto the Pedestrian Mall;

(7) The days and times in which Casino Center Boulevard or Fourth Street, or both, may be closed to vehicular traffic for special events; and

(8) The manner and times in which a portion of the Pedestrian Mall may be closed to pedestrian access for special events and other activities.

(B) For purposes of Subsection (A)(1) of this Section, the architectural theme and design standards in effect for new exterior building improvements adjoining and facing the Pedestrian Mall are contained in that document entitled, "Fremont Street Experience Design Criteria Manual," three copies of which shall be on file with the City Clerk. The requirements for Subsections (A)(2) through (A)(8) of this Section shall be as set forth in that document entitled, "The Fremont Street Experience Traffic and Pedestrian Safety Plan," three copies of which shall be on file with the City Clerk. Subsequent to approval by the City Council, The Fremont Street Experience Limited Liability Company shall be responsible for implementing and complying with these plans, and the construction of new building exterior improvements adjoining or facing the Pedestrian Mall shall comply with the architectural theme and design standards contained in the Fremont Street Experience Design Criteria Manual.

(C) Any amendments proposed to these plans by The Fremont Street Experience Limited Liability Company may be made with the approval of the City Manager; except, however, that any amendment to the Fremont Street Design Criteria Manual shall require approval by the City Council.

(D) Except with respect to site development plan review pursuant to LVMC 19.18.050, any approval given by The Fremont Street Experience Limited Liability Company shall not relieve a property owner who intends to construct new exterior building improvements from obtaining appropriate approvals and permits from the City which would be required regardless of any review and approval by the Fremont Street Experience Limited Liability Company. Review and approval of exterior building improvements by the Fremont Street Experience Limited Liability Company shall relieve the property owner from compliance with the site development plan review pursuant to LVMC 19.18.050; provided, however, that any owner aggrieved by the decision of The Fremont Street Experience Limited Liability Company may seek a determination from the City by means of the site development plan review pursuant to LVMC 19.18.050.
(Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.130 Violation—Penalty.

Any person violating the provisions of Sections 11.68.030, 11.68.080, and 11.68.100 to 11.68.108, inclusive, shall be guilty of a misdemeanor.
(Ord. No. 6462, § 11, 9-16-15; Ord. No. 6131, § 6, 2-2-11; Ord. 5896 § 2 (part), 2007; Ord. 5866 § 1 (part), 2006)

11.68.140 Violation—Civil action.

By virtue of its standing and authority under LVMC 11.68.060 and 11.68.070, The Fremont Street Limited Liability Company may commence a civil action to enjoin any violation of the provisions contained in LVMC 11.68.100 to 11.68.108, inclusive. This remedy shall supplement, and exist in addition to, those contained in LVMC 11.68.130.
(Ord. No. 6462, § 12, 9-16-15; Ord. No. 6131, § 7, 2-2-11)

CHAPTER 11.70 MOTORIZED SCOOTERS AND SKATEBOARDS

11.70.010 Definitions.

For purposes of this Chapter:

"Mini-motorcycle" means a motorcycle whose height is thirty inches or less.

"Motorcycle" means a motor vehicle as described in NRS 484A.135.

"Motorized scooter" means a scooter that is powered by a motor having a maximum piston displacement of less than twenty-five cubic centimeters, or an electric driven motor, and is capable of a maximum speed of no more than twenty-five miles per hour on a flat surface. The term does not include a scooter that is designed or intended by its manufacturer to be used primarily as an assistive device to increase, maintain, or improve the mobility of an individual with a disability or other physical condition that limits or impairs the individual's ability to walk.

"Motorized skateboard" means a self-propelled device that has a motor, a deck on which a person may ride and at least two tandem wheels in contact with the ground.
(Ord. No. 6326, § 51, 6-18-14; Ord. 5748 § 1, 2005: Ord. 5695 § 2, 2004)

11.70.020 Sale of motorized scooters and skateboards—Disclosure required.

It is unlawful for a merchant to sell a mini-motorcycle, motorized skateboard or motorized scooter without making the applicable disclosure required by Sections 11.70.030 and 11.70.040.
(Ord. 5748 § 2, 2005: Ord. 5695 § 3, 2004)

11.70.030 Motor vehicle laws—Posting requirements.

Any merchant who sells mini-motorcycles, motorized skateboards or motorized scooters within the City shall:

(A) Post, in a prominent place at each location where mini-motorcycles, motorized skateboards or motorized scooters are on display, a disclosure regarding the need to determine and comply with the requirements of State motor vehicle laws pertaining to the operation of mini-motorcycles, motorized skateboards and motorized scooters on public streets and sidewalks; and

(B) Provide a copy of such disclosure to each purchaser of a mini-motorcycle, motorized skateboard or motorized scooter, either before or in connection with the purchase.
(Ord. 5748 § 3, 2005: Ord. 5695 § 4, 2004)

11.70.040 Bilingual notices—Required.

The disclosure required by Section 11.70.030 shall be written in both English and Spanish and shall indicate, at a minimum, that mini-motorcycles, motorized skateboards and motorized scooters (as the case may be):

(A) May not be operated on a sidewalk;

(B) May not be operated on a public street without the appropriate operator's license;

(C) May not be operated on a public street, and therefore may be restricted to off-road use only, unless they have certain minimum safety equipment required by law; and

(D) Are subject to all State motor vehicle laws that govern the operation of either motorcycles or mopeds.
(Ord. 5748 § 4, 2005: Ord. 5695 § 5, 2004)

Title 12

MISCELLANEOUS REGULATIONS

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CHAPTER 12.02 SPECIAL EVENTS*

12.02.010 Definitions.

As used in this Chapter:

"Administrative services official" means the person within the City organization who is assigned to oversee the Office of Administrative Services or its successor in relation to special event permits.

"Approval authority," in the case of any particular event, means the person or entity that, by virtue of LVMC 12.02.100, is given the authority and responsibility for approving that type of event.

"Director of Public Works" means the Director of Public Works or a designee.

"Health District" means the Southern Nevada Health District.

"Metro" means the Las Vegas Metropolitan Police Department.

"Permittee" means the person to whom a special event permit has been issued pursuant to this Chapter.

"Public right-of-way" includes a public street, public alley, public walkway, or any combination thereof.

"Residential block party" means an activity within a residential community that is proposed or likely to:

(A) Occupy a public right-of-way or portion thereof; and

(B) Require barricading of some or all of that right-of-way in order to protect the persons participating in the activity.

"Security person" or "security personnel" refers to police officers, licensed private security officers, or other persons who are not licensed as security officers but whose presence is designed to provide security for an event.

"Security review authorities" means the administrative services official (or a designee) and the Chief of Public Safety (or a designee).

"Special event" means a temporary event or activity:

(A) At which one hundred or more persons are expected to attend;

(B) Whose location would not normally permit such activity to take place by means of applicable licensing regulations, zoning regulations, or other use-related regulations applicable to the location; and

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***Editor's note—**Ord. No. 6418, § 1, adopted June 13, 2015, repealed the former Chapter 12.02, §§ 12.02.010—12.02.240, and § 2 of Ord. No. 6418 enacted a new Chapter 12.02 as set out herein. The former Chapter 12.02 pertained to similar subject matter and derived from Ord. No. 6183, adopted March 7, 2012 and Ord. No. 6411, adopted April 15, 2015.

(C) Which involves any one or more of the following:

(1) The use of temporary structures;

(2) The use of temporary electrical power and distribution;

(3) The consumption of alcohol;

(4) The presence of vendors; or

(5) The creation of an impact upon any public right-of-way.

For informational purposes, the term includes Tier 1 special events, Tier 2 special events and Tier 3 special events. In addition to the types of events and activities listed above, the term also includes a residential block party and any other proposed event or activity that the administrative services official, upon becoming aware of the proposal, determines should be classified as a special event because of its likely impact. The term does not include a motorized racing event as defined in LVMC 11.57.010 or an event that will take place in a City park and be subject to LVMC Chapter 13.36. In addition, the term does not include an event that is not open to the public and attendance at which is limited to invitees listed on a predefined attendance roster.

"Special event producer" means the person responsible for producing, promoting or organizing a special event, whether the person is licensed as a professional promoter under NRS Chapter 6.78 or otherwise.

"Special event vendor" means any person who sells, offers for sale or solicits orders for the sale of goods or services at a special event but who does not require a privileged license or a license subject to suitability approval or background investigation under LVMC Title 6.

"Tier 1 special event" means a special event, other than a residential block party or a Tier 2 special event, at which fewer than three hundred persons are expected to attend.

"Tier 2 special event" means a special event, other than a residential block party, at which fewer than ten thousand persons are expected to attend and which involves one or more of the following:

(A) The use of, or an impact upon, public right-of-way.

(B) Any temporary structure, including any stage, bleachers, tent, fencing or canopy.

(C) The use of temporary electrical power and distribution.

(D) Sound amplification.

"Tier 3 special event" means a special event, other than a residential block party, at which ten thousand persons or more are expected to attend and which involves one or more of the following:

(A) The use of, or an impact upon, public right-of-way.

(B) Any temporary structure, including any stage, bleachers, tent, fencing or canopy.

(C) The use of temporary electrical power and distribution.

(D) Sound amplification.
(Ord. No. 6518, § 20, 4-6-16; Ord. No. 6418, § 2, 6-3-15)

12.02.020 Permit required—Exceptions.

(A) Except as otherwise provided in Subsection (C), no person shall conduct, manage or operate any special event unless the City has issued a permit therefor. The requirement for a special event permit is in addition to any other applicable permit requirement, including without limitation:

(1) Permits required under the Fire Code; and

(2) Permits required under the Administrative Code and the associated building-related technical codes.

(B) No person shall conduct, manage, operate or participate in any special event in violation of, or in any manner contrary to, the provisions of the special event permit.

(C) The requirement of a permit under Subsection (A) may be waived by the administrative services official for any particular event upon a determination that other applicable licenses, permits or approvals are or will be in place with respect to that event and are sufficient to protect the interests of the City and the public.
(Ord. No. 6418, § 2, 6-3-15)

12.02.030 Exceptions to Chapter.

This Chapter does not apply to the following:

(A) The sale, offer for sale or solicitation of orders at a temporary event, convention or permanent trade show within an enclosed facility where the attendance is restricted and the general public is not permitted, unless there is an impact upon public right-of-way.

(B) An event, convention or trade show that is the subject of and governed by a business license authorizing that event.

(C) Any funeral procession.

(D) Students going to and from school classes or participating in educational activities, provided that such conduct is under the immediate direction and supervision of the proper school authorities.

(E) Participation in a special event by the City, the Las Vegas Convention and Visitors Authority, or any other governmental entity, except that the City Manager or designee, in connection with that event, may impose any requirement in this Chapter, or any other reasonable requirement, that is deemed necessary or appropriate for public safety.

(F) Filming activity governed by LVMC Chapter 12.04.

12.02.040 Business licenses.

If applicable, a special event producer is responsible for obtaining any business license that might be required by LVMC Chapter 6.78 and for compliance with that Chapter if applicable.
(Ord. No. 6418, § 2, 6-3-15)

12.02.050 Applications.

With respect to any special event, the special event producer for that event shall file a permit application with the approval authority. The application shall be filed on a form furnished by the approval authority and shall be filed by the due date set forth in LVMC 12.02.070. The application form may be filed in hard copy version, either by hand delivery or by US mail. If authorized by the approval authority, an application form may also be filed by means of electronic mail or facsimile. The application shall include or be accompanied by the following information:

(A) The dates and hours of the event;

(B) A description of the event;

(C) The anticipated number of customers, spectators, participants and other persons expected to attend the event for each day it is conducted;

(D) The location and a map or diagram of the event including site plan, route map, proposed street closures and public right-of-way use;

(E) Information regarding the proposed means of complying with ADA requirements, where proposed structures or event facilities may limit the accessibility of public rights-of-way or City facilities;

(F) The number and locations of special event vendors, other vendors, and temporary improvements including tents and signs;

(G) The location(s) of attendee parking;

(H) A description of how security will be provided in accordance with LVMC 12.02.090;

(I) A description of how safety concerns, medical needs and sanitation requirements will be addressed;

(J) Proposed business activities, including any request for alcoholic beverage sales or service;

(K) Proposed entertainment activities;

(L) The name, address and contact information for the special event producer;

(M) The name, address and contact information for the person or organization to whom the permit is to be issued, if different from that of the special event producer;

(N) The times at which setup for the event is proposed to commence and tear down proposed to be complete;

(O) A description of the method of providing for neighborhood notification and, in the case of a residential block party, the method of obtaining neighborhood input from residents immediately adjacent to the affected right-of-way;

(P) Insurance coverage proposed to be provided; and

(Q) Such other information as may be required by the approval authority.
(Ord. No. 6418, § 2, 6-3-15)

12.02.060 Vendors.

A special event producer who proposes, as part of a special event, to provide vendors who do not qualify as special event vendors under LVMC 12.02.010 must list those vendors specifically in the permit application, by name and by business license.
(Ord. No. 6418, § 2, 6-3-15)

12.02.070 Permit applications—Due dates and processing fees.

(A) Special event permit applications are subject to the provisions regarding due dates and processing fees that are set forth in the following matrix:

Event Type	Application Due Date	Application Processing Fee	Application Processing Fee (Non-profit)	Fee for Expedited Review
Residential Block Party	5 days before event	N/A	N/A	N/A
Tier 1 Event	15 days before event	$50.00	$25.00	$25.00
Tier 2 Event	45 days before event	175.00	90.00	90.00
Tier 3 Event	90 days before event	300.00	150.00	150.00

(B) The amount of the application processing fee must be paid at the time of application or within such additional time as may be authorized by the approval authority in writing. The City has no obligation to process an application or issue a permit unless and until the application processing fee is paid.

(C) The application processing fee is separate from, and does not include, fees chargeable by other departments and functions of the City for services provided. As a courtesy, the Office of Administrative Services may provide an applicant a list of fees and other requirements to be imposed by other departments and functions, but the failure to do so creates no remedy.

(D) In order to be eligible for the reduced processing fee set forth in the matrix for non-profit organizations, the special event producer must provide documentation regarding non-profit status that is satisfactory to the City Manager or designee.
(Ord. No. 6418, § 2, 6-3-15)

12.02.080 Safety plans.

As a follow-up to the safety-related information that is included in a permit application pursuant to LVMC 12.02.050, the administrative services official may require the applicant to submit a comprehensive safety plan to detail how the safety of persons in and around the area of the special event will be provided for. The safety plan:

(A) Will take into account the number of streets and intersections to be blocked and the impact on emergency service access to and egress from the site, as well as access to fire hydrants;

(B) Must first be approved by Fire and Rescue; and

(C) Must include a medical plan that:

(1) Takes into account the size, location, date, time, duration of the event, as well as the type of event, venue surface material, weather conditions, and presence, if any, of alcoholic beverages; and

(2) Complies with applicable provisions of NRS 450B.650 through 450B.700, as well as Section 1150 of the Emergency Medical Services Regulations promulgated by the Health District.

(Ord. No. 6418, § 2, 6-3-15)

12.02.090 Security plans.

(A) As a follow-up to the security-related information that is included in a permit application pursuant to LVMC 12.02.050, the administrative services official may require the applicant to submit a comprehensive security plan to detail how order will be preserved and property protected in and around the location where the event is to be conducted. The security plan shall be based on the size, location, duration, time and date of the event; the expected service and consumption, if any, of alcoholic beverages; the number of streets and intersections blocked; and the need to detour or preempt vehicular or pedestrian travel and use of public rights-of-way.

(B) Except as otherwise provided in, or determined pursuant to, Subsection (D), a required security plan must first be approved by Metro, and shall include the number and character of security personnel Metro determines necessary for the special event. The decision whether or not to approve a security plan under this Section shall be based on the considerations set forth in Subsection (A).

(C) In the case of a security plan under this Section that includes the use of police officers of Metro:

(1) Funds to engage the specified number of police officers, at an appropriate hourly rate for police officers, shall be deposited with Metro at least ten days prior to the date of an event.

(2) Police officers engaged under this Subsection (C) shall be under the complete direction and control of Metro.

(D) A special event producer may file a request for review concerning a decision by Metro under this Section in order to propose alternative security measures. Such a request must be filed with the administrative services official within five days after Metro's decision. The review will be conducted independently by each of the security review authorities. Alternative security measures may be approved and implemented if both security review authorities independently determine that such measures will provide equivalent or acceptable security for the event.
(Ord. No. 6418, § 2, 6-3-15)

12.02.100 Approval authority—Application approval.

(A) Upon receipt of an application, the approval authority shall review the application as well as forwarding a copy to other departments and agencies as deemed appropriate, which may include without limitation:

(1) Office of Administrative Services;

(2) Public Works;

(3) Business Licensing Division;

(4) The building code-related function of Community Development, if applicable;

(5) Fire and Rescue;

(6) The land use function of Community Development; and

(7) Metro.

(B) Receipt of an application shall be acknowledged by or on behalf of the approval authority shortly after receipt thereof. Action to approve, deny or return the application as incomplete shall be taken by the approval authority, and written notice thereof provided, within a reasonable time following receipt of the application. The approval authority may consider information contained in the application as well as additional information otherwise available.

(C) Except as otherwise provided in Subsections (D) and (E), the approval authority is the administrative services official.

(D) The approval authority for a residential block party is the Director of Public Works.

(E) The approval authority for a Tier 3 special event that proposes the closure of multiple streets on multiple days is the City Council. For purposes of receiving and processing an application up until the time of Council action, the administrative services official shall act on behalf of the City Council.

(F) No vendor other than a special event vendor is authorized to vend at a special event unless the special event permit issued therefor pursuant to this Section specifically lists that vendor as an approved vendor for the event.
(Ord. No. 6816, § 122, 8-17-22; Ord. No. 6418, § 2, 6-3-15)

12.02.110 Approval authority—Issuance.

(A) Except as otherwise provided in Subsection (B), the approval authority shall issue a permit upon a finding that the following requirements have been met, unless a particular requirement is waived by the approval authority:

(1) The permit application has been approved by the reviewing departments or agencies;

(2) The applicant has obtained and provided required satisfactory evidence of insurance policies, bonds and other means of securing obligations;

(3) The applicant has obtained all necessary permits and approvals from other agencies, including the Nevada Department of Transportation and other agencies having jurisdiction in the case of a special event affecting State rights-of-way;

(4) The applicant has contracted with Metro for any necessary security services or has otherwise provided for security under an approved security plan;

(5) The applicant has contracted with one or more qualified emergency service providers as necessary to comply with an approved medical plan;

(6) The applicant has obtained approval of any necessary temporary traffic control plan by the Director of Public Works;

(7) The applicant has obtained or caused to be obtained all required business licenses to conduct the activities proposed for the special event;

(8) The applicant has complied with the provisions of this Chapter, paid in advance all required fees, and agreed to comply with the conditions to be imposed upon the permit;

(9) The activities proposed for the special event will not violate applicable noise restrictions;

(10) The concentration of persons and equipment will not unduly interfere with normal and proper fire and police protection services, ambulance services, or with the orderly operation of public roadways, sidewalks, hospitals, parks, schools, or other public and quasi-public institutions;

(11) The applicant has provided reasonable means for informing all interested persons or persons whose commercial interests may be adversely impacted of the special event, and has an appropriate plan to inform persons participating in the event of the terms and conditions of the permit and of applicable laws; and

(12) In the case of a residential block party or other similar neighborhood event, the applicant has submitted a petition in favor of the event signed by at least four-fifths of the residents of the block or area to be occupied by the event.

(B) The approval authority may deny a permit upon an unfavorable determination regarding any of the items described in Subsection (A). In addition, the approval authority may deny a permit if the applicant, in connection with a previous special event permit issued to the applicant, has:

(1) Violated a condition of that previous permit; or

(2) Violated a provision of this Code in connection with the event authorized by that permit.

(C) Independent of any other provision of this Chapter, the Director may deny or withhold further action on a permit application upon a determination that:

(1) The permit application is incomplete or a submittal required by this Chapter has not been submitted in a timely manner; and

(2) There is insufficient time remaining before the date of the proposed special event for the application to be processed, reviewed and approved even if the application is completed or the required submittals received.

(Ord. No. 6418, § 2, 6-3-15)

12.02.120 Proof of secured policies.

(A) At least ten days before a special event, the applicant must provide satisfactory proof of having secured such policies of commercial general liability, automobile liability, and worker's compensation as the administrative services official may require. Any such policies:

(1) Must be issued by one or more insurance companies authorized to do business in Nevada, with coverage designated for the premises where the special event will take place, including any public property, facility or right-or-way belonging to the City.

(2) Must name the City and Metro as additional insureds.

(3) Must have policy limits in amounts determined by the City's Risk Manager.

(B) This section shall be deemed to be incorporated in its entirety in any application for any special event permit, other than one for a residential block party.

(C) By filing an application for a special event permit, the applicant thereby represents, stipulates and agrees as follows:

(1) If the application is submitted or executed on behalf of any other person, organization, firm, or corporation, that the person so doing is fully authorized to act and contract for such other person, organization, firm or corporation; and

(2) That the applicant, and any other persons, organizations, firms and corporations on whose behalf the application is made, agrees that they will jointly and severally indemnify and hold the City and its agents or employees, harmless against liability for any and all claims for damages to property or injury to or death of persons arising out of or resulting from the issuance of the permit or the conduct of the special event or its participants.

(Ord. No. 6418, § 2, 6-3-15)

12.02.130 Permit conditions.

Any permit granted under this Chapter may be made subject to conditions reasonably calculated to reduce or minimize the dangers and hazards to vehicular or pedestrian traffic and

the public health, safety, tranquility, morals and welfare. Such conditions may include without limitation conditions regarding hours of operation, duration, number of participants, and levels of sound.
(Ord. No. 6418, § 2, 6-3-15)

12.02.140 Occupancy of certain streets and highways.

Any application for a special event that proposes to occupy any street or highway under the control of the Nevada Department of Transportation must have the approval of that department and any other agency having jurisdiction.
(Ord. No. 6418, § 2, 6-3-15)

12.02.150 Appeals.

(A) Except as otherwise provided in Subsection (B) of this Section or in Subsection (D) of Section 12.02.090, an applicant or permittee may appeal a decision under this Chapter by Metro or by an approval authority other than the City Council by filing a notice of appeal with the approval authority or Metro, as the case may be, within five business days after the decision appealed from. The appeal shall be heard by the City Manager or a designee. The designee may be an independent hearing officer appointed by the City Manager for that purpose.

(B) No appeal is available under this Section if the relief or remedy sought by the appeal:

(1) Is otherwise available under a specific provision of this Code; or

(2) Would not be available under applicable law.
(Ord. No. 6418, § 2, 6-3-15)

12.02.160 Permittee requirements.

Each permittee shall:

(A) Ensure that the special event complies with the requirements of Chapter 6.76 and any noise restrictions of any special district established by the City.

(B) Comply with all applicable Health District regulations.

(C) Comply with all City ordinances and regulations, including without limitation those that pertain to Fire and Rescue, business licensing and land use.

(D) For each special event any part of which will take place after dark or following which persons attending may remain on the premises after dark, provide electrical illumination to insure that occupied areas are lighted at all times of occupancy.

(E) For each special event that also qualifies as a carnival or circus, comply with the provisions of LVMC Chapter 6.19.

(F) Reserved.

(G) For each special event in the nature of a ticketed concert or other large-scale performance event, provide a surety bond or deposit, if required by the Business Licensing Division, to provide refunds of ticket purchases if the performance event is not conducted at the time and place, and with the performers, advertised or indicated by the tickets.

(H) For each special event that will take place on a vacant lot or unpaved parking lot, comply with applicable regulations of the Clark County Department of Air Quality as they apply to the use of such lots.

(I) Be responsible for the special event's compliance with applicable ADA requirements, where proposed structures or event facilities may limit the accessibility of public rights-of-way or City facilities.

(Ord. No. 6418, § 2, 6-3-15)

12.02.170 Sanitation plans—Related costs.

(A) As a follow-up to the sanitation-related information that is included in a permit application pursuant to LVMC 12.02.050, the administrative services official may require the applicant to submit a sanitation plan to detail how the applicant proposes to provide for the collection and removal of litter, solid waste and other waste, and to address the need for toilet facilities and other sanitary facilities. Such a plan must, at a minimum, provide for the following at the permittee's own expense:

(1) The collection and removal litter and solid waste produced by or arising out of the event.

(2) Except with respect to a residential block party, on-premises enclosed flush-type water closet facilities in numbers and types that correspond to the number of participants or spectators expected to be in attendance, as set forth in a schedule to be adopted by the administrative services official and made available for public inspection. Where flush-type water closets cannot be made available, portable chemical toilets may be used if they have been approved by the Health District. Chemical toilets shall be emptied and recharged as necessary, at the permittee's expense, pursuant to procedures established by the Health District.

(3) Any additional personal sanitation facilities that may be required as a condition of the special event permit under a sanitation plan approved by the City.

(4) If required by the Public Works Environmental Officer, a Stormwater Pollution Prevention Plan.

(B) Each permittee shall be responsible for reimbursing the City, upon request, for additional sanitation-related costs incurred by the City as a consequence of the special event.

(Ord. No. 6418, § 2, 6-3-15)

12.02.180 Barricades and warning devices.

Each permittee shall provide, at the permittee's own expense, such barricades and warning devices as the City Traffic Engineer deems necessary for the public safety. The City Traffic Engineer shall determine the types and locations of required barricades and warning devices.
(Ord. No. 6418, § 2, 6-3-15)

12.02.190 Use of public rights-of-way.

In the case of a special event in the nature of a parade, procession, race or similar event that will move or proceed along any public right-of-way:

(A) The permittee must also obtain written approval from Metro.

(B) At least ten days before the special event, the permittee must provide a plan for adequate traffic control. If the plan will include barricades, it must be prepared by a licensed barricade company.

(C) Except as otherwise provided in this Subsection (C), no person may drive a vehicle between or among the persons or vehicles that are participating in the parade, procession, race or similar event while it is in motion. The preceding sentence shall not apply:

(1) At intersections where traffic is controlled by traffic signals or police officers;

(2) To persons who are authorized participants in the parade, procession, race or similar event; or

(3) To the drivers of authorized emergency vehicles when such drivers are responding to an emergency.
(Ord. No. 6418, § 2, 6-3-15)

12.02.200 Alcoholic beverages.

(A) No person may dispense alcoholic beverages during a special event except pursuant to a license issued under LVMC Chapter 6.50. Any permit granted under LVMC 6.50.200 shall be subject to the provisions of LVMC 6.50.205.

(B) A special event permit does not authorize alcoholic beverages to be dispensed or consumed, or open containers of alcoholic beverages to be possessed, unless specifically authorized by the special event permit and by a separate license or permit issued under LVMC Chapter 6.50.
(Ord. No. 6806, § 58, 4-6-22; Ord. No. 6418, § 2, 6-3-15)

12.02.210 Violations.

It is unlawful for any person:

(A) To violate LVMC 12.02.020 or any other provision of this Chapter.

(B) Who is in charge of, or responsible for the conduct of, a special event to knowingly fail to comply with any condition of the permit.

(C) To consume, sell or be in possession of an alcoholic beverage at the location of a special event while it is taking place, except as expressly authorized by a special event permit.

(D) To carry or be in possession of a weapon at the location of a special event while it is taking place, except as authorized by law or as specified in a special event permit.

(Ord. No. 6418, § 2, 6-3-15)

12.02.220 Revocation.

A special event permit may be revoked by the administrative services official (or in the case of a residential block party, the Director of Public Works) at any time when such revocation is deemed necessary to protect the public health and safety or to protect property from imminent harm. Nothing in this Section shall limit the ability of a department of the City to take remedial or preventative action under authority of any ordinance or Code provision that operates independently of this Chapter.

(Ord. No. 6418, § 2, 6-3-15)

12.02.230 Enforcement.

This Chapter may be enforced:

(A) By the Las Vegas Metropolitan Police Department, the Business Licensing Division of the Department of Community Development, the code enforcement function of the City, or any other department or function of the City specifically assigned to its enforcement by the City Manager; and

(B) By means of either a criminal prosecution or a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding, any reference to the "Department" in LVMC 6.02.400 to 6.02.460, inclusive, shall pertain to the department or function assigned to enforce this Chapter.

(Ord. No. 6816, § 123, 8-17-22; Ord. No. 6418, § 2, 6-3-15)

CHAPTER 12.04 FILMING ACTIVITY

12.04.010 Definitions.

For purposes of this Chapter:

"City property" means any real property owned by, leased to or otherwise under the control of the City, including any public right-of way.

"Contemporaneous event" means an unplanned happening that is not staged and can only be filmed as the event unfolds.

"Fee schedule" means a schedule of fees adopted pursuant to LVMC 12.04.040.

"Film administrator" means the Director of Public Works or a designee.

"Film liaison" means an employee or agent of the City who is available to assist a permittee in complying with the requirements of this Chapter and coordinating filming activity with the City.

"Filming" means and includes all activity incident to the staging or shooting of motion pictures, television programs, commercial still photography, video tapes, or other visual reproduction technology, including any such technology intended to be used in social media. The term includes set-up and strike activity, as well as actual photography.

"Fire department" means Las Vegas Fire and Rescue.

"Metro" means the Las Vegas Metropolitan Police Department.

"News media filming" means filming for the purpose of spontaneous, unplanned television news reporting by journalist, reporters, photographers or camera operators.

"Non-City property" means real property other than City property.

"Permittee" means the holder of a film permit issued under this Chapter.

"Public right-of-way" means the full width or any portion of any dedicated street, alley or highway, including any public sidewalk.
(Ord. No. 6411, § 2, 4-15-15)

12.04.020 Permit required.

(A) Except as otherwise provided in this Chapter, a film permit is required for any of the following:

(1) Filming that takes place on City property, or within any airspace located above City property that is not within the jurisdiction of the Federal Aviation Administration.

(2) Filming that takes place on non-City property, if such filming:

(a) Will impact public safety or vehicular or pedestrian traffic on City property;

(b) Has the potential to impact City property; or

(c) Will include the depiction of law enforcement activity, including fight scenes, chase scenes, or the use of actual or simulated weapons.

(3) Filming that includes the use of pyrotechnics, flame, special effects or laser use.

(B) A permit issued under this Section:

(1) Shall be valid for the period specified, unless extended by the film administrator; and

(2) Authorizes filming activities only by the permittee or those acting under the authority or permission of the permittee.
(Ord. No. 6411, § 2, 4-15-15)

12.04.030 News media—Not applicable.

Except as otherwise specifically provided, the provisions of this Chapter shall not apply to filming by local, national or international news media, or filming for private family use, provided such filming does not disrupt pedestrian or vehicular traffic on public rights-of-way. (Ord. No. 6411, § 2, 4-15-15)

12.04.040 Film administrator.

The film administrator:

(A) Shall be responsible for the administration of this Chapter.

(B) Subject to applicable procedures, is authorized to promulgate further rules and regulations in order to implement this Chapter, taking into account the impact of filming on:

(1) City property;

(2) Traffic movement and traffic control;

(3) Pedestrian traffic; and

(4) The public health, safety and convenience.

(C) Subject to applicable procedures, is authorized to establish a fee schedule for the use of City property, based upon the impact to City property and resources.

(Ord. No. 6411, § 2, 4-15-15)

12.04.050 Application required.

An application for a film permit must be submitted to the film administrator. The application must include or be accompanied by the following:

(A) The name and business address of the film production company or other applicant;

(B) The number of the applicant's City business license, if the applicant is engaged in a business activity for which a City license is required;

(C) The name of the principal, employee or agent authorized to make decisions on behalf of the applicant, along with a telephone number;

(D) The address or location at which the filming is to occur;

(E) The dates and times that the filming is proposed to take place;

(F) A general statement of the character or nature of the proposed activity, including any props and sets proposed to be used;

(G) An estimate of the number and types of vehicles and equipment to be involved in filming;

(H) An estimated number of cast and crew;

(I) A description of any proposed special effects or laser usage;

(J) A description of the nature and types of any pyrotechnics proposed to be used;

(K) A statement that the applicant, principal, employee or agent will take responsibility for all activities to be conducted under the permit; and

(L) A scene script, if required by the film administrator.

(Ord. No. 6411, § 2, 4-15-15)

12.04.060 Application submission.

An application for a film permit must be submitted as follows:

(A) At least five business days prior to the proposed commencement of filming.

(B) At least ten business days prior to the proposed commencement of filming, for filming where minor traffic disruptions or the limited use of special effects are proposed.

(C) At least sixty days prior to the proposed commencement of filming, for:

(1) Filming of feature films or television movies;

(2) Filming of elaborate exterior commercial shoots that require significant traffic disruptions or the substantial use of special effects; or

(3) Filming that will significantly impact adjacent properties or will involve the construction of structures.

(Ord. No. 6411, § 2, 4-15-15)

12.04.070 Pre-production meeting required.

An applicant for filming described in Subsection (C) of LVMC 12.04.060 must schedule a pre-production meeting with the film administrator before a permit may be issued.
(Ord. No. 6411, § 2, 4-15-15)

12.04.080 Film administrator's decisions.

(A) Upon a finding by the film administrator that an application is complete, the film administrator shall consider the information provided in the application, taking into account any recommendations from the fire department, Metro, the City's Traffic Engineering staff, and any other departments or agencies whose operations may be impacted. The film administrator may approve the application and issue a film permit upon a finding that the application conforms to the application-related requirements of this Chapter and that the proposed filming activity does or will be in conformance with the filming-related requirements of the Chapter. The film administrator may make the film permit subject to such conditions as the film administrator deems advisable or appropriate. The film administrator may deny a film permit upon a finding that:

(1) The application is incomplete or does not comply with the requirements of this Chapter;

(2) The proposed filming activity is not or will not be in conformance with the requirements of the Chapter or the requirements of other provisions of the Municipal Code; or

(3) The applicant has committed repeated violations of this Chapter.

(B) In the case of the denial of a film permit, the film administrator shall notify the applicant in writing of the denial, along with the reasons therefor. Notification may be made in person, by email or by United States mail to the address provided on the permit application.

(C) An applicant may appeal a decision by the film administrator under this Section by filing a notice of appeal with the film administrator within five business days after the decision appealed from. The appeal shall be heard by the City Manager or a designee. The designee may be an independent hearing officer appointed by the City Manager for that purpose.
(Ord. No. 6411, § 2, 4-15-15)

12.04.090 Film liaison.

(A) Except as provided in Subsection (B), below, a permittee is not required to use the services of a film liaison, but may request such services on the site of a shoot to assist the permittee in complying with the requirements of this Chapter. If a film liaison is provided by the City pursuant to this Subsection (A), the permittee shall be responsible for reimbursing the City in accordance with the fee schedule.

(B) The City may require the presence of a film liaison when filming occurs at on City property. In such a case the permittee is not required to reimburse the City the cost of providing a film liaison.
(Ord. No. 6411, § 2, 4-15-15)

12.04.100 Insurance.

(A) No filming for which a permit is required under this Chapter or filming of contemporaneous events on public property in the City may take place unless appropriate insurance policies are in place covering such activity.

(B) Prior to the issuance of a permit or prior to proceeding with filming described in Subsection (A), the permit applicant or person seeking to film must have first secured such policies of commercial general liability insurance, automobile liability insurance, and worker's compensation coverage as the film administrator may require, and provide satisfactory proof of such coverage.

(C) Any policies required by or pursuant to this Section:

(1) Must be issued by one or more insurance companies authorized to do business in Nevada, with coverage designated for the premises where the filming will take place, including upon any City property.

(2) Must name the City and Metro as additional insureds.

(3) Must be maintained in full force and effect during the period of the filming to which they pertain.

(D) In order to ensure cleanup and restoration of any filming location that may impact City property, the film administrator may require a permittee to post a performance bond, surety or other comparable form of security in a form and amount to be determined by the film administrator and City Attorney. Any such security shall be returned or released upon completion of filming, cleanup and restoration of property.
(Ord. No. 6411, § 2, 4-15-15)

12.04.110 Security.

Every permittee shall provide security, at its own expense, where such security is deemed necessary by Metro for traffic control, pedestrian and vehicular, public safety and protection of public property. Metro may require that such security take the form of, and be provided by, Metro officers, in such numbers and types as may be specified by Metro.
(Ord. No. 6411, § 2, 4-15-15)

12.04.120 Compliance with fire regulations.

(A) In accordance with Section 322 of the International Fire Code, as adopted and supplemented by the City, the design, construction, operation, and maintenance of permanent and temporary soundstages, production facilities, as well as use of production locations shall comply with NFPA 140 and the provisions of this Section.

(B) Special effects, including without limitation laser, fire and flame effects, or pyrotechnics, may not be used without first obtaining a special effects permit from the fire department. Application for such a permit must be made to the fire department at least ten days in advance of the proposed filming. Any special effects permit issued by the fire department will authorize the use of special effects only if in accordance with any conditions placed upon the permit. Any changes to those conditions must first be approved by the fire department. If the fire department conditions a special effects permit on the presence of fire department staff for fire safety purposes, the holder of the special effect permit shall be responsible for paying a fee for that service in accordance with the fire department's approved Permit and Fee Schedule.

(C) Independent of any other requirement of this Section, the holder of a film permit is responsible for notifying the fire department, where possible, at least forty-eight hours in advance of any filming in which the presence of the fire department is required.
(Ord. No. 6411, § 2, 4-15-15)

12.04.130 Permittee requirements.

In connection with any film permit issued under this Chapter, each permittee shall:

(A) Report to the film administrator any changes to the filming dates and times, as well as any material changes to the information provided with the application, and obtain the film administrator's approval before the filming to which the changes pertain.

(B) Before filming in residential or commercial areas, notify all residences and businesses within one linear block of the filming in advance. For purposes of this requirement, "in advance" means at least forty-eight hours, whenever possible. Such notification shall be on forms prescribed by the film administrator and will include the dates and hours of the filming, the proposed use of special effects or pyrotechnics, if any, and the expected interruption of traffic flows. The permittee shall make every effort possible to ensure the least amount of disruption to residents, visitors and business interests within and surrounding the location of the filming.

(C) Before filming on private property, secure permission from the owners or inhabitants of such property.

(D) Maintain on the filming premises for the duration of the filming the film permit, together with corresponding attachments and conditions.

(E) Leave City property in at least as good a condition as before the filming commenced. Any costs incurred by the City to return City property to such condition shall be assessed against the permittee.

(Ord. No. 6411, § 2, 4-15-15)

12.04.140 Agreements with the City.

In connection with filming to take place on City property, the film administrator may require a permittee to enter into an appropriate agreement with the City, specifying the terms and conditions for the use of City property and an appropriate fee.
(Ord. No. 6411, § 2, 4-15-15)

12.04.150 Violations.

As an alternative to a criminal prosecution for the violation of any provision of this Chapter, the City may treat the violation as a civil violation and proceed in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive.
(Ord. No. 6411, § 2, 4-15-15)

12.04.160 Enforcement.

This Chapter may be enforced:

(A) By the Las Vegas Metropolitan Police Department, the Department of Public Works, or any department or function of the City specifically assigned to its enforcement by the City Manager; and

(B) By means of either a criminal prosecution or a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding, any reference to the "Department" in LVMC 6.02.400 to 6.02.460, inclusive, shall pertain to the department or function assigned to enforce this Chapter.
(Ord. No. 6411, § 2, 4-15-15)

12.04.170 Revocation.

A film permit may be revoked by the film administrator at any time when such revocation is deemed necessary to protect the public health and safety or to protect property from imminent harm.
(Ord. No. 6411, § 2, 4-15-15)

12.04.180 Evidence of compliance.

At any time during which filming is taking place that would require a film permit under this Chapter, whether or not a permit has been obtained, any officer or employee of a department or function assigned to the enforcement of this Chapter may request any person engaged in filming to identify himself or herself and to produce evidence that the filming activity is in compliance with this Chapter. It is a violation of this Chapter to refuse to provide such information or documentation.
(Ord. No. 6411, § 2, 4-15-15)

12.04.190 Filming without a permit.

In the case of filming that requires a permit under this Chapter but for which no permit has been obtained, any officer or employee of a department or function assigned to the enforcement of this Chapter, in addition to pursuing any other remedy available under this Chapter, may issue an order to cease and desist the filming activity. It is a violation of this Chapter to refuse to fail or refuse to obey such an order.
(Ord. No. 6411, § 2, 4-15-15)

Title 13

STREETS, SIDEWALKS AND PUBLIC PLACES*

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***Editor's note—**For provisions on moving buildings on streets, see Ch. 11.58.

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CHAPTER 13.04 USE OF STREETS AND SIDEWALKS

13.04.010 Sweeping onto sidewalks.

It shall be unlawful for any person to sweep dust, dirt, accumulations, refuse or deposits from any building onto or upon any public sidewalks in the City, but the same at the time of sweeping shall be gathered up and deposited into some suitable receptacle approved by the Traffic Engineer.
(Ord. 170 § 79, 1931: prior code § 9-1-3)

13.04.020 Sweeping onto street or gutter.

It shall be unlawful for any person to sweep dust, dirt, accumulations, refuse or deposits on any public sidewalk onto, in or upon any street or gutter of any street within the City.
(Ord. 170 § 80, 1931: prior code § 9-1-4)

13.04.030 Running water—Broken pipes.

(A) It shall be unlawful for any person owning or controlling any hose, water pipe, ditch, canal, flume, lawn sprinkling system or waterway to allow or permit water from the same or any part thereof, or through or from either or through or from any other source, to flow over or into any sidewalk, street, alley or public place; provided, however, that nothing herein shall be construed as preventing the wetting of any sidewalk, alley, street or public place for the purpose of cleaning the same or allaying the dust thereon, or to the accidental breaking of any such hose, water pipe, ditch, canal or flume, lawn sprinkling system or waterway; provided, however, that such break shall be repaired or the flow of water through the same shall be abated within two hours after personal notice of such break is given to any person who owns or occupies, or to the manager, superintendent, agent or officer of any company, corporation, association or organization that owns, controls or maintains such water pipe, ditch, canal or flume, lawn sprinkling system or waterway or has any pecuniary interest therein. If such break is not repaired or the water turned off within such time, it shall be the duty of the Traffic Engineer or the Director of Building and Safety, or their respective designees, or any Police Officer to cause the water flowing through such hose, water pipe, ditch, canal, flume, lawn sprinkling system or waterway to be shut off, and it shall be unlawful for any person to again turn water through the same until proper repairs have been made.

(B) Any person who violates any portion of Subsection (A) is guilty of a misdemeanor and upon the conviction thereof shall be fined:

(1) If the property from which the water is flowing is zoned R-1 or R-CL, in an amount that is determined by the Municipal Court to be appropriate under the attendant circumstances; or

(2) If the property from which the water is flowing is subject to a zoning classification that is less restrictive that R-1 or R-CL,

(a) Upon the first conviction, a minimum of ten dollars;

(b) Upon the second conviction within a period of three years, a minimum of two hundred fifty dollars; and

(c) Upon the third conviction within a period of three years and upon each subsequent conviction within such period, a minimum of five hundred dollars.

(Ord. 3374 § 1, 1988: Ord. 170 § 82(a), 1931: prior code § 9-1-5 (part))

13.04.040 Filthy or offensive things.

Any person who shall at any time sprinkle, pour, throw, drain, pump or place, or cause to be sprinkled, poured, thrown, drained, pumped or placed, any filthy or offensive water, fluid, liquid matter or thing, in or upon any street, ditch, lane, court, square, alley or vacant lot within the City shall be guilty of a misdemeanor.

(Ord. 170 § 82(b), 1931: prior code § 9-1-5 (part))

13.04.050 Playing—Throwing or shooting missiles.

It shall be unlawful for any person to play at a game of ball or in any other game, or practice at passing or hitting a ball, upon any sidewalk, street, or public alley, except as may be allowed on "play streets" declared such under the provisions of Title 11. It shall be unlawful for any person to throw stones or use a sling, or discharge gravel, marbles or anything out of a sling shooter, blow gun, air gun or other device or implement of like kind or character, on any sidewalk, street, or public alley in the City.

(Ord. 1949 code Ch. 32 § 7: prior code § 9-1-7)

13.04.060 Tire-puncturing objects.

It shall be unlawful for any person to throw, deposit, or place in or upon any public street any nails, tacks, crockery, scrap iron, tin, wire, bottles, glass, thorns, thorny clippings, or thorny branches of trees or bushes, or any other articles or thing likely to puncture the tire of any vehicle.

(Ord. 170 § 72, 1931: prior code § 10-19-5)

13.04.070 Display, parking and sale of motor vehicles or merchandise on or within any unimproved public right-of-way.

(A) It is unlawful for any person to sell or to display for the purpose of sale any motor vehicle or merchandise on or within any unimproved portion of a public right-of-way. For purposes of this Section, "merchandise" means goods or wares, including, but not limited to, produce, nursery stock, ceramics and other similar items. A violation of this Subsection (A) may be enforced either by means of a criminal proceeding or as a civil violation under LVMC Chapter 11.10.

(B) Members of the Las Vegas Metropolitan Police Department and designated officers of the Department of Public Safety and the Department of Economic and Urban Development are authorized to remove or cause to be removed, to a designated garage or storage area, any

motor vehicle which is being displayed in violation of this Section if the vehicle has not been removed within seventy-two hours after a written notice to remove is attached to the vehicle. The costs of removal and storage shall be borne by the owner or operator of the vehicle.

(C) Nothing in this Section shall be deemed to authorize any sale or display on any improved portion of a public right-of-way except that which is otherwise expressly permitted by this Code.
(Ord. No. 6518, § 21, 4-6-16; Ord. No. 6184, § 17, 3-21-12; Ord. No. 6149, § 6, 5-4-11; Ord. 5095 § 36, 1998: Ord. 3484 § 15, 1990: Ord. 3176 § 2, 1985)

13.04.080 Washing of vehicles upon public streets and rights-of-way—Unlawful.

(A) Except as otherwise provided in Subsection (B), it is unlawful to wash the exterior or engine compartment of a vehicle upon a public street or public right-of-way.

(B) The prohibition contained in Subsection (A) does not apply to the washing of the exterior of a vehicle if the vehicle is parked near or within a private driveway and is being washed by:

(1) A person who owns or controls that driveway, or

(2) An invitee of that person who is not washing the vehicle as part of a commercial transaction.

(C) For purposes of this Section, "wash" means to apply any combination of the following, where the application results in a discharge or deposit or runoff to the surface below:

(1) Water by means of spray or water flow; or

(2) Cleaning products.

(D) This Section may be enforced:

(1) By the Las Vegas Metropolitan Police Department or any department or function of the City specifically assigned to its enforcement by the City Manager; and

(2) By means of either a criminal prosecution or a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding, any reference to the "Department" in LVMC 6.02.400 to 6.02.460, inclusive, shall pertain to the department or function assigned to enforce this Section.
(Ord. No. 6345, § 1, 9-3-14)

13.04.090 Cleaning of public sidewalks—Hours.

The Director of the Department of Public Works is authorized to determine and to designate hours of cleaning for public sidewalks. The Director, or a designee, must place appropriate signs or markings to give notice of designated hours of cleaning. During such designated and noticed hours of cleaning, no person shall sit, lie, sleep, camp, or otherwise obstruct the cleaning of the designated public sidewalks by the Department of Public Works.
(Ord. No. 6816, § 124, 8-17-22; Ord. No. 6719, § 1, 1-15-20)

CHAPTER 13.08 CURBLINES AND STREET GRADES*

13.08.010 Curblines of North Main.

(A) A line drawn parallel to the easterly side of the public right-of-way of North Main Street, in the City, and distant twelve feet westerly therefrom, is established as the curbline for the easterly side of North Main Street, from Carson Avenue to a point distant 236.27 feet northerly from the centerline of Bonanza Road, in the City.

(B) A line drawn parallel with the easterly side of the public right-of-way of North Main Street, in the City, and distant seventy-six feet westerly therefrom, is established as the curbline for the westerly side of North Main Street, from Carson Avenue to State Highway Survey Station "0" 109+25.20, in the City, said station being 388.53 feet southerly from the centerline of Bonanza Road.

(C) A straight line drawn from the northerly terminus of the curbline, as established in Subsection (A) of this Section, at State Highway Survey Station "0" 109+25.20, as said station is described in Subsection (A) of this Section, to a point distant 84.37 feet westerly from the easterly side of the public right-of-way of North Main Street at State Highway Survey Station "0" 111+34.34, said station being 179.39 feet southerly from the centerline of Bonanza Road, is established as the curbline for the westerly side of North Main Street, in the City, between said points.

(D) A line drawn parallel to the westerly side of the public right-of way of North Street, in the City, and distant ten feet easterly therefrom, is established as the curbline for the westerly side of North Main Street from Bonanza Road to State Highway Survey Station "0" 115+49.80, said station being 236.07 feet northerly from the centerline of Bonanza Road.

(E) At all intersections of streets and driveways with the right-of-way of North Main Street, as said right-of-way is described in this Section, the curblines and lines of curb returns established at said intersections by the Department of Highways of the State to meet present and proposed curblines, and shown on the plans thereof on file in the office of said Department, entitled, respectively, "State of Nevada Department of Highways - Plan and Profile of Proposed State Highway - Federal Aid Project - Clark County, City of Las Vegas, Main Street (South 5th. St. to 1650 Ft. N.E. of North City Limits), Fremont St. Spur (Main Street to 5th St.), Project No. 87," and "State of Nevada - Department of Highways - Plan and Profile of Proposed State Highway - Federal Aid Project - Clark County, Fifth Street Las

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***Note—**Prior history: Ord. 47 (part).

Vegas to Charleston Park Road, Project No. 39." and approved by the State Highway Engineer and the Board of Directors of said Department on May 10, 1947, are adopted as the curblines and lines of curb returns for said intersections.
(Ord. 336 §§ 1-5, 1947: prior code § 9-3-1)

13.08.020 Grades on North Main and Bonanza Road.

The grades of the street and curbs along the rights-of-way of North Main Street and Bonanza Road, in the City, established by the Department of Highways of the State of Nevada, and shown on the plans thereof on file in the office of said department, entitled, respectively, "State of Nevada Department of Highways - Plan and Profile of Proposed State Highway - Federal Aid Project - Clark County, City of Las Vegas, Main Street (South 5th. St. to 1650 Ft. N.E. of North City Limits), Fremont St. Spur (Main Street to 5th St.), Project No. 87," and "State of Nevada Department of Highways - Plan and Profile of Proposed State Highway - Federal Aid Project - Clark County, Fifth Street Las Vegas to Charleston Park Road, Project No. 39," and approved by the State Highway Engineer and the Board of Directors of said Department on May 10, 1947, are adopted as the official grades for the street and curbs of said rights-of-way, as said rights-of-way are shown on said plans.
(Ord. 336 § 6, 1947: prior code § 9-3-2)

13.08.030 Conformance to designated grades and lines.

All existing curbs along the right-of-way of North Main Street, as said right-of-way is described in this Chapter, insofar as they do not conform to the provisions hereof, shall be relocated along the lines provided for herein; and curbs hereinafter constructed along said right-of-way shall be installed along the lines provided for herein. The existing grades of the street and curbs along the rights-of-way of North Main Street and Bonanza Road, as said rights-of way are shown on the aforesaid plans of the Department of Highways of the State, insofar as they do not conform to the provisions hereof, shall be readjusted to conform thereto, and the grades of the street and curbs along said rights-of-way shall hereafter be maintained as herein provided.
(Ord. 336 § 7, 1947: prior code § 9-3-3)

CHAPTER 13.12 PLANNED STREETS AND HIGHWAYS*

13.12.010 Purpose.

The purpose of this Chapter is to establish guidelines for planned streets and highways that correspond to and are in conformance with the element of the City's Master Plan that pertains to transportation and streets and highways.
(Ord. No. 6223, § 2, 10-17-12)

13.12.020 Map and schedule adopted.

Included within the element of the City's Master Plan that pertains to transportation and streets and highways are a map and a schedule pertaining to streets and highways. That map and schedule are presently referred to in the Plan element as the Master Plan of Streets and Highways Map and Schedule 13-1A. That map and schedule, together with subsequent amendments thereto, are hereby adopted by reference and made a part of this Chapter as if fully set forth herein. In this Chapter, that map shall be referred to as the "Map" and Schedule 13-1A as "Schedule 13-1A." To the extent the Map and Schedule 13-1A appear in the Plan element, they constitute part of the City's Master Plan for regional planning purposes. To the extent they are incorporated by reference in this Chapter 13.12, they are to function as part of the regulation of streets and highways encompassed by this Chapter in conjunction with the requirements of LVMC 19.02.130.
(Ord. No. 6223, § 2, 10-17-12)

13.12.030 Planned streets and highways—Designation.

"Planned streets and highways" shall denote streets and highways of importance to the City and on which preference is given to the through movement of traffic, taking into account the need to plan for long-term growth in general accordance with NRS Chapter 278. Planned streets and highways shall consist of the following streets and highways designated as such on the Map and on Schedule 13-1A:

(A) All highways designated as Federal highways;

(B) All highways designated as State highways, including the corresponding frontage roads;

(C) Section line roads designated by the Planning Commission; and

(D) Other streets and highways, existing or proposed, that have been so designated in order to carry out the purposes of this Chapter.

(Ord. No. 6223, § 2, 10-17-12)

***Editor's note—**Ord. No. 6223, § 1, adopted October 17, 2012, repealed the former Chapter 13.12, §§ 13.12.010—13.12.170, and § 2 of Ord. No. 6223 enacted a new Chapter 13.12 as set out herein. The former Chapter 13.12 pertained to similar subject matter and derived from Ord. No. 6199, adopted July 18, 2012.

13.12.040 Planned street and highways—Classification.

For the purposes of function, the planned streets and highways designated as such on the Map and on Schedule 13-1A are the following:

(A) Major thoroughfare:

(1) Freeway: A divided highway with one-hundred-fifty-foot-wide minimum right-of-way and classified as "controlled access"; a high-speed road with grade-separated interchanges.

(2) Expressway: A divided highway with a one-hundred-fifty-foot-wide minimum right-of-way and classified as "limited access"; a high-speed road with at-grade, cross-traffic intersections.

(B) Primary thoroughfare:

(1) Parkway arterial: A street or highway which has a minimum right-of-way width of one hundred twenty feet; an existing or potential design capacity of three or more travel lanes of traffic in each direction, divided by a landscape median; and, within the right-of-way, nineteen feet on each side of the roadway reserved for sidewalks and landscape.

(2) Primary arterial: A street or highway which has a minimum right-of-way width of one hundred six feet and an existing or potential design capacity of three travel lanes of traffic in each direction, divided by a raised median with left turn pockets. A primary arterial within a proposed development that is adjacent to existing improvements may have a lesser right-of-way width if the Director of Public Works, pursuant to LVMC 19.04.010, has determined that the complete streets standards set forth in Chapter 19.04 need not apply to that primary arterial street.

(C) Secondary thoroughfare:

(1) Major collector: A street or highway which has a minimum right-of-way width of eighty feet and an existing or potential design capacity of two travel lanes of traffic in each direction, with a center turn lane or a raised median with left turn pockets.

(Ord. No. 6223, § 2, 10-17-12)

13.12.050 Minor streets—Designated.

Minor streets shall include all streets not designated as planned streets and highways on the Map and on Schedule 13-1A.

(Ord. No. 6223, § 2, 10-17-12)

13.12.060 Minor streets—Classification—Plan applicability.

(A) For the purposes of function, minor streets are classified as follows:

(1) Minor collector: A street which has a minimum right-of-way width of sixty feet which collects traffic from local streets and distributes it to major collector or arterial streets.

(2) Residential street: A street with which is designed to carry residential traffic between minor collectors.

(3) Local street: Any street which is designed to a carry a combination of light commercial and residential traffic between minor collectors, major collectors and primary arterials that does not function as a collector or arterial.

(4) Local access or service road: A street or that portion of a major or secondary thoroughfare lying outside the principal roadway designed to provide frontage for individual lots and which primarily carries traffic having a destination or origin on the street itself.

(B) The locations of minor streets are not shown on the Map and on Schedule 13-1A, but such streets shall be subject to any provisions of this Chapter that apply to minor streets.
(Ord. No. 6223, § 2, 10-17-12)

13.12.070 Right-of-way—Minimum.

Except as otherwise provided in this Chapter, the minimum right-of-way widths which shall be provided for planned streets and highways shall be as follows:

Classification	*Minimum Right-of-Way Width (feet)*
Major thoroughfare	
Freeway or expressway	150
Primary thoroughfare	
Parkway arterial	120
Primary arterial	106 (subject to LVMC 13.12.040(B)(2))
Secondary thoroughfare	
Major collector	80

(Ord. No. 6223, § 2, 10-17-12)

13.12.080 Right-of-way—Exceptions to minimums.

Exceptions to the right-of-way minimums set forth in LVMC 13.12.070 shall be as shown on the Map and described on Schedule 13-1A.
(Ord. No. 6223, § 2, 10-17-12)

13.12.090 Right-of-way—Intersections of planned streets and highways.

The minimum right-of-way (property line) radii requirements and curbline radii requirements for intersections of planned streets and highways shall be in accordance with City Standards, as defined in the most recent editions of the Uniform Standard Specifications for Public Works Construction Off-Site Improvements, Clark County, Nevada, and the Standard Drawings for Public Works Construction Off-Site Improvements, Clark County, Nevada.

However, the minimum right-of-way radii for intersections of planned streets and highways within the area bounded by Eighth Street, Main Street, Bonanza Road and Charleston Boulevard shall be ten feet.
(Ord. No. 6223, § 2, 10-17-12)

13.12.100 Right-of-way—Greater requirements.

It is intended that the right-of-way widths set forth in LVMC 13.12.070 represent minimum requirements only and that wider rights-of-way or larger radii distances be provided where design criteria indicate the need therefor. In such cases, the wider rights-of-way shall be indicated on the Map and on Schedule 13-1A.
(Ord. No. 6223, § 2, 10-17-12)

13.12.110 Right-of-way—Exceptions by City Council.

The City Council may grant exceptions to the minimum right-of-way widths required by this Chapter, in addition to those described in this Chapter, where such exceptions are deemed necessary. Any proposed exceptions shall be processed as in the case of a General Plan Amendment under Title 19. Exceptions approved by the City Council shall thereafter be indicated on the Map and on Schedule 13-1A.
(Ord. No. 6223, § 2, 10-17-12)

13.12.120 Alignments.

(A) With respect to any planned street or highway located on a section line, the alignment and centerline generally will follow the section line. The Map displays the general locations of existing and planned roadway alignments, including alignments for streets or highways that do not follow a predetermined line. Actual alignments and centerlines are established by the design and construction of such roadways.

(B) Notwithstanding the general provisions of Subsection (A), actual alignments of roadways may vary from the Map and Schedule 13-1A by means of action taken under this Subsection (B). For any particular roadway, the City Council may establish a different alignment than that shown on the Map by means of an application processed as in the case of a General Plan Amendment under Title 19. Except as otherwise provided in Subsection (C), an alignment established by Council action under this Section shall thereafter be indicated on the Map and described on Schedule 13-1A.

(C) In master planned communities subject to a development agreement, alignments that are generally described in the development agreement or in development standards adopted in connection therewith need not be reflected on Schedule 13-1A.
(Ord. No. 6223, § 2, 10-17-12)

13.12.130 Subdivision, building and zoning regulation applicability.

The layout of subdivisions and setback requirements on land adjacent to planned streets and highways and minor streets, and the right-of-way widths of planned streets and highways

and minor streets, are set forth in the subdivision, building and zoning regulations contained in this Code. These rules and regulations have been prepared in order to further promote and aid in the development of planned streets and highways and minor streets, and for other purposes.
(Ord. No. 6223, § 2, 10-17-12)

13.12.140 Dedication width.

Whenever the owner or developer of property which abuts any proposed or existing planned street or highway (other than a freeway or expressway) is required by this Code, or by any other law or regulation, to dedicate land for a planned street or highway, the dedication shall consist of one-half the proposed right-of-way width, unless a different dedication width is designated on the Map and on Schedule 13-1A. Where the same person owns or develops the property on both sides of any proposed or existing planned street or highway, the required dedication shall be the entire right-of-way width. Any such dedication shall include, in addition to the above requirements, any additional right-of-way necessary:

(A) To conform to the property line radius as described in LVMC 13.12.090; and

(B) To conform to the requirements of the most recent version of the Clark County Area Uniform Standard Drawing 201.1.

(Ord. No. 6223, § 2, 10-17-12)

13.12.150 Discrepancies.

In the event of any discrepancy between the Map and Schedule 13-1A, the Director of Public Works is authorized to determine which document is correct. The document that is determined not be correct shall be corrected, or the documents otherwise reconciled, as follows:

(A) By administrative action of the Director where the document that is correct has been properly adopted; or

(B) By means of LVMC 13.12.160, otherwise.

(Ord. No. 6223, § 2, 10-17-12)

13.12.160 Amendments.

(A) Except as otherwise permitted under Subsection (B), the City Council may amend the Map and Schedule 13-1A from time to time by means of ordinance or resolution. Any amendment shall first be processed as in the case of a General Plan Amendment under Section 19.16.030 of the Unified Development Code.

(B) An amendment to the Map or Schedule 13-1A regarding particular streets within a master planned community that is or will be subject to a development agreement may be accomplished by means of the Council's adoption of development standards for that community, whether as part of the development agreement or otherwise in connection therewith.
(Ord. No. 6223, § 2, 10-17-12)

CHAPTER 13.16 CURB CUTS

13.16.010 Purpose.

The purpose of this Chapter is to standardize, regulate and control the location, size, type, construction, maintenance and quantity of curb cuts, driveway aprons, and sidewalk driveway crossings in the City from the standpoint of proper design, safe and efficient entry to and exit from city streets to private property, safety of vehicular traffic in the streets, and safety of pedestrian traffic on the sidewalk area.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 1, 1960: prior code § 9-13-1)

13.16.020 Definitions.

For the purpose of this Chapter, the following definitions shall apply:

"Alley" means a narrow public thoroughfare, providing access to the rears of the abutting properties.

"City specifications" means any and all improvement standards or other specifications that have been adopted by the City.

"Curb cut" means that portion of the street curbing that is removed and depressed to provide ingress to and egress from abutting property.

"Curb opening" means the total street curbing that is removed to place a curb cut and slopes.

"Curb return" means the curved portion of a street curb at street, alley or shopping center intersections.

"Driveway" means that area on private property where vehicles are operated, parked or allowed to stand.

"Driveway apron" means the area, construction or improvement between the curb opening or, if no curb exists, then between the roadway and private property, to provide ingress and egress for vehicles from the alley, street, roadway or highway to a definite area of the private property, such as a driveway, parking area or a building having an access opening at least eight feet wide, intended and used for the ingress and egress of vehicles.

"Intersection" means:

(A) The area embraced within the prolongation or connection of the lateral curblines or, if none, then the lateral boundary lines of the roadways of two highways which join each other at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(B) When a highway includes two roadways thirty feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes roadways thirty feet or more apart, then each crossing of two roadways of such highways shall be regarded as a separate intersection.

"Right-of-way" means public property dedicated for streets, alleys or other public uses.

"Roadway" means that portion of a street or highway improved, designed and customarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways, the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

"Shopping center" means an area of land consisting of twenty or more acres, developed into twenty or more facilities to service daily living needs of people, with integrated access and off-street parking area.

"Sidewalk" means that portion of a street between curblines or the outer lateral lines of a roadway, and the adjacent property lines, intended for use of pedestrians.

"Standard specifications" means the standards adopted pursuant to Section 13.44.010.

"Street" or "highway" means the entire width between the boundary lines of the right-of-way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

"Traffic" means pedestrians, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any street, alley, highway or roadway for purposes of travel.
(Ord. 5571 § 3, 2003: Ord. 1373 § 1 (part), 1968: Ord. 825 § 2, 1960: prior code § 9-13-2)

13.16.030 Permit.

It shall be unlawful for any person either as owner, agent, servant, contractor or employee, to cut, break, remove, or alter any curbing, driveway apron, or sidewalk, or cause to have cut, broken or removed any curbing, driveway apron, or sidewalk, or to install or cause to have installed any driveway within or upon any public right-of-way in the City without a permit. Permits shall be issued only to properly licensed contractors by the Department of Public Works after payment of fees as set forth in the schedule of fees adopted pursuant to Section 13.40.050. In connection with the issuance of a permit, the City is authorized to establish and collect an additional fee to cover work that was previously performed by or on behalf of the applicant without the benefit of a valid permit.
(Ord. 5571 § 4, 2003: Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 3.1, 1960: prior code § 9-13-3 (part))

13.16.040 Notice of improvements, installations in the way.

At the time the permit application is made, the City Traffic Engineer shall be advised of any parking meters, traffic or street signs, signal poles, street light poles, fire hydrants or obstructions that will be affected by the placement or removal of the driveway or sidewalk.
(Ord. 5571 § 5, 2003: Ord. 1373 § 1 (part), 1968: Ord. 825 § 3.2, 1960: prior code § 9-13-3 (part))

13.16.050 Consent of property owners.

Before a permit is granted for the breaking of the curb and the construction of a driveway on any street having Portland cement concrete curbs constructed thereon, the applicant for the driveway permit must produce evidence satisfactory to the Director of Public Works to show that the construction of such driveway is agreeable to and in accordance with the desire of the owners of the property to which such driveway will be an entrance.
(Ord. 5571 § 6, 2003: Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 4, 1960: prior code § 9-13-4)

13.16.060 Fees.

Permit, inspection and service fees shall be charged by the City in accordance with the schedule of fees adopted pursuant to Section 13.40.050.
(Ord. 5571 § 7, 2003: Ord. 1373 § 1 (part), 1968: Ord. 1319 § 2, 1968: Ord. 825 § 5, 1960: prior code § 9-13-5)

13.16.070 Inspection.

The Director of Public Works shall furnish an inspector to inspect every piece of curb, driveway and driveway apron to be constructed, whose duties shall be to check the forms for alignment, grade and materials and to see that the work is done in accordance with the specifications of the City at the time of the issuance of the permit.
(Ord. 5571 § 8, 2003: Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 7.1, 1960: prior code § 9-13-6)

13.16.080 Start-of-work notice.

The Director of Public Works shall be notified at least twenty-four hours in advance of the time when the work is proposed to be started.
(Ord. 5571 § 9, 2003: Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 7.2, 1960: prior code § 9-13-6 (part))

13.16.090 Length—By zoning district.

(A) In the R-1, RPD and R-MH Zoning Districts, the maximum depressed curb cut length shall be eighteen feet and shall be located in accordance with City Specifications or Drawings.

(B) In all other residential zoning districts, the maximum depressed curb cut length shall not exceed twenty-five feet and shall be located in accordance with City Specifications or Drawings.

(C) In nonresidential zoning districts, the maximum depressed curb cut length shall be thirty-two feet and shall be located in accordance with City Specifications and Drawings.
(Ord. 5204 § 7, 2000: Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 8, 1960: prior code § 9-13-7(A, B, C))

13.16.100 Length—Minimum.

In all allowable curb cut lengths, no depressed curb cut shall be less than twelve feet wide.
(Ord. 1373 § 1 (part), 1968: prior code § 9-13-7(D))

13.16.110 Shopping centers.

Curb cuts for shopping centers, as defined in Section 13.16.020(J), whenever the main entrance is located within a street intersection, may be designed and constructed as shown in the applicable Standard Specification.
(Ord. 5571 § 10, 2003: Edited during recodification; Ord. 1373 § 1 (part), 1968: prior code § 9-13-7(E))

13.16.120 General regulations designated.

Every curb cut and driveway apron constructed or altered in the street right-of-way shall conform to the regulations set out through Section 13.16.260.
(Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.1, 1960: prior code § 9-13-8(part))

13.16.130 Distance from side property line.

No curb cut shall be constructed closer than six feet from the side property line or as may be regulated by City Specifications in effect at the time of such work.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.11, 1960: prior code § 9-13-8 (A))

13.16.140 Interference with public improvements, installations.

No curb cut shall be closer than six feet to, nor shall be so located as to interfere with, intersecting sidewalks, utility facilities, light standards, fire hydrants, catchbasins, street signs, signals or other public improvements or installations.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.12, 1960: prior code § 9-13-8(B))

13.16.150 Adjustments to public improvements, installations.

Any necessary adjustments to such utility facilities, light standards, fire hydrants, catch basins, street signs, signals, underground conduits for street lighting or fire alarm systems, or other public improvements or installations, shall be accomplished without cost to the City.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.13, 1960: prior code § 9-13-8(C))

13.16.160 Curb-return orientation.

No curb cut shall be made between the points of curvature of any curb return at intersections, or closer than seven feet from the said point of curvature.
(Ord. 5571 § 11, 2003: Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.14, 1960: prior code § 9-13-8(D))

13.16.170 Hazard to traffic.

No curb cut or driveway apron shall be located so as to create a hazard to pedestrians or motorists, or to invite or compel illegal or unsafe traffic movements.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.15, 1960: prior code § 9-13-8(E))

13.16.180 Access completeness.

Every curb cut and/or driveway apron must provide complete access to a parking space, building or loading dock on private property requiring the entrance of vehicles.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.15, 1960: prior code § 9-13-8(F))

13.16.190 Design for backing egress.

In R-2, R-3, R-4, R-5, R-6 and R-MHP District commercial and industrial off-site parking lots, the designs shall be such that vehicles egressing shall not be required to back out into a roadway or driving lane.
(Ord. 1873 § 1 (part), 1977: Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.16, 1960: prior code § 9-13-8(G))

13.16.200 Concrete—Aprons required.

All curb cuts and driveway aprons are to be constructed of Portland cement concrete of a quality and type as specified by the Department of Public Works, and in accordance with City Specifications in effect at the time of such work. Curb cuts shall be permitted only with construction of adjoining Portland cement concrete aprons having minimum width of five feet.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.17, 1960: prior code § 9-13-8(H))

13.16.210 City supervision—City Specifications.

All work shall be done under the supervision of the Department of Public Works and in accordance with City Specifications in effect at the time of such work.
(Ord. 5571 § 13, 2003: Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.18, 1960: prior code § 9-13-8(I))

13.16.220 Safety measures—Nonliability.

The licensed contractor or his agent doing the construction or alteration work shall maintain the premises in a safe manner and shall provide adequate barricades and lights at his own expense to protect the safety of the public using the adjacent streets or sidewalks, and shall hold the City free from any damages incurred by his operations.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.19, 1960: prior code § 9-13-8(J))

13.16.230 Driveway-street/curbline angle.

The angle between any driveway and the street and/or curbline shall be ninety degrees to the street tangent or on a radial line to the street curve.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.20, 1960: prior code § 9-13-8 (K))

13.16.240 Apron border parallelism.

The two side borders of each driveway apron between the curbline and property line shall be parallel.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.21, 1960: prior code § 9-13-8(L))

13.16.250 Right-of-way encroachment.

City street rights-of-way may not be used for private commercial purposes. A permit for the construction of a curb cut driveway shall not be issued unless vehicles which will use said driveway can be parked entirely within the private property lines.
(Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.22, 1960: prior code § 9-13-8(M))

13.16.260 Abandonment.

Any curb cut or driveway apron which has become abandoned or unused through a change of the conditions for which it was originally intended, or which is unauthorized and ineligible for a permit, shall be closed and the owner shall replace any such curb cut and/or driveway apron with a standard curb and sidewalk, if necessary, to be constructed according to the City Specifications in effect at the time of such work. In the event the owner does not make such

replacement within sixty days after notice, the City may do so at the expense of the owner. The City is authorized to charge the owner the cost of the work, and may calculate the cost in the same way that the cost of extra and force account work is determined and charged under Section 109.03 of the Standard Specifications. The City may collect the amount so charged by any available means, including by making the amount a charge against the abutting property and recording an appropriate lien against the property.
(Ord. 5571 § 14, 2003: Ord. 1373 § 1 (part), 1968: Ord. 825 § 9.23, 1960: prior code § 9-13-8(N))

13.16.270 Restrictions in certain zones.

In addition to the general regulations prescribed in Section 13.16.120 et seq., curb cuts and driveway aprons to be constructed or altered in C-C, C-1, C-2, N-U, R-A, R-E, R-1, R-D, R-PD, R-MH, R-2, R-3, R-4, R-5, R-6, R-MHP, P-R, C-D, C-M, M, and C-V Districts must conform to the following:

(A) Where a property abuts more than one City street and/or alley, the maximum curb cut permitted on each street and/or alley shall be considered separately and shall be governed by the frontage of the property on that street and/or alley only.

(B) Two or more curb cuts serving the same property must be separated by islands with full height curb not less than twenty feet long.

(C) Where a property width is sixty feet or less, joint curb cut with an adjoining property of sixty feet or less may be constructed at a maximum width of twenty-five feet. Both property owners must be in agreement to a joint curb cut.

(Ord. 1873 § 1 (part), 1977; Ord. 1373 § 1 (part), 1968: Ord. 825 § 10, 1960: prior code § 9-13-9)

13.16.280 Waiver requirements.

The City Council may waive any requirement of this Chapter for good cause, unless the granting of the waiver would cause undue hardship to neighboring properties. The applicant for a waiver has the burden to demonstrate the need for and appropriateness of the waiver. The City Council may consider a waiver application directly or may refer the application to the Traffic and Parking Commission for its recommendation. The Director of Public Works shall establish a procedure and form for processing waiver applications.
(Ord. 5571 §§ 15, 16, 2003)

CHAPTER 13.20 EXCAVATIONS

13.20.010 Time restrictions on work in streets.

(A) For purposes of this Chapter, the term "emergency work" means work performed by the owner or operator of a utility, by any governmental entity, or by persons authorized to perform work within the City rights-of-way that must be performed or that will compromise the health, safety and welfare of the public if not performed and completed as soon as possible, even if such completion requires continuous repairs at times other than normal working hours.

(B) The City Traffic Engineer shall establish and maintain a schedule of time restrictions applicable to work to be performed on City streets. Except for emergency work, no work may be performed in the travel lanes of any street except in accordance with the schedule.

(C) The schedule described in Subsection (B) may be amended from time to time as necessary by the City Traffic Engineer. No amendment to the schedule shall become effective without at least ten days' notice to the general contractor performing the construction work.

(D) The Director of Public Works, or the Director's designee, may waive the time restrictions set forth in this Section if the health, safety or welfare of the public is not adversely affected and if the work to be performed:

(1) Is not within two hundred fifty feet of a residential dwelling;

(2) Will not unnecessarily disrupt traffic flow;

(3) Requires materials that are not readily available during the restricted time periods;

(4) Would not significantly disrupt traffic flow during the restricted time periods any more than during the unrestricted time periods;

(5) Necessitates that such work be accomplished at different time periods than those specified herein; or

(6) Can be completed in whole or in part with more intense construction activity that shortens the overall length of the traffic disruption.

(E) If the Director of Public Works denies a waiver of the time restrictions, the applicant may appeal the decision to the City Council within ten days after the decision is made. The appeal shall be in writing, shall be filed with the Director, and shall state the factual basis for the appeal. The Director shall, within thirty days thereafter, place the matter before the City Council, whose decision shall be final.
(Ord. 5571 § 17, 2003: Ord. 4006 § 1, 1996)

13.20.020 Permit—Obtaining—Emergencies.

An excavation permit shall be secured from the Department of Public Works before any person makes any excavation in any public street, alley, or easement. Permits must be secured at least twenty-four hours prior to the beginning of the excavation; provided, however, that if an emergency arises necessitating an immediate excavation during the hours when the Department of Public Works is not open for business, the person making such excavation shall notify the Metropolitan Police and Fire Services Departments, giving the location of the excavation, the time when the same will be made, and the extent thereof. A permit shall be secured from the Department of Public Works on the next succeeding business day, whether the emergency work has been completed or not, which shall be granted if the applicant complies with the provisions of Section 13.20.060.
(Ord. 2236 § 2 (part), 1981: Ord. 845 § 1, 1960: Ord. 662 § 1, 1955: prior code § 9-4-1)

13.20.030 Bond.

Any person obtaining a permit for any of the purposes designated in Section 13.20.020 shall, before commencing work upon or in any manner changing the surface of the street, highway, avenue or alley, execute to the City a bond to be approved by the City Engineer, in such sum as shall be designated by the City Engineer as necessary for the proper protection of the City, conditioned that the obligors of such bond will pay to the City the amount of the bond, should the person obtaining such permit fail, neglect or refuse to complete the excavating, grading, paving, leveling, repairing, sidewalking, crosswalking or filling in the public street, highway, avenue, or alley for which such permit was obtained, within the time stated in the permit, or fail, neglect or refuse to restore the street, highway, avenue or alley in proper condition to the satisfaction of the City Engineer after the work provided for in the permit has been finished, and to keep the same in such condition for at least six months thereafter, reasonable wear thereof excepted, refilling any such excavation during such time, whenever and wherever it may sink or settle below the surface of the street, alley, sidewalk, highway, avenue or place, and without notice to do so from the City Engineer; provided, however, that instead of special bonds to cover particular work, any person intending to make excavations in public streets, alleys, or any public places in the City may make and maintain with the City a general bond in the sum of fifty thousand dollars, which general bond shall be conditioned and used for the same purpose as the special bond hereinbefore described in this Section, covering all work to be done instead of any particular piece of work; and while such general bond is maintained at the sum of fifty thousand dollars, such person shall not be required to make the special bond hereinbefore in this Section provided, but shall be required to comply with all the other provisions of this Chapter.
(Ord. 5571 § 18, 2003: Ord. 2040 § 1 (part), 1979: Ord. 173 § 2 (part), 1931: prior code § 9-1-14)

13.20.040 Deposit instead of bond.

Instead of executing the special bond required by Section 13.20.030, a deposit in money in the same amount may be made with the City Engineer, to be held under the same conditions as provided for such bond, except that when such excavation is refilled and the surface of the street, alley, sidewalk, highway, public square or place is restored as provided for herein, one-half of such deposit shall be returned and the other one-half of such deposit shall be retained for a period of six months after the completion of the excavation; and at the expiration of such time shall be returned to the person so depositing the same; provided, further, that the City Engineer may use any part or all of such deposit in restoring and in maintaining, at a reasonable cost, such street, alley, sidewalk, highway, public square or place, as required in Section 13.20.030, whenever the person making such excavation fails or neglects to comply with the requirements of such Section.
(Ord. 2040 § 1 (part), 1979: Ord. 173 § 2 (part), 1931: prior code § 9-1-15)

13.20.050 Fees.

The City is authorized to charge fees in connection with each permit issued. The fees shall be in accordance with the schedule of fees adopted pursuant to Section 13.40.050, and may

include without limitation fees related to the restoration of streets, alleys, public ways, and easements to City specifications following excavation for sewer, water, gas or other public utility purposes. Such fees shall take into account the size of the excavation and the type of pavement in existence at the time of excavation. For purposes of this Section, "City standards" include the standards adopted pursuant to Section 13.44.010 and any all other improvement standards or specifications that have been adopted by the City.
(Ord. 5571 § 20, 2003)

13.20.060 Permit issuance.

A permit shall be issued to an applicant if:

(A) The applicant has filled out an application for a permit stating the time and location of the excavation;

(B) The plans for the proposed excavation have been approved by the Department of Public Works;

(C) A bond or deposit in lieu of bond has been made according to the provisions of Sections 13.20.030 and 13.20.040;

(D) The excavation will not unreasonably interfere with vehicular and pedestrian traffic, the demand and necessity for parking spaces, and the ingress and egress from the affected or adjacent properties;

(E) The health, safety and welfare of the public will not be unreasonably impaired; and

(F) The applicant has submitted a traffic barricade plan and has obtained approval of the plan from the City Traffic Engineer.
(Ord. 5571 § 21, 2003: Ord. 2236 § 2 (part), 1981: prior code § 9-4-8)

13.20.080 Standards and specifications.

(A) All excavations shall be made and completed in accordance with the standard specifications adopted pursuant to Section 13.44.010.

(B) All pavement cuts shall be made by power saw, leaving vertical edges.

(C) Backfill shall be as specified by the applicable provisions of the Standard Specifications adopted pursuant to Section 13.44.010.

(D) All trenches shall be made safe to pedestrian and vehicle traffic from start to completion of work.

(E) Pavement surface patch shall be placed in accordance with the applicable provisions of the standard specifications adopted pursuant to Section 13.44.010.
(Ord. 5571 § 23, 2003: Ord. 2236 § 2 (part), 1981: Ord. 845 § 3, 1960: Ord. 662 § 3, 1955: prior code § 9-4-3)

13.20.110 Barricades, lights, signs.

(A) Excavations in the City right-of-way shall be properly protected by barricade methods as provided under the manual entitled the "Manual on Uniform Traffic Control Devices," in the version adopted by the Nevada Department of Transportation pursuant to NAC 408.411. Any person maintaining improper barricades within street rights-of-way which require the placing of additional barricades, warning lights or signs by the City in the interest of public safety shall be charged a fee for each occasion in which the City finds it necessary to place the barricades. The City Traffic Engineer shall bill the responsible party according to a fee schedule established by the City pursuant to Section 13.40.050.

(B) The City is authorized to charge fees related to the placement of traffic barricades in accordance with the fee schedule established pursuant to Section 13.40.050. The fees may include, without limitation, fees relating to the approval and renewal of traffic barricade plans, and the fees described in this Section.

(C) Where barricades or other traffic-control devices are left within the travel lanes or sidewalk areas of a right-of-way for longer than the period authorized by a permit, the City is authorized to charge a correction fee and lane/sidewalk rental fees, including fees charged on a per-unit of equipment basis, in accordance with the fee schedule established pursuant to Section 13.40.050.

(D) The City is authorized to charge fees related to the patching and resurfacing of pavement that is cut or disturbed in connection with utility installations and other development-related work. The fees may include the costs of slurry seal installation, asphalt resurfacing or reinstallation, or may be based upon reimbursement for lost value. The fees shall be in accordance with the fee schedule established pursuant to Section 13.40.050.
(Ord. 5571 § 25, 2003: Ord. 3201 § 1, 1985: Ord. 2236 § 2 (part), 1981: Ord. 1253 § 2, 1966: Ord. 845 § 7, 1960: prior code § 9-4-7)

13.20.130 Drains connected with public sewer.

Whenever any excavation as mentioned in the preceding sections is made for the purposes of connecting a drain with a public sewer or repairing a drain connected with a public sewer, before beginning such excavation, such person, firm, association or corporation shall notify the Department of Public Works of the place where, and the time when such excavation is to be made, and such excavation and filling shall be made under his direction. In such cases the provisions of the foregoing sections and of this Chapter shall apply in all respects, except as to the making of the deposit and the execution of the bond as therein specified, no bond or deposit being required in such cases, but in addition to the penalty provided in this Code, the City may recover against the person, firm, association or corporation in a civil action in a court of competent jurisdiction for all damage or injury, direct or indirect, which the City may suffer by reason of the failure, neglect or refusal of the person, firm, association or corporation making such excavation to strictly comply with the provisions of this Chapter.
(Ord. 5571 § 26, 2003: Edited during recodification; Ord. 173 § 3, 1931)

CHAPTER 13.24 NEWS RACKS*

Article I. Generally

13.24.010 Definitions.

For the purpose of this Chapter, certain words and phrases shall be construed herein as set forth in this Section, unless it is apparent from the context that a different meaning is intended:

"Block" or "block face" means one side of a street between two consecutive intersecting streets.

"Director" means the Director of Public Works or his designee.

"News rack" means any self-service or coin-operated box, containers, storage unit or other dispenser installed, used, or maintained for the displaying or dispensing of newspapers, news periodicals, magazines or other publications.

"Parkway" means that area between the sidewalks and the curb of any street, and where there is no sidewalk, that area between the edge of the roadway and the property line adjacent thereto. "Parkway" also includes any area within a roadway which is not open to vehicular travel.

"Roadway" means that portion of a street improved, designed, or ordinarily used for vehicular travel.

"Sidewalk" means any surface provided for the exclusive use of pedestrians.

"Street" means all that area dedicated to public use for public street purposes and shall include, but not be limited to, roadways, parkways, alleys and sidewalks.

"Zone A" means the area described in Section 13.24.150.
(Ord. 5571 § 27, 2003: Ord. 5110 § 1, 1998: Ord. 1863 § 1, 1976: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-1)

13.24.015 Applicability.

The provisions of this Chapter do not apply to news racks within the boundaries of the Fremont Street Experience pedestrian mall, as described in LVMC 11.68.040. The location and design of news racks within the pedestrian mall, and the allocation of news rack locations, are governed by the Fremont Street Experience Limited Liability Company in accordance with its news rack plan.
(Ord. 5110 § 2, 1998)

***Cross reference—**For other provisions on news racks, see Ch. 13.32 of this Code.

13.24.020 Identification on news rack.

(A) Every person or other entity which places or maintains a news rack on a public sidewalk or parkway of the City shall:

(1) Obtain from the City a permit sticker for that news rack in accordance with Subsection (B) of this Section;

(2) Affix to the news rack, in a prominent location so as to be readily visible from the adjacent roadway, the permit sticker referred to in Paragraph (1) above;

(3) Affix to the news rack, in a prominent location so as to be readily visible but limited to an area no greater than six square inches, the name, address and telephone number of the persons or entities responsible for the placement and maintenance of the news rack; and

(4) Maintain in place and in readable condition the permit sticker and other information affixed to the news rack in accordance with this Subsection (A).

(B) Permit stickers for authorized news racks will be issued by the City on an annual basis, or as needed. In accordance with Section 13.24.025, the Director is authorized to charge a fee for each initial, renewal or replacement permit sticker, and the fee must be paid in order to obtain such a sticker. A permit sticker must be affixed to the news rack to which it pertains within thirty days after its issuance.
(Ord. No. 6138, § 1, 4-6-11; Ord. 5110 § 3, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-5)

13.24.025 News rack fees.

(A) The Director is authorized to charge the following fees under this Chapter:

(1) A nonrefundable permit sticker fee of fifty dollars for each initial, renewal or replacement permit sticker issued under Section 13.24.020.

(2) A nonrefundable application fee of two dollars for each application submitted under Section 13.24.085 or 13.24.210, or two dollars for each location applied for if the Director accepts multi-location applications.

(B) The fees authorized by this Section are intended, and may only be used, to partially offset the costs of processing applications, issuing permit stickers, and administering and enforcing this Chapter.

(C) Upon the request of an owner or operator with more than one hundred news racks, the Director may authorize the owner or operator to pay the sticker fees described in Subsection (A) in installments rather than requiring full payment before issuance. The authorization shall be in the form of a written agreement approved by the Director, which may contain provisions that provide a remedy in the event timely payments are not made. Such provisions may include without limitation provisions authorizing the suspension or revocation of permit stickers and the removal of news racks.
(Ord. No. 6138, § 2, 4-6-11)

13.24.030 Insurance.

Every person or other entity which places or maintains a news rack on a public sidewalk or parkway in the City shall provide and keep in force during the time that such news rack is allowed to remain on public property, a policy of public liability insurance, naming the City as an additional insured, in an amount not less than two hundred thousand dollars combined single limit for any injury to persons and/or damage to property for reason of the installation, use and maintenance of such news racks on public property. Said policy shall provide that the insurance coverage shall not be cancelled or reduced by the insurance carrier without the City having been given thirty days prior written notice thereof by such carrier.
(Ord. 5110 § 4, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-7)

13.24.040 Projection or placement on roadway.

No person shall install, use or maintain any news rack which projects onto, into or over any part of the roadway of any public street, or which rests, wholly or in part, upon, along or over any portion of the roadway of any public street.
(Ord. 1843 § 1 (part), 1976: prior code § 9-12A-2)

13.24.050 Dangerous or obstructing placement.

No person shall install, use or maintain any news rack which in whole or in part rests upon, in or over any public sidewalk or parkway when:

(A) Such installation, use or maintenance endangers the safety of persons or property, or when such site or location is used for public utility purposes, public transportation purposes, or other governmental use, or when such news rack unreasonably interferes with or impedes the flow of pedestrian or vehicular traffic, including the ingress into or egress from any residence, place of business, or any legally parked or stopped vehicle or interferes with the use, service or maintenance of poles, posts, traffic signs or signals, hydrants, mailboxes, trash receptacles, or other objects permitted at or near said location;

(B) The news rack has not been authorized by the issuance of an identification number; or

(C) The news rack has been installed at a location other than that authorized for the installation of that news rack, or is not in compliance with the assigned location information on file with the Department.

(Ord. 5110 § 5, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-3)

13.24.060 Standards for sidewalk or parkway placement.

Any news rack which in whole or in part rests upon, in or over any public sidewalk or parkway, shall comply with the standards set out through Section 13.24.130.
(Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4 (part))

13.24.070 Dimensions.

No news rack shall exceed five feet in height, thirty-two inches in width, or eighteen inches in depth. No news rack shall weigh more than one hundred twenty pounds, exclusive of contents.
(Ord. 5110 § 6, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(A))

13.24.080 Orientation to curb, building, opposite racks.

News racks shall only be placed near a curb or adjacent to the wall of a building. News racks placed near the curb shall be placed parallel to the curb and no less than eighteen inches nor more than twenty-four inches from the face of the curb. News racks placed adjacent to the wall of a building shall be placed parallel to such wall and not more than six inches from the wall. No news rack shall be placed or maintained opposite another news rack on the same sidewalk in the same block unless it is more than fifty feet from the nearest opposite news rack.
(Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(B))

13.24.083 Placement of news racks outside of Zone A—Application.

(A) Within ninety days after the effective date of the ordinance codified in this chapter, each publication, person or other entity desiring to maintain one or more existing news racks, or to place one or more new news racks, outside of Zone A shall file an application with the Director, indicating those locations at which it desires to have news racks. The application shall be made on a form established by the Director.

(B) In order to be considered complete, an application must include or be accompanied by:

(1) Evidence that the insurance requirements of this Chapter will be met regarding each news rack to be assigned to the applicant;

(2) Evidence that the owner of the news racks, and any publications to be displayed in those news racks, have obtained business licenses to operate in the City, or are exempt from licensing requirements; and

(3) A listing of all publications to be displayed in each news rack.

(C) Based upon the applications received and the standards and procedures set forth in this Section, the Director shall assign specific news rack locations as follows:

(1) News racks which are existing as of October 14, 1998, and which are in compliance with all requirements of this Chapter (other than the approval of locations and issuance of identification numbers, and the block-face limitation contained in Subsection (A) of Section 13.24.090), or which were brought into compliance therewith within thirty days after the effective date of said ordinance, shall be allowed to remain until abandoned or removed by the owner or otherwise removed in accordance with this Chapter. News racks for which applications for locations were on file on October 14, 1998, may be assigned locations irrespective of the block-face limitation contained in Subsection (A) of Section 13.24.090, provided they comply with all other requirements of this Chapter.

(2) For each block face for which applications have been filed and for which additional locations are still available after the ninety-day period referred to in Section 13.24.083, the Director shall assign any remaining locations. For any block face concerning which the number of applications for that block face do not exceed the available locations, the assignment of locations shall be according to the order in which the applications were filed and deemed to be complete in accordance with Subsection (B) of this Section.

(3) For any block face concerning which more locations are applied for than are available, the Director shall assign remaining locations by placing into a container the names of all publications competing for the location. Names shall be drawn from the container, one at a time, until the remaining number of unassigned locations on the block face have been assigned. The drawing shall be open to the public.

(Ord. 5110 § 7, 1998)

13.24.085 Procedure for permitting locations for news racks outside of Zone A.

The procedure for permitting locations for news racks outside of Zone A shall be repeated annually on the second Thursday of February for those locations where there is competition between publications seeking to locate on a particular block face. The Director shall establish such submittal and deadline requirements as may be necessary in order to accomplish the purposes of this Section each year.

(Ord. 5110 § 8, 1998)

13.24.090 Adjacent placement.

(A) Except as otherwise provided in this Chapter, no more than six news racks may occupy a single block face.

(B) No single publication may be made available in more than one news rack within the same block face.

Ord. 5110 § 9, 1998: (Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(C))

13.24.095 Placement—Authorization—Forfeiture.

(A) The placement of news racks within the City shall be under the direction of the Director of Public Works. In the case of a news rack which has been approved pursuant to this Chapter, if the owner or other person who is authorized to place the news rack fails to occupy that location for a period of fifteen days after notice, the Director of Public Works may declare a forfeiture of the approval and allow other persons to occupy the location with news racks. Notification shall be deemed complete upon depositing same with the U.S. Mail Service using the address supplied to the Department of Public Works by the person securing the location.

(B) Except as otherwise permitted in this Chapter, no person may place, remove or stock a news rack unless that person is the owner of the news rack; the owner of a publication authorized to be placed therein; a principal, employee of such owner; or a properly-licensed independent contractor or other authorized agent of such owner.

(Ord. 5110 § 10, 1998)

13.24.100 Method of joining.

News racks may not be chained together but may be bolted or clamped to one another, provided that:

(A) No more than four news racks are joined together in this manner;

(B) A space of no less than four feet separates each group of news racks; and

(C) The owners of the affected news racks consent in writing to the joining and to the manner thereof.

(Ord. 5110 § 11, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(D))

13.24.110 Prohibited locations.

Notwithstanding any other provision of this Chapter, no news racks shall be placed, installed, used or maintained:

(A) Within five feet of any marked crosswalk;

(B) Within seventeen feet of the curb return of any unmarked crosswalk;

(C) Within five feet of any fire hydrant, fire call box, police call box or other emergency facility;

(D) Within five feet of any driveway or alley;

(E) Within twenty-five feet ahead of, and five feet to the rear of, any sign marking a designated bus stop;

(F) Within six feet of any bus bench;

(G) In such a manner as to impede or interfere with the reasonable use of a window used for display purposes;

(H) In such a manner as to be affixed to any sidewalk, street or other City property, except as provided in LVMC 13.24.115;

(I) Within six feet of the boundary of the Fremont Street Experience pedestrian mall, as described in LVMC 11.68.040; or

(J) Without displaying thereon the information and identification number described in Section 13.24.020.

(Ord. No. 6138, § 3, 4-6-11; Ord. 5110 § 12, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(E))

13.24.115 Installation—Placement.

(A) A news rack may be affixed to a sidewalk by bolts or other similar means if:

(1) The means of doing so is approved by the Director or is in accordance with a standard established by the Director; and

(2) The installation is performed in a manner that does not disturb the integrity of the sidewalk and that will allow the news rack to be removed without damage to the sidewalk.

(B) The person responsible for the placement of a news rack under this Section shall be responsible for any damage to the sidewalk that may remain after the news rack is removed and shall ensure that the sidewalk is restored to a safe and serviceable condition.
(Ord. No. 6138, § 4, 4-6-11)

13.24.120 Advertising—Cards.

No news rack shall be used for advertising or display purposes except that news rack cards may be used to advertise the publication sold therein and the name of the publication may appear on the display window.
(Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(F))

13.24.130 Maintenance.

(A) Each news rack shall be maintained in a clean, neat and attractive condition and in good repair at all times, and shall be free from graffiti, rust, broken parts, litter, sharp edges, and chipped or peeling surfaces.

(B) All publications shall be contained within the enclosed container portion of a news rack. No publication or other material shall be placed on top of or under the news rack or fastened to the outside of the news rack in any manner. No more than one publication may be displayed or made available within any news rack other than a multi-pocket news rack. Any violation of this Subsection may be immediately corrected by the Director of Public Works or his agent.
(Ord. 5110 § 13, 1998: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-4(G))

13.24.135 Change in status or information.

It shall be the ongoing responsibility of each news rack to notify the Director, in advance, of any change in the status or information described in Sections 13.24.083(B) and 13.24.200(B). The Director may take appropriate action to withhold action, to deny or to rescind previous approval action if the change in status or information would disqualify or prohibit the news rack under the provisions of this Chapter or the allocation of news rack locations thereunder.
(Ord. 5110 § 14, 1998)

Article II. Special Zone A Restrictions

13.24.140 Conformance required.

In addition to the other provisions of this Chapter no news rack may be placed in the area of the City identified as Zone A, described in Section 13.24.150, unless they shall comply with the provisions of this Article.
(Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6 (part))

13.24.150 Zone A designated.

The area of the City included in the boundary beginning at the center point of the intersection of the centerline of 7th Street with the projected line of the North side of the sidewalk area on the North side of Stewart Avenue and proceeding West down the North side of the sidewalk area on the North side of said Stewart Avenue to its projected intersection with the West side of the sidewalk area on the West side of Main Street, thence South to a point where the South side of the sidewalk area on the South side of Carson Avenue projected intersects with the West side of the sidewalk area on the West side of South Main Street, thence East down the South side of the sidewalk area on the South side of Carson Avenue to the West side of the sidewalk area on the West side of Las Vegas Boulevard South, thence South to a point where the center of Sahara Avenue intersects with the projected line of the West side of the sidewalk area on the West side of Las Vegas Boulevard South, thence proceeding East down the center of said Sahara Avenue to the East side of the sidewalk area on the East side of Las Vegas Boulevard South, thence North to a point where the East side of the sidewalk area on the East of Las Vegas Boulevard South intersects with the South side of the sidewalk area on the South side of Carson Avenue, thence East to a point where the South side of the sidewalk area on the South side of Carson Avenue projected intersects with the center of South 7th Street, thence North to the point of beginning.
(Ord. 3041 § 1, 1983: Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6 (part))

13.24.160 Design and appearance.

All news racks must be of similar design and appearance in accordance with the standards on file in the Office of the Director of Public Works and approved by the City Council by resolution.
(Ord. 5110 § 15, 1998: Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6(A))

13.24.170 Installation manner.

All news racks must be installed on steel or other durable frames and in the manner as set forth in the standards on file in the Office of the Director of Public Works approved by the City Council by resolution.
(Ord. 5110 § 16, 1998: Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6(B))

13.24.180 Placement permits extension.

The placement of a news rack in Zone A shall be deemed to be a grant of permission and consent for others to attach to or extend the frames of such news rack to allow for placement of additional news racks adjacent thereto.
(Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6(C))

13.24.190 Removal.

The Director of Public Works shall first be notified prior to the removal of any news rack in Zone A. Any person removing a news rack shall also remove its base in such a manner as to ensure that any remaining news racks will not be damaged or disturbed and that they will have adequate support.
(Ord. 5110 § 18, 1998: Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6(D))

13.24.200 Placement of news racks within Zone A—Application.

(A) Within ninety days after the effective date of this Ordinance, each publication, person or other entity desiring to maintain one or more existing news racks, or to place one or more new news racks, within Zone A shall file an application with the Director, indicating those locations at which it desires to have news racks. The application shall be made on a form established by the Director.

(B) In order to be considered complete, an application must include or be accompanied by:

(1) Evidence that the insurance requirements of this Chapter will be met regarding each news rack to be assigned to the applicant;

(2) Evidence that the owner of the news racks, and any publications to be displayed in those news racks, have obtained business licenses to operate in the City, or are exempt from licensing requirements; and

(3) A listing of all publications to be displayed in each news rack.
(Ord. 5110 § 20, 1998)

13.24.210 Assignment of locations.

(A) In assigning news rack locations within Zone A, the Director shall follow the procedures and criteria set forth in this Section.

(B) Based upon the applications received and the standards and procedures set forth in this Section, the Director shall assign specific news rack locations as follows:

(1) News racks which are existing as of October 14, 1998, and which are in compliance with all requirements of this Chapter (other than the approval of locations and issuance of identification numbers, and the block-face limitation contained in Subsection (A) of Section 13.24.090), or which were brought into compliance therewith within thirty days after the effective date of the ordinance codified in this Chapter, shall be allowed to remain until abandoned or removed by the owner or otherwise removed in accordance with this Chapter. News racks for which applications for locations were on file on October 14, 1998, may be assigned locations irrespective of the block-face limitation contained in Subsection (A) of Section 13.24.090, provided they comply with all other requirements of this Chapter.

(2) For each block face for which applications have been filed and for which additional locations are still available after the ninety-day period referred to in Section 13.24.200, the Director shall assign any remaining locations. For any block face concerning which the number of applications for that block face do not exceed the available locations, the assignment of locations shall be according to the order in which the applications were filed and deemed to be complete in accordance with Section 13.24.200.

(3) For any block face concerning which more locations are applied for than are available, the Director shall assign remaining locations by placing into a container the names of all publications competing for the location. Names shall be drawn from the container, one at a time, until the remaining number of unassigned locations on the block face have been assigned. The drawing shall be open to the public.

(C) The procedure for assigning locations shall be repeated on an annual basis, but only with respect to locations on a block face concerning which competing applications have been filed with the Director. The drawing, if any, shall be conducted annually on the second Tuesday of February. The Director shall establish such submittal and deadline requirements as may be necessary in order to accomplish the purposes of this Section each year.
(Ord. 5110 § 21, 1998)

13.24.220 Cards prohibited.

News rack cards shall not be placed upon or attached to any news rack in Zone A.
(Ord. 2273 § 1 (part), 1982: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-6(G))

Article III. Violations

13.24.230 Danger or obstruction—Summary removal.

Any news rack which is in violation of Subsection (A) or Subsection (B) of Section 13.24.050 may be summarily removed by the Director of Public Works or his agent and processed as confiscated property under provisions of Chapter 4.16. Notice of the removal shall be promptly served upon the owner of the news rack at his address shown on the news rack or at his address if known to the Director of Public Works by certified mail, return receipt requested, which notice shall also inform the owner of his right to appeal.
(Ord. 5110 § 22, 1998: Ord. 1885 § 2 (part), 1977: Ord. 1869 § 1 (part), 1977: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-8 (part))

13.24.240 Correction order—Removal.

(A) Upon determination by the Director of Public Works that a news rack has been installed, used or maintained in violation of the provisions of this Chapter, an order to correct the offending condition shall be issued to the owner of the news rack. Such order shall be served by mailing a copy of the order by certified mail, return-receipt requested, to the address as shown on the news rack. If the offending news rack is not properly identified as to owner under the provisions of Section 13.24.020, an order to correct the offending condition shall be

attached to the news rack. The order shall be effective immediately when it is deposited in the United States mail or attached to the news rack. It shall specifically describe the offending condition and suggest actions necessary to correct the condition.

(B) Failure to properly correct the offending condition or to serve notice of appeal within ten days after the effective date of the order, or failure to prevail at a hearing on appeal to the City Council, shall result in the offending news rack and its contents being summarily removed and the news rack processed as confiscated property under provisions of Chapter 4.16.
(Ord. 5110 § 23, 1998: Ord. 1885 § 2 (part), 1977: Ord. 1869 § 1 (part), 1977: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-8 (part))

13.24.250 Return after removal.

Upon the showing of sufficient proof of ownership, a news rack removed as provided in this Article, including the publications and money contained therein, if any, shall be returned to the owner upon his request if it is made within sixty days after removal and accompanied by the payment of a seventy-five-dollar processing fee. Any news rack that is not claimed within sixty days after removal shall be considered abandoned property and shall be processed in accordance with the provisions contained in Chapter 4.16. However, if an owner makes a request for a news rack more than sixty days after removal, the Director may return the news rack and its contents, if any, upon payment of the seventy-five-dollar processing fees plus any other costs incurred by the City in processing the news rack as abandoned property under Chapter 4.16.
(Ord. 5110 § 24, 1998: Ord. 1885 § 2 (part), 1977: Ord. 1869 § 1 (part), 1977: Ord. 1843 § 1 (part), 1976: prior code § 9-12A-8 (part))

13.24.260 Appeal of removal for danger or obstruction.

When a news rack has been removed for constituting a dangerous condition or obstruction, the news rack owner may appeal the action of the Director of Public Works by filing a written notice of appeal within twenty days after the news rack's removal. The appeal shall be heard by the City Council within thirty days following the filing of the notice of appeal. In the event the news rack owner prevails on appeal to the City Council, the news rack shall be released and restored to him immediately without payment of the processing fee.
(Ord. 5110 § 25, 1998: Ord. 1885 § 3 (part), 1977: Ord. 1869 § 1 (part), 1977: prior code § 9-12A-9 (part))

13.24.270 Appeal of correction order.

Any owner of a news rack who disputes an order to correct an offending condition may appeal by filing a written notice of appeal with the Department of Public Works setting forth the grounds for appeal within ten days following the effective date of the order. The appeal shall be heard by the City Council within thirty days following the filing of the notice of appeal. The Director of Public Works may not remove the news rack for failure to correct the condition described in the order appealed from until the appeal has been heard by the City Council.
(Ord. 5110 § 26, 1998: Ord. 1885 § 3 (part), 1977: prior code § 9-12A-9 (part))

13.24.280 Correction by City.

In the case of violations of this Chapter relative to restrictions upon attachments of news racks to each other, or upon location of news racks, any City employee authorized by the Director of Public Works may, as an alternative to removal under Section 13.24.230 et seq., remove such attachment and/or move such rack or racks in order to restore them to a legal condition.
(Ord. 5110 § 27, 1998: Ord. 1869 § 1 (part), 1977: prior code § 9-12A-10)

CHAPTER 13.28 RESERVED*

CHAPTER 13.32 OBSTRUCTIONS†

13.32.010 Vending stands, machines and wagons.

(A) Except as otherwise provided in this Section, it shall be unlawful for any person to occupy any part or portion of any street, alley, sidewalk, sidewalk space, court, public park or grounds within the City for the purpose of keeping or maintaining any newspaper stand, drinking stand, popcorn stand, weighing machine, automatic vending machine, sandwich wagon or any stand for the sale of notions or any other article of goods, wares, or merchandise, or any similar obstructions.

(B) News racks may be permitted within sidewalk areas in accordance with LVMC Chapter 13.24.

(C) Ice cream trucks and mobile food vendors may vend within public rights-of-way in accordance with LVMC Chapters 6.47 and 6.55, respectively.

(D) Other vending activities may be approved within public rights-of-way and sidewalk areas by means of an encroachment agreement or permit, or by means of a special event permit issued pursuant to LVMC Chapter 12.02.

(E) Vending activities may be approved in public parks and on other public grounds by means of permit, license, or contractual arrangement.

(F) Sidewalk vending is permitted if in accordance with LVMC Chapter 6.96.
(Ord. No. 6882, § 3, 10-16-24; Ord. No. 6220, § 11, 10-17-12; Ord. 1843 § 2, 1976: Ord. 1039 § 1, 1963: Ord. 190 § 1, 1932: Ord. 170 § 83, 1931: prior code § 9-12-1)

***Editor's note—**Ord. No. 6052, § 1, adopted August 5, 2009, repealed Chapter 13.28 §§ 13.28.010—13.28.090, which pertained to street naming and address assignments and derived from Ord. No. 3744, 1993.

†**Note—**Prior history: Ord. 40.

13.32.020 Obstructions or encroachments within City rights-of-way.

(A) Except as otherwise provided in this Section or another provision of this Code, it is unlawful for any person to erect, place or maintain any obstruction, or to cause or permit any obstruction to encroach within, upon, or over any public right-of-way, including any public street, public sidewalk, or public alley. Each day any unauthorized obstruction is allowed to remain after ten days' notice to remove the obstruction shall constitute a separate offense. Such notice may be provided by:

(1) Any officer of the Las Vegas Metropolitan Police Department;

(2) Any officer or employee of the Department of Community Development or the Department of Public Works; or

(3) Any other officer or employee of the City who has been specifically authorized to enforce this Section.

(B) An obstruction otherwise prohibited by Subsection (A) may be permitted by means of an encroachment agreement approved by the City in accordance with this Section. The agreement must be in a form prepared by, or otherwise acceptable, to the City. Approval by the City of an encroachment agreement:

(1) Is entirely within the City's discretion;

(2) Is contingent upon a determination by the Director of Public Works (or designee) that the obstruction or encroachment can be accomplished without negatively impacting traffic, public safety, pedestrian safety, or the use of and access to utility facilities; and

(3) May be denied based on plans for future improvements to the affected right-of-way, street, sidewalk or alley.

(C) An encroachment agreement under this Section:

(1) May include conditions reasonably calculated to mitigate any impact, including without limitation a time limit, provisions regarding ongoing maintenance, and appropriate remedial measures; and

(2) May be required to be recorded against property that is benefitted by the agreement.

(D) Except as otherwise provided in Subsections (E) and (F), the approval authority for an encroachment agreement under this Section shall be the Director of Community Development (or designee). Typical items qualifying under this Subsection (D) include:

(1) Encroachments related to a Site Development Plan Review under Title 19;

(2) Encroachments for monitoring wells;

(3) Encroachments necessary for compliance with a building-related code; and

(4) Other minor encroachments related to signage, outdoor dining, landscaping, fencing, and similar minor intrusions into public right-of-way.

(E) The approval authority for the following items shall be the City Council:

(1) Encroachments which, in the judgment of the Director of Community Development (or designee), are of a significant nature, character or size so as to warrant consideration by the City Council; and

(2) Encroachments concerning which a member of the City Council, prior to administrative approval of an agreement pursuant to Subsection (D), has requested that the encroachment be considered by the City Council.

(F) In the case of encroachment agreements to be forwarded to the City Council for consideration pursuant to Subsection (E), the Director of Community Development (or designee) shall schedule the encroachment agreement for Council consideration at the next regular meeting of the City Council that is reasonably available.

(G) If the Director of Community Development (or designee) denies administrative approval of an encroachment agreement pursuant to Subsection (D), the person seeking encroachment approval may appeal the decision to the City Council within ten days after the denial decision is made. The appeal shall be in writing, shall be filed with the Director or designee, and shall state the factual basis for the appeal. The Director or designee shall schedule the matter for consideration by the City Council within thirty days following receipt of the appeal. The decision by the City Council shall be final.

(H) Encroachment agreements approved administratively pursuant to Subsection (D) shall be signed by the Director of Community Development (or designee). Agreements approved by the City Council shall be signed by the Mayor.

(I) Nothing in this Section shall apply to obstructions or improvements installed or made available:

(1) By or on behalf of the City, or pursuant to a franchise or formal regulatory action by the City; or

(2) By another governmental agency acting in accordance with an interlocal or cooperative agreement with the City, if the Director of Community Development determines that the provisions of that agreement are an adequate substitute for the requirements of this Section.

(J) For purposes of this Section, "obstruction" means a structure, installation, amenity or improvement of any kind. The term also includes a bicycle, scooter or similar means of conveyance that is made available for consumer use as part of a commercial enterprise. For purposes of this Section, as well as other provisions of this Title and the Municipal Code, "encroachment agreement" includes any document or agreement, however named, that by its terms authorizes an encroachment within or obstruction upon a public right-of-way. Any such document or agreement may be called an encroachment agreement, encroachment permit, occupancy agreement, occupancy permit, license agreement, or similar term,

whether or not in each case preceded by the term "right-of-way," and designed in each case to correspond to the rights being granted. Unless otherwise provided in the document or agreement:

(1) The rights granted by, and limitations described in, the document or agreement are intended as, and shall be deemed to be, an exercise of the City's Charter authority and responsibility to regulate the use of public rights-of-way, prevent the unlawful use thereof, and minimize the extent to which they are encumbered by encroachments or obstructions.

(2) The rights granted by, and limitations described in, the document or agreement are not intended, and shall not be deemed to be, an exercise of the City's authority to convey an interest in land or to authorize any use of a public right-of-way that interferes with, or is inconsistent with, the principal purposes and intended use of that right-of-way.

(3) Any document identified as a license agreement or granting a license does not constitute a real property license as recognized at common law and shall be deemed to grant only those rights specified in the document.

(4) The document or agreement does not constitute or substitute for any building or construction-related permit that is otherwise required by or under the Municipal Code.

(K) The Director of Community Development (or designee) is authorized to create and disseminate such materials and publications as deemed necessary or appropriate in order to reduce confusion among the public and City staff regarding the relationship and roles of encroachment agreements under this Section and construction-related permits governed by other provisions of this Code.

(L) Except as otherwise provided in this Subsection (L), this Section does not apply to sidewalk vending operations in accordance with LVMC Chapter 6.96. However, this Section may be applied by the City regarding any vending activity that is not authorized by or in accordance with that Chapter.
(Ord. No. 6882, § 4, 10-16-24; Ord. No. 6816, § 125, 8-17-22; Ord. No. 6641, § 1, 9-5-18; Ord. No. 6267, § 1 9-4-13; 1949 code Ch. 32 § 71: prior code § 9-12-2)

13.32.030 Shoeshining.

All persons are prohibited from setting up, maintaining or operating any stand or place for shining shoes and from engaging in the work of shoeshining on any street or sidewalk in the City. Each and every person violating the provisions of this Section shall be guilty of a misdemeanor.
(1949 code Ch. 32 § 73: prior code § 9-12-4)

13.32.040 Merchandise displays.

Except as otherwise permitted pursuant to and in accordance with LVMC Chapter 6.96 regarding sidewalk vending, it shall be unlawful for any person to obstruct entirely or in part any sidewalk or street of the City by placing thereon any boxes, barrels, crates or other obstruction for displaying, offering for sale or selling any goods, wares or merchandise thereon.
(Ord. No. 6882, § 5, 10-16-24; 1949 code Ch. 32 § 74: prior code § 9-12-5)

13.32.050 Wood, coal or other fuels.

It shall be unlawful for the owner, purchaser, seller or any person in charge of any coal, firewood or fuel to place or permit such fuel to remain in any street or upon any sidewalk after dark, and it shall be unlawful to permit any such wood, coal or fuel to remain in any street, at any time, so as to obstruct the free passage in the same. Any person violating any of the provisions of this Section shall be guilty of a misdemeanor.
(1949 code Ch. 32 § 76: prior code § 9-12-7)

13.32.060 Congregations.

The assembling or collecting together of persons on any street, sidewalk or passageway or any other public place in the City, so as to obstruct the free and uninterrupted passage of persons along the same, is forbidden, and all persons in any such group who refuse to disperse at the request of any Police Officer, and any person who shall wilfully obstruct or hinder any person from passing along any street, sidewalk, passageway or public place, shall be guilty of a misdemeanor.
(1949 code Ch. 32 § 75: prior code § 9-12-6)

13.32.065 Outdoor dining.

(A) When authorized in particular areas or zoning districts under Title 19, outdoor dining may be approved for public sidewalks or similar pedestrian areas. Such outdoor dining may not occur except:

(1) In accordance with Title 19 and the Downtown Las Vegas Outdoor Dining Standards; and

(2) As authorized in an encroachment permit or agreement approved by the City.

(B) For purposes of this Section, the terms "outdoor dining" and "outdoor dining area" refer to dining within the area of a public sidewalk or similar pedestrian area, unless the context requires otherwise. The term "similar pedestrian area" refers to an area within the public right-of-way that does not qualify as a sidewalk but that is used or intended to be used for pedestrian traffic or circulation.
(Ord. 5566 § 2, 2003)

13.32.070 Removal—Dangerous or unsafe.

The City Council shall cause all obstructions above, across or under the streets of the City, which upon investigation may be considered dangerous or unsafe to the public using such streets, to be removed. If, upon investigation, such obstructions shall be found dangerous or unsafe for the public using the street, the Council shall make and enter upon its minutes an order directing the person maintaining such obstructions to remove the same within a reasonable time, not exceeding sixty days. Any person failing or refusing to obey the order directing the removal of such obstruction shall forfeit and pay a penalty of ten dollars for each day such obstruction shall be allowed to remain after the notice of removal shall have expired.
(1949 code Ch. 32 § 72: prior code § 9-12-3)

13.32.080 Removal—General.

(A) All unauthorized encroachments or obstructions upon any public street or highway, public alley or public easement in the City, including abandoned and unregistered motor vehicles, where provision for removal is not otherwise prescribed, shall be removed by the City Manager, or his designee, and the cost of such removal shall be a debt to the City and shall be paid prior to the release of the property or vehicle causing the encroachment or obstruction. The Metropolitan Police Department shall report all such encroachments and obstructions to the City Manager.

(B) The City Manager shall not cause the removal of any encroachment or obstruction, including any abandoned or unregistered vehicle, as prescribed in Subsection (A) of this Section, until he has given the owner of such property causing the obstruction or encroachment twenty-four hours prior written notice to remove it. In the event the owner cannot be ascertained by reasonable efforts, the written notice shall be attached to or posted on the obstruction or encroachment and the period of notification shall begin to run upon such posting.
(Ord. 6024 § 2, 2009: Ord. 2051 § 1, 1979: Ord. 1882 § 1, 1977: prior code § 9-12-8)

CHAPTER 13.36 PARKS AND OTHER RECREATIONAL AND CULTURAL FACILITIES*

13.36.010 Definitions.

As used in this Chapter:

"Camping or lodging" means an unpermitted lodging, dwelling, residence, shelter or other similar structure, or a settlement of possessions, that is kept or maintained in a defined area,

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***Editor's note—**Ord. No. 6226, § 1, adopted December 5, 2012, repealed the former Chapter 13.36, §§ 13.36.010—13.36.210, and enacted a new Chapter 13.36 as set out herein. The former Chapter 13.36 pertained to parks and derived from Ord. No. 3163, 1985; Ord. No. 3372, 1988; Ord. No. 3554, 1991; Ord. No. 5095, 1998; Ord. No. 5287, 2000; Ord. No. 5837 § 1, 2006; Ord. No. 6043, adopted June 17, 2009 and Ord. No. 6112, adopted September 15, 2010.

or is kept or maintained under circumstances where the owners or occupants knew or should have known that the area would be viewed by park patrons, park security or law enforcement officers as intended for non-recreational use to the exclusion of other citizens, patrons or members of the public. The term includes without limitation any of the following activities:

(A) Laying down bedding for the purpose of sleeping;

(B) Using a tent, shelter or structure for the purpose of sleeping; or

(C) Using a vehicle for purposes of sleeping.

"Department" means the Department of Parks, Recreation and Cultural Affairs or, for purposes of issuing permits, such other department or function of the City that the City Manager may designate.

"Director" means the Director of the Department, or the Director's designee.

"Hours of closure," with respect to a park or recreational facility, means the hours during which that park or recreational facility is closed, either as indicated on signs that have been posted pursuant to LVMC 13.36.110(B) or, as applicable, the prima facie hours of closure described in LVMC 13.36.110(C).

"Indoor recreation center" means a building owned or operated by or on behalf of the City and dedicated to public use for indoor recreational activities.

"Park" means an outdoor area owned or operated by or on behalf of the City and dedicated to public use for recreational purposes.

"Public plaza" means:

(A) Boulder Plaza, located at Main Street and Boulder Avenue;

(B) Centennial Plaza, located at Fourth Street and Lewis Avenue; and

(C) Any other open outdoor area that is:

(1) Owned or operated by or on behalf of the City;

(2) Designed for use as a gathering place for the public or for public enjoyment of cultural activities; and

(3) Designated as a public plaza by resolution of the City Council.

"Recreational facility" means an outdoor facility, together with associated structures and amenities, owned or operated by or on behalf of the City and dedicated to public use for recreational purposes. The term includes a recreational trail and a trailhead.

"Recreational trail" means a paved or unpaved pathway with several entrance and exit points that has been designated and dedicated for public use for recreational purposes.

"Trailhead" means the beginning point of a recreational trail, including any improvements or amenities that have been established at that location for the benefit of users.
(Ord. No. 6816, § 126, 8-17-22; Ord. No. 6226, § 2, 12-5-12)

13.36.020 Prohibitions.

(A) The following are prohibited within any City park, recreational facility or public plaza, including any parking area that serves the park, facility or plaza:

(1) Glass beverage containers;

(2) Remote control airplanes;

(3) Remote control boats, except that battery-powered remote control boats may be used in any area that has been designated and posted to allow that activity;

(4) Camping or lodging, except as otherwise permitted pursuant to Subsection (C);

(5) Fires, except in barbecue facilities established in a park for that purpose;

(6) Firearms, archery equipment or other weapons of any kind, except as otherwise provided in Subsection (D);

(7) The hitting of golf balls, except at facilities specifically designed for that activity;

(8) The use of park amenities for other than their intended uses, including without limitation washing clothes, bathing or showering (except in connection with the use of a swimming pool);

(9) The driving or parking of vehicles in areas other than those established for such use, or in a manner that violates any applicable law or ordinance pertaining to moving and non-moving violations;

(10) The performance of any stunts or wheelies, riding on handlebars, operating at unsafe speeds, or engaging in any other reckless behavior while operating an electric bicycle or electric scooter; and

(11) The operation of an electric bicycle or an electric scooter at a speed of more than fifteen miles per hour. Nothing in this Paragraph 11 shall be deemed to prohibit the operation of an electric bicycle or an electric scooter in a City park, recreational facility or public plaza, if in accordance with the provisions of this Chapter.

(B) Smoking in any form is prohibited at any of the following locations within a park:

(1) In or upon any area that has been designated and posted as a children's play area, or within fifty feet of any such area;

(2) Upon or within fifty feet of any bleachers that are being occupied for purposes of observing sporting events or recreational activities; and

(3) In or upon any sports field or within fifty feet of the sideline, perimeter fence, or other outer boundary or perimeter of a sports field that is marked as such.

(C) On a case-by-case basis, the Director may permit overnight camping activities within a park or recreational facility if those activities are sponsored by the City or by a duly-recognized nonprofit youth development organization.

(D) The prohibition set forth in Paragraph (6) of Subsection (A) shall not apply to:

(1) Activities specifically approved under this Chapter in connection with a particular event;

(2) The possession of firearms that is otherwise permitted by State law; or

(3) The possession of a concealed weapon by a person who holds a valid permit to do so that has been issued under, or is recognized pursuant to, the provisions of NRS 202.3653 to 202.369.

(E) A violation of LVMC 13.36.020(A)(10) or 13.36.020(A)(11) is a civil infraction. A first violation shall result in a fine of one hundred and fifty dollars. A second violation shall result in a fine of three hundred dollars. Subsequent violations shall result in a fine of five hundred dollars. Parents or guardians shall be held financially responsible for violations of LVMC 13.36.020(A)(10) or 13.36.020(A)(11) committed by a minor under their supervision.

(F) Law enforcement officers are authorized to enforce the provisions of LVMC 13.36.020(A)(10) and 13.36.020(A)(11).
(Ord. No. 6921, § 20, 8-6-25; Ord. No. 6226, § 2, 12-5-12)

13.36.030 Prohibitions—Exceptions.

The following are prohibited within any City park, recreational facility or public plaza, except where specifically authorized by means of a license, permit or other written authorization, or at a location specifically designated and posted for that use by the Director:

(A) Fireworks;

(B) Music that is audible from a distance of fifty feet;

(C) Off-highway vehicles;

(D) Alcoholic beverages;

(E) The sale of goods or services, or any other commercial use;

(F) Noise disturbances that are in violation of Chapter 9.16;

(G) Digging or staking, unless specifically approved under this Chapter in connection with a particular event using tents, bounce houses, or hot air balloons; or

(H) The feeding of animal life inhabiting the park, recreational facility or public plaza, including without limitation wildlife, feral animals (such as rabbits), community cats as defined in LVMC Title 7, birds, waterfowl, and fowl. For purposes of this Subsection:

(1) "Feeding" means intentionally making available for ingestion food items, including without limitation grain, seeds, greens, bread crumbs, and miscellaneous food scraps.

(2) "Wildlife" means any wild mammal, wild bird, fish, reptile, amphibian, mollusk or crustacean found naturally in a wild state, whether indigenous to Nevada or not and whether raised in captivity or not.

(Ord. No 6755, § 1, 11-4-20; Ord. No. 6226, § 2, 12-5-12)

13.36.040 Rules and regulations/fees—Adoption.

The Director, after such consultation with the Parks and Recreation Advisory Commission as deemed appropriate, may recommend to the City Council, and the City Council may adopt in accordance with LVMC 13.36.050:

(A) Additional rules and regulations for the use by the public of the City's parks, recreational facilities and public plazas;

(B) Rules and regulations for the use by the public of the City's indoor recreation centers; and

(C) A schedule of fees to be paid for certain uses of parks, recreational facilities, public plazas, and indoor recreation centers, and for certain services offered or provided to the public by the Department.

(Ord. No. 6226, § 2, 12-5-12)

13.36.050 Rules and regulations/fees—Means of adoption—Adjustments.

By resolution, the City Council may:

(A) Adopt rules, regulations and fee schedules described in LVMC 13.36.040; and

(B) As deemed appropriate, delegate to the Director the authority to adjust one or more types of fees chargeable by the Department.

(Ord. No. 6226, § 2, 12-5-12)

13.36.060 Rules and regulations/fees—Maintained/posted.

(A) Any rules and regulations and any schedule of fees adopted pursuant to LVMC 13.36.050 shall be:

(1) Maintained in the office of the City Clerk for review by the public upon request; and

(2) Posted at each park, recreational facility, public plaza or indoor recreation center to which they apply. The posting of rules and regulations shall be done, at a minimum, at the following locations within such park, recreational facility, public plaza or indoor recreation center as applicable:

(a) Each main entrance;

(b) The center thereof; or

(c) A combination thereof.

(B) The prohibitions set forth in LVMC 13.36.020 and 13.36.030 shall be posted at each City park and recreational facility to which they apply. Such posting shall be done, at a minimum, at the following locations within such park, recreational facility or public plaza as applicable:

(1) Each main entrance;

(2) The center thereof; or

(3) A combination thereof.

(Ord. No. 6226, § 2, 12-5-12)

13.36.070 Restrictions—Children's parks/play areas.

No person other than a parent or guardian, babysitter, caretaker or other designee of a parent or guardian having sole or joint supervisory responsibility over a child shall visit, frequent, or be present in either of the following unless accompanying that child:

(A) Any park which has been designated by the City Council as a children's park pursuant to LVMC 13.36.150; or

(B) Any area within a park or recreational facility which has been designated and posted as a children's play area.

(Ord. No. 6226, § 2, 12-5-12)

13.36.080 Permits—Issuance.

(A) Any person who desires to use any park, recreational facility or public plaza of the City for any demonstration or other organized assemblage of seventy-five or more participants shall first apply and obtain a permit from the Director. For purposes of this Subsection (A), "participant" means any individual who, along with others, is gathered for a common purpose under the direction, control or invitation of a person or group of people.

(B) Any person who desires to use any park, recreational facility or public plaza of the City for any picnic, celebration, or similar event at which seventy-five or more persons are reasonably expected to attend shall first apply and obtain a permit from the Director.

(C) In addition to the requirements of Subsections (A) and (B), the Department may establish a permit requirement and associated policies for the purpose of allowing the reservation and the reserved use of:

(1) Designated picnic or recreational areas, including park pavilions;

(2) Designated athletic fields or venues in connection with organized athletic events sponsored or operated by the Department or other organizations; and

(3) Designated areas in connection with recreational activities made available to the public in indoor recreation centers.

(D) An application for a permit under Subsections (A) and (B) must be filed with the Department at least five working days in advance. Applications under Subsection (C) must be filed at least two working days in advance. The Director may establish less restrictive deadlines or waive deadlines regarding particular classes of activities that the Director may designate.

(E) In connection with a permit authorizing the reserved use of an area or facility under Subsection (C), persons not part of the reserving group do not have the right to the use of that area or facility and may be excluded therefrom.

(F) Subsections (A) and (B) of this Section do not apply to any event which is sponsored by the City.
(Ord. No. 6226, § 2, 12-5-12)

13.36.090 Permits—Conditions/denial—Appeal.

(A) The Director may deny or condition the issuance of any permit applied for pursuant to LVMC 13.36.080 in order to:

(1) Protect the use and enjoyment of the park or facility for other members of the public;

(2) Protect the health and safety of all persons who visit the park or facility;

(3) Ensure that there is adequate parking and sanitary facilities to accommodate all persons who use the park or facility;

(4) Protect the grounds, equipment, vegetation, buildings, fences and other amenities of the park or facility from damage, overuse or destruction;

(5) Provide that the park or facility and the surrounding area is kept clean and free from debris;

(6) Ensure that the group use does not disturb persons who occupy land which is nearby such park or facility.

(B) The Director may deny a permit if an application is incomplete or contains inaccurate or misleading information.

(C) In connection with the approval of a permit, the Director may require the applicant to:

(1) Pay the additional costs that the City incurs, in excess of those that it incurs in connection with its normal maintenance of the park or facility in which the event is held, as the direct result of the event for which such permit is issued. In connection with such requirement, the City shall provide an estimate of such additional costs, which the applicant shall pay in advance of the permit being issued. The additional costs for which the permittee shall be responsible shall include without limitation the City's expenditures that are associated with the personnel and equipment that it uses in preparing for, supervising and cleaning up after such event. Any of such additional costs that exceeds the City's estimate thereof shall be enumerated in writing, and an invoice therefor will be forwarded to the permittee for payment.

(2) Provide insurance coverage for the event in accordance with LVMC 13.36 100. Such insurance may be required whenever the risks associated with the event indicate that insurance coverage should be required, including without limitation the following types of events:

(a) An event at which at least two hundred fifty persons are expected to attend;

(b) An event open to the general public;

(c) An event where admission is charged;

(d) An event where alcoholic beverages are sold;

(e) An event at which goods or services are sold or other types of commercial activity takes place; or

(f) An event at which any potentially hazardous activity takes place, such as weapons, fireworks, mechanical rides, tents, bleachers, scaffolding or staging.

(D) Any person who is aggrieved by the failure to issue such a permit or by a condition which is placed upon such a permit may appeal the same to the City Manager or a designee by written request filed with the Director. The Director shall forthwith provide a copy of the written appeal to the City Manager or designee, who shall provide written notice of the decision to sustain or deny the appeal within ten days after receipt of the written appeal.

(E) The following may revoke or condition a permit for good cause, including without limitation that the activity or event authorized by the permit is being conducted in violation of this Chapter or represents a nuisance or a threat to the public health or safety:

(1) The Director; or

(2) The Director of Public Safety or a designee.

(Ord. No. 6518, § 22, 4-6-16; Ord. No. 6226, § 2, 12-5-12)

13.36.100 Insurance coverage.

For events regarding which the Director requires insurance coverage, evidence of such coverage must be provided to the Director in advance of the issuance of a permit. Such evidence of coverage must be in the form of one or more certificates of insurance. Such

certificates must cover all event activities, including all vendors that will be participating in the event, and must name the City as an additional insured. Such certificates must include the proper endorsements and be issued by one or more insurance companies authorized to do business in this State. Such certificates shall provide coverage that is designated for the premises on which the event will take place and shall specify such policy limits as shall be determined by the City, based upon the type of event, the number of anticipated participants or attendees, or both, and the park or facility at which such event will take place.
(Ord. No. 6226, § 2, 12-5-12)

13.36.110 Hours.

(A) For each park, recreational facility or public plaza, the Director is authorized to establish hours during which the park, recreational facility or public plaza, or any individual component or amenity thereof, is open to the public and closed to the public. Such hours may be adjusted from time to time as deemed necessary, taking into account recreational needs, City resources, the impacts of public use on the park, recreational facility or public plaza and its surroundings, the character of the park or facility in relation to its surroundings, and other relevant considerations.

(B) Except as otherwise provided in Subsection (C), the Director shall cause to be posted in conspicuous places in or around the park, recreational facility or public plaza signs notifying the general public of the hours that the park, facility or plaza is closed. Such posting shall be done, at a minimum, at the entrance to each such park, facility or plaza.

(C) The prima facie hours of closure for a park that contains no posting with respect to hours of closure shall be between eleven p.m. and seven a.m.
(Ord. No. 6226, § 2, 12-5-12)

13.36.120 Violations.

It is unlawful for any person wilfully or in a criminally negligent manner to:

(A) Violate any prohibition contained in LVMC 13.36.020 or 13.36.030 and posted in accordance with LVMC 13.36.060.

(B) Violate any rule or regulation adopted pursuant to this Chapter and posted in accordance with LVMC 13.36.060.

(C) Violate LVMC 13.36.070.

(D) Alter, deface, injure, knock down or remove any signs or other markings that have been posted in accordance with LVMC 13.36.050, unless authorized by the City to do so.

(E) Damage, injure or deface any facilities or improvements located on the grounds of a park, recreational facility, public plaza or indoor recreation center.

(F) Enter or remain in any park, recreational facility or public plaza during that location's hours of closure, unless in connection with a duly authorized improvement or maintenance activity or an activity that is specifically authorized by the Department.

(G) Without having been issued a permit under this Chapter, make use of a park, recreational facility or public plaza, or portion thereof, in a manner that requires a permit under this Chapter.

(Ord. No. 6226, § 2, 12-5-12)

13.36.125 Violation of LVMC 13.36.030(H).

The maximum fine for a violation of Subsection (H) of LVMC 13.36.030 is ten dollars. In accordance with State law, a court may order the defendant to perform supervised community service in lieu of all or a part of any fine that may be imposed.

(Ord. No. 6755, § 2, 11-4-20)

13.36.130 Animals.

(A) Except as otherwise provided in Subsection (B), it is unlawful to bring or allow into any City park, recreational facility or public plaza any animal or fowl of any kind.

(B) The following are allowed within a City park, recreational facility or public plaza under the circumstances indicated:

(1) In any area designed as a dog park area, dogs that are not known to be vicious or dangerous are allowed with or without a leash.

(2) Otherwise, dogs that are not known to be vicious or dangerous are allowed within any area of a park, recreational facility or public plaza, other than children's play areas or areas in use for athletic events, but only when on a leash not to exceed eight feet in length.

(3) Horses are allowed on any roads, paths or trails designated for such use.

(4) Other animals are allowed only as authorized by written permit.

(C) Any person having custody or control of any dog or other animal within a City park, recreational facility or public plaza shall:

(1) Carry at all times a suitable container or other suitable instrument for the removal and disposal of animal feces; and

(2) Immediately remove and properly dispose of any feces deposited by that animal.

(Ord. No. 6226, § 2, 12-5-12)

13.36.140 Effect of license/permit.

The issuance of a license, permit or other written authorization for an activity or event under this Chapter does not affect the applicability of any licensing requirement or regulation contained in Title 6.
(Ord. No. 6226, § 2, 12-5-12)

13.36.150 Children's parks.

(A) The following are designated as children's parks that are intended for the use of children twelve years and under, along with the children's parents, guardians or other persons responsible for and accompanying such children:

(1) Heritage Park.

(2) Fitzgerald Tot Lot.

(3) Ethel Pearson Park.

(4) That portion of James Gay Park located south of the easterly extension of the centerline of West Van Buren Avenue.

(B) The City Council, by resolution, may from time to time designate other parks as children's parks.
(Ord. No. 6226, § 2, 12-5-12)

CHAPTER 13.40 PUBLIC IMPROVEMENT WORK*

13.40.010 Inspection duty—Purpose.

The Department of Public Works shall inspect all installations of utilities, street improvements, street lighting or other improvements in public rights-of-way for the benefit of the public using the rights-of-way.
(Ord. 5571 § 28, 2003: Ord. 2241 § 1, 1981: Ord. 1319 § 4 (part), 1968: prior code § 9-16-1)

13.40.020 Permit for right-of-way improvements.

It shall be unlawful for any person, either as an owner, agent, servant, contractor or employee, to cut, break, remove, alter, or install any improvements or portion of improvements within the public rights-of-way, or cause to have cut, broken or removed any improvements, or to install or to cause to have installed any utilities or poles, or make other excavations on any public street within the City, without having first obtained a permit to do so from the Department of Public Works. The Director of Public Works may deny a permit to any applicant who:

(A) Has a documented history of unsatisfactory safety conditions;

***Cross references—**For Standard Specifications for public works, see Ch. 13.44 of this Code; for provisions on underground utilities, see Ch. 13.52; for provisions on excavations, see Ch. 13.20.

(B) Has failed or refused to honor warranty requirements;

(C) Has failed to correct noncompliance with permit requirements; or

(D) Otherwise has failed to comply with the requirements of this Chapter.
(Ord. 5571 § 29, 2003: Ord. 2241 § 2, 1981: Ord. 1319 § 4 (part), 1968: prior code § 9-16-2)

13.40.030 Licensing and bonding required.

Only persons, contractors, owners or other individuals who are properly licensed and bonded for performance of work within public rights-of-way shall be issued a permit for any work, cause the deposit of materials, or use the rights-of-way for other than normal operation of motor vehicles and pedestrians.
(Ord. 1319 § 4 (part), 1968: prior code § 9-16-3)

13.40.040 Inspection—Notice of work start.

The Director of Public Works shall furnish an inspector for each permit for improvements or installation of underground utilities in the streets, alleys, or easements within the City, whose duties shall be to check for application and conformance to the Standard Specifications adopted pursuant to Section 13.44.010. The Director of Public Works shall be notified at least twenty-four hours in advance of the time when the work is proposed to be started unless an emergency occurs during the period in which the office is not open, in which instance the applicant for a permit shall contact the Department of Public Works within the first hour after the office reopens.
(Ord. 5571 § 30, 2003: Ord. 2241 § 3, 1981: Ord. 1319 § 4 (part), 1968: prior code § 9-16-4)

13.40.050 Fees—Authorization.

(A) The Department of Public Works or designee is authorized to charge fees in connection with the issuance of permits and the construction of improvements pursuant to this Chapter. Such fees may include fees associated with plan checking and inspection, fees for services performed by or on behalf of the City in implementing this Chapter, fees relating to noncompliance with the provisions of this Chapter, and fees associated with corrective action required under this Chapter.

(B) In connection with the issuance of a permit, the City is authorized to establish and collect an additional fee to cover work that was previously performed by or on behalf of the applicant without the benefit of a valid permit. In addition, the City is authorized to charge fees for noncompliance with permit requirements set forth in this Title.

(C) The City is authorized to charge fees related to the patching and resurfacing of pavement that is cut or disturbed in connection with utility installations and other development-related work. The fees may include the costs of slurry seal installation, asphalt resurfacing or reinstallation, or may be based upon reimbursement for lost value.

(D) The fees chargeable by the City pursuant to this Section shall be those that are set forth in a fee schedule that may be approved and amended from time to time by resolution of the City Council. The fee schedule may contain fees chargeable under other Chapters of this Code.
(Ord. No. 6879, § 12, 9-4-24; Ord. 5571 §§ 31, 32, 2003)

13.40.060 Fees—Payment.

Permit fees established pursuant to this Chapter shall be paid before the issuance of a permit. Inspection and service fees shall be paid before any work is done. In connection with fees that are required in order to recover the City's costs in performing corrective action, the City is authorized to charge the permittee the cost of the work, and may calculate the cost in the same way that the cost of extra and force account work is determined and charged under Section 109.03 of the Standard Specifications. The City may collect the amount so charged by any available means. In cases where the corrective work is the responsibility of the abutting property owner, collection efforts may include making the amount a charge against the abutting property and recording an appropriate lien against the property.
(Ord. 5571 § 33, 2003: Ord. 2241 § 4, 1981: Ord. 1319 § 4 (part), 1968: prior code § 9-16-6)

13.40.070 Permittee—Actions allowed.

A permittee under this Chapter shall:

(A) Warrant all work covered by the permit for a period of one year following acceptance of the work by the City; and

(B) Maintain for the warranty period a warranty bond equal to the principal bond amount.

(Ord. 5571 § 34 (part), 2003)

13.40.080 Permittee—Failure to comply with permit.

Whenever a permittee has failed to complete the installation of improvements as required by the permit, the Director of Public Works may notify the permittee in writing that he has thirty days in which to take and complete remedial action, or to file an appeal with the City Council. The notice shall state that, in the event the permittee fails to take the remedial action or file an appeal within the thirty-day period, the City may take action against the bond for the cost of completing the installation of improvements in accordance with the permit.
(Ord. 5571 § 34 (part), 2003)

13.40.090 Permittee—Filing an appeal.

If the permittee elects to appeal in accordance with Section 13.40.080, the permittee shall file an appeal in writing with the City Clerk within the appeal period. Thereafter, a hearing date before the City Council shall be set, and written notification of the hearing date shall be sent to the permittee at least seven days before the hearing.
(Ord. 5571 § 34 (part), 2003)

13.40.100 Permittee—Failure to comply or appeal—Remedy.

If after the expiration of thirty days from the date of receipt of a written notice pursuant to Section 13.40.080, the permittee has failed to complete the work as required by the permit and the permittee has not filed an appeal, the Department of Public Works shall report the circumstances to the City Council. Thereafter, the City Council shall determine if the remedial action, as recommended by the Department of Public Works, is necessary and if so, the City Council may instruct and authorize the Director of Public Works to proceed with remedial action.
(Ord. 5571 § 34 (part), 2003)

13.40.110 Appeal hearing—Prima facie evidence.

In the event of an appeal hearing described in Section 13.40.090, the permittee may present evidence for consideration by the City Council. After considering the presentations and evidence of both the permittee and the Department of Public Works, the City Council shall determine if remedial action on the part of the permittee is necessary to the health, safety, welfare or benefit of the public. If such action is found to be necessary to the public health, safety, welfare or benefit, then the permittee shall be notified of the decision of the City Council that remedial action shall be commenced and completed within ten days from the date of notification of the City Council's decision and that failure to complete such action shall result in the Department of Public Works proceeding with such remedial action and action taken against the bond for the costs incurred by the City.
(Ord. 5517 § 34 (part), 2003)

13.40.120 Legal action—Costs.

Subsequent to the completion of the work, the Director of Public Works shall forward to the permittee a statement of the costs incurred by the City in connection with the remedial action and informing the permittee that failure to pay the amount stated therein within thirty days from the date of the statement shall result in action taken against the bond of the permittee.
(Ord. 5571 § 34 (part), 2003)

CHAPTER 13.44 STANDARD SPECIFICATIONS FOR PUBLIC WORKS

13.44.010 Adopted.

The document entitled "Uniform Standard Specifications for Public Works' Construction Off-Site Improvements for the Clark County Area, Nevada, Third Edition, and any subsequent revision adopted by the City Council," is by such reference adopted and made a part of this Chapter the same as if it were fully set forth herein.
(Ord. 5571 § 35, 2003: Ord. 2239 § 1 (part), 1981: Ord. 1257 § 1 (part), 1966: Ord. 1087 § 2 (part), 1963: prior code § 9-15-1)

13.44.020 Applicability.

The provisions of the Uniform Standard Specifications adopted pursuant to Section 13.44.010 shall govern operation on contracts for public improvements awarded by the City, unless the content of any individual contract, together with any changes in the plans and specifications therefor, shall govern and be binding upon the City and the contractor. These provisions will apply to public improvements under installation through permits approved by the Director of Public Works.
(Ord. 5571 § 36, 2003: Ord. 2239 § 1 (part), 1981: Ord. 1257 § 1 (part), 1966: Ord. 1087 § 2 (part), 1963: prior code § 9-15-2)

CHAPTER 13.48 TREES AND SHRUBS*

13.48.010 Planting permit—Required.

No person shall hereafter plant any tree within the limits of any parkway or street of the City without having first obtained a permit from the Superintendent of Parks.
(Ord. 415 § 1, 1950: prior code § 9-10-1)

13.48.020 Planting permit—Application—Issuance.

Anyone wishing to plant such tree or trees shall apply to the Superintendent of Parks for a permit, stating the variety and precise location proposed for each tree. After the receipt of such an application, the Superintendent shall investigate the locality where the tree or trees are to be placed and shall grant a permit only if, in his judgment, the location is such as to permit the normal growth and development of each tree. The permit shall specify the location, variety and grade of each tree and method of planting, including, among other things, the supplying of suitable soil. The permit shall be good only for the season stated on same, in the year issued, and no charge shall be made for same. No trees shall be planted except in accordance with its terms. The specifications of the permit shall be such as will secure the suitable location, planting and growth of each tree.
(Ord. 415 § 2, 1950: prior code § 9-10-2)

13.48.030 Curb-sidewalk space—Soil.

No permit for planting of such trees shall be given where the clear space between the curb and sidewalk is less than three feet. Neither shall a permit be given where the soil is too poor to ensure the growth of the trees unless the applicant or the owner agrees to excavate a suitable hole of not less than fifty-four cubic feet and to replace the material removed with suitable good loam.
(Ord. 415 § 3, 1950: prior code § 9-10-3)

13.48.040 Trunk size—Branch height.

No such tree shall be planted measuring less than two inches in diameter of trunk one foot above ground. The trunk of each tree shall be without branches eight feet from the ground and the lowest branch shall not be over nine and one-half feet from the ground.
(Ord. 415 § 5, 1950: prior code § 9-10-4)

13.48.050 Building-moving interference—Permit.

No person, whether licensed or otherwise, shall move any building along any street in such a way as to interfere with or injure any tree or shrub in any street or public ground, including parks and parkways, in the City, without a special permit obtained from the Superintendent of Parks. The application shall specify the building and the proposed route.
(Ord. 415 § 6, 1950: prior code § 9-10-5)

***Note—**Prior history: Ord. 25.

13.48.060 Building-moving interference—Trimming or moving—Deposit.

All moving of trees and shrubs or trimming the branches thereof made necessary for the moving of such building or any other purpose shall be done by the Superintendent of Parks, or under his supervision, at the expense of the applicant. Should such moving or replanting cause the death of such trees or shrubs, the applicant shall replace same at his expense. Before such permit is granted, the applicant shall deposit at least ten dollars per tree and as much more as the Superintendent may deem necessary to cover the actual expense of removing and replanting, if necessary, to be retained until said tree or its successor is permanently established.
(Ord. 415 § 6, 1950: prior code § 9-10-6)

13.48.070 Infection or infestation.

The Superintendent of Parks shall have power to destroy trees in streets and parkways if infected by disease or infested by injurious insects when such destruction is necessary to the protection of other trees.
(Ord. 415 § 11, 1950: prior code § 9-10-9)

13.48.080 Piling materials against.

No building material or any other material of any description shall be piled up against any street tree unless said tree is first sufficiently protected by a proper guard to prevent possible injury, and all instructions issued for that purpose by the Superintendent of Parks must be promptly complied with by the owner or constructor.
(Ord. 415 § 8, 1950: prior code § 9-10-7)

13.48.090 Interfering or injuring.

No person shall remove, destroy, cut, deface, trim, or in any way injure or interfere with any tree or shrub on any of the avenues, streets or public grounds, including parks and parkways of the City, without a permit from the Superintendent of Parks.
(Ord. 415 § 9, 1950: prior code § 9-10-8(A))

13.48.100 Hitching—Injury by animals.

No person shall hitch or fasten any horse or any other animal to any tree or shrub in any avenue, street or public grounds, including parks and parkways, of the City, nor shall any person suffer or permit any horse or animal to stand or be near enough to such tree or shrub to bite, rub against, or in any manner injure or deface the same.
(Ord. 415 § 10, 1950: prior code § 9-10-8(B))

13.48.110 Burning, cutting or chafing attachments.

No person shall place or let be placed any wire conduit or other thing that burns, cuts or chafes any part of any trees, whether trunk, root or branch, in any street or parkway. In case the owner or the person shall fail after three days' written notice to take adequate steps to prevent further injury, the Superintendent of Parks shall have power to remove the same.
(Ord. 415 § 12, 1950: prior code § 9-10-8(C))

13.48.120 Surrounding ground surface.

No paving of any description shall be laid or maintained by anyone between sidewalk and curb which will cut off the air and water from any tree. A space of not less than fifty square feet must be left open for each tree, which space may be covered with suitable satisfactory iron grate upon a permit of the Superintendent to whom the plan for such grate must be first submitted.
(Ord. 415 § 13, 1950: prior code § 9-10-8(D))

CHAPTER 13.52 UNDERGROUND UTILITY INSTALLATIONS

13.52.010 Purpose.

In order to promote the health, safety, convenience and general welfare of the inhabitants of the city and to improve the aesthetic appearance of the City, the purpose of this Chapter is to require that existing overhead distribution lines needing replacement shall be placed underground and to require that the distribution lines serving all new developments shall be located underground, unless exempted or waived from the provisions of this Chapter.
(Ord. 3390 § 1, 1988: Ord. 2238 § 3 (part), 1981: prior code § 11-4-1)

13.52.020 Definitions.

Whenever in this Chapter the following words or phrases are used, they shall have the respective meanings assigned to them in the following definitions:

(A) "Approved poles" means shaved wood poles with a light-gray finish. Poles of other types and finish may be used by agreement between the utility and the Director of Public Works.

(B) "Commercial development" means a multiple-store complex consisting of five or more stores within the complex, such as, but not necessarily limited to, shopping centers.

(C) "Commission" means the Public Utilities Commission of the State.

(D) "Overhead distribution lines" means the poles, overhead wires and associated overhead structures, but not limited to, poles, towers, supports, wires, conductors, guys, stubs, platforms, crossarms, braces, transformers, insulators, cutouts, switches, communication circuits, appliances, attachments and appurtenances, located above-ground upon, along, across or over the public streets, alleys and ways of the City and used or useful in supplying electric, communication or similar or associated services.

(E) "Replace" means and includes any reconstruction, re-erection or relocation of the overhead distribution lines.

(F) "Subdivision" means any land, vacant or improved, which is divided into five or more lots, parcels, sites, units or plots for the purpose of transfer or development, or any proposed transfer or development, or any building or buildings constructed for occupancy by five or more tenants for commercial or industrial purposes on the same parcel of land.

(G) "Utility" means and includes all persons or entities supplying electric, communication or similar or associated service by way of electrical means or devices.

(Ord. No. 6816, § 127, 8-17-22; Ord. 2238 § 3 (part), 1981: prior code § 11-4-2)

13.52.030 Required on overhead replacement.

The utility will construct, operate and maintain underground lines along public streets, roads and highways which the utility has a legal right to occupy, and on public lands and private property across which rights-of-way and easements have been obtained, whenever it is necessary to replace an existing overhead distribution line, subject to the following conditions:

(A) Such lines are five hundred feet or more in length;

(B) If the majority of customers adjoining the line being replaced do not agree to the undergrounding as given above, this will be cause for application for continuation of overhead service by the utility.

(Ord. 2238 § 3 (part), 1981: prior code § 11-4-3 (part))

13.52.040 Customer facilities and noncooperation.

Customers will be given an opportunity by the utility to continue their service underground by providing the necessary trenching between the service point and the meter. The utility will provide and install the necessary wiring conduit and appurtenances up to one hundred feet from the service point. In the event a customer refuses to cooperate, a service stub pole will be provided by the utility and the service connection will remain overhead.

(Ord. 2238 § 3 (part), 1981: prior code § 11-4-3 (part))

13.52.050 Subdivisions—Responsibility for arrangements.

The developer, owner, subdivider or resubdivider is responsible for complying with the requirements of this Chapter, and shall make arrangements with the necessary utilities involved with the specifications, design plans and installation of an underground distribution line.

(Ord. 2238 § 3 (part), 1981: prior code § 11-4-4(A))

13.52.060 Subdivisions—Tentative and parcel map indication.

The developer, owner, subdivider or resubdivider shall indicate on the tentative subdivision map or the parcel map the terminal points of the proposed underground distribution lines. The utility shall approve the map by an authorized signature prior to its submission to the City. After approval thereof by the City, the developer, owner, subdivider or resubdivider shall provide the utility with an approved copy of the tentative map or parcel map.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-4(B))

13.52.070 Subdivisions—Plan of installation—Meters.

A separate plan showing the proposed installation of the underground distribution lines shall be submitted for approval by the City with the final subdivision map. The plan will show the location of all underground services with locations to be marked at the walk or the curb. All utility meters are to be located so as to have access for purposes of monitoring and reading from the street side of the buildings.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-4(C))

13.52.080 Subdivisions—As-built plan.

An "as-built" reproducible plan shall be furnished to the City and to the various utilities which will indicate the location of the underground distribution lines as actually installed prior to occupancy of structures and/or release of construction bonds.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-4(D))

13.52.090 Subdivisions—Easements.

It shall be the responsibility of the developer, owner, subdivider or resubdivider to provide underground utility easements along the front, rear and side lots as may be required by the city and the utilities.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-4(E))

13.52.100 Stub down or pull boxes for building work.

Any person obtaining a permit to erect, construct, place or replace a building, structure or dwelling, or to enlarge or make additions thereto in excess of six hundred fifty square feet, will be required to provide, in addition to the usual overhead utility lines and structures, a conduit stub down or pull boxes, or both.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-5)

13.52.110 Approved poles required when.

If a utility is not for whatever reason required to replace existing overhead distribution lines with an underground distribution line, then any utility obtaining a permit to replace a one-half-mile section, or more, of an existing overhead distribution line shall use or install approved poles. Where the continuity of alignment is broken by the intersection with a major

thoroughfare, freeway or expressway, street or railroad overpass or underpass, railroad crossing, change in alignment of a street or a pole line, or the end of a pole line, or by City-owned property, the Department of Public Works may require the replacement of a quarter-mile section with approved poles.
(Ord. No. 6816, § 128, 8-17-22; Ord. 2238 § 3 (part), 1981: prior code § 11-4-6)

13.52.120 City equipment on poles—Removal.

The City shall remove at its own expense all City-owned equipment from poles required to be relocated underground upon notification by the utility.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-7)

13.52.130 City equipment on poles—Exemption.

The provisions of this Chapter shall not apply to any municipal facilities or equipment installed under the supervision of, and to the satisfaction of, the Director of Public Works, including, but not necessarily limited to, poles and appurtenances used for street lighting purposes and poles and appurtenances containing fire alarm boxes.
(Ord. No. 6816, § 129, 8-17-22; Ord. 2238 § 3 (part), 1981: prior code § 11-4-8(A))

13.52.140 High-voltage lines.

The provisions of this Chapter that require the undergrounding of distribution lines shall not apply to new and existing high-voltage lines transmitting electricity over fifteen thousand volts. Such high-voltage lines may be installed underground or above ground. Lines which are to be installed above ground shall be installed on routes as approved by the City Planning Commission, and the pole locations must first be approved by the Director of Public Works. Metal poles shall be used at angle points for purposes of eliminating the guy wire supports. The poles for all tangent structures must be approved by the Director of Public Works. Single-pole lines shall be equipped with post-type insulators and shall conform to good construction practice, with poles properly plumbed. If the City requires that utility poles located on public rights-of-way be moved, the owner shall move the poles upon notification by the Director of Public Works. The cost of moving the utility poles shall be borne entirely by the owner.
(Ord. 5003 § 1, 1997: Ord. 2238 § 3 (part), 1981: prior code § 11-4-8(B))

13.52.150 Service boxes—Exposed conduit—Transformers—Meters.

The provisions of this Chapter shall not apply to house service switchboxes and exposed conduit at buildings, which may be aboveground. The transformers will be either the above-surface, pad-mounted type or the submersible type installed below grade, located back of the sidewalk. All enclosed communications terminal blocks will preferably be located adjacent to the transformers, but may be spaced otherwise if required. Electric meters may be aboveground.
(Ord. 2238 § 3 (part), 1981: prior code § 11-4-8(C))

13.52.160 Exempted facilities and equipment.

The provisions of this Chapter shall not apply to:

(A) Equipment appurtenant to underground facilities, such as surface-mounted transformers, pedestal-mounted terminal boxes and meter cabinets, and concealed ducts;

(B) Temporary poles, overhead wires and associated overhead structures used or to be used in conjunction with construction projects;

(C) Radio antennas and associated equipment and supporting structures used for furnishing communications services, but not including communications distribution systems on poles;

(D) Emergency service for overhead electrical or communication lines may be installed on a temporary basis, to be removed when the underground services are energized.

(Ord. 2238 § 3 (part), 1981: prior code § 11-4-8(D—G))

13.52.170 Waivers.

(A) An application may be made to the Director of Public Works requesting approval of a waiver of the requirements of this Chapter pertaining to underground installation of distribution lines for any of the following reasons:

(1) In cases of emergency where public health and safety would be jeopardized;

(2) Unavailability of materials necessary for underground installation;

(3) Topographical or subsurface conditions making such underground installations economically unreasonable or impractical; or

(4) Requiring the underground installation does not promote the purposes stated under Section 13.52.010 or is unreasonable due to other circumstances presented by the applicant.

(B) Except as otherwise provided in Subsection (C), the application shall be reviewed by the Director of Public Works who shall make recommendations for approval or denial to the City Council. After reviewing the recommendations of the Director of Public Works, the City Council shall approve the application if it comes within one of the categories set out in Subsection (A) of this Section for which a waiver may be granted to the applicant.

(C) The City Manager or the City Manager's designee may grant a waiver under this Section if the City Manager determines that an administrative-level waiver is appropriate, given the nature and scope of the application.

(Ord. No. 6085, § 1, 3-3-10; Ord. 3283 § 1, 1987: Ord. 3087 § 1, 1983: Ord. 2238 § 3 (part), 1981: prior code § 11-4-9)

CHAPTER 13.56 CONSTRUCTION, MAINTENANCE AND REPAIR OF SIDEWALKS AND TRANSITION STRIPS

13.56.010 Purpose.

It is the purpose of this Chapter to:

(A) Require the property owners abutting the public right-of-way to maintain the unimproved portion of the right-of-way referred to as a transition strip whenever necessary to the public health, safety, welfare and benefit;

(B) Require the property owner abutting the public right-of-way to construct new sidewalk, or maintain or repair existing sidewalk whenever necessary to the public health, safety, welfare and benefit;

(C) Assure the uniform and safe development of the public right-of-way within the City by requiring that sidewalks be constructed, maintained and repaired in accordance with those standards adopted by the City.

(Ord. 3074 § 1 (part), 1983)

13.56.020 Definitions.

For purposes of this Chapter, the following definitions shall be applicable:

"Transition strip" means the unimproved portion of the public right-of-way, including any vegetation growing thereon, lying between the back of the curb, or in the event there is no curb then that portion between the end of the paved street, and the property line of the property abutting the public right-of-way.

"Sidewalk" means that portion of the public right-of-way which has been improved for pedestrian traffic.

"Maintenance" means the upkeep, cleaning or preservation of the transition strip or existing sidewalk, including the trimming or removal of vegetation, which is necessary to insure the public health, safety, welfare and benefit.

"Repair" means the cutting, removing or replacing of existing sidewalk.

(Ord. 3074 § 1 (part), 1983)

13.56.030 Installation of new sidewalk.

It shall be the responsibility of the property owner to install new sidewalk along the transition strip whenever necessary to the health, safety, welfare and benefit of the public.

(Ord. 3074 § 1 (part), 1983)

13.56.040 Maintenance and repair of existing sidewalks.

It shall be the responsibility of the property owner to maintain and repair existing sidewalk whenever necessary to the health, safety, welfare and benefit of the public.

(Ord. 3074 § 1 (part), 1983)

13.56.050 Maintenance of transition strip.

It shall be the responsibility of the property owner to maintain the transition strip abutting his property whenever necessary to the health, safety, welfare and benefit of the public.
(Ord. 3074 § 1 (part), 1983)

13.56.060 Noncompliance—Notice or approval.

Whenever the owner has failed to install a new sidewalk, maintain or repair an existing sidewalk, or maintain the transition strip as required by this Chapter, the Director of Public Works may notify the abutting property owner in writing that he has thirty days in which to remedy the situation or to file an appeal with the City Council. The notice shall also state that in the event the property owner fails to take appropriate action or file an appeal to the City Council that a lien may be imposed by the City against the property for the cost of remedying the situation.
(Ord. No. 6816, § 130, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.070 Appeal procedure.

In the event that the property owner elects to appeal, then the property owner shall notify the City Clerk in writing who shall set a hearing date before the City Council. Written notification of the hearing date shall be sent to the property owner at least seven days before the scheduled hearing.
(Ord. 3074 § 1 (part), 1983)

13.56.080 Necessity for remedial action.

If after the expiration of thirty days from the date of receipt of the written notice required by Section 13.56.060, the property owner has refused or failed to install new sidewalk as required by Section 13.56.030, maintain or repair existing sidewalk as required by Section 13.56.040 or to maintain the transition strip as required by Section 13.56.050, and the property owner has not appealed the written notice from the Department of Public Works as provided under Section 13.56.060, then such refusal or failure and lack of appeal shall be reported to the City Council. The City Council shall determine if the remedial action, as recommended by the Department of Public Works, is necessary and if so, the City Council may instruct and authorize the Director of Public Works to proceed with remedial action.
(Ord. No. 6816, § 131, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.090 Appeal hearing—Determination by council.

In the event of hearing as provided by Section 13.56.060, the property owner may present evidence for consideration by the City Council. After considering the presentations and evidence of both the property owner and the Department of Public Works, the City Council shall determine if remedial action on the part of the property owner is necessary to the health, safety, welfare or benefit of the public. If such action is found to be necessary to the

public health, safety, welfare or benefit, then the property owner shall be notified of the decision of the City Council that remedial action shall be commenced and completed within ten days from the date of notification of the City Council's decision and that failure to complete such action shall result in the Department of Public Works proceeding with such remedial action and a lien being placed against the property of the abutting property owner for the costs incurred by the City of Las Vegas.
(Ord. No. 6816, § 132, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.100 Remedial action—Cost—Time limit.

Subsequent to the completion of the work, the Director of Public Works shall forward to the property owner a statement as to cost incurred by the City in connection with the remedial action and informing the property owner that failure to pay the amount stated therein within thirty days from the date of the statement shall result in a lien being assessed against the property of the property owner.
(Ord. No. 6816, § 133, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.110 Remedial action—Nonpayment—Statement.

If after the expiration of the thirty-day period provided under Section 13.56.100 the property owner has failed to reimburse the City for the costs of the remedial action, the City Clerk shall forward to the County Recorder's Office a sworn statement stating the location of the work performed by the City, the date the remedial action was completed, the amount to be assessed as a lien which amount is to equal the cost of the remedial action plus ten percent and identifying the property subject to the assessment.
(Ord. 3074 § 1 (part), 1983)

13.56.120 Standards and inspection.

The construction of new sidewalk, or the maintenance or repair of existing sidewalk, shall be in accordance with the Standard Plans, Specifications and Drawings on file in the office of the Department of Public Works. Upon completion of the construction, maintenance or repair, the sidewalk shall be inspected and approved by the Department of Public Works.
(Ord. No. 6816, § 134, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.130 Permit required.

It is unlawful for any person including the owner of property abutting the public right-of-way, or the agent, servant, contractor or employee of the owner, to construct new sidewalk or to repair existing sidewalk located within the public right-of-way within the City without first obtaining a permit from the Director of Public Works.
(Ord. No. 6816, § 135, 8-17-22; Ord. 3074 § 1 (part), 1983)

13.56.140 Compliance.

It is unlawful for any person including the owner of property abutting the public right-of-way, or the agent, servant, contractor or employee of the owner, to construct new sidewalk or to repair existing sidewalk located within the public right-of-way within the City if the construction or repair does not comply with the Standard Drawings, Plans and Specifications on file in the office of the Department of Public Works, comply with the survey lines or grades submitted by the property owner and approved by the Department of Public Works, or comply with any other conditions contained in the permit issued by the Department of Public Works. Any approval of the survey lines or grades submitted by the property owner or his agent, servant, contractor or employee does not relieve the property owner for the accuracy of said survey lines and grades.
(Ord. No. 6816, § 136, 8-17-22; Ord. 3074 § 1 (part), 1983)

CHAPTER 13.58 AIRCRAFT LAUNCHING AND LANDING

13.58.010 Aircraft defined.

For purposes of this Chapter. "aircraft" means any vehicle used for navigation through the air.
(Ord. 3098 § 1 (part), 1984)

13.58.020 Prohibited in certain places.

Except as otherwise provided in Section 13.58.030, it is unlawful for any person to cause or permit any aircraft to be launched from or land upon the following areas within the City:

(A) Any public street, highway or other public right-of-way;

(B) Any parking lot which is provided for the use of the public.
(Ord. 3098 § 1 (part), 1984)

13.58.030 Exceptions to Section 13.58.020.

Section 13.58.020 shall not apply to the launching or landing of any aircraft:

(A) Which is being operated by or at the direction of any governmental entity;

(B) Pursuant to prior authorization by the City Council; or

(C) Where an emergency launching or landing is necessary in order to protect life or property.
(Ord. 3098 § 1 (part), 1984)

CHAPTER 13.60 REMOVAL AND DISPOSITION OF SIGNS/ATTENTION GAINING DEVICES

13.60.010 Definitions.

For purposes of this Chapter:

"Attention gaining device" means any streamer, pennant, propeller, inflatable sign, tethered balloon, portable sign, bunting or other artificial device, figure, shape, color, sound, light or exhibit, whether live, animated or still, that is intended to attract attention.

"City property" means any real property owned or leased by the City and dedicated to City purposes.

"Public right-of-way" means any area dedicated to public use for public street purposes. The term includes without limitation roadways, parkways, alleys and sidewalks, and includes the definition of that term as found in LVMC 19.18.020.

"Sign" means any device, fixture, placard, structure or other medium, including its structure and component parts, that uses any color, form, graphic, illumination, symbol or writing to advertise, announce the purpose of, or identify the purpose of a person or entity, or to communicate information of any kind to the public.
(Ord. No. 6696, § 1, 7-17-19)

13.60.020 Removal/disposition of signs/attention gaining devices.

(A) Subject to the provisions of Subsection (B), a law enforcement officer or an officer or employee of the City assigned to the implementation or enforcement of this Chapter may remove and dispose of any sign or attention gaining device that, in violation of the provisions of Title 19 or any other provision of this Code, has been erected or placed on City property or within a public right-of-way, or has been attached to a tree, pole, or other structure on City property or within a public right-of-way.

(B) If an officer or employee determines that a sign or attention gaining device removed pursuant to Subsection (A) is of sufficient value and character that the person responsible for its placement is likely to reclaim the item, or that the sign or device has a potential resale value greater than one hundred dollars, the sign or device shall be retained for at least twenty days for purposes of being reclaimed, and then may be either destroyed or disposed of in accordance with LVMC Chapter 4.16.
(Ord. No. 6696, § 1, 7-17-19)

Title 14

PUBLIC SERVICES

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CHAPTER 14.04 SEWERS

14.04.010 Definitions.

Except where the context otherwise requires, as used in this Chapter the following words, terms and phrases shall have the meanings indicated as follows:

"Accessory structure (Class I)" means an accessory structure which is located on the same residential parcel as a principal dwelling and which, as an ancillary use, provides living quarters, including full kitchen facilities, for the occupants of the principal dwelling or their tenants, domestic employees or temporary guests.

"Apartment house" means a structure which contains three or more rental dwelling units on the same lot or parcel and which does not qualify under another customer class as defined in this Section. The term includes an assisted living apartment, as defined in Section 19.20.020, but does not include a convalescent care facility or senior apartment house.

"Barbershop" means an establishment in which the practice of barbering is engaged in or carried on.

"Beauty shop" means an establishment in which any of the branches of cosmetology is practiced.

"Billing charge" means that portion of the user charge associated directly with the cost of preparing a user's bill and which is the same for each user; i.e., sewer user account.

"Casino" means a place which is not a part of a hotel where games of chance or gambling devices are made available for play by the public.

"Child care center" means a commercial establishment which regularly provides day or overnight care for more than twelve children.

"Church" means a structure primarily used for activities sponsored by a religious organization.

"Cinema theater" means a cinemaplex, multiplex theater, or other structure whose main function is to screen movies.

"Clinic" means an establishment for the administration of professional chiropractic, dental, medical or veterinarian care on an out-patient basis, including the individual office of any such practitioner.

"Commodity charge" means that portion of the user charge associated directly with wastewater collection and treatment and which is calculated for a user by multiplying the ERU rate for that user's customer class by the number of ERUs assigned to that customer.

"Community center" means a facility which is operated in connection with and incidental to a private multi-family or planned residential development and which provides community activities for residents of the development.

"Condominium" means a multiple-family dwelling in which each dwelling unit is owned individually, while other elements of the land and facilities are owned in common with other unit owners.

"Convalescent care facility/nursing home" means a building that is used, or designed or intended to be used to provide care for persons who have a chronic physical or mental illness or infirmity. The term includes a rest home but does not include an apartment house, hospital or special care facility.

"Custodial institution" means a facility which is used for the housing or detention of persons who have been charged with or convicted of crimes. The term includes any prison, jail, detention facility.

"Customer" means the owner of real property who is responsible for the payment of sewer service charges assessed to the property.

"Day spa" means a facility in which multiple services in cosmetology, massage, acupressure and reflexology are offered to the public. The facility may include without limitation such related operations as the sale of beauty products and boutique items; tanning booths; permanent makeup; and eating establishments.

"Duplex" means a building containing two attached dwelling units which are separated from each other by an unpierced wall extending from ground to roof, with both units located on the same lot or parcel.

"Dwelling unit" means one or more rooms located within a structure and occupied or intended for occupancy as separate living quarters for a single family, with cooking, sleeping and sanitary facilities provided within the dwelling unit.

"Equivalent residential unit" or "ERU" means the average amount of wastewater discharged by a single-family dwelling, which has been determined to be ninety thousand gallons per year.

"Family" means one or more persons customarily living together and occupying a single dwelling unit.

"Financial institution" means a bank, credit union, savings and loan association, debt adjustment company, loan company, mortgage company, thrift company or trust company.

"Fixture" means a device which is connected to the hot or cold water supply system or both and which is connected to the wastewater collection system of the City* and includes but is not limited to the following:

(1) Bathtub (with or without overhead shower). Each bathtub is a separate fixture;

(2) Bidet (standard bathroom fixture);

(3) Car wash:

(a) Each bay of a coin-operated car wash is a fixture,

(b) Each water source arch of a drive- or tow-through car wash is a fixture. (Water source arches using recycled water are not considered fixtures);

(4) Commode (toilet or water closet);

(5) Cooking utensil with supply and drain (built-in pot or cooking pan that has an adjacent water source exclusively for filling or washing the utensil, which water is immediately or at some future time, dumped into a drain, directly from said utensil). Each utensil is a separate fixture;

(6) Dental cuspidor (bowl hinged to dental chair used by patients when removing fluids from their mouth). Each bowl is a separate fixture;

(7) Dipwell (receptacle with a water source and drain used primarily to rinse ice cream scoops or other utensils). Each receptacle is a separate fixture.

(8) Drinking fountain. Each water outlet on a drinking fountain unit is a separate fixture;

(9) Dishwasher (domestic or commercial). Each dishwasher is a separate fixture;

(10) Fruit and vegetable sprayer (nozzle spray equipment attached to a length of hose for manual use or an automated nozzle spray system). Each manually operated nozzle and each automated nozzle spray system is a separate fixture;

(11) Glass fill (fountain device used to fill glasses with drinking water). Each device is a separate fixture;

(12) Shower stall (stand-up shower enclosure);

(13) Group shower (a shower room or enclosure with multiple shower heads and one or more drains). Each shower head is a separate fixture;

(14) Sinks:

(a) Bar sink. Each water outlet of a bar sink, whether the sink has single or multiple sections, is a separate fixture,

(b) Barber sink. Each sink is a separate fixture,

(c) Beauty parlor or hair wash sinks. Each sink is a separate fixture,

(d) Kitchen utility sink (any sink in a restaurant kitchen used for the preparation of food or for washing dishes). Each sink is a separate fixture,

(e) Laundry sink (a square, high-sided sink with one or more sections; also referred to as a mop sink). Each water outlet of the laundry sink is a separate fixture,

(f) Lavatory (a fixed bowl or basin with running water and drainage for washing). Each lavatory is a separate fixture,

(g) Mop sink (a square, high-sided sink with one or more sections; also referred to as a laundry sink). Each water outlet on a mop sink is a separate fixture,

(h) Wash sink (a restroom fixture designed to accommodate several persons washing at the same time with one or more water outlets). Each water outlet on a wash sink is a separate fixture;

(15) Steam table with water supply and drain is one fixture. A steam table equipped with a built-in sink in addition to having an independent source of water and drain is deemed to have two separate fixtures;

(16) Urinal:

(a) Each urinal designed for solo usage is a separate fixture,

(b) Every two feet of a trough style urinal is a separate fixture;

(17) Washing machine. Each machine, regardless of size, is a separate fixture;

(18) Water supply outlet with drain (any water source that is used in conjunction with a drain that is not specifically designated in this Section; for example, hose bib and wash rack or water tank system). Each water outlet or water tank is a separate fixture;

(19) Whirlpool therapy. Each item of therapy equipment that is provided with a water source and a drain is a separate fixture;

(20) X-ray machine with water supply and drain. Each machine connected to a source of water and drain is a separate fixture.

"Halfway house" means a residential facility that is operated on a dwelling-unit basis and that provides housing, training, or rehabilitation to persons who are:

(1) On probation or parole after having been convicted of a criminal offense; or

(2) Recovering from alcohol or drug abuse.

The term does not include a custodial institution or a facility that provides treatment for alcohol or drug abuse.

"High strength users" means a customer class discharging on the average, five-day biochemical oxygen demand strengths greater than three hundred milligrams per liter or suspended solids strengths greater than three hundred fifty milligrams per liter.

"Hospital" or "general hospital" means an institution, generally designed with an integrated campus setting, for the diagnosis, care and treatment of human illness, including surgery and primary treatment. The term includes a "general hospital" designated as such pursuant to NRS 449.021 and NAC 449.285, but does not include a "specialty hospital".

"Large commercial" means an establishment of single ownership or operation which uses more than five million gallons of water per year and does not otherwise fall under any of the other user classifications.

"Laundromat" means a commercial establishment equipped with washing machines and dryers designed for customer operation.

"Laundry" means:

(1) A business establishment where members of the general public may take, upon payment of compensation, clothing, linens and fabrics to be washed; or

(2) A separate facility within a business establishment utilized to wash clothing, linens and fabrics used in the business operations of said business establishment.

"Maintenance, renovation and repair shop" means an establishment the function of which is to maintain, renovate or repair, or any combination thereof, of appliances, equipment, furniture or motor vehicles, excluding the display or sale of new or used merchandise other than that which is incorporated into the article which is so maintained, renovated or repaired.

"Mixed use operations" means two or more business operations that normally would not be considered to be in the same consumer class and are being conducted within the same building, are not completely separated by walls, and do not have separate entrances to each business operation. Sharing of fixtures by more than one business operation may or may not occur.

"Mobile home residential estate" and/or "mobile home park" means a place which is used or intended for use to park two or more trailers for occupancy as living quarters for human beings for thirty days or more.

"Motel/hotel/rooming house" means a structure containing two or more rooms wherein:

(1) Sleeping accommodations are provided in guest rooms at daily rates to tourist or transient guest; and

(2) No provision is made in any guest room for cooking food.

"Motor vehicle sales" means a facility or area used for the display and sale of automobiles, trucks, motorcycles or motor scooters. The term includes service bay and body shop operations which are incidental and accessory to the sales use.

"Multiple-family dwelling" means a structure which contains two or more attached dwelling units, each of which is located on a separate lot or elements of which are separately or individually owned. The term includes townhouse structures.

"Nightclub" includes a teenage nightclub, adult nightclub and erotic dance establishment, as those terms are defined in Title 6.

"Office" means an establishment in which the occupation or employment which is conducted therein involves predominantly mental or intellectual, rather than physical or manual, labor and skill and in which there is no display of stock or wares, no commodity sold and no commercial use conducted other than the services which are offered.

"Park or playground" means a park, playground, reservoir or athletic field, whether owned, operated or maintained by a private or public person or entity.

"Private club" means a nonprofit organization of members for the promotion of some common object which is operated solely for the benefit and use of its members and their guests and is controlled exclusively by its members.

"Recreational vehicle park" means a place which is used or intended for use to park two or more trailers for occupancy as living quarters for human beings for less than thirty days.

"Residence hotel" means a complex of multiple dwelling units used or designed for extended-stay lodging or long-term occupancy, in which:

(1) The dwelling units consist of efficiency units or suites with a complete kitchen;

(2) Customary hotel services are provided, such as linen service, maid service, telephone service and furniture upkeep; and

(3) Additional resident/guest amenities may be provided, including meeting rooms, club house facilities or recreational facilities.

"Resort hotel" means a building or a group of buildings which are designed and integrated to clearly demonstrate the appearance of one facility wherein:

(1) Sleeping accommodations are provided in guestrooms at daily rates to tourists or transient guests;

(2) No provision is made for cooking food in any guestroom, except as permitted by the provisions of LVMC Title 6, Chapter 40;

(3) There is a gaming area within the building or group of buildings;

(4) There are more than two hundred guestrooms available for sleeping accommodations;

(5) There is integrated into the facility near the area where licensed games are provided at least one restaurant with permanent seating capacity for more than sixty patrons that is open to the public twenty-four hours each day and seven days each week;

(6) There is a lobby near the restaurant and licensed games for the guests to check in and out and receive messages; and

(7) There is at least one bar with permanent seating capacity for more than thirty patrons that serves alcoholic beverages sold by the drink for consumption on the premises.

"Restaurant" means a place which is not part of a resort hotel or a motel/hotel where food is prepared and served primarily for consumption on the premises. For purposes of this Chapter, the term includes a supper club, coffeehouse, café, cafeteria or any dining establishment that provides or allows self-service in connection with the consumption of food.

"School" means an establishment, whether public or private, in which is offered a full-time academic, vocational or technical course of study or other educational services, whether elementary, secondary, or post-secondary.

"Senior apartment house" means a structure which contains three or more rental dwelling units on the same lot or parcel, in which all the units:

(1) Have an average interior square footage of eight hundred twenty-five square feet or less;

(2) Are intended and used exclusively for occupancy by persons fifty-five years of age or older; and

(3) Are limited to one or two occupants each.

"Service establishment" means an establishment the principal activity of which is to furnish service to the consuming public, excluding establishments which are subject to Chapter 14.17 of this Code, manufacturing, processing and dry-cleaning plants, laundries, and maintenance, renovating and repair shops.

"Single-family dwelling" means a dwelling unit which is located on a separate lot or elements of which are individually owned, whether or not the dwelling unit is attached to one or more other dwelling units. The term includes any dwelling which is used secondarily as a child care facility, either as a family home or a group home.

"Special care facility" means a facility used exclusively for one or more of the following:

(1) The treatment of alcohol or drug dependency; or

(2) The housing and care of persons with a physical or mental illness that requires them to be confined in an institutional facility.

"Specialty hospital" means a facility that is licensed pursuant to NRS Chapter 449 to provide medical, surgical, obstetrical or psychiatric services, or a combination thereof. The term does not include a "general hospital".

"Sports complex" means an establishment which exceeds a spectator capacity of five thousand people used for athletic events, including but not limited to baseball, basketball, soccer, rodeos and track and field events.

"Take-out restaurant" means a place which is not part of a resort hotel or a motel/hotel where food is prepared exclusively for consumption off premises.

"Tavern" means an establishment licensed as a tavern pursuant to LVMC Chapter 6.50, whether or not food is served or sold on the premises.

"Theater" means a structure which is especially adapted to dramatic, operatic or spectacular presentations, excluding cinema theaters, hotels, nightclubs and restaurants which furnish entertainment in connection with serving food or other refreshments.

"Trailer" means a vehicular structure which is built on a chassis or frame, which is designed to be used with or without a permanent foundation and which may be used as living quarters for human beings whether drawn by a motor vehicle or propelled by its own power.

"Two-family dwelling" means one or more structures designed for and occupied by two families living independently of each other in separate dwelling units on a single lot. The term includes a duplex.

* The following devices and appliances are expressly excluded from the definition of "fixture":

Air-conditioner,

Boiler,

Coffee urn,

Dental unit vacuum extraction,

Emergency equipment,

Garbage disposal unit,

Ice machine,

Ice trays,

Refrigerator,

Soft drink machine, if it has no glass fill feature, water source or drain,

Water softener.

(Ord. No. 6125, § 1, 1-5-11; Ord. 5932 § 1, 2007: Ord. 5895 § 20 (part), 2007; Ord. 5825 § 10, 2006: Ord. 5457 § 1, 2002: Ord. 5140 § 1, 1999: Ord. 5072 § 1, 1998: Ord. 4013 § 1, 1996: Ord. 3931 § 1, 1995: Ord. 3072 § 1, 1983: Ord. 2138 § 3, 1981: prior code § 8-5-1)

Article I. Service Charges

14.04.020 Equivalent residential unit (ERU) schedule.

The following equivalent residential unit (ERU) schedule shall be used in calculating the user charges:

Customer Class	Billing Unit	ERUs
Single-family dwelling	Each dwelling unit	1.00
Mobile home residential estates*	Each trailer lot	1.00
Mobile home parks	Each trailer lot	1.00
Multiple-family dwelling	Each dwelling unit	1.00
Two-family dwelling	Each dwelling unit	1.00
Condominium	Each dwelling unit	0.80
Plus: Outside fixtures in common areas	Each fixture	0.45
Apartment house	Each dwelling unit	0.80
Plus: Fixtures outside of dwelling units	Each fixture	0.45
Senior apartment house	Each dwelling unit	0.50

Customer Class	Billing Unit	ERUs
Plus: Fixtures outside of dwelling units	Each fixture	0.45
Accessory structure (Class I) and other accessory structures used for habitation	Each structure	0.60
Halfway house	Each dwelling unit	1.00
Recreational vehicle parks	Each vehicle space	0.70
Plus: Fixtures	Each fixture	0.45
Resort hotel	Each room	0.60
Plus: Fixtures outside of rooms (including fixtures in casinos and restaurants)	Each fixture	1.50
Residence hotel	Each unit	0.70
Plus: Fixtures outside of rooms	Each fixture	0.45
Casino	Each fixture	1.50
Motel/hotel/rooming house	Each room	0.60
Plus: Fixtures outside of rooms	Each fixture	0.75
Business operations not separately rated/retail sales (including motor vehicle sales and retail establishments serving food)	Each fixture	0.65
Business operations not separately rated/wholesale or service only	Each fixture	0.45
Hospital	Each bed	1.20
Specialty hospital	Each bed	1.20
Convalescent care facility/nursing home	Each bed	0.75
Special care facility	Each bed	0.75
Custodial institution	Each bed	0.50
School	Each student	0.10
Child care center	Each student	0.10
Beauty shops	Each fixture	0.50
Day spa	Each fixture	0.60
Restaurant (take out only)	Each fixture	0.45
Restaurant (with seating under 45)	Each fixture	0.65
Restaurant (with seating 45 and over)	Each fixture	1.33
Tavern (with food sales/ service)	Each fixture	1.00

Customer Class	Billing Unit	ERUs
Tavern (without food sales/ service)	Each fixture	0.65
Nightclub	Each fixture	0.65
Barbershops	Each fixture	0.30
Clinics	Each fixture	0.45
Laundromats	Each fixture	0.45
Offices, except as otherwise listed	Each fixture	0.45
Service establishments, except as otherwise listed	Each fixture	0.45
Financial institutions	Each fixture	0.30
Cinema theaters	Each fixture	0.35
Theaters	Each fixture	0.30
Maintenance, renovation and repair shops	Each fixture	0.30
Sports complexes	Each fixture	0.30
Private clubs	Each fixture	0.45
Community center	Each fixture	0.45
Park or playground	Each fixture	0.45
Church	Each fixture	0.25
Vacant establishments	Each fixture	0.25
Large commercial and other	Annual water use ÷ 90,000 gallons = No. ERUs**	
Laundries	0.85 x annual water use ÷ 90,000 gallons = No. ERUs**	Annual water use will be estimated by the Director of Public Works. After the first full year of discharging, the number of ERU's and the corresponding sewer connection fee may be adjusted at the discretion of the Director of Public Works.
Mixed use operations (within a facility that has its own separate meter to measure water consumption)	0.85 x annual water use ÷ 90,000 gallons = No. ERUs**	

Customer Class	Billing Unit	ERUs
Mixed use operations (within a facility that does not have its own separate meter to measure water consumption)	ERUs based upon customer class of the primary use	
Swimming pools—public and private—each pool by capacity		
	30,000 gallons and less	0.10
	30,001 to 99,999 gallons	0.25
	100,000 to 149,999 gallons	0.50
	150,000 to 199,999 gallons	0.65
	200,000 to 249,999 gallons	0.85
	250,000 to 299,999 gallons	1.00
	300,000 gallons or more	1.30

* Trailers which contain more than one dwelling unit shall be classified as multiple-family dwellings.

** Annual water use will be estimated by the Director of Public Works. After the first full year of discharging, the number of ERUs may be adjusted at the discretion of the Director to reflect actual use.

(Ord. No. 6100, § 1, 7-21-10; Ord. 5932 § 2, 2007: Ord. 5895 § 20 (part), 2007; Ord. 5825 § 11, 2006: Ord. 5642 § 1, 2003: Ord. 5457 § 2, 2002: Ord. 5140 § 2, 1999: Ord. 5072 § 2, 1998: Ord. 4013 § 2, 1996: Ord. 3931 § 2, 1995: Ord. 3072 § 2, 1983: Ord. 2274 § 1 (part), 1982: Ord. 2224 § 1 (part), 1981: Ord. 2138 § 5 (part), 1981: prior code § 8-5-2(A))

14.04.030 Equivalent residential unit (ERU) annual charge.

(A) The annual charge rate per ERU for a particular user shall be as set forth below (which includes the five percent assessment fee pursuant to Section 14.04.130):

User Category	Annual charge per ERU commencing January 1, 2023 through December 31, 2023
Domestic Strength	$289.12
High Strength Users:	
Bottlers	$408.63
Dairies	$378.92
Restaurants with garbage grinders	$544.90
Laundries	$382.15

(B) Commencing January 1, 2024, the charge rate per ERU set forth in Subsection (A) shall be increased by:

(1) Four percent, plus

(2) An amount equal to the charge rate of the preceding fiscal year (as actually implemented) multiplied by the lesser of five percent or the average percentage for the preceding five years of increase in the Consumer Price Index for All Urban Consumers for All Items, U.S. City Average (1982-84 = 100) that is published by the Bureau of Labor Statistics, United States Department of Labor.

(C) On January 1, 2025, as well as January 1st of each year thereafter up to and including January 1, 2032, the charge rated per ERU shall again be increased in the same manner as set forth in Subsection (B).

(D) Notwithstanding the provisions of Subsections (B) and (C), the City Manager may elect to forgo any annual increase described in those Subsections upon a determination that to do so is in the best interest of the City. Such election shall be by means of written notice to the Chief Financial Officer.

(Ord. No. 6819, § 2, 9-7-22)

Editor's note—Ord. No. 6819, § 1, adopted September 7, 2022, repealed the former § 14.04.030, and § 2 of Ord. No. 6819 enacted a new § 14.04.030 as set out herein. The former § 14.04.030 pertained to equivalent residential unit (ERU) rates and derived from Ord. No. 6076, adopted January 20, 2010 and Ord. No. 6125, adopted January 5, 2011.

14.04.040 Rebate program.

(A) The City shall establish a program by which a rebate of twenty percent of the annual sewer charge rate calculated pursuant to Section 14.04.030 may be issued to the owner of a single family dwelling who qualifies under this Section.

(B) A person qualifies for a rebate under this Section if he or she:

(1) Is an owner and occupant of the dwelling and has paid the annual sewer charge for the dwelling; and

(2) In accordance with Subsection (C) of this Section, meets the eligibility criteria for the rebate and successfully completes an application for rebate.

(C) To the extent feasible, eligibility for the rebate shall be determined (and applications processed) in accordance with the provisions of Sections 6.67.120 to 6.67.160, inclusive, relating to public utility surcharge refunds. The City may make such adaptations as deemed necessary to fit the rebate program.

(D) No more than one rebate may be issued for any particular dwelling in a given year.

(Ord. No. 6076, § 2, 1-20-10)

14.04.050 Calculation of user charges.

(A) User charges, except those to the City of North Las Vegas, shall be calculated as follows:

(1) Customer class of user is determined;

(2) Number of ERUs for user is determined;

(3) ERU rate for user is determined;

(4) Commodity charge is determined by multiplying number of user ERU's by user ERU rate;

(5) User charge is determined by adding commodity charge.

(B) User charges to the City of North Las Vegas shall be determined by agreement between the City and the City of North Las Vegas.
(Ord. No. 6274, § 1, 9-18-13; Ord. 2274 § 1 (part), 1982: Ord. 2138 § 5 (part), 1981: prior code § 8-5-2(D))

14.04.060 Mandatory monitoring and revision.

In accordance with the regulations governing acceptance of wastewater treatment facilities construction grants from the U.S. Environmental Protection Agency:

(A) The City will review not less often than every two years the wastewater contribution of users and user classes, the total costs of operation and maintenance of the treatment works, and its approved user charge system. Charges to accomplish the following:

(1) Maintain the proportionate distribution of operation and maintenance costs among users and user classes as required by PL 95-217 Section 204(b)(1)(A);

(2) Generate sufficient revenue to pay the total operation and maintenance costs necessary to the proper operation and maintenance (including replacement) of the treatment works; and

(3) Apply excess revenues collected from one particular class of users over and above that collected from the rest to the costs of operation and maintenance attributable to that class for the next year and adjust the rate accordingly.

(B) The City may have preexisting agreements which address: (1) the reservation of capacity in the treatment works, or (2) the charges to be collected in providing wastewater treatment services or reserving capacity. The user charge system shall take precedence over any terms or conditions of agreements or contracts between the grantee and users (including industrial users, special districts, other municipalities or Federal agencies or installations) which are inconsistent with the requirements of Section 204(b)(1)(A) of the Act and the applicable regulations.

(C) The City shall provide for annual customer notification, in conjunction with a regular bill, of the rate and that portion of user charges which are attributable to wastewater treatment services.

(Ord. 2274 § 1 (part), 1982: Ord. 2138 § 5 (part), 1981: prior code § 8-5-2(E))

14.04.070 Use of charges collected.

The proceeds from the charges imposed and collected under this Chapter, except those charges imposed and collected pursuant to Section 14.04.130, shall be used solely for the maintenance, operation, improvement, expansion, extension or betterment of the sanitary and storm sewer collection system, treatment facilities and reasonable appurtenances of the City and for the costs of collecting the charges imposed in this Chapter and of administering the rules of this Chapter.

(Ord. No. 6125, § 3, 1-5-11; Ord. 5932 § 4, 2007: Ord. 5642 § 3, 2003: Ord. 1420 § 3, 1969: prior code § 8-5-3)

14.04.080 Quarterly billing.

(A) All bills for services rendered by or through the municipal sewage disposal system shall be issued on a quarterly basis. Each quarterly payment must be paid in advance by the first day of the month which begins the billing cycle for the premises. Payment shall be made to the Department of Finance. Any business license for a multiple dwelling or place of business associated with a billing may be withheld or suspended for nonpayment.

(B) Customers who are owners of residential premises are required to pay the quarterly billing of the annual charge rate per ERU set forth in Section 14.04.030 whether or not the premises are occupied, notwithstanding any provision of this Chapter to the contrary.

(C) The Department shall have all powers which may be necessary or appropriate for a complete and effective exercise of its jurisdiction, including, but not limited to, the power to enter and inspect any commercial or multiple-residential premises to make determinations concerning sewer service billing. An inspection of commercial premises must be made during regular business hours. A prior appointment is required in order to perform an inspection at a residential premises, if occupied.
(Ord. No. 6255, § 1, 6-5-13; Ord. No. 6125, § 4, 1-5-11; Ord. 5642 § 4, 2003: Ord. 5457 § 3, 2002: Ord. 3931 § 3, 1995: Ord. 3413 § 1, 1989: Ord. 3379 § 2, 1988: Ord. 2224 § 2 (part), 1981: Ord. 1377 § 3 (part), 1968: prior code § 8-5-4(A))

14.04.090 Delinquency penalty.

If any portion of the sewer service bill remains unpaid for fifteen days or more following the date on which the same was due, the amount outstanding shall be deemed delinquent and a fifteen percent penalty shall be charged thereon.
(Ord. No. 6255, § 2, 6-5-13; Ord. 5642 § 5, 2003: Ord. 5457 § 4, 2002: Ord. 3413 § 2, 1989: Ord. 3379 § 3, 1988: Ord. 2224 § 2 (part), 1981: Ord. 1377 § 3 (part), 1968: prior code § 8-5-4(B))

14.04.100 Unpaid bill constitutes lien.

Until paid, the sewer service bill established by this Chapter, including any penalty thereon, shall constitute a perpetual lien on and against the real property and premises which received the sewer service, from the date the sewer service bill and penalties become due, as well as constituting a debt owing to the City by the sewer service customer and by the record owner of such property, if such owner is someone other than the sewer service customer. The City may bring a civil action in any court of competent jurisdiction to recover the amount due and penalties. Additionally, the City may enforce said lien by recording a notice of lien in the office of the County Recorder after the amount due becomes delinquent and foreclosing the same against such property in the same manner as provided by the laws of the State for the foreclosure of mechanic's liens. A service charge of seventeen dollars will be assessed the sewer service customer for a release of the lien filed with the office of the County Recorder in addition to any and all recording costs incurred by the City in recording the release of lien.
(Ord. No. 6255, § 3, 6-5-13; Ord. 3931 § 4, 1995: Ord. 2224 § 2 (part), 1981: Ord. 1377 § 3 (part), 1968: prior code § 8-5-4(C))

14.04.105 Delinquent charges to be placed on County general tax roll.

As an alternative to any other method of collection of sewer charges provided by this Chapter, the City may place delinquent sewer charges on the County's general tax roll to be

collected along with general taxes in accordance with NRS Chapter 268. The City may include in such charges any charges associated with the use of the tax roll system, the collection of delinquent charges, and the recordation and release of liens.
(Ord. 3967 § 1, 1996)

14.04.110 Connection required—Service area.

(A) The City Council has caused a survey to be made of sanitary conditions within the City, including the geological aspects in relation to industrial, business and residential establishments as the same affect the health and welfare of the inhabitants and has determined and does hereby determine that it is necessary for the protection of the public health that owners of improved property be and they are hereby required to connect their industrial, business and residential establishments to the municipal sewage disposal system, provided only that such establishments are capable of being served by and through such system at the established rates, and it shall be unlawful for any such owner to fail or refuse to connect his establishment to the municipal sewage disposal system.

(B) The City Council recognizes that there are persons owning property located outside of the City's municipal sewage disposal system service area that desire to connect properties to the system because no service is provided by the local government entity with jurisdiction over that property. In such cases, the City may permit extra-territorial property to connect to the City's municipal sewage disposal system if:

(1) The City determines there is sufficient capacity in the system to serve the property;

(2) The property owner provides the infrastructure necessary for the system to service the property;

(3) The property owner requests the local government entity with jurisdiction over the property to initiate an interlocal agreement allowing the City to provide sewer service outside the City's service area; and

(4) The property owner or occupant pays:

(a) The sewer connection fees and user charges that have been established by ordinance or resolution for service to extra-territorial properties, if such fees and charges have been established; or

(b) Otherwise, the sewer connection fees and user charges that have been established by ordinance or resolution for service to properties within the service area for the City's municipal sewage disposal system.

(C) For purposes of this Chapter, the service area for the municipal sewage disposal system is designated as any and all real property located within the corporate boundaries of the City as those boundaries may be amended from time to time. Real property located outside of the corporate boundaries of the City is deemed extra-territorial for purposes of this Section and is explicitly not a part of the City's municipal sewage disposal system service

area. Notwithstanding the provisions of this Section, the City shall continue to serve extra-territorial properties that are already connected to the City's municipal sewage disposal system.

(Ord. No. 6561, § 1, 12-21-16; Ord. No. 6433, § 1, 7-1-15; Ord. 1377 § 3 (part), 1968: prior code § 8-5-5)

Editor's note—Section 2 of Ord. No. 6561, adopted December 21, 2016 provides as follows:

"This Ordinance shall become effective on the date on which all the following events have occurred:

(A) The publication of this Ordinance in accordance with the City Charter;

(B) The repeal by the Board of County Commissioners of Clark County of Ordinance No. 4411, as demonstrated by evidence of the adoption, execution, attestation and publication of the repealing ordinance, all in accordance with NRS 244.095 and 244.100; and

(C) The withdrawal by Clark County of its bill draft request, identified as BDR 21-435 of the 79th (2017) Session and prefiled as Assembly Bill 48, as demonstrated by evidence of the withdrawal in accordance with applicable statutes, rules and procedures of the Legislative Counsel Bureau and the Nevada Legislature regarding the withdrawal of bill draft requests and associated legislation."

14.04.120 Maintenance responsibilities.

(A) It shall be the responsibility of the City to maintain all sewer collection facilities installed in City-owned rights-of-way and easements, including sewer mains.

(B) It shall be the responsibility of property owners to maintain all sewer service laterals originating on their property to the point where the laterals are connected into the sewer main. The maintenance obligation of property owners described in this Subsection (B):

(1) Extends to any portion of a sewer service lateral located within a public right-of-way or public easement;

(2) Is tied to and based upon the exclusive benefit that the sewer service lateral provides to the serviced property; and

(3) Is subject to and governed by the provisions of Section 14.04.125.

(C) For purposes of this Section:

(1) "Sewer main" means a public sewer line with a diameter that exceeds six inches (together with related appurtenances) that is located within a City right-of-way or easement and is designed to collect and convey wastewater flows from private sewer facilities and sewer service laterals.

(2) "Sewer service lateral" means a pipe or conduit that connects a building or other property to a sewer main.

(Ord. No. 6274, § 2, 9-18-13; Ord. 1966 § 1, 1978: prior code § 8-5-6)

14.04.125 Additional obligations.

In connection with the maintenance obligation described in Subsection (B) of Section 14.04.120:

(A) Each contractor that provides any maintenance or repair service with respect to a sewer service lateral must have a City business license and any and all State licenses or permits that are necessary in order to perform such services.

(B) It is unlawful for a contractor to misrepresent the maintenance obligation to a property owner, and repeated misrepresentations shall be grounds for disciplinary action against a license.

(C) In the event a property owner fails to comply with the maintenance obligation and, as a result of that failure, the public health is endangered by reason of an overflow or discharge of fluids into the public right of way, via either surface or subsurface flow, the City may undertake any action that is necessary or appropriate to resolve the cause of the overflow and mitigate the public impact. Following such action, the City may assess all its associated costs against the property owner and bill the owner for such costs, which may be processed as in the case of sewer charges in accordance with Sections 14.04.090, 14.04.100 and 14.04.105.

(Ord. No. 6274, § 3, 9-18-13)

14.04.130 Equivalent residential unit (ERU) rate—Five percent assessment.

The annual charge rate per ERU set forth in Section 14.04.030 shall include a five percent assessment for the City's use, improvement and maintenance of its rights-of-way and easements in which the City's sanitary and storm sewer system and treatment facilities are located.

(Ord. 5932 § 6, 2007: Ord. 5642 § 6, 2003)

Article II. Reserved

Article III. Occupancy Fees For Sewer Connection

14.04.200 Equivalent residential unit (ERU) schedule.

The number of equivalent residential units from which sewer connection fees will be calculated shall be determined by the Department of Community Development in accordance with the schedule set forth at LVMC 14.04.020. For purposes of calculating the fees in accordance with this Section and LVMC 14.04.210, the customer class and the number and type of fixture shall be determined from the submitted construction documents. Credit will be given for fixtures removed on an ERU for ERU basis.

(Ord. No. 6816, § 137, 8-17-22; Ord. 5457 § 6, 2002: Ord. 3931 § 6, 1995: Ord. 3072 § 5 (part), 1983)

14.04.210 Calculation of charges.

Subject to the annual evaluations provided for in Section 14.04.220, connection fees within the City shall be determined as follows:

(A) User's class is determined.

(B) According to ERU schedule the number of ERU's for the user is determined.

(C) Commencing January 1, 2023, the occupancy fee for sewer connections is calculated by multiplying the number of ERU's by two thousand five hundred fifty-one dollars.

(D) Commencing January 1, 2024, the occupancy fee for sewer connections set forth in Subsection (C) shall be increased by:

(1) Four percent, plus

(2) An amount equal to the charge rate of the preceding fiscal year (as actually implemented) multiplied by the lesser of five percent or the average percentage for the preceding five years of increase in the Consumer Price Index for All Urban Consumers for All Items, U.S. City Average (1982-84=100) that is published by the Bureau of Labor Statistics, United States Department of Labor.

(E) On January 1, 2025, as well as January 1st of each year thereafter up to and including January 1, 2032, the occupancy fee for sewer connections shall again be increased in the same manner as set forth in Subsection (D).

(Ord. No. 6819, § 3, 9-7-22)

Editor's note—Ord. No. 6819, § 1, adopted September 7, 2022, repealed the former § 14.04.210, and § 3 of Ord. No. 6819 enacted a new § 14.04.210 as set out herein. The former § 14.04.210 pertained to similar subject matter and derived from Ord. No. 3072, 1983; Ord. No. 3379, 1988; Ord. No. 3606, 1991; Ord. No. 5642, 2003; Ord. No. 5932, 2007 and Ord. No. 6816, adopted August 17, 2022.

14.04.220 Annual evaluation for future needs.

During the month of May in each year, the City will evaluate its future needs for capital improvements to the wastewater treatment system, and the occupancy fees for sewer connections specified in Section 14.04.210 shall be subject to adjustment either upward or downward to compensate for such needs. All interested individuals and groups shall be provided with notice of and the opportunity to appear and be heard at such annual evaluations.

(Ord. 3072 § 5 (part), 1983)

14.04.230 Payment of charges.

(A) Except as otherwise permitted pursuant to a program established under Subsection (B), the occupancy fee for a sewer connection must be paid at the time the building permit for the structure which will be connected to the sewer is issued.

(B) For property located within a redevelopment area created by City ordinance, the City Manager or a designee may establish and implement a program pursuant to which, in particular cases, payment of the occupancy fee for sewer connection may be deferred for a period not to exceed three years. In connection with any such program, the City Manager or designee shall establish:

(1) Eligibility criteria;

(2) An application and decision making process;

(3) Program standards and requirements, which may include the payment of interest or other charges for fee deferral based on the deferral period, and the requirement to enter into a deferral and repayment agreement; and

(4) The means by which delinquent deferred connection fees and associated interest and deferral charges may be collected, including the use of consensual or nonconsensual liens on benefited property.

(C) The City Council specifically authorizes the use of liens for collection purposes in connection with a program established under Subsection (B).
(Ord. No. 6235, § 1, 2-6-13; Ord. 3072 § 5 (part), 1983)

Article IV. New Sewers and Sewer Connections

14.04.240 Inflow source defined.

As used in this article, "inflow source" means any extraneous water generally associated with storm events, such as downspouts, area drains, sump pumps or connections from storm sewers.
(Ord. 3192 § 2, 1985)

14.04.250 Inflow source connection unlawful.

It is unlawful for any person, firm or corporation to make any new connection, or to maintain any existing connection, of an inflow source to the sanitary sewer portions of the municipal sewer system.
(Ord. 3192 § 3, 1985)

14.04.260 Design and construction.

All new sewers and sewer connections to the municipal sewer system:

(A) Must conform to the requirements of all applicable local, state and federal laws, including without limitation the provisions of the most recent edition of the "Design and Construction Standards for Wastewater Collection Systems, Southern Nevada"; and

(B) Must first be approved by the Director of Public Works or a designee.
(Ord. No. 6274, § 4, 9-18-13; Ord. 3192 § 4 (part), 1985)

14.04.270 Plans and specifications—Submission required.

Any person who proposes to connect a new sewer to the Municipal Sewer System must submit to the Director of the Department of Public Works, for his approval, construction plans and specifications and such other details as may be required by the Director in order fully to describe the proposed sewer and its connection to the Municipal Sewer System. Plans and specifications for the construction of any facility which will convey industrial wastewater, as defined in Section 14.16.020, to the Municipal Sewer System shall not be approved unless the applicant has first obtained a wastewater contribution permit pursuant to Section 14.16.060.
(Ord. 3192 § 4 (part), 1985)

14.04.280 Plans and specifications—Commencement of construction required within one year of approval.

An approval of plans and specifications for the construction of a new sewer and its connection to the Municipal Sewer System shall expire one year after the date of such approval, unless construction has commenced and is proceeding in the interim.
(Ord. 3192 § 5, 1985)

14.04.290 Inspection.

(A) No sewer may be connected to, and no wastewater may be discharged into, the municipal sewer system unless and until the construction of the sewer and its connection to the system have been inspected and approved by the Director of Community Development or a designee.

(B) The applicant or its contractor shall notify the Department of Community Development, either verbally or in writing, at least twenty-four hours before the construction work is to be inspected that the work is ready for inspection, and no work that cannot be visually inspected shall be accepted. A representative of the applicant or its contractor shall be present during the inspection by personnel of the Department of Community Development.
(Ord. No. 6816, § 139, 8-17-22; Ord. No. 6274, § 5, 9-18-13; Ord. 3192 § 6, 1985)

Article V. Reserved*

CHAPTER 14.08 WATER REGULATIONS

14.08.010 Notice of shutoff.

It shall be the duty of any person or corporation supplying water to the City and its inhabitants through mains or pipes located upon streets, alleys or public places in this City,

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***Editor's note—**Ord. No. 6125, § 5, adopted January 5, 2011, repealed Article V, §§ 14.04.300—14.04.330, which pertained to a regional sewer connection charge and derived from Ord. No. 5857, 2006 and Ord. No. 6045, adopted June 17, 2009.

whenever by reason of repairs or work, or from any cause, the water is turned off from any of such mains or pipes, to notify all the water users to be affected thereby, before the water is turned off, and the length of time they will remain without water from the mains or pipes theretofore supplying them with water, and such notice shall in all cases, except in cases of great necessity, be given to such users of water at least one hour before the water is turned off.

A failure to comply with the provisions of this Section relative to notice shall render such persons or corporation liable for all damages accruing to such water users due to the water being so shut off.
(Ord. 24 § 2, 1912: prior code § 3-2-2)

14.08.020 Leaving line during cessation of work.

In case the person or corporation mentioned in the preceding section is engaged in work upon any line of pipe necessitating the turning off of water, no such line of pipe shall be left open or empty during the night, or when work is not actually going on therein, and if any line of pipe is open at the time of quitting work, or when an alarm of fire is given, a cap or thimble shall immediately be placed closely over the mouth of such pipe, and the water left in as far as possible for the use of the Department of Fire Services of the City. Any person, superintendent, foreman or agent having charge or control of any such pipe or hydrants, in doing or ordering work done in or upon the same, who violates any provision of this section shall be guilty of a misdemeanor, and upon conviction thereof for each offense shall be fined not less than ten nor more than three hundred dollars.
(Ord. 24 § 3, 1912: prior code § 3-2-3)

14.08.030 Wasting water prohibited.

Waste of water in the City is hereby prohibited and declared unlawful.
(Ord. 247 § 1, 1943: Ord. 218 § 1, 1936: Ord. 211 § 1, 1934: prior code § 3-2-4)

14.08.040 Waste of water designated.

Any one of the following acts shall constitute waste of water, as the term is used in this Chapter:

(A) Permitting a hydrant, tap, cock or valve connected with any water system belonging to any public utility, to leak into the ground or into any sink, bowl, toilet or tub connected with a sewer or cesspool, or permitting water to drain from a person's premises into any street, alley or road, after the person permitting the same has been notified to remedy such leak or to prevent such draining by any public officer, or an agent of any public utility, as hereinafter defined;

(B) Using water from any water system belonging to any public utility for the purpose of cooling any refrigerator, refrigerating machine, ice plant, ice machine, cooler, cooling plant, cooling system, air-conditioning machine or apparatus, engine or motor, where said water, after being so used, is permitted to flow into a sewer or cesspool or onto the ground; provided, however, that the use of water for such cooling purposes is not prohibited where, after being so used, it is collected, recooled and reused, and is not permitted to flow into a sewer, cesspool, or onto the ground;

(C) Permitting water from any water system belonging to any public utility to flow from any hose, tap, valve, hydrant, pipe or cock directly into any sewer or cesspool for thirty minutes or longer without first putting such water to a beneficial use, and each thirty minutes such water is permitted to so flow shall constitute a separate offense;

(D) Permitting water to leak from any water main in a water system belonging to any public utility for an unreasonable length of time.
(Ord. 247 § 2, 1943: Ord. 218 § 2, 1936: Ord. 211 § 2, 1934: prior code § 3-2-5)

14.08.050 Public utility defined.

The term "public utility" as herein used shall mean and embrace all corporations, companies, individuals, associations, their lessees, trustees or receivers, that now or may hereafter own, operate or control any plant or equipment or any part of a plant or equipment within the City for the production, delivery or furnishing for or to other persons, firms, associations or corporations, partly or wholly from an artesian well or wells, water for business, manufacturing, agricultural, domestic or household use.
(Ord. 247 § 3, 1943: Ord. 218 § 3, 1936: Ord. 211 § 3, 1934: prior code § 3-2-6)

14.08.060 Responsibility for waste.

In any prosecution charging a waste of water as set forth in this chapter, the waste of water, together with proof that such waste originated at any residence or place of business, shall constitute in evidence a prima facie presumption that the owner, or occupant for the time being of such residence or place of business, was responsible for such waste.
(Ord. 608 § 2, 1954: prior code § 3-2-7)

14.08.070 Use of water during fire alarm.

It shall be the duty of each and every person, or the agent, servant or employee of any person, who uses or is entitled to use water from the water system which is used or entitled to be used by the City for the extinguishment of fires, to shut off and prevent the flowing and use of any water for sprinkling or watering of lawns, trees or gardens upon the premises of such person, immediately after the alarm of fire is sounded or given in the City, and the above-mentioned persons shall refrain from the use of or allowing the water to flow for such purposes until the fire, if any, is fully extinguished. Any person, or the agent, servant or employee of any person above-mentioned, who violates any of the provisions of this Section shall be guilty of a misdemeanor.
(Ord. 2193 § 1 (part), 1981: prior code § 3-1-6)

14.08.120 Covenants preventing water-efficient landscaping prohibited.

Any person(s) or association(s) are prohibited from imposing private covenants, conditions, restrictions, deed clauses or other agreements between the parties, which prevents person(s) from utilizing water-efficient landscaping in the conservation of water provided such landscaping receives appropriate architectural review approval. In any event, landscaping designs

14.08.130 Irrigation—Definitions.

For the purposes of LVMC 14.08.130 through 14.08.150, the following terms, phrases, words and their derivations shall have the following meanings:

(A) "Customer" means any person who is an owner, occupant or user of real property to which water is supplied by a public water system. "Customer" shall also mean any person who uses water supplied by a public water system, or to any person who is billed for the supply of water from a public water system, or to any person who is responsible for or otherwise has the right or permission to utilize the supply of water provided by a public water system.

(B) "Hand watering" means the use or application of water by a customer or any person through a hose connected to a piping system while such hose is hand held by an individual and such water is sporadically used for any exterior purpose or is otherwise expended outside any dwelling, building or structure.

(C) "Irrigate" means to apply or to expend water onto land whether by channels, by flooding, by sprinkling or any other means whatsoever.

(D) "Person" means any natural person, any group of persons, any firm, partnership, association, corporation, company or any other organization or entity.

(E) "Public water system" means any network of pipes, conduits, wells, machinery, reservoirs, holding tanks and any other components, including any combination thereof, which supplies water to customers who are charged a fee of any kind or nature for such service or which is designed to supply or is capable of supplying water to customers for a fee at two or more dwellings, buildings, structures or lots.

(F) "Wastewater" means treated effluent from any sewer treatment plant operated by a governmental or private entity.

(G) "Water" refers to all water, including wastewater, supplied to any customer who uses water.

(Ord. 3582 § 1 (part), 1991)

14.08.140 Irrigation—Prohibited when.

From May 1st until August 31st of each calendar year from the hours of eleven a.m. until seven p.m., it is unlawful for any customer of a public water system to use water within the City for the purpose of irrigating, regardless of method, exterior lawns, gardens, trees, grass, shrubbery or other vegetation, except as provided in LVMC 14.08.150.

(Ord. No. 6582, § 1, 6-7-17; Ord. 3582 § 1 (part), 1991)

14.08.150 Irrigation—Exceptions to LVMC 14.08.140.

The provisions of LVMC 14.08.140 do not apply to:

(A) Hand watering;

(B) Irrigation of new lawns, for a period of thirty days from planting or the date of installation;

(C) Irrigation by commercial gardens or plant nurseries licensed in accordance with LVMC Title 6, provided the licensee or his representative are personally on the premises at the time watering is taking place;

(D) Irrigation system testing after mowing to identify broken heads, and after repairs to flush lines, properly align sprinkler heads or to locate a reported leak. A test run should not exceed two minutes and the individual conducting the test must be present and observe sprinkler performance;

(E) Syringing, which is a method used to cool down "hot spots" under visible signs of stress, where one station is run manually or on large irrigation projects by hand-held remote irrigation controllers or computerized central control for no more than three minutes. The individual operating the sprinklers must be present and observe the sprinklers running;

(F) Landscape irrigation audits where the application rate and efficiency of an irrigation system is being tested by aligning heads and placing cups across the turf area and the amount of water caught in the cups is measured. Testing run times of pop-up spray heads are five minutes; run times of impact and rotor heads are fifteen minutes. The auditor performing the test must be present and observe sprinkler performance.

(Ord. 3664 § 1, 1992: Ord. 3582 § 1 (part), 1991)

CHAPTER 14.10 MANMADE LAKES AND MANMADE WATER FEATURES

14.10.010 Findings.

The City Council of the City of Las Vegas finds that the rapid growth of the population and the limited supply of water in the City of Las Vegas make the conservation of water resources vital to the future growth, prosperity, health and safety of the City. The Council further finds that the use of manmade lakes and manmade decorative water features for recreational, scenic and landscape purposes is a use of the limited water supply that is wasteful and adversely impacts future growth and development in the City. The provisions of this Chapter have been enacted pursuant to the authority granted by the City Charter, NRS 268.411 and NRS 533.030 to preserve water resources for municipal and industrial uses.

(Ord. 4086 § 3, 1997)

14.10.020 Definitions.

As used in this Chapter, the following words and phrases have the meanings ascribed to them:

(A) "City Council" means the City Council of the City of Las Vegas.

(B) "Manmade decorative water feature" means any manmade stream, fountain, waterfall, reflective pool, or other manmade water feature which contains water that flows, is recirculated, or that is sprayed into the air, and is constructed for decorative, scenic or landscape purposes, except the following bodies of water:

(1) A water feature which was in existence before the effective date of the ordinance codified in this chapter, or for which final development approvals and permits have been obtained by that date;

(2) A water feature constituting a wetlands project or located in a recreational facility which is owned or operated by a governmental entity; or

(3) A manmade lake, as defined in Subsection (C) of this Section.

(C) "Manmade lake" means any manmade body of water, whether potable or otherwise, including a lake or reservoir (excluding a fully enclosed, fully contained tank-type reservoir), which is used or intended to be used for recreational, scenic or landscape purposes, except the following bodies of water:

(1) A body of water which was in existence before the effective date of the ordinance codified in this chapter, or for which final development approvals and permits have been obtained by that date;

(2) A body of water constituting a wetlands project or located in a recreational facility which is owned or operated by a political subdivision of this state and utilizes nonpotable water;

(3) A body of water which is located in a recreational facility that is open to the public and owned or operated by the United States, the State of Nevada, or any other governmental entity;

(4) A body of water which stores water for use in flood control, in meeting peak water demands or for purposes relating to the treatment of sewage by a political subdivision of this State;

(5) A body of water which stores water for use by the Las Vegas Valley Water District or by a water district created pursuant to NRS Chapter 318;

(6) A swimming pool or spa that is subject to the requirements of LVMC Chapter 16.30;

(7) A body of water which stores and distributes water or sewage effluent for use by an irrigation district created pursuant to NRS Chapter 539;

(8) A body of water which stores water used in a mining reclamation project; or

(9) A manmade decorative water feature, as defined in Subsection (B) of this Section.

(D) "Shallow groundwater aquifer" means a region of elevated groundwater caused by secondary recharge, for which the State Engineer has issued a permit in accordance with NRS 534.050, to pump water to alleviate potential nuisances or hazards to persons or property resulting from the rise of groundwater.

(Ord. No. 6843, § 1, 8-16-23; Ord. 4086 § 4, 1997)

14.10.030 Unlawful use of water.

It is unlawful to use any potable water or shallow aquifer groundwater for the purpose of filling or refilling a manmade lake or manmade decorative water feature.
(Ord. No. 6843, § 2, 8-16-23; Ord. No. 6582, § 2, 6-7-17; Ord. 4086 § 5, 1997)

14.10.040 Reserved.

Editor's note—Ord. No. 6582, § 6, adopted June 7, 2017, repealed § 14.10.040, which pertained to decorative water features—maximum area and derived from Ord. No. 4086, 1997.

CHAPTER 14.11 DROUGHT PLAN

14.11.010 Purpose.

This Chapter is intended to establish water conservation measures and enhance efficient utilization of water resources.
(Ord. No. 6582, § 3, 6-7-17; Ord. 5616 § 2, 2003)

14.11.020 Definitions.

For purposes of this Chapter, the following terms shall have the meanings ascribed to them, unless the context requires otherwise:

"District" means the Las Vegas Valley Water District.

"Drought" means a condition in which the combination of many complex factors acting and interacting with the environment results in water supplies not being replenished normally. For purposes of this Chapter, a "drought" occurs when existing water supplies cannot meet established demands for a period of time.

"Functional turf" refers to that term as defined by the Service Rules, and means an irrigated turf or grass area that:

(1) Provides a recreational benefit to the City;

(2) Is completely contiguous;

(3) Is not less than thirty feet in any dimension;

(4) Is one thousand five hundred square feet in area or greater;

(5) Is installed on a slope of less than twenty-five percent; and

(6) Is located at least ten feet away from the back of curb of a public or private street.

The term includes, but is not limited to:

i. Active or programmed recreational turf, including for parks and park athletic fields, playgrounds, schools, cemeteries, daycares, community centers, plazas;

ii. Areas for animal and pet relief, including for veterinarian or boarding facilities with an exception of up to a maximum of two hundred square feet;

iii. Golf course play areas and practice facilities; and

iv. Multi-family, mixed-use, and transit-oriented residential property used by tenants for recreation or leisure, but only to the extent conforming with applicable turf limitations set forth in this Title.

"Nonfunctional turf" refers to turf other than functional turf, and means an irrigated turf or grass area not providing functional use to the City, including, but not limited to:

(1) Turf installed at an entryway or driveway to a park, commercial property entrance, neighborhood, or subdivision;

(2) Turf within a street median, amenity zone, or along a streetscape; and

(3) Turf within landscape maintenance or common areas not otherwise qualifying as functional.

"Non-potable water" means water not suitable for drinking.

"Potable" water means water suitable for drinking.

"Raw Water" means non-potable water diverted from a natural source, subjected to minimal or no treatment, and delivered to a user for subsequent treatment or use.

"Reclaimed Water" means municipal wastewater that has been treated to meet all applicable federal, state and local standards for use in approved applications, including without limitation landscape irrigation, construction and industrial cooling. For purposes of this Chapter, "reclaimed water" and "recycled water" are equivalent terms.

"Resort Hotel" means any building or group of buildings that is maintained as and held out to the public to be a hotel where sleeping accommodations are furnished to the transient public and that has:

(1) More than two hundred rooms available for sleeping accommodations;

(2) At least one bar with permanent seating capacity for more than thirty patrons that serves alcoholic beverages sold by the drink for consumption on the premises;

(3) At least one restaurant with permanent seating capacity for more than sixty patrons that is open to the public twenty-four hours each day and seven days each week; and

(4) A gaming area within the building or group of buildings.

"Service Rules" means the service rules that have been adopted by the District.

"Southern Nevada Water Authority" or "SNWA" means the organization by that name that has been formed by cooperative agreement among local agencies to address Southern Nevada's water needs on a regional basis.

"Spray irrigation" means the application of water by means of sprinklers or other devices that disperse droplets of water through the air.

"Water Use Reduction Plan" means a document or documents to be submitted by or on behalf of an applicant in connection with a request to exempt fountains or water features from the prohibitions contained in this Chapter. The term includes a plan that is modeled after the Water Efficiency and Drought Response Plan outline or similar document that may have been approved for use by the District or the City Manager.

"Xeriscape" means a type of landscaping that incorporates drought-tolerant and low water-use plants with an organic or inorganic surface mulch layer as a water-efficient alternative to traditional turfgrass landscaping.
(Ord. No. 6843, § 3, 8-16-23; Ord. No. 6068, § 1, 12-2-09; Ord. 5765 § 1, 2005: Ord. 5647 § 2, 2003: Ord. 5616 § 3, 2003)

14.11.030 Reserved.

Editor's note—Ord. No. 6582, § 7, adopted June 7, 2017, repealed § 14.11.030, which pertained to drought plan—adopted by reference and derived from Ord. No. 6068, adopted December 2, 2009; Ord. No. 5765, 2005; Ord. No. 5707, 2004; Ord. No. 5647, 2003 and Ord. No. 5616, 2003.

14.11.040 Applicability.

Except as otherwise provided, the provisions of this Chapter shall apply to the use of water that is delivered by a purveyor or provider of water from or through a public water supply system, including recycled, reclaimed, raw, non-potable and potable water.
(Ord. 5707 § 2, 2004: Ord. 5616 § 5, 2003)

14.11.050 City Manager—Responsibilities.

Except as otherwise provided in this Chapter, the City Manager shall be responsible for the administration and implementation of the provisions of this Chapter. The District shall be responsible for enforcing its service rules.
(Ord. 5616 § 6, 2003)

14.11.060 Standards and requirements—Waiver by City prohibited.

The standards and requirements set forth in this Chapter may not be waived or varied by the City. A request for waiver or variance shall be considered a request to amend the requirements of this Chapter, and shall only be considered in accordance with the procedures applicable to amendments. However, the City Manager may allow an exemption from the requirements or provisions of this Chapter when, in the City Manager's opinion, the exemption will protect the public health, safety and welfare, and will be beneficial to the District's water system. Examples of activities that may be exempted include hydrant flushing, valve testing, and system maintenance.
(Ord. 5616 § 7, 2003)

14.11.070 Wasting water after notice given.

(A) It is unlawful for any owner, occupant, or manager of real property served by a water provider to waste water after a notice of water waste has been issued. The waste of water includes without limitation the following:

(1) Allowing water to flow or spray into a public street, alley, right-of-way, gutter or drain; and

(2) Failure to repair a water leak.

(B) It is unlawful for anyone to permit the excess use, loss or escape of water through a break, leak or malfunction in the water user's plumbing or distribution facilities for any period of time after the excess use, loss or escape should have been reasonably discovered and corrected.

(C) Where public sewer is available, swimming pool water, when drained, must be discharged into an approved-type receptor and subsequently into a public sewer in accordance with applicable laws and regulations.
(Ord. 5616 § 8, 2003)

14.11.080 Violation—Prima facie evidence.

Any waste of water or other violation of this Chapter, together with proof that the waste or violation originated or took place at any particular residence or place of business, shall constitute, in evidence, a prima facie presumption that the owner, current occupant, or manager of real property of such residence or place of business was responsible for the waste or other violation.
(Ord. 5616 § 9, 2003)

14.11.090 Water uses—Prohibited—Hours designated.

Between May 1st and August 31st, it is unlawful to use water for the spray irrigation of turf, gardens, trees, shrubbery, or other vegetation between the hours of eleven a.m. and seven p.m.
(Ord. No. 6582, § 4, 6-7-17; Ord. 5616 § 10, 2003)

14.11.100 Spray irrigation—Frequency allowed—Violation.

(A) It is unlawful to use water for the spray irrigation of turf, gardens, trees, grass, shrubbery, or other vegetation at a greater frequency than that described in the service rules, or on a day other than one designated by the District for that user in accordance with the service rules. The days permitted for watering for a particular user will depend on the user's location within certain regions that are or may be designated by the District. The District is authorized to divide its service area within the City into various regions for purposes of establishing watering schedules and for water conservation purposes generally, and to revise the designation and makeup of those regions as deemed necessary, with due notice to the public.

(B) It is unlawful to install a spray irrigation system in connection with any new development, regardless of landscaping or groundcover type, except in areas where functional turf is permitted in accordance with LVMC 14.11.140 and its installation is in accordance with applicable development standards set forth in LVMC Title 19.
(Ord. No. 6843, § 4, 8-16-23; Ord. 5616 § 11, 2003)

14.11.110 Water restrictions—Exemptions.

The following are exempt from the watering restrictions described in Section 14.11.100 above:

(A) Hand watering for the purpose of preserving lawn or shrubbery so that vegetation does not die;

(B) Irrigation of new lawns or re-seeding of an existing lawn, for a period of thirty days from the date of planting or installation;

(C) Drip and/or bubbler irrigation systems, provided that they are not run more frequently than would be permitted for spray irrigation;

(D) Irrigation of commercial stock by commercial gardens or plant nurseries that are licensed by the City, provided that the licensee or a representative is personally on the premises at the time the irrigation is taking place;

(E) Testing of landscape irrigation systems, provided that the person performing the test is present to observe system performance;

(F) Municipal operations or procedures that are necessary to protect the health, safety and well-being of the public; and

(G) Such other activities as may be exempted under the service rules, including an exemption from the mandatory watering schedule for properties that use automated weather-based controllers ("smart controllers"). The availability and duration of any such exemption shall be in accordance with the service rules and subject to the approval of the District.

(Ord. 5944 § 1, 2007: Ord. 5616 § 12, 2003)

14.11.120 Reserved.

Editor's note—Ord. No. 6843, § 5, adopted August 16, 2023, repealed § 14.11.120, which pertained to watering of community use recreational turf and derived from Ord. No. 5616, 2003.

14.11.130 Landscape materials—Generally.

Landscape materials shall be limited as described in Sections 14.11.140 and 14.11.150 of this Chapter. Landscape materials that were approved in connection with the approval of a land use application or permit for construction that was granted before August 1, 2003, are not subject to the limitations contained in those Sections.
(Ord. 5616 § 14, 2003)

14.11.140 Installation of functional/nonfunctional turf.

(A) Single-family and multifamily developments are prohibited from installing nonfunctional turf in common areas of residential neighborhoods.

(B) Except as otherwise provided in Subsection (C), the installation of new functional or nonfunctional turf in non-residential developments is prohibited.

(C) New functional turf may be installed only at schools, cemeteries, and parks, whether privately or publicly owned or maintained.

(D) No nonfunctional turf may be installed on any property developed or constructed on or after September 1, 2023. This prohibition applies without limitation to the front, side and rear yard areas of single-family development.
(Ord. No. 6843, § 6, 8-16-23)

Editor's note—Ord. No. 6843, § 5, adopted August 16, 2023, repealed the former § 14.11.140, and § 6 of Ord. No. 6843 enacted a new § 14.11.140 as set out herein. The former § 14.11.140 pertained to new turf installation—generally and derived from Ord. No. 5616, § 15, 2003 and Ord. No. 6068, adopted December 2, 2009.

14.11.150 Reserved.

Editor's note—Ord. No. 6843, § 5, adopted August 16, 2023, repealed § 14.11.150, which pertained to new turf installation—residential and derived from Ord. No. 5616, 2003; Ord. No. 5908, 2007; Ord. No. 5944, 2007 and Ord. No. 6068, December 2, 2009.

14.11.160 Cooling system provisions.

Outdoor mist cooling systems are not restricted within residential development. In commercial operations, outdoor mist cooling systems relating to animal safety are permitted, but those relating to human comfort are permitted only during the months of June, July and August, and only between the hours of twelve noon and ten p.m.
(Ord. No. 6068, § 5, 12-2-09; Ord. 5707 § 3, 2004: Ord. 5616 § 17, 2003)

14.11.170 Washing paved surfaces, buildings or equipment.

The washing of paved surfaces, buildings, or equipment (other than vehicles) is prohibited unless the water is discharged to a sanitary sewer in accordance with applicable laws and regulations or is contained on site.
(Ord. 5616 § 18, 2003)

14.11.180 Washing personal and commercial vehicles.

The washing of personal vehicles upon residential properties is limited to once per week per vehicle and requires a positive shut-off nozzle. Commercial vehicles may be washed without limitation as to frequency, but only:

(1) At a commercial facility in accordance with applicable laws and regulations; or

(2) By means of a high-pressure, low volume sprayer using less than ten gallons per vehicle.

(Ord. No. 6068, § 6, 12-2-09; Ord. 5707 § 4, 2004: Ord. 5616 § 19, 2003)

14.11.190 Fountains and water features—Prohibitions—Exceptions.

(A) Except as otherwise provided by this Section, fountains and water features are prohibited upon property that is serviced by the District. The following features are automatically exempt from this prohibition:

(1) Swimming pools;

(2) Fountains and water features that are supplied by privately-owned water rights, by water rights obtained by means of a State-issued permit, or by nuisance water discharged during normal facility dewatering;

(3) Not more than one fountain or other water feature at any single-family residence, provided that the surface area of the fountain or other water feature does not exceed ten square feet;

(4) Not more than one fountain or other water feature within the common areas of a single-family or multi-family development, provided that the fountain or other water feature is not an entryway or streetscape feature and its surface area does not exceed ten square feet;

(5) Fountains or water features within public parks and public or private recreational water parks, provided that the fountains or water features have a recreational function and are not merely decorative;

(6) Indoor water features; or

(7) Fountains or water features necessary to sustain aquatic animals, provided that the animals have been actively managed within the water feature prior to February 20, 2003.

(B) Under a previous version of this Section, certain features not automatically exempted could be granted exemption pursuant to a formal exemption request process. Such exemptions required the payment of annual fee for subsequent years. Such exemptions previously granted may be extended in the future by the payment of an annual fee of one thousand dollars.

(C) Nothing in this Section that prohibits fountains or water features shall be deemed to require a fountain or water feature to be drained if maintaining a recirculating water pool is necessary in order to maintain pumps, pond liners and ancillary equipment. However, in any such case the recirculating water pool may only be operated between the hours of one a.m. and four a.m.

(Ord. No. 6843, § 8, 8-16-23)

Editor's note—Ord. No. 6843, § 7, adopted August 16, 2023, repealed the former § 14.11.190, and § 8 of Ord. No. 6843 enacted a new § 14.11.190 as set out herein. The former

§ 14.11.190 pertained to potable or non-potable water utilization—prohibitions—exceptions and derived from Ord. No. 5647, 2003; Ord. No. 5707, 2004; Ord. No. 6068, adopted December 2, 2009 and Ord. No. 6582, adopted June 7, 2017.

14.11.193 Limitations on new residential swimming pools, spas and hot tubs.

No swimming pool, spa, or hot tub exceeding a total combined surface area of six hundred square feet shall be constructed on any single-family residential property on or after September 1, 2023. For any swimming pool, spa, or hot tub with a permit issued prior to September 1, 2023, or for any addition to an existing swimming pool on or after September 1, 2023, the total combined surface area shall not be increased above six hundred square feet.
(Ord. No. 6843, § 8, 8-16-23)

14.11.195 New golf courses prohibited.

No golf course is eligible to be permitted for construction on or after September 1, 2023. This provision shall not be construed to prohibit the construction of a golf practice facility, a miniature golf-course, or a limited-scale golfing facility for practice or casual recreation with a length of four thousand yards or less.
(Ord. No. 6843, § 8, 8-16-23)

14.11.197 Septic systems.

(A) Except as otherwise permitted by the General Manager of SNWA, no septic system that will use the waters of the Colorado River shall be constructed or installed on any single-family residential property on or after September 1, 2023.

(B) In the case of the removal of any existing septic system, whether located on residential or nonresidential property, any future use of that property requires connection to the public sanitary sewer system, as well as installation and maintenance in accordance with City standards.
(Ord. No. 6843, § 8, 8-16-23)

14.11.200 Private covenant, condition, restriction, deed clause—Enforcement.

No person or association may impose or enforce any private covenant, condition, restriction, deed clause or other agreement to prevent a person from utilizing water efficient landscaping, including without limitation xeriscape, provided such landscaping receives appropriate architectural review approval. In any event, landscaping materials and designs may not be prohibited solely on the basis that they make use of water-efficient landscaping.
(Ord. 5616 § 21, 2003)

14.11.210 Violations.

Violations of the provisions of this Chapter may be prosecuted as misdemeanors or may be addressed by applicable civil administrative procedures established by the District in its service rules.
(Ord. 5616 § 22, 2003)

CHAPTER 14.12 MUNICIPAL CEMETERY

14.12.010 Authority.

The municipal cemetery is under the general direction of the City Manager. However, the City Manager may assign the authority and responsibilities regarding the cemetery to a City department or to another person or entity by means of contract. The department, person or entity so assigned shall function as the Administrator for purposes of this Chapter. The Administrator is authorized to adopt regulations governing the cemetery. Such regulations may include without limitation regulations that pertain to or govern:

(A) The sale and conveyance of cemetery lots;

(B) The use of caskets and other burial alternatives;

(C) Plantings, decorative materials, memorabilia and other items related to burial plots;

(D) Headstones, tombstones, markers, monuments and other installations; and

(E) Limitations on the use of cemetery property for events or occasions such as picnics, celebrations, camping and other uses that are inconsistent or conflict with the property's use as a cemetery.
(Ord. No. 6856, § 1, 1-3-24)

14.12.020 Unlawful burial.

It is unlawful for any person to bury or cause to be buried the body of a deceased person in the municipal cemetery unless:

(A) The burial is under the direction of the Administrator;

(B) The burial is pursuant to written direction or consent by the owner of the cemetery lot in which the burial will take place, or the written direction or consent of the nearest next of kin if the body is that of the owner of the lot; and

(C) The cemetery lot in which the burial will take place has been paid for in full and a cemetery deed of conveyance has been executed and delivered therefor.
(Ord. No. 6856, § 1, 1-3-24)

14.12.030 Unlawful disinterment.

It is unlawful for any person to disinter the body of a deceased person in the municipal cemetery unless the disinterment:

(A) Has been approved and is under the supervision of the Administrator; and

(B) Takes place under the authority of a disinterment permit from the Southern Nevada Health District and is in accordance with applicable requirements of Nevada Revised Statutes.

(Ord. No. 6856, § 1, 1-3-24)

14.12.040 Sale of lots.

The Administrator or a designee shall oversee the sale of lots in the municipal cemetery in accordance with cemetery regulations established pursuant to LVMC 14.12.010. Such sales are subject to a schedule of prices and fees to the extent such a schedule has been approved by the Administrator. The Administrator or designee shall employ such forms of purchase agreements, payment plan arrangements, and deeds of conveyance as are appropriate. Purchase agreements and deeds of conveyance shall include a recitation that the ownership, use, and care of cemetery lots and graves are subject to such regulations as have been established by the Administrator. The Administrator is authorized to keep such records regarding the operation of the cemetery as deemed necessary or appropriate.

(Ord. No. 6856, § 1, 1-3-24)

14.12.050 Conveyance—Fee.

Whenever a cemetery lot that has been purchased from the City is conveyed to a third party, notice of such conveyance shall be given to the Administrator. Whenever a cemetery lot is conveyed to a third party or reconveyed to the City, the Administrator is authorized to charge a reasonable fee in accordance with the fee schedule referred to in LVMC 14.12.040.

(Ord. No. 6856, § 1, 1-3-24)

14.12.060 Caskets required.

All interments must be in a casket enclosed in an outside burial case of steel, concrete or fiberglass, or as otherwise permitted by cemetery regulations established by the Administrator.

(Ord. No. 6856, § 1, 1-3-24)

14.12.070 Interments on weekends/holidays.

Interments on Saturdays, Sundays or holidays are subject to the payment of additional fees as may be set forth in the fee schedule referred to in LVMC 14.12.040.

(Ord. No. 6856, § 1, 1-3-24)

14.12.080 Permit required.

Interments and disinterments are subject to the production of associated permits from the Southern Nevada Health District and such other processing of permits as may be required by the Health District.
(Ord. No. 6856, § 1, 1-3-24)

14.12.090 Monuments and markers.

All headstones, tombstones, markers or monuments to be placed on graves must first be approved by the Administrator before installation. Headstones may not be installed unless by the Administrator or an authorized representative. The Administrator has the discretion, but no obligation, to, replace, repair or restore monuments and markers. After the installation of a monument or marker, the City shall have no liability for the natural deterioration of that marker or monument, or for damage to the monument or marker not caused by the City or its Administrator or agents.
(Ord. No. 6856, § 1, 1-3-24)

14.12.100 Plantings.

No plantings are allowed in the municipal cemetery unless first approved by the Administrator and in accordance with regulations regarding plantings as have been established by the Administrator.
(Ord. No. 6856, § 1, 1-3-24)

14.12.110 Artificial turf/alternative landscaping—Prohibited.

Except to the extent installed by or on behalf of the City or the Administrator, the installation of artificial turf or alternative landscaping is prohibited and is subject to removal by the Administrator. Items that do not conform to established cemetery regulations, as well as items that will impact regular maintenance of the cemetery, are subject to removal by the Administrator.
(Ord. No. 6856, § 1, 1-3-24)

14.12.120 Limitation of liability.

Neither the City nor the Administrator shall have liability or responsibility for items placed on or near burial plots, including without limitation flowers, plants, decorative materials, memorabilia and other similar items.
(Ord. No. 6856, § 1, 1-3-24)

14.12.130 Defacement.

It is unlawful for any person, firm or corporation to injure or deface, or cause to be injured or defaced, any headstone, tombstone, marker, monument, tree, shrub, or any other property in the municipal cemetery.
(Ord. No. 6856, § 1, 1-3-24)

14.12.140 Speeding.

It is unlawful for any person to ride or drive any vehicle within the limits of any municipal cemetery at a rate of speed in excess of the posted speed limit.
(Ord. No. 6856, § 1, 1-3-24)

14.12.150 Animals prohibited.

Except as otherwise provided in this Section, it is unlawful for any person to bring into the municipal cemetery any dog, cat, or other animal, or for the owner of any such animal to permit the animal to remain within the cemetery. Bringing an animal into the cemetery by means of a vehicle is not a violation of this Section if the animal remains in the vehicle at all times.
(Ord. No. 6856, § 1, 1-3-24)

14.12.160 Endowment and perpetual care funds.

Funds that have been received and established for endowment and perpetual care purposes are to be maintained and administered in accordance with Nevada Revised Statutes.
(Ord. No. 6856, § 1, 1-3-24)

14.12.170 Noncompliance.

It is unlawful to violate or fail to comply with a cemetery regulation established by the Administrator pursuant to this Chapter.
(Ord. No. 6856, § 1, 1-3-24)

CHAPTER 14.17 WASTEWATER COLLECTION AND TREATMENT*

14.17.005 General provisions.

(A) *Purpose and policy.* This Chapter sets forth uniform requirements for all industrial users that discharge wastewater into the publicly-owned treatment works (POTW), or that have the potential to do so. This Chapter also enables the City to comply with all applicable State and Federal laws, including the Federal Clean Water Act (33 United States Code Section 1251 et seq.), and the General Pretreatment Regulations (Title 40, Part 403 of the Code of Federal Regulations) and the POTW's National Pollutant Discharge Elimination System (NPDES) Permit issued by the Nevada Division of Environmental Protection (NDEP). This Chapter shall apply to all industrial users connected to the POTW.

***Editor's note—**Ord. No. 6891, § 1, adopted November 6, 2024, repealed Ch. 14.17 and § 2 of the same enacted a new Ch. 14.17 as set out herein and as may later be amended. Former Ch. 14.17 pertained to similar subject matter and derived from Ord. No. 6271, adopted September 18, 2013; Ord. No. 6105, adopted August 4, 2010; Ord. 3713, adopted 1993; and Ord. 3447, adopted 1989.

(B) *Objectives.* The objectives of this Chapter are to:

(1) Prevent the introduction of pollutants into the POTW which will interfere with its operation, including interference with its use of disposal of municipal sludge;

(2) Prevent the introduction of pollutants into the POTW which will pass through the treatment works, inadequately treated, into receiving waters, or otherwise be incompatible with the POTW;

(3) Protect the health, safety and welfare of both POTW personnel who may be affected by wastewater and sludge in the course of their employment, as well as the general public;

(4) Improve the opportunity to recycle and reclaim municipal and industrial wastewater and sludge from the POTW;

(5) Provide for fees, charges, assessments, fines and penalties for the equitable distribution of the cost of operation, maintenance and improvement of the City's POTW and pretreatment program; and

(6) Enable the City to comply with its NPDES permit conditions, Federal and State requirements applicable to sludge use and disposal, and any other Federal or State laws or regulations to which the POTW is subject.

(C) *Authority of the Director.* Except as otherwise provided, the Director shall administer, implement and enforce the provisions of this Chapter. Any powers granted to or duties imposed upon the Director may be delegated by the Director to other City personnel.

(D) *Notification to industrial users.* The Director shall attempt to notify in writing any industrial user whom the City has reason to believe is subject to a National Categorical Pretreatment Standard or Requirement, or other applicable requirements promulgated by the EPA under the provisions of Section 204(b) or 405 of the Act, or under the provisions of sections 3001, 3004, or 4004 of the Solid Waste Disposal Act. Failure of the City to so notify industrial users shall not relieve those industrial users from the responsibility of complying with applicable requirements. It is the responsibility of a significant industrial user (SIU) to apply for and receive a permit prior to discharge, whether or not the SIU has been identified and formally requested to do so.

(E) *Discharge by industrial users.* If wastewaters containing any pollutant, including excess flow, or as otherwise defined in this Chapter, are proposed to be discharged, are discharged, or have the potential to discharge in the opinion of the Director, the Director may take any action necessary to:

(1) Prohibit the discharge of such wastewater;

(2) Require an industrial user to demonstrate that in-plant facility modifications will reduce or eliminate the discharge of such substances in conformity with this Chapter;

(3) Require treatment, including storage facilities or flow equalization necessary to reduce or eliminate the potential for a discharge to violate this Chapter;

(4) Require an industrial user making, causing or allowing the discharge to pay any additional cost or expense incurred by the City for handling, treating, disposing or remediation costs because of wastes discharged to the POTW;

(5) Require an industrial user, including those with zero discharge, to apply for and obtain an industrial wastewater permit, authorization to discharge, or other control mechanism;

(6) Require timely and factual reports from the industrial user; or

(7) Otherwise meet the objectives of this Chapter.

(Ord. No. 6891, § 2, 11-6-24)

14.17.010 Definitions, acronyms and abbreviations.

(A) *Definitions.* For the purposes of this Chapter and except as the context otherwise requires, the following terms, phrases, words and their derivations shall have the meanings provided in this Chapter and applicable Federal and State statutes, rules, or regulations that apply to the activity being regulated. Words not otherwise defined, shall be given their common and ordinary meaning.

"Act" or "the Act" means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. § 1251 et seq.

"Approval authority" means the EPA Region 9 Regional Administrator, or upon State program authorization, the Director of the Nevada Division of Environmental Protection.

"Authorized representative" or "duly authorized representative of the industrial user" means:

(1) If the industrial user is a corporation:

(a) The president, secretary, treasurer, or vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

(b) The manager of one or more manufacturing, production, or operating facilities, provided the manager:

(i) Is authorized to make management decisions that govern the operation of the regulated facility, including having the explicit or implicit duty of making major capital investment recommendations, and of initiating and directing other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations;

(ii) Can ensure that the necessary systems are established or actions taken to gather complete and accurate information for industrial wastewater permits or other control mechanism and for reporting requirements established by the City; and

(iii) Has been assigned or delegated the authority to sign documents in accordance with corporate procedures.

(2) If the industrial user is a partnership or sole proprietorship, a general partner or proprietor, respectively;

(3) If the industrial user is a limited liability company, the managing member(s) of the limited liability company;

(4) If the industrial user is a Federal, State, or local governmental facility, a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or designee of such official; or

(5) With respect to any type of industrial user identified in subsections (1) through (4) above, another person who has been designated by an individual described in the applicable subsection if the designation is made in writing, specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and is submitted to the City.

"Best management practices" or "BMPs" refers to practices or combination of practices determined to be an effective means of implementing the prohibitions listed in Section 14.17.015. BMPs may include schedules of activities, prohibitions of practices, maintenance procedures, and other management practices, such as treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage. BMPs shall be considered local limits and pretreatment standards for the purposes of this Chapter and Section 307(d) of the Act as specified at 40 CFR 403.5(c)(4). NOTE: BMPs may also include alternative means (such as management plans) of complying with, or in place of compliance with, certain categorical pretreatment standards and effluent limits.

"Biochemical oxygen demand," "five-day biochemical oxygen demand" or "BOD_5" means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at 20°C expressed in milligrams per liter (mg/L) by weight using methods approved under 40 CFR Part 136 or procedures that have been approved by NDEP.

"Bypass" means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility, which are subject to the notice requirements of 40 CFR 403.17 and LVMC 14.17.085(C).

"Categorical industrial user" or "CIU" means an industrial user subject to a categorical pretreatment standard.

"Categorical pretreatment standard" or "categorical standard" means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act (33 U.S.C. § 1317), as amended, that apply to a specific category of industrial users and that appear in 40 CFR Chapter I, Subchapter N, Parts 405—471.

"City's pretreatment program" means the program administered by the POTW that is designed to meet the requirements of applicable Federal and State law and regulations and that is governed by this Chapter.

"Class I industrial user" has the same meaning as an "SIU," as defined in this Section.

"Class II industrial user" means an industrial user that is not a Class I industrial user and to whom the City has used its discretion to issue a permit, authorization to discharge, or other control mechanism pursuant to LVMC 14.17.030.

"Composite sample" means a representative flow-proportioned sample generally collected within a twenty-four (24) hour period or in accordance with the industrial user's operating data, as appropriate. The aliquots are combined according to flow. Time-proportional sampling may be approved or used by the City where time-proportional samples are believed representative of the discharge.

"Contributing jurisdiction" means a municipality other than the City that contributes wastewater to the POTW.

"Control mechanism" means a governmentally issued mechanism used to control an industrial user's discharge to the POTW in a manner designed to protect the POTW and to ensure compliance with pretreatment and related standards. The term may include without limitation a discharge permit or other authorization to discharge.

"Cooling water" includes:

(1) *Contact.* Water used for cooling purposes which comes in contact with any raw material, intermediate product, waste product or finished product.

(2) *Noncontact.* Water used for cooling purposes which does not come in contact with any raw material, intermediate product, waste product or finished product and the only pollutant added is heat.

"Daily maximum discharge limit" means the maximum allowable discharge limit of a pollutant that may be discharged during a twenty-four (24) hour period or as specified in an industrial wastewater discharge permit. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the sampling period. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken during that sampling period.

"Director," unless otherwise specified, means the City's Director of Public Works, or the Director's designee.

"Effluent" means the liquid outflow from any treatment plant or facility that is designated to treat, convey or store wastewater, liquid waste or industrial waste.

"Excess strength waste" means wastewater or waste that exceeds in any respect the concentration limits of normal domestic strength wastewater or exceeds other applicable discharge limits, maximum concentrations, or surcharge concentrations as described in Section 14.17.015.

"Existing source" means a CIU that is not a new source.

"Extra-jurisdictional user" means an industrial user located outside the City limits that contributes wastewater to the POTW.

"Fee" means any charge to a person that is made under this Chapter, including each fee chargeable by or on behalf of the City pursuant to this Chapter.

"Grab sample" means a sample which is taken from a wastestream on a one-time basis with no regard to the flow in the wastestream and over a period of time not to exceed fifteen minutes.

"Grease interceptor" means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept non-petroleum FOG from a wastewater discharge. The term includes GGIs and HMGIs. The acronyms appearing in this definition are as defined in LVMC 14.17.070(B).

"Hazardous waste" means any waste designated as hazardous under the provisions of 40 CFR Part 261 and NRS 459.430.

"Holding tank waste" means any liquid, solid material or waste from a holding tank, such as septic tank waste, as well as waste from tanks associated with vessels, chemical toilets, campers, trailers, vacuum pump tank trucks or other tanker trucks.

"Indirect discharge" means the discharge or introduction of pollutants into the POTW from any industrial user as defined in this Chapter and all other industrial users regulated under Section 307(b), (c) or (d) of the Act (33 U.S.C. § 1317), including holding tank waste from a user discharged into the POTW.

"Industrial waste" means a liquid or solid waste from industrial manufacturing processes, trade or business activities.

"Industrial user" or "IU" means a source of indirect discharge or any other industrial or commercial facility or business that has a sewer connection to the POTW. The term also includes an industrial user to whom the City has used its discretion to issue a permit, authorization to discharge, or other control mechanism pursuant to LVMC 14.17.030.

"Industrial wastewater discharge permit" means a type of control mechanism issued by the City to an industrial user that allows, limits or prohibits the discharge of pollutants or flow to the POTW as set forth in this Chapter.

"Interceptor" means any grease interceptor (GGI or HCMI), sand/oil interceptor or any other device that is designed, constructed and operated for the purpose of removing and retaining floatable or settleable material from wastewater by differential gravity separation before its discharge into the wastewater collection system.

"Interference" means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

(1) Inhibits or disrupts the wastewater collection system, its treatment processes or operations, or its sludge processes, use or disposal; and

(2) Therefore is a cause of a violation of the City's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory or regulatory provisions or permits issued thereunder, or any more stringent State or local regulations: Section 405 of the Act; the Solid Waste Disposal Act (SWDA), including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

"Instantaneous discharge limit" or "instantaneous limit" means the maximum or minimum concentration or measurement for a pollutant or pollutant property allowed to be discharged at any time as determined by use of a grab sample or direct measurement.

"Local limit" means any regulation containing discharge limits developed by the Director in accordance with 40 CFR 403.5(c) and (d), which are pretreatment standards and are specified in Section 14.17.015.

"Maximum allowable industrial load" or "MAIL" means an estimate of the maximum loading of a pollutant that can be received at the POTW's headworks from all permitted industrial users and other controlled sources without causing pass through or interference. The establishment of MAILs regarding particular pollutants, including corresponding allocations, is at the discretion of the Director and any MAILs so established are to be taken into account only if and when the Director takes such action.

"Medical waste" means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, pharmaceutical residues, and dialysis wastes.

"Normal domestic strength wastewater" means wastewater, when analyzed in accordance with procedures established in 40 CFR Part 136, as amended, contains no more than three-hundred mg/L of five-day biochemical oxygen demand (BOD_5) or three hundred mg/L of total suspended solids or thirty mg/L ammonia or five mg/L of phosphorus. Discharges to the POTW that exceed these concentrations may be surcharged for the concentrations above these levels as specified in LVMC 14.17.015(E).

"North American Industry Classification System Code" or "NAICS Code" means the industrial classification scheme developed by the United States Office of Management and Budget used to classify business establishments for the collection, tabulation, presentation, and analysis of statistical data describing the U.S. economy. Also, see Standard Industrial Classification Code.

"NPDES permit" means a National Pollutant Discharge Elimination System permit that is issued by NDEP pursuant to Section 402 of the Act, authorizing a person to discharge pollutants into the waters of the United States.

"Pass through" means a discharge that exits the POTW into the waters of the State in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the City's NPDES permit, including an increase in the magnitude or duration of a violation.

"Person" means any individual, partnership, co-partnership, firm, company, association, joint stock company, trust, estate, society, corporation, group, government, governmental agency or other legal entity, or their legal representatives, agents or assigns. The definition includes all Federal, State and local government entities.

"pH" means the intensity of acid or base condition of the solution expressed as the logarithm (base ten) of the reciprocal of the hydrogen ion concentration, expressed in moles per liter, as determined in accordance with the procedures that are set forth in 40 CFR Part 136 or procedures that have been approved by NDEP.

"Pollutant" means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, explosives, munitions, medical waste, chemical wastes, corrosive substance, biological material, biological nutrient, toxic substance, radioactive materials, heat, malodorous substance, wrecked or discharged equipment, rock, sand, slurry, cellar dirt, untreatable waste, or industrial, domestic, or agricultural wastes and certain characteristics of wastewater (e.g. pH, temperature, TSS turbidity, color, BOD_5, COD, toxicity or odor) discharged into or with water.

"POTW treatment plant" means that portion of the POTW or any portion thereof designed to provide treatment of wastewater.

"Pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to, or in lieu of, discharging or otherwise introducing such pollutants into the POTW. The reduction or alteration can be obtained by physical process, biological process, or by other process or means, except as prohibited by 40 CFR 403.6(d). Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 CFR 403.6(e).

"Pretreatment requirement" means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard, imposed on an industrial user.

"Pretreatment standard" means any regulation containing pollutant limitations promulgated by the EPA in accordance with Section 307(b) and(c) of the Act which applies to industrial

users. The term includes prohibited discharge limits established pursuant to 40 CFR 403.5 and those standards, BMPs, local limits and specific prohibitions established by the City. In cases of differing standards, the more stringent shall apply.

"Publicly owned treatment works" or "POTW" means a treatment works as defined by Section 212 of the Act (33 U.S.C. § 1292), which is owned by the City. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature and any sewers, pipes or other conveyances which convey wastewater to the treatment plant. The term also means the City as the municipality having jurisdiction over indirect discharges to and discharges from the wastewater collection and treatment systems.

"Radioactive material" means material containing chemical elements that spontaneously change their atomic structure by emitting particles, rays or energy forms in excess of normal background radiation.

"Sector control program" means a program designed to control specific pollutants from industrial users with similar operations, waste generation or treatment through the implementation of pretreatment standards and requirements, including best management practices. The sector control program requirements may be found in Section 14.17.070.

"Septic tank waste" means sewage and solids from domestic activities pumped from a septic tank serving one or more private residences, wastes from chemical toilets, campers, trailers, or cesspools.

"Severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. The term does not include economic loss caused by delays in production.

"Shall," "May." "Shall" is mandatory; "may" is permissive.

"Significant industrial user" or "SIU," except as otherwise provided in this definition, means:

(1) A categorical industrial user; or

(2) An industrial user that:

(a) Discharges an average of twenty-five thousand gpd or more of process wastewater to the POTW (excluding domestic, noncontact cooling water and boiler blow-down wastewater);

(b) Contributes a process wastestream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

(c) Is designated as an SIU by the Director on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation; or for violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

Notwithstanding the preceding provisions of this definition, the Director has discretion, without any obligation, as follows:

(A) To determine that an industrial user subject to categorical pretreatment standards is deemed to be a non-significant CIU rather than an SIU based upon a finding that the industrial user never discharges more than one hundred gallons per day of total wastewater subject to categorical (but excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard), and subject to compliance with the following conditions:

(a) The industrial user, prior to the City's finding, has consistently complied with all applicable categorical pretreatment standards and pretreatment requirements;

(b) The industrial user annually submits the certification statement as found in 40 CFR 403.12(q), together with any additional information necessary to support the certification statement; and

(c) The industrial user never discharges any untreated concentrated wastewater.

(B) To determine that an industrial user is not a significant industrial user upon a finding that the industrial user, although meeting the criteria in subsection (2) of this definition, has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement. The Director may do so on the Director's own initiative or in response to a petition received from an industrial user, and in accordance with 40 CFR 403.8(f)(6).

"Significant noncompliance" refers to the existence of one or more of the following:

(1) Chronic violations of wastewater discharge limits in which sixty-six percent or more of all the measurements taken for the same pollutant parameter during a six-month period exceed by any magnitude, a numeric pretreatment standard or requirement, including instantaneous limits;

(2) Violations of technical review criteria (TRC), in which thirty-three percent or more of all measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement, including instantaneous maximum limits, multiplied by the applicable TRC (1.4 for BOD_5, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

(3) Any other violation(s) of a pretreatment standard or requirement, including daily maximum, long-term average, instantaneous limit or narrative standard, that the

City determines to have caused, alone or in combination with other discharges, pass through or interference, or both, including an endangerment to the health of the general public or of POTW personnel;

(4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment, or has resulted in the City's exercise of its emergency authority to halt or prevent such discharge;

(5) Failure to meet, within ninety days after the schedule date, a compliance schedule milestone contained in a local control mechanism or administrative order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide, within thirty days after the due date, any required report, including a baseline monitoring report, ninety-day compliance report, periodic self-monitoring reports, or a report on compliance with compliance schedules;

(7) Failure to accurately report non-compliance; or

(8) Any other violation or group of violations, including a violation of BMPs, which the City determines will adversely affect the operation or implementation of the City's pretreatment program in accordance with this Chapter.

"Slug load" or "slug discharge" means any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, enter a storm drain, public street or water of the State, or in any other way violate the POTW's regulations, local limits or permit conditions. This includes a discharge which exceeds the hydraulic or design capacity of an industrial user's treatment system or any part of the treatment unit.

"Standard Industrial Classification" or "SIC Code" means a system of classifying industries, as identified in the Standard Industrial Classification Manual, 1987, as amended, prepared by the Office of Management and Budget. Also, see North American Industry Classification System Code.

"Storm drain" means a street, gutter, wash or conveyance structure for carrying stormwater.

"Stormwater" means that portion of precipitation, including snowmelt, that does not naturally percolate into the ground or evaporate, but flows via overland flow, interflow, pipes, and other features of a stormwater drainage system into a receiving water or stormwater facility.

"Temporary industrial user" or "TIU" means a source of indirect discharge on a temporary basis to whom the City has used its discretion to issue a permit, authorization to discharge, or other control mechanism pursuant to LVMC 14.17.030.

"Total suspended solids" or "TSS" means the solid matter that is suspended in a liquid, as determined in accordance with the procedures that are set forth in 40 CFR Part 136 or procedures that have been approved by NDEP.

"Toxic pollutant" "or "toxic organic pollutant" means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the Administrator of the EPA under Section 307(a) of the Act or as otherwise listed in 40 CFR Part 122, Appendix D.

"Wastewater" means the liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities and institutions, together with any infiltrating groundwater, surface water that may be present, whether treated or untreated, which are discharged to or permitted to enter the POTW.

"Wastewater collection system" means the part of the wastewater treatment system that is used to convey wastewater to wastewater treatment plants.

"Wastewater treatment system" means an assemblage of devices, structures and equipment for the treatment of wastewater.

(B) *Acronyms and abbreviations.* The following acronyms and abbreviations, when used in this Chapter, shall have the designated meanings.

BMPs	Best management practices
BOD_5	Five-day biochemical oxygen demand
°C	Degrees Celsius
CFR	Code of Federal Regulations
CIU	Categorical industrial user
COD	Chemical oxygen demand
EPA	U.S. Environmental Protection Agency
°F	Degrees Fahrenheit
FOG	Fats, oils and grease
Gpd	Gallons per day
IU	Industrial user
LEL	Lower explosive limit
MAIL	Maximum allowable industrial loading
Mgd	Million gallons per day
Mg/L	Milligrams per liter
NAICS Code	North American Industry Classification System Code
NDEP	Nevada Division of Environmental Protection
NPDES	National Pollutant Discharge Elimination System
NSCIU	Non-significant categorical industrial user
O&M	Operations and maintenance
PIA	Pretreatment interlocal agreement
POTW	Publicly owned treatment works
RCRA	Resource Conservation and Recovery Act
SIC Code	Standard Industrial Classification Code
SIU	Significant industrial user
SNC	Significant noncompliance
SWDA	Solid Waste Disposal Act

TDS	Total dissolved solids
TIU	Temporary industrial user
TSS	Total suspended solids
U.S.C.	United States Code

(Ord. No. 6891, § 2, 11-6-24)

14.17.015 Wastewater discharge prohibitions and limitations.

(A) *General prohibitions.* No industrial user shall introduce into the POTW any pollutant which causes pass through or interference. These general prohibitions and the specific prohibitions in subsection (B) apply to all industrial users of the POTW whether they are subject to pretreatment standards, or any other national, State, or local pretreatment requirements.

(B) *Specific prohibitions.* No industrial user shall introduce or cause to be introduced into the POTW the following pollutants:

(1) Any substance which either alone or by interaction with other substances create a fire or explosive hazard in the POTW, including, but not limited to wastestreams with a closed-cup flashpoint of less than 60°C (140°F) using the test method specified in 40 CFR 261.21. The Director may require industrial users with the potential to discharge flammable, combustible or explosive substances to install and maintain an approved combustible gas detection meter or explosion hazard meter. No two successive readings on an explosion hazard meter at the point of discharge shall be more than five percent, nor any single reading more than ten percent, of the lower explosive limit (LEL) of the meter.

(2) Wastewater having a pH of less than 5.0 or more than 11.0, or any wastewater capable of causing corrosive structural damage to the POTW unless the POTW is specifically designed to accommodate such discharges.

(3) Solid or viscous pollutants in amounts which cause obstruction to the flow in the POTW resulting in interference.

(4) Any pollutant, including oxygen-demanding pollutants (BOD_5, COD , etc.) released in a discharge at a flow rate, pollutant concentration, or both, which will cause interference with the POTW.

(5) Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW treatment plant exceeds 40°C (104°F) unless the approval authority, upon request of the POTW, approves alternate temperature limits.

(6) Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin that will cause pass through or interference.

(7) Pollutants which result in the presence of toxic gases, vapors or fumes within the POTW in a quantity which may cause acute worker health and safety problems, or

pollutants which singly or cumulatively or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent or interfere with entry into the sewers for their maintenance and repair.

(8) Trucked or hauled pollutants, except at discharge points designated and as approved by the Director.

(9) Wastewater which contains grease, oil or any other substances that will solidify or become discernibly viscous at temperatures between 0°C (32°F) and 65.5°C (150°F).

(10) Wastewater from food facilities containing free or floating oil and grease, or any discharge containing animal fat or grease by-product in excess of two hundred fifty milligrams per liter. This limit will not apply if the industrial user has installed an appropriately sized gravity grease interceptor (GGI), and is properly operating and maintaining the GGI and implementing all required BMPs, as specified in Section 14.17.070 for food-related facilities.

(11) Wastewater generated as a result of wastes pumped from GGIs, hydromechanical grease interceptors (HMGIs) or grease traps, sand/oil interceptors or other storage tanks or treatment units back into the POTW, either directly or indirectly, without approval of the Director.

(12) Wastewater which imparts color to the POTW's effluent such as, but not limited to, dye wastes and vegetable tanning solutions.

(13) Wastewater containing any radioactive wastes or isotopes except in compliance with applicable State and Federal regulations.

(14) Medical wastes that cause or contribute to pass through or interference.

(15) Discharge of any hazardous waste pharmaceutical or DEA controlled substances to the POTW by a healthcare facility or reverse distributor pursuant to 40 CFR 266.505.

(16) Any substance that causes the City to violate its NPDES permit or applicable water quality standards.

(17) Sludge, screenings, or other residues from the pretreatment of industrial wastes or industrial processes except as authorized by an industrial wastewater discharge permit, special approved discharge authorization or other control mechanism issued by the Director.

(18) A slug discharge as defined in Section 14.17.010.

(19) Any substance which may cause the POTW's effluent or treatment residues, sludge or sludge products produced for public distribution, or scums, to be unsuitable for reclamation or reuse or which otherwise interferes with the reclamation process.

(20) Any waste designated as hazardous waste unless done so in compliance with LVMC 14.17.065(K) and this Chapter.

(21) Any pesticides, herbicides or fungicides that cause or contribute to pass through, interference or other problems at the treatment works or in the receiving waters. In no case shall an industrial user discharge wastewater that is generated from the rinsing of any container that contains or contained any concentrated or formulated pesticide, herbicide or fungicide.

(22) Bulk, expired, outdated or concentrated prescription or non-prescription drugs.

(23) Wastewater or pollutants discharged directly into a manhole or other opening to the POTW unless specifically authorized by the Director or as otherwise permitted under this Chapter. The opening of a manhole or discharging into any opening in violation of this Chapter is prohibited.

(24) Wastewater contaminated because of discharge from aboveground or underground gasoline (or both), diesel fuels, fuel oil, kerosene, and jet fuel tanks, tank accessories, or pipelines, or any combination thereof, without applying for and obtaining a permit or other control mechanism prior to discharge.

(25) Wastewater causing, alone or in conjunction with other sources, the POTW effluent to fail a whole effluent toxicity (WET) test.

(26) Detergents, surfactants and other surface-active agents, or other substances which may cause excessive foaming in the POTW or cause or contribute to pass through or interference.

(27) Discharge of nonylphenol from the use of bulk or concentrated nonylphenol containing detergents as employed by some industrial or commercial laundries, car washes, asphalt manufacturers or other industrial users.

(28) Discharge of any wastewater containing perchloroethylene (PCE) (also known as tetrachloroethene and tetrachloroethylene) from any industrial user involved in the dry-cleaning business.

(29) Discharge of concentrated or used trichlorethylene (TCE).

(30) Discharge into the POTW any ground or unground sharps.

(C) *Additional prohibitions.*

(1) Stormwater, surface water, groundwater, subsurface drainage, yard drainage, roof drain, swimming pool drainage, condensate, deionized water, effluent from groundwater pump-and-treat systems and unpolluted water shall not be discharged through any direct or indirect connection to the wastewater collection system unless authorized by the Director.

(2) No chemicals, materials, or substances, including but not limited to, paints, solvents, boiler or water treatment chemicals, sludges, chemicals, or wastes shall be stored in proximity to a floor drain or other sewer openings unless secondary containment is provided or there are physical barriers to entry to the wastewater collection system. The storage of any chemicals, materials, substances, or wastes that leak or have potential to leak or discharge into the POTW which may create an explosion hazard

or in any way have a deleterious effect to the POTW or constitute a nuisance or a hazard to POTW personnel, the general public, the environment, or the receiving stream shall be prohibited.

(D) *Dilution prohibited.* Dilution is prohibited as a substitute for treatment and shall be a violation of this Chapter. Except where expressly authorized to do so by an applicable pretreatment standard or requirement, no industrial user shall ever increase the use of process water, or in any other way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with a pretreatment standard or requirement. The Director may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or requirements or in other cases where the imposition of mass limitations is appropriate.

(E) *Local discharge limits and surcharge concentrations.*

(1) No SIU or other designated industrial user shall discharge or cause to be discharged, wastewater containing pollutants that exceed the following limits, which shall apply at the point where wastewater is discharged to the POTW:

Pollutant	*Daily maximum discharge limit*	*Units of measurement*
Arsenic	1.11	mg/L
Cadmium	0.217	mg/L
Chromium	12.4	mg/L
Copper	6.27	mg/L
Cyanide	0.488	mg/L
Lead	0.939	mg/L
Mercury	0.150	mg/L
Molybdenum	1.14	mg/L
Nickel	8.22	mg/L
Selenium	0.169	mg/L
Silver	5.08	mg/L
Zinc	10.3	mg/L
Total petroleum hydrocarbons (TPH)	100	mg/L

(2) An SIU or other designated industrial user who introduces wastewater into the POTW may be required to submit a salinity control plan if monitoring of the industrial user's discharge shows it exceeds one thousand two hundred mg/L of TDS. This plan shall contain a description of the chemicals and materials used that contribute to the TDS concentration and the source control measures that could be implemented to reduce the TDS concentration in the discharge to less than one thousand two hundred mg/L or to a level specified by the Director that prevents discharges that cause or contribute to pass through or interference.

(3) The limits set forth below shall apply to wastewaters that are discharged from groundwater contaminated with petroleum or gasoline constituents or other

wastewaters containing these pollutants or where these pollutants are appropriate surrogates. It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater that exceeds the limits set forth below, as applicable:

Pollutant[a], [c]	*Daily maximum limit (mg/L)*
Benzene	0.050
BTEX[b]	0.750

(a) All pollutants shown in the Table are total.

(b) BTEX shall be measured as the sum of benzene, ethylbenzene, toluene and xylenes.

(c) These limits are based upon installation of air stripping technology as described in the EPA document "Model NPDES Permit for Discharges Resulting from the Cleanup of Gasoline Released from Underground Storage Tanks, June 1989."

(F) *Surcharges for excess strength waste.*

(1) A permitted SIU or other designated industrial user discharging to the POTW excess strength waste, including discharges that exceed the surcharge concentrations listed below, may be required to pay a surcharge established by the Director:

Parameter	*Surcharge concentration (mg/L)*
Ammonia (as N)	61.0
Biochemical oxygen demand (BOD_5)	600
Phosphorus	14.0
Total suspended solids (TSS)	750

(2) The Director may require an industrial user to pay surcharge fees in amounts that have been established by the City Council pursuant to Section 14.17.090, which shall be in addition to sewer service charges established under Chapter 14.04.

(3) The Director shall determine the method to be used to calculate the total cost of surcharges for the parameters in the table above that is discharged into the POTW. The method shall be subject to other applicable provisions of this Chapter including the charges and fees pursuant to Section 14.17.090.

(4) Sampling and analysis for pollutants shall be as specified in Section 14.17.060.

(G) *More stringent limits.* The Director may establish more stringent pollutant limits, additional site-specific pollutant limits, best management practices, or additional pretreatment requirements when, in the judgment of the Director, such limitations are necessary to implement the provisions of this Chapter.

(H) *State requirements and limitations.* State requirements and limitations on discharges shall apply in any case where they are more stringent than Federal pretreatment standards or requirements or those in this Chapter.
(Ord. No. 6891, § 2, 11-6-24)

14.17.020 National Categorical Pretreatment Standards.

(A) Industrial users shall comply with the categorical pretreatment standards found at 40 CFR Chapter I, Subchapter N, Parts 405—471, that apply to the regulated industrial category assigned to the user's business activity.

(B) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the Director may impose equivalent concentration or mass limits in accordance with this Section and 40 CFR Part 403.6(c).

(C) When the limits in a categorical pretreatment standard are expressed only in terms of a mass of pollutant per unit of production, the Director may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users. Each such industrial user shall supply appropriate actual or projected long-term production rates for the unit of production specified in order to facilitate this process pursuant to 40 CFR 403.6(c)(2) as required by the Director.

(D) The Director may allow wastewater subject to a categorical pretreatment standard to be mixed with other wastewaters prior to treatment. In such cases, the affected industrial user shall identify all categorically regulated wastestreams and provide sufficient information for each non-categorical wastestream to determine whether it should be considered dilute for each pollutant. In such situations, the Director shall apply the appropriate formula as provided by 40 CFR 403.6(e) to determine appropriate limits.

(E) When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, an industrial user may request that the Director convert the limits to equivalent mass limits. The determination to convert concentration limits to mass limits is within the discretion of the Director. The Director may establish equivalent mass limits if the industrial user meets the conditions and requirements of this subsection (E) that follow:

(1) To be eligible for equivalent mass limits, an industrial user must:

(a) Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its control mechanism;

(b) Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical pretreatment standard, and not have used dilution as a substitute for treatment;

(c) Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;

(d) Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and

(e) Have consistently complied with all applicable categorical pretreatment standards during the period prior to the industrial user's request for equivalent mass limits.

(2) An industrial user subject to equivalent mass limits shall:

(a) Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

(b) Continue to record the facility's flow rates by a continuous effluent flow monitoring device;

(c) Continue to record the facility's production rates;

(d) Notify the Director if production rates are expected to vary by more than twenty percent from the submitted baseline production rates. The Director may reassess and revise equivalent limits as necessary to reflect changed conditions; and

(e) Continue to employ the same or comparable water conservation methods and technologies so long as it discharges under its equivalent mass limit.

(3) Equivalent mass limits under this subsection (E):

(a) Shall not exceed the product of the actual average daily flow rate of the regulated process(es) of the industrial user and the applicable concentration-based daily maximum and monthly average standards (and the appropriate unit conversion factor);

(b) Upon notification of a revised production rate, shall be reassessed and the limits recalculated by the Director as necessary to reflect changed conditions at the facility;

(c) May be retained in subsequent industrial wastewater discharge permits if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment as described in LVMC 14.17.015(D). The industrial user must also be in compliance with 40 CFR 403.17 (regarding the prohibition of bypass); and

(d) May not be expressed by the Director in terms of mass for pollutants such as pH, temperature, radiation, or other pollutants which cannot appropriately be expressed as mass.

(F) The Director may convert the mass limits of the categorical pretreatment standards at 40 CFR Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users, subject to and conditioned upon the

requirements of the next succeeding sentence. When converting such limits to concentration limits, the Director must use the concentrations listed in the applicable subparts of 40 CFR Parts 414, 419, and 455, and must document that dilution is not being substituted for treatment as prohibited by this Chapter.

(G) Equivalent limitations are deemed pretreatment standards for the purposes of this Chapter and Section 307(d) of the CWA. The Director must document how the equivalent limits were derived and make this information publicly available. Once incorporated into the industrial wastewater discharge permit, the industrial user must comply with the equivalent limitations in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

(H) Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day average limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

(I) Any industrial user operating under an industrial wastewater discharge permit incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the Director within two days after the industrial user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any industrial user not notifying the Director of such anticipated change will be required to meet the mass or concentration limits in its control mechanism that were based on the original estimate of the long-term average production rate.
(Ord. No. 6891, § 2, 11-6-24)

14.17.025 Pretreatment and monitoring facilities.

(A) *Treatment required.* An industrial user shall provide wastewater treatment required to comply with this Chapter and shall achieve compliance with all applicable Federal, State and local pretreatment standards and requirements within the time limitations specified by the EPA or the Director, whichever is more stringent. Any pretreatment facilities necessary for an industrial user to comply with this Chapter shall be provided, operated and maintained at the industrial user's expense and satisfy applicable requirements established by the City building codes. Unless the requirement is waived by the City, any engineering reports associated with the construction, operation or maintenance of such pretreatment facilities shall be prepared under the supervision of, and bear the seal of, a professional licensed engineer, and be submitted to the Director for review. The review and acceptance of any engineering report, plans, specifications and operation and maintenance manual, shall in no way relieve the industrial user from its obligation to comply with the provisions of this Chapter, including modification of its pretreatment facility as necessary to produce a discharge that complies with the industrial user's permit and this Chapter.

(B) *Proper operations and maintenance (O&M).* An industrial user shall always properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the industrial user, and shall do so by means of the use of qualified personnel. This provision requires the operation of back-up or auxiliary facilities or similar systems which are installed by an industrial user when the operation is necessary to achieve or assure compliance with conditions of an industrial wastewater discharge permit. Calibration of meters and monitoring equipment shall be performed as required by manufacturer's specification or by the Director.

(C) *Segregate wastewater.* All wastewaters from restrooms, showers, drinking fountains and similar facilities shall be kept separate from all industrial wastewaters until the industrial wastewaters have passed through any required pretreatment facility or monitoring device if it is reasonably practicable and deemed necessary by the Director unless specifically regulated by an applicable categorical standard.

(D) *Monitoring facilities.* The Director may require an industrial user, at the user's expense, to install suitable monitoring facilities or equipment that allows for the representative sampling and accurate observation of wastewater discharges. Whether constructed on public or private property, the monitoring facilities shall be constructed in accordance with the City's requirements and all applicable construction standards and specifications. Monitoring equipment and structures shall be maintained in proper working order, always calibrated as required by manufacturer's recommendations and kept safe and accessible to City personnel. The monitoring equipment shall be located and maintained on the industrial user's premises outside of the building unless otherwise approved by the City. The monitoring facility shall be provided with an enclosure that can be locked during sampling with a lock provided by the Director. When such a location would be impractical, the City may allow such facility to be constructed in the public street or easement area, with the approval of the City department or other agency having jurisdiction over such street or easement and located so that it will not be obstructed by public utilities, landscaping or parked vehicles. No industrial user shall cover with earth or paving any manhole, sewer cleanout, or other opening in the wastewater collection system, or otherwise render it inaccessible.

(E) *Wastewater discharge control.* The Director may do any one or more of the following regarding an industrial user's discharge of wastewater to the POTW:

(1) Require the industrial user to restrict discharge during peak flow periods;

(2) Designate that certain wastewater be discharged only into specified sewers;

(3) Require the industrial user to relocate or consolidate points of discharge, or both;

(4) Require the industrial user to separate sewage wastestreams from industrial wastestreams; or

(5) Establish such other requirements or impose such other conditions as may be necessary to protect the POTW and demonstrate the industrial user's compliance with the requirements of this Chapter.

(F) *Flow equalization.* The Director may require any industrial user discharging into the POTW to install and maintain, on the user's property and at the user's expense, a suitable storage and flow-control facility to ensure equalization of flow. An industrial wastewater discharge permit may be issued solely for flow equalization.

(G) *Multi-occupant buildings.* When more than one industrial user in a building is able to discharge into a common service line, the Director may require installation of separate monitoring equipment or structures for each industrial user.

(H) *Safety and access.* There shall be unobstructed, safe, and easy access to allow accurate sampling and preparation of samples for analysis. The facility, sampling, and associated equipment shall always be maintained in a safe and proper operating condition by the industrial user.

(I) *Flow, pH, LEL and other meters and equipment.* If the Director determines an industrial user is required to measure and report:

(1) Wastewater flow;

(2) Discharge process wastewaters necessitating continuous pH measurement; or

(3) Discharge wastewater that may contain flammable substances or other pollutants of concern;

the Director may require the industrial user to install and maintain, at the industrial user's expense, approved meters and equipment.

(J) *Tampering with metering devices prohibited.* No person shall install, change, bypass, adjust, remove, alter, or otherwise tamper with any metering device or any piping arrangement connected to a metering device to show that the quantity of water used at or discharged from the facility is different than the actual quantity used or discharged.

(K) *Certified operators required.* The Director may require an industrial user to employ pretreatment facility operators who are certified as industrial waste operators by the Nevada Water Environment Association, with the minimum grade of certification required to be determined by the Director.
(Ord. No. 6891, § 2, 11-6-24)

14.17.030 Industrial wastewater discharge permits and related authorizations and control mechanisms.

(A) *Industrial wastewater discharge permits required.* All SIUs proposing to connect to or discharge wastewater into the POTW shall apply for and obtain an industrial wastewater discharge permit from the Director, prior to commencing discharge to the POTW. The Director may require a separate permit for each SIU building or complex of buildings.

(B) *New industrial users.* Applying for an industrial wastewater discharge permit, an authorization to discharge, or another control mechanism. Any industrial user required to obtain an industrial wastewater discharge permit, authorization to discharge, or other control mechanism who proposes to begin or recommence discharging into the POTW must

apply for and obtain such permit, authorization or other mechanism prior to the beginning or recommencing of such discharge. The industrial user shall file an industrial wastewater discharge application on forms provided by the Director containing the information specified in subsection (F) below. The completed application must be filed at least ninety days prior to the date upon which any discharge will begin or recommence. An industrial wastewater discharge application containing incomplete or inaccurate information will not be processed and will be returned to the industrial user. The Director may issue an industrial wastewater discharge permit, authorization to discharge, or other control mechanism at any time after receipt of the completed wastewater industrial wastewater discharge application.

(C) *Existing industrial users.* Applying for the reissuance of an industrial wastewater discharge permit, an authorization to discharge, or other control mechanism. An industrial user with an expiring industrial wastewater discharge permit, authorization to discharge, or other control mechanism shall apply for a new permit, authorization or other control mechanism by submitting a complete industrial wastewater discharge application at least ninety days prior to the expiration of the industrial user's existing permit, authorization or other control mechanism. The industrial user shall file an industrial wastewater discharge application on forms provided by the Director containing the information specified in subsection (F) below. An industrial wastewater discharge application containing incomplete or inaccurate information will not be processed and will be returned to the industrial user. An industrial user with an existing industrial wastewater discharge permit, authorization to discharge, or other control mechanism that has filed a complete and timely application for reissuance may continue to discharge, as approved in writing by the Director, through an administrative extension of the existing permit, authorization, or control mechanism if the delay in the reissuance of a permit, authorization or control mechanism is not due to any act or failure to act on the industrial user's part.

(D) *Other industrial users.* The Director may require other industrial users to apply for and obtain an industrial wastewater discharge permit, authorization to discharge or other control mechanism to carry out the purposes of this Chapter. The Director may issue an industrial wastewater discharge permit, a zero-discharge permit, or other control mechanism, including, but not limited to, authorizations to discharge and letters authorizing discharge as determined to be appropriate.

(E) *Enforceability.* Any violation of the terms and conditions of an industrial wastewater discharge permit, authorization to discharge, or other control mechanism; the failure to apply for such a permit, authorization, or other control mechanism; or discharging without a permit, authorization, or other control mechanism shall be deemed a violation of this Chapter and shall subject the industrial user to enforcement action by the Director. Obtaining an industrial wastewater discharge permit, authorization to discharge, or other control mechanism does not relieve a discharger of its obligation to comply with all State and Federal pretreatment standards or requirements.

(F) *Industrial wastewater discharge application contents.* An application related to industrial wastewater discharge shall contain or be accompanied by the following:

(1) Name of business, address of the facility, location of the discharge if different from the facility address, and contact information (telephone number and email address) for the owner, operator and the authorized representative of the industrial user.

(2) Environmental permits. A list of any industrial wastewater permits, authorizations to discharge, or other control mechanisms held by or for the facility.

(3) Description of operations.

(a) A brief description of the nature, average and maximum rate of production (including each product produced by type, amount, processes, and rate of production);

(b) The Standard Industrial Classification(s) (SIC) Code or North American Industry Classification System (NAICS) Code, or both, for the operation(s) carried out by the industrial user;

(c) A schematic process diagram showing each process step, wastestream, treatment step, internal recycling process, and points of discharge to the POTW. This diagram shall identify which wastestreams are subject to a categorical pretreatment standard, if applicable. The industrial user shall also submit site plans, floor plans, mechanical and plumbing plans and details showing all sewers, sewer connections, floor drains, inspection manholes, and sampling chambers by size, location, and elevation;

(d) A listing of all industrial process streams and the type(s) of wastes generated from each process;

(e) A list of all raw materials and chemicals used or stored at the facility;

(f) Number of employees; and

(g) Hours of operation.

(4) Time and duration of discharges including the date the industrial user first began discharge or plans to discharge to the POTW.

(5) The location for sampling the wastewater discharges from the industrial user.

(6) Flow measurement. Information showing the average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR 403.6(e). For new sources and new permittees not currently discharging, an estimate of flows may be used for meeting the requirements of the baseline monitoring report required in LVMC 14.17.065(B).

(7) Measurement of pollutants.

(a) The categorical pretreatment standards applicable to each regulated process;

(b) The daily maximum discharge limits adopted by the City as specified in LVMC 14.17.015(D).

(c) The results of sampling and analysis identifying the nature and concentration (or mass) of regulated pollutants in the discharge from each regulated process where required by the applicable standard or by the Director;

(d) Instantaneous, daily maximum and long-term average concentrations, or mass, where required;

(e) Samples representative of daily operations, which shall be collected and analyzed in accordance with procedures set out in Section 14.17.060. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e) for a categorical user covered by a categorical pretreatment standard, this adjusted limit, along with supporting data, shall be submitted as part of the application; and

(f) Where an applicable standard requires compliance with BMPs or pollution prevention alternative, documentation as required by the Director or the applicable standard to determine compliance with the standard.

(8) A list of hazardous waste(s) generated and a description of the storage area and procedures for handling and disposal of the wastes.

(9) A slug discharge control plan, as described in LVMC 14.17.065(E), for SIUs and as required by the Director for other industrial users.

(10) Compliance schedule. If additional pretreatment or O&M, or both, will be required to meet pretreatment standards, the shortest schedule by which the industrial user will provide such additional pretreatment, O&M or both. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. The following conditions shall apply to this schedule:

(a) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (e.g. hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.). No such increment shall exceed nine months.

(b) Not later than fourteen days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the Director including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the Director.

(11) Certification. A statement, reviewed by the authorized representative of the industrial user and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional O&M or additional pretreatment (or both) is required for the industrial user to meet the pretreatment standards and requirements.

(12) Signatory certification. All industrial wastewater discharge applications and certification statements must be signed by the authorized representative of the industrial user and contain the applicable certification statement(s) in LVMC 14.17.065(H).

(13) Any other information as may be deemed by the Director to be necessary to evaluate the discharge application.

(G) *Issuance of permits, authorizations to discharge, or other control mechanisms.*

(1) Industrial wastewater discharge permits shall be issued for a specified time period, not to exceed five years. An industrial wastewater discharge permit may be issued for a period of less than five years at the Director's discretion or may be stated to expire on a specific date.

(2) Authorizations to discharge or other control mechanisms shall be issued for an indefinite period of time, at the Director's discretion.

(3) Where the Director is issuing an industrial wastewater discharge permit containing enforceable permit-specific pretreatment standards or requirements not otherwise contained in this Chapter, notice of the pretreatment standards or requirements shall be given in a way that provides for meaningful public notice, either by providing notice for public comment for thirty days in a newspaper of general circulation or by providing notice by means of a typical City Council approval process.

(4) The Director shall issue to an applicant an industrial wastewater discharge permit, an authorization to discharge, or other control mechanism if the Director finds that all the following conditions are met:

(a) The applicant has provided a timely and complete application to the Director;

(b) The proposed discharge by the applicant is in compliance with the pretreatment standards and requirements established in this Chapter and 40 CFR Part 403;

(c) The proposed operation and discharge of the applicant would permit the normal and efficient operation of the POTW; and

(d) The proposed discharge by the applicant would not result in a violation by the City of the terms and conditions of its NPDES permit or cause pass through or interference.

(4) If the Director finds that the condition set out in Paragraph (4)(b) of this subsection (G) is not met, the Director has the discretion to issue an industrial wastewater discharge permit to the applicant if the conditions set out in Paragraphs (4)(a), (4)(c) and (4)(d) of this subsection (G) have been met and if the applicant submits, and the Director approves, a compliance schedule setting out the measures to be taken by the applicant and the dates that such measures will be implemented to insure compliance with applicable pretreatment standards and requirements. At no time shall a discharge be allowed to cause a violation of any general or specific prohibition established in Section 14.17.015 nor shall the final compliance date for a categorical pretreatment standard be extended.

(H) *Administrative appeals regarding permits, authorizations to discharge, or other control mechanisms.*

(1) Any industrial user may file a petition to reconsider the terms of an industrial wastewater discharge permit, authorization to discharge, or other control mechanism, or may appeal a decision by the Director to deny such a permit, authorization, or control mechanism. Failure to submit a timely petition or appeal under this subsection (H) shall be deemed to be a waiver of the right to such a petition or appeal. The effectiveness of an existing industrial wastewater discharge permit, authorization to discharge, or other control mechanism shall not be stayed pending the consideration of a petition to reconsider or an appeal.

(2) In order for a petition to reconsider or an appeal to be considered under this subsection (H), it must be filed with the Director in writing within fifteen days of the Director's action. The industrial user shall set forth in detail the facts that support the petition or appeal. Such a statement of facts must include any newly discovered relevant fact that was not known or was unavailable to the industrial user at the time of the Director's action. The Director shall render a written decision with respect to a petition or appeal under this subsection (H) within forty-five days after receipt of the petition or appeal.

(I) *Temporary industrial wastewater discharge permit.* A temporary industrial wastewater discharge permit may be required of an industrial user who is not an SIU and is seeking to discharge wastewater to the POTW on a limited basis. The industrial user shall be required to complete an application for discharge as prescribed by the Director. No discharge shall be made until such time as the Director authorizes the discharge.

(J) *Transferability of industrial wastewater discharge permit, authorization to discharge, or other control mechanism.*

(1) An industrial wastewater discharge permit, authorization to discharge, or other control mechanism is issued to a specific industrial user for a specific operation. An industrial wastewater discharge permit may not be assigned, transferred or sold to a new owner or a new industrial user, or transferred to a different premises or for a new or changed operation, without the prior written approval of the Director. Failure to provide advance notice of such a transaction (a "facility transfer") renders the industrial wastewater discharge permit void as of the date of facility transfer, and the discharge of wastewater shall be prohibited. An authorization to discharge or other control mechanism may not be assigned, transferred or sold to a new owner or a new industrial user, or transferred to a different premises or for a new or changed operation.

(2) In the case of a proposed facility transfer, duly authorized representatives of the existing industrial user and of a proposed new owner, assignee or transferee of the

operation, shall jointly or separately submit a written request to the Director for approval of the transaction. The request must be made at least thirty days prior to the facility transfer and must:

(a) State that there shall be no changes to the facility's operations and processes unless a permit application has been submitted by the new duly authorized representative of the industrial user;

(b) Identify the specific date on which the facility transfer will occur;

(c) Identify the legal name and trade name, if any, of the new industrial user and the address of its corporate offices;

(d) Identify the contact information of the new facility's authorized representative, the mailing address at which such representative may receive notice(s) from the Director, and the name and contact information for the facility manager, if different than the duly authorized representative of the industrial user; and

(e) Acknowledge and agree that:

(i) The new owner or operator has received a copy of the industrial wastewater discharge permit and has a legal, valid and binding obligation to comply with all requirements of the transferred industrial wastewater discharge permit;

(ii) Such transfer is within the power and authority of the existing permittee and the new owner or operator without the joinder or consent of any other party, and has been authorized by all requisite corporate or partnership action on the part of the permittee and new owner or operator;

(iii) Neither the transfer nor the Director's approval of the transfer shall in any respect relieve the permittee any obligation or liability occurring prior to the transfer or of responsibility for acts or omissions occurring prior to the transfer, known or unknown;

(iv) The City waives none of its rights with respect to the permittee's or the new owner's or operator's compliance with the terms and conditions of the industrial wastewater discharge permit;

(v) The City grants its approval of the transfer in reliance upon the representations, documents, and information provided by the permittee and new owner or operator in connection with the request for transfer; and

(vi) The approval of the transfer shall not in any way be deemed a representation by the City that the permittee or new owner or operator are in full compliance with the terms and conditions of the permit.

(K) *Conditions of industrial wastewater discharge permits, authorizations to discharge or other control mechanisms.*

(1) Industrial wastewater discharge permits, authorizations to discharge, and other control mechanisms shall be expressly subject to all provisions of this Chapter and all other applicable regulations, as well as user charges and fees established by the City.

(2) Industrial wastewater discharge permits shall contain the following:

(a) A statement that indicates the industrial wastewater discharge permit's issuance date, expiration date and effective date;

(b) The legal name and trade name, if any, of the industrial user and the address of its corporate offices, and a requirement to notify the Director at least thirty days prior to a change to the legal name of the permittee;

(c) The name and contact information (telephone and email address) of the duly authorized representative of the industrial user, the mailing address at which such representative may receive notice(s) from the City, and the name and contact information (telephone and email address) for the facility manager, if different than the duly authorized representative;

(d) A statement on industrial wastewater discharge permit transferability pursuant to LVMC 14.17.030(J).

(e) Effluent limits, including BMPs, based upon applicable pretreatment standards and information submitted by the discharger or identified by the Director;

(f) Self-monitoring, sampling, reporting, notification and record-keeping requirements including, but not limited to, identification of the pollutants or BMPs to be monitored, sampling location, sampling frequency and sample type, twenty-four-hour notice of non-compliance and other applicable pretreatment requirements based on Federal, State and local law;

(g) Statements of applicable enforcement remedies and administrative, civil and criminal penalties for the violation of pretreatment standards and requirements, the permit, this Chapter, and any applicable compliance schedule;

(h) Requirements to immediately notify the City of any changes at the industrial user's facility affecting the potential for a slug discharge, and for the industrial user to immediately report any slug discharges, spills or accidental discharges, including any discharges that may cause a problem to the POTW; and

(i) Reapplication requirements.

However, the failure of a permit to contain any of the above items shall not subject the City to liability to an industrial user or a third party, and shall not by itself void or invalidate the permit.

(3) Industrial wastewater discharge permits, as well as authorizations to discharge and other control mechanisms, may include, as appropriate:

(a) Any applicable schedule of user charges and fees for the wastewater to be discharged into a public sewer;

(b) Limits on average and maximum rate and time of discharge or requirements for flow equalization;

(c) Requirements for installation and maintenance of inspection and sampling facilities and equipment;

(d) BMPs to control specific pollutants as necessary to meet the objectives of this Chapter;

(e) Compliance schedules;

(f) Requirements to reapply for a new permit prior to expiration of the existing permit, to the extent not covered in subsection (2)(i) above;

(g) Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the POTW;

(h) Requirements to develop and implement waste minimization plans to reduce the amount of pollutants discharged to the POTW;

(i) Closure requirements for permitted facilities undergoing partial or complete closure activities to ensure closure activities are completed and wastes have been properly disposed and remaining access to sanitary and storm sewers are protected;

(j) A requirement to develop (as well as maintain current) a slug control plan pursuant to LVMC 14.17.065(E), if determined by the City to be necessary; and

(k) Other conditions as deemed appropriate by the Director to ensure compliance with all applicable local, State and Federal rules and regulations.

(L) *Modification of industrial wastewater discharge permits, authorizations to discharge, or other control mechanisms.*

(1) An industrial wastewater discharge permit, authorization to discharge, or other control mechanism may be modified by the Director in accordance with this subsection (L). Notification of a proposed modification does not stay any condition of such a permit, authorization, or other control mechanism. In connection with a modification, the Director may require a compliance schedule where appropriate. The Director may modify an industrial wastewater discharge permit, authorization to discharge, or other control mechanism for good cause, including, but not limited to, for any one or more of the following reasons:

(a) To incorporate any new or revised Federal, State, or local pretreatment standards or requirements or to reflect changes in applicable State or Federal standards;

(b) To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the issuance of the industrial wastewater discharge permit, authorization to discharge, or other control mechanism;

(c) To address or respond to a change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(d) In response to information indicating that a discharge authorized pursuant to an industrial wastewater discharge permit, authorization to discharge, or other control mechanism poses a threat to the POTW, City personnel, or the receiving waters;

(e) Violation of any terms or conditions of the industrial wastewater discharge permit, authorization to discharge, or other control mechanism;

(f) Any misrepresentation or failure to fully disclose all relevant facts in a discharge-related application or in any required reporting;

(g) To reflect a change in the legal name of the permittee, or a transfer of the facility ownership or operation (or both) to a new owner or operator;

(h) When there is a revision of, or a variance is granted from, applicable categorical pretreatment standards;

(i) To correct typographical or other errors in the industrial wastewater discharge permit, authorization to discharge, or other control mechanism; or

(j) Upon and in accordance with a request of the holder of the permit, authorization, or other control mechanism, provided the modification would not result in a violation of any applicable pretreatment standards or requirements, or of this Chapter.

(2) An industrial user shall file a written request for a modification of an industrial wastewater discharge permit whenever there has been a change in the legal name or trade name of the user or a change in the name or mailing address of the duly authorized representative of the industrial user. The request shall be submitted to the Director as soon as practicable but no later than thirty days following implementation of the change. An industrial wastewater discharge permit will be non-transferable and subject to revocation if such request is not filed in the timeframe required.

(M) *Revocation of industrial wastewater discharge permit, authorization to discharge, or other control mechanism.* An industrial wastewater discharge permit, authorization to discharge, or other control mechanism may be revoked pursuant to this subsection (M) upon any grounds set forth in this subsection. Upon revocation of a permit, authorization to discharge, or other control mechanism, or discharge authorization, any wastewater discharge by the industrial user to whom the permit, authorization, or other control mechanism pertains is prohibited and shall constitute a violation of this Chapter. Additional procedural provisions for revocation are as set forth in LVMC 14.17.075(C)(8). Permissible grounds for revocation of a permit, authorization to discharge, or other control mechanism under this subsection include, but are not limited to, the following:

(1) Violation of the terms or conditions of an industrial wastewater discharge permit, of any pretreatment standard or requirement, of other control mechanisms, of an authorization to discharge, of this Chapter, or of applicable State or Federal regulations;

(2) Failure of an industrial user to accurately disclose or report the wastewater constituents and characteristics of any discharge;

(3) Failure of an industrial user to report significant changes in operations or wastewater constituents and characteristics as required;

(4) Refusal to allow timely access or entry to the industrial user's premises for the purpose of inspection or monitoring;

(5) Falsification of records, reports or monitoring results;

(6) Tampering with monitoring methods or equipment;

(7) Misrepresentation of, or failure to submit or fully disclose, all relevant facts in an industrial wastewater discharge application;

(8) Failure to pay fines or penalties;

(9) Failure to pay sewer charges, surcharges, or City pretreatment program fees;

(10) Failure to meet compliance schedules;

(11) Failure to provide advance notice of the transfer of business ownership of a permitted facility;

(12) Failure to provide required reports, including but not limited to, a wastewater survey, baseline monitoring report, ninety-day compliance report, permit application, self-monitoring report or other permit required reports or notifications within the timeframe required by the City;

(13) Causing the invocation of the City's emergency authority pursuant to LVMC 14.17.075(C)(7); or

(14) Closure of the facility or failure of the industrial user to commence discharge within one hundred and eighty days after the effective date of the industrial wastewater discharge permit.

(N) *Employee access to certain documents.* In order for the employees of industrial users to be informed of the requirements of the City, each industrial user shall make available to its employees:

(1) Copies of the user's industrial wastewater discharge permit, authorization to discharge, or other control mechanism; and

(2) Copies of this Chapter, together with such other wastewater information and notices as may from time to time be furnished by the Director that address more effective pollution control.

(Ord. No. 6891, § 2, 11-6-24)

14.17.035 Special agreements.

(A) Nothing in this Chapter shall be construed as prohibiting written agreements between the City and any industrial user (also referred to as "special agreements") allowing industrial waste or wastewater of unusual strength or character to be discharged to the POTW, provided the industrial user compensates the City for any additional costs of treatment. No such agreement, however, shall allow or cause:

(1) Any adverse effect to the POTW;

(2) A violation of the POTW's NPDES permit;

(3) A violation of a general or specific prohibition under Section 14.17.015;

(4) An applicable MAIL to be exceeded, in the event one has been established;

(5) A violation of State or Federal law or regulation; or

(6) A waiver of any applicable categorical pretreatment standard.

(B) An industrial user may apply for a special agreement in accordance with this subsection (B). Application for a special agreement shall be submitted at least ninety days prior to the requested discharge date. The fees associated with a special agreement shall be established by the City on a case by case basis, taking into account the quantity and strength of the wastewater to be discharged.
(Ord. No. 6891, § 2, 11-6-24)

14.17.040 Right of entry.

(A) Whenever it shall be necessary for the purposes of this Chapter, the Director may enter upon any industrial user's facility, property, or premises and shall have ready access to all parts of the premises subject to this Chapter for the purposes of one or more of the following:

(1) Performing all inspection, surveillance and monitoring procedures necessary to determine, independent of information supplied by the industrial user, compliance or noncompliance with applicable pretreatment standards and requirements by the industrial user. Compliance monitoring and inspection shall be conducted at a frequency as determined by the Director and may be announced or unannounced;

(2) Setting up on the industrial user's property, or requiring the installation of, such devices as are necessary to conduct sampling or metering, or both, of the industrial user's operations;

(3) Examining and copying any records required to be kept under the provisions of this Chapter or of any other local, State or Federal regulation;

(4) Documenting and photographing any areas of the facility as deemed necessary for carrying out the duties of the City's pretreatment program including, but not limited

to, documentation of the industrial user's compliance status, and for reinforcement of required written reports. The industrial user shall be allowed to review copies of photographs for trade secret claims upon request;

(5) Inspecting any monitoring equipment or method, pretreatment system equipment or operation;

(6) Sampling any discharge of wastewater into POTW; or

(7) Inspecting any production, manufacturing, fabricating or storage area where pollutants, regulated under this Chapter, could originate, be stored, or be discharged to the POTW.

(B) In connection with an entry pursuant to subsection (A), the occupant of property or premises shall render all proper assistance in such activities. Where an industrial user has security measures in place which require proper identification and clearance before entry into its premises, the industrial user shall make necessary arrangements with its security personnel so that authorized representatives of the Director will be permitted to enter without delay to perform their specified functions.

(C) The Director and other duly authorized agents and employees of the City are entitled to enter all private properties through which the City or any connecting jurisdiction holds an easement or similar access or occupancy right.

(D) Refusal to allow entry or causing unreasonable delay. In the event the Director or other duly authorized representative of the City is refused entry or is unreasonably delayed, such refusal or delay is a violation of this Chapter and may result in enforcement action as allowed for under this Chapter, including revocation of an industrial wastewater discharge permit, authorization to discharge, or other control mechanism.

(E) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected or sampled, or both, shall be promptly removed by the industrial user at the written or verbal request of the Director and shall not be replaced before inspection or sampling is completed. The costs of clearing such access shall be borne by the industrial user.

(F) Search warrants. If the Director or another authorized representative of the City is refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this Chapter, that there is a need to inspect or sample, or both, as part of a routine inspection and sampling program of the City designed to verify compliance with this Chapter or any permit, authorization to discharge, other control mechanism, or order issued under this Chapter, or that there is a need to protect the overall public health, safety and welfare of the community, the Director may seek issuance of a search warrant from the City of Las Vegas Municipal Court or another court of competent jurisdiction.
(Ord. No. 6891, § 2, 11-6-24)

14.17.045 Regulation of extra-jurisdictional users.

(A) The Director may allow an industrial user located outside the City's jurisdictional boundaries (an "extra-jurisdictional user") to discharge industrial wastewater into the POTW if the Director determines that the POTW has available capacity, treatment capability and the legal authority to regulate and control such discharges. Upon such a determination and a decision to proceed, the City shall enter into a Pretreatment Interlocal Agreement (PIA) with the contributing jurisdiction where the industrial user is located. Such agreement shall affix responsibilities in an enforceable manner to assure that the City's pretreatment program is fully administered and enforced in all contributing jurisdictions and to ensure that the City has adequate legal authority to oversee implementation and enforcement of the jurisdiction, including the authority to overfile, or take concurrent enforcement action, where timely and appropriate enforcement has not been taken. The City will require the jurisdiction to adopt adequate legal authority to assure that emergency termination of a non-complying industrial user discharge can be effected. If the contributing jurisdiction has an approved pretreatment program, the PIA shall define the distribution of responsibility between the City and the other jurisdiction to ensure that the City's approved pretreatment program is fully implemented and enforced as required by the City's NPDES permit.

(B) Prior to entering into a PIA, the City shall obtain the following information from the contributing jurisdiction:

(1) A description of the quality and volume of wastewater discharged to the POTW by the contributing jurisdiction;

(2) An inventory of all industrial users located within the contributing jurisdiction that are discharging to the POTW through the jurisdiction;

(3) A requirement that the contributing jurisdiction provide the Director with access to all information that the contributing jurisdiction obtains regarding effluent quantity and quality from industrial users; and

(4) Other requirements as necessary for the Director to guarantee the effective administration and enforcement of the City's pretreatment program.

(C) A PIA under this Section shall, at a minimum, contain the following provisions:

(1) A requirement for a contributing jurisdiction to adopt a sewer use or pretreatment ordinance which establishes pretreatment standards and requirements at least as stringent as this Chapter, along with a requirement to revise such ordinance to reflect any changes to this Chapter the City adopts in the future within a reasonable time frame, but not to exceed nine months. Alternatively, the jurisdiction may adopt a sewer use code that delegates all authority to the City to implement and enforce the pretreatment program for industrial users located within the jurisdiction and meeting the definition of an industrial user;

(2) A requirement for the contributing jurisdiction to submit a revised user inventory on an annual basis, or more frequently if requested by the Director;

(3) A provision specifying which pretreatment implementation activities will be conducted by the contributing jurisdiction and which activities will be conducted by the Director, including without limitation the issuance of industrial wastewater discharge permits, authorizations to discharge, or other control mechanisms; or the conducting of compliance inspections, sampling, and enforcement;

(4) A requirement for the contributing jurisdiction to provide the Director with access to all information that the contributing jurisdiction obtains as part of its pretreatment activities;

(5) A requirement to enforce limits on the nature, quality, and volume of the contributing jurisdiction's wastewater at the point where it discharges to the POTW;

(6) A provision ensuring the Director's access to the facilities of all industrial users within the contributing jurisdiction for inspection, sampling, and to confirm that the City's pretreatment program is properly administered and that industrial users are properly categorized; and

(7) Provisions for addressing any breach of the terms of the PIA.

(D) Existing PIAs. Existing PIAs that are not in compliance with the provisions of this Section shall be amended to conform, or shall be superseded by a PIA that conforms, to the requirements of this Section within a reasonable time frame, but not to exceed nine months following the effective date of this Chapter.

(E) Extra-jurisdictional users with no PIA in place. Until such time as the City and a jurisdiction enter into a PIA for pretreatment program delegation, the City may in its discretion exercise any of the following options with respect to any extra-jurisdictional user located within that other jurisdiction:

(1) Prohibit the discharge into the POTW of industrial wastewater from any such user.

(2) Request the jurisdiction to issue to any such industrial user a permit, authorization to discharge, or other control mechanism that is equivalent to the City's industrial wastewater discharge permit, authorization to discharge, or other control mechanism, and that includes or incorporates all applicable pretreatment standards and requirements.

(3) Enter into an agreement with any such industrial user that binds the industrial user to compliance with all pretreatment standards and requirements in connection with the City's issuance to the user of an industrial wastewater discharge permit, authorization to discharge, or other control mechanism.

(Ord. No. 6891, § 2, 11-6-24)

14.17.050 Recordkeeping and report submission.

(A) In addition to any recordkeeping requirements set forth in an industrial wastewater discharge permit, authorization to discharge, or other control mechanism, all industrial users subject to the reporting requirements of this Chapter shall retain and make available for inspection and copying, all records, reports, monitoring, calibration logs or other data, applications, permits, authorizations to discharge, other control mechanisms, and all other information and documentation required by this Chapter, including documentation associated with BMPs.

(B) Industrial users shall retain such records and shall keep such records available for inspection for at least three years. This recordkeeping period shall be extended automatically for the duration of any litigation concerning the industrial user's compliance with any provision of this Chapter, or when the industrial user has been specifically and expressly notified of a longer records retention period by the Director.

(C) Written reports required or authorized by this Chapter will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, by or into a mail facility serviced by the U.S. Postal Service, the date of receipt of the report by the City shall govern.
(Ord. No. 6891, § 2, 11-6-24)

14.17.055 Confidentiality.

(A) All records, reports, data or other information supplied by any person or industrial user because of any disclosure required by this Chapter or information and data from inspections shall be available for public inspection except as otherwise provided in this Section, 40 CFR 403.14 and NRS Chapter 239 regarding public records.

(B) Information which has been designated as a trade secret by the person supplying such information, such as processes, operations, style of work or apparatus or confidential commercial or statistical data, is subject to the provisions of this subsection and subsection (C). In order for such information and data of an industrial user to be subject to subsection (C), it must have been designated by the industrial user by means of a stamp placed in a reasonably noticeable manner on each page containing such information. The stamp must include the words "Confidential Business Information." In addition, the industrial user must demonstrate to the satisfaction of the City that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets under Federal or State law.

(C) Information designated as a trade secret and deemed to be protectable under this Section shall remain confidential and shall not be subject to public inspection. Such information shall be available only to officers, employees or authorized representatives of the City charged with implementing and enforcing the provisions of this Chapter and properly identified representatives of the U.S. Environmental Protection Agency (EPA) and the Nevada Division of Environmental Protection (NDEP).

(D) Effluent data from any industrial user, whether obtained by self-monitoring, monitoring by the City, or monitoring by any State or Federal agency, shall not be considered a trade secret or otherwise confidential. All such effluent data shall be available for public inspection.
(Ord. No. 6891, § 2, 11-6-24)

14.17.060 Sample collection and analytical methods.

(A) *Sample collection.* Compliance determinations with respect to prohibitions and limitations in this Chapter may be made based on either grab or composite samples of wastewater as specified by the Director. Such samples shall be taken at a point or points which the Director determines to be suitable for obtaining a representative sample of the discharge. Composite samples may be taken over a twenty-four-hour period, or over a longer or shorter time span, as determined by the Director to meet specific circumstances.

(B) *Sample type.* Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report and based on data that is representative of conditions occurring during the reporting period.

(1) Except as indicated in subsections (2) and (3) below, an industrial user must collect representative wastewater samples using twenty-four-hour flow proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is required or authorized by the Director. Where time-proportional composite sampling or grab sampling is required or authorized by the Director, the samples must be representative of the permitted discharge. Composite and grab samples are defined in Section 14.17.010.

(2) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and applicable EPA guidance, multiple grab samples collected during a twenty-four-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composited samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the Director, as appropriate. In addition, grab samples may be required to show compliance with instantaneous discharge limits, including pH.

(3) For sampling required in support of baseline monitoring and ninety-day compliance reports required in Section 14.17.065, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds for facilities for which historical representative sampling data do not exist. Where

historical data is available, the Director may authorize a lower minimum. An industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.

(C) *Analytical requirements.* All pollutant analysis, including sampling techniques, to be submitted as part of an industrial wastewater discharge application, or in connection with a report, permit, authorization to discharge, other control mechanism, or an analyses required under this Chapter, shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the Director or other parties approved by the EPA.

(D) *Records.* Records for all samples shall include:

(1) The date, exact place, method, and time of sampling and the name of the person(s) taking the samples;

(2) The date(s) and time analyses were performed;

(3) The name of the person performing the analyses;

(4) The analytical techniques/methods used, including method detection limits and QA/QC sample results;

(5) All chain-of-custody records; and

(6) The results of such analyses.

(Ord. No. 6891, § 2, 11-6-24)

14.17.065 Reporting and notification requirements.

(A) *Periodic compliance reports—All SIUs.*

(1) Any SIU that is subject to a Federal, State, or City pretreatment standard or requirement must submit reports, at a frequency determined by the Director but no less than once per six months, indicating the nature, concentration of pollutants in its discharge which are limited by pretreatment standards, including reporting of mass where applicable, and the average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with one or more BMPs or pollution prevention alternatives, the industrial user must submit documentation required by the Director or the pretreatment standard necessary to determine compliance status of the industrial user. All industrial monitoring reports must be signed and certified in accordance with subsection (H) of this Section.

(2) The periodic compliance report shall include a record of the nature and concentrations (and mass if specified in the user's industrial wastewater discharge permit) of

the pollutants in the effluent, subject to a pretreatment standard, that were measured, including a record of measured or estimated average and maximum daily flows taken at the user's designated sampling location. Flows shall be reported based on an actual measurement, unless the Director allows an industrial user to report average and maximum flows by verifiable techniques when the Director determines an actual measurement is not feasible.

(3) The periodic compliance report shall also include any sampling information required by the user's industrial wastewater discharge permit, including information necessary to determine compliance with applicable BMPs, pollution prevention alternatives, or maintenance, treatment, and record keeping requirements. Production data shall be reported if required by the user's industrial wastewater discharge permit, or when an industrial user is subject to a unit production-based concentration limit established by an applicable categorical pretreatment standard. Sampling and analysis that is conducted by the user at the designated sampling location more frequently than is required by this Section shall be included in the report.

(4) The Director may require other industrial users to report other monitoring, sampling and analysis as needed to determine compliance with this Chapter.

(5) The Director may agree to perform sampling and analysis in lieu of the industrial user for certain pollutant parameters. If the Director agrees to perform such sampling and analysis, the Director may charge the industrial user for such activities based upon the costs incurred by the City for the sampling and analyses, including personnel time. Any such charges shall be added to the normal sewer use charges and shall be payable as part of the sewer bills. The industrial user is responsible to assure that all monitoring required by the industrial wastewater discharge permit, authorization to discharge, or other compliance mechanism is completed.

(B) *Baseline monitoring reports—Categorical industrial users (CIUs).*

(1) Within either one hundred and eighty days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing industrial users currently discharging to or scheduled to discharge to the POTW shall submit a baseline monitoring report (BMR) which contains the information listed in subsection (2) below. At least ninety days prior to commencement of their discharge, new sources, as well as sources that become CIUs subsequent to the promulgation of an applicable categorical pretreatment standard, shall submit to the Director a report which contains the information listed in subsection (2) below. A new source shall report the method of pretreatment it intends to use to meet applicable pretreatment standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged from regulated process streams and other non-process streams.

(2) BMRs shall include the following information:

(a) All information required in LVMC 14.17.030(F).

(b) Measurement of pollutants.

(i) An industrial user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this subsection (2).

(ii) Samples shall be taken immediately downstream from pretreatment facilities if such facilities exist or immediately downstream from the regulated processes if no pretreatment facilities exist. Industrial users shall measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 CFR 403.6(e) if other wastewaters are mixed with the regulated wastewater prior to pretreatment. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e), this adjusted limit along with supporting data shall be submitted to the Director. Both daily maximum and average concentrations (where determined) shall be reported.

(iii) Sampling and analysis shall be performed in accordance with the sampling techniques described in Section 14.17.060 and 40 CFR Part 136.

(iv) The Director may allow the submission of a BMR which uses historical data only, provided the data is sufficient to determine the need for industrial pretreatment measures.

(v) The BMR shall indicate the time, date and place of sampling, and the methods of analysis. Industrial users shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

(vi) All BMRs shall be signed and certified by the duly authorized representative of the industrial user in accordance with LVMC 14.17.065(H).

(C) *Ninety-day compliance reports—CIUs.*

(1) New sources. All new sources subject to existing categorical pretreatment standards shall submit a report to the Director within ninety days from the date of first discharge to the POTW demonstrating actual and continuing compliance with those standards.

(2) Existing sources. All existing sources required to comply with newly promulgated categorical pretreatment standards shall submit a report to the Director within ninety days of the date on which compliance is required with those standards demonstrating that actual and continuing compliance with such standards has been achieved.

(3) Such ninety-day compliance report shall contain:

(a) The information required in LVMC 14.17.030(F), subsections (6), (7), (11), (12) and (13);

(b) Any changes to the information previously reported in the permit application;

(c) For industrial users subject to equivalent mass or concentration limits established by the Director in accordance with the procedures in 40 CFR 403.6(c), a reasonable measure of the industrial user's long-term production rate; and

(d) For industrial users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), the industrial user's actual production during the appropriate sampling period.

(D) *Twenty-four-hour notice and thirty-day re-sampling.* If sampling performed by an industrial user indicates a violation of this Chapter, the industrial user shall notify the Director within twenty-four hours after becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the Director within thirty days after becoming aware of the violation. The industrial user is not required to resample if either of the following occurs:

(1) The Director performs sampling at the industrial user's facility at a frequency of at least once per month.

(2) The Director performs sampling at the industrial user's facility between the time when the industrial user performs its initial sampling and the time when the industrial user receives the results of this sampling. It is the sole responsibility of the industrial user to verify if the Director has performed this sampling.

(E) *Slug and spill discharges—Notification and plan development.*

(1) Each industrial user shall provide protection from spills and slug discharges of pollutants regulated under this Chapter. Facilities and equipment to prevent the discharge of spills or slug discharges shall be provided and maintained at the industrial user's expense.

(2) Each SIU shall immediately report all spills to the POTW that occurs within the boundaries of the industrial user's facility whether the spill results in a discharge to the POTW.

(3) The Director shall evaluate whether or not each SIU needs a slug/spill control plan or other action to control spills and slug discharges. The Director may require any industrial user to develop, submit for approval, and implement a slug/spill control plan or take such other action that may be necessary to control spills and slug discharges.

(4) A slug/spill control plan shall address, at a minimum, the following:

(a) Detailed plans (schematics) showing facility layout and plumbing representative of operating procedures;

(b) Description of contents and volumes of any process tanks;

(c) Description of discharge practices, including non-routine batch discharges;

(d) Listing of stored chemicals, including location and volumes;

(e) Procedures for immediately notifying the City of any spill or slug discharge. It is the responsibility of the industrial user to comply with the reporting requirements in this subsection (E) and subsection (F) of this Section;

(f) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and measures and equipment for emergency response; and

(g) Any other information as required by the Director.

(5) Notice to employees. A notice shall be permanently posted on an industrial user's bulletin board or other prominent place advising employees whom to call in the event of an accidental or slug discharge. Employers shall ensure that all employees who work in any area where an accidental or slug discharge may occur or originate are advised of the emergency notification procedures.

(F) *Reports of potential problems—Slug discharges.*

(1) In the case of any slug discharge or spill, or any other discharge that may cause a problem to the POTW, an industrial user shall immediately telephone and notify the City of the incident. This notification shall include:

(a) Name of the facility;

(b) Location of the facility;

(c) Name of the caller;

(d) Date and time of discharge;

(e) Date and time discharge was halted;

(f) Location of the discharge;

(g) Estimated volume of discharge;

(h) Estimated concentration of pollutants in discharge;

(i) Corrective actions taken to halt the discharge; and

(j) Method of disposal, if applicable.

(2) Within five days following such discharge, the industrial user shall, unless expressly waived by the Director, submit a detailed written report that includes all the

information contained in subsection (1) above, and any other information describing the cause(s) of the discharge and the measures to be taken by the industrial user to prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred because of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to this Chapter.

(3) An industrial user shall immediately contact the City when a change occurs at its facility affecting the potential for a slug discharge. The industrial user shall follow up on this immediate notification with a written, detailed report outlining the changes that were identified and how the industrial user will prevent slug discharges to the POTW.

(G) *Reports for other industrial users.* If the Director deems it necessary to assure compliance with provisions of this Chapter, any industrial user of the POTW may be required to submit an industrial wastewater discharge application, questionnaire, reports on the implementation of BMPs, or other reports and notifications in a format and timeframe as specified by the Director.

(H) *Signatory certification.* All reports and other submittals required to be submitted to the City shall include the following statement and signatory requirements:

(1) The authorized representative of the industrial user signing any application, questionnaire, any report or other information required to be submitted to the City must sign and attach the following certification statement with each such report or information submitted to the City:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or the persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of a fine and imprisonment for knowing violations."

(2) If the designation of an authorized representative is no longer current because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization must be submitted to the City prior to or concurrently with any reports or other documents to be signed by an authorized representative. The authorization must meet the requirements of this subsection (H), and the newly designated individual must meet the requirements for an authorized representative as set forth in the definition thereof in Section 14.17.010.

(I) *Compliance schedules.* Each compliance schedule that is established in accordance with the requirements of this Chapter shall be as specified in LVMC 14.17.030(F)(10), or as otherwise specified by the Director.

(J) *Notification of change in discharge or operations.*

(1) Every industrial user that holds an industrial wastewater discharge permit, authorization to discharge, or other control mechanism shall file a written notification with the Director a minimum of thirty days prior to any significant change either in the volume or character of pollutants in its discharge, or a change in any manufacturing process or pretreatment modifications that may alter the volume or character of pollutants in its wastewater discharge, including the listed or characteristic hazardous wastes for which the user has submitted initial notification under 40 CFR 403.12(p).

(2) Industrial users with an industrial wastewater discharge permit, authorization to discharge, or other control mechanism that imposes wastewater concentration limits based on production levels shall notify the Director in writing within five days after the industrial user becomes aware that production levels will significantly change during the next calendar month.

(3) The Director may require an industrial user to submit information that is necessary to evaluate a change in discharge, including the submission of a new or revised industrial wastewater discharge application. The Director may issue, reissue, or modify an industrial wastewater discharge permit, authorization to discharge, or other control mechanism in response to a notice required by this subsection (J).

(4) Known or anticipated facility closure. An industrial user is required to notify the Director at least thirty days prior to facility shutdown or closure which might alter the character, nature, quality, or volume of its wastewater.

(5) For purposes of this subsection (J):

(a) A significant change, as referred to in subsection (1) above, is one that is equal to or greater than twenty percent in the mass of a pollutant or volume of flow discharged to the POTW.

(b) A notification or reporting obligation, as referred to in subsection (2) above, arises when the industrial user knows, or reasonably should have known, of the facts giving rise to a notification or reporting obligation.

(K) *Notification of the discharge of hazardous waste.*

(1) Any industrial user shall notify the Director, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be hazardous waste under 40 CFR Part 261 or NRS 459.430, as the latter may be determined by NDEP. Such notification to the Director shall be made within the applicable time frame as

specified in LVMC 14.17.065(D), (F) or (J), or within twenty-four hours after becoming aware of the discharge, whichever is shorter. Such notification must include:

(a) The name of the hazardous waste as set forth at 40 CFR Part 261 and NRS 459.430;

(b) The EPA hazardous waste number;

(c) The type of discharge (continuous, batch, or other);

(d) An identification of the hazardous constituents contained in the wastes;

(e) An estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month;

(f) An estimate of the mass of constituents in the wastestream expected to be discharged during the following twelve months;

(g) Certification that the industrial user has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical; and

(h) Signatory certification as required by subsection (H) of this Section.

(2) Any industrial user shall notify the EPA Regional Waste Management Division Manager and NDEP, in writing, of the discharge into the POTW of a substance which, if otherwise disposed of, would be hazardous waste under 40 CFR Part 261 or NRS 459.430, or both, and meets the reporting criteria specified at 40 CFR 403.12(p). Notification to the EPA and NDEP is the responsibility of the industrial user and shall be made as required under 40 CFR 403.12(p). The industrial user shall copy the Director on all notifications made to EPA and NDEP.

(3) In the case of any new regulation under Section 3001 of the Resource Conservation and Recovery Act (RCRA) identifying additional characteristics of hazardous waste or listing any additional substance as hazardous waste, the industrial user must notify the Director, the EPA Regional Waste Management Waste Division Director and NDEP of the discharge of such substance within ninety days of the effective date of such regulations.

(4) Nothing in this subsection (K) creates a right to discharge any substance not otherwise allowed to be discharged by this Chapter; a permit, authorization to discharge, or other control mechanism issued under this Chapter; or any applicable Federal or State law.

(L) *Requests for information.*

(1) An industrial user shall furnish to the City, within the timeframe set by the Director, any information which the Director may request to determine whether cause exists for modifying, revoking, and reissuing, or terminating the user's industrial wastewater discharge permit, authorization to discharge, or other control mechanism, or to determine compliance with such permit, authorization, or control mechanism, and

with this Chapter. Such user shall also, upon request, provide to the Director, within the timeframe required by the Director, copies of any records that are required by the user's industrial wastewater discharge permit, authorization to discharge, or other control mechanism, or by this Chapter.

(2) When requested by the Director, any industrial user shall submit information to the Director regarding industrial processes, nature and characteristics of wastes and wastewaters generated at the industrial facility, method of disposal of wastes, or other information required by the Director in order to fulfill responsibilities under this Chapter, State law, and 40 CFR Part 403. Failure to provide information within the timeframe specified shall be a violation of this Chapter.

(Ord. No. 6891, § 2, 11-6-24)

14.17.070 Sector control programs.

(A) *General requirements.*

(1) *Authority.* The City may establish specific sector control programs for industrial users to control specific pollutants as necessary to meet the objectives of this Chapter. Pollutants subject to these sector control programs shall generally be controlled using best management practices (BMPs). The Director may implement these sector control programs through an industrial wastewater discharge permit, by letter, by an authorization to discharge, by other control mechanisms, or by directly enforcing this Chapter. All industrial users that are covered by these sector control programs shall comply with this Section, whether or not specifically notified by the City to do so.

(2) *Notification requirements and city review.* The City will review new construction and existing facilities undergoing any physical change that requires a building permit; any change in ownership (regardless of how the change came to the City's attention); any change in operations; or any other change that could alter the nature, properties, or volume of wastewater discharge, to ensure that current sector control program requirements are implemented and the facility is in compliance. In connection with such review, the City may require appropriate measures to insure compliance, including without limitation the installation of one or more appropriate pretreatment devices, such as an interceptor. An industrial user shall inform the Director prior to any:

(a) Sale or transfer of ownership of the business, including a written description (including capacity, model and manufacturer) of any and all interceptors currently installed and then-current interceptor BMPs;

(b) Change in the trade name under which the business is operated;

(c) Change in the nature of the services provided that affect the potential to discharge sector control program pollutants; or

(d) Remodeling of the facility that may result in an increase in flow or pollutant loading or that otherwise requires the facility to submit plans or specifications for approval through a local building or zoning department, or for any other formal local approval process.

(3) *Inspections.*

(a) The Director may conduct inspections of any facility of an industrial user with or without notice for determining applicability of or compliance with sector control programs.

(b) If any inspection reveals noncompliance with any sector control program requirement, corrective action shall be required.

(c) Inspection results will be provided in writing to a facility upon request.

(4) *Closure.* With respect to any facility of an industrial user, the Director may require closure of plumbing, treatment devices, storage components, containments, or other such physical structures that are no longer required for their intended purpose. Closure may include the removal of equipment, or the filling in or cementing, capping, plugging, etc., of facilities, or any combination thereof.

(5) *Enforcement and compliance.*

(a) Sector control program requirements established pursuant to this Section shall be deemed to be part of this Chapter, and their enforcement governed by the express terms of this Chapter.

(b) Any extraordinary costs incurred by the City due to interference, damage, pass through, or maintenance necessary in the wastewater collection system or wastewater treatment system (or both) shall be paid by the industrial user to the City. The direct costs of all labor, equipment and materials incurred in rectifying the interference or damage, including reasonable attorney's fees, shall be billed directly to the owner or the industrial user by the City, and such costs shall become part of the total charges due and owing to the City and shall constitute a lien on the property associated with the costs until paid in full in accordance with pursuant to Section 14.17.090.

(B) *Best management practices for fats, oil and grease (FOG) facilities.*

(1) Definitions. For purposes of this subsection (B) and parallel references within this Chapter:

"Fats, oil and grease" or "FOG" means non-petroleum organic polar compounds derived from animal or plant sources such as fats, non-hydrocarbons, fatty acids, soaps, waxes, and oils that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using the approved method for Hexane Extractable Materials in the analytical procedures established in 40 CFR Part 136.

"Gravity grease interceptor" or "GGI' means an in-ground tank containing at least one baffle in which solids, greases and oils are separated from wastewater, located outside an industrial user's building and made accessible for maintenance and inspections.

"Hydromechanical grease interceptor" or "HMGI" means a small device hooked directly to the outgoing drains of sinks located inside a commercial food preparation facility that allows for the separation of fats, oils and grease of a non-petroleum nature from wastewater prior to being discharged into the POTW.

(2) Applicability. These BMPs establish requirements for any facility that the Director determines that has the potential to discharge floatable or settleable material. The requirements established in this BMP shall apply to facilities where preparation, manufacturing, processing of food or washing/sanitizing of dishes or equipment occurs. Trucks containing mobile kitchens shall discharge their grease containing wastewater to a discharge point that has a GGI, such as a commissary or as otherwise required by the Director. Each facility that the Directory determines has the potential to discharge floatable or settleable material shall install and maintain a GGI within ninety days after being notified of such requirement.

(3) No food-related facility covered by subsection (2) above shall discharge or cause to be discharged any wastewater containing free or floating oil and grease, or any discharge containing animal fat or grease by-product in excess of two hundred fifty milligrams per liter. Unless otherwise approved by the Director, such food-related facility shall install and properly operate and maintain a GGI, implement all required BMPs and not violate any general or specific prohibition described in Section 14.17.015.

(4) A GGI or HMGI that was legally and properly installed at an industrial user's facility prior to the effective date of this Chapter and that does not comply with the requirements of this Chapter shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed in such a manner that it can be inspected and properly maintained. If the Director determines at any time that such a GGI or HMGI is incapable of adequately retaining or capturing the floatable and settleable material, that it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install a GGI or HMGI that complies with all applicable City plumbing codes within ninety days after being notified of such requirement.

(5) Variance.

(a) A variance of the requirement to install a GGI or HMGI may be granted by the Director for good cause. An industrial user seeking a variance has the burden of demonstrating through data and other information why a variance should be granted. In no case shall a variance result in the violation of any pretreatment

standard or requirement that is specified in this Chapter and applicable to the discharge. The granting of any variance shall be at the sole discretion of the Director and may be revoked at the Director's discretion.

(b) If a variance is granted, the facility shall institute BMPs and other mitigation measures as specified by the Director. These BMPs may include, but are not limited to, the following:

(i) Allowing the installation of a properly sized HMGI, or continuing to allow the use of an HMGI, in lieu of installing a GGI, where the HMGI is shown to be effective. If an HMGI is not shown to be effective, the Director may require the industrial user to install a GGI.

(ii) Equipping all sinks and drains connected to the wastewater collection system with an approved strainer or grate that is removable and accessible and that will catch garbage and food debris and prevent it from entering the waste collection system.

(iii) Prohibiting food grinders, unless the industrial user installs and properly operates a solids separator prior to discharging to the POTW.

(iv) Prohibiting the use of biological or enzyme treatment unless approved by the Director, but in no case permitting the use of enzymes or other chemical or biological treatments or products that emulsify or act to emulsify FOG.

(v) Instituting an employee training program regarding FOG waste management, to be provided to all new employees and to other employees on a periodic basis.

(vi) Providing for quarterly cleaning of its private service line to prevent the buildup of oil, grease and solids, or as otherwise specified by the Director.

(vii) Submitting records of private service line cleaning as specified by the Director.

(viii) Paying costs incurred by the City or another jurisdiction for accelerated cleaning of the sewer line providing service between the facility and the POTW, as well as for costs incurred by the City treating excess strength waste and for sampling and analysis.

(6) General control requirements.

(a) A GGI or HMGI shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in the wastewater collection system or cause or contribute to pass through or interference with respect to the wastewater treatment system.

(b) It shall be the responsibility of the industrial user or the owner of the property, or both, to contact the City's building and safety function in order to obtain any necessary permits for the installation of any interceptor or any modifications to the facility's plumbing. Written approval from the City must be obtained prior

to installation of any interceptor. The timing of review and approval of such permits shall in no way relieve the industrial user of its responsibility to produce discharges acceptable to the City under the provisions of this Chapter.

(c) The design and sizing of interceptors shall be in accordance with the edition of the Uniform Plumbing Code most recently adopted by the City, together with local City amendments to that Code. The preceding sentence applies whether the industrial user's facility is located in the City or another jurisdiction. An interceptor shall be designed, sized, installed, maintained and operated to accomplish the intended purpose of intercepting pollutants from the industrial user's wastewater and preventing the discharge of such pollutants to the City's wastewater collection and treatment systems, including pollutants that result in toxic, noxious or malodorous conditions that create a public nuisance or unsafe working conditions, which endanger life or the environment.

(d) All sinks which are connected to an interceptor shall be equipped with an approved strainer or grate that is removable and accessible and that will catch garbage and food debris and prevent it from entering the interceptor. Food grinders are prohibited unless the industrial user installs and properly operates a solids separator captures and removed all waste product prior to its entry to an interceptor.

(e) An industrial user must ensure that interceptors are accessible and unobstructed to allow for inspection, cleaning, and removal of FOG.

(f) An industrial user must always maintain interceptors at its expense and keep them in efficient operating condition by the regular removal of accumulated FOG. All grease interceptors shall be completely pumped out, including all solids, liquid and grease. No pumped-out waste shall be re-introduced.

(g) Each industrial user that is required to use and maintain a grease interceptor shall keep a record of every time the interceptor is pumped, cleaned or repaired. This record shall include the date, the name of the company that pumped or cleaned the grease interceptor, and the amount of waste that was removed. Such records shall be made available to the Director upon request. The removed contents from any grease interceptor shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with Federal, State and local regulations.

(7) Required maintenance.

(a) Grease interceptors shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept FOG and settleable materials from the facility's wastewater and prevent the discharge of said materials into the City's wastewater collection and treatment systems, or if toxic, noxious, or malodorous conditions associated with such interceptors create a public nuisance or unsafe working conditions which endanger health. GGIs shall be serviced at a minimum of once every three hundred sixty-five

days, or whenever the combined thickness of FOG and settleable materials is greater than twenty-five percent of the hydraulic working capacity of any grease interceptor chamber. HMGIs with a liquid volume less than one hundred gallons shall be serviced at a minimum of once every thirty days. HMGIs with a liquid volume of one hundred one to five hundred gallons shall be serviced at a minimum of once every ninety days. HMGIs with a liquid volume more than five hundred gallons shall be serviced at a minimum of once every three hundred sixty-five days.

(b) The Director may require more frequent cleaning than that prescribed in subsection (a) above. A variance from the requirement in subsection (a) may be obtained if the industrial user can demonstrate through analytical data that less frequent cleaning is sufficient. The industrial user will be required to continue to monitor, on an ongoing basis, the facts supporting the variance in order to continue to support the decrease in cleaning frequency.

(c) Maintenance of grease interceptors shall be done in a workman-like manner and only by a business or professional normally engaged in the servicing of such plumbing fixtures.

(d) In the event a grease interceptor is not properly maintained by the industrial user, owner, lessee, or authorized representative of the industrial user, the Director may authorize such maintenance work be performed on behalf of the industrial user. The costs of such maintenance shall be billed directly to the industrial user or property owner and shall become part of the charges due and owing to the City.

(e) Biological treatment or enzyme treatment shall not be a substitute for the servicing of a grease interceptor. Use of enzymes or other chemical or biological treatment or product that emulsifies or acts to emulsify FOG is prohibited.

(f) An industrial user must document each pump-out of a grease interceptor with a waste manifest or trip ticket, which must be kept by the industrial user on site for at least three years.

(g) An industrial user must take reasonable steps to assure that all waste is properly disposed of in accordance with Federal, State and local regulations (i.e. through a statement certifying proper disposal by the hauler included on the waste manifest or trip ticket for each load).

(C) *Best management practices for sand/oil interceptors.*

(1) Applicability. These BMPs establish requirements for any facility that has the potential to discharge petroleum oil, mineral oil, cutting oils, non-food grease and solids. All facilities subject to these BMPs must comply with the requirements which include the requirement for installation and proper operation and maintenance of an interceptor, as well as reporting requirements.

(2) For purposes of this subsection (C) and parallel references within this Chapter, "sand/oil interceptor" or "interceptor" means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept sand (or other aggregate) and petroleum-based oil and grease from a wastewater discharge; is designed with consideration of retention times, volumes in gallons calculated for each facility, and gravity separation; and includes one or more baffles and a minimum of two compartments.

(3) A sand/oil interceptor that was legally and properly installed at an industrial user's facility prior to the effective date of this Chapter and that does not conform to the requirements of this Chapter shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed is such a manner that it can be inspected and properly maintained. If the Director determines at any time that such interceptor is incapable of adequately retaining the floatable and settleable material or if it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install an interceptor that complies with all City codes within ninety days after being notified of such requirement.

(4) Implementation. These interceptor requirements may be implemented by letter, order, authorization, permit or other appropriate control mechanism specified by the Director.

(5) General control requirements.

(a) An interceptor shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in, the wastewater collection system or cause or contribute to pass through or interference with respect to the wastewater treatment system.

(b) It shall be the responsibility of the industrial user or the owner of the property, or both, to contact the City's building and safety function in order to obtain any necessary permits for the installation of any interceptor or any modifications to the facility's plumbing. Application requirements and the installation of interceptors, as well as any other modifications to plumbing systems, shall be in accordance with applicable building-related codes, including without limitation the edition of the Uniform Plumbing Code most recently adopted by the City, together with local City amendments to that Code. Written approval from the City must be obtained prior to installation of any interceptor. The timing of review and approval of permits shall in no way relieve the industrial user of its responsibility to produce discharges acceptable to the City under the provisions of this Chapter.

(c) Toilets, urinals and similar fixtures shall not discharge through an interceptor. Such fixtures shall be plumbed directly into the wastewater collection system.

(d) An industrial user shall ensure that interceptors are accessible for inspection, cleaning, and removal of sand, oils and other accumulated wastes.

(e) An industrial user shall always maintain interceptors at its own expense and keep them in efficient operating condition by the regular removal of waste materials.

(6) Required maintenance.

(a) Each sand/oil interceptor shall be maintained by regularly scheduled cleaning so that it will properly operate as intended to efficiently intercept the sand and oil from the industrial user's wastewater and prevent the discharge of said materials into the City's wastewater collection and treatment systems. An interceptor shall be serviced at a minimum of once every three hundred sixty-five days, or more frequently as deemed necessary or appropriate by the Director. The industrial user should periodically check the interceptor for the accumulation of pollutants or solids to avoid exceeding the capacity of the interceptor. The Director may require more frequent servicing or cleaning. A variance from this requirement may be obtained when the industrial user can demonstrate with analytical data that less frequent cleaning is sufficient.

(b) Maintenance of interceptors shall be performed in a professional and competent manner, and in accordance with applicable professional standards. Such work shall be performed only by businesses or professionals qualified to engage, and regularly engaged, in the servicing of such plumbing fixtures.

(c) In the event an interceptor is not properly maintained by the industrial user, or by an owner or lessee, the Director may authorize such maintenance work be performed on behalf of the facility. The costs of such maintenance shall be billed directly to the customer and shall become part of the charges due and owed to the City.

(d) An industrial user must document each pump-out of an interceptor with a waste manifest or trip ticket, which must be kept by the industrial user on site for at least three years.

(e) An industrial user must take reasonable steps to assure that all waste is properly disposed of in accordance with Federal, State and local regulations (i.e. through a statement certifying proper disposal by the hauler included on the waste manifest or trip ticket for each load).

(f) Each industrial user that is required to use and maintain an interceptor shall keep a record of every time the interceptor is pumped or cleaned or repaired. This record shall include the date, the name of the company that pumped or cleaned the interceptor and the amount of waste that was removed. Such records shall be made available to the Director upon request. The removed contents from any interceptor shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with Federal, State and local regulations.

(D) *Best management practices for dental wastewater dischargers.*

(1) *Applicability.* These BMPs apply to dental wastewater dischargers. A dental wastewater discharger is not considered an SIU unless expressly so designated by the Director. Dental wastewater dischargers are not considered a CIU. These BMPs do not apply to dental wastewater dischargers that:

(a) Exclusively practice one or more of the following dental specialties: Oral pathology, oral and maxillofacial radiology, oral and maxillofacial surgery, orthodontics, periodontics, or prosthodontics;

(b) Discharge wastewater from a mobile unit operated by another dental wastewater discharger;

(c) Do not discharge any amalgam process wastewater to a POTW, such as dental wastewater dischargers that collect all dental amalgam process wastewater for transfer to a Centralized Waste Treatment facility as defined in 40 CFR Part 437; or

(d) Do not place dental amalgam, and do not remove amalgam except in limited emergency or unplanned, unanticipated circumstances, and that certify such to the City as required in 40 CFR 441.50.

(2) *Definitions.* For purposes of this subsection (D) and parallel references in this Chapter:

"Amalgam process wastewater" means any wastewater generated and discharged by a dental wastewater discharger through the practice of dentistry that may contain dental amalgam.

"Amalgam separator" means a collection device designed to capture and remove dental amalgam from the amalgam process wastewater of a dental facility.

"Dental amalgam" means an alloy of elemental mercury and other metals that is used in the practice of dentistry.

"Dental wastewater discharger" means a dental facility where the practice of dentistry is performed, including, but not limited to, institutions, permanent or temporary offices, clinics, home offices, and facilities owned and operated by Federal, State or local governments, that discharges wastewater to a POTW.

"Exempt dental wastewater discharger" means a dental wastewater discharger exempted pursuant to subsection (1) above.

"Mobile unit" means a specialized mobile self-contained van, trailer, or equipment used in providing dentistry services at multiple locations.

"New source dental wastewater discharger" means a dental wastewater discharger whose first discharge to a POTW occurs on or after July 15, 2017, or where a transfer of ownership occurred on or after July 15, 2017.

(3) *Reporting.* The duly authorized representative of a dental wastewater discharger shall submit a dental wastewater discharger survey and one-time certification to the

City on a form provided by the Director. The dental wastewater discharger survey and one-time certification must be submitted within ninety days after discharge to the POTW.

(4) *Amalgam separator requirements.*

(a) All dental wastewater dischargers that discharge amalgam process wastewater to the POTW shall install an amalgam separator or device and implement the required BMPs set forth and in accordance with this subsection (D).

(b) A new source shall install, operate, and maintain an amalgam separator or device compliant with 40 CFR 441.30 prior to discharge to the POTW.

(c) Existing sources with non-compliant amalgam separators that were installed prior to June 14, 2017, shall comply by June 14, 2027, unless replaced earlier due to malfunction.

(5) *Amalgam separator required best management practices.*

(a) The installation and operation of amalgam separators required pursuant to subsection (4) above shall meet the following criteria:

(i) The amalgam separator must be compliant with 40 CFR 441.30(1) and certified to meet at least a ninety-five percent solids removal efficiency as specified by Federal or State regulations per 40 CFR 441.30(1)(i).

(ii) The amalgam separator must be designed and approved for a flow rate capable of handling the maximum volume discharged from the dental wastewater discharger.

(iii) The amalgam separator must allow the dental wastewater discharger to make direct observations as to the level of solids in the collection container, proper solid and liquid separation, and the condition of all plumbing connections.

(iv) The amalgam separator must be installed so that all amalgam contaminated wastewater passes through the unit before being discharged to the POTW.

(v) The amalgam separator must be installed in a manner so as to be accessible for cleaning and inspection.

(vi) The amalgam separator must be serviced at a minimum of once every twelve months in accordance with the manufacturer's instructions, or more frequently if visual inspections indicate that the level of solids is at or over eighty-five percent of the recommended maximum level, whichever is more stringent.

(vii) Amalgam waste removed from the amalgam separator must be collected and handled in accordance with the manufacturer's instructions and Federal, State, and local laws and regulations.

(b) Each dental wastewater discharger shall ensure that amalgam wastestreams from chair side traps, screens, vacuum pump filters, dental tools, cuspidors, or collection devices discharge through an appropriate amalgam separator.

(c) Each dental wastewater discharger shall operate and maintain all equipment in accordance with the manufacturer's instructions.

(d) Each dental wastewater discharge facility shall use disinfecting line cleaners that are non-acidic and non-oxidizing with a pH between six to eight standard units. Prohibited cleaning chemicals include but are not limited to bleach; chorine; iodine; and peroxide chemicals and other oxidizing cleaners.

(e) All water containing amalgam waste shall be plumbed through the amalgam separator. When cleaning, ensure all filters or traps are rinsed over sinks or drains that discharge to the amalgam separator.

(f) Each dental wastewater discharger shall ensure proper disposal of amalgam waste through a licensed amalgam recycler or a permitted and licensed treatment, dangerous waste storage or disposal facility in accordance with Federal, State and local regulations.

(g) No dental wastewater discharger shall cause or contribute to pass through or interference, violate a specific prohibition as specified in Section 14.17.015, or cause the City to exercise its emergency authority as specified in LVMC 14.17.075(C)(7).

(E) *Best management practices for the acceptance of trucked and hauled waste.*

(1) *Applicability.* The requirements established in this subsection (E) shall apply to persons and operators of companies who discharge trucked and hauled waste to the POTW, including any discharge that enters the City's wastewater treatment system. Where the Director elects to allow hauled waste to be accepted by the POTW, the following shall apply:

(a) Hauled wastes may be introduced into the POTW only at locations designated by the Director, and at such times as are established by the Director.

(b) The Director shall have the right to refuse any hauled waste load.

(c) Waste haulers are prohibited from discharging wastes that would violate the standards regarding prohibited discharges that are specified in Section 14.17.015.

(d) Waste haulers are prohibited from discharging hazardous wastes to the POTW or other wastes that are generated by a CIU.

(e) Waste haulers shall comply with specific pollutant limitations established by the City specific to the hauled waste to be discharged.

(f) The Director shall require compliance with these BMPs by permit, authorization to discharge, letter, or another control mechanism. The Director may require generators of the hauled wastes to obtain a control mechanism.

(g) The Director may sample and analyze the hauled wastes or require the hauler to perform such sampling and analysis to verify that each hauled load complies with applicable pretreatment standards or requirements, or both.

(h) The Director may sample and analyze the hauled wastes or require the hauler to perform such sampling and analysis at the location where the waste is generated.

(i) The Director may require an industrial waste hauler to receive prior approval or consent before discharging.

(j) A waste hauler must notify the Director of any new commercial or industrial customers or changes in the nature of hauled waste originating from existing customers. Customer lists shall be considered confidential business information under Federal law and regulations if designated as such by the waste hauler.

(k) The Director may restrict the maximum number of loads that a waste hauler may discharge during a specific period of time, and the discharge rate of each load.

(l) Waste haulers must provide a manifest form or similar trip ticket for every load prior to discharge. The form or ticket shall include, at a minimum:

(i) The name and address of each customer or source of waste;

(ii) The number of any permit(s) required by any jurisdiction in order to haul or dispose of waste;

(iii) Truck identification;

(iv) Volume of wastewater from each source;

(v) Type of waste to be discharged;

(vi) Known or suspected pollutants present in load(s);

(vii) Signatory certification; and

(viii) Certification that the hauled waste is not hazardous.

(m) Waste haulers shall use a manifest form/trip ticket approved by the Director.

(n) The Director may impose fees or charges for hauled wastes.

(o) The waste hauler shall:

(i) Maintain tanks, pumps, valves, hoses, racks, cylinders, diaphragms, pipes, connections, and other appurtenances on a vehicle in good repair and free from leaks.

(ii) Provide a safety plug or cap for each tank.

(iii) Ensure that the vehicle exterior is clean at the beginning of each workday prior to entry to the POTW.

(iv) Clean the inside of tanks to ensure that non-permitted residual wastes are not left in the tank and allowed to mix with permitted wastes.

(v) Ensure that tanks are an integral part of a vehicle to transport liquid waste. Portable tanks or other containers temporarily installed in vehicles are prohibited (unless prior approval is obtained from the Director, e.g. portable toilets).

(vi) Ensure that piping, valves, and connectors (excluding the discharge hose) are permanently attached to the tank or vehicle, or both.

(vii) Ensure that tanks are liquid tight and are constructed so that every interior and exterior portion can be easily cleaned.

(viii) Ensure that the openings of tanks are constructed so that collected waste will not spill during filling, transfer, transport or disposal.

(ix) Provide for outlet connections that are constructed so that no liquid waste will leak, run, or spill out from the vehicle.

(x) Provide for outlets that are of a design and type suitable for the liquid waste handled and capable of controlling flow or discharge without spillage and undue spray on or flooding of immediate surroundings while in use.

(xi) Ensure that pumps, valves, cylinders, diaphragms, and other appurtenances are of a design and type suitable for the type of waste handled, capable of operation without spillage, spray, or leakage, and capable of being easily disassembled for cleaning.

(2) *Authorized disposal site.* Waste haulers may dispose of waste only at a location that is properly permitted to receive such waste. In the case of waste to be disposed of at a location that has the potential to enter the POTW, disposal of such waste at that location must first be authorized in writing by the Director before the location may receive trucked or hauled waste.

(3) *Sanitation and safety standards.* Each hauler who discharges wastes to the POTW shall be responsible for cleanliness and safety practices at the points of disposal, including the prompt cleanup of any spills. Each hauler is also responsible for keeping vehicles used and related facilities clean and in good repair while being used for disposal to the POTW. These sanitary and safety practices shall be carried out in a manner acceptable to the Director. Failure to comply with these sanitation and safety standards shall be grounds for suspension of a permit, authorization to discharge, or other control mechanism.

(4) *Quality of wastes.* Wastes approved for discharge to the POTW shall be representative of what the waste hauler disclosed in the manifest. The waste hauler consents to the Director's right to sample and analyze the contents of any vehicle utilizing the POTW for the discharge of wastes and charge the industrial user for such sampling and analytical costs. The purpose of such sampling and analysis will be to determine conformance with this Chapter. It shall be the responsibility of any industrial user whose discharge is at issue to assist in sample collection as required by the Director.

(5) *Performance bond.* Waste haulers subject to regulation under this subsection (E) may be required to secure and maintain a bond in an amount as specified by the City, indemnifying the City against damages sustained by reason of any spill or any dumping or discharge of any liquid waste, hazardous waste, or incompatible waste within the jurisdictional limits of the City. Proof of bonding shall be provided to the City prior to authorization to discharge. In addition, the City may decline to authorize discharge to any industrial user who has failed to comply with any provision of this Chapter unless such industrial user first files a satisfactory bond, payable to the City, in a sum not to exceed a value determined by the City to be necessary to achieve consistent compliance.

(6) *Suspension of discharge.* The City, at its discretion, may revoke an authorization to discharge and take other enforcement actions as specified in Section 14.17.075. Violations that may result in a suspension of authorization to discharge include:

(a) Failure to submit accurate or timely reports;

(b) Failure to pay charges or fees when due;

(c) Failure to maintain vehicles as required;

(d) Discharging waste at a location other than an authorized disposal site;

(e) Failure to comply with applicable sanitation standards;

(f) Discharging of industrial sludges or other unacceptable wastes into the POTW;

(g) Failure to maintain valid and current registrations, permits, and licenses as required by any local, State or Federal regulation or requirement; or

(h) Other violations of this Chapter when it is determined that suspension is necessary to protect the POTW.

(Ord. No. 6891, § 2, 11-6-24)

14.17.075 Compliance and enforcement.

(A) *Pretreatment enforcement response plan.* As required by Federal regulations, the City will establish a pretreatment enforcement response plan for carrying out the provisions of this Chapter, as well as enforcement policies and procedures consistent with that plan.

(B) *Publication of industrial users in significant noncompliance.* The City shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdiction served by the POTW, a list of the SIUs which, at any time during the previous twelve months, were in significant noncompliance with applicable pretreatment standards and requirements. For purposes of this subsection (B), "significant noncompliance" is as defined in LVMC 14.17.010. In addition, the City shall include in that publication a list of all IUs which, during that same period, were noncompliant with subsections (3), (4) or (8) as set forth in the definition of "significant noncompliance" referred to above.

(C) *Administrative enforcement.*

(1) *Notice of violation.* Whenever the Director finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the Director may serve upon the industrial user a written notice of violation (NOV). Within five days after the receipt of an NOV, the industrial user shall submit to the Director an explanation of the violation and a plan for satisfactory correction and prevention of further violations. Submission of such a plan in no way relieves the industrial user of liability for any violations occurring before or after receipt of the NOV. Nothing in this Section shall limit the authority of the Director to take any action, including emergency actions or any other enforcement action, without first issuing a NOV.

(2) *Administrative order.* Whenever the Director finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the Director may issue an administrative order to the industrial user responsible for the discharge directing that the industrial user come into compliance within a specific time. If the industrial user does not come into compliance within the time provided, the City may discontinue sewer service to the industrial user unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. An administrative order also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the POTW. An administrative order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does it relieve the industrial user of liability for any violation, including any continuing violation. Issuance of an administrative order shall not be a bar against, limitation, or a prerequisite for, taking any other action against the industrial user.

(3) *Consent order.* The City may enter into a consent order, a document containing assurances of voluntary compliance, or any other similar document establishing a commitment by or agreement with any industrial user responsible for noncompliance. Any such document shall include specific actions to be taken by the industrial user to correct the noncompliance within a time period specified by the document. A consent order or similar document may include penalties, supplemental environmental projects, or other conditions and requirements as agreed to by the City and the industrial user. A consent order or similar document shall have the same force and effect as an administrative order and shall be judicially enforceable.

(4) *Show cause hearing.*

(a) Whenever the Director finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement,

an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the Director may order the industrial user to appear before the Director and show cause why enforcement action proposed in the order should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by certified mail (return receipt requested) at least ten days prior to the hearing. Such notice may be served on any authorized representative of the industrial user. Neither the decision to order a show cause hearing nor the holding of a show cause hearing shall act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(b) After the Director has reviewed the evidence presented in connection with a show cause hearing, the Director may issue regarding the industrial user:

(i) An order directing that, following a specified time period, sewer service to the industrial user be discontinued unless adequate treatment facilities, devices or other related appurtenances have been installed, or existing treatment facilities, devices or other related appurtenances are properly operated.

(ii) Further orders and directives as are deemed necessary and appropriate to correct the violation.

(5) *Cease and desist order.*

(a) Whenever the Director finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, and that the industrial user's past violations are likely to recur, the Director may issue a cease and desist order to the industrial user directing it to cease and desist all such violations and directing the industrial user to:

(i) Immediately comply with all requirements;

(ii) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations or terminating the discharge, or both.

(b) The issuance of a cease and desist order shall not act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(6) *Administrative fines.*

(a) Whenever the Director finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an

order or other control mechanism issued under this Chapter, the Director may fine the industrial user in an amount not to exceed ten thousand dollars per violation per day, or as otherwise limited by law. In the case of monthly or other long-term average discharge limits, fines shall be assessed for each day during the period of violation. The Director may add the actual costs of preparing administrative enforcement actions, such as notices and orders, to the fine.

(b) An industrial user who disputes a fine or the amount thereof may seek reconsideration thereof by filing a written request for reconsideration with the Director. The Director may require that the filing of the request be accompanied by full payment of the fine amount, either immediately or within thirty days after have been notified of the fine. The Director shall provide the industrial user the opportunity to submit information in support of the request for reconsideration, including the setting of a hearing where the Director deems appropriate. The Director may conduct the hearing or direct that the hearing be held by a designee of the Director. In the event the reconsideration is granted in favor of the industrial user, either by reducing the amount of the fine or canceling the fine, the amount of the reduction or cancellation shall be returned to the industrial user, together with any accrued interest.

(c) The issuance of an administrative fine shall not act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(7) *Emergency suspension of service.*

(a) Endangerment to health or welfare of the community. Notwithstanding any other provision of this Chapter, the City, without formal notice to an industrial user, may immediately and effectively halt or prevent any discharge of pollutants into any natural waterway, surface drainage within the City, any area under jurisdiction of the City, the POTW of the City or any wastewater collection system tributary thereto, by any available means, including physical disconnection from the wastewater collection system, whenever it reasonably appears that such discharge presents an imminent endangerment to the health or welfare of the community.

(b) Endangerment to environment or treatment works. Whenever a discharge presents or may present an endangerment to the environment or threatens to interfere with the operation of the POTW, the City, after written notice to the discharger, may halt or prevent any discharge of pollutants into any natural waterway, any area of surface drainage within the City, any area otherwise under the jurisdiction of the City, the POTW, or any wastewater collection system tributary thereto, and may do so by any available means, including physical disconnection from the wastewater collection system,

(c) In the case of an emergency suspension referred to in subsection (b) above, where the notice referred to is accompanied by an order to stop the discharge or contribution, the discharger so notified shall immediately stop or eliminate the

discharge or contribution that is the subject of the notice. In the event of a failure of the discharger to comply voluntarily with the suspension order, the City shall take such steps as deemed necessary, including immediate severance of the sewer connection, in order to prevent or minimize damage to the POTW or endangerment to individuals or the environment. Upon receipt of proof of the elimination of the non-complying discharge, the City may reinstate:

(i) An industrial wastewater discharge permit, authorization to discharge, or other wastewater treatment service;

(ii) Wastewater treatment service; or

(iii) A combination of subsections (i) and (ii) above.

(d) In the case of any discharge that has been the subject of an emergency suspension under this subsection (7), the industrial user shall provide to the City a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence. The statement shall be provided to the City within five days after the date of the occurrence.

(e) Suspension of service under this subsection (7) shall not act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(8) *Revocation of industrial wastewater discharge permit or authorization to discharge.* In connection with a revocation proceeding referred to in LVMC 14.17.030(M):

(a) An industrial user whose industrial wastewater discharge permit or authorization to discharge has been revoked or who has been served with a notice of an intended order for revocation may file with the Director a request for a hearing with respect thereto. The filing of a request for a hearing shall not stay the existing or proposed suspension.

(b) If a hearing is requested with respect to an existing or proposed suspension or revocation, other than for action taken by the City under LVMC 14.17.075(C)(7), the Director shall hold a hearing following, as much as is practicable, the process described in LVMC 14.17.075(C)(4).

(D) *Judicial enforcement remedies.*

(1) *Injunctive relief.*

(a) Whenever the City finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the City may petition a court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the industrial wastewater discharge permit, order, or other requirement imposed by this Chapter on the activities of an industrial user. The

City may also seek such other action as is appropriate for legal or equitable relief (or both), including a requirement for the industrial user to conduct environmental remediation. A petition for injunctive relief shall not act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(2) *Civil penalties.*

(a) An industrial user who has violated, or continues to violate, any provision of this Chapter, an industrial wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the City in a judicial proceeding for a maximum civil penalty not to exceed ten thousand dollars per day per violation, or as otherwise limited by law. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of violation.

(b) The City may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the City.

(c) Filing a suit for civil penalties shall not act as a bar against, limitation of, or prerequisite for taking any other action against the industrial user.

(3) *Civil/administrative fine pass through.* If an industrial user discharges pollutants that cause the City to violate any condition of its NPDES permit and the City is fined by the EPA or NDEP for such violation, then the industrial user shall be fully liable for the total amount of the fine assessed against the City by the EPA or NDEP.

(4) *Criminal penalties.*

(a) An industrial user that willfully, recklessly or negligently violates any provision of this Chapter, including making false statements, shall, upon conviction, be guilty of a misdemeanor, punishable by a fine not to exceed ten thousand dollars for each violation, or as otherwise limited by law, or by imprisonment up to six months, or both. Each day any violation of this Chapter occurs shall constitute a separate offense.

(b) The City may refer any violation that may warrant criminal prosecution to the U.S. Attorney General's Office, State Attorney General, EPA Criminal Investigation Division or other appropriate agency. This referral shall not preclude the City from taking a parallel administrative or civil enforcement action.

(E) *Other remedies available to the city.*

(1) *Liability insurance.* Whenever the City finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the City may decline to issue or to reissue an industrial wastewater discharge permit, authorization to discharge, or other control mechanism unless the industrial user

first submits proof that it has obtained liability insurance coverage sufficient to restore or repair damage to the POTW caused by a discharge for which the industrial user is responsible.

(2) *Performance bonds.* Whenever the City finds that an industrial user has violated or continues to violate any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, the City may decline to issue or reissue an industrial wastewater discharge permit, authorization to discharge, or other control mechanism unless the industrial user first files a satisfactory bond, payable to the City, in a sum not to exceed a value determined by the City to be necessary to achieve consistent compliance.

(3) *Public nuisance.* The violation by an industrial user of any provision of this Chapter, a pretreatment standard or requirement, an industrial wastewater discharge permit, an authorization to discharge, or an order or other control mechanism issued under this Chapter, is hereby declared a public nuisance and shall be corrected or abated as directed by the City. Any persons(s) creating a public nuisance shall be subject to the provisions of the Las Vegas Municipal Code governing such nuisances, including reimbursing the City for any costs incurred in removing, abating, or remedying the nuisance.

(4) *Damage/tampering.* It is unlawful for any person, without authority to do so, to willfully or negligently break, damage, destroy, uncover, deface, tamper with, or prevent access to any structure, appurtenance or equipment, or other part of the POTW. Such person shall be subject to an appropriate criminal prosecution or civil proceeding available under this Code or other applicable law, and is liable for such penalties as may be established in connection therewith.

(Ord. No. 6891, § 2, 11-6-24)

14.17.080 Reconsideration of certain city actions.

(A) Except as otherwise specifically provided in LVMC 14.17.030(H), 14.17.075(C), and 14.17.075(D) regarding City determinations under those provisions, an industrial user may request reconsideration of any decision, action or determination made by the Director in the interpretation or the implementation of the provisions of this Chapter in accordance with this Section. The industrial user may file a written request for the reconsideration of such decision, action or determination with the Director within fifteen days after receipt of notice of the decision, action or determination. The written request must set forth in detail the facts that support the request for reconsideration. Such facts must include a statement that sets forth any newly discovered relevant fact that was not known or was unavailable at the time of the initial decision, action or determination. The Director shall render a written decision with respect to the request within forty-five days after receipt thereof.

(B) Each request for reconsideration shall be accompanied by the fee, if any, that has been established by the City Council pursuant to Section 14.17.090 for the filing of such a request. Any such fee may, in the sole discretion of the Director, be refunded if the Director's ruling with respect to such request is in favor of the person who made the request.

(C) If the industrial user disagrees with the ruling of the Director with respect to a request for reconsideration, the industrial user may, within ten days after the date of its receipt of the notification of the Director's ruling, file a written appeal to the City Council.

(D) Each appeal to the City Council shall be accompanied by the fee, if any, that has been established by the City Council pursuant to Section 14.17.090 for the filing of an appeal. Any such fee may, in the sole discretion of the City Council, be refunded if the City Council's ruling with respect to such appeal is in favor of the industrial user who filed the appeal.

(E) Except as otherwise agreed to by the appellant, the appeal shall be heard by the City Council within forty-five days after the date on which the appeal was filed, and the City Council shall make a final ruling with respect to the appeal within forty-five days after the hearing is concluded. The City Council may overturn the Director's decision only upon a determination that the decision was inconsistent with the provisions of this Chapter or that the decision was without factual support or contrary to law.
(Ord. No. 6891, § 2, 11-6-24)

14.17.085 Affirmative defenses to discharge violations.

(A) *Upset.*

(1) For the purposes of this Section, "upset" means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(2) An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection (3) below are met.

(3) An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

(a) An upset occurred, and the industrial user can identify the cause(s) of the upset;

(b) The facility where the upset occurred, at the time in question, was being operated in a professional and competent manner and in compliance with applicable operational and maintenance procedures; and

(c) The industrial user submitted the following information to the Director within twenty-four hours after becoming aware of the upset (and, if the information was provided orally, a written submission was provided to the Director within five days):

(i) A description of the indirect discharge and cause of noncompliance;

(ii) The period of noncompliance, including exact dates and times, or, if not corrected, the anticipated time the noncompliance is expected to continue; and

(iii) The steps being taken and plans being made to reduce, eliminate, and prevent recurrence of the noncompliance.

(4) In any enforcement proceeding, the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.

(5) An industrial user will have the opportunity for a judicial determination on any claim of upset only in connection with a judicial enforcement action brought against the user for noncompliance with categorical pretreatment standards.

(6) In cases where an upset has occurred by reason of the reduction, loss, or failure of its treatment facility, the industrial user shall control production of all discharges to the extent necessary to maintain compliance with categorical pretreatment standards until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

(B) *Standards regarding prohibited discharges.* An industrial user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions set forth in LVMC 14.17.015(A) or the specific prohibitions set forth in LVMC 14.17.015(B), subsections (3), (4), (5), (6) or (8) where the industrial user can demonstrate the existence of the circumstance in subsection (1) below and the existence of the circumstance listed in either subsections (2) or (3) below:

(1) It did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference; and

(2) A local limit designed to prevent pass through or interference was developed for each pollutant in the industrial user's discharge that caused pass through or interference, and the industrial user was in compliance with each such local limit directly prior to and during the pass through or interference; or

(3) If a local limit designed to prevent pass through or interference, or both, as the case may be, was not developed for the pollutant(s) that caused the pass through or interference, the industrial user's discharge directly prior to and during the pass through or interference did not change substantially in nature or constituents from the user's prior discharge activity when the POTW was regularly in compliance with the requirements of the POTW's NPDES permit and, in the case of interference, applicable requirements for sewage sludge use or disposal.

(C) *Bypass.*

(1) For the purposes of this subsection (C), the terms "bypass" and "severe property damage" have the meanings ascribed to them in LVMC 14.17.010.

(2) An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections (3) and (4) below but are reportable under LVMC 14.17.065, subsections (A), (D), (F), (J) and (K), as applicable.

(3) Notice.

(a) If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the Director at least ten days before the date of the bypass.

(b) An industrial user shall submit oral notice to the Director of an unanticipated bypass that exceeds applicable pretreatment standards within twenty-four hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within five days from the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent recurrence of the bypass.

(4) The Director may take an enforcement action against an industrial user for a bypass, unless:

(a) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(b) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(c) The industrial user submitted notices as required under subsection (3) above.

(5) The Director may approve an anticipated bypass, after considering its adverse effects, if the Director determines that it will meet the three conditions set forth in subsections (4)(a), (b) and (c) above.

(Ord. No. 6891, § 2, 11-6-24)

14.17.090 Pretreatment program fees and charges.

(A) *Fees enumerated.* The City Council may adopt reasonable fees for the recovery of costs of setting up and operating the City's pretreatment program, which may include, but are not limited to:

(1) Fees for wastewater discharge applications including the cost of processing such applications;

(2) Fees related to the issuance or reissuance of industrial wastewater discharge permits, authorizations to discharge, or other control mechanisms;

(3) Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing an industrial user's discharge, and reviewing monitoring reports submitted by industrial users;

(4) Fees for reviewing and responding to spills and slug discharges, including accidental discharge procedures and construction;

(5) Surcharge rates for pollutants specified in LVMC 14.17.015(E), for flow, or for pollutants or pollutant parameters, in each case as determined appropriate by the Director;

(6) Fees and charges for disposal of special wastes;

(7) Fees for filing requests for reconsideration and appeals; and

(8) Other fees as the City may deem necessary to carry out the requirements of this Chapter.

The fees and charges listed in this subsection (A) relate solely to the matters covered by this Chapter and are separate from all other fees and charges assessed by the City.

(B) *Schedule of fees, charges, assessments and penalties—Due upon delivery of notice.* All fees, charges, assessments and penalties that are imposed pursuant to the provisions of this Chapter or the approved schedule of fees and charges that is established in accordance with this Section shall be due and payable upon delivery of notice thereof, or upon mailing such notice to the last known mailing address of the industrial user or entity responsible for payment thereof.

(C) *Additional penalties.* Unpaid fees, charges, assessments, fines and penalties shall, after sixty days, be subject to the assessment of an additional penalty of twenty-five percent of the unpaid balance. Interest shall accrue thereafter at a rate of one percent per month. A lien against the industrial user's property may be sought in accordance with subsection (D). The failure to pay a penalty may be the basis for revocation of an industrial wastewater discharge permit, authorization to discharge, or other control mechanism, as specified in LVMC 14.17.030(M).

(D) *Unpaid fees, etc., constitute lien.*

(1) All fees, charges, assessments and penalties imposed by or under this Chapter shall de due within thirty days after delivery or mailing of the notice described above. Any

fee, charge, assessment or penalty that remains unpaid after the thirty days shall constitute a perpetual lien on and against the premises which are subject to such fee, charge, assessment or penalty as well as constituting a debt that is owing to the City by the industrial user upon whom such fee, charge, assessment or penalty is imposed and the owner of record of such premises, if the owner is someone other than the industrial user.

(2) The City may bring a civil action in any court of competent jurisdiction to recover such fee, charge, assessment or penalty, or any combination thereof, together with interest thereon, and may enforce such lien by recording a notice thereof with the county recorder upon the expiration of such thirty-day period and foreclosing the same against the premises that are subject to such lien in the same manner as is provided by the laws of the State for the foreclosure of mechanics' liens.

(3) The City shall keep a permanent and accurate account of all fees, charges, assessments and penalties that are received by it under this Chapter, which account shall include the name and address of each person who paid any such fee, charge, assessment or penalty or on whose behalf the same was paid, the date of such payment and amount thereof and the purpose for which the same was paid.

(4) Whenever a delinquency charge has not been specifically provided for in this Chapter, any fee, charge, assessment or penalty that becomes delinquent shall have added to it a basic delinquency charge that is equal to ten percent of the fee, charge, assessment or penalty that became delinquent, and thereafter an additional delinquency charge shall accrue on the total amount that is due, including the ten percent basic delinquency charge, at the rate of ten percent per month compounding, but the amount of the delinquent fee, charge, assessment or penalty, as increased by delinquency charges, shall not exceed twice the amount of the original fee, charge, assessment or penalty. In addition to the delinquency charges described in this Section, the City may also assess the collection costs, including, without limitation, attorneys' fees and court costs, that the City may incur in collecting the fee, charge, assessment or penalty and the delinquency charges.

(Ord. No. 6891, § 2, 11-6-24)

14.17.095 Severability.

If any portion of this Chapter, as now or hereafter amended, or its application to any person or circumstances, is held invalid, unenforceable or unconstitutional, such adjudication shall not affect the validity of this Chapter, as now or hereafter amended, or any section, provision or part hereof or thereof not adjudicated to be invalid, unenforceable or unconstitutional, and its application to other persons or circumstances shall not be affected. (Ord. No. 6891, § 2, 11-6-24)

14.17.100 Non-exclusive remedies.

The remedies provided for in this Chapter are not exclusive of any other remedies that the City may have under Nevada law. The City may take any, all, or any combination of actions

described in this Chapter against an industrial user who violates this Chapter. The City may seek damages from any industrial user who discharges or causes to be discharged to the POTW, any pollutant that causes damage or detrimental effects on the POTW or otherwise causes the City to expend resources to respond to such discharge. Furthermore, the City may pursue any other available remedies that exist in law or equity against an industrial user that violates this Chapter. Enforcement for violations of this Chapter will generally be in accordance with Section 14.17.075 and the City's pretreatment enforcement response plan. (Ord. No. 6891, § 2, 11-6-24)

CHAPTER 14.18 STORMWATER AND STORMWATER MANAGEMENT

14.18.010 Definitions.

As used in this Chapter, the following terms shall have the meanings ascribed:

"Act" means the provisions of the Clean Water Act, as amended and as set forth in 33 U.S.C. Sections 1251 et seq., together with all guidelines, limitations and standards that are promulgated by the EPA pursuant to the Act.

"BMP" or "best management practices" means a structural or non-structural device, facility, measure, source control practice, or any activity, along with any required documentation thereof, that helps to achieve compliance with any discharge requirement set forth in this Chapter.

"CFR" means the Code of Federal Regulations, a codification of regulations issued by the executive departments and agencies of the Federal Government.

"Construction activity" means activities subject to NPDES construction permits as defined in 40 CFR Section 122.26.

"Director" means the Director of Public Works, or an authorized agent or representative of the Director.

"Discharge" means a point source discharge of pollutants into the MS4.

"Groundwater infiltration" means the entry into the MS4 of water other than wastewater, including groundwater, by means of sewer service connections, foundation drains, defective pipes, pipe joints, connections or manholes. The term does not include inflow.

"Illicit discharge" means a direct or indirect discharge of non-stormwater to the MS4, except as allowed for in this Chapter.

"Illicit connection" means any connection to the MS4 from an indoor sink or drain, or any drain or conveyance, whether on the surface or subsurface, which allows entrance to the MS4 of a discharge of sewage, industrial process wastewater, or non-stormwater that could interfere with the MS4 or present an imminent and substantial endangerment to human health or the environment.

"Industrial activity" means activities subject to NPDES industrial permits as defined in 40 CFR Section 122.26, as well as other activities that the City has determined contribute to the loading of substantial pollutants to the MS4.

"Inflow" means entry into the MS4 of water other than wastewater by means of sources such as, but not limited to, roof leaders, cellar drains, yard drains, area drains, drains from springs and swampy areas, manhole covers, cross connections between storm sewers and sanitary sewers, catch basins, cooling towers, stormwater, surface runoff, street wash waters, or drainage.

"Maximum extent practicable" means the technology-based discharge standard to reduce pollutants in stormwater discharges that was established by Section 402(p) of the Act and is described in 40 CFR Section 122.34(a).

"MS4" means a municipal separate storm sewer system consisting of any publicly-owned facility by which stormwater is collected or conveyed, including but not limited to any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures.

"NDEP" means the Division of Environmental Protection of the Nevada Department of Conservation and Natural Resources.

"Non-stormwater" means any discharge to the MS4 that is not composed entirely of stormwater.

"NPDES permit" means a National Pollutant Discharge Elimination System permit that is issued by NDEP pursuant to Section 402 of the Act, authorizing a person to discharge pollutants into the waters of the United States.

"Person" means any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the owner of premises or of an operation (or as the owner's agent), but does not include the City or any other state or local governmental entity within the State of Nevada, or any of their employees or agents.

"Point source" means "point source" as that term is defined in Section 502(14) of the Act.

"Pollutant" means "pollutant" as that term is defined in Section 502(6) of the Act.

"Premises" means any building, lot, parcel of land, or portion of land, whether improved or unimproved, and including adjacent sidewalks and parking strips.

"Release" or "spill" means any significant spill, leak, or release of any non-stormwater into the MS4, whether intentional or unintentional, other than that which is allowed for in this Chapter.

"Stormwater" means any discharge resulting from precipitation, irrigation, or normal residential activity.

"Surface waters" means "navigable waters" as that term is defined in Section 502(7) of the Act.
(Ord. No. 6583, § 1, 6-7-17; Ord. 6006 § 2, 2008)

14.18.020 Purpose.

The purpose of this Chapter is to provide for the health, safety, and general welfare of City residents and visitors through the regulation of discharges to the MS4, to the maximum extent practicable. This Chapter establishes methods for controlling the introduction of

stormwater and non-stormwater into the MS4 in order to comply with the requirements of the Las Vegas Valley MS4 NPDES stormwater permit that pertain to and are binding upon the City. The objectives of this Chapter are to:

(A) Regulate the discharge of stormwater and non-stormwater to the MS4, including without limitation discharges from spills, dumping or disposal of materials;

(B) Establish legal authority in order to require compliance necessary for conformance with the provisions of this Chapter and with the requirements and conditions of any permits, orders or contracts issued under or in connection with this Chapter;

(C) Establish legal authority in order to require compliance with BMPs for erosion and sediment controls at construction sites;

(D) Establish legal authority in order to inspect construction sites disturbing one acre or larger (or less than one acre, if part of a common plan of development) to establish compliance with this Chapter, as well as authority to take appropriate enforcement action as necessary;

(E) Establish legal authority in order to inspect industrial sites that are part of the City's inventory to establish compliance with this Chapter, as well as authority to take appropriate enforcement action as necessary;

(F) Prohibit illicit connections and illicit discharges to the MS4;

(G) Establish legal authority in order to carry out all inspection, surveillance, monitoring procedures, and enforcement activities necessary to determine compliance and noncompliance with the provisions of this Chapter (including without limitation the prohibition of illicit discharges to the MS4), and to enforce the provisions of this Chapter;

(H) Establish civil, administrative and criminal penalties for violations of the provisions of this Chapter; and

(I) Provide procedures for City compliance with requirements that are placed upon the City by other governmental agencies.

(Ord. No. 6583, § 2, 6-7-17; Ord. 6006 § 3, 2008)

14.18.030 Applicability.

This Chapter shall apply to all water entering the MS4 that has been generated on any developed and undeveloped lands, unless explicitly exempted by the Director or NDEP.

(Ord. No. 6583, § 3, 6-7-17; Ord. 6006 § 4, 2008)

14.18.040 Director's responsibilities.

The Director shall be responsible for administering, implementing, and enforcing the provisions of this Chapter. Any powers granted or duties imposed upon the Director may be delegated in writing by the Director to persons or entities acting in the beneficial interest of, or in the employ of, the City.

(Ord. 6006 § 5, 2008)

14.18.050 Compliance—Liability.

The standards established by this Chapter are minimum standards that have been adopted by the City for the purposes stated. Nothing in this Chapter:

(A) Is intended, nor shall be deemed, to imply that compliance with this Chapter by any person will insulate that person from liability under other sources of law or theories of liability relating to the discharge of pollutants into the MS4;

(B) Shall create liability on the part of the City or its officers, employees or agents for any damages that result from a discharger's reliance on this Chapter or any administrative decision lawfully made thereunder.

(Ord. No. 6583, § 4, 6-7-17; Ord. 6006 § 6, 2008)

14.18.060 Regulation of discharges.

The City is authorized to regulate discharges from persons and premises that are located outside of the corporate boundaries of the City but are tributary to the MS4, consistent with any interlocal agreement. The requirements of this Chapter shall apply to each such person. The Director is authorized to inspect and monitor the facilities of each such person in order to determine its compliance with this Chapter.

(Ord. No. 6583, § 5, 6-7-17; Ord. 6006 § 7, 2008)

14.18.070 Illicit discharges prohibited—Exceptions.

(A) It is unlawful for any person to discharge or cause to be discharged into the MS4 any non-stormwater, unless the discharge has been authorized by NDEP and approved by the Director, or is one of the following:

(1) Water line flushing; discharges from other potable water sources; landscape irrigation or lawn watering; diverted stream flows; rising groundwater; uncontaminated groundwater infiltration; discharges from foundation and footing drains (not including active groundwater dewatering systems for which a separate State permit is required); water from crawl space pumps; air conditioning and swamp cooler condensation; non-commercial washing of vehicles; springs; flows from natural riparian habitats or wetlands; discharges or flows from firefighting activities; runoff from the washing of streets, if no detergents or chemicals are used; or any other water source not containing pollutants, provided that NDEP has not determined the source to be a substantial contributors of pollutants.

(2) Dechlorinated swimming pool water (less than 0.1 mg/L chlorine), provided that a suitable connection to the sanitary sewer is not available, as determined by the Director, and permission to discharge swimming pool water into the MS4 has first been obtained from the Director.

(3) Discharges specified by NDEP as being necessary to protect public health and safety.

(4) Dye testing, provided that notification, either verbal or written, is given to the Director prior to the time of the testing.

(B) It is unlawful for any person to discharge or cause to be discharged into any surface waters within the City any pollutant, without first obtaining from NDEP an NPDES permit authorizing the discharge, when such a permit is required by the Act.

(C) It is unlawful for any person to discharge or cause to be discharged into the MS4 any non-stormwater that would cause a violation of the City's NPDES stormwater permit.
(Ord. No. 6583, § 6, 6-7-17; Ord. 6006 § 8, 2008)

14.18.080 Storm system—Violations.

(A) The construction, use, maintenance or continued existence of illicit connections to the MS4 is prohibited, which expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

(B) A person is considered to be in violation of this Chapter if the person connects a line conveying sewage to the MS4, or allows such a connection to continue.

(C) It is unlawful for any person to remove any manhole cover, or to discharge or cause to be discharged any stormwater or non-stormwater directly into a manhole or other opening in the MS4 that has not been authorized for stormwater discharge, unless such discharge is approved by the Director. The Director may require a written application by the person and the payment of the applicable fees and charges that have been established by the City Council pursuant to Section 14.18.200 of this Chapter.
(Ord. No. 6583, § 7, 6-7-17; Ord. 6006 § 9, 2008)

14.18.090 Storm system—Unlawful disposal.

It is unlawful for any person to dispose of construction debris, landscaping clippings, industrial waste materials or other wastes into the MS4, except as allowed by this Chapter or by the Director.
(Ord. No. 6583, § 8, 6-7-17; Ord. No. 6272, § 1, 9-18-13; Ord. 6006 § 10, 2008)

14.18.100 Director's authority—Hearings.

(A) The Director shall have the full power and authority to immediately and effectively halt or prevent, through whatever means and procedures are deemed reasonably necessary, and after informal notice to the discharger, any discharge of non-stormwater into the MS4 which appears to present an imminent endangerment to the health or welfare of any person or the environment, or which discharge threatens property or the proper operation of the MS4, or which places or threatens to place the City in violation of its NPDES stormwater permit. In implementing such measure or measures, the personnel of the City, any party with which the City has contracted for such purpose, or a duly authorized representative of any other government agency shall have immediate access to the premises on which such condition exists. The Director may prohibit the approach to such premises by any person, vehicle, vessel or thing, and all persons who are not actually employed in the abatement of such condition or in the preservation of life or property on, or in the vicinity of, such premises

may be excluded from such premises. The affected person or persons shall have the opportunity to respond, after the fact, to any action taken pursuant to this Section by requesting a hearing in the manner that is set forth in Subsection (E) of this Section.

(B) Any person who is notified of action pursuant to Subsection (A) of this Section (an MS4 access suspension") shall immediately cease and desist the discharge of all non-stormwater from its facilities into the MS4.

(C) If a person fails to comply voluntarily with an MS4 access suspension order, the Director may take such action as may be reasonably necessary in order to establish immediate compliance with such order, including without limitation the immediate blockage or the disconnection of the person's connection to the MS4.

(D) In addition, the Director, in the event of any violation of this Chapter by any person, may serve such person with a notice of an intended order of MS4 access suspension, which notice states the reasons therefor, notifies the person of the opportunity for a hearing with respect thereto and establishes the proposed effective date of the intended order.

(E) Any person who has been notified of an MS4 access suspension under this Section may file with the Director a request for a hearing with respect thereto; provided, however, that the filing of such a request shall not stay the existing or proposed MS4 access suspension.

(F) If a hearing is requested with respect to an existing or proposed MS4 access suspension, the Director shall hold a hearing with respect to such MS4 access suspension within fourteen days after receipt of the request. Within two working days following the close of the hearing, the Director shall make a determination concerning whether to affirm, to terminate or conditionally to terminate the MS4 access suspension. Reasonable notice of the hearing shall be given to such person no less than five working days prior to the date of the hearing.

(G) The Director may terminate an MS4 access suspension under this Section upon proof of the compliance by the person with applicable requirements, which compliance ends the emergency nature of the hazard that had caused the Director to initiate the MS4 access suspension; provided, however, that the Director must be satisfied that the person will henceforth comply with all of the discharge requirements that are set forth in this Chapter, the City's rules and regulations that relate to the discharge of stormwater, and any lawful order that is issued pursuant to this Chapter.
(Ord. No. 6583, § 9, 6-7-17; Ord. 6006 § 11, 2008)

14.18.110 NPDES permits—Required.

Any person who is required by the Act to obtain an NPDES permit for stormwater associated with industrial activity or an NPDES permit for stormwater associated with construction activity shall obtain such permit within the time allowed by the Act. Proof of having obtained such permit may be required in a form acceptable to the Director.
(Ord. 6006 § 12, 2008)

14.18.120 Inspections.

(A) Whenever it is necessary to make an inspection to monitor or enforce any of the provisions of, or to perform any duty imposed by, this Chapter, or whenever the Director has reasonable cause to believe that there exists upon any premises any violation of the provisions of this Chapter or any condition which makes such premises hazardous, unsafe or dangerous, the Director is authorized to enter such premises at all reasonable times and inspect the same and perform any duty that is imposed upon the Director by this Chapter, subject to the following conditions:

(1) If the premises are occupied, the Director shall first present proper credentials to the occupant and request entry after explaining the reasons therefor and the purpose of the inspection; or

(2) If the premises are unoccupied, the Director shall first make a reasonable effort to locate the owner or other person who has the care or control of such premises and request entry after explaining the reasons therefor and the purpose of the inspection. If such entry is refused or cannot be obtained because the owner or other person who has the care or control of such premises cannot be found after due diligence, the Director may have recourse to every remedy that is provided by law to effect lawful entry and to inspect such premises.

(B) Notwithstanding the provisions of Subsection (A) of this Section, if the Director has reasonable cause to believe that non-stormwater discharge conditions on or emanating from the premises are so hazardous, unsafe or dangerous as to require immediate inspection and action in order to safeguard the public health or safety, the Director shall have the right immediately to enter and inspect such premises and may use any reasonable means that may be required in order to effect such entry and make such inspection, whether the premises are occupied or unoccupied and whether or not formal permission to enter and inspect has been obtained.

(C) It shall be unlawful for any person to fail or refuse, after a proper demand has been made upon that person in accordance with Subsection (B) of this Section, promptly to permit the Director to enter such premises and to make any inspection that is provided for by Subsection (B). In addition to any criminal penalty that may be imposed upon any person who violates this Subsection (C), such person's MS4 access may be suspended as provided for in Section 14.18.100.

(D) Any person subject to this Chapter shall consent and agree to the entry at all reasonable times by the Director or designated personnel upon any premises subject to this Chapter for any of the following purposes:

(1) To inspect all areas of the person's facilities that have the potential to influence the characteristics of the non-stormwater that is, or may be, discharged to the MS4;

(2) To inspect, sample and take flow measurements of the discharge from such person's facilities and to examine records in the performance of the Director's authorized duties;

(3) To set up on such person's property such devices as may be necessary or appropriate in order to conduct sampling, inspections, compliance monitoring, flow measuring or metering operations, or any combination thereof;

(4) To inspect and copy any record, report, test result or other information that is required to carry out the provisions of this Chapter; and

(5) To photograph or otherwise create a record of any waste, waste container, vehicle, waste treatment process, discharge location or violation that is discovered during any such inspection.

(E) If a person has instituted security measures that require proper identification and clearance before entry upon its premises, such person shall make all arrangements with its security guards that may be necessary in order that, upon presentation of their credentials, the duly designated personnel of the City shall be permitted to enter upon the premises without delay for the purpose of performing their authorized duties.
(Ord. No. 6583, § 10 6-7-17; Ord. 6006 § 13, 2008)

14.18.130 Construction sites.

(A) For any construction site, the Director may require BMPs that reduce the discharge of pollutants to the maximum extent practicable. These BMPs shall be consistent with applicable local guidance documents developed to implement this Section. BMPs that are consistent with the applicable local guidance documents shall be deemed in compliance with this Section These BMPs shall be installed and maintained at the sole expense of the owner or operator.

(1) The Director may require the owner or operator of any construction site to submit a written plan for BMPs before commencement of construction or operation of the site, or at any time thereafter. The Director may require any person who proposes development or significant redevelopment to submit a written plan for BMPs, and for the operation and maintenance of any BMP. Any such plan is subject to approval by the Director, and shall be maintained at the same site for which it was written and be available for inspection during normal business hours.

(2) Compliance with all terms and conditions of a valid NPDES stormwater permit authorizing the discharge of stormwater to the MS4 shall be deemed in compliance with the provisions of this Section.

(B) If the Director determines that existing BMPs do not reduce the discharge of pollutants to the maximum extent practicable, the Director may require additional BMPs to satisfy the provisions of Subsection (A) of this Section.

(C) The Director may require secondary containment for any hazardous substance when the Director determines that the substance has the potential to enter the MS4 illicitly. Such secondary containment shall be provided and maintained at the sole cost and expense of the person responsible for the substance.

(D) In connection with any development proposal or significant redevelopment proposal, the Director may require:

(1) The implementation of BMPs to reduce the discharge of pollutants to the storm drain system after development is complete to the maximum extent practicable; and

(2) The submission of a written plan for the design, installation, operation or maintenance of post-development BMPs, or any combination thereof.

(Ord. No. 6583, § 11, 6-7-17; Ord. No. 6272, § 2, 9-18-13; Ord. 6006 § 14, 2008)

14.18.140 Responsibility.

Notwithstanding any other requirement of law, as soon as any person responsible for a facility or operation, or responsible for emergency response related thereto, has information regarding any known or suspected release of non-stormwater at or from that facility or operation, where such release is not authorized by this Chapter, the person shall take all necessary steps for the discovery, containment, and cleanup of such release. In the event of a release that is in excess of a Federally-reportable quantity, the person shall immediately notify the Director and emergency response agencies of the occurrence by calling 911. In the event of any non-hazardous release, the person shall notify the Director no later than the next business day. If the release emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three years.

(Ord. No. 6583, § 12, 6-7-17; Ord. 6006 § 15, 2008)

14.18.150 Noncompliance.

(A) The Director may rely on any appropriate evidence to determine noncompliance with this Chapter.

(B) In the case of noncompliance with this Chapter, the Director may proceed with any one or more of the following actions:

(1) Issue a notice of violation;

(2) Assess noncompliance fees;

(3) Revoke City permits, licenses and agreements pertaining to work on the premises;

(4) Issue a cease and desist order requiring any person who caused or is responsible for the release to cease the release within a specified time;

(5) Issue a cleanup and abatement order requiring any such person to clean up and abate the release within a specified time;

(6) Cause the release to be cleaned up and abated, and thereafter recover the costs thereof from the person or persons who are responsible for the release; or

(7) Take any other action as provided for in any provision of the Chapter.

(C) The payment of noncompliance fees shall not preclude the Director from undertaking any other enforcement procedure that is specified in this Chapter.
(Ord. 6006 § 16, 2008)

14.18.160 Request for reconsideration.

(A) Any person who is affected by any decision, action or determination made by the Director in the interpretation or the implementation of the provisions of this Chapter may file with the Director a written request for the reconsideration of such decision, action or determination. The person requesting reconsideration must file the request within thirty days after receipt of notice of the decision, action or determination, and must set forth in detail the facts that support the request for reconsideration. Such facts must include a statement that sets forth any newly discovered relevant fact that was not known or was unavailable to the person requesting reconsideration at the time of the initial decision, action or determination. The Director shall render a written decision with respect to the request within thirty days after receipt thereof.

(B) Each request for reconsideration shall be accompanied by the fee, if any, that has been established by the City Council, pursuant to Section 14.18.200, for the filing of such a request. Any such fee may, in the sole discretion of the Director, be refunded if the Director's ruling with respect to such request is in favor of the person who made the request.

(C) If the ruling of the Director with respect to a request for reconsideration is unacceptable to the person who made such request, the person may, within ten working days after the date of its receipt of the notification of the Director's ruling, file a written appeal to the City Council.

(D) Each appeal shall be accompanied by the fee, if any, that has been established by the City Council, pursuant to Section 14.18.200, for the filing of an appeal. Any such fee may, in the sole discretion of the City Council, be refunded if the City Council's ruling with respect to such appeal is in favor of the person who filed the appeal.

(E) The appeal shall be heard by the City Council within forty-five days after the date on which the appeal was filed, and the City Council shall make a final ruling with respect to the appeal within forty-five days after the hearing is concluded.
(Ord. 6006 § 17, 2008)

14.18.170 Compliance order.

(A) In the event of any violation of any provision of this Chapter for which the Director is authorized by this Section to issue a compliance order, the Director is authorized to commence a civil action against the person or persons responsible for the violation. The action may seek all appropriate relief, including without limitation civil penalties or a temporary and permanent injunction against the perpetuation of such violation, or both, or to impose administrative penalties for the violation in accordance with Sections 14.18.180 and 14.18.200.

(B) A person may be held liable for civil penalties pursuant to Subsection (A) of this Section for failure to comply with any provision of this Chapter.

(C) Before commencing a civil action against a person pursuant to this Section, the Director shall issue an order that requires the person to comply with this Chapter and advises the person that, upon failure to comply with the order, the Director is authorized to bring a civil action in accordance with this Section.

(D) Any compliance order which the Director issues pursuant to this Section shall be in writing and shall be served personally or by registered or certified mail that is addressed to the recipient's last known address, return receipt requested. The order shall state with reasonable specificity the nature of the violation in respect of which the order is issued and shall specify a period in which compliance therewith is required. The period for compliance shall not exceed thirty days, in the case of a violation of an interim compliance schedule or operation and maintenance requirement, and shall not exceed the period that the Director determines is reasonable, in the case of a violation of a final deadline. In determining the period for compliance, the Director shall consider the seriousness of the violation and any good faith effort on the part of the user or other person to comply with the applicable requirements.

(E) In any civil action that is brought by the Director for enforcement of the provisions of this Chapter, the Director shall seek the imposition of a civil penalty upon the person against whom the action is brought, consistent with the provisions of State law, in an amount that is not less than one thousand dollars nor more than twenty-five thousand dollars for each day that each such violation continues. In determining the amount of a civil penalty that is to be imposed, following a finding by the court of liability, the court shall consider the circumstances, extent and gravity of the violation in respect of which the action is brought, the economic benefit, if any, that has inured to the person as the result of the violation, any history of similar violations, the degree of culpability of the person, any good faith effort on the part of the person to comply with the applicable requirements, the potential economic impact of the penalty upon the person, and such other matters as justice may require.

(F) The civil and administrative penalties that are provided for in this Section and in Sections 14.18.180 and 14.18.200 shall be in addition to, and not in substitution for, any criminal penalty that may be imposed for the violation that forms the subject matter of any such civil or administrative relief and in addition to, and not in substitution for the invocation of any of the provisions of this Chapter as the result of the violation.
(Ord. 6006 § 18, 2008)

14.18.180 Penalty—Administration.

(A) Whenever, on the basis of the information that is available, the Director finds that any person is in violation of any of the provisions of this Chapter, the Director may assess an administrative penalty in an amount that is not less than five hundred dollars nor more than

ten thousand dollars for each day that each such violation continues, unless a different administrative penalty for any of such violations is established in the schedule of fees and charges that has been established by the City Council pursuant to Section 14.18.200.

(B) Before assessing any administrative penalty pursuant to this Section, the Director shall give the person upon whom such penalty is to be imposed written notice of the proposed assessment and the opportunity to request, within thirty days after the date on which such notice is received by it, a hearing with respect to the proposed order of assessment.

(C) In determining the amount of any penalty assessed pursuant to this Section, the Director shall consider the nature, circumstances, extent and gravity of the violation in respect of which the penalty is proposed to be assessed; the economic benefit, if any, that has inured to the person as the result of such violation; any good faith effort on the part of the person to comply with the applicable requirements; the potential economic impact of the penalty upon the user or other person; any history of similar violations; the degree of culpability of the user or other person; and such other matters as justice may require.

(D) An order which imposes an administrative penalty pursuant to this Section shall become final:

(1) Thirty days after its issuance; or

(2) If a hearing has been requested pursuant to Subsection (B) of this Section, upon the Director's issuance of a decision following the hearing.

(E) The failure of a person to pay any administrative penalty that is imposed by the Director pursuant to this Section within thirty days after the imposition thereof shall be grounds for any remedy that is available under this Chapter for terminating the person's ability to discharge or cause to be discharged stormwater or non-stormwater from its facilities into the MS4.
(Ord. No. 6583, § 13, 6-7-17; Ord. 6006 § 19, 2008)

14.18.190 Delinquency charges—Liens.

Any fee, assessment or penalty that is imposed pursuant to this Chapter and that remains unpaid for a period that exceeds thirty days after the same became due shall, upon the expiration of such thirty-day period, constitute a perpetual lien on and against the premises which are subject to such fee, assessment or penalty as well as constituting a debt that is owing to the City by the person upon whom such fee, assessment or penalty is imposed and the owner of record of such premises, if such owner is someone other than the person. The City may bring a civil action in any court of competent jurisdiction to recover such fee, assessment or penalty, or any combination thereof, together with interest thereon, and may enforce such lien by recording a notice thereof with the County Recorder upon the expiration of such thirty-day period and foreclosing the same against the premises that are subject to such lien in the same manner as is provided by the laws of the State for the foreclosure of mechanics' liens.
(Ord. 6006 § 20, 2008)

14.18.200 Fees and other charges.

(A) In order to provide for the recovery by the City of its costs that are related to the discharge of stormwater, non-stormwater or pollutants into the MS4 and for the enforcement of the provisions of this Chapter, or both, the City Council shall establish a schedule of fees and charges. Such schedule, which shall be subject to periodic revision, may establish a specific amount for any fee, charge, assessment, penalty or other cost that is related to the discharge of stormwater, non-stormwater or pollutants to the MS4 or the enforcement of the provisions of this Chapter, or both, including without limitation:

(1) Inspection fees;

(2) Application fees;

(3) Plan review fees;

(4) Monitoring fees;

(5) Administrative penalties;

(6) Fees for filing requests for reconsideration and appeals; and

(7) Other fees that the City Council deems appropriate.

(B) Except as may be otherwise provided in this Chapter, whenever any fee, charge, assessment or penalty that is required by this Chapter to be paid is based upon an estimated value or an estimated quantity, the Director shall make such determination in accordance with generally recognized practices.
(Ord. No. 6583, § 14, 6-7-17; Ord. 6006 § 21, 2008)

14.18.210 Payment—When.

All fees, charges, assessments and penalties that are imposed pursuant to the provisions of this Chapter, or pursuant to the approved schedule of fees and charges that is established in accordance with Section 14.18.200, shall be due and payable upon delivery of notice thereof, or upon mailing such notice to the last known mailing address of the person or entity responsible for payment thereof. All such fees, charges, assessments and penalties shall be and become delinquent thirty days after delivery or mailing of the notice described above.
(Ord. 6006 § 22, 2008)

14.18.220 Records of fees and other charges.

The City shall keep a permanent and accurate account of all fees, charges, assessments and penalties that are received by it under this Chapter, which account shall include the name and address of each person who paid any such fee, charge, assessment or penalty or on whose behalf the same was paid, the date of such payment and amount thereof and the purpose for which the same was paid.
(Ord. 6006 § 23, 2008)

14.18.230 Delinquency charges—Additional payments.

Whenever a delinquency charge has not been specifically provided for in this Chapter, any fee, charge or assessment that becomes delinquent shall have added to it a basic delinquency charge that is equal to ten percent of the fee, charge or assessment that became delinquent, and thereafter an additional delinquency charge shall accrue on the total amount that is due, including the ten percent basic delinquency charge, at the rate of ten percent per month compounding, but the amount of the delinquent fee, charge or assessment, as increased by delinquency charges, shall not exceed twice the amount of the original fee, charge or assessment. In addition to the delinquency charges described in this Section, the City may also, as permitted by law, assess collection costs, including, without limitation, any attorneys' fees and court costs that the City may incur in collecting the fee, charge or assessment and the delinquency charges.
(Ord. 6006 § 24, 2008)

14.18.240 Action to collect—Injunction.

Any action that is brought by the City for the purpose of collecting any fee, charge, assessment or penalty that is provided for in this Chapter may include a request for an injunction to prevent repeated and recurring violations of this Chapter.
(Ord. 6006 § 2, 2008)

14.18.250 Prohibited acts—Misdemeanor.

(A) Any person who does any of the following is guilty of a misdemeanor:

(1) Negligently or wilfully introduces or causes to be introduced into the MS4 any non-stormwater which such person knew, or with the exercise of reasonable diligence would have known, could cause personal injury or property damage;

(2) Causes any violation of any condition of any permit that has been issued to the City pursuant to the Act, unless such action is necessary in order for the person to comply with all applicable Federal, State and local requirements or permits; or

(3) Knowingly makes a false statement, representation or certification of any material fact in any application, record, report, plan or other document that is filed or required to be maintained pursuant to this Chapter or who knowingly falsifies, tampers with or renders inaccurate any monitoring device or method that is required by this Chapter.

(B) Whenever in this Chapter any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Chapter the doing of any act is required or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the doing of any such prohibited act or the failure to do any such required act shall constitute a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than one

thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment. Any day of any violation of this Chapter shall constitute a separate offense.
(Ord. No. 6583, § 15, 6-7-17; Ord. 6006 § 26, 2008)

14.18.260 Unlawful discharges—Restitution.

Any person who discharges or causes to be discharged any non-stormwater into the MS4 shall be liable to the City for all damages, cleanup costs, monitoring costs and other associated costs that result therefrom.
(Ord. No. 6583, § 16, 6-7-17; Ord. 6006 § 27, 2008)

14.18.270 Alternative compensatory action.

In lieu of enforcement proceedings, penalties and remedies authorized by this Chapter, the Director may impose upon a violator alternative compensatory actions, as determined by the Director.
(Ord. 6006 § 28, 2008)

14.18.280 Nuisance.

In addition to the enforcement processes and penalties provided, any condition caused or permitted to exist in violation of any of the provisions of this Chapter is a threat to public health, safety, and welfare, and is declared and deemed a nuisance. Such nuisance may be summarily abated or restored at the violator's expense, a civil action filed to abate, enjoin, or otherwise compel the cessation of such nuisance, or any combination thereof.
(Ord. 6006 § 29, 2008)

14.18.290 Nonexclusivity.

The remedies listed in this Chapter are not exclusive of any other remedies available under any applicable Federal, State or local law, and it is within the discretion of the Director to seek cumulative remedies.
(Ord. 6006 § 30, 2008)

Title 15

(RESERVED)

Title 16

BUILDINGS AND CONSTRUCTION*

Chapter 16.02 Administrative Code

16.02.010 Administrative code and supplement adopted.

Chapter 16.04 Building Code

16.04.010 Building code, standards, supplement adopted.
16.04.020 Building Official designated.
16.04.030 Board of Appeals designated.
16.04.040 Conformance required.

Chapter 16.06 Existing Building Code

16.06.010 Existing Building Code adopted.

Chapter 16.08 Dangerous Buildings Code

16.08.010 Adoption by reference.
16.08.020 References applicable.

Chapter 16.12 Electrical Code

16.12.010 National Electrical Code and supplement adopted.
16.12.020 Compliance required.
16.12.030 Utilities exempted.

Chapter 16.16 International Fire Code

16.16.010 International Fire Code and associated documents adopted.
16.16.020 Enforcement—Fire Prevention Bureau.
16.16.030 Violations.

Chapter 16.17 Automatic Sprinkler System

16.17.010 Installation required.

Chapter 16.18 Reserved

Chapter 16.20 Housing Code

16.20.010 Adoption by reference.
16.20.020 Violations.

***Cross references—**For provisions on public works, see Title 13 of this Code; for provisions on flood hazard control, see Title 20.

Chapter 16.22 Non-transient Lodging Properties

16.22.010 Purpose.
16.22.020 Converted non-transient lodging property.
16.22.030 Definitions.
16.22.040 Inspections.
16.22.050 Code compliance—Violations.
16.22.060 Disciplinary action.

Chapter 16.24 Mechanical Code

16.24.010 Uniform Mechanical Code and supplement adopted.
16.24.020 New building evaporative cooling mechanisms not permitted.

Chapter 16.28 Plumbing Code

16.28.010 Uniform Plumbing Code and supplement adopted.

Chapter 16.30 Pool Code

16.30.010 Pool Code adopted.

Chapter 16.31 Reserved

Chapter 16.32 Reserved

Chapter 16.33 Registration and Maintenance Program for Vacant Properties

16.33.010 Purpose and intent.
16.33.020 Definitions.
16.33.030 Inspection, registration and designation.
16.33.040 Registration-related fees.
16.33.050 Authority.
16.33.060 Maintenance.
16.33.070 Waived inspection and maintenance.
16.33.080 Violations—Enforcement.
16.33.090 Limitations and effect of chapter.
16.33.100 Inspection of properties for purposes of an expedited sale.

Chapter 16.36 Reserved

Chapter 16.40 Reserved

Chapter 16.44 Reserved

Chapter 16.48 Amusement and Transportation Rides Code

16.48.010 Adoption.

Chapter 16.50 International Wildland-Urban Interface Code

16.50.010 Adoption by reference.

Chapter 16.52 Energy Conservation Code

16.52.010 Adoption by reference.

Chapter 16.56 American Flag Provisions

16.56.010 Enforceability.
16.56.020 Applicability—Exemptions.

CHAPTER 16.02 ADMINISTRATIVE CODE

16.02.010 Administrative code and supplement adopted.

That certain document entitled "City of Las Vegas Administrative Code, 2019 Edition," three copies of which are on file in the Office of the City Clerk, is adopted by reference and made a part of this Code, to the same effect as if set out herein in full.
(Ord. No. 6879, §§ 2—10, 9-4-24; Ord. No. 6769, § 1, 2-3-21; Ord. No. 6349, § 1, 9-17-14; Ord. 5884 § 2, 2007: Ord. 5091 § 1, 1998: Ord. 3906 § 1, 1995: Ord. 3724 § 1, 1993: Ord. 3668 §§ 2, 3, 1992; Ord. 3584 §§ 2—5, 1991; Ord. 3539 § 2, 1990)

CHAPTER 16.04 BUILDING CODE

16.04.010 Building code, standards, supplement adopted.

A building code is established and adopted for the City. The building code adopted by this Section, to be known as the City's Building Code, shall consist of the following documents, which are adopted by this reference and copies of which shall be maintained on file in the Office of the City Clerk:

(A) The publication entitled "International Building Code, 2024 Edition," as modified herein, including only those Appendices specified by the document described in Subsection (B) below. This publication, as modified, is designated as Part 1 of this Chapter.

(B) The document entitled "Southern Nevada Amendments to the International Building Code, 2024 Edition," which amends, by adding to and deleting from, certain sections of the International Building Code, 2024 Edition. This document is adopted as Part 2 of this Chapter.

(C) The publication entitled the "International Residential Code for One- and Two-Family Dwellings, 2024 Edition" (also known as the "International Residential Code, 2024 Edition") as modified herein, including all chapters and Appendices, except as otherwise specified in the document identified in Subsection (D). This publication, as modified, is designated as Part 3 of this Chapter.

(D) The document entitled "Southern Nevada Amendments to the 2024 International Residential Code," which amends, by adding to and deleting from, certain sections of the International Residential Code, 2024 Edition. This document is adopted as Part 4 of this Chapter.

(Ord. No. 6911, § 1, 7-16-25; Ord. No. 6910, § 1, 7-16-25; Ord. No. 6820, § 1, 9-21-22; Ord. No. 6633, § 1, 8-15-18; Ord. No. 6632, § 1, 8-15-18; Ord. No. 6351, § 1, 9-17-14; Ord. No. 6350, § 1, 9-17-14; Ord. No. 6176, § 1, 2-15-12; Ord. No. 6139, § 1, 4-6-11; Ord. 5883 § 1, 2007: Ord. 5636 § 1, 2003: Ord. 5092 § 1, 1998: Ord. 3908 § 1, 1995: Ord. 3725 § 1, 1993: Ord. 3540 § 1, 1990: Ord. 3234 § 1, 1986: Ord. 3106 § 2 (part), 1984)

Editor's note—The provisions Ord. No. 6910 and Ord. No. 6911 shall become effective January 5, 2026.

16.04.020 Building Official designated.

The Director of the Department of Community Development, or an authorized representative, is designated as the Building Official referred to in the City's Building Code.
(Ord. No. 6816, § 140, 8-17-22; Ord. 5636 § 2, 2003: Ord. 3234 § 2, 1986: Ord. 3106 § 2 (part), 1984)

16.04.030 Board of Appeals designated.

The City Council of the City is designated as the Board of Appeals referred to in the City's Building Code.
(Ord. 3234 § 3, 1986: Ord. 3106 § 2 (part), 1984)

16.04.040 Conformance required.

It is unlawful for any person to erect, construct, enlarge, alter, repair, move, improve, convert, demolish, equip, use, occupy or maintain any building or structure in the City or to cause the same to be done, contrary to or in violation of any of the provisions of this Chapter, and, upon conviction thereof, such person shall be punished by a fine of not more than one thousand dollars or imprisonment for not more than six months, or by any combination of such fine and imprisonment. Every day, or portion thereof, in which a violation is committed, continued or permitted shall be a separate offense.
(Ord. 3234 § 4, 1986: Ord. 3106 § 2 (part), 1984)

CHAPTER 16.06 EXISTING BUILDING CODE

16.06.010 Existing building code adopted.

Those certain documents, three copies of which are on file in the Office of the City Clerk and are designated as follows, are adopted by reference as if set forth herein in full:

(A) The publication entitled "International Existing Building Code, 2024 Edition," as published by the International Code Council, as Part 1 of this Chapter; and

(B) The document entitled "Southern Nevada Amendments to the International Existing Building Code, 2024 Edition," which adds to, deletes from and amends the "International Existing Building Code, 2024 Edition," as Part 2 of this Chapter.

(Ord. No. 6912, § 1, 7-16-25; Ord. No. 6634, § 1, 8-15-18; Ord. No. 6356, § 1, 9-17-14)

Editor's note—The provisions of Ord. No. 6912 shall become effective January 5, 2026.

CHAPTER 16.08 DANGEROUS BUILDINGS CODE

16.08.010 Adoption by reference.

That certain document, entitled the 2022 Dangerous Buildings Code, three copies of which shall be maintained on file in the Office of the City Clerk, is adopted and made part of this Code to the same effect as if set forth herein.
(Ord. No. 6798, § 2, 11-17-21; Ord. 3897 § 3, 1995)

16.08.020 References applicable.

Whenever in the Municipal Code, or in any uniform code adopted and incorporated in the Municipal Code, or in any other ordinance of the City a reference is made to the Uniform Code for the Abatement of Dangerous Buildings or any other similarly-named code previously adopted by the City, or to any individual provision thereof, the reference shall be deemed, as applicable, to refer to the 2022 Dangerous Buildings Code adopted by this Chapter or to the equivalent provision, if any, thereof.
(Ord. No. 6798, § 3, 11-17-21)

CHAPTER 16.12 ELECTRICAL CODE

16.12.010 National Electrical Code and supplement adopted.

Those certain documents, copies of which are on file in the Office of the City Clerk, and being marked and designated as follows, are adopted by reference as and for the City's Electrical Code:

(A) The National Electrical Code, 2023 Edition, hereby designated as Part 1 of this Chapter; and

(B) The Southern Nevada Amendments to the 2023 National Electrical Code, hereby designated as Part 2 of this Chapter.

(Ord. No. 6917, § 1, 7-16-25; Ord. No. 6639, § 1, 8-15-18; Ord. No. 6356, § 1, 9-17-14; Ord. No. 6143, § 1, 4-6-11; Ord. 5878 § 1, 2007: Ord. 5527 § 1, 2002: Ord. 5221 § 1, 2000: Ord. 5008 § 1, 1997: Ord. 3854 § 1, 1994: Ord. 3541 § 1, 1990: Ord. 3286 § 1, 1987: Ord. 3211 § 1, 1986: Ord. 2182 § 2 (part), 1981: prior code § 4-3-1)

Editor's note—The provisions of Ord. No. 6917 shall become effective January 5, 2026.

16.12.020 Compliance required.

It shall be unlawful for any person, firm or corporation to erect, construct, enlarge, alter, repair, move, improve, remove, convert, or demolish, equip, use, occupy, or maintain any building or structure in the City or cause the same to be done, contrary to or in violation of any of the provisions of the Electrical Code. Any person, firm or corporation violating any of the provisions of this chapter shall, upon conviction thereof, be punished by a fine and/or imprisonment. Every day of such violation shall be a separate offense.
(Ord. 2182 § 2 (part), 1981: prior code § 4-3-3)

16.12.030 Utilities exempted.

Electric and telephone utilities operating under franchises granted by the city shall not be subject to the terms of this Chapter in performance of their State imposed duties with respect to electrical facilities owned and operated by the respective utility companies.
(Ord. 2182 § 2 (part), 1981: prior code § 4-3-4)

CHAPTER 16.16 INTERNATIONAL FIRE CODE

16.16.010 International Fire Code and associated documents adopted.

(A) Those certain documents that are designated as follows, and copies of which are on file in the office of the City Clerk, are hereby adopted by reference as I and II of the Fire Code of the City and of this Chapter:

(1) As Part I of this Chapter, the International Fire Code, 2024 Edition (hereinafter "IFC, 2024 Edition"), as promulgated by the International Code Council, together with such appendices as are adopted therein; and

(2) As Part II of this Chapter, the Southern Nevada Amendments to the 2024 International Fire Code, with City of Las Vegas Amendments, amending, modifying, adding to and deleting certain provisions of the IFC, 2024 Edition.

(B) If a conflict exists between:

(1) Any provision of the IFC, 2024 Edition, as modified or supplemented by the Southern Nevada Amendments to the 2024 International Fire Code, with City of Las Vegas Amendments; and

(2) Any other code or ordinance adopted by the City, the more stringent requirement providing the greatest safety from fire shall prevail.

(Ord. No. 6918, § 1, 7-16-25; Ord. No. 6821, § 1, 9-21-22; Ord. No. 6631, § 1, 8-15-18; Ord. No. 6325, § 1, 6-18-14; Ord. No. 6124, § 1, 1-5-11)

Editor's note—The provisions of Ord. No. 6918 shall become effective January 5, 2026.

16.16.020 Enforcement—Fire Prevention Bureau.

The Fire Code of the City shall be enforced by the Fire Prevention Division of the Department of Fire and Rescue.

(Ord. 5667 § 3, 2004: Ord. 3058 § 4, 1983)

16.16.030 Violations.

(A) Whenever in this Chapter any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Chapter the doing of any act is required or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the doing of any such prohibited act or the failure to do any such required act shall constitute a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment. Any day of any violation of this Chapter shall constitute a separate offense.

(B) For a fireworks-related violation under Subsection (A) of this Section or Sections 113, 5601.1.3 or 5601.2.2 of the International Fire Code 2024 Edition, as adopted by the City, the minimum fine for a first violation shall be five hundred dollars and, for a second or subsequent violation, one thousand dollars.

(C) As an alternative to a criminal prosecution under Subsection (B) of this Section, the Department of Fire and Rescue may proceed by means of a civil proceeding in accordance with the provisions of LVMC 6.02.400 to 6.02.460, inclusive. In the case of a civil proceeding regarding such a violation:

(1) Any reference in LVMC 6.02.400 to 6.02.460, inclusive, to the "Department" or "Business Licensing Division" or "Director" shall pertain to the Department of Fire and Rescue, its Fire Prevention Division, or the City Fire Marshal, as the case may be.

(2) In lieu of the schedule of fines set forth in LVMC 6.02.460, the applicable civil fine shall be five hundred dollars.

(3) In addition to the fine described in Paragraph (2) above, the City is entitled to recover an amount of restitution for the City's costs, if any, of disposing of any fireworks that were the subject of the violation.

(Ord. No. 6918, § 2, 7-16-25; Ord. No. 6852, § 2, 11-1-23; Ord. No. 6690, § 1, 6-19-19; Ord. 3058 § 6, 1983)

Editor's note—The provisions of Ord. No. 6918 shall become effective January 5, 2026.

CHAPTER 16.17 AUTOMATIC SPRINKLER SYSTEM

16.17.010 Installation required.

Notwithstanding and independent of any other provision of any model building-related code or model fire code that may be adopted by the City from time to time, an automatic sprinkler system installed in accordance with Section 903.3 of the International Fire Code shall be provided for all new structures that qualify as a Residential Group R occupancy.

(Ord. No. 6609, § 1, 2-21-18)

Editor's note—Ord. No. 6609, § 5, includes the following provision relating to this chapter and section: This Ordinance shall become effective upon the earlier of the following dates:

(A) The effective date of any ordinance that adopts the 2018 Edition of the International Residential Code or any other replacement of the International Residential Code, 2012 Edition, as adopted by the City; or

(B) November 1, 2018.

CHAPTER 16.18 RESERVED*

CHAPTER 16.20 HOUSING CODE

16.20.010 Adoption by reference.

Those certain documents, three copies of each being on file in the office of the City Clerk and designated as follows, are adopted by reference and made a part of this Code, to the same effect as if set forth at length herein:

(A) Uniform Housing Code, 1994 Edition, designated as Part 1 of this Chapter;

(B) A supplemental document which amends, by adding to and deleting from, the Uniform Housing Code, 1994 Edition, designated as Part 2 of this Chapter.

(Ord. 3896 § 1, 1995: Ord. 3265 § 1, 1987: Ord. 3057 § 2, 1983)

16.20.020 Violations.

Whenever in this Chapter any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in this Chapter the doing of any act is required or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the doing of any such prohibited act or the failure to do any such required act shall constitute a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than one thousand dollars or by imprisonment for a term of not more than six months, or by any combination of such fine and imprisonment. Any day of any violation of this Chapter shall constitute a separate offense.

(Ord. 3057 § 4, 1983)

CHAPTER 16.22 NON-TRANSIENT LODGING PROPERTIES

16.22.010 Purpose.

The purpose of this Chapter is to encourage and facilitate the provision of safe, sanitary and affordable rental housing options for residents in the City. In addition to traditionally-developed rental properties, many properties within the City that were developed as motels or to provide transient lodging have been converted, in whole or in part, to operations such as apartment hotels, residence hotels, or similar properties that provide longer-stay options in the form of non-transient lodging. This Chapter is intended to provide for a program of inspection of this latter type of non-transient lodging. The program is designed not only to

*__Editor's note—__Ord. No. 6918, § 7, adopted July 16, 2025, repealed Ch. 16.18, with such repeal being effective January 5, 2026, which pertained to support for radio coverage or emergency personnel and derived from Ord. No. 6816, adopted August 17, 2022; and Ord. 5906, adopted 2007.

respond to complaints but to provide for routine periodic inspections with the goals of reducing substandard housing, promoting compliance with applicable codes, and helping safeguard health, property, safety and welfare.
(Ord. No. 6776, § 1, 4-21-21)

16.22.020 Converted non-transient lodging property.

(A) The provisions of this Chapter apply to all existing and future buildings or portions thereof that function as converted non-transient lodging property, as defined in this Chapter, whether or not the persons or entities owning the property are located within the boundaries of the City. This Chapter is not an exclusive regulation of such housing within the City, but is intended to supplement, be cumulative with, and be in addition to other regulatory ordinances or enactments by government authorities having jurisdiction. The authority of the City to enforce the provisions of this Chapter is independent of and in addition to the authority of City officials to enforce any other provisions of this Code.

(B) Before conducting an initial inspection of any property under the authority of this Chapter, the City shall notify the owner of the property (and the property manager, if known) that the property is identified and considered to be a converted non-transient lodging property subject to this Chapter.
(Ord. No. 6776, § 1, 4-21-21)

16.22.030 Definitions.

For purposes of this Chapter, the following definitions shall apply:

"Building" means a structure or part thereof.

"Call for service" means a call or request by a resident, visitor or operator for service in the form of a response by a law enforcement agency or emergency response agency. The term normally would not include calls such as emergency medical service calls, public information service requests, auto accidents, or police-initiated contact not involving criminal activity.

"Complaint" means a notification to the City of a violation or suspected violation of the City's Housing Code or of this Chapter.

"Converted non-transient lodging property" means an apartment house, extended stay hotel or motel, or residence hotel/motel, consisting of a structure or complex with at least four units available as part of the licensed property, that:

(1) Was constructed before January 1, 1981;

(2) Was originally or at some time in the past developed or operated as transient lodging; and

(3) Has since been converted to operate primarily or wholly as non-transient lodging. This type of property generally will carry the "H11" business category code designation within the City's business licensing records.

"Inspection" means the examination of exterior or interior areas of a structure for purposes of determining compliance with applicable City codes and regulations.

"Non-transient lodging" or "non-transient lodging property" means a building or unit occupied or intended to be occupied as lodging primarily by persons who do not have residence elsewhere, who pay rent or other compensation, and the units of which do not qualify as transient lodging for purposes of this Chapter. The term typically would include buildings or units that are not subject to the payment of transient lodging taxes charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20, such as apartment houses, extended-stay motels or hotels, and residence hotels/motels. The burden of establishing that a building or unit does not qualify as non-transient lodging shall be on the owner or operator of the property.

"Property manager" means a person who is responsible for the daily operation of a non-transient lodging property, to include but not limited to, collecting rent, access and control of room keys, and serves as an on scene contact for enforcement officials.

"Transient lodging" or "transient lodging property" means a building or unit occupied or intended to be occupied as temporary lodging for transient guests who have residence elsewhere, who pay rent or other compensation, and whose rental of units is subject to the payment of transient lodging taxes charged pursuant to NRS Chapter 268 and LVMC Chapter 4.20. The burden of establishing that a building or unit qualifies as transient lodging shall be on the owner or operator of the property.
(Ord. No. 6776, § 1, 4-21-21)

16.22.040 Inspections.

(A) It is the intent of the City, through its Code Enforcement Section and other designated City staff, to inspect each converted non-transient lodging property at least once per calendar year. The purpose of such inspection is to determine whether the premises comply with all applicable ordinances and codes, including without limitation those relating to public nuisance, life safety, construction, zoning, health and licensing. Notwithstanding the City's intent to perform inspections, nothing in this Chapter shall be deemed to create any duty or obligation on the part of the City regarding inspections or enforcement activity.

(B) The City may require more frequent inspections if an annual or regular inspection reveals non-compliance with applicable ordinance and code provisions.

(C) The City's Code Enforcement Section and other designated officers and employees are authorized to:

(1) Enter upon premises, consistent with Constitutional requirements, for the purposes of inspection and determining compliance with the provisions of this Chapter and other applicable ordinances and codes. In exercising the authority of this Paragraph (1), the City shall use best efforts to provide the property owner or property manager at least twenty-four hours' notice of a proposed inspection unless to do so would

frustrate or be inconsistent with the purpose of the inspection as a means of protecting property or protecting the public and the health, safety or welfare of persons within or near the property.

(2) Provide notices of noncompliance, notices of violation, notices and orders to comply, and other similar methods leading up to and including the issuance of criminal citations.

(3) Provide notices of noncompliance, notices of violation, notices and orders to comply, and other similar methods leading up to and including the processing of civil violations in accordance with the procedural provisions of LVMC Chapter 9.04, LVMC 6.02.400 to 6.02.460, inclusive, as well as other applicable ordinances and statutes.

(4) Establish such additional programs for audit and inspection of housing units subject to this Chapter, as well as additional methods of encouraging and obtaining compliance.

(5) Establish and promote training programs for property owners, property managers and tenants regarding property management, property maintenance, rights and responsibilities, and other topics related to the purpose of this Chapter.

(Ord. No. 6776, § 1, 4-21-21)

16.22.050 Code compliance—Violations.

(A) It is unlawful for a property owner, property manager or agent to rent to or otherwise allow another to occupy a vacant unit of converted non-transient lodging property that is the subject of a pending enforcement action under this Chapter, unless and until the unit has been inspected by the City for code compliance and has passed such inspection.

(B) Except as otherwise provided in this Subsection (B), it is unlawful for a property owner, property manager or agent to rent to or otherwise allow another to occupy a vacant unit of converted non-transient lodging property unless the unit has been the subject of a completed annual inspection referred to in Subsection (A) of LVMC 16.22.040. Notwithstanding the preceding sentence, such a unit may be rented or made available if:

(1) The failure of a completed annual inspection was not caused by the fault, lack of diligence, or lack of cooperation on the part of the property owner, property manager or agent; and

(2) The City's Code Enforcement Section authorizes the unit to be rented or made available pending inspection.

(C) Each manager or operator of a converted transient lodging property shall post at a prominent location on each floor at least one sign indicating that concerns relating to the life safety systems of the building can be reported to the City at the telephone number listed on the sign. Each such sign shall contain the text and be in the size and format approved by the

City. The City will endeavor to make such signs available to each manager or operator of a converted transient lodging property, but the posting of compliant signs is required whether or not actual signs have been obtained from the City.

(D) It is unlawful for a property owner, property manager or agent to violate any provision of this Chapter.

(E) A violation of this Section or any provision of this Chapter may be prosecuted by means of a criminal prosecution, a civil proceeding, or a combination thereof. In addition to any civil remedy otherwise available, the City may proceed by means of the process for civil violations set forth in LVMC 6.02.400 to 6.02.460, inclusive. In such a proceeding, any reference to the "Department" in LVMC 6.02.400 to 6.02.460, inclusive, shall pertain to the Code Enforcement Section or any other department assigned to enforce this Chapter.

(F) As a matter of information only, State law prohibits retaliatory action by a landlord against a tenant under the circumstances described by that law.
(Ord. No. 6776, § 1, 4-21-21)

16.22.060 Disciplinary action.

Upon notice and an opportunity to be heard, the City is authorized to do any of the following with regard to a converted non-transient lodging property:

(A) Take disciplinary action against an associated business license under LVMC Title 6 or revoke an associated land use entitlement under LVMC Title 19 for the following:

(1) Excessive calls for service to the property with inadequate response by management, owners or operators; or

(2) Frequent findings of code violations and frequent violation-related inspections.

(B) Condition the retention of an associated business license upon quarterly inspections (or other frequency) for a specified period of time.
(Ord. No. 6776, § 1, 4-21-21)

CHAPTER 16.24 MECHANICAL CODE

16.24.010 Uniform Mechanical Code and supplement adopted.

Those certain documents, copies of each being on file in the office of the City Clerk, and designated as follows, are adopted by reference and made a part of this Code, to the same effect as if set out herein in full:

(A) Uniform Mechanical Code, 2024 Edition, designated as Part 1 of this Chapter; and

(B) A document entitled "Southern Nevada Amendments to the 2024 Uniform Mechanical Code," adding to, deleting from and amending the Uniform Mechanical Code, 2024 Edition, designated as Part 2 of this Chapter.

(Ord. No. 6915, § 1, 7-16-25; Ord. No. 6637, § 1, 8-15-18; Ord. No. 6354, § 1, 9-17-14; Ord. No. 6142, § 1, 4-6-11; Ord. 5880 § 1, 2007: Ord. 5528 § 1, 2002: Ord. 5093 § 1, 1998: Ord. 3909 § 1, 1995: Ord. 3726 § 1, 1993: Ord. 3542 § 1, 1990: Ord. 3210 § 1, 1986: Ord. 3025 § 2, 1983: prior code § 4-4-1)

Editor's note—The provisions of Ord. No. 6915 shall become effective January 5, 2026.

16.24.020 New building evaporative cooling mechanisms not permitted.

After August 31, 2023, no new building that utilizes evaporative cooling mechanisms or devices as part of the building's heating, ventilation, air conditioning, and refrigeration system is eligible for permitting. This provision shall be deemed to prevail over any contrary or inconsistent provision of the Municipal Code or the City's construction-related codes.
(Ord. No. 6843, § 9, 8-16-23)

CHAPTER 16.28 PLUMBING CODE*

16.28.010 Uniform Plumbing Code and supplement adopted.

Those certain documents, copies of each being on file in the Office of the City Clerk, and designated as follows, are adopted by reference and made a part of this Code, to the same effect as if set out herein in full:

(A) Uniform Plumbing Code, 2024 Edition, including its Standards and Appendices, except as otherwise indicated, designated as Part 1 of this Chapter; and

(B) A document entitled "Southern Nevada Amendments to the 2024 Uniform Plumbing Code, CLV Amended," adding to, deleting from and amending the Uniform Plumbing Code, 2024 Edition, designated as Part 2 of this Chapter. This document includes amendments specific to the City of Las Vegas, as indicated therein.

(Ord. No. 6916, § 1, 7-16-25; Ord. No. 6638, § 1, 8-15-18; Ord. No. 6355, § 1, 9-17-14; Ord. No. 6141, § 1, 4-6-11; Ord. 5881 § 1, 2007: Ord. 5526 § 1, 2002: Ord. 5094 § 1, 1998: Ord. 3910 § 1, 1995: Ord. 3727 § 1, 1993: Ord. 3543 § 1, 1990: Ord. 3220 § 1, 1986: Ord. 3026 § 2, 1983: prior code § 4-2-1)

Editor's note—The provisions of Ord. No. 6916 shall become effective January 5, 2026.

*__Note—__Prior history: Ords. 36, 41, 83, 87, 129, 147, 182, 196.

CHAPTER 16.30 POOL CODE

16.30.010 Pool Code adopted.

Those certain documents, copies of each being on file in the Office of the City Clerk, and designated as follows, are adopted by reference and made a part of this Code, to the same effect as if set out herein in full:

(A) International Swimming Pool and Spa Code, 2024 Edition, designated as Part 1 of this Chapter; and

(B) A document entitled "Southern Nevada Amendments to the 2024 International Swimming Pool and Spa Code," adding to, deleting from and amending the International Swimming Pool and Spa Code, 2024 Edition, designated as Part 2 of this Chapter.

(Ord. No. 6914, § 1, 7-16-25; Ord. No. 6636, § 1, 8-15-18; Ord. No. 6353, § 1, 9-17-14; Ord. No. 6145, § 1, 4-6-11; Ord. 5879 § 1, 2007: Ord. 5525 § 1, 2002: Ord. 5042 § 1, 1997: Ord. 3728 § 1, 1993: Ord. 3544 § 2, 1990)

Editor's note—The provisions of Ord. No. 6914 shall become effective January 5, 2026.

CHAPTER 16.31 RESERVED*

CHAPTER 16.32 RESERVED†

CHAPTER 16.33 REGISTRATION AND MAINTENANCE PROGRAM FOR VACANT PROPERTIES

16.33.010 Purpose and intent.

It is the purpose and intent of this Chapter to establish a program to reduce the amount of deteriorating real property located within the City, in particular, real property suffering from blight caused by the lack of adequate maintenance. The program includes a property registration requirement designed to assist in accomplishing the intent and purpose of this Chapter.

(Ord. No. 6169, § 1, 12-7-11)

***Editor's note—**Ord. No. 6169, § 2, adopted December 7, 2011, repealed Chapter 16.31, §§ 16.31.010—16.31.080, which pertained to vacant buildings and derived from Ord. No. 5453, 2002.

†**Editor's note—**Ord. No. 6423, § 1, adopted July 1, 2015, repealed Chapter 16.32, §§ 16.32.010—16.32.480, which pertained to security and derived from prior code §§ 4-10-l—4-10-8; Ord. No. 1583, 1972; Ord. No. 1638 § 1, 1973 and Ord. No. 1694, 1974.

16.33.020 Definitions.

Unless the context otherwise requires, the following words and phrases used in this Chapter shall have the meanings ascribed to them:

"Abandoned residential property" has the meaning ascribed to it in NRS 107.0795.

"Default," with respect to a mortgage, means that the obligor under the mortgage has breached or is in default of a repayment or other obligation in connection with that mortgage.

"Foreclosure" means the process by which real property placed as security for the repayment of a loan is to be sold to satisfy the debt concerning which the borrower has defaulted.

"Mortgage" means a first mortgage or other first-priority security interest in real property that is placed as security for the repayment of a loan, and includes a first deed of trust.

"Mortgagee" means any person or firm who holds a first-priority mortgage or other first-priority security interest in real property to secure a loan, whether as the mortgagee of a mortgage or the beneficiary of a deed of trust.

"Notice of default event," with respect to a mortgage, means that a default regarding that mortgage has occurred and either:

(A) A notice of breach or notice of default and election to sell has been provided to the obligor thereof and has been recorded in the County Recorder's Office; or

(B) An action for judicial foreclosure has been commenced regarding that mortgage by the filing of a complaint or petition for foreclosure in a court of competent jurisdiction.

"Specified property" means any parcel of vacant real property within the City that is subject to a mortgage and concerning which a notice of default event has occurred. To the extent not included within the scope of the preceding sentence, the term also includes abandoned residential property located within the City, as well as residential property that may be in danger of becoming abandoned residential property. For purposes of the inspection requirement set forth in LVMC 16.33.030 and for that purpose only, the term also includes a parcel of real property that appears to be vacant. Once a parcel is determined not to be vacant, or is determined not to qualify as abandoned residential property or to be in danger of becoming abandoned residential property, it shall not be considered "specified property" until it qualifies as such again under this definition.

"Vacant," with respect to real property, and "vacant real property" mean real property and improvements that are not presently occupied by persons lawfully entitled thereto. The term does not include real property that is unoccupied by reason of the temporary absence of lawful occupants who intend to return and resume occupancy.
(Ord. No. 6586, § 1, 6-21-17; Ord. No. 6169, § 1, 12-7-11)

16.33.030 Inspection, registration and designation.

(A) Except as otherwise provided in LVMC 16.33.070, any mortgagee who holds a mortgage on specified property shall inspect that property or cause it to be inspected in accordance with this Section. If the inspection reveals that the property is not being occupied by the mortgagor or by persons who are occupying the property with the mortgagor's consent, the mortgagee shall register the property with the Department of Community Development on forms to be provided by the Department, or with another department, person or entity designated by the Department, on forms approved by the Department or the designee. In connection with that registration, the mortgagee shall also designate in writing a property manager to inspect, maintain and secure the property. A separate inspection, registration and designation are required for each specified property.

(B) Registration pursuant to Subsection (A) shall contain, at a minimum, the following information:

(1) The name and mailing address of the mortgagee, and the physical address of the mortgagee if the mailing address is a post office box.

(2) A direct contact name, phone number, and email address (if available), for purposes of contacting the mortgagee.

(3) The name, address, phone number, and email address (if available) of the property manager.

(4) The current disposition and occupancy status of the property.

(C) Any property manager designated pursuant to this Section must be located within Nevada and must be:

(1) A duly-licensed property management company or property preservation company;

(2) A department or section of a mortgagee that is devoted to property management or preservation; or

(3) A service provider specifically employed by a mortgagee to provide property management or preservation within the City.

(D) The obligations listed in Subsection (A) shall be fulfilled within the following time frames:

(1) The property inspection must occur no later than fifteen calendar days following:

(a) The occurrence of the notice of default event regarding the property; or

(b) Receipt of notice from the City or another governmental agency that the property qualifies as abandoned residential property or may be in danger of so qualifying.

(2) The property registration and designation of a property manager must occur no later than ten calendar days after the inspection.

(E) A property inspection required by Subsection (A) may be conducted by the City pursuant to LVMC 16.33.100, upon request.

(F) With respect to each specified property, the mortgagee and its designated property manager shall be responsible for inspecting and maintaining the property on a monthly basis until the parcel no longer qualifies under the definition of "specified property."
(Ord. No. 6816, § 142, 8-17-22; Ord. No. 6586, § 2, 6-21-17; Ord. No. 6169, § 1, 12-7-11)

16.33.040 Registration-related fees.

The City is authorized to charge a mortgagee the following fees:

(A) Two hundred dollars for each initial property registration required under this Chapter and an additional two hundred dollars annually on the yearly anniversary of the registration; and

(B) Fifty dollars for each modification to a registration.
(Ord. No. 6586, § 3, 6-21-17; Ord. No. 6169, § 1, 12-7-11)

16.33.050 Authority.

By means of contract, the City may assign and delegate to another person or entity the authority and responsibility to:

(A) Effect, collect and maintain registrations under LVMC 16.33.030; and

(B) Collect registration fees under LVMC 16.33.040.
(Ord. No. 6169, § 1, 12-7-11)

16.33.060 Maintenance.

(A) Specified property shall be maintained in accordance with applicable codes and ordinances, including without limitation ordinances pertaining to dangerous buildings, litter, and nuisance abatement. Insofar as there is existing or previously existing landscaping, all visible landscaping in front and side yards shall be maintained to the neighborhood standard at the time registration was required. If no landscaping previously existed at the property in front and visible side yards, installation is not required under this Section.

(B) For purposes of this Section:

(1) "Landscaping" includes without limitation grass, turf stain, ground covers, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod designed specifically for residential installation. The term does not include weeds, gravel, broken concrete, asphalt, decomposed granite, plastic sheeting, mulch (unless applied in conjunction with reseeding of turf areas), indoor-outdoor carpet or any similar material.

(2) "Maintenance of landscaping" includes without limitation regular watering, irrigation, staining, re-staining, cutting, pruning and mowing of required landscaping and removal of all trimmings.

(C) Pools and spas located on specified property shall be kept in working order so the water remains clear and free of pollutants and debris or drained and kept dry. In either case, pools and spas must comply with the minimum security requirements applicable to pools and spas within the City.

(D) Specified property shall be maintained in a secure manner so as not to be accessible to unauthorized persons. Doors of all kinds, windows, gates and other openings that make the property accessible must be closed and locked so that a key, keycard, tool or special knowledge is necessary to gain access. Broken windows must be reglazed or boarded in accordance with applicable City standards.

(E) Specified property shall be posted with the name and contact phone number of the mortgagee or property manager. The posting shall be no less than eight and one-half inches by eleven inches and shall contain, along with the name and contact number, the words "THIS PROPERTY MANAGED BY" and "TO REPORT PROBLEMS OR CONCERNS CALL" or similar. The posting shall be placed in a window adjacent to the entry door or attached to the exterior of the entry door. Exterior posting must be constructed of and printed with, or contained in, weather-resistant materials.

(F) Except as otherwise provided in LVMC 16.33.070, compliance with this Section with respect to any specified property shall be the joint responsibility of the mortgagee and the property manager, as well as the property owner.
(Ord. No. 6169, § 1, 12-7-11)

16.33.070 Waived inspection and maintenance.

A mortgagee's obligation under this Chapter regarding inspection and maintenance of a specified property may be waived by the Director of Community Development or the Director's designee if the mortgagee can demonstrate to the satisfaction of the Director or designee that:

(A) The mortgage documents either expressly prohibit the mortgagee and its agents from entering the property for those purposes or do not authorize such entry in order to protect the mortgagee's interests in the property; and

(B) There is a reasonable possibility, based on articulable evidence, that:

(1) The obligor under the mortgage or an authorized occupant of the premises will report as a trespass an entry on the premises by or on behalf of a mortgagee; or

(2) The obligor under the mortgage will assert against the mortgagee, whether in a foreclosure proceeding or otherwise, a claim that such entry is a breach of the mortgage documents or constitutes an illegal or unauthorized entry on the property.
(Ord. No. 6816, § 143, 8-17-22; Ord. No. 6586, § 4, 6-21-17; Ord. No. 6169, § 1, 12-7-11)

16.33.080 Violations—Enforcement.

(A) It is unlawful for a person or other responsible party under this Chapter to violate any provision of this Chapter.

(B) The provisions of this Chapter may be enforced by the Las Vegas Metropolitan Police Department, officers and employees of the Department of Community Development, and any other officer or employee designated by the City Manager.

(C) The provisions of this Chapter may be enforced by means of:

(1) Criminal prosecution;

(2) To the extent adaptable, the same civil process that is available under LVMC Chapter 9.04 for the abatement of nuisances;

(3) An civil action in a court of competent jurisdiction to compel compliance; or

(4) Any other civil mechanism established by the City Council for use in connection with this Chapter.

(D) In addition to any enforcement remedy otherwise available, the Director of Community Development or a designee shall have the authority to require a responsible party to implement additional maintenance and/or security measures as may be reasonably required to arrest the decline of the property.
(Ord. No. 6816, § 144, 8-17-22; Ord. No. 6169, § 1, 12-7-11)

16.33.090 Limitations and effect of chapter.

(A) Nothing in this Chapter:

(1) Requires a mortgagee or its agent or employee to violate any criminal law or ordinance or any court order, or to violate an automatic stay in a bankruptcy proceeding.

(2) Creates a duty or obligation that is owed to, or runs in favor of, any person other than the City and those officers, employees or agents who are acting in the City's behalf.

(3) Creates or implies a cause of action in favor of, or available to, any person other than the City.

(B) No act by a mortgagee or its officers, employees, agents or contractors in compliance with this Chapter, and no omission of an act required by this Chapter on the part of a mortgagee or its officers, employees, agents or contractors, shall be deemed or interpreted to:

(1) Make the mortgagee, for any purpose, a "mortgagee in possession" of property subject to a mortgage.

(2) Create a duty or obligation that is owed to, or runs in favor of, any person other than the City and those officers, employees or agents who are acting in the City's behalf.

(3) Create or imply a cause of action in favor of, or available to, any person other than the City.

(4) Create, imply or suggest liability in tort on the part of a mortgagee or its officers, employees, agents or contractors, unless the act or omission would be actionable and result in such liability independent of, and notwithstanding the provisions of, this Chapter.

(Ord. No. 6169, § 1, 12-7-11)

16.33.100 Inspection of properties for purposes of an expedited sale.

For purposes of NRS 107.130(4) pertaining to the inspection of properties for purposes of an expedited sale under deed of trust:

(A) The Code Enforcement Division of the Department of Community Development is designated as the agency to perform the services and functions required by NRS 107.130.

(B) If the beneficiary of a deed of trust pertaining to residential property located within the City reasonably believes that the property may be abandoned (as referenced in NRS 107.130), the beneficiary or an agent may request a certification relative to abandonment from the Code Enforcement Division, on a form provided by the Division for that purpose.

(C) In response to a request pursuant to Subsection (B), the Code Enforcement Division shall perform the inspection, notice and certification functions required and authorized by NRS 107.130 regarding the property that is the subject of the request, and shall do so in accordance with and subject to the provisions of NRS 107.130.

(D) The Code Enforcement Division is authorized to charge a fee of three hundred dollars for performing the services and functions described in Subsection (C) and may condition its performance on receipt of that fee.

(Ord. No. 6816, § 145, 8-17-22; Ord. No. 6586, § 5, 6-21-17)

CHAPTER 16.36 RESERVED*

CHAPTER 16.40 RESERVED†

***Editor's note—**Ord. No. 6423, § 1, adopted July 1, 2015, repealed Chapter 16.36, §§ 16.36.010—16.36.100, which pertained to insulation and derived from prior code §§ 4-11-l—4-11-8; Ord. No. 1679, 1974 and Ord. No. 1695, 1974.

†**Editor's note—**Ord. No. 6423, § 1, adopted July 1, 2015, repealed Chapter 16.40, §§ 16.40.010—16.40.240, which pertained to fallout shelters and derived from prior code §§ 4-9-l—4-9-6 and Ord. No. 942, 1962.

CHAPTER 16.44 RESERVED*

CHAPTER 16.48 AMUSEMENT AND TRANSPORTATION RIDES CODE

16.48.010 Adoption.

That certain document entitled "City of Las Vegas Amusement and Transportation Rides Code, 2010 Edition," three copies of which are on file in the Office of the City Clerk, is adopted by reference and made a part of this Code, to the same effect as if set out herein in full.
(Ord. No. 6146, § 1, 4-6-11; Ord. 3742 § 2, 1993)

CHAPTER 16.50 INTERNATIONAL WILDLAND-URBAN INTERFACE CODE

16.50.010 Adoption by reference.

Those certain documents, three copies of which are on file in the Office of the City Clerk and are designated as follows, are adopted by reference as if set forth herein in full:

(A) The publication entitled "International Wildland-Urban Interface Code, 2024 Edition," as published by the International Code Council, including only those Appendices specified by the document described in Subsection (B) below, as Part 1 of this Chapter; and

(B) The document entitled "Southern Nevada Amendments to the 2024 Wildland-Urban Interface Code," which adds to, deletes from and amends the "International Wildland-Urban Interface Code, 2024 Edition," as Part 2 of this Chapter.

(Ord. No. 6919, § 1, 7-16-25; Ord. No. 6817, § 1, 8-17-22)

Editor's note—The provisions of Ord. No. 6919 shall become effective January 5, 2026.

CHAPTER 16.52 ENERGY CONSERVATION CODE

16.52.010 Adoption by reference.

Those certain documents, three copies of which are on file in the Office of the City Clerk and are designated as follows, are adopted by reference as if set forth herein in full:

(A) The publication entitled "International Energy Conservation Code, 2024 Edition," as published by the International Code Council, as Part 1 of this Chapter; and

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***Editor's note—**Ord. No. 6423, § 1, adopted July 1, 2015, repealed Chapter 16.44, §§ 16.44.010—16.44.250, which pertained to mobile homes and derived from prior code §§ 4-13-l—4-13-23 and Ord. No. 2120, 1980.

(B) The document entitled "Southern Nevada Amendments to the 2024 International Energy Conservation Code," which adds to, deletes from and amends the "International Energy Conservation Code, 2024 Edition," as Part 2 of this Chapter.

(Ord. No. 6913, § 1, 7-16-25; Ord. No. 6635, § 1, 8-15-18; Ord. No. 6069, § 1, 12-2-09, effective July 6, 2010; Ord. 5882 § 1, 2007: Ord. 5766 § 1, 2005: Ord. 3880 § 2, 1995)

Editor's note—The provisions of Ord. No. 6913 shall become effective January 5, 2026.

CHAPTER 16.56 AMERICAN FLAG PROVISIONS

16.56.010 Enforceability.

Except as provided in Section 16.56.020 of this Chapter, any of the following that prohibits or restricts the display of the American flag is void and unenforceable:

(A) A covenant, condition or restriction contained in a legal instrument affecting an interest in real property; or

(B) Any rule or regulation of an owners' association that otherwise has the authority to regulate the use of real property.

(Ord. 5337 § 1—2, 2001)

16.56.020 Applicability—Exemptions.

Section 16.56.010 does not apply to any covenant, condition, restriction, rule or regulation that, with respect to the display of the American flag, establishes:

(A) Reasonable placement and safety standards applicable to the display of the flag;

(B) A maximum number of flags that may be displayed on a parcel;

(C) A requirement that flags to be displayed be portable and removable; or

(D) In the case of residential property, a requirement that the height of any flag, when displayed, does not exceed the height of the residence.

(Ord. 5377 §§ 1—3, 2001)

Title 17

RESERVED*

*__Editor's note—__Ord. No. 6423, § 2, adopted July 1, 2015, repealed Chapter 17.12, §§ 17.12.010—17.12.140, which pertained to permits and derived from prior code §§ 4-6-3, 4-6-6, 4-6-14, 4-16-22, 4-6-23; Ord. No. 233, 1938; Ord. No. 3124, 1984; Ord. No. 522, 1953; Ord. No. 624, 1954; Ord. No. 899, 1961; Ord. No. 1179, 1965 and Ord. No. 1504, 1971.

Title 18

SUBDIVISIONS

RESERVED*

*__Editor's note—__Ord. No. 6135, § 1, adopted March 16, 2011, repealed Title 18, Chs. 18.02—18.34, which pertained to subdivisions. See Ordinance List and Code Comparative Table for ordinance history of this Title. Please note that replacement provisions have been included within a new Title 18 that has been published as a separate document by the City and is not currently included in this codification. That document can be obtained from the City or by visiting the City's website at www.lasvegasnevada.gov.

LAS VEGAS, NEVADA

MUNICIPAL CODE

A Codification of the General Ordinances of Las Vegas, Nevada

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VOLUME III

Republished November 2009
by Municipal Code Corporation

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P.O. Box 2235 Tallahassee, FL 32316

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Title 19

ZONING*

Please note that replacement provisions have been included within a new Title 19 that has been published as a separate document by the City and is not currently included in this codification. That document can be obtained from the City or by visiting the City's website at http://online.encodeplus.com/regs/lasvegas-nv/index.aspx.

***Editor's note—**Ord. No. 6135, § 1, adopted March 16, 2011, repealed Title 19, Chs. 19.00—19.20, which pertained to zoning. See Ordinance List and Code Comparative Table for ordinance history of this Title.

Title 20

FLOOD CONTROL

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CHAPTER 20.04 FLOOD CONTROL MASTER PLAN

20.04.010 Purpose.

The Clark County Regional Flood Control District's Master Plan (the "Flood Control Master Plan") has been adopted by the City Council for the development of a system of flood control measures and to reserve areas to be used for stormwater drainage channels.
(Ord. No. 6524, § 1, 5-4-16; Ord. 1124 § 1, 1964: prior code § 2-2-3.1)

20.04.020 Relation to master plan.

As it pertains to the City, the Flood Control Master Plan represents the City's approach to flood control planning, as referred to in the City's Master Plan adopted pursuant to NRS Chapter 278.
(Ord. No. 6524, § 2, 5-4-16; Ord. 1124 § 2, 1964: prior code § 2-2-3.2)

20.04.030 Official Master Plan of Flood Control adopted.

The Flood Control Master Plan, a copy of which is on file with the City Clerk, is hereby adopted by reference and made a part of this chapter as if fully set forth.
(Ord. No. 6524, § 3, 5-4-16; Ord. 1124 § 3, 1964: prior code § 2-2-3.3)

20.04.040 Content.

The Flood Control Master Plan sets forth the location and proposed widths of rights-of-way and/or easements which are necessary to provide for stormwater drainage. The proposed or existing width of a flood control channel as set forth in the Flood Control Master Plan may be lessened if conduit is to be utilized. The reduced width may be allowed by appropriate action of the City Council.
(Ord. No. 6524, § 4, 5-4-16; Ord. No. 6524, § 4, 5-4-16; Ord. 1895 § 1 (part), 1977: Ord. 1124 § 4, 1964: prior code § 2-2-3.4)

20.04.050 Building prohibited.

(A) It is unlawful for anyone to construct, erect or place any building, structure or improvement on any land within any proposed or existing flood control channel as set forth on the Flood Control Master Plan Map, excepting, however, that when conduit is used instead of an open channel, the City Council upon recommendation of the Planning Commission may allow buildings, structures, or other improvements above the area occupied by the conduit.

(B) Except as authorized by the Director of Public Works, it is unlawful to do any of the following with respect to a drainage easement that runs in favor of the City or another governmental entity:

(1) Place or erect any structure within the boundaries of the easement; or

(2) Deposit or place any object or material that encroaches upon the easement.

(C) Except as authorized by the Director of Public Works, it is unlawful for the owner of property subject to a drainage easement that runs in favor of the City or another governmental entity to:

(1) Knowingly permit the placement of a structure within the boundaries of the easement;

(2) Knowingly permit the deposit or placement of any object or material that encroaches upon the easement;

(3) Fail to remove any such structure, object or material, upon notice by the City to do so, within the time period specified by the notice;

(4) Knowingly modify approved improvements and material within the easement;

(5) Fail to repair damaged structures within the easement or to remove sediment, trash, and vegetation within the easement upon notice by the City to do so, within the time period specified by the notice; or

(6) Otherwise fail to maintain the intended purpose of the easement to function as constructed.

(D) A violation of this Section or any other provision of this Title constitutes a public nuisance.
(Ord. No. 6524, § 5, 5-4-16; Ord. 6024 § 3, 2009: Ord. 1895 § 1 (part), 1977: Ord. 1124 § 5, 1964: prior code § 2-2-3.5)

20.04.060 Amendments.

The plan adopted in this Chapter may be amended, changed, or altered by the deletion therefrom or the addition thereto of rights-of-way and/or easements for stormwater drainage and/or the increase or decrease in width of rights-of-way and/or easements by means of a resolution or other appropriate action of the City Council.
(Ord. No. 6524, § 6, 5-4-16; Ord. 1124 § 6, 1964: prior code § 2-2-3.6)

CHAPTER 20.08 FLOOD HAZARD REDUCTION

20.08.010 Authority.

The Nevada State Legislature has delegated to local governing bodies the authority, power, and responsibility to promote the public health, safety, morals, and the general welfare of the community by regulating and restricting the improvement of land and by controlling the location and soundness of structures. The Legislature has expressed its intent that such regulation, restriction, and controlling be accomplished through a system of master planning, zoning, subdivision regulations, planned unit development regulations, parcel map regulations, and building regulations. NRS Chapters 278 and 278A specifically

provide that flood hazards and drainage must be considered by local governments as part of that system and process. In addition, the Legislature has authorized local governing bodies to:

(A) Set conditions for approval of tentative subdivision maps, accept dedications and easements, and require subdividers to improve or agree to improve easements.

(B) Require drainage provisions as a condition of approval of parcel maps.

(C) Adopt a building code specifying the design of structures.

(D) Withhold building permits as a means of enforcing the zoning regulations.

(Ord. No. 6524, § 7, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-1)

20.08.020 Findings of fact.

(A) The City is situated partly in the floodplain of Las Vegas Wash and its tributaries, and partly on alluvial cones which drain to Las Vegas Wash and its tributaries. Both the floodplain areas and the alluvial cone areas have been subjected in recent years to repeated inundation, erosion, and deposition of sediment, resulting in hazard to life, damage to property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare.

(B) These flood losses are caused by:

(1) Natural patterns of flood runoff resulting from high intensity rainfall;

(2) Urbanization which has increased the rate and volume of storm runoff;

(3) Obstruction of flow paths by various urban improvements;

(4) Collection and concentration of flows on the alluvial cone by highway construction;

(5) Lack of an adequate storm drain and flood control system to control erosion and sedimentation, collect storm runoff and carry it safely through the city; and

(6) Inadequately anchored structures.

(C) Special flood hazard areas in the City have been identified by the United States Federal Insurance Administration under the National Flood Insurance Program (hereinafter referred to as "NFIP") and are shown on the Flood Insurance Rate Map. These special flood hazard areas are based on the one-hundred-year flood, with watershed development conditions as they existed in 1978, and without consideration of erosion and sedimentation. As urbanization continues to increase the rate and volume of storm runoff, and as long as erosion and sedimentation remain as components of the flood problem, the Flood Insurance Rate Map will understate the extent and degree of the flood problem.

(D) Drainage area boundaries on the alluvial cone are indistinct. Under natural conditions of erosion and sedimentation, flow paths may vary from one storm to the next. Without clear, firm drainage area boundaries, it is impossible to proceed with drainage planning, establish development requirements or design flood control projects.

(E) A massive conventional gravity flow urban storm drainage and flood control system adequate to control erosion and sedimentation, collect storm runoff, carry floodflows safely to an adequate point of discharge and protect the lives and property of the citizens of Las Vegas would require massive disruption of the community, relocation of utilities, construction of bridges, condemnation of right-of-way, and removal of residences; and would require an unreasonable financial commitment.

(F) A flood damage prevention system based upon the concept of temporary detention of storm runoff where appropriate can be implemented as an integral part of the development process, at a cost far below that of a channelization system, and with a minimum of community disruption. Such a system would assure that future new developments are safe from flood hazard, and do not increase the hazards to adjoining or downstream properties. Eventually, the system would reduce or eliminate the existing flood hazard to many downstream developed areas.

(G) The continuing effectiveness of any flood damage prevention system requires adequate maintenance by a public agency. An adequate and stable financial base must be provided to support continuing maintenance activities.

(H) A comprehensive program of flood damage prevention, which addresses the need to regulate future development and to secure solutions to existing flooding problems, must call into play many sectors of City government. To provide direction and policy guidance it is necessary to have a drainage master plan, which contains future development projections, drainage area boundaries, level of protection, project concepts, project plans, and drainage standards and criteria for public works and private developments.

(I) Federal regulations for the NFIP require that as a minimum the City must adopt the Federal floodplain management requirements as a condition for remaining in the NFIP. Participation in the NFIP is a requirement to remain eligible for flood insurance for property owners, mortgage funds in special flood hazard areas, and federal grants-in-aid for any activities in special flood hazard areas, including improvements to the City sewage treatment plant. The floodplain management provisions of this Chapter satisfy the Federal requirements.

(Ord. 3282 § 1 (part), 1987: Ord. 3008 § 1, 1982: Ord. 2115 § 1 (part), 1980: prior code § 11-5-2)

20.08.030 Purpose.

It is the purpose of this Chapter to:

(A) Meet the requirements of the NFIP, thus assuring the availability of flood insurance to City Residents and businesses and continuing the availability of mortgage funds and grants-in-aid in designated special flood hazard areas;

(B) Promote the public health, safety and general welfare, and minimize public and private losses due to flood conditions by provisions designed:

(1) To protect human life and health,

(2) To minimize expenditure of public money for costly flood control projects,

(3) To minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public,

(4) To minimize prolonged business interruptions,

(5) To minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in areas of special flood hazard,

(6) To help maintain a stable tax base by providing for the safe use and development of areas of special flood hazard so as to minimize future flood blight areas,

(7) To ensure that potential buyers are notified that property is in an area of special flood hazard,

(8) To ensure that those who occupy the areas of special flood hazard assume responsibility for their actions;

(C) Provide for a master plan of drainage and a comprehensive program throughout City government aimed at reducing and preventing flood damages through planning, zoning, subdivision administration, building permit administration, capital projects, maintenance, and public information;

(D) Accomplish the detention of storm runoff where appropriate in new developing areas, thus assuring the safety of future residents of such areas, and also eventually eliminating or reducing downstream flood hazards;

(E) Maintain the natural radial flow path of runoff on the alluvial cones, thus avoiding concentration of flood flows directed at the central area of the City;

(F) Provide the criteria and standards to resolve existing drainage problems which may not be affected by the detention strategy;

(G) Reduce City flood-related costs;

(H) Provide a basis for practices and procedures to be implemented by the City departments responsible for public works and regulation of development, including planning, zoning, subdivision and building administration;

(I) Clarify City requirements for landowners and developers;

(J) Ensure that new private residential and nonresidential development is reasonably free from flood hazard due to inundation, erosion and deposition of sediment, and does not increase the hazard to adjoining property by increasing flood heights, deflecting flows, or causing erosion or sedimentation.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-3)

20.08.040 Methods of reducing flood losses.

In order to accomplish its purposes, this Chapter includes methods and provisions for:

(A) Establishing a master plan of drainage which:

(1) Identifies all sources of flooding affecting the City and all drainage patterns,

(2) Establishes drainage area boundaries,

(3) Establishes levels of protection,

(4) Establishes engineering criteria and standards for regulation of development and design of drainage improvements, including detention facilities,

(5) Presents project concepts and plans,

(6) Identifies the areas where various types of detention facilities and techniques are planned and establishes for each area the detention criteria;

(B) Restricting or prohibiting uses which are dangerous to health, safety, and property due to flood, erosion or sedimentation, or which result in damaging increases in erosion or in flood heights or velocities;

(C) Requiring that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

(D) Controlling the alteration of natural floodplains, stream channels and natural protective barriers, which help accommodate or channel flood waters and sediment; and where development will alter the surface of the ground so as to increase the rate and volume of runoff, constructing storm runoff detention facilities in accordance with the master plan;

(E) Controlling filling, grading and other development which may increase flood damage;

(F) Regulating the construction of flood barriers which will divert flood waters and sediment or which may increase flood hazards in other areas, including regulating the design of highways so as to prevent the collection and concentration of flow on the alluvial cone;

(G) Maintaining the natural radial flow pattern for storm runoff on the alluvial cone, thus avoiding the collection and concentration of flood and sediment flows toward the central part of the City.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-4)

20.08.050 Definitions.

Words or phrases used in this Chapter shall be interpreted so as to give them the meaning they have in common usage and to give this Chapter its most reasonable application. The following terms have the definitions found below:

"Alluvial cone" means that land form characteristic of desert foothill areas formed by the gradual deposition of rock, sand and soil washed out of the mountains by flood runoff.

Alluvial cones are characterized by the absence of a well-defined watercourse; instead, the flood runoff tends to migrate from place to place across the cone as ongoing erosion and deposition of stream-borne sediments continually alter the flow path.

"Appeal" means a request for a review of the Director of Public Works' interpretation of any provision of this Chapter.

"Area of shallow flooding" means a designated AO or VO Zone on the Flood Insurance Rate Map where base flood depths range from one to three feet; a clearly defined channel does not exist; the path of flooding is unpredictable and indeterminate; and velocity flow may be evident.

"Area of special flood hazard" means the land in the floodplain subject to a one percent or greater chance of flooding in any given year.

"Base flood" means the flood having a one percent chance of being equaled or exceeded in any given year.

"Base flood elevation" means the water surface elevation resulting from the base flood plus an allowance for future development and sediment.

"Development" means any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations.

"Drainage Design Manual" means the "Hydrologic Criteria and Drainage Design Manual" in its most recent version, as referred to in the Uniform Regulations for the Control of Drainage adopted pursuant to LVMC Chapter 20.10.

"Elevation" means the elevation above mean sea level based on the City bench circuit provided by the City Department of Public Works.

"Flood" or "flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from the unusual and rapid accumulation of runoff of surface waters and sediment from any source.

"Flood Control Master Plan" means the Flood Control Master Plan adopted pursuant to LVMC Chapter 20.04, and as updated from time to time.

"Flood Insurance Rate Map" (hereinafter alternately referred to as "FIRM") means the official map dated September, 1980, and all subsequent amendments which may be adopted thereto, on which the Federal Insurance Administration has delineated both the areas of special flood hazards and the risk premium zones applicable to the City.

"Flood Insurance Study" means the official report of the Federal Insurance Administration dated March 1980 (entitled "The Flood Insurance Study for the City of Las Vegas"), and all subsequent amendments which may be adopted thereto, which includes flood profiles, the Flood Boundary-Floodway Map, and the water surface elevation of the base flood for the City of Las Vegas, Nevada.

"Floodway" means the channel of a watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

"Lowest floor" means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, unable solely for parking of vehicles, building access or storage, in an area other than a basement area, is not considered a building's lowest floor; provided, that such enclosure is not built so as to render the structure in violation of the applicable nonelevation design requirements of this Chapter.

"Manufactured home" means a structure, transportable in one or more sections, which is built on a permanent chassis and designed for use with or without a permanent foundation when connected to the required utilities. For floodplain management purposes the term "manufactured home" also includes park trailers, travel trailers, and other similar vehicles placed on a site for greater than one hundred eighty consecutive days. For insurance purposes the term "manufactured home" does not include park trailers, travel trailers, and other similar vehicles.

"Manufactured home park or subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

"New construction" means structures for which the "start of construction" commenced on or after the effective date of the ordinance codified in this Chapter.

"Sediment" means rock, sand, mud, vegetation, and other material produced by erosion and carried by floodwaters.

"Start of construction" (for other than new construction or substantial improvements under the Coastal Barrier Resources Act (Pub. L. 97-348)), includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, placement, or other improvement was within one hundred eighty days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.

"Structure" means a walled and roofed building or manufactured home that is principally above ground.

"Substantial improvement" means any repair, reconstruction, or improvement of a structure, the cost of which equals or exceeds fifty percent of the market value of the structure either:

(1) Before the improvement or repair is started; or

(2) If the structure has been damaged and is being restored, before the damage occurred. For the purposes of this definition, "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor, or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure.

The term does not, however, include either:

(1) Any project for improvement of a structure to comply with existing State or local health, sanitary, or safety code specifications which are solely necessary to assure safe living conditions; or

(2) Any alteration of a structure listed on the National Register of Historic Places or a State Inventory of Historic Places.

"Variance" means a grant of relief from the requirements of this Chapter which permits construction in a manner that would otherwise be prohibited by this Chapter.
(Ord. No. 6524, § 8, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 3008 § 2, 1982: Ord. 2115 § 1 (part), 1980: prior code § 11-5-5)

20.08.060 Applicability.

This Chapter shall apply to all areas within the City.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.1)

20.08.070 Basis for establishing the areas of special flood hazard.

(A) The areas of special flood hazard are those areas identified by the Federal Insurance Administration in the Flood Insurance Study and the Flood Insurance Rate Map, both of which are hereby adopted by reference and declared to be a part of this Chapter. The Flood Insurance Study and the Flood Insurance Rate Map are on file at the office of the Director of Public Works.

(B) The other areas covered by this Chapter are those subject to flood or sediment hazard and those which produce flood or sediment runoff as identified by the Director of Public Works and/or by the Flood Control Master Plan.
(Ord. No. 6524, § 9, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 3008 § 3, 1982: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.2)

20.08.080 Compliance required.

After the effective date of the ordinance codified in this Chapter, no structure shall be constructed, located, extended, converted, or altered in the City without full compliance with the requirements of this Chapter and other applicable provisions of this Code.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.3)

20.08.090 Abrogation and greater restrictions.

This Chapter is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this Chapter and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.4)

20.08.100 Interpretation.

In the interpretation and application of this Chapter, all provisions shall be:

(A) Considered as minimum requirements;

(B) Liberally construed in favor of the purposes of this Chapter;

(C) Deemed neither to limit nor repeal any other powers granted under this Code or State law.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.5)

20.08.110 Limitation.

The degree of flood protection required by this Chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by manmade or natural causes. This Chapter does not imply that any land within the City will be free from flooding or flood damages.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-6.6)

20.08.120 Reserved.

Editor's note—Ord. No. 6524, § 20, adopted May 4, 2016, repealed § 20.08.120, which pertained to effective date of master plan of drainage and drainage manual and derived from prior code § 11-5-6.7; Ord. No. 2115, 1980 and Ord. No. 3282, 1987.

20.08.130 Development permit required.

(A) Subject to the provisions of Subsection (B) of this Section, it shall be unlawful for any person to begin any construction or development on any land within the City without first obtaining a development permit from the Director of Public Works. Application for a development permit shall be made on forms furnished by the Director of Public Works and may include, but not be limited to, plans in duplicate drawn to scale showing the nature, location, dimensions, and elevations of the area in question; existing or proposed structures, fill, storage of materials, drainage facilities; debris control structures; and the location of the foregoing. Specifically, the following information is required:

(1) Elevation of the lowest floor of all structures;

(2) Elevation to which any structure has been floodproofed;

(3) Certification by a registered professional engineer that the floodproofing methods for any nonresidential structure meet the floodproofing criteria in Section 20.08.420;

(4) Description of the extent to which any watercourse will be altered or relocated as a result of proposed development; and

(5) Documentation to show compliance with the Flood Control Master Plan and Drainage Design Manual.

(B) If and to the extent the Director of Public Works does not use a process to require a separate development permit, the requirements of Subsection (A) may be satisfied by an alternate process by which the Director has the opportunity to review and approve a development permit application under another code, such as a permit application under a building code, provided that the information required by Subsection (A) has been submitted or made available.
(Ord. No. 6524, § 10, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7-1)

20.08.140 Director of Public Works—Administrator.

The Director of Public Works is responsible for the implementation, administration and enforcement of this Chapter. Whenever the provisions of this Chapter refer to the Director of Public Works, that reference includes the Director's designee. The Director, with the approval of the City Manager, may authorize employees of other departments to enforce any or all provisions of this Title.
(Ord. 6024 § 4, 2009: Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.2)

20.08.150 Director of Public Works—Duties generally.

Duties of the Director of Public Works shall include, but are not limited to, those set forth in Sections 20.08.160 through 20.08.270.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3 (part))

20.08.160 Director of Public Works—General Plan review.

The Director of Public Works shall periodically review the City's General Plan and develop and present to the Planning Commission and to the City Council for adoption proposed revisions of the City General Plan embodying the policies of flood damage prevention contained in this Chapter and any amendments thereto.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(A))

20.08.170 Reserved.

Editor's note—Ord. No. 6524, § 20, adopted May 4, 2016, repealed § 20.08.170, which pertained to director of public works—master plan of drainage preparation and derived from prior code § 11-5-7.3(B); Ord. No. 2115, 1980 and Ord. No. 3282, 1987.

20.08.180 Reserved.

Editor's note—Ord. No. 6524, § 20, adopted May 4, 2016, repealed § 20.08.180, which pertained to director of public works—drainage manual preparation and derived from prior code § 11-5-7.3(C); Ord. No. 2115, 1980 and Ord. No. 3282, 1987.

20.08.190 Director of Public Works—Zone change request review.

The Director of Public Works shall review all zone change requests from the standpoint of drainage and file a written report with the Planning Commission on the flood hazard to the parcel, the potential for increasing the flood hazard by development of the parcel, the presence of any master plan drainage facilities affecting the parcel, and the potential need for detention and/or other drainage improvements. The purpose of this report is to bring to light, for the benefit of the developer and the Planning Commission, at the earliest possible stage of planning, the nature and extent of flood problems and the mitigation that will be required.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(D))

20.08.200 Director of Public Works—Development drainage procedures.

The Director of Public Works shall implement and maintain drainage procedures for subdivision, minor land division, planned unit development and building permits with the objectives of:

(A) Requiring the identification and resolution of drainage problems at an early stage of planning, while other factors are still sufficiently flexible to accommodate adjustment;

(B) Insuring the adequacy and currency of the procedures in implementing the City drainage master plan and the provisions of this Chapter.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(E))

20.08.210 Director of Public Works—Drainage deficiency report.

The Director of Public Works shall periodically, as deemed necessary, develop a report on drainage deficiencies, containing an updated inventory of drainage deficiencies, with their relative priority and estimated cost, and a report on progress made on correcting deficiencies since the last report.
(Ord. No. 6524, § 11, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(F))

20.08.220 Director of Public Works—Flood insurance information program.

The Director of Public Works shall initiate and maintain a public information program to achieve voluntary flood insurance coverage for all structures in the City subject to flood and/or sediment damage.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(G))

20.08.230 Director of Public Works—Permit review.

The Director of Public Works shall:

(A) Review all applications for development permits to determine that the requirements of this Chapter have been satisfied, and that the structure would be reasonably safe from flooding;

(B) Review all applications for development permits to determine if the proposed development adversely affects the flood and sediment carrying capacity of the area of special flood hazard. For purposes of this Chapter, "adversely affects" means that the cumulative effect of the proposed development when combined with all other existing and anticipated development will not increase the water surface elevation of the base flood more than one foot;

(C) Have the City Engineer review each building permit, subdivision, and planned unit development proposal for overflow, erosion, and deposition of sediment, and certify prior to approval that all flood hazards have been mitigated in accordance with the master drainage plan, and drainage manual and the requirements of this Chapter. As a minimum, this review shall consider the following:

(1) The drainage area tributary to the proposed development,

(2) The ten-year and one-hundred-year flood discharges with an allowance for sediment and future development,

(3) The flow pattern prior to the proposed development,

(4) The depth and velocity of flow across or adjacent to the parcel,

(5) The proposed measures for protecting the development from flood and sediment, and

(6) The effect of the development on the existing flow pattern and the resulting effect on adjacent and downstream properties.

(D) Have the authority to withhold approval of a development permit application until it is demonstrated that the development is adequately protected from flood and sediment and that the development does not increase the hazard to adjacent properties by increasing flood levels, deflecting flows or causing erosion or sedimentation problems;

(E) Review technical studies that are submitted in connection with development review under this Title; and

(F) Have the authority to charge review fees in accordance with a fee schedule that shall be maintained in the office of the City Clerk. The fee schedule, which is incorporated herein by this reference, may be amended from time to time by resolution of the City

Council. Review fees under this Subsection (F) are nonrefundable, are payable at the time a technical study is submitted, and must be paid prior to the issuance of any permits.

(Ord. No. 6524, § 12, 5-4-16; Ord. 3870 § 1, 1995: Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(H))

20.08.240 Director of Public Works—Other base flood data study.

The Director of Public Works shall obtain, review, and reasonably utilize any base flood elevation and floodway data available from a federal, state or other source, as criteria for requiring that new construction, substantial improvements, or other development in Zone A meet the standards of LVMC 20.08.410 and 20.08.420.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(I))

20.08.250 Director of Public Works—Information obtained and maintained.

The Director of Public Works shall:

(A) Obtain and maintain the actual elevation (in relation to mean sea level) of the lowest floor of all structures, newly constructed or substantially improved, except in Zone A unless base flood elevation data from other sources are utilized, subsequent to the effective date of this Chapter;

(B) For all new or substantially improved floodproofed structures:

(1) Record the actual elevation of as built structures (in relation to mean sea level),

(2) Maintain the floodproofing certifications required in Subsection (C) of LVMC 20.08.130;

(C) Certification of actual elevation will be the responsibility of the developer, and must be furnished by a registered surveyor in the State;

(D) Maintain for public inspection all records pertaining to the provisions of this Chapter.

(Ord. 3282 § 1 (part), 1987: Ord. 3008 § 4, 1982: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(J))

20.08.260 Director of Public Works—Watercourse alteration notice.

The Director of Public Works shall:

(A) Notify adjacent communities and the Nevada Department of Conservation and Natural Resources prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Insurance Administration;

(B) Require that maintenance is provided within the altered or relocated portion of the watercourse so that the flood carrying capacity is not diminished;

(C) Regulate the alteration of any watercourse which will increase flood heights, deflect flows, or cause erosion or sedimentation hazards.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(K))

20.08.270 Director of Public Works—Interpretation of FIRM boundaries.

The Director of Public Works shall make interpretations, where needed, as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions). The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in Section 20.08.280.

(Ord. No. 6524, § 13, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.3(L))

20.08.280 Appeals.

(A) The City Council shall hear and decide appeals when it is alleged there is an error in any decision, determination or interpretation of the Director of Public Works regarding the requirements of this Chapter.

(B) Such appeals shall be made in accordance with the provisions of NRS 278.310.

(C) Prior to the hearing on the appeal, the Director of Public Works shall file a report with the City Council supporting his decision. Such report shall as near as practicable contain the information required in Subsection C of LVMC 20.08.290.

(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.4(A))

20.08.290 Variance—Procedures.

(A) Except as otherwise specifically modified or provided in this Chapter, requests for variances from the requirements of this Chapter shall be heard and decided in the manner and in accordance with the variance procedures set forth in Title 19, but subject to the automatic review provisions of Section 19.16.140(J)(3).

(B) Prior to a hearing on the variance application, the Director of Public Works shall file a report concerning the application, which shall contain the following information at a minimum:

(1) Location of the parcel;

(2) The tributary drainage area;

(3) The ten-year and one-hundred-year flood discharge, with an allowance for sediment and future development;

(4) The depth and velocity of flow across or adjacent to the parcel;

(5) The requirement from which a variance is requested;

(6) Engineering considerations underlying the requirement;

(7) Possible alternatives to the requirements;

(8) Mitigating circumstances, if any;

(9) The recommended action.

(C) Action on a variance application shall be based upon the report provided for in Subsection (B) of this Section, all technical evaluations, all relevant factors, and all standards specified in other sections of this Chapter.

(D) Generally, variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing items in Subsection (C) of this Section have been fully considered. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

(E) The granting of a variance may be conditioned upon such measures as are deemed necessary to further the purposes of this Chapter.
(Ord. No. 6524, § 14, 5-4-16; Ord. 5204 § 9, 2000: Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.4(B))

20.08.300 Records of appeals and variances.

(A) The Director of Public Works shall compile and maintain a complete record of all appeals and variances filed under this Chapter, shall report any variances to the Federal Insurance Administration upon request, and shall include statements documenting the findings required for variances under Subsection (D) of Section 20.08.310.
(Ord. 5204 § 10, 2000: Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.4(C))

20.08.310 Variance—Conditions for issuance.

(A) Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the State Inventory of Historic Places, without regard to the procedures set forth in the remainder of this Section.

(B) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(C) Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

(D) Variances shall only be issued upon:

(1) A showing of good and sufficient cause;

(2) A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

(3) A determination that the granting of a variance will not result in a significant increase in flood heights, threats to public safety, extraordinary public expense, create nuisances or conflict with existing local laws or ordinances.

(E) Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with a lowest floor elevation below the base flood elevation and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation, as required by the Federal Insurance Administration.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-7.4(D))

20.08.320 Reserved.

Editor's note—Ord. No. 6524, § 20, adopted May 4, 2016, repealed § 20.08.320, which pertained to appeal or variance—technical committee and derived from prior code § 11-5-7.4(E); Ord. No. 2115, 1980; Ord. No. 3282, 1987 and Ord. No. 5204, 2000.

20.08.330 Standards generally.

The standards set forth in LVMC 20.08.340 through 20.08.390 are required.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1 (part))

20.08.340 Anchoring.

(A) All new construction and substantial improvements shall be anchored to prevent flotation, collapse or lateral movement of the structure.

(B) All manufactured homes and additions to manufactured homes which are located in that area designated under this Chapter as a flood hazard area shall be anchored to resist flotation, collapse, or lateral movement by one of the following:

(1) By providing an anchoring system designed to withstand horizontal forces of fifteen pounds per square foot and uplift forces of nine pounds per square foot; or

(2) By providing an anchoring system in compliance with the Mobile Home Construction and Safety Standards of the United States Department of Housing and Urban Development.

(C) The manufactured home owner shall present to the City of Las Vegas a written certification from the installer of the anchoring system or from the state agency regulating the placement, installation and anchoring of individual mobile home units that the anchoring system complies with the requirements contained in subsection (B)(1) or (2) of this Section.
(Ord. 3282 § 1 (part), 1987: Ord. 3082 § 1, 1983: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1(A))

20.08.350 Construction materials and methods.

(A) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage.

(B) All new construction and substantial improvements shall be constructed using methods and practices that minimize flood damage.

(C) For all new construction and substantial improvements, fully enclosed areas below the lowest floor that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or must meet or exceed the following minimum criteria: A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided. The bottom of all openings shall be no higher than one foot above grade. Openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters. (Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1(B))

20.08.360 Utilities.

(A) All new and replacement water supply and sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the system and discharge from systems into floodwaters.

(B) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(C) Electrical, heating, ventilation, plumbing and air conditioning equipment and other service facilities shall be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1(C))

20.08.370 Subdivision proposals.

(A) As used in this Section, the term "subdivision" shall include all subdivisions, minor land divisions and planned unit developments, as defined in NRS Chapters 278 and 278A.

(B) All subdivision proposals shall be consistent with the need to minimize flood damage.

(C) All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical, and water systems located and constructed to minimize flood damage.

(D) All subdivision proposals shall have adequate drainage provided to reduce exposure to flood damage in a manner which does not increase flood hazards to adjoining or downstream properties.

(E) Base flood elevation data shall be provided for all subdivision proposals and other proposed development.

(F) No subdivision lots shall be approved within regulatory floodways. If flood control facilities are proposed that result in an adjustment to a floodway and the facilities are approved by the Flood Insurance Administration, the City may approve the subdivision.

(G) All subdivision lots shall comply with the base flood elevation requirements set forth in the Drainage Design Manual.

(H) Subdivision drainage must be designed to preserve the drainage area boundaries in accordance with the master plan of drainage.

(I) Each subdivision must be protected against off-site flood waters and sediment in a manner which does not significantly increase flood levels, deflect flows, or cause erosion of sedimentation problems.

(J) All streets constructed as part of a development, public and private, are to have concrete curbing and gutter with a longitudinal slope of not less than 0.4 percent to ensure adequate drainage. In the case of slopes less than 0.4 percent, a storm drain must be installed.

(K) Surface drainage structures which provide for on-site development drainage are to meet City standards. The longitudinal slope of the flow line is to be no less than 0.5 percent, with cross slope to the flow line no less than two percent. The area of the drain is to be subdivided as a common lot parcel, recorded on the final map as a public drainage easement, and designated on the final map as an item requiring maintenance by a private community association.

(L) Private property maintenance requirements identified in Subsections (J) through (K) shall be clearly listed on final map recordings. In addition, a listing of those specific requirements shall be clearly identified and recorded as a covenant against all development properties.
(Ord. No. 6524, § 15, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1(D))

20.08.380 Storage of material and equipment.

(A) The storage or processing of materials that are in time of flooding buoyant, flammable, explosive, or could be injurious to human. animal or plant life is prohibited.

(B) Storage of other material or equipment may be allowed if not subject to major damage by floods and firmly anchored to prevent flotation or if readily removable from the area within the time available after flood warning.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.1(E))

20.08.390 Natural watercourse.

Alteration or obstruction of significant natural watercourses without the written permission of the Director of Public Works is prohibited.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-9.1(F))

20.08.400 Standards for areas covered by base flood elevation data.

In all areas of flood hazards where base flood elevation data has been provided by the Flood Insurance Study (Subsection (A) of Section 20.08.070) or from other sources as provided by Section 20.08.240 the provisions set forth in Sections 20.08.410 through 20.08.440 are required.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.2 (part))

20.08.410 Residential construction elevation.

New construction and substantial improvement of any residential structure shall have the lowest floor elevated above base flood elevation in accordance with the Drainage Design Manual.
(Ord. No. 6524, § 16, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.2(A))

20.08.420 Nonresidential construction elevation.

New construction and substantial improvement of any commercial, industrial or other nonresidential structure shall comply with Subsection (A) or Subsection (B) below, or both:

(A) The construction or improvement must have the lowest floor elevated above base flood elevation in accordance with the Drainage Design Manual; or

(B) The construction or improvement must:

(1) Be floodproofed so that below the base flood level plus an allowance for sediment and for future development the structure is watertight with walls substantially impermeable to the passage of water, and protected from erosion; and

(2) Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and

(3) Be certified by a registered professional engineer or architect that the design and methods of construction meet the standards of this Section. The registered professional engineer or architect shall develop and/or review the structural design, specifications and plans for the construction. Such certifications which include the specific elevation (in relation to mean sea level) to which such structures are floodproofed shall be provided to the Director of Public Works as set forth in Subsection (C) of Section 20.08.250.

(Ord. No. 6524, § 17, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.2(B))

20.08.430 Manufactured homes.

(A) All manufactured homes to be placed or substantially improved within Zones A1-30, AH, and AE shall be elevated on a permanent foundation such that the lowest floor of the manufactured home is at or above the base flood elevation in accordance with the Drainage Design Manual and be securely anchored to an adequately anchored foundation system in accordance with the provisions of Subsection (B) of Section 20.08.340.

(B) No manufactured home shall be placed in a floodway. If flood control facilities are proposed that result in an adjustment to the floodway and the adjustment is approved by the Flood Insurance Administration, the City may approve the placement of the manufactured home.
(Ord. No. 6524, § 18, 5-4-16; Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.2(C))

20.08.440 Development over two acres.

Any development larger than two acres which is not a subdivision shall be required to meet the requirements for subdivisions if the Director of Public Works determines that the flood hazard and the implementation of the drainage master plan so require.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.2(D))

20.08.445 Development/redevelopment of sites for non-residential purposes.

(A) With respect to any development or significant redevelopment of a site for non-residential purposes that is one acre in size or larger, low impact development measures must be undertaken as required by the Drainage Design Manual and the Stormwater Management Plan in effect for the Las Vegas Valley.

(B) With respect to any development or significant redevelopment of a site for non-residential purposes that is smaller than one acre in size, low impact development measures are encouraged in order to mitigate the impacts of urban development on surface water resources in the Las Vegas Valley.
(Ord. No. 6524, § 19, 5-4-16)

20.08.450 Floodways.

Located within areas of special flood hazard established in Section 20.08.070 are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwaters which carry sediment, potential projectiles, and erosion potential, the following provisions apply:

(A) Prohibit encroachments, including fill, new construction, substantial improvements, and other development unless certification by a registered professional engineer is provided demonstrating that encroachments shall not result in any increase in flood levels during the occurrence of the base flood discharge, any deflection of flow, or any erosion or sediment hazard;

(B) If Subsection (A) of this Section is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of LVMC 20.08.330 through 20.08.440.
(Ord. 3282 § 1 (part), 1987: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.3)

20.08.460 Shallow flooding.

Located within the areas of special flood hazard established in LVMC 20.08.070 are areas designated as shallow flooding. These areas have special flood hazards associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and indeterminate; therefore, the following provisions apply:

(A) All new construction and substantial improvements of residential structures shall have the lowest floor elevated above the crown of the nearest street to or above the depth number specified on the FIRM with an allowance for sediment and future development;

(B) All new construction and substantial improvements of nonresidential structures shall be protected against erosion and sediment; and shall:

(1) Have the lowest floor elevated above the crown of the nearest street to or above the depth number specified on the FIRM with an allowance for sediment and future development, or

(2) Together with attendant utility and sanitary facilities be completely flood-proofed to or above that level so that any space below that level is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(Ord. 3282 § 1 (part), 1987: Ord. 3008 § 5, 1982: Ord. 2115 § 1 (part), 1980: prior code § 11-5-8.4)

CHAPTER 20.10 UNIFORM REGULATIONS FOR THE CONTROL OF DRAINAGE

20.10.010 Adopted.

Subject to the remaining provisions of this Chapter, the document entitled "Uniform Regulations for the Control of Drainage," as adopted by the Clark County Regional Flood Control District and revised as of February 14, 2013, and as subsequently amended from time to time, is adopted by this reference and made a part of this Code as if set forth herein. A copy of that document (the "Uniform Regulations") shall be maintained in the office of the City Clerk. In the event of conflict or inconsistency between a provision of the Uniform Regulations and any other provision of this Code, the more stringent provision shall govern. (Ord. No. 6303, § 1, 3-5-14; Ord. 5980 § 1, 2008: Ord. 5553 § 1, 2003: Ord. 3685 § 1, 1992: Ord. 3562 § 1, 1991: Ord. 3357 § 1, 1988: Ord. 3322 § 1, 1987: Ord. 3294 § 1, 1987)

20.10.020 Effect of Sections 20.10.030 through 20.10.050.

Section 12.050 of the Uniform Regulations, Section 303.10 of the Hydrologic Criteria and Drainage Design Manual adopted therein, and the related City-specific amendment to Section 303.10 found in Section 1602 of that Manual specify certain criteria relating to the

size, construction, maintenance and operation of certain drainage facilities, including drainage conveyance corridors. Notwithstanding any of those provisions, the provisions of Sections 20.10.030 to 20.10.050, inclusive, shall apply to the extent of any conflict or inconsistency.
(Ord. No. 6303, § 2, 3-5-14)

20.10.030 Private maintenance.

For all facilities not identified as Regional Flood Control facilities in the most recently adopted Regional Flood Control District Master Plan Update, public drainage easements must be privately maintained. Subdivision layouts shall minimize the need for drainage easements through the conveyance of storm water flows within proposed roadway rights-of-way or private streets, meeting applicable criteria within the Hydrologic Criteria and Drainage Design Manual. Public drainage easements not located within proposed roadway rights-of-way or private streets shall be concrete lined and located on common lots owned by an owners' association or equivalent maintenance organization.
(Ord. No. 6303, § 2, 3-5-14)

20.10.040 Public maintenance.

Except as otherwise provided in Section 20.10.050, drainage easements along alignments identified as Regional Flood Control facilities in the most recently adopted Regional Flood Control District Master Plan Update shall be concrete lined and shall be publicly maintained.
(Ord. No. 6303, § 2, 3-5-14)

20.10.050 Flood channels—Alternate processes.

In the case of flood channels located within master planned communities of six hundred forty acres or larger and located within a natural arroyo or approved greenbelt, the public maintenance requirement in Section 20.10.040 and other standards that otherwise would apply may be adjusted by means of the alternate process and standards set forth in this Section (the "alternate process"). A developer who elects the alternate process may develop and provide for the private maintenance of one or more flood channels pursuant to this Section upon written application to the City. Approval of the alternate process is at the discretion of the City and is subject to the following requirements:

(A) Provisions must be included within a Master Drainage Study to address how the criteria within the Hydrologic Criteria and Drainage Design Manual are proposed to be met.

(B) An operation and maintenance plan must be provided for. That plan must cover the entire development and include or provide for:

(1) A demonstration of how an owners' association or maintenance organization will ensure that the necessary maintenance is completed after each event;

(2) The establishment and maintenance of a perpetual minimum financial reserve;

(3) The posting of a maintenance bond in favor of the City to cover one hundred percent of the construction cost of the drainage facility, with a minimum of one hundred thousand dollars bond, maintained by the developer in perpetuity until an acceptable replacement bond is provided by the association or maintenance organization;

(4) The transfer of obligations from the developer to the association or maintenance organization in perpetuity;

(5) Provisions within (or in association with) applicable covenants, conditions and restrictions governing the site to address maintenance needs of the flood channel, including a clause for the maintenance bond to be maintained in perpetuity, with such provisions to be provided to the City for review and approval prior to the approval of a final subdivision map; and

(6) The recordation of the provisions referred to in Paragraph (5) concurrent with recordation of the final subdivision map.

(C) A geotechnical report performed by a registered professional engineer must certify that proposed natural washes meet erosion requirements for existing and future channel velocities. Recommendations for necessary improvements shall be included.

(D) The flood channel must be established as a multi-use facility with a trail system incorporated into the development's usable open space.

(E) A six-foot wide concrete low flow channel must be provided, with appropriate erosion protection or appropriate underground storm drain systems, in any otherwise non-concrete channel.

(F) Provision must be made for appropriate access into and out of the flood channel for purposes of channel maintenance.

(G) Riprap must be installed in the flood channel in a minimum size of eight inches (D50), with larger sizes to be provided as required by the Hydrologic Criteria and Drainage Design Manual.

(H) Public drainage easements must be located on parcels recorded as common lots.

(I) Offsite inspection and testing by or on behalf of the City must be allowed, to the City's satisfaction and to the extent deemed necessary, to verify over-excavation, compaction, and concrete testing.

(Ord. No. 6303, § 2, 3-5-14)

STATUTORY REFERENCES FOR NEVADA CITIES

The statutory references listed below refer the code user to state statutes applicable to Nevada cities. They are up to date through the 31st and 32nd special sessions (2020).

General Provisions

Organization and classification

NRS 266.016 et seq.

City charters

Const. Art. 8 § 8 and NRS 268.010

Home rule

NRS 266.010

General powers

NRS 266.260 et seq., 267.120, 268.008

Elections

NRS chs. 293—306

Municipal initiative and referendum

NRS 295.195 et seq.

Ordinances

NRS 266.105 et seq.

Code of ordinances

NRS 268.014

Powers of city council

NRS 266.260 et seq.

Powers of city with commission form of government

NRS 267.110 et seq.

Penalties

NRS 268.018 et seq.

State misdemeanors deemed city misdemeanors

NRS 266.321

Wards

NRS 266.095

Eminent domain

NRS ch. 37

Administration and Personnel

Commission form of government

NRS ch. 267

Mayor

NRS 266.165 et seq.

City council

NRS 266.215 et seq.

Meetings of state and local agencies

NRS ch. 241

Officers

NRS 266.390 et seq. and 268.310 et seq.

City attorney

NRS 266.465 et seq.

City clerk

NRS 266.480

City auditor

NRS 266.490

City treasurer

NRS 266.500 et seq.

Chief of police

NRS 266.530

Municipal court

NRS ch. 5 and 266.550 et seq.

Planning commissions

NRS 268.110 et seq., 278.030 et seq.

Public records

NRS ch. 239

Fire department

NRS 266.310

Housing authorities

NRS § 315.140 et seq.

Joint municipal organizations

NRS ch. 270A

Cooperative agreements between political subdivisions

NRS ch. 277

Interlocal Cooperation Act

NRS 277.080 et seq.

Meetings of state and local agencies

NRS ch. 241

General provisions as to officers and employees

NRS ch. 281

Public employees retirement

NRS ch. 286

Programs for public employees

NRS ch. 287

Government Employee-Management Relations Act

NRS ch. 288

Legal notices

NRS ch. 238

Revenue and Finance

Generally

NRS 266.600 et seq., 268.020 et seq.

Financing public works and improvements

NRS 266.660, 268.450

Commission city land improvement fund

NRS 267.125

Capital improvement funds

NRS 266.660

City property

NRS 268.048 et seq.

City Economic Development Revenue Bond Law

NRS 268.512 et seq.

City Bond Law

NRS 268.672 et seq.

Nevada Community Development Program Law

NRS 268.745 et seq.

Consolidated Local Improvements Law

NRS ch. 271

Local Government Purchasing Act

NRS ch. 332

Public works and planning

NRS title 28

Tax on transient lodging

NRS 268.096 et seq.

Business Licenses, Taxes and Regulations

Power of city council to license, tax and regulate trades and businesses

NRS 266.355, 268.095 et seq.

Power to license and regulate sale of liquor

NRS 268.090

Charitable solicitations

NRS 268.423

Farmers' markets

NRS 268.091 et seq.

Pawnbrokers

NRS 268.0973 and ch. 646

Taxicabs

NRS 268.097

Tent shows, circuses, theme parks and permanent exhibitions

NRS 268.0975

State gaming laws

NRS title 41

Professions, occupations and businesses: state regulation

NRS title 54

Franchises for public purposes

NRS 266.300

Animals

City council powers

NRS 266.325

Rabies control

NRS 268.427

Cruelty to animals

NRS ch. 574

Health and Safety

Generally

NRS 266.330, title 40

Fire protection

NRS 266.310, title 42

Nuisances

NRS 266.335

Smoke and air pollution

NRS 268.410

Noise regulations

NRS 268.412

Graffiti

NRS 268.4075 et seq.

Health districts

NRS 268.420

Wasting water

NRS 268.411

Meat, fish, produce, poultry and eggs

NRS ch. 583

Dairy products

NRS ch. 584

Public Peace, Morals and Welfare

City council powers

NRS 266.321

Adoption of state misdemeanors

NRS 268.018

Outdoor assemblies

NRS 268.429 et seq.

State penal code

NRS title 15

Loitering and prowling ordinances

NRS 268.409

Firearms

NRS 268.418

Vehicles and Traffic

Power of city council to regulate traffic and parking

NRS 266.277, 266.280, 484A.400 et seq.

State traffic code

NRS ch. 484A

Motorcycles

NRS ch. 486

Speed limits in school zones and school crossing zones

NRS 268.425

Parking meters

NRS 266.280

Railroads and railways

NRS 266.295

Streets, Sidewalks and Public Places

Local improvements

NRS ch. 271

Condemnation of property for public uses

NRS 266.270

Power of city council over street, sidewalks, parks and public grounds

NRS 266.275

Pedestrian malls

NRS 268.810 et seq.

City council powers over public works

NRS 266.261 et seq.

Public works in commission form cities

NRS 267.123

Public works and planning generally

NRS title 28

Outdoor assemblies

NRS 268.429 et seq.

Public Services

Utilities

NRS 266.285, 266.290

Sale or lease of city-owned electric light and power systems

NRS 266.386 et seq.

Franchises

NRS 266.300, 268.081 et seq.

Cemeteries

NRS 266.316

Contracts by commission form cities with federal government relating to water drainage, sanitary sewer and water supply facilities

NRS 267.450 et seq.

City libraries

NRS 379.070 et seq.

Municipal Airports Act

NRS ch. 496

Water systems

NRS 268.4102

Buildings and Construction

Adoption of specialized uniform codes

NRS 268.012

City building codes

NRS 268.413

Impact fees for new development

NRS ch. 278B

Subdivisions

Subdivisions

NRS 278.320 et seq.

Zoning

Zoning boards of adjustment

NRS 278.270 et seq.

Zoning

NRS ch. 278

Subordinate land use powers

NRS 268.098 et seq.

CROSS-REFERENCE TABLE

As of the 2009 Republication, this table will no longer be updated.

This table provides users with the current disposition of the sections of the prior code.

Thus, prior code Section 1-2-1 currently appears in this code as Section 1.01.020.

The prior code section information was derived from the City Code of Las Vegas, Nevada, published in 1960 by Sterling Codifiers.

Prior Code	Herein
1-1-1	Not codified
1-1-2	1.04.010
1-1-3	1.04.020
1-1-4	1.04.030
1-1-5	1.04.040
1-1-6	1.04.050
1-1-7	Ch. 1.24
1-2-1	1.01.020
1-2-2	1.01.030
1-2-3	1.01.040, 1.01.050
1-3-1—1-3-6	Repealed by 2172
1-4-1	2.04.010
1-5-1	2.02.030
1-5-2	2.02.040
1-5-3	2.02.080, 2.02.090
1-5-4	2.50.010—2.50.090
1-5-5	2.50.100—2.50.150
1-5-6	2.02.050
1-5-7	2.02.060
1-5-8	2.02.010, 2.02.020
1-5-9	2.02.070, 2.04.020
1-6-1	Ch. 3.12
1-6-2	Ch. 3.16
1-7-1	Repealed by 3062
1-8-1	2.06.010
1-9-1	2.08.010
1-9-2	2.08.020
1-9-3	2.08.030
1-9-4	2.08.040

Prior Code	Herein
1-10-1	2.10.010
1-10-2	2.10.020
1-10-3	Repealed by 1689
1-10-4	2.10.040
1-10-5	2.10.030
1-11-1	2.12.010
1-11-2	2.12.020
1-11-3	2.12.030
1-12-1	4.12.150
1-13-1	Repealed by 3182
1-13-2	Repealed by 3182
1-13-3	Repealed by 3182
1-14-1	1.20.010
1-14-2	1.20.020
1-14-3	1.20.050
1-14-4	1.20.060
1-14-5	1.20.070, 1.20.080, 1.20.090
1-14-6	1.20.030
1-14-7	Repealed by 3100
1-15-1	1.12.010
1-16-1	1.08.020, 1.08.030
1-16-2	1.08.010
1-16-3	1.08.040
1-16-4	1.08.050, 1.08.060
1-17-1	Ch. 4.08
1-17-2	4.12.010
1-17-3	4.12.020
1-17-4	4.12.030
1-17-5	4.12.040
1-17-6	4.12.050
1-17-7	4.12.060
1-17-8	4.12.070
1-17-9	Repealed by 3653
1-17-10	4.12.090
1-17-11	4.12.100
1-17-12	Repealed by 3653
1-17-13	Repealed by 3653
1-17-14	4.12.140
1-17-15	4.12.160
1-17-16	Ch. 4.04

ORDINANCE LIST AND DISPOSITION TABLE

Beginning with the 2009 Republication, this table will be replaced with the Code Comparative Table and Disposition List.

Ordinance Number	
1	Business license fees (Repealed by 48, 243, 244)
2	Bowling alley, billiard and pool table licenses (Repealed by 48, 243, 244)
3	Intoxicating liquor licenses (Repealed by 33, 48)
4	Telephone telegraph and electric company licenses (Repealed by 48, 243, 244)
5	Stock running at large (Repealed by 101, 331)
7	Nuisances (Repealed by 76)
8	Intoxication (Not codified)
9	Curfew (Repealed by 359)
10	Vagrants (Repealed by 1653)
11	Concealed weapons (Not codified)
12	Disorderly conduct (Repealed by 331)
13	Petit larceny (Repealed by 48, 243, 244)
14	(Repealed by 48, 243, 244)
16	Licensing circuses and other shows (Repealed by 48, 243, 244)
17	Adds to § 2 of Ord. 1, business licenses (Repealed by 48, 243, 244)
18	Sewer bonds (Special)
19	Dog licenses (Repealed by 51, 331)
21	Curfew (Repealed by 359)
22	Gas franchise (Special)
23	Street fund (Not codified)
24	Notice of water shutoff (14.08)
25	Street trees (13.48)
27	Building construction (Repealed by 144)
28	Advertising in moving picture shows (10.40)
29	Minors in saloons (10.56)
30	Fire Department salaries (2.20)
32	City finance (2.06, 2.10)
33	Intoxicating liquors; repeals Ord. 3 (Not codified)
34	Electricity franchise (Special)
35	(Repealed by 48, 243, 244)

Ordinance Number	
36	Sewer connections (16.28)
37	(Repealed by 173)
39	Discharging firearms (10.72)
40	Obstructing streets and sidewalks (13.32)
41	Amends § 19 of Ord. 36, sewer connections (16.28)
44	(Repealed by 262)
45	Amends § 13 of Ord. 33, intoxicating liquors (Not codified)
46	Speed limit (Not codified)
47	Official grades (13.08)
48	Business licenses (Repealed by 244)
49	Dancehalls (Not codified)
50	Amends § 9 of Ord. 33, intoxicating liquors (Not codified)
51	Dogs running at large; repeals Ord. 19 (Repealed by 331)
56	Board of cemetery trustees (Repealed by 320)
57	Adds to § 7 and adds § 13-1/2 to Ord. 33, intoxicating liquors (Not codified)
58	Dog license tax (Repealed by 331)
59	Amends § 8 of Ord. 27, building regulations (Repealed by 144)
60	Amends § 1 of Ord. 57, intoxicating liquors (Not codified)
61	Amends § 6 of Ord. 27, building regulations (Repealed by 144)
62	Amends § 7 Of Ord. 48; repeals § 6 of Ord. 48, business licenses (Repealed by 243, 244)
63	Dogs running at large (Repealed by 331)
66	Vehicles and traffic (Repealed by 170)
68	(Repealed by 170)
69	Amends §§ 1 and 9 of Ord. 66, vehicles and traffic (Repealed by 170)
70	Amends §§ 1 and 2 of Ord. 10, vagrants (Repealed by 1653)
71	Amends § 4 of Ord. 22, gas franchise (Special)
72	Amends §§ 2, 3, 6 and 7 of Ord. 27, building regulations (Repealed by 144)
74	Adds § 6 and amends § 7 or Ord. 48, business licenses (Repealed by 243, 244)
75	Adds subsection 44 and amends subsection 27 of § 7 of Ord. 48, business licenses (Repealed by 243, 244)
76	Dumping garbage; repeals Ord. 7 (Repealed by 2209)
77	Gaming licenses (Repealed by 165, 325)
78	Board of health (Repealed by 5999)
80	Garbage (Repealed by 138)

Ordinance Number	
81	Amends §§ 6 and 7 of Ord. 48, business licenses (Repealed by 243, 244)
82	Amends § 6 of Ord. 77, gaming licenses (Repealed by 165, 325)
83	Adds § 1a and amends §§ 8 and 11(8) of Ord. 36, sewer connections (14.04)
84	Slaughterhouses (Repealed by 2209)
85	Water closets required (Not codified)
86	Amends § 6 of Ord. 66, vehicles and traffic (Repealed by 170)
87	Amends § 1 of Ord. 83, sewer connections (16.28)
88	Amends § 6 of Ord. 77, gambling licenses (Repealed by 165, 325)
89	Repeals subsection (43) of § 7 of Ord. 48, business licenses (Repealer)
90	Adds §§ 34a, 35a and 36a and amends §§ 6, 20 and 22 of Ord. 66, vehicles and traffic (Repealed by 170)
91	(Repealed by 234)
92	Establishes city dump (9.08)
92A	Narcotics (Repealed by 2228)
93	Intoxicating liquor (Not codified)
94	Amends §§ 20, 22 and 34a of Ord. 66, vehicles and traffic (Repealed by 170)
95	Amends subsection 34 of § 7 of Ord. 48, business licenses (Repealed by 243, 244)
96	Commissioners meeting attendance (2.02)
98	Aeronautical flying (Not codified)
99	Spitting in public (10.38)
100	Automobiles for hire (Repealed by 210)
101	Animals, repeals Ord. 5 (Repealed by 331)
102	Amends subsection 8 of § 7 of Ord. 48, business licenses (Repealed by 243, 244)
103	Adds §§ 6a and 6b and amends § 6 of Ord. 77, gaming licenses (Repealed by 165, 325)
104	Board of park trustees (Repealed by 2208)
105	Amends subsection (19) of § 7 of Ord. 48, business licenses (Repealed by 112, 243, 244)
107	Minors in gambling houses and houses of ill fame (10.56)
108	Repeals § 1 of Ord. 75 (Repealed by 243, 244)
109	Minor curfew (Not codified)
112	Circus and menagerie licenses; repeals Ord. 105 (Repealed by 243, 244)

Ordinance Number	
114	Beauty parlor licenses (Repealed by 1927)
115	Amends § 3 of Ord. 103, gaming licenses (Repealed by 165, 325)
117	(Repealed by 243, 244)
120	Amends § 33 of Ord. 66, vehicles and traffic (Repealed by 170)
121	Benchmark (Repealed by 2242)
124	(Repealed by 170)
125	Amends § 33 of Ord. 66, vehicles and traffic (Repealed by 170)
127	Adds §§ 21a and 21b and amends § 22 of Ord. 66, vehicles and traffic (Repealed by 170)
128	Electrician license (Repealed by 161)
129	Adds §§ 2a and 2b and amends §§ 2 and 19 of Ord. 36, sewer connections (16.28)
130	(Repealed by 526)
135	Barbershop hours (Repealed by 1927)
137	Electrical inspector (Repealed by 1991)
138	Garbage collection; repeals Ord.80 (Repealed by 216, 312, 313)
140	Deputy city attorney (Not codified)
141	Parking (Repealed by 170)
143	Parking (Repealed by 170)
144	Building code; repeals Ords. 27, 59, 61 and 72 (Repealed by 166)
145	Amends § 1 of Ord. 112, circus and menagerie (Repealed by 243, 244)
147	Amends § 2 of Ord. 36, sewer connections (16.28)
155	Civil engineering and surveying (Repealed by 2250)
156	Electrical contractors (Repealed by 161)
159	Plumbers certificates (Repealed by 1330)
160	Hawkers and peddlers (Repealed by 367)
161	Electrician licensing; repeals Ords. 128 and 156 (Repealed by 1672)
162	Interference with radio reception (10.22)
163	City engineer (Repealed by 3182)
164	Amends § 10 of Ord. 137, electrical inspector (Repealed by 1991)
165	Gaming license; repeals Ords. 77, 82, 88, 103 and 115 (Repealed by 325)
166	Building code; repeals Ord. 144 (Repealed by 526)
167	Dry cleaning plants (Not codified)
168	Zoning (Repealed by 5345)
169	Amends § 3 of Ord. 166, building code (Repealed by 1502)

Ordinance Number	
170	Vehicles and traffic; repeals Ords. 66, 68, 69, 86, 90, 94, 120, 124, 125, 127, 141 and 143 (11.12, 11.16, 11.20, 11.22, 11.24, 11.42, 11.52, 13.04, 13.32)
172	Curb construction (Repealed by 1142)
173	Street construction permit; repeals Ord. 37 (13.20)
174	Adds § 22a and amends §§ 1, 3, 4, 6 and 9 of Ord. 161, electricians (Repealed by 1672)
175	Adds § 12a to Ord. 159, plumbers (Repealed by 1330)
178	Crimes and misdemeanors (10.04, 10.08, 10.40)
179	Amends §§ 2, 8 and 10 of Ord. 111, intoxicating liquor (Not codified)
181	Obstructing traffic (Not codified)
182	Amends § 4 of Ord. 129, sewer connections (16.28)
183	Amends §§ 4 and 5 of Ord. 168, zoning (Repealed by 5345)
184	Adds §§ 10a and 10b and subsections (47) through (93) to § 7 of Ord. 48; amends subsections (6), (10), (14), (15), (22), (24), (26), (28), (29), (31) and (42) of § 7 of Ord. 48, business licenses (Repealed by 243, 244)
185	Amends §§ 2, 8 and 10 of Ord. 111, intoxicating liquor (Not codified)
186	Fireworks (9.28)
188	Amends § 3 of Ord. 166, fire districts (Repealed by 526)
189	Amends § 3 of Ord. 168, zoning (Repealed by 5345)
190	Amends § 83 of Ord. 170, traffic (13.32)
191	Amends § 1 of Ord. 92, garbage (Repealed by 875)
192	Amends § 10a of Ord. 48, business licenses (Repealed by 243, 244)
193	Noise (Not codified)
194	Prostitution (10.36)
196	Sewer connection (16.28)
197	Loitering (Not codified)
198	Liquor sales licenses (Not codified)
199	Amends § 94 of Ord. 170, traffic (Not codified)
200	Milk sales (Repealed by 242, 250)
201	Slaughterhouses (Repealed by 2209)
202	Amends § 3 of Ord. 201, slaughterhouses (Repealed by 2209)
203	Liquor establishments (Not codified)
204	Amends § 16 of Ord. 203, liquor establishments (Not codified)
205	Amends §§ 5 and 16 of Ord. 203, liquor establishments (Not codified)
206	Short wave radios in vehicles (10.24)

Ordinance Number	
207	Amends subsections (11) and (14) of § 1 and §§ 6, 8 and 16 of Ord. 203, liquor establishments (Not codified)
208	Amends § 5 of Ord. 76, nuisances (Repealed by 2206)
209	Amends §§ 6, 16(8), (9) and 18(3) of Ord. 203, liquor establishments (Not codified)
210	Vehicle for hire licenses; repeals Ord. 100 (Repealed by 2203)
211	Water conservation (14.08)
212	Drinking in public (Repealed by 2228)
213	Solicitors trespassing (Repealed by 367)
214	Amends §§ 2, 3 and 5 of Ord. 168, zoning (Repealed by 5345)
216	Garbage; repeals Ord. 138 (Repealed by 267)
217	Moving buildings (Not codified)
218	Water conservation (14.08)
219	Amends § 3 of Ord. 201, slaughterhouses (Repealed by 2209)
220	Food sales on Sunday (Not codified)
224	Circus or menagerie licenses (Repealed by 1199)
226	Recreation board (Repealed by 316)
228	Amends §§ 2, 7, 8, 9, 16, 17, 18, 21 and 23 of Ord. 203; repeals § 22 of Ord. 203, liquor establishments (Not codified)
229	Amends §§ 2 and 3 of Ord. 168, zoning (Repealed by 5345)
230	Electric light and power board (2.36)
231	Amends § 1 of Ord. 162, interfering with radio reception (10.22)
232	Amends § 4 of Ord. 137, electrical permits (Repealed by 1991)
233	Signs (Repealed by 3723)
234	Rubbish, weed removal; repeals Ord. 91 (Not codified)
235	Amends § 1 of Ord. 168, zoning (Repealed by 5345)
236	Amends § 3 of Ord. 166, fire districts (Repealed by 1909)
237	Amends §§ 1, 2, 3, 4, 13 and 15 and repeals § 5 of Ord. 161, electricians (Repealed by 1672)
238	Bicycles (Repealed by 327)
239	City funds (Not codified)
240	Claims against the city (4.12)
242	Milk; repeals Ord. 200 (Not codified)
243	Business licenses; repeals Ords. 1, 2, 4, 13, 14, 35, 62, 74, 75, 81, 95, 102, 105, 108, 112, 117, 145, 184 and 192 (Repealed by 244)
244	Business licenses; repeals Ords. 1, 2, 4, 13, 14, 35, 48, 62, 74, 75, 81, 95, 102, 105, 108, 112, 117, 145, 184, 192 and 243 (Repealed by 1901)
245	Amends §§ 8 and 12 of Ord. 165, gaming licenses (Repealed by 325)

Ordinance Number	
246	Adds § 18(a) and amends §§ 4 and 16 of Ord. 203, liquor establishments (Not codified)
247	Water conservation (14.08)
248	Amends §§ 2 and 16 of Ord. 203, liquor establishments (Not codified)
249	Amends § 8 of Ord. 244, business licenses (Repealed by 1901)
250	Milk, repeals Ord. 200 (Not codified)
251	Amends §§ 2 and 16 of Ord. 203, liquor establishments (Not codified)
252	Amends § 2 of Ord. 168, zoning (Repealed by 5345)
253	Amends § 3 of Ord. 210, vehicles for hire (Repealed by 2203)
254	Amends § 1 of Ord. 168, zoning (Repealed by 5345)
255	Amends § 1 of Ord. 203, liquor establishments (Not codified)
256	Airport acquisition agreement (Special)
257	Golf board (Repealed by 2192)
258	Electrical contractors (Repealed by 1672)
260	Trailer camps (Not codified)
261	Curb and sidewalk construction (Repealed by 2242)
262	Building numbering; repeals Ord. 44 (Repealed by 1922)
263	Prostitution (Repealed by 268)
264	Zoning (Repealed by 378)
265	Amends § 5 of Ord. 250, milk (Not codified)
266	Amends § 7 of Ord. 210, vehicles for hire (Repealed by 342)
267	Garbage collection; repeals Ord. 216 (Repealed by 312, 313)
268	Repeals Ord. 263 (Repealer)
269	Blackouts (Not codified)
Unnumbered, Undated	Used vehicle sales (Not codified)
270	Planning commission (Repealed by 372)
271	Amends § 9 of Ord. 165, gaming (Repealed by 325)
272	Amends § 1 of Ord. 265, milk (Not codified)
273	Defense housing standards (Not codified)
274	Amends §§ 14(5), 17, 36 and 26a(1), (2) and (3) of Ord. 170; repeals subsection (4) of § 14 of Ord. 170, traffic (11.16, 11.20, 11.42)
275	Parking on private property (Not codified)
276	Prostitution (Repealed by 1916)

Ordinance Number	
277	Adds subsections A and B to § 7 of Ord. 244, business licenses (Repealed by 1901)
278	Amends § 7 of Ord. 264, zoning (Repealed by 378)
279	Amends § 7 of Ord. 210, vehicles for hire (Repealed by 342)
282	Amends § 12 of Ord. 201, slaughterhouses (Repealed by 2209)
283	Amends §§ 14, 61 and 63 of Ord. 170, traffic (11.12)
284	Amends § 3 of Ord. 166, fire zones (Repealed by 526)
285	Amends § 1 of Ord. 166, building code (Not codified)
286	Amends §§ 2, 4, 6, 7 and 9 of Ord. 264, zoning (Repealed by 378)
287	Amends § 8 of Ord. 165, gaming (Repealed by 325)
288	Amends § 16 of Ord. 203, intoxicating liquors (Not codified)
289	Amends § 5 of Ord. 210, vehicles for hire (Repealed by 2203)
290	Amends § 11 of Ord. 250, milk (Not codified)
291	Sidewalk repair and construction (Repealed by 2242)
292	Plumbing code adopted (Repealed by 420, 476)
293	Amends § 16 of Ord. 203, liquor establishments (Not codified)
297	Pawnbrokers and pawnshops (Repealed by 2199)
298	Milk production and sale (Not codified)
299	Registration of convicted felons (Repealed by 2228)
300	Amends §§ 2 and 8 of Ord. 264, zoning (Repealed by 378)
301	Registration of taxi drivers and employees of gambling and liquor establishments (Repealed by 2029)
302	Use of water for irrigation in Woodland Park Addition (Repealed by 411)
303	Building code adopted (Repealed by 421, 526)
305	Registration of taxi drivers and employees of gambling and alcoholic beverage establishments (Repealed by 462)
306	Electrical code adopted (Repealed by 610)
307	Amends § 1 of Ord. 292, plumbing code (Repealed by 420, 476)
309	Amends §§ 2(e) and 8 of Ord. 264, zoning (Repealed by 378)
312	Garbage and refuse collection; repeals Ords. 138 and 267 (Not codified)
313	Garbage and refuse collection; repeals Ords. 138 and 267 (9.08)
316	Repeals Ord. 226 (Repealer)
317	Amends § 1 of Ord. 292, plumbing code (Repealed by 420, 476)
319	Amends §§ 6, 8 and 9 of Ord. 165, gaming licenses (Repealed by 325)
320	Superintendent of cemeteries; repeals Ord. 56 (14.12)
322	Amends § 10 of Ord. 264, zoning (Repealed by 378)

Ordinance Number	
325	Gambling licenses; repeals Ords. 77, 82, 88, 103, 115, 165, 245, 271,287 and 319 (Repealed by 2195)
326	Weapon sales license (Not codified)
327	Repeals Ord. 238 (Repealer)
330	Health inspections (Not codified)
331	Animals; repeals Ords. 5, 12, 19, 51, 58, 63 and 101 (Repealed by 521)
332	Amends §§ 30, 33, 36 and 94 of Ord. 170, traffic (11.16)
334	Recreational council (Not codified)
335	Repeals § 11 of Ord. 325, gambling licenses (Repealer)
336	Fixes curblines (13.08)
342	Amends the title and § 7 of Ord. 210; repeals Ords. 266 and 279, vehicles for hire (Repealed by 2203)
343	Driveway construction (Repealed by 2242)
344	Adds § 7 1/2 to Ord. 172, driveway construction (Repealed by 2242)
345	Amends §§ 22, 26 and 27 and repeals § 25 of Ord. 331, animals (Repealed by 521)
346	Amends §§ 8 and 11 of Ord. 244, business licenses (Repealed by 1901)
347	Amends building code (Repealed by 421)
348	Amends § 2 of Ord. 299, registration of convicted felons (Repealed by 2228)
349	Amends §§ 6, 8 and 11 of Ord. 244, business licenses (Repealed by 1901)
350	Amends §§ 9 and 14 of Ord. 325, gambling licenses (Repealed by 2195)
351	Amends §§ 30, 33, 36 and 94 of Ord. 170, traffic (11.16)
352	Petit larceny (Repealed by 2228)
354	Parking meters (11.54)
355	Amends §§ 3, 4 and 5 of Ord. 343, driveways (Repealed by 2242)
356	Amends § 1 of Ord. 308, fire prevention code (Repealed by 1572)
357	Amends subsection (77) of § 2 of Ord. 349, business licenses (Not adopted)
358	Amends subsection (h) of § 7 of Ord. 210, vehicles for hire (Repealed by 2203)
359	Curfew for minors; repeals Ords. 9 and 21 (10.54)
360	Regional planning commission (Not codified)
362	Amends § 1 of Ord. 349, business licenses (Repealed by 1901)

Ordinance Number	
363	Real estate sales license; repeals subsection 2 of § 8 of Ord. 244 (Repealed by 2250)
364	Sewer rates (Repealed by 1377)
365	Amends §§ 1, 2, 3, 5, 7, 8, 9, 12 and 14 of Ord. 325; repeals subsection 77 of § 8 of Ord. 244; gambling licenses (Repealed by 2195)
366	Amends § 1 of Ord. 308, fire prevention code (Repealed by 1572)
367	Peddlers; repeals Ords. 160 and 213 (Repealed by 2206)
368	Transient merchants (Repealed by 2206)
369	Solicitors (Repealed by 2206)
370	Injury to library materials (10.20)
371	Use of counterfeit coins in vending machines (Repealed by 2228)
372	Repeals Ord. 270 (Repealer)
373	Charitable solicitations (Not codified)
374	False alarms (10.10)
375	Defrauding an innkeeper (10.26)
377	Special police officers (Repealed by 1114)
378	Land use plan; repeals Ord. 264 (Repealed by 5345)
379	Amends §§ 3 and 4 of Ord. 364, sewer rates (Repealed by 379)
380	Auctioneers (Repealed by 2197)
381	Amends § 10 of Ord. 378, zoning (Repealed by 5345)
382	Amends § 10 of Ord. 378, zoning (Repealed by 5345)
384	Building code adopted (Repealed by 1909)
385	Adopts 1949 code (Not codified)
386	Special assessment district (Special)
388	Tobacco dealers (Repealed by 1219, 1150)
389	Special assessment district (Special)
390	Amends § 7 of Ord. 244, business licenses (Repealed by 1901)
391	Civil service rules and regulations adopted (Not codified)
393	Gasoline dispensing (Not codified)
394	Prisoners working on streets (Repealed by 2172)
396	Parking meter zone (Repealed by 583)
401	Amends § 9 of Ord. 350, gambling licenses (Repealed by 405)
405	Amends § 9 of Ord. 350; repeals Ord. 401; gambling licenses (Repealed by 2195)
406	Amends Ord. 297, pawnbrokers (Repealed by 2199)
407	Amends electrical code (Repealed by 610)
411	Amends § 3 of Ord. 211, water conservation; repeals Ord. 302 (Repealer)

Ordinance Number	
412	Amends Ch. 21 § 33 of Ord. 1949 code, noise (9.16)
415	Trees in parkways and streets (13.48)
420	Plumbing code adopted; repeals Ord. 292, 307 and 317 (Repealed by 476)
421	Building code adopted; repeals Ord. 303 (Repealed by 526)
429	Parking meter zone (Repealed by 583)
430	Amends §§ 8, 9 and 10 of Ord. 313, garbage and refuse (9.08)
431	Amends §§ 21 and 31 of Ord. 331, animals (Repealed by 521)
438	Amends Ch. 6 §§ 5 and 6 of 1949 code; repeals Ch. 6 § 8 of 1949 code; bicycles (Repealed by 2203)
439	Moving buildings (Repealed by 778)
446	Amends §§ l and 2 and repeals §§ 3 and 4 of Ord. 360, regional planning commission (Not codified)
447	Amends Ord. 203, alcoholic liquor (Repealed by 828)
448	Amends § 1 of Ord. 446, regional planning commission (Not codified)
449	Dogs running at large (Repealed by 521)
451	Amends §§ 1 and 2 of Ord. 446, regional planning commission (Repealed by 463)
457	Rezone (Special)
459	Rezone (Special)
460	Subdivision construction inspection fee (Repealed by 475)
461	City employee loyalty oath (3.12)
462	Registration of taxi drivers and employees of gambling and alcoholic beverage establishments; repeals Ord. 305 (Repealed by 2029)
463	Regional planning commission; repeals Ord. 451 (Repealed by 567)
466	Amends § 16 of Ord. 380, auctioneers (Repealed by 2197)
467	Adds to Ch. 36 of 1949 code; amends Ch. 36 § 41 of 1949 code; traffic (11.16)
468	Adopts civil service rules and regulations (Repealed by 2201)
470	Adds Ch. 36 §§ 41.01 and 76.01 to 1949 code; amends Ch. 36 §§ 138 and 139 of 1949 code; repeals Ch. 36 § 140 of 1949 code; traffic (11.24)
471	Amends § 21 of Ord. 378, zoning (Repealed by 5345)
472	Amends § 1 of Ord. 29, minors (Not adopted)
473	Subdivision inspection (Not adopted)
474	Rezone (Special)
475	Repeals Ord. 460 (Repealer)

Ordinance Number	
476	Plumbing code adopted; repeals Ords. 292, 307, 317 and 420 (Repealed by 520, 700)
477	Amends Ch. 13 § 1 of 1949 code, employment of aliens in gambling establishments (Repealed by 2195)
478	Rezone (Special)
480	Amends civil service rules and regulations (Repealed by 2201)
481	Smoking in theaters (9.20)
482	Amends civil service rules and regulations (Repealed by 2201)
483	Adds Ch. 16 § 35 to 1949 code; amends Ch. 16 §§ 2, 17 and 19; alcoholic liquor (Repealed by 828)
486	Adds Ch. 33 §§ 18, 19, 20 and 21, taxicabs (Repealed by 2203)
487	Rezone (Special)
490	Amends § 11 of Ord. 313, garbage collection rates (Repealed by 556)
491	Assistant city manager (Repealed by 1948)
492	Adds to civil service rules and regulations (Repealed by 2201)
502	Building access (Not codified)
503	Child care facility licenses (Repealed by 1805)
504	Amends civil service rules and regulations (Repealed by 2201)
505	Nonmedical drug addict treatment (Repealed by 2228)
506	Employee holidays (Repealed by 774)
507	Trailer parks (Repealed by 726)
508	Adds Ch. 36 § 141.1 to 1949 code; amends § 2 of Ord. 467; traffic (11.16)
513	Amends Ch. 24 § 16 of 1949 code, zoning (Repealed by 5345)
514	Board of appeals (Repealed by 709)
515	Building inspection department (Repealed by 1319)
516	Rezone (Special)
517	Amends Ch. 24 § 10 of 1949 code, zoning (Repealed by 5345)
518	Amends § 1 of Ord. 447, alcoholic liquor establishments (Repealed by 828)
519	Amends Ch. 17 §§ 8 and 12 of 1949 code, trailer camps (Repealed by 1901)
520	Plumbing code adopted; repeals Ord. 476 (Repealed by 700)
521	Animals; repeals Ords. 331, 345 and 449 (Repealed by 1777)
522	Amends § 3 of Ord. 233, signs (Title 17)
523	Amends civil service rules and regulations (Repealed by 2201)
524	Adds Ch. 16 § 36 to 1949 code, alcoholic liquor establishments (Repealed by 828)

Ordinance Number	
525	Amends § 4 of Ord. 304, fire zones (Repealed by 1502)
526	Building code adopted; repeals Ords. 130, 166, 188, 284, 303 and 421 (Repealed by 676)
527	Rezone (Special)
529	Child care regulations adopted (Repealed by 1805)
530	Amends subsections (a) and (b) of § 2 of Ord. 462, registration of taxi drivers and employees of gambling and alcoholic beverage establishments (Repealed by 2029)
531	Final map checking fee (Title 18)
532	Amends civil service rules and regulations (Repealed by 2201)
540	Parking offenses (Not codified)
552	City clerk (2.12)
553	Amends §§ 1, 2 and 3 of Ord. 359, curfew for minors (10.54)
555	Amends § 1 of Ord. 518, alcoholic beverage establishments (Repealed by 828)
556	Amends § 11 of Ord. 313, garbage collection rates; repeals Ord. 490 (9.08)
559	Amends § 33 of Ord. 351, § 1 of Ord. 508 and Ch. 36 §§ 54 and 126 of 1949 code, traffic (11.12, 11.16)
563	Amends Ord. 529, child care facilities (Repealed by 1805)
564	Business license refusal for unsafe premises (Repealed by 2200)
565	Loitering (Repealed by 1687)
567	Planning commission; repeals Ord. 463 (2.44)
568	Posting of lodging charges (Repealed by 731)
569	One-way streets (Repealed by 800)
570	Adds Ch. 24 § 21(E) to 1949 code; amends Ch. 24 § 19 of 1949 code; zoning (Repealed by 5345)
572	Traffic regulations; amends Ch. 36 § 51 of 1949 code; repeals Ch. 36 § 39(b) of 1949 code (Repealed by 2203)
573	Amends Ch. 24 § 26(2), (4), (5) and (6) of 1949 code, setback lines (Repealed by 5345)
575	Liquor sales to minors; repeals Ch. 16 § 20 of 1949 code (Repealed by 828)
576	Moving buildings (Repealed by 778)
577	Conflict of interest of mayor and commissioners (2.56)
578	Engineering department inspection fees (Not codified)
579	Sale of pistols (Not codified)
583	Parking meter zone; repeals Ords. 396 and 429 (Repealed by 710)

Ordinance Number	
584	Zoning board of adjustment; amends Ch. 24 §§ 27, 28 and 29 of 1949 code (Repealed by 5193)
585	Sale of pistols (Repealed by 1216)
586	Amends § 1 of Ord. 555, liquor licenses (Repealed by 688, 828)
588	Amends § 3 of Ord. 564, business license refusal (Repealed by 2200)
589	Amends § 3 of Ord. 349, business licenses (Repealed by 1901)
590	Amends §§ 1, 5 and 6(g) of Ord. 377, special police (Repealed by 1114)
591	Amends civil service rules and regulations (Repealed by 2201)
592	Amends § 6 of Ord. 354, parking meters (11.54)
594	Lodging place signs (Repealed by 1082)
595	Amends § 1 of Ord. 514, board of appeals (Repealed by 709)
607	Warm air heating code adopted (Repealed by 869)
608	Water conservation; repeals § 1 of Ord. 411 (14.08)
609	Repeals Ch. 24 § 12H(c) of 1949 code, zoning (Repealed by 5345)
610	Electrical equipment; repeals Ord. 306 (Repealed by 883)
613	Dangerous buildings; repeals § 203 of Ord. 526 (Repealed by 3897)
616	Traffic and parking commission (Repealed by 3474)
618	Amends Ch. 24 § 26 of 1949 code, setbacks (Repealed by 5345)
619	Airfield zoning (Repealed by 5345)
621	Code of standard specifications for public improvements adopted (Repealed by 1087)
622	Amends § 1 of Ord. 592, parking meters (11.54)
623	Adds subsections (d) and (e) to § 1.11 of plumbing code (Repealed by 700, 833)
624	Amends §§ 2, 3 and 4 of Ord. 522, signs (17.12)
625	Adds Ch. 22 § 28 to 1949 code; amends § 1 of Ord. 406 and Ch. 22 §§ 13 and 24 of 1949 code; pawnbrokers (Repealed by 2199)
627	Amends § 22B of Ord. 378, zoning (Repealed by 5345)
628	Subdivision ordinance adopted (Title 18)
630	Adds Ch. 24 §§ 17.01 and 18.01 to 1949 code; amends Ch. 24 § 10 of 1949 code, zoning (Repealed by 5345)
631	Amends § 1 of Ord. 70, vagrancy (Repealed by 1653)
632	Amends § 1 of Ord. 586, liquor licenses (Repealed by 688, 828)
633	Amends Ch. 29 § 1 of 1949 code, sewer rates (Repealed by 1377)
634	Amends § 2 of Ord. 616, traffic and parking commission (Repealed by 1184)
635	Late payment of license fees (Repealed by 1901)

Ordinance Number	
637	Amends § 406 of building code (Repealed by 700)
638	Rezone fees (Repealed by 5345)
639	Adds § 1109 and amends § 1101 of building code (Repealed by 676, 778)
643	Adds Ch. 17 §§ 21 and 22 to 1949 code, business licenses (Repealed by 1901)
645	Amends Ch. 13 § 5 and Ch. 16 § 4 of 1949 code, gambling and liquor establishments (Repealed by 2195)
647	Parking lot licenses; amends Ch. 36 §§ 85 and 86 of 1949 code; repeals Ch. 36 §§ 85 and 86 of 1949 code; repeals Ch. 36 § 87 of 1949 code (Repealed by 2210)
648	Adds §§ 11-A, 11-B, 11-C, 11-D, 11-E and 16-A and amends §§ 12 and 16 of Ord. 610, electrical installations (Repealed by 883)
651	Signing city checks (4.12)
653	Amends Ch. 36 §§ 42 and 126 of 1949 code, traffic (Repealed by 2173)
654	Animals; amends § 42 of Ord. 521 (Repealed by 1777)
656	Amends § 1 of Ord. 584, board of adjustment (Repealed by 5193)
657	Adds Ch. 24 § 19.01 to 1949 code; amends Ch. 24 §§ 21(13) and 24 of 1949 code, zoning (Repealed by 5345)
658	Amends § 1 of Ord. 635, late payment of license fees (Repealed by 1901)
659	Master plan of streets and highways (Repealed by 2231)
662	Excavation permits (13.20)
663	Department of finance (2.18)
667	Private detectives; repeals Ch. 17 § 12D of 1949 code (Repealed by 2188)
668	Special police; amends Ch. 31 §§ 1, 2, 5, 6(g) and 10(f) of 1949 code (Repealed by 1114)
669	Amends Ch. 24 §§ 12(C)(1), 27 and 34 of 1949 code, zoning (Repealed by 5345)
670	Amends Ch. 11 § 14 of 1949 code, claims against the city (Repealed by 1985)
671	Adds Ch. 36 § 58(19) to 1949 code, parking (Repealed by 694)
672	Amends §§ 1.13, 2.10, 2.11 and 504 of the warm air heating code (Repealed by 869)
673	Amends § 20 of Ord. 610, electrical installations (Repealed by 883)
674	Agricultural product inspection (Repealed by 2209)

Ordinance Number	
675	Sale of hypodermic syringes (Repealed by 691)
676	Building code adopted; repeals Ord. 526 (Repealed by 778)
677	Charitable solicitation (Repealed by 2235)
679	Amends § 4 of Ord. 364, sewer charges (Repealed by 1377)
681	Board member meeting attendance (Repealed by 2189)
683	Amends Ch. 24 § 26(1) and (5) of 1949 code, zoning (Repealed by 5345)
684	Adds Ch. 24 § 19(A)(8)(f) to 1949 code, zoning (Repealed by 5345)
687	Amends Ch. 24 § 26(A) of 1949 code, zoning (Repealed by 5345)
688	Amends Ch. 16 §§ 2, 8, 16, 25 and 28 of 1949 code, liquor licenses; repeals Ords. 586 and 632 (Repealed by 828)
689	Liquor or gaming license investigation fee (Repealed by 1901)
691	Repeals Ord. 675 (Repealer)
694	Repeals Ord. 671 (Repealer)
695	Summons serving (Not codified)
696	Amends Ch. 24 § 20 of 1949 code, zoning (Repealed by 5345)
697	Stop work order inspection fee (Repealed by 778)
700	Plumbing code adopted; repeals Ords. 476, 520 and 637 (Repealed by 833)
701	Notice service by mail (Not codified)
706	Amends § 1 of Ord. 559 and Ch. 36 § 39 of 1949 code, traffic (11.16)
707	Adds Ch. 17 § 23 to 1949 code, gambling licenses (Repealed by 1901)
708	Distress merchandise sales (Repealed by 3019)
709	Repeals Ords. 514, 595 and § 204 of Ord. 676 (Repealer)
710	Parking meters; amends Ch. 36 § 116 of 1949 code; repeals Ord. 583 (11.54)
711	Adds § 205(7) and amends §§ 1.9 and 1.13 of warm air heating code (Repealed by 869)
712	Lodging place signs (Repealed by 731)
714	Adds § 16 and amends §§ 3 (16) and 10 of Ord. 688, liquor licenses (Repealed by 828)
715	License fees (Repealed by 1901)
716	Amends § 1 of Ord. 390, utility tax (Repealed by 1901)
717	Child care facilities (Repealed by 1805)
718	Amends §§ 1, 2, 3, 4, 5, 6, 9 and 10 of Ord. 677, charitable solicitations (Repealed by 2235)
719	Amends Ch. 8 §§ 1, 3, 10, 18, 19 and 20 and repeals § 16 of 1949 code, superintendent of cemeteries (14.12)

Ordinance Number	
721	Amends Ch. 5 § 1 of 1949 code, auctioneers (Repealed by 2197)
722	Licensing of certain businesses; amends § 8 of Ord. 715 and Ch. 9 §§ 17 and 18 of 1949 code (Repealed by 1901)
724	Amends § 2 of Ord. 573, setback line (Repealed by 5345)
725	Electric sign contractor (Repealed by 1672)
726	Trailer parks; repeals Ord. 507 (Repealed by 2119)
727	Amends Ch. 24 § 23 of 1949 code, zoning (Repealed by 5345)
728	Amends Ch. 7 § 1 of 1949 code; sign posting (Not codified)
731	Lodging place rate posting; repeals Ords. 568 and 712 (Repealed by 748)
732	Amends Ch. 7 § 1 of 1949 code, sign posting (Not codified)
733	Amends Ch. 16 § 4 of 1949 code, liquor licenses (Repealed by 828)
734	Convention hall revenue tax (Repealed by 2247)
736	Animals; amends §§ 1, 2, 3, 5, 18, 24 and 43 of Ord. 521; repeals §§ 4 and 10 of Ord. 521 (Repealed by 1777)
737	Amends §§ 2.10, 2.11 and 1202 of Ord. 700, plumbing code (Repealed by 833)
738	Amends §§ 2 and 3 of Ord. 672, warm air heating code (Repealed by 869)
739	Amends § 3 of Ord. 734, convention hall revenue tax (Repealed by 2247)
741	Amends §§ 3 and 4 of Ord. 525, fire zones (Repealed by 1502)
742	Amends Ch. 17 § 12 of 1949 code, astrologers (Repealed by 1901)
743	Amends §§ 14, 24 and 27 of Ord. 610; repeals § 29 of Ord. 610; electrical installations (Repealed by 883)
744	Bond revenue (Special)
745	Amends § 6 of Ord. 462, registration of taxi drivers and employees of liquor and gambling establishments (Repealed by 2029)
747	Amends Ch. 36 § 67 of 1949 code, parking (11.52)
748	Lodging rate posting; repeals Ord. 731 (Repealed by 776)
749	Amends §§ 1 and 2 of Ord. 503 and § 1 of Ord. 717; repeals § 6 of Ord. 503, child care facilities (Repealed by 1805)
750	Adds Ch. 36 §§ 144, 145 and 146 to 1949 code; amends Ch. 36 §§ 41, 56 and 139 § 1 of Ord. 569;traffic (11.16, 11.42, 11.44, 11.52)
751	Amends Ch. 16 § 4 of 1949 code, liquor licenses (Repealed by 828)
753	Amends § 1 of Ord. 724, street setbacks (Title 19)
755	Repeals Ch. 21 § 7 of 1949 code (Repealer)
756	Amends § 1 of Ord. 750, speed limits (11.16)

Ordinance Number	
757	Amends Ch. 24 §§ 9, 14, 15, 16, 17, 19 and 21(13) of 1949 code, zoning (Title 19)
760	Amends Ch. 24 § § 12H(a), 19 and 21(13) of 1949 code, zoning (Title 19)
761	Amends § 1 of Ord. 734, convention center revenue tax (Repealed by 2247)
763	Amends § 5 of Ord. 677, solicitations review board (Repealed by 2235)
766	Liquor licenses; amends Ch. 16 § 26 of 1949 code (Repealed by 828)
767	Electrical work; repeals Ords. 610, 648, 673 and 743 (Repealed by 883)
768	Adds Ch. 33 §§ 22, 23, 24, 25, 26 and 27; amends Ch. 33 §§ 1, 3, 6, 7, 11 and 16, vehicles for hire (Repealed by 2203)
770	Uniform pay plan (Repealed by 1994)
771	Adds Ch. 13 § 19 to 1949 code, gambling licenses (Repealed by 2195)
772	Amends Ch. 17 § 1 of 1949 code, motor service transportation (Repealed by 2203)
773	Fire prevention code adopted (Repealed by 1572)
774	Employee holidays; repeals Ord. 506 (3.16)
776	Lodging place rates posting; repeals Ord. 748 (Repealed by 1082)
777	Civil defense council (Repealed by 3198)
778	Building code adopted; repeals Ords. 439, 576, 639, 676 and 697 (Repealed by 1909)
780	Liquefied petroleum gas code (Repealed by 780)
783	Coupon book selling (Repealed by 2293)
785	Amends Ch. 16 § 4 of 1949 code, liquor licenses (Repealed by 828)
787	Adds to Ch. 24 § 26 of 1949 code, street widths (Title 19)
789	Secondhand dealers (Repealed by 2196)
790	Adds subsection 7 to § 1 of Ord. 569, one-way streets (Repealed by 800)
791	Amends subsection 7 of § 1 of Ord. 631, vagrancy (Repealed by 1653)
800	Amends § 4 of Ord. 750; repeals Ord. 569 (11.42)
801	Insurance agents (Repealed by 2250)
802	Amends § 4 of Ord. 564, business license refusal (Repealed by 2200)
803	Amends § 6 of Ord. 388, tobacco products sales (Repealed by 2250)
805	Amends §§ 1 and 4 of Ord. 756, traffic (11.16)
807	False advertising (Repealed by 815)
808	Escort bureaus (Repealed by 1361)

Ordinance Number	
810	Adds subsection 26 to § 5 of Ord. 628, subdivisions (Title 18)
811	Adds § 10(a) to Ord. 715,license fees (Repealed by 1901)
812	Amends subsection 13A of § 3 of Ord. 760, zoning (Title 19)
815	False advertising; repeals Ord. 807 (Repealed by 1082)
818	Amends Ord. 815, false advertising (6.32)
820	Amends §§ 20, 30, 33 and 47 of Ord. 521 and § 18 of Ord. 736, animals (Repealed by 1777)
823	Amends civil service rules and regulations (Repealed by 2201)
825	Curb and sidewalk crossings (13.16)
826	Disabled person parking (Not codified)
827	Repeals § 8 of Ord. 667 (Repealer)
828	Liquor control; repeals Ords. 447, 483, 518, 524, 555, 575, 586, 632, 688, 714, 733, 751, 766 and 785 (Repealed by 2116)
831	Special assessment district (Special)
833	Plumbing code adopted; repeals Ords. 623, 700 and 737 (Repealed by 1330)
835	Amends building code (Repealed by 1909)
841	Swimming pools (Repealed by 1087)
843	Amends § 8-5-2 of 1960 code, sewer rates (Repealed by 2138)
844	Amends § 5-2-1 of 1960 code, hotel and motel operators tax (Repealed by 2247)
845	Excavation permits (13.20)
847	Amends § 3-3-3 of 1960 code, inspection fees (Repealed by 1319)
848	Amends Subsections (A) and (B) and repeals Subsections (C) and (D) of § 11-1-12 of 1960 code, off-street parking (Repealed by 5345)
849	Adds to § 11-1-32 of 1960 code; amends Subsection (D) of § 11-1-31 and Subsection (F) of § 11-1-36 of 1960 code, rezone fees (Repealed by 5345)
850	Rebound tumbling facilities (Repealed by 2250)
854	Abandoned vehicles (11.24)
855	Amends § 6-1-17 of 1960 code, prostitution (10.36)
856	Driving under influence of liquor (Repealed by 2173)
857	Police department fees (Repealed by 2219)
858	Civil service rules and regulations adopted (Repealed by 2201)
860	Amends Ch. 2-5 of 1960 code, child care facilities (Repealed by 1805)
861	Amends § 5-25-2 of 1960 code, lodging place advertising (Repealed by 1082)
862	Amends § 5-18-8(G) of 1960 code, liquor licenses (Repealed by 2116)

Ordinance Number	
866	Public vehicles (Repealed by 2203)
869	Heating, ventilating, air-conditioning, refrigeration and water conservation code adopted; repeals Ords. 607, 672, 711 and 738 (Repealed by 1405)
871	Business license enforcement procedure (Repealed by 2200)
875	Amends §§ 8-3-14, 8-3-17 and 8-3-21 and repeals §§ 8-3-20 and 8-3-22 of 1960 code, garbage collection (9.08)
882	Amends §§ 1-17-1 and 1-17-11 and repeals §§ 1-17-2, 1-17-3, 1-17-4, 1-17-5, 1-17-6 and 1-17-7 of 1960 code, claims against the city (4.08, 4.12)
883	Electrical ordinance adopted; repeals Ords. 610, 648, 673, 743 and 767 (Repealed by 1672)
885	Adds §§ 5-18-2(U), 5-18-8(H), 5-18-9(c) and 5-18-14(A)(11) and amends §§ 5-18-2(J), 5-18-8(G) and 5-18-17(A) and (B) of 1960 code, liquor licenses (Repealed by 2116)
886	Subdivisions (Repealed by 1969)
887	Repeals Subsection (F) of Schedule E of § 8-5-2 of 1960 code (Repealer)
889	Amends § 2-7-5 of 1960 code, solicitations review board (Repealed by 2235)
890	Amends § 2-9-1 of 1960 code, traffic and parking commission (Repealed by 1184)
891	Amends § 10-2-10 of 1960 code, vehicles for hire (Repealed by 2203)
892	Amends §§ 6-5-3, 6-5-5 and 6-5-7 and repeals Subsection D of Ch. 3-5 of 1960 code, registration of taxi drivers and employees of liquor and gambling establishments (Repealed by 2029)
893	Amends Subsection (A) of § 5-18-23 of 1960 code, sale of liquor to minors (Repealed by 2116)
897	Telephone harassment (10.28)
898	Ambulances (Repealed by 1763)
899	Signs (17.12)
903	Building code adopted (Repealed by 1909)
904	Amends §§ 5-3-1, 5-3-4, 5-3-10, 5-3-11, 5-3-12 and 5-3-13 of 1960 code, private detectives (Repealed by 2188)
905	Adds §§ 2-5-10(JJ) and 2-5-17 and amends §§ 2-5-2(A) and (F), 2-5-6(A), 2-5-10(H) and (N) and 2-5-12(B), (G) and (H) of 1960 code, child care facilities (Repealed by 1805)

Ordinance Number	
907	Amends Subsection 14 of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)
908	Amends Subsection (F) of § 5-22-32 of 1960 code, trailer camps (Repealed by 2119)
912	Employee pay plan (Repealed by 1994)
915	Adds Ch. 11-3 to 1960 code, zoning (Repealed by 5345)
917	Amends § 6-2-40 of 1960 code, giving away animals (Repealed by 1777)
921	Amends civil service rules and regulations (Repealed by 2201)
926	Massage parlors (Repealed by 1760)
927	Adds Ch. 10-28 to 1960 code, school safety patrol (11.46)
928	Amends § 1-18-920 of 1960 code, employee retirement age (Repealed by 2201)
929	Major street plan (Repealed by 2231)
930	Amends §§ 5-3-1, 5-3-3, 5-3-4, 5-3-5, 5-3-6, 5-3-7, 5-3-8, 5-3-9, 5-3-10, 5-3-11, 5-3-12, 5-3-13, 5-3-14, 5-3-15 and 5-3-16 of 1960 code, private detectives (Repealed by 2188)
935	Specialized electrical ordinance adopted (Repealed by 1672)
936	Amends civil service rules and regulations (Repealed by 2201)
937	Adds new § 4-4-3, amends §§ 4-4-1 and 4-4-2 and repeals §§ 4-4-3, 4-4-4, 4-4-5, 4-4-6, 4-4-7, 4-4-8, 4-4-9, 4-4-10 and 4-4-11 of 1960 code, heating, ventilating, air-conditioning, refrigeration and water conservation code (Repealed by 1405)
940	Amends Subsection (B) of § 4-1-1 and Subsection 1603(a) of § 4-1-25 of 1960 code, building code (Repealed by 1909)
941	Amends § 10-17-11 of 1960 code, parking (Repealed by 3000)
942	Repeals and replaces Ch. 4-9 of 1960 code, fallout shelters (16.40)
943	Vehicle rental agency signs (Repealed by 2250)
944	Adds Subsection (G) to § 11-1-5 of 1960 code, zoning (Repealed by 5345)
953	Amends § 2-9-6 of 1960 code, traffic and parking commission (Repealed by 2190)
954	Truck limits (Repealed by 962)
955	Amends § 8-3-15 of 1960 code, garbage collection rates (9.08)
956	Amends §§ 2-5-10(i) and 2-5-12(b) and (c) and repeals §§ 2-5-2(b) and 2-5-9(a)3 of 1960 code, child care facilities (Repealed by 1805)
962	Repeals Ord. 954 (Repealer)

Ordinance Number	
970	Amends §§ 11-2-5(H) and 11-2-10(B) of 1960 code, subdivisions (Repealed by 1969)
971	Amends § 8-3-17 and repeals § 8-3-18 of 1960 code, garbage rates (9.08)
972	Zoning (Repealed by 5345)
974	Employee salary plan (Repealed by 1994)
976	Amends Subsection (G)8 of § 3-3-3 of 1960 code, public works department inspection fees (Repealed by 1319)
977	Amends § 5-29-7 of 1960 code, massage parlors (Repealed by 1760)
978	Recreation commission (Repealed by 1265)
981	Amends §§ 10-3-3, 10-3-4, 10-3-6, 10-3-8 and 10-3-11 of 1960 code, parking meters (11.08, 11.52, 11.54)
982	Amends § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)
983	Amends § 10-2-15 of 1960 code, taxicab stands (Repealed by 2203)
985	Amends Subsection D(3) of § 11-1-24 and § 11-1-25 of 1960 code, zoning (Not codified)
988	Amends §§ 10-3-6 and 10-21-1 of 1960 code, traffic (11.08, 11.54)
989	Amends Schedule IX, no parking areas (Not codified)
990	Amends Subsections (A)5(c) and (d) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
996	Amends Subsection (c)6(b) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
997	Amends §§ 6C(1), 24A(15) and B(5) and 25A(3) of Ord. 972, zoning (Repealed by 5345)
998	Adds § 10-17-31 to 1960 code, parking (Repealed by 3000)
999	Amends §§ 10-17-11 and 10-17-12 of 1960 code, parking in alleys (11.52)
1007	Adds Subsection (E) to § 10-3-11 and amends Subsection (B) of § 10-3-6 of 1960 code, parking (11.54)
1010	Amends Subsection (G)2 of § 6 of Ord. 972, subdivisions (Repealed by 1185)
1014	Amends §§ 2E, 6E, 19B, 22A(1) and B and 25B(9) of Ord. 972, zoning (Repealed by 5345)
1015	Specialized electrical ordinance adopted (Repealed by 1672)
1016	Amends § 5-9-29 of 1960 code, pawnshops (Repealed by 2199)
1017	Civil service rules adopted (Repealed by 2201)
1018	Amends § 1-7-3 of 1960 code, employees (Repealed by 1994)

Ordinance Number	
1019	Amends Subsection (G) of § 5-18-8 of 1960 code, liquor licenses (Repealed by 2116)
1020	Amends §§ 4-1-23, 4-1-24(B) and 4-1-25 of 1960 code, building code (Repealed by 1909)
1021	Trucks (11.58)
1027	Repeals and replaces § 1-7-2 of 1960 code, employee salaries (Repealed by 1994)
1030	Adds § 6-1-40 to 1960 code, sale of model airplane glue to minors (10.58)
1031	Amends §§ 2-5.2(C), 2-54(A) and 2-5-10(HH) of 1960 code, child care facilities (Repealed by 1805)
1035	Amends Subsection (C)1(d) of § 11-1-6 of 1960 code, zoning (19.60)
1037	Street barricading and channelization manual adopted (11.50)
1038	Amends Schedule 1 to Subsection (C) of § 10-25-2 of 1960 code, speed limits (11.16)
1039	Amends § 9-12-1 of 1960 code, obstructing streets and sidewalks (13.32)
1040	Amends § 6-8-2 of 1960 code, minors prohibited from pool halls and billiard rooms (10.56)
1041	Obscene publications (Repealed by 1162)
1043	Amends civil service rules and regulations (Repealed by 2201)
1044	Amends Subsections (CC) and (EE) of § 2-5-10 of 1960 code, child care facilities (Repealed by 1805)
1045	Amends § 11-1-20(A) of 1960 code, zoning (19.46)
1049	Amends Subsection (A)3(b) of § 11-2-13, subdivisions (Repealed by 1969)
1050	Adds § 4-8-4 to 1960 code, public improvement specifications (Repealed by 1087)
1051	Amends §§ 9-4-5 and 9-4-6 of 1960 code, excavations (13.20)
1055	Adds § 5-15-17, amends §§ 5-15-1 and 5-15-3 and repeals and replaces § 5-15-16 of 1960 code, private detectives (Repealed by 1114)
1059	Amends Subsection (G)(1) and repeals Subsection (G)4 of § 11-1-6 of 1960 code, zoning (Repealed by 1185)
1062	Amends Subsection (G)5 of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)

Ordinance Number	
1070	Adds Subsection (V) to § 5-18-2, amends Subsection (J)1 of § 5-18-2, Subsection (B) of § 5-18-8, Subsections (A) and (B) of § 5-18-9 and Subsections (A) and (B) of § 5-18-17 and repeals and replaces Subsection (T) of § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1071	Amends § 4-2-22 of 1960 code, plumbing code (Repealed by 1071)
1072	Assigns certain hotel and motel tax revenues (Not codified)
1074	Adds § 11-1-8.5 and amends Subsection (A) of § 11-1-4, Subsection (C) of § 11-1-19 and Subsection (C) of § 11-1-20 of 1960 code, zoning (19.06, 19.12, 19.44, 19.46)
1075	Repeals and replaces § 9-8-12 of 1960 code, cemetery (14.12)
1079	Amends § 10-20-13 of 1960 code, vehicle lights (Repealed by 2203)
1080	Amends § 5-17-1 of 1960 code, gambling licenses (Repealed by 2195)
1082	Repeals and replaces Ch. 5-25 of 1960 code, lodging place signs (Repealed by 2245)
1083	Amends § 11-1-17 of 1960 code, zoning (Repealed by 2119)
1084	Amends Ch. 6-5 of 1960 code, registration of taxi drivers and employees of gambling and liquor establishments (Repealed by 2029)
1085	Amends § 10-10-5 of 1960 code, traffic control signals (Repealed by 2203)
1086	Adds Subsection (K) to § 2-5-12 of 1960 code, child care facilities (Repealed by 1805)
1087	Adds Ch. 9-15 and repeals Ch. 4-8 of 1960 code, public improvements specifications (13.44)
1088	Adds § 11-1-17A to 1960 code, zoning (19.38)
1089	Adds Subsection (D)5 to § 11-1-6 of 1960 code, zoning (Repealed by 1851)
1090	Amends Subsection (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1091	Adds §§ 4-1-31 through 4-1-50 to 1960 code, excavation and grading (Repealed by 1909)
1092	Air pollution control (Repealed by 1378)
1093	Adds §§ 4-1-22.1, 4-1-25.1 and 4-1-25.2 to 1960 code, building code (Repealed by 1909)
1098	Adds §§ 4-1-51 through 4-1-60 to 1960 code, fences, walls and retaining walls (Repealed by 1909)
1100	Amends § 10-25-2 of 1960 code, speed limits (11.16)

Ordinance Number	
1107	Amends §§ 6-8-1 and 6-8-2 of 1960 code, minors (10.56, 10.62)
1110	Amends § 11-1-17A of 1960 code, zoning (Repealed by 5345)
1111	Amends § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1114	Adds §§ 5-3-17, 5-3-18 and 5-3-19, amends §§ 5-3-1, 5-3-5 and 5-3-13 and repeals Ch. 5-15 of 1960 code, private detectives (Repealed by 2188)
1115	Amends § 10-2-19 of 1960 code, taxicabs (Repealed by 2203)
1117	Amends Ch. 5-18 of 1960 code, liquor licenses (Repealed by 2116)
1118	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)
1119	Amends Subsection (A)5(a) of § 11-1-8.5, and Subsection (A)5(a) of § 11-1-9 of 1960 code, zoning (Repealed by 5345)
1122	Amends § 4-3-21 of 1960 code, electrical requirements (Repealed by 1672)
1123	Adds Subsection (K) to § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1124	Flood control channel master plan (20.04)
1125	Amends Subsection (C)1(d) of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1126	Adds Subsection 6 and amends Subsection 1(a) of § 3 of Ord. 1092; amends Subsection 1 of § 4 of Ord. 1092, air pollution control (Repealed by 1378)
1132	Amends Subsection (R) of § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1134	Amends Subsection (A) of § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1135	Plumbing code adopted (Repealed by 1330)
1138	Amends Subsection (C) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1139	Amends Subsection (G)5(1) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1142	Amends § 1-18-2 of 1960 code, civil service rules and regulations (Repealed by 2201)
1143	Amends § 1-7-1 of 1960 code, employee pay schedule (Repealed by 1994)
1146	Amends; repeals Ch. 6-2 of 1960 code (Repealed by 1777)
1149	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)

Ordinance Number	
1151	Adds § 4-1-20.1 to 1960 code, building code (Repealed by 1909)
1153	Amends Subsection (T) of § 5-18-4 and Subsection (D) of § 5-18-6 of 1960 code, liquor licenses (Repealed by 2116)
1154	Amends § 6-1-22 of 1960 code, gross intoxication (Repealed by 2228)
1157	Adds Ch. 10-31 to 1960 code, injury to traffic-control devices (11.32)
1161	Amends Subsection (G) of § 5-18-8 of 1960 code, liquor licenses (Repealed by 2116)
1162	Adds Ch. 6-11 and repeals § 6-1-25 of 1960 code, obscene material (10.42)
1163	Adds Subsection (F) to § 4-3-8 and Subsections (E) through (K) to § 4-3-15, amends §§ 4-3-16 and 4-3-20 and repeals and replaces Subsection (B) of § 4-3-15 of 1960 code, electrical construction (Repealed by 1672)
1169	Adds Subsection (W) to § 10-27-1 and amends §§ 10-3-2, 10-14-1, 10-17-11, 10-17-12, 10-17-24, 10-17-26, 10-17-27 and 10-18-2 of 1960 code, traffic (11.20, 11.44, 11.46, 11.52, 11.54)
1170	Amends §§ 5-28-4, 5-28-6, 5-28-7, Subsections (E) and (L) of §§ 5-28-9 and 5-28-15 of 1960 code, ambulances (Repealed by 1763)
1171	Amends Ch. 6-5 of 1960 code, taxicab chauffeur permit (Repealed by 2029)
1172	Renumbers § 10-21-9 to 10-21-10 and adds new § 10-21-9 and amends §§ 10-21-6 and 10-21-8 of 1960 code, parking citations (11.08)
1179	Adds §§ 4-6-24 and 4-6-25, repeals and replaces §§ 4-6-2, 4-6-10 and 4-6-14 and repeals Subsection (G) of § 4-6-12 of 1960 code, signs (17.12)
1180	Amends Schedule 1 to Subsection (C) of § 10-25-2 of 1960 code, speed limits (11.16)
1181	Amends Ch. 5-9 and repeals § 5-9-10 of 1960 code, pawnshops (Repealed by 2199)
1184	Repeals and replaces § 2-9-1 and amends §§ 2-9-3 and 2-9-6, traffic and parking commission (Repealed by 3474)
1185	Amends § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1186	Adds § 10-3-12 to 1960 code, parking meters (Repealed by 1323)
1187	Bond election (Special)
1189	Amends § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)

Ordinance Number	
1190	Adds §§ 5-18-28, 6-8-9 and 6-8-10, amends Subsections (J) and (R) of §§ 5-18-2 and 5-18-23, 6-5-6, 6-8-1, 6-8-2, 6-8-3, 6-8-6 and 6-8-7 and repeals § 5-18-21 of 1960 code, liquor establishments and minors (10.54, 10.56, 10.60, 10.62)
1191	Adds § 5-14-10 and amends §§ 5-14-1, 5-14-2, 5-14-5, 5-14-6 and 5-14-9 of 1960 code, distress merchandise sales (Repealed by 3019)
1193	Amends § 1-7-1 of 1960 code, employee pay plan (Repealed by 1994)
1195	Amends § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)
1196	Adds §§ 1-7-7 and 1-7-8 and amends 1-7-3 of 1960 code, employee pay plan (Repealed by 1994)
1197	Adds Subsection (A) 16 to § 11-1-24 of 1960 code, zoning (Repealed 5345)
1198	Transit franchise (Special)
1199	Repeals Ch. 5-4 of 1960 code (Repealer)
1200	Amends § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1202	Adds Ch. 5-31 and repeals § 5-3-17 of 1960 code, burglar alarm installation (Repealed by 2297)
1203	Adds Subsection (V) to § 6-2-4 of 1960 code, giving away animals (Repealed by 1777)
1209	Amends § 9-4-6 of 1960 code, public works department inspection charges (13.20)
1211	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)
1212	Amends §§ 9-14-6, 9-14-9, 9-14-10 and 9-14-11 of 1960 code, street plan (Repealed by 2231)
1213	Amends §§ 9-8-2 and 9-8-3 of 1960 code, cemeteries (14.12)
1214	Amends § 5-8-4 of 1960 code, secondhand dealers (Repealed by 2196)
1215	Adds Subsection (0) to § 11-1-6 and amends § 11-1-3, Subsections (A) and (D) of § 11-1-19 and Subsection (A) of § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1216	Repeals and replaces Ch. 6-4 of 1960 code, buying and selling pistols (10.66)
1217	Adds §§ 5-25-7 and 5-25-8 and amends § 5-25-1 of 1960 code, false advertising (Repealed by 2245)
1218	Amends § 2-5-3 of 1960 code, child welfare board (Repealed by 1805)
1219	Amends §§ 5-16-3 and 5-16-10 and repeals 5-16-5 of 1960 code, tobacco dealers (Repealed by 2250)

Ordinance Number	
1221	Adds Subsections (B)(30) and (31) to § 4-6-2 and amends subsection (G) of § 4-6-12 of 1960 code, signs (Repealed by 3723)
1223	Amends § 4-8-6 of 1960 code, swimming pools (Repealed by 1909)
1224	Amends § 4-2-5 of 1960 code, sewer installation (Repealed by 1330)
1225	Amends § 8-5-2 of 1960 code, sewer rates (14.04)
1226	Amends § 11-1-20 and Subsection 9 of § 11-1-22 of 1960 code, zoning (Repealed by 5345)
1229	Amends § 9-8-3 of 1960 code, cemeteries (14.12)
1231	Swimming pool sanitation (9.32)
1233	Amends Subsection (G) of § 5-18-8 and Subsections (D) and (E) of § 11-1-19 of 1960 code, taverns (Repealed by 5345)
1235	Amends §§ 5-17-18 and 5-17-19, gambling licenses (Repealed by 2195)
1237	Adds §§ 4-2-40, 4-2-41 and 4-2-42 to 1960 code, sewer connections (Repealed by 1330)
1238	Amends § 5-18-9 of 1960 code, liquor licenses (Repealed by 2116)
1239	Amends § 1-18-2 of 1960 code, amendments to civil service rules and regulations (Repealed by 2201)
1240	Adds to § 4-8-6 of 1960 code, swimming pools (Repealed by 1909)
1241	Adds § 10-2-33 to 1960 code, taxicabs (Repealed by 2203)
1244	Amends §§ 11-1-3, 11-1-20, 11-1-22 and 11-1-25 of 1960 code, zoning (Repealed by 5345)
1246	Specialized electrical ordinance adopted (Repealed by 1672)
1250	Amends § 5-17-1 of 1960 code, gambling licenses (Repealed by 2195)
1251	Amends §§ 2-5-2, 2-5-4, 2-5-6, 2-5-9, 2-5-10 and 2-5-12 of 1960 code, child care facilities (Repealed by 1805)
1252	Amends § 6-8-3 of 1960 code, minors in pool halls (10.56)
1253	Amends Ch. 10-30 of 1960 code, street barricading and channelization manual (11.50, 13.20)
1254	Amends § 6-8-3 of 1960 code, minors in pool halls (10.56)
1256	Adds § 8-3-24 and amends §§ 8-3-8 and 8-3-11 of 1960 code, garbage collection (Repealed by 5733)
1257	Amends Ch. 9-15 of 1960 code, public works construction specifications (13.44)
1258	Fire prevention code adopted (Repealed by 1572)
1263	City seal adopted (1.08)
1264	Amends § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)

Ordinance Number	
1265	Repeals and replaces Ch. 2-11 of 1960 code, parks and recreation advisory commission (2.42)
1267	Amends Subsection (T)10 of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)
1271	Amends § 6-1-2 of 1960 code, sleeping in public place (Repealed by 2228)
1276	Amends Ch. 2-7 of 1960 code, charitable solicitations (Repealed by 2335)
1277	Amends § 11-1-17B to 1960 code, zoning (Repealed by 5345)
1278	Amends Title 10 of 1960 code, traffic (11.04, 11.06, 11.12, 11.18, 11.20, 11.32, 11.42, 11.44, 11.46, 11.48, 11.50, 11.52)
1279	Adds § 6-1-25 to 1960 code, removing shopping carts (10.50)
1281	Amends Subsection (A) of § 5-18-23 and repeals § 5-18-20 of 1960 code, minors (Repealed by 2116)
1282	Amends Ch. 4-4 of 1960 code, heating, ventilating, air-conditioning, refrigeration and water conservation code (Repealed by 1405)
1283	Amends § 1-7-1 of 1960 code, employee pay plan (Repealed by 1994)
1284	Amends § 6-8-2 of 1960 code, minors (10.56)
1285	Amends § 1-18-2 of 1960 code, civil service rules and regulations (Repealed by 2201)
1286	Amends § 4-8-6 of 1960 code, swimming pools (Repealed by 1909)
1289	Building code adopted (Repealed by 1909)
1290	Amends Subsection (A) of § 11-1-14 and Subsection (B)2 of § 11-1-24 of 1960 code, zoning (19.32, 19.90)
1291	Adds Ch. 10-1-A to 1960 code, two and three wheeled vehicles (11.38)
1292	Amends § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)
1293	Amends § 10-1-1, Subsection (B) Schedule 5 of § 10-14-3, §§ 10-17-7 and 10-17-21, Schedule 7 of § 10-17-24, Schedule 10 of § 10-17-27 and Subsection (C) Schedule 1 of § 10-25-2 of 1960 code, traffic (11.16, 11.20, 11.40, 11.52)
1301	Amends § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)
1303	Amends Subsection (I) of § 5-18-2 and Subsection (B) of § 5-18-9 of 1960 code, liquor licenses (Repealed by 2116)
1304	Amends § 10-3-6 of 1960 code, parking (11.54)
1305	Amends Subsection (I) of § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1306	Amends §§ 10-3-11 and 10-3-12 of 1960 code, parking citations (11.54)

Ordinance Number	
1307	Adds § 21A to supplemental document attached to Ord. 1289, building code (Repealed by 1909)
1308	Adds § 10-15-22 to 1960 code, attentive driving (11.22)
1309	Amends §§ 2-5-9, 5-1-6, 5-1-7, 5-1-8, 5-1-10, 5-10-11, 5-16-4, 5-21-5, 5-28-3 and 5-29-3 of 1960 code, business licenses (Repealed by 1760, 1763, 1805, 1901, 2250)
1311	Adds Ch. 11-3 and amends §§ 4-6-12 and 4-6-25 of 1960 code, signs (Repealed by 3723)
1313	Amends §§ 6-1-22 and 6-1-39 and repeals § 6-1-11 of 1960 code, misdemeanors (Repealed by 2228)
1315	Amends Subsections (IV), (V) and (VII) of § 4-4-2 of 1960 code, heating, ventilating, air-conditioning, refrigeration and water conservation code (Repealed by 1405)
1316	Adds Ch. 5-32 to 1960 code, community antenna television systems (Repealed by 3362)
1318	Repeals § 10-17-30 of 1960 code (Repealer)
1319	Adds Ch. 9-16, amends § 9-13-5 and repeals Ch. 3-3 and § 9-13-6 of 1960 code, public improvement inspection fees (13.16, 13.40)
1320	Amends §§ 4-6-7 and 4-6-13 of 1960 code, signs (Repealed by 3723)
1323	Adds §§ 10-3-12 and 10-3-13 to 1960 code; repeals § 2 of Ord. 1306, parking (11.54)
1324	Adds § 22A to supplemental document attached to Ord. 1289, building code (Repealed by 1909)
1325	Adds Subsection (L) to § 2-5-12 and amends §§ 2-5-3, 2-5-4, 2-5-5, 2-5-8, Subsection (B) of § 2-5-9, Subsections (EE) and (HH) of § 2-5-10, Subsections (B), (C) and (G) of § 2-5-12 and Subsection (D) of § 2-5-14 of 1960 Code, child care facilities (Repealed by 1805)
1326	Civil service rules and regulations adopted (Repealed by 2201)
1328	Adds Ch. 11-4 to 1960 code, undergrounding of electrical lines (Repealed by 2238)
1329	Amends § 5-25-8 of 1960 code, wedding chapel rates (Repealed by 2245)
1330	Plumbing Code adopted; repeals Ch. 4-2 of 1960 code (Repealed by 1898)
1331	Adds § 10-17-33 and amends § 10-4-4 of 1960 code, traffic (11.02, 11.52)
1332	Adds Ch. 5-32 to 1960 code, billposters and handbill distributors (6.42)

Ordinance Number	
1333	Amends §§ 7-6-5 and 7-6-7 of 1960 code, liquefied petroleum gas (Repealed by 1333)
1334	Amends § 10-3-12 of 1960 code, parking exemption permits (11.54)
1337	Adds Subsection (P) to § 11-1-6 of 1960 code, zoning (19.68)
1338	Civil service rules and regulations adopted (Repealed by 2201)
1339	Adds to §§ 10-14-3(B) Schedule V, 10-17-24 Schedule VII, 10-17-26 Schedule IX, 10-17-27 Schedule X, 10-25-2(C) Schedule I, 10-26-2 Schedule II and 10-29-16 Schedule XIV of 1960 code, parking restrictions (11.16, 11.20, 11.42, 11.48, 11.52)
1340	Amends Subsection (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1341	Amends street barricading and channelization manual (Not codified)
1342	Amends §§ 2-5-9, 5-1-6, 5-1-7, 5-1-8, 5-1-10, 5-10-11, 5-10-12, 5-19-6, 5-19-17, 5-21-5 and 8-8-8 of 1960 code, license fees (Repealed by 1805, 1901, 2209, 2250)
1348	Amends § 6-8-6 of 1960 code, curfew for minors (10.54)
1349	Amends §§ 10-21-3 and 10-21-4 of 1960 code, traffic citations (11.08)
1350	Adds § 10-9-12 and amends §§ 10-9-5, 10-9-6 and 10-9-10 of 1960 code, traffic accidents (11.34)
1351	Adds §§ 10-8-4 and 10-8-5 and amends §§ 10-10-9 and 10-13-21 of 1960 code, traffic control (11.12)
1352	Amends § 8-5-3 of 1960 code, sewer service charges (Repealed by 1377)
1353	Amends § 11-3-7 of 1960 code, signs (Repealed by 3723)
1354	Adds Ch. 5-34 and repeals § 6-1-6 of 1960 code, dancehalls (Repealed by 2294)
1358	Adds § 11-1-25.5 and amends Subsection (B)(4) of § 11-1-25, zoning, and §§ 11-2-7 and 11-2-9 of 1960 code, subdivisions (Repealed by 5345)
1359	Amends Ord. 1316 and Ch. 5-33 of 1960 code, community antenna television systems (Repealed by 3362)
1360	Amends § 9-14-6 of 1960 code, street widths (Repealed by 2231)
1361	Repeals Ch. 5-23 of 1960 code (Repealer)
1362	Amends § 10-21-3 of 1960 code, traffic citations (11.08)
1363	Amends Subsection (B) of § 6-2-3 of 1960 code, dogs running at large (Repealed by 1777)

Ordinance Number	
1364	Amends Subsection (B) of § 11-1-3, Subsection (O) of § 11-1-16 and Subsection (A)(16) of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1365	Adds § 10-20-43 to 1960 code, obstructing view of drivers (11.28)
1369	Repeals and replaces Ch. 8-9 of 1960 code, air pollution control (Repealed by 1378)
1370	Amends Subsection (N)28 of § 7-3-3 of 1960 code, open burning (Repealed by 1572)
1371	Amends Subsections (A)1 and 4 and (B) of § 2-5-9 of 1960 code, child care facilities (Repealed by 1805)
1373	Amends Ch. 9-13 of 1960 code, curb cuts (13.16)
1377	Amends § 5-1-8 of 1960 code; repeals and replaces Ch. 8-5 of 1960 code, sewers (14.04)
1378	Repeals Ord. 1369 (Repealer)
1379	Amends Subsection (L)4 of § 11-2-12 and Subsection (A)8(a) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1380	Amends §§ 5-1-8 and 8-5-2 of 1960 code, sewer rates (Repealed by 1901 and 2138)
1381	Amends § 6-11-1; repeals § 6-11-7 and adds §§ 6-11-7 through 6-11-11 of 1960 code, obscene materials (10.42, 10.64)
1383	Adds Subsection (D) to § 6-18-12 of 1960 code, liquor licenses (Repealed by 2116)
1384	Adds to Schedule V of § 10-14-3(B), Schedule VII of § 10-17-24, Schedule X of § 10-17-27, Schedules II and III of § 10-26-2 and Schedule XIV of § 10-29-16 and amends Schedule I of Subsection C and Subsection C of § 10-25-2 of 1960 code, traffic (11.16, 11.20, 11.42, 11.48, 11.52)
1385	Amends § 5-17-2 of 1960 code, gambling licenses (Repealed by 2195)
1386	Amends Subsection (D) of § 11-1-19 and § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1387	Amends § 1-18-2 of 1960 code, amendments to civil service rules and regulations (Repealed by 2201)
1388	Adds § 5-31-12 to 1960 code, burglar alarm services (Repealed by 2297)
1389	Amends §§ 5-1-8 and 8-5-2 of 1960 code, sewer rates (Repealed by 1901 and 2138)
1390	Amends § 7-1-7 of 1960 code, fire zones (Repealed by 1502)
1392	Amends § 5-34-5 of 1960 code, dancehalls (Repealed by 2294)

Ordinance Number	
1393	Amends Subsection (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1394	Amends Subsection (G)5 of § 11-2-13 of 1960 code, fire hydrants (Repealed by 1969)
1395	Amends § 4-6-4 of 1960 code, signs (Repealed by 3723)
1397	Amends § 11-1-15 of 1960 code, zoning (Repealed by 5345)
1398	Amends §§ 5-1-8 and 8-5-1 of 1960 code, sewer rates (Repealed by 1901, 2138)
1400	Amends §§ 5-1-8 and 8-5-2 of 1960 code, sewer rates (Repealed by 1901, 2138)
1402	Amends § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1403	Adds Ch. 9-17 to 1960 code, park regulations (Repealed by 3163)
1405	Mechanical code adopted; repeals Ch. 4-4 of 1960 code (Repealed by 1490)
1407	Amends Subsection (E) of § 11-1-11 of 1960 code, zoning (Repealed by 5345)
1408	Amends § 11-1-17 of 1960 code, zoning (Repealed by 2119)
1409	Amends § 11-2-7 of 1960 code, signs (Repealed by 3723)
1410	Adopts plumbing code (Repealed by 1898)
1411	Amends §§ 5-1-8 and 8-5-2 of 1960 code, sewer rates (Repealed by 1901, 2138)
1412	Repeals Ch. 1-7 of 1960 code (Repealer)
1414	Amends § 6-1-34 of 1960 code, general penalty (10.02)
1415	Amends § 1-5-13 of 1960 code, child care facilities (Repealed by 1805)
1416	Amends Subsection (A) of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1417	Amends Subsection (A)5 of § 11-1-8.5 and Subsection (A)5 of § 11-1-9 of 1960 code, zoning (Repealed by 5345)
1419	Adds Subsections (R) and (S) to § 11-1-6 of 1960 code; amends Subsection (A)4 of § 11-1-24, Subsection (B)(3) of § 11-1-24 and Subsection (B)2 of § 11-1-25 of 1960 code, zoning (Repealed by 5345)
1420	Amends § 8-5-2 and repeals and replaces § 8-5-3 of 1960 code, sewer rates (14.04)
1421	Amends §§ 5-9-15, 5-9-16 and 5-9-30 of 1960 code, pawnbrokers (Repealed by 2199)

Ordinance Number	
1423	Adds to Schedule V of § 10-14-3(B), Schedule VII of § 10-17-24, Schedule IX of 10-17-26 and Schedule X of 10-17-26 and amends Schedule I of § 10-25-2(C) of 1960 code, traffic (11.16, 11.20, 11.52)
1424	Amends § 6-5-1 of 1960 code, registration of taxi drivers and employees of gambling and liquor establishments (Repealed by 2029)
1426	Amends Subsections (B) and (D) of § 11-1-17B of 1960 code, zoning (Repealed by 5345)
1430	Adds Subsections (Q) and (T) to § 11-1-6 and § 11-1-11A, amends Subsection (A) of § 11-1-8, Subsection (A) of § 11-1-8.5, Subsection (A) of § 11-1-9, Subsection (A) of § 11-1-12 and Subsection (A) of § 11-1-13 and repeals Subsection (G)4 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1431	Adds Subsection (H) and amends Subsection (A) of § 2-5-2 of 1960 code, child care facilities (Repealed by 1805)
1432	Adds §§ 11-2-16 and 11-2-17 of 1960 code, subdivisions (Repealed by 1969)
1433	Adds § 14A to amendments to Building Code (Repealed by 1909)
1434	Amends § 10-29-7 of 1960 code, vehicle width and length (Repealed by 2203)
1435	Disposal of personal property acquired by city (4.16)
1436	Amends Subsection (M) of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)
1437	Amends Subsection (R) of § 11-1-6 of 1960 code, zoning (Repealed by 1582)
1438	Amends § 1-6-2 of 1960 code, employee holidays (3.16)
1440	Amends Subsection (C) of § 10-10-5 of 1960 code, traffic (Repealed by 2203)
1441	Amends supplemental document to Ord. 1289, building code amendments (Repealed by 1909)
1442	Adds to § 6-2-1 and amends Subsection (B) of § 6-2-2 of 1960 code, animals (Repealed by 1777)
1444	Amends Subsection (G)2 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1445	Amends Subsection (J)d of § 7-3-3 of 1960 code, fire prevention code (Repealed by 1572)
1446	Amends Subsection (B)3 of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)

Ordinance Number	
1447	Amends §§ 5-18-2, 5-18-4, 5-18-7, 5-18-14 and 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1448	Adds Ch. 1-20 to 1960 code, complaints against employees; repeals §§ 1100 though 1199 of civil service rules (2.56)
1449	Amends civil service rules (Repealed by 2201)
1450	Electrical Code adopted (Repealed by 1672)
1451	Adds Subsection (M-a) and (M-b) and amends Subsection (P) of § 7-3-3 of 1960 code, Fire Prevention Code (Repealed by 1572)
1452	Amends Subsection (C) of § 4-6-4, Subsection (A) 4 of § 11-2-7 and Subsection (B) of § 11-3-8 of 1960 code, signs (Repealed by 3723)
1453	Adds § 18A and amendes § 6(f) of supplemental document attached to Ord. 1410, Plumbing Code (Repealed by 1898)
1454	Amends Subsection (I) of § 2-5-12 of 1960 code, child care facilities (Repealed by 1805)
1455	Amends § 11-1-6(A)(9) of 1960 code, zoning (Repealed by 5345)
1456	Amends § 6-8-6 of 1960 code, curfew for minors (10.54)
1458	Adds Subsection (C) to § 11-1-21 and amends Subsection (C) of § 11-1-11 and Subsection (D) of § 11-2-13 of 1960 code, zoning (Repealed by 5345)
1459	Amends §§ 10-4-4, 10-13-3, 10-13-10, 10-13-16, 10-14-3, 10-14-5, 10-17-12, 10-17-24, 10-17-26 and 10-17-27 of 1960 code, traffic (11.02, 11.12, 11.20, 11.52)
1460	Adds Subsection (D)4 to § 11-1-6 and amends Subsection (A)4(c) of § 11-1-12 of 1960 code, zoning (Repealed by 5345)
1461	Amends §§ 5-18-2, 5-18.8, 5-18-14 and 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1462	Not sent (Repealed by 2203)
934-169	Rezone (Special)
1463	Amends Subsection (L)2 of § 11-2-12 and Subsection (I) of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1464	Amends Subsection (A) of § 4-3-16 of 1960 code, electrical contractors (Repealed by 1672)
1465	Amends Subsection (C)14 of § 5-1-10 of 1960 code, contractor license fees (Repealed by 1901)
1466	Amends civil service rules (Repealed by 2201)
1467	Amends § 8-5-2 of 1960 code, sewer rates (Repealed by 2138)
1468	Amends § 9-8-12 of 1960 code, cemeteries (14.12)
1470	Outdoor festivals (Repealed by 2284)

Ordinance Number	
1474	Adds § 9-15-4 of 1960 code, traffic signal standards (Repealed by 2239)
1475	Adds Subsection (A) to 11(g) to § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1478	Adds Subsection (h) to § 13 of Ord. 1470; amends §§ 1, 3, 4, 5, 6, 7, 8 and 13 of Ord. 1470, outdoor festivals (Repealed by 2284)
1480	Adds §§ 5-13-9 and 5-13-10 and amends §§ 5-13-1 and 5-13-5 of 1960 code, mobile food vendors (Repealed by 2206)
1483	Repeals § 5-25-4 of 1960 code (Repealer)
1485	Amends Subsections (A)4 and (B)3 of § 11-1-24 and Subsection (B)2 of § 11-1-25 of 1960 code, zoning (Repealed by 5345)
1486	Adult group care facilities (Repealed by 2211)
1487	Amends § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1488	Amends § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1489	Building Code adopted (Repealed by 1909)
1490	Mechanical Code adopted; repeals Ch. 4-4 of 1960 code (Repealed by 1673)
1491	Amends Subsection (D)6 of § 11-1-22 of 1960 code, fire zones (Not codified)
1492	Amends § 11-1-6(A)6 of 1960 code, zoning (Repealed by 5345)
1493	Amends Subsection (H) of § 11-1-6 and Subsections (C) and (D) § 11-1-15 of 1960 code, zoning (Repealed by 5345)
1494	Repeals Subsection (B) of § 5-18-24 of 1960 code, liquor licenses (Repealed by 2116)
1495	Adds Subsection (A)12 of § 1-1-20 and amends Subsection (D)8 of § 11-1-17B, Subsection (A)1 of § 11-1-18 and Subsection (C)1 of § 11-1-19 of 1960 code, zoning (Repealed by 5345)
1497	Adds § 10-1-22 and amends § 10-1-5 of 1960 code, bicycles (11.40)
1498	Amends § 5-18-15 of 1960 code, liquor licenses (Repealed by 2116)
1499	Adds § 1-10-3 to 1960 code, alcoholism specialist (Repealed by 1689)
1500	Adds Ch. 6-12 to 1960 code, alcoholics (Repealed by 1689)
1502	Repeals and replaces Ch. 7-1 of 1960 code, fire zones (Repealed by 2211)
1503	Amends §§ 3-1-2 and 3-1-4 of 1960 code, Fire Department (2.20)
1504	Amends § 4-6-6 of 1960 code, signs (17.12)
1505	Amends Subsections (C)6 and 7 of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1506	Plumbing code adopted (Repealed by 1898)

Ordinance Number	
1507	Amends § 11-1-17A of 1960 code, zoning (Repealed by 5345)
1509	Adds § 11-2-18 to 1960 code, subdivisions (Deleted by 1801)
1510	Adds Ch. 3-6 to 1960 code, Police Reserve Corps (2.32)
1511	Adds Subsection (H) to § 11-4-3 of 1960 code, underground utilities (Repealed by 2238)
1512	Adds Subsection (A)17 to § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1513	Amends Subsections (D)2 and (F)3 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1515	Amends § 10-1-21 of 1960 code, bicycles (11.40)
1516	Adds Ch. 7-8 to 1960 code, mobile homes (Repealed by 2211)
1524	Amends Subsection (D)3 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1525	Amends Subsection (H)5 of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)
1526	Amends § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1528	Amends §§ 3-5-2, 3-5-3, 3-5-4 and 3-5-5 of 1960 code, police service fees (Repealed by 2219)
1529	Repeals §§ 10-9-1 through 10-9-8 of 1960 code (Repealer)
1530	Adds Subsection (B)1(c) to § 11-3-8 of 1960 code, signs (Repealed by 3723)
1531	Amends Subsection (A)4 of § 11-1-9 of 1960 code, zoning (Repealed by 1857)
1532	Amends Subsection (E) of § 1-10-3 of 1960 code, Alcoholic Advisory Board (Repealed by 1689)
1533	Amends Subsections (C)2, 4 and 5 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1534	Adds to Schedule IV of § 10-14-1, Schedule V of § 10-14-3(B), Schedule XIII of § 10-17-11, Schedule VI of § 10-17-12, Schedule VII of § 10-17-24, Schedule X of § 10-17-27, Schedule XII of § 10-18-2, Schedule I of § 10-25-2(C) and Schedule III of § 10-26-2 of 1960 code, traffic (11.16, 11.20, 11.42, 11.44, 11.52)
1535	Amends § 6-8-6 of 1960 code, curfew for minors (10.54)
1537	Amends § 9-14-3 of 1960 code, street plan map (Repealed by 2231)
1538	Adds § 11-1-25.6 to 1960 code, zoning (Repealed by 2083)
1539	Adds Ch. 9-18 to 1960 code, underground utilities (Repealed by 2238)
1540	Amends § 3-1-2 of 1960 code, Fire Department (2.20)

Ordinance Number	
1541	Repeals Ch. 10-11 of 1960 code (Repealer)
1542	Amends § 5-17-6 of 1960 code, gambling licenses (Void)
1544	Amends § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1545	Amends Subsection (E) of § 2-5-2 of 1960 code, child care facilities (Repealed by 1805)
1546	Amends Subsection (B) of § 11-1-23 of 1960 code, zoning (Repealed by 3094)
1547	Electrical Code adopted (Repealed by 1672)
1548	Amends §§ 5-17-4 and 5-17-12 of 1960 code, gambling licenses (Repealed by 2195)
1550	Adds Subsection (X) to § 5-18-2, Subsections (I) and (J) and Subsection (A)12 to § 5-18-14 and amends Subsections (A) and (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1551	Amends Subsection (A)10 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1553	Amends § 10-21-5 and repeals Subsections (D)5, 6, 7 and 9 of § 10-21-3 of 1960 code, traffic citations (11.08)
1554	Amends Subsection (R) of § 5-1-10 of 1960 code, gambling licenses (Repealed by 1901)
1555	Adds § 5-17-20 to 1960 code, gambling licenses (Repealed by 2195)
1557	Amends § 5-1-22 of 1960 code, coin-operated amusement devices (Repealed by 1901)
1558	Amends §§ 5-9-8, 5-9-9, 5-9-21, 5-9-29 and 5-9-32 of 1960 code, pawnbrokers (Repealed by 2199)
1561	Adds to Subsection (B)c of § 11-1-3, adds Subsection (A)7(f) of § 11-1-8, Subsection (A)7(e) of § 11-1-8.5, Subsection (A)7(e) of § 11-1-9, Subsection (A)5(e) to § 11-1-10, Subsection (A)5(f) to § 11-1-11, Subsection (A)11(h) to § 11-1-20, Subsection (A)9 to § 11-1-21, Subsection (C)4 to § 11-1-22 and Subsection (B)4 to § 11-1-23 and amends Subsection (A)9 of § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1563	Amends Ch. 10-30 of 1960 code, traffic barricading and control devices (11.50)
1564	Amends Subsection (A)8 of § 11-1-20 and repeals Subsection (D)4 of § 11-1-19 of 1960 code, zoning (Repealed by 5345)
1565	Repeals § 9-1-11 of 1960 code (Repealer)
1568	Adds §§ 5-24-5, 5-24-6 and 5-24-7 and amends § 5-24-3 of 1960 code, parking lots (Repealed by 2210)

Ordinance Number	
1569	Amends Subsection (P) of § 5-18-4 and Subsections (A)3 and (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1570	Amends § 5-1-22 of 1960 code, coin-operated amusement devices (Repealed by 1901)
1572	Fire Code adopted; repeals Chs. 7-3 and 7-4 (Repealed by 2077)
1575	Amends Subsections (A)14 and (F)2 of § 5-1-10 of 1960 code, business licenses (Repealed by 1901)
1576	Amends Subsection (H)1(b) of § 11-1-6 and Subsection (A)17(e) of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1579	Amends § 10-3-12 of 1960 code, parking meters (11.54)
1580	Adds to § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1582	Adds § 11-1-11B to 1960 code; amends § 11-1-6(c)(7), zoning; repeals § 11-1-6(c) (Repealed by 5345)
1583	Adds Ch. 4-10 to 1960 code, crime prevention construction standards (16.32)
1587	Adds § 10-15-23 to 1960 code, off-road vehicles (11.26)
1588	Adds § 5-34-6 to 1960 code, dancehalls (Repealed by 2294)
1589	Amends § 10-3-2, Subsection (B) of § 10-13-21, §§ 10-14-1, 10-14-3, Subsection (B) of § 10-17-11, §§ 10-17-12, 10-17-24, 10-17-25, 10-17-26, 10-17-27, Ch. 10-18, Subsection (C) of § 10-25-2, §§ 10-26-2, 10-27-1, Subsection (H) of § 10-29-7 and Subsection (B) of § 10-29-16 and repeals §§ 10-19-1 and 10-19-2 of 1960 code, traffic (11.12, 11.16, 11.20, 11.42, 11.44, 11.46, 11.48, 11.52, 11.54, 11.60)
1590	Amends Subsection (I) of § 15-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1591	Amends Subsections (A)7 and (B)5 of § 11-1-24 of 1960 code, zoning (Repealed by 5348)
1592	Amends Subsections (A), (C), (E) and (F) of § 11-2-9 of 1960 code, subdivisions (Repealed by 1969)
1593	Amends § 6-1-34 of 1960 code, general penalty (10.02)
1595	Adds Subsection (D)5 to § 11-1-6 and amends Subsection (A)5 of § 11-3-7 of 1960 code, zoning (17.48)
1596	Amends Subsection (A) of § 10-3-6 of 1960 code, parking (11.54)
1598	Adds Subsection (H)2(i) to § 11-1-6 of 1960 code, zoning (Repealed by 2168)
1602	Amends Subsection (A) of § 11-1-17A of 1960 code, zoning (Repealed by 5348)
1604	Amends § 10-17-24 of 1960 code, parking (11.52)

Ordinance Number	
1605	Amends §§ 8-3-12 and 8-3-15 of 1960 code, garbage collection rates (9.08)
1611	Amends § 5-1-18 of 1960 code, revocation of business licenses (Repealed by 1901)
1612	Adds § 5-29-14 and amends §§ 5-29-3 and 5-29-4 of 1960 code, massage parlors (Repealed by 1760)
1613	Amends Subsection (A) of § 5-10-1 of 1960 code, adult-oriented bookstores (Repealed by 1901)
1614	Adds Ch. 5-23 to 1960 code, escort bureaus (Repealed by 1774)
1616	Adds §§ 6-1-41 through 6-1-44 to 1960 code, nuisances (9.04)
1618	Adds to § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1619	Adds Ch. 5-36 to 1960 code, retail demonstration merchandise sales (Repealed by 2148)
1621	Amends § 5-16-3 of 1960 code, tobacco dealers (Repealed by 2250)
1622	Adds Subsection (A)7(f) and repeals Subsection (A)2 from § 11-1-15, adds Subsection (A)5 and repeals Subsection (A)2 from § 11-1-16, adds Subsection (D)4 and repeals Subsection (A)8 from § 11-1-19 and adds Subsection (A)13 to § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1623	Amends Subsection (A)14 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1625	Adds § 6-11-12 to 1960 code, live sex shows (10.42)
1626	Adds § 4-1-4 to 1960 code, theater construction standards (Repealed by 1909)
1627	Adds § 5-1-24 to 1960 code, adult oriented bookstores (Repealed by 1901)
1628	Adds Subsection (c)8 to § 11-1-6 and amends Subsection (c)7(d) of § 11-2-13 of 1960 code, zoning (Repealed by 5345)
1632	Amends § 2-2-1 of 1960 code, planning commission (2.44)
1634	Adds Ch. 9-19 and Subsection (H)3 to § 11-1-6 of 1960 code, parking lots (Repealed by 2168, 2210)
1635	Adds Subsection (A)13 to § 11-1-20, Subsection (A)10 to § 11-1-21 and § 11-1-25.7 and amends Subsection (A)3 of § 11-1-19 of 1960 code, zoning (Repealed by 5345)
1636	Amends Subsection (B) of § 5-22-24 and Subsection (B) of § 5-22-36 of 1960 code, trailer parks (Repealed by 2119)
1638	Adds Subsection (A)2(k) to § 4-10-2 of 1960 code, building security (16.32)

Ordinance Number	
1639	Amends §§ 6-11-2 and 6-11-3 of 1960 code, obscene material (10.42)
1640	Amends Ch. 6-12 of 1960 code, obscene items (10.42)
1641	Amends § 6-11-1 of 1960 code, obscene material (10.42)
1642	Adds §§ 5-1-25 and 5-1-26 to 1960 code, adult oriented businesses (Repealed by 1901)
1647	Adds to § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1648	Amends Subsections (A)14 of § 11.1-24 and (B)9 of § 11-1-25 of 1960 code, zoning (Repealed by 5345)
1651	Amends Subsection (H)3 of § 11-1-6 of 1960 code, zoning (Repealed by 2168)
1652	Amends title of Ch. 6-11 and § 6-11-1 of 1960 code, obscene material (10.42)
1653	Repeals § 6-1-39 of 1960 code (Repealer)
1655	Adds § 1-5-4 to 1960 code, discipline of elected officials (2.50)
1656	Adds § 1-5-5 to 1960 code, discipline of elected officials (2.50)
1657	Adds Subsection (E) to § 5-32-1 and amends §§ 5-32-2, 5-32-4 and 5-32-5 of 1960 code, handbill distribution (6.42)
1658	Special improvement district (Special)
1659	Amends Subsection (C) of § 10-3-6 of 1960 code, parking (Repealed by 5181)
1661	Adds Subsection C(6) and amends Subsection (A)10 of 11-1-24 of 1960 code, zoning (Repealed by 5345)
1662	Adds § 1-10-4 to 1960 code, city attorney (2.10)
1663	Readopts § 6-1-34 of 1960 code, misdemeanors (10.02)
1664	Amends § 10-17-33 of 1960 code, parking lots (11.52)
1665	Adds §§ 5-1-27 through 5-1-31 to 1960 code, obscene materials (Repealed by 1901)
1666	Fire Code adopted (Repealed by 2077)
1667	Amends § 2-11-1 of 1960 code, Parks and Recreation Advisory Commission (2.42)
1668	Amends § 5-1-19 of 1960 code, revocation of business licenses (Repealed by 1901)
1669	Amends Subsection (A)4 of § 5-1-10 of 1960 code, adult-oriented businesses (Repealed by 1901)
1670	Amends Subsection (A) of § 10-25-2 of 1960 code, speed limit (11.16)
1671	Plumbing Code adopted (Repealed by 1898)
1672	Electrical Code adopted; repeals Ch. 4-3 of 1960 code (Repealed by 1785)

Ordinance Number	
1673	Mechanical Code adopted; repeals Ch. 4-4 (Repealed by 2076)
1674	Amends § 11-1-23 of 1960 code, zoning (Repealed by 5345)
1679	Adds Ch. 4-11 to 1960 code, insulation (16.36)
1680	Amends § 9-8-3 of 1960 code, cemeteries (14.12)
1686	Repeals firefighter pay increase initiative (Repealer)
1687	Adds § 6-9-1 to 1960 code, loitering (Repealed by 1687)
1688	Amends §§ 5-1-27 through 5-1-30 and repeals § 5-1-31 of 1960 code, advertising of adult-oriented businesses (Repealed by 1901)
1689	Repeals § 1-10-2 and 6-12-1 of 1960 code (Repealer)
1690	Amends Ch. 7-5 of 1960 code, smoking (9.20)
1691	Adopts civil service rules (Repealed by 2201)
1692	Amends § 10-17-33 of 1960 code, parking in city lots (11.52)
1694	Amends Subsections (C)(1)(a) and (D)4(a) of § 4-10-1 and Subsections (A)1(b) and (A)2(c) of repeals Subsection (B) of § 4-10-4 of 1960 code, building security (16.32)
1695	Amends Subsection (C) of § 4.11-5 of 1960 code, insulation (16.36)
1696	Amends Subsection (E) of § 11-1-6, Subsections (A) and (C) of § 11-1-7, Subsection (F) of § 11-1-10, Subsection (F) of § 11-1.11, Subsection (A)2 of § 11-1-17A, Subsection (A)6 of § 11.1-19, Subsection (D)9B of § 11-1-22 and Subsection (C)2 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1698	Adds Subsection (C) to § 10-8-2 of 1960 code, traffic (Repealed by 2203)
1703	Adds § 1-22-1 to 1960 code, elective officers (2.54)
1704	Adds §§ 1-5-4 and 1-5-5 to 1960 code, Commissioners meetings (Repealed by 1729)
1705	Adds Subsection (E) to § 11-3-4 and Subsections (A)3 and (B)1 and 2 of § 11-3-7 of 1960 code, signs (Repealed by 3723)
1707	Amends Electrical Code (Repealed by 1785)
1708	Repeals and replaces Ch. 2-8 of 1960 code, District Board of H (Repealed by 5999)
1710	Adds § 5-37-1 to 1960 code, businesses requiring membership fees (6.44)
1711	Adds Ch. 5-38 to 1960 code, manufacture of identification material (Repealed by 2298)

Ordinance Number	
1712	Adds Subsection (A)10 to § 11-1-6, amends Subsection (B) of § 11-1-3, Subsection (A)5 of § 11-1-6 and Subsection (D)7 of § 11-1-17B and repeals Subsection (A)4 of § 11-1-8, Subsection (A)6 of § 11-1-8.5, Subsection (A)6 of § 11-1-9, Subsections (A)2(d) and (B)1(l) of § 11-1-17A and Subsection (C)1(f) of § 11-1-17B of 1960 code, zoning (Repealed by 5345)
1713	Amends Plumbing Code (Repealed by 1898)
1714	Compensation plan adopted (Repealed by 1994)
1717	Amends § 9-8-20 of 1960 code, cemetery (14.12)
1718	Amends § 9-8-8 of 1960 code, cemeteries (14.12)
1719	Amends § 9-8-3 of 1960 code, cemeteries (14.12)
1720	Amends § 9-14-12 of 1960 code, major street plan (Repealed by 2231)
1721	Adds §§ 5-1-1(a) and 5-1-1(b) to 1960 code, business licenses (Repealed by 1901)
1722	Amends Subsections (A)5, 6, 16 and 17 of § 11-1-24, Subsections (B)4 and 9 of § 11-1-25 and 11-1-25.7 of 1960 code, zoning (Repealed by 5345)
1723	Adds § 11-2-9.1 and amends § 11-2-7 and Subsections (C)2 and 3 of § 11-2-13 of 1960 code, subdivisions (Repealed by 1969)
1724	Building Code adopted (Repealed by 1909)
1725	Amends Subsection (C)9 of § 5-1-10 of 1960 code, coin-operated amusement machines (Repealed by 1901)
1726	Amends Subsection (F) of § 11-1-10 and Subsection (F) of § 11-1-11 of 1960 code, zoning (Repealed by 5345)
1727	Adds Subsection (U) to § 11-1-6 of 1960 code, zoning (Repealed by 1758)
1728	Amends Ch. 1-14 of 1960 code, issuance of citations (1.20)
1729	Adds §§ 1-5-6 and 1-5-7 and repeals §§ 1-5-4 and 1-5-5 of 1960 code, Board of Commissioners (2.02)
1731	Amends Subsection 12 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1733	Adds § 1-5-6 to 1960 code, election wards (Repealed by 1761)
1734	Amends Subsection (A) of § 11-1-17A of 1960 code, zoning (Repealed by 5345)
1737	Amends § 1-18-2 of 1960 code, civil service rules (Repealed by 2201)
1738	Amends Subsection (C) of § 2-11-1 and §§ 2-11-2, 2-11-3 and 2-11-4 of 1960 code, City Commission (2.42)

Ordinance Number	
1739	Amends § 1-19-1 of 1960 code, administrative commissions (Repealed by 2189)
1740	Adds Ch. 1-22 to 1960 code, merit award program (Repealed by 1773)
1742	Amends Subsection (C) of § 10-3-6 of 1960 code, parking (Repealed by 5181)
1744	Adds Ch. 5-37 to 1960 code, amplified sound in public places (Repealed by 2100)
1745	Repeals Subsections (K), (L) and (M) 3 and 4 of § 6-1-24 of 1960 code (Repealer)
1747	Adds Subsection (V) to § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1748	Amends Subsections (A)6 and 10 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1749	Amends Ch. 6-5 of 1960 code, registration of taxi drivers and employees of gambling and liquor establishments (Repealed by 2029)
1753	Repeals and replaces Ch. 5-29 of 1960 code, massage parlors (Repealed by 1760)
1755	Adds Ch. 6-13 to 1960 code, employment of illegal aliens (Repealed by 1902)
1756	Adds Ch. 5-37 to 1960 code, telephone answering services (Repealed by 1828)
1758	Repeals Subsection (U) from § 11-1-6 of 1960 code (Repealer)
1760	Repeals and replaces Ch. 5-29 of the 1960 code, massage parlors (Repealed by 1770)
1761	Adds § 1-5-8 to 1960 code; repeals Ord. 1733; wards (1.16, 2.02)
1763	Repeals and replaces Ch. 5-28 of 1960 code, ambulances (Repealed by 3973)
1764	Adds § 5-41-1 to 1960 code, certain businesses prohibited (Repealed by 2259)
1766	Amends § 5-11-11 of 1960 code, business licenses (Repealed by 1901)
1767	Renumbers Ch. 5-37 to 5-39, sound amplification devices (Repealed by 2100)
1768	Adds § 10-21-11 to 1960 code, automobile immobilizers (Repealed by 1836)
1770	Repeals and replaces Ch. 5-29 of 1960 code, massage parlors (Repealed by 1813)

Ordinance Number	
1772	Amends Subsection (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1773	Adds Ch. 1-23 to 1960 code; repeals Ord. 1740; merit award program (Repealed by 3595)
1774	Adds Ch. 5-23 to 1960 code, escort bureaus (Repealed by 2262)
1775	Adds § 9-8-24 and amends § 9-8-19 of 1960 code, cemeteries (14.12)
1776	Adds Ch. 5-42 to 1960 code, bathhouses (Repealed by 2285)
1777	Repeals and replaces Ch. 6-2 of 1960 code, animals (7.28)
1780	Amends Ch. 5-23 of 1960 code, escort bureaus (Repealed by 2262)
1782	Adds § 1-10-5 to 1960 code, City Attorney (2.10)
1783	Adds Subsection (D) to § 5-36-2 and §§ 5-36-15 through 5-36-21 and amends Subsection (J) of § 5-36-2, § 5-36-3, Subsection (A) of § 5-36-4 and § 5-36-14 of 1960 code, retail demonstration merchandise sales stores (Repealed by 2148)
1784	Amends § 6-1-17 of 1960 code, prostitution (10.36)
1785	Electrical Code adopted; repeals Ch. 4-3 of 1960 code (Repealed by 1991)
1786	Repeals and replaces § 8-3-15 of 1960 code, garbage collection charges (9.08)
1787	Amends Subsection (G) of § 5-29-6 and § 5-29-13 of 1960 code, massage parlors (Repealed by 1813)
1788	Compensation plan adopted; repeals Ch. 1-7 of 1960 code (Repealed by 1827)
1789	Amends Subsection (D) of § 10-21-11 of 1960 code, automobile immobilizers (Repealed by 1836)
1790	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)
1791	Amends § 1-5-6 of 1960 code, Board of Commissioners (2.02)
1792	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)
1794	Amends Ch. 5-41 of 1960 code, certain businesses prohibited (Repealed by 2259)
1795	Municipal Court Department III (Repealed by 2129)
1796	Adds Ch. 6-14 to 1960 code, ticket sales (10.52)
1798	Adds Subsection (C) to § 5-1-1 of 1960 code, business licenses (Repealed by 1901)

Ordinance Number	
1799	Amends Subsection (E) of § 5-29-1, Subsection (H) of § 5-29-4, Subsection (G) of § 5-29-6 and § 5-29-13 of 1960 code, massage parlors (Repealed by 1813)
1800	Amends Subsection (A) of § 5-28-21 of 1960 code, ambulances (Repealed by 3973)
1801	Amends § 11-2-9.1 and repeals § 11-2-18 of 1960 code, subdivisions (Repealed by 1969)
1803	Amends major street plan (Repealed by 2231)
1805	Repeals and replaces Ch. 1-5 of 1960 code, Child Welfare Board (Repealed by 3050)
1806	Adds Subsection (A)5 to § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
1807	Amends Ch. 5-23 of 1960 code, escort bureaus (Repealed by 2262)
1808	Adds Ch. 1-24 to 1960 code, Senior Citizens' Center Director (2.16)
1809	Adds Ch. 2-12 to 1960 code, Senior Citizens' Advisory Board (Repealed by 5026)
1811	Amends § 5-29-9 of 1960 code, massage parlors (Repealed by 1813)
1812	Amends Ch. 5-23 of 1960 code, escort bureaus (Repealed by 2262)
1813	Repeals and replaces Ch. 5-29 of 1960 code, massage parlors (Repealed by 2261)
1814	Amends § 6-16 of 1960 code, fireworks (9.28)
1815	Amends Building Code (Repealed by 1909)
1816	Amends § 6-1-16 of 1960 code, fireworks (9.28)
1818	Adds § 5-1-32 to 1960 code, business licenses (Repealed by 1901)
1820	Amends § 5-29-12 of 1960 code, massage parlors (Repealed by 2261)
1821	Amends §§ 5-23-8, 5-23-12 and 5-23-21 of 1960 code, escort bureaus (Repealed by 2262)
1822	Amends Ch. 5-27 of 1960 code, business licenses (Repealed by 2200)
1823	Amends Subsection (D) of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1824	Amends §§ 10-30-1 and 10-30-2 of 1960 code, traffic control manual adopted (11.50)
1826	Amends Subsection (C) of § 10-17-33 of 1960 code, city parking lots (11.52)
1827	Compensation plan adopted; Ord. 1788 repealed (Repealed by 1886)
1828	Amends Ch. 5-37 of 1960 code, health clubs, spas, weight reduction salons and clubs (6.44)

Ordinance Number	
1829	Adds Ch. 5-42 to 1960 code, membership clubs (Repealed by 1846, 1887)
1830	Amends Subsection (D) of § 5-18-6 of 1960 code, liquor licenses (Repealed by 2116)
1831	Repeals Subsection (C)14 of § 5-1-10 of 1960 code, contractors (Repealed by 1901)
1832	Adds Subsection (B) to § 4-5-8 of 1960 code, building security (Repealed by 1908)
1833	Amends § 1-5-6 of 1960 code, Board of Commissioners (2.02)
1835	Amends Subsection (B) of § 11-1-3, Subsection (A) of § 11-1-21, Subsection (C) of § 11-1-22 and Subsection (B) of § 11-1-23 of 1960 code, zoning (Repealed by 5345)
1836	Amends §§ 10-21-4 and 10-21-5, repeals § 10-3-11 and renumbers § 10-3-12 to 10-3-11 and 10-3-13 to 10-3-12, repeals Subsections (B) and (D) of § 10-21-1 and renumbers Subsection (C) to (B), and repeals §§ 10-17-29, 10-21-6, 10-21-7, 10-21-8, 10-21-9, 10-21-10 and 10-21-11 of 1960 code, traffic (11.08, 11.54)
1837	Adds Ch. 10-21(A) to 1960 code, parking citations and enforcement (Repealed by 3089)
1838	Amends Subsection (D) to § 11-1-19 of 1960 code, zoning (Repealed by 5345)
1839	Amends § 10-17-33 of 1960 code, City parking lots (11.52)
1840	Amends § 5-29-27 of 1960 code, massage parlors (Repealed by 2261)
1843	Adds Ch. 9-12A and amends § 9-12-1 of 1960 code, newsracks on public rights-of-way (13.24, 13.32)
1844	Amends § 5-1-18 of 1960 code, business licenses (Repealed by 1901)
1846	Adds Ch. 5-43 to 1960 code; repeals Ord. 1829, membership clubs (Repealed by 1887)
1847	Amends Subsection (E) of § 5-29-1, Subsection (G) of § 5-29-6 and § 5-29-13 of 1960 code, massage parlors (Repealed by 2261)
1848	Amends Subsections (A) and (C) of § 11-1-4, 11-1-8, Subsections (A)5(c), (d) and (e) of § 11-1-10, and Subsections (A)5(d), (e) and (f) of § 11-1-11 of 1960 code, zoning (Repealed by 5345)
1849	Amends § 5-16-11 of 1960 code, tobacco sales (Repealed by 2250)
1850	Amends § 5-1-11 of 1960 code, business licenses (Repealed by 1901)
1851	Amends Subsections (B)L of § 11-1-3, Subsections (D) and (E) of § 11-1-6 and Subsections (D), (F) and (G) of § 11-1-11 of 1960 code, zoning (Repealed by 5345)

Ordinance Number	
1852	Repeals Subsections (G), (H) and (J) and renumbers (I) to (G) of § 5-42-3; repeals Subsections (A), (B) and (C) and renumbers (D) to (A) of § 5-42-4; repeals §§ 5-42-6 and 5-42-8 and renumbers 5-42-7 to 5-42-6, 5-42-9 to 5-42-7 and 5-42-10 to 5-42-8 of 1960 code, membership clubs (Repealed by 1887)
1857	Adds Subsection (G)5 to § 11-1-6 and amends § 11-1-9 of 1960 code, zoning (Repealed by 5345)
1858	Amends Ord. 1795, Municipal Court Department III (Repealed by 2129)
1859	Amends Subsections (E) and (F)1 and 16a of § 4-5-2, Subsections (A), (B) and (C) of § 4-5-5, Subsection (A) of § 4-5-8 and Subsections (A)1, 12 and 16, (B)2 and 3 and (C) of § 4-5-10 of 1960 code, Housing Code (Repealed by 1908)
1860	Amends § 10-2-11 of 1960 code, parking (11.54)
1862	Adds Ch. 5-43 to 1960 code, Hearing Examiner (2.52)
1863	Amends § 9-12A-1 and Subsection (E) of § 9-12A-6 of 1960 code, newsracks (13.24)
1864	Amends Subsection (E)1 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
1865	Adds Subsection (F) to § 10-17-21 and amends Subsection (C) and adds Subsection (D) to § 10-21A-4 of 1960 code, traffic (Repealed by 5095)
1867	Municipal Court Department IV (Repealed by 2129)
1869	Adds § 9-12A-11 and amends §§ 9-12A-9 and 9-12-10 of 1960 code, newsracks (13.24)
1870	Amends § 1-5-8 of 1960 code, wards (1.16, 2.02)
1871	Amends Subsection (A)2 of § 1-5-8 of 1960 code, wards (1.16)
1872	Amends Ch. 5-42 of 2960 code, bathhouses (Repealed by 2285)
1873	Amends §§ 9-13-3, 9-13-4, 9-13-6, 9-13-7, 9-13-8 and 9-13-9 of 1960 code, curb cuts (13.16)
1874	Amends § 6-1-31 of 1960 code, resisting arrest (10.06)
1875	Amends §§ 6-6-2, 6-6-3, 6-6-4, 6-6-5 and 6-6-6, registration of convicts (Repealed by 2228)
1876	Adds Ch. 8-3A, litter; repeals §§ 8-3-20, 8-3-21, 8-3-22 and 8-3-23 and renumbers 8-3-24 to 8-3-20 of 1960 code (9.12, 9.16)
1877	Renumbers Subsection (A)21 to 22 and adds new Subsection (A)21 to § 5-1-10 of 1960 code, automobile rental agencies (Repealed by 1901)

Ordinance Number	
1878	Amends Subsection (A) of § 6-8-2 and §§ 6-8-6 and 6-8-7 of 1960 code, minors (10.54, 10.56)
1879	Amends §§ 6-1-14 and 6-1-26 of 1960 code, interfering with police officers (10.04, 10.10)
1880	Amends §§ 6-3-1, 6-3-2 and 6-3-3 of 1960 code, firearm permit (10.68)
1881	Amends §§ 64-6, 6-4-9, 6-4-10 and 6-4-11 of 1960 code, pistol permits (10.66)
1882	Amends § 9-12-8 of 1960 code, encroachments on public way (13.32)
1884	Adds § 1-5-9 to 1960 code, Mayor (2.02, 2.04)
1885	Amends Ch. 9-12A of 1960 code, newsracks (13.24)
1886	Compensation plan adopted; repeals Ord. 1827 (Repealed by 1994)
1887	Adds Ch. 544 to 1960 code, membership clubs; repeals Ords. 1829, 1846 and 1852 (Repealed by 2269)
1888	Amends Subsections (N), (O), (S) and (T) of § 6-2-3 of 1960 code, dog and cat licenses (Repealed by 3618)
1890	Adds Subsection (K) to § 6-1-24 of 1960 code, noise (9.16)
1892	Amends Subsection (3) of § 5-29-31 of 1960 code, massage parlors (Repealed by 2261)
1893	Adds § 5-43-7 to 1960 code, Hearing Examiner (2.52)
1895	Amends §§ 2-2-3.4 and 2-2-3.5 of 1960 code, flood control channel master plan (20.02)
1896	Amends § 1-5-6 of 1960 code, Board of Commissioners (2.02)
1897	Amends § 6-4-6 of 1960 code, pistol sales (10.66)
1898	Repeals and replaces Ch. 4-2, Plumbing Code (Repealed by 2085)
1899	Amends Subsection (H) of § 10-29-7 of 1960 code, vehicles (Repealed by 2203)
1901	Adds Ch. 5-1A and repeals and replaces Ch. 5-1 of 1960 code, business licenses (Repealed by 2248)
1902	Repeals Ord. 1755 (Repealer)
1903	Amends § 1-5-6 of 1960 code, Board of Commissioners (2.02)
1906	Amends §§ 5-9-5, 5-9-17, 5-9-18, 5-9-19, 5-9-20, 5-9-24, 5-9-29 and 5-9-31, pawnbrokers (Repealed by 2199)
1907	Moratorium on certain businesses in central business development district (Special)
1908	Housing Code adopted; Ch. 4-5 of 1960 code repealed (Repealed by 3057)

Ordinance Number	
1909	Building Code adopted; Ch. 4-1 of 1960 code repealed (Repealed by 2078)
1910	Adds § 2-5-21 and amends § 2-5-2 of 1960 code, child care facilities (Repealed by 3050)
1911	Uniform Code for the Abatement of Dangerous Buildings adopted (Repealed by 3897)
1912	Amends § 2.5-3 of 1960 code, Child Welfare Board (Repealed by 3050)
1913	Amends Subsection (C) of § 10-3-6 of 1960 code, City parking lots (Repealed by 5181)
1915	Adds Subsection (C)l(p) to § 11-1-17B of 1960 code, zoning (Repealed by 5345)
1916	Repeals § 6-1-29 of 1960 code (Repealer)
1917	Amends § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1918	Adds Ch. 11-5 to 1960 code zoning (Repealed by 5345)
1919	Amends Subsection (B) of § 5-l(A)-1 of 1960 code, business licenses (Repealed by 2008)
1920	Amends Subsection (C) of § 5-1-16 of 1960 code, business licenses (Repealed by 2186)
1922	Repeals and replaces Ch. 9-2 of 1960 code, building numbering (Repealed by 3262)
1923	Amends Subsection (D) of § 11-1-17B, Subsection (C) of § 11-1-19 and Subsection (A) of § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1924	Amends § 11-1-3 of 1960 code, zoning (Repealed by 5345)
1924	Adds Subsection (Q) to § 10-17-1 of 1960 code, parking (11.52)
1926	Amends Ch. 5-3 of 1960 code, private detectives (Repealed by 2188)
1927	Repeals Ch. 5-5 of 1960 code (Repealer)
1928	Amends § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1929	Amends Subsection (O) of § 5-18-4 and § 5-18-7, liquor licenses (Repealed by 2116)
1930	Amends Ch. 5-2 of 1960 code, Convention Authority room tax and gaming tax (Repealed by 2247)
1932	Amends §§ 5-22-24 of 1960 code, trailer parks (Repealed by 2119)
1933	Adds Subsection (Y) to § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1934	Amends § 11-3-8 of 1960 code, signs (Repealed by 3723)

Ordinance Number	
1935	Amends Subsection (A)12 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1936	Adds § 6-10-3 to 1960 code, burglar alarms (10.18)
1937	Amends Subsection (I) of § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1938	Amends § 5-1-10 of 1960 code, business licenses (Repealed by 2186)
1942	Adopts compensation plan (Repealed by 1994)
1944	Adds Ch. 2-12 to 1960 code, Arts Commission (Repealed by 3288)
1945	Amends Subsection (B) of § 11-1-3, Subsections (C)2 and (D)6 of § 11-1-19 and Subsections (A)11 and (C)2 of § 11-1-20 of 1960 code, zoning (Repealed by 5345)
1946	Amends Ch. 5-8 of 1960 code, secondhand dealers (Repealed by 2196)
1947	Amends Subsection (B) of § 10-10-5 of 1960 code, traffic control signals (Repealed by 2203)
1948	Adds Ch. 1-9 to 1960 code, Deputy City Managers (2.08)
1949	Amends § 5-17-19 of 1960 code, gambling licenses (Repealed by 2195)
1950	Extends moratorium on certain businesses in central business development district (Special)
1951	Amends § 11-3-6 of 1960 code, signs (Repealed by 3723)
1952	Amends § 6-4-11 of 1960 code, registration of pistols (10.66)
1953	Amends § 5-24-7 of 1960 code, parking lots (Repealed by 2210)
1955	Amends Subsection (A)5 of § 5-18-7 of 1960 code, liquor licenses (Repealed by 2116)
1956	Amends Subsection (B) of § 5-18-16 of 1960 code, liquor licenses (Repealed by 2116)
1959	Amends § 2-12-1 of 1960 code, Senior Citizens' Advisory Board (Repealed by 5206)
1960	Amends Subsection (D) of § 5-18-6 of 1960 code, liquor licenses (Repealed by 2116)
1961	Amends § 5-17-2 of 1960 code, gambling licenses (Repealed by 2195)
1962	Amends Subsections (A) and (B) of § 11-2-10 of 1960 code, subdivisions (Repealed by 2047)
1963	Adopts compensation plan (Repealed by 1994)
1965	Amends Subsection (H) of § 10-29-7 of 1960 code, vehicle width and length (Repealed by 2203)
1966	Adds § 8-5-6 of 1960 code, sewers (14.04)

Ordinance Number	
1967	Amends §§ 2-5-8, 2-5-9, 2-5-11 and 2-5-22 and repeals and replaces § 2-5-2 of 1960 code, child care facilities (Repealed by 3050)
1969	Repeals and replaces Ch. 11-2 of 1960 code, subdivisions (Repealed by 3806)
1971	Amends § 5-17-20 of 1960 code, gambling licenses (Repealed by 2195)
1972	Repeals and replaces § 6-1-11 of 1960 code, loitering (Repealed by 3862)
1973	Adds Subsection (A)4.1 to § 11-1-24 and Subsection (B)2.1 to § 11-1-25 of 1960 code, zoning (Repealed by 5345)
1974	Amends Subsection (A)11 of § 11-1-20, Subsection (A)9 of § 11-1-21, Subsection (C) of § 11-1-22 and Subsection (B) of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1975	Amends § 5-9-32 and repeals § 5-9-33 of 1960 code, pawnshops (Repealed by 2199)
1976	Amends Subsection (R) of § 5-18-2 of 1960 code, liquor licenses (Repealed by 2116)
1977	Amends § 5-17-20 of 1960 code, gambling licenses (Repealed by 2195)
1978	Amends Subsection (B) of § 5-17-6 of 1960 code, gambling licenses (Repealed by 2195)
1979	Annexation (Special)
1980	Amends Subsection (A)17 of § 11-1-24 of 1960 code, zoning (Repealed by 5345)
1984	Amends Subsection (A)8(c) of § 11-2-13 of 1960 code, subdivisions (Repealed by 3806)
1985	Repeals and replaces § 1-17-8 of 1960 code, claims against the City (4.12)
1986	Repeals and replaces Subsection (A) of § 1-5-8 of 1960 code, wards (Repealed by 3986)
1987	Amends Subsection (A) of § 2-5-9 of 1960 code, child care facilities (Repealed by 3050)
1990	Amends § 10-8-4 of 1960 code, traffic control (Repealed by 2203)
1991	Repeals and replaces Ch. 4-3 of 1960 code, electrical code (Repealed by 2182)
1992	Amends § 8-3-15 of 1960 code, garbage collection charges (9.08)
1993	Amends Subsection (BB) of § 2-5-11 and Subsection (E) of § 2-5-16 of 1960 code, child care facilities (Repealed by 3050)

Ordinance Number	
1994	Repeals and replaces Ch. 1-7 of 1960 code, compensation plan (Repealed by 2110)
1995	Repeals and replaces Subsection (O)17 of § 2-5-11 of 1960 code child care facilities (Repealed by 3050)
1996	Adds § 2-5-23 to 1960 code, child care facilities (Repealed by 3050)
1997	Amends Subsection (c) of § 11-1-4 of 1960 code, zoning (19.06)
2001	Repeals and replaces Subsection (c) of § 5-18-9 of 1960 code, liquor licenses (Repealed by 2116)
2004	Repeals Subsection (A)5 of § 5-18-17 of 1960 code (Repealed by 2116)
2008	Repeals Subsection (B) of § 5-1A-1 of 1960 code (Repealer)
2009	Adds § 5-18-29 to 1960 code, liquor licenses (Repealed by 2116)
2012	Amends Subsection (D) of § 11-1-20 of 1960 code, zoning (19.46)
2013	Amends § 5-13-10 of 1960 code, peddlers (Repealed by 2206)
2014	(Repealed by 2023)
2016	Amends Subsection (B)1 of § 11-3-7 of 1960 code, signs (Repealed by 3723)
2017	Amends Subsection (c)1 of § 11-1-24 of 1960 code, zoning (19.80)
2022	Adds Ch. 5-45 to 1960 code, vacation certificate sales (Repealed by 5998)
2023	Adds Ch. 8-5A to 1960 code; repeals Ord. 2014, sewer surcharges (Repealed by 2073)
2024	Adds §§ 9-17-5, 9-17-6 and 9-17-7 to 1960 code, park hours (Repealed by 3163)
2025	Amends § 6-1-17 of 1960 code, prostitution (10.36)
2027	Amends § 5-17-1 of 1960 code, gambling licenses (Repealed by 2195)
2029	Adds Ch. 5-46 to 1960 code; repeals Ch. 6-5 from 1960 code; employee work cards (6.86)
2030	Amends Subsection (c) of § 5-18-2 and Subsection (B) of § 5-18-17 of 1960 code, liquor licenses (Repealed by 2116)
2031	Adds § 1-17-16 to 1960 code, revenue from fines and forfeitures (4.04)
2034	Adds § 10-15-24 to 1960 code, careless driving (11.22)
2036	Adds Ch. 2-14 to 1960 code, mobile home park mediation board (Repealed by 3358)
2038	Amends §§ 10-1-20 and 10-7-5 of 1960 code, toy vehicles prohibited (11.22, 11.40)
2039	Amends Ch. 1-16 of 1960 code, City seal and flag (1.08)

Ordinance Number	
2040	Amends §§ 9-1-13, 9-1-14 and 9-1-15 of 1960 code, excavations (13.20)
2043	Adds § 5-46-12 and amends Subsection (A)2 of § 5-46-3 and 5-46-8 of 1960 code, employee work cards (6.86)
2044	Adds Ch. 12-1 to 1960 code, electric power franchise (14.20)
2045	Adds §§ 11-2-18 through 11-2-27 and amends § 11-2-5 of 1960 code, subdivisions (Repealed by 3806)
2047	Amends § 11-2-5 and repeals and replaces §§ 9-16-5 and 11-2-10, subdivisions (Repealed by 3806)
2048	Adds Ch. 12-2 to 1960 code, community antenna television franchise (14.20)
2051	Amends § 9-12-8 of 1960 code, obstructions on public way (13.32)
2052	Amends § 4-5-4 of 1960 code, Housing Code (Repealed by 3057)
2054	Adds § 6-2-4.5 and amends Subsections (A) and (D) of § 6-2-4 and Subsection (G) of § 6-2-5 of 1960 code, animals (Repealed by 3618)
2055	Amends §§ 5-33-1, 5-33-3, 5-33-4, 5-33-5, 5-33-6, 5-33-7, 5-33-8, 5-33-9, 5-33-10, 5-33-11, 5-33-12, 5-33-13, 5-33-14, 5-33-15, 5-33-18 and 5-33-19 of 1960 code, community antenna television systems (Repealed by 3362)
2056	Amends Plumbing Code (Repealed by 2085)
2057	Adds § 5-18-6.5 to 1960 code and amends § 5-18-6 of 1960 code, liquor licenses (Repealed by 2116)
2060	Renumbers § 11-2-5 to 11-2-4 of 1960 code, subdivisions (Repealed by 3806)
2061	Renumbers §§ 5-45-13 to 5-45-12 and 5-45-14 to 5-45-15 and adds new §§ 5-45-13 and 5-45-14, amends §§ 5-45-1, 5-45-2, 5-45-3, 5-45-4, 5-45-6, 5-45-9 and 5-45-10 and repeals § 5-45-12 of 1960 code, vacation certificate sales (Repealed by 5998)
2062	Amends §§ 1-6-2 and 10-3-6 of 1960 code, holidays (3.16, 11.54)
2063	Adds § 4-12-10 to 1960 code, dangerous buildings (Repealed by 3897)
2069	Amends Subsection (B) of § 6-2-3 of 1960 code, dogs (Repealed by 3618)
2070	Amends § 5-1-5 of 1960 code, business licenses (Repealed by 2186)
2071	Amends Subsection (A)7 of § 11-1-24 of 1960 code, zoning (Repealed by 3335)
2073	Repeals and replaces Ch. 8-5(A) of 1960 code, sewer surcharges (14.04)
2074	Amends § 5-1(A)2 of 1960 code, business licenses (Repealed by

Ordinance Number	
2075	Amends Electrical Code (Repealed by 2182)
2076	Repeals and replaces Ch. 4-4 of 1960 code, Mechanical Code (Repealed by 3025)
2077	Repeals and replaces Ch. 7-2 of 1960 code, Fire Code (Repealed by 3058)
2078	Repeals and replaces Ch. 4-1 of 1960 code, Building Code (Repealed by 3106)
2079	Readopts § 6-1-34 of 1960 code, misdemeanors (10.02)
2082	Amends § 8-3-15 of 1960 code, garbage collection charges (9.08)
2083	Repeals and replaces § 11-1-25.6 of 1960 code, street name changes (Repealed by 5345)
2084	Amends Subsection (c)7 of § 11-2-13 and Subsection (A) of § 11-2-23 of 1960 code, subdivisions (Repealed by 3806)
2085	Repeals and replaces Ch. 4-2 of 1960 code, Plumbing Code (Repealed by 3026)
2086	Amends Subsections (B)1 and 2 of § 11-1-25 of 1960 code, zoning (Repealed by 5345)
2087	Adds Subsection (c) to § 5-28-27 and amends §§ 5-28-4, 5-28-5, 5-28-6 and 5-28-29 of 1960 code, ambulance services (Repealed by 3973)
2090	Amends Subsection (B) of § 11-2-3 of 1960 code, underground utilities (Repealed by 2238)
2091	Adds Ch. 6-15 to 1960 code, sale of drug paraphernalia (10.30)
2092	Amends § 2-2-2 of 1960 code, Planning Commission (2.44)
2096	Amends § 11-1-17.A of 1960 code, zoning (Repealed by 5345)
2097	Amends § 11-3-8 of 1960 code, signs (Repealed by 3723)
2100	Amends § 6-1-24 and repeals and replaces Ch. 5-39 of 1960 code, noise (6.76, 9.16)
2101	Amends § 2-12-1 and repeals § 2-12-4 of 1960 code, Senior Citizens' Advisory Board (Repealed by 5206)
2102	Amends Subsections (A)4.1 and (B)3 of § 11-1-24 and Subsection (B)2.1 of § 11-1-25 of 1960 code, zoning (Repealed by 5345)
2103	Adds Ch. 9-20 to 1960 code, City Park Rangers (Repealed by 3622)
2104	Amends § 6-2-4.5 of 1960 code, animals (Repealed by 3618)
2107	Repeals and replaces § 10-30-1 of 1960 code, traffic control manual (11.50)
2108	Amends Subsection (L) of § 2-5-2 and Subsection (E) of § 2-5-13 of 1960 code, child care facilities (Repealed by 3050)

Ordinance Number	
2109	Amends § 9-2-1 of 1960 code, building numbering (Repealed by 3262)
2110	Repeals and replaces § 1-7-1 of 1960 code, personnel policy and procedures manual (Repealed by 2177)
2111	Adds Subsection (c)14 to § 5-1(A)4 of 1960 code, business licenses (Repealed by 2248)
2112	Amends Subsection (A)7 of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
2113	Amends § 8-3A-2 of 1960 code, litter (9.12)
2115	Adds Ch. 11-5 to 1960 code, flood hazard reduction (20.08)
2116	Repeals and replaces Ch. 5-18 of 1960 code, liquor licenses (6.50)
2117	Amends § 5-17-12 of 1960 code, gambling licenses (Repealed by 2195)
2118	Adds Subsection (X) to § 11-1-6 of 1960 code, zoning (Repealed by 5345)
2119	Adds §§ 11-1-3.A and 11-1-17, amends § 11-1-4 and repeals Ch. 5-22 and § 11-1-17 of 1960 code, zoning (Repealed by 5345)
2120	Adds Ch. 4-13 to 1960 code, mobile homes (16.44)
2121	Amends Subsection (A) of § 5-l(A)-4 of 1960 code, business licenses (Repealed by 2248)
2122	Amends § 5-17-4 of 1960 code, gambling licenses (Repealed by 2195)
2125	Amends §§ 9-14-11 and 11-2-13 of 1960 code, street improvement (Repealed by 3806)
2126	Amends Subsection (D) of § 11-1-6 of 1960 code, zoning (Repealed by 5345)
2127	Amends §§ 11-1-8(C), 11-1-8.5(C), 11-1-9(C), 11-1-10(B), 11-1-11(B), 11-1-12(B), 11-1-13(B), 11-1-14(B) and 11-1-15(B) of 1960 code, zoning (Repealed by 5345)
2128	Amends Building Code (16.04)
2129	Repeals and replaces Ch. 1-25 of 1960 code, Municipal Court (2.26)
2130	Amends §§ 5-8-1 and 5-8-7 of 1960 code, secondhand dealers (Repealed by 2196)
2133	Amends Subsection (B) of § 5-5-1 and § 5-5-2 of 1960 code, sexually oriented businesses (Repealed by 5345)
2138	Repeals and replaces §§ 8-5-1 and 8-5-2 of 1960 code, sewer user charges (Repealed by 3606)
2139	Amends § 5-17-7 of 1960 code, gambling licenses (Repealed by 2195)
2140	Amends §§ 5-6-2 and 5-6-3 of 1960 code, auctions (Repealed by 2197)

Ordinance Number	
2144	Amends § 11-1-25.6 of 1960 code, street name changes (Repealed by 5345)
2145	Amends Plumbing Code (16.32)
2146	Adds § 8-5A-2A and amends §§ 8-5A-1, 8-5A-2 and 8-5A-3 of 1960 code, sewer surcharges (14.04)
2147	Amends § 5-17-2 of 1960 code, gambling licenses (Repealed by 2195)
2148	Amends Subsection (D) of § 11-1-17.B, Subsection (D) of § 11-1-19, Subsection (A)11 of § 11-1-20 and Subsection (B)8 of § 11-1-24 and repeals and replaces Ch. 5-36 of 1960 code, retail demonstration merchandise sales stores (Repealed by 5345)
2149	Amends Subsection (P) of § 5-l(A)-4 of 1960 code, business licenses (Repealed by 2248)
2151	Repeals § 5-1-18 of 1960 code (Repealer)
2153	Amends § 5-1-5 of 1960 code, business licenses (Repealed by 2186)
2154	Amends § 1-5-8 of 1960 code, elections (2.02)
2156	Repeals § 5-17-19 of 1960 code (Repealer)
2157	Amends § 5-l(A)-4(F) of 1960 code, business licenses (Repealed by 2248)
2158	Amends § 5-18-17(I) of 1960 code, alcoholic liquor (Repealed by 3549)
2159	Amends § 11-1-24(C) of 1960 code, zoning (Repealed by 5345)
2162	Adds § 11-1-21(D) of 1960 code; amends §§ 11-1-3(B), 11-1-6(A), 11-1-8(A)6(c)(l5) and (d)(5), 11-1-11.A(c)7, 11-1-12(A)4(b)(4) and (c)(4), 11-1-16(B)2(c), 11-1-17(E)7, 11-1-l7.A(B)l(p), 11-1-17.B (C)l(n), 11-1-19(F), 11-1-20(D) and 11-1-22(D)8, zoning (Repealed by 5345)
2163	Amends §§ 10-21(A)-1 through 10-21(A)-5 of 1960 code, traffic violations; repeals § 10-21(A)-6 (Repealed by 3089)
2165	Adds § 5-18-5(D) of 1960 code; amends §§ 5-18-2, 5-18-3, 5-18-4 (F), 5-18-6, 5-18-9(A) and (D), 5-18-12(B), 5-18-15(C), 5-18-16(B) and 5-18-17(E) and (F), alcoholic liquor (6.50)
2166	Amends § 6-2-2(F) of 1960 code, animals (Repealed by 3618)
2168	Repeals and replaces § 11-1-6(H) of 1960 code, zoning (Repealed by 5345)
2169	Amends § 5-l(A)-4(M) of 1960 code, business license (Repealed by 2248)
2170	Amends § 6-2-4(F) of 1960 code, animals (Repealed by 3618)
2171	Readopts § 6-1-34 of 1960 code, misdemeanors (10.02)
2172	Amends § 1-1-7 of 1960 code, general penalty; repeals Ch. 10-3 (1.24)

Ordinance Number	
2173	Repeals and replaces Ch. 10-23 of 1960 code, driving under influence (Repealed by 5864)
2175	Repeals § 5-28-13 of 1960 code (Repealer)
2176	Adds Ch. 3-4(A), police (2.24)
2177	Repeals and replaces Ch. 1-7 of 1960 code, personnel; repeals Ords. 1994 and 2110 (Repealed by 3062)
2180	Amends § 5-1A-3 of 1960 code, business licenses (Repealed by 2248)
2181	Amends § 5-5-1 of 1960 code, zoning (Repealed by 5345)
2182	Repeals and replaces Ch. 4-3 of 1960 code, electrical code (16.12)
2183	Adds new chapter to Title 5 of 1960 code, armored car services (Repealed by 4000)
2184	Amends §§ 8-3-8, 8-3-16 and 8-3-17 of 1960 code, garbage collection (9.08)
2185	Adds § 11-1-11.C to 1960 code; amends § 11-1-11.B, zoning (Repealed by 5345)
2186	Repeals and replaces Ch. 5-1 of 1960 code, business licenses (6.02)
2187	Adds Ch. 54 to 1960 code, "privileged" businesses (6.06)
2188	Repeals and replaces Ch. 5-3 of 1960 code, security personnel, repossessors and process servers (Repealed by 3354)
2189	Repeals and replaces Ch. 1-19 of 1960 code, boards and commissions (2.52)
2190	Amends Ch. 2-9 of 1960 code, Traffic and Parking Commission (Repealed by 3474)
2191	Amends Ch. 2-11 of 1960 code, Parks and Recreation Advisory Commission (2.42)
2192	Repeals and replaces Ch. 2-4 of 1960 code, Golf Board (Repealed by 3624)
2193	Amends Ch. 3-1 of 1960 code, Department of Fire Services (2.20)
2194	Amends Major Street Plan of the City of Las Vegas (Not codified)
2195	Repeals and replaces Ch. 5-17 of 1960 code, gaming (6.40)
2196	Repeals and replaces Ch. 5-8 of 1960 code, secondhand dealers (6.74)
2197	Repeals and replaces Ch. 5-6 of 1960 code, auctions (Repealed by 3563)
2198	Repeals and replaces Ch. 5-43 of 1960 code, hearing examiners (2.22)
2199	Repeals and replaces Ch. 5-9 of 1960 code, pawnbrokers (6.60)
2200	Repeals and replaces Ch. 5-27 of 1960 code, business regulation enforcement (6.88)

Ordinance Number	
2201	Repeals and replaces Ch. 1-18 of 1960 code, civil service (3.04)
2202	Adds Ch. 5-47 to 1960 code, time-share real estate agents (Repealed by 3071)
2203	Adds §§ 10-6-4, 10-15-21(C) and (D) and 10-17-33 of 1960 code; amends §§ 10-1-1, 10-1A-3, 10-3-3, 10-3-4, 10-3-5, 10-3-8, 10-3-12, 10-4-1, 10-6-2, 10-6-3, 10-7-2, 10-12-2, 10-15-21(B), 10-17-6, 10-20-25(A), 10-21-1, 10-21-2, 10-21-3, 10-21(A)-8(A), 10-21(A)-9(C)(1) and 10-28-1; repeals and replaces § 10-4-2 and Ch. 10-8, traffic; and repeals §§ 10-1-3—10-1-9 and 10-1A-2, Ch. 10-2, §§ 10-4-3 and 10-4-4, Ch. 10-5, §§ 10-7-6, 10-9-9, 10-9-10, 10-10-3, 10-10-5—10-10-9,10-13-3(A), (B) and (C), 10-13-4, 10-13-7—10-13-10, 10-13-12—10-13-18, 10-14-6, 10-14-9, 10-15-1, 10-15-2, 10-15-4, 10-15-8, 10-15-10, 10-15-12, 10-15-13, 10-15-18, 10-17-7 (A)—(M), 10-17-8, 10-19-6, 10-19-7, 10-19-8, 10-20-1—10-20-17, 10-20-19, 10-20-20, 10-20-24, 10-20-33, 10-20-34 and 10-20-35, Ch. 10-24, and §§ 10-25-1, 10-25-4, 10-25-5(C), 10-29-1—10-29-7, 10-29-13, 10-29-14 and 10-29-15 (11.02, 11.04, 11.06, 11.08, 11.18, 11.24, 11.28, 11.36, 11.38, 11.40, 11.46, 11.54, 11.60)
2204	Adds provisions to Ch. 10-33 of 1960 code, driving while intoxicated (11.14)
2206	Repeals and replaces Ch. 5-11 of 1960 code, peddlers, solicitors and temporary merchants; repeals Chs. 5-12 and 5-13 (Repealed by 5066)
2207	Amends §§ 11-1-19(D), 11-1-20(A)11 and 11-1-24(B)7, 8 of 1960 code, zoning (Repealed by 5345)
2208	Repeals Ch. 2-3 of 1960 code (Repealer)
2209	Repeals Chs. 8-1, 8-2, 8-4, 8-7 and 8-8 of 1960 code (Repealer)
2210	Adds Ch. 10-32 to 1960 code, parking lots; repeals Chs. 5-24 and 9-19 (6.58)
2211	Adds Ch. 7-9 to 1960 code, fire safety; repeals § 3-2-1, Ch. 7-1, § 7-5-3, Chs. 7-6, 7-7 and 7-8, and §§ 8-3-7, 9-1-1 and 9-1-2 (9.24, 9.28)
2212	Amends § 1-1-7 of 1960 code, general penalty (1.24)
2213	Adds Ch. 5-12 to 1960 code, convention and trade show businesses; amends § 5-11-1, peddlers, solicitors and temporary merchants (6.28)
2217	Amends § 9-8-24 of 1960 code, cemetery (14.12)
2218	Amends § 1-21-1 of 1960 code, citizen complaints (2.56)

Ordinance Number	
2219	Repeals Ch. 3-5 of 1960 code (Repealer)
2220	Repeals § 1-14-7 of 1960 code (Repealer)
2222	Adds § 11-3-4(F) to 1960 code; amends § 11-3-8, signs (Repealed by 3723)
2223	Amends §§ 11-1-24(A)(12) and 11-1-24(B)(8) of 1960 code, zoning (Repealed by 5345)
2224	Amends §§ 8-5-2 and 8-5-4 of 1960 code, sewers (14.04)
2225	Amends § 6-1-13 of 1960 code, food and lodging fraud (10.26)
2226	Adds §§ 24 and 25 to Building Code amendments adopted by § 4-1-1 of 1960 code, Building Code (16.04)
2227	Adds § 26 to Building Code amendments adopted by § 4-4-1 of 1960 code, Building Code, and § 32 to Fire Code amendments adopted by § 7-2-1 of 1960 code, Fire Code (16.04, 16.16)
2228	Amends §§ 6-10-2, telephone abuse, and 6-11-2, 6-11-3 and 6-12-4, obscene material, of 1960 code; repeals §§ 6-1-2, 6-1-3, 6-1-4, 6-1-6, 6-1-15, 6-1-21, 6-1-23, 6-1-27, 6-1-32 and 6-3-7, Chs. 6-6 and 6-7, and §§ 6-9.1 and 6-10.1 (10.28, 10.42)
2229	Amends Ch. 3-6 of 1960 code, Police Reserve (2.32)
2230	Repeals §§ 5-32-8, 5-32-12 and 5-32-14 of 1960 code (Repealer)
2231	Repeals and replaces Ch. 9-11 of 1960 code, street plan; repeals Ch. 9-14 (13.12)
2232	Adopts Las Vegas Municipal Code; adds § 1-1-2 to 1960 code; amends §§ 1-1-4, 1-1-5 and 1-1-6; renumbers existing § 1-1-2 to 1-1-3, general provisions; repeals existing § 1-1-3 (1.01, 1.04)
2233	Amends §§ 1-2-1, 1-2-2 and 1-2-3, code adoption (1.01)
2234	Adds § 7(G) to Plumbing Code amendments incorporated in Ord. 2085 and adopted by § 4-2-1 of 1960 code, Plumbing Code (Repealed by 3026)
2235	Adds Ch. 5-13 to 1960 code; repeals and replaces Ch. 2-7, charitable solicitation (6.22)
2236	Amends Ch. 9-4, excavations, and § 9-1-13, street work permits, of 1960 code (13.20)
2237	Amends §§ 11-2-1, 11-2-5, 11-2-7, 11-2-8, 11-2-9 and 11-2-12 of 1960 code, subdivisions; repeals § 11-2-9.1 (Repealed by 3806)
2238	Repeals and replaces Ch. 11-4 of 1960 code, underground utilities; repeals Ch. 9-18 (13.52)
2239	Amends Ch. 9-15 of 1960 code, public works specifications; repeals Ord. 1474 (13.44)

Ordinance Number	
2240	Amends § 5-19-11 of 1960 code, engineers and surveyors (Repealed by 2250)
2241	Amends §§ 9-16-1, 9-16-2, 9-16-4 and 9-16-6, public improvement fees (13.40)
2242	Repeals Chs. 9-5, 9-6, 9-7 and 9-9 of 1960 code (Repealer)
2243	Repeals § 9-1-12 of 1960 code (Repealer)
2244	Amends §§ 6-2-1(B) and (I), 6-2-4(A), (B) and (C), 6-2-5(E) and (F), and 6-2-7(A)(I)(1) of 1960 code, animals (Repealed by 3618)
2245	Repeals and replaces Ch. 5-25 of 1960 code, hotels, motels and rooming houses (6.46)
2246	Adds Ch. 5-10 to 1960 code, astrologers (6.12)
2247	Repeals and replaces Ch. 5-2 of 1960 code, room tax (4.20)
2248	Adds §§ 5-3-15, 5-6-16 and 5-9-24 to 1960 code; repeals and replaces Ch. 5-1(A), business license fees (6.04, 6.60)
2249	Adds Ch. 5-15 to 1960 code, public utility license (Repealed by 4034)
2250	Repeals Chs. 5-7, 5-10, 5-16, 5-19, 5-21 and 5-26 of 1960 code (Repealer)
2251	Adds Ch. 5-7 to 1960 code, business licenses (6.26, 6.68, 6.70, 6.84)
2252	Adds §§ 11-1-19(A)(15, 16) and 11-1-22(C)(3) to 1960 code; amends §§ 11-1-3(B), 11-1-7(G), 11-1-19(C) and (D)(2), 11-1-20(A)(11)(b,c)(part) and (C), and 11-1-21(A), zoning (Repealed by 5345)
2256	Amends § 10-3-6(A) to 1960 code, parking meters (Repealed by 5870)
2257	Adds new § 5-18-19 to 1960 code; amends §§ 5-18-1, 5-18-2, 5-18-3, 5-18-4, 5-18-10, 5-18-12, 5-18-14, 5-18-15, 5-18-16, 5-18-17, 5-18-18 and 5-18-19, alcohol and 5-46-1 and 5-46-2, work cards, of 1960 code; renumbers §§ 5-18-10, 5-18-5, 5-18-12 to 5-18-6, 5-18-14 to 5-18-7, 5-18-15 to 5-18-8, 5-18-16 to 5-18-9, 5-18-17(B) to 5-18-10, (C) to 5-18-11, (D) to 5-18-12, (E) to 5-18-13, (F) to 5-18-14, (G) to 5-18-15, (A) to 5-18-16, (I) to 5-18-17, and 5-18-19 to 5-18-18, alcohol; repeals existing 1960 code §§ 5-18-5 to 5-18-9, 5-18-11, 5-18-13 and 5-18-18 (6.50, 6.86)
2258	Adds Ch. 6-15 to 1960 code, imitation controlled substances (Repealed by 3068)
2259	Adds § 6-1-45 to 1960 code, nude wrestling and sadomasochism; repeals Ch. 5-41 (10.34)
2260	Amends § 5-5-2 of 1960 code, zoning (Repealed by 5345)
2261	Adds Ch. 2-15 to 1960 code, Board of Massage Examiners; repeals and replaces Ch. 5-29, massage parlors (Repealed by 4024)

Ordinance Number	
2262	Repeals and replaces Ch. 5-23 of 1960 code, escort bureaus (6.36)
2263	(Not codified)
2264	(Not codified)
2265	Adds prior code § 5-10-5 to Ord. 2246, locksmiths (6.51)
2266	Amends subdivisions (C) and (D) of prior code § 11-1-3(B), and §§ 11-1-20(A), 11-1-21(A), 11-1-22(C), 11-1-23(B) and 11-1-24 (B)(7) and (8) of prior code, zoning (Repealed by 5345)
2267	Amends prior code §§ 5-18-2—5-18-4, 5-18-9 and 5-18-14, alcoholic beverages (6.50)
2268	(Not codified)
2269	Adds § 5-7-6 to, amends §§ 5-1(A)-10 and 5-1(A)-13 of and repeals §§ 5-37 and 5-44 of prior code, membership club licenses (6.04, 6.44, 6.54)
2270	Amends § 6-4-5 of prior code, sale of pistols (10.66)
2271	Repeals §§ 9-1-13 and 9-1-17 of prior code, excavations (13.20)
2272	Adds § 26 to § 4-1 of prior code, building code (Not codified)
2273	Amends § 9-12A-6 of prior code, newsracks (13.24)
2274	Amends §§ 8-5-2 and 8-5A-2A of prior code, sewers (Repealed by 3606)
2275	(Not codified)
2276	(Not codified)
2277	Amends paragraph (2) of § 11-1-11.A(A) and § 11-1-11.A(E), (F) and (1) of prior code, zoning (Repealed by 5345)
2278	(Not codified)
2279	Amends §§ 2-14-1 and 2-14-2 of prior code, mobile home park mediation board (Repealed by 3358)
2280	Amends § 5-18-3 of prior code, alcoholic beverages (6.50)
2281	(Not codified)
2282	(Not codified)
2283	(Not codified)
2284	Repeals and replaces § 5-35 of prior code, rock concerts (6.73)
2285	Repeals and replaces § 5-42 of prior code, bathhouses (6.16)
2286	Repeals and replaces §§ 5-36-2 and 5-36-3; repeals §§ 5-36-8, 5-36-18 and 5-36-19 of prior code, retail demonstration merchandise sales stores (6.72)
2287	Amends §§ 5-45-3, 5-45-13 and 5-45-15 of prior code, vacation certificate businesses (Repealed by 5998)
2288	Amends § 5-1(A)-17 of prior code, business license fees (6.04)

Ordinance Number	
2289	(Not codified)
2290	(Not codified)
2291	(Not codified)
2292	Adds § 8-9 to prior code, industrial wastes (Repealed by 3447)
2293	Repeals and replaces Title 5 Ch. 20 of prior code, coupon book sales licenses (6.30)
2294	Repeals and replaces Title 5 Ch. 34 of prior code, dancehalls (6.32)
2295	Adds § 5-17-8.5 to prior code, holiday or special event gaming permit (6.40)
2296	Amends § 5-18-15 of prior code, liquor control (6.50)
2297	Repeals and replaces Title 5 Ch. 31 of prior code, burglar alarm services (6.18)
2298	Adds section to Title 6 Ch. 1 of prior code; repeals Title 5 Ch. 38 of prior code, identification material (10.30)
2299	Adds subsection (E) to § 11-1-20 of prior code, zoning (Repealed by 5345)
3000	Amends §§ 10-17-1 and 10-17-12 of prior code; repeals Subsection (B) of § 10-17-18; repeals §§ 3, 5, 11, 13, 14, 15, 16, 17 and 31 of Title 10 Ch. 17 of prior code, stopping, standing and parking (11.52)
3001	(Not codified)
3002	(Not codified)
3003	(Not codified)
3004	Amends §§ 5-1(A)3, 5-1(A)5, 5-1(A)-17 and 5-1(A)-18 of prior code, business license fees (6.04)
3005	Amends Master Plan of Streets and Highways (Not codified)
3006	Amends § 5-17-6 of prior code, gaming (6.40)
3007	Amends National Electrical Code, adopted by reference in Ch. 16.12 (Not codified)
3008	Amends §§ 11-5-2(C), 11-5-5, 11-5-6.2, 11-5-7.3 and 11-5-8.4 of prior code, flood hazard reduction (20.08)
3009	Amends § 11-2-10(C) of prior code, public improvements (Repealed by 3806)
3010	(Not codified)
3011	Adds § 10-8-11 to prior code, tour bus loading zones (11.44)
3012	(Not codified)
3013	Amends § 11-1-6(H)(1)(b)(12) of prior code, parking spaces required for an office building (Repealed by 5345)
3014	(Not codified)

Ordinance Number	
3015	(Not codified)
3016	(Not codified)
3017	(Not codified)
3018	(Not codified)
3019	Repeals and replaces Title 5 Ch. 14 of prior code, distress merchandise sales (6.34)
3020	Adds § 5-7-6 to prior code; amends §§ 5-8-2, 5-8-4 and 5-8-8 of prior code, antiques and collectibles (6.74)
3021	Adopts 1983 edition of Las Vegas Municipal Code; repeals 1960 edition (Not codified)
3022	(Not codified)
3023	(Not codified)
3024	Amends §§ 9.08.140, 9.08.150, 9.08.160 and 9.08.170, garbage collection and disposal (9.08)
3025	Repeals and replaces Ch. 16.24, mechanical code (16.24)
3026	Repeals and replaces Ch. 16.28, plumbing code (16.28)
3027	Amends National Electrical Code supplemental document, adopted by reference in Ch. 16.12 (Not codified)
3028	Adds § 19.04.415; amends § 19.54.010, zoning (Repealed by 5345)
3029	Amends §§ 1.16.020, 1.16.030, 1.16.040 and 1.16.050, wards (Repealed by 3986)
3030	(Not codified)
3031	Amends Master Plan of Streets and Highways (Not codified)
3032	Amends Master Plan of Streets and Highways (Not codified)
3033	Adds § 6.02.065, business licensing (6.02)
3034	(Not codified)
3035	Amends Master Plan of Streets and Highways (Not codified)
3036	(Not codified)
3037	Amends § 19.74.020, sexually oriented businesses (Repealed by 5345)
3038	Amends Uniform Building Code supplemental document, adopted by reference in § 16.04.010 (Not codified)
3039	Amends § 6.02.010, business licensing definitions (6.02)
3040	(Not codified)
3041	Amends § 13.24.150, newsracks (13.24)
3042	(Not codified)
3043	Adds Ch. 10.45, athletic events (10.45)

Ordinance Number	
3044	Adds Ch. 6.11, arts and crafts shows; amends § 6.62.010, peddlers and solicitors (6.11)
3045	Amends Master Plan of Streets and Highways (Not codified)
3046	(Not codified)
3047	(Not codified)
3048	(Not codified)
3049	Amends §§ 18.28.070, 18.28.100, 18.28.230, 18.28.240 and 18.28.340, subdivisions (Repealed by 3806)
3050	Amends §§ 19.10.040, 19.10.050, 19.12.010, 19.12.040, 19.14.020, 19.14.040, 19.16.010, 19.16.030, 19.20.010, 19.20.020, 19.24.040, and 19.30.020, zoning; repeals and replaces Ch. 6.24, child care (Repealed by 5345)
3051	(Not codified)
3052	Adds § 4.20.035; amends §§ 4.20.010, 4.20.040—4.20.070 and 4.20.160, room tax (4.20)
3053	(Not codified)
3054	Adds § 11.48.100, truck routes (11.48)
3055	Adds § 11.56.040; amends §§ 11.56.010 and 11.56.020, parades and processions (11.56)
3056	(Not codified)
3057	Repeals and replaces Ch. 16.20, housing code (16.20)
3058	Repeals and replaces Ch. 16.16, uniform fire code (16.16)
3059	Adds § 11.14.070; amends §§ 11.14.010—11.14.060, driving while intoxicated (Repealed by 5864)
3060	Readopts § 10.02.010, state misdemeanors (10.02)
3061	(Not codified)
3062	Repeals and replaces § 3.08.010, personnel policies and procedures (3.08)
3063	Amends § 1.04.020, general provisions (1.04)
3064	Amends § 6.24.316, child care facilities (Repealed by 3473)
3065	Amends §§ 9.12.080 and 9.12.100, litter (9.12)
3066	(Not codified)
3067	Amends §§ 6.64.010, 6.64.020 and 6.64.040, security personnel, repossessors and process services (Repealed by 3354)
3068	Repeals Ch. 10.32 (Repealer)
3069	Adds § 6.60.250; amends §§ 6.60.110 and 6.60.200; and repeals § 6.60.180, pawnbrokers (16.60)

Ordinance Number	
3070	Adds § 6.74.190; amends §§ 6.74.110—6.74.130; and repeals § 6.74.170, secondhand dealers (6.74)
3071	Repeals Ch. 6.78 (Repealer)
3072	Adds §§ 14.04.190—14.04.230; and amends §§ 14.04.010, 14.04.020, 14.04.140 and 14.04.150, sewer charges (14.04)
3073	Amends §§ 19.88.130, 19.88.170, 19.90.070, 19.90.080 and 19.90.090, zoning (Repealed by 5345)
3074	Adds Ch. 13.56, sidewalks and transition strips (13.56)
3075	Amends §§ 6.02.070, 6.24.090 and 6.24.242, business licenses (6.02)
3076	(Not codified)
3077	(Not codified)
3078	(Not codified)
3079	(Not codified)
3080	(Not codified)
3081	Amends §§ 16.08.010 and 16.08.030, Dangerous Buildings Code (Repealed by 3897)
3082	Amends § 20.08.340, flood hazard reduction (20.08)
3083	(Not codified)
3084	(Not codified)
3085	(Not codified)
3086	Amends §§ 7.08.010, 7.08.120—7.08.150, 7.12.010 and 7.20.040, animals (Repealed by 3618)
3087	Amends § 13.52.170, underground utility installations (13.52)
3088	Amends § 11.54.190, metered parking (11.54)
3089	Amends §§ 11.52.050 and 11.52.130, stopping, standing or parking; repeals and replaces Ch. 11.10, parking or nonmoving violations (11.10, 11.52)
3090	Amends §§ 11.06.030 and 11.08.030, traffic control (11.06, 11.08)
3091	(Not codified)
3092	(Not codified)
3093	Repeals and replaces Ch. 6.80, carnivals and circuses (6.19)*

*Editor's Note: Ch. 6.80 was renumbered to be Ch. 6.19 per City's request, letter of 12-27-84.

3094	Amends §§ 19.52.010, 19.52.030, 19.52.040, 19.88.130 and 19.90.080; and repeals and replaces § 19.52.020, zoning (Repealed by 5345)
3095	(Not codified)
3096	Adds Ch. 16.07, sellers and factors of advertising specialties (6.07)
3097	(Not codified)

Ordinance Number	
3098	Adds Ch. 13.58, aircraft launching and landing (13.58)
3099	(Not codified)
3100	Amends §§ 1.20.030 and 11.08.110; and repeals § 1.20.040, citations (1.20, 11.08)
3101	Amends §§ 19.88.120 and 19.88.130, zoning (Repealed by 5345)
3102	Amends §§ 6.66.040—6.66.070, utility business license fee (Repealed by 4034)
3103	Amends §§ 19.46.010 and 19.46.020, zoning (Repealed by 5345)
3104	(Not codified)
3105	(Not codified)
3106	Repeals and replaces Ch. 16.04, Building Code (16.04)
3107	(Not codified)
3108	(Not codified)
3109	Amends § 6.40.110, gaming (6.40)
3110	Amends § 7.16.020, dangerous animals (Repealed by 3618)
3111	Repeals and replaces §§ 7.12.010 and 7.12.030, vaccination (7.12)
3112	Adds Ch. 10.47, public nuisances and Ch. 10.74, miscellaneous crimes (10.74)
3113	Adds § 13.36.055; and amends § 13.36.070, parks (Repealed by 3163)
3114	(Not codified)
3115	(Not codified)
3116	Adds §§ 6.52.095, 6.52.185, 6.52.222, 6.52.224, 6.52.262, 6.52.264, 6.52.266, 6.52.285 and 6.52.345; amends §§ 6.52.020, 6.52.060, 6.52.080, 6.52.090, 6.52.120, 6.52.170, 6.52.220, 6.52.240, 6.52.250, 6.52.260, 6.52.270, 6.52.280, 6.52.290, 6.52.300 and 6.52.350; repeals and replaces §§ 6.52.180, 6.52.200 and 6.52.360; and repeals §§ 6.52.050 and 6.52.330, massage establishments (Repealed by 4024)
3117	Amends § 2.02.060, city council meetings (2.02)
3118	Amends §§ 2.46.010—2.46.070, Senior Citizens' Advisory Board (Repealed by 5206)
3119	Optional motor fuel tax ordinance (Pending)
3120	Amends §§ 19.64.470 and 19.64.480, zoning (Repealed by 5345)
3121	Amends § 19.44.020, zoning (Repealed by 5345)
3122	Amends § 6.28.010, convention and trade show businesses (6.28)
3123	(Not codified)
3124	Amends §§ 17.12.010 and 17.54.230, signs (17.12)
3125	(Not codified)

Ordinance Number	
3126	(Not codified)
3127	Amends § 4 of Part II of Ch. 16.20, housing code supplemental document (Not codified)
3128	(Not codified)
3129	(Not codified)
3130	(Not codified)
3131	Amends §§ 19.22.160 and 19.22.170, zoning (Repealed by 5345)
3132	Adds Ch. 2.09; amends §§ 2.16.010, 2.18.010—2.18.030, 2.28.010, 2.28.020, 2.38.030, 2.38.040, 2.38.060, 2.42.020, 2.42.030 and 2.42.080; and repeals §§ 2.18.040—2.18.080, administration (2.09, 2.16, 2.18, 2.42)
3133	Amends § 9.12.100, litter (9.12)
3134	Amends § 16.08.040; and repeals § 16.08.050, Dangerous Buildings Code (Repealed by 3897)
3135	Amends § 10.34.010, offenses against public decency (10.34)
3136	(Not codified)
3137	Amends § 2.48.010, traffic and parking commission (Repealed by 3474)
3138	Adds Ch. 6.78, special event producers or promoters (6.78)
3139	Adds §§ 11.56.050, 11.56.070 and 11.56.080; amends §§ 11.56.010 and 11.56.020; and repeals and replaces § 11.56.030, parades and processions (11.56)
3140	(Not codified)
3141	(Not codified)
3142	(Not codified)
3143	(Not codified)
3144	(Not codified)
3145	(Not codified)
3146	(Not codified)
3147	Adds §§ 11.56.090 and 11.56.100, parades and processions (11.56)
3148	Adds §§ 6.06.105 and 6.86.075; and amends §§ 6.06.100 and 6.86.070, privileged businesses and work cards (6.06)
3149	(Not codified)
3150	(Not codified)
3151	(Not codified)
3152	Amends §§ 19.44.020, 19.46.010, 19.46.020, 19.48.020, 19.50.020, 19.88.130 and 19.90.080, zoning (Repealed by 5345)
3153	Amends §§ 9.12.060, 9.12.080 and 9.12.090, litter (9.12)

Ordinance Number	
3154	Adds Ch. 19.47; and amends §§ 19.04.560 and 19.06.010, zoning (Repealed by 5345)
3155	(Not codified)
3156	Repeals and replaces § 6.22.150, charitable solicitation (6.22)
3157	Adds §§ 11.02.145 and 11.16.100, vehicles and traffic (11.02, 11.16)
3158	Amends §§ 1.16.030 and 1.16.050, wards (Repealed by 3986)
3159	Amends § 18.20.020, subdivisions (Repealed by 3276)
3160	Amends § 2.26.030, municipal court (2.26)
3161	Amends § 4.20.100, convention authority room tax and gaming tax (4.20)
3162	(Not codified)
3163	Repeals and replaces Ch. 13.36, parks (13.36)
3164	(Not codified)
3165	Amends §§ 19.44.020, 19.44.030, 19.46.020 and 19.46.030, zoning (Repealed by 5345)
3166	Adds §§ 19.48.060; and amends §§ 19.48.010 and 19.50.010, zoning (Repealed by 5345)
3167	Adds Ch. 10.76, alcoholic beverages (10.76)
3168	Amends §§ 2.22.010, 2.22.040—2.22.090 and 6.88.090, administrative hearings (2.22, 6.88)
3169	(Not codified)
3170	(Not codified)
3171	(Not codified)
3172	Adds § 10.56.035, minors (10.56)
3173	Adds § 11.02.185; and amends § 11.60.030, tour buses (11.02, 11.60)
3174	Amends §§ 19.88.030, 19.90.020, 19.92.030 and 19.92.040, zoning (Repealed by 5345)
3175	Amends §§ 19.92.040 and 19.92.070, zoning (Repealed by 5345)
3176	Adds Ch. 10.78; and amends § 13.04.070, display and sale of motor vehicles or merchandise on vacant lots and unimproved portions of public rights-of-way (10.78, 13.04)
3177	Amends Ch. 10.48, graffiti (10.48)
3178	Repeals and replaces § 6.04.560, business license fees (6.04)
3179	Adds § 6.06.195, privileged businesses (6.06)
3180	Amends § 16.08.060, dangerous buildings code; and §§ 5 and 9 of the supplemental document adopted by reference in § 16.20.010(B), housing code (Repealed by 3897)
3181	Readopts § 10.02.010, state misdemeanors (10.02)

Ordinance Number	
3182	Amends §§ 2.09.010, 2.09.050, 2.09.060, 2.09.110 and 2.09.150, city departments; and repeals and replaces Ch. 2.14, director of public works (2.09, 2.14)
3183	Amends §§ 19.48.020 and 19.50.020, zoning (Repealed by 5345)
3184	Amends § 13.12.030, master plan of streets and highways (Not codified)
3185	(Not codified)
3186	Adds Ch. 1.06, official oath (1.06)
3187	Adds Ch. 10.65, door-to-door selling by minors (10.65)
3188	Amends § 11.10.090 and 11.10.170, parking or nonmoving violations (11.10)
3189	Adds Ch. 10.80, parking of tour buses on private property (10.80)
3190	Adds Ch. 9.36, transportation of hazardous materials (9.36)
3191	Amends § 2.46.010, senior citizens' advisory board (Repealed by 5206)
3192	Amends Ch. 14.04, sewers (14.04)
3193	Amends Master Plan of Streets and Highways (Not codified)
3194	Amends Master Plan of Streets and Highways (Not codified)
3195	Adds §§ 9.12.110—9.12.180; and amends § 9.12.100, litter (9.12)
3196	(Not codified)
3197	(Not codified)
3198	Repeals and replaces Ch. 2.30, Office of Emergency Operations (2.30)
3199	Adds §§ 9.28.112 and 9.28.114; and amends §§ 9.28.080 and 9.28.110, fireworks (9.28)
3200	Amends § 2.48.010, traffic and parking commission (Repealed by 3474)
3201	Amends § 13.20.110, excavations (13.20)
3202	Amends § 11.16.070, speed limits (11.16)
3203	(Not codified)
3204	Repeals and replaces § 6.24.076; and amends §§ 6.24.356 and 6.24.510, child care facilities (Repealed by 3473)
3205	(Not codified)
3206	(Not codified)
3207	(Not codified)
3208	(Not codified)
3209	Repeals and replaces § 6.73.080; and amends §§ 6.73.020, 6.73.050, 6.73.090 and 6.73.180, rock concerts (6.73)

Ordinance Number	
3210	Amends § 16.24.010, Uniform Mechanical Code (16.24)
3211	Amends § 16.12.010, National Electrical Code (16.12)
3212	Adds § 11.02.165; and amends §§ 11.02.170, 11.16.020 and 11.46.010, school zone speed limits (11.02, 11.16, 11.46)
3213	(Not codified)
3214	(Not codified)
3215	(Not codified)
3216	(Not codified)
3217	Adds § 17.62.060; amends §§ 17.58.060, 17.62.020, 17.66.020, 19.44.020, 19.46.010, 19.46.020, 19.48.010, 19.48.020, 19.50.020, 19.52.030, 19.88.130 and 19.90.080; and repeals § 19.44.050, off-premises signs (Repealed by 5345)
3218	(Not codified)
3219	(Not codified)
3220	Amends § 16.28.010, Uniform Plumbing Code (16.28)
3221	(Not codified)
3222	(Not codified)
3223	Adds § 6.54.035, membership club licenses (6.54)
3224	Adds §§ 19.04.553, 19.04.555, 19.18.025, 19.26.015, 19.28.015, 19.30.015, 19.32.025, 19.34.025, 19.38.015, 19.42.025 and Ch. 19.55; amends §§ 19.10.030, 19.12.020, 19.14.030, 19.16.020, 19.20.010, 19.22.020, 19.24.030, 19.36.040, 19.44.010, 19.44.020, 19.46.020, 19.47.020, 19.48.020, 19.50.020, 19.52.030, 19.88.130 and 19.90.080, zoning (Repealed by 5345)
3225	Adds Ch. 10.82, lodging in vehicles (10.82)
3226	Amends §§ 6.20.010 and 6.20.020 CATV system franchises (Repealed by 3362)
3227	Adds § 19.90.100; amends §§ 19.82.010, 19.88.190 and 19.92.130, variances and special use permits (Repealed by 5345)
3228	Adds §§ 19.10.150, 19.12.110 and 19.14.110; amends § 19.04.560, zoning (Repealed by 5345)
3229	Amends §§ 19.04.020, 19.10.030, 19.12.020 and 19.14.030, zoning (Repealed by 5345)
3230	(Not codified)
3231	Amends § 7.32.250, animal cruelty (Repealed by 3618)
3232	Amends § 14.04.030, sewers (Repealed by 5932)
3233	Amends §§ 1.16.020, 1.16.030, 1.16.040 and 1.16.050, wards (Repealed by 3986)

Ordinance Number	
3234	Amends §§ 16.04.010 through 16.04.040, Uniform Building Code (16.04)
3235	Amends §§ 19.10.030, 19.10.140, 19.12.020, 19.12.100, 19.14.030 and 19.14.100, zoning (Repealed by 5345)
3236	(Not codified)
3237	(Not codified)
3238	Adds §§ 6.40.175, 19.04.412, 19.04.413; amends §§ 6.40.150, 6.40.170, 19.44.020, 19.46.010, 19.46.020, 19.48.020, 19.50.020, 19.88.130 and 19.90.080, zoning (Repealed by 5345)
3239	Amends §§ 2.09.070, 2.28.010, 2.28.020, 2.28.060 and 2.28.110, park ranger unit; repeals § 2.28.090 (Repealed by 5247)
3240	Amends § 6.24.384, child care facilities (Repealed by 3473)
3241	Amends §§ 6.64.010, 6.64.030, 6.64.040, 6.64.080, 6.64.090 and 6.64.100; repeals and replaces § 6.64.020, private investigators; repeals § 6.64.070 (Repealed by 3354)
3242	Amends §§ 19.92.140 and 19.92.150, zoning (Repealed by 5345)
3243	Adds § 6.04.472, business license fees; repeals § 6.04.020 (6.04)
3244	Adds §§ 6.24.403 and 6.24.405, child care facilities (6.24)
3245	(Not codified)
3246	Adds §§ 2.02.075 and 2.04.030; amends §§ 2.02.080 and 2.04.020, administration (2.02, 2.04)
3247	(Not codified)
3248	Amends §§ 19.04.930 and 19.36.060, zoning (Repealed by 5345)
3249	(Not codified)
3250	Amends Uniform Code for the Abatement of Dangerous Buildings (Repealed by 3897)
3251	Adds §§ 19.04.035, 19.04.765, 19.18.027, 19.22.027 and 19.26.020; amends §§ 19.04.290, 19.04.470, 19.04.640, 19.10.050, 19.10.070, 19.12.040, 19.14.040, 19.16.030, 19.20.020, 19.26.040, 19.28.020, 19.30.020, 19.32.020, 19.34.020, 19.44.010, 19.44.020, 19.44.030, 19.46.020, 19.46.030, 19.48.020, 19.48.030, 19.50.020, 19.50.030 and 19.54.010, zoning; repeals and replaces § 19.10.060; repeals § 19.26.030 (Repealed by 5345)
3252	Amends §§ 6.40.150 and 6.40.175, gaming (6.40)
3253	(Not codified)
3254	(Not codified)
3255	(Not codified)

Ordinance Number	
3256	Amends §§ 2.09.050 and 2.09.150, city departments (Repealed by 5247)
3257	(Not codified)
3258	(Not codified)
3259	(Not codified)
3260	(Not codified)
3261	(Not codified)
3262	Repeals and replaces Ch. 13.28, numbering of streets and buildings; repeals § 18.28.130 (Repealed by 3744)
3263	Amends § 13.12.030, master plan of streets and highways (Not codified)
3264	Amends § 6.24.138, child care facilities (Repealed by 3473)
3265	Amends § 16.20.010, housing code (16.20)
3266	(Not codified)
3267	(Not codified)
3268	(Not codified)
3269	(Not codified)
3270	(Not codified)
3271	(Not codified)
3272	(Not codified)
3273	(Not codified)
3274	Amends §§ 19.88.030, 19.92.030 and 19.92.040, zoning (Repealed by 5345)
3275	Amends §§ 6.66.040 through 6.66.070, public utilities (Repealed by 4034)
3276	Adds § 18.04.075; amends §§ 18.04.060, 18.04.070, 18.04.090, 18.04.100, 18.04.260, 18.04.330, 18.04.340, 18.04.360, 18.04.370, 18.04.460, 18.08.020, 18.24.020, 18.24.030, 18.24.040, 18.28.010 through 18.28.050, 18.28.070, 18.28.100, 18.28.120, 18.28.140, 18.28.210, 18.28.230 through 18.28.260, 18.28.300, 18.28.310, 18.28.340 and 18.28.360; repeals and replaces Chs. 18.12, 18.16, 18.20, 18.40, §§ 18.28.290 and 18.44.010, subdivisions; repeals § 18.28.420 and Ch. 18.32 (Repealed by 3806)
3277	(Not codified)
3278	(Not codified)
3279	Adds § 2.26.035; amends §§ 2.02.075 and 2.26.030, salaries (2.26)
3280	Amends Ch. 16.08, dangerous buildings code (Repealed by 3897)
3281	Amends § 9.12.110, litter (9.12)

Ordinance Number	
3282	Amends Ch. 20.08, flood hazard reduction (20.08)
3283	Amends § 13.52.170, underground utility installations (13.52)
3284	Adds Ch. 19.19, amends §§ 19.06.010, 19.55.010, 19.88.010, 19.90.050 and 19.92.020, zoning (Repealed by 5345)
3285	Amends §§ 11.60.010 and 11.60.030, bus stops and taxistands (11.60)
3286	Amends § 16.12.010, electrical code (16.12)
3287	(Not codified)
3288	Repeals and replaces Ch. 2.34, arts commission (2.34)
3289	(Not codified)
3290	(Not codified)
3291	Amends §§ 6.06.100 and 6.06.105, privileged businesses (6.06)
3292	(Not codified)
3293	(Not codified)
3294	Adds Ch. 20.10, Uniform Regulations for the Control of Drainage (20.10)
3295	(Not codified)
3296	(Not codified)
3297	(Not codified)
3298	(Not codified)
3299	(Not codified)
3300	(Not codified)
3301	Adds § 17.62.070; amends §§ 17.62.040, 17.62.050 and 17.66.020; repeals and replaces § 17.62.030, signs and billboards; repeals § 17.66.060 (Repealed by 3723)
3302	(Not codified)
3303	Readopts § 10.02.010, state misdemeanors (10.02)
3304	(Not codified)
3305	Adds § 19.78.005; amends §§ 19.78.010, 19.78.030 and 19.78.040, zoning (Repealed by 5345)
3306	Adds Ch. 6.80, teenage dances, teenage dancehalls and teenage nightclubs; amends § 6.32.010 (6.32, 6.80)
3307	(Repealed)
3308	(Not codified)
3309	Adds Ch. 6.83, video centers (6.83)
3310	Adds section to Ch. 11.22, vehicles transporting loose loads (11.22)
3311	Adds sections to Chs. 2.44, 3.04 and 19.94, board member compensation (2.44, 3.04)

Ordinance Number	
3312	Amends §§ 2.28.010, 2.28.020, 2.28.070, 2.28.080, 2.28.100 and 2.28.110, park officers (Repealed by 3622)
3313	(Number not used)
3314	Amends § 2.26.040, judge's compensation (2.26)
3315	Amends § 19.54.010, zoning (Repealed by 5345)
3316	(Not codified)
3317	Adds chapters to Title 6 and Title 11, human-powered and animal-drawn vehicles (6.44, 11.39)
3318	Amends § 16.16.010, fire code (16.16)
3319	Amends §§ 6.50.020, 6.50.080, 6.50.090, 6.50.100, 6.50.130, 6.50.190, 6.50.220, 6.50.230, 6.50.290, 6.50.300, 6.50.360 and 6.50.400, liquor (6.50)
3320	Adds chapter to Div. II of Title 17 and adds sections to Ch. 17.54; amends §§ 17.04.020, 17.20.050, 17.54.230 and 17.58.050, signs and billboards (Repealed by 3723)
3321	Adds section to Ch. 3.04 and amends §§ 2.44.020 and 19.93.010, limit of terms of board members; repeals Ord. 3307 (2.44, 3.04)
3322	Amends § 20.10.010, flood control (20.10)
3323	Amends § 19.36.060, zoning (Repealed by 5345)
3324	(Not codified)
3325	(Not codified)
3326	(Not codified)
3327	(Not codified)
3328	(Not codified)
3329	Amends §§ 19.58.110 and 19.72.040, zoning (Repealed by 5345)
3330	Adds § 1.20.040 and amends §§ 1.20.010 and 1.20.020, citations, and §§ 11.10.010, 11.10.020 and 11.10.130, traffic citations (1.20, 11.10)
3331	Adds language to Ch. 6.50, alcohol awareness examination and training program (Repealed by 3619)
3332	Amends §§ 6.02.060 and 6.02.065, business licenses (6.02)
3333	Adds language to Ch. 6.22; amends §§ 6.22.010, 6.22.030 (J), 6.22.050 and 6.22.070, charitable solicitations (6.22)
3334	Amends § 13.16.280, curb cuts (13.16)
3335	Amends §§ 19.04.930, 19.90.060 and 19.92.080; repeals and replaces § 19.88.070, zoning (Repealed by 5345)
3336	Adds language to Ch. 19.04; amends § 19.46.020, 19.48.020, 19.48.030, 19.50.020, 19.88.130 and 19.90.080, zoning (Repealed by 5345)
3337	(Not codified)

Ordinance Number	
3338	Adds language to Title 19; amends § 19.88.130, zoning (Repealed by 5345)
3339	(Not codified)
3340	Amends master plan of streets and highways (Not codified)
3341	(Not codified)
3342	Adds Ch. 18.18; amends §§ 18.12.050 through 18.12.080, 18.16.010 through 18.16.050, 18.16.070, 18.16.080, 18.16.090, 18.16.290, 18.16.310, 18.16.320, 18.16.330, 18.20.010, 18.20.020, 18.28.090, 18.40.070 and 18.40.080, zoning; repeals § 18.12.090 (Repealed by 3806)
3343	Adds language to Title 6; amends § 6.19.010, business licenses and regulations (6.19, 6.81)
3344	Adds language to Ch. 10.26, food or lodging fraud (10.26)
3345	Amends § 11.54.190, metered parking (11.54)
3346	Adds language to Ch. 11.52; amends § 11.52.130, stopping, standing and parking (11.52)
3347	(Not codified)
3348	(Not codified)
3349	(Not codified)
3350	(Not codified)
3351	(Not codified)
3352	Uniform Fire Code amendment; amends § 11.10.160, Uniform Fire Code (11.10)
3353	Amends §§ 11.54.090, 11.54.100, 11.54.110 and 11.54.180, vehicle parking and standing; repeals §§ 11.54.120 through 11.54.160 (11.54)
3354	Amends § 6.04.435, business licensing; repeals Ch. 6.64 (6.04)
3355	Records management
3356	Amends §§ 19.88.040 and 19.92.060, zoning (Repealed by 5345)
3357	Amends § 20.10.010, flood control (20.10)
3358	Repeals Ch. 2.40 (Repealer)
3359	Noise; amends § 9.16.010, 9.16.030 and 9.16.040, noise (9.16)
3360	Amends §§ 9.08.140 through 9.08.180, garbage disposal (9.08)
3361	(Not codified)
3362	Repeals and replaces Ch. 6.20, community antenna television systems (Repealed by 5101)
3363	Amends §§ 19.47.030, 19.47.070, 19.47.080, 19.47.090 and 19.47.130, zoning (Repealed by 5345)
3364	Amends master plan of streets and highways (Not codified)

Ordinance Number	
3365	Adds language to Ch. 19.64; amends §§ 19.44.020, 19.46.020, 19.48.020, 19.50.020, 19.88.130 and 19.90.080, zoning (Repealed by 5345)
3366	Amends §§ 6.40.160, 6.50.010, 6.50.020, 6.50.040, 6.50.050, 6.50.070, 6.50.090, 6.50.140, 6.50.160, 6.50.190, 6.50.220 through 6.50.260, 6.50.290, 6.50.300, 6.50.310, 6.50.360 and 6.50.420, alcoholic beverages; repeals §§ 6.50.030, 6.50.060, 6.50.210, 6.50.280, 6.50.330 and 6.50.410 (6.40, 6.50)
3367	Amends § 6.04.065, business licensing (6.04)
3368	Adds sections to Chs. 17.62 and 17.74, signs and billboards (Repealed by 3723)
3369	Adds Ch. 6.27, commercial dance studios (6.27)
3370	(Not codified)
3371	(Not codified)
3372	Adds sections to Chs. 11.56 and 13.36; amends §§ 11.56.010, 11.56.030, 11.56.040, 11.56.050, 11.56.080 and 11.56.090, parades and special events permits (11.56, 13.36)
3373	(Not codified)
3374	Amends § 13.04.030, use of streets and sidewalks (13.04)
3375	(Not codified)
3376	Amends §§ 19.88.130 and 19.88.160, zoning (Repealed by 5345)
3377	Amends § 10.66.050, pistols (10.66)
3378	(Not codified)
3379	Amends §§ 14.04.030, 14.04.080, 14.04.090 and 14.04.210, sewers (14.04)
3380	Amends § 6.40.175, gaming (Repealed by 3411)
3381	Amends §§ 19.88.130 and 19.88.160, zoning (Repealed by 5345)
3382	(Not codified)
3383	(Not codified)
3384	(Not codified)
3385	(Not codified)
3386	(Not codified)
3387	Amends §§ 2.09.010 and 2.09.130, departments of the city (2.09)
3388	Adds § 6.22.035; amends §§ 6.22.050 and 6.22.055, charitable solicitation (6.22)
3389	Amends §§ 7.04.080, 7.08.100, 7.20.010, 7.20.020, 7.20.040, 7.20.080, 7.24.040, 7.24.070, 7.32.080, 7.32.100, 7.32.180, 7.32.210, 7.36.090, 7.36.100 and 7.40.260, animals (Repealed by 3618)
3390	Amends § 13.52.010, underground utility installations (13.52)

Ordinance Number	
3391	Amends § 19.90.080, zoning (Repealed by 5345)
3392	Amends § 3.12.010, loyalty oath (3.12)
3393	Amends § 3.04.010, civil service rules (3.04)
3394	(Not codified)
3395	(Not codified)
3396	(Not codified)
3397	Prohibits handbill distribution on or in motor vehicles (6.42)
3398	Amends §§ 2.09.010, 2.09.070 and 2.09.110, city departments (2.09)
3399	(Not codified)
3400	Adds chapter entitled "Model Home Permits" to T. 18, subdivisions (18.28)
3401	Adds Ch. 6.71, rescue missions and shelters for the homeless (6.71)
3402	(Not codified)
3403	(Not codified)
3404	(Not codified)
3405	(Not codified)
3406	(Not codified)
3407	Adds Ch. 4.24, residential construction impact fee (4.24)
3408	(Not codified)
3409	(Not codified)
3410	(Not codified)
3411	Adds §§ 6.40.165 and 19.04.417; amends §§ 6.40.020, 6.40.050, 6.40.060, 6.40.065, 6.40.070, 6.40.090, 6.40.100, 6.40.140, 6.40.150, 6.40.170, 19.40.010, 19.42.020, 19.44.020, 19.46.010, 19.46.020, 19.47.030, 19.48.020, 19.49.030, 19.49A.030, 19.50.020, 19.52.030 and 19.90.080; repeals §§ 6.40.080, 6.40.160 and 6.40.175, gaming control (Repealed by 5345)
3412	Adds language to Ch. 11.22; amends § 11.22.130, miscellaneous driving rules (11.22)
3413	Amends §§ 14.04.080 and 14.04.090, sewers (14.04)
3414	(Not codified)
3415	Amends § 6.50.310, liquor control (Repealed by 3549)
3416	Amends §§ 2.26.010, 2.26.020, 2.26.030, 2.26.035 and 2.26.050, municipal court (2.26)
3417	Amends §§ 1.16.020, 1.16.030, 1.16.040 and 1.16.050, ward boundaries (Repealed by 3986)
3418	(Not codified)
3419	(Not codified)

Ordinance Number	
3420	(Not codified)
3421	(Not codified)
3422	Amends § 6.50.440, liquor control (Repealed by 3619)
3423	Amends §§ 9.04.040, 9.12.150, 9.12.160 and 9.12.170, health and safety (9.12)
3424	(Not codified)
3425	Amends §§ 19.47.020, 19.47.030, 19.47.040, 19.47.060, 19.47.090, 19.47.100, 19.47.110, 19.47.130 and 19.47.170, zoning (Repealed by 5345)
3426	(Not codified)
3427	(Not codified)
3428	(Not codified)
3429	(Not codified)
3430	(Not codified)
3431	(Not codified)
3432	(Not codified)
3433	(Not codified)
3434	(Not codified)
3435	(Not codified)
3436	(Not codified)
3437	(Not codified)
3438	(Not codified)
3439	(Not codified)
3440	(Not codified)
3441	(Not codified)
3442	(Not codified)
3443	(Not codified)
3444	Adds § 18.28.355, subdivisions (Repealed by 3806)
3445	Amends § 6.50.300, liquor control (Repealed by 3549)
3446	(Not codified)
3447	Wastewater collection and treatment; repeals Ch. 14.16 (14.17)
3448	Amends § 19.78.010, zoning (Repealed by 5345)
3449	(Not codified)
3450	Amends § 9.12.180, litter (9.12)
3451	(Not codified)
3452	(Not codified)
3453	Amends §§ 6.02.360 and 6.88.120, businesses (6.02, 6.88)
3454	Amends § 6.80.110, teenage dances (6.80)

Ordinance Number	
3455	Amends §§ 19.92.050, 19.92.110, 19.92.120 and 19.92.150, zoning (Repealed by 5345)
3456	(Not codified)
3457	(Not codified)
3458	Amends §§ 18.24.010 and 18.24.030, subdivisions (Repealed by 3806)
3459	Adds Ch. 18.47, desert tortoise habitat conservation (Repealed by 3922)
3460	Readopts § 10.02.010, misdemeanors (10.02)
3461	(Not codified)
3462	(Not codified)
3463	(Not codified)
3464	(Not codified)
3465	(Not codified)
3466	(Not codified)
3467	(Not codified)
3468	(Not codified)
3469	(Not codified)
3470	(Not codified)
3471	(Not codified)
3472	Adds § 6.40.160; amends §§ 6.40.150 and 6.40.165, gaming control (6.40)
3473	Repeals and replaces Ch. 6.24, child care (6.24)
3474	Repeals and replaces Ch. 2.48, traffic and parking commission (2.48)
3475	(Not codified)
3476	(Not codified)
3477	(Not codified)
3478	(Not codified)
3479	(Not codified)
3480	(Not codified)
3481	Adds section to Ch. 6.60; amends §§ 6.60.010, 6.60.020, 6.60.050, 6.60.080, 6.60.090, 6.60.110, 6.60.120, 6.60.160, 6.60.170, 6.60.240 and 6.60.250; repeals § 6.60.060, pawnbrokers (6.60)
3482	Amends §§ 19.88.070, 19.90.060 and 19.92.080, zoning (Repealed by 5345)
3483	Amends §§ 19.88.030, 19.90.020 and 19.92.040, zoning (Repealed by 5345)

Ordinance Number	
3484	Amends §§ 11.04.040, 11.04.050, 11.04.070, 11.08.030, 11.10.030, 11.10.040, 11.10.160, 11.10.180, 11.10.200, 11.24.010, 11.24.030, 11.24.040, 11.24.050, 11.54.170 and 13.04.070, vehicles and traffic, public rights-of-way (11.04, 11.08, 11.10, 11.24, 11.54, 13.04)
3485	Amends §§ 6.02.090, 6.02.330, 6.83.020, 6.83.080 and 6.83.100, business licensing (6.02, 6.83)
3486	Amends § 18.28.240, subdivisions (Repealed by 3806)
3487	(Not codified)
3488	Adds Ch. 10.83, NCAA wagering (10.83)
3489	(Not codified)
3490	(Not codified)
3491	(Not codified)
3492	Adds § 7.20.095, animal control (Repealed by 3618)
3493	Amends § 19.90.020, special use permits (Repealed by 5345)
3494	(Not codified)
3495	(Not codified)
3496	(Not codified)
3497	(Not codified)
3498	Adds § 11.52.135; amends §§ 11.10.170, 11.52.130 and 11.52.290, handicapped parking (11.10, 11.52)
3499	(Not codified)
3500	(Not codified)
3501	(Not codified)
3502	Adds §§ 14.08.080—14.08.110, man-made lakes (Repealed by 4086)
3503	Adds three sections to Ch. 4.24, residential construction impact fee (4.24)
3504	Amends §§ 18.47.030, 18.47.050 and 18.47.080, desert tortoise habitat conservation (Repealed by 3922)
3505	(Not codified)
3506	(Not codified)
3507	(Not codified)
3508	(Not codified)
3509	(Not codified)
3510	(Not codified)
3511	(Not codified)
3512	(Not codified)
3513	(Not codified)

Ordinance Number	
3514	Adds four new sections to Ch. 6.50; amends §§ 6.50.020, 6.50.230 and 19.90.080, liquor control (6.50)
3515	(Not codified)
3516	Adds § 11.14.068, driving while intoxicated (Repealed by 5864)
3517	Adds Ch. 2.51, code of ethics for public officials (Repealed by 3699)
3518	Amends § 19.74.030, zoning (Repealed by 5345)
3519	Adds § 14.08.120, water regulations (14.08)
3520	Amends § 14.04.160, sewers (14.04)
3521	Adds Ch. 6.53, martial arts instruction businesses (6.53)
3522	(Not codified)
3523	(Not codified)
3524	Amends § 2.26.030, municipal court (2.26)
3525	(Not codified)
3526	(Not codified)
3527	Adds Ch. 2.49, boards and commissions (2.49)
3528	Amends § 6.40.165, gaming (6.40)
3529	Adds § 11.14.045, driving while intoxicated (11.14)
3530	(Not codified)
3531	Adds § 7.16.005; amends § 7.16.030; repeals § 7.04.100, animals (Repealed by 3618)
3532	(Not codified)
3533	(Not codified)
3534	(Not codified)
3535	Amends § 11.54.190, metered parking (11.54)
3536	Adds § 6.50.060; amends §§ 6.50.020, 6.50.223, 6.50.230, 6.50.300 and 19.90.080, liquor control (6.50)
3537	(Not codified)
3538	(Not codified)
3539	Adopts Uniform Administrative Code, 1988 Edition (16.02)
3540	Amends § 16.04.010, Uniform Building Code (16.04)
3541	Amends § 16.12.010, National Electrical Code (16.12)
3542	Amends § 16.24.010, Uniform Mechanical Code (16.24)
3543	Amends § 16.28.010, Uniform Plumbing Code (16.28)
3544	Adopts Las Vegas Swimming Pool/Spa Code, 1990 Edition (16.30)
3545	Amends § 16.16.010, Uniform Fire Code (16.16)
3546	(Not codified)
3547	(Not codified)
3548	(Not codified)

Ordinance Number	
3549	Adds section to Ch. 19.90, zoning; repeals §§ 6.50.300 and 6.50.310, liquor control (Repealed by 5345)
3550	Amends §§ 9.08.140, 9.08.150, 9.08.160, 9.08.170 and 9.08.180, garbage collection and disposal (9.08)
3551	(Not codified)
3552	Repeals and replaces § 6.40.140, gaming (6.40)
3553	(Not codified)
3554	Amends §§ 2.42.010, 2.42.030, 2.42.050, 2.42.080, 13.36.010 and 13.36.134, parks and recreation advisory commission and parks (2.42, 13.36)
3555	Adds three sections to Ch. 6.46, hotels, motels and roominghouses (6.46)
3556	Amends §§ 1.16.020, 1.16.030, 1.16.040 and 1.16.050, wards (Repealed by 3986)
3557	Adds historic preservation chapter to T. 19, zoning (Repealed by 5345)
3558	(Not codified)
3559	Amends § 2.26.010, 2.26.020, 2.26.030 and 2.26.050, municipal court (2.26)
3560	(Not codified)
3561	Amends § 11.54.190, metered parking (11.54)
3562	Amends § 20.10.010, uniform regulations for the control of drainage (20.10)
3563	Repeals and replaces Ch. 6.14, auctions and auctioneers (6.14)
3564	(Not codified)
3565	(Not codified)
3566	(Not codified)
3567	(Not codified)
3568	(Not codified)
3569	Adds § 6.40.155; amends § 6.40.165, gaming (6.40)
3570	Adds development agreements chapter to T. 19, zoning (Repealed by 5345)
3571	Amends §§ 2.34.050 and 2.34.060, arts commission (2.34)
3572	Amends § 2.51.050, code of ethics for public officials (Repealed by 3699)
3573	(Not codified)
3574	(Not codified)
3575	(Not codified)

Ordinance Number	
3576	(Not codified)
3577	(Not codified)
3578	(Not codified)
3579	(Not codified)
3580	Repeals and replaces § 17.70.050, political signs (Repealed by 3723)
3581	(Not codified)
3582	Adds §§ 14.08.130, 14.08.140 and 14.08.150, water regulations (14.08)
3583	Amends § 11.52.140, parking (11.52)
3584	Amends Uniform Administrative Code provisions adopted by Ord. 3539 (16.02)
3585	(Not codified)
3586	Amends Ch. 18.47, desert tortoise habitat conservation (Repealed by 3922)
3587	Amends § 19.14.010, zoning (Repealed by 5345)
3588	(Not codified)
3589	(Not codified)
3590	(Not codified)
3591	(Not codified)
3592	Amends § 2.34.040, arts commission (Repealed by Ord. 5392)
3593	(Not codified)
3594	(Not codified)
3595	Repeals and replaces Ch. 3.20, city employee suggestions (3.20)
3596	(Not codified)
3597	(Not codified)
3598	(Not codified)
3599	Private security service businesses (10.25)
3600	Adds new chapter to Title 11, highway solicitations (11.62)
3601	Adds § 11.54.230, parking meters (Repealed by 5870)
3602	(Not codified)
3603	(Not codified)
3604	(Not codified)
3605	Adds §§ 17.58.400—17.58.440, signs and billboards; adds § 19.47.125 and amends §§ 19.47.090 and 19.47.120, zoning (Repealed by 5345)
3606	Amends §§ 14.04.030, 14.04.160 and 14.04.210; repeals § 14.04.040, sewer service charges (14.04)
3607	Adds new chapter to Title 11, golf carts (11.41)
3608	Amends § 16.16.010, Uniform Fire Code (Not codified)

Ordinance Number	
3609	(Not codified)
3610	(Not codified)
3611	(Not codified)
3612	Amends §§ 6.74.010—6.74.030, 6.74.090—6.74.130, 6.74.160 and 6.74.190, secondhand dealers (6.74)
3613	(Not codified)
3614	Readopts § 10.02.010, misdemeanors (10.02)
3615	Amends § 6.04.020, gaming control (6.04)
3616	Adds § 19.24.120; amends §§ 19.24.100 and 19.24.110; repeals and replaces §§ 19.24.060, 19.24.070, 19.24.080 and 19.24.090, zoning (Repealed by 5345)
3617	Amends §§ 1.16.020—1.16.050, wards (Repealed by 3986)
3618	Adds Ch. 7.12; amends §§ 7.28.010 and 7.28.030; repeals and replaces Chs. 7.04, 7.08, 7.16, 7.20, 7.24, 7.32, 7.36, 7.38, 7.40 and 7.44; repeals Ch. 7.14, animals (7.04, 7.08, 7.12, 7.16, 7.20, 7.24, 7.28, 7.32, 7.36, 7.38, 7.40, 7.44)
3619	Adds new Sections to Ch. 6.50, alcohol awareness examination and training program; repeals §§ 6.50.440—6.50.520 (6.50)
3620	(Not codified)
3621	(Not codified)
3622	Adds new chapter to Title 2, city reserve marshal; amends §§ 1.20.060, 2.09.070, 11.04.040, 11.04.050, 11.10.200 and 13.04.070; repeals and replaces § 2.26.050; repeals Ch. 2.28 all pertaining to city marshals and court bailiffs (Repealed by 3635)
3623	Adds § 2.51.025 and amends §§ 2.51.070, 2.51.080 and 2.51.090, code of ethics (Repealed by 3699)
3624	Amends § 2.42.080 and repeals Ch. 2.38, parks and recreation advisory commission (2.42)
3625	(Not codified)
3626	(Not codified)
3627	Repeals § 18.12.090 (Repealer)
3628	(Not codified)
3629	(Not codified)
3630	(Not codified)
3631	Repeals and replaces § 6.24.020, child care licensing board (6.24)
3632	Outcall entertainment referral service businesses (6.57)
3633	(Not codified)

Ordinance Number	
3634	Adds § 14.08.160, water distribution authorization program (Repealed by 4011)
3635	Repeals Ord. 3622 (Repealer)
3636	Amends § 19.092.020, zoning (Repealed by 5345)
3637	(Not codified)
3638	Adds new sections to Ch. 6.40, guestroom furnishing restrictions; amends §§ 6.40.020 and 6.40.150, gaming (6.40)
3639	(Not codified)
3640	Amends § 2.09.070, departments of the city; repeals and replaces Ch. 2.28, city reserve marshal program (2.28)
3641	(Not codified)
3642	Adds new sections to Ch. 7.04 and 7.08, pet fanciers (7.04, 7.08)
3643	(Not codified)
3644	(Not codified)
3645	Amends § 2.51.020, code of ethics for public officials (Repealed by 3699)
3646	(Not codified)
3647	Adds Ch. 11.65, permit parking zones (11.65)
3648	Adds new section to Ch. 6.50, brew pub/tavern license; amends §§ 6.50.020 and 6.50.230, liquor control (6.50)
3649	Amends § 19.90.085, zoning (Repealed by 5345)
3650	(Not codified)
3651	(Not codified)
3652	(Not codified)
3653	Adds new sections to Chs. 4.04 and 4.12, revenues and receipts; amends §§ 4.04.010, 4.08.010, 4.12.010, 4.12.020, 4.12.030, 4.12.040, 4.12.050, 4.12.060, 4.12.090, 4.12.100, 4.12.140 and 4.12.150; repeals §§ 4.12.080, 4.12.110, 4.12.120 and 4.12.130, claims and demands (4.04, 4.08, 4.12)
3654	Adds section to Ch. 6.73; amends § 6.73.050; repeals and replaces § 6.73.020, rock concerts (6.73)
3655	(Not codified)
3656	(Not codified)
3657	(Not codified)
3658	(Not codified)
3659	(Not codified)
3660	(Not codified)
3661	Amends § 14.04.160, sewers (14.04)

Ordinance Number	
3662	(Not codified)
3663	Amends § 6.52.030; repeals and replaces §§ 6.52.300 and 6.52.340; repeals §§ 6.52.180 and 6.52.185, massage establishments (Repealed by 4024)
3664	Amends § 14.08.150, water regulations (14.08)
3665	Amends § 19.42.130, zoning (Repealed by 5345)
3666	Amends § 6.50.225, liquor control (6.50)
3667	Amends § 6.50.020, liquor control (6.50)
3668	Amends § 3 of Ord. 3584 and repeals and replaces Table 3-A of the Uniform Administrative Code as set out in §§ 24 and 27 of Ord. 3584, building code changes (16.02)
3669	(Not codified)
3670	(Not codified)
3671	Amends § 3.04.010, civil service rules (3.04)
3672	(Not codified)
3673	(Not codified)
3674	Amends §§ 19.74.020—19.74.040, zoning (Repealed by 5345)
3675	Adds new sections to Ch. 6.60; amends §§ 6.60.020, 6.60.040, 6.60.070, 6.60.140, 6.60.150, 6.60.200, 6.60.230 and 6.60.250; repeals and replaces §§ 6.60.050 and 6.60.110, pawnbrokers (6.60)
3676	Amends § 6.04.100, business license fee (6.04)
3677	Amends § 16.16.010, fire code (16.16)
3678	(Not codified)
3679	(Not codified)
3680	Amends §§ 2.51.020 and 2.51.090, code of ethics for public officials (Repealed by 3699)
3681	(Not codified)
3682	Adds new chapters to Titles 18 and 19, fee schedule; adds new sections to Chs. 18.04 and 19.04; amends §§ 18.12.030, 18.16.020 and 18.40.030, subdivisions; amends §§ 19.19.090, 19.66.030, 19.80.090, 19.82.020, 19.84.020, 19.86.020, 18.88.060, 19.88.210, 19.90.030 and 19.92.070, zoning (Repealed by 5345)
3683	Amends §§ 19.88.070, 19.90.060 and 19.92.080, zoning (Repealed by 5345)
3684	(Not codified)
3685	Amends § 20.10.010, drainage regulations (20.10)
3686	(Not codified)
3687	(Not codified)

Ordinance Number	
3688	(Not codified)
3689	Adds § 19.04.445; amends §§ 19.04.290, 19.04.390, 19.04.640, 19.04.765, 19.10.050, 19.14.040, 19.16.030, 19.20.020 19.26.020, 19.28.020, 19.30.020, 19.44.030, 19.46.030, 19.48.030 and 19.50.030; repeals and replaces § 19.04.035; repeals §§ 19.10.060, 19.18.027 and 19.22.027, zoning (Repealed by 5345)
3690	(Not codified)
3691	Adds § 11.16.110, speed limits (11.16)
3692	Amends § 6.14.140, auctions and auctioneers (6.14)
3693	Amends §§ 6.60.050(B) and 6.60.060, pawnbrokers (6.60)
3694	Amends § 6.40.150, gaming (6.40)
3695	(Not codified)
3696	(Not codified)
3697	Amends §§ 1.16.020—1.16.050, wards (Repealed by 3986)
3698	(Not codified)
3699	Repeals and replaces Ch. 2.51, code of ethics (Not codified)
3700	Adds Ch. 2.51A, campaign practices (Repealed by 5423)
3701	(Not codified)
3702	(Not codified)
3703	Amends §§ 6.02.070 and 6.24.050, licensing of child care (6.02, 6.24)
3704	(Not codified)
3705	Amends § 6.40.150, gaming (6.40)
3706	Amends § 4.24.080, residential construction impact fee (4.24)
3707	Adds (I) and (J) to and amends the introductory paragraph of § 2 of the Water Distribution Authorization Program, adopted by Ord. 3634 (Not codified)
3708	Amends § 2.28.080, convention and trade show businesses (Repealed by 4075)
3709	Amends Ch. 2.30, emergency management (2.30)
3710	(Not codified)
3711	(Not codified)
3712	(Not codified)

Ordinance Number	
3713	Amends §§ 14.17.010, 17.17.025, 14.17.030, 14.17.040, 14.17.060, 14.17.065, 14.17.070, 14.17.080, 14.17.085, 14.17.100, 14.17.110, 14.17.115, 14.17.120, 14.17.125, 14.17.130, 14.17.140, 14.17.145, 14.17.150, 14.17.160, 14.17.165, 14.17.170, 14.17.185, 14.17.190, 14.17.200, 14.17.205, 14.17.210, 14.17.215, 14.17.220, 14.17.235, 14.17.240, 14.17.245, 14.17.250, 14.17.260, 14.17.265, 14.17.280, 14.17.285, 14.17.290, 14.17.310, 14.17.315, 14.17.335, 14.17.345, 14.17.350, 14.17.370, wastewater collection and treatment (14.17)
3714	(Not codified)
3715	Amends § 19.38.190, zoning (Repealed by 5345)
3716	(Not codified)
3717	(Not codified)
3718	(Not codified)
3719	(Not codified)
3720	Adds Chapter to Title 18, reversionary maps (Repealed by 3806)
3721	(Not codified)
3722	Adds § 4.20.037 and Appendixes A and B to Ch. 4.20, and amends §§ 4.20.010, 4.20.040—4.20.070, 4.20.100, 4.20.140—4.20.160, convention authority room tax and gaming tax (4.20)
3723	Adds Chapter to Title 19, and repeals Chs. 17.04, 17.08, 17.16, 17.20, 17.24, 17.28, 17.32, 17.50, 17.54, 17.58, 17.62, 17.66, 17.70 and 17.74, signs (Repealed by 5345)
3724	Amends § 16.02.010, administrative code (16.02)
3725	Amends § 16.04.010, building code (16.04)
3726	Amends § 16.24.010, mechanical code (16.24)
3727	Amends § 16.28.010, plumbing code (16.28)
3728	Amends § 16.30.010, swimming pool/spa code (16.30)
3729	Adds new section to Ch. 7.38, wild and farm animals (7.38)
3730	Adds new sections to Ch. 7.38 and amends § 7.38.040 wild and farm animals (7.38)
3731	Amends § 6.50.360, liquor control (16.50)
3732	Amends Ch. 2.51, code of ethics (2.51)
3733	Adds new section to Ch. 7.20, impoundment of animals (7.20)
3734	Amends Ch. 11.10, parking or nonmoving violations (11.10)
3735	(Not codified)
3736	(Not codified)
3737	(Not codified)
3738	Amends §§ 19.58.010 and 19.58.060, zoning (Repealed by 5345)

Ordinance Number	
3739	(Not codified)
3740	(Not codified)
3741	(Not codified)
3742	Adds new chapter to Title 16, amusement and transportation rides code (16.48)
3743	(Not codified)
3744	Repeals and replaces Ch. 13.20, numbering of streets and buildings (13.28)
3745	(Not codified)
3746	(Not codified)
3747	(Not codified)
3748	(Not codified)
3749	(Not codified)
3750	(Not codified)
3751	(Not codified)
3752	(Not codified)
3753	Adds §§ 6.60.035, 6.60.045 and amends §§ 6.60.020, 6.60.030, 6.60.040, 6.60.090, 6.60.160, 6.60.200, 6.60.240 and 6.60.250, pawnbrokers (6.60)
3754	(Not codified)
3755	(Not codified)
3756	(Not codified)
3757	(Not codified)
3758	(Not codified)
3759	(Not codified)
3760	(Not codified)
3761	(Not codified)
3762	(Not codified)
3763	Adds new sections to Ch. 19.04 and § 19.10.060 and amends §§ 19.10.050, 19.14.040, 19.16.030, 19.28.020, 19.30.020 and 19.32.030, zoning (Repealed by 5345)
3764	(Not codified)
3765	(Not codified)
3766	(Not codified)
3767	Amends §§ 19.90.060 and 19.92.080, zoning (Repealed by 5345)
3768	Amends Ch. 2.51, code of ethics (2.51)
3769	Amends § 6.74.130, secondhand dealers (6.74)
3770	(Not codified)

Ordinance Number	
3771	(Not codified)
3772	(Not codified)
3773	(Not codified)
3774	(Not codified)
3775	(Not codified)
3776	(Not codified)
3777	(Not codified)
3778	(Not codified)
3779	(Not codified)
3780	Amends § 6.40.155, gaming, adds sections to Ch. 6.50 and amends §§ 6.50.020, 6.50.223 and 6.50.230, liquor control, and §§ 19.90.080 and 19.90.085 zoning (6.40, 6.50)
3781	(Not codified)
3782	(Not codified)
3783	(Not codified)
3784	Amends § 19.53.070, zoning (Repealed by 5345)
3785	(Not codified)
3786	Adds new section to Ch. 9.08 and amends §§ 9.08.140—9.08.170, garbage collection and disposal (Repealed by 5733)
3787	Amends § 19.90.085, zoning (Repealed by 5345)
3788	Adds chapter to Title 10, public transportation facilities—prohibited activities (10.84)
3789	Amends § 2.54.010, elective office filing fees (2.54)
3790	(Not codified)
3791	(Not codified)
3792	(Not codified)
3793	(Not codified)
3794	(Not codified)
3795	Adds sections to Chapter 19.91 and amends §§ 19.91.010—19.91.110, signs (Repealed by 5345)
3796	(Not codified)
3797	(Not codified)
3798	(Not codified)
3799	(Not codified)
3800	(Not codified)
3801	(Not codified)
3802	(Not codified)

Ordinance Number	
3803	Adds Ch. 10.73, aiding and abetting the unlawful possession or distribution of controlled substances (Expired)
3804	Amends § 7.38.010, wild and farm animals (7.38)
3805	(Not codified)
3806	Repeals and replaces Title 18, subdivisions and repeals Ch. 19.84 (18.02, 18.04, 18.06, 18.08, 18.12, 18.14, 18.16, 18.18, 18.20, 18.22, 18.24, 18.26)
3807	(Not codified)
3808	(Not codified)
3809	(Not codified)
3810	(Not codified)
3811	(Not codified)
3812	(Not codified)
3813	(Not codified)
3814	(Not codified)
3815	(Not codified)
3816	Amends § 6.74.050, secondhand dealers (6.74)
3817	(Not codified)
3818	Adds new sections to Ch. 6.20 and amends §§ 6.20.010 and 6.20.020, community antenna television systems (Repealed by 5101)
3819	(Not codified)
3820	Adds new chapter to Title 19 and new section to Ch. 19.04, zoning (Repealed by 5345)
3821	Amends § 6.50.320, liquor control (6.50)
3822	(Not codified)
3823	(Not codified)
3824	(Not codified)
3825	(Not codified)
3826	(Not codified)
3827	Adds new chapters to Title 18, subdivisions (18.28)
3828	Amends § 6.50.170, liquor control (6.50)
3829	Adds §§ 11.52.245 and amends Ch. 11.10 and §§ 11.44.060, 11.52.030, 11.52.090, 11.52.130, 11.52.180, 11.52.240, 11.52.280, 11.54.010, 11.54.040, 11.54.050, 11.54.070 and 11.54.210, vehicles and traffic (11.10, 11.44, 11.52, 11.54)
3830	Amends §§ 6.02.160 and 6.02.170, business licensing generally (6.02)
3831	(Not codified)

Ordinance Number	
3832	(Not codified)
3833	(Not codified)
3834	(Not codified)
3835	Repeals and replaces Ch. 19.76, temporary commercial uses (Repealed by 5345)
3836	(Not codified)
3837	Amends §§ 6.66.040—6.66.070, public utilities (Repealed by 4034)
3838	Adds new section to Ch. 19.04 and amends §§ 19.64.060 and 19.64.080, zoning (Repealed by 5345)
3839	(Not codified)
3840	(Not codified)
3841	(Not codified)
3842	(Not codified)
3843	Amends §§ 6.04.015, 6.04.017, 6.04.025, 6.04.030, 6.04.045, 6.04.055, 6.04.065, 6.04.075, 6.04.085, 6.04.090, 6.04.100, 6.04.115, 6.04.120, 6.04.130, 6.04.145, 6.04.150, 6.04.160, 6.04.165, 6.04.170, 6.04.178, 6.04.180, 6.04.185, 6.04.200, 6.04.205, 6.04.210, 6.04.220, 6.04.225, 6.04.230, 6.04.245, 6.04.260, 6.04.265, 6.04.280, 6.04.285, 6.04.290, 6.04.310, 6.04.315, 6.04.330, 6.04.345, 6.04.360, 6.04.365, 6.04.375, 6.04.380, 6.04.385, 6.04.390, 6.04.410, 6.04.415, 6.04.425, 6.04.430, 6.04.435, 6.04.445, 6.04.448, 6.04.465, 6.04.472, 6.04.480, 6.04.485, 6.04.490, 6.04.502, 6.04.505, 6.04.510, 6.04.530, 6.04.535, 6.04.540, 6.04.545, 6.04.550, 6.04.565, 6.04.570, 6.04.590, 6.04.595, 6.04.600, 6.04.610, 6.04.615, 6.12.060, 6.12.100, 6.12.140, 6.18.030, 6.26.030, 6.30.030, 6.51.020, 6.53.050, 6.54.040, 6.62.190, 6.73.200 and 6.84.020, business license fees (6.04, 6.12, 6.18, 6.26, 6.30, 6.51, 6.53, 6.54, 6.73, 6.84)
3844	(Not codified)
3845	(Not codified)
3846	(Not codified)
3847	(Not codified)
3848	Adds a new section [§ 6.50.075] to Ch. 6.50 and amends §§ 6.50.020 and 6.50.230, liquor control (6.50)
3849	Amends § 6.04.450, business license fees (6.04)
3850	Amends §§ 6.04.105, 6.04.140, 6.04.175, 6.04.240, 6.04.560, 6.04.575, 6.50.230, 6.52.280, 6.62.230, 6.81.040 and 6.83.100, business license fees (6.04, 6.50, 6.81, 6.83)
3851	(Not codified)

Ordinance Number	
3852	(Not codified)
3853	(Not codified)
3854	Amends § 16.12.010, National Electrical Code (16.12)
3855	Adds a new section [§ 9.04.035] to Ch. 9.04 and amends § 9.04.030, health and safety (Repealed by 3881)
3856	(Not codified)
3857	(Not codified)
3858	(Not codified)
3859	(Not codified)
3860	Amends §§ 6.22.030, 6.22.050, 6.22.055, 6.22.160, 6.22.170 and 6.22.210 and repeals §§ 6.22.035, 6.22.060, 6.22.180, 6.22.190, 6.22.240, 6.22.250, 6.22.260 and 6.22.270, charitable solicitation (6.22)
3861	Adds §§ 10.48.095 and 10.48.115, amends §§ 10.48.060, 10.48.070, 10.48.100 and 10.48.110 and repeals and replaces §§ 10.48.080 and 10.48.090, defacement of destruction (Repealed by 5896)
3862	Repeals and replaces Ch. 10.44, begging (Repealed by 5896)
3863	Repeals and replaces Ch. 10.47, pedestrian or vehicular interference (10.47)
3864	(Not codified)
3865	(Not codified)
3866	(Not codified)
3867	(Not codified)
3868	(Not codified)
3869	(Not codified)
3870	Amends § 20.08.230, flood hazard reduction (20.08)
3871	(Not codified)
3872	(Not codified)
3873	(Not codified)
3874	Amends §§ 1.16.020—1.16.050, wards (Repealed by 3986)
3875	(Not codified)
3876	Amends § 14.17.130, wastewater collection and treatment (14.17)
3877	(Not codified)
3878	(Not codified)
3879	(Not codified)
3880	Adds new chapter to Title 16, Model Energy Code (16.52)
3881	Repeals and replaces Ch. 9.04, nuisances (Repealed by 5873)
3882	Adds Ch. 16.31, temporary securing of buildings (16.31)

Ordinance Number	
3883	Amends Ch. 19.92, zoning (Repealed by 5345)
3884	Amends Ch. 19.91.060, zoning (Repealed by 5345)
3885	Amends §§ 19.88.030 and 19.88.070, zoning (Repealed by 5345)
3886	(Not codified)
3887	(Not codified)
3888	Amends § 11.48.030, truck routes (11.48)
3889	Amends Ch. 10.68, concealed carrying permits (10.68)
3890	(Not codified)
3891	(Not codified)
3892	(Not codified)
3893	(Not codified)
3894	(Not codified)
3895	(Not codified)
3896	Amends § 16.20.010, housing code (16.20)
3897	Amends Ch. 16.08, dangerous buildings code (16.08)
3898	Amends § 6.02.250, business licensing generally (6.02)
3899	Amends § 14.04.160, sewers (Repealed by 5457)
3900	Amends § 2.26.010, municipal court (2.26)
3901	Amends §§ 2.09.010 and 2.09.090; substitutes "department of finance and business services" for "department of business activity"; "director of finance and business services" for "director of business activity," "director of financial management" or "director" (in business activity or financial management context); "department of human resources" for "department of personnel and employee relations"; and "director of human relations" or "director" (in personnel or employee relations context) for "director of personnel and employee relations"; repeals §§ 2.09.030 and 2.09.060, departments of the city (2.09)
3902	(Not codified)
3903	(Not codified)
3904	(Not codified)
3905	(Not codified)
3906	Amends § 16.02.010, administrative code (16.02)
3907	(Not codified)
3908	Amends § 16.04.010, building code (16.04)
3909	Amends § 16.24.010, mechanical code (16.24)
3910	Amends § 16.28.010, plumbing code (16.28)
3911	(Not codified)

Ordinance Number	
3912	(Not codified)
3913	(Not codified)
3914	Amends §§ 19.44.020 and 19.46.020, zoning (Repealed by 5345)
3915	(Not codified)
3916	Adds Ch. 6.35, erotic dance establishments (6.25)
3917	Adds Ch. 6.06B, adult nightclub establishments (6.06B)
3918	Adds Ch. 6.06A, adult bookstores (6.06A)
3919	(Not codified)
3920	(Not codified)
3921	Readopts § 10.02.010, state misdemeanors (10.02)
3922	Repeals and replaces Ch. 18.30, desert tortoise habitat conservation (Repealed by 5268)
3923	Administrative assessment fees (4.28)
3924	Adds new chapter to Title 10, pedestrian mall; amends Ord. 3747 (Not codified)
3925	Amends §§ 19.91.020, 19.91.050 and §§ (F)(1) and (3) of Table A, zoning (Repealed by 5345)
3926	(Not codified)
3927	(Not codified)
3928	(Not codified)
3929	(Not codified)
3930	Amends §§ 6.50.020 and 6.50.170, liquor control (6.50)
3931	Amends §§ 14.04.010, 14.04.020, 14.04.080, 14.04.100, 14.04.150 and 14.04.200; repeals §§ 14.04.140 and 14.04.190, sewers (14.04)
3932	(Not codified)
3933	(Not codified)
3934	Amends §§ 10.78.010—10.78.030, display and sale of motor vehicles or merchandise on vacant lots (10.78)
3935	(Not codified)
3936	(Not codified)
3937	Amends §§ 2.09.010 and 2.09.020 and repeals § 2.09.050, departments of the city (2.09)
3938	Amends Ch. 10.73, aiding or abetting the unlawful possession or distribution of controlled substances (Expired)
3939	Amends § 6.50.175, liquor control (6.50)
3940	Amends § 2.44.010, planning commission (2.44)
3941	Adds Ch. 11.68, pedestrian mall (Repealed by 5896)
3942	(Not codified)

Ordinance Number	
3943	(Not codified)
3944	Amends § 16.16.010, Uniform Fire Code (16.16)
3945	Amends §§ 2.26.030 and 2.26.035, municipal court (2.26)
3946	(Not codified)
3947	(Not codified)
3948	Amends Ch. 10.36, prostitution (10.36)
3949	Amends § 10.78.050, display and sale of motor vehicles or merchandise on vacant lots (10.78)
3950	Amends § 2.30.020, office of emergency operations (2.30)
3951	Amends §§ 6.50.020, 6.50.090 and 6.50.400, liquor control (6.50)
3952	Adds Ch. 6.21, American Communication Services of Las Vegas, Inc., franchise (6.21)
3953	Amends § 19.80.100, zoning (Repealed by 5345)
3954	(Not codified)
3955	(Not codified)
3956	(Not codified)
3957	(Not codified)
3958	(Not codified)
3959	(Not codified)
3960	(Not codified)
3961	Adds § 6.02.085 and amends §§ 6.02.290—6.02.310, business licensing generally (6.02)
3962	Amends § 6.04.040, business license fees (6.04)
3963	Amends § 6.04.095, business license fees (6.04)
3964	Amends § 6.46.100, hotels, motels and roominghouses (6.46)
3965	Adds section to Ch. 6.04 [6.04.312], business license fees (6.04)
3966	Amends § 6.46.030, hotels, motels and roominghouses (6.46)
3967	Adds §§ 14.04.105 and 14.04.185, sewers (14.04)
3968	Amends §§ 2.51.020—2.51.040, 2.51.070, 2.51.080 and 2.51.100, code of ethics for public officials (2.51)
3969	Amends §§ 2.09.010 and 2.09.020 and repeals § 2.09.080, departments of the city (2.09)
3970	(Not codified)
3971	(Not codified)
3972	(Not codified)
3973	Repeals and replaces Ch. 6.08, ambulances (Repealed by 5260)
3974	(Not codified)
3975	(Not codified)

Ordinance Number	
3976	Amends § 6.04.055, business license fees (6.04)
3977	Repeals § 6.04.430 (Repealer)
3978	Amends § 6.04.025, business license fees (6.04)
3979	Amends § 6.04.015, business license fees (6.04)
3980	Amends § 6.04.120, business license fees (6.04)
3981	(Not codified)
3982	(Not codified)
3983	(Not codified)
3984	Amends §§ 19.91.090, zoning (Repealed by 5345)
3985	Amends § 2.51.070, code of ethics for public officials (2.51)
3986	Repeals and replaces §§ 1.16.020—1.16-050, wards (1.16)
3987	Amends § 6.20.100, community antenna television systems (6.20)
3988	Amends § 6.04.100, business license fees (6.04)
3989	Adds sections to Ch. 11.54 and amends §§ 11.06.010, 11.10.160, 11.32.050—11.32.110, 11.52.090, 11.54.030, 11.54.040, 11.54.080—11.54.110, 11.54.200 and 11.54.230, vehicles and traffic (11.06, 11.10, 11.32, 11.54)
3990	Adds sections to Ch. 11.04, amends §§ 11.16.070, 11.20.010, 11.20.050, 11.44.020—11.44.040, 11.44.060, 11.44.080, 11.46.010, 11.52.180, 11.52.240, 11.52.245, 11.52.250—11.52.270, 11.54.020, 11.65.040 and repeals § 11.44.050, vehicles and traffic (11.04, 11.16, 11.20, 11.44, 11.46, 11.52, 11.54, 11.65)
3991	Amends § 10.78.050, display and sale of motor vehicles or merchandise on vacant lots (10.78)
3992	(Not codified)
3993	(Not codified)
3994	Amends § 6.04.175, business license fees (6.04)
3995	Amends § 6.04.105, business license fees (6.04)
3996	(Not codified)
3997	(Not codified)
3998	Reenacts § 6.40.150, gaming (6.40)
3999	Adds § 6.04.504 and repeals § 6.04.125, business license fees (6.04)
4000	Amends § 6.04.050, business license fees; repeals Ch. 6.10 (6.04)
4001	Amends § 11.10.190, vehicles and traffic (Repealed by 5274)
4002	Amends §§ 6.46.020, 6.46.140 and 6.46.150, hotels, motels and roominghouses (6.46)
4003	Adds sections to Ch. 6.04, business license fees (6.04)
4004	Amends §§ 6.02.065 and 6.04.140, business license fees (6.04)

Ordinance Number	
4005	(Not codified)
4006	Adds § 13.20.010, excavations (13.20)
4007	(Not codified)
4008	Adds section to Ch. 6.04, business license fees (6.04)
4009	Amends § 6.04.130, business license fees (6.04)
4010	Amends § 6.04.030, business license fees (6.04)
4011	Repeals § 14.08.160 (Repealer)
4012	(Not codified)
4013	Amends §§ 14.04.010 and 14.04.020, sewers (14.04)
4014	Amends § 2.52.020, removal of commission or board members (2.52)
4015	Adds § 6.50.045 and amends §§ 6.50.020, 6.50.040 and 6.50.230, liquor control (6.50)
4016	Amends §§ 6.02.010 and 6.02.250, business licensing generally (6.02)
4017	Amends §§ 6.50.020, 6.50.580 and 6.50.590, liquor control (6.50)
4018	(Not codified)
4019	Amends § 6.04.090, business license fees (6.04)
4020	Amends § 6.04.150, business license fees (6.04)
4021	Adds new section [6.04.268] to Ch. 6.04, business license fees (6.04)
4022	Repeals § 6.04.260 (Repealer)
4023	Amends § 6.04.425, business license fees (6.04)
4024	Repeals and replaces Ch. 6.52, massage establishments (6.52)
4025	Adds §§ 19.78.001, 19.78.015 and 19.78.090, amends §§ 19.78.010, 19.78.040 and 19.78.050 and repeals and replaces § 19.78.005, zoning (Repealed by 5345)
4026	Amends § 9.04.010, nuisances (Repealed by 5873)
4027	Adds § 11.52.305, stopping, standing or parking (Repealed by 5095)
4028	Amends § 11.36.010, emergency vehicles (11.36)
4029	Amends § 7.36.010, animals—nuisances (7.36)
4030	(Not codified)
4031	(Not codified)
4032	Amends § 4.28.010, administrative assessment fees (4.28)
4033	(Not codified)
4034	Adds Ch. 6.67, public utilities; repeals Ch. 6.66 (6.67)
4035	(Not codified)
4036	(Not codified)
4037	Amends § 7.32.120, animals—cruelty (7.32)
4038	Amends §§ 2.02.050 and 2.02.060, city council (2.02)

Ordinance Number	
4039	(Not codified)
4040	(Not codified)
4041	(Not codified)
4042	(Not codified)
4043	(Not codified)
4044	(Not codified)
4045	(Not codified)
4046	Amends §§ 2.09.010 and 2.09.090, departments of the city (2.09)
4047	(Not codified)
4048	(Not codified)
4049	(Not codified)
4050	Repeals § 6.04.375 (Repealer)
4051	Adds § 6.86.095, amends §§ 6.86.010, 6.86.030, 6.86.040, 6.86.080, 6.86.090, 6.86.100—6.86.120, 6.86.140, 6.86.150 and 6.86.170—6.86.190, repeals and replaces § 6.86.070 and repeals §§ 6.86.050—6.86.070, 6.86.075 and 6.86.130, work cards (6.86)
4052	Adds Ch. 6.39, food caterers (6.39)
4053	Amends §§ 6.50.225, 6.50.227 and 6.50.380, liquor control (6.50)
4054	Adds § 7.32.135, animals—cruelty (7.32)
4055	(Not codified)
4056	(Not codified)
4057	(Not codified)
4058	Amends §§ 2.02.050 and 2.02.060, department of fire services (2.02)
4059	Adds § 2.09.120 [2.09.160] and amends §§ 2.09.010, 2.09.020 and 2.09.090, departments of the city (2.09)
4060	(Not codified)
4061	Adds new chapter to Title 19 [19.51] and amends § 19.06.010, zoning (Repealed by 5345)
4062	(Not codified)
4063	(Not codified)
4064	(Not codified)
4065	(Not codified)
4066	(Not codified)
4067	(Not codified)
4068	Amends § 10.48.120, offenses against property (10.48)
4069	(Not codified)
4070	Amends §§ 10.64.010, 10.64.020 and 10.64.060, harmful sexual material (10.64)

Ordinance Number	
4071	(Not codified)
4072	(Not codified)
4073	(Not codified)
4074	Amends §§ 11.65.050 and 11.65.060, residential permit parking zones (11.65)
4075	Repeals and replaces § 2.28.080, city marshal (2.28)
4076	(Not codified)
4077	(Not codified)
4078	(Not codified)
4079	(Not codified)
4080	(Not codified)
4081	(Not codified)
4082	(Not codified)
4083	(Not codified)
4084	(Not codified)
4085	Amends § 9.04.080, nuisances (Repealed by 5873)
4086	Adds new chapter to Title 14 [14.10], manmade lakes and manmade water features; repeals §§ 14.08.080 — 14.08.110 (14.10)
4087	(Not codified)
4088	(Not codified)
4089	(Not codified)
4090	Amends § 2.51.020, ethics (2.51)
4091	Adds § 7.20.130; amends § 7.20.010, animal impoundment (7.20)
4092	Adds § 11.52.350, stopping, standing, parking (11.52)
4093	Adds Ch. 21A, Electric Lightwave, Inc. franchise (6.21A)
4094	(Not codified)
4095	(Not codified)
4096	(Not codified)
4097	(Not codified)
4098	Amends §§ 9.28.100, 9.28.110 and 9.28.112; repeals §§ 9.28.114 and 9.28.120, fireworks (9.28)
4099	(Not codified)
5000	Adds Ch. 2.53, eligibility of city officials to seek elective office (Repealed by 5746)
5001	(Not codified)
5002	Adds § 11.22.055, compression brakes (11.22)
5003	Amends § 13.52.140, high-voltage transmission lines (13.52)
5004	(Not codified)

Ordinance Number	
5005	Amends §§ 7.08.060 and 7.08.100; repeals § 7.08.020, animal control (7.08)
5006	(Not codified)
5007	(Not codified)
5008	Amends § 16.12.010, electrical code (16.12)
5009	(Not codified)
5010	Amends §§ 4.20.010, 4.20.035, 4.20.100 and 4.20.160, transient lodging (4.20)
5011	Amends § 11.48.050, truck routes (11.48)
5012	(Not codified)
5013	(Not codified)
5014	(Not codified)
5015	(Not codified)
5016	Amends § 2.51.030, ethics review board (2.51)
5017	Amends §§ 11.22.055, 11.48.050, compression brakes (11.22)
5018	(Not codified)
5019	(Not codified)
5020	(Not codified)
5021	(Not codified)
5022	(Not codified)
5023	Readopts § 10.02.010, state misdemeanors (10.02)
5024	(Not codified)
5025	(Not codified)
5026	(Not codified)
5027	(Not codified)
5028	(Not codified)
5029	Amends §§ 10.48.115 and 10.48.120, defacement or destruction (10.48)
5030	(Not codified)
5031	(Not codified)
5032	(Not codified)
5033	(Not codified)
5034	Adds §§ 9.04.045, 9.04.082, 9.04.084 and 9.04.086 and amends §§ 9.04.010—9.04.030, 9.04.050—9.04.080 and 9.04.100, nuisances (Repealed by 5873)
5035	(Not codified)
5036	(Not codified)

Ordinance Number	
5037	Adds § 7.08.065 and amends § 7.08.060, dog and cat licenses and permits (7.08)
5038	Adds § 9.16.050 and amends § 9.16.030, noise (9.16)
5039	Amends § 3.08.010, personnel policies and procedures (3.08)
5040	Adds new chapter to Title 6, ice cream trucks, and new section to Ch. 11.22, miscellaneous driving rules (6.47, 11.22)
5041	Adds new chapter to Title 6, outdoor pay telephones (6.58)
5042	Amends § 16.30.010, swimming pool/spa code (16.30)
5043	(Not codified)
5044	Amends §§ 6.40.155, 6.50.020, 6.50.223 and 6.50.230, business taxes, licenses and regulations and §§ 19A.04.010(A), 19A.20.020 and 19A.04.050, zoning (6.40, 6.50)
5045	(Not codified)
5046	Amends § 11.68.040, pedestrian mall (Repealed by 5896)
5047	(Not codified)
5048	(Not codified)
5049	(Not codified)
5050	(Not codified)
5051	(Not codified)
5052	(Not codified)
5053	(Not codified)
5054	Adds new chapter to Title 6, arcades and small games rooms (6.10)
5055	Amends § 7.38.010, wild and farm animals (7.38)
5056	Adds new chapter to Title 6, apartment houses and apartment house managers (6.09)
5057	(Not codified)
5058	(Not codified)
5059	(Not codified)
5060	Adds § 6.74.085 and amends §§ 6.74.010, 6.74.020, 6.74.040 and 6.74.100, secondhand dealers, and § 10.66.030, pistols; repeals Ch. 6.09 (6.74, 10.66)
5061	(Not codified)
5062	(Not codified)
5063	(Not codified)
5064	(Not codified)
5065	(Not codified)
5066	Adds two new chapters to Title 6 and repeals and replaces Ch. 6.62, business taxes, licenses and regulations (6.55, 6.62, 6.80A)

Ordinance Number	
5067	(Not codified)
5068	Amends § 6.52.150, massage establishments and independent massage therapists
5069	(Not codified)
5070	Adds § 2.09.030, amends § 2.09.010 and repeals and replaces § 2.09.020, departments of the city (2.09)
5071	(Not codified)
5072	Amends §§ 14.04.010—14.04.030, sewers (14.04)
5073	Amends § 7.32.250, animals—cruelty (7.32)
5074	(Not codified)
5075	(Not codified)
5076	(Not codified)
5077	Amends § 14.04.160, sewers (Repealed by 5457)
5078	Amends § 6.02.360 and 6.88.120, business taxes, licenses and regulations (6.02, 6.88)
5079	(Not codified)
5080	(Not codified)
5081	Amends § 6.02.010, 6.02.020, 6.02.065, 6.02.070, 6.02.080, 6.02.085, 6.02.090, 6.02.110, 6.02.130, 6.02.170—6.02.200, 6.02.220, 6.02.240, 6.02.280, 6.02.290, 6.02.310, 6.02.320 and 6.02.360, business licensing generally (6.02)
5082	(Not codified)
5083	(Not codified)
5084	(Not codified)
5085	(Not codified)
5086	(Not codified)
5087	(Not codified)
5088	(Not codified)
5089	(Not codified)
5090	(Not codified)
5091	Amends § 16.02.010, buildings and construction—administrative code (16.02)
5092	Amends § 16.04.010, building code (16.04)
5093	Amends § 16.24.010, mechanical code (16.24)
5094	Amends § 16.28.010, plumbing code (16.28)

Ordinance Number	
5095	Adds new sections to Ch. 11.02 [11.02.030—11.02.080] and § 11.52.335, amends §§ 10.78.020, 11.02.010, 11.02.020, 11.02.185, 11.10.160, 11.10.180, 11.24.030, 11.44.080, 11.52.130, 11.52.140, 11.52.240, 11.52.245, 11.52.250, 11.52.260—11.52.280, 11.54.080, 13.04.070 and 13.36.170, repeals and replaces §§ 11.24.010, 11.24.040, 11.24.050, 11.52.030 and 11.52.305 and repeals §§ 11.02.030—11.02.130, vehicle parking and nonmoving violations (10.78, 11.02, 11.10, 11.24, 11.44, 11.52, 11.54, 13.04, 13.36)
5096	(Not codified)
5097	Amends § 98.04.020, nuisances (Repealed by 5873)
5098	Amends §§ 10.36.010 and 10.36.050, prostitution (10.36)
5099	Adds Ch. 10.90, misdemeanor drug activity (10.90)
5100	(Not codified)
5101	Repeals Ch. 6.20 (Repealer)
5102	(Not codified)
5103	(Not codified)
5104	Amends § 2.09.010, 2.09.130 and 2.09.150, departments of the city (2.09)
5105	Repeals and replaces § 7.40.120, professional animal handlers (7.40)
5106	Adds new section to Ch. 6.50 and amends § 6.50.020, liquor control, and § 10.76.010, alcoholic beverage consumption and possession (6.50, 10.76)
5107	(Not codified)
5108	Amends § 6.06A.025, adult bookstores (6.06A)
5109	(Not codified)
5110	Adds §§ 13.24.015, 13.24.083, 13.24.085, 13.24.095 and 13.24.135, amends §§ 13.24.010—13.24.030, 13.24.050, 13.24.070, 13.24.090, 13.24.100, 13.24.110, 13.24.130, 13.24.160, 13.24.170, 13.24.190 and 13.24.230—13.24.280 and repeals and replaces §§ 13.24.200 and 13.24.210, news racks (13.24)
5111	Adds new chapter to Title 7, police service animals (7.46)
5112	(Not codified)
5113	(Not codified)
5114	(Not codified)
5115	Amends §§ 16.16.010, Uniform Fire Code (16.16)
5116	(Not codified)
5117	(Not codified)
5118	Amends §§ 2.51A.020 and 2.51A.030, campaign practices (2.51)

Ordinance Number	
5119	(Not codified)
5120	(Not codified)
5121	(Not codified)
5122	(Not codified)
5123	(Not codified)
5124	(Not codified)
5125	Adds § 9.08.270 and amends § 9.08.010, garbage collection and disposal (9.08)
5126	Adds Ch. 6.20, cable television services (Repealed by 5989)
5127	Amends §§ 1.16.030 and 1.16.050, wards (1.16)
5128	(Not codified)
5129	(Not codified)
5130	(Not codified)
5131	(Not codified)
5132	(Not codified)
5133	Amends § 11.10.140, parking or nonmoving violations (11.10)
5134	(Not codified)
5135	Amends §§ 2.09.010, 2.09.090, 2.09.150 and 2.09.160, repeals § 2.09.110; department of the city (2.09)
5136	(Not codified)
5137	Amends §§ 2.02.010 and 2.02.020, city council (2.02)
5138	(Not codified)
5139	(Not codified)
5140	Amends § 14.04.010 and 14.04.020, sewers (14.04)
5141	(Not codified)
5142	(Not codified)
5143	(Not codified)
5144	(Not codified)
5145	(Not codified)
5146	(Not codified)
5147	(Not codified)
5148	(Not codified)
5149	Adds Metropolitan Police Department Citizen Review Board (2.64)
5150	Amends § 81 of Ord. 5126 [6.20.800], cable television services (Repealed by 5989)
5151	(Not codified)
5152	(Not codified)
5153	Amends §§ 2.02.050 and 2.02.060, city council (2.02)

Ordinance Number	
5154	Adds new section to Ch. 2.20 and amends §§ 2.09.010 and 2.09.100 administration and personnel (2.09, 2.20)
5155	(Not codified)
5156	Amends §§ 2.26.030 and 2.26.035, municipal court (2.26)
5157	Amends § 14.04.160, sewers (Repealed by 5457)
5158	Amends § 6.86.110, work cards (6.86)
5159	(Not codified)
5160	Readopts § 10.02.010
5161	(Not codified)
5162	(Not codified)
5163	Amends §§ 4.24.020 — 4.24.090 and 4.24.120 — 4.24.150, residential construction impact fee (4.24)
5164	(Not codified)
5165	(Not codified)
5166	(Not codified)
5167	(Not codified)
5168	Amends §§ 6.52.020, 6.52.040, 6.52.080, 6.52.090, 6.52.110, 6.52.120, 6.52.140 and 6.52.150, repeals and replaces §§ 6.52.160 — 6.52.180 and repeals §§ 6.52.190 and 6.52.200, massage establishments and independent massage therapists (6.52)
5169	Adds §§ 6.50.385, 6.78.035 and 6.78.045 and amends § 6.78.010, business taxes, licenses and regulations (6.50, 6.78)
5170	Adds §§ 6.02.363, 6.02.365, 6.02.367 and amends §§ 6.06.270 — 6.06.290, business taxes, licenses and regulations (6.02, 6.06)
5171	(Not codified)
5172	Adds new chapter to Title 6 [6.90], acupressure and reflexology (6.69)
5173	(Not codified)
5174	(Not codified)
5175	Amends § 2.51.070, code of ethics for public officials (2.51)
5176	(Not codified)
5177	Adds §§ 1.16.060 and 1.16.070 and amends §§ 1.16.010 — 1.16.050, wards (1.16)
5178	(Not codified)
5179	(Not codified)
5180	(Not codified)
5181	Amends §§ 11.54.090 and 11.54.100; repeals § 11.54.110, metered parking (11.54)

Ordinance Number	
5182	(Not codified)
5183	(Not codified)
5184	(Not codified)
5185	(Not codified)
5186	(Not codified)
5187	(Not codified)
5188	(Not codified)
5188	(Not codified)
5189	Adds Ch. 10.77 and § 10.76.020, public peace, morals and welfare, and amends §§ 6.50.385 and 6.78.045, business taxes, licenses and regulations, (6.50, 6.78, 10.76, 10.77)
5190	(Not codified)
5191	(Not codified)
5192	Amends § 2.51.070, financial disclosure (2.51)
5193	Adds Ch. 2.45, board of zoning adjustment; amends §§ 2.44.010 and 2.44.020, planning commission; repeals Ch. 19.94 (2.44)
5194	Amends Ord. 5149 § 4, director of metropolitan police (2.64)
5195	(Not codified)
5196	Adds Ch. 9.37, prohibiting transportation of high-level nuclear waste (9.37)
5197	Adds § 6.52.190; amends §§ 6.52.020, 6.52.150, 6.52.160 and 6.52.180, massage therapy regulations (6.52)
5198	(Not codified)
5199	(Not codified)
5200	(Not codified)
5201	Adds Ch. 1.28; amends § 6.06A.025, adult bookstores (1.28, 6.06A)
5203	(Not codified)
5204	Adds §§ 2.22.100, 2.22.110 and 2.22.120; adds § 19A.18.080, zoning; amends §§ 2.49.010, 2.51.020, 2.52.020, 10.80.040, 13.16.090, 19A.00.060(F), 19A.00.070(B) and (F), 19A.04.080(B), (C) and (D), 19A.06.020(C), 19A.08.040(B)(2), 19A.08.060(H), 19A.14.100(C)(7) and (C)(8), 19A.18.010(D)(3) and (D)(6), 19A.18.070(B), (C), (D)(e), (E), (G), (J), (H) and (L), 19A.18.100(B), (E) and (F), 19A.18.110 (C), (G)(1), (H), (I) and (L), 19A.20.020, 20.08.280, 20.08.290, 20.08.300 and 20.08.320; repeals § 5 of Ord. 5193 [Ch. 2.45]; repeals § 19A.18.080; procedures for appeals, variance applications, etc. (2.49, 2.51, 2.52, 10.80, 13.16, 20.08)
5205	(Not codified)

Ordinance Number	
5206	Repeals and replaces Ch. 2.46, senior citizens' advisory board (2.46)
5207	Amends § 18.14.030, subdivisions (18.14)
5208	(Not codified)
5209	Amends § 1.08.050, city seal, flag (1.08)
5210	Amends §§ 6.60.060, 6.60.090, 6.60.160 and 6.60.240, pawnbrokers (6.60)
5211	(Not codified)
5212	Amends § 11.65.060, parking permits (11.65)
5213	(Not codified)
5214	(Not codified)
5215	(Not codified)
5216	(Not codified)
5217	(Not codified)
5218	(Not codified)
5219	(Not codified)
5220	Adds §§ 7.04.215, 7.04.253, 7.04.257, 7.08.185, 7.12.005 and 7.38.100 [7.38.110]; adds new §§ 7.40.160 through 7.40.370 (after repeal of §§ 7.40.160—7.40.460); amends §§ 7.04.040, 7.04.090, 7.04.490, 7.04.500, 7.08.010, 7.08.030, 7.08.040, 7.08.050 [7.08.060], 7.08.080, 7.08.090, 7.08.100, 7.08.120, 7.08.130, 7.12.010, 7.12.030, 7.12.040, 7.12.050, 7.16.010, 7.16.020, 7.16.040, 7.16.050, 7.20.035, 7.20.080, 7.32.080, 7.32.130, 7.36.020, 7.36.030, 7.36.050, 7.38.010, 7.38.041, 7.38.042, 7.38.044, 7.38.045, 7.38.050, 7.30.080, 7.38.090, 7.40.020 and 7.44.050; repeals and replaces § 7.16.030; repeals §§ 7.40.160 through 7.40.460; animals (7.04, 7.08, 7.12, 7.16, 7.20, 7.32, 7.36, 7.38, 7.40)
5221	Amends § 16.12.010, electrical code (16.12)
5222	Amends § 3.08.010, personnel policy manual (3.08)
5223	(Not codified)
5224	(Not codified)
5225	Amends § 2.09.160, department of information technologies (Repealed by 5247)
5226	Adds § 6.42.135; amends § 6.42.030, delivery of unsolicited materials (6.42)
5227	(Not codified)
5228	Amends §§ 6.02.363, 6.06.270, 6.06A.040, 6.35.140 and 19A.04.040, business licenses (6.02, 6.06, 6.06A, 6.35)
5229	(Not codified)

Ordinance Number	
5230	(Not codified)
5231	(Not codified)
5232	Adds § 2.09.170, department of neighborhood services (Repealed by 5315)
5233	Amends §§ 11.54.060, 11.54.180, 11.54.200 and 11.54.205, parking meters (11.54)
5234	(Not codified)
5235	(Not codified)
5236	(Not codified)
5237	(Not codified)
5238	(Not codified)
5239	(Not codified)
5240	(Not codified)
5241	Amends § 11.60.070, taxistand permits (11.60)
5242	Amends § 6.46.070, hotels, motels and roominghouses room tax (6.46)
5243	(Not codified)
5244	(Not codified)
5245	(Not codified)
5246	(Not codified)
5247	Amends § 2.09.010; repeals and replaces § 2.09.020; repeals §§ 2.06.030—2.09.160, city departments (2.09)
5248	(Not codified)
5249	(Not codified)
5250	(Not codified)
5251	Amends § 6.24.380, child care facilities care restrictions (6.24)
5252	(Not codified)
5253	(Not codified)
5254	(Not codified)
5255	(Not codified)
5256	Amends § 2.26.040, municipal court alternate judges (2.26)
5257	(Not codified)
5258	Amends § 2.48.010, traffic and parking commission (2.48)
5259	(Not codified)
5260	Repeals and replaces Ch. 6.08; repeals § 6.04.035, ambulances (6.08)
5261	(Not codified)
5262	(Not codified)
5263	(Not codified)

Ordinance Number	
5264	(Not codified)
5265	(Not codified)
5267	(Not codified)
5268	Repeals and replaces Ch. 18.30, multiple species habitat conservation (18.30)
5269	(Not codified)
5270	(Not codified)
5271	Amends §§ 10.36.010 and 10.90.010, order out corridor regulations (10.36, 10.90)
5272	(Not codified)
5273	(Not codified)
5274	Amends §§ 11.10.130 and 11.10.140; repeals § 11.10.190, parking fines (11.10)
5275	Adds §§ 18.02.050, 18.02.060, 18.04.065, 18.04.225, 18.04.375, 18.06.175, 18.08.045, 18.08.150, 18.08.160, 18.08.170, 18.08.180, 18.12.105, 18.12.204, 18.12.207, 18.12.243, 18.12.246, 18.12.248, 18.12.510, 18.14.015 and 18.18.025; amends §§ 18.02.010, 18.02.020, 18.02.030, 18.02.040, 18.04.060, 18.04.100, 18.04.150, 18.04.170, 18.04.180, 18.04.190, 18.04.290, 18.04.340, 18.04.380, 18.04.390, 18.04.400, 18.04.470, 18.04.510, 18.04.530, 18.06.010, 18.06.060, 18.06.080, 18.06.100, 18.06.110, 18.06.120, 18.06.130, 18.06.140, 18.06.160, 18.06.180, 18.06.190, 18.08.030, 18.08.050, 18.08.060, 18.08.110, 18.12.010, 18.12.030, 18.12.050, 18.12.080, 18.12.100, 18.12.120, 18.12.130, 18.12.150, 18.12.190, 18.12.200, 18.12.220, 18.12.230, 18.12.260, 18.12.270, 18.12.290, 18.12.310, 18.12.330, 18.12.340, 18.12.380, 18.12.390, 18.12.400, 18.12.410, 18.12.460, 18.12.480, 18.12.500, 18.14.020, 18.14.030, 18.16.010, 18.16.020, 18.16.070, 18.18.020, 18.18.030, 18.18.050, 18.20.010, 18.20.020, 18.20.030, 18.20.060, 18.20.090, 18.20.140, 18.20.150, 18.26.010, 18.26.020, 18.28.010, 18.28.020, 19A.06.030(G), 19A.06.040(G) and 19A.06.110(E); repeals and replaces §§ 18.08.090, 18.08.100, 18.08.120, 18.08.130, 18.08.140 and 18.12.250; repeals and replaces Chs. 18.10 and 18.24; repeals § 18.04.160, subdivisions and land development (18.02, 18.04, 18.06, 18.08, 18.10, 18.12, 18.14, 18.16, 18.18, 18.20, 18.24, 18.26, 18.28)
5276	(Not codified)
5277	(Not codified)
5278	(Not codified)

Ordinance Number	
5279	(Not codified)
5280	(Not codified)
5281	Amends §§ 2.64.040 and 2.64.080, police department citizen review board (2.64)
5282	(Not codified)
5283	(Not codified)
5284	(Not codified)
5285	(Not codified)
5286	Amends §§ 6.58.020—6.58.090, outdoor pay telephones (6.58)
5287	Adds § 13.36.055, parks (13.36)
5288	Amends §§ 6.50.223 and 19A.16.030(A), liquor control (6.50)
5289	(Not codified)
5290	(Not codified)
5291	(Not codified)
5292	Amends § 1.16.070, wards (1.16)
5293	(Not codified)
5294	(Not codified)
5295	(Not codified)
5296	(Not codified)
5297	(Not codified)
5298	(Not codified)
5299	Amends § 6.60.110, pawnbrokers (6.60)
5300	(Not codified)
5301	(Not codified)
5302	(Not codified)
5303	(Not codified)
5304	Repeals and replaces § 2.20.040, department of fire and rescue (2.20)
5305	(Not codified)
5306	(Not codified)
5307	(Not codified)
5308	Adds a provision to Title 6, Ch. 36; amends §§ 19A.04.050(B), 19A.20.020 and Table 2 of § 19A.04.010, escort bureaus and personnel (6.36)
5309	Adds a provision to Title 6, Ch. 57; amends §§ 19A.04.050(B), 19A.20.020 and Table 2 of § 19A.04.010, outcall entertainment referral service (6.57)
5310	(Not codified)
5311	(Not codified)

Ordinance Number	
5312	(Not codified)
5313	(Not codified)
5314	(Not codified)
5315	Repeals § 2.09.170 (Repealer)
5316	(Not codified)
5317	(Not codified)
5318	(Not codified)
5319	Amends §§ 11.02.060, 11.48.090 and 11.52.305, vehicles and traffic (11.02, 11.48, 11.52)
5344	Amends § 19A.18.101 (F), zoning (Repealed by 5345)
5345	Repeals § 19A.00.050 (C); repeals and replaces Title 19, zoning (19, 19.00)
5346	Amends §§ 2.51.020, 2.51.040, 2.51.070, and 2.51.100, standards and procedures, ethics complaints (2.51)
5347	Amends §§ 19A.06.040 (C) and 19A.18.050 (G)(2)(b), zoning (19.06, 19.18)
5348	(Not codified)
5349	(Not codified)
5350	(Not codified)
5351	(Not codified)
5352	Adds §§ 6.09.015, 6.10.081, 6.10.083 and 6.80A.110; amends §§ 6.10.010, 6.10.020, 6.10.030, 6.71.020, 6.81A.010, 6.80A.030, 6.80A.050, 6.80A.060, 6.80A.080 and 6.81.040; repeals and replaces Ch. 6.04, business licenses and regulations (6.04, 6.09, 6.10, 6.71, 6.80A)
5353	(Not codified)
5354	Amends § 19A.08.040 (B)(4), zoning (Repealed by 5345)
5355	Amends §§ 6.06A.010 and 6.06A.040, adult bookstores (6.06A)
5356	(Not codified)
5357	(Not codified)
5358	Amends § 19A.04.040(C), zoning (Repealed by 5842)
5359	(Not codified)
5360	(Not codified)
5361	(Not codified)
5362	(Not codified)
5363	Amends §§ 6.80.110, 19A.04.040(C) and 19A.20.020, zoning and teenage entertainment (6.80, 19.20)
5364	(Not codified)

Ordinance Number	
5365	(Not codified)
5366	(Not codified)
5367	(Not codified)
5368	(Not codified)
5369	(Not codified)
5370	(Not codified)
5371	Amends §§ 19.18.030(F)(2), 19.18.040(H)(2), 19.18.060(G)(2), 19.18.070(G)(2) and 19.18.070(C)(1), zoning (Repealed by 5345)
5372	Amends §§ 19.16.030(A) and 19.16.050(A), zoning (Repealed by 5345)
5373	Amends §§ 19.18.070(J), zoning (Repealed by 5345)
5374	Amends § 19.18.020(D), zoning (Repealed by 5345)
5375	Amends § 19.10.010(K)(9), zoning (Repealed by 5345)
5376	Amends §§ 19.04.050(B), 19.20.020, zoning (Repealed by 5842)
5377	Adds Ch. 16.56, American flag provisions (16.56)
5378	Amends § 19.04.010, 19.20.020, zoning (19.20)
5379	(Not codified)
5380	(Not codified)
5381	(Not codified)
5382	(Not codified)
5383	(Not codified)
5384	Adds Ch. 18.32, maintenance districts (18.32)
5385	Amends §§ 6.40.160 and 6.40.180, gaming enterprise district provisions (6.40)
5386	Amends §§ 6.07.230, 6.14.140, 6.18.050, 6.19.030, 6.39.050, 6.50.370, 6.60.070, 6.80A.060, 6.82.190, 6.86.020; repeals §§ 6.07.220, 6.40.190, 6.40.200, 6.82.180, 10.25.040 and 10.25.050, business license regulations (6.14, 6.18, 6.19, 6.39, 6.40, 6.50, 6.60, 6.80A, 6.82, 6.86, 10.25)
5387	(Not codified)
5388	(Not codified)
5389	(Not codified)
5390	(Not codified)
5391	(Not codified)
5392	Amends §§ 2.34.020, 2.34.030 and 2.34.050; repeals § 2.34.040, arts commission membership (2.34)
5393	(Not codified)
5394	(Not codified)

Ordinance Number	
5395	(Not codified)
5396	(Not codified)
5397	(Not codified)
5398	(Not codified)
5399	(Not codified)
5400	(Not codified)
5401	(Not codified)
5402	(Not codified)
5403	(Not codified)
5404	(Not codified)
5405	Amends §§ 19.08.040(B)(2)(a) and 19.18.080(C), zoning (19.08, 19.18)
5406	(Not codified)
5407	(Not codified)
5408	Amends §§ 19.06.100 and 19.20.020, zoning (19.06, 19.20)
5409	Amends § 2.44.010, planning commission membership (2.44)
5410	(Not codified)
5411	(Not codified)
5412	(Not codified)
5413	(Not codified)
5414	(Not codified)
5415	(Not codified)
5416	(Not codified)
5417	(Not codified)
5418	(Not codified)
5419	(Not codified)
5420	(Not codified)
5421	Adds Ch. 6.90; amends § 6.47.070, rules, regulations and business licensing requirements for farmers' market (6.47, 6.90)
5422	Adds Ch. 9.38, §§ 10.50.005, 10.50.030 and 10.50.040; amends § 10.50.020, abandoned shopping carts (9.38, 10.50)
5423	Repeals Ch. 2.51A, campaign practices (Repealer)
5424	(Not Codified)
5425	(Not Codified)
5426	(Not Codified)
5427	(Not Codified)
5428	(Not Codified)
5429	(Not Codified)
5430	(Not Codified)

Ordinance Number	
5431	(Not Codified)
5432	Adds Ch. 6.92, monorail business license (6.92)
5433	Adds § 6.50.395, alcohol prohibition for minors (6.50)
5434	Amends §§ 9.04.010, 11.52.305, 19.04.060 and 19.20.020, vehicle parking and storage restrictions in residential areas (11.52, 19.02)
5435	Amends § 2.51.040, gift disclosure statement requirements (2.51)
5436	Adds § 19.00.035; amends §§ 19.04.010, 19.04.040(C), 19.04.050, 19.18.060(E) and 19.18.060(L), 19.20.020, wireless communication facilities zoning (19.00, 19.18, 19.20)
5437	(Not Codified)
5438	(Not Codified)
5439	(Not Codified)
5440	(Not Codified)
5441	(Not Codified)
5442	(Not Codified)
5443	(Not Codified)
5444	(Not Codified)
5445	Amends § 19.20.020, ancillary commercial uses (19.20)
5446	Amends §§ 19.04.010, 19.04.050(B), 19.20.020, special use permits (19.20)
5447	(Not Codified)
5448	(Not Codified)
5449	(Not Codified)
5450	(Not Codified)
5451	(Not Codified)
5452	Adds § 6.11.070; amends §§ 6.11.010, 6.11.020, 6.11.030, 6.11.050, arts and crafts show business license (6.11)
5453	Repeals and replaces Ch. 16.31, vacant and demolished buildings (16.31)
5454	(Not Codified)
5455	Adds § 6.28.055; amends §§ 6.28.010, 6.28.020, 6.28.030, 6.28.040, 6.28.050, 6.28.060; repeals § 6.28.070, temporary event licensing requirements (6.28)
5456	Amends §§ 6.02.080, 6.02.130. 6.02.150, 6.02.210, business licensing record keeping and reporting requirements (6.02)
5457	Amends §§ 14.04.010, 14.04.020, 14.04.080, 14.04.090 and 14.04.200; repeals §§ 14.04.130—14.04.185, sewer requirements (14.04)
5458	(Not Codified)

Ordinance Number	
5459	(Not Codified)
5460	(Not Codified)
5461	(Not Codified)
5462	(Not Codified)
5463	Amends § 19.04.050(B), liquor establishments (Repealed by 5842)
5464	(Not Codified)
5465	(Not Codified)
5466	(Not Codified)
5467	(Not Codified)
5468	(Not Codified)
5469	(Not Codified)
5470	(Not Codified)
5471	(Not Codified)
5472	(Not Codified)
5473	(Not Codified)
5474	(Not Codified)
5475	(Not Codified)
5476	Amend § 9.08.100, prohibition of dumpster storage on streets and sidewalks (Repealed by 5733)
5477	Amends §§ 19.18.010 and 19.20.020, zoning (19.18, 19.20)
5478	Amends §§ 19.04.050 and 19.20.020, zoning (19.20)
5479	(Not Codified)
5480	(Not Codified)
5481	(Not Codified)
5482	(Not Codified)
5483	Amends §§ 1.16.020, 1.16.030, 1.16.040, 1.16.050, 1.16.060 and 1.16.070, ward boundary adjustment (1.16)
5484	(Not Codified)
5485	(Not Codified)
5486	(Not Codified)
5487	(Not Codified)
5488	Amends § 19.02.040, zoning (19.02)
5489	Amends §§ 2.26.030 and 2.26.035, municipal court judges' salaries (2.26)
5490	(Not Codified)

Ordinance Number	
5491	Adds §§ 6.52.200 and 6.52.210; amends §§ 6.52.010, 6.52.020, 6.52.030, 6.52.040, 6.52.050, 6.52.070, 6.52.080, 6.52.090, 6.52.110, 6.52.120, 6.52.130, 6.52.160, 6.52.170, 6.52.180, 6.52.190, 6.69.010, 6.69.020, 6.69.030, 6.69.040, 6.69.050, 6.69.060, 6.69.090, 6.69.100, 6.69.110, 6.69.140, massage and reflexology licensing provisions (6.52, 6.69)
5492	(Not Codified)
5493	(Not Codified)
5494	(Not Codified)
5495	(Not Codified)
5496	Amends § 19.20.020; repeals and replaces Ch. 19.14, zoning (19.14, 19.20)
5497	Adds § 7.08.075; amends §§ 7.08.100, 7.16.030, 7.24.020, 7.24.030, 7.28.010, 7.32.010, 7.32.090, 7.38.010 and 7.44.040, animal control regulations (7.08, 7.16, 7.24, 7.28, 7.32, 7.38, 7.44)
5498	Amends §§ 19.04.010, 19.04.040, 19.04.050, 19.10.010 and 19.20.020, zoning (19.10, 19.20)
5499	Amends §§ 19.04.010 and 19.04.050, zoning (Repealed by 5842)
5500	Amends § 19.06.020, zoning (19.06)
5501	(Not Codified)
5502	(Not Codified)
5503	(Not Codified)
5504	Amends § 19.04.040, zoning (Repealed by 5842)
5505	Amends §§ 19.04.010 and 19.04.050, zoning (Repealed by 5842)
5506	(Not Codified)
5507	(Not Codified)
5508	Adds §§ 19.08.045 and 19.08.050, zoning (19.08)
5509	Repeals and replaces Ch. 19.12, zoning (19.12)
5510	(Not Codified)
5511	(Not Codified)
5512	(Not Codified)
5513	(Not Codified)
5514	(Not Codified)
5515	(Not Codified)
5516	Amends § 19.04.050, zoning (Repealed by 5842)

Ordinance Number	
5517	Amends §§ 6.02.070, 6.02.050, 6.06.051, 6.06.052, 6.06.053, 6.06.054, 6.06.055, 6.06.056, 6.06.070, 6.06.090, 6.06.100, 6.06.105, 6.06.110, 6.06.120, 6.06.125, 6.06.130, 6.06.150, 6.06.170, 6.06.200, 6.06.220, 6.06.230, 6.06.240, 6.06.250, privileged license requirements (6.02, 6.06)
5518	(Not Codified)
5519	(Not Codified)
5520	(Not Codified)
5521	Adds §§ 19.06.120 and 6.50.120; amends §§ 19.20.020, 6.40.155, 6.50.020, 6.50.223 and 6.50.230, Downtown Overlay District (6.40, 6.50, 19.06, 19.20)
5522	(Not Codified)
5523	(Not Codified)
5524	(Not Codified)
5525	Amends § 16.30.010, Southern Nevada Pool Code (16.30)
5526	Amends § 16.28.010, Uniform Plumbing Code (16.28)
5527	Amends § 16.12.010, National Electric Code (16.12)
5528	Amends § 16.24.010, Uniform Mechanical Code (16.24)
5529	(Not codified)
5530	(Not codified)
5531	(Not codified)
5532	(Not codified)
5533	(Not codified)
5534	(Not codified)
5535	(Not codified)
5536	(Not codified)
5537	(Not codified)
5538	(Not codified)
5539	(Not codified)
5540	(Not codified)
5541	(Not codified)
5542	(Not codified)
5543	(Not codified)
5544	(Not codified)
5545	(Not codified)
5546	(Not codified)
5547	(Not codified)
5548	(Not codified)

Ordinance Number	
5549	Amends § 2.46.030, senior citizens advisory board (2.46)
5550	(Not codified)
5551	Amends §§ 19.04.010, 19.18.100 and 19.20.020, zoning (19.18, 19.20)
5552	Amends §§ 19.04.010, 19.04.050 and 19.20.020, zoning (19.20)
5553	Amends § 20.10.010, drainage control regulations (20.10)
5554	(Not codified)
5555	Repeals and replaces Ch. 2.51 (2.51)
5556	Amends §§ 1.16.020, 1.16.050, 1.16.060 and 1.16.070, ward boundaries (1.16)
5557	(Not codified)
5558	(Not codified)
5559	(Not codified)
5560	Amends § 19.04.060, zoning (19.04)
5561	Amends §§ 19.04.010, 19.04.050 and 19.10.040 zoning (19.10)
5562	(Not codified)
5563	Amends § 10.76.010, properties serving alcoholic beverages in open container boundary regulations (10.76)
5564	Amends § 19.04.010, zoning (Repealed by 5842)
5565	Amends §§ 19.04.010, 19.04.050 and 19.20.020, zoning (19.20)
5566	Adds § 13.32.065; amends § 19.06.060, downtown outdoor dining standards (13.32, 19.06)
5567	Amends § 11.56.080, parade permits (11.56)
5568	(Not codified)
5569	(Not codified)
5570	Amends §§ 11.50.010, 11.50.030, 11.50.040 and 11.50.050; repeals § 11.50.020, temporary traffic control regulations (11.50)
5571	Adds §§ 13.40.070, 13.40.080, 13.40.090, 13.40.100, 13.40.110 and 13.40.120; amends §§ 13.12.100, 13.12.170, 13.16.020, 13.16.030, 13.16.040, 13.16.050, 13.16.060, 13.16.070, 13.16.080, 13.16.110, 13.16.160, 13.16.200, 13.16.210, 13.16.260, 13.16.280, 13.20.010, 13.20.030, 13.20.050, 13.20.060, 13.20.080, 13.20.110, 13.20.130, 13.24.010, 13.40.010, 13.40.020, 13.40.040, 13.40.050, 13.40.060, 13.44.060, 13.44.010 and 13.44.020; repeals §§ 13.20.090, 13.20.100 and 13.44.030, public improvements (13.12, 13.16, 13.20, 13.24, 13.40, 13.44)
5576	(Not codified)
5577	Amends §§ 1.16.020 and 1.16.070, ward boundaries (1.16)
5578	(Not codified)

Ordinance Number	
5579	Adds § 19.12.090, zoning (Repealed by 5345)
5580	(Not codified)
5581	Amends § 19.18.050, zoning (Repealed by 5345)
5582	Amends § 6.58.040, outdoor payphone operation (6.58)
5583	Amends §§ 6.08.020, 6.08.130, 6.08.150, 6.08.180, 6.08.190 and 6.08.300, ambulance service operations (6.08)
5586	(Not codified)
5587	(Not codified)
5589	Amends §§ 19.04.010 and 19.04.050(B), zoning (Repealed by 5842)
5590	(Not codified)
5591	(Not codified)
5592	(Not codified)
5593	(Not codified)
5594	(Not codified)
5595	Amends § 11.10.090, exemption from penalties for delinquent handicapped parking violations (11.10)
5596	(Not codified)
5597	(Not codified)
5598	(Not codified)
5599	(Not codified)
5600	(Not codified)
5601	(Not codified)
5602	(Not codified)
5603	(Not codified)
5604	(Not codified)
5605	(Not codified)
5606	Amends §§ 19.04.010, 19.04.040(C) and 19.04.050, zoning (Repealed by 5842)
5607	Amends §§ 19.04.050, 19.04.100, 19.10.060, 19.18.060 and 19.20.020; repeals and replaces Ch. 6.50, liquor and zoning (6.50, 19.04, 19.10, 19.18, 19.20)
5608	Amends § 19.10.010(F), zoning (19.10)
5609	Adds §§ 7.38.125 and 19.20.020; amends §§ 7.38.050 and 19.04.010, carrier or racing pigeons (7.38, 19.20)
5610	Amends §§ 6.40.140 and 6.40.155, restricted gaming (6.40)
5611	(Not codified)
5612	(Not codified)
5613	Amends §§ 19.04.010 and 19.04.050(B), zoning (Repealed by 5842)

Ordinance Number	
5614	(Not codified)
5615	Amends §§ 11.68.110, 11.68.120, 19.06.100 and 19.14.130, sign review procedures, zoning (19.06, 19.14)
5616	Adds Ch. 14.11, drought plan (14.11)
5617	(Not codified)
5618	(Not codified)
5619	Amends §§ 19.04.010, 19.04.040, 19.10.010 and 19.20.020, valet parking, zoning (19.10, 19.20)
5620	(Not codified)
5621	(Not codified)
5622	(Not codified)
5623	Amends § 19.04.060, vehicles, zoning (Repealed by 5842)
5624	(Not codified)
5625	(Not codified)
5626	(Not codified)
5627	(Not codified)
5628	Amends §§ 19.04.050(B) and 19.20.020, halfway house, zoning (19.20)
5629	(Not codified)
5630	(Not codified)
5631	(Not codified)
5632	(Not codified)
5633	Amends §§ 19.04.010, 19.04.040(C) and 19.20.020, facilities for alcohol testing, treatment or counseling (19.20)
5634	Amends §§ 9.04.010, 11.24.020 and 11.24.030, abandoned and inoperable vehicles (11.24)
5635	Adds §§ 6.24.072, 6.24.075, 6.24.112, 6.24.114, 6.24.116, 6.24.118, 6.24.190, 6.24.192, 6.24.194, 6.24.196 and 6.24.200; amends §§ 6.24.010, 6.24.020, 6.24.040, 6.24.050, 6.24.060, 6.24.070, 6.24.100, 6.24.110, 6.24.120, 6.24.150, 6.24.210, 6.24.230, 6.24.240, 6.24.250, 6.24.260, 6.24.300 and 6.24.340; repeals §§ 6.24.080 and 6.24.360—6.24.410; repeals and replaces 6.24.190 and 6.24.350, operations and management of child care facilities (6.24)
5636	Amends §§ 16.04.010 and 16.04.020, building code adoption (16.04)
5637	(Not codified)
5638	Amends §§ 19.04.010, 19.04.040(C), 19.04.050(B), 19.08.040, 19.08.045, 19.10.010(F) and 19.20.020 (19.08, 19.10, 19.20)
5639	Amends Downtown Las Vegas Centennial Plan Map (Not codified)

Ordinance Number	
5640	Amends §§ 6.52.020, 6.52.090, 6.52.160, license requirements for massage therapists (6.52)
5641	(Not codified)
5642	Amends §§ 14.04.020, 14.04.030, 14.04.070, 14.04.080, 14.04.090 and 14.04.210, sewer service provisions (14.04)
5643	Readopts § 10.02.010, misdemeanors (10.02)
5644	Adds Ch. 4.32, traffic signal impact fee (4.32)
5645	(Not codified)
5646	(Not codified)
5647	Amends §§ 14.11.020 and 14.11.030; repeals and replaces § 14.11.190, drought conservation measures (14.11)
5648	(Not codified)
5649	Amends § 19.06.020, C-V Civic district (19.06)
5650	(Not codified)
5651	(Not codified)
5652	(Not codified)
5653	Amends § 19.04.010, land use tables (Repealed by 5842)
5654	Adds §§ 2.34.015, 2.34.140, 2.34.150, 2.34.160, 2.34.170, 2.34.180 and 2.34.190; amends §§ 2.34.120 and 2.34.130; repeals §§ 2.34.140 and 2.34.150, works of art; capital improvement program (2.34)
5655	Amends §§ 19.04.010 and 19.04.050(B), trucking companies (Repealed by 5842)
5656	Adds § 6.50.115; amends §§ 6.50.020 and 6.50.360, alcohol beverage sales (6.50)
5657	(Not codified)
5658	(Not codified)
5659	(Not codified)
5660	Amends §§ 6.55.070, 6.55.090 and 6.55.110, mobile food vendors (6.55)
5661	Amends §§ 6.47.040, 6.47.060, 6.47.070, 6.47.090 and 6.47.100, ice cream truck business licenses (6.47)
5662	Amends § 19.04.050, mixed uses (Repealed by 5842)
5663	Amends §§ 19.04.010, 19.04.040 and 19.20.020, temporary real estate sales office (19.20)
5664	Amends § 6.24.020, child care licensing board (6.24)
5665	Adds §§ 11.22.160 and 19.10.030; amends § 19.20.020, test driving on residential streets prohibited (11.22, 19.10)
5666	(Not codified)

Ordinance Number	
5667	Repeals and replaces § 16.16.010; amends § 16.16.020, uniform fire code (16.16)
5668	(Not codified)
5669	(Not codified)
5670	(Not codified)
5671	Adds § 19.06.130; amends § 19.20.020, live/work overlay district (19.06, 19.20)
5672	Amends § 11.65.020, residential permit parking zones time limit (11.65)
5673	(Not codified)
5674	Amends §§ 19.04.050(C) and 19.20.020, beer/wine/cooler art event (19.20)
5675	Amends § 19.04.010, rural and animal related zones (Repealed by 5842)
5676	(Not codified)
5677	(Not codified)
5678	(Not codified)
5679	(Not codified)
5680	(Not codified)
5681	(Not codified)
5682	Amends §§ 19.04.040(C) and 19.04.050(B), locational restrictions and additional development standards (Repealed by 5842)
5683	(Not codified)
5684	(Not codified)
5685	Amends §§ 19.04.010, 19.04.040(C) and 19.04.050(B), public street conversion (Repealed by 5842)
5686	Amends §§ 2.30.030, 2.30.040, 2.30.050, 2.30.060 and 2.30.080, emergency management (2.30)
5687	(Not codified)
5688	Amends §§ 19.04.010, 19.04.040(C), 19.04.050(B), 19.10.010(F) and 19.20.020, swap meets (19.10, 19.20)
5689	(Not codified)
5690	Amends §§ 1.16.010, 1.16.020, 1.16.030, 1.16.040, 1.16.050, 1.16.060 and 1.16.170, wards (1.16)
5691	(Not codified)
5692	(Not codified)
5693	(Not codified)
5694	Adds § 19.06.140, Las Vegas Boulevard Scenic Byway (19.06)

Ordinance Number	
5695	Adds Ch. 11.70. motorized scooters and skateboards (11.70)
5696	Adds § 7.04.065; amends § 7.32.110, breeding and training animals for fighting (7.04, 7.32)
5697	(Not codified)
5698	(Not codified)
5699	(Not codified)
5700	(Not codified)
5701	(Not codified)
5702	(Not codified)
5703	(Not codified)
5704	Adds Ch. 6.94, new vehicle dealer (6.94)
5705	(Not codified)
5706	(Not codified)
5707	Amends §§ 14.11.030, 14.11.040, 14.11.160, 14.11.180 and 14.11.190, drought plan (14.11)
5708	(Not codified)
5709	Adds Ch. 10.71, electronic stun devices (10.71)
5710	Amends §§ 2.26.030 and 2.26.035, municipal court judge salaries (2.26)
5711	(Not Codified)
5712	(Not Codified)
5713	(Not Codified)
5714	Amends § 19.18.090, infrastructure and public facilities (19.18)
5715	(Not Codified)
5716	(Not Codified)
5717	(Not Codified)
5718	(Not Codified)
5719	(Not Codified)
5720	Amends §§ 6.50.020, 6.50.120 and 19.20.020, hotel lounge bars (6.50, 19.20)
5721	(Not Codified)
5722	Amends §§ 19.04.010 and 19.04.020, private horse corrals (Repealed by 5842)
5723	Amends § 2.51.020, city employees (2.51)
5724	(Not Codified)
5725	(Not Codified)
5726	(Not Codified)
5727	(Not Codified)

Ordinance Number	
5728	Amends §§ 19.04.010, 19.04.040(C) and 19.04.050(B), zoning permits (Repealed by 5842)
5729	Amends §§ 19.18.070(B), 19.18.070(E), 19.18.070(G), 19.18.070(J), 19.18.070(N) and 19.18.070(O), variances (19.18)
5730	(Not Codified)
5731	(Not Codified)
5732	(Not Codified)
5733	Repeals and replaces Ch. 9.08, garbage collection and disposal (9.08)
5734	Amends §§ 19.06.130(C) and 19.06.130(D), special purpose and overlay districts (19.06)
5735	Amends § 19.04.040(C), permissible uses (Repealed by 5842)
5736	Adds § 19.14.100(F); amends § 19.14.100(B), sign standards (19.14)
5737	Amends §§ 19.04.010, 19.04.040(C), 19.04.050(B) and 19.20.020, pet boarding (19.20)
5738	Amends §§ 19.02.040(B), 19.02.040(C), 19.04.010, 19.04.050(B) and 19.08.045(B), (19.02, 19.08)
5739	Amends §§ 1.16.050 and 1.16.070, wards (1.16)
5740	Amends § 19.06.120(E)(2), special purpose and overlay districts (19.06)
5741	Adds Ch. 11.33, speed humps (11.33)
5742	(Not codified)
5743	(Not codified)
5744	Amends § 19.06.130(C), special purpose and overlay districts (19.06)
5745	Adds Ch. 11.27, multi-use trails (11.27)
5746	Repeals Ch. 2.53, eligibility for elective office (Repealer)
5747	Amends § 19.06.090(D), special purpose and overlay districts (19.06)
5748	Amends Ch. 11.70, motorized scooters and skateboards (11.70)
5749	(Not Codified)
5750	(Not Codified)
5751	(Not Codified)
5752	(Not Codified)
5753	(Not Codified)
5754	Amends §§ 19.04.050(B) and 19.08.060(A), zoning (19.08)
5755	Amends § 19.10.010 (C), zoning (19.10)
5756	(Not Codified)
5757	(Not Codified)
5758	(Not Codified)
5759	(Not Codified)

Ordinance Number	
5760	(Not Codified)
5761	(Not Codified)
5762	Amends §§ 19.04.050(B) and 19.20.020, zoning (19.20)
5763	(Not Codified)
5764	(Not Codified)
5765	Amends §§ 14.11.020 and 14.11.030, drought emergency (14.11)
5766	Amends § 16.52.010, international energy code (16.52)
5767	(Not Codified)
5768	(Not Codified)
5769	(Not Codified)
5770	(Not Codified)
5771	(Not Codified)
5772	(Not Codified)
5773	(Not Codified)
5774	(Not Codified)
5775	(Not Codified)
5776	(Not Codified)
5777	(Not Codified)
5778	(Not Codified)
5779	(Not Codified)
5780	Amends § 19.04.010, commercial recreation/amusement (indoor) (Repealed by 5842)
5781	Amends § 19.16.030(A), non-conforming use of a conforming building (19.16)
5782	(Not codified)
5783	Readopts § 10.02.010, state misdemeanors (10.02)
5784	(Not codified)
5785	Repeals and replaces §§ 11.10.170 and 11.52.135, vehicles and traffic (11.10, 11.52)
5786	Amends §§ 19.04.020, 19.14.040 and 19.20.020, zoning (19.04, 19.14, 19.20)
5787	(Not codified)
5788	(Not codified)
5789	Amends §§ 19.04.010, 19.04.040(C), 19.04.050(B), 19.10.010(F), 19.18.060(E) and 19.20.020, zoning (19.10, 19.18, 19.20)
5790	(Not codified)
5791	Adds § 19.06.150; amends § 19.20.020, zoning (19.06, 19.20)

Ordinance Number	
5792	Amends §§ 19.18.030(F), 19.18.040(H), 19.18.060(G) and 19.18.070(K), zoning (19.18)
5793	(Not codified)
5794	Amends §§ 19.06.090(H), 19.06.090(I), 19.06.090(K) and 19.06.090(Q), zoning (19.06)
5795	Amends §§ 19.04.010, 19.04.050(B), 19.10.010(F) and 19.20.020, zoning (19.10, 19.20)
5796	(Not codified)
5797	(Not codified)
5798	(Not codified)
5799	(Not codified)
5800	Amends Ch. 6.08, ambulances (6.08)
5801	Amends § 19.04.020, zoning (19.04)
5802	Amends §§ 9.04.010 and 11.24.020—11.24.030, abandoned vehicles (9.04, 11.24)
5803	Amends §§ 10.78.010—10.78.050, display and sale of motor vehicles or merchandise on vacant lots (10.78)
5804	(Not codified)
5805	Adds Ch. 11.53, valet parking (11.53)
5806	Adds § 6.50.255; amends §§ 6.40.140, 6.50.360, 19.04.010, 19.04.050 and 19.20.020, urban lounge (6.40, 6.50, 19.20)
5807	Amends §§ 19.04.050, 19.10.010 and 19.10.020; repeals §§ 19.08.045 and 19.12.090; repeals and replaces §§ 19.08.050, 19.12.030—19.12.080, zoning (19.08, 19.10, 19.12)
5808	(Not codified)
5809	Amends § 19.18.030, zoning (19.18)
5810	(Not codified)
5811	Adds § 19.06.160; amends §§ 19.02.010, 19.02.040, zoning (19.02, 19.06)
5812	Amends §§ 19.04.040 and 19.04.050, zoning (Repealed by 5842)
5813	(Not codified)
5814	(Not codified)
5815	(Not codified)
5816	(Not codified)
5817	(Not codified)
5818	(Not codified)
5819	(Not codified)
5820	Adds § 2.04.015, mayor (2.04)

Ordinance Number	
5821	Amends §§ 6.02.010, 6.04.050—6.04.065 and 6.04.120; repeals § 6.04.170, business license (6.02, 6.04)
5822	(Not codified)
5823	Amends § 6.74.040, secondhand dealers (6.74)
5824	(Not codified)
5825	Amends §§ 14.04.010—14.04.020, 19.04.010, 19.04.040—19.04.050, 19.08.040, 19.20.020, zoning (14.04, 19.08, 19.20)
5826	(Not Codified)
5827	Amends § 19.06.150, zoning (19.06)
5828	(Not Codified)
5829	(Not Codified)
5830	(Not Codified)
5831	Amends §§ 19.04.010, 19.04.040 and 19.20.020, zoning (19.04, 19.20)
5832	(Not Codified)
5833	(Not Codified)
5834	(Not Codified)
5835	(Not Codified)
5836	(Not Codified)
5837	Amends § 13.36.055, parks (13.36)
5838	(Not Codified)
5839	(Not Codified)
5840	Amends §§ 19.04.010, 19.04.040, 19.04.050 and 19.20.020, zoning (19.04, 19.20)
5841	Amends §§ 19.04.010, 19.04.040 and 19.20.020, zoning (19.04, 19.20)
5842	Amends §§ 19.10.010 and 19.20.020; repeals and replaces §§ 19.04.010 and 19.04.040—19.04.060, zoning (19.04, 19.10, 19.20)
5843	Amends §§ 1.16.020—1.16.070, ward boundaries (1.16)
5844	(Not Codified)
5845	(Not Codified)
5846	Amends § 10.36.010; repeals and replaces §§ 10.36.020 and 10.36.030, prostitution (10.36)
5847	Repeals and replaces § 10.40.040, urination, defecation (10.40)
5848	(Not Codified)
5849	(Not Codified)
5850	Adds § 19.12.075; amends §§ 18.08.110, 19.08.040, 19.08.050, 19.12.080, 19.20.020; repeals § 18.12.510, walls and fences (18.08, 19.08, 19.12, 19.20)
5851	(Not Codified)

Ordinance Number	
5852	(Not Codified)
5853	(Not Codified)
5854	(Not Codified)
5855	(Not Codified)
5856	(Not Codified)
5857	Adds §§ 14.04.300—14.04.330, regional sewer connection charge (14.04)
5858	Amends § 2 of Ord. 5847 [10.40.040], urination, defecation (10.40)
5859	Amends §§ 19.04.010, 19.10.010, 19.20.020, zoning (19.04, 19.10, 19.20)
5860	(Not Codified)
5861	Amends §§ 19.12.010 and § 9 of Ord. 5850 [19.20.020], zoning (19.12, 19.20)
5862	(Not Codified)
5863	(Not Codified)
5864	Repeals and replaces Ch. 11.14, driving under the influence of alcohol (11.14)
5865	Adds Ch. 10.44A, solicitation (10.44A)
5866	Adds Ch. 11.68A, city's pedestrian mall (11.68)
5867	Adds § 10.48.105, minimal community service requirements (10.48)
5868	Amends §§ 19.06.100 and 19.06.120, zoning (19.06)
5869	Amends § 19.18.030, zoning (19.08)
5870	Amends §§ 11.02.070, 11.04.040, 11.04.050, 11.06.030, 11.10.020, 11.10.030, 11.10.050, 11.10.070, 11.10.150, 11.10.160, 11.10.240, 11.44.060, 11.52.180, 11.52.305, 11.54.050, 11.54.060, 11.54.070, 11.54.190, 11.54.200, 11.54.210, 11.60.020, 11.65.010 and 11.65.050; repeals and replaces 11.54.090 and 11.54.230, regulation of traffic and parking (11.02, 11.04, 11.06, 11.10, 11.52, 11.54, 11.60, 11.65)
5871	Amends § 1.16.060 and 1.16.070, city ward boundaries (1.16)
5872	(Not Codified)
5873	Amends §§ 6.02.020, 6.02.060, 6.02.070, 6.02.080, 6.02.090, 6.02.110, 6.02.330, 6.02.363, 6.02.367, 6.02.380, 19.00.070; repeals and replaces Ch. 9.04, nuisances (6.02, 9.04, 19.00)
5874	Repeals and replaces § 19.06.060, zoning (19.06)
5875	Repeals and replaces 19.06.060 (19.04, 19.06)
5876	Amends §§ 11.68.040 and 11.68A.040, boundaries (11.68A)
5877	Adds Ch. 11.57, public streets for motorized racing events (11.57)
5878	Amends § 16.12.010, electrical code (16.12)

Ordinance Number	
5879	Amends § 16.30.010, pool code (16.30)
5880	Amends § 16.24.010, mechanical code (16.24)
5881	Amends § 16.28.010, plumbing code (16.28)
5882	Amends § 16.52.010, energy conservation code (16.52)
5883	Amends § 16.04.010, building code (16.04)
5884	Amends § 16.02.010, administrative code (16.02)
5885	Amends § 19.04.010 and 19.20.020, zoning (19.04, 19.20)
5886	(Not Codified)
5887	(Not Codified)
5888	(Not Codified)
5889	(Not Codified)
5890	(Not Codified)
5891	Amends §§ 19.18.010 and 19.18.040—19.18.070, zoning (19.08)
5892	(Not Codified)
5893	Amends §§ 19.04.010 and 19.20.020, zoning (19.04, 19.20)
5894	Adds § 9.08.135, 9.08.185, 9.08.205, 9.08.295 and 9.08.340; amends §§ 9.08.020—9.08.060, 9.08.080—9.08.130, 9.08.170, 9.08.180, 9.08.200, 9.08.210, 9.08.230, 9.08.240, 9.08.260, 9.08.270, 9.08.320 and 9.08.330; repeals and replaces § 9.08.140—9.08.160 and 9.08.190, solid waste (9.08)
5895	Amends §§ 19.04.010, 19.04.070, 19.08.040, 19.08.050, 19.12.075, 19.20.020, zoning (19.04, 19.08, 19.12, 19.20)
5896	Renames Ch. 10.44A to 10.44 and 11.68A to 11.68; repeals former Chs. 10.44 and 11.68, solicitation and city's pedestrian mall (10.44, 11.68)
5897	Amends § 9.36.050, reporting requirements for department of fire and rescue. (9.36)
5898	(Not Codified)
5899	(Not Codified)
5900	(Not Codified)
5901	(Not Codified)
5902	(Not Codified)
5903	(Not Codified)
5904	(Not Codified)
5905	(Not Codified)
5906	Adds Ch. 16.18, radio coverage for emergency service personnel (16.18)
5907	(Not Codified)

Ordinance Number	
5908	Amends § 14.11.150, drought plan (14.11)
5909	Amends § 19.18.040, zoning (19.18)
5910	(Not Codified)
5911	(Not Codified)
5912	(Not Codified)
5913	Adds §§ 6.50.175 and 6.50.355; amends §§ 6.50.020 and 6.50.360, liquor control (6.50)
5914	(Not Codified)
5915	(Not Codified)
5916	(Not Codified)
5917	(Not Codified)
5918	(Not Codified)
5919	(Not Codified)
5920	(Not Codified)
5921	Amends §§ 19.04.010 and 19.20.020, zoning (19.04, 19.20)
5922	Amends §§ 19.06.020, zoning (19.06)
5923	Adds § 19.06.170; Amends §§ 19.06.010 and 19.20.020. renames Ch. 19.06, zoning (19.06, 19.20)
5924	Readopts § 10.02.010
5925	(Not Codified)
5926	(Not Codified)
5927	(Not Codified)
5928	(Not Codified)
5929	(Not Codified)
5930	(Not Codified)
5931	(Not Codified)
5932	Amends §§ 14.04.010, 14.04.020, 14.04.070, 14.04.130 and 14.04.210; repeals and replaces § 14.04.030, sewers (14.)
5933	(Not Codified)
5934	Amends §§ 18.08.030, 18.08.100, 18.08.160, 18.08.170, 18.08.180 18.12.160, 18.12.210, 18.12.450, 18.12.470, 18.24.010, 19.08.030, 19.12.030 and 19.18.050, subdivision and zoning regulation (18.08, 18.12, 18.24, 19.08, 19.12, 19.18)
5935	(Not Codified)
5936	(Not Codified)
5937	(Not Codified)
5938	(Not Codified)
5939	(Not Codified)

Ordinance Number	
5940	(Not Codified)
5941	(Not Codified)
5942	Amends §§ 6.44.100 and 6.44.110, horse-drawn and other animal-drawn vehicles (6.44)
5943	Amends §§ 19.04.080 and 19.20.020, zoning (19.04, 19.20)
5944	Amends §§ 14.11.110 and 14.11.150, drought plan (14.11)
5945	Amends §§ 19.16.030 and 19.18.060, zoning (19.16, 19.18)
5946	Adds § 19.18.140; amends § 19.18.010, zoning (19.18)
5947	Amends §§ 2.02.070 and 2.04.020; repeals §§ 2.02.075 and 2.04.030, vehicle allowance for mayor (2.02, 2.04)
5948	(Not Codified)
5949	(Not Codified)
5950	(Not Codified)
5951	(Not Codified)
5952	(Not Codified)
5953	(Not Codified)
5954	(Not Codified)
5955	(Not Codified)
5956	Amends §§ 2.26.010 and 2.26.020, municipal court (2.26)
5957	Amends §§ 19.04.010, 19.08.040 and 19.20.020, zoning (19.04, 19.08, 19.20)
5958	Amends §§ 19.04.010 and 19.20.020, zoning (19.04, 19.20)
5959	Amends §§ 19.14.100 and 19.20.020, zoning (19.14, 19.20)
5960	(Not Codified)
5961	(Not Codified)
5962	(Not Codified)
5963	(Not Codified)
5964	Amends §§ 6.02.090 and 6.02.230, business licenses (6.02)
5965	(Not Codified)
5966	(Not Codified)
5967	(Not Codified)
5968	(Not Codified)
5969	(Not Codified)
5970	(Not Codified)
5971	(Not Codified)
5972	Amends §§ 6.44.020, 6.44.030, 6.44.060, 6.44.070, 6.44.090—6.44.120, 6.44.150, 6.44.160, 7.40.020 and 11.39.030, animal drawn vehicles (6.44, 7.40, 11.39)

Ordinance Number	
5973	Amends §§ 2.60.030—2.60.050 and 2.60.070, records management (2.60)
5974	(Not Codified)
5975	Amends § 19.04.010, zoning (19.04)
5976	Amends §§ 10.66.010, 10.66.060, 10.66.140, 10.68.010 and 10.70.010, firearms registration (10.66, 10.68, 10.70)
5977	Amends §§ 19.04.010, 19.04.080 and 19.20.020, zoning (19.04, 19.20)
5978	(Not Codified)
5979	Adds. Ch. 3.24, §§ 6.86.050 and 6.86.060, fingerprint checks concerning prospective city employees and work card applicants (3.24, 6.86)
5980	Amends § 20.10.010, uniform regulations for the control of drainage (20.10)
5981	(Not Codified)
5982	(Not Codified)
5983	(Not Codified)
5984	(Not Codified)
5985	(Not Codified)
5986	(Not Codified)
5987	Amends §§ 6.40.140, 19.04.010 and 19.20.020, eliminates requirement for general business-related gaming establishment to obtain a separate special use permit (6.40, 19.04, 19.20)
5988	(Not Codified)
5989	Repeals and replaces Ch. 6.20, cable television services (6.20)
5990	(Not Codified)
5991	Adds § 6.84.060; amends § 6.84.010, wedding chapels (6.84)
5992	(Not Codified)
5993	(Not Codified)
5994	Amends §§ 19.14.110 and 19.14.170, zoning (19.14)
5995	Amends §§ 19.18.030—19.18.070, zoning (19.18)
5996	(Not Codified)
5997	(Not Codified)

Ordinance Number	
5998	Adds §§ 6.02.125 and 6.86.130; amends §§ 6.02.010, 6.02.065, 6.02.090, 6.02.100, 6.02.130, 6.02.150, 6.02.170, 6.02.230, 6.02.300, 6.02.310, 6.02.320, 6.02.350, 6.04.005, 6.04.020—6.04.065, 6.04.080, 6.04.110, 6.04.140, 6.06.050, 6.06.051, 6.06.100, 6.06.110, 6.06.130, 6.06.160, 6.06.195, 6.06.200, 6.06.210, 6.06.230, 6.06.250, 6.06.290, 6.06A.015, 6.06A.020, 6.06A.030, 6.06B.050—6.06B.085, 6.06B.110, 6.06B.130, 6.08.020, 6.09.040, 6.09.050, 6.10.080, 6.14.120, 6.16.070, 6.18.060, 6.18.090, 6.18.100, 6.19.040, 6.19.130, 6.19.140, 6.22.030—6.22.055, 6.22.070, 6.22.160, 6.22.170, 6.22.230, 6.24.190, 6.26.020, 6.27.020, 6.32.030, 6.35.060, 6.35.070, 6.35.110, 6.35.130, 6.35.170, 6.36.060, 6.36.080, 6.36.120, 6.36.130, 6.36.190—6.36.210, 6.39.050, 6.40.050, 6.40.130, 6.40.180, 6.42.060, 6.42.090, 6.46.060, 6.46.080, 6.46.100, 6.51.005, 6.52.010, 6.52.020, 6.52.040—6.52.130, 6.52.160, 6.52.170, 6.52.200, 6.55.010, 6.55.040, 6.57.050, 6.67.140, 6.67.160, 6.69.100, 6.72.020, 6.72.050, 6.72.080, 6.72.110, 6.73.080—6.73.130, 6.73.160, 6.74.020, 6.74.110—6.74.130, 6.74.160, 6.74.190, 6.76.030, 6.76.040, 6.76.060, 6.80.060, 6.80.090, 6.80.130, 6.80A.100, 6.80A.110, 6.81.050, 6.86.010, 6.86.030, 6.86.040, 6.86.070—6.86.090, 6.86.110, 6.86.150, 6.86.180, 6.88.040. 6.90.030, 6.90.050, 6.90.070, 6.90.100 and 19.00.070; repeals Chs. 6.07, 6.38, 6.82, §§ 6.04.010, 6.06.300, 6.52.030, 6.52.190, 6.52.210 and 6.86.140; repeals and replaces §§ 6.52.180 and 6.86.160, business taxes, licenses and regulations (6.02, 6.04, 6.06, 6.06A, 6.06B, 6.08, 6.09, 6.10, 6.14, 6.16, 6.18, 6.19, 6.22, 6.24, 6.26, 6.27, 6.32, 6.35, 6.36, 6.39, 6.40, 6.42, 6.46, 6.51, 6.52, 6.55, 6.57, 6.67, 6.69, 6.72, 6.73, 6.75, 6.76, 6.80, 6.80A, 6.81, 6.86, 6.90, 19.00)
5999	Repeals Ch. 2.36, district health board (2.36)
6000	Amends § 3.24.010, 6.06.080 and 6.86.060, fingerprint checks (3.24, 6.06, 6.86)
6001	(Not Codified)
6002	(Not Codified)
6003	(Not Codified)
6004	Amends § 9.16.040, noise (9.16)
6005	Adds § 10.48.097; amends §§ 10.48.060, 10.48.100 and 10.48.105, defacement or destruction (10.48)
6006	Adds Ch. 14.18, stormwater and stormwater management (14.18)
6007	Amends §§ 11.10.070 and 11.10.140, parking or nonmoving violations (11.10)

Ordinance Number	
6008	Amends § 19.02.040, 19.04.010, 19.04.050, 19.06.080, 19.06.160, 19.08.040—19.08.060, 19.12.040 and 19.20.020, zoning (19.02, 19.04, 19.06, 19.08)
6009	(Not Codified)

Beginning with the 2009 Republication, this table will be replaced with the Code Comparative Table and Disposition List.

Prior Code	Herein
1-18-1	Ch. 3.04
1-18-2	Repealed by 2201
1-19-1	2.52.010
1-19-2	2.52.020
1-19-3	2.52.030
1-19-4	2.52.040
1-20-1	Ch. 4.16
1-21-1	2.56.010
1-21-2	2.56.020
1-21-3	2.56.030
1-21-4	2.56.040
1-21-5	2.56.050
1-21-6	2.56.060
1-21-7	2.56.070
1-21-8	2.56.080
1-22-1	Ch. 2.54
1-23-1	Repealed by 3595
1-23-2	Repealed by 3595
1-23-3	Repealed by 3595
1-23-4	Repealed by 3595
1-23-5	Repealed by 3595
1-23-6	Repealed by 3595
1-23-7	Repealed by 3595
1-24-1	2.16.010
1-24-2	2.16.020
1-24-3	2.16.040
1-24-4	2.16.030
1-24-5	2.16.050
1-24-6	2.16.060
1-25-1	2.26.010, 2.26.020
1-25-2	2.26.030
1-25-3	2.26.040
1-25-4	Repealed by 3622
2-1-1	Repealed by 5193
2-1-2	Repealed by 5193
2-1-3	Repealed by 5193
2-1-4	Repealed by 5193
2-1-5	Repealed by 5193
2-1-6	Repealed by 5193
2-1-7	Repealed by 5193
2-2-1	2.44.010

Prior Code	Herein
2-2-2	2.44.020
2-2-3	2.44.040
2-2-3.1	20.04.010
2-2-3.2	20.04.020
2-2-3.3	20.04.030
2-2-3.4	20.04.040
2-2-3.5	20.04.050
2-2-3.6	20.04.060
2-2-4	2.44.030
2-3-1—2-3-14	Repealed by 2208
2-4-1	Repealed by 3624
2-4-2	Repealed by 3624
2-4-3	Repealed by 3624
2-4-4	Repealed by 3624
2-4-5	Repealed by 3624
2-4-6	Repealed by 3624
2-4-7	Repealed by 2192
2-4-8	Repealed by 2192
2-4-9	Repealed by 2192
2-5-1—2-5-17	Repealed by 3050
2-5-18	Not codified
2-5-19—2-5-23	Repealed by 3050
2-6-1—2-6-11	Repealed by 3198
2-7-1	Repealed by 3860
2-7-2	Repealed by 3860
2-7-3	Repealed by 3860
2-7-4	Repealed by 3860
2-8-1	Repealed by 5999
2-9-1	Repealed by 3474
2-9-2	Repealed by 3474
2-9-3	Repealed by 3474
2-9-4	Repealed by 3474
2-9-5	Repealed by 3474
2-9-6	Repealed by 3474
2-9-7	Repealed by 3474
2-10-1—2-10-4	Not codified
2-11-1	2.42.010, 2.42.020
2-11-2	2.42.030—2.42.070
2-11-3	2.42.080
2-12-1	Repealed by 5206
2-12-2	Repealed by 5206

Prior Code	Herein
2-12-3	Repealed by 5206
2-12-4	Repealed by 2101
2-13-1—2-13-11	Repealed by 3288
2-14-1—2-14-3	Repealed by 3358
2-15-1	Repealed by 3663
2-15-2	Repealed by 4024
2-15-3	Repealed by 4024
2-15-4	Repealed by 4024
3-1-1	2.20.030
3-1-2	2.20.010
3-1-3	2.20.020
3-1-4	2.24.050
3-1-5	Repealed by 5304
3-1-6	14.08.070
3-1-7, 3-1-8, 3-1-9	Repealed by 2193
3-2-1	Repealed by 2211
3-2-2	14.08.010
3-2-3	14.08.020
3-2-4	14.08.030
3-2-5	14.08.040
3-2-6	14.08.050
3-2-7	14.08.060
3-4-1	2.18.010
3-4-2	2.18.020
3-4-3	2.18.030
3-4-4	Repealed by 3132
3-4-5	Repealed by 3132
3-4-6	Repealed by 3132
3-4-7	Repealed by 3132
3-4-8	Repealed by 3132
Ch. 3-4(A)	Ch. 2.24
3-5-1—3-5-5	Repealed by 2219
3-6-1	2.32.010
3-6-2	2.32.020—2.32.050
3-6-3	2.32.060
3-6-4	2.32.070, 2.32.080
3-6-5	2.32.100, 2.32.110
3-6-6	2.32.120
4-1-1	Repealed by 3106
4-1-2	Not codified
4-1-3—4-1-5	Repealed by 3106

Prior Code	Herein
4-2-1	Ch. 16.28
4-2-2	Not codified
4-3-1	16.12.010
4-3-2	Not codified
4-3-3	16.12.020
4-3-4	16.12.030
4-4-1	Ch. 16.24
4-4-2	Not codified
4-5-1—4-5-5	Repealed by 3057
4-5-6	Not codified
4-5-7—4-5-13	Repealed by 3057
4-6-1	Repealed by 3723
4-6-2	Ch. 17.08
4-6-3	17.12.030—17.12.060
4-6-4	Repealed by 3723
4-6-5	Repealed by 3723
4-6-6	17.12.010—17.12.140
4-6-7	Repealed by 3723
4-6-8	Repealed by 3723
4-6-9	Repealed by 3723
4-6-10	Repealed by 3723
4-6-11	Repealed by 3723
4-6-12	Repealed by 3723
4-6-13	Repealed by 3723
4-6-14	17.12.080
4-6-15	Repealed by 3723
4-6-16	Repealed by 3723
4-6-17	Repealed by 3723
4-6-18	Repealed by 3723
4-6-19	Repealed by 3723
4-9-20	Repealed by 3723
4-6-21	Repealed by 3723
4-6-22	17.12.070
4-6-23	17.12.090
4-6-24	Repealed by 3723
4-6-25	Ch. 17.16
4-1-7	10.22.010
4-7-2	10.22.020
4-7-3	10.22.030

Prior Code	Herein
4-7-4	10.22.040
4-7-5	10.24.010
4-7-6	10.24.020
4-7-7	10.24.030
4-7-8	10.24.030
4-7-9	10.24.060
4-7-10	10.24.040
4-7-11	10.24.050
4-7-12	10.24.070
4-7-13	10.24.070
4-7-14	10.24.080
4-8A-1	9.32.010
4-8A-2	9.32.020
4-8A-3	9.32.030
4-8A-4	9.32.040, 9.32.050
4-8A-5	9.32.060
4-8A-6	9.32.070
4-9-1	16.40.010
4-9-2	16.40.020, 16.40.030, 16.40.050—16.40.080
4-9-3	16.40.240
4-9-4	16.40.090—16.40.220
4-9-5	16.40.040
4-9-6	16.40.230
4-10-1	16.32.010—16.32.230
4-10-2	16.32.250—16.32.410
4-10-3	16.32.420
4-10-4	16.32.430
4-10-5	16.32.440
4-10-6	16.32.450
4-10-7	16.32.460, 16.32.470, 16.32.480
4-10-8	16.32.240
4-11-1	16.36.010, 16.36.030
4-11-2	16.36.040
4-11-3	16.36.050
4-11-4	16.36.020
4-11-5	16.36.060

Prior Code	Herein
4-11-6	16.36.070
4-11-7	16.36.080
4-11-8	16.36.090, 16.36.100
4-12-1	Repealed by 3897
4-12-2	Not codified
4-12-3	Repealed by 3897
4-12-4	Repealed by 3897
4-12-5	Repealed by 3897
4-12-6	Repealed by 3134
4-12-7	Not codified
4-12-8	Repealed by 3897
4-12-9	Repealed by 3897
4-12-10	Repealed by 3897
4-13-1	16.44.010, 16.44.020
4-13-2	16.44.030
4-13-3	16.44.040
4-13-4	16.44.050
4-13-5	16.44.060, 16.44.070
4-13-6	16.44.080
4-13-7	16.44.090
4-13-8	16.44.100
4-13-9	16.44.110
4-13-10	16.44.120
4-13-11	16.44.130
4-13-12	16.44.140
4-13-13	16.44.150
4-13-14	16.44.160
4-13-15	16.44.170
4-13-16	16.44.180
4-13-17	16.44.190
4-13-18	16.44.200
4-13-19	16.44.210
4-13-20	16.44.230
4-13-21	16.44.240
4-13-22	16.44.250
4-13-23	16.44.220
5-1-1	6.02.010
5-1-2	6.02.060, 6.02.070, 6.02.120
5-1-3	6.02.020—6.02.050
5-1-4	6.02.130

Prior Code	Herein
5-1-5	6.02.080
5-1-6	6.02.140, 6.02.150
5-1-7	6.02.160, 6.02.170
5-1-8	6.02.180, 6.02.190
5-1-9	6.02.200, 6.02.210
5-1-10	6.02.220
5-1-11	6.02.230, 6.02.240
5-1-12	6.02.250
5-1-13	6.02.290—6.02.320
5-1-14	6.02.270, 6.02.280
5-1-15	6.02.260
5-1-16	6.02.090
5-1-17	6.02.100
5-1-18	6.02.110
5-1-19*	6.02.330—6.02.360
5-1-19*	6.02.370, 6.02.380
*Editor's Note: The prior code designated two Sections 5-1-19	
5-1(A)-1	6.04.005
5-1(A)-2	6.04.010
5-1(A)-3	6.04.015, 6.04.025—6.24.085
5-1(A)-4	6.04.090—6.04.140
5-1(A)-5	6.04.145—6.04.190
5-1(A)-6	6.04.095, 6.04.195—6.04.220
5-1(A)-7	6.04.225—6.04.240
5-1(A)-8	6.04.245
5-1(A)-9	6.04.250
5-1(A)-10	6.04.255, 6.04.265—6.04.275
5-1(A)-11	6.04.280, 6.04.285, 6.04.290
5-1(A)-12	6.04.295, 6.04.300, 6.04.305
5-1(A)-13	6.04.310—6.04.365
5-1(A)-14(A)	6.04.370
5-1(A)-14(B)	Repealed by 4050
5-1(A)-15	6.04.380, 6.04.385, 6.04.390
5-1(A)-16	6.04.395—6.04.425, 6.04.440, 6.04.445

Prior Code	Herein
5-1(A)-17	6.04.450, 6.04.455, 6.04.460, 6.04.465, 6.04.475, 6.04.480, 6.04.570
5-1(A)-18	6.04.485—6.04.540
5-1(A)-19	6.04.545—6.04.555, 6.04.565, 6.04.575—6.04.600
5-1(A)-20	6.04.605, 6.04.610
5-1(A)-21	6.04.615, 6.04.620
5-2-1	4.20.010
5-2-2	4.20.020
5-2-3	4.20.030—4.20.060
5-2-4	4.20.080
5-2-5	4.20.090
5-2-6	4.20.070
5-2-7	4.20.100
5-2-8	4.20.110
5-2-9	4.20.120
5-2-10	4.20.130
5-2-11	4.20.140
5-2-12	4.20.150
5-2-13	4.20.160
5-3-1	Repealed by 3354
5-3-2	Repealed by 3241
5-3-3—5-3-6	Repealed by 3354
5-3-7	Repealed by 3241
5-3-8—5-3-15	Repealed by 3354
54-1	6.06.010, 6.06.020
5-4-2	6.06.030, 6.06.040
5-4-3	6.06.060—6.06.090, 6.06.200
5-4-4	6.06.130, 6.06.140, 6.06.150
5-4-5	6.06.110, 6.06.120
5-4-6	6.06.250, 6.06.260
5-4-7	6.06.210, 6.06.220
5-4-8	6.06.230, 6.06.240
5-4-9	6.06.160—6.06.190
5-4-10	6.06.050
5-4-11	6.06.100

Prior Code	Herein
5-4-12*	6.06.270—6.06.300
*Editor's note: Section 6.06.300 was repealed by 5998.	
5-5-1	19.74.010, 19.74.020
5-5-2	19.74.030, 19.74.040, 19.74.050
5-6-1	Repealed by 3563
5-6-2	Repealed by 3563
5-6-3	Repealed by 3563
5-6-4	Repealed by 3563
5-6-5	Repealed by 3563
5-6-6	Repealed by 3563
5-6-7	Repealed by 3563
5-6-8	Repealed by 3563
5-6-9	Repealed by 3563
5-6-10	Repealed by 3563
5-6-11	Repealed by 3563
5-6-12*	Repealed by 3563
5-6-12*	Repealed by 3563
*Editor's Note: The prior code contained two Sections 5-6-12.	
5-6-13	Repealed by 3563
5-6-14	Repealed by 3563
5-6-15	Repealed by 3563
5-6-16	Repealed by 3563
5-7-1	Ch. 6.26
5-7-2	Ch. 6.68
5-7-3	Repealed by 3093
5-7-4	Ch. 6.70
5-7-5	Ch. 6.84
5-7-6	Repealed by 5060
5-7-7	Repealed by 2250
5-8-1	6.74.010
5-8-2	6.74.020
5-8-3	6.74.030
5-8-4	6.74.040
5-8-5	6.74.050
5-8-6	6.74.060
5-8-7	6.74.070
5-8-8	6.74.080
5-8-9	6.74.110
5-8-10	6.74.120
5-8-11	6.74.130

Prior Code	Herein
5-8-12	6.74.140, 6.74.150
5-8-13	6.74.160
5-8-14	Repealed by 3070
5-8-15	6.74.180
5-8-16	6.74.090
5-8-17	6.74.100
5-9-1	6.60.010
5-9-2	6.60.020
5-9-3	6.60.030
5-9-4	Repealed by 3675
5-9-5	6.60.080
5-9-6	6.60.090
5-9-7	6.60.100
5-9-8	Repealed by 3675
5-9-9	6.60.120
5-9-10	6.60.130
5-9-11	6.60.140
5-9-12	6.60.150
5-9-13	6.60.160
5-9-14	6.60.170
5-9-15	6.60.060
5-9-16	Repealed by 3069
5-9-17	6.60.190
5-9-18	6.60.200
5-9-19	6.60.210
5-9-20	6.60.220
5-9-21	6.60.230
5-9-22	6.60.240
5-9-23	6.60.070
5-9-24	6.60.040
5-9-25—5-9-32	Repealed by 2199
5-10-1	6.12.010
5-10-2	6.12.020—6.12.060
5-10-3	6.12.070—6.12.100
5-10-4	6.12.110—6.12.140
5-10-5	6.51.010—6.51.030
5-10-6—5-10-14	Repealed by 2250
5-11-1	Repealed by 5066
5-11-2	Repealed by 5066
5-11-3	Repealed by 5066
5-11-4	Repealed by 5066

Prior Code	Herein
5-11-5	Repealed by 5066
5-11-6	Repealed by 5066
5-11-7	Repealed by 5066
5-11-8	Repealed by 5066
5-11-9	Repealed by 5066
5-11-10	Repealed by 5066
5-11-11	Repealed by 5066
5-11-12	Repealed by 5066
5-11-13	Repealed by 5066
5-11-14	Repealed by 5066
5-11-15	Repealed by 5066
5-11-16	Repealed by 5066
5-11-17	Repealed by 5066
5-11-18	Repealed by 5066
5-11-19	Repealed by 5066
5-11-20	Repealed by 5066
5-11-21	Repealed by 5066
5-11-22	Repealed by 5066
5-11-23	Repealed by 5066
5-12-1	6.28.010
5-12-2	6.28.020
5-12-3	6.28.030
5-12-4	6.28.040
5-12-5	6.28.050
5-12-6	6.28.060
5-12-7	6.28.070
5-13-1	6.22.010
5-13-2	6.22.020
5-13-3	6.22.030, 6.22.040
5-13-4	6.22.050
5-13-5	Repealed by 3860
5-13-6	6.22.160, 6.22.170
5-13-7	Repealed by 3860
5-13-8	6.22.070
5-13-9	6.22.080
5-13-10	6.22.090
5-13-11	6.22.100—6.22.140
5-13-12	6.22.200
5-13-13	6.22.210
5-13-14	6.22.230
5-13-15	6.22.220

Prior Code	Herein
5-13-16, 5-13-17, 5-13-18	Repealed by 2206
5-14-1	6.34.010
5-14-2	6.34.030
5-14-3	6.34.020
5-14-4	6.34.040
5-14-5	6.34.050
5-14-6	6.34.060
5-14-7	6.34.070
5-14-8	6.34.080
5-14-9	6.34.090
5-14.10	Repealed by 3019
5-14-11	6.34.100
5-15-1	Repealed by 4034
5-15-2	Repealed by 4034
5-15-3	Repealed by 4034
5-15-4	Repealed by 4034
5-15-5	Repealed by 4034
5-15-6	Repealed by 4034
5-15-7	Repealed by 4034
5-15-8	Repealed by 4034
5-15-9	Repealed by 4034
5-16-1—5-16-13	Repealed by 2250
5-17-1	6.40.010
5-17-2	6.40.020
5-17-3	6.40.030
5-17-4	6.40.040
5-17-5	6.40.050
5-17-6	6.40.150, 6.40.170
5-17-7	6.40.180
5-17-8	6.40.060
5-17-8.5	6.40.065
5-17-9	6.40.070
5-17-10	6.40.110
5-17-11	6.40.120, 6.40.130
5-17-12	6.40.090, 6.40.100
5-17-13	6.40.190, 6.40.200
5-17-14—5-17-18	Repealed by 2195
5-17-19	Repealed by 2156
5-17-20	Repealed by 2195
5-18-1	6.50.010
5-18-2	6.50.020

Prior Code	Herein
5-18-3	6.50.040, 6.50.050, 6.50.070—6.50.140, 6.50.160
5-18-4	6.50.170, 6.50.180, 6.50.190
5-18-5	6.50.200
5-18-6	Repealed by 5607
5-18-7	Repealed by 5607
5-18-8	Repealed by 5607
5-18-9	Repealed by 5607
5-18-10	Repealed by 5607
5-18-11	Repealed by 3366
5-18-12	Repealed by 5607
5-18-13	Repealed by 5607
5-18-14	Repealed by 5607
5-18-15	Repealed by 5607
5-18-16	Repealed by 3549
5-18-17	Repealed by 3549
5-18-18	Repealed by 3366
5-18-19	Repealed by 5607
5-18-20	Repealed by 1281
5-18-21	Repealed by 1190
5-18-22—5-18-29	Repealed by 2116
5-19-1—5-19-20	Repealed by 2250
5-20-1	6.30.010
5-20-2	6.30.020
5-20-3	6.30.040
5-20-4	6.30.060
5-20-5	6.30.070
5-20-6	6.30.050
5-20-7	6.30.030
5-21-1—5-21-8	Repealed by 2250
5-22-1—5-22-44	Repealed by 2119
5-23-1	6.36.010
5-23-2	6.36.020
5-23-3	6.36.030
5-23-4	6.36.050
5-23-5	6.36.110
5-23-6	6.36.120
5-23-7	6.36.130
5-23-8	6.36.150

Prior Code	Herein
5-23-9	6.36.210
5-23-10	6.36.160, 6.36.220
5-23-11	6.36.170—6.36.200
5-23-12	6.36.070
5-23-13	6.36.060, 6.36.080
5-23-14	6.36.090
5-23-15	6.36.100
5-23-16	6.36.030, 6.36.140
5-24-1—5-24-7	Repealed by 2210
5-25-1	6.46.020
5-25-2	6.46.010
5-25-3	6.46.110
5-25-4	6.46.120
5-25-5	6.46.130
5-25-6	6.46.030
5-25-7	6.46.040, 6.46.050, 6.46.060
5-25-8	6.46.070
5-25-9	6.46.100
5-25-10	6.46.080
5-25-1	6.46.090
5-26-1—5-26-12	Repealed by 2250
5-27-1	6.88.010
5-27-2	6.88.020—6.88.050
5-27-3	6.88.060
5-27-4	6.88.070
5-27-5	6.88.080
5-27-6	6.88.090
5-27-7	6.88.100
5-27-8	6.88.110
5-27-9	6.88.120
5-27-10	6.88.130
5-28-1	Repealed by 3973
5-28-2	Repealed by 3973
5-28-3	Repealed by 3973
5-28-4	Repealed by 3973
5-28-5	Repealed by 3973
5-28-6	Repealed by 3973
5-28-7	Repealed by 3973
5-28-8	Repealed by 3973
5-28-9	Repealed by 3973

Prior Code	Herein
5-28-10	Repealed by 3973
5-28-11	Repealed by 3973
5-28-12	Repealed by 3973
5-28-13	Repealed by 2175
5-28-14	Repealed by 3973
5-28-15	Repealed by 3973
5-28-16	Repealed by 3973
5-28-17	Repealed by 3973
5-28-18	Repealed by 3973
5-28-19	Repealed by 3973
5-28-20	Repealed by 3973
5-28-21	Repealed by 3973
5-28-22	Repealed by 3973
5-28-23	Repealed by 3973
5-28-24	Repealed by 3973
5-28-25	Repealed by 3973
5-28-26	Repealed by 3973
5-28-27	Repealed by 3973
5-28-28	Repealed by 3973
5-28-29	Repealed by 3973
5-28-30	Repealed by 3973
5-28-31	Repealed by 3973
5-28-32	Repealed by 3973
5-28-33	Repealed by 3973
5-28-34	Repealed by 3973
5-29-1	Repealed by 4024
5-29-2	Repealed by 4024
5-29-3	Repealed by 4024
5-29-4	Repealed by 4024
5-29-5	Repealed by 3116
5-29-6	Repealed by 4024
5-29-7	Repealed by 4024
5-29-8	Repealed by 4024
5-29-9	Repealed by 4024
5-29-10	Repealed by 4024
5-29-11	Repealed by 4024
5-29-12	Repealed by 4024
5-29-13	Repealed by 4024
5-29-14	Repealed by 3116
5-29-16	Repealed by 4024
5-29-17	Repealed by 4024

Prior Code	Herein
5-29-18	Repealed by 4024
5-30-1—5-30-4	Repealed by 2250
5-31-1	6.18.010
5-31-2	6.18.020
5-31-3	6.18.060—6.18.120
5-31-4	6.18.130
5-31-5	6.18.050
5-31-6	6.18.040
5-31-7	6.18.030
5-31-8	Repealed by 2297
5-31-9	Repealed by 2297
5-31-10	Repealed by 2297
5-31-11	Repealed by 2297
5-31-12	Repealed by 2297
5-32-1	6.42.010
5-32-2	6.42.020
5-32-3	6.42.100
5-32-4	6.42.110
5-32-5	6.42.120
5-32-6	6.42.130
5-32-7	6.42.140
5-32-8	Repealed by 2230
5-32-9	6.42.040—6.42.090
5-32-10	6.42.030
5-32-11	6.42.150
5-32-12	Repealed by 2230
5-32-13	6.42.160
5-32-14	Repealed by 2230
5-33-1—5-33-20	Repealed by 3362
5-34-1	6.32.010
5-34-2	6.32.020
5-34-3	6.32.030
5-34-4	6.32.050
5-34-5	6.32.060
5-34-6	6.32.070, 6.32.080
5-34-7	6.32.040
5-35-1	6.73.010
5-35-2	Repealed by 3654
5-35-3	6.73.030
5-35-4	6.73.040
5-35-5	6.73.050

Prior Code	Herein
5-35-6	6.73.060
5-35-7	6.73.070
5-35-8	6.73.080
5-35-9	6.73.090—6.73.170
5-35-10	6.73.180
5-35-11	6.73.190
5-35-12	6.73.200
5-36-1	6.72.010
5-36-2	6.72.020
5-36-3	6.72.030
5-36-4	6.72.070
5-36-5	6.72.080
5-36-6	6.72.050
5-36-7	6.72.090
5-36-8	Repealed by 2286
5-36-9	6.72.110
5-36-10	6.72.120
5-36-11	6.72.130
5-36-12	6.72.140
5-36-13	6.72.150
5-36-14	6.72.160
5-36-15	6.72.170
5-36-16	6.72.180
5-36-17	6.72.190
5-36-18	Repealed by 2286
5-36-19	Repealed by 2286
5-36-20, 5-36-21	Repealed by 2148
5-37-1—5-37-10	Repealed by 2269
5-38-1	Repealed by 2298
5-38-2	Repealed by 2298
5-38-3	Repealed by 2298
5-38-4	Repealed by 2298
5-38-5	Repealed by 2298
5-38-6	Repealed by 2298
5-38-7	Repealed by 2298
5-38-8	Repealed by 2298
5-39-1	6.76.010
5-39-2	6.76.030
5-39-3	6.76.060
5-39-4	6.76.040
5-39-5	6.76.050

Prior Code	Herein
5-39-6	6.76.020
5-39-7	6.76.070
5-41-1, 5-41-2, 5-41-3	Repealed by 2259
5-42-1	6.16.010
5-42-2	6.16.040
5-42-3	6.16.050
5-42-4	6.16.060, 6.16.070
5-42-5	6.16.080
5-42-6	6.16.090, 6.16.100
5-42-7	6.16.250—6.16.290
5-42-8	6.16.300—6.16.330, 6.16.350
5-42-9	6.16.110
5-42-10	6.16.120
5-42-11	6.16.130
5-42-12	6.16.230
5-42-13	6.16.240
5-42-14	6.16.180
5-42-15	6.16.190
5-42-16	6.16.210
5-42-17	6.16.360
5-42-18	6.16.370
5-42-19	6.16.160
5-43-1	2.20.010
5-43-2	2.20.020
5-43-3	2.20.030, 2.20.040
5-43-4	2.22.050, 2.22.060
5-43-5	2.22.070, 2.22.080
5-43-6	2.22.090
5-43-7	Repealed by 2198
5-44-1—5-44-9	Repealed by 2269
5-45-1	Repealed by 5998
5-45-2	Repealed by 5998
5-45-3	Repealed by 5998
5-45-4	Repealed by 5998
5-45-5	Repealed by 5998
5-45-6	Repealed by 5998
5-45-7	Repealed by 5998
5-45-8	Repealed by 5998
5-45-9	Repealed by 5998
5-45-10	Repealed by 5998

Prior Code	Herein
5-45-11	Repealed by 5998
5-45-12	Repealed by 5998
5-45-13	Repealed by 5998
5-45-14	Repealed by 5998
5-45-15	Repealed by 5998
5-46-1	6.86.010
5-46-2	6.86.020, 6.86.030
5-46-3	6.86.040
5-46-4	6.86.110, 6.86.120
5-46-5	Repealed by 5998
5-46-6	6.86.150, 6.86.160
5-46-7	Repealed by 4051
5-46-8	6.86.080
5-46-9	6.86.090
5-46-10	6.86.100
5-46-11	6.86.170
5-46-12	6.86.180
5-46-13	6.86.190
5-47-1—5-47-16	Repealed by 3071
Title 5 (part)	Repealed by 4000
6-1-1	10.40.010, 10.40.020
6-1-2, 6-1-3, 6-1-4	Repealed by 2228
6-1-5	10.08.010
6-1-6	Repealed by 2228
6-1-7	Repealed by 1354
6-1-8	10.48.010
6-1-9	10.48.020
6-1-10	10.48.030
6-1-11	Repealed by 3862
6-1-12	10.08.020
6-1-13	Ch. 10.26
6-1-14	Ch. 10.10
6-1-15	Repealed by 2228
6-1-16(1)—(6)	9.28.010—9.28.080
6-1-16(7)—(8)	9.28.100—9.28.110
6-1-16(9)	Repealed by 4098
6-1-17	Ch. 10.36
6-1-18	Repealed by 5858
6-1-19	Ch. 10.14
6-1-20	10.40.050
6-1-21, 6-1-22, 6-1-23	Repealed by 2228

Prior Code	Herein
6-1-24	Ch. 9.16
6-1-25	Ch. 10.50
6-1-26	Ch. 10.04
6-1-27	Repealed by 2228
6-1-28	10.40.030
6-1-29	Repealed by 1916
6-1-30	Ch. 10.20
6-1-31	Ch. 10.06
6-1-32	Repealed by 2228
6-1-33	Ch. 10.38
6-1-34	Ch. 10.02
6-1-35	10.40.060
6-1-36	Ch. 10.12
6-1-37	10.48.040
6-1-38	Ch. 10.46
6-1-39	Repealed by 1653
6-1-40	Ch. 10.58
6-1-41	Repealed by 3881
6-1-42	Repealed by 3881
6-1-43	Repealed by 3881
6-1-44	Repealed by 3881
6-1-45	Ch. 10.34
6-2-1	Repealed by 3618
6-2-2	Repealed by 3618
6-2-3	Repealed by 3618
6-2-4	Repealed by 3618
6-2-4.5	Repealed by 3618
6-2-5	Repealed by 3618
6-2-6	Repealed by 3618
6-2-7	Repealed by 3618
6-2-8	Ch. 7.28
6-2-9	Repealed by 3618
6-2-10	Repealed by 3618
6-2-11	Not codified
6-3-1	10.68.010
6-3-2	10.68.020
6-3-3	10.68.030
6-3-4	10.70.010
6-3-5	10.70.020
6-3-6	10.70.030
6-3-7	Repealed by 2228

Prior Code	Herein
6-3-8	Ch. 10.72
6-4-1	10.66.010
6-4-2	Not codified
6-4-3	10.66.010
6-4-4	10.66.020
6-4-5	10.66.030
6-4-6	10.66.040
6-4-7	10.66.050
6-4-8	10.66.130
6-4-9	10.66.060
6-4-10	10.66.070
6-4-11	10.66.140
6-4-12	10.66.080
6-4-13	10.66.090
6-4-14	10.66.100
6-4-15	10.66.110
6-4-16	10.66.120
6-4-17	10.66.150
6-6-1—6-6-7	Repealed by 2228
6-7-1—6-7-4	Repealed by 2228
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6-8-2	10.56.010, 10.56.020
6-8-3	10.56.030, 10.56.040, 10.56.050
6-8-4	10.56.060
6-8-5	10.56.070
6-8-6	10.54.010
6-8-7	10.54.020
6-8-8	10.54.030
6-8-9	Ch. 10.60
6-8-10	10.62.020
6-9-1, 6-10-1	Repealed by 2228
6-10-2	Ch. 10.28
6-10-3	Ch. 10.18
6-11-1	10.42.010
6-11-2	10.42.020
6-11-3	10.42.030
6-11-4	10.42.040
6-11-5	10.42.070
6-11-6	10.42.050
6-11-7	10.64.010

Prior Code	Herein
6-11-8	10.64.020
6-11-9	10.64.030
6-11-10	10.64.040
6-11-11	10.64.050
6-11-12	10.42.060
6-12-1	10.42.080
6-12-2	10.42.090
6-12-3	10.42.100
6-12-4	10.42.110
6-14-1	10.52.010
6-14-2	10.52.020
6-14-3	10.52.030
6-14-4	10.52.040
6-15-1*	10.30.010
6-15-2*	10.30.020
6-15-3*	10.30.030
6-15-4*	10.30.040, 10.30.050
* Editor's Note: The prior code designated two Chs. 6-15.	
6-15-1—6-15-5	Repealed by 3068
7-1-1—7-1-6	Repealed by 2211
7-2-1—7-2-2	Repealed by 3058
7-5-1	90.20.010
7-5-2	90.20.020
7-5-3—7-8-10	Repealed by 2211
7-9-1	9.24.010
7-9-2	9.28.090
7-9-3	9.24.020
7-9-4	9.24.030
8-1-1—8-2-25	Repealed by 2209
8-3-1	Repealed by 5733
8-3-2	Repealed by 5733
8-3-3	Repealed by 5733
8-3-4	Repealed by 5733
8-3-5	Repealed by 5733
8-3-6	Repealed by 5733
8-3-7	Repealed by 2211
8-3-8	Repealed by 5733
8-3-9	Repealed by 5733
8-3-10	Repealed by 5733
8-3-11	Repealed by 5733
8-3-12	Repealed by 5733

Prior Code	Herein
8-3-13	Repealed by 5733
8-3-14	Repealed by 5733
8-3-15	Repealed by 5733
8-3-16	Repealed by 5733
8-3-17	Repealed by 5733
8-3-18	Repealed by 5733
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8-3A-1	9.12.010
8-3A-2	9.12.020, 9.12.030
8-3A-3	9.12.040
8-3A-4	9.12.050
8-3A-5	9.12.060
8-3A-6	9.12.070
8-3A-7	9.12.080, 9.12.090, 9.12.100
8-3A-8	Repealed by 3195
8-4-1—8-4-5	Repealed by 2209
8-5-1	14.04.010
8-5-2(A), (B)	14.04.020, 14.04.030
8-5-2(C)	Repealed by 3606
8-5-2(D) — (E)	14.04.050, 14.04.060
8-5-3	14.04.070
8-5-4	14.04.080, 14.04.090, 14.04.100
8-5-5	14.04.110
8-5-6	14.04.120
8-5A-1	Repealed by 5932
8-5A-2	Repealed by 3931
8-5A-2A	14.04.150
8-5A-3	14.04.160
8-5A-4	14.04.170, 14.04.180
8-6-1	Repealed by 5998
8-6-2	Repealed by 5998
8-6-3	Repealed by 5998
8-6-4	Repealed by 5998
8-6-5	Repealed by 5998
8-6-6	Repealed by 5998
8-6-7	Repealed by 5998
8-6-8	Repealed by 5998
8-6-9	Repealed by 5998

Prior Code	Herein
8-6-10	Repealed by 5998
8-6-11	Repealed by 5998
8-6-12	Repealed by 5998
8-6-13	Repealed by 5998
8-6-14	Repealed by 5998
8-6-15	Repealed by 5998
8-6-16	Repealed by 5998
8-7-1—8-8-25	Repealed by 2209
8-9-1	Repealed by 3447
8-9-2	Repealed by 3447
8-9-3	Repealed by 3447
8-9-4	Repealed by 3447
8-9-5	Repealed by 3447
8-9-6	Repealed by 3447
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8-9-8	Repealed by 3447
9-1-1, 9-1-2	Repealed by 2211
9-1-3	13.04.010
9-1-4	13.04.020
9-1-5	13.04.030, 13.04.040
9-1-6	Not codified
9-1-7	13.04.050
9-1-8	Mot codified
9-1-9	Not codified
9-1-10	Not codified
9-1-12	Repealed by 2243
9-1-13	Repealed by 2271
9-1-14	13.20.030
9-1-15	13.20.040
9-1-16	Not codified
9-1-17	Repealed by 2271
9-2-1	Repealed by 3262
9-2-2	Repealed by 3262
9-2-3	Repealed by 3262
9-3-1	13.08.010
9-3-2	13.08.020
9-3-3	13.08.030
9-4-1	13.20.020
9-4-2	13.20.070
9-4-3	13.20.080
9-4-4	13.20.050

Prior Code	Herein
9-4-5	13.20.090
9-4-6	13.20.100
9-4-7	13.20.110
9-4-8	13.20.060
9-5-1—9-7-9	Repealed by 2242
9-8-1	14.12.050
9-8-2	14.12.080
9-8-3	14.12.090
9-8-4	14.12.100
9-8-5	14.12.110
9-8-6	14.12.120
9-8-7	14.12.130
9-8-8	14.12.150
9-8-9	14.12.190
9-8-10	14.12.200
9-8-11	14.12.210
9-8-12	14.12.220
9-8-13	Not codified
9-8-14	14.12.010
9-8-15	14.12.010
9-8-16	14.12.020
9-8-17	14.12.030
9-8-18	14.12.040
9-8-19	14.12.060
9-8-20	14.12.140
9-8-21	14.12.160
9-8-22	14.12.170
9-8-23	14.12.180
9-8-24	14.12.070
9-9-1—9-9-9	Repealed by 2242
9-10-1	13.48.010
9-10-2	13.48.020
9-10-3	13.48.030
9-10-4	13.48.040
9-10-5	13.48.050
9-10-6	13.48.060
9-10-7	13.48.080
9-10-8	13.48.090—13.48.120
9-10-9	13.48.070
9-11-1	13.12.010

Prior Code	Herein
9-11-2	13.12.020
9-11-3	13.12.030
9-11-4	13.12.040
9-11-5	13.12.050
9-11-6	13.12.060
9-11-7	13.12.070
9-11-8	13.12.080—13.12.110
9-11-9	13.12.120
9-11-10	13.12.130
9-11-11	13.12.140
9-11-12	13.12.150
9-11-13	13.12.160
9-11-14	13.12.170
9-11-15	13.12.180
9-12-1	13.32.010
9-12-2	13.32.020
9-12-3	13.32.070
9-12-4	13.32.030
9-12-5	13.32.040
9-12-6	13.32.060
9-12-7	13.32.050
9-12-8	13.32.080
9-12A-1	13.24.010
9-12A-2	13.24.040
9-12A-3	13.24.050
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9-12A-5	13.24.020
9-12A-6	13.24.140—13.24.190, 13.24.220
9-12A-7	13.24.030
9-12A-8	13.24.230, 13.24.240, 13.24.250
9-12A-9	13.24.260, 13.24.270
9-12A-10	13.24.280
9-12A-11	13.24.230—13.24.300
9-13-1	13.16.010
9-13-2	13.16.020
9-13-3	13.16.030, 13.16.040

Prior Code	Herein
9-13-4	13.16.050
9-13-5	13.16.060
9-13-6	13.16.070, 13.16.080
9-13-7	13.16.090, 13.16.100, 13.16.110
9-13-8	13.16.120—13.16.260
9-13-9	13.16.270
9-13-10	13.16.280
9-14-1—9-14-12	Repealed by 2231
9-15-1	13.44.010
9-15-2	13.44.020
9-15-3	13.44.030
9-16-1	13.40.010
9-16-2	13.40.020
9-16-3	13.40.030
9-16-4	13.40.040
9-16-5	13.40.050
9-16-6	13.40.060
9-17-1	Repealed by 3163
9-17-2	Repealed by 3163
9-17-3	Repealed by 3163
9-17-4	Repealed by 3163
9-17-5	Repealed by 3163
9-17-6	Repealed by 3163
9-17-7	Repealed by 3163
9-18-1—9-18-7	Repealed by 2238
9-19-1	Repealed by 2210
9-20-1	Repealed by 3622
9-20-2	Repealed by 3622
9-20-3	Repealed by 3622
9-20-4	Repealed by 3622
9-20-5	Repealed by 3622
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10-1-3—10-1-9	Repealed by 2203
10-1-10	11.40.050
10-1-11	11.40.060
10-1-12	1.40.070, 11.40.080
10-1-13	11.40.090

Prior Code	Herein
10-1-14	11.40.100, 11.40.110, 11.40.120
10-1-15	11.40.130
10-1-16	11.40.140
10-1-17	11.40.150
10-1-18	11.40.160
10-1-19	11.40.170
10-1-20	11.40.180
10-1-21	11.40.190, 11.40.200, 11.40.210
10-1-22	11.40.220, 11.40.230
10-1A-1	11.38.020—11.38.050, 11.38.070
10-1A-2	Repealed by 2203
10-1A-3	11.38.080—11.38.130
10-2-1—10-2-33	Repealed by 2203
10-3-1	11.54.010
10-3-2	11.54.020, 11.54.030
10-3-3	11.54.040
10-3-4	11.54.050
10-3-5	11.54.060, 11.54.070, 11.54.080
10-3-6	11.54.100
10-3-7	11.54.220
10-3-8	11.54.170
10-3-9	11.54.180
10-3-10	11.54.200
10-3-11	11.54.190
10-3-12	11.54.210
10-4-1	11.02.010, 11.02.020
10-4-2	11.02.140—11.02.190
10-4-3, 10-4-4	Repealed by 2203
10-4-5	Repealed by 5095
10-5-1—10-5-9	Repealed by 2203
10-6-1	11.04.010, 11.04.020
10-6-2	10.04.070, 11.04.080
10-6-3	11.04.040, 11.04.050, 11.04.060

Prior Code	Herein
10-6-4	11.04.030
10-7-1	11.06.010
10-7-2	11.06.020
10-7-3	11.06.030
10-7-4	11.06.040
10-7-5	11.22.130
10-7-6	Repealed by 2203
10-8-1	11.36.010
10-8-2—10-8-5	Repealed by 2203
10-8-11	11.44.080
10-9-1—10-9-8	Repealed by 1529
10-9-9, 10-9-10	Repealed by 2203
10-9-11	11.34.010
10-9-12	11.34.020
10-10-1	11.32.010
10-10-2	11.32.020
10-10-3	Repealed by 2203
10-10-4	11.32.030
10-10-5—10-10-9	Repealed by 2203
10-10-10	11.32.040
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10-12-2	11.18.020
10-12-3	11.18.010
10-13-1	11.12.010, 11.12.020
10-13-2	11.12.030
10-13-3	11.12.040
10-13-4	Repealed by 2203
10-13-5	11.12.050
10-13-6	11.12.060
10-13-7—10-13-10	Repealed by 2203
10-13-11	11.12.070
10-13-12—10-13-18	Repealed by 2203
10-13-19	11.12.080
10-13-20	11.12.090
10-13-21	11.12.100
10-14-1	11.20.010
10-14-2	11.20.020
10-14-3	10.20.050
10-14-4	11.20.030
10-14-5	11.20.040
10-14-6	Repealed by 2203

Prior Code	Herein
10-14-7	11.20.060
10-14-8	11.20.070
10-14-9, 10-15-1, 10-15-2	Repealed by 2203
10-15-3	11.56.020
10-15-4	Repealed by 2203
10-15-5	Repealed by 3139
10-15-6	11.56.010
10-15-7	11.22.040
10-15-8	Repealed by 2203
10-15-9	11.38.010, 11.38.060
10-15-10	Repealed by 2203
10-15-11	11.22.050
10-15-12, 10-15-13	Repealed by 2203
10-15-14	11.22.080
10-15-15	11.22.060
10-15-16	11.22.100
10-15-17	11.22.090
10-15-18	Repealed by 2203
10-15-19	11.22.070
10-15-20	11.22.110
10-15-21	11.24.020, 11.24.030
10-15-22	11.22.010
10-15-23	Ch. 11.26
10-15-24	11.22.020
10-16-1	11.30.010
10-16-2	11.30.020, 11.30.030
10-16-3	11.30.040
10-16-4	11.30.050
10-16-5	11.30.060
10-16-6	11.30.070
10-16-7	11.30.080
10-16-8	11.30.090, 11.30.100
10-16-9	11.30.110, 11.30.120
10-16-10	11.30.130
10-16-11	11.30.140
10-17-1	11.52.040
10-17-2	11.52.070
10-17-3	Repealed by 3000
10-17-4	11.52.090
10-17-5	Repealed by 3000
10-17-6	11.52.110

Prior Code	Herein
10-17-7	11.52.130
10-17-8	11.52.140
10-17-9	11.52.350
10-17-10	11.52.050
10-17-11	Repealed by 3000
10-17-12	11.52.180
10-17-13	Repealed by 3000
10-17-14	Repealed by 3000
10-17-15	Repealed by 3000
10-17-16	Repealed by 3000
10-17-17	Repealed by 3000
10-17-18	11.52.140
10-17-19	11.52.060
10-17-20	11.52.120
10-17-21	Repealed by 5095
10-17-22	11.52.010
10-17-23	11.52.020
10-17-24	11.52.240
10-17-25	11.52.250
10-17-26	11.52.260
10-17-27	11.52.270
10-17-28	11.52.280
10-17-29	Repealed by 1836
10-17-30	Repealed by 1318
10-17-31	Repealed by 3000
10-17-32	11.52.300
10-17-33	11.52.310, 11.52.320, 11.52.330
10-17-34	11.60.050—11.60.090
10-18-1	11.44.010
10-18-2	11.44.020
10-18-3	11.44.030
10-18-4	11.44.040
10-18-5	Repealed by 3990
10-18-6	11.44.060
10-18-7	11.60.010
10-18-8	11.60.030, 11.60.040
10-18.9	11.60.020
10-18-10	11.44.070
10-19-1—10-19-2	Repealed by 1589

Prior Code	Herein
10-19-3	11.22.120
10-19-4	11.22.030
10-19-5	13.04.060
10-19-6—10-20-17	Repealed by 2203
10-20-18	11.28.020
10-20-19, 10-20-20	Repealed by 2203
10-20-21	11.28.030
10-20-22	11.28.040
10-20-23	11.28.050, 11.28.060
10-20-24	Repealed by 2203
10-20-25	11.28.110—11.28.140
10-20-26	11.28.160
10-20-27	11.28.170
10-20-28	11.28.180
10-20-29	11.28.190
10-20-30	11.28.200
10-20-31	11.28.070, 11.28.090
10-20-32	11.28.080, 11.28.100
10-20-33, 10-20-34, 10-20-35	Repealed by 2203
10-20-36	11.28.230
10-20-37	11.28.250
10-20-38	11.28.260
10-20-39	11.28.240
10-20-40	11.28.270
10-20-41	11.28.010
10-20-42	11.28.210, 11.28.220
10-20-43	11.28.150
10-21-1	11.08.010, 11.08.020
10-21-2	11.08.030
10-21-3	11.08.040—11.08.090
10-21-4	11.08.100
10-21-5	11.08.110
10-21-6—10-21-11	Repealed by 1836
10-21(A)-1	Repealed by 3089
10-21(A)-2	Repealed by 3089
10-21(A)-3	Repealed by 3089
10-21(A)-4	Repealed by 3089
10-21(A)-5	Repealed by 3089
10-21(A)-6	Repealed by 2163

Prior Code	Herein
10-21(A)-7	Repealed by 3089
10-21(A)-8	Repealed by 3089
10-21(A)-9	Repealed by 3089
10-22-1	Ch. 10.16
10-23-1	Repealed by 5864
10-23-2	Repealed by 5864
10-23-3	Repealed by 5864
10-23-4	Repealed by 5864
10-23-5	Repealed by 5864
10-23-6	Repealed by 5864
10-24-1, 10-25-1	Repealed by 2203
10-25-2	11.16.010—11.16.070
10-25-3	11.16.180
10-25-4	Repealed by 2203
10-25-5	11.16.090
10-26-1	11.42.010
10-26-2	11.42.020
10-26-3	11.42.030
10-27-1	11.46.010
10-28-1	11.46.020
10-28-2	11.46.030
10-28-3	Not codified
10-29-1—10-29-7	Repealed by 2203
10-29-8	11.58.010—11.58.040
10-29-9	11.58.060—11.58.090
10-29-10	11.58.050
10-29-11	11.58.100
10-29-12	11.58.110
10-29-13, 10-29-14, 10-29-15	Repealed by 2203
10-29-16	11.48.010—11.48.080
10-29-17	11.48.090
10-29-18	Not codified
10-30-1	11.50.010
10-30-2	11.50.020
10-30-3	Not codified
10-30-4	11.50.030
10-30-5	11.50.040

Prior Code	Herein
10-30-6	11.50.070
10-30-7	11.50.050
10-30-8	11.50.060
10-31-1	11.32.050
10-31-2	11.32.060, 11.32.070, 11.32.080
10-31-3	11.32.090
10-31-4	11.32.100, 11.32.110
10-32-1	6.58.010
10-32-2	6.58.020
10-32-3	6.58.030
10-32-4	6.58.040
10-32-5	6.58.050—6.58.090
10-32-6	6.58.100
10-32-7	6.58.110
11-1-1	Repealed by 5345
11-1-2	Repealed by 5345
11-1-3	Repealed by 5345
11-1-3.A	Repealed by 5345
11-1-4	Repealed by 5345
11-1-5	Repealed by 5345
11-1-6	Repealed by 5345
11-1-7	Repealed by 5345
11-1-8	Repealed by 5345
11-1-8.5	Repealed by 5345
11-1-9	Repealed by 5345
11-1-10	Repealed by 5345
11-1-11	Repealed by 5345
11-1-11.A	Repealed by 5345
11-1-11.B	Repealed by 5345
11-1-11.C	Repealed by 5345
11-1-12	Repealed by 5345
11-1-13	Repealed by 5345
11-1-14	Repealed by 5345
11-1-15	Repealed by 5345
11-1-16	Repealed by 5345
11-1-17	Repealed by 5345
11-1-17.A	Repealed by 5345
11-1-17.B	Repealed by 5345
11-1-18	Repealed by 5345
11-1-19	Repealed by 5345

Prior Code	Herein
11-1-20	Repealed by 5345
11-1-21	Repealed by 5345
11-1-22	Repealed by 5345
11-1-23	Repealed by 5345
11-1-24	Repealed by 5345
11-1-25	Repealed by 5345
11-1-25.5	Repealed by 3806
11-1-25.6	Repealed by 5345
11-1-25.7	Repealed by 5345
11-1-26	Repealed by 5345
11-2-1	Repealed by 3276
11-2-2	Repealed by 3806
11-2-3	Repealed by 3276
11-2-4	Repealed by 3806
11-2-5	Repealed by 3806
11-2-6	Repealed by 3806
11-2-7	Repealed by 3276
11-2-8	Repealed by 3276
11-2-9	Repealed by 3276
11-2-9.1	Repealed by 2237
11-2-10	Repealed by 3806
11-2-11	Repealed by 3276
11-2-12	Repealed by 3276
11-2-13	Repealed by 3806
11-2-14	Repealed by 3276
11-2-15	Repealed by 3806
11-2-16	Repealed by 3806
11-2-17	Repealed by 3806
11-2-18	Repealed by 3276
11-2-19	Repealed by 3276
11-2-20	Repealed by 3276
11-2-21	Repealed by 3276
11-2-22	Repealed by 3276
11-2-23	Repealed by 3276
11-2-24	Repealed by 3276
11-2-25	Repealed by 3276
11-2-26	Repealed by 3276
11-2-27	Repealed by 3276
11-3-1	Repealed by 3723
11-3-2	Repealed by 3723
11-3-3	Repealed by 3723

Prior Code	Herein
11-3-4	Repealed by 3723
11-3-5	Repealed by 3723
11-3-6 (part)	Repealed by 3723
11-3-6 (A)	Repealed by 3723
11-3-6 (B)	Repealed by 3723
11-3-6 (C)	Repealed by 3723
11-3-6 (D)	Repealed by 3580
11-3-7	Repealed by 3723
11-3-8	Repealed by 3723
11-3-9	Repealed by 3723
11-3-10	Repealed by 3723
11-4-1	13.52.010
11-4-2	13.52.020
11-4-3	13.52.030, 13.52.040
11-4-4	13.52.050—13.52.090
11-4-5	13.52.100
11-4-6	13.52.110
11-4-7	13.52.120
11-4-8	13.52.130—13.52.160
11-4-9	13.52.170
11-5-1	20.08.010
11-5-2	20.08.020
11-5-3	20.08.030
11-5-4	20.08.040
11-5-5	20.08.050
11-5-6.1	20.08.060
11-5-6.2	20.08.070
11-5-6.3	20.08.080
11-5-6.4	20.08.090
11-5-6.5	20.08.100
11-5-6.6	20.08.110
11-5-6.7	20.08.120
11-5-7.1	20.08.130
11-5-7.2	20.08.140
11-5-7.3	20.08.150—20.08.270
11-5-7.4	20.08.280—20.08.320

Prior Code	Herein
11-5-8.1	20.08.330—20.08.390
11-5-8.2	20.08.400—20.08.440
11-5-8.3	20.08.450
11-5-8.4	20.08.460
12-1-1—12-2-2	Not codified

As of the 2009 Republication, this table will no longer be updated.

CODE COMPARATIVE TABLE AND DISPOSITION LIST

This is a chronological listing of the ordinances of Las Vegas, Nevada beginning with the 2009 Republication, included in this Code.

Ordinance Number	Date	Description	Section	Section this Code
6010	11-5-08	Vacations	1 Rpld	18.20.050, 18.20.060
			2 Added	18.20.050, 18.20.060
			3	18.20.070
			4	18.20.080
6011		(Not codified)		
6012		(Not codified)		
6013	11-19-08	Zoning	1	19.04.010
6014		(Not codified)		
6015		(Not codified)		
6016	12-3-08	Arts commission	1	2.34.030
6017		(Not codified)		
6018	12-17-08	Wards	1	1.16.030
			2	1.16.060
			3	1.16.070
6019	1-7-09	Design and construction standards	1	18.12.105
			2	18.12.130
6020		(Not codified)		
6021		(Not codified)		
6022	1-7-09	Child care facilities	1 Added	6.24.005
			2	6.24.010
			3	6.85.050
			4 Rpld	6.24.005—6.24.430
6023		(Not codified)		
6024	1-21-09	Drainage easements	1	9.04.010
			2	13.32.080
			3	20.04.050
			4	20.08.140
6025	1-23-09	Solid Waste Management	1	9.08.210
6026	2-4-09	Records management	1	2.60.030
			2	2.60.070
6027		(Not codified)		
6028		(Not codified)		
6029		(Not codified)		
6030	3-4-09	Zoning	1	19.06.100(D)
			2 Rpld	19.06.120 (E)—(G)

Ordinance Number	Date	Description	Section	Section this Code
			3 Added	19.06.120 (E)—(H)
			4	19.06.140(C)
6031		(Not codified)		
6032	3-18-09	Metropolitan police department citizen review board	1—8	2.64.030—2.64.100
6033		(Not codified)		
6034		(Not codified)		
6035		(Not codified)		
6036	4-15-09	Temporary business licenses for privileged businesses	1	6.06.010
			2	6.06.051
			3	6.06.052
			4	6.06.053
6037		(Not codified)		
6038	4-15-09	(Not codified)		
6039	5-20-09	(Not codified)		
6040	5-20-09	Ambulances	1	6.08.020
			2	6.08.130
			3	6.08.150
			4	6.08.160
			5	6.08.200
6041	6-3-09	Zoning	1—14	19.04.010
			15	19.04.070(A)
			16, 17	19.08.030(C)
			18	19.08.040
			19	19.08.050
			20	19.08.060(A)(1)
			21	19.08.060(B)(3)
			22	19.18.050(J)
			23	19.18.060(P)(1)
			24—27	19.20.020
6042	6-3-09	Unlawful identification	1	10.30.040
6043	6-17-09	Alcoholic beverages in city parks	1	13.36.180
			2 Added	13.36.185
6044	6-17-09	(Not codified)		
6045	6-17-09	Sewer connection charge	1	14.04.320
6046	7-1-09	(Not codified)		
6047	7-15-09	Business taxes, licenses and regulations	1	6.02.020
			2	6.02.085
			3	6.02.180
			4	6.02.250
			5	6.04.030
			6	6.04.060
			7	6.06.051
			8	6.06.100

Ordinance Number	Date	Description	Section	Section this Code
			9	6.06.150
			10 Rpld	6.50.360
			11 Added	6.50.360
			12 Rpld	6.50.380
			13 Added	6.50.380
			14	6.68.010
			15	6.68.030
6048	7-15-09	Zoning	1	19.10.010(H)
			2	19.10.010(J)(2)
			3	19.10.020(C)(2)
6049	7-15-09	Meeting schedule of the traffic and parking commission	1	2.48.080
6050	7-15-09	Making state law misdemeanors city misdemeanors if committed within the city		10.02.020
6051	8-5-09	(Not codified)		
6052	8-5-09	Street naming and address assignments	1 Rpld	13.28.010—13.28.090
			2 Added	19.09.010—19.09.090
			3	19.18.130(A)
			4	18.12.080
6053	8-5-09	Zoning	1	19.04.010
6054	8-5-09	Business licensing	1	6.02.035
			2	6.50.370
6055	9-2-09	Zoning	1	19.04.010
			2	19.08.060(B)(3)
			3	19.20.020
			4	19.16.070
6056	9-2-09	(Not codified)		
6057	9-2-09	(Not codified)		
6058	9-2-09	(Not codified)		
6059	9-2-09	Zoning	1	19.04.010
			2	19.20.020
6060	9-16-09	(Not codified)		
6061	10-7-09	(Not codified)		
6062	10-21-09	Parking of a mobile billboard	1	11.52.305
6063	11-4-09	(Not codified)		
6064	11-4-09	Zoning	1	19.06.170(C)(2)
			2	19.06.170(C)(4)
			3	19.06.170(C)(5)
			4	19.06.170(C)(6)
			5	19.06.170(D)(4)
			6	19.06.170(D)(6)
6065	11-4-09	(Not codified)		
6066	11-4-09	(Not codified)		
6067	11-18-09	Animals	1 Added	7.14.010—7.14.070

Ordinance Number	Date	Description	Section	Section this Code
			2	7.20.010
			3	7.20.020
			4	7.20.030
			5	7.20.080
			6	7.20.090
			7	7.20.100
			8 Added	7.20.105
6068	12-2-09	Drought plan	1	14.11.020
			2	14.11.030
			3	14.11.140
			4	14.11.150
			5	14.11.160
			6	14.11.180
			7	14.11.190
6069	12-2-09	Energy conservation code	1	16.52.010
6070	12-2-09	(Not codified)		
6071	12-16-09	Liquor control	1	6.50.010
			2	6.50.020
			3 Added	6.50.025
			4	6.50.030
			5 Added	6.50.045
			6	6.50.050
			7	6.50.070
			8 Added	6.50.095
			9	6.50.100
			10	6.50.115
			11	6.50.130
			12 Rpld	6.50.140
			13 Added	6.50.140
			14	6.50.150
			15	6.50.160
			16	6.50.170
			17 Added	6.50.205
			18	6.50.210
			19	6.50.220
			20	6.50.270
			21	6.50.310
			22	6.50.350
			23	6.50.355
			24	6.50.360
			25	6.50.380
			26	6.50.390
			27	6.50.410
			28	6.50.420
			29 Rpld	6.50.430
			30 Added	6.50.430

Ordinance Number	Date	Description	Section	Section this Code
			31	6.50.440
			32	6.50.450
			33	6.50.455
			34	6.50.480
			35	6.50.490
			36	6.50.510
			37 Rpld	6.50.520—6.50.640
			38 Added	6.50.520
			39	6.02.125
			40 Added	6.02.145
			41	19.04.010
			42	19.20.020
6072	12-16-09	Department of finance and business services	1	2.18.010
			2 Rpld	2.18.020, 2.18.030
6073	12-16-09	(Not codified)		
6074	1-6-10	(Not codified)		
6075	1-6-10	(Not codified)		
6076	1-20-10	Sewers	1 Rpld	14.04.030
			2 Added	14.04.030
				14.04.040
6077	2-3-10	(Not codified)		
6078	2-17-10	(Not codified)		
6079	2-17-10	Zoning	1	19.06.090(E)
6080	2-17-10	Zoning	1	19.06.120(D)
			2	19.02.010(B)
			3	19.02.040(D)(6)
			4	19.04.010
			5	19.06.060
			6	19.06.140(C)(1)
			7	19.08.040(C)(5)
			8	19.08.040(C)
			9	19.08.050(C)
			10	19.08.060(A)(3)
			11	19.10.020(B)
			12	19.12.010
			13	19.14.130(B)(2)
			14	19.14.130(D)(2)
			15	19.20.020
6081	2-17-10	Zoning	1	19.10.010(J)(2)
6082	2-17-10	Zoning	1—3	19.04.010
			4, 5	19.20.020
6083	2-17-10	Zoning	1, 2	19.04.010
			3	19.20.020
6084	3-3-10	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6085	3-3-10	Underground utility installations	1	13.57.170
6086	3-3-10	Fee schedule	1	18.22.030
			2	19.18.010(C)
6087	3-3-10	Zoning	1	19.04.010
			2, 3	19.20.020
6088	4-21-10	Zoning	1	19.14.130(B)
			2	19.14.130(D)(2)
			3	19.14.130(F)
			4	19.18.030(B)
			5	19.18.030(F)(3)
			6	19.18.030(H)(2)
			7	19.18.030(H)(3)
			8	19.18.040(H)(3)
			9	19.18.040(J)(2)
			10	19.18.040(J)(3)
6089	4-21-10	Residential permit parking zones	1	11.65.020
6090	5-5-10	Liquor control	1	6.50.050
			2	6.50.070
6091	5-5-10	Gaming hospitality operations, collective bargaining agreements	1 Added	4.36.010—4.36.030
6092	5-19-10	(Not codified)		
6093	5-19-10	(Not codified)		
6094	5-19-10	Harboring of unspayed/unneutered dogs and cats	1	7.14.010
6095	6-2-10	Zoning	1	19.00.070(F)
			2	19.06.050(C)
			3	19.18.010(B)(3)
			4	19.18.010(C)
			5	19.18.030(C)(1)
			6	19.18.030(C)(4)
			7	19.18.030(F)(2)
			8	19.18.040(C)
			9	19.18.040(D)(2)
			10	19.18.040(D)(3)
			11	19.18.040(D)(6)
			12	19.18.040(H)(2)
			13	19.18.050(B)(4)
			14	19.18.050(C)
			15	19.18.050(D)
			16	19.18.050(F)
			17, 18	19.18.050(G)(2)
			19	19.18.050(H)(1)
			20	19.18.050(J)
			21	19.18.060(B)
			22	19.18.060(G)
			23	19.18.060(J)

Ordinance Number	Date	Description	Section	Section this Code
			24	19.18.060(K)
			25	19.18.060(M)
			26	19.18.060(O)
			27	19.18.060(P)
			28	19.18.070(J)
			29	19.18.070(O)
			30	19.18.080(A)
			31	19.18.080(B)
			32	19.18.080(C)
			33 Added	19.18.150
			34	19.20.020
6096	6-2-10	Parking or nonmoving violations	1	11.10.080
			2	11.10.090
			3 Rpld	11.10.100—11.10.120
6097	6-16-10	Public utility license fees	1	6.02.065
			2	6.67.010
			3	6.67.090
6098	7-21-10	Zoning	1—5	19.04.010
			6	19.04.020
			7 Added	19.04.040(C), (D)
			8—11	19.20.020
			12	19.00.070(C)
			13	19.20.020
			14	6.04.060
6099	7-21-10	Zoning	1, 2	19.04.010
			3	19.20.020
6100	7-21-10	Sewer service charges	1	14.04.010
6101	8-4-10	Zoning	1, 2	19.04.010
			3, 4	19.20.020
6102	8-4-10	(Not codified)		
6103	8-4-10	(Not codified)		
6104	8-4-10	(Not codified)		
6105	8-4-10	Wastewater collection and treatment	1	14.17.005
			2	14.17.010
			3 Rpld	14.17.015
			4	14.17.020
			5 Rpld	14.17.025
			6 Added	14.17.025
			7—12	14.17.030—14.17.055
			13 Rpld	14.17.060
			14 Added	14.17.060
			15	14.17.065
			16	14.17.070

Ordinance Number	Date	Description	Section	Section this Code
			17—23	14.17.085—14.17.115
			24 Rpld	14.17.120
			25 Added	14.17.120
			26	14.17.125
			27 Rpld	14.17.130
			28 Added	14.17.130
			29 Added	14.17.133
			30—35	14.17.135—14.17.160
			36 Added	14.17.163
			37—39	14.17.165—14.17.175
			40 Rpld	14.17.180
			41—45	14.17.185—14.17.205
			46 Rpld	14.17.210
			47 Added	14.17.210
			48	14.17.215
			49	14.17.220
			50 Rpld	14.17.225
			51 Added	14.17.225
			52 Rpld	14.17.230
			53	14.17.235
			54 Rpld	14.17.240, 14.17.245
			55 Added	14.17.240, 14.17.245
			56	14.17.250
			57 Rpld	14.17.255, 14.17.260
			58 Added	14.17.255, 14.17.260
			59 Rpld	14.17.265, 14.17.270
			60 Added	14.17.265, 14.17.270
			61	14.17.275
			62 Rpld	14.17.280
			63 Added	14.17.280
			64—67	14.17.285—14.17.300
			68 Rpld	14.17.305
			69—73	14.17.310—14.17.330
			74 Rpld	14.17.335
			75	14.17.345
			76	14.17.350
			77—79	14.17.360—14.17.370

Ordinance Number	Date	Description	Section	Section this Code
6106	8-18-10	(Not codified)		
6107	8-18-10	Records management	1	2.60.070
			2 Rpld	2.52.040
6108	9-1-10	Outdoor advertising restrictions concerning hotels, motels and other lodging establishments	1 Rpld	6.46.110, 6.46.120
			2 Rpld	6.84.030, 6.84.040
6109	9-1-10	(Not codified)		
6110	9-1-10	(Not codified)		
6111	9-15-10	Zoning	1 Added	19.18.010(I)
6112	9-15-10	Parks	1	13.36.010
			2	13.36.080
			3	13.36.090
			4 Added	13.36.210
			6	13.36.055
6113	10-6-10	Zoning	1	19.04.010
6114	10-6-10	Zoning	1	19.16.030(A)
			2	19.04.010
6115	10-6-10	Regulations governing ice cream trucks	1—13	6.47.010—6.47.130
6116	11-3-10	(Not codified)		
6117	11-3-10	(Not codified)		
6118	11-3-10	License regulations to replace the hotel lounge bar license with the ancillary lounge bar license	1	6.50.020
			2	6.50.120
			3	6.50.360
			4	6.50.380
			5, 6	19.04.010
			7, 8	19.20.020
6119	11-3-10	Citizen's complaints about city employees	1 Rpld	2.56.010—2.56.080
6120	12-1-10	Wards	1	1.16.030
			2	1.16.050
			3	1.16.070
6121	12-1-10	(Not codified)		
6122	12-15-10	(Not codified)		
6123	12-15-10	Zoning	1	19.04.010
6124	1-15-11	International Fire Code	1 Rpld	16.16.010
			2 Added	16.16.010
6125	1-15-11	Sewers	1	14.04.010
			2	14.04.030
			3	14.04.070
			4	14.04.080
			5 Rpld	14.04.300—14.04.330
6126	1-19-11	Liquor control	1 Added	6.50.145
			2	6.50.360

Ordinance Number	Date	Description	Section	Section this Code
			4 [3]	6.50.380
6127	1-19-11	Traffic signal impact fee	1—4	4.32.020—4.32.050
			5	4.32.070
			6	4.32.080
			7	4.32.110
			8 Added	4.32.150
6128	1-19-11	Zoning	1—3	19.04.010
			4—6	19.20.020
6129	2-2-11	Administration	1 Added	2.08.050
			2	2.09.010
			3 Added	2.09.015
			4	2.09.020
			5 Added	2.09.030
			6	2.14.010
			7 Rpld	2.14.030, 2.14.040
			8	2.18.010
6130	2-2-11	(Not codified)		
6131	2-2-11	Commercial entertainment and solicitation activities within the pedestrian mall	1	10.44.010
			2	11.68.020
			3	11.68.050
			4	11.68.100
			5 Added	11.68.103—11.68.107
			6	11.68.130
			7 Added	11.68.140
6132	2-2-11	(Not codified)		
6133	2-16-11	(Not codified)		
6134	3-2-11	Liquor control	1	6.50.020
			2	6.50.170
6135	3-16-11	Subdivisions and zoning	1 Rpld	Chs. 18.02—18.34
				Chs. 19.00—19.20
6136	3-16-11	(Not codified)		
6137	3-17-11	Business licensing regulations	1	6.04.040
			2	6.04.060
			3 Added	6.04.153, 6.04.155, 6.04.157
			4	6.02.010
			5	6.02.150
6138	4-6-11	News racks	1	13.24.010
			2 Added	13.24.025
			3	13.24.110
			4 Added	13.24.115

Ordinance Number	Date	Description	Section	Section this Code
6139	4-6-11	Building code	1	16.04.010
6140	4-6-11	(Not codified)		
6141	4-6-11	Plumbing code	1	16.28.010
6142	4-6-11	Mechanical code	1	16.24.010
6143	4-6-11	Electrical code	1	16.12.010
6144	4-6-11	(Not codified)		
6145	4-6-11	Pool code	1	16.30.010
6146	4-6-11	Amusement and transportation rides code	1	16.48.010
6147	4-20-11	Beer/wine cultural establishments	1	6.50.040
			2	6.50.360
			3	6.50.380
6148	4-20-11	(Not codified)		
6149	5-4-11	City-owned parking lots, city-owned parking garages, and public rights-of-way	1 Added	11.02.090
			2	11.10.180
			3	11.24.010
			4	11.24.030
			5 Added	11.52.315
			6	13.04.070
6150	5-18-11	(Not codified)		
6151	5-18-11	(Not codified)		
6152	5-18-11	(Not codified)		
6153	6-1-11	Radio reception interference and shortwave receivers in vehicles	1 Rpld	10.22.010—10.22.040 10.24.010—10.24.080
6154	7-6-11	Membership club licenses	1 Rpld	6.54.010—6.54.040
6155	8-3-11	Privileged licenses	1 Rpld	6.06.050
			2	6.06.070
			3	6.06.080
			4	6.06.110
			5	6.06.125
			6	6.06.130
			7	6.06.200
			8	6.06.210
			9 Rpld	6.06.230
			10	6.06.240
			11	6.06.250
6156	8-3-11	Making state law misdemeanors city misdemeanors if committed within the city	1	10.02.010
6157	8-17-11	Noise	1	9.16.040
6158	8-17-11	Mobile food vendors	1	6.55.010
			2	6.55.040
			3	6.55.070
6159	8-17-11	Planning commission	1	2.44.020

Ordinance Number	Date	Description	Section	Section this Code
6160	9-7-11	(Not codified)		
6161	9-21-11	Noise	1	9.16.030
6162	9-21-11	Metered parking	1 Added	11.54.110
6163	10-19-11	(Not codified)		
6164	11-2-11	Business licensing	1	6.02.010
			2	6.02.020
			3	6.02.035
			4	6.02.060
			5	6.02.065
			6	6.02.080
			7	6.02.090
			8	6.02.100
			9	6.02.110
			10	6.02.160
			11	6.02.190
			12	6.02.200
			13	6.02.220
			14 Added	6.02.225
			15	6.02.240
			16	6.02.250
			17	6.02.260
			18	6.02.310
			19	6.02.330
			20	6.02.370
6165	11-2-11	Business licensing provisions to adjust the regulatory and fee provisions	1	6.02.010
			2	6.04.065
			3 Added	6.64.010
6166	11-2-11	(Not codified)		
6167	11-16-11	(Not codified)		
6168	11-16-11	Pawnbrokers	1	6.60.090
			2	6.60.160
			3	6.60.120
			4 Rpld	6.60.240
6169	12-7-11	Registration and maintenance program for vacant properties	1 Added	16.33.010—16.33.090
			2 Rpld	16.31.010—16.31.080
6170	12-7-11	Massage establishments and independent massage therapists	1	6.52.020
			2	6.52.070
			3	6.52.090
			4	6.52.120
			5	6.52.160
			6	6.52.170
6171	12-7-11	Reflexology and acupressure practitioners	1	6.69.010

Ordinance Number	Date	Description	Section	Section this Code
			2	6.69.020
			3	6.69.060
			4	6.69.100
			5	6.69.110
			6 Added	6.69.120
			7	6.69.130
			8 Added	6.69.150
6172	12-7-11	City boards and committees	1	2.46.030
			2	2.46.040
			3	2.30.080
			4	2.49.010
			5 Added	7.04.295
			6	7.16.050
			7	7.38.030
			8	2.60.070
			9	9.36.050
			10 Rpld	2.30.060
			11 Rpld	2.60.040
			12 Rpld	7.04.040
6173	12-21-11	Qualified alternative fuel vehicles	1 Added	11.66.010—11.66.080
			2	11.10.130
			3	11.10.180
6174	2-1-12	(Not codified)		
6175	2-1-12	(Not codified)		
6176	2-15-12	Building code	1	16.04.010
6177	2-15-12	Nuisances	1	9.04.050
			2	9.04.080
			3	9.04.100
			4	9.04.110
			5	9.04.120
6178	3-7-12	(Not codified)		
6179	3-7-12	Feral cats	1 Added	7.04.155
			2 Added	7.04.235
			3 Added	7.04.255
			4 Added	7.04.256
			5 Added	7.04.325
			6 Added	7.04.425
			7 Added	7.04.435
			8	7.20.035
			9 Added	7.22.010—7.22.070
6180	3-7-12	Animal control violations	1	7.44.040
			2 Added	7.44.060—7.44.120
			3	7.08.010
			4	7.08.090

Ordinance Number	Date	Description	Section	Section this Code
			5	7.36.020
			6	7.36.030
			7	7.36.040
			8	7.38.100
6181	3-7-12	(Not codified)		
6182	3-7-12	Collection of solid waste	1	9.08.230
			2	9.08.235
6183	3-7-12	Special events	1 Added	12.02.010—12.02.240
			2	6.19.010
			3	6.19.020
			4	6.19.120
			5 Rpld	6.19.060, 6.19.070, 6.19.130, 6.19.140
			6	6.50.190
			7	6.50.200
			8	6.50.205
			9	6.50.360
			10	6.78.010
			11	6.78.020
			12 Rpld	6.78.035, 6.78.040, 6.78.045
			13	6.80A.010
			14 Rpld	11.56.010—11.56.120
			15 Added	11.56.010, 11.56.020
			16	11.68.110
			17 Rpld	6.11.010—6.11.070
				6.28.010—6.28.060
				6.32.010—6.32..080
				6.73.010—6.73.200
6184	3-21-12	Vehicles and traffic	1 Added	11.02.100
			2 Added	11.04.025
			3	11.10.010
			4	11.10.030
			5	11.10.040
			6	11.10.050
			7	11.10.080
			8	11.24.030
			9	11.52.090
			10	11.54.020
			11	11.54.030

Ordinance Number	Date	Description	Section	Section this Code
			12	11.54.050
			13	11.54.170
			14	11.54.210
			15	11.54.230
			16	10.78.040
			17	13.04.070
6185	3-21-2012	(Not codified)		
6186	3-21-2012	(Not codified)		
6187	4-4-2012	(Not codified)		
6188	4-18-2012	(Not codified)		
6189	5-2-2012	(Not codified)		
6190	5-2-2012	(Not codified)		
6191	5-2-2012	(Not codified)		
6192	5-2-2012	(Not codified)		
6193	5-16-2012	(Not codified)		
6194	5-16-2012	(Not codified)		
6195	5-16-2012	(Not codified)		
6196	5-16-2012	Apartment houses and apartment house managers	1	6.09.010
			2	6.09.015
			3 Rpld	6.09.020
			4 Added	6.09.020
			5	6.09.040
6197	6-20-2012	(Not codified)		
6198	7-18-2012	(Not codified)		
6199	7-18-2012	Planned streets and highways	1 Rpld	13.12.010—13.12.180
			2 Added	13.12.010—13.12.170
6200	7-18-2012	(Not codified)		
6201	8-1-2012	(Not codified)		
6202	8-1-2012	(Not codified)		
6203	8-1-2012	(Not codified)		
6204	8-15-2012	(Not codified)		
6205	8-15-2012	(Not codified)		
6206	8-15-2012	(Not codified)		
6207	8-15-2012	(Not codified)		
6208	8-15-2012	(Not codified)		
6209	8-15-2012	(Not codified)		
6210	9-5-2012	(Not codified)		
6211	9-5-2012	(Not codified)		
6212	9-5-2012	(Not codified)		
6213	9-5-2012	Business taxes, licenses and regulations	1	6.06.010
			2	6.06.060
			3	6.06.080
			4	6.06.120

Ordinance Number	Date	Description	Section	Section this Code
			5	6.06.125
			6	6.12.020
			7 Added	6.12.030
			8	6.12.040
			9	6.12.050
			10 Rpld	6.12.060—6.12.140
			11 Added	6.12.060—6.12.080
			12	6.14.010
			13—17	6.14.030—6.14.070
			18	6.14.090
			19	6.14.140
			20	6.14.150
			21	6.18.030
			22 Rpld	6.18.040
			23 Added	6.51.007
			24	6.51.020
			25 Added	6.51.040
			26 Added	6.51.050
			27	6.52.020
			28	6.52.040
			29	6.52.050
			30	6.53.050
			31	6.84.020
6214	9-19-2012	Records management	1	2.60.070
6215	9-19-2012	(Not codified)		
6216	9-19-2012	(Not codified)		
6217	10-3-2012	(Not codified)		
6218	10-3-2012	Downtown transportation center	1	10.84.010
6219	10-3-2012	(Not codified)		
6220	10-17-2012	Mobile food vendors, open air vending and transient sales lots	1	6.55.010
			2	6.55.020
			3	6.55.040
			4 Rpld	6.55.050, 6.55.060
			5 Added	6.55.050
			6	6.55.070
			7—9	6.55.090—6.55.110
			10	6.06.080
			11	13.32.010
6221	10-17-2012	(Not codified)		
6222	10-17-2012	(Not codified)		
6223	10-17-2012	Planned streets and highways	1 Rpld	13.12.010—13.12.170

Ordinance Number	Date	Description	Section	Section this Code
6224	10-17-2012	(Not codified)		
6225	12-5-2012	Wards	1 Rpld	1.16.020—1.16.070
			2 Added	1.16.020—1.16.070
6226	12-5-2012	Parks	1 Rpld	13.36.010—13.36.210
			2 Added	13.36.010—13.36.150
6227	12-5-2012	Secondhand dealers	1	6.74.010
			2	6.74.020
			3	6.74.040
			4	6.74.050
			5	6.74.060
			6	6.74.070
			7	6.74.080
			8	6.74.090
			9	6.74.110
			10	6.74.160
			11	6.74.190
			12 Rpld	6.74.085, 6.74.120, 6.74.130, 6.74.180, 6.74.200
6228	12-19-2012	(Not codified)		
6229	12-19-2012	Animal keeping and husbandry	14	7.38.050
6230	12-19-2012	Misdemeanor drug activity	1	10.90.010
6231	1-9-2013	(Not codified)		
6232	1-23-2013	Tavern-limited licensure	1	6.50.020
			2	6.50.250
			3	6.50.520
			4	6.40.155
6233	1-23-2013	Privileged licensing regulations	1	6.02.010
			2	6.06.030
			3	6.06.070
			4	6.06.100
			5	6.06.110
			6 Added	6.06.205
6234	2-6-2013	(Not codified)		
6235	2-6-2013	Sewers	1	14.04.230
6236	2-6-2013	Mobile food vendors	1 Added	11.54.240
			2	11.10.180
6237	2-20-2013	(Not codified)		
6238	2-20-2013	(Not codified)		
6239	3-6-2013	Traffic signal impact fee	1	4.32.040
6240	3-20-2013	Stopping, standing and parking	1	11.52.305
			2 Rpld	11.48.090
6241	3-20-2013	Claims and demands	1	4.12.090

Ordinance Number	Date	Description	Section	Section this Code
			2	4.12.100
			3	4.12.140
			4	4.12.150
			5	4.12.180
			6 Rpld	4.12.170
6242	3-20-2013	Business licensing generally	1 Added	6.02.390—6.02.460
6243	4-3-2013	(Not codified)		
6244	4-3-2013	(Not codified)		
6245	4-3-2013	Repeals obsolete provisions regarding the senior citizens' center, the child care licensing board, and the records management committee; updates code references to certain holidays	1 Rpld	2.16.010—2.16.060
			2	2.52.010
			3 Rpld	2.60.030
			4	3.16.010
6246	4-17-2013	(Not codified)		
6247	4-17-2013	(Not codified)		
6248	5-1-2013	Liquor control	1 Rpld	6.50.080
			2 Added	6.50.080
			3 Added	6.50.085
			4	6.50.360
			5	6.50.380
			6	6.40.155
6249	5-1-2013	(Not codified)		
6250	5-1-2013	(Not codified)		
6251	5-15-2013	(Not codified)		
6252	5-15-2013	(Not codified)		
6253	5-15-2013	(Not codified)		
6254	5-15-2013	(Not codified)		
6255	6-5-2013	Sewers	1—3	14.04.080—14.04.100
6256	6-19-2013	(Not codified)		
6257	6-19-2013	(Not codified)		
6258	7-10-2013	(Not codified)		
6259	7-10-2013	Liquor control	1	6.50.450
			2 Added	6.50.285
			3	6.50.020
6260	7-24-2013	(Not codified)		
6261	8-7-2013	State misdemeanors	1	10.02.010
6262	8-7-2013	Regulations regarding tavern-limited licensure to provide for an outdoor entertainment complex	1	6.06.051
			2	6.06.054
			3	6.50.020
			4	6.50.250
			5	6.54.450

Ordinance Number	Date	Description	Section	Section this Code
			6	6.40.155
6263	8-21-2013	Erotic dance establishments	1	6.35.030
			2	6.35.100
			3	6.35.120
			4	6.35.150
6264	8-21-2013	Licensing provisions to permit certain types of businesses to receive a multi-jurisdictional business license	1	6.02.060
			2 Added	6.02.115
			3	6.02.120
			4	6.04.030
			5	6.04.040
			6	6.04.050
			7	6.04.160
6265	9-4-2013	Gaming	1	6.40.020
			2	6.40.030
			3	6.40.040
			4 Added	6.40.111
			5 Added	6.40.115
			6	6.40.120
			7 Added	6.40.153
			8 Added	6.40.154
6266	9-4-2013	Alcohol licensing regulations	1	6.50.020
			2	6.50.025
			3	6.50.030
			4 Rpld	6.50.040—6.50.070,
				6.50.090—6.50.115,
				6.50.130,
				6.50.140,
				6.50.150,
				6.50.160,
				6.50.230,
				6.50.270,
				6.50.330
			5 Added	6.50.040
			6 Added	6.50.050
			7 Added	6.50.060
			8 Added	6.50.100
			9 Added	6.50.150
			10	6.50.170
			11	6.50.205
			12	6.50.210
			13	6.50.220
			14	6.50.280
			15	6.50.285

Ordinance Number	Date	Description	Section	Section this Code
			16	6.50.310
			17	6.50.350
			18 Added	6.50.352
			19	6.50.360
			20	6.50.370
			21	6.50.380
			22	6.50.390
			23	6.50.430
			24	6.50.450
			25	6.50.490
			39	6.40.140
			40	6.40.150
			41	10.76.010
			42	6.50.170 (editor's note)
6267	9-4-2013	Obstructions or encroachments within city rights-of-way	1	13.32.020
6268	9-4-2013	(Not codified)		
6269	9-4-2013	(Not codified)		
6270	9-18-2013	(Not codified)		
6271	9-18-2013	Wastewater collection and treatment	1	14.17.070
			2	14.17.130
			3	14.17.205
			4	14.17.210
6272	9-18-2013	Stormwater and stormwater management	1	14.18.090
			2	14.18.130
6273	9-18-2013	Cemetery regulations	1 Rpld	14.12.010—14.12.220
6274	9-18-2013	Sewer service	1	14.04.050
			2	14.04.120
			3 Added	14.04.125
			4	14.04.260
			5	14.04.290
6275	9-18-2013	(Not codified)		
6276	9-18-2013	(Not codified)		
6277	10-2-2013	Curfew	1 Added	10.54.015
			2	10.54.020
			3	10.54.030
			4 Added	10.54.035
			5 Added	10.54.040
6278	10-2-2013	(Not codified)		
6279	10-2-2013	(Not codified)		
6280	10-2-2013	(Not codified)		
6281	10-2-2013	(Not codified)		
6282	10-2-2013	(Not codified)		
6283	10-2-2013	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6284	10-2-2013	(Not codified)		
6285	10-2-2013	(Not codified)		
6286	10-16-2013	Swimming pools	1 Rpld	9.32.010—9.32.070
6287	11-20-2013	(Not codified)		
6288	11-20-2013	Timing and payment of business license fees; allows for the proration of certain business license fees, amending the schedule for the payment of certain gaming taxes, and allows for the director to apply license payments to fines incurred prior to license fees; ice cream trucks	1	4.20.090
			2	6.02.010
			3	6.02.150
			4	6.02.160
			5	6.02.170
			6	6.02.230
			7	6.02.240
			8	6.02.250
			9	6.02.320
			10	6.04.065
			11	6.06.051
			12	6.47.030
			13	6.47.040
6289	12-4-2013	(Not codified)		
6290	12-18-2013	(Not codified)		
6291	1-8-2014	(Not codified)		
6292	1-8-2014	(Not codified)		
6293	1-8-2014	(Not codified)		
6294	1-22-2014	(Not codified)		
6295	1-22-2014	(Not codified)		
6296	2-5-2014	Eliminates specific business license categories for commercial dance studios, distress merchandise sales, retail demonstration merchandise sales stores, and food caterers; eliminates charitable solicitation permits; amend licensing regulations and fees related to outdoor pay telephones, professional promoters and charitable or special events	1 Rpld	6.22.010—6.22.230
			2 Rpld	6.27.010—6.27.070
			3 Rpld	6.34.010—6.34.100
			4 Rpld	6.39.010—6.39.060
			5 Rpld	6.72.010—6.72.190
			6	6.04.030
			7	6.40.060
			8	6.58.020

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			9	6.58.030
			10	6.58.050
			11	6.58.070
			12	6.58.090
			13	6.62.030
			14	6.62.050
			15	6.71.100
			16	6.78.010
			17	6.78.020
			18	6.78.030
			19 Added	6.78.035
			20 Added	6.78.040
			21 Added	6.78.045
			22 Added	6.78.050
			23 Added	6.78.055
			24 Added	6.78.060
			25 Added	6.78.065
			26 Added	6.78.070
			27	6.80A.030
			28	6.90.090
			29	9.28.110
			30	10.65.060
			31	10.78.030
			32	10.80.030
			33	11.60.030
			34	11.62.020
			35	11.62.030
			36	11.62.050
6297	2-5-2014	(Not codified)		
6298	2-20-2014	(Not codified)		
6299	2-20-2014	(Not codified)		
6300	2-20-2014	(Not codified)		
6301	3-5-2014	(Not codified)		
6302	3-5-2014	Ice cream trucks	1	6.47.040
6303	3-5-2014	Uniform Regulations for the Control of Drainage	1	20.10.010
			2 Added	20.10.020—20.10.050
6304	3-5-2014	Appeal and hearing procedures for nuisance abatements	1	9.04.070
			2	9.04.100
6305	3-19-2014	Work card requirements	1	6.04.060
			2	6.06B.085
			3	6.09.020
			4	6.35.080
			5	6.50.440
			6 Rpld	6.60.070

Ordinance Number	Date	Description	Section	Section this Code
			7	6.80A.060
			8	6.86.070
			9	6.86.110
			10	6.86.130
			11	6.86.150
			12	6.86.200
6306	3-19-2014	(Not codified)		
6307	3-19-2014	(Not codified)		
6308	3-19-2014	(Not codified)		
6309	4-2-2014	(Not codified)		
6310	4-2-2014	(Not codified)		
6311	4-2-2014	(Not codified)		
6312	4-2-2014	(Not codified)		
6313	4-16-2014	Liquor control	1	6.50.285
6314	5-7-2014	(Not codified)		
6315	5-7-2014	(Not codified)		
6316	5-7-2014	Prohibits auto repair facilities from using residential streets for the test-driving of customer vehicles	1	11.22.160
6317	5-21-2014	(Not codified)		
6318	5-21-2014	(Not codified)		
6319	5-21-2014	(Not codified)		
6320	5-21-2014	Liquor control	1	6.50.050
			2	6.50.170
			3	6.50.240
			4	6.50.255
			5 Added	6.50.475
6321	5-21-2014	(Not codified)		
6322	6-4-2014	(Not codified)		
6323	6-4-2014	(Not codified)		
6324	6-4-2014	Licensing regulations and standards for medical marijuana establishments	1 Added	6.95.010—6.95.250
			2	6.02.250
6325	6-18-2014	International Fire Code	1	16.16.010
6326	6-18-2014	Vehicles and traffic	1 Rpld	11.02.010—11.02.190,
				11.08.010—11.08.110
			2 Added	11.02.010—11.02.170
			3	11.04.040
			4	11.04.060
			5	11.04.070
			6	11.10.010
			7	11.10.030
			8	11.10.080
			9	11.10.140

Ordinance Number	Date	Description	Section	Section this Code
			10	11.10.150
			11	11.10.160
			12	11.10.170
			13 Rpld	11.12.040
			14	11.20.010
			15 Rpld	11.20.030
			16	11.24.010
			17	11.24.030
			18 Rpld	11.28.210, 11.28.230
			19	11.30.070
			20	11.32.080
			21	11.32.090
			22	11.32.110
			23	11.36.010
			24 Rpld	11.38.070
			25	11.39.010
			26	11.40.180
			27 Added	11.43.010
			28	11.50.010
			29	11.52.030
			30	11.52.040
			31	11.52.070
			32	11.52.090
			33	11.52.130
			34 Added	11.52.136
			35	11.52.335
			36	11.52.340
			37	11.54.050
			38	11.54.060
			39	11.54.070
			40	11.54.080
			41	11.54.090
			42	11.60.060
			43 Rpld	11.60.070
			44	11.65.010
			45	11.65.020
			46	11.65.080
			47	11.65.120
			48	11.66.030
			49	11.66.040
			50	11.66.050
			51	11.70.010
6327	6-18-2014	Business license fees; providing for various fee increases and decreases; consolidating or eliminating a number of fee categories	2 Rpld	6.04.005—6.04.180

Ordinance Number	Date	Description	Section	Section this Code
			3 Added	6.04.005—6.04.160
			4	6.02.010
			5	6.02.115
			6	6.02.150
			7	6.10.010
			8	6.52.050
			9	11.68.110
6328	6-18-2014	(Not codified)		
6329	6-18-2014	Increases civil penalties for violations of LVMC 6.50 and clarifies that the director may suspend an alcoholic beverage license on an administrative basis under certain circumstances and to provide for other related matters	1	6.02.460
			2 Added	6.50.530
			3 Added	6.02.361
			4	10.77.030
			5	10.76.020
			6	11.68.100
			7	6.50.475
6330	7-2-2014	(Not codified)		
6331	7-2-2014	(Not codified)		
6332	7-2-2014	(Not codified)		
6333	7-2-2014	(Not codified)		
6334	7-16-2014	(Not codified)		
6335	7-16-2014	(Not codified)		
6336	7-16-2014	Liquor control	1	6.50.475
			2 Added	10.76.030
6337	8-6-2014	(Not codified)		
6338	8-6-2014	(Not codified)		
6339	8-6-2014	(Not codified)		
6340	8-20-2014	(Not codified)		
6341	9-3-2014	(Not codified)		
6342	9-3-2014	(Not codified)		
6343	9-3-2014	(Not codified)		
6344	9-3-2014	Mobile car wash/auto detail businesses	1 Added	6.54.010—6.54.130
6345	9-3-2014	Use of streets and sidewalks	1	13.04.080
6346	9-3-2014	(Not codified)		
6347	9-17-2014	(Not codified)		
6348	9-17-2014	(Not codified)		
6349	9-17-2014	Administrative code	1	16.02.010
6350	9-17-2014	Building code	1	16.04.010
6351	9-17-2014	Building code	1	16.04.010
6352	9-17-2014	Existing building code	1 Added	16.06.010
6353	9-17-2014	Pool code	1	16.30.010
6354	9-17-2014	Mechanical code	1	16.24.010

Ordinance Number	Date	Description	Section	Section this Code
6355	9-17-2014	Plumbing code	1	16.28.010
6356	9-17-2014	Electrical code	1	16.12.010
6357	10-1-2014	Short-term residential rentals	1 Added	6.75.010—6.75.110
6358	10-1-2014	Nuisances	1 Added	9.04.015
6359	10-1-2014	(Not codified)		
6360	10-1-2014	(Not codified)		
6361	11-5-2014	(Not codified)		
6362	11-5-2014	(Not codified)		
6363	11-5-2014	(Not codified)		
6364	11-19-2014	(Not codified)		
6365	11-19-2014	(Not codified)		
6366	12-3-2014	(Not codified)		
6367	12-3-2014	(Not codified)		
6368	12-3-2014	(Not codified)		
6369	12-3-2014	(Not codified)		
6370	12-3-2014	(Not codified)		
6371	12-3-2014	(Not codified)		
6372	12-3-2014	(Not codified)		
6373	12-3-2014	(Not codified)		
6374	12-3-2014	(Not codified)		
6375	12-3-2014	(Not codified)		
6376	12-3-2014	(Not codified)		
6377	12-3-2014	(Not codified)		
6378	12-3-2014	(Not codified)		
6379	12-3-2014	(Not codified)		
6380	12-3-2014	(Not codified)		
6381	12-3-2014	(Not codified)		
6382	12-3-2014	(Not codified)		
6383	12-3-2014	(Not codified)		
6384	12-3-2014	(Not codified)		
6385	12-17-2014	(Not codified)		
6386	12-17-2014	(Not codified)		
6387	12-17-2014	(Not codified)		
6388	12-17-2014	Smoking lounges and smoke shops	1	6.06.010
			2 Added	6.82.010—6.82.100
			3	6.02.370
6389	12-17-2014	Parking violations	1	11.10.200
			2	11.10.240
6390	12-17-2014	Liquor control	1	6.50.040
6391	12-17-2014	Wards	1	1.16.030
			2	1.16.040
			3	1.16.050
			4	1.16.070
6392	12-17-2014	(Not codified)		

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6393	1-7-2015	Including a federal fingerprint check in suitability approval investigations and work card investigations pertaining to medical marijuana establishments	1	6.06.080
			2	6.86.050
6394	1-21-2015	Residential permit parking zones	1	11.65.030
			2	11.65.040
			3	11.65.050
			4	11.65.110
6395	1-21-2015	(Not codified)		
6396	2-4-2015	(Not codified)		
6397	2-4-2015	(Not codified)		
6398	2-18-2015	(Not codified)		
6399	2-18-2015	(Not codified)		
6400	2-18-2015	(Not codified)		
6401	2-18-2015	Personnel appeals—reprisals/retaliatory action	2—6 Added	3.28.010—3.28.050
			7 Added	2.22.100
6402	2-18-2015	Metered parking	1	11.54.060
			2	11.54.100
6403	2-18-2015	(Not codified)		
6404	3-4-2015	(Not codified)		
6405	3-18-2015	(Not codified)		
6406	3-18-2015	Parks and recreation advisory commission	1	2.42.020
			2	2.42.030
			3	2.42.040
			4	2.42.080
			5 Rpld	2.42.050, 2.42.070
6407	3-18-2015	License fee exemption for certain types of animals	1 Rpld	7.04.280
			2	7.08.070
6408	3-18-2015	(Not codified)		
6409	4-1-2015	Short-term residential rentals	1 Added	6.75.120
6410	4-1-2015	(Not codified)		
6411	4-15-2015	Filming activity	1 Rpld	11.56.010, 11.56.020
			2 Added	12.04.010—12.04.190
			3 Added	12.02.030(F)
6412	4-15-2015	(Not codified)		
6413	5-6-2015	Nightclubs and cinemas	1 Added	6.39.010—6.39.050
			2 Added	6.50.265
			3	6.50.520
6414	5-20-2015	(Not codified)		
6415	5-20-2015	(Not codified)		
6416	5-20-2015	(Not codified)		

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6417	6-3-2015	(Not codified)		
6418	6-3-2015	Special events; alcoholic beverage regulations	1 Rpld	12.02.010—12.02.240
			2 Added	12.02.010—12.02.230
			3	6.50.205
6419	6-17-2015	Privileged businesses—special requirements	1	6.06.080(C)
6420	6-17-2015	(Not codified)		
6421	7-1-2015	(Not codified)		
6422	7-1-2015	(Not codified)		
6423	7-1-2015	Building security, insulation, fallout shelters, mobile home construction and sign construction	1 Rpld	16.32.010—16.32.480,
				16.36.010—16.36.100,
				16.40.010—16.40.240,
				16.44.010—16.44.250
			2 Rpld	17.12.010—17.12.140
6424	7-1-2015	(Not codified)		
6425	7-1-2015	(Not codified)		
6426	7-1-2015	(Not codified)		
6427	7-1-2015	(Not codified)		
6428	7-1-2015	(Not codified)		
6429	7-1-2015	(Not codified)		
6430	7-1-2015	(Not codified)		
6431	7-1-2015	(Not codified)		
6432	7-1-2015	Ambulances	1	6.08.020
			2	6.08.070
			3	6.08.080
			4	6.08.120
			5 Added	6.08.125
			6	6.08.130
			7	6.08.150
			8	6.08.160
			9	6.08.170
			10	6.08.180
			11	6.08.190
			12	6.08.200
			13	6.08.220
			14	6.08.270
6433	7-1-2015	Sewers	1	14.04.110
6434	7-15-2015	(Not codified)		
6435	7-15-2015	(Not codified)		
6436	7-15-2015	State misdemeanors	1	10.02.010

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6437	8-5-2015	Processing and disposition of parking violations	1	11.10.010
			2	11.10.030(A)
			3	11.10.070(B)
			4 Rpld	11.10.080, 11.10.090
			5 Added	11.10.080—11.10.120
			6	11.10.130(A)
			7	11.10.140
			8 Rpld	11.10.150—11.10.180
			9	11.10.240
			10	11.52.130(A)
			11	11.52.240
6438	8-5-2015	(Not codified)		
6439	8-5-2015	(Not codified)		
6440	8-5-2015	Pistols and other weapons conforming to state law	1 Rpld	10.66.010—10.66.150,
				10.68.010—10.68.030,
				10.70.010—10.70.030
6441	8-19-2015	(Not codified)		
6442	8-19-2015	(Not codified)		
6443	8-19-2015	(Not codified)		
6444	8-19-2015	(Not codified)		
6445	8-19-2015	Payment of alternate municipal judges	1	2.26.040
6446	8-19-2015	(Not codified)		
6447	8-19-2015	(Not codified)		
6448	8-19-2015	(Not codified)		
6449	9-2-2015	(Not codified)		
6450	9-2-2015	(Not codified)		
6451	9-2-2015	(Not codified)		
6452	9-2-2015	(Not codified)		
6453	9-2-2015	(Not codified)		
6454	9-2-2015	(Not codified)		
6455	9-2-2015	(Not codified)		
6456	9-2-2015	(Not codified)		
6457	9-2-2015	(Not codified)		
6458	9-2-2015	(Not codified)		
6459	9-2-2015	(Not codified)		
6460	9-2-2015	(Not codified)		
6461	9-2-2015	(Not codified)		
6462	9-16-2015	City's pedestrian mall	1	11.68.010
			2	11.68.020
			3	11.68.070
			4	11.68.090

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			5	11.68.100
			6	11.68.103
			7	11.68.105
			8	11.68.107
			9 Added	11.68.108
			10	11.68.110
			11	11.68.130
			12	11.68.140
			13 Added	11.68.115
6463	9-16-2015	Authority and jurisdiction of the city marshal	1	2.28.080
6464	10-7-2015	(Not codified)		
6465	10-7-2015	(Not codified)		
6466	10-7-2015	Professional promoters establishing a procedure for the issuance of multi-vendor permits for temporary events at certain types of locations	1	6.78.010
			2 Added	6.78.037
			3	6.80A.030
6467	10-7-2015	(Not codified)		
6468	10-7-2015	Alcoholic beverage regulations repealing provisions pertaining to advertising at certain types of establishments located adjacent to or upon a pedestrian mall	1	6.50.475
			2	10.76.030
6469	10-21-2015	(Not codified)		
6470	10-21-2015	(Not codified)		
6471	10-21-2015	(Not codified)		
6472	10-21-2015	(Not codified)		
6473	10-21-2015	(Not codified)		
6474	10-21-2015	(Not codified)		
6475	10-21-2015	(Not codified)		
6476	10-21-2015	(Not codified)		
6477	11-4-2015	(Not codified)		
6478	11-4-2015	Special event producers or promoters	1	6.78.010
			2	6.78.037
6479	11-18-2015	(Not codified)		
6480	11-18-2015	(Not codified)		
6481	11-18-2015	(Not codified)		
6482	11-18-2015	(Not codified)		
6483	11-18-2015	(Not codified)		
6484	12-2-2015	(Not codified)		
6485	12-2-2015	(Not codified)		
6486	12-16-2015	(Not codified)		
6487	12-16-2015	(Not codified)		
6488	12-16-2015	(Not codified)		

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6489	12-16-2015	Department of youth development and social innovation	1	2.09.010
6490	12-16-2015	Community cats	1 Rpld	7.04.155, 7.04.253, 7.04.255, 7.04.256, 7.04.400, 7.04.425
			2 Added	7.04.183, 7.04.185, 7.04.187
			3	7.04.325
			4	7.04.330
			5	7.04.435
			6	7.04.500
			7	7.20.035
			8	7.20.080
			9	7.22.010
			10	7.22.020
			11	7.22.030—7.22.070
			12 Added	7.22.030—7.22.060
			13	7.32.010
			14	7.36.030
6491	1-6-2016	Disposing of dogs, cats or potbellied pigs	1 Added	7.40.315
6492	1-6-2016	(Not codified)		
6493	1-6-2016	(Not codified)		
6494	1-20-2016	Establishes a business license fee for transportation network companies	1	6.02.115
			2	6.04.030
6495	1-20-2016	(Not codified)		
6496	1-20-2016	(Not codified)		
6497	1-20-2016	(Not codified)		
6498	1-20-2016	(Not codified)		
6499	1-20-2016	(Not codified)		
6500	1-20-2016	(Not codified)		
6501	2-3-2016	(Not codified)		
6502	2-3-2016	(Not codified)		
6503	2-3-2016	(Not codified)		
6504	2-3-2016	(Not codified)		
6505	2-3-2016	Liquor control	9	6.50.020
			10	6.50.050
			11	6.50.100
			12	6.50.170
6506	2-3-2016	(Not codified)		
6507	2-7-2016	Interference with peace officers	1 Rpld	10.04.010
6508	2-7-2016	(Not codified)		

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6509	2-7-2016	(Not codified)		
6510	2-7-2016	(Not codified)		
6511	3-2-2016	(Not codified)		
6512	3-16-2016	(Not codified)		
6513	3-16-2016	(Not codified)		
6514	3-16-2016	(Not codified)		
6515	3-16-2016	(Not codified)		
6516	3-16-2016	(Not codified)		
6517	3-16-2016	(Not codified)		
6518	4-6-2016	Changes the name of department of detention and enforcement to the department of public safety	1	2.09.010
			2	2.28.020
			3	2.28.030
			4	2.28.100(A)
			5	6.75.120
			6	7.04.060
			7	7.04.070
			8	7.08.010
			9	7.14.050(A)
			10	7.44.070
			11	7.44.080
			12	7.44.090(B)
			13	9.04.080(D)
			14	10.78.040(A)(2)
			15	10.78.050(B)
			16	11.04.070
			17	11.10.200(A)
			18	11.24.030
			19	11.52.335(C)
			20	12.02.010
			21	13.04.070(B)
			22	13.36.090(E)(2)
6519	4-6-2016	(Not codified)		
6520	4-6-2016	Medical marijuana establishments	1	6.95.030
			2 Added	6.95.040(C)
			3	6.95.060
			4	6.95.090
			5	6.95.100
			6	6.95.110
			7	6.95.160
			8	6.95.170(D)
			9	6.95.230
			10	6.02.250(A)
6521	4-20-2016	(Not codified)		
6522	4-20-2016	Farmers' markets	1	6.90.040

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			2 Rpld	6.90.050
			3	6.90.060
			4	6.90.080
			5	6.90.120(E)
			6	6.90.140
6523	5-4-2016	(Not codified)		
6524	5-4-2016	Flood control master plan and flood hazard reduction	1	20.04.010
			2	20.04.020
			3	20.04.030
			4	20.04.040
			5	20.04.050
			6	20.04.060
			7	20.08.010
			8	20.08.050
			9	20.08.070
			10	20.08.130
			11	20.08.210
			12	20.08.230
			13	20.08.270
			14	20.08.290
			15	20.08.370
			16	20.08.410
			17	20.08.420
			18	20.08.430
			19 Added	20.08.445
			20 Rpld	20.08.120, 20.08.170, 20.08.180, 20.08.320
6525	5-18-2016	(Not codified)		
6526	5-18-2016	(Not codified)		
6527	5-18-2016	(Not codified)		
6528	5-18-2016	(Not codified)		
6529	5-18-2016	(Not codified)		
6530	6-1-2016	(Not codified)		
6531	6-1-2016	(Not codified)		
6532	6-1-2016	(Not codified)		
6533	6-1-2016	(Not codified)		
6534	6-15-2016	Parking or nonmoving violations	1 Added	11.10.150
6535	6-15-2016	(Not codified)		
6536	6-15-2016	(Not codified)		
6537	6-15-2016	(Not codified)		
6538	6-15-2016	(Not codified)		
6539	6-15-2016	(Not codified)		
6540	7-20-2016	(Not codified)		
6541	7-20-2016	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6542	7-20-2016	(Not codified)		
6543	7-20-2016	(Not codified)		
6544	7-20-2016	(Not codified)		
6545	8-3-2016	(Not codified)		
6546	8-17-2016	(Not codified)		
6547	8-17-2016	Secondhand dealers	1	6.74.020
			2	6.74.040
			3 Added	6.74.200
6548	9-7-2016	(Not codified)		
6549	9-21-2016	(Not codified)		
6550	9-21-2016	(Not codified)		
6551	10-5-2016	(Not codified)		
6552	10-5-2016	(Not codified)		
6553	10-19-2016	Wild and farm animals	1	7.38.041
			2	7.38.042
			3	7.38.043
6554	10-19-2016	(Not codified)		
6555	11-2-2016	Pedicabs and pedalbuses	1 Added	6.63.010—6.63.140
			2 Added	11.02.032
			3	11.39.010
			4	11.39.020
			5	11.39.040
			6	11.39.040
			7	11.39.050
			8 Added	11.39.055
			9	11.39.060
			10	11.40.010
6556	11-2-2016	(Not codified)		
6557	11-16-2016	(Not codified)		
6558	11-16-2016	(Not codified)		
6559	11-16-2016	(Not codified)		
6560	11-16-2016	(Not codified)		
6561	12-21-2016	Sewers	1	14.04.110
6562	1-4-2017	(Not codified)		
6563	1-4-2017	(Not codified)		
6564	1-4-2017	Ward boundaries	1	1.16.020
			2	1.16.040
			3	1.16.050
			4	1.16.070
6565	1-4-2017	Business license fees applicable to transportation network companies	1	6.04.030
			2 Added	6.04.155
			3	6.02.115
6566	1-4-2017	Convention authority room tax and gaming tax	1	4.20.030
6567	1-18-2017	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6568	2-1-2017	(Not codified)		
6569	2-15-2017	(Not codified)		
6570	3-15-2017	Odor nuisances	1	9.04.010
			2 Added	9.40.010—9.40.040
6571	3-15-2017	(Not codified)		
6572	4-5-2017	Collection and management of solid waste and recyclable material	1 Rpld	9.08.010—9.08.340
			2 Added	9.08.010—9.08.320
6573	4-5-2017	(Not codified)		
6574	4-19-2017	Stopping, standing or parking	1	11.52.305
6575	4-19-2017	(Not codified)		
6576	5-3-2017	(Not codified)		
6577	5-3-2017	(Not codified)		
6578	5-3-2017	(Not codified)		
6579	5-17-2017	Medical marijuana establishments	1	6.95.020
			2	6.95.030
			3	6.95.050
			4	6.95.060
			5	6.95.070
			6	6.95.090
			7 Added	6.95.095
			8	6.95.100
			9	6.95.110
			10	6.95.120
			11	6.95.130
			12	6.95.150
			13	6.95.160
			14	6.95.170
			15	6.95.190
			16	6.95.230
6580	5-17-2017	(Not codified)		
6581	5-17-2017	(Not codified)		
6582	6-7-2017	Water use and water conservation	1	14.08.140
			2	14.10.030
			3	14.11.010
			4	14.11.090
			5	14.11.190
			6 Rpld	14.10.040
			7 Rpld	14.11.030
6583	6-7-2017	Stormwater and stormwater management	1	14.18.010
			2	14.18.020
			3	14.18.030
			4	14.18.050
			5	14.18.060

Ordinance Number	Date	Description	Section	Section this Code
			6	14.18.070
			7	14.18.080
			8	14.18.090
			9	14.18.100
			10	14.18.120
			11	14.18.130
			12	14.18.140
			13	14.18.180
			14	14.18.200
			15	14.18.250
			16	14.18.260
6584	6-7-2017	(Not codified)		
6585	6-21-2017	Licensing and zoning regulations	1	6.46.020
			2	6.46.140
			3	6.75.010
			4	6.75.020
			5	6.75.040
			6	6.75.080
			7	6.75.090
			8	6.75.110
6586	6-21-2017	Registration and Maintenance Program for Vacant Properties	1	16.33.020
			2	16.33.030
			3	16.33.040
			4	16.33.070
			5 Added	16.33.100
6587	6-21-2017	(Not codified)		
6588	6-21-2017	(Not codified)		
6589	6-21-2017	(Not codified)		
6590	6-21-2017	(Not codified)		
6591	6-21-2017	(Not codified)		
6592	7-19-2017	State misdemeanors	1	10.02.010
6593	8-16-2017	Licensing of bookstores and adult emporiums	3	1.28.010
			4	6.06A.010
			5	6.06A.015
			6	6.06A.025
			7	6.06A.030
			8	6.06A.040
			9	6.35.070
6594	8-16-2017	Business licensing generally	1	6.02.070
			2	6.02.090
			3	6.02.330
			4	6.02.370
			5 Rpld	6.50.530
6595	9-6-2017	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6596	9-6-2017	(Not codified)		
6597	9-6-2017	(Not codified)		
6598	10-18-2017	Potbellied pigs	1	7.38.043
6599	11-1-2017	Smoking lounges and smoke shops	1	6.82.010
			2	6.82.020
			3	6.82.030
			4	6.82.040
			5	6.82.060
			6	6.82.080
			7	6.82.090
			8	6.82.100
			9	10.92.010
6600	11-1-2017	Short-term residential rentals	1	6.75.010
			2 Added	6.75.130—6.75.150
6601	11-1-2017	(Not codified)		
6602	11-15-2017	Liquor control	3	6.50.020
			4	6.50.060
6603	11-15-2017	Professional animal handlers	1 Rpld	7.40.315
6604	11-15-2017	Public officials	1	2.51.020
6605	12-6-2017	(Not codified)		Omit
6606	12-6-2017	(Not codified)		Omit
6607	12-6-2017	Definition of convenience store	3	6.50.020
6608	12-6-2017	Changes the name of the downtown centennial plan overlay district makes corresponding changes regarding references to the downtown centennial plan	16	6.50.020
			17	6.50.250
			18	6.50.255
			19	11.53.010
6609	2-21-18	Automatic sprinkler systems	1 Added	16.17.010
6610	2-21-18	(Not codified)		
6611	2-21-18	Liquor control	1	6.50.085
6612	2-21-18	Liquor control	5 Added	6.50.090
			6	6.50.360
6613	3-21-18	Wild and farm animals	5	7.38.050
6614	4-4-18	(Not codified)		
6615	5-2-18	(Not codified)		
6616	5-2-18	(Not codified)		
6617	5-16-18	(Not codified)		
6618	5-16-18	(Not codified)		
6619	5-16-18	(Not codified)		
6620	5-16-18	Marijuana related establishments	1	6.95.010
			2	6.95.020
			3	6.95.030
			4	6.95.040
			5	6.95.050

Ordinance Number	Date	Description	Section	Section this Code
			6	6.95.060
			7	6.95.070
			8	6.95.080
			9	6.95.090
			10	6.95.095
			11 Added	6.95.097
			12	6.95.100
			13	6.95.110
			14	6.95.120
			15	6.95.130
			16	6.95.140
			17	6.95.150
			18	6.95.160
			19 Rpld	6.95.170
			20	6.95.180
			21	6.95.190
			22 Added	6.95.195
			23	6.95.200
			24	6.95.210
			25	6.95.220
			26 Rpld	6.95.230
			27 Added	6.95.230
			28	6.95.240
			29	6.95.250
			30 Added	6.95.260—6.95.300
			31	6.02.010
			32	6.02.250
6621	5-16-18	Nightclubs and restaurants with alcohol	1	6.39.010
			2	6.39.020
			3	6.39.030
			4	6.39.050
			5	6.50.220
6622	6-20-18	(Not codified)		
6623	6-20-18	Pet sales	1 Added	6.98.010—6.98.040
			2	7.04.120
			3	7.04.350
			4 Added	7.42.010—7.42.090
			5	7.44.110
6624	6-20-18	Spaying/neutering of animals	1	7.14.010
			2	7.14.020
			3	7.14.030
			4	7.14.040
			5	7.14.050

Ordinance Number	Date	Description	Section	Section this Code
			6	7.14.070
			7 Added	7.14.080
6625	7-18-18	Alcoholic beverage sales	1	6.50.020
			2	6.50.250
			3	6.50.280
6626	7-18-18	(Not codified)		
6627	8-1-18	Electronic security services	1	6.18.010
			2 Added	6.18.015
			3	6.18.020
			4	6.18.030
			5 Added	6.18.040
			6	6.18.050
			7	6.18.060
			8	6.18.070
			9	6.18.080
			10	6.18.100
			11	6.18.110
			12 Rpld	6.18.090, 6.18.120, 6.18.130
			13	6.06.080
6628	8-15-18	(Not codified)		
6629	8-15-18	Enforcement of non-metered paid vehicle parking in city-owned or city-leased parking lots	1	11.52.310
			2	11.52.320
			3 Added	11.10.160
			4	11.02.150
6630	8-15-18	(Not codified)		
6631	8-15-18	Fire Code	1	16.16.010
6632	8-15-18	Building code	1	16.04.010
6633	8-15-18	Building code	1	16.04.010
6634	8-15-18	Existing building code	1	16.06.010
6635	8-15-18	Energy conservation code	1	16.52.010
6636	8-15-18	Swimming pool and spa code	1	16.30.010
6637	8-15-18	Mechanical code	1	16.24.010
6638	8-15-18	Plumbing code	1	16.28.010
6639	8-15-18	Electrical code	1	16.12.010
6640	8-15-18	Planning commission	1 Added	2.44.050
6641	9-5-18	Obstructions	1	13.32.020
6642	10-3-18	(Not codified)		
6643	10-3-18	(Not codified)		
6644	10-3-18	Possession of certain items at public protests, demonstrations, rallies, picket lines and public assemblies	1 Added	10.88.010
6645	10-3-18	Parking or nonmoving violations	1 Added	11.10.290
6646	10-17-18	Feeding of wild pigeons	1 Added	7.04.510

Ordinance Number	Date	Description	Section	Section this Code
			2 Added	7.38.055
6647	10-17-18	(Not codified)		
6648	10-17-18	Outdoor speakers and other amplification devices within the downtown entertainment overlay district	1	6.39.050
			2	9.16.040
6649	10-17-18	(Not codified)		
6650	11-7-18	(Not codified)		
6651	11-7-18	(Not codified)		
6652	11-7-18	(Not codified)		
6653	11-7-18	(Not codified)		
6654	11-21-18	Medical/retail marijuana operations	1	6.95.160
6655	11-21-18	(Not codified)		
6656	11-21-18	(Not codified)		
6657	11-21-18	Sale, display and consumption of alcoholic beverages, and the possession of open containers, within the Downtown Entertainment Overlay District	1	6.50.470
			2	6.50.475
			3 Added	6.50.477
			4	10.76.010
			5	10.76.030
			6	10.77.030
6658	11-21-18	(Not codified)		
6659	11-21-18	(Not codified)		
6660	12-5-18	(Not codified)		
6661	12-5-18	(Not codified)		
6662	12-5-18	(Not codified)		
6663	12-5-18	(Not codified)		
6664	12-19-18	(Not codified)		
6665	1-16-19	(Not codified)		
6666	1-16-19	(Not codified)		
6667	1-16-19	(Not codified)		
6668	1-16-19	Wards	1	1.16.050
			2	1.16.070
6669	1-16-19	(Not codified)		
6670	1-16-19	(Not codified)		
6671	2-6-19	(Not codified)		
6672	2-6-19	(Not codified)		
6673	2-6-19	(Not codified)		
6674	2-6-19	Gaming; liquor control	1	6.40.155
			2	6.50.150
6675	2-20-19	(Not codified)		
6676	3-6-19	(Not codified)		
6677	3-6-19	(Not codified)		
6678	4-3-19	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6679	4-3-19	(Not codified)		
6680	4-3-19	(Not codified)		
6681	4-3-19	Liquor control	1	6.50.050
			2	6.50.085
6682	4-3-19	Liquor control	1	6.50.080
			2 Added	6.50.253
			3	6.50.360
			4	6.50.380
			5	6.50.520
			6	6.40.155
6683	4-17-19	Records management	1	2.60.070
6684	5-1-19	Social use venues (marijuana)	1 Added	6.96.010—6.96.100
			2	6.86.050
6685	5-1-19	(Not codified)		
6686	5-1-19	(Not codified)		
6687	5-15-19	(Not codified)		
6688	5-15-19	(Not codified)		
6689	6-5-19	(Not codified)		
6690	6-19-19	Fireworks violations	1	16.16.030
			2 Added	9.28.120
6691	6-19-19	Slot machines	1	6.40.150
6692	6-19-19	State law misdemeanors	1	10.02.010
6693	7-3-19	(Not codified)		
6694	7-17-19	Retrieving shop carts and laundry carts	1	9.38.010
			2 Added	9.38.130
6695	7-17-19	Attaching of certain items to trees, poles, structures, amenities, walls and fences within or near public rights-of-way	1 Added	10.48.023, 10.48.025, 10.48.027, 10.48.029
6696	7-17-19	Removal and disposition of signs and attention gaining devices	1 Added	13.60.010, 13.60.020
6697	8-7-19	(Not codified)		
6698	8-7-19	(Not codified)		
6699	8-7-19	(Not codified)		
6700	9-4-19	(Not codified)		
6701	9-18-19	Nightclubs and establishments with a tavern-limited alcoholic beverage license	1	6.39.010
			2	6.39.020
			3	6.50.250
6702	10-2-19	(Not codified)		
6703	10-2-19	Non-moving (parking) violations	1	11.02.050
			2 Added	11.02.085
			3	11.10.010
			4	11.10.140
			5 Added	11.10.245
			6	11.10.290

Ordinance Number	Date	Description	Section	Section this Code
			7	11.24.010
			8	11.44.020
			9	11.52.310
			10	11.52.315
			11	11.52.320
			12	11.52.330
			13	11.52.340
			14	11.54.100
			15	11.54.110
			16	10.78.050
6704	10-2-19	Expressive activity within the pedestrian	1	11.68.105
6705	10-16-19	(Not codified)		
6706	10-16-19	Battery which constitutes domestic violence	1 Added	10.32.010, 10.32.020
6707	10-16-19	(Not codified)		
6708	11-6-19	(Not codified)		
6709	11-6-19	(Not codified)		
6710	11-6-19	Camping, lodging, and similar activities within public right-of-way at specified locations	1	10.86.010—10.86.040
6711	11-6-19	(Not codified)		
6712	11-6-19	(Not codified)		
6713	11-6-19	(Not codified)		
6714	11-6-19	(Not codified)		
6715	11-6-19	(Not codified)		
6716	11-20-19	Certain weapons—toy/replica firearms prohibited	1 Added	10.73.010, 10.73.020
6717	12-18-19	Liquor control	1	6.50.410
			2	6.50.440
6718	12-18-19	(Not codified)		
6719	1-15-20	Cleaning of public sidewalks—hours	1 Added	13.04.090
6720	1-15-20	(Not codified)		
6721	1-15-20	(Not codified)		
6722	1-15-20	(Not codified)		
6723	2-5-20	Pawnbrokers	1	6.60.040
			2 Rpld	6.60.050, 6.60.060
			3 Added	6.60.050, 6.60.060, 6.60.065
6724	2-5-20	(Not codified)		
6725	2-19-20	(Not codified)		
6726	2-19-20	(Not codified)		
6727	3-18-20	Liquor control	1	6.50.430
			2	6.50.435
6728	3-18-20	(Not codified)		
6729	3-18-20	Liquor control	1	6.50.250

Ordinance Number	Date	Description	Section	Section this Code
6730	4-15-20	(Not codified)		
6731	4-15-20	(Not codified)		
6732	4-15-20	(Not codified)		
6733	4-15-20	(Not codified)		
6734	4-15-20	(Not codified)		
6735	5-6-20	Liquor control	1 Added	6.50.075
			2	6.50.360
6736	5-6-20	(Not codified)		
6737	5-20-20	(Not codified)		
6738	5-20-20	(Not codified)		
6739	6-3-20	(Not codified)		
6740	6-3-20	Permissable locations for secondhand dealers	1	6.74.050
6741	6-17-20	Crime of battery which constitutes domestic violence	1	10.32.020
6742	7-8-20	Smoking lounges	1	6.82.060
6743	7-22-20	(Not codified)		
6744	8-5-20	(Not codified)		
6745	8-19-20	(Not codified)		
6746	8-19-20	Liquor control	1	6.50.020
			2 Rpld	6.50.352
			3 Added	6.50.352
6747	9-2-20	(Not codified)		
6748	9-2-20	(Not codified)		
6749	9-2-20	(Not codified)		
6750	9-16-20	Licensing and zoning provisions regarding cannabis-related businesses	1	6.95.010
			2 Rpld	6.95.020
			3 Added	6.95.020
			4	6.95.030
			5 Rpld	6.95.040—6.95.080
			6 Added	6.95.060
			7 Added	6.95.070
			8	6.95.090
			9	6.95.095
			10	6.95.097
			11	6.95.100
			12	6.95.110
			13	6.95.120
			14	6.95.130
			15	6.95.140
			16	6.95.150
			17	6.95.160
			18	6.95.180
			19	6.95.190
			20	6.95.195

Ordinance Number	Date	Description	Section	Section this Code
			21	6.95.200
			22	6.95.210
			23	6.95.220
			24	6.95.230
			25	6.95.240
			26	6.95.250
			27	6.95.260
			28	6.95.270
			29	6.95.280
			30	6.95.290
			31	6.95.300
			32	6.02.250
			33	6.06.080
			34	6.82.010
			35	6.82.020
			36	6.82.030
			37	6.82.040
			38	6.82.060
			39	6.82.080
			40	6.82.090
			41	6.82.100
			42	6.86.050
6751	9-16-20	(Not codified)		
6752	9-16-20	(Not codified)		
6753	10-7-20	(Not codified)		
6754	11-4-20	(Not codified)		
6755	11-4-20	Parks and other recreational and cultural facilities	1	13.36.030
			2 Added	13.36.125
6756	11-4-20	(Not codified)		
6757	11-4-20	(Not codified)		
6758	11-4-20	(Not codified)		
6759	12-2-20	(Not codified)		
6760	12-16-20	Reflexology	1 Added	6.69.005
			2	6.69.010
			3	6.69.030
			4	6.69.040
			5	6.69.050
			6	6.69.060
			7	6.69.070
			8	6.69.080
			9	6.69.090
			10	6.69.110
			11	6.69.120
			12 Rpld	6.69.100, 6.69.130, 6.69.140

Ordinance Number	Date	Description	Section	Section this Code
6761	12-16-20	Massage establishments and independent massage therapists	1	6.52.010
			2	6.52.020
			3	6.52.050
			4	6.52.080
			5	6.52.160
			6	6.52.180
6762	12-16-20	Ambulances	1	6.08.020
			2	6.08.040
			3	6.08.050
			4	6.08.100
			5	6.08.125
			6	6.08.130
			7	6.08.150
			8	6.08.190
			9	6.08.280
			10	6.08.290
			11	6.08.330
			12 Added	6.08.335
6763	1-20-21	Liquor control	1 Added	6.50.095
			2	6.50.100
			3	6.50.360
			4	6.50.380
			5	6.50.450
6764	2-3-21	(Not codified)		
6765	2-3-21	(Not codified)		
6766	2-3-21	(Not codified)		
6767	2-3-21	(Not codified)		
6768	2-3-21	(Not codified)		
6769	2-3-21	Administrative code	1	16.02.010
6770	2-17-21	(Not codified)		
6771	3-3-21	(Not codified)		
6772	4-7-21	(Not codified)		
6773	4-7-21	(Not codified)		
6774	4-21-21	(Not codified)		
6775	4-21-21	(Not codified)		
6776	4-21-21	Non-transient lodging properties	1 Added	16.22.010—16.22.060
			2	6.02.020
			3	6.09.010
			4	6.09.015
			5 Added	6.09.060
			6	6.46.010
			7	6.46.020
			8 Added	6.46.155
			9	6.86.050

Ordinance Number	Date	Description	Section	Section this Code
6777	5-5-21	Animal cruelty	1	7.32.130
			2	7.32.160
			3	7.36.050
			4	7.44.040
6778	5-5-21	(Not codified)		
6779	5-19-21	(Not codified)		
6780	5-19-21	(Not codified)		
6781	5-19-21	(Not codified)		
6782	6-16-21	(Not codified)		
6783	6-16-21	(Not codified)		
6784	6-16-21	Liquor control	1	6.50.100
6785	7-7-21	Nuisances	1	9.04.100
6786	7-7-21	State misdemeanors	1	10.02.010
6787	7-7-21	Business taxes, licenses and regulations	1	6.39.030
			2	6.50.020
			3	6.50.060
			4 Added	6.32.010—6.32.050
6788	7-21-21	(Not codified)		
6789	7-21-21	Municipal court	1 Added	2.26.045
6790	7-21-21	(Not codified)		
6791	7-21-21	(Not codified)		
6792	7-21-21	(Not codified)		
6793	8-4-21	(Not codified)		
6794	8-18-21	(Not codified)		
6795	8-18-21	(Not codified)		
6796	10-20-21	(Not codified)		
6797	11-3-21	(Not codified)		
6798	11-17-21	Abatement of public nuisances; dangerous buildings code	1	9.04.010
			2	16.08.010
			3 Added	16.08.020
6799	12-1-21	(Not codified)		
6800	12-1-21	Wards	1	1.16.020
			2	1.16.030
			3	1.16.040
			4	1.16.050
			5	1.16.060
			6	1.16.070
6801	12-15-21	(Not codified)		
6802	1-5-22	(Not codified)		
6803	1-19-22	Pedicabs and pedalbuses	1	6.63.010
			2	6.63.050
			3	6.63.090
			4	6.63.100
			5	11.39.020

Ordinance Number	Date	Description	Section	Section this Code
			6	11.39.060
			7 Added	11.39.080
6804	2-2-22	Number of dogs, cats, ferrets or rabbits that can be kept at a particular place or residence without a specific permit	1	7.08.140
			2	7.08.160
			3	7.08.185
			4	7.38.060
6805	3-16-22	(Not codified)		
6806	4-6-22	Alcoholic beverages	1 Rpld	6.50.040, 6.50.120, 6.50.150, 6.50.175, 6.50.180, 6.50.190, 6.50.210, 6.50.220, 6.50.240, 6.50.250, 6.50.253, 6.50.255, 6.50.265, 6.50.355, 6.50.360, 6.50.380, 6.50.520
			2	6.50.020
			3	6.50.025
			3.5	6.50.030
			4	6.50.050
			5	6.50.060
			6	6.50.075
			7	6.50.080
			8	6.50.085
			9	6.50.090
			10	6.50.100
			11	6.50.145
			12	6.50.170
			13	6.50.200
			14	6.50.205
			16	6.50.260
			17	6.50.280
			18	6.50.285
			19	6.50.310
			20	6.50.350
			21	6.50.352
			22 Added	6.50.360
			23 Added	6.50.363
			24 Added	6.50.365
			25	6.50.390
			26	6.50.400
			27 Added	6.50.405

Ordinance Number	Date	Description	Section	Section this Code
			28	6.50.430
			29	6.50.435
			30	6.50.440
			31	6.50.450
			32	6.50.455
			33	6.50.470
			34	6.50.475
			35	6.50.477
			36	6.50.490
			37	6.50.500
			38	6.50.520
			39	6.02.035
			40	6.02.080
			41	6.02.110
			42	6.02.145
			43	6.06.010
			44	6.06.020
			45 Added	6.06.075
			46	6.06.130
			47	6.32.020
			48	6.35.100
			49	6.39.010
			50	6.39.020
			51	6.40.140
			52	6.40.155
			53	10.76.010
			54	10.76.020
			55	10.77.020
			56	10.77.030
			57	11.68.110
			58	12.02.200
6807	4-20-22	Work cards	1	6.86.150
6808	5-4-22	Wards	1 Rpld	1.16.020—1.16.070
			2 Added	1.16.020—1.16.070
6809	5-4-22	(Not codified)		
6810	5-18-22	(Not codified)		
6811	5-18-22	(Not codified)		
6812	5-18-22	Department of fire and rescue	1 Added	2.20.060
6813	5-18-22	(Not codified)		
6814	5-18-22	(Not codified)		
6815	8-17-22	Short-term residential rentals	1	6.75.010
			2	6.75.020
			3	6.75.030
			4	6.75.060

Ordinance Number	Date	Description	Section	Section this Code
			5	6.75.090
			6 Added	6.75.122, 6.75.124, 6.75.126, 6.75.128
			7	6.75.130
			8	6.75.140
			9	6.02.460
			10	4.20.010
			11	4.20.020
			12 Rpld	4.20.037
			13	4.20.040
			14	4.20.050
			15	4.20.060
			16	4.20.070
			17	4.20.100
			18	4.20.140
			19	4.20.150
			20	4.20.160
			21 Rpld	Ch. 4.20, Apps. A, B
6816	8-17-22	Renaming and duties of debarments and divisions	1	2.09.010
			2 Rpld	2.09.015
			3	2.09.020
			4	2.42.030
			5	2.44.030
			6	2.46.030
			7	2.48.010
			8	4.08.010
			9	4.12.150
			10	4.24.080
			11	6.02.010
			12	6.06B.030
			13	6.20.200
			14	6.26.030
			15	6.40.110
			16	6.58.040
			17	6.58.070
			18	6.70.030
			19	6.71.040
			20	6.78.037
			21	6.80.090
			22	6.80A.100
			23	6.81.060
			24	6.81.070
			25	6.84.060
			26	6.90.110

Ordinance Number	Date	Description	Section	Section this Code
			27	6.95.020
			28	6.95.070
			29	6.98.030
			30	7.04.050
			31	7.04.060
			32	7.04.250
			33	7.04.295
			34	7.04.300
			35	7.08.040
			36	7.08.050
			37	7.08.070
			38	7.08.180
			39	7.16.030
			40	7.20.010
			41	7.20.020
			42	7.20.035
			43	7.20.040
			44	7.20.050
			45	7.20.060
			46	7.20.070
			47	7.20.080
			48	7.20.100
			49	7.20.110
			50	7.20.120
			51	7.22.020
			52	7.22.040
			53	7.22.050
			54	7.24.020
			55	7.24.030
			56	7.24.040
			57	7.24.050
			58	7.24.060
			59	7.24.070
			60	7.24.090
			61	7.24.110
			62	7.28.030
			63	7.32.020
			64	7.32.080
			65	7.32.090
			66	7.32.100
			67	7.32.160
			68	7.32.180
			69	7.32.250
			70	7.32.270
			71	7.32.290
			72	7.38.010

Ordinance Number	Date	Description	Section	Section this Code
			73	7.38.050
			74	7.38.080
			75	7.40.010
			76	7.40.030
			77	7.40.060
			78	7.40.090
			79	7.40.110
			80	7.42.010
			81	7.42.080
			82	7.44.040
			83	7.44.050
			84	9.04.020
			85	9.04.080
			86	9.08.050
			87	9.12.080
			88	9.12.100
			89	9.16.030
			90	9.24.020
			91	9.24.030
			92	9.28.080
			93	9.28.100
			94	9.28.110
			95	9.28.112
			96	9.36.060
			97	9.36.070
			98	9.36.080
			99	9.36.090
			100	9.36.100
			101	9.36.110
			102	9.36.120
			103	9.36.130
			104	9.36.140
			105	9.36.150
			106	9.36.160
			107	9.40.040
			108	10.10.010
			109	10.12.010
			110	10.78.040
			110.5	10.86.040
			111	11.22.160
			112	11.48.100
			113	11.52.335
			114	11.58.010
			115	11.58.020
			116	11.58.040
			117	11.58.050

Ordinance Number	Date	Description	Section	Section this Code
			118	11.58.060
			119	11.58.070
			120	11.58.090
			121	11.58.100
			122	12.02.100
			123	12.02.230
			124	13.04.090
			125	13.32.020
			126	13.36.010
			127	13.52.020
			128	13.52.110
			129	13.52.130
			130	13.56.060
			131	13.56.080
			132	13.56.090
			133	13.56.100
			134	13.56.120
			135	13.56.130
			136	13.56.140
			137	14.04.200
			138	14.04.210
			139	14.04.290
			140	16.04.020
			141	16.18.030
			142	16.33.030
			143	16.33.070
			144	16.33.080
			145	16.33.100
6817	8-17-22	International Wildland-Urban Interface Code	1 Added	16.50.010
6818	9-7-22	(Not codified)		
6819	9-7-22	Sewers	1 Rpld	14.04.030, 14.04.210
			2 Added	14.04.030
			3 Added	14.04.210
6820	9-21-22	Building Code	1	16.04.010
6821	9-21-22	International Fire Code	1	16.16.010
6822	10-19-22	(Not codified)		
6823	11-16-22	Traffic-related violations treated as civil infractions	1 Added	10.02.020
6824	1-4-23	Number of dogs and cats to which dog fancier, cat fancier and pet fancier permits apply	1	7.04.140
			2	7.04.230
			3	7.04.345
			4	7.08.140
			5	7.08.150
			6	7.08.160

Ordinance Number	Date	Description	Section	Section this Code
			7	7.08.170
			8	7.08.180
6825	1-4-23	(Not codified)		
6826	1-18-23	(Not codified)		
6827	1-18-23	(Not codified)		
6828	1-18-23	(Not codified)		
6829	2-1-23	Parking	1	11.10.150
			2 Added	11.10.170
			3	11.10.280
			4	11.52.070
			5 Added	11.52.150
			6 Added	11.52.325
			7	11.52.330
			8	11.54.090
			9	11.60.020
6830	2-15-23	(Not codified)		
6831	3-1-23	Cannabis operations	1	6.95.020
			2	6.95.060
			3	6.95.070
			4	6.95.090
			5	6.95.097
			6	6.95.100
			7	6.95.110
			8	6.95.120
			9	6.95.160
			10 Added	6.95.165
			10.5 Added	6.95.170
			11	6.95.190
			12	6.95.195
			13	6.95.220
			14	6.95.230
			15 Rpld	6.95.260—6.95.300
			16	6.02.361
			17	6.02.460
			18 Rpld	6.96.010—6.96.100
			18.5	9.40.040
6832	3-1-23	Boards and commission	1	2.52.010
			2 Rpld	2.52.020, 2.52.030
			3	2.34.060
			4	2.42.020
			5	2.42.080
			6	2.46.020
			7	2.48.030
			8	3.04.020

Ordinance Number	Date	Description	Section	Section this Code
6833	3-15-23	(Not codified)		
6834	4-5-23	Professional animal handlers	1	7.40.110
			2 Added	7.40.175
6835	4-5-23	(Not codified)		
6836	4-19-23	Planning commission	1 Rpld	2.44.050
6837	5-17-23	(Not codified)		
6838	5-17-23	(Not codified)		
6839	6-21-23	Smoking lounges and smoke shops	1	6.82.010
			2	6.82.020
			3 Added	6.82.025
			4	6.82.030
			5	6.82.040
			6	6.82.050
			7	6.82.060
			8	6.82.070
			9 Added	6.82.075
			10	6.82.080
			11	6.82.100
6840	7-19-23	Residential construction tax	1	4.24.040
			2	4.24.050
6841	7-19-23	(Not codified)		
6842	7-19-23	State misdemeanors	1	10.02.010
6843	8-16-23	Water conservation measure	1	14.10.020
			2	14.10.030
			3	14.11.020
			4	14.11.100
			5 Rpld	14.11.120, 14.11.140, 14.11.150
			6 Added	14.11.140
			7 Rpld	14.11.190
			8 Added	14.11.190, 14.11.193, 14.11.195, 14.11.197
			9 Added	16.24.020
6844	9-20-23	(Not codified)		
6845	10-4-23	(Not codified)		
6846	10-4-23	(Not codified)		
6847	10-4-23	(Not codified)		
6848	10-18-23	(Not codified)		
6849	10-18-23	(Not codified)		
6850	10-18-23	Microchipping of dogs and cats	1 Added	7.15.010, 7.15.020
			2 Added	7.04.315
			3 Added	7.08.020
			4 Added	7.04.437

Ordinance Number	Date	Description	Section	Section this Code
			5 Rpld	7.20.105
			6	7.42.010
			7	7.42.050
6851	11-1-23	(Not codified)		
6852	11-1-23	Fines for fireworks-related violations	1	9.28.120
			2	16.16.030
6853	11-15-23	Order out corridor	1 Added	10.04.010—10.04.030
			2	10.36.010
			3	10.36.050
			4 Rpld	10.90.010, 10.90.020
6854	11-15-23	Collection and management of solid waste and recyclable materials	1	9.08.020
			2 Rpld	9.08.140—9.08.180
			3 Added	9.08.140—9.08.180
			4	9.08.145
			5 Rpld	9.08.190
			6 Added	9.08.190
			7	9.08.200
			8	9.08.210
			9	9.08.235
			10	9.08.240
6855	12-20-23	Wards	1—4	1.16.040—1.16.070
6856	1-3-24	Municipal cemetery	1 Added	14.12.010—14.12.170
6857	1-17-24	(Not codified)		
6858	2-21-24	(Not codified)		
6859	2-21-24	(Not codified)		
6860	2-21-24	(Not codified)		
6861	2-21-24	(Not codified)		
6862	2-21-24	(Not codified)		
6863	3-20-24	(Not codified)		
6864	5-15-24	(Not codified)		
6865	5-15-24	(Not codified)		
6866	5-15-24	(Not codified)		
6867	5-15-24	(Not codified)		
6868	6- 5-24	Outdoor release of balloons	1 Added	10.94.010, 10.94.020
6869	6- 5-24	(Not codified)		
6870	6- 5-24	(Not codified)		
6871	7-17-24	Multi-jurisdictional business licenses	1	6.02.060
			2	6.02.115
6872	7-17-24	(Not codified)		

Ordinance Number	Date	Description	Section	Section this Code
6873	7-17-24	Construction noise	1	9.16.030
6874	7-17-24	(Not codified)		
6875	7-17-24	(Not codified)		
6876	8-21-24	(Not codified)		
6877	9- 4-24	Purchase of scrap metal; prohibitions and limitations	1 Added	10.93.010
				10.93.030, 10.93.040
6878	9- 4-24	(Not codified)		
6879	9- 4-24	City Administrative Code; construction fees	2—10	16.02.010
			11	11.50.040
			12	13.40.050
6880	9-18-24	(Not codified)		
6881	10- 2-24	Order Out Corridor	1	10.04.010
6882	10-16-24	Sidewalk vendors	1 Added	6.96.010—6.96.120
			2	6.62.030
			3	13.32.010
			4	13.32.020
			5	13.32.040
6883	10-16-24	Railroad tracks; unauthorized entry and other activity in proximity	1 Added	10.87.010
6884	10-16-24	(Not codified)		
6885	10-16-24	(Not codified)		
6886	10-16-24	(Not codified)		
6887	10-16-24	(Not codified)		
6888	10-16-24	(Not codified)		
6889	11- 6-24	Camping, lodging and similar activities in public rights-of-way	1	10.86.010
			2	10.86.020
			3 Rpld	10.86.030, 10.86.040
6890	11- 6-24	Planning commission term limits	1	2.44.020
6891	11- 6-24	Wastewater collection, pretreatment and treatment	1 Rpld	14.17.005
				14.17.010
				14.17.020—14.17.175
				14.17.185—14.17.225
				14.17.235—17.14.300
				14.17.310—14.17.330
				14.17.340—14.17.370
			2 Added	14.17.005—14.17.100

Ordinance Number	Date	Description	Section	Section this Code
6895	1-15-25	Keeping and sale of animals	1 Added	7.42.075
			2	7.42.080
			3	7.44.040
			4	7.44.110
6896	1-15-25	Animal abandonment	1	7.44.040
			2	7.44.060
6899	4- 2-25	Youth leadership advisory council	1 Added	2.70.010—2.70.070
6900	4-16-25	(Not codified)		
6901	5- 7-25	Ambulance franchises	1	6.08.020
			2	6.08.050
			3	6.08.070
			4	6.08.080
			5	6.08.090
			6	6.08.120
			7	6.08.125
			8	6.08.130
			9	6.08.150
			10	6.08.180
			11	6.08.190
			12	6.08.200
			13	6.08.220
			14	6.08.230
			15	6.08.240
			16	6.08.250
			17	6.08.260
			18	6.08.280
			19	6.08.290
			20	6.08.300
			21	6.08.490
6902	5-21-25	Not Codified		
6903	5-21-25	Not Codified		
6904		Not Codified		
6905		Not Codified		
6906	7- 2-25	State misdemeanors	1	10.02.010
6907		Not Codified		
6908		Not Codified		
6909	7- 2-25	Not Codified		
6910	7-16-25	International Building Code	1	16.04.010
6911	7-16-25	International Building Code	1	16.04.010
6912	7-16-25	International Existing Building Code	1	16.06.010
6913	7-16-25	International Energy Conservation Code	1	16.52.010
6914	7-16-25	International Swimming Pool and Spa Code	1	16.30.010
6915	7-16-25	Uniform Mechanical Code	1	16.24.010

Ordinance Number	Date	Description	Section	Section this Code
6916	7-16-25	Uniform Plumbing Code	1	16.28.010
6917	7-16-25	National Electric Code	1	16.12.010
6918	7-16-25	International Fire Code; Emergency Radio Coverage	1	16.16.010
			2	16.16.030
			7 Rpld	16.18.010—16.18.050
6919	7-16-25	International Wildlife-Urban Interface Code	1	16.50.010
6920	7-16-25	Landlord training programs	1	6.09.010
6921	8- 6-25	Electric bicycles and scooters	1 Added	11.02.082
			2 Added	11.02.083
			3	11.40.040
			4	11.40.060
			5	11.40.070
			6	11.40.080
			7	11.40.090
			8	11.40.100
			9	11.40.110
			10	11.40.120
			11	11.40.140
			12	11.40.150
			13	11.40.160
			14	11.40.170
			15	11.40.180
			16 Added	11.40.185
			17	11.40.190
			18	11.40.200
			19	11.40.210
			20	13.36.020
6922	8-20-25	Not Codified		
6923	8-20-25	Not Codified		
6924	9- 3-25	Not Codified		
6925	9- 3-25	Not Codified		
6926	9- 3-25	Not Codified		
6927	9-17-25	Construction noise	1	9.16.030
6928	11- 5-25	Pet shops; penalties for Title 7 violations	1	7.40.130
			2 Added	7.40.145
			3	7.40.200
			4	7.40.250
			5	7.40.290
			6	7.40.300
				7.42.010
			7	7.42.030
			8 Added	7.42.035
			9 Rpld	7.42.040

Ordinance Number	Date	Description	Section	Section this Code
			10 Added	7.42.040
			11 Added	7.42.085
			12	7.44.040
			14	7.44.110
6929	11-19-25	Short-term residential rentals	1	6.75.010
			2	6.75.020
			3	6.75.040
6930	11-19-25	Certain owners and operators of commercial establishments engaged in the business of handling pets required to complete a training course	1 Added	7.43.010—7.43.040
6931	11-19-25	Not Codified		
6932	11-19-25	Not Codified		
6933	12- 3-25	Wedding chapels	1	6.84.010
			2	6.84.050
6934	1- 7-26	Updating defintions regarding business license categories "transportation network company" and "reflexology"	1	6.04.155
			2	6.69.010
6935	1- 7-26	Not Codified		
6936	1-21-26	Separate licenses or permits required for each assumed or fictitious business name being utilized by a business	1	6.02.150
6937	1-21-26	City ward boundaries	1	1.16.030
			2	1.16.040
			3	1.16.050
			4	1.16.060
			5	1.16.070
6938	1-21-26	Not Codified		
6939	2- 4-26	Not Codified		
6940	2- 4-26	Not Codified		
6941	2-18-26	Not Codified		
6942	2-18-26	Not Codified		
6943	2-18-26	Not Codified		
6944	2-18-26	Not Codified		

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